St. Mary Catholic Parish, Littleton, Colorado v. Lisa Roy, in Her Official Capacity as Executive Director of the Colorado Department of Early Childhood, No. 25-581 (U.S.)

St. Mary Catholic Parish, Littleton, Colorado v. Lisa Roy, in Her Official Capacity as Executive Director of the Colorado Department of Early Childhood

No. 25-581 (U.S.) • Supreme Court docket and filings (supremecourt.gov) • retrieved 2026-10-29

St. Mary Catholic Parish, Littleton, Colorado v. Lisa Roy, in Her Official Capacity as Executive Director of the Colorado Department of Early Childhood

No. 25-581 · docketed November 17, 2025 · cert. granted Apr. 20, 2026

United States Court of Appeals for the Tenth Circuit, No. 24-1267, decided September 30, 2025.

Questions presented (the Clerk's statement)

Colorado's so-called universal preschool program pays for families to send their children to the preschool of their choice, public or private. To participate, preschools must ensure all families have an "equal opportunity" to enroll regardless of, inter alia, race, religious affiliation, sexual orientation, gender identity, income level, or disability. Colorado nonetheless permits numerous exemptions from this requirement, both categorical and discretionary, allowing preschools to admit only "children of color," "gender-nonconforming children," "the LGBTQ community," low-income families, and children with disabilities. But Colorado excludes Catholic preschools because they admit only families who support Catholic beliefs, including on sex and gender. The Tenth Circuit upheld Colorado's decision to exclude Catholic preschools. Applying Employment Division v. Smith, it held that Colorado's secular exemptions and discretion did not undermine general applicability. In so doing, the court sided with the minority position in an entrenched and acknowledged 7 -4 split over what kinds of exemptions and discretion undermine general applicability. The court also eschewed Carson v. Makin, concluding that its rule was inapplicable because Colorado's exclusion was not "on the explicit basis" of religion. The questions presented are: 1. Whether proving a lack of general applicability under Employment Division v. Smith requires showing unfettered discretion or categorical exemptions for identical secular conduct. 2. Whether Carson v. Makin displaces the rule of Employment Division v. Smith only when the government explicitly excludes religious people and institutions. 3. Whether Employment Division v. Smith should be overruled

THE PETITION FOR A WRIT OF CERTIORARI IS GRANTED LIMITED TO QUESTIONS 1 AND 2 PRESENTED BY THE PETITION.

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Authorities the filings share.

Not part of the record. Reporter citations in each filing, resolved to CourtListener clusters through the local database (`scotus.py`); counts are mentions. Sides: the parties' filings plus the amici supporting each.

Petitioners' side: 335 cases (party 61, amici 320), 2394 mentions.
Respondent's side: 250 cases (party 62, amici 215), 1018 mentions.
Cited by both parties: 34 cases (both sides counting amici: 84); by amici only: 412.

Every authority is listed by side in the table after this box ("Every authority, by side").

Engagement with the decision below (of each filing's cases, how many the court of appeals also cites; 41 there): Pet. 11/30; Conscience Project Amicus Br. 8/14; Pacific Justice Institute Amicus Br. 2/8; Sutherland Institute Amicus Br. 2/5; Darren Patterson Christian Academy Amicus Br. 8/18; United States Conference Amicus Br. 7/17; Notre Dame Education Law Amicus Br. 3/8; EdChoice Amicus Br. 11/15; National Association of Evangelicals Amicus Br. 8/34; West Virginia Amicus Br. 12/28; Thomas More Society Amicus Br. 5/34; Center for American Liberty Amicus Br. 6/17; Robertson Center for Constitutional Amicus Br. 5/18; Stephanie Barclay Amicus Br. 9/26; Dr. Richard Rogers Amicus Br. 7/30; National Legal Foundation Amicus Br. 4/7; America's Future Amicus Br. 8/18; Foundation for Moral Law Amicus Br. 9/14; Colorado Association of Private Amicus Br. 4/11; Pioneer New England Legal Amicus Br. 4/6; Protect the First Foundation Amicus Br. 6/15; United States Amicus Br. 9/18; Br. in Opp. 8/33; Cert. Reply 5/9; Pet'rs Br. 13/41; World Faith Foundation Amicus Br. 12/41; National Legal Foundation Amicus Br. 6/32; Conscience Project Amicus Br. 6/10; Sutherland Institute Amicus Br. 2/5; Pioneer New England Legal Amicus Br. 5/5; Liberty Counsel Amicus Br. 8/23; United States Amicus Br. 10/22; Dr. Richard Rogers Amicus Br. 7/61; EdChoice Amicus Br. 9/18; Council for Christian Colleges Amicus Br. 3/13; National Association of Evangelicals Amicus Br. 9/39; Stephanie Barclay Amicus Br. 3/7; Darren Patterson Christian Academy Amicus Br. 8/26; Robertson Center for Constitutional Amicus Br. 9/35; America's Future Amicus Br. 10/30; Thomas More Society Amicus Br. 4/30; Fellowship of Christian Athletes Amicus Br. 7/22; Protect the First Foundation Amicus Br. 11/30; Crosspoint Church Amicus Br. 11/16; United States Conference Amicus Br. 9/19; LiMandri & Jonna LLP Amicus Br. 5/21; Professor Douglas Laycock Amicus Br. 12/27; Center for American Liberty Amicus Br. 8/18; Notre Dame Education Law Amicus Br. 3/9; Catholic League for Religious Amicus Br. 8/21; American Center for Law Amicus Br. 7/11; 43 Members of Congress Amicus Br. 3/7; West Virginia Amicus Br. 15/36; Union of Orthodox Jewish Amicus Br. 7/32; Resp. Br. 13/41; New Ways Ministry Amicus Br. 13/24; National Women's Law Center Amicus Br. 7/13; Historians of Education Amicus Br. 2/5; First Focus on Children Amicus Br. 0/6; Public Funds Public Schools Amicus Br. 9/16; Disability Rights Education Amicus Br. 1/31; GLBTQ Legal Advocates & Amicus Br. 13/39; Legal Scholars Amicus Br. 8/23; Members of Congress Amicus Br. 2/4; Children's Rights Amicus Br. 2/20; American Atheists Amicus Br. 2/16; Scholars for the Advancement Amicus Br. 5/19; Freedom From Religion Foundation Amicus Br. 5/23; First Amendment Scholars Amicus Br. 15/31; Professor Laura Portuondo Amicus Br. 4/5; Former Catholic School Superintendent Amicus Br. 0/0; Law and Religion Scholars Amicus Br. 11/38; Religious and Civil-Rights Organizations Amicus Br. 11/29; Local Government Legal Center Amicus Br. 10/20; COLAGE Amicus Br. 2/5; Ilan Meyer Amicus Br. 1/5; 27+ Lay Roman Catholics Amicus Br. 2/4; Massachusetts Amicus Br. 11/16; NAACP Legal Defense Amicus Br. 11/50; Interfaith Alliance Amicus Br. 9/11; Reply Br. 7/16

Coupling between the filings (shared cases ÷ cases cited by either of the two, %; amici grouped by stage and side, with the number of briefs; n = cases cited; appendices not counted)

	A	B	C	D	E	F	G	H	I	J	n
A Pet.	·	40	26	27	25	21	15	8	7	18	30
B Br. in Opp.	40	·	20	17	19	17	10	5	6	12	33
C Cert. Reply	26	20	·	19	14	9	5	3	2	11	9
D Pet'rs Br.	27	17	19	·	37	24	18	11	10	19	41
E Resp. Br.	25	19	14	37	·	21	12	8	9	19	41
F Reply Br.	21	17	9	24	21	·	8	4	6	14	16
G Cert. amici, pet. (21)	15	10	5	18	12	8	·	35	16	12	152
H Merits amici, pet. (29)	8	5	3	11	8	4	35	·	15	8	279
I Merits amici, resp. (25)	7	6	2	10	9	6	16	15	·	10	215
J Below	18	12	11	19	19	14	12	8	10	·	41

Amici: Conscience Project (peti.): closest to Reply Br., 30%; Pacific Justice Institute (peti.): closest to Reply Br., 14%; Sutherland Institute (peti.): closest to Cert. Reply, 17%; Darren Patterson Christian Academy (peti.): closest to Pet'rs Br., 28%; United States Conference (peti.): closest to Cert. Reply, 24%; Notre Dame Education Law (peti.): closest to Cert. Reply, 31%; EdChoice (peti.): closest to Cert. Reply, 33%; National Association of Evangelicals (peti.): closest to Pet'rs Br., 25%; West Virginia (peti.): closest to Pet'rs Br., 33%; Thomas More Society (peti.): closest to Pet'rs Br., 9%; Center for American Liberty (peti.): closest to Cert. Reply, 18%; Robertson Center for Constitutional (peti.): closest to Pet'rs Br., 20%; Stephanie Barclay (peti.): closest to Pet'rs Br., 26%; Dr. Richard Rogers (peti.): closest to Pet'rs Br., 15%; National Legal Foundation (peti.): closest to Reply Br., 15%; America's Future (peti.): closest to Reply Br., 21%; Foundation for Moral Law (peti.): closest to Reply Br., 25%; Colorado Association of Private (peti.): closest to Pet'rs Br., 18%; Pioneer New England Legal (peti.): closest to Reply Br., 16%; Protect the First Foundation (peti.):

closest to Reply Br., 7%; United States (peti.): closest to Pet., 41%; World Faith Foundation (peti.): closest to Pet'rs Br., 21%; National Legal Foundation (peti.): closest to Reply Br., 12%; Conscience Project (peti.): closest to Cert. Reply, 27%; Sutherland Institute (peti.): closest to Cert. Reply, 17%; Pioneer New England Legal (peti.): closest to Reply Br., 24%; Liberty Counsel (peti.): closest to Pet'rs Br., 16%; United States (peti.): closest to Pet., 37%; Dr. Richard Rogers (peti.): closest to Pet'rs Br., 13%; EdChoice (peti.): closest to Pet'rs Br., 28%; Council for Christian Colleges (peti.): closest to Cert. Reply, 22%; National Association of Evangelicals (peti.): closest to Pet'rs Br., 29%; Stephanie Barclay (peti.): closest to Cert. Reply, 23%; Darren Patterson Christian Academy (peti.): closest to Pet'rs Br., 31%; Robertson Center for Constitutional (peti.): closest to Pet'rs Br., 21%; America's Future (peti.): closest to Reply Br., 18%; Thomas More Society (peti.): closest to Pet'rs Br., 8%; Fellowship of Christian Athletes (peti.): closest to Cert. Reply, 15%; Protect the First Foundation (peti.): closest to Pet'rs Br., 29%; Crosspoint Church (peti.): closest to Reply Br., 39%; United States Conference (peti.): closest to Pet'rs Br., 25%; LiMandri & Jonna LLP (peti.): closest to Pet., 16%; Professor Douglas Laycock (peti.): closest to Pet'rs Br., 31%; Center for American Liberty (peti.): closest to Reply Br., 26%; Notre Dame Education Law (peti.): closest to Cert. Reply, 29%; Catholic League for Religious (peti.): closest to Pet'rs Br., 22%; American Center for Law (peti.): closest to Cert. Reply, 25%; 43 Members of Congress (peti.): closest to Cert. Reply, 23%; West Virginia (peti.): closest to Pet'rs Br., 38%; Union of Orthodox Jewish (peti.): closest to Pet'rs Br., 22%; New Ways Ministry (resp.): closest to Pet., 26%; National Women's Law Center (resp.): closest to Cert. Reply, 22%; Historians of Education (resp.): closest to Cert. Reply, 17%; First Focus on Children (resp.): closest to Pet., 0%; Public Funds Public Schools (resp.): closest to Reply Br., 19%; Disability Rights Education (resp.): closest to Resp. Br., 7%; GLBTQ Legal Advocates & (resp.): closest to Pet'rs Br., 19%; Legal Scholars (resp.): closest to Pet'rs Br., 8%; Members of Congress (resp.): closest to Reply Br., 5%; Children's Rights (resp.): closest to Pet., 0%; American Atheists (resp.): closest to Pet'rs Br., 10%; Scholars for the Advancement (resp.): closest to Pet'rs Br., 11%; Freedom From Religion Foundation (resp.): closest to Pet'rs Br., 8%; First Amendment Scholars (resp.): closest to Pet'rs Br., 24%; Professor Laura Portuondo (resp.): closest to Reply Br., 24%; Former Catholic School Superintendent (resp.): closest to Pet., 0%; Law and Religion Scholars (resp.): closest to Resp. Br., 22%; Religious and Civil-Rights Organizations (resp.): closest to Pet., 31%; Local Government Legal Center (resp.): closest to Pet., 25%; COLAGE (resp.): closest to Resp. Br., 2%; Ilan Meyer (resp.): closest to Pet., 0%; 27+ Lay Roman Catholics (resp.): closest to Cert. Reply, 8%; Massachusetts (resp.): closest to Pet'rs Br., 19%; NAACP Legal Defense (resp.): closest to Pet'rs Br., 7%; Interfaith Alliance (resp.): closest to Reply Br., 29%

Areas each side draws on (share of mentions by the cited case's co-citation area)

Area	Pet.	Resp.
First Amendment and individual liberties	80%	64%
Substantive due process and equal protection	6%	14%
(no area)	8%	7%
Standing and judicial review of agency action	2%	3%
Section 1983, qualified immunity and prisoner rights	1%	1%
Federal courts: sovereign immunity and implied rights of a	0%	2%
Ballot access and election regulation (Anderson-Burdick)	1%	1%
Attorney's fees and sanctions	0%	2%
Employment discrimination and summary judgment	0%	1%
Second Amendment; civil-versus-criminal penalty doctrines	1%	1%
Class actions, separation of powers and 2025 suits against	0%	1%
Miranda, eyewitness identification and confrontation	0%	1%

↑ Every authority, by side

Not part of the record. Pet./Resp.: mentions by the side's party filings and by its amici, apart; Filings = party+amici filings citing it, pet./resp. Bands follow the parties: a case one party cites and the other side reaches only through amici sits in the citing party's band. Below = cited in the court of appeals' opinion. Cite is what `tribonian case fetch -cite` *takes.*

#	Case	Cite	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Below
Cited by both parties								
1	Carson (2022)	596 U.S. 767	40	180	15	36	4+40/2+11	x
2	Smith (1990)	494 U.S. 872	10	119	15	75	3+38/2+16	x
3	Tandon (2021)	593 U.S. 61	18	88	10	24	3+16/1+8	x
4	Comer (2017)	582 U.S. 449	7	96	8	35	3+34/2+9	x
5	Fulton (2021)	593 U.S. 522	32	127	6	59	4+37/2+14	x
6	Mahmoud (2025)	606 U.S. 522	16	100	6	13	3+28/2+8	
7	Kennedy v. Bremerton School Dist. (2022)	597 U.S. 507	8	30	6	7	3+18/1+5	x
8	Thomas (1981)	450 U.S. 707	7	29	5	6	3+16/2+6	

#	Case	Cite	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Below
9	Catholic Charities Bureau, Inc. v. Wisconsin Labor and Indu… (2025)	605 U.S. 238	5	34	5	2	3+20/2+2	
10	Lukumi Babalu (1993)	508 U.S. 520	12	103	4	27	2+30/1+10	x
11	Sherbert (1963)	374 U.S. 398	11	50	4	11	3+18/2+7	x
12	Espinoza (2020)	591 U.S. 464	12	126	3	25	3+32/1+11	x
13	Masterpiece Cakeshop, Ltd. v. Colorado Civil Rights Comm'n (2018)	584 U.S. 617	3	34	3	32	1+24/1+9	x
14	Fellowship of Christian Athletes v. San Jose Unified School… (2023)	82 F.4th 664	8	19	3	–	3+7/2+0	x
15	Martinez (2010)	561 U.S. 661	2	15	2	6	1+5/1+4	x
16	McDaniel (1978)	435 U.S. 618	2	7	2	–	1+4/2+0	
17	Locke (2004)	540 U.S. 712	2	6	3	–	1+5/1+0	
18	Alexander Smith v. City of Atlantic City (2025)	138 F.4th 759	5	2	2	–	3+2/1+0	
19	Yoder (1972)	406 U.S. 205	2	74	1	10	1+30/1+6	
20	Hosanna-Tabor Evangelical Lutheran Church & School v. Equal… (2012)	565 U.S. 171	2	61	1	1	1+21/1+1	
21	City of Boerne (1997)	521 U.S. 507	1	9	1	13	1+3/1+6	
22	Cuomo (2020)	592 U.S. 14	2	16	1	–	1+10/1+0	
23	Everson (1947)	330 U.S. 1	2	12	1	4	2+10/1+1	
24	Carpenter (2024)	107 F.4th 92	1	7	1	2	1+3/1+2	
25	Fraternal Order of Police Newark Lodge No. 12 v. City of Ne… (1999)	170 F.3d 359	1	3	1	4	1+3/1+4	
26	North Coast Women's Care Medical Group, Inc. v. Superior Co… (2008)	44 Cal. 4th 1145	1	5	1	–	1+2/1+0	
27	Monclova Christian Academy v. Toledo-Lucas Cnty. Health Dep… (2020)	984 F.3d 477	3	3	1	–	2+2/1+0	
28	Blackhawk (2004)	381 F.3d 202	1	–	2	1	1+0/1+1	
29	Midrash Sephardi, Inc. v. Town of Surfside (2004)	366 F.3d 1214	1	1	1	–	1+1/1+0	
30	Mitchell County v. Matthew Hoover Zimmerman (2012)	2012 Iowa Sup. LEXIS 11	1	1	1	–	1+1/1+0	
31	McDonald (2025)	130 F.4th 258	1	–	1	–	1+0/1+0	
32	Sause (2018)	585 U.S. 957	1	–	1	–	1+0/1+0	
33	Armitage.Â (2014)	132 Haw. 36	1	–	1	–	1+0/1+0	
34	Raimondo (2024)	603 U.S. 369	1	–	1	–	1+0/1+0	
The petitioners, not the respondent								
35	Elenis (2023)	600 U.S. 570	3	9	–	8	2+9/0+8	x
36	Zorach (1952)	343 U.S. 306	3	5	–	2	2+4/0+1	
37	Kedroff (1952)	344 U.S. 94	2	6	–	–	1+6/0+0	
38	Centro Espirita (2006)	546 U.S. 418	2	4	–	2	2+4/0+2	
39	Hobbie (1987)	480 U.S. 136	2	3	–	2	1+3/0+1	
40	Brown (2011)	564 U.S. 786	2	1	–	–	1+1/0+0	
41	Yellowbear (2014)	741 F.3d 48	2	–	–	–	2+0/0+0	
42	Barnette (1943)	319 U.S. 624	1	13	–	2	1+7/0+2	
43	Students for Fair Admissions, Inc. v. President and Fellows… (2023)	600 U.S. 181	1	10	–	1	1+9/0+1	
44	Dobbs (2022)	597 U.S. 215	1	6	–	–	1+4/0+0	
45	Ramirez (2022)	595 U.S. 411	1	4	–	–	1+3/0+0	
46	Larson (1982)	456 U.S. 228	1	4	–	1	1+2/0+1	
47	American Legion v. Am. Humanist Ass'n (2019)	588 U.S. 29	1	3	–	–	1+3/0+0	
48	Murdock (1943)	319 U.S. 105	1	3	–	–	1+3/0+0	
49	Milivojevich (1976)	426 U.S. 696	1	3	–	2	1+2/0+2	
50	Stormans Inc v. John Wiesman (2015)	794 F.3d 1064	1	3	–	2	1+3/0+1	
51	Koire (1985)	40 Cal. 3d 24	1	1	–	–	1+1/0+0	

#	Case	Cite	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Below
52	Lisa Kim v. Board of Education of Howard County (2024)	93 F.4th 733	1	1	–	–	1+1/0+0	x
53	We the Patriots USA, Inc. v. Conn. Office of Early Childhoo… (2023)	76 F.4th 130	1	–	–	–	1+0/0+0	
54	Follett (1944)	321 U.S. 573	1	–	–	–	1+0/0+0	
55	Simon & Schuster (1991)	502 U.S. 105	1	–	–	–	1+0/0+0	
56	Koontz (2013)	570 U.S. 595	1	–	–	–	1+0/0+0	
57	Cantwell (1940)	310 U.S. 296	1	–	–	–	1+0/0+0	
58	Elrod (1976)	427 U.S. 347	1	–	–	–	1+0/0+0	
59	Barnette (1942)	47 F. Supp. 251	1	–	–	–	1+0/0+0	
60	Tamer Mahmoud v. Monifa McKnight (2024)	102 F.4th 191	1	–	–	–	1+0/0+0	
61	Telescope Media Group v. Rebecca Lucero (2019)	936 F.3d 740	1	–	–	–	1+0/0+0	
The respondent, not the petitioners								
62	In re the People ex rel. W.P. (2013)	2013 Colo. LEXIS 114	–	–	2	–	0+0/2+0	
63	Schneiderman (2017)	581 U.S. 37	–	–	2	–	0+0/2+0	
64	Roberts (1984)	468 U.S. 609	–	1	1	10	0+1/1+6	x
65	Barnett (2002)	535 U.S. 391	–	–	1	5	0+0/1+2	
66	Cleburne (1985)	473 U.S. 432	–	1	1	2	0+1/1+2	x
67	Endrew F. v. Douglas Cnty. Sch. Dist. RE-1 (2017)	580 U.S. 386	–	–	1	2	0+0/1+1	
68	Cline (2004)	540 U.S. 581	–	–	1	2	0+0/1+1	
69	Alexander (1985)	469 U.S. 287	–	–	1	1	0+0/1+1	
70	Frisby (1988)	487 U.S. 474	–	–	1	–	0+0/1+0	
71	DeVillier (2024)	601 U.S. 285	–	–	1	–	0+0/1+0	
72	Lowe (2023)	68 F.4th 706	–	1	1	–	0+1/1+0	
73	Cromartie (2001)	532 U.S. 234	–	–	1	–	0+0/1+0	
74	Bishop (1976)	426 U.S. 341	–	–	1	–	0+0/1+0	
75	Schweiker (1982)	457 U.S. 569	–	–	1	–	0+0/1+0	
76	Ashcroft v. American Civil Liberties Union (2004)	542 U.S. 656	–	–	1	–	0+0/1+0	
77	Hanlen (2014)	2014 Colo. LEXIS 223	–	–	1	–	0+0/1+0	
78	Goldberg (1970)	397 U.S. 254	–	–	1	–	0+0/1+0	
79	OK Tax (1995)	515 U.S. 450	–	–	1	–	0+0/1+0	
80	Little (1991)	929 F.2d 944	–	1	1	–	0+1/1+0	
81	Murgia (1976)	427 U.S. 307	–	–	1	–	0+0/1+0	
82	Town of Surfside v. Midrash Sephardi, Inc. (2005)	543 U.S. 1146	–	–	1	–	0+0/1+0	
83	Gebser (1998)	524 U.S. 274	–	–	1	–	0+0/1+0	
84	Neil (1972)	409 U.S. 188	–	–	1	–	0+0/1+0	
85	Paxton (2025)	606 U.S. 461	–	–	1	–	0+0/1+0	
86	Nynex Corp. v. Discon, Inc. (1998)	525 U.S. 128	–	–	1	–	0+0/1+0	
87	Lau (1974)	414 U.S. 563	–	–	1	–	0+0/1+0	
88	Hooper (1985)	472 U.S. 612	–	–	1	–	0+0/1+0	
89	Harris (1980)	448 U.S. 297	–	–	1	–	0+0/1+0	x
Amici only (no party cites it)								
90	Obergefell (2015)	576 U.S. 644	–	13	–	28	0+9/0+9	x
91	Pierce (1925)	268 U.S. 510	–	26	–	4	0+13/0+2	
92	Reynolds (1879)	98 U.S. 145	–	15	–	15	0+9/0+5	x
93	Zelman (2002)	536 U.S. 639	–	20	–	2	0+10/0+1	
94	Bowen (1986)	476 U.S. 693	–	7	–	14	0+6/0+7	
95	Helms (2000)	530 U.S. 793	–	21	–	–	0+10/0+0	
96	Seeger (1965)	380 U.S. 163	–	18	–	1	0+4/0+1	x
97	Lyng (1988)	485 U.S. 439	–	8	–	10	0+8/0+6	
98	Bob Jones University v. United States (1983)	461 U.S. 574	–	–	–	17	0+0/0+7	
99	Newman (1968)	390 U.S. 400	–	–	–	16	0+0/0+6	

#	Case	Cite	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Below
100	Norwood (1973)	413 U.S. 455	–	1	–	15	0+1/0+8	x
101	Dale (2000)	530 U.S. 640	–	15	–	–	0+6/0+0	x
102	Brown (1954)	347 U.S. 483	–	–	–	15	0+0/0+6	
103	Windsor (2013)	570 U.S. 744	–	–	–	14	0+0/0+5	
104	Welsh (1970)	398 U.S. 333	–	14	–	–	0+6/0+0	x
105	Bostock (2020)	590 U.S. 644	–	6	–	7	0+4/0+4	
106	Fowler (1953)	345 U.S. 67	–	13	–	–	0+7/0+0	
107	Watson (1872)	80 U.S. 679	–	11	–	–	0+4/0+0	
108	Frank Africa v. The Commonwealth of Pennsylvania Leroy S. Z… (1981)	662 F.2d 1025	–	10	–	–	0+4/0+0	
109	Plyler (1982)	457 U.S. 202	–	1	–	9	0+1/0+4	
110	Peloza (1994)	37 F.3d 517	–	10	–	–	0+2/0+0	
111	Janus (2018)	585 U.S. 878	–	10	–	–	0+3/0+0	
112	Lemon (1971)	403 U.S. 602	–	8	–	1	0+7/0+1	
113	Arlington Heights (1977)	429 U.S. 252	–	7	–	1	0+1/0+1	
114	Cavanaugh (2016)	178 F. Supp. 3d 819	–	8	–	–	0+2/0+0	
115	Agostini (1997)	521 U.S. 203	–	8	–	–	0+3/0+0	
116	Walz (1970)	397 U.S. 664	–	6	–	2	0+6/0+1	
117	Weber (1972)	406 U.S. 164	–	–	–	8	0+0/0+5	
118	Less (1982)	455 U.S. 252	–	–	–	7	0+0/0+5	x
119	Hurley (1995)	515 U.S. 557	–	4	–	3	0+3/0+3	x
120	Rosenberger (1995)	515 U.S. 819	–	7	–	–	0+5/0+0	
121	Romer (1996)	517 U.S. 620	–	–	–	7	0+0/0+6	
122	Business Leaders In Christ v. The University of Iowa (2021)	991 F.3d 969	–	7	–	–	0+4/0+0	
123	Amos (1987)	483 U.S. 327	–	4	–	3	0+4/0+2	
124	Davis (1890)	133 U.S. 333	–	6	–	1	0+5/0+1	
125	Feeney (1979)	442 U.S. 256	–	7	–	–	0+1/0+0	
126	Intervarsity Christian Fellows v. University of Iowa (2021)	5 F.4th 855	–	7	–	–	0+3/0+0	
127	Open Society (2013)	570 U.S. 205	–	5	–	2	0+5/0+2	
128	Torcaso (1961)	367 U.S. 488	–	7	–	–	0+7/0+0	
129	Meyer (1923)	262 U.S. 390	–	6	–	1	0+6/0+1	
130	Runyon (1976)	427 U.S. 160	–	1	–	6	0+1/0+3	x
131	Patricia Moore-King v. County of Chesterfield, VA (2013)	708 F.3d 560	–	6	–	–	0+4/0+0	
132	Schempp (1963)	374 U.S. 203	–	4	–	2	0+4/0+2	
133	Heller (2008)	554 U.S. 570	–	6	–	–	0+4/0+0	
134	Ballard (1944)	322 U.S. 78	–	5	–	1	0+5/0+1	
135	United States v. David Meyers (1996)	95 F.3d 1475	–	6	–	–	0+4/0+0	
136	Frazee (1989)	489 U.S. 829	–	6	–	–	0+6/0+0	
137	Gillette (1971)	401 U.S. 437	–	2	–	4	0+2/0+3	
138	Gobitis (1940)	310 U.S. 586	–	6	–	–	0+2/0+0	
139	Fry (2017)	580 U.S. 154	–	–	–	5	0+0/0+1	
140	Galloway (2014)	572 U.S. 565	–	3	–	2	0+3/0+1	
141	Anne P. Newman, Sharon W. Neal and John Mungin v. Piggie Pa… (1967)	377 F.2d 433	–	–	–	5	0+0/0+2	
142	Bruen (2022)	597 U.S. 1	–	5	–	–	0+3/0+0	
143	Caldor (1985)	472 U.S. 703	–	–	–	5	0+0/0+1	
144	Smith v. Fair Employment & Housing Commission (1996)	12 Cal. 4th 1143	–	4	–	–	0+1/0+0	
145	Lawrence (2003)	539 U.S. 558	–	2	–	2	0+2/0+2	
146	Hardison (1977)	432 U.S. 63	–	4	–	–	0+1/0+0	

#	Case	Cite	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Below
147	Levy (1968)	391 U.S. 68	–	–	–	4	0+0/0+2	
148	Kelvin Ray Love v. M.D. Reed, G. David Guntharp, and Bruce… (2000)	216 F.3d 682	–	4	–	–	0+4/0+0	
149	Troxel (2000)	530 U.S. 57	–	4	–	–	0+3/0+0	
150	Rowley (1982)	458 U.S. 176	–	–	–	4	0+0/0+1	
151	Catholic Charities of Sacramento, Inc. v. Superior Court (2004)	32 Cal. 4th 527	–	4	–	–	0+1/0+0	
152	Zobrest (1993)	509 U.S. 1	–	4	–	–	0+3/0+0	
153	United States v. Virginia (1996)	518 U.S. 515	–	3	–	1	0+2/0+1	
154	MacIntosh (1931)	283 U.S. 605	–	4	–	–	0+4/0+0	
155	Prince (1944)	321 U.S. 158	–	–	–	4	0+0/0+4	
156	Hernandez (1989)	490 U.S. 680	–	2	–	2	0+2/0+1	
157	Citizens United (2010)	558 U.S. 310	–	4	–	–	0+1/0+0	
158	Smith v. Board of School Commissioners (1987)	103 A.L.R. Fed. 517	–	4	–	–	0+2/0+0	
159	Chaya Loffman v. California Department of Education (2024)	119 F.4th 1147	–	4	–	–	0+4/0+0	
160	Girouard (1946)	328 U.S. 61	–	4	–	–	0+4/0+0	
161	Wallace (1985)	472 U.S. 38	–	4	–	–	0+4/0+0	
162	In Re GAULT (1967)	387 U.S. 1	–	–	–	4	0+0/0+2	
163	Witters (1986)	474 U.S. 481	–	4	–	–	0+3/0+0	
164	James J. Kaufman v. Gary R. McCaughtry (2005)	419 F.3d 678	–	4	–	–	0+2/0+0	
165	Watts (2007)	495 F.3d 1289	–	4	–	–	0+2/0+0	
166	Groff (2023)	600 U.S. 447	–	3	–	–	0+1/0+0	
167	Alfred L. Snapp & Son, Inc. v. Puerto Rico Ex Rel. Barez (1982)	458 U.S. 592	–	–	–	3	0+0/0+2	
168	Edwards (1987)	482 U.S. 578	–	1	–	2	0+1/0+2	
169	Equal Employment Opportunity Commission and Elizabeth McDon… (1996)	83 F.3d 455	–	3	–	–	0+3/0+0	
170	State v. Arlene's Flowers, Inc. (2019)	441 P.3d 1203	–	3	–	–	0+3/0+0	
171	Gilmore (1974)	417 U.S. 556	–	–	–	3	0+0/0+3	
172	Richmond (1989)	488 U.S. 469	–	–	–	3	0+0/0+3	
173	Palmore (1984)	466 U.S. 429	–	–	–	3	0+0/0+2	
174	Bullock (1989)	489 U.S. 1	–	1	–	2	0+1/0+1	
175	Vullo (2024)	602 U.S. 175	–	3	–	–	0+3/0+0	
176	Meek (1975)	421 U.S. 349	–	3	–	–	0+2/0+0	
177	McGowan (1961)	366 U.S. 420	–	2	–	1	0+2/0+1	
178	A. J. T. v. Osseo Area Schools, Independent School Dist. No… (2025)	605 U.S. 335	–	–	–	3	0+0/0+1	
179	Mckesson (2020)	592 U.S. 1	–	–	–	3	0+0/0+1	
180	Loving (1967)	388 U.S. 1	–	–	–	3	0+0/0+2	
181	Aaron Pulsifer v. Westshore Christian Academy (2025)	142 F.4th 859	–	2	–	–	0+2/0+0	
182	Central Rabbinical Congress of the United States & Canada v… (2014)	763 F.3d 183	–	1	–	1	0+1/0+1	
183	Sharonell Fulton v. City of Philadelphia (2019)	922 F.3d 140	–	2	–	–	0+2/0+0	
184	Douglas (1963)	372 U.S. 353	–	–	–	2	0+0/0+1	
185	Healy (1972)	408 U.S. 169	–	2	–	–	0+2/0+0	
186	Perry (1972)	408 U.S. 593	–	2	–	–	0+1/0+0	
187	Wooley (1977)	430 U.S. 705	–	2	–	–	0+1/0+0	
188	Trimble (1977)	430 U.S. 762	–	–	–	2	0+0/0+1	
189	Malnak (1979)	592 F.2d 197	–	2	–	–	0+2/0+0	
190	Turner Broadcasting System, Inc. v. Federal Communications… (1994)	512 U.S. 622	–	1	–	1	0+1/0+1	
191	Wiggins (2003)	539 U.S. 510	–	–	–	2	0+0/0+1	

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192	Bowers (1986)	478 U.S. 186	–	2	–	–	0+2/0+0	
193	RAV (1992)	505 U.S. 377	–	1	–	1	0+1/0+1	
194	Casey (1992)	505 U.S. 833	–	2	–	–	0+1/0+0	
195	Duquesne University v. NLRB (2020)	947 F.3d 824	–	2	–	–	0+2/0+0	
196	Roe (1973)	410 U.S. 113	–	2	–	–	0+2/0+0	
197	Luna Perez v. Sturgis Public Schools (2023)	598 U.S. 142	–	–	–	2	0+0/0+1	
198	Latta (2014)	771 F.3d 456	–	–	–	2	0+0/0+1	
199	Bellamy (1973)	368 F. Supp. 1025	–	2	–	–	0+2/0+0	
200	Smithkline Beecham Corporation v. Abbott Laboratories (2014)	740 F.3d 471	–	–	–	2	0+0/0+1	
201	Hogan (1982)	458 U.S. 718	–	2	–	–	0+1/0+0	
202	Megan Passarella v. Aspirus, Inc. (2024)	108 F.4th 1005	–	2	–	–	0+2/0+0	
203	Lamb's Chapel (1993)	508 U.S. 384	–	2	–	–	0+2/0+0	
204	McCreary (2005)	545 U.S. 844	–	2	–	–	0+2/0+0	
205	Boyajian (2000)	212 F.3d 1	–	–	–	2	0+0/0+1	
206	Swanson (1998)	135 F.3d 694	–	–	–	2	0+0/0+1	x
207	FAIR (2006)	547 U.S. 47	–	2	–	–	0+2/0+0	x
208	Manhart (1978)	435 U.S. 702	–	–	–	2	0+0/0+1	
209	Ryan Karnoski v. Donald Trump (2019)	926 F.3d 1180	–	–	–	2	0+0/0+1	
210	Epperson (1968)	393 U.S. 97	–	2	–	–	0+2/0+0	
211	Speiser (1958)	357 U.S. 513	–	2	–	–	0+1/0+0	
212	Knick (2019)	588 U.S. 180	–	2	–	–	0+1/0+0	
213	Plessy (1896)	163 U.S. 537	–	2	–	–	0+2/0+0	
214	Nyquist (1973)	413 U.S. 756	–	2	–	–	0+2/0+0	
215	Regan (1983)	461 U.S. 540	–	–	–	2	0+0/0+2	
216	Widmar (1981)	454 U.S. 263	–	2	–	–	0+1/0+0	
217	Honig (1988)	484 U.S. 305	–	–	–	2	0+0/0+1	
218	Parker (2008)	514 F.3d 87	–	1	–	1	0+1/0+1	
219	Niemotko (1951)	340 U.S. 268	–	2	–	–	0+2/0+0	
220	Martin (1943)	319 U.S. 141	–	2	–	–	0+2/0+0	
221	Mueller (1983)	463 U.S. 388	–	2	–	–	0+1/0+0	
222	Gibbons (1824)	22 U.S. 1	–	2	–	–	0+2/0+0	
223	Benson (1998)	218 Wis. 2d 835	–	–	–	2	0+0/0+1	
224	Heart of Atlanta (1965)	379 U.S. 241	–	1	–	1	0+1/0+1	
225	Newman (1966)	256 F. Supp. 941	–	–	–	2	0+0/0+2	
226	Bates v. City of Little Rock (1960)	361 U.S. 516	–	2	–	–	0+2/0+0	
227	J. D. B. v. North Carolina (2011)	564 U.S. 261	–	–	–	2	0+0/0+2	
228	Armstrong (2025)	138 F.4th 1204	–	2	–	–	0+2/0+0	
229	Cutter (2005)	544 U.S. 709	–	1	–	1	0+1/0+1	
230	Windsor (2012)	699 F.3d 169	–	–	–	2	0+0/0+2	
231	Jones (1979)	443 U.S. 595	–	2	–	–	0+1/0+0	
232	P.P. (2015)	135 F. Supp. 3d 1098	–	–	–	2	0+0/0+1	
233	Korematsu (1945)	323 U.S. 214	–	2	–	–	0+2/0+0	
234	Doe (2000)	530 U.S. 290	–	2	–	–	0+1/0+0	
235	Washington Ethical Society, a Corporation v. District of Co… (1957)	249 F.2d 127	–	2	–	–	0+2/0+0	
236	Daniel Chapter One v. Federal Trade Commission (2010)	405 F. App'x 505	–	2	–	–	0+2/0+0	
237	Mount Elliott Cemetery Association v. City of Troy (1999)	171 F.3d 398	–	1	–	1	0+1/0+1	
238	Boddie (1971)	401 U.S. 371	–	–	–	2	0+0/0+1	
239	Lighthouse Institute for Evangelism, Inc. v. City of Long B… (2007)	510 F.3d 253	–	–	–	2	0+0/0+1	

#	Case	Cite	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Below
240	Aurora Regino v. Kelly Staley (2025)	133 F.4th 951	–	2	–	–	0+2/0+0	
241	In Re Yamashita (1946)	327 U.S. 1	–	2	–	–	0+2/0+0	
242	In Re Cox (1970)	3 Cal. 3d 205	–	2	–	–	0+1/0+0	
243	Melvin D. Reed v. The Great Lakes Companies, Inc. (2003)	330 F.3d 931	–	2	–	–	0+2/0+0	
244	La Follette (1981)	450 U.S. 107	–	2	–	–	0+2/0+0	
245	Ball (1985)	473 U.S. 373	–	2	–	–	0+1/0+0	
246	Bradfield (1899)	175 U.S. 291	–	2	–	–	0+1/0+0	
247	Davis (1976)	426 U.S. 229	–	–	–	2	0+0/0+2	
248	Griffin (1956)	351 U.S. 12	–	–	–	2	0+0/0+1	
249	Mason v. General Brown Central School District (1988)	851 F.2d 47	–	2	–	–	0+2/0+0	
250	Roemer (1976)	426 U.S. 736	–	2	–	–	0+1/0+0	
251	Meyers (1995)	906 F. Supp. 1494	–	2	–	–	0+2/0+0	
252	Brown (1977)	441 F. Supp. 1382	–	2	–	–	0+2/0+0	
253	Engel (1962)	370 U.S. 421	–	1	–	1	0+1/0+1	
254	Rust (1991)	500 U.S. 173	–	–	–	2	0+0/0+2	
255	Jacobson (1905)	197 U.S. 11	–	–	–	2	0+0/0+2	
256	Smith v. Pennsylvania (2013)	568 U.S. 1130	–	1	–	–	0+1/0+0	
257	Payne (1991)	501 U.S. 808	–	1	–	–	0+1/0+0	
258	Weaver (2008)	534 F.3d 1245	–	1	–	–	0+1/0+0	
259	Stanley (1927)	81 Colo. 276	–	1	–	–	0+1/0+0	
260	Harmelin (1991)	501 U.S. 957	–	1	–	–	0+1/0+0	
261	Sturges (1819)	17 U.S. 122	–	1	–	–	0+1/0+0	
262	Rivera (2007)	2007 Colo. App. LEXIS 2032	–	–	–	1	0+0/0+1	
263	Ritesh Tandon v. Gavin Newsom (2021)	992 F.3d 916	–	1	–	–	0+1/0+0	
264	Mullins (2015)	2015 Colo. App. LEXIS 1217	–	1	–	–	0+1/0+0	
265	Nicholas Meriwether v. Francesca Hartop (2021)	992 F.3d 492	–	1	–	–	0+1/0+0	x
266	Julea Ward v. Vernon Polite (2012)	667 F.3d 727	–	1	–	–	0+1/0+0	
267	The State of Rhode Island v. the State of Massachusetts (1838)	37 U.S. 657	–	1	–	–	0+1/0+0	
268	Buck (2017)	580 U.S. 100	–	–	–	1	0+0/0+1	
269	Cox (1941)	312 U.S. 569	–	–	–	1	0+0/0+1	
270	Miller v. Amusement Enterprises, Inc. (1968)	7 A.L.R. Fed. 399	–	1	–	–	0+1/0+0	
271	McCollum (1948)	333 U.S. 203	–	–	–	1	0+0/0+1	
272	Wright (1880)	101 U.S. 791	–	1	–	–	0+1/0+0	
273	Carmen NIETO v. CLARK'S MARKET, INC. (2021)	488 P.3d 1140	–	–	–	1	0+0/0+1	
274	Gonzalez (1929)	280 U.S. 1	–	1	–	–	0+1/0+0	
275	Abood (1977)	431 U.S. 209	–	1	–	–	0+1/0+0	
276	Church of the Holy Trinity v. United States (1892)	143 U.S. 457	–	1	–	–	0+1/0+0	
277	Shelley (1948)	334 U.S. 1	–	–	–	1	0+0/0+1	
278	South Carolina (1905)	199 U.S. 437	–	1	–	–	0+1/0+0	
279	Moore (1977)	431 U.S. 494	–	–	–	1	0+0/0+1	
280	Classic (1941)	313 U.S. 299	–	1	–	–	0+1/0+0	
281	Tanvir (2024)	120 F.4th 1049	–	1	–	–	0+1/0+0	
282	United States Department of Transportation v. Paralyzed Vet… (1986)	477 U.S. 597	–	–	–	1	0+0/0+1	
283	Lambert (1958)	355 U.S. 225	–	–	–	1	0+0/0+1	
284	Forsyth County v. Nationalist Movement (1992)	505 U.S. 123	–	–	–	1	0+0/0+1	
285	American Friends Service Committee Corp. v. Thornburgh (1991)	961 F.2d 1405	–	1	–	–	0+1/0+0	
286	Watson (1893)	157 Mass. 561	–	–	–	1	0+0/0+1	

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287	Isbister (1985)	40 Cal. 3d 72	–	1	–	–	0+1/0+0	
288	Allen (2023)	599 U.S. 1	–	–	–	1	0+0/0+1	
289	Masterpiece Cakeshop, Inc. and Jack Phillips v. Autumn Scar… (2024)	556 P.3d 1238	–	1	–	–	0+1/0+0	
290	Wolman (1977)	433 U.S. 229	–	1	–	–	0+1/0+0	
291	NFIB (2012)	567 U.S. 519	–	1	–	–	0+1/0+0	
292	Martin (1816)	14 U.S. 304	–	1	–	–	0+1/0+0	
293	McGinnis (1973)	410 U.S. 263	–	–	–	1	0+0/0+1	
294	Railway Express (1949)	336 U.S. 106	–	1	–	–	0+1/0+0	
295	Alabama v. Trustees of the Big Sandy Independent School Dis… (1993)	817 F. Supp. 1319	–	1	–	–	0+1/0+0	
296	Robert Williams, Sr. v. State of California (2014)	764 F.3d 1002	–	–	–	1	0+0/0+1	
297	O'Brien (1968)	391 U.S. 367	–	–	–	1	0+0/0+1	
298	Westchester Day School v. Village of Mamaroneck (2007)	504 F.3d 338	–	1	–	–	0+1/0+0	
299	Ramirez (2021)	594 U.S. 413	–	1	–	–	0+1/0+0	
300	Yang (1990)	750 F. Supp. 558	–	1	–	–	0+1/0+0	
301	McDonald (2010)	561 U.S. 742	–	1	–	–	0+1/0+0	
302	Gaudin (1995)	515 U.S. 506	–	1	–	–	0+1/0+0	
303	Zablocki (1978)	434 U.S. 374	–	–	–	1	0+0/0+1	
304	Chiafalo (2020)	591 U.S. 578	–	1	–	–	0+1/0+0	
305	Rodriguez (1973)	411 U.S. 1	–	–	–	1	0+0/0+1	
306	Flast (1968)	392 U.S. 83	–	1	–	–	0+1/0+0	
307	Poindexter (1968)	393 U.S. 17	–	–	–	1	0+0/0+1	
308	Allen (1968)	392 U.S. 236	–	1	–	–	0+1/0+0	
309	Murphy (2006)	548 U.S. 291	–	–	–	1	0+0/0+1	
310	Jacobs (2008)	526 F.3d 419	–	–	–	1	0+0/0+1	
311	Biden (2023)	600 U.S. 477	–	–	–	1	0+0/0+1	x
312	Dixon (2006)	548 U.S. 1	–	–	–	1	0+0/0+1	
313	Cahill (1973)	411 U.S. 619	–	–	–	1	0+0/0+1	
314	Fulton (2018)	320 F. Supp. 3d 661	–	1	–	–	0+1/0+0	
315	Perry (2005)	545 U.S. 677	–	1	–	–	0+1/0+0	
316	Simon Ateba v. Karoline Leavitt (2025)	133 F.4th 114	–	1	–	–	0+1/0+0	
317	Stanley (2025)	606 U.S. 46	–	–	–	1	0+0/0+1	
318	Kennedy v. St. Joseph's Ministries, Inc. (2011)	657 F.3d 189	–	1	–	–	0+1/0+0	
319	Rotary Club (1987)	481 U.S. 537	–	–	–	1	0+0/0+1	
320	Christian Legal Society v. Walker (2006)	453 F.3d 853	–	1	–	–	0+1/0+0	
321	State Ex Rel. Hawkins v. Board of Control (1955)	83 So. 2d 20	–	–	–	1	0+0/0+1	
322	Arizona Students' Ass'n v. Arizona Board of Regents (2016)	824 F.3d 858	–	1	–	–	0+1/0+0	
323	Howard L. Chabner v. United of Omaha Life Insurance Company (2000)	225 F.3d 1042	–	1	–	–	0+1/0+0	
324	M'culloch (1819)	17 U.S. 316	–	1	–	–	0+1/0+0	
325	Griffith (2025)	129 F.4th 790	–	–	–	1	0+0/0+1	
326	WRTL (2007)	551 U.S. 449	–	1	–	–	0+1/0+0	
327	Morse (2007)	551 U.S. 393	–	1	–	–	0+1/0+0	
328	Keyes (1973)	413 U.S. 189	–	–	–	1	0+0/0+1	
329	Catholic Charities v. Superior Court (2001)	90 Cal. App. 4th 425	–	1	–	–	0+1/0+0	
330	Shurtleff (2022)	596 U.S. 243	–	1	–	–	0+1/0+0	
331	Wolfson (1982)	30 Cal. 3d 721	–	1	–	–	0+1/0+0	
332	Presbyterian Church in US v. Mary Elizabeth Blue Hull Memor… (1969)	393 U.S. 440	–	1	–	–	0+1/0+0	
333	Hunt (1973)	413 U.S. 734	–	1	–	–	0+1/0+0	

#	Case	Cite	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Below
334	Tinker (1969)	393 U.S. 503	–	–	–	1	0+0/0+1	
335	Equal Emp't Opportunity Comm'n v. R.G. &. G.R. Harris Funer... (2018)	884 F.3d 560	–	–	–	1	0+0/0+1	
336	Callicotte (1990)	744 F. Supp. 3	–	–	–	1	0+0/0+1	
337	Ladner (1958)	358 U.S. 169	–	1	–	–	0+1/0+0	
338	Griffin (1964)	377 U.S. 218	–	–	–	1	0+0/0+1	
339	Nollan (1987)	483 U.S. 825	–	1	–	–	0+1/0+0	
340	Pack (1975)	1975 Tenn. LEXIS 640	–	1	–	–	0+1/0+0	
341	Bossier Parish (1997)	520 U.S. 471	–	1	–	–	0+1/0+0	
342	Gay Rights Coalition of Georgetown University Law Center v.... (1987)	1987 D.C. App. LEXIS 486	–	1	–	–	0+1/0+0	
343	Rollins (1889)	130 U.S. 662	–	1	–	–	0+1/0+0	
344	Citizen Publishing (1969)	394 U.S. 131	–	–	–	1	0+0/0+1	
345	Houchins (1978)	438 U.S. 1	–	–	–	1	0+0/0+1	
346	Poindexter (1968)	296 F. Supp. 686	–	–	–	1	0+0/0+1	
347	Janice Paul, A/k/a/ Janice Perez v. Watchtower Bible and Tr... (1987)	93 A.L.R. Fed. 737	–	1	–	–	0+1/0+0	
348	Giles (2008)	554 U.S. 353	–	1	–	–	0+1/0+0	
349	Miller (2012)	567 U.S. 460	–	–	–	1	0+0/0+1	
350	Ramos (2020)	590 U.S. 83	–	1	–	–	0+1/0+0	
351	Aaron (1959)	173 F. Supp. 944	–	–	–	1	0+0/0+1	
352	Vidal (2024)	602 U.S. 286	–	–	–	1	0+0/0+1	
353	BUSINESS LEADERS IN CHRIST v. UNIVERSITY OF IOWA (2019)	360 F. Supp. 3d 885	–	1	–	–	0+1/0+0	
354	Crawford (2008)	553 U.S. 181	–	–	–	1	0+0/0+1	
355	Fellowship of Christian Athlet v. San Jose Unified School D... (2022)	46 F.4th 1075	–	1	–	–	0+1/0+0	
356	Medellin (2008)	552 U.S. 491	–	1	–	–	0+1/0+0	
357	Bramwell (1925)	269 U.S. 483	–	1	–	–	0+1/0+0	
358	Westchester Day School v. Village of Mamaroneck (2006)	417 F. Supp. 2d 477	–	1	–	–	0+1/0+0	
359	Marsh (1983)	463 U.S. 783	–	1	–	–	0+1/0+0	
360	Trump (2018)	585 U.S. 667	–	–	–	1	0+0/0+1	
361	Smith (1988)	485 U.S. 660	–	–	–	1	0+0/0+1	
362	Robison (1974)	415 U.S. 361	–	1	–	–	0+1/0+0	
363	Braidwood Management v. EEOC (2023)	70 F.4th 914	–	–	–	1	0+0/0+1	
364	Brandenburg (1969)	395 U.S. 444	–	1	–	–	0+1/0+0	
365	McLaughlin (1964)	379 U.S. 184	–	–	–	1	0+0/0+1	
366	Alvarez (2012)	567 U.S. 709	–	1	–	–	0+1/0+0	
367	Schneiderman (1943)	320 U.S. 118	–	1	–	–	0+1/0+0	
368	Axson-Flynn (2004)	356 F.3d 1277	–	–	–	1	0+0/0+1	
369	Mills (2020)	984 F.3d 21	–	1	–	–	0+1/0+0	
370	Schmidt (1989)	48 Cal. 3d 370	–	1	–	–	0+1/0+0	
371	Father John J. O'Malley v. Joseph R. Brierley, Superintende... (1973)	477 F.2d 785	–	–	–	1	0+0/0+1	
372	Jeter (1988)	486 U.S. 456	–	–	–	1	0+0/0+1	
373	FCC v. Fox (2009)	556 U.S. 502	–	1	–	–	0+1/0+0	
374	Bragdon (1998)	524 U.S. 624	–	–	–	1	0+0/0+1	
375	Rice (1948)	188 Va. 224	–	–	–	1	0+0/0+1	
376	Ambach (1979)	441 U.S. 68	–	1	–	–	0+1/0+0	
377	City of Lakewood v. Plain Dealer Publishing Co. (1988)	486 U.S. 750	–	–	–	1	0+0/0+1	
378	Conrad (1982)	1982 Colo. LEXIS 751	–	1	–	–	0+1/0+0	
379	NY State Club (1988)	487 U.S. 1	–	1	–	–	0+1/0+0	

#	Case	Cite	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Below
380	Faubus (1959)	361 U.S. 197	–	–	–	1	0+0/0+1	
381	Donnelly (1984)	465 U.S. 668	–	1	–	–	0+1/0+0	
382	Bowen (1988)	487 U.S. 589	–	1	–	–	0+1/0+0	
383	Heckler (1984)	465 U.S. 728	–	–	–	1	0+0/0+1	
384	Riley (1988)	487 U.S. 781	–	1	–	–	0+1/0+0	
385	Jimenez (1974)	417 U.S. 628	–	–	–	1	0+0/0+1	
386	Richard S. v. Wissahickon School District (2009)	334 F. App'x 508	–	–	–	1	0+0/0+1	
387	Grace United Methodist Church v. City of Cheyenne (2006)	451 F.3d 643	–	1	–	–	0+1/0+0	x
388	Roper (2005)	543 U.S. 551	–	–	–	1	0+0/0+1	
389	Ogden (1827)	25 U.S. 213	–	1	–	–	0+1/0+0	
390	Burgess (1990)	734 F. Supp. 30	–	1	–	–	0+1/0+0	
391	Lewis (2010)	560 U.S. 205	–	–	–	1	0+0/0+1	
392	Allegheny Pittsburgh Coal Co. v. Commission of Webster Cty. (1989)	488 U.S. 336	–	1	–	–	0+1/0+0	
393	Ambellu (2019)	387 F. Supp. 3d 71	–	1	–	–	0+1/0+0	
394	Mills (1972)	348 F. Supp. 866	–	–	–	1	0+0/0+1	
395	Foote (2025)	128 F.4th 336	–	–	–	1	0+0/0+1	
396	Board of Education v. State, Ex Rel. Goldman (1934)	47 Ohio App. 417	–	–	–	1	0+0/0+1	
397	Crawford (2004)	541 U.S. 36	–	1	–	–	0+1/0+0	
398	Village of Euclid v. Ambler Realty Co. (1926)	272 U.S. 365	–	1	–	–	0+1/0+0	
399	Paulson (2006)	548 U.S. 1301	–	1	–	–	0+1/0+0	
400	Griswold (1965)	381 U.S. 479	–	1	–	–	0+1/0+0	
401	S.H. Ex Rel. Durrell v. Lower Merion School District (2013)	729 F.3d 248	–	–	–	1	0+0/0+1	
402	Lovell (1938)	303 U.S. 444	–	1	–	–	0+1/0+0	
403	Vieth (2004)	541 U.S. 267	–	1	–	–	0+1/0+0	
404	In Re Winship (1970)	397 U.S. 358	–	1	–	–	0+1/0+0	
405	Schuette (2014)	572 U.S. 291	–	–	–	1	0+0/0+1	
406	Nottelson (1981)	643 F.2d 445	–	1	–	–	0+1/0+0	
407	Pavan (2017)	582 U.S. 563	–	–	–	1	0+0/0+1	
408	Graham (2010)	560 U.S. 48	–	–	–	1	0+0/0+1	
409	Dandridge (1970)	397 U.S. 471	–	–	–	1	0+0/0+1	
410	Hishon (1984)	467 U.S. 69	–	–	–	1	0+0/0+1	
411	Lane (2004)	541 U.S. 509	–	–	–	1	0+0/0+1	
412	Reed (1999)	163 A.L.R. Fed. 739	–	1	–	–	0+1/0+0	
413	Schall (1984)	467 U.S. 253	–	–	–	1	0+0/0+1	
414	Matal (2017)	582 U.S. 218	–	1	–	–	0+1/0+0	
415	Playboy (2000)	529 U.S. 803	–	1	–	–	0+1/0+0	
416	Henson (2017)	582 U.S. 79	–	–	–	1	0+0/0+1	
417	United States v. Carolene Products Co. (1938)	304 U.S. 144	–	1	–	–	0+1/0+0	
418	Jennifer Keeton v. Mary Jane Anderson-Wiley (2011)	664 F.3d 865	–	1	–	–	0+1/0+0	
419	Corner Post, Inc. v. Board of Governors (2024)	603 U.S. 799	–	1	–	–	0+1/0+0	
420	Regan (1980)	444 U.S. 646	–	1	–	–	0+1/0+0	
421	Commonwealth (1906)	123 Ky. 209	–	–	–	1	0+0/0+1	
422	Berea College v. Kentucky (1908)	211 U.S. 45	–	–	–	1	0+0/0+1	
423	Equal Employment Opportunity Commission v. Exxon Mobil Corp. (2014)	560 F. App'x 282	–	–	–	1	0+0/0+1	
424	Thomas (1945)	323 U.S. 516	–	1	–	–	0+1/0+0	
425	Stinemetz (2011)	45 Kan. App. 2d 818	–	1	–	–	0+1/0+0	
426	Heath (2021)	168 Idaho 678	–	1	–	–	0+1/0+0	
427	D.A. Ex Rel. Latasha A. v. Houston Independent School Distr… (2010)	629 F.3d 450	–	–	–	1	0+0/0+1	

#	Case	Cite	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Below
428	Labrenz (1952)	411 Ill. 618	–	1	–	–	0+1/0+0	
429	T.K. ex rel. L.K. v. New York City Department of Education (2016)	810 F.3d 869	–	–	–	1	0+0/0+1	
430	M.A. (2022)	53 F.4th 29	–	1	–	–	0+1/0+0	
431	Tatro (1984)	468 U.S. 883	–	–	–	1	0+0/0+1	
432	Anita Green v. Miss United States of America (2023)	61 F.4th 1095	–	1	–	–	0+1/0+0	
433	Trustees (1994)	335 Md. 564	–	1	–	–	0+1/0+0	
434	Williams (1970)	399 U.S. 235	–	–	–	1	0+0/0+1	
435	Good News Club (2001)	533 U.S. 98	–	1	–	–	0+1/0+0	
436	Texas v. Johnson (1989)	491 U.S. 397	–	1	–	–	0+1/0+0	
437	Berry (1980)	494 F. Supp. 118	–	1	–	–	0+1/0+0	
438	Trump (2025)	606 U.S. 831	–	1	–	–	0+1/0+0	
439	Rock Against Racism (1989)	491 U.S. 781	–	1	–	–	0+1/0+0	
440	Harper (1966)	383 U.S. 663	–	–	–	1	0+0/0+1	
441	Penry (1989)	492 U.S. 302	–	–	–	1	0+0/0+1	
442	Allegheny County (1989)	492 U.S. 573	–	–	–	1	0+0/0+1	
443	Kahana (2007)	9 N.Y.3d 282	–	1	–	–	0+1/0+0	
444	City of Newark v. Fraternal Order of Police Newark Lodge No… (1999)	528 U.S. 817	–	1	–	–	0+1/0+0	
445	Hsu ex rel. Chin-Ching Hsu v. Roslyn Union Free School Dist… (1996)	85 F.3d 839	–	1	–	–	0+1/0+0	
446	L.J.P. (2018)	900 F.3d 1270	–	–	–	1	0+0/0+1	
447	Catholic Charities of Sacramento, Inc. v. California (2004)	543 U.S. 816	–	1	–	–	0+1/0+0	
448	Burton (1961)	365 U.S. 715	–	–	–	1	0+0/0+1	
449	Muldrow (2024)	601 U.S. 346	–	1	–	–	0+1/0+0	
450	Payner (1980)	447 U.S. 727	–	1	–	–	0+1/0+0	
451	Rickey I. Kanter v. William P. Barr (2019)	919 F.3d 437	–	1	–	–	0+1/0+0	
452	Tate (1971)	401 U.S. 395	–	–	–	1	0+0/0+1	
453	State Ex Rel. Beattie v. Board of Edn. City of Antigo (1919)	169 Wis. 231	–	–	–	1	0+0/0+1	
454	Equal Employment Opportunity Commission v. Hosanna-Tabor Ev… (2010)	597 F.3d 769	–	1	–	–	0+1/0+0	
455	Braunfeld (1961)	366 U.S. 599	–	–	–	1	0+0/0+1	
456	Civil Rights Cases (1883)	109 U.S. 3	–	1	–	–	0+1/0+0	
457	Larry Zobrest Sandra Zobrest, Husband and Wife James Zobres… (1992)	963 F.2d 1190	–	1	–	–	0+1/0+0	
458	Marbury (1803)	5 U.S. 137	–	1	–	–	0+1/0+0	
459	Marsh (1946)	326 U.S. 501	–	1	–	–	0+1/0+0	
460	Subversive Activities (1961)	367 U.S. 1	–	–	–	1	0+0/0+1	
461	Petteys (1966)	367 F.2d 528	–	1	–	–	0+1/0+0	
462	Hutterville (2010)	2010 S.D. LEXIS 161	–	1	–	–	0+1/0+0	
463	Fisher (1805)	6 U.S. 358	–	1	–	–	0+1/0+0	
464	Cinnamon Hills Youth Crisis Center, Inc. v. Saint George Ci… (2012)	685 F.3d 917	–	–	–	1	0+0/0+1	
465	Schneider (1939)	308 U.S. 147	–	1	–	–	0+1/0+0	
466	Smith v. California Fair Employment & Housing Commission (1997)	521 U.S. 1129	–	1	–	–	0+1/0+0	
467	Thompson (1971)	403 U.S. 217	–	–	–	1	0+0/0+1	
468	South Bay United Pentecostal v. Gavin Newsom (2021)	985 F.3d 1128	–	1	–	–	0+1/0+0	
469	Larry Riel v. Electronic Data Systems Corporation (1997)	99 F.3d 678	–	–	–	1	0+0/0+1	
470	Clay (1971)	403 U.S. 698	–	–	–	1	0+0/0+1	
471	Waldschmidt (1918)	109 Tex. 302	–	–	–	1	0+0/0+1	

#	Case	Cite	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Below
472	An Inquiry Concerning the Honorable Ruth Neely, Municipal C… (2017)	2017 Wyo. LEXIS 26	–	1	–	–	0+1/0+0	
473	Hooker (2012)	680 F.3d 194	–	1	–	–	0+1/0+0	
474	Reed (1971)	404 U.S. 71	–	1	–	–	0+1/0+0	
475	Uzuegbunam (2021)	592 U.S. 279	–	–	–	1	0+0/0+1	
476	Pack (1976)	424 U.S. 954	–	1	–	–	0+1/0+0	
477	Bass (1971)	404 U.S. 336	–	1	–	–	0+1/0+0	
478	Mattox (1895)	156 U.S. 237	–	1	–	–	0+1/0+0	
479	Williamson County Regional Planning Commission v. Hamilton… (1985)	473 U.S. 172	–	1	–	–	0+1/0+0	
480	Aguilar (1985)	473 U.S. 402	–	1	–	–	0+1/0+0	
481	Rentz (2010)	232 P.3d 1169	–	1	–	–	0+1/0+0	
482	The American Civil Liberties Union Of New Jersey v. Black H… (1996)	84 F.3d 1471	–	–	–	1	0+0/0+1	
483	Joel Doe v. Boyertown Area School District (2018)	897 F.3d 518	–	–	–	1	0+0/0+1	
484	Kennedy v. Bremerton School Dist. (2019)	203 L. Ed. 2d 137	–	1	–	–	0+1/0+0	
485	McCann L. Reid v. Memphis Publishing Company (1972)	22 A.L.R. Fed. 569	–	–	–	1	0+0/0+1	
486	Bullock (1972)	405 U.S. 134	–	–	–	1	0+0/0+1	
487	Cornerstone Bible Church, James Bzoskie v. City of Hastings (1991)	948 F.2d 464	–	1	–	–	0+1/0+0	
488	Tsarnaev (2022)	595 U.S. 302	–	1	–	–	0+1/0+0	
489	Abercrombie (2015)	575 U.S. 768	–	1	–	–	0+1/0+0	
490	King (2015)	576 U.S. 473	–	–	–	1	0+0/0+1	
491	Pennsylvania Ass'n for Retarded Children v. Pennsylvania (1972)	343 F. Supp. 279	–	–	–	1	0+0/0+1	
492	Dukes (1976)	427 U.S. 297	–	1	–	–	0+1/0+0	
493	Steinhauser (1914)	234 U.S. 640	–	1	–	–	0+1/0+0	
494	Snyder (2011)	562 U.S. 443	–	1	–	–	0+1/0+0	
495	Slattery (2023)	61 F.4th 278	–	1	–	–	0+1/0+0	
496	Cradle of Liberty Council, Inc. v. City of Philadelphia (2012)	851 F. Supp. 2d 936	–	1	–	–	0+1/0+0	
497	Woodson (1874)	89 U.S. 351	–	1	–	–	0+1/0+0	
498	Jamie S. Nabozny v. Mary Podlesny, William Davis, Thomas Bl… (1996)	92 F.3d 446	–	–	–	1	0+0/0+1	
499	Gregory v. Ashcroft (1991)	501 U.S. 452	–	–	–	1	0+0/0+1	
500	Joyce Workman, Plaintiff-Appellee/cross-Appellant v. Frito-… (1999)	165 F.3d 460	–	–	–	1	0+0/0+1	
501	Kastigar (1972)	406 U.S. 441	–	1	–	–	0+1/0+0	

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Statutes and provisions the filings cite.

Not part of the record. Statutes, regulations and constitutional provisions cited in each filing (its appendix left out), at section level; a short form ("§ 26.5-4-205") takes the code of the last full cite. Named = mentions by name ("the First Amendment"), counted apart. Sides: the parties' filings plus the amici supporting each.

Petitioners' side: 71 provisions (party 7, amici 69), 232 citations.
Respondent's side: 234 provisions (party 50, amici 200), 442 citations.
Cited by both parties: 2 provisions (both sides counting amici: 12); by amici only: 238.

The law in question (named in the questions presented or a party's provisions-involved section): U.S. Const. amend. I; Colo. Rev. Stat. § 26.5-4-201; Colo. Rev. Stat. § 26.5-4-202; Colo. Rev. Stat. § 26.5-4-203; Colo. Rev. Stat. § 26.5-4-204; Colo. Rev. Stat. § 26.5-4-205; 8 Colo. Code Regs. 1404-1

Coupling between the filings (shared provisions ÷ provisions cited by either of the two, %; amici grouped by stage and side, with the number of briefs; n = provisions cited; appendices not counted)

	A	B	C	D	E	F	G	H	I	n
A Pet.	·	5	0	71	4	0	13	8	2	7
B Br. in Opp.	5	·	0	5	16	0	11	4	4	15
C Cert. Reply	0	0	·	0	0	0	0	0	0	0
D Pet'rs Br.	71	5	0	·	4	0	14	6	2	5
E Resp. Br.	4	16	0	4	·	0	8	4	6	43
F Reply Br.	0	0	0	0	0	·	0	0	0	0
G Cert. amici, pet. (21)	13	11	0	14	8	0	·	32	3	27
H Merits amici, pet. (29)	8	4	0	6	4	0	32	·	4	64
I Merits amici, resp. (25)	2	4	0	2	6	0	3	4	·	200

↑ Every provision, by side

Pet./Resp.: mentions by the side's party filings and by its amici, apart; Filings = party+amici filings citing it, pet./resp. Bands follow the parties: a case one party cites and the other side reaches only through amici sits in the citing party's band. Named = mentions by name, pet./resp. (amici included).

		Pet.		Resp.			
#	Provision	party	amici	party	amici	Filings	Named
The law in question (questions presented; provisions involved)							
1	U.S. Const. amend. I	2	10	–	4	2+8/0+3	1035/219
2	Colo. Rev. Stat. § 26.5-4-201	4	3	–	2	2+3/0+2	
3	Colo. Rev. Stat. § 26.5-4-202	–	6	14	10	0+2/2+6	
4	Colo. Rev. Stat. § 26.5-4-203	–	3	6	1	0+3/2+1	
5	Colo. Rev. Stat. § 26.5-4-204	–	7	8	8	0+6/2+5	
6	Colo. Rev. Stat. § 26.5-4-205	2	32	24	29	2+13/2+12	
7	8 Colo. Code Regs. 1404-1	2	26	12	8	2+8/1+5	
The petitioners, not the respondent							
8	28 U.S.C. § 1254	2	–	–	–	2+0/0+0	
9	Cal. Civ. Code § 51	1	2	–	2	1+1/0+2	
10	Cal. Civ. Code § 51.2	1	–	–	–	1+0/0+0	
The respondent, not the petitioners							
11	20 U.S.C. § 1412	–	–	7	3	0+0/1+1	
12	20 U.S.C. § 1400	–	–	3	10	0+0/1+3	
13	Colo. Rev. Stat. § 22-20-103	–	–	3	–	0+0/2+0	
14	20 U.S.C. § 1414	–	–	2	3	0+0/1+1	
15	Colo. Rev. Stat. § 26.5-1-109	–	–	2	1	0+0/2+1	
16	20 U.S.C. § 1413	–	–	2	–	0+0/1+0	
17	42 U.S.C. § 9836	–	–	2	–	0+0/1+0	
18	42 U.S.C. § 9837	–	–	2	–	0+0/1+0	
19	42 U.S.C. § 9836a	–	–	2	–	0+0/1+0	
20	Colo. Rev. Stat. § 2-4-201	–	–	2	–	0+0/2+0	
21	Colo. Rev. Stat. § 24-4-103	–	–	2	–	0+0/2+0	
22	42 U.S.C. § 12101	–	–	1	2	0+0/1+1	
23	42 U.S.C. § 12102	–	–	1	2	0+0/1+1	
24	42 U.S.C. § 12112	–	–	1	2	0+0/1+1	
25	20 U.S.C. § 1411	–	–	1	1	0+0/1+1	
26	29 U.S.C. § 623	–	–	1	1	0+0/1+1	
27	42 U.S.C. § 9831	–	–	1	1	0+0/1+1	
28	34 C.F.R. § 300.116	–	–	1	1	0+0/1+1	
29	15 U.S.C. § 1691	–	–	1	–	0+0/1+0	
30	15 U.S.C. § 37b	–	–	1	–	0+0/1+0	
31	20 U.S.C. § 1419	–	–	1	–	0+0/1+0	
32	29 U.S.C. § 631	–	–	1	–	0+0/1+0	
33	29 U.S.C. § 701	–	–	1	–	0+0/1+0	
34	38 U.S.C. § 4311	–	–	1	–	0+0/1+0	
35	42 U.S.C. § 9835	–	–	1	–	0+0/1+0	
36	42 U.S.C. § 9840	–	–	1	–	0+0/1+0	
37	42 U.S.C. § 11301	–	–	1	–	0+0/1+0	
38	34 C.F.R. § 300.145	–	–	1	–	0+0/1+0	
39	34 C.F.R. § 300.324	–	–	1	–	0+0/1+0	
40	45 C.F.R. § 1302.12	–	–	1	–	0+0/1+0	
41	45 C.F.R. § 1302.40	–	–	1	–	0+0/1+0	
42	45 C.F.R. § 1303.4	–	–	1	–	0+0/1+0	
43	Ala. Code § 16-1-24.1	–	–	1	–	0+0/1+0	
44	Colo. Rev. Stat. § 22-36-101	–	–	1	–	0+0/1+0	
45	Colo. Rev. Stat. § 24-32-721	–	–	1	–	0+0/1+0	

#	Provision	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Named
46	Colo. Rev. Stat. § 24-34-600.3	–	–	1	–	0+0/1+0	
47	Colo. Rev. Stat. § 26.5-1-104	–	–	1	–	0+0/1+0	
48	Colo. Rev. Stat. § 26.5-1-105	–	–	1	–	0+0/1+0	
49	Colo. Rev. Stat. § 26.5-4-103	–	–	1	–	0+0/1+0	
50	Colo. Rev. Stat. § 26-7-102	–	–	1	–	0+0/1+0	
51	Me. Stat. tit. 27, § 505	–	–	1	–	0+0/1+0	
52	N.C. Gen. Stat. § 108A-29	–	–	1	–	0+0/1+0	
53	Ohio Rev. Code Ann. § 3113.36	–	–	1	–	0+0/1+0	
54	Tenn. Code Ann. § 37-2-414	–	–	1	–	0+0/1+0	
55	Wis. Stat. § 118.31	–	–	1	–	0+0/1+0	
Amici only (no party cites it)							
56	Me. Stat. tit. 5, § 4602	–	19	–	–	0+8/0+0	
57	26 U.S.C. § 25F	–	9	–	–	0+1/0+0	
58	Pa. Const. art. II	–	8	–	–	0+2/0+0	
59	42 U.S.C. § 2000d	–	–	–	6	0+0/0+3	
60	Colo. Rev. Stat. § 26.5-1-102	–	–	–	6	0+0/0+4	
61	42 U.S.C. § 2000a	–	2	–	3	0+1/0+3	
62	Me. Stat. tit. 5, § 4553	–	5	–	–	0+5/0+0	
63	42 U.S.C. § 2000bb	–	4	–	–	0+3/0+0	
64	42 U.S.C. § 2000e-2	–	–	–	4	0+0/0+4	
65	Ga. Const. art. LVI	–	4	–	–	0+2/0+0	
66	Mont. Code Ann. § 20-7-1703	–	–	–	4	0+0/0+1	
67	N.C. Const. art. XIX	–	4	–	–	0+2/0+0	
68	N.J. Const. art. XVIII	–	4	–	–	0+2/0+0	
69	N.Y. Const. art. XXXVIII	–	4	–	–	0+2/0+0	
70	S.C. Const. art. VIII	–	4	–	–	0+2/0+0	
71	Wis. Stat. § 119.23	–	1	–	3	0+1/0+2	
72	34 C.F.R. § 300.114	–	–	–	3	0+0/0+1	
73	Colo. Const. art. IX	–	3	–	–	0+2/0+0	
74	Colo. Rev. Stat. § 24-34-601	–	–	–	3	0+0/0+3	
75	43 Pa. Cons. Stat. § 955	–	–	–	3	0+0/0+1	
76	20 U.S.C. § 1401	–	–	–	2	0+0/0+2	
77	20 U.S.C. § 6315	–	2	–	–	0+1/0+0	
78	26 U.S.C. § 530	–	2	–	–	0+1/0+0	
79	42 U.S.C. § 12182	–	–	–	2	0+0/0+2	
80	42 U.S.C. § 2000cc	–	2	–	–	0+2/0+0	
81	42 U.S.C. § 2000e	–	1	–	1	0+1/0+1	
82	Ala. Code § 16-33A-7	–	2	–	–	0+2/0+0	
83	Ark. Code Ann. § 16-123-107	–	–	–	2	0+0/0+1	
84	Ariz. Rev. Stat. Ann. § 43-1601	–	–	–	2	0+0/0+1	
85	Cal. Educ. Code § 56366.1	–	2	–	–	0+2/0+0	
86	Cal. Gov't Code § 12955	–	–	–	2	0+0/0+2	
87	Ga. Code Ann. § 20-2-642	–	2	–	–	0+2/0+0	
88	Ga. Code Ann. § 160-5-1	–	–	–	2	0+0/0+1	
89	Haw. Rev. Stat. § 489-3	–	–	–	2	0+0/0+2	
90	105 Ill. Comp. Stat. 5/22-10	–	2	–	–	0+2/0+0	
91	Ind. Code § 22-9-1-2	–	–	–	2	0+0/0+1	
92	Ind. Code § 34-13-9-0.7	–	2	–	–	0+1/0+0	
93	Mass. Gen. Laws ch. 151B, § 4	–	–	–	2	0+0/0+2	
94	N.D. Cent. Code § 14-02.4-02	–	–	–	2	0+0/0+1	
95	N.H. Const. pt. I	–	–	–	2	0+0/0+1	
96	N.H. Rev. Stat. Ann. § 354-A:17	–	–	–	2	0+0/0+1	

#	Provision	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Named
97	N.M. Stat. Ann. § 28-1-7	–	–	–	2	0+0/0+1	
98	N.Y. Exec. Law § 296	–	–	–	2	0+0/0+2	
99	Ohio Rev. Code Ann. § 4112.02	–	–	–	2	0+0/0+1	
100	Okla. Stat. tit. 68, § 2357.206	–	–	–	2	0+0/0+1	
101	Va. Const. art. I	–	2	–	–	0+2/0+0	
102	Vt. Stat. Ann. tit. 16, § 828	–	2	–	–	0+2/0+0	
103	Wash. Rev. Code § 49.60.030	–	–	–	2	0+0/0+1	
104	W. Va. Code § 18-31-11	–	1	–	1	0+1/0+1	
105	U.S. Const. amend. XIV	–	–	–	1	0+0/0+1	38/32
106	U.S. Const. art. I	–	–	–	1	0+0/0+1	0/1
107	5 U.S.C. § 2108	–	–	–	1	0+0/0+1	
108	7 U.S.C. § 2131	–	–	–	1	0+0/0+1	
109	17 U.S.C. § 106	–	–	–	1	0+0/0+1	
110	18 U.S.C. § 17	–	–	–	1	0+0/0+1	
111	18 U.S.C. § 922	–	–	–	1	0+0/0+1	
112	18 U.S.C. § 5032	–	–	–	1	0+0/0+1	
113	20 U.S.C. § 1431	–	–	–	1	0+0/0+1	
114	20 U.S.C. § 6301	–	1	–	–	0+1/0+0	
115	20 U.S.C. § 6311	–	1	–	–	0+1/0+0	
116	20 U.S.C. § 6312	–	1	–	–	0+1/0+0	
117	20 U.S.C. § 1232g	–	–	–	1	0+0/0+1	
118	21 U.S.C. § 829	–	–	–	1	0+0/0+1	
119	22 U.S.C. § 6401	–	1	–	–	0+1/0+0	
120	26 U.S.C. § 1	–	–	–	1	0+0/0+1	
121	26 U.S.C. § 161	–	–	–	1	0+0/0+1	
122	26 U.S.C. § 501-530a	–	–	–	1	0+0/0+1	
123	26 U.S.C. § 2010	–	–	–	1	0+0/0+1	
124	29 U.S.C. § 213	–	–	–	1	0+0/0+1	
125	42 U.S.C. § 608	–	–	–	1	0+0/0+1	
126	42 U.S.C. § 1382	–	–	–	1	0+0/0+1	
127	42 U.S.C. § 1983	–	1	–	–	0+1/0+0	
128	42 U.S.C. § 3607	–	–	–	1	0+0/0+1	
129	42 U.S.C. § 9849	–	–	–	1	0+0/0+1	
130	42 U.S.C. § 10406	–	–	–	1	0+0/0+1	
131	42 U.S.C. § 12132	–	–	–	1	0+0/0+1	
132	42 U.S.C. § 1437f	–	–	–	1	0+0/0+1	
133	42 U.S.C. § 2000bb-1	–	1	–	–	0+1/0+0	
134	42 U.S.C. § 2000cc-5	–	1	–	–	0+1/0+0	
135	42 U.S.C. § 2000e-1	–	1	–	–	0+1/0+0	
136	47 U.S.C. § 1726	–	–	–	1	0+0/0+1	
137	49 U.S.C. § 5332	–	–	–	1	0+0/0+1	
138	24 C.F.R. § 5.105	–	–	–	1	0+0/0+1	
139	24 C.F.R. § 982.207	–	–	–	1	0+0/0+1	
140	28 C.F.R. § 35.130	–	–	–	1	0+0/0+1	
141	29 C.F.R. § 1604.2	–	–	–	1	0+0/0+1	
142	34 C.F.R. § 300.17	–	–	–	1	0+0/0+1	
143	34 C.F.R. § 300.109	–	–	–	1	0+0/0+1	
144	34 C.F.R. § 300.320	–	–	–	1	0+0/0+1	
145	Alaska Stat. § 18.80.230	–	–	–	1	0+0/0+1	
146	Alaska Stat. § 18.80.240	–	–	–	1	0+0/0+1	
147	Ala. Code § 16-6J-5	–	1	–	–	0+1/0+0	
148	Ala. Code § 24-8-4	–	–	–	1	0+0/0+1	

#	Provision	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Named
149	Ala. Code § 26-24-23	–	1	–	–	0+1/0+0	
150	Ark. Code Ann. § 6-35-107	–	–	–	1	0+0/0+1	
151	Ark. Code Ann. § 16-123-314	–	–	–	1	0+0/0+1	
152	Ark. Code Ann. § 16-123-401	–	1	–	–	0+1/0+0	
153	Ark. Code Ann. § 21-3-302	–	–	–	1	0+0/0+1	
154	Ariz. Rev. Stat. Ann. § 15-2401	–	–	–	1	0+0/0+1	
155	Cal. Code Regs. tit. 2, § 12140	–	–	–	1	0+0/0+1	
156	Cal. Educ. Code § 200	–	–	–	1	0+0/0+1	
157	Cal. Evid. Code § 950	–	–	–	1	0+0/0+1	
158	Cal. Gov't Code § 8588.9	–	1	–	–	0+1/0+0	
159	Cal. Gov't Code § 11135	–	–	–	1	0+0/0+1	
160	Cal. Gov't Code § 12940	–	–	–	1	0+0/0+1	
161	Cal. Health & Safety Code § 1367.25	–	1	–	–	0+1/0+0	
162	Cal. Ins. Code § 10123.196	–	1	–	–	0+1/0+0	
163	Cal. Welf. & Inst. Code § 14184.102	–	–	–	1	0+0/0+1	
164	Colo. Rev. Stat. § 24-33.5-1810	–	1	–	–	0+1/0+0	
165	Colo. Rev. Stat. § 24-33.5-2104	–	1	–	–	0+1/0+0	
166	Colo. Rev. Stat. § 24-34-402	–	–	–	1	0+0/0+1	
167	Colo. Rev. Stat. § 24-34-502	–	–	–	1	0+0/0+1	
168	Colo. Rev. Stat. § 26.5-1-113	–	–	–	1	0+0/0+1	
169	Colo. Rev. Stat. § 26.5-5-303	–	1	–	–	0+1/0+0	
170	Colo. Rev. Stat. § 26-6.2-301	–	–	–	1	0+0/0+1	
171	8 Colo. Code Regs. 1401-1	–	–	–	1	0+0/0+1	
172	Conn. Gen. Stat. § 46a-63	–	–	–	1	0+0/0+1	
173	Conn. Gen. Stat. § 46a-64	–	–	–	1	0+0/0+1	
174	D.C. Code § 2-1402.31	–	1	–	–	0+1/0+0	
175	Del. Code Ann. tit. 6, § 4500	–	–	–	1	0+0/0+1	
176	Del. Code Ann. tit. 6, § 4504	–	–	–	1	0+0/0+1	
177	Del. Code Ann. tit. 6, § 4602	–	–	–	1	0+0/0+1	
178	Del. Code Ann. tit. 6, § 4603	–	–	–	1	0+0/0+1	
179	Fla. Stat. § 252.3712	–	1	–	–	0+1/0+0	
180	Fla. Stat. § 553.503	–	–	–	1	0+0/0+1	
181	Fla. Stat. § 760.08	–	–	–	1	0+0/0+1	
182	Fla. Stat. § 760.23	–	–	–	1	0+0/0+1	
183	Fla. Stat. § 828.12	–	1	–	–	0+1/0+0	
184	Haw. Rev. Stat. § 515-3	–	–	–	1	0+0/0+1	
185	Iowa Code § 20.27	–	–	–	1	0+0/0+1	
186	Iowa Code § 216.7	–	–	–	1	0+0/0+1	
187	Iowa Code § 216.8	–	–	–	1	0+0/0+1	
188	Iowa Code § 675.1	–	1	–	–	0+1/0+0	
189	Idaho Code § 67-5909	–	–	–	1	0+0/0+1	
190	625 Ill. Comp. Stat. 5/11-205	–	–	–	1	0+0/0+1	
191	720 Ill. Comp. Stat. 5/7-1	–	–	–	1	0+0/0+1	
192	775 Ill. Comp. Stat. 5/1-103	–	–	–	1	0+0/0+1	
193	775 Ill. Comp. Stat. 5/3-102	–	–	–	1	0+0/0+1	
194	775 Ill. Comp. Stat. 5/5-102	–	–	–	1	0+0/0+1	
195	Ind. Code § 20-51-4-3	–	–	–	1	0+0/0+1	
196	Kan. Stat. Ann. § 44-1009	–	–	–	1	0+0/0+1	
197	Kan. Stat. Ann. § 44-1016	–	–	–	1	0+0/0+1	
198	Kan. Stat. Ann. § 73-201	–	–	–	1	0+0/0+1	
199	Ky. Rev. Stat. Ann. § 344.120	–	–	–	1	0+0/0+1	
200	Ky. Rev. Stat. Ann. § 344.360	–	–	–	1	0+0/0+1	

#	Provision	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Named
201	Mass. Const. pt. 1, art. II	–	–	–	1	0+0/0+1	
202	Mass. Gen. Laws ch. 272, § 98	–	–	–	1	0+0/0+1	
203	Md. Code Ann., Educ. § 5-317	–	1	–	–	0+1/0+0	
204	Md. Code Ann., Educ. § 26-704	–	–	–	1	0+0/0+1	
205	Md. Code Ann., State Gov't § 20-304	–	–	–	1	0+0/0+1	
206	Md. Code Ann., State Gov't § 20-701	–	–	–	1	0+0/0+1	
207	Md. Code Ann., State Gov't § 20-705	–	–	–	1	0+0/0+1	
208	Md. Code Ann., State Gov't § 26-606	–	–	–	1	0+0/0+1	
209	Me. Stat. tit. 5, § 21	–	1	–	–	0+1/0+0	
210	Me. Stat. tit. 5, § 4581	–	–	–	1	0+0/0+1	
211	Me. Stat. tit. 5, § 4591	–	–	–	1	0+0/0+1	
212	Me. Stat. tit. 20-A, § 2951	–	1	–	–	0+1/0+0	
213	Minn. Stat. § 363A.03	–	–	–	1	0+0/0+1	
214	Minn. Stat. § 363A.08	–	–	–	1	0+0/0+1	
215	Minn. Stat. § 363A.09	–	–	–	1	0+0/0+1	
216	Minn. Stat. § 363A.11	–	–	–	1	0+0/0+1	
217	Mo. Rev. Stat. § 166.700	–	–	–	1	0+0/0+1	
218	Mo. Rev. Stat. § 213.040	–	–	–	1	0+0/0+1	
219	Mo. Rev. Stat. § 213.065	–	–	–	1	0+0/0+1	
220	Miss. Code Ann. § 25-9-303	–	–	–	1	0+0/0+1	
221	Miss. Code Ann. § 37-181-15	–	–	–	1	0+0/0+1	
222	Miss. Code Ann. § 43-33-723	–	–	–	1	0+0/0+1	
223	Mont. Const. art. X	–	–	–	1	0+0/0+1	
224	Mont. Code Ann. § 49-2-304	–	–	–	1	0+0/0+1	
225	Mont. Code Ann. § 49-2-305	–	–	–	1	0+0/0+1	
226	N.C. Gen. Stat. § 115C-562.5	–	–	–	1	0+0/0+1	
227	N.C. Gen. Stat. § 41A-4	–	–	–	1	0+0/0+1	
228	N.D. Cent. Code § 14-02.4-08.1	–	1	–	–	0+1/0+0	
229	N.D. Cent. Code § 14-02.4-14	–	–	–	1	0+0/0+1	
230	N.D. Cent. Code § 14-02.5-02	–	–	–	1	0+0/0+1	
231	Neb. Rev. Stat. § 20-134	–	–	–	1	0+0/0+1	
232	Neb. Rev. Stat. § 20-318	–	–	–	1	0+0/0+1	
233	Neb. Rev. Stat. § 20-703	–	1	–	–	0+1/0+0	
234	N.H. Rev. Stat. Ann. § 194-F:6	–	–	–	1	0+0/0+1	
235	N.H. Rev. Stat. Ann. § 354-A:10	–	–	–	1	0+0/0+1	
236	N.J. Stat. Ann. § 10:5-1	–	–	–	1	0+0/0+1	
237	N.J. Stat. Ann. § 10:5-9.1	–	–	–	1	0+0/0+1	
238	N.J. Stat. Ann. § 10:5-12	–	–	–	1	0+0/0+1	
239	Nev. Rev. Stat. § 118.100	–	–	–	1	0+0/0+1	
240	Nev. Rev. Stat. § 651.070	–	–	–	1	0+0/0+1	
241	N.Y. Civ. Rights Law § 40-c	–	–	–	1	0+0/0+1	
242	N.Y. Exec. Law § 291	–	–	–	1	0+0/0+1	
243	N.Y. Exec. Law § 292	–	–	–	1	0+0/0+1	
244	N.Y. Penal Law § 35.05	–	–	–	1	0+0/0+1	
245	N.Y. Penal Law § 130.25	–	–	–	1	0+0/0+1	
246	N.Y. Penal Law § 130.30	–	–	–	1	0+0/0+1	
247	N.Y. Penal Law § 130.35	–	–	–	1	0+0/0+1	
248	N.Y. Penal Law § 140.05	–	–	–	1	0+0/0+1	
249	N.Y. Real Prop. Acts. Law § 501	–	–	–	1	0+0/0+1	
250	N.Y.C. Admin. Code § 10-172	–	1	–	–	0+1/0+0	
251	Ohio Rev. Code Ann. § 3301.16	–	–	–	1	0+0/0+1	
252	Ohio Rev. Code Ann. § 3313.976	–	–	–	1	0+0/0+1	

#	Provision	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Named
253	Ohio Rev. Code Ann. § 3313.977	–	–	–	1	0+0/0+1	
254	Okla. Stat. tit. 25, § 1402	–	–	–	1	0+0/0+1	
255	Okla. Stat. tit. 25, § 1452	–	–	–	1	0+0/0+1	
256	Or. Rev. Stat. § 659A.030	–	–	–	1	0+0/0+1	
257	24 Pa. Cons. Stat. § 20	–	–	–	1	0+0/0+1	
258	35 Pa. Cons. Stat. § 5601	–	1	–	–	0+1/0+0	
259	R.I. Gen. Laws § 11-24-2	–	–	–	1	0+0/0+1	
260	R.I. Gen. Laws § 34-37-3	–	–	–	1	0+0/0+1	
261	R.I. Gen. Laws § 34-37-4	–	–	–	1	0+0/0+1	
262	S.C. Code Ann. § 12-6-3790	–	–	–	1	0+0/0+1	
263	S.C. Code Ann. § 31-21-40	–	–	–	1	0+0/0+1	
264	S.C. Code Ann. § 59-8-150	–	1	–	–	0+1/0+0	
265	S.D. Codified Laws § 1-1A-4	–	1	–	–	0+1/0+0	
266	S.D. Codified Laws § 20-13-20	–	–	–	1	0+0/0+1	
267	S.D. Codified Laws § 20-13-23	–	–	–	1	0+0/0+1	
268	Tenn. Code Ann. § 4-5-104	–	–	–	1	0+0/0+1	
269	Tenn. Code Ann. § 4-21-601	–	–	–	1	0+0/0+1	
270	Tenn. Code Ann. § 49-6-2607	–	–	–	1	0+0/0+1	
271	Tenn. Code Ann. § 49-6-2609	–	1	–	–	0+1/0+0	
272	Tenn. Code Ann. § 49-6-3508	–	1	–	–	0+1/0+0	
273	Tex. Educ. Code Ann. § 29.368	–	1	–	–	0+1/0+0	
274	Utah Code Ann. § 57-21-2	–	–	–	1	0+0/0+1	
275	Utah Code Ann. § 57-21-5	–	–	–	1	0+0/0+1	
276	Utah Code Ann. § 53E-3-401	–	–	–	1	0+0/0+1	
277	Utah Code Ann. § 53E-7-403	–	–	–	1	0+0/0+1	
278	Utah Code Ann. § 53H-1-504	–	–	–	1	0+0/0+1	
279	Utah Code Ann. § 63G-33-201	–	1	–	–	0+1/0+0	
280	Va. Code Ann. § 2.2-3904	–	–	–	1	0+0/0+1	
281	Va. Code Ann. § 57-1	–	–	–	1	0+0/0+1	
282	Vt. Stat. Ann. tit. 9, § 4501	–	–	–	1	0+0/0+1	
283	Vt. Stat. Ann. tit. 9, § 4502	–	–	–	1	0+0/0+1	
284	Vt. Stat. Ann. tit. 9, § 4503	–	–	–	1	0+0/0+1	
285	Vt. Stat. Ann. tit. 21, § 495	–	–	–	1	0+0/0+1	
286	Wis. Stat. § 106.50	–	–	–	1	0+0/0+1	
287	Wis. Stat. § 106.52	–	–	–	1	0+0/0+1	
288	Wis. Stat. § 118.60	–	–	–	1	0+0/0+1	
289	W. Va. Code § 35-1A-1	–	1	–	–	0+1/0+0	
290	W. Va. Code § 16B-17-2	–	–	–	1	0+0/0+1	
291	W. Va. Code § 16B-18-5	–	–	–	1	0+0/0+1	
292	Wyo. Stat. Ann. § 9-29-103	–	1	–	–	0+1/0+0	
293	Wyo. Stat. Ann. § 40-26-103	–	–	–	1	0+0/0+1	

↑ U.S. Code provisions in the case law

Not part of the record. The U.S. Code provisions the filings cite, most cited first, as the case law sees them: the co-citation areas whose appellate decisions cite each most in the newest five years (share of the area's decisions), the decisions citing it most cited by later courts, and the newest appellate ones. A mark = a case the filings cite too. 40 more not shown.

Provision	Areas citing it most	Decisions citing it
20 U.S.C. § 1400 pet. 0, resp. 13 5,387 decisions	2025–29: around M.H. 14 (64%)	*Most cited:* Cleburne (1985) √; Garrett (2001); Honig (1988) √ *Newest:* S. M. v. Chichester School District (2026-06-15); Khanimova (2026-06-15)

Provision	Areas citing it most	Decisions citing it
20 U.S.C. § 1412 pet. 0, resp. 10 2,947 decisions	2025–29: around M.H. 7 (32%)	*Most cited:* Cleburne (1985) √; Rowley (1982) √; Honig (1988) √ *Newest:* Khanimova (2026-06-15); S. M. v. Chichester School District (2026-05-18)
26 U.S.C. § 25F pet. 9, resp. 0	–	–
42 U.S.C. § 2000d pet. 0, resp. 6 3,854 decisions	2025–29: Pro se pleadings and Twombly/Iqbal in prisoner suits 8 (0%); Employment discrimination: McDonnell Douglas pretext 6 (1%)	*Most cited:* Fowler (2009); Allen (1984); Cannon (1979) *Newest:* Britney Denton v. Board of Governors for the State Univer... (2026-06-09); Ymca of Greater Boston, Inc. v. Hyh'nes Bakri. (2026-05-20)
20 U.S.C. § 1414 pet. 0, resp. 5 2,138 decisions	2025–29: around M.H. 7 (32%); around United States v. United States Gypsum Co. 5 (3%)	*Most cited:* Blunt v. Lower Merion School District (2014); Chambers (2009); Robert Walczak and Karen Walczak v. Florida Union Free Sc... (1998) *Newest:* S. M. v. Chichester School District (2026-05-18); Ibrahim Alzandani v. Hamtramck Pub. Schs. (2026-05-12)
42 U.S.C. § 2000a pet. 2, resp. 3 1,328 decisions	–	*Most cited:* Adickes (1970); Buckhannon Board (2001); Alexander (1974) *Newest:* Manfred Nare v. Omaha Discovery Trust (2026-06-24); Arimbado-Cobix (2026-04-08)
42 U.S.C. § 2000bb pet. 4, resp. 0 1,667 decisions	2025–29: Implied private rights of action (Cort v. Ash) and § 1983 5 (7%)	*Most cited:* City of Boerne (1997) √; Cutter (2005) √; Bostock (2020) √ *Newest:* Landor (2026-06-23); United States v. Brian Broadfield (2026-06-22)
42 U.S.C. § 2000e-2 pet. 0, resp. 4 19,392 decisions	2025–29: Employment discrimination: McDonnell Douglas pretext 107 (14%); Pro se pleadings and Twombly/Iqbal in prisoner suits 44 (2%)	*Most cited:* McDonnell-Douglas (1973); Burdine (1981); Reeves (2000) *Newest:* Leon Washington v. First Nat'l Bank of Penn. (2026-06-26); Russia Brown (2026-06-24)
42 U.S.C. § 12101 pet. 0, resp. 3 16,565 decisions	2025–29: Employment discrimination: McDonnell Douglas pretext 39 (5%); around In re White 28 (8%)	*Most cited:* Fowler (2009); Buckhannon Board (2001); Lee v. City Of Los Angeles (2001) *Newest:* Ancona (2026-06-30); Leon Washington v. First Nat'l Bank of Penn. (2026-06-26)
42 U.S.C. § 12102 pet. 0, resp. 3 7,448 decisions	2025–29: Employment discrimination: McDonnell Douglas pretext 26 (3%); around in Interest of A.M 22 (9%)	*Most cited:* Heller (1993); Sutton (1999); Access Now, Inc. v. Southwest Airlines Co. (2004) *Newest:* Koch (2026-06-16); Christine Klimek v. CentraCare Health System (2026-06-15)
42 U.S.C. § 12112 pet. 0, resp. 3 9,638 decisions	2025–29: Employment discrimination: McDonnell Douglas pretext 65 (8%); Pro se pleadings and Twombly/Iqbal in prisoner suits 21 (1%)	*Most cited:* University of Tex. Southwestern Medical Center (2013); Garrett (2001); Sutton (1999) *Newest:* Michael Jezior v. City of Chicago (2026-06-24); Brenyah (2026-06-23)
20 U.S.C. § 1401 pet. 0, resp. 2 2,631 decisions	2025–29: around M.H. 6 (27%)	*Most cited:* Cleburne (1985) √; Rowley (1982) √; Honig (1988) √ *Newest:* Khanimova (2026-06-15); Ibrahim Alzandani v. Hamtramck Pub. Schs. (2026-05-12)
20 U.S.C. § 1411 pet. 0, resp. 2 222 decisions	–	*Most cited:* Plaut (1995); McGirt (2020); Dellmuth (1989) *Newest:* Jenn-Ching Luo v. Owen J Roberts School District (2024-10-22); Jenn-Ching Luo v. Owen J Roberts School District (2024-09-16)
20 U.S.C. § 1413 pet. 0, resp. 2 271 decisions	2020–24: Implied private rights of action (Cort v. Ash) and § 1983 6 (2%)	*Most cited:* Laurice J. Ezratty v. The Commonwealth of Puerto Rico (1981); W.G. B.G., Individually and as Parents of R.G., a Minor v... (1992); Karl Pihl v. Massachusetts Department of Education (1993) *Newest:* Margda Pierre-Noel v. Bridges Public Charter School (2024-09-03); PA School Boards Assoc., Inc. v. Dr. K.N. Mumin, Sec'y. o... (2024-05-16)
20 U.S.C. § 6315 pet. 2, resp. 0 3 decisions	–	*Most cited:* Abbott Ex Rel. Abbott (2011); Cheyenne River Sioux Tribe (2007); Jane Doe v. Fairfax County School Board (2021) *Newest:* Jane Doe v. Fairfax County School Board (2021-08-30); Abbott Ex Rel. Abbott (2011-05-24)

Provision	Areas citing it most	Decisions citing it
26 U.S.C. § 530 pet. 2, resp. 0 73 decisions	–	*Most cited:* Comm'r (2003); Howard's Yellow Cabs, Inc. v. United States (1997); Ewens & Miller (2001) *Newest:* IN RE: ADAMS (2020-09-29); Cedar Hill, Inc. v. Universal Packaging, Inc., and John C... (2015-05-27)
28 U.S.C. § 1254 pet. 2, resp. 0 425 decisions	–	*Most cited:* Miller-El (2003); Harlow (1982); Burger King Corp. (1985) *Newest:* Sansone (2026-06-24); United States v. John McLaurin (2026-03-06)
29 U.S.C. § 623 pet. 0, resp. 2 7,262 decisions	2025–29: Employment discrimination: McDonnell Douglas pretext 33 (4%); Pro se pleadings and Twombly/Iqbal in prisoner suits 6 (0%)	*Most cited:* Reeves (2000); University of Tex. Southwestern Medical Center (2013); Gross (2009) *Newest:* Elliott (2026-06-23); Robinson (2026-05-15)
42 U.S.C. § 9831 pet. 0, resp. 2 68 decisions	–	*Most cited:* Rosaura Building Corp. v. Municipality of Mayaguez (2015); Salt Lake Community Action Program, Inc. v. Donna Shalala... (1993); Office Planning Group, Inc v. Baraga-Houghton-Keweenaw Ch... (2005) *Newest:* Lutheran Services Florida (2025-07-02); Taquila Monroe v. Board of Regents of the University Syst... (2024-02-15)
42 U.S.C. § 9836 pet. 0, resp. 2 24 decisions	–	*Most cited:* Office Planning Group, Inc v. Baraga-Houghton-Keweenaw Ch... (2005); Community Action of Laramie County (1989); Chasson (1989) *Newest:* Falto-de Roman v. Municipal Gov't of Mayaguez (2022-08-22); Office Planning Group, Inc v. Baraga-Houghton-Keweenaw Ch... (2005-06-08)
42 U.S.C. § 9837 pet. 0, resp. 2 15 decisions	–	*Most cited:* Office Planning Group, Inc v. Baraga-Houghton-Keweenaw Ch... (2005); Shalala (1994); Diaz (2011) *Newest:* Falto-de Roman v. Municipal Gov't of Mayaguez (2022-08-22); Román (2016-02-01)
42 U.S.C. § 12182 pet. 0, resp. 2 2,649 decisions	2025–29: Pro se pleadings and Twombly/Iqbal in prisoner suits 6 (0%)	*Most cited:* Access Now, Inc. v. Southwest Airlines Co. (2004); Schutza (2017); Bragdon (1998) √ *Newest:* Solis (2026-06-18); Rashad Ranzy v. James Farrin (2026-05-26)
42 U.S.C. § 2000cc pet. 2, resp. 0 2,170 decisions	–	*Most cited:* Kay (2007); Salahuddin (2006); Cutter (2005) √ *Newest:* Landor (2026-06-23); Aracely Hernandez v. Lori Huscher (2026-04-15)
42 U.S.C. § 2000e pet. 1, resp. 1 42,654 decisions	2025–29: Employment discrimination: McDonnell Douglas pretext 138 (18%); Pro se pleadings and Twombly/Iqbal in prisoner suits 53 (3%)	*Most cited:* Monell (1978); McDonnell-Douglas (1973); Burdine (1981) *Newest:* Trump (2026-06-29); Doe (2026-06-29)
42 U.S.C. § 9836a pet. 0, resp. 2 23 decisions	–	*Most cited:* Office Planning Group, Inc v. Baraga-Houghton-Keweenaw Ch... (2005); Navajo Nation (2018); Ohio Head Start Association, Inc. v. United States Depart... (2012) *Newest:* Falto-de Roman v. Municipal Gov't of Mayaguez (2022-08-22); Livingston Educ. Serv. v. Xavier Becerra (2022-05-20)

↑ Authorities and their status

Not part of the record. Status from `casemap.py goodlaw`: words in later opinions from courts that could overrule it — ● good, ● doubts, ● likely overruled or superseded (a lead to check, with the year the words start). Counts are each side's, amici included; † = cited only by amici, no party.

↑ Common authorities

#	Case	Cite	Status	Lisa Roy, in Her O	St. Mary Catholic
1	● Smith (1990)	494 U.S. 872	*good*	90	129
2	● Fulton (2021)	593 U.S. 522	*good*	65	159
3	● Carson (2022)	596 U.S. 767	*good*	51	220
4	● Comer (2017)	582 U.S. 449	*good*	43	103
5	● Masterpiece Cakeshop, Ltd. v. Colorado Civil Rights Comm'n (2018)	584 U.S. 617	*good*	35	37
6	● Tandon (2021)	593 U.S. 61	*good*	34	106
7	● Lukumi Babalu (1993)	508 U.S. 520	*doubts from 2021*	31	115
8	● Espinoza (2020)	591 U.S. 464	*good*	28	138
9	● Mahmoud (2025)	606 U.S. 522	*good*	19	116
10	● Sherbert (1963)	374 U.S. 398	*bad law? from 1978*	15	61
11	● Reynolds (1879) †	98 U.S. 145	*doubts from 2011*	15	15
12	● Kennedy v. Bremerton School Dist. (2022)	597 U.S. 507	*good*	13	38
13	● Obergefell (2015) †	576 U.S. 644	*doubts from 2025*	28	13
14	● Yoder (1972)	406 U.S. 205	*good*	11	76
15	● Thomas (1981)	450 U.S. 707	*good*	11	36
16	● City of Boerne (1997)	521 U.S. 507	*bad law? from 2015*	14	10
17	● Martinez (2010)	561 U.S. 661	*good*	8	17
18	● Elenis (2023)	600 U.S. 570	*good*	8	12
19	● Lyng (1988) †	485 U.S. 439	*good*	10	8
20	● Catholic Charities Bureau, Inc. v. Wisconsin Labor and Indust… (2025)	605 U.S. 238	*good*	7	39
21	● Bowen (1986) †	476 U.S. 693	*good*	14	7
22	● Bostock (2020) †	590 U.S. 644	*good*	7	6
23	● Everson (1947)	330 U.S. 1	*good*	5	14
24	● Pierce (1925) †	268 U.S. 510	*bad law? from 1977*	4	26
25	● Fraternal Order of Police Newark Lodge No. 12 v. City of Newa… (1999)	170 F.3d 359	*good*	5	4
26	● Fellowship of Christian Athletes v. San Jose Unified School D… (2023)	82 F.4th 664	*good*	3	27
27	● Carpenter (2024)	107 F.4th 92	*good*	3	8
28	● Locke (2004)	540 U.S. 712	*doubts from 2004*	3	8
29	● Hurley (1995) †	515 U.S. 557	*good*	3	4
30	● Amos (1987) †	483 U.S. 327	*good*	3	4
31	● Hosanna-Tabor Evangelical Lutheran Church & School v. Equal E… (2012)	565 U.S. 171	*good*	2	63
32	● Zelman (2002) †	536 U.S. 639	*good*	2	20
33	● Barnette (1943)	319 U.S. 624	*good*	2	14
34	● McDaniel (1978)	435 U.S. 618	*good*	2	9
35	● Zorach (1952)	343 U.S. 306	*good*	2	8
36	● Alexander Smith v. City of Atlantic City (2025)	138 F.4th 759	*good*	2	7
37	● Walz (1970) †	397 U.S. 664	*good*	2	6
38	● Centro Espirita (2006)	546 U.S. 418	*good*	2	6
39	● Open Society (2013) †	570 U.S. 205	*good*	2	5
40	● Hobbie (1987)	480 U.S. 136	*good*	2	5
41	● Gillette (1971) †	401 U.S. 437	*good*	4	2
42	● Schempp (1963) †	374 U.S. 203	*good*	2	4
43	● Milivojevich (1976)	426 U.S. 696	*good*	2	4

#	Case	Cite	Status	Lisa Roy, in Her O	St. Mary Catholic
44	● Stormans Inc v. John Wiesman (2015)	794 F.3d 1064	*good*	2	4
45	● Galloway (2014) †	572 U.S. 565	*good*	2	3
46	● Lawrence (2003) †	539 U.S. 558	*good*	2	2
47	● Hernandez (1989) †	490 U.S. 680	*good*	2	2
48	● Cuomo (2020)	592 U.S. 14	*good*	1	18
49	● Seeger (1965) †	380 U.S. 163	*good*	1	18
50	● Norwood (1973) †	413 U.S. 455	*good*	15	1
51	● Roberts (1984)	468 U.S. 609	*good*	11	1
52	● Students for Fair Admissions, Inc. v. President and Fellows o… (2023)	600 U.S. 181	*good*	1	11
53	● Plyler (1982) †	457 U.S. 202	*good*	9	1
54	● Lemon (1971) †	403 U.S. 602	*bad law? from 2015*	1	8
55	● Arlington Heights (1977) †	429 U.S. 252	*good*	1	7
56	● Runyon (1976) †	427 U.S. 160	*bad law? from 1989*	6	1
57	● Monclova Christian Academy v. Toledo-Lucas Cnty. Health Dep't (2020)	984 F.3d 477	*good*	1	6
58	● North Coast Women's Care Medical Group, Inc. v. Superior Court (2008)	44 Cal. 4th 1145	*good*	1	6
59	● Meyer (1923) †	262 U.S. 390	*bad law? from 1977*	1	6
60	● Davis (1890) †	133 U.S. 333	*bad law? from 2016*	1	6
61	● Larson (1982)	456 U.S. 228	*good*	1	5
62	● Ballard (1944) †	322 U.S. 78	*doubts from 1988*	1	5
63	● Cleburne (1985)	473 U.S. 432	*good*	3	1
64	● Blackhawk (2004)	381 F.3d 202	*good*	3	1
65	● United States v. Virginia (1996) †	518 U.S. 515	*good*	1	3
66	● Bullock (1989) †	489 U.S. 1	*good*	2	1
67	● Edwards (1987) †	482 U.S. 578	*good*	2	1
68	● Mitchell County v. Matthew Hoover Zimmerman (2012)	2012 Iowa Sup. LEXIS 11	*good*	1	2
69	● Midrash Sephardi, Inc. v. Town of Surfside (2004)	366 F.3d 1214	*good*	1	2
70	● McGowan (1961) †	366 U.S. 420	*good*	1	2
71	● McDonald (2025)	130 F.4th 258	*good*	1	1
72	● Lowe (2023)	68 F.4th 706	*good*	1	1
73	● Armitage.Â (2014)	132 Haw. 36	*good*	1	1
74	● Raimondo (2024)	603 U.S. 369	*good*	1	1
75	● Little (1991)	929 F.2d 944	*good*	1	1
76	● Sause (2018)	585 U.S. 957	*good*	1	1
77	● Parker (2008) †	514 F.3d 87	*good*	1	1
78	● Heart of Atlanta (1965) †	379 U.S. 241	*good*	1	1
79	● Cutter (2005) †	544 U.S. 709	*good*	1	1
80	● Turner Broadcasting System, Inc. v. Federal Communications Co… (1994) †	512 U.S. 622	*good*	1	1
81	● RAV (1992) †	505 U.S. 377	*good*	1	1
82	● Engel (1962) †	370 U.S. 421	*good*	1	1
83	● Mount Elliott Cemetery Association v. City of Troy (1999) †	171 F.3d 398	*good*	1	1
84	● Central Rabbinical Congress of the United States & Canada v.… (2014) †	763 F.3d 183	*good*	1	1

↑ **Each side's own**

Lisa Roy, in Her Official Capacity as Executive Director of the Colorado Department of Early Childhood respondent side only, plaintiff below	**St. Mary Catholic Parish, Littleton, Colorado** petitioner side only, defendant below
1. ● Bob Jones University v. United States (1983) † ×17 461 U.S. 574 — *good*	1. ● Helms (2000) † ×21 530 U.S. 793 — *doubts from 2013*
2. ● Newman (1968) † ×16 390 U.S. 400 — *good*	2. ● Dale (2000) † ×15 530 U.S. 640 — *good*
3. ● Brown (1954) † ×15 347 U.S. 483 — *good*	3. ● Welsh (1970) † ×14 398 U.S. 333 — *doubts from 1991*
4. ● Windsor (2013) † ×14 570 U.S. 744 — *good*	4. ● Fowler (1953) † ×13 345 U.S. 67 — *good*
5. ● Weber (1972) † ×8 406 U.S. 164 — *good*	5. ● Watson (1872) † ×11 80 U.S. 679 — *doubts from 2015*
6. ● Romer (1996) † ×7 517 U.S. 620 — *good*	6. ● Janus (2018) † ×10 585 U.S. 878 — *good*
7. ● Less (1982) † ×7 455 U.S. 252 — *doubts from 2012*	7. ● Frank Africa v. The Commonwealth of Pennsyl… (1981) † ×10 662 F.2d 1025 — *good*
8. ● Barnett (2002) ×6 535 U.S. 391 — *good*	8. ● Peloza (1994) † ×10 37 F.3d 517 — *good*
9. ● Fry (2017) † ×5 580 U.S. 154 — *good*	9. ● Kedroff (1952) ×8 344 U.S. 94 — *good*
10. ● Anne P. Newman, Sharon W. Neal and John Mun… (1967) † ×5 377 F.2d 433 — *good*	10. ● Agostini (1997) † ×8 521 U.S. 203 — *good*
11. ● Caldor (1985) † ×5 472 U.S. 703 — *good*	11. ● Cavanaugh (2016) † ×8 178 F. Supp. 3d 819 — *good*
12. ● Prince (1944) † ×4 321 U.S. 158 — *good*	12. ● Dobbs (2022) ×7 597 U.S. 215 — *good*
13. ● Levy (1968) † ×4 391 U.S. 68 — *doubts from 2001*	13. ● Business Leaders In Christ v. The Universit… (2021) † ×7 991 F.3d 969 — *good*
14. ● Rowley (1982) † ×4 458 U.S. 176 — *good*	14. ● Torcaso (1961) † ×7 367 U.S. 488 — *good*
15. ● In Re GAULT (1967) † ×4 387 U.S. 1 — *doubts from 2019*	15. ● Rosenberger (1995) † ×7 515 U.S. 819 — *good*
16. ● Cline (2004) ×3 540 U.S. 581 — *good*	16. ● Feeney (1979) † ×7 442 U.S. 256 — *good*
17. ● Endrew F. v. Douglas Cnty. Sch. Dist. RE-1 (2017) ×3 580 U.S. 386 — *good*	17. ● Intervarsity Christian Fellows v. Universit… (2021) † ×7 5 F.4th 855 — *good*
18. ● Alfred L. Snapp & Son, Inc. v. Puerto Rico… (1982) † ×3 458 U.S. 592 — *good*	18. ● Patricia Moore-King v. County of Chesterfie… (2013) † ×6 708 F.3d 560 — *good*
19. ● Richmond (1989) † ×3 488 U.S. 469 — *good*	19. ● United States v. David Meyers (1996) † ×6 95 F.3d 1475 — *good*
20. ● A. J. T. v. Osseo Area Schools, Independent… (2025) † ×3 605 U.S. 335 — *good*	20. ● Frazee (1989) † ×6 489 U.S. 829 — *good*
21. ● Palmore (1984) † ×3 466 U.S. 429 — *good*	21. ● Gobitis (1940) † ×6 310 U.S. 586 — *bad law? from 1980*
22. ● Gilmore (1974) † ×3 417 U.S. 556 — *good*	22. ● Heller (2008) † ×6 554 U.S. 570 — *doubts from 2025*

Lisa Roy, in Her Official Capacity as Executive Director of the Colorado Department of Early Childhood respondent side only, plaintiff below	**St. Mary Catholic Parish, Littleton, Colorado** petitioner side only, defendant below
23. ● Loving (1967) † ×3 388 U.S. 1 — *good*	23. ● Ramirez (2022) ×5 595 U.S. 411 — *good*
24. ● Mckesson (2020) † ×3 592 U.S. 1 — *good*	24. ● Bruen (2022) † ×5 597 U.S. 1 — *good*
25. ● Schneiderman (2017) ×2 581 U.S. 37 — *good*	25. ● American Legion v. Am. Humanist Ass'n (2019) ×4 588 U.S. 29 — *good*
26. ● In re the People ex rel. W.P. (2013) ×2 2013 Colo. LEXIS 114 — *good*	26. ● Chaya Loffman v. California Department of E… (2024) † ×4 119 F.4th 1147 — *good*
27. ● Alexander (1985) ×2 469 U.S. 287 — *good*	27. ● Watts (2007) † ×4 495 F.3d 1289 — *good*
28. ● Jacobson (1905) † ×2 197 U.S. 11 — *doubts from 2021*	28. ● Kelvin Ray Love v. M.D. Reed, G. David Gunt… (2000) † ×4 216 F.3d 682 — *good*
29. ● Rust (1991) † ×2 500 U.S. 173 — *good*	29. ● James J. Kaufman v. Gary R. McCaughtry (2005) † ×4 419 F.3d 678 — *good*
30. ● Benson (1998) † ×2 218 Wis. 2d 835 — *good*	30. ● Smith v. Board of School Commissioners (1987) † ×4 103 A.L.R. Fed. 517 — *good*
31. ● J. D. B. v. North Carolina (2011) † ×2 564 U.S. 261 — *doubts from 2015*	31. ● MacIntosh (1931) † ×4 283 U.S. 605 — *bad law? from 1973*
32. ● P.P. (2015) † ×2 135 F. Supp. 3d 1098 — *good*	32. ● Girouard (1946) † ×4 328 U.S. 61 — *good*
33. ● Wiggins (2003) † ×2 539 U.S. 510 — *good*	33. ● Wallace (1985) † ×4 472 U.S. 38 — *doubts from 2009*
34. ● Luna Perez v. Sturgis Public Schools (2023) † ×2 598 U.S. 142 — *good*	34. ● Troxel (2000) † ×4 530 U.S. 57 — *good*
35. ● Honig (1988) † ×2 484 U.S. 305 — *doubts from 2019*	35. ● Witters (1986) † ×4 474 U.S. 481 — *doubts from 1994*
36. ● Boyajian (2000) † ×2 212 F.3d 1 — *good*	36. ● Zobrest (1993) † ×4 509 U.S. 1 — *good*
37. ● Newman (1966) † ×2 256 F. Supp. 941 — *doubts from 1968*	37. ● Murdock (1943) ×4 319 U.S. 105 — *good*
38. ● Ryan Karnoski v. Donald Trump (2019) † ×2 926 F.3d 1180 — *good*	38. ● Hardison (1977) † ×4 432 U.S. 63 — *doubts from 2023*
39. ● Latta (2014) † ×2 771 F.3d 456 — *good*	39. ● Catholic Charities of Sacramento, Inc. v. S… (2004) † ×4 32 Cal. 4th 527 — *good*
40. ● Smithkline Beecham Corporation v. Abbott La… (2014) † ×2 740 F.3d 471 — *good*	40. ● Smith v. Fair Employment & Housing Commissi… (1996) † ×4 12 Cal. 4th 1143 — *good*
41. ● Windsor (2012) † ×2 699 F.3d 169 — *good*	41. ● Citizens United (2010) † ×4 558 U.S. 310 — *good*
42. ● Manhart (1978) † ×2 435 U.S. 702 — *doubts from 2005*	42. ● Equal Employment Opportunity Commission and… (1996) † ×3 83 F.3d 455 — *good*
43. ● Trimble (1977) † ×2 430 U.S. 762 — *good*	43. ● Vullo (2024) † ×3 602 U.S. 175 — *good*
44. ● Griffin (1956) † ×2 351 U.S. 12 — *good*	44. ● State v. Arlene's Flowers, Inc. (2019) † ×3 441 P.3d 1203 — *good*

Lisa Roy, in Her Official Capacity as Executive Director of the Colorado Department of Early Childhood respondent side only, plaintiff below	**St. Mary Catholic Parish, Littleton, Colorado** petitioner side only, defendant below
45. ● Douglas (1963) † ×2 372 U.S. 353 — *doubts from 2005*	45. ● Brown (2011) ×3 564 U.S. 786 — *good*
46. ● Boddie (1971) † ×2 401 U.S. 371 — *good*	46. ● Meek (1975) † ×3 421 U.S. 349 — *bad law? from 2009*
47. ● Davis (1976) † ×2 426 U.S. 229 — *good*	47. ● Groff (2023) † ×3 600 U.S. 447 — *good*
48. ● Regan (1983) † ×2 461 U.S. 540 — *good*	48. ● Koire (1985) ×2 40 Cal. 3d 24 — *good*
49. ● Swanson (1998) † ×2 135 F.3d 694 — *good*	49. ● Lisa Kim v. Board of Education of Howard Co… (2024) ×2 93 F.4th 733 — *good*
50. ● Lighthouse Institute for Evangelism, Inc. v… (2007) † ×2 510 F.3d 253 — *good*	50. ● Aaron Pulsifer v. Westshore Christian Acade… (2025) † ×2 142 F.4th 859 — *good*
51. ● DeVillier (2024) ×1 601 U.S. 285 — *good*	51. ● Sharonell Fulton v. City of Philadelphia (2019) † ×2 922 F.3d 140 — *good*
52. ● Bishop (1976) ×1 426 U.S. 341 — *doubts from 2005*	52. ● Knick (2019) † ×2 588 U.S. 180 — *good*
53. ● Hooper (1985) ×1 472 U.S. 612 — *good*	53. ● Roe (1973) † ×2 410 U.S. 113 — *bad law? from 2022*
54. ● Harris (1980) ×1 448 U.S. 297 — *good*	54. ● Casey (1992) † ×2 505 U.S. 833 — *bad law? from 2022*
55. ● Murgia (1976) ×1 427 U.S. 307 — *good*	55. ● Duquesne University v. NLRB (2020) † ×2 947 F.3d 824 — *good*
56. ● Cromartie (2001) ×1 532 U.S. 234 — *good*	56. ● Armstrong (2025) † ×2 138 F.4th 1204 — *good*
57. ● Neil (1972) ×1 409 U.S. 188 — *good*	57. ● Meyers (1995) † ×2 906 F. Supp. 1494 — *good*
58. ● Town of Surfside v. Midrash Sephardi, Inc. (2005) ×1 543 U.S. 1146 — *good*	58. ● Brown (1977) † ×2 441 F. Supp. 1382 — *good*
59. ● Goldberg (1970) ×1 397 U.S. 254 — *good*	59. ● Bellamy (1973) † ×2 368 F. Supp. 1025 — *good*
60. ● Schweiker (1982) ×1 457 U.S. 569 — *good*	60. ● Daniel Chapter One v. Federal Trade Commiss… (2010) † ×2 405 F. App'x 505 — *good*
61. ● Frisby (1988) ×1 487 U.S. 474 — *good*	61. ● Melvin D. Reed v. The Great Lakes Companies… (2003) † ×2 330 F.3d 931 — *good*
62. ● Hanlen (2014) ×1 2014 Colo. LEXIS 223 — *good*	62. ● Aurora Regino v. Kelly Staley (2025) † ×2 133 F.4th 951 — *good*
63. ● Lau (1974) ×1 414 U.S. 563 — *doubts from 1982*	63. ● Plessy (1896) † ×2 163 U.S. 537 — *bad law? from 1970*
64. ● Gebser (1998) ×1 524 U.S. 274 — *good*	64. ● Korematsu (1945) † ×2 323 U.S. 214 — *bad law? from 2018*
65. ● Ashcroft v. American Civil Liberties Union (2004) ×1 542 U.S. 656 — *good*	65. ● In Re Yamashita (1946) † ×2 327 U.S. 1 — *good*
66. ● OK Tax (1995) ×1 515 U.S. 450 — *good*	66. ● Martin (1943) † ×2 319 U.S. 141 — *bad law? from 1986*
67. ● Nynex Corp. v. Discon, Inc. (1998) ×1 525 U.S. 128 — *good*	67. ● Malnak (1979) † ×2 592 F.2d 197 — *good*

Lisa Roy, in Her Official Capacity as Executive Director of the Colorado Department of Early Childhood respondent side only, plaintiff below	**St. Mary Catholic Parish, Littleton, Colorado** petitioner side only, defendant below
68. ● Paxton (2025) ×1 606 U.S. 461 — *good*	68. ● Mason v. General Brown Central School Distr… (1988) † ×2 851 F.2d 47 — *good*
69. ● Pavan (2017) † ×1 582 U.S. 563 — *good*	69. ● Megan Passarella v. Aspirus, Inc. (2024) † ×2 108 F.4th 1005 — *good*
70. ● Miller (2012) † ×1 567 U.S. 460 — *good*	70. ● Washington Ethical Society, a Corporation v… (1957) † ×2 249 F.2d 127 — *good*
71. ● Graham (2010) † ×1 560 U.S. 48 — *good*	71. ● Bowers (1986) † ×2 478 U.S. 186 — *bad law? from 2003*
72. ● Penry (1989) † ×1 492 U.S. 302 — *bad law? from 2014*	72. ● McCreary (2005) † ×2 545 U.S. 844 — *doubts from 2009*
73. ● Watson (1893) † ×1 157 Mass. 561 — *good*	73. ● Epperson (1968) † ×2 393 U.S. 97 — *good*
74. ● State Ex Rel. Beattie v. Board of Edn. City… (1919) † ×1 169 Wis. 231 — *good*	74. ● FAIR (2006) † ×2 547 U.S. 47 — *good*
75. ● Board of Education v. State, Ex Rel. Goldman (1934) † ×1 47 Ohio App. 417 — *good*	75. ● La Follette (1981) † ×2 450 U.S. 107 — *good*
76. ● Murphy (2006) † ×1 548 U.S. 291 — *good*	76. ● Yellowbear (2014) ×2 741 F.3d 48 — *good*
77. ● T.K. ex rel. L.K. v. New York City Departme… (2016) † ×1 810 F.3d 869 — *good*	77. ● Bates v. City of Little Rock (1960) † ×2 361 U.S. 516 — *good*
78. ● D.A. Ex Rel. Latasha A. v. Houston Independ… (2010) † ×1 629 F.3d 450 — *good*	78. ● Wooley (1977) † ×2 430 U.S. 705 — *good*
79. ● Richard S. v. Wissahickon School District (2009) † ×1 334 F. App'x 508 — *good*	79. ● Bradfield (1899) † ×2 175 U.S. 291 — *good*
80. ● King (2015) † ×1 576 U.S. 473 — *good*	80. ● Ball (1985) † ×2 473 U.S. 373 — *bad law? from 1997*
81. ● Carmen NIETO v. CLARK'S MARKET, INC. (2021) † ×1 488 P.3d 1140 — *good*	81. ● Roemer (1976) † ×2 426 U.S. 736 — *good*
82. ● Rivera (2007) † ×1 2007 Colo. App. LEXIS 2032 — *good*	82. ● Nyquist (1973) † ×2 413 U.S. 756 — *doubts from 2002*
83. ● L.J.P. (2018) † ×1 900 F.3d 1270 — *good*	83. ● Mueller (1983) † ×2 463 U.S. 388 — *doubts from 1994*
84. ● Cinnamon Hills Youth Crisis Center, Inc. v.… (2012) † ×1 685 F.3d 917 — *good*	84. ● Lamb's Chapel (1993) † ×2 508 U.S. 384 — *good*
85. ● Tatro (1984) † ×1 468 U.S. 883 — *good*	85. ● Widmar (1981) † ×2 454 U.S. 263 — *good*
86. ● S.H. Ex Rel. Durrell v. Lower Merion School… (2013) † ×1 729 F.3d 248 — *good*	86. ● Gibbons (1824) † ×2 22 U.S. 1 — *good*
87. ● Joyce Workman, Plaintiff-Appellee/cross-App… (1999) † ×1 165 F.3d 460 — *good*	87. ● Doe (2000) † ×2 530 U.S. 290 — *doubts from 2010*

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88. ● Larry Riel v. Electronic Data Systems Corpo… (1997) † ×1 99 F.3d 678 — *good*	88. ● Niemotko (1951) † ×2 340 U.S. 268 — *good*
89. ● Pennsylvania Ass'n for Retarded Children v.… (1972) † ×1 343 F. Supp. 279 — *good*	89. ● Hogan (1982) † ×2 458 U.S. 718 — *good*
90. ● Mills (1972) † ×1 348 F. Supp. 866 — *doubts from 1982*	90. ● Healy (1972) † ×2 408 U.S. 169 — *good*
91. ● Bragdon (1998) † ×1 524 U.S. 624 — *good*	91. ● In Re Cox (1970) † ×2 3 Cal. 3d 205 — *good*
92. ● Foote (2025) † ×1 128 F.4th 336 — *good*	92. ● Perry (1972) † ×2 408 U.S. 593 — *good*
93. ● Jamie S. Nabozny v. Mary Podlesny, William… (1996) † ×1 92 F.3d 446 — *good*	93. ● Speiser (1958) † ×2 357 U.S. 513 — *good*
94. ● Joel Doe v. Boyertown Area School District (2018) † ×1 897 F.3d 518 — *good*	94. ● Jones (1979) † ×2 443 U.S. 595 — *good*
95. ● Burton (1961) † ×1 365 U.S. 715 — *doubts from 2007*	95. ● Muldrow (2024) † ×1 601 U.S. 346 — *good*
96. ● Equal Emp't Opportunity Comm'n v. R.G. &. G… (2018) † ×1 884 F.3d 560 — *good*	96. ● Mullins (2015) † ×1 2015 Colo. App. LEXIS 1217 — *good*
97. ● Robert Williams, Sr. v. State of California (2014) † ×1 764 F.3d 1002 — *good*	97. ● Payne (1991) † ×1 501 U.S. 808 — *good*
98. ● Allegheny County (1989) † ×1 492 U.S. 573 — *doubts from 2014*	98. ● Ramos (2020) † ×1 590 U.S. 83 — *good*
99. ● Griffith (2025) † ×1 129 F.4th 790 — *good*	99. ● Ramirez (2021) † ×1 594 U.S. 413 — *good*
100. ● McLaughlin (1964) † ×1 379 U.S. 184 — *good*	100. ● Good News Club (2001) † ×1 533 U.S. 98 — *good*
101. ● Thompson (1971) † ×1 403 U.S. 217 — *good*	101. ● Perry (2005) † ×1 545 U.S. 677 — *doubts from 2013*
102. ● Schall (1984) † ×1 467 U.S. 253 — *good*	102. ● Williamson County Regional Planning Commiss… (1985) † ×1 473 U.S. 172 — *doubts from 2019*
103. ● Shelley (1948) † ×1 334 U.S. 1 — *doubts from 2009*	103. ● Ambach (1979) † ×1 441 U.S. 68 — *good*
104. ● Jeter (1988) † ×1 486 U.S. 456 — *good*	104. ● M.A. (2022) † ×1 53 F.4th 29 — *good*
105. ● Jimenez (1974) † ×1 417 U.S. 628 — *good*	105. ● Nottelson (1981) † ×1 643 F.2d 445 — *good*
106. ● Cahill (1973) † ×1 411 U.S. 619 — *good*	106. ● Abercrombie (2015) † ×1 575 U.S. 768 — *good*
107. ● Moore (1977) † ×1 431 U.S. 494 — *doubts from 2015*	107. ● Kennedy v. Bremerton School Dist. (2019) † ×1 203 L. Ed. 2d 137 — *good*
108. ● Uzuegbunam (2021) † ×1 592 U.S. 279 — *good*	108. ● Masterpiece Cakeshop, Inc. and Jack Phillip… (2024) † ×1 556 P.3d 1238 — *good*

Lisa Roy, in Her Official Capacity as Executive Director of the Colorado Department of Early Childhood respondent side only, plaintiff below	**St. Mary Catholic Parish, Littleton, Colorado** petitioner side only, defendant below
109. ● Heckler (1984) † ×1 465 U.S. 728 — *good*	109. ● Stinemetz (2011) † ×1 45 Kan. App. 2d 818 — *good*
110. ● Callicotte (1990) † ×1 744 F. Supp. 3 — *good*	110. ● Presbyterian Church in US v. Mary Elizabeth… (1969) † ×1 393 U.S. 440 — *good*
111. ● The American Civil Liberties Union Of New J… (1996) † ×1 84 F.3d 1471 — *good*	111. ● Tanvir (2024) † ×1 120 F.4th 1049 — *good*
112. ● McCollum (1948) † ×1 333 U.S. 203 — *good*	112. ● Corner Post, Inc. v. Board of Governors (2024) † ×1 603 U.S. 799 — *good*
113. ● Keyes (1973) † ×1 413 U.S. 189 — *good*	113. ● Hooker (2012) † ×1 680 F.3d 194 — *good*
114. ● Tinker (1969) † ×1 393 U.S. 503 — *good*	114. ● Reed (1999) † ×1 163 A.L.R. Fed. 739 — *good*
115. ● Roper (2005) † ×1 543 U.S. 551 — *good*	115. ● American Friends Service Committee Corp. v.… (1991) † ×1 961 F.2d 1405 — *good*
116. ● McGinnis (1973) † ×1 410 U.S. 263 — *good*	116. ● Yang (1990) † ×1 750 F. Supp. 558 — *good*
117. ● Lane (2004) † ×1 541 U.S. 509 — *good*	117. ● South Bay United Pentecostal v. Gavin Newsom (2021) † ×1 985 F.3d 1128 — *good*
118. ● Dandridge (1970) † ×1 397 U.S. 471 — *good*	118. ● Mills (2020) † ×1 984 F.3d 21 — *good*
119. ● Williams (1970) † ×1 399 U.S. 235 — *good*	119. ● Payner (1980) † ×1 447 U.S. 727 — *good*
120. ● Tate (1971) † ×1 401 U.S. 395 — *good*	120. ● Tsarnaev (2022) † ×1 595 U.S. 302 — *good*
121. ● Bullock (1972) † ×1 405 U.S. 134 — *good*	121. ● Anita Green v. Miss United States of America (2023) † ×1 61 F.4th 1095 — *good*
122. ● Rodriguez (1973) † ×1 411 U.S. 1 — *good*	122. ● Texas v. Johnson (1989) † ×1 491 U.S. 397 — *good*
123. ● Harper (1966) † ×1 383 U.S. 663 — *good*	123. ● Brandenburg (1969) † ×1 395 U.S. 444 — *doubts from 2006*
124. ● Zablocki (1978) † ×1 434 U.S. 374 — *good*	124. ● NY State Club (1988) † ×1 487 U.S. 1 — *good*
125. ● Braunfeld (1961) † ×1 366 U.S. 599 — *bad law? from 1978*	125. ● Slattery (2023) † ×1 61 F.4th 278 — *good*
126. ● Rotary Club (1987) † ×1 481 U.S. 537 — *good*	126. ● Cantwell (1940) ×1 310 U.S. 296 — *good*
127. ● Hishon (1984) † ×1 467 U.S. 69 — *good*	127. ● Follett (1944) ×1 321 U.S. 573 — *bad law? from 1989*
128. ● Lambert (1958) † ×1 355 U.S. 225 — *bad law? from 2008*	128. ● Telescope Media Group v. Rebecca Lucero (2019) ×1 936 F.3d 740 — *good*
129. ● Vidal (2024) † ×1 602 U.S. 286 — *good*	129. ● We the Patriots USA, Inc. v. Conn. Office o… (2023) ×1 76 F.4th 130 — *good*
130. ● Waldschmidt (1918) † ×1 109 Tex. 302 — *good*	130. ● Tamer Mahmoud v. Monifa McKnight (2024) ×1 102 F.4th 191 — *good*

Lisa Roy, in Her Official Capacity as Executive Director of the Colorado Department of Early Childhood respondent side only, plaintiff below	**St. Mary Catholic Parish, Littleton, Colorado** petitioner side only, defendant below
131. ● Cox (1941) † ×1 312 U.S. 569 — *good*	131. ● Barnette (1942) ×1 47 F. Supp. 251 — *good*
132. ● Rice (1948) † ×1 188 Va. 224 — *good*	132. ● Hsu ex rel. Chin-Ching Hsu v. Roslyn Union… (1996) † ×1 85 F.3d 839 — *good*
133. ● Houchins (1978) † ×1 438 U.S. 1 — *doubts from 1996*	133. ● Julea Ward v. Vernon Polite (2012) † ×1 667 F.3d 727 — *good*
134. ● Braidwood Management v. EEOC (2023) † ×1 70 F.4th 914 — *good*	134. ● Matal (2017) † ×1 582 U.S. 218 — *good*
135. ● O'Brien (1968) † ×1 391 U.S. 367 — *good*	135. ● Snyder (2011) † ×1 562 U.S. 443 — *good*
136. ● Forsyth County v. Nationalist Movement (1992) † ×1 505 U.S. 123 — *good*	136. ● Schneiderman (1943) † ×1 320 U.S. 118 — *good*
137. ● City of Lakewood v. Plain Dealer Publishing… (1988) † ×1 486 U.S. 750 — *good*	137. ● Thomas (1945) † ×1 323 U.S. 516 — *good*
138. ● Smith (1988) † ×1 485 U.S. 660 — *good*	138. ● Civil Rights Cases (1883) † ×1 109 U.S. 3 — *doubts from 2001*
139. ● Subversive Activities (1961) † ×1 367 U.S. 1 — *good*	139. ● Miller v. Amusement Enterprises, Inc. (1968) † ×1 7 A.L.R. Fed. 399 — *good*
140. ● Equal Employment Opportunity Commission v.… (2014) † ×1 560 F. App'x 282 — *good*	140. ● Gay Rights Coalition of Georgetown Universi… (1987) † ×1 1987 D.C. App. LEXIS 486 — *good*
141. ● Stanley (2025) † ×1 606 U.S. 46 — *good*	141. ● Equal Employment Opportunity Commission v.… (2010) † ×1 597 F.3d 769 — *good*
142. ● Henson (2017) † ×1 582 U.S. 79 — *good*	142. ● Steinhauser (1914) † ×1 234 U.S. 640 — *good*
143. ● Dixon (2006) † ×1 548 U.S. 1 — *good*	143. ● Hunt (1973) † ×1 413 U.S. 734 — *good*
144. ● Jacobs (2008) † ×1 526 F.3d 419 — *good*	144. ● Wolman (1977) † ×1 433 U.S. 229 — *bad law? from 2000*
145. ● Biden (2023) † ×1 600 U.S. 477 — *good*	145. ● Regan (1980) † ×1 444 U.S. 646 — *good*
146. ● Gregory v. Ashcroft (1991) † ×1 501 U.S. 452 — *good*	146. ● Aguilar (1985) † ×1 473 U.S. 402 — *bad law? from 1998*
147. ● United States Department of Transportation… (1986) † ×1 477 U.S. 597 — *doubts from 2013*	147. ● Bowen (1988) † ×1 487 U.S. 589 — *good*
148. ● Allen (2023) † ×1 599 U.S. 1 — *good*	148. ● Allen (1968) † ×1 392 U.S. 236 — *doubts from 1981*
149. ● Buck (2017) † ×1 580 U.S. 100 — *good*	149. ● Shurtleff (2022) † ×1 596 U.S. 243 — *good*
150. ● Schuette (2014) † ×1 572 U.S. 291 — *good*	150. ● Dukes (1976) † ×1 427 U.S. 297 — *doubts from 2011*
151. ● Lewis (2010) † ×1 560 U.S. 205 — *good*	151. ● Robison (1974) † ×1 415 U.S. 361 — *good*
152. ● Trump (2018) † ×1 585 U.S. 667 — *good*	152. ● Weaver (2008) † ×1 534 F.3d 1245 — *good*

Lisa Roy, in Her Official Capacity as Executive Director of the Colorado Department of Early Childhood respondent side only, plaintiff below	**St. Mary Catholic Parish, Littleton, Colorado** petitioner side only, defendant below
153. ● Clay (1971) † ×1 403 U.S. 698 — *good*	153. ● Berry (1980) † ×1 494 F. Supp. 118 — *good*
154. ● Father John J. O'Malley v. Joseph R. Brierl… (1973) † ×1 477 F.2d 785 — *good*	154. ● Bossier Parish (1997) † ×1 520 U.S. 471 — *bad law? from 2008*
155. ● McCann L. Reid v. Memphis Publishing Company (1972) † ×1 22 A.L.R. Fed. 569 — *good*	155. ● United States v. Carolene Products Co. (1938) † ×1 304 U.S. 144 — *good*
156. ● Commonwealth (1906) † ×1 123 Ky. 209 — *good*	156. ● Playboy (2000) † ×1 529 U.S. 803 — *good*
157. ● Berea College v. Kentucky (1908) † ×1 211 U.S. 45 — *good*	157. ● Vieth (2004) † ×1 541 U.S. 267 — *good*
158. ● State Ex Rel. Hawkins v. Board of Control (1955) † ×1 83 So. 2d 20 — *good*	158. ● Cornerstone Bible Church, James Bzoskie v.… (1991) † ×1 948 F.2d 464 — *good*
159. ● Poindexter (1968) † ×1 296 F. Supp. 686 — *good*	159. ● City of Newark v. Fraternal Order of Police… (1999) † ×1 528 U.S. 817 — *good*
160. ● Poindexter (1968) † ×1 393 U.S. 17 — *good*	160. ● Church of the Holy Trinity v. United States (1892) † ×1 143 U.S. 457 — *good*
161. ● Aaron (1959) † ×1 173 F. Supp. 944 — *good*	161. ● Donnelly (1984) † ×1 465 U.S. 668 — *doubts from 1995*
162. ● Faubus (1959) † ×1 361 U.S. 197 — *good*	162. ● Marsh (1983) † ×1 463 U.S. 783 — *bad law? from 2016*
163. ● Crawford (2008) † ×1 553 U.S. 181 — *good*	163. ● South Carolina (1905) † ×1 199 U.S. 437 — *good*
164. ● Griffin (1964) † ×1 377 U.S. 218 — *good*	164. ● Fisher (1805) † ×1 6 U.S. 358 — *good*
165. ● Axson-Flynn (2004) † ×1 356 F.3d 1277 — *good*	165. ● M'culloch (1819) † ×1 17 U.S. 316 — *doubts from 1975*
166. ● Citizen Publishing (1969) † ×1 394 U.S. 131 — *good*	166. ● Rollins (1889) † ×1 130 U.S. 662 — *doubts from 1897*
	167. ● Village of Euclid v. Ambler Realty Co. (1926) † ×1 272 U.S. 365 — *good*
	168. ● Sturges (1819) † ×1 17 U.S. 122 — *good*
	169. ● Mattox (1895) † ×1 156 U.S. 237 — *good*
	170. ● The State of Rhode Island v. the State of M… (1838) † ×1 37 U.S. 657 — *good*
	171. ● Woodson (1874) † ×1 89 U.S. 351 — *good*
	172. ● Classic (1941) † ×1 313 U.S. 299 — *good*
	173. ● Harmelin (1991) † ×1 501 U.S. 957 — *good*
	174. ● Ogden (1827) † ×1 25 U.S. 213 — *good*

Lisa Roy, in Her Official Capacity as Executive Director of the Colorado Department of Early Childhood respondent side only, plaintiff below	**St. Mary Catholic Parish, Littleton, Colorado** petitioner side only, defendant below
	175. ● Martin (1816) † ×1 14 U.S. 304 — *good*
	176. ● Petteys (1966) † ×1 367 F.2d 528 — *good*
	177. ● Griswold (1965) † ×1 381 U.S. 479 — *good*
	178. ● Chiafalo (2020) † ×1 591 U.S. 578 — *good*
	179. ● Morse (2007) † ×1 551 U.S. 393 — *good*
	180. ● Kennedy v. St. Joseph's Ministries, Inc. (2011) † ×1 657 F.3d 189 — *good*
	181. ● Larry Zobrest Sandra Zobrest, Husband and W… (1992) † ×1 963 F.2d 1190 — *good*
	182. ● Allegheny Pittsburgh Coal Co. v. Commission… (1989) † ×1 488 U.S. 336 — *good*
	183. ● Reed (1971) † ×1 404 U.S. 71 — *good*
	184. ● Nollan (1987) † ×1 483 U.S. 825 — *good*
	185. ● Pack (1975) † ×1 1975 Tenn. LEXIS 640 — *good*
	186. ● Pack (1976) † ×1 424 U.S. 954 — *good*
	187. ● Labrenz (1952) † ×1 411 Ill. 618 — *good*
	188. ● Rickey I. Kanter v. William P. Barr (2019) † ×1 919 F.3d 437 — *good*
	189. ● Janice Paul, A/k/a/ Janice Perez v. Watchto… (1987) † ×1 93 A.L.R. Fed. 737 — *good*
	190. ● Smith v. Pennsylvania (2013) † ×1 568 U.S. 1130 — *good*
	191. ● Rock Against Racism (1989) † ×1 491 U.S. 781 — *good*
	192. ● Ladner (1958) † ×1 358 U.S. 169 — *bad law? from 1975*
	193. ● Marsh (1946) † ×1 326 U.S. 501 — *doubts from 1984*
	194. ● Schneider (1939) † ×1 308 U.S. 147 — *good*
	195. ● Flast (1968) † ×1 392 U.S. 83 — *good*
	196. ● WRTL (2007) † ×1 551 U.S. 449 — *good*
	197. ● Heath (2021) † ×1 168 Idaho 678 — *good*

Lisa Roy, in Her Official Capacity as Executive Director of the Colorado Department of Early Childhood respondent side only, plaintiff below	**St. Mary Catholic Parish, Littleton, Colorado** petitioner side only, defendant below
	198. ● An Inquiry Concerning the Honorable Ruth Ne… (2017) † ×1 2017 Wyo. LEXIS 26 — *good*
	199. ● Grace United Methodist Church v. City of Ch… (2006) † ×1 451 F.3d 643 — *good*
	200. ● Giles (2008) † ×1 554 U.S. 353 — *doubts from 2021*
	201. ● Crawford (2004) † ×1 541 U.S. 36 — *good*
	202. ● McDonald (2010) † ×1 561 U.S. 742 — *good*
	203. ● Marbury (1803) † ×1 5 U.S. 137 — *good*
	204. ● Trump (2025) † ×1 606 U.S. 831 — *good*
	205. ● Fellowship of Christian Athlet v. San Jose… (2022) † ×1 46 F.4th 1075 — *good*
	206. ● Jennifer Keeton v. Mary Jane Anderson-Wiley (2011) † ×1 664 F.3d 865 — *good*
	207. ● Cradle of Liberty Council, Inc. v. City of… (2012) † ×1 851 F. Supp. 2d 936 — *good*
	208. ● Fulton (2018) † ×1 320 F. Supp. 3d 661 — *good*
	209. ● Gonzalez (1929) † ×1 280 U.S. 1 — *good*
	210. ● Arizona Students' Ass'n v. Arizona Board of… (2016) † ×1 824 F.3d 858 — *good*
	211. ● FCC v. Fox (2009) † ×1 556 U.S. 502 — *good*
	212. ● Kastigar (1972) † ×1 406 U.S. 441 — *good*
	213. ● Alvarez (2012) † ×1 567 U.S. 709 — *good*
	214. ● Bass (1971) † ×1 404 U.S. 336 — *doubts from 2016*
	215. ● In Re Winship (1970) † ×1 397 U.S. 358 — *good*
	216. ● Abood (1977) † ×1 431 U.S. 209 — *bad law? from 2018*
	217. ● Wright (1880) † ×1 101 U.S. 791 — *good*
	218. ● Bramwell (1925) † ×1 269 U.S. 483 — *good*

Lisa Roy, in Her Official Capacity as Executive Director of the Colorado Department of Early Childhood respondent side only, plaintiff below	**St. Mary Catholic Parish, Littleton, Colorado** petitioner side only, defendant below
	219. ● Alabama v. Trustees of the Big Sandy Indepe… (1993) † ×1 817 F. Supp. 1319 — *good*
	220. ● Paulson (2006) † ×1 548 U.S. 1301 — *good*
	221. ● Wolfson (1982) † ×1 30 Cal. 3d 721 — *good*
	222. ● Isbister (1985) † ×1 40 Cal. 3d 72 — *good*
	223. ● Schmidt (1989) † ×1 48 Cal. 3d 370 — *good*
	224. ● Howard L. Chabner v. United of Omaha Life I… (2000) † ×1 225 F.3d 1042 — *good*
	225. ● Smith v. California Fair Employment & Housi… (1997) † ×1 521 U.S. 1129 — *good*
	226. ● Catholic Charities v. Superior Court (2001) † ×1 90 Cal. App. 4th 425 — *good*
	227. ● Catholic Charities of Sacramento, Inc. v. C… (2004) † ×1 543 U.S. 816 — *good*
	228. ● Railway Express (1949) † ×1 336 U.S. 106 — *good*
	229. ● Ritesh Tandon v. Gavin Newsom (2021) † ×1 992 F.3d 916 — *good*
	230. ● Gaudin (1995) † ×1 515 U.S. 506 — *good*
	231. ● BUSINESS LEADERS IN CHRIST v. UNIVERSITY OF… (2019) † ×1 360 F. Supp. 3d 885 — *good*
	232. ● Christian Legal Society v. Walker (2006) † ×1 453 F.3d 853 — *good*
	233. ● Simon Ateba v. Karoline Leavitt (2025) † ×1 133 F.4th 114 — *good*
	234. ● Stanley (1927) † ×1 81 Colo. 276 — *doubts from 2013*
	235. ● Conrad (1982) † ×1 1982 Colo. LEXIS 751 — *good*
	236. ● Riley (1988) † ×1 487 U.S. 781 — *good*
	237. ● Medellin (2008) † ×1 552 U.S. 491 — *good*
	238. ● Nicholas Meriwether v. Francesca Hartop (2021) † ×1 992 F.3d 492 — *good*
	239. ● NFIB (2012) † ×1 567 U.S. 519 — *good*
	240. ● Lovell (1938) † ×1 303 U.S. 444 — *good*

Lisa Roy, in Her Official Capacity as Executive Director of the Colorado Department of Early Childhood respondent side only, plaintiff below	**St. Mary Catholic Parish, Littleton, Colorado** petitioner side only, defendant below
	241. • Westchester Day School v. Village of Mamaro… (2006) † ×1 417 F. Supp. 2d 477 — *good*
	242. • Westchester Day School v. Village of Mamaro… (2007) † ×1 504 F.3d 338 — *good*
	243. • Ambellu (2019) † ×1 387 F. Supp. 3d 71 — *good*
	244. • Burgess (1990) † ×1 734 F. Supp. 30 — *good*
	245. • Trustees (1994) † ×1 335 Md. 564 — *good*
	246. • Kahana (2007) † ×1 9 N.Y.3d 282 — *good*
	247. • Hutterville (2010) † ×1 2010 S.D. LEXIS 161 — *good*
	248. • Rentz (2010) † ×1 232 P.3d 1169 — *good*
	249. • Elrod (1976) ×1 427 U.S. 347 — *good*
	250. • Koontz (2013) ×1 570 U.S. 595 — *good*
	251. • Simon & Schuster (1991) ×1 502 U.S. 105 — *good*

↑ # Decision Below

↑ **Court of Appeals for the Tenth Circuit** Opinion · Sept. 30, 2025 (as reproduced in Pet. App. 1a–48a)

CourtListener has no copy of this decision; the text is the petition appendix's.

[*1a] FILED United States Court of Appeals

Tenth Circuit September 30, 2025 Christopher M. Wolpert

Clerk of Court

PUBLISH UNITED STATES COURT OF APPEALS FOR

THE TENTH CIRCUIT _____

No. 24-1267 _____ ST. MARY CATHOLIC PARISH IN LITTLETON; ST. BERNADETTE CATHOLIC PARISH IN LAKE-WOOD; LISA SHELEY; DANIEL SHELEY; ARCHDI-OCESE OF DENVER,

Plaintiffs - Appellants, v.

LISA ROY, in her official capacity as Executive Director of the Colorado Department of Early Childhood; DAWN ODEAN, in her official capacity as Director of Colorado's Universal Preschool Program,

Defendants - Appellees, ——————————— THE JEWISH COALITION FOR RELIGIOUS LIB-ERTY; THE ROCKY MOUNTAIN DISTRICT LU-THERAN CHURCH MISSOURI SYNOD; THE COL-ORADO ASSOCIATION OF PRIVATE SCHOOLS; EDCHOICE, INC.; THE CONSCIENCE PROJECT; [*2a] ANDY ABOLS; KARINA RAMIREZ; ANA KAREN MEIER; JILL HALL; MELISSA DE LA CRUZ; PRO-TECT THE FIRST FOUNDATION; LAWRENCE G. SAGER; NELSON TEBBE; SCHOLARS FOR THE ADVANCEMENT OF CHILDREN'S CONSTITU-TIONAL RIGHTS; AMERICANS UNITED FOR SEP-ARATION OF CHURCH AND STATE; AMERICAN CIVIL LIBERTIES UNION; ACLU OF COLORADO; CENTRAL CONFERENCE OF AMERICAN RABBIS; INTERFAITH ALLIANCE; INTERFAITH ALLI-ANCE OF COLORADO; KESHET; LAMBDA LEGAL DEFENSE AND EDUCATION FUND; THE SIKH COALITION; UNION FOR REFORM JUDAISM; WOMEN OF REFORM JUDAISM; FIRST AMEND-MENT SCHOLAR,

Amici Curiae.

_____

Appeal from the United States District Court for the District of Colorado (D.C. No. 1:23-CV-02079-JLK) _____ Nicholas R. Reaves, (Eric C. Rassbach, Mark. L. Rienzi, Joseph C. Davis, Jordan T. Varberg, and Amanda G. Dixon with him on the briefs), The Becket Fund for Religious Liberty, Washington, District of Columbia for Plaintiffs - Appellants. Helen Norton, Deputy Solicitor General (Philip J. Weiser, Attorney General, Virginia R. Carreno, Second Assistant Attorney General, Janna K. Fischer, Senior Assistant Attorney General II with her on the brief), Colorado Department of Law, Denver, Colorado, for Defendants - Appellees. [*3a] Andrew M. Nussbaum, First and Fourteenth PLLC, Colorado Springs, Colorado, filed an amicus curiae brief for The Jewish Coalition for Religious Liberty, the Rocky Mountain District Lutheran Church Missouri Synod, and the Colorado Association of Private Schools.

Thomas M. Fisher, EdChoice Legal Advocates, Indianapolis, Indiana, filed an amicus curiae brief for EdChoice, Inc.

Gene C. Schaerr and James C. Phillips, Schaerr|Jaffe, LLP, Washington, D.C., filed an amicus curiae brief for Protect the First Foundation.

Andrea Picciotti-Bayer, The Conscience Project, Mclean, Virginia, filed an amicus curiae brief for The Conscience Project and individuals Andy Abols, Karina Ramirez, Ana Karen Meier, Jill Hall, and Melissa De La Cruz.

G.S. Hans, Civil Rights and Civil Liberties Clinic, Cornell Law School, Ithaca, New York, filed an amicus curiae brief for Professors Lawrence G. Sager and Nelson Tebbe.

Lauren Fontana, University of Colorado, Aurora, Colorado, filed an amicus curiae brief for Scholars for the Advancement of Children's Constitutional Rights. Alex J. Luchenitser and Scott Lowder, Americans United for Separation of Church and State, Washington, D.C.; Timothy R. Macdonald, Sara R. Neel, and

Anna I. Kurtz, American Civil Liberties Union Foundation of Colorado, Denver, Colorado; Daniel Mach, American Civil Liberties Union Foundation, Washington, District of Columbia; Karen L. Loewy and Kenneth D. Upton, Lambda Legal Defense and Education [*4a] Fund, Inc., Washington, District of Columbia, filed an amicus curiae brief for Americans United for Separation of Church and State, American Civil Liberties Union, American Civil Liberties Union of Colorado, Central Conference of American Rabbis, Interfaith Alliance, Interfaith Alliance of Colorado, Keshet, Lambda Legal Defense and Education Fund, Inc., The Sikh Coalition, Union for Reform Judaism, and Women of Reform Judaism.

Amalia Sax-Bolder, Craig M. Finger, and Lance T. Collins, Brownstein Hyatt Farber Schreck, LLP, Denver, Colorado, filed an amicus curiae brief for First Amendment scholar Amanda Shanor.

Before PHILLIPS, ROSSMAN, and FEDERICO, Circuit Judges.

FEDERICO, Circuit Judge.

In 2020, Colorado voters approved a proposition that created a dedicated source of public funding for voluntary, universal preschool in the state. Following this vote, Colorado passed legislation and established a Universal Preschool Program (UPK). Appellants are the Archdiocese of Denver, two Catholic parishes, and two parents of preschool-age children, challenging a section of UPK that requires all preschools receiving state funds to sign a nondiscrimination agreement. They argue that this requirement violates their rights under the First Amendment to the United States Constitution and seek an injunction preventing the nondiscrimination requirement from being applied to [*5a] them. After a three-day trial, the district court found that the nondiscrimination requirement does not run afoul of the First Amendment, denied injunctive relief, and entered final judgment. This timely appeal follows, and we have jurisdiction under 28 U.S.C. § 1291.

Our opinion will proceed as follows. In Section I, we begin by detailing Colorado UPK, discussing its legislative and regulatory structure and how it works for preschools and families. Next, we describe the plaintiffs and their lawsuit, the district court's findings, and the arguments on appeal. In Section II, we briefly explain why we need not decide one issue raised on appeal: the standing of the Archdiocese of Denver. In Section III, we explain the standard of review when a party seeks a preliminary injunction while raising a First Amendment challenge. Section IV is the heart of this appeal, where we dive into First Amendment doctrine and apply it to Colorado's UPK program. We reach our conclusion in Section V, affirming the district court's decision to deny injunctive relief.

↑ **I.**

A. In 2020, Colorado voters passed proposition EE to provide state funding for UPK. Colo. Rev. Stat. § 26.5- 4-202(1)(a)(V). The Colorado General Assembly then implemented UPK by passing the Early Childhood Act (the Act). H.B. 21-1304, 73rd Gen. Assemb. (Colo. 2021). The purposes of this law are to "provide children in Colorado access to voluntary, high-quality, universal preschool services free of charge" and to "establish quality standards for publicly funded preschool providers that promote children's early learning and development, school readiness, and healthy [*6a] beginnings." Colo. Rev. Stat. § 26.5-4-204(1)(a), (d). The Act, along with additional legislation passed the next year, established a "[m]ixed delivery system" where a variety of different kinds of preschools, public and private, would be supported by state funds. Id. § 203(12). The implementation of the law was given to the executive director of the newly created Colorado Department of Early Childhood (the Department). Id. § 26.5-1-104(1).

To meet the goals of the Act, the General Assembly tasked the executive director of the Department with prescribing uniform quality standards for all preschools funded through UPK. Id. § 26.5-4-204(4)(a)(V). These standards would govern the minimum number of teaching hours, classroom sizes, teacher qualifications, and so forth. Id. § 205(2)(b). The legislature stated that, at a minimum, these quality standards must include a nondiscrimination requirement for all participating schools.[1] Id. Under the nondiscrimination requirement, each preschool must "provide eligible children an equal opportunity to

enroll and receive preschool services regardless of race, ethnicity, religious affiliation, sexual orientation, gender identity, lack of housing, income level, or disability, as such characteristics and circumstances apply to the child or the child's family." Id. § 205(2)(b). This requirement was also codified as a final regulation by the Department. 8 Code of Colorado Regulations 1404-1 § 4.110.

Colorado preschools are not required to participate in UPK. But those that wish to participate in UPK and [*7a] receive state funds are required to sign an agreement stating that they will adhere to the Act's quality standards, including the nondiscrimination requirement. These standards are absolute. UPK only has discretion to grant waivers "for a limited time" to preschools that do not meet its standards, so long as those schools are actively "working toward compliance with the quality standards" and the unmet standard does not relate to "health and safety[.]" Id. § 205(1)(b)(II).

Starting in 2022, preschools began registering with UPK to receive state funds. Families enroll their children in UPK preschools through an online portal. Families can select up to five registered preschools on Colorado's UPK website and then rank them in order of preference. An algorithm then matches families with one of their ranked choices.[2] Initially, some participating preschools thought this kind of ranking system was too haphazard because schools had no control over which students they were matched with. In response, the Department added a function where preschools can set different preferences in how the algorithm matches them with students (hereinafter the preference system). This preference system was designed to help match preschools with specific groups of students that they are designed to serve. For instance, preschools can prefer to be matched with students in a way that is consistent with school district boundaries. Preschools are allowed to decline to enroll children they are matched with who do not fit their enrollment preference, although their choice to decline a student is subject to Department review.

[*8a] When the preference system was first codified in the Code of Colorado Regulations, it listed ten different preferences that could be selected:

1. Faith-based providers granting preference to members of their congregation; 2. Cooperative preschool providers requiring participation in the cooperative; 3. School districts maintaining enrollment consistent with their established boundaries; 4. Participating preschool providers reserving placements for a student(s) with an Individualized Education Program (IEP) to ensure conformity with obligations incurred pursuant to the Individuals with Disabilities Education Act, 20 U.S.C. section 1400 (2004) **amd** 2010, or the Exceptional Children's Education Act, Article 20 of Title 22, C.R.S.;

5. Head Start programs' adhering to any applicable federal law requirements including eligibility requirements;

6. Participating preschool providers granting preference to an eligible child of one (1) of their employees;

7. Participating preschool providers granting preference to an eligible child to ensure continuity-of-care for that child;

8. Participating preschool providers granting preference to an eligible child to keep siblings similarly located;

9. Participating preschool providers granting preference to an eligible child who is [*9a] multilingual, to ensure proper delivery of services to that child[; and]

10. Participating preschool providers may grant preference to an eligible child based: on the child and/or family being a part of a specific community; having specific competencies or interests; having a specific relationship to the provider, provider's employees, students, or their families; receiving specific public assistance benefits; or participating in a specific activity.

Aplt. App. II at 172–73.[3]

[1]Plaintiffs refer to this as "the Mandate" while the Department calls it the "equal-opportunity requirements." Op. Br. at 10; Resp. Br. at 17.

[2]If none of these five choices ends up being available, families can select additional preschools. Aplt. App. II at 171.

[3]As discussed in greater depth below, these regulations have since been changed. One preference has been removed and the others are codified in a different section. Hereinafter, all citations are to the latest version of the regulations contained in 8 Code of Colorado Regulations 1404-1, effective as of April 24, 2025.

The final preference is a catchall, allowing for individual preschools to request a new matching preference from the Department. Preschools that seek a specific preference under the catchall preference can request it through a separate online form. However, the catchall preference has several restrictions:

Participating preschool providers seeking to utilize this preference, must ensure: a. That the specific community, competencies or interests, relationship, public assistance benefit, or activity being required of children and/or families who attend, is a requirement of all participating children and/or families. b. That implementation of requiring the specific community, competencies or interests, [*10a] relationship, public assistance benefit, or activity does not conflict with any other provision of the Colorado Universal Preschool Program statutes at sections 26.5-4-201 through 26.5-4- 211, C.R.S., nor with any other applicable law or regulation.

c. Examples of approved preferences include, but are not limited to: participating preschool providers who require a focus in a certain knowledge area (such as science, technology, engineering, and math ("STEM")); providers who serve families with a family member who works or attends school at a specific site(s) or location(s); providers who serve families within a specific geographical catchment area; providers who require a certain amount of volunteering or participation by the participating family; providers who require certain vaccinations for the health and safety of its staff and students; and providers who serve families who are receiving a specific public assistance benefit(s) such as housing assistance.

8 Colo. Code Reg. 1404-1 § 4.109(A)(9). Finally, after listing these preferences, Colorado regulations state that "[i]n utilizing these programmatic preferences, eligible preschool providers must still comply with [the nondiscrimination provision]." Id. § 4.109(B).

B. Plaintiffs are two catholic [sic] parishes, St. Mary Catholic Parish and St. Bernadette Catholic Parish, and their associated preschools, St. Mary's Catholic Preschool and Wellspring Catholic Academy, the Archdiocese of Denver, along with Daniel Sheley and Lisa [*11a] Sheley, parents who hope to enroll their children in a UPK-eligible preschool. St. Mary's Catholic Preschool and Wellspring Catholic Academy are a part of the Catholic Church under the authority of the Archdiocese, which oversees thirty-six Catholic preschools in Colorado. These schools are expected to "adhere[] to Catholic faith, morals, [and] the building up of Catholic culture within the school[.]" Aplt. App. III at 44. Likewise, teachers, staff, and the parents of children at these schools are required to sign a "Statement of Community Beliefs" broadly affirming that they will live in accordance with the teachings of the Catholic Church. Id. at 50–51.

Plaintiffs (hereinafter collectively referred to as "the Parish Preschools") hold a sincere belief that Catholic teaching requires them to consider the sexual orientation and gender identity of a student and their parents before admitting them to a Catholic school. The Archdiocese does not recognize same-sex relationships or transgender status, and it states that enrolling a child of same-sex parents in a Catholic school is "likely to lead to intractable conflicts." Aplt. App. V at 116. The Parish Preschools do not categorically ban the children of same-sex parents, but Wellspring has declined to admit an elementary school student in the past for this reason. Regardless, the Parish Preschools state that their beliefs are incompatible with the part of the nondiscrimination requirement stating that schools must "provide eligible children an equal opportunity to enroll and receive preschool services regardless of . . . sexual orientation [or] gender identity . . . as such characteristics and circumstances apply to the child or the child's family."

[*12a] Soon after UPK was passed, the Parish Preschools and others expressed concerns about the nondiscrimination requirement. During UPK's development, the Department organized working groups with different preschool providers to solicit input at regular meetings. Among these was a working group for faith-based preschool providers, which included representatives from religious groups, interfaith groups, and faith-based preschools. One of the preferences in the preference system – a preference for faith-based providers to enroll members of their congregation (the congregation preference) – was created as a result of conversations with this working group. St. Mary's participated in the faith-based working group and raised concerns about the nondiscrimination requirement.

In 2023, the Archdiocese of Denver instructed its preschools not to register with UPK so that they would not have to agree to the nondiscrimination requirement. However, the Archdiocese did permit several preschools affiliated with Catholic Charities and aimed at low-income families to participate in UPK.[4] The Archdiocese and several other faith groups sent a letter to Governor Jared Polis requesting "exemptions for faith-based religious providers" from the nondiscrimination requirement. Aplt. App. V at 221. Lisa Roy, executive Director of the Department, sent a reply, informing the Archdiocese that the Department [*13a] could not create an exemption from the nondiscrimination requirement because it is enshrined in state law. But she reassured the Archdiocese that "faith-based providers can reserve all or a portion of their seats for their members, and decline a match from a family that is not part of the congregation." Id. at 223.

The Parish Preschools then sued Director Roy and Dawn Odean, Director of Colorado's Universal Preschool Program, in their official capacities under 42 U.S.C. § 1983 for infringing upon their rights under the First Amendment as applied to the states through the Fourteenth Amendment. The Parish Preschools brought seven claims and sought an injunction prohibiting enforcement of the nondiscrimination requirement against them with respect to religious affiliation, sexual orientation, and gender identity. They argued that the nondiscrimination requirement triggered strict scrutiny, which the government could not satisfy.

Three of the Parish Preschools' arguments are relevant on appeal.[5] First, they claim that the [*14a] nondiscrimination requirement "precludes religious entities and families from obtaining generally available state benefits solely because of their religious character" in violation of the Free Exercise Clause. Aplt. App. I at 48. Second, they claim that UPK has created both discretionary and categorical exemptions to the nondiscrimination requirement that make the law "not neutral and generally applicable[,]" entitling them to an exemption under the Free Exercise Clause. Id. at 53. Finally, they claim that the nondiscrimination requirement violates the Free Speech Clause by "forcing a group formed for expressive purposes to accept members who oppose those purposes." Id. at 56.

The Department moved to dismiss the complaint on the grounds that the Parish Preschools lacked standing and that their claims were not ripe. After ordering supplemental briefing, the district court granted the motion to dismiss only with respect to the Archdiocese. The district court held that "the Archdiocese has failed to allege a sufficient injury to have standing in its own right and has not established it has standing as a representative of the Archdiocesan preschools" because those preschools are "legally independent" and the Archdiocese itself "does not seek to participate in UPK[.]" Aplt. App. II at 43.

In January 2024, the district court held a three-day bench trial to determine whether to grant injunctive relief, including hearing testimony from both expert and fact witnesses. In its findings of fact, conclusions of law, and order for entry of judgment, the district [*15a] court concluded that the application of UPK's nondiscrimination requirement to the Parish Preschools with respect to sexual orientation and gender identity should not be subjected to strict scrutiny.[6] As part of its analysis, the district court stated that the nondiscrimination requirement "does not exclude [the Parish Preschools] from the UPK Program solely because of their religious status or exercise." Id. at 205. The court also found that "the Department has applied the [nondiscrimination] requirement in a neutral and generally applicable manner, as dictated by the statute[.]" Id. at 161. It also held that "Plaintiffs' free-speech claim is entirely without merit as Plaintiffs ignore applicable doctrines and attempt to stretch precedent beyond recognizability." Id.

[4]According to the Parish Preschools, Catholic preschools operate under "two different ministries within the Archdiocese of Denver." Aplt. App. III at 72. The Office of Catholic Schools, which manages most of the Archdiocese's preschools, is distinct from Catholic Charities, which runs some Early Head Start and Head Start programs. These two programs have distinct theological purposes and thus are different ministries within the Archdiocese.

[5]The Parish Preschools' complaint contained seven separate First Amendment claims in total: Count One: violation of the Free Exercise Clause by exclusion from a government benefit based on religion; Count Two: violation of the Free Exercise Clause by ignoring the ministerial exception to employment discrimination law; Count Three: violation of the Free Exercise Clause by interfering with church autonomy; Count Four: violation of the Free Exercise Clause by refusing to grant an exemption to a law not of general applicability that burdens religious practice; Count Five: violation of the Free Exercise Clause by not treating religious practices as equal to comparable secular activities; Count Six: violation of the Free Speech Clause by compelled speech and expressive association; and Count Seven: violation of the First Amendment by denominational favoritism. Some of these claims were found to be moot by the district court because they were based on a separate employment agreement that the Department later eliminated and disavowed. On appeal, we are asked to consider only parts of Counts One, Four, Five, and Six.

Accordingly, the district court applied rational basis review to deny injunctive relief with respect to the sexual orientation and gender identity provisions of the nondiscrimination requirement.[7]

The district court did, however, find that UPK had created an unlawful exception to its requirement for nondiscrimination on the basis of religion by creating [*16a] the congregation preference. As a result, it enjoined UPK from requiring the Parish Preschools to "agree to provide [preschool enrollment] regardless of religious affiliation for as long as the Department allows exceptions from the religious affiliation aspect of the nondiscrimination requirement[.]" 8 Id. at 258–59. This ruling is not challenged on appeal, and UPK has since updated its regulations to remove the congregation preference. 8 Colo. Code Reg. 1404-1 § 4.109(A).

The district court then entered final judgment, and the Parish Preschools timely appealed. The Parish Preschools appeal two decisions of the district court. First, they appeal the denial of a permanent injunction with respect to the nondiscrimination requirement. Second, they appeal the dismissal of the Archdiocese from the case for lack of standing.

We will address these arguments in reverse order. First, we decline to decide whether the Archdiocese has standing. We then turn to the heart of the Parish Preschools' appeal and ask whether the nondiscrimination requirement triggers strict scrutiny under the Free Exercise Clause. Finally, we examine the Parish Preschools' argument that the nondiscrimination[8] [*17a] requirement triggers strict scrutiny by infringing on their expressive association.

↑ **II.** The Parish Preschools urge us to reverse the district court's finding that the Archdiocese lacked standing, but we decline to address this question. The Department does not contest the standing of the other four plaintiffs on appeal, and we do not independently hold that they lack standing, so there is no constitutional bar to this court considering this case based upon the standing of the remaining plaintiffs. See Massachusetts v. E.P.A., 549 U.S. 497, 518 (2007) ("Only one of the petitioners needs to have standing to permit us to consider the petition for review."); Biden v. Nebraska, 600 U.S. 477, 489 (2023) ("Because we conclude that the Secretary's plan . . . directly injures Missouri—conferring standing on that State—we need not consider the other theories of standing raised by the States.").

If an injunction were granted, the presence of the Archdiocese as a party with standing would likely affect the number of preschools impacted by that relief. However, the relief sought by the Parish Preschools is subsumed by the relief sought by the Archdiocese, and we discern no material differences in the parties' arguments for relief. The outcome is the same regardless of whether the Archdiocese remains a party to this litigation because we are affirming the district court's denial of injunctive relief to the Parish Preschools. Because it makes no difference to the bottom line, we decline to consider the district court's dismissal of the Archdiocese from the case for lack of standing. Citizens for Const. Integrity v. United States, 57 F.4th 750, 759 (10th Cir. 2023) ("If one appellant has standing, we [*18a] need not worry about the standing of another appellant raising the same issues and seeking the same relief."); see also Thiebault v. Colorado Springs Utilities, 455 F. Appx. 795, 802 (10th Cir. 2011) (unpublished).

[6]The district court also stated that "even if strict scrutiny applied, it would be satisfied." Aplt. App. II at 231. Because we ultimately find that rational basis review should apply, we do not conduct a strict scrutiny analysis here.

[7]A separate case from the District of Colorado has come out the opposite way. In Darren Patterson Christian Academy v. Roy, the district court found that the nondiscrimination requirement infringed on the free exercise rights of a private faith-based preschool seeking to participate in UPK. 2025 WL 700268 (D. Colo. Feb. 24, 2025). The district court in that case permanently enjoined UPK from enforcing that portion of the nondiscrimination requirement against that school. Id. That case was appealed, and the appeal remains pending.

[8]Because the Parish Preschools were always able to utilize the congregation preference, this injunction appears to have had no direct effect. The Parish Preschools' effort in this regard apparently stemmed from a concern that UPK's congregation preference might not allow them to prioritize the admission of Catholic families from other parishes. But based on Director Odean's testimony, the Department had always interpreted "congregation" broadly such that it could be used to cover Catholic students from other parishes. Aplt. App. IV at 65–66. Regardless, after the district court's decision, the Department eliminated the congregation preference to comply with state law mandating the nondiscrimination requirement.

↑ **III.** "For a party to obtain a permanent injunction, it must prove: '(1) actual success on the merits; (2) irreparable harm unless the injunction is issued; (3) the threatened injury outweighs the harm that the injunction may cause the opposing party; and (4) the injunction, if issued, will not adversely affect the public interest.'" Prairie Band Potawatomi Nation v. Wagnon, 476 F.3d 818, 822 (10th Cir. 2007) (quoting Fisher v. Okla. Health Care Auth., 335 F.3d 1175, 1180 (10th Cir. 2003)). The parties do not discuss the latter three factors on appeal. As such, we confine our analysis to a consideration of the merits of the Parish Preschools' First Amendment claims.

"We review the district court's decision to deny a permanent injunction for abuse of discretion." United States v. Uintah Valley Shoshone Tribe, 946 F.3d 1216, 1222 (10th Cir. 2020). "An abuse of discretion occurs when the district court 'commits an error of law or makes clearly erroneous factual findings.'" Att'y Gen. of Oklahoma v. Tyson Foods, Inc., 565 F.3d 769, 775 (10th Cir. 2009) (quoting Gen. Motors Corp. v. Urban Gorilla, LLC, 500 F.3d 1222, 1226 (10th Cir. 2007)). In general, when reviewing for an abuse of discretion, "we examine the district court's legal determinations de novo, and its underlying factual findings for clear error." Id. at 776. However, "[i]n a First Amendment case, we have an obligation to make an independent examination of the whole record" and "review the district court's findings of constitutional fact and its [*19a] ultimate conclusions of constitutional law de novo." Revo v. Disciplinary Bd. of the Supreme Ct. for the State of N.M., 106 F.3d 929, 932 (10th Cir. 1997).

↑ **IV.** The First Amendment states that "Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof[.]" U.S. Const. amend. I. "[A] plaintiff bears certain burdens to demonstrate an infringement of his rights under the Free Exercise [Clause]." Kennedy v. Bremerton Sch. Dist., 597 U.S. 507, 524 (2022). If a plaintiff meets that burden, "the focus then shifts to the defendant to show that its actions were nonetheless justified and tailored consistent with the demands of our case law." Id. "[A] plaintiff may carry the burden of proving a free exercise violation in various ways," Id. at 525, two of which the Parish Preschools argue here.

A. The Supreme Court has held that when a state offers subsidies for private education, it cannot categorically withhold those funds from religious institutions. This principle comes from three cases: Carson v. Makin, 596 U.S. 767, 768 (2022), Espinoza v. Montana Dep't of Revenue, 591 U.S. 464, 487 (2020), and Trinity Lutheran Church of Columbia, Inc. v. Comer, 582 U.S. 449, 462 (2017). These cases form an independent line of precedent in the Supreme Court's Free Exercise case law, and the Parish Preschools allege that they control the outcome here.

We disagree. The religious exclusions addressed by the Supreme Court in these three cases are different from the nondiscrimination requirement in Colorado's [*20a] UPK statute. Before we explain why, we briefly describe each of the three cases in chronological order.

First, in Trinity Lutheran, the Court addressed a Missouri program that gave grants to nonprofits to install playgrounds with rubber made from recycled tires. 582 U.S. at 454. Pursuant to the state constitution, Missouri refused to give these grants to "any applicant owned or controlled by a church, sect, or other religious entity." Id. at 455. The Court found that this violated the Free Exercise Clause on the principle that "denying a generally available benefit solely on account of religious identity imposes a penalty on the free exercise of religion[.]" Id. at 458.

Later, in Espinoza, the Montana Supreme Court struck down a tuition assistance program that could be used to fund students at private religious schools on the grounds that the state constitution barred aid to institutions "controlled in whole or in part by any church, sect, or denomination." 591 U.S. at 470 (quoting Mont. Const., Art. X, § 6(1)). The Court again found that this violated the Free Exercise Clause on the basis of "status-based discrimination" against religious institutions. Id. at 478.

Finally, in Carson, Maine enacted a tuition assistance program that only reimbursed students who attended "nonsectarian" schools that did not "promote" a "faith or belief system[.]" 596 U.S. at 775. The Court concluded that this limitation violated the Free Exercise Clause because it discriminated against the "religious use" of funds in the same way the prior cases involved discrimination against "religious status[.]" Id. at 786–87.

[*21a] This case is different from these three cases. The Department did not exclude faith-based preschools from participating in UPK. Indeed, they welcomed and actively solicited their participation. The only relevant limitation on any preschool's participation is the nondiscrimination requirement, which applies to all preschools regardless of whether they are religious or secular. Thus, the inclusion of religious schools as welcome participants in Colorado's UPK program distinguishes this case from Supreme Court decisions where the plaintiffs were excluded from participation based upon their religious exercise and status.

The Parish Preschools attempt to blur this distinction by equating the nondiscrimination requirement with a restriction on public funds being used for religious purposes, arguing that both limit their religious exercise.[9] But the Carson line of cases addressed laws that targeted "religious status" and "religious use" on the explicit basis that they were religious and not secular. Id. at 786–87; see also id. at 780 ("While the wording of the Montana and Maine provisions is [*22a] different, their effect is the same: to disqualify some private schools from funding solely because they are religious." (emphasis added) (citation and internal quotation marks omitted)); Trinity Lutheran, 582 U.S. at 463 ("The express discrimination against religious exercise here is not the denial of a grant, but rather the refusal to allow the Church—solely because it is a church—to compete with secular organizations for a grant." (emphasis added)); Kim v. Bd. of Educ. of Howard Cnty., 93 F.4th 733, 748 (4th Cir. 2024) ("These cases stand only for the point that religious schools cannot be excluded from grant programs solely because of their religious character.").

Colorado is not attempting to prohibit funds from being used for religious purposes. Unlike in Carson, preschools funded through UPK may use those funds to educate students on matters of faith. The restrictions imposed by the nondiscrimination requirement universally cover enrollment policies and conduct, but they are not a targeted burden on religious use. The Parish Preschools allege, of course, that this universal restriction nonetheless infringes upon their ability to exercise their religious beliefs. But when a particular religious practice is alleged to be infringed incidentally, rather than religious status or use being specifically targeted, the Supreme Court requires that the law at issue be neutral and generally applicable. See Trinity Lutheran, 582 U.S. at 460–61 (discussing Emp. Div., Dept. of Hum. Res. of Oregon v. Smith, 494 U.S. 872, 877 (1990)). We turn to this inquiry next.

B. The Free Exercise Clause does not prevent individuals from being subject to a "valid and neutral law of general applicability" that incidentally conflicts with [*23a] their religion. Smith, 494 U.S. at 879 (quoting United States v. Lee, 455 U.S. 252, 263 n.3 (1982) (Stevens, J., concurring in judgment)).[10] While the Constitution protects religious freedom, courts have long recognized the simple reality that the government must be able to enforce the law equally against everyone, no matter an individual's beliefs, lest we "permit every citizen to become a law unto himself." Smith, 494 U.S. at 879 (quoting Reynolds v. United States, 98 U.S. 145, 167 (1878)). Thus, we ask if the law is neutral and generally applicable to assess if the law is holding everyone to the same standard, regardless of their religion.

If a law is neutral and generally applicable, it "need only be rationally related to a legitimate governmental interest to survive a constitutional challenge." Grace United Methodist Church v. City of Cheyenne, 451 F.3d 643, 649 (10th Cir. 2006). "On the other hand, if a law that burdens a religious practice is not neutral or generally applicable, it is subject to strict scrutiny," and must be "narrowly tailored to advance a compelling governmental interest." Id. Which is to say, the neutrality and general applicability inquiry guides the standard of judicial review to determine whether the law violates the Constitution.

Our question, then, is whether the nondiscrimination requirement is a neutral law of general applicability. "Government fails to act neutrally when it proceeds in a manner intolerant of religious beliefs or restricts practices because of their religious nature." Fulton v. City of Philadelphia, Pennsylvania, 593 U.S. 522,

[9]The Parish Preschools' logic would mean that whenever a state conditions school funding on any activity, courts would have to ask if that activity is secular or religious to ensure the condition does not violate Carson. But so long as a plaintiff is sincere, beliefs that are commonly described as secular can warrant religious status under the law. See Welsh v. United States, 398 U.S. 333, 340 (1970) ("If an individual deeply and sincerely holds beliefs that are purely ethical or moral in source and content but that nevertheless impose upon him a duty of conscience . . . those beliefs certainly occupy in the life of that individual 'a place parallel to that filled by God' in traditionally religious persons.") (quoting United States v. Seeger, 380 U.S. 163, 176 (1965)). In practice, the Parish Preschools' interpretation would mean that Carson prevents states from placing almost any condition on school funds.

[10]The Parish Preschools also argue, for preservation purposes, that Smith was wrongly decided.

533 (2021). "A law is not generally applicable if it [*24a] 'invite[s]' the government to consider the particular reasons for a person's conduct by providing 'a mechanism for individualized exemptions[,]'" id. (first alteration in original) (quoting Smith, 494 U.S. at 884), or if it "prohibits religious conduct while permitting secular conduct that undermines the government's asserted interests in a similar way," id. at 534. We now examine each of these standards in turn.

1. Neutrality is, essentially, a question of intent. "A law is neutral so long as its object is something other than the infringement or restriction of religious practices." Grace United Methodist Church, 451 F.3d at 649–50. Did Colorado implement the nondiscrimination requirement to try and suppress religious views or conduct?

First, we look at the nondiscrimination requirement itself. "A law lacks facial neutrality if it refers to a religious practice without a secular meaning discernable from the language or context." Church of Lukumi Babalu Aye, Inc. v. City of Hialeah, 508 U.S. 520, 533 (1993). The nondiscrimination requirement does not. Rather, it applies to all preschools and does not mention religion except to prohibit discrimination based on religious affiliation.

But a lack of neutrality is not always obvious. The government can also violate the Free Exercise Clause through "subtle departures from neutrality" and "covert suppression of particular religious beliefs[.]" Id. at 534 (internal citations and quotation marks omitted). While the nondiscrimination requirement appears neutral, the Parish Preschools argue that the Department has taken actions that "evidence religious [*25a] hostility." Op. Br. at 46. Examining the record, however, we find no support for this claim.

The Parish Preschools first accuse the Department of a lack of neutrality because they "compared [the Parish Preschools] to 1970s segregation academies in the South and characterized [the Parish Preschools'] millennia-old religious beliefs as stigmatization and bullying." Id. But the only reference to segregation academies occurs in the context of legal arguments citing Runyon v. McCrary. 427 U.S. 160 (1976). Runyon is relevant to the Parish Preschools' free association argument, and the comparison is a purely legal one.[11] As for bullying and stigmatization, the Department appears to raise these issues only to demonstrate the reasoning behind the nondiscrimination requirement and their concerns about admissions policies that violate the requirement. They make no claim as to whether the Parish Preschools' religious beliefs themselves are right or wrong. As such, the Parish Preschools cannot point to any part of the record where the Department has disparaged their preschools or their religion.

Second, the Parish Preschools argue there is evidence of religious hostility because the Department [*26a] has "repeatedly recalibrated their policies in a manifest attempt to gerrymander around [the Parish Preschools'] claims" including by "tweaking the scope of the congregation preference[.]" Op. Br. at 47. If anything, the congregation preference shows the opposite. The Department created the congregation preference to address the concerns of the working group it convened with faith-based preschools. One of those preschools was St. Mary's itself. When faith groups raised concerns about the nondiscrimination requirement, Director Roy tried to use the congregation preference to assuage those concerns and ensure the participation of faith-based preschools. In doing so, she was clear that "faith-based providers can, and are encouraged to, participate in the UPK program." Aplt. App. V at 222.

After the Parish Preschools sued and the district court enjoined the use of the congregation preference, it was dropped from state regulations. 8 Colo. Code Reg. 1404-1 § 4.109(A). But far from suggesting a "gerrymander" around their claims, this shows that the Department has consistently sought to follow the letter of the nondiscrimination requirement as enshrined in state law. "[R]epeated changes in position" and "evolving policy" can sometimes be evidence of nonneutrality. Meriwether v. Hartop, 992 F.3d 492, 515 (6th Cir. 2021). But not where, as here, those changes came from attempts to try

[11] Many lawsuits arise out of difficult circumstances and unsavory contexts. Lawyers should not be penalized for arguing and applying the legal rules that arise from any case, no matter its context. We likewise cite to Runyon here because it helps us understand how the First Amendment right to expressive association, as interpreted in binding precedent by the Supreme Court, applies to school admissions. See infra Section IV.C. This is part and parcel of legal analysis and does not disparage the Parish Preschools or equate their character or beliefs with that of other parties in other cases.

and accommodate the plaintiffs.

Compare this case with Church of Lukumi Babalu Aye, where the City of Hialeah, Florida, passed ordinances against animal sacrifice to target the practice of the Santeria religion. 508 U.S. at 534. There, the Supreme Court found that "[t]he record . . . [*27a] compel[led] the conclusion that suppression of the central element of the Santeria worship service was the object of the ordinances." Id. Hialeah never considered ordinances against animal sacrifice until a Santeria house of worship announced that it would be opening in the city. Id. at 541. The city decided to impose these ordinances after city council meetings where local officials called Santeria "abhorrent[,]" an "abomination[,]" and "in violation of everything this country stands for." Id. at 541–42. The city council president even asked, "[w]hat can we do to prevent the Church from opening?" Id. at 541. The answer was a series of ordinances prohibiting the killing of animals that nonetheless allowed "almost all killings of animals except for religious sacrifice[.]" Id. at 536. However, these ordinances contained exemptions that would allow for the kosher slaughter of animals consistent with other religious traditions. Id. at 536–37. In simple terms, the Supreme Court found the ordinances were not neutral because they were blatantly intended to prohibit a specific religious practice and tradition.

Our analysis is also guided by Masterpiece Cakeshop, which dealt with Colorado's prohibition on discrimination based on sexual orientation in places of public accommodation. 584 U.S. 617, 627 (2018). The Colorado Civil Rights Commission found that a bakery had unlawfully discriminated against a same-sex couple trying to order a cake for their wedding. Id. at 628– 29. But the Supreme Court held that the Commission violated the Free Exercise Clause because its decision contained "elements of a clear and impermissible hostility toward the sincere religious beliefs" of the plaintiff. Id. at 634. In the Commission's public hearings on the case, commissioners made "inappropriate and dismissive comments" and described the plaintiff's [*28a] rhetoric as "despicable[.]" Id. at 635. Even after the hearings concluded, the government never disavowed "official expressions of hostility to religion[.]" Id. at 639. Criticism of the plaintiff's religious practices demonstrated that Colorado failed to act neutrally towards him.

Nothing about this case – neither the nondiscrimination requirement nor the record of its implementation – looks anything like the clear religious suppression displayed in Church of Lukumi Babalu Aye. It does not even resemble the general undercurrent of animus the Supreme Court highlighted in Masterpiece Cakeshop.[12] Rather, the record indicates that the Colorado General Assembly passed, and the Department implemented, the nondiscrimination requirement to prevent discrimination on any grounds, secular or religious. And in implementing UPK, the Department made every effort to encourage faith-based preschools to participate (short of violating state law by granting exceptions to the nondiscrimination requirement). Many faith-based preschools – including Catholic preschools under the Catholic Charities of the Archdiocese of Denver – currently participate in UPK. The Department has not been "intolerant of religious beliefs" and has not restricted certain practices "because of their religious nature." Fulton, 593 U.S. at 533. As such, it has demonstrated the law's neutrality, as required by the Free Exercise Clause.

[*29a] While neutrality is a question of a law's intent, general applicability is a question of a law's structure and implementation. "[W]here the State has in place a system of individual exemptions, it may not refuse to extend that system to cases of religious hardship without compelling reason." Smith, 494 U.S. at 884 (internal citation and quotation marks omitted). The Parish Preschools identify two alleged systems of individual exemptions: the catchall preference and the temporary waiver provision.

At first blush, the catchall preference looks a bit like a system of individual exemptions. Rather than simply providing an option for preschools to prefer being matched with certain categories of students, it allows preschools to request a unique preference through an online form, with the Department deciding whether to approve it. As such, the catchall preference is an individualized addition to the list of preferences.[13] But the preference system is merely a way of adjusting the algorithm that the

[12]The Court also found an unwarranted disparity in how the Colorado Civil Rights Commission treated other cases where bakers had refused to make cakes seen as derogatory towards same-sex couples. See Masterpiece Cakeshop v. Colorado C.R. Comm'n, 584 U.S. 617, 636–37 (2018). There is nothing in the record here to indicate any kind of disparate enforcement.

UPK website uses to match preschools with students. It does not give preschools the authority to reject certain classes of students if doing so would contravene state law. And the regulation itself notes that "eligible preschool providers must still comply with" the nondiscrimination provision. 8 Colo. Code Reg. 1404-1 § 4.109(B). So, the catchall preference is not a system of individualized [*30a] exemptions from the nondiscrimination requirement, which is what counts.

The Parish Preschools' argument relies on case law concerning policies that contained built-in exemptions. In Fulton, Philadelphia's foster care referral contract had a nondiscrimination clause that prevented discrimination based upon the prospective foster parents' sexual orientation. 593 U.S. at 535. But that nondiscrimination requirement stated that it applied "unless an exception is granted by" the city's Commissioner of the Department of Human Services at their "sole discretion." Id. The Commissioner was authorized by the policy itself to grant individual exemptions. Fulton's holding, finding the law was not generally applicable, is based on Sherbert v. Verner, which concerned a work requirement for public benefits that was only implicated if a citizen failed to accept work without good cause. See 374 U.S. 398, 400 n.3 (1963). It was the state Employment Security Commission's failure to consider a religious objection to working on Saturday a good cause that implicated the plaintiff's free exercise rights. Id. at 403. Again, this was contained within the law itself, giving government officials the power to make individual exemptions by deciding what constitutes good cause.

The preference system regulations, in contrast, explicitly state that the regulations cannot be used as an exception to the nondiscrimination requirement. Unrelated exceptions do not mean that the challenged portion of a law lacks general applicability. See Grace United Methodist Church, 451 F.3d at 654. ("Although the City of Cheyenne's zoning ordinance allows for limited objective exceptions . . . (such as churches, schools, and other similar uses) the regulation bars any [*31a] organization or individual from operating a daycare center in this residential zone, for either secular or religious reasons.").

The Parish Preschools frame this as mere doublespeak: the Department facially insisting that they will comply with the nondiscrimination requirement while still blatantly discriminating through the preference system. This argument hinges in part on the testimony of Director Odean. She was asked on direct examination whether, hypothetically, a preschool could request a preference for "gender-nonconforming children," "children of color from historically underserved areas[,]" or the children of parents that are part of "the LGBTQ community" because these groups are part of a "specific community[.]"[14] Aplt. App. IV at 70–72. Odean testified that these preferences could be given, but only "[a]s long as there wasn't discrimination that was aligned to the [non]discrimination provision[.]" Id. at 71. While these preferences would certainly seem to violate the nondiscrimination requirement, Director Odean clarified that these hypotheticals had never been considered by the Department. She also did not have sole discretion over these preferences: they would [*32a] not be granted without consulting others at the Department, including counsel.

We do not interpret Director Odean's testimony to imply that the Department was using the catchall preference to violate the nondiscrimination requirement. If anything, Director Odean's insistence that the Department follow the nondiscrimination requirement when considering a requested catchall preference suggests the opposite: that the statutory nondiscrimination requirement is a hard limit. This not a situation where one part of the law renders another "a nullity." Op. Br. at 43 (quoting Fulton, 593 U.S. at 537). Rather, this is a common situation where an agency regulation is limited by state law.

[13]As Appellants note, the Department's online form used the phrase "[e]xception [r]equested" to describe these unique preferences. Aplt. App. VII at 245–46. However, such labels do not tell us whether the preferences are a legally significant exception to the challenged part of the law.

[14]The Parish Preschools call this a "categorical exception" for "sexual orientation, gender identity, and race[.]" Op. Br. at 36– 37. They argue that this "categorical exception" is comparable to their requested religious exception because it "undermines the government's interest" similarly. Id. at 37. But Odean's testimony on this point concerned the catchall preference, which (if it overrode state law) would be an individual exemption, not a categorical one. The real question raised by Director Odean's testimony on this point is whether the Department has created a system of individual (not categorical) exemptions to the prohibition on discriminating based on sexual orientation and gender identity. It has not, and thus the law is still generally applicable.

In practice, we can see that the Department has followed state law on nondiscrimination. The record shows that the Department has approved individual preferences under the catchall preference seventeen times. These include admissions preferences such as "teen parents/students in [a] building that will need to be placed together[,]" "fully [v]accinated [c]hildren[,]" and "families who live in the Blue Lake Subdivision." Aplt. App. VII at 273–74. None of these approved preferences concern sexual orientation or gender identity or otherwise implicate the nondiscrimination provision in admissions. Finding a system of individual exemptions would require that we invert a clear reading of the Department's regulations based not on their language or operation, but a series of hypotheticals posed unexpectedly to one witness at trial.

Likewise, as evidence of compliance, we can look at the fate of the congregation preference. The Department added this preference to accommodate faith-based providers. However, once the district court [*33a] determined that this preference was incompatible with the nondiscrimination requirement, it was removed. The Department has tried repeatedly to accommodate faith-based providers, but when it comes to the nondiscrimination provision, it can make no exceptions because the provision is required by statute.

Simply put, the nondiscrimination requirement is a matter of state law, and any regulations must comply with that law. By challenging the provider agreement, the Parish Preschools are challenging state law itself as infringing on their right to free exercise. But because state law gives no room to the Department to make exceptions, it stays generally applicable, and thus does not implicate the Free Exercise Clause. See Fulton, 593 U.S. at 544 (Barrett, J., concurring) ("A longstanding tenet of our free exercise jurisprudence—one that both pre-dates and survives Smith—is that a law burdening religious exercise must satisfy strict scrutiny if it gives government officials discretion to grant individualized exemptions." (emphases added)).

The Parish Preschools also argued that the temporary waiver provision defeats general applicability. Colorado law states that "if necessary to ensure the availability of a mixed delivery system within a community, the [D]epartment may allow a preschool provider that does not meet the quality standards to participate in the preschool program for a limited time while working toward compliance with the quality standards[.]" Colo. Rev. Stat. § 26.5-4-205(1)(b)(II). However, no waiver can be granted for "quality standards relating to health and safety as a condition of participating in the preschool program." Id. The Parish Preschools argue that because the nondiscrimination [*34a] requirement is a quality standard, the Department's ability to temporarily waive these standards constitutes a system of individualized exemptions. Again, we disagree.

The temporary waiver provision cannot be reasonably understood to authorize even a temporary exception to the nondiscrimination requirement. Preschools must be "working toward compliance with the quality standards" to be eligible for a temporary waiver. Id. For some quality standards relating to school operations, a preschool might need to take some time to meet state quality standards. For instance, smaller preschool providers might need time to adequately train their staff on required childcare practices. See Aplt. App. IV at 34. But when it comes to ensuring nondiscrimination based on gender identity and sexual orientation, there is no way a preschool could be out of compliance while simultaneously working toward compliance. A school that is out of compliance could simply choose to change its admissions policies. Following the nondiscrimination requirement is a matter of intent and practice, not simply about effort. As such, the Department has no discretion to waive the nondiscrimination requirement even on a temporary basis.

The Department also argues that the nondiscrimination requirement is a "health and safety" quality standard that is unwaivable. The district court agreed. Based on expert testimony, it found that "discrimination can be harmful, both mentally and physically" to children. Aplt. App. II at 215. The Parish Preschools respond that "health and safety" is not clearly defined in the statute, but that it should only apply to physical conditions at a preschool and not be broadened to [*35a] include admissions decisions. We do not find it necessary to decide this issue by interpreting the meaning of "health and safety." Even without that limitation, the temporary waiver provision cannot be reasonably understood to give the Department discretion to allow a preschool to ignore the nondiscrimination requirement. And the Parish Preschools cannot point to any actual example of the temporary waiver

provision being used this way. Thus, there is no system of individualized exemptions at play that defeats the law's general applicability.

3

Finally, the Parish Preschools argue that there are categorical secular exceptions to the nondiscrimination requirement that "undermine[] the government's asserted interests in a similar way" to the religious exception that they have been denied. Fulton, 593 U.S. at 534. The Parish Preschools' claim that the preference system allows for discrimination based on disability and income level, thus undermining the government's interest in nondiscrimination for secular reasons.[15] Specifically, they point to two preferences: one for "[p]articipating preschool providers reserving placements for a student(s) with an Individualized Education Program (IEP) to ensure conformity with obligations incurred pursuant to the Individuals with Disabilities Education Act . . . or the Exceptional [*36a] Children's Education Act" (the IEP preference) and one preferring "Head Start programs' adhering to any applicable federal law requirements including eligibility requirements" (the Head Start preference). 8 Colo. Code Reg. 1404-1 § 4.109(A)(3), (4). The Parish Preschools argue that allowing preschools to prefer enrolling children placed in IEPs and Head Start programs denies other students an "equal opportunity to enroll and receive preschool services regardless of . . . income level[] or disability[.]"[16] Colo. Rev. Stat. § 205(2)(b).

There are several reasons why this claim fails. First, we are not persuaded that the IEP and Head Start preferences amount to a violation of the nondiscrimination requirement. The Department interprets the nondiscrimination requirement to prevent preschools from denying admissions to children because they are disabled or from a low-income family. It does not, however, protect children without disabilities or children from high-income families. Disability and income level are treated differently from other protected classes in light of the Colorado General Assembly's substantive goals in implementing UPK. The General Assembly specifically declared its intention to try and expand the number of disabled and low-income students attending preschool. Colo. Rev. Stat. § 26.5-4-202(3), (4). Other provisions of the law state that "a child with disabilities must be offered preschool services" in accordance with their IEP and that low-income children may be entitled to additional hours of [*37a] preschool. See Colo. Rev. Stat. § 26.5-4-204(3)(a)(II), (III).

These provisions do not speak in general terms about ignoring disability status or income level. They specifically concern children who have a disability or are low-income. And the IEP and Head Start preferences were developed to help preschools comply with federal laws that specifically protect disabled and low-income children. See 20 U.S.C. § 1400(d)(1)(A) (Individuals with Disabilities Education Act) ("The purposes of this chapter [include] . . . to ensure that all children with disabilities have available to them a free appropriate public education that emphasizes special education and related services designed to meet their unique needs[.]"); 42 U.S.C. § 9831 (Head Start) ("It is the purpose of this subchapter to promote the school readiness of low-income children[.]"). The Supreme Court has long advised that the state must consider disability and income level to make social policy, and so these categories are distinct from other protected classes and do not trigger heightened scrutiny. See Harris v. McRae, 448 U.S. 297, 323 (1980); City of Cleburne, Tex. v. Cleburne Living Ctr., 473 U.S. 432, 440–42 (1985). It is farcical to say that non-disabled children are being discriminated against by being denied special education designed for disabled students,[17] or that high-income students are being [*38a] discriminated against by preschools participating in Head Start. Given the unique nature of these protections, preferences for IEPs and Head Start are not exceptions to the nondiscrimination requirement.

[15]This is an issue of categorical exceptions. A system of individualized exceptions only exists to the extent that officials apply a "subjective test" to grant particular claimants exceptions. Swanson By & Through Swanson v. Guthrie Indep. Sch. Dist. No. I-L, 135 F.3d 694, 701 (10th Cir. 1998). That differs from a categorical system that grants "only recognized exceptions" to "strict categories" of people. Id.

[16]The Parish Preschools also made this same argument with respect to the congregation preference and religious affiliation. We need not consider this argument because the congregation preference no longer exists, and thus cannot undermine the law's general applicability.

[17]When Director Odean was asked whether any schools had exercised a preference to only serve children with specific disabilities, she testified that "[w]e have school district-based providers that have specific programs for specific needs that are aligned to their federal mandate" but that these providers "serve all children, but they might have a specific location that's resourced for a special

Even assuming, arguendo, that the Parish Preschools are correct, and these preferences constitute discrimination based on disability and income level, that does not necessarily remove the general applicability of the nondiscrimination requirement as it relates to sexual orientation and gender identity. These different aspects of the nondiscrimination requirement are only relevant if they are comparable. The state may not treat "comparable secular activity more favorably than religious exercise." Tandon v. Newsom, 593 U.S. 61, 62 (2021); see also Does 1-11 v. Bd. of Regents of Univ. of Colorado, 100 F.4th 1251, 1277 (10th Cir. 2024) ("When a [p]olicy makes a value judgment in favor of secular motivations, but not religious motivations, it is not generally applicable." (citation and internal quotation marks omitted)). "[W]hether two activities are comparable for purposes of the Free Exercise Clause must be judged against the asserted government interest that justifies the regulation at issue." Tandon, 593 U.S. at 62; see also Fulton, 593 U.S. at 534.

The Parish Preschools broadly characterize Colorado's interest as being "equal access" for all students. Op. Br. at 39–40. The Department agrees that "[e]ach of the eight equal-opportunity requirements seeks to remove barriers to access experienced by children with different protected characteristics." Resp. Br. at 57. But not all barriers are the same. The real question is if the Parish Preschools' requested relief "undermines the government's asserted interests in a similar way" [*39a] as the IEP and Head Start preferences. Fulton, 593 U.S. at 534 (emphases added). To answer that question, we must examine the way each part of the nondiscrimination requirement is intended to promote equal access.

Nothing about the IEP preference or the Head Start preference undermines the government's asserted interest in ensuring equal access to preschools. The district court found, based on expert testimony, that there were "specific barriers" to preschool access faced by the children of same sex and transgender couples. Aplt. App. II at 222–23. As the district court stated, "all discrimination is not the same." Id. at 223. That is certainly the case when comparing discrimination based on sexual orientation and gender identity with discrimination based on disability and income level. Allowing some schools to ignore the nondiscrimination requirement with respect to sexual orientation and gender identity would undermine the government's interest in erasing barriers to equal access caused by social stigma in a way that the IEP and Head Start preferences simply do not.[18]

The Parish Preschools' reliance upon Tandon does not change this point. The Supreme Court in Tandon [*40a] found that California's restrictions on at-home religious gatherings during the COVID–19 pandemic were not generally applicable. 593 U.S. at 63. The problem with those restrictions was that California still allowed secular gatherings in hair salons, retail stores, movie theaters, etc. Id. Those activities comparably undermined the government's interest in preventing the spread of disease because they acted as similar vectors to transmit COVID–19. Id. at 64. But the barriers to equal access to preschool education here are completely different and thus not comparable.

The Parish Preschools' reliance on Fellowship of Christian Athletes v. San Jose Unified Sch. Dist. Bd. of Educ. is equally misplaced. 82 F.4th 664 (9th Cir. 2023). That case concerned a school district that revoked the student club status of the Fellowship of Christian Athletes (FCA) for requiring its members to sign a statement against same-sex marriage. Id. at 671. The revocation was justified based on a school district policy prohibiting discrimination "on the basis of race, sex, sexual orientation, religion, and other criteria." Id. at 687. However, the school district allowed other clubs to discriminate based on sex and race, such as a club for Senior Women and South Asian Heritage. Id. at 688. Thus, the Ninth Circuit concluded that the school district's nondiscrimination policy was not generally applicable because the school district allowed secular exceptions that comparably undermined the interests of its nondiscrimination policy. Id. at 689.

classroom." Aplt. App. VII at 134.

[18]Of course, as previously noted, the IEP and Head Start preferences do not actually undermine the state's interest in the nondiscrimination requirement even with respect to disability and income level. The General Assembly was particularly concerned that disabled and low-income children lacked opportunities to attend preschool. Not every preschool can accommodate special needs children, and the Department implemented the IEP preference to try and ensure those children were accommodated. Likewise, low-income families may need to rely on Head Start to provide their children a preschool education.

We are not bound by this case, but even so, it can be distinguished for two reasons. First, the IEP and Head Start preferences do not undermine the interests of the nondiscrimination requirement because [*41a] disability and income level are fundamentally different from other suspect classifications. Second, the school district in FCA was freely granting exemptions at its discretion, while the Department does not have the discretion to make exceptions to the nondiscrimination requirement.

It is also instructive for us to remember that this aspect of our general applicability analysis originally comes from Church of Lukumi Babalu Aye, where the ordinances passed by the City of Hialeah permitted essentially every kind of animal slaughter except for the sacrifices central to the plaintiffs' religion. See Fulton, 593 U.S. at 534 (discussing Church of Lukumi Babalu Aye, 508 U.S. at 542–46). The law was self-defeating regarding its stated goals because of how much comparable secular conduct it allowed. The Supreme Court concluded that the law must not have been generally applicable or applicable to anyone except for the plaintiffs in that case. But nothing in the preference system here allows a backdoor for discrimination based on sexual orientation or gender identity on secular grounds. Even if the Parish Preschools are correct (which we do not decide that they are), and the IEP and Head Start preferences are unlawful under the nondiscrimination requirement, it simply means that those preferences could possibly be challenged separately. It does not mean that all other protected classes should then be denied the benefit of the nondiscrimination requirement.

Ultimately, we do not see any First Amendment concerns raised by the preference system. It was designed, and later implemented, as an algorithmic means of making sure that UPK's website matched families with the right preschools for their children. [*42a] There are almost 2,000 different preschools participating in UPK, and if the system matched children with preschools at random, it would be an ineffective system. Children would be sent to schools too far away. Siblings would be separated unnecessarily. Special needs children would not be matched with teachers who know how to work with them. What matters is not whether individuals are given specific options, but whether the challenged policy is applied equally to everyone and all schools. In other words, could a state official approve the Parish Preschools' requested religious exemption without violating state law?

Here, the answer is no. No preschool participating in UPK is allowed to take sexual orientation or gender identity into account when making admissions decisions, for any reason. Likewise, any preschool can use any of the other preferences as they wish. The same options apply to everyone. Meanwhile, the Department has made every effort to encourage faith-based preschools to participate in UPK short of granting them an unlawful exemption from the nondiscrimination requirement. As a result, forty faith-based preschools are currently part of UPK. The program is a model example of maintaining neutral and generally applicable nondiscrimination laws while nonetheless trying to accommodate the exercise of religious beliefs.

As such, we can find no reason to rule that the Department has violated the Parish Preschools' free exercise rights. This ruling does not mean that we shirk our constitutional duty to protect the Parish Preschools' freedom of worship. Cf. Obergefell v. Hodges, 576 U.S. 644, 679 (2015) ("[I]t must be emphasized that religions, and those who adhere to religious doctrines, may continue to advocate with utmost, sincere [*43a] conviction that, by divine precepts, same-sex marriage should not be condoned."). It simply means that when a school takes money from the state that is meant to ensure universal education, then its doors must be open to all. See Norwood v. Harrison, 413 U.S. 455, 463 (1973) ("That the Constitution may compel toleration of private discrimination in some circumstances does not mean that it requires state support for such discrimination.").

C. The Parish Preschools' other First Amendment claim is that the nondiscrimination requirement violates their freedom of expressive association. The First Amendment implicitly "protects acts of expressive association." 303 Creative LLC v. Elenis, 600 U.S. 570, 586 (2023). This includes the "right to associate with others in pursuit of a wide variety of political, social, economic, educational, religious, and cultural ends." Boy Scouts of Am. v. Dale, 530 U.S. 640, 647 (2000) (quoting Roberts v. U.S. Jaycees, 468 U.S. 609, 622 (1984)). But it also includes a corollary "freedom not to associate" and a recognition that "[f]orcing a group to accept certain members may impair the ability of the group to express those views, and only those views, that it intends to express." Id. at 648.

Even if a group is engaged in expressive association, its expressive association rights are not infringed upon by the mandated inclusion of a person unless "the presence of that person affects in a significant way the group's ability to advocate public or private viewpoints." Id. Whether a person's presence has such an effect is highly contextual.

[*44a] The Parish Preschools primarily rely on a comparison to Dale, where the Supreme Court assessed the Boy Scouts' "desire to not promote homosexual conduct as a legitimate form of behavior" by not allowing openly gay scoutmasters. Id. at 653 (internal quotation marks omitted). The New Jersey Supreme Court held that the state's public accommodations law prohibited the Boy Scouts from revoking the membership of James Dale because he was openly gay and an activist for gay rights. Id. at 644. But the Supreme Court found that "Dale's presence in the Boy Scouts would, at the very least, force the organization to send a message, both to the youth members and the world, that the Boy Scouts accepts homosexual conduct as a legitimate form of behavior." Id. at 653. But even in Dale itself, the Supreme Court limited the breadth of its holding, stating that a group cannot "erect a shield against antidiscrimination laws simply by asserting that mere acceptance of a member from a particular group would impair its message." Id.

Soon after, in Rumsfeld v. Forum for Academic and Institutional Rights, Inc., the Supreme Court took a far more limited view of expressive association. 547 U.S. 47, 68 (2006). The plaintiffs in that case challenged the Solomon Amendment, a federal law requiring that universities receiving federal funds allow military recruiters access to campus equal to that of nonmilitary job recruiters. Id. at 55. The Court ruled that the presence of military recruiters did not amount to expressive association because they were not "part of" universities, they merely "interact[ed] with them." Id. at 69.

[*45a] Unlike in Dale, this case does not involve the presence of persons who might affect the Parish Preschools' ability to advocate for their viewpoint.[19] James Dale was a "gay rights activist" in a leadership position as an assistant scoutmaster who openly advocated positions opposite those of the Boy Scouts. 547 U.S. at 653. This is a case about preschoolers.[20] No one would reasonably mistake the views of preschool students for those of their school. And while we must "give deference to an association's view of what would impair its expression[,]" that does not mean that we must buy that "mere acceptance of a member from a particular group" is enough. Id. Teachers and staff are the ones responsible for disseminating a preschool's [*46a] message and developing the curriculum, not the preschool children they teach.

Applying Dale to this case would expand expressive association far beyond its current limits and undermine a long history of nondiscrimination laws that apply to school admissions. It would also contradict the Supreme Court's holding in Runyon v. McCrary that expressive association does not protect a school's right to discriminate in admissions. 427 U.S. at 175–76. Indeed, the Court explicitly differentiated between the right of private schools to teach what they wish and the government's ability to require that those schools not exclude anyone. Id. We see no reason why this principle should not apply to a law that prohibits discrimination in admissions based on sexual orientation and gender identity.

Further, unlike in Dale, the law merely conditions funds based on the nondiscrimination requirement, rather than forcing Catholic preschools to follow the nondiscrimination requirement under threat of a civil penalty. In general, "the government may not deny a benefit to a person on a basis that infringes his constitutionally protected . . . freedom of speech even if he has no entitlement to that benefit." United States v. Am. Libr. Ass'n, Inc., 539 U.S. 194, 210 (2003) (citation and internal quotation marks

[19]The Parish Preschools also cite to Dale's predecessor, Hurley v. Irish-Am. Gay, Lesbian & Bisexual Grp. of Bos., 515 U.S. 557 (1995). That case is even more distinct. Hurley addressed whether the organizers of Boston's St. Patrick's Day parade had to include an Irish American gay rights group (GLIB) under Massachusetts' public accommodations law. Id. at 560. The court found that the organizers of the parade could exclude groups based on expressive association in light of the "inherent expressiveness of marching to make a point[.]" Id. at 568. To state the obvious, the inherently expressive role of a marcher in a parade is very different from the role of a preschool student. And unlike here, "the parade organizers did not wish to exclude the GLIB members because of their sexual orientations, but because they wanted to march behind a GLIB banner." Boy Scouts of Am. v. Dale, 530 U.S. 640, 653 (2000) (discussing Hurley).

[20]Because this is a case about preschool age children, the practical effect of the Parish Preschools' requested exemption from the nondiscrimination requirement would be to allow them to consider the sexual orientation and gender identity of a student's parents. That is yet another degree of separation from the potential effect that their admission might have on the school's expressive association.

omitted). But the Supreme Court has distinguished the kind of compelled association in Dale from the mere withholding of a subsidy. See Christian Legal Soc. Chapter of the Univ. of California, Hastings Coll. of the L. v. Martinez, 561 U.S. 661, 682 (2010); see also Rumsfeld, 547 U.S. at 59. Whether a condition on funds impermissibly infringes on the First Amendment is highly contextual, but [*47a] under these facts we conclude that no violation of the First Amendment has occurred.

D. The Parish Preschools have not met their burden to show that their First Amendment rights have been violated and that strict scrutiny applies, and so we apply a rational basis standard of review. Under rational basis review, we will uphold government action "so long as it is rationally related to a legitimate government purpose[.]" Christian Heritage Acad. v. Oklahoma Secondary Sch. Activities Ass'n, 483 F.3d 1025, 1032 (10th Cir. 2007). The Parish Preschools do not argue that the application of the nondiscrimination requirement fails to meet this standard, nor is there any basis for them to do so. The government has articulated not only a legitimate purpose, but an extraordinarily weighty one in protecting equal access to preschool education for Colorado children. And the application of the nondiscrimination requirement to all preschool providers, as mandated by state law, is rationally related to this purpose.

↑ **V.** Colorado's UPK program went to great effort to be welcoming and inclusive of faith-based preschools' participation. The nondiscrimination requirement exists in harmony with the First Amendment and does not violate the Parish Preschools' First Amendment rights. The district court correctly denied the Parish Preschools an injunction. The judgment of the district court is AFFIRMED.

[*48a] FILED United States Court of Appeals

Tenth Circuit September 30, 2025 Christopher M. Wolpert

Clerk of Court

UNITED STATES COURT OF APPEALS FOR THE TENTH CIRCUIT _____

No. 24-1267 (D.C. No. 1:23-CV-02079-JLK)

(D. Colo.) _____ ST. MARY CATHOLIC PARISH IN LITTLETON; ST. BERNADETTE CATHOLIC PARISH IN LAKEWOOD; LISA SHELEY; DANIEL SHELEY; ARCHDIOCESE OF DENVER,

Plaintiffs - Appellants, v.

LISA ROY, in her official capacity as Executive Director of the Colorado Department of Early Childhood; DAWN ODEAN, in her official capacity as Director of Colorado's Universal Preschool Program,

Defendants - Appellees, ———————— THE JEWISH COALITION FOR RELIGIOUS LIBERTY; THE ROCKY MOUNTAIN DISTRICT LUTHERAN CHURCH MISSOURI SYNOD; THE COLORADO ASSOCIATION OF PRIVATE SCHOOLS; EDCHOICE, INC.; THE CONSCIENCE

Certiorari Stage

St. Mary Catholic Parish, Littleton, Colorado Petition for a Writ of Certiorari · Nov. 13, 2025

Petition for a writ of certiorari filed. (Response due December 17, 2025)

St. Mary Catholic Parish · Petition for a Writ of Certiorari · Nov. 13, 2025 · petitioner — coupling row A
Cites 30 cases (61 mentions), 20 citations not resolved; 7 statutes and provisions.
Shares with Br. in Opp. 40% · Cert. Reply 26% · Pet'rs Br. 27% · Resp. Br. 25% · Reply Br. 21%; closest: Br. in Opp.
Its own ground: 0 cases no other filing cites; 4 shared with its own side only, 26 with the other side.
Statutes: Colo. Rev. Stat. § 26.5-4-201 ×2; U.S. Const. amend. I; 28 U.S.C. § 1254; Cal. Civ. Code § 51; Cal. Civ. Code § 51.2; Colo. Rev. Stat. § 26.5-4-205; 8 Colo. Code Regs. 1404-1.

Questions Presented. [*i] Colorado's so-called universal preschool program pays for families to send their children to the preschool of their choice, public or private. To participate, preschools must ensure all families have an "equal opportunity" to enroll regardless of, inter alia, race, religious affiliation, sexual orientation, gender identity, income level, or disability. Colorado nonetheless permits numerous exemptions from this requirement, both categorical and discretionary, allowing preschools to admit only "children of color," "gender-nonconforming children," "the LGBTQ community," low-income families, and children with disabilities. But Colorado excludes Catholic preschools because they admit only families who support Catholic beliefs, including on sex and gender.

The Tenth Circuit upheld Colorado's decision to exclude Catholic preschools. Applying Employment Division v. Smith, it held that Colorado's secular exemptions and discretion did not undermine general applicability. In so doing, the court sided with the minority position in an entrenched and acknowledged 7-4 split over what kinds of exemptions and discretion undermine general applicability. The court also eschewed Carson v. Makin, concluding that its rule was inapplicable because Colorado's exclusion was not "on the explicit basis" of religion.

The questions presented are:

1. Whether proving a lack of general applicability under Employment Division v. Smith requires showing unfettered discretion or categorical exemptions for identical secular conduct. [*1]

Introduction. Free Exercise Clause jurisprudence is of two minds. On the one hand, there is the rule of Employment Division v. Smith, which transformed free exercise doctrine by shifting the judicial focus from religious exercise and the real-world burdens government imposes on it to the abstract qualities of the law imposing the burden. Courts have spent the ensuing decades divining what it means for a law to be "neutral" and "generally applicable," generating an ongoing series of splits for this Court to resolve.

On the other hand, there are separate lines of free exercise precedent that stand entirely outside the rule of Smith. This Court's church autonomy decisions in cases like Hosanna-Tabor have never been subject to Smith. And just last Term, this Court explained that, under a line of precedent rooted in Wisconsin v. Yoder, courts "need not ask whether the law at issue is neutral or generally applicable." Mahmoud v. Taylor, 606 U.S. 522, 564 (2025).

The decision below exacerbates existing conflicts and confusion in the lower courts over both aspects of current free exercise jurisprudence.

First, the decision below exacerbates a 7-4 split over how to apply Smith's neutrality-and-general-applicability rule. Three Justices have already deemed this conflict "widespread, entrenched, and worth addressing," Dr. A v. Hochul, 142 S. Ct. 2569, 2570 (2022) (Thomas, J., dissenting from denial of certiorari, joined by Alito and Gorsuch, JJ.), and it has only grown more so since. On one side, four circuits and three state high courts agree that Fulton v. City of Philadelphia requires courts to assess all avenues of [*2] discretion and categories of exemptions from a law to see if any undermine the government's asserted interest "in a similar way."

593 U.S. 522, 534 (2021). On the other side, two circuits (including the Tenth) and two state high courts drastically narrow the general-applicability analysis, looking only for "unfettered" discretion and considering only secular exemptions identical to the requested religious accommodation.

Second, the decision below exacerbates confusion over when to apply Smith's neutrality-and-general-applicability rule. In Carson v. Makin, this Court articulated a clear rule: If religious groups are excluded from a government funding program "because of their religious exercise," strict scrutiny applies. 596 U.S. 767, 781 (2022). But the Tenth Circuit rejected this reading, concluding that Carson prohibits only exclusions that are "explicit[ly]" "targeted" at "religious use" or status. The Tenth Circuit thus joins the Ninth and Fourth Circuits in recasting Carson in Smith's mold.

Both the conflict over general applicability under Smith and the confusion over Carson's relationship to Smith can only be resolved by this Court. And each is sufficient grounds for this Court to grant review.

But on a deeper level, the Court will never be able to put Free Exercise Clause jurisprudence on a firm foundation until it reckons with Smith itself. Smith's rule was supposed to mark a return to "common sense" and "practicality," while avoiding "anarchy" and forms of adjudication "horrible to contemplate." 494 U.S. 872, 885 & n.2, 888, 889 n.5 (1990). As a majority of this Court's Justices have already acknowledged, Smith has not lived up to its claims in practice. See Fulton, 593 U.S. at 543 (Barrett, J., concurring, joined by Kavanaugh, J., concurring) ("difficult to see why [*3] the Free Exercise Clause—lone among the First Amendment freedoms—offers nothing more than protection from discrimination"); id. at 545 (Alito, J., concurring, joined by Thomas and Gorsuch, JJ.) ("fundamentally wrong"). Smith has instead been the kind of dysfunctional and difficult-to-administer precedent that generates church-state conflicts rather than resolving them.

This case is paradigmatic of the problems Smith poses for religious people. Colorado created a universal preschool program that funds families to send children to the public or private preschool of their choice—but not the Archdiocese of Denver's Catholic preschools. Why the exclusion? Because, Colorado says, these preschools' religious practice of admitting only families who support Catholic teachings, including on sex and gender, is "discrimination." Yet Colorado has permitted many exemptions, both categorical and discretionary, from the "equal opportunity" rule it has invoked against Catholic preschools. And far from facilitating "universal" preschool, Colorado's exclusion of Catholic preschools reduces access, pushing parents and children toward preschools that share the government's views on these issues and penalizing the religious schools and families who disagree. All in a program the Tenth Circuit calls a "model" under Smith.

This Court promised in Obergefell that religious groups would be protected when they dissent from secular orthodoxies about marriage and sexuality. The Free Exercise Clause simply cannot do that important work—which this Court has described as "at the heart of our pluralistic society"—if it can be so easily evaded. [*4]

↑ **Opinions Below.** The Tenth Circuit's opinion is reported at 154 F.4th 752 and reproduced at App.1a. The district court's opinion is reported at 736 F.Supp.3d 956 and reproduced at App.50a.

↑ **Jurisdiction.** The Tenth Circuit issued its opinion and judgment on September 30, 2025. App.1a, 48a. This Court has jurisdiction under 28 U.S.C. 1254(1).

↑ **Constitutional, Statutory, and Regulatory Provisions Involved.** The First Amendment to the United States Constitution provides in relevant part: "Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof[.]" U.S. Const. Amend. I.

Colo. Rev. Stat. §§ 26.5-4-201 et seq. is reproduced in relevant part at App.187a-208a.

8 Code of Colorado Regulations § 1404-1 is reproduced in relevant part at App.209a-215a.

Statement of the Case.

A. Colorado's universal preschool program

In 2020, Colorado voters passed a ballot proposition to provide state funding for its universal preschool program (UPK). The General Assembly then codified this program into law, allowing preschools to begin receiving funding for the 2023-24 school year. Colo. Rev. Stat. §§ 26.5-4-201 et seq. (UPK statute). UPK is administered by the Department of Early Childhood and covers the cost of fifteen hours per week of "preschool services" for all Colorado children "regardless of their [*5] economic circumstances." App.188a. The program's primary purpose is "[t]o provide children in Colorado access to voluntary, high-quality, universal preschool services free of charge in the school year before a child enrolls in kindergarten." App.195a.

Colorado's universal preschool program is a "[m]ixed delivery system," meaning both public and private preschools participate. App.6a. The UPK statute requires the Department to adopt via regulation "quality standards" for participating preschools. Ibid. These standards include an equal opportunity mandate (the Mandate) that "each preschool provider provide eligible children an equal opportunity to enroll and receive preschool services regardless of race, ethnicity, religious affiliation, sexual orientation, gender identity, lack of housing, income level, or disability[.]" App.204a. Identical language is included in the Department's regulations and UPK preschool contracts. App.6a, 62a, 212a. And Respondents have conceded that the government's interest in enforcing each of the Mandate's protected characteristics is "the same." See Ex. 21 to Pl's. Mot. Summary J. at 15:10-16:16, Darren Patterson Christian Acad. v. Roy, No. 23-1557 (D. Colo. June 21, 2024), ECF.78-21.

To enroll in a preschool that participates in Colorado's universal preschool program, families first sign up via the Department's online portal. App.7a. They then rank up to five UPK preschools before being "matched" with a preschool by the Department's algorithm. Ibid. The Department requires UPK preschools to admit every family matched with them until their program is full, unless the preschool receives a Department-approved exemption. Ibid. The Department [*6] grants exemptions "to help match preschools with specific groups of students that they are designed to serve." App.7a, 41a ("making sure that UPK's website matched families with the right preschools for their children").

Despite Colorado's efforts to recruit a broad range of preschools, its universal preschool program has suffered from a shortage of licensed preschools in particular geographic areas, meaning that not every interested family is able to find an available seat.[1]

B. The Archdiocese of Denver and its Catholic preschools

Petitioner the Archdiocese of Denver currently oversees thirty-four Catholic preschools. The central mission of these parish preschools is to partner with families "to bring [their] child to encounter Jesus Christ and the truths of our Catholic faith through their intellectual, spiritual, moral, and human formation." App.235a. To help advance this mission, the Archdiocese requires all administrators, teachers, and staff to sign a statement of "Community Beliefs and Commitments," by which they affirm that they will support the teachings of the Catholic Church and refrain from conduct that would "discredit, disgrace, or bring scandal to" the school. App.221a, 228a, 234a. Parents are required to sign a similar statement at the time of enrollment, which explains that "all Catholic school families must understand and display a positive and supportive attitude toward the Catholic Church, [*7] her teachings, her work, and the mission of the Catholic school." App.240a.

This alignment between what the school teaches and what parents want for their children is "vital" because Archdiocesan "schools do not function in [their] mission to help bring children to Jesus Christ if not for bringing them to Jesus Christ through your family." App.235a. If a family actively opposes the teachings of the Catholic Church and lives as "a counter-witness to Catholic doctrine or morals," their participation in the school community would directly impair the ability of the school to form its students in the faith. App.240a, 272a-275a, 316a-317a.

[1] E.g., Lindsey Jensen, Not enough UPK childcare providers for families applying again this year, KOAA News5, Aug. 1, 2024, https://perma.cc/T8YJ-UL28.

The Archdiocese provides parish preschools—including those of Petitioners St. Mary and St. Bernadette—with binding guidance on how to implement these beliefs in several ways. App.308a-320a; see App.242a-279a. The Archdiocese instructs its school leaders to be "abundantly clear" at the time of a family's enrollment about what the school teaches on matters of faith, and specifically on sexual orientation and gender identity. App.314a-318a. "If the family doesn't see eye to eye on [the Catholic Church's teachings regarding biological sex and marriage], we ask our school leaders to please not admit the child out of abundant respect for the family." App.318a.[2]

[*8] If a child is enrolled and only later "begins asserting an identity that's at odds with his or her biological sex," school leaders are directed to "share with the parents the church's teaching" and to "explain that we would not be able to make accommodations that we might see in secular institutions," like using "pronouns," "bathroom[s]" and "uniform[s]" that are "inconsistent with the child's biological sex." App.318a-319a; see also App.319a ("every preschool is expected to follow this guidance").

Petitioners Daniel and Lisa Sheley are parishioners at St. Mary Catholic Parish in Littleton. The Sheleys' Catholic faith directs them to provide a Catholic education for their children. App.84a. They have five children currently attending Petitioner St. Mary's school, two of whom are in preschool now. And they have another child who will begin preschool in 2028.

↑ **C. Colorado permits exemptions from the equal opportunity Mandate**

The equal opportunity Mandate requires all UPK preschools to give families an "equal opportunity" to enroll and receive services regardless of any protected characteristic. App.6a. Both the Department and the Tenth Circuit agree that every UPK preschool must "follow the letter of the [Mandate] as enshrined in state law." App.26a, 32a (Mandate "is a hard limit"). Yet it turns out the Department has granted numerous exemptions—both written in regulations and permitted in practice.

Income level and disability exemptions. The Department has created by regulation two categorical exemptions from the Mandate. First, it permits UPK preschools to consider income level by allowing Head [*9] Start preschools to prioritize low-income families. App.347a ("families that are above a certain income threshold" can be excluded); App.8a, 35a-37a. Preschools can also consider a child's disability to reserve seats for children "with an Individualized Education Program (IEP)." App.8a, 35a-37a, 347a (agreeing that "some UPK providers only serve children with certain disabilities"). Both Department-created regulatory exemptions violate the plain terms of the Mandate by denying Colorado families an "equal opportunity" to enroll in UPK preschools based on a protected characteristic.[3]

"Catchall" exemption. The Department—during trial—announced new proposed regulations creating a "catchall" exemption that allows UPK preschools to "grant preference to an eligible child" based on "the child and/or family being a part of a specific community." App.9a, 350a-352a. This preference was created to be "inclusive of different types of communities." App.340a, 344a.

Respondent Dawn Odean, the director of Colorado's universal preschool program, testified at trial that this catchall exemption would allow UPK preschools to admit only "gender-nonconforming children" and to prioritize serving "children of color from [*10] historically underserved areas," and "the LGBTQ community." App.353a-355a. Calling the Mandate an "antidiscrimination provision," she claimed that these exemptions are consistent with the Mandate. Specifically, she said she interprets the Mandate to allow UPK preschools to "prioritize[ ] families who have historically been discriminated against." App.337a, 353a-354a.And she repeatedly articulated this view: "it's the law to ensure that these children and their families who historically have been discriminated against aren't[.]" App.342a; see App.322a, 335a, 363a (similar). Odean was "unaware" that Catholics have been historically discriminated against. App.363a.

[2]Making families aware of these religious beliefs and expectations at the time of enrollment also helps avoid unnecessary conflicts. Although many parish preschools have been licensed for decades, the Department agrees that not one "has any history of a complaint from an LGBTQ family or other person alleging LGBTQ-based discrimination." App.306a.

[3]The UPK regulations initially included a "congregation" exemption, permitting "faith-based" providers to limit enrollment to their "congregation." App.66a-70a. The Department took the position in litigation that this would not allow Petitioners to consider sexual orientation or gender identity when enrolling families. App.70a. After the district court held this exemption violated the Mandate, Colorado revised its regulations during the appeal and removed it. App.16a-17a, 16a n.8.

Statutory exemption. The UPK statute also includes an express grant of discretion: "[T]he department may allow a preschool provider that does not meet the quality standards to participate in the preschool program for a limited time while working toward compliance." Colo. Rev. Stat. § 26.5-4- 205(1)(b)(II).

↑ **D. The Department denies Petitioners' request for a religious accommodation**

On February 17, 2023, the Archdiocese requested an accommodation from the Mandate that would allow its preschools to admit only families who agree with the Catholic Church's teachings, including on gender and sexuality. The request explained that enforcing the Mandate against faith-based preschools' sincere religious exercise "will severely restrict the ability of faith-based providers to participate in the program without compromising their sincerely held religious beliefs." App.283a.

[*11] The Department responded that no religious accommodation would be provided, and that "no provider may discriminate against children or families in violation of state statute." App.289a-290a. This bars Petitioners from participating in UPK unless they are willing to compromise their religious beliefs. App.367a ("the [Mandate] is the obstacle to their participating," "[i]f they're choosing to discriminate"); Resp. C.A. Br. 13 (characterizing Plaintiffs' adherence to their religious practices as seeking "permission to discriminate"); App.280a-282a.

↑ **E. Procedural background**

Petitioners filed suit on August 18, 2023, and requested a preliminary injunction enabling them to participate in UPK for the 2023-24 school year. Instead of ruling on the preliminary injunction motion, the court set a discovery and briefing schedule before holding a three-day bench trial with ten witnesses in January 2024. Citing Employment Division v. Smith, the court declined to apply strict scrutiny to what it called the "sexual-orientation and gender-identity aspects of the equal-opportunity requirement," instead holding that they were "neutral and generally applicable." App.100a-135a. The court entered final judgment in June 2024. App.172a.

The Tenth Circuit affirmed, again relying on Smith. It first held that Carson, Espinoza, and Trinity Lutheran were "distinguish[able]" because other religious schools were "welcome participants in Colorado's UPK program." App.21a. Therefore, according to the Tenth Circuit, the Mandate did not exclude religious schools "on the explicit basis that they were religious and not secular." Ibid. After concluding Carson did not [*12] apply, the court found that Petitioners' religious exercise was only "infringed incidentally," and applied Smith. App.22a. Rejecting Petitioners' general applicability arguments, the court held that the Mandate did not permit any "comparable" categorical exemptions, App.40a, and "the Department has no discretion to waive the nondiscrimination requirement." App.34a. Indeed, the Tenth Circuit deemed Colorado's program "a model example of maintaining neutral and generally applicable nondiscrimination laws while nonetheless trying to accommodate the exercise of religious beliefs." App.42a.[4]

During this litigation, two parish preschools—Wellspring Catholic Academy (the parish school of Petitioner St. Bernadette) and Guardian Angels Catholic School—closed their doors due to shortfalls in funding and decreased enrollment. Across the Archdiocese, parish preschool enrollment has declined almost twenty percent since UPK was enacted. And families committed to Catholic education, like the Sheleys, are missing out on thousands of dollars of state funding solely because they chose a Catholic preschool for their children. [*13]

↑ **Reasons for Granting the Petition.** The decision below misreads this Court's decisions in Fulton and Carson. In so doing, the Tenth Circuit exacerbated a 7-4 split among the lower courts, undermined the rule this Court articulated in Carson, and provided a clear example of why Smith should be overruled.

First, there is a deep, acknowledged split over how to apply Fulton to determine which secular exemptions undermine general applicability in the free exercise context. Seven courts consider all secular exemptions

[4]The district court and Tenth Circuit agreed that Petitioners Daniel Sheley, Lisa Sheley, St. Mary Catholic Parish in Littleton, and St. Bernadette Catholic Parish in Lakewood have standing. App.16a-18a. On appeal, Respondents do not dispute these Petitioners' standing. See Resp. C.A. Br. 75-79. The district court, however, held that the Archdiocese of Denver did not have associational standing to represent its preschools. App.14a.The Tenth Circuit found that resolving this question was unnecessary as the relief sought by all Petitioners was essentially the same, and it therefore declined to address the issue. App.17a-18a.

and government discretion in determining whether any would undermine the government's asserted interest. Four courts, meanwhile, use a cramped set of potential secular comparators, looking only for identical secular exemptions and unfettered discretion.

Second, the Tenth Circuit held that Carson governs only when the government excludes religious groups "on the explicit basis" that their conduct is religious. App.21a-22a. This contradicts Carson's clear rule: Excluding religious schools from a public benefit "because of their religious exercise" triggers strict scrutiny. 596 U.S. 767, 778-781 (2022) (citing Sherbert v. Verner, 374 U.S. 398 (1963)); see also Mahmoud v. Taylor, 606 U.S. 522, 561 (2025) (access to public benefits cannot be conditioned "on parents' willingness to accept a burden on their religious exercise"). By limiting Carson to explicitly religious exclusions, the Tenth Circuit joins a growing number of courts that have read Carson solely to prohibit religious targeting. But Carson should not be so easy to circumvent.

[*14] In both instances, the source of the mischief is the unsound rule of Smith, which will only continue to resist predictable application and distort other free-exercise doctrines until this Court addresses it. This case therefore also presents an opportunity to reconsider Smith and put the Free Exercise Clause back onto the right path.

↑

I. The decision below exacerbates a 7-4 split over the test for determining whether a law is generally applicable under the Free Exercise Clause

Fulton confirmed that, under Smith, a law "lacks general applicability if it prohibits religious conduct while permitting secular conduct that undermines the government's asserted interests in a similar way," or if it provides "a mechanism for individualized exemptions." 593 U.S. 522, 534 (2021); see also Kennedy v. Bremerton Sch. Dist., 597 U.S. 507, 526 (2022); Tandon v. Newsom, 593 U.S. 61, 62 (2021). A 7-4 split has developed among the lower courts over the interpretation of Smith's general applicability rule.

The majority rule evaluates all discretion and categorical exemptions permitted by a regulatory scheme to determine if they pose a similar threat to the government's asserted interest as the prohibited religious conduct. The minority rule, which the court here embraced, holds that only unfettered discretion or categorical exemptions for identical secular conduct can undermine general applicability.

Three Justices of this Court have explicitly acknowledged this split, correctly identifying it as "widespread," "entrenched," and worthy of this Court's review. Dr. A v. Hochul, 142 S. Ct. 2569, 2570 (2022) [*15] (Thomas, J., dissenting from denial of certiorari, joined by Alito and Gorsuch, JJ.) (split over whether law is "generally applicable" if it "exempts secular conduct that similarly frustrates the specific interest that the [law] serves"). The split has only grown since then, with the addition of six more decisions—including an en banc Ninth Circuit decision, a Second Circuit decision, and the decision below, which recognized the split by expressly rejecting the leading case on the

A. Seven courts evaluate all discretion and categorical exemptions to determine whether they undermine the government's asserted interests in a similar way

similar way.

The leading case for the majority rule is the Ninth Circuit's decision in Fellowship of Christian Athletes v. San Jose Unified School District, 82 F.4th 664 (9th Cir. 2023) (en banc) (FCA). There, a school district claimed that a religious student group's requirement that its leaders share its religious beliefs about marriage constituted religious and sexual orientation discrimination in violation of the district's nondiscrimination policy. The district, however, had discretion to grant exemptions from the policy when doing so aligned with its "Board-adopted equity policy." Id. at 687. And the district permitted exemptions for secular student groups that discriminated "on the basis of sex and ethnicity." Id. at 688.

The en banc Ninth Circuit found this scheme violated "bedrock requirements of the Free Exercise Clause." FCA, 82 F.4th at 686. On discretion, the court rejected the argument that discretion mattered only if it was "unfettered." Id. at 687. Rather, under Fulton, [*16] the "mere existence of a discretionary mechanism * * * can be sufficient to render a policy not generally applicable" because it allows the government to favor secular conduct over religious conduct. Id. at 687-688 (calling a focus on "unfettered" discretion "overly narrow"); accord Bates v. Pakseresht, 146 F.4th 772, 797 (9th Cir.

2025) (rejecting argument that discretion must be "completely unfettered").

Turning to the secular comparators, the Ninth Circuit held that district-permitted exemptions from other aspects of the non-discrimination provision—i.e., allowing clubs to distinguish among students based on their sex and ethnicity—were comparable to the religious accommodation FCA sought regarding a student leader's sexual orientation and religion. This was because "[w]hether [the secular exemptions] are based on gender, race, or faith, each * * * pose[s] an identical risk to the District's stated interest in ensuring equal access for all student to all programs." FCA, 82 F.4th at 689. The Ninth Circuit thus treated different secular exemptions from the non-discrimination provision as "comparable" because those exemptions for other protected characteristics still undermined the district's asserted interest in ensuring equal treatment. Ibid.; contra App.38a-39a (holding that only exemptions for the same form of "discrimination" are comparable).[5]

The Third, Sixth, and Eleventh Circuits, and the state supreme courts of Louisiana, Iowa, and Hawaii, [*17] have likewise refused to cabin general applicability as the court did below.

In Blackhawk v. Pennsylvania, the Third Circuit agreed that the general applicability of a bear-possession permitting requirement was undermined both through "discretionary exemptions" and by "categorical exemptions." 381 F.3d 202, 209-211 (3d Cir. 2004) (Alito, J.). The court rejected the defendant's argument that the government's discretion was permissible because the discretion was objectively tailored to its interests—i.e., not unfettered. Id. at 209-210. The court separately explained that the "state's interest in raising money is undermined by any exemption" that would similarly undercut that asserted interest. Id. at 211 (emphasis added). It did not cabin relevant exemptions solely to identical conduct, instead treating exemptions for "circuses and zoos" as comparable to the requested religious exemption. Ibid. See also Fraternal Order of Police v. City of Newark, 170 F.3d 359, 365 (3d Cir. 1999) (Alito, J.) (treating medical and religious beard accommodations as comparable); Smith v. City of Atlantic City, 138 F.4th 759, 772 (3d Cir. 2025) (rejecting focus on one "provision" "in isolation" and instead considering all exemptions that could similarly undermine the government's interest).

In Monclova Christian Academy v. Toledo-Lucas County Health Department, the Sixth Circuit compared the pandemic-era closing of religious schools not just to also-closed secular schools, but also to still-open "gyms, tanning salons, office buildings, and the Hollywood Casino." 984 F.3d 477, 482 (6th Cir. 2020). The court rejected a "myopic focus solely on" the portion of the restrictions that applied to schools, as that would "allow for easy evasion of the Free Exercise guarantee [*18] of equal treatment." Id. at 481. It further reasoned that this Court "routinely identifies as comparable" secular activities that are "very different" from the prohibited religious conduct at issue, but which pose a similar threat to the government's interests. Ibid.

In Midrash Sephardi, Inc. v. Town of Surfside, the Eleventh Circuit similarly held that private clubs were valid comparators to a synagogue seeking to build in a downtown commercial district. 366 F.3d 1214, 1234-1235 (11th Cir. 2004). The court rejected the argument that they were not comparable because private club patrons were more likely to spend time and money at the other retail establishments in the downtown commercial zone. Ibid.

The supreme courts of Louisiana, Iowa, and Hawaii likewise evaluate all secular conduct posing similar risks to the government's interests. See Louisiana v. Spell, 339 So.3d 1125, 1135-1137 (La. 2022) (comparing exemptions allowing "Walmart, Target and Home Depot" to remain open during COVID to denied exemptions for churches); Mitchell County v. Zimmerman, 810 N.W.2d 1, 15-16 (Iowa 2012) (road ordinance not generally applicable when it banned traditional Amish carriage wheels because of road damage but allowed school buses to use ice grips and snow studs year-round); Hawaii v. Armitage, 319 P.3d 1044, 1067 (Haw. 2014) (law banning access to protected island [*19] not generally applicable because it incorporated discretionary permit process).[6]

[5] Several district courts have also applied this approach to general applicability. See Fellowship of Christian Athletes v. District of Columbia, 743 F. Supp. 3d 73, 90-92 (D.D.C. 2024) (collecting cases).

[6] The First Circuit has left open the question whether all secular exemptions must be considered in determining general applicability. See Brox v. Woods Hole, Martha's Vineyard & Nantucket Steamship Auth., 83 F.4th 87, 100 (1st Cir. 2023) (leaving open question whether existing medical exemption had to be compared with requested religious exemption).

B. Four courts consider only unfettered discretion and categorical exemptions for identical secular conduct

Four courts—the Tenth Circuit, the Second Circuit, Connecticut, and California—take a myopic view of what types of discretion or exempted secular conduct can undermine general applicability.

In Emilee Carpenter, LLC v. James, the Second Circuit held that New York's public accommodations law was generally applicable despite express exemptions allowed by the same statute for discrimination based on sex and gender identity, claiming that "unique policy and legal considerations" distinguish those exemptions from a religious exemption from the same law based on sexual orientation. 107 F.4th 92, 111 (2d Cir. 2024) (government's "interests in prohibiting discrimination on different protected grounds [listed in public accommodations law] are not identical"); see also Miller v. McDonald, 130 F.4th 258, 267 (2d Cir. 2025) (per curiam), petition for cert. pending, No. 24-681 (filed Aug. 4, 2025) (concluding that religious and medical exemptions are not comparable). The Second Circuit has also held that Fulton bars only discretionary exemptions that are "unfettered" and not "objectively defined." We The Patriots USA, Inc. v. [*20] Hochul, 17 F.4th 266, 288-289 (2d Cir. 2021) (quoting 303 Creative LLC v. Elenis, 6 F.4th 1160, 1187 (10th Cir. 2021), rev'd on other grounds, 600 U.S. 570 (2023), and Stormans, Inc. v. Wiesman, 794 F.3d 1064, 1081- 1082 (9th Cir. 2015)).

Connecticut has followed the Second Circuit's lead. In Spillane v. Lamont, the Connecticut Supreme Court held that a law's medical exemptions, which vested substantial discretion in medical providers, did not defeat general applicability because its application by government officials was not "entirely discretionary" and was "framed in objective terms." 323 A.3d 1007, 1024-1025 (Conn. 2024) (citing We The Patriots).

California follows the same path. North Coast Women's Care Medical Group v. Superior Court held in a single sentence that California's public accommodations law, the Unruh Act, is neutral and generally applicable under Smith because its text calls for equal services for all. 189 P.3d 959, 965 (Cal. 2008). North Coast ignored the Unruh Act's express, categorical exemption for age discrimination in housing, and its judicially created exemption for any discrimination that is "reasonable" and consistent with "public policy." Cal. Civ. Code §§ 51.2-51.4; Koire v. Metro Car Wash, 707 P.2d 195, 197-198 (Cal. 1985). It also ignored that the Act does not "confer any right or privilege * * * limited by law"—a carveout that has been used to exempt discriminatory practices at both insurance companies and car rental agencies. Cal. Civ. Code § 51(c). California courts have continued to rely on North Coast despite this Court's intervening decisions. See Civil Rts. Dep't v. Cathy's Creations, Inc., 109 Cal. App. 5th 204, 265 (Cal. Ct. App. 2025), as modified on [*21] denial of reh'g (Mar. 5, 2025), petition for cert. pending, No. 25-233 (filed Aug. 26, 2025) ("Fulton does not fatally undercut North Coast").

The decision below reaffirmed the Tenth Circuit's position in this split. After first trying to "interpret" away the secular exemptions, the court concluded that exemptions from the Mandate based on disability and income level weren't "comparable" to exemptions based on sexual orientation and gender identity because the conduct they prohibit isn't the same. App.39a-40a (each protected characteristic addresses different "barriers" to equal access). See also 303 Creative, 6 F.4th at 1188 (refusing to consider the law's discretionary exemption because it was not "entirely discretionary"), rev'd on other grounds, 600 U.S. 570 (2023).

In the decision below, the Tenth Circuit also expressly broke with the Ninth Circuit's decision in Fellowship of Christian Athletes. The court first noted that "[w]e are not bound by th[at] case," then sought to distinguish the decision by claiming that "disability and income level are fundamentally different from other suspect classifications" protected by Colorado's Mandate. App.40a-41a. But by concluding that these varied exemptions from the same Mandate aren't comparable for free exercise purposes, the Tenth Circuit simply reinforced the split. Contra FCA, 82 F.4th at 689 (evaluating all exemptions from district's non-discrimination requirement to determine what is "comparable" under Tandon).

C. The decision below is wrong

The decision below conflicts with Fulton and Tandon v. Newsom both in its comparability analysis and [*22] in its failure to recognize Respondents' discretion to create exemptions. On comparability, the Tenth Circuit said that that disability and income level exemptions from the Mandate aren't "comparable" to exemptions based on sexual orientation and gender identity, because they address different "barriers to equal access." App.40a (barriers are "completely different and thus not comparable").

That flips general applicability analysis on its head. Instead of assessing whether multiple exemptions to the same law undermine the government's interest in similar ways, the Tenth Circuit did exactly what this Court has said not to do: It focused on the different reasons Colorado exempts others from complying with the Mandate. See Tandon, 593 U.S. at 62. Even assuming children with disabilities face "different barriers" to enrollment than, e.g., children who identify as transgender, denying equal access in either case "undermines the government's asserted interests [in enforcing the Mandate] in a similar way." Fulton, 593 U.S. at 534. Here, all the protected characteristics are treated identically in the same statutory sentence, and Respondents conceded their interest in all of them is the same. App.6a; see p. 5, supra. Permitting a government to "divvy up its exemption regimes provisionby-provision"—or here, word-by-word—"would permit governments to subvert free exercise through clever drafting." Atlantic City, 138 F.4th at 772.

On discretion, the Tenth Circuit simply ignored the ample discretion Respondents have to accommodate preschools that require exemptions from the Mandate's plain text. That conflicts with Fulton's holding that a law burdening religious exercise is not generally [*23] applicable whenever "it invites the government to consider the particular reasons for a person's conduct" through some discretionary mechanism—"regardless whether any exceptions have been given." 593 U.S. at 523, 537.

The trial record shows the Department has many forms of discretion. Respondent Odean testified that the catchall exemption could be used to allow preschools to admit only "gender-nonconforming children" and to prioritize serving "children of color from historically underserved areas" and "the LGBTQ community." See pp. 9-10, supra. Similarly, the UPK statute permits exemptions from quality standards to "allow a preschool provider that does not meet the quality standards to participate in the preschool program for a limited time while working toward compliance with the quality standards." App.33a.

Respondents' actions also confirm they have broad discretion: The Department consistently treats the Mandate not as a strict obligation, but as a flexible provision that allows it to take into consideration all kinds of other important interests (e.g., helping kids with disabilities and prioritizing historically discriminated against communities), while nevertheless refusing to accommodate sincere religious exercise. Respondents believe these preferences are permissible because they interpret the Mandate "to ensure that these children and their families who historically have been discriminated against aren't." App.322a, 342a. Indeed, this interpretation of the Mandate is so flexible that the only providers who had to seek (and were denied) exemptions were a handful of religious preschools. See Ex. 21 to Pl's. Mot. Summary J. at 77:5- 19, Darren Patterson Christian Acad. v. Roy, No. 1:23- [*24] cv-1557 (D. Colo. June 21, 2024), ECF No. 78-21 (listing Petitioners St. Mary and St. Bernadette alongside three other religious preschools).

Respondents contend there are no exemptions at all because they "interpret[ ]" the Mandate to implicitly permit these exemptions. E.g., Resp. C.A. Br. 8, App.36a. But "that is word play." Maryville Baptist Church, Inc. v. Beshear, 957 F.3d 610, 614 (6th Cir. 2020) (rejecting attempt to use clever drafting and interpretation to get around practical impact of the law). What matters is the real operation of the law. If the Mandate can be read to accommodate other interests despite the law's plain text, Respondents could similarly interpret the Mandate to respect the First Amendment and accommodate Petitioners.

↑ **II. Lower courts are defying Carson's prohibition on denying religious people benefits "because of their religious exercise."**

The Tenth Circuit also defied this Court's Trinity Lutheran–Espinoza–Carson line of precedent by limiting the rule of Carson to situations where the law excluding religious people from a generally available benefit is phrased in explicitly religious terms. A growing number of lower courts have made the same move, rejecting Carson's straightforward rule and offering an easy workaround for governments to pick

winners and losers among religious groups in public programs. This radical narrowing of Carson should be rejected before it metastasizes further.

1. This Court has long held that "[a] person may not be compelled to choose between [religious] exercise" and "participation in an otherwise available public [*25] program," regardless of whether the exclusion is explicit or "neutral on its face." Thomas v. Review Bd., 450 U.S. 707, 708, 717 (1981). So when government conditions "a benefit or privilege" on a person's "willingness to violate" her religious beliefs, it triggers strict scrutiny. Sherbert, 374 U.S. at 404-409. This rule reflects the straightforward principle that, under the First Amendment, each faith must "flourish" or wither "according to the zeal of its adherents and the appeal of its dogma," Zorach v. Clauson, 343 U.S. 306, 313 (1952)—not because the government has put a thumb on the scale.

The Court has repeatedly applied this rule in the context of religious education, holding that excluding religious schools from otherwise-available public benefits is "odious to our Constitution," Trinity Lutheran Church of Columbia, Inc. v. Comer, 582 U.S. 449, 467 (2020); that the rule applies equally to tuition aid as to other types of benefits, Espinoza v. Montana Dep't of Revenue, 591 U.S. 464, 475-476 (2020); and that the rule applies not only when schools are excluded because of their religious status but also "because of their religious exercise," Carson, 596 U.S. at 781 (emphasis added). Cf. Mahmoud, 606 U.S. at 561 ("Public education is a public benefit, and the government cannot 'condition' its 'availability' on parents' willingness to accept a burden on their religious exercise.").

Indeed, Carson repeatedly confirmed that the First Amendment presumptively prohibits "enactments that exclude some members of the community from an otherwise generally available public benefit because of their religious exercise." Carson, 596 U.S. at 781 (emphasis added); see also id. at 785 ("the prohibition on [*26] denying the benefit based on a recipient's religious exercise" (emphasis added)); id. at 789 ("Regardless of how the benefit and restriction are described, the program operates to identify and exclude otherwise eligible schools on the basis of their religious exercise." (emphasis added)).

In reaching these conclusions, this Court has eschewed Smith, relying instead on the separate public benefits line of free exercise caselaw originating with Sherbert and passing through Thomas, Trinity Lutheran, Espinoza, and Carson. In short, when it comes to free exercise cases concerning access to public benefits, Carson is the governing standard, and Smith is at best a backup rule.

2. Despite this clear instruction, several states have sought to dramatically narrow the rule of Trinity Lutheran, Espinoza, and Carson. They claim that religious people can be excluded from generally available public benefit programs based on their religious exercise as long as the exclusion isn't explicitly religious. And so far, several lower courts—the Fourth Circuit, the Ninth Circuit, and now the Tenth Circuit, have agreed. The rule in these courts is that religious groups can be excluded "because of their religious exercise," Carson, 596 U.S. at 781, as long as the exclusion was not made "on the explicit basis" that the burdened activity was religious, and as long as religion was not "specifically targeted." App.21a, 22a.

Courts taking this cramped view of Carson have followed a common pattern.

In Youth 71Five Ministries v. Williams, an Oregon "Youth Community Investment Grant Program" withdrew [*27] grants from an otherwise-eligible Christian ministry because the ministry required its employees and volunteers to agree with a "Christian statement of faith," a violation of the program's nondiscrimination requirements. 153 F.4th 704, 714 (9th Cir. 2025). The Ninth Circuit rejected the ministry's Carson claim, saying that "unlike the religious-use prohibition at issue in Carson," the challenged "[r]ule does not deny funding based on a practice exclusive to religious organizations." Id. at 719. The Ninth Circuit went on to hold that Smith was the right rule to apply, not Carson, and that the religious plaintiffs' claims failed under the Smith standard. Id. at 720.

Similarly, in Kim v. Board of Education of Howard County, the Fourth Circuit concluded that Trinity Lutheran, Espinoza, and Carson "stand only for the point that religious schools cannot be excluded from grant programs solely because of their religious character." 93 F.4th 733, 748 (4th Cir. 2024). That is because, the court said, "[t]he programs in those cases explicitly barred public funds from going to religious actors 'solely because of their religious character.'" Ibid. (emphasis added). The Fourth Circuit thus distinguished Carson and applied the rule of Smith, finding that the exclusion of the religious plaintiff from a benefits program was both neutral and generally applicable. Id. at 747-748.

In the decision below, the Tenth Circuit similarly refused to apply strict scrutiny, distinguishing "the Carson line of cases" on the ground that they "addressed laws that targeted 'religious status' and 'religious use' on the explicit basis that they were religious and not secular." App.21a. It described the exclusion [*28] of Catholic preschools from UPK as "not a targeted burden on religious use." App.22a. And it held that "when a particular religious practice is alleged to be infringed incidentally, rather than religious status or use being specifically targeted, the Supreme Court requires that the law at issue be neutral and generally applicable." Ibid. That is, Carson doesn't apply; Smith does.[7]

3. The decision below is wrong. Under Carson, when "otherwise eligible schools" are "exclude[d]" from a benefits program "on the basis of their religious exercise," the exclusion triggers strict scrutiny. 596 U.S. at 789; accord id. at 785. Here, there is no question that the parish preschools are otherwise eligible for UPK funding. And there is no question that those preschools have been excluded from that benefit "because of their religious exercise," id. at 781—namely, their religiously motivated policies related to sex and gender. So, under Carson, the exclusion should have been "subjected to 'the strictest scrutiny.'" Id. at 780.

It defies Carson to reject this conclusion because the exclusion does not "specifically target[ ]" religious exercise "on the explicit basis that" it is "religious." [*29] App.21a-22a. Carson itself embraced no such limitation. And both before and after Carson, this Court has applied the prohibition on religious-exercise-based benefits exclusions even when the exclusion is "neutral on its face." Thomas, 450 U.S. at 717; see also Sherbert, 374 U.S. at 401. In Mahmoud, for example, this Court applied "the Carson line of cases" (App.21a), where parents were excluded from the "benefit" of public education if they exercised their religion by declining to submit their children to "LGBTQ+-inclusive" instruction. 606 U.S. at 561, 563 (citing Trinity Lutheran). And the Court did so even though the County did not deny opt-outs "on the explicit basis that" objections were "religious" (App.21a), but rather had a "noopt-out" policy that said nothing about religion at all. Mahmoud, 606 U.S. at 538, 563.

Nor does it matter that Colorado has included other "religious schools as welcome participants." App.21a. In Carson itself, Maine didn't exclude all religious schools, but only those that "present[ed] academic material through the lens of th[eir] faith." 596 U.S. at 786-787. And differentiation between religions is constitutionally problematic—indeed, "fundamentally foreign to our constitutional order." Catholic Charities Bureau, Inc. v. Wisconsin Lab. & Indus. Rev. Comm'n, 605 U.S. 238, 249 (2025); see also id. at 250 ("eligibility" "ultimately turn[ed] on inherently religious choices," like whether to "serve only co-religionists").

Carson thus controls. "Regardless of how the benefit and restriction are described," the "operat[ion]" is the same: Catholic preschools have been excluded from UPK "because of [their] religious exercise." Carson, 596 U.S. at 781, 789. And this Court's holdings in [*30] this area have "turned on the substance of free exercise protections, not on the presence or absence of magic words." Id. at 785.

This case presents the Court with the opportunity to stop lower courts' misbegotten effort to constrain Carson and reduce the protection of the Free Exercise Clause to a question of targeting only. It's especially appropriate to do so here, where the Department has put not just "a thumb" but an anvil "on the scale"— promising free tuition at any state-licensed preschool unless the preschool adheres to traditional religious beliefs that the State's "legislative majorities * * * find unseemly or uncouth." Espinoza, 591 U.S. at 513-514 (Gorsuch, J., concurring).

↑ **III. Employment Division v. Smith should be overruled**

Smith is at the root of both errors identified above. The Tenth Circuit looked to Smith instead of Carson because it concluded that Colorado's actions only "infringed incidentally" Petitioners' religious exercise. App.22a. And the Tenth Circuit's general applicability analysis confirms that this standard is easily misapplied. Worse, Smith continues to exert a gravitational pull on supposedly separate forms of

[7] Even the town-tuitioning program at issue in Carson itself has now been held to be outside the reach of Carson. In St. Dominic Academy v. Makin, 744 F. Supp. 3d 43 (D. Me. 2024), and Crosspoint Church v. Makin, 719 F. Supp. 3d 99 (D. Me. 2024), religious schools sued over Maine's town-tuitioning program. While Carson was pending, Maine amended its laws to exclude from public funding schools that "discriminate" based on "sexual orientation or gender identity." St. Dominic, 744 F. Supp. 3d at 53. As a result, the district court treated the exclusion of those schools as governed by Smith rather than Carson, and upheld it. Id. at 69-70, 77-79; Crosspoint, 719 F. Supp. 3d at 117-123.

free exercise analysis: By limiting Carson to "explicit" religious exclusions, App.21a, the Tenth Circuit refashioned an admittedly "independent line of precedent," App.19a, into merely another iteration of the stingiest applications of Smith's prohibition on religious targeting.

In Smith, the Court "ambitiously attempted" to impose "a test that would bring order and predictability." American Legion v. American Humanist Ass'n, 588 U.S. 29, 48 (2019). But that test was not derived from [*31] the text, history, or tradition of the Free Exercise Clause. See City of Boerne v. Flores, 521 U.S. 507, 565 (1997) (Souter, J., dissenting) (Smith Court "never had" briefing and argument on Smith's historical merits as a general matter—not even in "Smith itself."); see also Stephanie Hall Barclay & Matthew M. Krauter, The Untold Story of the Proto-Smith Era: Justice O'Connor's Papers and the Court's Free Exercise Revolution, 174 U. Pa. L. Rev. (forthcoming 2026), https://papers.ssrn.com/sol3/papers.cfm?abstract_id= 5143931 (describing Smith Court's "near total lack of discussion about the historical and textual meaning of the Free Exercise Clause"). And Smith has not delivered the administrability it promised.

Instead of a clear standard, Smith's framework has proven highly malleable and unpredictable. Indeed, application of the test has "generated a long list of Circuit conflicts." Dobbs v. Jackson Women's Health Org., 597 U.S. 215, 284 (2022); see pp. 14-23, supra; Fulton, 593 U.S. at 608-612 (Alito, J., concurring). As this case and recent history demonstrate, "judges across the country continue to struggle to understand and apply Smith's test even thirty years after it was announced." Fulton, 593 U.S. at 626 (Gorsuch, J., concurring) (noting the Court's corrections to lower-court misapplication in COVID cases). The neutrality-and-general-applicability rule has thus invited semantic games and religious gerrymandering. See pp. 19-24, supra; Fulton, 593 U.S. at 624 (Gorsuch, J., concurring).

If Smith were rooted in text, history, and tradition, continuing to straighten out these repeated tangles would be a worthy task for this Court. But Smith is rootless. Smith "paid shockingly little attention to the text of the Free Exercise Clause. Instead of examining [*32] what readers would have understood its words to mean when adopted, the opinion merely asked whether it was 'permissible' to read the text to have the meaning that the majority favored." Fulton, 593 U.S. at 564 (Alito, J., concurring) (quoting Smith, 494 U.S. at 878).

In short, the Smith test will not "work itself pure." Loper Bright Enters. v. Raimondo, 603 U.S. 369, 419 (2024) (Gorsuch, J., concurring) (quoting Omychund v. Barker, 1 Atk. 22, 33, 26 Eng. Rep. 15, 23 (Ch. 1744)). Only if this Court confronts Smith head on can it bring the jurisprudence of the Free Exercise Clause back into sync with its text, history, and tradition.

That renaissance of the Free Exercise Clause cannot come too soon. Religious people across the country are stuck in forever conflicts precisely because of the (sometimes willful) confusion among the lower courts over the meaning of the Free Exercise Clause. See, e.g., Pennsylvania v. President, No. 25-2575 (3d Cir. appeal filed by Little Sisters of the Poor Aug. 20, 2025), on remand from Little Sisters of the Poor Saints Peter & Paul Home v. Pennsylvania, 591 U.S. 657 (2020) (complaint filed Oct. 11, 2017) (religious order helping the elderly poor); Klein v. Oregon Bureau of Lab. & Indus., No. A159899 (Or. Ct. App. argued Jan. 30, 2024), on remand from Klein v. Oregon Bureau of Lab. & Indus., 143 S. Ct. 2686 (2023) (complaint filed Jan. 17, 2013) (religious baker); Miller v. Civil Rts. Dep't, No. 25-233 (petition for cert. filed Aug. 26, 2025) (administrative complaint filed Oct. 18, 2017) (religious baker); Yeshiva Univ. v. YU Pride All., 143 S. Ct. 1 (2022) (religious university); Roman Catholic Diocese of Albany v. Harris, 145 S. Ct. 2794 (2025) (second [*33] GVR; religious groups seeking protection from abortion mandate). Religious people should not have to endure years of litigation because the law is unclear and state governments are unyielding.

↑ **IV. This case is an excellent vehicle to address issues of nationwide importance**

This case is an excellent vehicle to resolve the questions presented. It comes to the Court after final judgment and with a robust record reflecting the three-day bench trial in the district court. Both the district court and the Tenth Circuit fully addressed the legal issues presented by each of the first two questions presented, with the Tenth Circuit noting its disagreement with the en banc Ninth Circuit's majority position. And both courts below explicitly relied on Smith to rule against Petitioners, even grasping the nettle and embracing not only Smith's rule but also its much-criticized reasoning. E.g., App.23a ("While the Constitution protects religious freedom, * * * the government must be able to

enforce the law equally against everyone, no matter an individual's beliefs, lest we 'permit every citizen to become a law unto himself'" (quoting Smith, 494 U.S. at 879)). There are thus no barriers preventing this Court from reaching and resolving all the questions presented.

And those questions are important. Indeed, getting the Free Exercise Clause analysis right has only become more critical as government funding programs—especially in the education context—become ubiquitous. Enrollment in state-funded preschool programs alone reached an all-time high of over 1.75 million children in 2023-24. Allison H. Friedman-Krauss et al., Executive Summary, The State of Preschool 2024 Yearbook, [*34] NIEER, https://perma.cc/CN23-A455. And a record sixteen states plus the District of Columbia are now providing universal preschool funding, reflecting a trend toward mixed-delivery systems that integrate (and fund) private providers. NIEER, National Report: State-by-State Disparities Widening in Preschool Access, Quality, Funding (Apr. 18, 2024), https://perma.cc/5KNE-FYA9. Recent research into these programs also shows that—even after Fulton and Carson—"exclusion of religious providers is pervasive." Nicole Stelle Garnett, Tim Rosenberger & J. Theodore Austin, The Persistence of Religious Discrimination in Publicly Funded Pre-K Programs, Manhattan Institute (Jan. 21, 2025), https://perma.cc/PJ7D-VKJ8 (describing various ways in which states use participation requirements to bar or dissuade religious preschools).

Perversely, this imposes the greatest harm on those who can least afford it: low-income and historically disadvantaged families. Religious schools—and Catholic schools in particular—are "more likely to be associated with better civic outcomes," including "political tolerance, political participation, civic knowledge and skills, and voluntarism and social capital." EdChoice Br. at 27-29, St. Mary Catholic Parish v. Roy, No. 24-1267 (10th Cir. Aug. 21, 2024). Colorado is thus excluding the very schools that are the best at advancing civic values for children who are left out.

Nor are government attempts at religious exclusion by any means limited to education. In our pluralistic society, religious organizations participate in all kinds of government programs as they seek to serve both neighbor and country—education, job training, [*35] refugee and immigration support, housing, social services, disaster relief, historic preservation, food assistance, and more. The Tenth Circuit's opinion paves the way for governments to exclude religious groups with politically unpopular beliefs from any of these programs—simply by invoking "nondiscrimination." That opens the door to even more religious gerrymandering. All but the most unsophisticated government actors will be able to craft neutral-sounding requirements that give them broad discretion to flexibly accommodate favored secular groups while penalizing disfavored religious believers.

Finally, this Court also need not speculate about the practical effect of the Tenth Circuit's decision. Since litigation began, two Archdiocesan preschools have closed, and enrollment at Archdiocesan preschools is down almost twenty percent. Families like the Sheleys have been forced to either follow the dictates of their faith at the cost of thousands of dollars per year or abandon their religious exercise. Colorado is thus imposing enormous—and unconstitutional—pressure on religious preschools to conform or close, and it is doing so in a way that the Tenth Circuit held up as a "model" to be replicated elsewhere. Allowing the decision below to stand will only fuel and expand this pressure campaign, which is damaging to religious groups, our country, and the rule of law.

↑ **Conclusion.** The Court should grant the petition. [*36] Respectfully submitted.

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NOVEMBER 2025

↑ **Lisa Roy, in Her Official Capacity as Executive Director of the Colorado Department of Early Childhood** Brief in Opposition · Mar. 2, 2026
Brief of respondents Lisa Roy, et al. in opposition filed.

Roy · Brief in Opposition · Mar. 2, 2026 · respondent — coupling row B
Cites 33 cases (47 mentions), 12 citations not resolved; 15 statutes and provisions (1 bare section cites not resolved).
Shares with Pet. 40% · Cert. Reply 20% · Pet'rs Br. 17% · Resp. Br. 19% · Reply Br. 17%; closest: Pet.
Its own ground: 8 cases no other filing cites; 3 shared with its own side only, 22 with the other side.
Statutes: Colo. Rev. Stat. § 26.5-4-205 ×8; Colo. Rev. Stat. § 26.5-4-202 ×6; Colo. Rev. Stat. § 26.5-4-203 ×4; Colo. Rev. Stat. § 22-20-103 ×2; 15 U.S.C. § 1691; 29 U.S.C. § 623 (Employment discrimination: McDonnell Douglas pretext); 29 U.S.C. § 631; 38 U.S.C. § 4311; 7 more.

↑ **Questions Presented.** [*i] Colorado's Universal Preschool Program offers free preschool to all four-year-old Coloradans through a system that includes faith-based providers along with other private and public providers. All participating providers—whether religious or secular—must ensure that children have equal opportunity to enroll in and receive preschool services regardless of those children's (or their families') religious affiliation, race, ethnicity, sexual orientation, gender identity, lack of housing, income level, or disability.

Petitioners seek an exemption from this law to allow them to receive public funding while turning away preschoolers because of their, or their parents', gender identity or sexual orientation.

But the Tenth Circuit held that Colorado's law, as written and as implemented, does not allow for any exceptions from its equal-opportunity requirements.

The questions presented are:

1. Whether the Tenth Circuit correctly interpreted state law as allowing no exceptions (and conferring no discretion to create any exceptions) to the equal-opportunity requirements.

2. Whether the First Amendment allows Colorado to ensure, through a neutral and generally applicable program, that preschoolers have equal opportunity to enroll in and receive publicly-funded preschool services regardless of their, or their parents', protected-class status. [*1]

↑ **Introduction.** The Tenth Circuit determined that Colorado's Universal Preschool Program ("UPK") affirmatively welcomes faith-based providers while allowing no exceptions from its equal-opportunity requirements.

The petition nevertheless argues that Colorado violates the Free Exercise Clause by purportedly granting secular exemptions while denying Petitioners' requested religious exemption—adding, they say, to a split over how "to determine which secular exemptions undermine general applicability in the free exercise context." Pet. 13. But after carefully examining the text of the state law and the facts about its implementation as developed at trial, the Tenth Circuit held that Colorado's law, as written and as implemented, does not allow for any exceptions from its equal-opportunity requirements. Pet. App. 29a–38a.

Petitioners essentially ignore that holding, which vitiates the premise of their central argument. They instead attack the Tenth Circuit's statement that—assuming, arguendo—certain secular exemptions were to exist, Colorado law would nonetheless still qualify as generally applicable. Regardless of whether this comparability discussion is dicta or an alternative basis for decision, it does not warrant this Court's review when the threshold holding does not warrant review because it simply presents a matter of state statutory interpretation.

And the Tenth Circuit's interpretation of Colorado's statute does not merit this Court's review. This Court generally accords great deference to the federal courts of appeals' interpretations of state law to avoid unnecessary review of those decisions and because [*2] lower federal courts often have greater familiarity and experience with the laws of their states. Here, the district court and appellate court reached their holdings based on state statutory interpretations and supporting factual findings regarding state agency practice that

are specific to this case. No courts have reached a contrary conclusion, so there is no conflict for this Court to resolve.

Nor is there any error to correct. The Tenth Circuit correctly interpreted the state statute to allow no exceptions—and to confer no discretion to create any exceptions—to its equal-opportunity requirements, and affirmed the district court's finding that the Colorado Department of Early Childhood ("CDEC") allows no such exceptions in implementing the program.

None of the three provisions Petitioners cite allows, or has ever been used to allow, any exception to the equal-opportunity requirements. Regarding disability and income, this Court's jurisprudence establishes that legislatures may enact equal-opportunity protections regarding disability and income that protect only individuals with disabilities from disability-based discrimination and only low-income individuals from income-based discrimination. And the unanimous Tenth Circuit, like the district court before it, correctly interpreted UPK's statutory equal-opportunity requirements to protect children with disabilities and children from low-income families. Pet. App. 35a–38a. As it determined, the UPK Act's text and express objectives make clear that preschools that prioritize children with disabilities and children from low-income families do not deny equal opportunity based [*3] on disability or income level in violation of UPK's statutory equal-opportunity requirements. Pet. App. 35a– 38a.

Regarding the so-called "catchall" preference, the unanimous Tenth Circuit, like the district court before it, carefully examined all the evidence in correctly determining that this preference does not allow, and has not been used to allow, any exceptions from the equal-opportunity requirements. Pet. App. 32a.

Finally, like the district court before it, the unanimous Tenth Circuit correctly determined that the statute's temporary-waiver provision expressly precludes even temporary exceptions from the equal-opportunity requirements. Pet. App. 33a–34a.

Because this case involves neither any exceptions nor the discretion to create exceptions, it is not an appropriate vehicle for addressing the question of what sorts of exceptions would render the government's action not generally applicable.

The Tenth Circuit's decision also aligns with this Court's precedent. Petitioners rely on Carson v. Makin, 596 U.S. 767 (2022), which held that strict scrutiny applies to the government's intentional exclusion of religious actors, based on those actors' religious character, from public funding programs. Id. at 780. But as the Tenth Circuit correctly decided, Carson does not apply to this case because UPK does not exclude religious schools: indeed, UPK welcomes them in a program where public funding turns not on providers' secular or religious character, but instead on providers' compliance with UPK's equal-opportunity requirements.

[*4] Finally, this Court has repeatedly rejected invitations to reconsider Employment Division v. Smith, 494 U.S. 872 (1990), and nothing about this case warrants this Court's reconsideration.

This Court should deny certiorari.

↑ **Statement of the Case.**

↑ **I. Colorado becomes a national leader in providing universal preschool through a "mixed-delivery" system that affirmatively includes faith-based providers**

In 2020, Colorado's electorate voted overwhelmingly to offer free preschool to every four-year-old Coloradan. Colo. Rev. Stat. ("C.R.S.") §§ 26.5-4-202(1)(a)(V); 26.5-4-204(1)(a). The General Assembly then enacted the "Early Childhood Act," and created CDEC to implement this ground-breaking program. H.B. 21-1304, 73rd Gen. Assemb., Reg. Sess. (Colo. 2021) (enacted).

Through what is called a "mixed-delivery" approach to universal preschool, the Act establishes a program that affirmatively includes a wide variety of public and private community providers, including faith-based and in-home preschool providers. C.R.S. § 26.5-4-202(1)(b); Pet. App. 59a–60a. All children in Colorado are eligible for up to 15 hours of free preschool per week in the year before they start kindergarten. Pet. App. 188a, 301a.

From UPK's inception, CDEC has welcomed faith-based providers. It convened an interfaith working group to solicit, and respond to, religious providers' questions and suggestions—a group that included a [*5] representative from Petitioner St. Mary Catholic Parish. Pet. App. 60a; Supp. App. 55a–56a. CDEC's

response to those providers' feedback included its initial development of a "congregation preference" to enable religious providers to prioritize "members of the community that the faith-based provider serves as the faith-based provider defines that community." Supp. App. 8a; 58a; Pet. App. 135a–36a; 340a–41a.

More than forty faith-based providers, including six Catholic Charities preschools that are part of the Petitioner Archdiocese of Denver, have participated in UPK since year one. Supp. App. 2a; 41a.

↑ **II. UPK offers free, high-quality preschool to all four-year-old Coloradans regardless of their, or their parents', protected-class status**

To ensure that every preschooler in UPK-funded preschools has access to safe, healthy, and high-quality learning environments, the UPK statute requires CDEC to establish quality standards that reflect "national and community-informed best practices with regard to school readiness, academic and cognitive development, healthy environments, social-emotional learning, and child and family outcomes." C.R.S. § 26.5-4-205(1)(a). These standards include requirements that publicly-funded providers ensure all eligible children receive "an equal opportunity to enroll and receive preschool services regardless of race, ethnicity, religious affiliation, sexual orientation, gender identity, lack of housing, income level, or disability, as such characteristics and circumstances apply to the child or the child's family." C.R.S. § 26.5-4-205(2)(b).

[*6] Under UPK's equal-opportunity requirements, faith-based providers, like other providers, remain free to teach what they want, as CDEC doesn't review or regulate curriculum. Supp. App. 74a–75a; Pet. App. 64a. No publicly-funded preschool, however, can turn away children and families based on their protected-class status. This ensures that all Colorado parents—including Catholic parents and same-sex parents—know their children will not be excluded, because of their protected-class status, from the publicly-funded preschool that best meets their families' needs.

As explained below, the UPK program—as enacted into statute and as implemented by CDEC—includes several features to ensure the success of its "mixed-delivery" approach by enabling participation by a wide range of providers. At the same time, the statute and its implementation make clear that all participating preschools must comply with the statute's equal-opportunity requirements.

A. Allowing providers to prioritize children from low-income families and children with disabilities does not deny equal opportunity in violation of the statute

The UPK Act defines UPK's "mixed delivery system" as including "head start agencies" and defines the "preschool providers" eligible to participate in UPK to include "head start program[s]." C.R.S. § 26.5-4-203(12), (14)(e). Head Start programs are operated by local public or private nonprofit agencies designated and funded by the federal government. C.R.S. § 26.5-4-103(6). These programs prioritize the [*7] children of families who are living in poverty or otherwise have low income, as well as children with disabilities. Pet. App. 336a.

The UPK Act also requires that "every child who is three or four years of age and is a child with disabilities must be offered preschool services in accordance with the child's individualized education program [IEP, which supports specific services for children with disabilities]." C.R.S. § 26.5-4-204(3)(a)(II); see also §§ 26.5-4-202(4), 26.5-4-204(1)(c), and 26.5-4-206 (emphasizing UPK's commitment to complying with the federal Individuals with Disabilities Education Act ("IDEA") and the importance of serving preschoolers with IEPs pursuant to IDEA). The UPK Act specifies that its definition of "children with disabilities" is the same as the definition found elsewhere in the Education Code, C.R.S. § 26.5-4-203(3). Under that provision, "children with disabilities" are those who are "unable to receive reasonable benefit from general education" and therefore require an IEP, as outlined in C.R.S. § 22-20-103(5)(a), (15). Under IDEA, school districts must provide children with IEPs access to specialized resources and services that other preschools would not be able to accommodate. Pet. App. 71a; 334a.

Finally, the UPK Act prioritizes children with disabilities and children in low-income families by allowing those children to receive publicly-funded preschool hours beyond the hours available to all four-year-old Coloradans. C.R.S. §§ 26.5-4-202(3); 26.5-4-204(1)(b), (3)(a)(II), (V).

[*8] To fulfill the statute's multiple directives, CDEC created preferences to ensure that providers could prioritize children who qualify for Head Start and children with IEPs, as required by the UPK statute. Pet.

B. UPK's preferences help preschools maintain ongoing relationships and areas of focus without allowing exceptions from the equal-opportunity requirements

ments.

UPK allows families to select and rank up to five participating providers through an online application. Pet. App. 64a; 303a. UPK's software then uses an algorithm to match a family with one of their choices (and enables the family to select additional providers if none of their initial choices are available). Id.; Supp. App. 59a–60a.

Because this matching algorithm could not account for pre-existing relationships and commitments, providers expressed concern that it would not allow them to serve the families and communities they were designed to serve, like continuing students, or children living within a school district's boundaries. Pet. App. 7a; 65a–69a; 328a–32a; Supp. App. 56a–59a. To cure the software's technical limits, CDEC developed a series of specific matching "preferences" to enable providers to maintain ongoing community relationships and specialized areas of focus.

These preferences enable school districts to match with children residing within their district boundaries; enable preschool co-ops to match with children of families participating in the co-op; enable providers to [*9] match with their employees' children; enable providers to match with continuing students (and those students' siblings) to ensure continuity of care; enable dual-language providers to match with children who speak the requisite languages; and enable Head Start providers and providers that serve children with IEPs to match with children of low-income families and children with disabilities. Pet. App. 209a–11a.

The rule establishing these preferences makes clear that providers may not use them to deny equal opportunity based on children's, or their parents', religion, race, sexual orientation, gender identity, or other protected class status. Pet. App. 29a–30a; 68a–69a; 72a–73a; 211a; 332a–40a; 343a–45a; Supp. App. 56a–59a.

And because CDEC could not anticipate each of the nearly two thousand providers' pre-existing commitments, the agency created an additional "programmatic preference" (referred to by Petitioners as the "catch-all" preference) to address the individual programmatic commitments of providers with needs unaddressed by the other preferences Pet. App. 210–11a; 343a–45a. In UPK's inaugural year, CDEC approved 17 providers' requests to utilize this preference. Pls. Ex. 34, Record 607; see also Pls. Ex. 30, Record 607. None of these preferences, however, drew any distinctions based on any of the characteristics protected by the statutory equal-opportunity requirements: religious affiliation, race, ethnicity, sexual orientation, gender identity, disability, income level, and lack of housing. Pet. App. 32a–33a. Like the other preferences, the rule that creates the programmatic preference itself prohibits it from being used to deny equal [*10] opportunity in violation of the statutory requirements. Pet. App. 29a–30a; 65a–69a; 211a–12a; 327a–32a; Supp. App. 56a–59a.

C. The statute's temporary waiver provision includes express limitations that preclude even temporary exceptions from the equal-opportunity requirements

The UPK statute includes a provision that authorizes CDEC to grant a temporary waiver to "allow a preschool provider that does not meet the quality standards to participate in the preschool program for a limited time while working toward compliance with the quality standards." C.R.S. § 26.5-4-205(1)(b)(II). This provision seeks to give providers time to come into compliance with requirements that enhance quality preschool education, but with which they may have had no previous experience. Pet. App. 323a–25a. For example, in-home childcare providers that have never formally documented their on-site observations of children's progress, as required by UPK, could be granted additional time to learn how to do so. Pet. App. 324a; C.R.S. § 26.5-4-205(b)(II); see Pet. App. 209a–11a.

The equal-opportunity requirements are not eligible for waiver. This is clear from two express statutory limitations on temporary waivers' availability. First, temporary waivers are available only to providers that are "working toward compliance with the quality standards." C.R.S. § 26.5-4-205(1)(b)(II).

Although it may take time for a provider to learn and implement the statute's quality-control procedures, it takes no time to stop excluding children because of their, or [*11] their parents', religion, race, sexual orientation, gender identity, or other protected-class status. Second, the statute prohibits temporary waivers of those "quality standards relating to health and safety as a condition of participating in the preschool program," id., and the equal-opportunity requirements are health and safety standards. Pet. App. 326a.

III. Because the statute allows no exceptions from its equal-opportunity requirements, CDEC did not grant Petitioners' request to deny equal opportunity

Petitioners sought permission to receive public funding while excluding children based on their—or their parents'—gender identity, sexual orientation, or religious affiliation. Pet. App. 283a–87a; 316a–17a; 319a. Because the statute does not allow any exceptions (also referred to as "exemptions") from the equal-opportunity requirements, CDEC denied Petitioners' request. Pet. App. 288a–90a.

IV. Proceedings Below

A. The trial court determined that UPK's equal-opportunity requirements allow no exceptions, and are neutral and generally applicable

Shortly after the start of UPK's inaugural school year, Petitioners filed their complaint challenging CDEC's refusal to grant them their requested exceptions. Amended Complaint at 3–4, St. Mary Catholic Parish v. Roy, No. 1:23-cv-02079 (D. Colo. Sep. 13, 2023), Dkt. No. 30. After disposing of various motions, the district court held a three-day bench trial with testimony from ten witnesses.

[*12] At trial, Petitioners' witnesses testified that they would "welcome" children who were not Catholic. Supp. App. 43a; see also Supp. App. 48a–49a (Wellspring admits non-Catholics); Supp. App. 44a (testimony of Tracy Seul) (St. Mary admits non-Catholics). At the same time, Petitioners' witnesses also testified that they would deny enrollment to a gender-diverse child or the child of same-sex or gender-diverse parents seeking to enroll in their preschool. Pet. App. 317a (enrollment of a child of same-sex or gender-nonconforming parents "would not be possible"); see also Pet. App. 77a–78a; 251a–59a; 272a–75a; Supp. App. 46a–47a (Petitioner Wellspring denied enrollment to a fifth-grade child of same-sex parents). Petitioners also testified that continued enrollment of a child who later identified as gender-diverse would "not be possible." Supp. App. 39a–40a; see also Pet. App. 78a; 251a–59a; 272a–75a.

At trial, CDEC offered extensive expert testimony about the importance of equal opportunity to access and receive preschool services regardless of children's and parents' gender identity and sexual orientation. The district court found the experts' testimony to be "reliable and persuasive." Pet. App. 94a. Petitioners offered no expert testimony of their own.

The district court concluded that UPK doesn't bar religious providers because of their religious character or exercise, Pet. App. 107a–08a; UPK does not seek to suppress religious practice and is thus neutral toward religion, Pet. App. 108a–09a; UPK's statute does not allow any exceptions from its equal-opportunity requirements, Pet. App. 53a, 120a–21a, 123a, 129a–35a; CDEC has granted no secular exceptions from UPK's [*13] equal-opportunity requirements, Pet. App. 120a–21a, 125a, 134a–35a, 144a;[1] and neither the statute nor CDEC have created a mechanism for individualized exceptions, Pet. App. 123a. For these reasons, it denied Petitioners' request for a permanent injunction exempting them from the equal-opportunity requirements regarding sexual orientation and gender identity. Pet. App. 166a; 171a–72a.

[1]As noted, supra at 5, CDEC's matching preferences initially included a "congregation preference" that allowed faith-based providers to prioritize "members of the community that the faith-based provider serves as the faith-based provider defines that community." Supp. App. 8a. The district court determined, however, that the statute's equal-opportunity provisions prohibit providers from drawing distinctions based on religious affiliation. Pet. App. 135a–37a; 151a–52a. Committed to complying with all statutory requirements, CDEC then undertook a rulemaking process to remove the congregation preference. As the Tenth Circuit observed, "[CDEC] added [the congregation] preference to accommodate faith-based providers. However, once the district court determined that this preference was incompatible with the nondiscrimination requirement, it was removed. [CDEC] has tried repeatedly to accommodate faith-based providers, but when it comes to the nondiscrimination provision, it can make no exceptions because the provision is required by statute." Pet. App. 32a–33a; see also id. at 36a n.16 ("[T]he congregation preference no longer exists, and thus cannot undermine the law's general applicability.").

B. The Tenth Circuit determined that UPK's equal-opportunity requirements allow no exceptions, and are neutral and generally applicable

The Tenth Circuit unanimously affirmed, holding that Petitioners did not meet their burden to show [*14] that UPK's equal-opportunity provisions are not neutral or not generally applicable, as required to trigger strict scrutiny under the Free Exercise Clause. Pet. App. 5a; 28a; 32a-43a; 47a.

The Tenth Circuit determined that the statute does not allow, and has not been implemented to allow, exceptions from the equal-opportunity requirements. First, based on the statutory text, the Tenth Circuit interpreted the equal-opportunity requirements as protecting children with disabilities and children from low-income families from the denial of equal opportunity based on their disability and low income. Pet. App. 37a–38a. It thus rejected Petitioners' argument that the preferences allowing providers to prioritize children with disabilities and children from low-income families deny equal opportunity based on disability and income level in violation of the statute. Pet. App. 36a–38a.

The Tenth Circuit then observed that "[e]ven assuming, arguendo," that those preferences were somehow understood as exceptions from the equal-opportunity requirements, they would not be exempting secular activity "comparable" to excluding children based on their or their parents' gender identity or sexual orientation, and thus would remain generally applicable. Pet. App. 38a–40a; see also id. at 41a ("Even if the Parish Preschools are correct (which we do not decide that they are), and the IEP and Head Start preferences are unlawful under the nondiscrimination requirement, it simply means that those preferences could possibly be challenged separately. It does not mean that all other protected classes should then be [*15] denied the benefit of the nondiscrimination requirement.").

Second, the Tenth Circuit rejected Petitioners' characterization of UPK's programmatic preference as an exception from the equal-opportunity requirements, instead affirming the district court's factual findings that the agency's witnesses understood themselves to have no discretion to approve exceptions from the statutory requirements and had not applied that preference to allow any exception. Pet. App. 29a–30a; see also id. (concluding that "the catchall preference is not a system of individualized exemptions from the nondiscrimination requirement").

Third, the Tenth Circuit rejected Petitioners' argument that the UPK statute's temporary waiver provision provides CDEC with the discretion to create exceptions from UPK's equal-opportunity requirements, interpreting the statute expressly to reject any discretion. Pet. App. 33a–35a.

Finally, the Tenth Circuit distinguished Petitioners' invocation of Carson and other cases invalidating the exclusion of religious entities from government benefits based on their religious character, holding that UPK affirmatively includes religious preschools while requiring them to comply with the same requirements applied to all publicly-funded preschools. Pet. App. 21a–22a.

The Tenth Circuit then concluded that Colorado's neutral and generally applicable law triggers, and satisfies, rational-basis review. Pet. App. 47a. [*16]

↑ **Reasons for Denying the Petition.** I. The Tenth Circuit's decision does not implicate the asserted lower court split that is the basis of Petitioners' request for review. Petitioners claim a conflict over what sorts of exceptions render a law not generally applicable, but the Tenth Circuit interpreted the state statute as allowing no exceptions and no discretion to create exceptions. This case is thus not an appropriate vehicle for addressing Petitioners' asserted split.[2] See DeVillier v. Texas, 601 U.S. 285, 292–93 (2024) ("It would be imprudent" to decide a question whose premise "does not hold."). To reach the question Petitioners raise would require this Court to review and reject the Tenth Circuit's state statutory interpretation and affirmance of district-court factual findings regarding state agency practice specific to this case—questions that do not merit this Court's review.

A. The Tenth Circuit—like the trial court before it—correctly interpreted the UPK statute as allowing no

[2]To be clear, Respondents do not concede there is any split, as the different decisions in the cases Petitioners cited may be explained by courts' application of the same rule to different fact patterns, thus justifying different results without creating any split.

exceptions, and providing no discretion to create exceptions, from the equal-opportunity requirements.

This Court "generally accord[s] great deference to the interpretation and application of state law by the [*17] courts of appeals." Expressions Hair Design v. Schneiderman, 581 U.S. 37, 45 (2017) (citation omitted); see also Bishop v. Wood, 426 U.S. 341, 346 & n.10 (1976) (observing the Court's practice of deferring to "the interpretation of state law in which the District Court and the Court of Appeals have concurred"); Price v. Montgomery County, 144 S. Ct. 2499, 2500 n.1 (2024) (explaining that the Court may deny certiorari when "the facts presented by a petition do not clearly or cleanly implicate a division of authority among the lower courts"). The Tenth Circuit (and the trial court before it) correctly concluded that none of the three provisions Petitioners cite allows, or has been implemented to allow, any exception to the equal-opportunity requirements.

1. Allowing providers to prioritize children from low-income families and children with disabilities does not deny equal opportunity in violation of the statute.

Because Petitioners seek exceptions from the statute's equal-opportunity requirements, Petitioners must show that Colorado allows exceptions from those requirements in order to establish that UPK is not generally applicable. Petitioners assert that the preferences allowing providers to prioritize children "with" disabilities and children from families "with" low income create exceptions from the equal-opportunity requirements regarding disability and income level. But their argument misinterprets the statute.

The unanimous Tenth Circuit—like the district court before it—correctly interpreted the statute to protect children with disabilities and children from [*18] low-income families from the denial of equal opportunity based on those characteristics. As the Tenth Circuit stated, "[i]t is farcical to say that non-disabled children are being discriminated against by being denied special education designed for disabled students, or that high-income students are discriminated against by preschools participating in Head Start." Pet. App. 36a–38a; see also id. (concluding that the preferences for providers serving children with IEPs and Head Start providers "are not exceptions to the nondiscrimination requirement.").

The UPK Act's text and express objectives support the lower courts' interpretation. First, the Act defines UPK's "mixed delivery system" as including "head start agencies" and defines the "preschool providers" eligible to participate in UPK to include "head start program[s]." C.R.S. § 26.5-4-203(12), (14)(e).

Second, the Act expressly ties its definition of "children with disabilities," C.R.S. § 26.5-4-203(3), to the definition provided elsewhere in the Education Code that defines "children with disabilities" as those "unable to receive reasonable benefit from general education" and who thus require an IEP. C.R.S. § 22-20-103(5)(a); see also §§ 26.5-4-202(4), 26.5-4- 204(1)(c), and 26.5-4-206 (emphasizing UPK's commitment to complying with IDEA and the importance of serving preschoolers with IEPs pursuant to IDEA).

Third, the Act expressly prioritizes children with disabilities and children in low-income families by allowing those children to receive publicly-funded preschool hours beyond the hours available to all fouryear-old [*19] Coloradans.[3] C.R.S. §§ 26.5-4-202(3); 26.5-4-204(1)(b), (3)(a)(II), (V).

As the Tenth Circuit correctly ruled, these provisions make clear that preschools that prioritize children with disabilities and children from low-income families do not deny equal opportunity based on disability or income level under UPK's statutory requirements, thus sensibly reconciling all of the statute's directives. Pet. App. 37a–38a; see also C.R.S. § 2-4-201(1)(b) (declaring state legislature's presumption that "entire statute is intended to be effective"); In re W.P., 295 P.3d 514, 519 (Colo. 2013) ("In interpreting a statute, we ascertain and give effect to the General Assembly's intent, reading applicable statutory provisions as a whole in order to accord consistent, harmonious, and sensible effect to all their parts . . . . When interpreting a comprehensive legislative scheme, we construe each provision to further the overarching legislative intent.").

[3]The Solicitor General quotes selectively from one of the General Assembly's findings, Brief for the United States as Amicus Curiae ("SG") Supporting Petitioners, St. Mary Catholic Parish v. Roy, No. 25-581 (U.S. filed Jan. 30, 2026), at 14, n.3. The full passage instead states that "[r]esearch demonstrates that economically disadvantaged children derive greater benefits from preschool programs in states that offer universal programs than in states that offer preschool programs specifically for economically disadvantaged children." C.R.S. § 26.5-4-202(1)(a)(IV). Indeed, as Ms. Odean explained during her testimony, this was among the reasons Colorado changed from its predecessor income-based program to a universal program. Supp. App. 67a–69a. At the same time, however, UPK's implementation had to ensure that children with disabilities and from low-income families did not experience "diminished" access to preschool services with the move to a universal program. Id.

In other words, [*20] what Petitioners incorrectly describe as "word play," Pet. 24, instead draws directly from the statute's text.[4]

Moreover, to interpret the prioritization of children with IEPs and children from low-income families as denying equal opportunity based on disability and income level would defy not only the statute's express directives but also common sense. Legislatures are free to enact equal-opportunity protections regarding disability and income that protect only individuals with disabilities from disability-based discrimination and only low-income individuals from income-based discrimination—just as they are free to enact equal-opportunity protections regarding veteran status and age that protect only veterans from discrimination based on military status and only older individuals from age-based discrimination. See City of Cleburne v. Cleburne Living Ctr., 473 U.S. 432, 440–42 (1985) (government's disability-based distinctions don't trigger heightened scrutiny); Hooper v. Bernalillo Cnty. Assessor, 472 U.S. 612, 620 (1985) (government's distinctions based on veteran status don't trigger heightened scrutiny); Harris v. McRae, 448 U.S. 297, 323 (1980) (government's income-based distinctions don't trigger heightened scrutiny); Mass. Bd. of Ret. v. Murgia, 427 U.S. 307, 313–14 (1976) (government's age-based distinctions don't trigger heightened scrutiny).

[*21] Legislatures frequently make precisely those choices. E.g., Americans with Disabilities Act, 42 U.S.C. §§ 12112, 12102 (prohibiting discrimination "on the basis of disability" and defining "disability" to mean having a disability); Equal Credit Opportunity Act, 15 U.S.C. § 1691(a)(2) (prohibiting creditors from discriminating against applicants who receive public assistance from programs available only to those with low income); Age Discrimination in Employment Act ("ADEA"), 29 U.S.C. §§ 623(a), 631 (prohibiting age-based employment discrimination against individuals at least 40 years of age); Gen. Dynamics Land Sys., Inc. v. Cline, 540 U.S. 581, 593 (2004) (interpreting ADEA to allow employers to favor comparatively older workers over younger workers—but not vice versa—within the protected age group); Uniformed Services Employment and Reemployment Rights Act, 38 U.S.C. § 4311(a) (protecting individuals who serve in the uniformed services, but not individuals who do not serve in the uniformed services, from discrimination based on their military status).

Colorado is thus free to enact equal-opportunity protections regarding disability and income level that apply only to those with disabilities and those with low income. And the UPK statute's text and express objectives make clear that the General Assembly did exactly that. The Tenth Circuit, like the trial court before it, correctly understood that allowing providers to prioritize children from low-income families and children with disabilities does not deny equal opportunity in violation of the statute.

[*22] 2. The programmatic preference allows no exceptions, allows no discretion to create exceptions, and has never been applied to create exceptions, from the equal-opportunity requirements.

Petitioners argue that the programmatic preference (what they call the "catchall" preference) allows exceptions from UPK's equal-opportunity requirements, Pet. 9–10, 23. The district court rejected this argument, and the Tenth Circuit affirmed the district court's findings. Pet. App. 29a–30a (concluding that "the catchall preference is not a system of individualized exemptions from the nondiscrimination requirement"). As explained, supra at 8–9, this preference addresses the matching software's technical limits while allowing no exceptions from the equal-opportunity requirements. Pet. App. 29a–30a; 65a–69a; 209a–15a; 327a–32a; Supp. App. 56a–59a.

Petitioners nevertheless point to cherry-picked portions of trial testimony by Ms. Odean, a nonlawyer, when she was asked to speculate on-the-fly about hypothetical providers' hypothetical requests to use this preference to serve only gender-nonconforming children, children of color, or the LGBTQ community. Pet. 9–10, 23. But that account disregards the full factual record and the lower courts' considered assessment of it.

Notably, Ms. Odean clarified that CDEC had never received such requests and that she had never before considered them; that she lacked sole authority to approve any preference along these lines; that agency

[4] For the same reasons, because the statute's text makes clear that prioritizing children from low-income families does not deny equal opportunity in violation of the statute, allowing providers to prioritize families who receive public assistance benefits based on their low income does not deny equal opportunity in violation of the statute, notwithstanding the Solicitor General's assertions to the contrary at SG 16.

leadership and counsel would necessarily be [*23] involved in reviewing any such proposal; and that CDEC would not approve a request that violates the equal-opportunity requirements. Pet. App. 32a; 132a–34a; 369a–71a.

That testimony was consistent with that of other agency officials. CDEC representatives uniformly testified that the agency cannot, does not, and has not allowed exceptions to the equal-opportunity requirement. Most notably, Executive Director Dr. Roy—the Department's highest-ranking official—explained that she "do[es] not have the authority to create an exemption" from the statute and that any such exemption would be "void under the State Administrative Procedure Act," because only the legislature may alter statutory mandates. Pet. App. 289a–90a (citing C.R.S. § 24-4-103(8)(a)).

Considering the testimony as a whole, the trial court found that "Ms. Cooke, Ms. Odean, and Dr. Roy have been unwavering in their assertions that [CDEC] cannot permit a participating provider to violate the equal-opportunity requirement." Pet. App. 72a–73a; see also id. at 133a–34a (crediting Ms. Odean's testimony as "confirm[ing] that [CDEC] does not have the authority to grant any exemption from the equal-opportunity requirement").

The trial court properly focused on the dispositive question: whether the agency understood itself to have the power to exercise discretion to authorize exceptions from the equal-opportunity requirements—not whether a single witness (without authority to make final determinations about what would violate those requirements) mistakenly speculated when pressed with hypotheticals she had never contemplated. As [*24] that court explained, "I cannot conclude that Defendants have the discretion to grant such exemptions based merely on hypotheticals and speculation when nothing in the UPK Statute or official documents from [CDEC] supports that it does." Pet. App. 134a. And, of course, the factual record also confirms that no such exceptions have ever even been requested, much less granted. Pet. App. 132a–34a; 369a–71a.

The unanimous Tenth Circuit affirmed the district court's findings: "We do not interpret Director Odean's testimony to imply that [CDEC] was using the catchall preference to violate the nondiscrimination requirement. If anything, Director Odean's insistence that [CDEC] follow the nondiscrimination requirement when considering a requested catchall preference suggests the opposite: that the statutory nondiscrimination requirement is a hard limit." Pet. App. 32a; see also id. ("In practice, we can see that the Department has followed state law on nondiscrimination . . . . Finding a system of individual exemptions would require that we invert a clear reading of [CDEC]'s regulations based not on their language or operation, but a series of hypotheticals posed unexpectedly to one witness at trial.").

In short, the Tenth Circuit not only correctly interpreted the state statute to allow no exceptions—and to confer no discretion to create any exceptions—to its equal-opportunity requirements, but also affirmed the district court's factual findings that CDEC's witnesses understood themselves to have no discretion to grant exceptions and had granted no exceptions. And where "an intermediate court reviews, and affirms, a trial court's factual findings, this Court [*25] will not 'lightly overturn' the concurrent findings of the two lower courts." Easley v. Cromartie, 532 U.S. 234, 242–43 (2001) (citing Neil v. Biggers, 409 U.S. 188, 193 n.3 (1972)).

3. The statute's temporary-waiver provision likewise does not allow exceptions from the equal-opportunity requirements.

Petitioners argue that the UPK statute's temporary-waiver provision provides CDEC with the discretion to create exceptions from UPK's equal-opportunity requirements. Pet. 10. But Petitioners ignore the statute's two separate and independent provisions that make clear that the equal-opportunity requirements are not eligible for waiver, period, and thus that the temporary-waiver provision does not invite the government to consider the particular reasons for a request to waive those requirements. See Fulton v. City of Philadelphia, 593 U.S. 522, 533 (2021).

First, the temporary-waiver provision authorizes CDEC to "allow a preschool provider that does not meet the quality standards to participate in the preschool program for a limited time while working toward compliance with the quality standards." C.R.S. § 26.5-4-205(1)(b)(II) (emphasis added). But a provider seeking permission to deny equal opportunity based on religion, race, sexual orientation, or other protected characteristic cannot simultaneously be working towards compliance with the equal-opportunity require-

ments. A publicly-funded preschool either ensures equal opportunity, or it does not: it takes no time to repeal a policy that denies equal opportunity. Contrast an example where a preschool needs time to train its [*26] teachers on how to document observations of students' behavior or academic progress as required by UPK. Pet. App. 324a. For this reason, the unanimous Tenth Circuit (like the district court before it) correctly interpreted this statutory provision to prohibit "even a temporary exception to the nondiscrimination requirement." Pet. App. 34a.

Second, the statute's temporary-waiver provision also separately forbids waiver of any of UPK's "quality standards relating to health and safety," C.R.S. § 26.5-4-205(1)(b)(II). The Act directed CDEC to establish quality standards that ensure safe and healthy learning environments by reflecting best practices regarding "school readiness, academic and cognitive development, healthy environments, social-emotional learning, and child and family outcomes" and then expressly required those quality standards to include the equal-opportunity requirements. C.R.S. § 26.5-4- 205(1)(a), see also §§ 26.5-1-109(1)(a); 26.5-1-113(1)(a). Because the equal-opportunity requirements help ensure safe and healthy learning environments, they are among UPK's mandatory health and safety standards that the statute bars from waiver even on a temporary basis. Pet. App. 326a.

As the district court recognized, this limitation provides an additional and independent basis for interpreting the temporary-waiver provision as prohibiting any exceptions to the equal-opportunity requirements. Pet. App. 120a; see also id. at 34a ("Based on expert testimony, [the district court] found [*27] that 'discrimination can be harmful, both mentally and physically' to children" (quoting Pet. App. 119a)).[5]

↑ **B. Because this case involves no exceptions, it is not an appropriate vehicle for determining what sort of exceptions would render the government's action not generally applicable**

In asserting a split, Petitioners cite free-exercise decisions where the challenged programs included secular exceptions or the discretion to create such exceptions. In those cases, the parties disputed the implications of such exceptions for the requirements' general applicability. But the Tenth Circuit's decision here does not contribute to any asserted split because it correctly determined that UPK allows no exceptions and confers no discretion to create them.

Petitioners nevertheless assert that it contributes to a split because the Tenth Circuit further indicated that "[e]ven assuming, arguendo," that the preferences allowing providers to prioritize children with disabilities or children from low-income families were somehow understood as exceptions from the statute, the equal-opportunity requirements would remain generally applicable. More specifically, the Tenth Circuit determined that any denial of equal opportunity by the IEP and Head Start preferences would pose barriers distinct from the "completely different and [*28] thus not comparable" barriers posed by sexual orientation and gender identity. 6 Pet. App. 38a–40a. But, again, this Court cannot reach that comparability question unless and until it has rejected the Tenth Circuit's decision that the state statute as enacted and as implemented allows no exceptions to the equal-opportunity requirements. The Tenth Circuit held that (1) as a matter of state law, there are no exceptions to the equal-opportunity requirements; and (2) if the IEP and Head Start preferences were understood (arguendo) as exceptions to the equal-opportunity requirements, those preferences would likely be unlawful under state law. Id. Regardless of whether this comparability discussion is dicta or an alternative basis for decision, it does not warrant this Court's review, particularly when the threshold holding on matters of state statutory interpretation do not warrant review.

More specifically, Petitioners and the Solicitor General point to decisions that, unlike the decision here, required comparability analysis because the law included exceptions. For example, the challenger in Emilee Carpenter, LLC v. James sought a religious exception from New York's statute prohibiting public accommodations from discriminating on a variety of characteristics. 107 F.4th 92, 96 (2d Cir. 2024). Be[6]cause [*29] the statute allowed exceptions for sex discrimination, the Second Circuit applied Fulton's comparability analysis; it then held the law generally applicable because it found that the exempted

[5]The Tenth Circuit did "not find it necessary to decide this issue." Pet. App. 34a–35a ("Even without [the prohibition on waiving any of the health and safety standards], the temporary waiver provision cannot be reasonably understood to give [CDEC] discretion to allow a preschool to ignore the nondiscrimination requirement.").

secular conduct did not undermine the state's equality interests "in a similar way" to the requested religious exception regarding sexual orientation. Id. at 110–11 (quoting Fulton, 593 U.S. at 534).

The other decisions cited are distinguishable from the case at hand for the same reason: in those cases, the government's programs included exceptions, thus requiring comparability analysis. See Miller v. McDonald, 130 F.4th 258, 267–68 (2d Cir. 2025);[7] Smith v. City of Atlantic City, 138 F.4th 759, 771 (3d Cir. 2025); Lowe v. Mills, 68 F.4th 706, 714–17 (1st Cir. 2023); We the Patriots USA, Inc. v. Hochul, 17 F.4th 266, 285–86 (2d Cir. 2021), cert. denied, Dr. A v. Hochul, 142 S. Ct. 2569 (2022); Monclova Christian Acad. v. Toledo-Lucas Cnty. Health Dep't, 984 F.3d 477, 480–82 (6th Cir. 2020); Blackhawk v. Pennsylvania, 381 F.3d 202, 211 (3d Cir. 2004); Fraternal Ord. of Police v. Newark, 170 F.3d 359, 365 (3d Cir. 1999); Civ. Rts. Dep't v. Cathy's Creations, Inc., 109 Cal. App. 5th 204, 268 (Cal. Ct. App. 2025), cert. denied, Miller v. Civ. Rts. Dep't, No. 25-233, 2025 WL 3506999 (U.S. Dec. 8, 2025); Spillane v. Lamont, 323 A.3d 1007, 1025–28 (Conn. 2024); Mitchell County v. Zimmerman, 810 N.W.2d 1, 15–16 (Iowa 2012); State v. Spell, 339 So. 3d 1125, 1135–37 (La. 2022).

[*30] The Tenth Circuit's decision doesn't conflict with any of these decisions because it concluded that UPK, as enacted and as implemented, allows no exceptions, thus obviating comparability inquiry. Pet. App. 35a– 36a.

Petitioners also cite decisions holding that laws failed general applicability because they conferred governmental decisionmakers with some sort of discretion to grant exceptions. Fellowship of Christian Athletes v. S.J. Unified Sch. Dist. Bd. of Educ. ("FCA"), for example, involved a school district's policy requiring student groups to use non-discriminatory criteria for membership decisions, where all agreed that the policy conferred the board with discretion to grant exceptions. 82 F.4th 664, 687–88 (9th Cir. 2023). The Ninth Circuit concluded that the "mere existence of a discretionary mechanism to grant exemptions can be sufficient to render a policy not generally applicable." Id. The court also determined that the board had exercised that discretion to allow secular student groups to limit membership based on sex and ethnicity and that those exceptions posed risks to the district's equality interests comparable to those posed by the requested religious exception. Id. at 689–90.

In contrast, the Tenth Circuit held that UPK as enacted and implemented confers no discretion (fettered or unfettered, objective or subjective) to make individualized exceptions. Pet. App. 41a–43a. Indeed, the Tenth Circuit specifically distinguished FCA on the ground that "the school district in FCA was freely granting exemptions at its discretion, while [CDEC] does not have the discretion to make exceptions to the nondiscrimination requirement." Pet. App. 41a. For [*31] the same reason, UPK is distinguishable from the other cases cited where the government had some power to grant exceptions but the parties disputed whether that power rendered the program not generally applicable. See Bates v. Pakseresht, 146 F.4th 772, 796–98 (9th Cir. 2025); Smith v. City of Atlantic City, 138 F.4th at 771; We the Patriots, 17 F.4th at 288–89; Spillane, 323 A.3d at 1025–28; Blackhawk, 381 F.3d at 209–10; State v. Armitage, 319 P.3d 1044, 1067 (Haw. 2014).[8]

In sum, Petitioners point to decisions that required comparability analysis because they involved programs that included exceptions or mechanisms for individualized exceptions. But this case does not. As the Tenth Circuit held, UPK as enacted and implemented allows no exceptions and confers no discretion to create exceptions. Pet. App. 33a. This case is thus not an appropriate vehicle for engaging questions regarding the sorts of exceptions, or discretionary mechanisms for creating exceptions, that render a government's action not generally applicable. [*32]

[6]Mischaracterizing nonrecord deposition testimony from another case, Petitioners assert that CDEC "conceded" that its interest is the "same" for each of the identified protected characteristics in the equal-opportunity provision. Pet. 5. CDEC did not concede this. CDEC has maintained—and the district court found—that its interest in each aspect of the equal-opportunity provision is distinct. Pet. App. 128a.

[7]This Court granted the petition, vacated the judgment, and remanded Miller v. McDonald for further consideration in light of Mahmoud v. Taylor, 606 U.S. 522 (2025). Miller v. McDonald, No. 25-133, 2025 WL 3506969 (U.S. Dec. 8, 2025).

[8]Nor, notwithstanding Petitioners' claim to the contrary, does the Tenth Circuit's decision conflict with North Coast Women's Care Medical Group v. Superior Court, 189 P.3d 959, 966–69 (Cal. 2008) (considering, and rejecting, hybrid-rights arguments) or Midrash Sephardi, Inc. v. Town of Surfside, 366 F.3d 1214, 1231–33 (11th Cir. 2004), cert. denied, 543 U.S. 1146 (2005) (upholding statutory free-exercise challenge to an ordinance that expressly excluded religious assemblies, based on their religious identity, from town's business district).

C. Petitioners conjure a crisis where none exists, adding to the reasons this is a poor vehicle to address any question presented

Petitioners urge this Court to grant certiorari to address their concerns about other publicly-funded preschool programs that expressly exclude private providers from state funding programs or that deny public funding for religious activities or teachings—when UPK does neither. Indeed, stripping Colorado of the ability to enforce neutral and generally applicable requirements could discourage other states from adopting Colorado's mixed-delivery approach that affirmatively includes faith-based and other private preschools. Petitioners also assert, without evidence, that UPK is to blame for some of their schools' financial challenges.

1. Petitioners express concerns about faith-based providers' exclusion from other publicly-funded preschool programs when UPK includes faith-based providers.

Petitioners assert the need for this Court's review to address what it calls the "pervasive" exclusion of religious providers from publicly-funded preschool programs. Pet. 34. But the (nonrecord) article Petitioners cite focuses on other publicly-funded preschool programs that it describes as expressly excluding private providers or prohibiting religious activities or teachings. Id.

Colorado's UPK program does neither. Not only does it include faith-based and other private providers, [*33] CDEC affirmatively sought to include and accommodate religious providers by convening an interfaith working group that included a representative from Petitioner St. Mary Catholic Parish. Pet. App. 12a; 60a. Tellingly, six Catholic Charities providers—each belonging to the Archdiocese of Denver—participate in UPK to this day, as do 40 other faith-based providers. Pet. App. 303a; Supp. App. 92a–95a.

And UPK neither reviews nor regulates providers' religious curriculum. Pet. App. 163a; Supp. App. 74a–75a. Instead UPK ensures that publicly-funded preschools provide equal opportunity, regardless of protected-class status, to the children and families who seek the curriculum those preschools choose to provide. This protects religious families too: UPK ensures that Catholic parents and same-sex parents alike know that they will not be turned away, based on their protected-class status, from the publicly-funded preschool that best meets their families' needs.

2. With no record evidence, Petitioners baldly assert that UPK is to blame for Petitioners' financial challenges. Petitioners suggest, incorrectly and without evidence, that UPK is the source of Petitioners' financial challenges. See Pet. 35 ("Since litigation began, two Archdiocesan preschools have closed, and enrollment at Archdiocesan preschools is down almost twenty percent.").

First, Petitioners fail to mention that the Archdiocese itself explained that it decided to close and consolidate schools (including Petitioner St. Bernadette Catholic Parish's school) after a report it commissioned confirmed "negative enrollment trends across [*34] the state due to a decline in the number of Colorado's school-aged children" since 2021, prior to the implementation of UPK. See Archdiocese Restructuring Catholic Schools' Footprint For Ongoing Vitality, Denver Catholic (Sep. 13, 2024), https://www.denvercatholic.org/archdiocese-restructuring-catholic-schoolsfootprint-for-ongoing-vitality (on file with the Colorado Attorney General's Office).

Second, Petitioners fail to mention that the schools that closed are schools that include preschool classes as only one of nine grades of children, id., when UPK funds only preschools.

Moreover, Petitioners ignore the record evidence demonstrating that at least one of the now-closed preschools had suffered decreased enrollment for years prior to UPK, and had to close for a year due to a change in the school's administration and what Petitioners' own witness had heard was a "toxic culture" at that school, see Supp. App. 87a; 89a–90a. Petitioners similarly ignore that the record includes testimony by the Superintendent of Catholic Schools for the Archdiocese of Denver stating that Archdiocesan preschools had not experienced "a major hit on enrollment" because of UPK and that enrollment numbers were "probably still holding steady." Supp. App. 91a.[9] [*35]

II. The Tenth Circuit's decision is consistent with this Court's precedent

[9]Petitioners also assert, without record evidence, that demand for UPK's services outstrips supply. Pet. 6. They cite an unverified news article that does not address UPK as a whole and to which no finder of fact had access for vetting purposes. Id.

The Tenth Circuit's decision also aligns with this Court's precedent. Petitioners rely on Carson, which held that strict scrutiny applies to the government's intentional exclusion of religious actors, based on those actors' religious character, from public funding programs. 596 U.S. at 780. But as the Tenth Circuit correctly decided, Carson does not apply to this case because UPK does not exclude religious schools: indeed, UPK welcomes them in a program where public funding turns not on providers' secular or religious character, but instead on providers' compliance with UPK's equal-opportunity requirements. Carson involved a free-exercise challenge to a state's choice to provide tuition support to private schools except for private schools "associated with a particular faith or belief system and which, in addition to teaching academic subjects, promotes the faith or belief system with which it is associated and/or presents the material taught through the lens of this faith." 596 U.S. at 775 (citation modified). This Court held that Maine's exclusion of religious schools "solely because of their religious character" triggered, and failed, strict scrutiny. Id. at 780 (quoting Trinity Lutheran Church of Columbia, Inc. v. Comer, 582 U.S. 449, 462 (2017)) (emphasis added). In contrast, "the government is generally free to place incidental burdens on religious exercise so long as it does so pursuant to a neutral policy that is generally applicable." Mahmoud v. Taylor, 606 U.S. 522, 564 (2025). As explained above, the rule challenged here is such a neutral and generally applicable policy.

[*36] Petitioners point to Sherbert v. Verner, 374 U.S. 398 (1963) and Thomas v. Rev. Bd. of the Ind. Emp. Sec. Div., 450 U.S. 707 (1981) to support their claim of a "separate public benefits line of" cases under the Free Exercise Clause. Pet. 26. But no such separate line of cases exists. The unemployment benefits programs in Sherbert and Thomas allowed individualized "good cause" exemptions, for secular reasons, from the general rule denying benefits to those refusing suitable work—but did not grant such exemptions to those refusing suitable work for religious reasons. Sherbert, 374 U.S. at 400–01, 406; Thomas, 450 U.S. at 711–12. Itself an unemployment benefits case, Smith distinguished Sherbert and Thomas not because public benefits were at stake but instead because those states' programs allowed "individualized governmental assessment of the reasons for the relevant conduct." 494 U.S. at 884; see also Fulton, 593 U.S. at 533–34 (describing Sherbert as not generally applicable because it allowed individualized exemptions). UPK allows for no individualized exceptions from the equal-opportunity requirements.

Petitioners inaccurately suggest, Pet. 29, that Mahmoud v. Taylor supports their misplaced claim of a separate public benefits line of cases. See Mahmoud, 606 U.S. at 561 ("[W]hen the government chooses to provide public benefits, it may not 'condition the availability of [those] benefits upon a recipient's willingness to surrender his religiously impelled status.'") (alteration in original) (quoting Trinity Lutheran, 582 U.S. at 462). But Petitioners' selective quotation of Mahmoud unmoors it from its context: Mahmoud was quoting Trinity Lutheran's discussion of a policy that [*37] "expressly discriminates against otherwise eligible recipients by disqualifying them from a public benefit solely because of their religious character." Trinity Lutheran, 582 U.S. at 462. And the Trinity Lutheran quotation itself quoted McDaniel v. Paty's discussion of state law that disqualified clergy from running for state office solely because of their religious character. Id. (quoting McDaniel v. Paty, 435 U.S. 618, 626 (1978)).

In contrast, UPK does not require providers to surrender their religious character: it affirmatively includes religious preschools regardless of their curriculum or who teaches it. UPK's equal-opportunity requirements instead ensure that all Colorado parents—Catholic parents as well as same-sex parents—know that their children will not be turned away, because of their protected-class status, from the publicly-funded preschool that best meets their families' needs.[10]

[10] Petitioners also assert, inaccurately, that UPK impermissibly differentiates among religious providers based on religion. Pet. 29 (citing Cath. Charities Bureau, Inc. v. Wisconsin Lab. & Indus. Rev. Comm'n, 605 U.S. 238, 249 (2025)). Not so. The state program and state-court interpretations at issue in Catholic Charities defined eligible entities in expressly religious terms. See Catholic Charities, 605 U.S. at 250 (distinguishing, for purposes of determining eligibility for tax exemption, religious actors that engage in proselytization or that only serve co-religionists from religious actors that do not). UPK, in contrast, draws no such distinctions. It instead defines eligibility based on providers' compliance with the equal-opportunity requirements, regardless of those providers' religious or secular character.

The Tenth Circuit correctly distinguished the Carson trilogy as involving laws that "targeted 'religious status' and 'religious use' on the explicit basis that [*38] they were religious and not secular." Pet. App. 19a–22a. In sharp contrast, Colorado "did not exclude faith-based preschools from participating in UPK. Indeed, they welcomed and actively solicited their participation." Pet App. at 21a; see also Pet. App. 62a; 303a. Participation in UPK turns not on a preschool's religious character or exercise, but instead on its compliance with UPK's equal-opportunity requirements.

↑ **III. Nothing has changed that warrants this Court's reconsideration of Employment Division v. Smith**

Petitioners ask the Court to overrule Smith, even though the Court has recently declined numerous requests to revisit that decision. E.g., Miller v. Civ. Rts. Dep't, No. 25-233, 2025 WL 3506999 (U.S. Dec. 8, 2025); We The Patriots USA, Inc. v. Conn. Office of Early Childhood Dev., 144 S. Ct. 2682 (2024) (No. 23-643); Tingley v. Ferguson, 144 S. Ct. 33 (2023) (No. 22-942); Dr. A. v. Hochul, 142 S. Ct. 2569 (2022) (No. 21-1143); Ricks v. Idaho Contractors Bd., 141 S. Ct. 2850 (2021) (No. 19-66); Calvary Chapel of Bangor v. Mills, 142 S. Ct. 71 (2021) (No. 20-1346); see also 303 Creative LLC v. Elenis, 142 S. Ct. 1106 (2022) (No. 21- 476) (limiting cert grant to non-Smith question). Nothing has since changed that warrants this Court's reconsideration of Smith.

↑ **Conclusion.** The Court should deny the petition. [*39] Respectfully submitted,

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↑ **St. Mary Catholic Parish, Littleton, Colorado** Reply Brief · Mar. 16, 2026

Reply of petitioners St. Mary Catholic Parish, Littleton, Colorado, et al. filed. (Distributed)

St. Mary Catholic Parish · Reply Brief · Mar. 16, 2026 · petitioner — coupling row C
Cites 9 cases (18 mentions), 2 citations not resolved; 0 statutes and provisions.
Shares with Pet. 26% · Br. in Opp. 20% · Pet'rs Br. 19% · Resp. Br. 14% · Reply Br. 9%; closest: Pet.
Its own ground: 0 cases no other filing cites; 1 shared with its own side only, 8 with the other side.

[*1] REPLY BRIEF

Colorado's brief illustrates better than any law review article how Smith has created a jurisprudence of moral hazard, inviting governments and lower courts to become ever more sophistical in excusing direct interference with religious exercise. Colorado doesn't disagree it is interfering with the religious exercise of parents and schools. Instead, it says it is perfectly fine to exclude Catholic preschools while letting in preschools preferring those with disabilities, limited income, or LGBTQ identity. That's because, under Smith, Colorado thinks it can manipulate the law in question—if one squints hard enough—to exclude only those entities Colorado is determined to disfavor.

If governments (aided by lower courts) can manufacture "general applicability" and "neutrality" merely by careful drafting or creative interpretation, the Free Exercise Clause is of little import. And Smith invites this manipulation by pointing the judicial eye in the wrong direction. Instead of asking judges to look first at the real-world interference with religious exercise, Smith's general-applicability analysis tells them to look at how the law applies in the abstract to others who lack a religious objection to complying with it—a question orthogonal to the Free Exercise Clause and one whose answer lies primarily in the government's hands.

The Court can of course decide this case without overruling Smith. The general-applicability question presented involves as clear a split as one can imagine. And Colorado's thumbing of its nose at the rule of Trinity Lutheran, Espinoza, and Carson violates a line of precedent already outside Smith. Answering either [*2] question presented would be enough to resolve this case.

But eventually the Court will need to take a case very like this one—where a government offers ever more preposterous reasons why its interference with religious exercise is permissible—to stop the ongoing church-state conflicts Smith inevitably engenders. Until this Court excises it, Smith will remain a malignancy within the First Amendment. For the sake of those whose religious freedom is being infringed today and will be in coming years, the Court ought to undertake the necessary surgery now.

↑ **Argument.**

↑ **I. There is a square split over the general-applicability standard**

This case presents an acknowledged and certworthy split over how to apply Smith's general-applicability rule. Pet.15-21. As the United States explains, the split is especially "clear" in cases involving "a nondiscrimination policy that contains exceptions for some designated characteristics but not others"—with "this petition appear[ing] to present the cleanest option" for addressing the split. U.S.Br.11, 17-20.

1. Respondents don't dispute the split. BIO.16 n.2. Nor do they dispute that resolving it is important. Instead, they assert "the Tenth Circuit interpreted the [UPK] statute as allowing no exceptions and no discretion to create exceptions," so this case "does not implicate" the split. BIO.16.

That misses the mark. Not even Respondents can claim the Tenth Circuit avoided the split altogether. [*3] Rather, they concede the court alternatively "assum[ed]" exceptions permitting preschools to make enrollment decisions based on disability and income, but nonetheless said these exceptions didn't defeat general applicability because they didn't apply to sexual orientation or gender identity. BIO.27-28 (citing Pet.App.38a-40a). That sides with the Second Circuit but "squarely conflicts with the en banc Ninth Circuit, which holds that any exception from" an equal-access policy triggers strict scrutiny. U.S.Br.3-4; see Fellowship of Christian Athletes v. San Jose Unified Sch. Dist., 82 F.4th 664, 689 (9th Cir. 2023) (en banc) (all exceptions "pose an identical risk").

More fundamentally, far from avoiding the split, the Tenth Circuit's "no exceptions" rationale exacerbates it. Pet.23-24. That is because it conflates questions of state law (e.g., whether something is a formal "exception") with what the Free Exercise Clause's general-applicability analysis demands—and in doing so adopts the very "myopic approach" to general applicability courts on the other side of the split reject. Monclova Christian Acad. v. Toledo-Lucas Cnty. Health Dep't, 984 F.3d 477, 481-482 (6th Cir. 2020) ("relevant inquiry" turns on substance, not labels). As those courts hold, general applicability isn't lacking only when there are "specific, enumerated exceptions" written into a law. Smith v. City of Atlantic City, 138 F.4th 759, 771 (3d Cir. 2025). Instead, courts must ask whether the government has "permitted" (or has discretion to permit) "conduct that undermine[s] its interest while disfavoring religious conduct undermining the same interest." Ibid. Any narrower inquiry would "allow for easy evasion of the Free Exercise guarantee of equal treatment," Monclova, 984 F.3d at 481, permitting "governments to subvert free exercise [*4] through" formalism and "clever drafting," Atlantic City, 138 F.4th at 772.

In jurisdictions applying the correct rule, Colorado's regime would fail general applicability. Regardless of whether the preferences granted to other preschools are viewed as "exceptions" or instead as exclusions from the Mandate's scope (BIO.2-3), they undermine the government's asserted interest in the law. Colorado's Mandate articulates a clear interest: ensuring "an equal opportunity to enroll and receive preschool services regardless of" all specified protected characteristics. Pet.App.204a; see also Pet.5, Pet.App.28a, 58a-59a (affirming identical, undifferentiated interest). Yet Colorado permits (and has discretion to permit) conduct undermining that interest. All agree, for example, that Colorado permits preschools to limit enrollment to low-income families or students with disabilities (Pet.8-9; BIO.9; U.S.Br.13-15) even though "income level" and "disability" are explicitly covered by the Mandate. See also Pet.22-24 (discretion). Whether Colorado characterizes these as exceptions or as an atextual gloss on the Mandate for purposes of state law is irrelevant to whether Respondent's gerrymandered interpretation is generally applicable for purposes of the Free Exercise Clause. See Pet.21-22. Colorado is thus wrong to suggest the constitutional analysis here turns on "state statutory interpretation." BIO.16.

In short, the split implicated by this case "is widespread, entrenched, and worth addressing." Dr. A v. Hochul, 142 S. Ct. 2569, 2570 (2022) (Thomas, J., dissenting). And this case is an ideal vehicle for addressing it.

[*5] 2. In any event, Respondents' labored efforts to harmonize these exceptions with the Mandate "as a matter of state law" (BIO.16-27) fail. No "deference" (BIO.[1]) is due a facially implausible reading of a straightforward provision. If it were, Lukumi and Fulton would have come out the other way. E.g., Fulton v. City of Philadelphia, 593 U.S. 522, 540 (2021) ("We respectfully disagree with the view of the City" regarding Philadelphia's ordinance). And Respondents' distorted interpretation of the Mandate cannot withstand any level of scrutiny.

First, Respondents claim allowing preschools to "prioritize children from low-income families and children with disabilities" is consistent with the Mandate because the law protects only "children with disabilities" and "children from low-income families" from "'being discriminated against.'" BIO.[2], 17-18. By its plain terms, the Mandate does no such thing. It never uses the words "discriminate," "low-income," or even "with." Rather, it requires an equal opportunity to enroll "regardless of" "income level" (high or low) or "disability" (existent or not). Pet.App.204a (emphasis added); contra BIO.2. Nor is there any textual justification for reading the Mandate differently for some protected characteristics—all appear in a single list. Tellingly, the one-way-ratchets Respondents cite use different language or include defined terms. BIO.21. And the Mandate itself confirms Colorado's legislature knows how to draft a one-way-ratchet. Pet.App.6a ("lack of housing").

Nor do any of the other provisions of the UPK statute change this outcome. That the statute contemplates participation by children with disabilities and "head start program[s]" doesn't give anyone license to [*6] ignore the Mandate. BIO.18. And that the Legislature made children with disabilities and low-income

[1]That Archdiocesan preschool enrollment was "probably still holding steady," BIO.34, shortly after UPK began is hardly surprising. Equally unsurprising is that it's no longer true. Pet.12 (nearly 20% decline).

[2]Colorado is now trying to impose a similar non-discrimination requirement on a newly-enacted federal education tax-credit. See H.B. 26-1292, 75th Gen. Assemb., 2d Reg. Sess. (Colo. 2026). Presumably another "model" for other states.

families eligible for additional hours (BIO.18) is irrelevant.

Like the policy in Fellowship of Christian Athletes, the Mandate's text "does not provide exceptions for 'benign' discriminatory membership rules." 82 F.4th at 693. And while there are good reasons for laws accommodating those with disabilities and low incomes, there are also good reasons to permit religious schools to maintain their religious identity.

Second, Colorado says the Court should discount Respondent Odean's testimony that UPKparticipating preschools could prioritize "gender-nonconforming children," "children of color," and "the LGBTQ community," because she and Colorado's other witnesses also testified that Respondents "would not approve a request that violates the equal-opportunity requirements." BIO.22-23. This is just more formalistic quibbling about the meaning of an "exception." The UPK director testified that such preschools are free to participate in UPK, because, in her view, they favor "historically * * * discriminated against" communities, while the Mandate is meant only to "ensure[ ] that children aren't discriminated against who historically have been." Pet.App.342a-343a, 354a. Colorado's lawyers haven't disavowed this understanding of the Mandate—they've endorsed it. E.g., Colo. C.A. Br.32.

Third, Colorado asserts the Mandate isn't "eligible for waiver" under the UPK statute's expressly discretionary waiver provision. BIO.25-27; see Pet.10. But Colorado's mid-litigation claim that a rule governing enrollment is a non-waivable "health and safety" requirement defies ordinary meaning and would render virtually every obligation non-waivable. "At some [*7] great height, after all, almost any state action might be said to touch on * * * health and safety." Yellowbear v. Lampert, 741 F.3d 48, 57 (10th Cir. 2014) (Gorsuch, J.). And Colorado's suggestion that "it takes no time to repeal" a policy motivated by millennia-old religious beliefs underscores the religious insensitivity that triggered this dispute. BIO.25-26.

In the end, it should be no surprise that Respondents' actions aren't generally applicable: While "roughly 1,900" preschools participate in UPK, Pet.App.61a, the only preschools the Mandate excludes in practice (as Respondents don't contest) are those with traditional religious beliefs about marriage. Pet.23-24. That Respondents claim to reach this result by creatively interpreting state law, see BIO.8 (harmonizing "multiple directives"), makes no difference. Seven other jurisdictions would apply strict scrutiny.

3. Unable to escape the split, Colorado nit-picks. First, it second-guesses Petitioners' understanding of why some of their preschools have closed. BIO.33-34. But even the report Colorado cites attributes closures first to "serious financial challenges"—which plainly include being shut out of UPK. And insofar as the number of Colorado school-aged children has declined, that only makes it more important for Archdiocesan preschools to be able to "compete with secular" preschools on equal footing. Trinity Lutheran Church of Columbia, Inc. v. Comer, 582 U.S. 449, 463 (2020). 1

[*8] Next, Colorado mischaracterizes Petitioners' religious exercise. BIO.12. Petitioners' enrollment policies require all families to support Catholic teachings, declining to admit those who do not "out of abundant respect for the family." App.318a; Pet.7.

Finally, Colorado proudly announces that "an interfaith working group" helped it design the UPK program. BIO.33. But if "working groups" were all a hostile government needed to immunize itself from constitutional scrutiny, the Religion Clauses would be a dead letter.

↑ **II. Governments should not be allowed to circumvent Carson v. Makin**

Under the line of benefits cases culminating in Carson, strict scrutiny applies when the government denies otherwise-available public benefits "based on a recipient's religious exercise"—no Smith inquiry needed. Carson v. Makin, 596 U.S. 767, 785 (2022); see also id. at 781, 789. The Tenth Circuit rejected this rule, holding that Carson applies only when the exclusion is "on the explicit basis" that the relevant exercise was religious. Pet.App.21a-22a. Certiorari is warranted to stop this Carson defiance—already adopted by two other circuits—before it metastasizes further. Pet.24- 30.

Colorado's response is to defend the Tenth Circuit, claiming UPK doesn't "intentional[ly] exclu[de]" religious preschools as such but "welcomes" them—provided they abandon disfavored religious practices. BIO.35. This flouts Carson. Maine said the same thing: it didn't exclude all religious schools, only those engaged in the disfavored religious exercise—"present[ing] the material taught through the lens" of their [*9] faith. 596 U.S. at 775. This Court rejected that argument as "offensive to the Free Exercise Clause." Id. at 787.

In fact, Colorado's eagerness to include other religious preschools with state-favored religious beliefs makes the problem worse. As Carson says, "[a]ny attempt to" distinguish religious status from exercise "by scrutinizing whether and how a religious school pursues its educational mission would also raise serious concerns about state entanglement with religion and denominational favoritism." 596 U.S. at 787. On Colorado's theory, governments can pick religious "winners and losers"—financially incentivizing the religious practices it approves while making it more costly to adhere to those that "legislative majorities might find unseemly or uncouth." Espinoza v. Montana Dep't of Revenue, 591 U.S. 464, 513-14 (2020) (Gorsuch, J., concurring).

Indeed, on Colorado's own account, while a preschool's eligibility for UPK might not explicitly turn on a school's religiosity (BIO.37 n.10), it does "ultimately turn[ ] on inherently religious choices"—like "whether to * * * serve only" families who support its faith. Catholic Charities Bureau, Inc. v. Wisconsin Labor & Indus. Rev. Comm'n, 605 U.S. 238, 250 (2025). That the exclusion here doesn't refer to these choices in expressly religious terms makes no difference; the effect on the religious exercise (give it up or no benefit) is identical. See Carson, 596 U.S. at 785 (benefits cases "turn[ ] on the substance of free exercise protections, not on the presence or absence of magic words").

Next, Colorado disputes there is any "'separate public benefits line of' cases," claiming the Free Exercise Clause is Smith all the way down. BIO.35-36. Not [*10] even the Tenth Circuit bought that. Pet.App.19a ("independent line of precedent"). And for good reason: Among other things, Carson explicitly grounded its reasoning in pre-Smith benefits cases like Sherbert and Thomas, without citing Smith. And while Colorado invokes Smith's attempt to reconcile Sherbert, BIO.36, that played no role in Carson's explanation of Sherbert. See 596 U.S. at 778 (state could not withhold benefits because "individual lost his job for refusing to abandon the dictates of his faith" (citing Sherbert and Thomas)).

Indeed, Colorado's purported distinction of Carson is just the latest attempt by "opponents of the Court's" benefits decisions "to riddle them with holes"—the same stratagem they tried after Trinity Lutheran and Espinoza. Notre Dame Br.3-4. As amici explain, the pivot from explicit exclusions of religious schools (à la Espinoza) to "[s]upposedly neutral" but "religiously onerous conditions" (this case) is part of a conscious effort to—in proponents' words—"'outmaneuver the [C]ourt and avoid the consequences of [Carson]' by finding new ways to limit the participation of religious schools." Id. at 12-20; Pioneer Br.9-12. In just the "few years since Carson, at least four States have gone full throttle on this alternate strategy," including Maine itself. States Br.16-21. And, absent review, more will follow, particularly after the Tenth Circuit has touted Colorado as a "model example." Pet.App.42a. 2 [*11]

↑ **III. Employment Division v. Smith should be overruled**

Colorado's response illustrates the manifold problems with Smith. Colorado's contrived "state law" maneuvering—though incorrect—underscores the gulf between the purported simplicity of Smith-in-theory and the tangled reality of Smith-in-practice. See supra 2-8; Robertson Center Br.6-9.

It also highlights Smith's divergence from the core meaning of the Free Exercise Clause. That is, even if Colorado's general-applicability arguments were right (they aren't), it's hard to see why that should matter. The burden on Petitioners' religious exercise is the same regardless of whether, say, other preschools can prioritize children with disabilities. Here, as elsewhere, Smith threatens to make the Free Exercise Clause inquiry turn not on "the religious claimant's interest in getting an exemption or the government's interest in denying one" but on the government's regulation of other actors who don't share the religious exercise at issue—i.e., on "constitutional luck." Barclay Br.7 (quoting Christopher C. Lund, Second-Best Free Exercise, 91 Fordham L. Rev. 843, 869-870 (2022)); Thomas More Br.17-20.

Colorado's gamesmanship is also standard-issue under Smith. See USCCB Br.12-14; States Br.16-23. When faced with a neutrality-and-general-applicability problem, Smith encourages governments not to accommodate religion but to close "loophole[s]" and send the claimant "back where it started." Fulton, 593 U.S. at 624-625 (Gorsuch, J., concurring). Indeed, when Colorado's original "no exceptions" claim failed in the district court, it simply had another go, revising its regulations to replace the congregation exception with [*12] another preference designed to achieve the same ends without running afoul of the district court's reasoning—while still excluding Petitioners. Pet.9-10, 9 n.3; BIO.13 n.1. See also Notre Dame Br.12-20.

This Court has ample resources to undertake the inquiry into the proper understanding of the Free Exercise Clause—an inquiry Smith hardly tried. See, e.g., Barclay Br.11-23 (collecting scholarship on original meaning and application). Colorado's response confirms it is time to do so.

↑ **IV. The questions presented have nationwide importance**

As the United States stresses, the petition presents not only "an excellent vehicle" to address these important issues but also "the best apparent" one in the pipeline. U.S.Br.11, 23-24. Colorado, meanwhile, doesn't dispute the exceptional importance of the questions presented or their nationwide import. Rightly so: Catholic and other religious schools across the country play a crucial role in providing high-quality education. See USCCB Br.15-20; Ed. Choice Br.24-25; Colo. Ass'n Br.6-8. And the existence of religious schools is indisputably "vital to many faiths practiced in the United States." Our Lady of Guadalupe Sch. v. Morrissey-Berru, 591 U.S. 732, 754 (2020).

Yet the rulings below give hostile states a playbook for leveraging their vast and growing government funding programs to pressure religious schools and other ministries to abandon their religious practices or else be excluded from the arena. See Pet.34; U.S.Br.23; States Br.15-22; USCCB Br.12-14. Many states are already doing so. See U.S.Br.23; States Br.15-22; [*13] USCCB Br.12-14; Notre Dame Br.12 ("widespread tactic"). And while Colorado says some other states' exclusions are "expressly" based on religion, BIO.32-33, that only underscores the continued urgency of this Court's intervention in this area. These exclusions benefit no one: "If anything," including Catholic preschools "seems likely to increase, not reduce," opportunities for all families. Fulton, 593 U.S. at 542; see also USCCB Br.14; Ctr. for Am. Liberty Br.11-12.

↑ **Conclusion.** The Court should grant the petition.

Respectfully submitted.

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MARCH 2026

Merits Stage

St. Mary Catholic Parish, Littleton, Colorado Brief on the Merits · June 25, 2026

Brief of petitioners St. Mary Catholic Parish in Littleton, et al. filed.

St. Mary Catholic Parish · Brief on the Merits · June 25, 2026 · petitioner — coupling row D
Cites 41 cases (138 mentions), 16 citations not resolved; 5 statutes and provisions (1 bare section cites not resolved).
Shares with Pet. 27% · Br. in Opp. 17% · Cert. Reply 19% · Resp. Br. 37% · Reply Br. 24%; closest: Resp. Br.
Its own ground: 6 cases no other filing cites; 5 shared with its own side only, 30 with the other side.
Statutes: Colo. Rev. Stat. § 26.5-4-201 ×2; U.S. Const. amend. I; 28 U.S.C. § 1254; Colo. Rev. Stat. § 26.5-4-205; 8 Colo. Code Regs. 1404-1.

Questions Presented. [*i] 1. Whether proving a lack of general applicability under Employment Division v. Smith requires showing unfettered discretion or categorical exemptions for identical secular conduct.

2. Whether Carson v. Makin displaces the rule of Employment Division v. Smith only when the government explicitly excludes religious people and institutions. [*1]

Introduction. In Carson v. Makin, this Court held that excluding "otherwise eligible schools" from a public tuition assistance program "on the basis of their religious exercise" triggers strict scrutiny under the Free Exercise Clause. 596 U.S. 767, 789 (2022). That conclusion follows from this Court's longstanding rule that the government may not condition access to a public benefit on a recipient's abandoning religious exercise.

Carson should have made this case an uncomplicated one. Colorado created a "universal" preschool program (UPK) with the express purpose of funding preschool "for all Colorado children in the year preceding kindergarten." Yet despite these stated aspirations to universality, it is undisputed that Colorado knowingly excluded Catholic preschools solely on account of their religious exercise. The resulting burden on Petitioners' religious exercise is unsurprising. Enrollment in Petitioners' preschools has dropped almost twenty percent, Petitioner St. Bernadette closed its preschool, and Petitioners Daniel and Lisa Sheley have been denied over $12,000 in tuition assistance simply for choosing a Catholic education. Colorado's interference with Petitioners' free exercise of religion ought to have been obvious.

But rather than apply Carson, the Tenth Circuit quarantined it, limiting Carson to situations where government exclusions are "on the explicit basis" of religion. Pet.App.21a. In the Tenth Circuit's view, unless the wolf comes as a wolf, it must be a sheep. That reconceived Free Exercise Clause flies in the face of this Court's precedent and offers little comfort to religious people, who suffer the same burden whether government openly singles out religion or not.

[*2] Eschewing Carson, the Tenth Circuit instead relied on Employment Division v. Smith to uphold Colorado's exclusion of Petitioners from the State's universal preschool program. But even under Smith's flawed framework, Colorado's actions fall short because they are far from generally applicable. Colorado has gone out of its way to allow over 1,000 other UPK preschools to serve four-year-olds in "specific communities" by, among other things, creating both categorical and discretionary exceptions from the same statutory provision it is strictly enforcing against Petitioners.

Worse, Colorado has repeatedly modified its regulations in response to this lawsuit to ensure other preschools can continue serving specific communities while keeping Petitioners out. Colorado even allows UPK preschools to discriminate in favor of "gender-nonconforming children," "children of color," or members of "the LGBTQ community." Yet the State maintains that Petitioners' preschools cannot even consider a prospective family's religious affiliation if they want to participate in UPK. Colorado's actions require strict scrutiny.

The rest follows rapidly. Since Colorado actively encourages preschools tailored to other "specific communities," Colorado can have no compelling interest in excluding Petitioners' religious communities. And it has not used anything like the least restrictive means available to advance its supposed interest. It has therefore violated the Free Exercise Clause.

* * *

Arguments for limiting the free exercise of religion have long invoked the specter of "anarchy." Sophocles, Antigone 751-752 (Robert Fagles trans., Penguin Books 1984); Employment Div. v. Smith, 494 U.S. 872, [*3] 888 (1990). But if Colorado's behavior shows anything, it is that the anarchy runs all the other way. Colorado's bobbing and weaving across the course of this litigation shows that obsessive government attempts to suppress disfavored religious exercise do far more damage to the rule of law than thoughtful accommodations of religion ever will. The Court should put the law of free exercise back on the right path and reverse the decision below.

↑ **Opinions Below.** The Tenth Circuit's opinion is reported at 154 F.4th 752 and reproduced at Pet.App.1a. The district court's opinion is reported at 736 F. Supp. 3d 956 and reproduced at Pet.App.50a.

↑ **Jurisdiction.** The Tenth Circuit entered judgment on September 30, 2025. The petition was timely filed and granted on April 20, 2026. This Court has jurisdiction under 28 U.S.C. 1254(1).

↑ **Constitutional and Statutory Provisions Involved.** The First Amendment to the United States Constitution provides in relevant part: "Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof[.]" U.S. Const. Amend. I.

Colo. Rev. Stat. §§ 26.5-4-201 et seq. is reproduced in relevant part at Pet.App.187a-208a.

8 Code of Colorado Regulations § 1404-1 is reproduced in relevant part at Pet.App.209a-215a. [*4]

↑ **Statement of the Case.**

↑ **A. Colorado's universal preschool program**

In 2020, Colorado voters passed a ballot proposition to provide state funding for a new universal preschool program (UPK) intended to make preschool "widely available for free." Colo. Proposition EE (approved Nov. 3, 2020). The Colorado General Assembly responded by codifying the new program into law and creating the Department of Early Childhood to administer the program. Colo. Rev. Stat. §§ 26.5-4-201 et seq. (UPK statute).

The "purpose[ ]" of UPK is "[t]o provide children in Colorado access to voluntary, high-quality, universal preschool services free of charge." Pet.App.195a. As the General Assembly found, "[i]n approving proposition EE, the voters supported funding for * * * high-quality preschool programming for all Colorado children in the year preceding kindergarten." Pet.App.190a.

The General Assembly also found that research demonstrates "the positive and long- and short-term impacts of high-quality preschool, including improved early literacy, reduced grade retention, decreased probability of developing a significant reading deficiency, improved performance on statewide standardsbased assessments, and increased rate of high school graduation." Pet.App.187a. It further found that research demonstrates "that economically disadvantaged children derive greater benefits from preschool programs in states that offer universal programs than in states that offer preschool programs specifically for economically disadvantaged children." Ibid. Accordingly, Colorado embraced a universal rather than a targeted preschool funding program.

[*5] UPK reimburses the cost of fifteen hours per week of preschool for all four-year-old Colorado children "regardless of their economic circumstances." Pet.App.187a; Pet.App.51a. Colorado currently values this tuition assistance at, on average, $6,300 per child. See Department of Early Childhood, Press Release, (Dec. 9, 2025), https://perma.cc/S7TR-Q4JX. Since 2023, Colorado has provided this benefit to over 87,000 children. Ibid.

To maximize preschool options, the UPK statute requires a "[m]ixed delivery system," meaning that families can use UPK funding to send their child to the participating preschool of their choice—public, private, or faith-based. Pet.App.193a. This is a "foundational aspect of the UPK Program." Pet.App.59a. The program's "goal" is "to recruit and engage providers * * * of all types," in order to "give families every opportunity to seek a provider of their choosing, and that includes faith-based providers." Pet.App.60a.

Any licensed preschool can participate in the program if it signs a UPK provider contract and meets the Department's "quality standards." Pet.App.6a-7a. Most standards address issues like "the minimum number of teaching hours, classroom sizes, [and] teacher qualifications." Pet.App.6a; Colo. Rev. Stat. § 26.5-4-205. The UPK statute, however, also imposes an "equal opportunity" mandate. Pet.App.204a. This mandate requires that "each preschool provider provide eligible children an equal opportunity to enroll and receive preschool services regardless of race, ethnicity, religious affiliation, sexual orientation, gender [*6] identity, lack of housing, income level, or disability[.]" Ibid.; Pet.App.6a, 62a, 212a.[1]

B. Colorado's enrollment system

The UPK enrollment process is designed to help families "access programming that best fits their family's needs" as well as to "help match preschools with specific groups of students that [the preschools] are designed to serve." Pet.App.59a, 65a, 7a. To manage this process, Colorado created a lottery system with flexible exceptions called enrollment "preferences." Pet.App.65a.

1. Families first sign up to receive UPK benefits through an online portal. Pet.App.64a. The portal allows families to select up to five participating preschools and rank them in order of preference. Ibid. The Department then uses a customized algorithm to match families with one of their ranked choices. Pet.App.65a. If none of a family's first five choices is available, that family can seek to match with additional preschools. Pet.App.7a.

When the Department implemented this new system, however, many preschools expressed concern that "important considerations were being overlooked." Pet.App.65a. In particular, preschools complained that "this kind of ranking system was too haphazard because schools had no control over which students they were matched with." Pet.App.7a. The Department agreed, acknowledging that, given the wide [*7] variety of providers and the specific "communit[ies]" or "families" those providers aimed to serve, "it would be 'really difficult' for providers to be able to participate if they had to accept every child who could be matched to them." Pet.App.72a.

2. The Department therefore created a system of enrollment "preferences" for UPK preschools to use. These preferences allow preschools "to decline to enroll children they are matched with who do not fit their enrollment preference." Pet.App.7a. After announcing additional amendments to the proposed preference system the day before trial, J.A.313, the Department adopted final regulations on March 28, 2024, that included ten different enrollment preferences:

1. Faith-based preschools may limit enrollment to "members of their congregation." Pet.App.8a.

2. Cooperative preschools may limit enrollment to families whose parents will actively participate in the school. Pet.App.8a. 3. Public preschools may limit enrollment "consistent with their established [geographic] boundaries." Pet.App.8a. 4. Preschools may limit enrollment to children "with an Individualized Education Program (IEP)," Pet.App.8a, 35a-37a, or "only serve children with certain disabilities," Pet.App.347a.

5. Head Start preschools may limit enrollment to low-income families. Pet.App.347a; Pet.App.8a, 35a-37a.

6. Preschools may prioritize children of their employees. Pet.App.8a.

[*8] 7. Preschools may prioritize children previously enrolled in the same preschool. Pet.App.8a.

8. Preschools may prioritize students "to keep siblings similarly located." Pet.App.8a. 9. Preschools may prioritize "an eligible child who is multilingual." Pet.App.8a-9a. 10. Preschools may limit enrollment based on the child "being a part of a specific community," "having specific competencies or interests," "participating in a specific activity," "receiving specific public assistance benefits," or "having a specific relationship to the provider." Pet.App.9a.

The tenth enrollment preference is a "catchall," designed to allow "participating preschool providers [to] grant [an enrollment] preference" to specific families or specific communities on a preschool-by-preschool basis. Pet.App.9a. The Department created this catchall preference because it "couldn't anticipate each provider's individualized needs," Resp.C.A.Br.8, but wanted to be "inclusive of different types of communities" and to "honor mixed delivery and family choice," Pet.App.340a, 344a.

[1]The Department also created a nondiscrimination provision that would "permit the Department to dictate the hiring decisions of faith-based providers." Pet.App.63a. After Petitioners challenged that provision in this litigation, Colorado "disavowed enforcement" of the requirement and "removed" it. Pet.App.63a-64a.

The catchall provision lists six "[e]xamples of approved preferences":

[1] providers who require a focus in a certain knowledge area * * * ; [2] providers who serve families with a family member who works or attends school at a specific site(s) or location(s); [3] providers who serve families within a specific geographical catchment area; [4] providers who require a certain amount of volunteering [*9] or participation by the participating family; [5] providers who require certain vaccinations for the health and safety of its staff and students; and [6] providers who serve families who are receiving a specific public assistance benefit(s) such as housing assistance.

Pet.App.10a. The catchall provision, however, notes that approved preferences are "not limited to" these examples. Ibid. It also provides that any preferences must still be consistent with the equal-opportunity mandate, which prohibits enrollment preferences based on "race, ethnicity, religious affiliation, sexual orientation, gender identity, lack of housing, income level, or disability." Pet.App.6a.[2]

The UPK statute also includes a temporary exemption for out-of-compliance preschools: "[T]he department may allow a preschool provider that does not meet the quality standards to participate in the preschool program for a limited time while working toward compliance." Pet.App.7a; Pet.App.203a.

3. The system of enrollment preferences operates on both the front and back ends of the enrollment process. On the front end, when families use the online UPK portal, the Department may ask them questions to determine if they qualify to enroll in specific UPK preschools before they see which preschools are available. Pet.App.69a. On the back end, if a child is matched with a preschool but does not satisfy that preschool's enrollment preferences, the preschool may decline to enroll the child. Pet.App.7a; Pet.App.69a.

[*10] In practice, the Department has approved numerous enrollment preferences affecting many thousands of children. Of approximately 2,000 preschools in UPK, over 1,000 preschools impose "at least one preference," and some impose several. Pet.App.69a, 363a-364a. Each preschool's enrollment preferences are displayed prominently below the preschool's name in the Department's online UPK portal. S.J.A.2-8, J.A.124- 25; Pet.App.69a. A UPK preschool's description in the UPK portal may state, for example: "This is a provider that prioritizes placement for the children of their employees" or "[t]his is an immersive or dual language provider and children may need to be screened to participate in the program." S.J.A.2-8, J.A.124-125 (listing several more examples).

Some UPK preschools impose Department-approved enrollment preferences that expressly conflict with the equal-opportunity mandate's equal access requirement. For example, some preschools deny enrollment to families based on their income level, giving preference to low-income families who fall into specific income brackets. Pet.App.35a-37a. Other preschools deny enrollment based on disability, enrolling only children who have "certain disabilities." Ibid.; J.A.311.

The Department has also "granted many individual preferences" under the catchall provision. Pet.App.73a. For example, it has granted requests "to admit only 'fully vaccinated children' and to prioritize subdivision residents." Ibid. The Department's Director, Respondent Dawn Odean, also testified that the catchall provision would allow a preschool to limit enrollment to "gender-nonconforming children," to "prioritize 'children of color,'" or to "grant preference to a child based on the child or family being part of the LGBTQ community." Pet.App.71a-72a; J.A.315-318.

[*11] 4. The enrollment preference for "[f]aith-based providers granting preference to members of their congregation," however, proved amorphous and short-lived. At first, Colorado kept the term "congregation" undefined, leaving it to faith-based preschools to "define their own community." Pet.App.69a-70a; J.A.300. After this lawsuit was filed, Colorado adopted a geographically focused definition, narrowing it to a "religious-based convocation * * * in a geographic area." J.A.311-312.

At trial, Colorado then took the position that faith-based preschools "may designate seats for preschoolers from families that adhere to a specific faith and may decline children from other families." Pet.App.70a. And after trial, Colorado promulgated a final rule defining congregation to mean the "members of the community that the faith-based provider serves as the faith-based provider defines that community." Ibid.

[2]The mandate allows enrollment preferences based on sex. E.g., Pet.App.122a (UPK preschool serving only children of teenage mothers).

Regardless of these shifting definitions, Respondent Odean "insisted * * * that no faith-based provider is allowed to discriminate on the basis of religion or religious affiliation, and if the Department learned that a provider was utilizing the congregation preference in a discriminatory way, it would investigate." Pet.App.70a. While this case was pending in the Tenth Circuit, Colorado repealed the congregation exemption entirely. Pet.App.16a. The UPK regulations thus no longer allow faith-based preschools to limit enrollment to either congregants or co-religionists.

↑ **C. Catholic preschools and their exclusion from the UPK program**

1. Petitioner Archdiocese of Denver currently oversees 34 Catholic preschools, including the preschool at [*12] Petitioner St. Mary Catholic Parish. Petitioner St. Bernadette Catholic Parish was forced to close its school—Wellspring Catholic Academy—during this litigation due to funding shortfalls. Petitioners Daniel and Lisa Sheley are Catholic parishioners whose children attend St. Mary's school. Pet.App.84a.

The Catholic Church teaches that "the first responsibility" for education rests with a child's "[p]arents." Catechism of the Catholic Church § 2223. Schools are intended to provide "assistance to parents" in fulfilling that role. Code of Canon Law c.796 § 1. Thus, the Archdiocese's preschools exist to "partner[ ] with families so their children can come to encounter Jesus Christ." Pet.App.224a, 235a. Put another way, these schools carry out their religious mission by "bringing [children] to Jesus Christ through [the] family." Pet.App.235a.

Because this partnership between schools and parents is "vital," Pet.App.235a, Archdiocesan preschools take care to ensure that families are aligned with the Catholic Church's mission and teachings before they enroll. All Archdiocesan preschools require parents to review and sign a statement of "Community Beliefs and Commitments" before enrolling, which describes the Archdiocese's religious mission and specifically highlights "teachings of our faith" that are "increasingly at odds with" the "assumptions of the secular culture"—including "the sanctity of life from the moment of conception to natural death," and "Catholic teachings on sexual identity, marriage, family, and parenting." Pet.App.234a-237a.

All families must also agree to "understand and display a positive and supportive attitude toward the Catholic Church, her teachings, her work, and the mission of the Catholic school." Pet.App.234a-240a. And [*13] while no "members of our community are expected to be perfect," families also agree to "refrain from public promotion or approval of any conduct" that would "be considered a counter-witness to Catholic doctrine or morals." Pet.App.240a, J.A.502, Pet.App.62a. This alignment is important because, if parents publicly oppose the Church's teachings, their participation in the school community would impair the ability of the school to form its students in the faith. Pet.App.240a, J.A.502, Pet.App.62a; Pet.App.272a-275a, J.A.502, Pet.App.62a; Pet.App.316a-317a. And while Archdiocesan preschools prioritize Catholic families if there is a waiting list, J.A.145, all families who agree with these commitments are welcome to enroll, J.A.157; see Pet.App.11a.[3]

The Archdiocese provides its schools with binding guidance on how to implement these religious practices "with pastoral care that is rooted in love and concern for the person." Pet.App.242a-279a, J.A.502, Pet.App.62a; Pet.App.308a-320a. School leaders are instructed to be "abundantly clear" at the time of enrollment about what the school teaches on matters of faith, specifically regarding sexual orientation and gender identity. Pet.App.314a-318a. "If the family doesn't see eye to eye on [the Catholic Church's teachings about biological sex and marriage], we ask our [*14] school leaders to please not admit the child out of abundant respect for the family." Pet.App.318a.

Making families aware of these religious beliefs at the time of enrollment helps avoid unnecessary conflicts. In part for this reason, while Archdiocesan preschools have been licensed for decades, none "has any history of a complaint from an LGBTQ family or other person alleging LGBTQ-based discrimination." Pet.App.306a. Nor has there ever been—to the Archdiocese's knowledge—a situation where a child who is enrolled in an Archdiocesan preschool "begins asserting an identity that's at odds with his or her biological sex." J.A.143-144, 158, 1358-1359. But were this situation to arise, school leaders are directed to "share with the parents the church's teaching" and to "explain that we would not be able to

[3]Not every Archdiocesan affiliate has the same mission. For example, Catholic Charities of the Archdiocese of Denver has a "distinct ministry" ordered "not towards the ends of discipleship but towards the end of providing for the poor." J.A.155-156. To advance that mission, it operates certain Early Head Start programs "specifically directed to assist parents who find themselves in poverty"; these programs do not require families to make the same commitment to support Catholic teaching. Ibid.

make accommodations that we might see in secular institutions," like using "pronouns," "bathroom[s]" and "uniform[s]" that are "inconsistent with the child's biological sex." Pet.App.318a-319a. "[E]very preschool is expected to follow this guidance" while also considering each individual situation with "discretion, sensitivity, prudence, and prayer to discern the best response." Pet.App.319a; Pet.App.262a, J.A.502, Pet.App.62a.

2. Soon after UPK was enacted, and throughout the development of the implementing regulations, the Archdiocese and other religious groups expressed concerns about the equal-opportunity mandate, which forbids enrollment preferences based on, inter alia, "religious affiliation, sexual orientation, [or] gender identity." Pet.App.6a; Pet.App.12a. Some faith-based preschools, including the Archdiocese's preschools, cannot comply with this mandate without violating their religious beliefs. Pet.App.283a, J.A.124-125.

[*15] Accordingly, as the Department rolled out UPK in early 2023, the Archdiocese and a coalition of faith-based preschool providers—representing Catholic, Lutheran, Jewish, and other preschools—sent a letter to the Department asking it to grant a religious exemption from the equal-opportunity mandate. Pet.App.285a-286a, J.A.124-125. Their letter explained that similar exemptions are "routinely and automatically provided at the federal level" and are necessary to "maintain the legal and constitutional integrity of the program while enhancing the number and variety of preschools from which Colorado parents can choose." Ibid.

The Department responded that it was "aware of [these] concerns," but that "an exemption would be inconsistent with statute and therefore void." Pet.App.289a, J.A.124-125. The Department stated that while faith-based preschools "may give preference to members of their congregation," via the (now-repealed) congregation exemption, they cannot "discriminate against children or families in violation of state statute." Pet.App.289a-290a, J.A.124-125.

↑ **D. Proceedings below**

1. Petitioners filed suit on August 18, 2023, alleging that their exclusion from UPK violated the Free Exercise Clause in several respects.

First, they argued that the equal-opportunity mandate violated Carson by excluding them from UPK "based solely on [their] preschools' religious character and exercise": namely, requiring all families to be supportive of Catholic teaching. Pet.App.85a, 103a.

Second, they argued that the equal-opportunity mandate violated Tandon v. Newsom, 593 U.S. 61 (2021) (per curiam), because the Department granted [*16] exemptions for secular conduct—like making enrollment decisions based on income level and disability—that undermines the government's interest in the mandate, but not for comparable religious conduct. Pet.App.85a, 103a.

Third, they argued that the equal-opportunity mandate violated Fulton v. City of Philadelphia, 593 U.S. 522 (2021), because the Department retained broad discretion to make individualized exemptions under the "catchall" provision—such as allowing preschools to give enrollment preferences to "gender-nonconforming children," "children of color," or members of "the LGBTQ community." Pet.App.71a-72a.

2. After a three-day bench trial, the district court largely rejected Petitioners' claims. First, the court rejected application of Carson and instead applied Smith, reasoning that Carson is confined to "program[s] that 'specifically carve[ ] out' religious organizations from those eligible to receive funding." Pet.App.107a. Second, the court rejected application of Tandon, concluding that the Department's exemptions for enrollment decisions based on income and disability did not undermine the equal-opportunity mandate and, in any event, were not comparable to Petitioners' enrollment decisions based on religion. Pet.App.129a-132a. Third, the court rejected application of Fulton, reasoning that the catchall provision "does not give the Department any discretion to grant exemptions from the equal-opportunity requirement." Pet.App.120a.

The court did, however, reach a different conclusion on what it called "the religious affiliation aspect of the equal-opportunity requirement." Pet.App.135a. As to that requirement, the court noted that the Department had authorized a "congregation preference" allowing faith-based providers to give preference to [*17] "members of their congregation." Ibid. This, the court said, rendered the religious affiliation aspect of the equal-opportunity mandate "not generally applicable" and therefore subject to

strict scrutiny—which it failed. Ibid.

The result of this ruling was that the Department remained free to continue excluding Petitioners from UPK based on the "sexual-orientation and genderidentity aspects of the equal-opportunity" mandate. Pet.App.133a-135a. But the Department was enjoined from enforcing the "religious affiliation" aspect of the mandate "for as long as" the Department retained the congregation exemption. Pet.App.171a-172a. In response, Colorado amended its regulations while this case was on appeal to remove the congregation exemption—and then argued that this released it from the injunction and allowed it to continue excluding faith-based preschools that make enrollment decisions factoring in "religious affiliation," as well as sexual orientation or gender identity. Pet.App.16a.

3. The Tenth Circuit affirmed. First, it held that Carson was "distinguish[able]" because other religious schools were "welcome participants in Colorado's UPK program," and because the mandate did not exclude religious schools "on the explicit basis that they were religious and not secular." Pet.App.21a. Next, the court found that Petitioners' religious exercise was only "infringed incidentally," and applied Smith. Pet.App.22a. Rejecting Petitioners' general applicability arguments, the court also held that the mandate did not permit any "comparable" categorical exemptions because any secular exemptions Colorado might have allowed were from different protected characteristics listed in the mandate (e.g., disability, not gender identity), Pet.App.40a, and "the Department has no [*18] discretion" to make individualized exemptions because, despite contrary testimony, the text of the Department's regulations nominally forbid it, Pet.App.34a.

4. Colorado's actions have had significant consequences. Two parish preschools—at Wellspring Catholic Academy (the parish school of Petitioner St. Bernadette) and Guardian Angels Catholic School—closed during this litigation due to shortfalls in funding and decreased enrollment. Across the Archdiocese, parish preschool enrollment has declined almost twenty percent since UPK was enacted. And Petitioners Daniel and Lisa Sheley have so far lost over $12,000 in UPK funding that would have defrayed the cost of sending their children to Catholic preschool.

↑ **Summary of the Argument.** Since Smith was decided 36 years ago, this Court has applied it only twice to rule against religious litigants—once in Smith itself, and once in Christian Legal Society v. Martinez, 561 U.S. 661 (2010). In this Court, at least, Smith has functioned more as a residual rule than as a primary rule of decision. Indeed, in at least eight categories of cases, this Court has employed a Free Exercise Clause standard other than Smith.

The lower courts, however, have not followed this Court's lead, often relying on Smith as the overarching rule of decision to the exclusion of other lines of this Court's Free Exercise Clause precedent. In this case, the Tenth Circuit faced those diverging lines of caselaw and took the path of Smith rather than following this Court's on-point public benefits precedents, many of which have arisen specifically in the context of religious schools.

[*19] That made all the difference. Under the trilogy of Trinity Lutheran, Espinoza, and Carson, this case is straightforward. In Carson, the Court held that the First Amendment "prohibit[s] * * * denying [a] benefit based on a recipient's religious exercise." 596 U.S. at 785. The Tenth Circuit "distinguishe[d]" Carson by claiming it applied only when religion is "specifically targeted." Pet.App.21a, 22a (relying on Trinity Lutheran and Smith). But that view, if accepted, would dramatically narrow Carson and make it easy to evade. It would also run afoul of decades of precedent—before and after Smith—prohibiting religious exclusion even when the law appears "neutral on its face." Thomas v. Review Bd., 450 U.S. 707, 717 (1981).

But even under the ill-fitting Smith framework, Colorado's mandate fails because it is not generally applicable. Instead, Colorado has granted—and has the discretion to grant—numerous exceptions that violate the plain text of the mandate and thus undermine Colorado's asserted interest in ensuring equal access. This includes categorical exemptions for preschools that prefer low-income families and children with disabilities. It also includes Colorado's discretion to allow UPK preschools to discriminate in favor of LGBTQ families and other groups. Petitioners have no objection to Colorado's decision to allow over 1,000 UPK preschools to selectively serve the communities they are designed to serve—Petitioners simply want the same accommodation extended to them.

Having triggered strict scrutiny, Colorado fails it. Colorado has not behaved as if it has a compelling interest, instead affirmatively encouraging preschools to serve particular communities and allowing a wide range of secular preschools to flout the mandate without penalty. Nor has Colorado identified any actual [*20] problem it needs to solve; instead, it admits that any harm to an LGBTQ family from Petitioners' religious practices is entirely speculative, while it is willing to impose real harm on thousands of Catholic families who have zero Catholic UPK preschools available to them. Because Colorado lacks a compelling interest, as well as any indication that it even considered less restrictive alternatives, its religious exclusion must be set aside.

↑ **Argument.**

↑ **I. This Court rarely applies Smith, but lower courts treat it as controlling**

"Under this Court's precedents, a plaintiff may carry the burden of proving a free exercise violation in various ways." Kennedy v. Bremerton Sch. Dist., 597 U.S. 507, 525 (2022). That observation is borne out by the variety of Free Exercise Clause standards this Court has applied, depending on the specific claim or defense presented or the particular burden on religious exercise that is implicated.

There is a disjunct, however, between this Court's practice and that of the lower courts. Lower courts typically equate Free Exercise Clause analysis with Smith, treating it as controlling even where this Court has expounded a different rule. That is a tendency this Court should reprove.

A. This Court rarely applies Smith to reject Free Exercise Clause claims or defenses

In Smith, this Court held that laws burdening religious exercise that are "neutral" and "generally applicable" are subject only to rational basis review. 494 U.S. at 878. But this rational basis rule has been infrequently applied by the Court. Far more often, this [*21] Court has found either that a different Free Exercise Clause standard applies or that Smith's prerequisites—that the law in question is both neutral and generally applicable—are not met.

Out of the eighteen free exercise cases this Court has resolved since Smith in 1990, this Court has relied on Smith only twice to rule against the religious objector: once in Smith itself ("across-the-board criminal prohibition"), and once in a footnote in Martinez, 561 U.S. at 697 n.27 ("across-the-board all-comers policy").

Of the other sixteen Free Exercise Clause cases, in five the Court found that the laws in question were either not neutral or not generally applicable and failed strict scrutiny. See Church of the Lukumi Babalu Aye, Inc. v. City of Hialeah, 508 U.S. 520, 546-547 (1993); Roman Catholic Diocese of Brooklyn v. Cuomo, 592 U.S. 14, 16 (2020) (per curiam); Tandon, 593 U.S. at 62; Fulton, 593 U.S. at 534; Kennedy, 597 U.S. at 526.

And in the remaining eleven cases, the Court either held that a different Free Exercise Clause rule applied, or said nothing about Smith at all. See Locke v. Davey, 540 U.S. 712 (2004); Hosanna-Tabor Evangelical Lutheran Church & Sch. v. EEOC, 565 U.S. 171, 189-190 (2012); Trinity Lutheran Church of Columbia, Inc. v. Comer, 582 U.S. 449, 463 (2017); Masterpiece Cakeshop v. Colorado C.R. Comm'n, 584 U.S. 617, 638- 639 (2018); Sause v. Bauer, 585 U.S. 957, 959 (2018) (per curiam); Espinoza v. Montana Dep't of Revenue, 591 U.S. 464, 478 (2020); Our Lady of Guadalupe Sch. v. Morrissey-Berru, 591 U.S. 732, 756 (2020); Carson, 596 U.S. at 781; Catholic Charities Bureau, Inc. v. Wisconsin Lab. & Indus. Rev. Comm'n, 605 U.S. 238, 248 (2025); Mahmoud v. Taylor, 606 U.S. 522, 564 (2025); Mirabelli v. Bonta, 607 U.S. 492, 496 (2026) (per curiam).

[*22] Given how sparingly this Court has applied Smith over the past 36 years, it is therefore unsurprising that this Court's decisions reveal a variety of doctrines that govern different subgenres of Free Exercise Clause

B. This Court has held that Smith does not control many categories of Free Exercise Clause cases

This Court has identified at least eight different categories of cases where Smith does not control:

Animus or hostility. Smith's rational basis rule does not control religious animus cases. "A plaintiff may also prove a free exercise violation by showing that 'official expressions of hostility' to religion accompany laws or policies burdening religious exercise; in cases like that we have 'set aside' such policies without further inquiry." Kennedy, 597 U.S. at 525 n.1 (quoting Masterpiece, 584 U.S. at

639).

Church autonomy. Smith also does not control Free Exercise Clause claims or defenses involving "matters of church government as well as those of faith and doctrine." Our Lady, 591 U.S. at 737 (quoting Kedroff v. St. Nicholas Cathedral, 344 U.S. 94, 116 (1952)). These questions of internal governance include the hiring and firing of ministers, Hosanna-Tabor, 565 U.S. at 196, control over church property, Kedroff, 344 U.S. at 119-120, and matters of "ecclesiastical government" such as "church polity" and "church discipline," Serbian E. Orthodox Diocese v. Milivojevich, 426 U.S. 696, 709, 714 (1976) (quoting Watson v. Jones, 13 Wall. 679, 773 (1872)); see also Transcript at 38, Hosanna-Tabor, supra (No. 10-553) (Scalia, J.) ("Smith didn't involve employment by a [*23] church. It had nothing to do with who the church could employ.").

Church autonomy also includes "the conformity of the members of the church to the standard of morals required of them," and whether someone may become or remain a part of the religious community. Watson, 13 Wall. at 733; see also id. at 729 (Community members give "implied consent to [church] government, and are bound to submit to it."); Bouldin v. Alexander, 15 Wall. 131, 139 (1872) ("ordinary acts of church discipline, or of excision from membership" off-limits for government officials).

Discrimination among religions. Smith does not control discrimination-among-religions claims. Without mentioning Smith, this Court held in Catholic Charities that under both Religion Clauses the "government may not 'officially prefe[r]' one religious denomination over another." Catholic Charities, 605 U.S. at 247-248 (quoting Larson v. Valente, 456 U.S. 228, 244 (1982)). And "[a] law that differentiates between religions along theological lines is textbook denominational discrimination." Id. at 248. That includes "differentiating between religions based on theological practices," "establish[ing] a preference for certain religions based on the commands of their religious doctrine," or making "distinction[s] between religious practices." Id. at 250-251; see also Lukumi, 508 U.S. at 532-533 (discussing discrimination among religions).

Forced participation in ceremonies. Also apart from Smith is the rule of West Virginia State Board of Education v. Barnette, which focused on whether government officials could require a "conscientious child to stultify himself in public" by participating in a ceremony that went against his religious beliefs. 319 U.S. [*24] 624, 635 n.15 (1943). The Court held that they could not, and that "compelling the flag salute and pledge * * * invades the sphere of intellect and spirit which it is the purpose of the First Amendment to our Constitution to reserve from all official control." Id. at 642.[4] Smith did not purport to alter this Free Exercise Clause ruling. See Smith, 494 U.S. at 882.

Hybrid situations. Smith likewise does not control challenges in "hybrid situation[s]" where a free-exercise claim is linked with "other constitutional protections, such as freedom of speech." Smith, 494 U.S. at 881-882 (citing Cantwell v. Connecticut, 310 U.S. 296, 304-307 (1940), Murdock v. Pennsylvania, 319 U.S. 105 (1943), and Follett v. Town of McCormick, 321 U.S. 573 (1944)). This understanding of Smith has occasionally been applied in the lower courts. See, e.g., Telescope Media Grp. v. Lucero, 936 F.3d 740, 759-760 (8th Cir. 2019).

Parental rights. Government actions that "substantially interfere with the 'right of parents to guide the religious development of their children'" are also not subject to Smith. Mirabelli, 607 U.S. at 496 (quoting Mahmoud, 606 U.S. at 559). As this Court explained in Mahmoud, when government "imposes a burden of th[is] * * * character," the court "need not ask whether the law at issue is neutral or generally applicable before proceeding to strict scrutiny." 606 U.S. at 564-565; see also Wisconsin v. Yoder, 406 U.S. 205, 221 (1972).

[*25] Penalizing religious beliefs as such. Smith also does not control in cases involving penalties on religious beliefs. "The Free Exercise Clause categorically prohibits government from regulating, prohibiting, or rewarding religious beliefs as such." McDaniel v. Paty, 435 U.S. 618, 626 (1978) (plurality). Thus, "[i]n the words of Justice Brennan, the 'government may not use religion as a basis of classification for the imposition of duties, penalties, privileges or benefits.'" Morris Cnty. Bd. of Chosen Freeholders v. Freedom From Religion Found., 586 U.S. 1213, 1214 (2019) (statement of

[4]Although often described as a free speech case, Barnette reached this Court solely as a free exercise case. Barnette v. West Va. State Bd. of Educ., 47 F. Supp. 251, 253 (S.D. W.Va. 1942).

Kavanaugh, J.) (quoting McDaniel, 435 U.S. at 639 (Brennan, J., concurring in the judgment)). The Court has repeatedly reiterated this principle, holding not just that such a penalty triggers liability but that it cannot be justified, even under strict scrutiny. See, e.g., Lukumi, 508 U.S. at 533 ("a law targeting religious beliefs as such is never permissible"); Trinity Lutheran, 582 U.S. at 466 n.4 (same).

Public benefits. Most importantly for this case, the Court has long held that "a person may not be compelled to choose between [religious] exercise" and "participation in an otherwise available public program." Thomas, 450 U.S. at 716. Thus, when government conditions "a benefit or privilege" on a person's "willingness to violate" her religious beliefs, its actions are constitutional only if they serve a "compelling state interest" that cannot be served otherwise. Sherbert v. Verner, 374 U.S. 398, 404-406 (1963); see also Hobbie v. Unemployment Appeals Comm'n, 480 U.S. 136, 140 (1987) ("coercive impact of the forfeiture of benefits" was "undeniable").

This rule reflects the straightforward First Amendment principle that each faith must "flourish" or wither "according to the zeal of its adherents and the [*26] appeal of its dogma," Zorach v. Clauson, 343 U.S. 306, 313 (1952)—not according to a governmental thumb on the scale. And the rule has deep roots: Nearly eighty years ago this Court recognized that a state unlawfully "hamper[s] its citizens in the free exercise of their own religion" if it "exclude[s] individual Catholics, Lutherans, Mohammedans, Baptists, Jews, Methodists, Non-believers, Presbyterians, or the members of any other faith, because of their faith, or lack of it, from receiving the benefits of public welfare legislation." Everson v. Board of Educ., 330 U.S. 1, 16 (1947).

This Court has repeatedly reaffirmed the principle since then, without treating Smith as controlling. See Trinity Lutheran, 582 U.S. at 466; Espinoza, 591 U.S. at 484; Carson, 596 U.S. at 785; see also Mahmoud, 606 U.S. at 530, 561.

↑ **C. Lower courts continue to treat Smith as the primary rule of decision**

The story is entirely different in the lower courts. There, Smith controls Free Exercise Clause claims in the first, and often last, instance. As Judge Wilkinson recently put it, with respect to Free Exercise Clause claims, "the Supreme Court's position in Employment Division v. Smith controls. * * * That is, as they say, elementary." Polk v. Montgomery Cnty. Pub. Schs., 166 F.4th 400, 422 (4th Cir. 2026) (Wilkinson, J., dissenting).

Judge Wilkinson's sentiment is widely shared: Lower courts treat Smith as the overarching standard for deciding Free Exercise Clause claims, the first step in free exercise analysis. In Olympus Spa v. Armstrong, for example, the Ninth Circuit relied in the first instance on Smith to rule against a Christian Korean-American spa's challenge to state enforcement of [*27] a public accommodations law: "[T]he Spa's religious expression is only incidentally burdened. * * * [Enforcement] does not prohibit the Spa from expressing its religious beliefs." 169 F.4th 817, 832 (9th Cir. 2026).

Cases from other circuits often start off on the Smith foot too. See, e.g., We The Patriots USA, Inc. v. Connecticut Off. of Early Childhood Dev., 76 F.4th 130, 144 (2d Cir. 2023) (In Smith, "the Supreme Court reaffirmed that a law that incidentally burdens religious exercise is constitutional when it (1) is neutral and generally applicable and (2) satisfies rational basis review."); Mahmoud v. McKnight, 102 F.4th 191, 206 (4th Cir. 2024), rev'd, Mahmoud, 606 U.S. 522 ("the currently applicable standard set out in Employment Division v. Smith").

To be sure, lower courts do recognize that Smith does not control in certain contexts, particularly when it comes to issues like the ministerial exception and church autonomy. See, e.g., McRaney v. North Am. Mission Bd., 157 F.4th 627, 633-641 (5th Cir. 2025), cert. denied, 224 L.Ed.2d 16 (2026). But this does not diminish the fact that, unlike this Court, lower courts typically rely first and foremost on Smith in analyzing Free Exercise Clause claims.

↑ **II. Colorado excluded Petitioners from the UPK program because of their religious exercise, triggering strict scrutiny under Carson**

The Tenth Circuit decided that the Carson trilogy of cases did not control. Pet.App.21a. That was error. **[*28]**

A. Conditioning access to UPK benefits on abandoning religious exercise triggers strict scrutiny

1. Carson recognized that the Free Exercise Clause prohibits denying otherwise available public benefits "based on a recipient's religious exercise." 596 U.S. at 785. Indeed, Carson applied this rule in the precise context presented here: the exclusion of religious schools from a state tuition benefits program. In Carson, Maine offered tuition assistance to parents who lived in school districts that lacked a district-operated secondary school so they could send their children to "the approved private school of the parent's choice." Id. at 773. But it excluded from eligibility schools that "'promot[ed]'" a "'particular faith or belief system'" with which they were "'associated and/or present[ed] the material taught through the lens of this faith.'" Id. at 775.

Carson held that this exclusion violated the First Amendment. This Court, Carson explained, has "repeatedly held that a State violates the Free Exercise Clause when it excludes religious observers from otherwise available public benefits." 596 U.S. at 778 (citing Sherbert, Everson, and Thomas). And that principle includes a "prohibition on denying the benefit based on a recipient's religious exercise," id. at 785— like educating students through the lens of a religious faith.

Maine thus had to "satisfy strict scrutiny," which it could not do. Carson, 596 U.S. at 780. The interest it asserted did not "justify * * * exclud[ing] some members of the community from an otherwise generally available public benefit because of their religious exercise." Id. at 780-781.

[*29] The rule against religious-exercise-based benefits denials is broad, as Carson's reliance on two unemployment-compensation cases (Sherbert and Thomas) demonstrates. But this Court's more recent precedents applying this rule (Trinity Lutheran, Espinoza, and Carson) show that, if anything, it applies with special force in the education context. This makes good sense. "Religious education is vital to many faiths practiced in the United States." Our Lady, 591 U.S. at 754. And "[m]any parents" exercise their fundamental right to "direct 'the religious upbringing'" of their children "by sending their children to religious schools." Espinoza, 591 U.S. at 486 (quoting Yoder, 406 U.S. at 213-214). Indeed, many parents, like Petitioners Daniel and Lisa Sheley, understand it to be a religious "directive" to provide a religious education for their children. Pet.App.84a; see Code of Canon Law c.798 ("Parents are to entrust their children to those schools which provide a Catholic education."). To penalize religious parents for choosing a school that meets their religious needs over a secular private school is thus to impose a free-exercise burden of an especially onerous character.

2. Under Carson, Colorado's actions trigger strict scrutiny. Colorado offers its citizens a benefit: "universal" preschool funding at the preschool of the family's choice. But it denies that benefit to families who choose Catholic preschools.

It is undisputed that these preschools would otherwise be eligible UPK providers. Pet.App.11a-13a. They are excluded solely because of their religious exercise—namely, their religious practices of ensuring that all enrolling families are supportive of the Catholic Church's teachings on sex and marriage and of treating enrolled four-year-olds in accordance with [*30] their biological sex. Pet.App.83a-84a, 314a-319a. "By 'condition[ing] the availability of benefits' in that manner, [Colorado's] tuition assistance program * * * 'effectively penalizes the free exercise' of religion.'" Carson, 596 U.S. at 780 (quoting Trinity Lutheran, 582 U.S. at 462). Of course, Colorado "need not subsidize private" preschools at all. Espinoza, 591 U.S. at 487. But having chosen to do so, it presumptively cannot exclude Catholic preschools "on the basis of their religious exercise." Carson, 596 U.S. at 789.

Indeed, Colorado is penalizing religious exercise that "'lie[s] at the very core of the mission of a private religious school'"—"'[e]ducating young people in their faith, inculcating its teachings, and training them to live their faith.'" Carson, 596 U.S. at 787 (quoting Our Lady, 591 U.S. at 753-754). Archdiocesan preschools' primary mission is to partner with parents in the formation and education of their children. Pet.App.223a, J.A.502, Pet.App.62a. They cannot accomplish that mission, they believe, if their teachings conflict with the parents', or if families in their school communities are living as a "counter-witness to Catholic doctrine or morals." Pet.App.240a, J.A.502, Pet.App.62a; Pet.App.272a-275a, J.A.502, Pet.App.62a; Pet.App.316a-317a.

"[T]here is nothing neutral about" Colorado's actions. Carson, 596 U.S. at 781. Colorado has made it free to attend over 2,000 preschools in the State. But it has barred Archdiocesan schools from participating, thus imposing what equates to a substantial new tax on parents who desire to form their preschool-aged children in the Catholic faith. As Justice Scalia explained in Locke, "[w]hen the

State makes a public benefit generally available, that benefit becomes part of the baseline against which burdens on religion are [*31] measured; and when the State withholds that benefit from some individuals solely on the basis of religion, it violates the Free Exercise Clause no less than if it had imposed a special tax." 540 U.S. at 726-727 (Scalia, J., dissenting); see also id. at 720-721 (majority) ("requir[ing] students to choose between their religious beliefs and receiving a government benefit" violates the Free Exercise Clause (citing Hobbie, Thomas, and Sherbert)).

The inevitable result of Colorado's thumb on the scale is that more Colorado children will be funneled toward preschools that share Colorado's perspective on matters of sex and marriage. And that is not because of the relative "appeal of" competing "dogma[s]." Zorach, 343 U.S. at 313. It is because of Colorado's imposition of financial pressure on preschools with disfavored religious beliefs.

This result is already coming to pass. Enrollment is dropping at the Archdiocese's preschools, and two were forced to close in the few years since Colorado excluded them from UPK. Catholic preschools—and the families whose children attend them—are "member[s] of the community too." Trinity Lutheran, 582 U.S. at 463. They are entitled to participate in Colorado's "universal" program without abandoning their religious exercise.

B. The Tenth Circuit's attempts to fetter Carson fail

The Tenth Circuit rejected this straightforward analysis for two reasons, both meritless.

First, the Tenth Circuit said that the "principle" of this Court's decisions in Carson, Espinoza, and Trinity Lutheran is that "when a state offers subsidies for private education, it cannot categorically withhold those [*32] funds from religious institutions." Pet.App.19a (emphasis added). Thus, because Colorado does not exclude all "faith-based preschools from participating in UPK," the Carson rule does not apply. Pet.App.21a.

But this theory of Carson would not even cover Carson itself. Like Colorado, Maine did not "categorically" exclude faith-based schools. Instead, it excluded a school "only if it promotes a particular faith and presents academic material through the lens of that faith." Carson, 596 U.S. at 786-787; see also id. at 775. The fact that a school was religious was "'not dispositive.'" Ibid.; see also id. at 797 (Breyer, J., dissenting) ("it is religious activity, not religious labels, that lies at the heart of this case"). This Court rejected that supposed distinction and applied strict scrutiny.

In fact, Colorado's willingness to include religious preschools that have religious practices conforming to the State's requirements only makes the free-exercise problem worse. Part of the danger of conditioning state benefits on abandoning certain religious practices is that it allows the government to pick religious "winners and losers," supporting religions whose practices the government likes while making it more costly to adhere to religions with practices that "legislative majorities * * * find unseemly or uncouth." Espinoza, 591 U.S. at 513-514 (Gorsuch, J., concurring). But "official differentiation on theological lines is fundamentally foreign to our constitutional order." Catholic Charities, 605 U.S. at 248-249. And the government tilts the religious playing field in the same troubling way when it makes "eligibility" for a government benefit "ultimately turn[ ] on inherently religious choices," id. at 250—like whether to ask that families seeking a Catholic education for their child be supportive of the Catholic faith. Cf. ibid. (recognizing that the choice to [*33] "serve only co-religionists" is an "inherently religious choice[ ]").

Second, the Tenth Circuit attempted to distinguish Carson on the ground that "the Carson line of cases addressed laws that targeted 'religious status' and 'religious use' on the explicit basis that they were religious and not secular." Pet.App.21a. And because the mandate does not prohibit Catholic preschools' religious conduct on the explicit basis that it is religious, Carson does not apply. Pet.App.21a-22a.

But this theory would dramatically narrow Carson. As this Court emphasized, its decisions in this area have "turned on the substance of free exercise protections, not on the presence or absence of magic words." Carson, 596 U.S. at 785. And Carson specifically rejected the Tenth Circuit's formalism, holding instead that the law's "operat[ion]" was what mattered: "Regardless of how the benefit and restriction are described, the program operates to identify and exclude otherwise eligible schools on the basis of their religious exercise." Id. at 789. Thus, the key to Carson was not that Maine used religious words in the crafting of its exclusion; it was that the religious schools and families were

excluded from the program "on the basis of their religious exercise." Ibid. The same is true here.

Indeed, both before and after Carson, this Court has prohibited religious-exercise-based benefits exclusions even when the exclusion is "neutral on its face" and thus "the burden upon religion" is "only [an] indirect consequence." Thomas, 450 U.S. at 717. In Sherbert and Thomas—both relied on in Carson—the plaintiff was denied benefits not under a law explicitly targeting religious conduct but rather by one requiring all unemployment-benefits claimants to have had "good cause" for leaving their jobs. Ibid.; Sherbert, 374 [*34] U.S. at 401; see also Hobbie, 480 U.S. at 138 (same result under facially neutral "no fault of their own" requirement). As Carson explained, the crux of these cases was not that the states used religious terms in crafting the exclusion. It was that the conduct that led to the denial of benefits was—for the claimants—religious. See Carson, 596 U.S. at 778 ("A State may not withhold unemployment benefits, for instance, on the ground that an individual lost his job for refusing to abandon the dictates of his faith." (citing Sherbert and Thomas)); see also Sherbert, 374 U.S. at 404 ("[A]ppellant's declared ineligibility for benefits derives solely from the practice of her religion"). So too here.

Likewise, in Mahmoud, this Court invoked the rule against religious-exercise-based benefits exclusions where parents were denied the "benefit" of public education if they exercised their religion by declining to submit their children to "LGBTQ+-inclusive" instruction. 606 U.S. at 561, 563 (citing Trinity Lutheran). And the Court did so even though Montgomery County did not deny opt-outs "on the explicit basis that" objections were "religious." Pet.App.21a. Rather, the County had a "no-opt-out" policy that said nothing at all about religion. Mahmoud, 606 U.S. at 538, 563. If the Tenth Circuit's understanding of "the Carson line of cases" were correct, Pet.App.21a, then Mahmoud's invocation of that line would make no sense. 606 U.S. at 561 (citing Trinity Lutheran).

Beyond contradicting Carson, the Tenth Circuit's "explicitly religious" line reflects an empty formalism. What has always triggered the Free Exercise Clause in this context is "pressure * * * to forgo" a religious practice in order to obtain a government benefit. Sherbert, 374 U.S. at 404; accord Thomas, 450 U.S. at 717- [*35] 718. That focus on pressure reflects historical understandings. See Stephanie H. Barclay, Replacing Smith, 133 Yale L.J. Forum 436, 455 (2023) (courts looked to whether government would "'press' the 'weight' of the sovereign power in a way that objectively made it more difficult for religious believers to comply with their consciences"). And here, Petitioners' preschools face exactly the same pressure whether Colorado excludes them from UPK for explicitly religious reasons or by way of a mandate that proscribes their religious practices.

Similarly, the Tenth Circuit's reading would render Carson trivially easy to avoid. A government seeking to exclude disfavored religious organizations from an otherwise available benefit could, despite Carson, achieve that result as long as it prohibited those organizations' religious practices without using "explicit[ly]" religious terms. Pet.App.21a. Indeed, this is exactly what is happening in Maine, where the state has replaced the exclusion challenged in Carson with a nondiscrimination provision and repealed the preexisting religious exemption. See States Cert. Br.17; Notre Dame Cert. Br.14-19.

In short, like the limitations Carson itself rejected, the Tenth Circuit's attempt to recast Carson here would "see 'the First Amendment * * * reduced to a simple semantic exercise.'" 596 U.S. at 784. Based on Carson alone, this Court should reverse.

↑ **III. Colorado's mandate also fails Smith's general applicability test**

Even if Smith's framework did apply, Colorado's interpretation and enforcement of the mandate does not "meet the requirement of being neutral and generally applicable." Fulton, 593 U.S. at 533.

[*36] Colorado has allowed over 1,000 UPK preschools to decline to enroll families for myriad reasons, explaining that the ability to serve particular communities is critical to UPK's mixed-delivery system. Pet.App.69a. Colorado officials even created a discretionary process—the catchall—intended to ameliorate the "unintended consequences" of the UPK program's matching algorithm and to keep existing communities intact. Pet.App.72a; J.A.346 (exemptions intended to ensure "providers can continue to serve the communities that they have served"). Petitioners ask for nothing more than that same flexibility to serve their own communities consistent with their beliefs.

Such a common-sense accommodation would not decrease the availability of UPK to other families by a single seat. Meanwhile, it would serve the interests of universal preschool by making it more accessible for all Colorado families—including those whose faith directs them to choose a Catholic preschool. Colorado's solicitousness for other communities suggests its insistence on strict enforcement of the mandate against Petitioners is little more than a fig leaf for its desire to exclude certain preschools with the wrong religious be-

A. The mandate is not generally applicable because Colorado permits categorical exemptions

1. A law "lacks general applicability if it prohibits religious conduct while permitting secular conduct that undermines the government's asserted interests in a similar way." Fulton, 593 U.S. at 534; Kennedy, 597 U.S. at 525-526 (same). This rule is strict: A law is not generally applicable if it "treat[s] any comparable secular activity more favorably than religious exercise." Tandon, 593 U.S. at 62. And the comparability [*37] of "two activities" is "judged against" the asserted "government interest that justifies the regulation at issue." Ibid. Once a plaintiff shows that any comparable secular conduct is treated more favorably, strict scrutiny applies. Fulton, 593 U.S. at 540-541.

UPK's "goal" is to "give families every opportunity to seek a [preschool] provider of their choosing." Pet.App.60a. The various enrollment preferences Colorado allows for over 1,000 participating preschools undermine that interest far more than accommodating Petitioners' religious exercise.

Yet even focusing only on the equal-opportunity mandate as "the regulation at issue," Pet.App.38a (quoting Tandon, 593 U.S. at 62), the same result obtains. The interest underlying the mandate comes straight from the statutory text: equality of access regardless of certain protected characteristics. The General Assembly directed the Department to ensure that "each [UPK] preschool provider provide eligible children an equal opportunity to enroll and receive preschool services regardless of race, ethnicity, religious affiliation, sexual orientation, gender identity, lack of housing, income level, or disability[.]" Pet.App.204a. The government interest that justifies the mandate, then, is patent: as Colorado put it below, ensuring that "all eligible children have equal opportunity, regardless of protected-class status, to enroll in the publicly-funded preschools that best meet their needs." Resp.C.A.Br.45; see also BIO.6. The Tenth Circuit and the district court repeatedly affirmed the same. E.g., Pet.App.28a ("prevent discrimination on any grounds"); Pet.App.58a-59a.

The mandate's text and structure further confirm this interest. The mandate sets out a "requirement" [*38] (singular) that preschools provide "an equal opportunity" (also singular) "to enroll and receive preschool services" regardless of protected characteristics. Pet.App.204a. The mandate then includes a list of those characteristics, all subject to this same equality requirement. Ibid. And both Colorado and the Tenth Circuit recognize that the mandate's text "is a hard limit" and is "absolute" in its requirement of equal access without exception. Pet.App.7a, 32a; Pet.App.26a (UPK preschools must "follow the letter of the [mandate] as enshrined in state law"); Pet.App.33a ("state law gives no room to the Department to make exceptions"); Pet.App.289a, J.A.124-125 ("I do not have the authority to create an exemption[.]"); Resp.C.A.Br.27 (same).

Nevertheless, Colorado has created via regulation two categorical exemptions allowing UPK preschools to impose additional enrollment requirements that directly undermine this equal access interest. First, Colorado allows some UPK preschools to deny families enrollment based on income level. Pet.App.8a, 35a-36a. Second, Colorado allows some UPK preschools to enroll only children with a disability. Ibid. Because these categorical exemptions allow UPK preschools to provide families with unequal access based on protected characteristics, they undermine Colorado's asserted interest in equal access "in a similar way" to Petitioners' requested religious accommodation. Fulton, 593 U.S. at 534.

Indeed, by imposing in the text of the mandate the same equal access requirement across all protected characteristics, the General Assembly has already made an implicit determination that denial of equal access based on any protected characteristic would undermine [*39] its asserted interest in the same way as a denial based on any other. See Fellowship of Christian Athletes v. San Jose Unified Sch. Dist., 82 F.4th 664, 689-690 (9th Cir. 2023) (en banc) ("FCA") ("Whether they are based on gender, race, or faith, each group's exclusionary membership requirements pose an identical risk to the District's stated interest in ensuring equal access[.]").

Colorado's disability and income level exemptions are thus comparable to Petitioners' requested religious accommodation. Tandon, 593 U.S. at 62. And by treating "comparable secular activity more favorably than religious exercise," Colorado triggers strict scrutiny. Ibid.; see also Lukumi, 508 U.S. at 542 ("categories of selection are of paramount concern").

2. The Tenth Circuit erred in holding otherwise. Notwithstanding the law's plain text, the court concluded that Colorado could simply "interpret" the mandate to prohibit only "discriminat[ion]" against "low income" and "disabled children"—even though neither of these terms appears anywhere in the mandate's text. Pet.App.36a-38a. This selective interpretation of the mandate, the court then determined, allows UPK preschools to maintain admissions policies favoring low-income families and children with disabilities without violating the mandate's ban on what the court viewed to be "discrimination" (another term found nowhere in the law's text). Ibid.; see Resp.C.A.Br.31 (The Department "interprets the equal-opportunity provisions as a one-way ratchet.").

In the alternative, the court held that the eight protected characteristics listed in the mandate (e.g., income level, race, and disability) each addressed different "barriers to equal access to preschool education[,]" [*40] making them "completely different and thus not comparable." Pet.App.38a-40a; Pet.App.41a (exemptions from each protected characteristic would have to be "challenged separately"); Pet.App.127a-129a (same).

Both alternative holdings are wrong. As to the first, Colorado's apparent ability to reinterpret a statute contrary to its plain text (thus hiving off inconvenient exemptions) itself shows that the law is not generally applicable. Fulton, 593 U.S. at 537; infra 43-48. In any event, what matters is whether any permitted secular conduct similarly undermines the government's asserted interest—not whether that conduct appears as an "exemption" from a broader prohibition or is instead carved out from the prohibition's reach via "clever" reinterpretation. Smith v. City of Atlantic City, 138 F.4th 759, 771-772 (3d Cir. 2025). Indeed, this Court has instructed lower courts to look outside the statute at issue for any permitted secular conduct that similarly undermines the government's interests. Lukumi, 508 U.S. at 535, 543-544; see also Danville Christian Acad., Inc. v. Beshear, 141 S. Ct. 527, 529 (2020) (Gorsuch, J., joined by Alito, J., dissenting) ("[T]he Constitution cannot be evaded merely by multiplying the decrees.").

Put simply, if Colorado can "interpret" the mandate to permit UPK preschools to deny families equal access for secular reasons the State considers important notwithstanding the mandate's text, surely Colorado also has the discretion to "interpret" the mandate to accommodate Petitioners' religious exercise. Cf. Fulton, 593 U.S. at 536-538 (rejecting Philadelphia's reinterpretation of its regulation and contract); Douglas Laycock & Steven T. Collis, Generally Applicable Law and the Free Exercise of Religion, 95 Neb. L. Rev. 1, 15 [*41] (2016) ("Secular exceptions defeat general applicability no matter how important, justified, or sensible.").

To reach the opposite conclusion, the Tenth Circuit effectively made a value judgment. It concluded that some secular exemptions from the mandate (like preferences for low-income families and children with disabilities) are good, while other exemptions from the mandate (like accommodating Petitioners' religious exercise) are bad. See Pet.App.37a ("farcical" that preferences for low-income families and children with disabilities constituted prohibited "discriminat[ion]").[5]

But these distinctions are found nowhere in the law, which proscribes all unequal access based on any protected characteristic. Pet.App.6a. And once government moves from uniformly applying a general law to instead making value judgments about which reasons for noncompliance are worthy enough to be accommodated, strict scrutiny applies. Fulton, 593 U.S. at 533 (law "not generally applicable if it invites the government to consider the particular reasons for a person's conduct" (cleaned up)); see also Diocese of Brooklyn, 592 U.S. at 22 (Gorsuch, J., concurring) ("The only explanation for treating religious places differently seems to be a judgment that what happens there just isn't as 'essential' as what happens in secular spaces."); Calvary Chapel Dayton Valley v. Sisolak, 591 U.S. 1042, 1055 (2020) (Kavanaugh, J., dissenting) [*42] ("Unless the State provides a sufficient justification otherwise,

[5]The district court likewise concluded that accommodating disabilities is more important than accommodating religion because "the nuanced realities of education" and "statutory imperatives" "necessitate certain special treatment on the basis of disability, imperatives that go beyond what is required by the Free Exercise Clause." Pet.App.130a n.37.

it must place religious organizations in the favored or exempt category."); Masterpiece, 584 U.S. at 637-638 ("A principled rationale for the difference in treatment * * * cannot be based on the government's own assessment of offensiveness.").

As to the second holding, the Tenth Circuit erred by comparing the intrinsic characteristics of "specific barriers" to equal access by, for example, asking whether discrimination based on disability is metaphysically similar to discrimination based on sexual orientation. Pet.App.39a-41a (suggesting that some protected characteristics are "fundamentally different from other suspect classifications"). It should instead have determined whether the secular conduct Colorado permits undermines the government's equal access interest "in a similar way" to Petitioners' requested religious accommodation. Fulton, 593 U.S. at 534. As Tandon explained, "whether two activities are comparable for purposes of the Free Exercise Clause must be judged against the asserted government interest that justifies the regulation at issue." 593 U.S. at 62. Thus, instead of comparing the "reasons why people gather," Tandon assessed whether different types of gatherings posed similar "risks" to the government's asserted interest in slowing the virus. Ibid.; see also Lukumi, 508 U.S. at 544-545 (exceptions for hunters and restaurants comparable to religious accommodation).

Hence the question is not whether disparate treatment based on sexual orientation is intrinsically "similar" to disparate treatment based on, for example, income level. It is whether both forms of disparate treatment similarly undermine the government's asserted [*43] interest. The measure of similarity is the government's interest, not the plaintiff's actions.

In short, the Tenth Circuit compared the wrong things. See Pet.App.39a-40a ("the barriers to equal access to preschool education here are completely different and thus not comparable" (emphasis added)). Indeed, under the Tenth Circuit's approach, Colorado could exclude Catholic preschools but still fund UPK preschools that served only white families (race), Irish families (ethnicity), or wealthy families (income level)—and still claim a "generally applicable" law because the "barriers" to equal access based on race, ethnicity, and income are "fundamentally different" and "not comparable" to barriers based on sexual orientation, gender identity, and religious affiliation. Pet.App.39a-41a; see also Pet.App.6a.

B. The mandate is not generally applicable because Colorado has discretion to grant exemptions

A law also lacks general applicability if it "'invite[s]' the government to consider the particular reasons for a person's conduct by providing "a mechanism for individualized exemptions." Fulton, 593 U.S. at 533 (quoting Smith, 494 U.S. at 884); Lukumi, 508 U.S. at 537 (similar). Colorado's regulatory "catchall" exemption, which captures a range of "unique," caseby-case enrollment preferences, is just such a discretionary mechanism. Pet.App.29a; supra 8-9. Among the preferences it allows preschools to screen for are the child's or family's "participating in a specific activity," "being a part of a specific community," being "vaccinat[ed]," or having "specific competencies or interests" or even just "a specific relationship to the provider." Pet.App.210a-211a.

[*44] While the regulations state that the catchall exemption cannot be "implement[ed]" to violate the mandate, they also list "[e]xamples of approved [enrollment] preferences" that explicitly contradict it. Pet.App.9a-10a; Pet.App.29a; Pet.App.210a-211a. For example, Colorado's regulations allow UPK preschools to prioritize "families who are receiving a specific public assistance benefit(s) such as housing assistance." Pet.App.211a. But the mandate requires equal access regardless of both "income level" and "lack of housing." Pet.App.6a. Preference for families receiving housing assistance necessarily favors certain housed families over families who lack housing, and most "public assistance benefit(s)" typically include income qualifications. See also U.S.Cert.Br.16.[6]

Trial testimony confirms that Colorado also does not treat the mandate as a "hard limit" in practice. Pet.App.32a; see also Pet.App.26a. When asked about the types of exceptions permitted under the catchall preference, Respondent Odean testified that the catchall would allow UPK preschools to admit only "gender-nonconforming children" and to prioritize serving "children of color from historically underserved areas" and "the LGBTQ community," among others. J.A.316-319 (same for

[6]The UPK statute also gives Colorado discretion to "allow a preschool provider that does not meet the quality standards to participate in the preschool program for a limited time while working toward compliance." Pet.App.203a. Colorado can therefore waive the mandate for an undefined and potentially unlimited amount of time.

"children in foster care" and "children of veterans or current service members").

[*45] Odean saw no inconsistency with the mandate, stating that because it is an "antidiscrimination provision," it allows the Department to contract with preschools to "prioritize[ ] families who have historically been discriminated against." J.A.273, 295-296, 301. Five times during her testimony, Odean stated that she understands the mandate to allow the Department to give preferential treatment to those she views as disadvantaged, and that this was the yardstick she used to decide whether a UPK preschool would be permitted to apply specific admissions priorities via the catchall. J.A.267, 273, 294, 295-296, 301. She did not, however, consider Petitioners to be part of any historically marginalized group, so their requested religious accommodation was unlawful discrimination. J.A.326 (unaware whether Catholics have faced historical discrimination).

This atextual, idiosyncratic, and politically convenient construction of the mandate explains why Odean could believe that Colorado has the lawful discretion to permit schools to discriminate in favor of racial and sexual minorities while simultaneously denying Catholic preschools the ability to apply admissions preferences consistent with their faith. As she repeatedly explained: "it's the law to ensure that these children and their families who historically have been discriminated against aren't[.]" J.A.301; see also J.A.272-273, 293-294, 326-327 (similar). Odean never repudiated this testimony. Instead, her consistent view as UPK Director was that "the law" permits case-by-case exemptions for preschools that prioritize LGBTQ families and students, while giving her no ability whatsoever to permit Catholic preschools to ask enrolled families to support the Church's teachings. J.A.301.

[*46] This discretion—both explicit in the regulations and permitted in practice—to grant one-off exemptions that are inconsistent with the plain text of the mandate triggers strict scrutiny. Fulton, 593 U.S. at 537.[7]

The Tenth Circuit resisted this conclusion by ignoring and downplaying Odean's undisputed testimony. See Pet.App.30a-32a. In its view, Petitioners had to show "explicit[ ]" discretion "contained within the law itself," regardless of Odean's "test[imony] that these preferences could be given." Ibid.; Pet.App.31a (noting "these preferences would certainly seem to violate the nondiscrimination requirement" but rejecting this view based on the regulation's text).

That was error. Courts cannot ignore testimony showing discretion in practice merely because that discretion is inconsistent with the law's text. "[R]egardless whether any exceptions have been given," the mere authority "to decide which reasons for not complying with the [mandate] are worthy of solicitude" renders the law not "generally applicable." Fulton, 593 U.S. at 537. That is true whether the discretion first appears on the law's face or instead is a product of the government's flexible application. Kennedy, 597 U.S. at 527 (for a law to be generally applicable, it must also be "applied in an evenhanded, across-the-board way" [*47] (emphasis added)); Lukumi, 508 U.S. at 534 ("Facial neutrality is not determinative."); Bates v. Pakseresht, 146 F.4th 772, 797 (9th Cir. 2025) ("[A]d hoc decision making based on non-objective criteria * * * creates the distinct possibility of uneven application[.]"); see Laycock & Collis, 95 Neb. L. Rev. at 17 ("Unequal treatment of religious and secular conduct requires strict scrutiny, whether or not that inequality is reflected in the text of the challenged law."). Holding otherwise would create perverse incentives by encouraging governments to look the other way or even grant "off the books" exemptions while pointing courts back to policies that, on their face, don't authorize discretion.

The Tenth Circuit was also wrong to think it matters whether the governmental decisionmaker has "sole" and unfettered discretion or would normally "consult[ ] others" before making a discretionary decision. Contra Pet.App.31a-32a. What triggers strict scrutiny is the very fact of case-by-case decision making and the attendant risk of misuse to disfavor religion. See Fulton, 593 U.S. at 537-538; FCA, 82 F.4th at 687 (Fulton not limited to "'unfettered' discretion"). Here, the buck stops with Odean, who oversees the UPK program. J.A.260. It doesn't matter whether she talks to one person or ten

[7]The only preschools in need of an accommodation from the mandate are religious, which is further evidence Colorado's law is not generally applicable. Ex. 66 to Pl.'s Mot. Summ. J. at 77:5- 83:3, Darren Patterson Christian Acad. v. Roy, 765 F. Supp. 3d 1194 (D. Colo. 2025) (No. 1:23-cv-1557), ECF.78-21 (Respondent Odean conceding only religious preschools denied exemption from mandate); Lukumi, 508 U.S. at 535 (finding "religious gerrymander" because "almost the only conduct subject to [the law] [wa]s religious exercise").

before deciding whether the Department will authorize an exemption.

The Tenth Circuit's analysis also reveals an obvious double standard. While the court accepted Colorado's interpretation of the mandate as protecting only children with disabilities and low-income families, Pet.App.35a-37a, it rejected Colorado's similar interpretation of the mandate (articulated by Odean) as permitting differential treatment in favor of historically [*48] disadvantaged communities generally—suddenly concluding that the mandate's text is a "hard limit." Pet.App.31a-32a.

The mandate cannot simultaneously be a flexible standard and a hard limit depending on whatever result is necessary to find a law generally applicable. "That kind of double standard is enough to trigger at least a more searching (strict scrutiny) review." Does 1-3 v. Mills, 142 S. Ct. 17, 19 (2021) (Gorsuch, J., dissenting, joined by Thomas & Alito, JJ.); see also Carson, 596 U.S. at 784-785 (governments may not "manipulate[ ]" "the definition of a particular program" to get around the First Amendment's requirements (citation omitted)).

↑ **IV. The mandate does not survive strict scrutiny**

Having triggered strict scrutiny, Colorado must prove that excluding Petitioners' preschools "serve[s] a compelling interest and [is] narrowly tailored to that end." Kennedy, 597 U.S. at 532. Colorado does not come close to meeting this "demanding standard." Brown v. Entertainment Merchs. Ass'n, 564 U.S. 786, 799 (2011).

1. At the outset, Colorado's interest is not compelling. "[O]nly the gravest abuses, endangering paramount interest[s]," can "give occasion for [a] permissible limitation" on free exercise. Sherbert, 374 U.S. at 406. To decide compellingness, a court must assess "the asserted harm of granting specific exemptions to particular religious claimants." Fulton, 593 U.S. at 541. "The question, then, is not whether [Colorado] has a compelling interest in enforcing its [mandate] generally, but whether it has such an interest in denying an exception to [Petitioners]." Ibid.

[*49] Colorado's asserted interest is in ensuring equal access for all families to UPK preschools regardless of any protected characteristic. Supra 37-38; Resp.C.A.Br.45 (asserting compelling interest "in removing discriminatory barriers so that all eligible children have equal opportunity, regardless of protected-class status, to enroll in the publicly-funded preschools that best meet their needs"). This asserted interest is not compelling as applied to Petitioners.

First, Colorado hasn't treated its interest as compelling. As this Court explained in Fulton, the "creation of a system of exceptions * * * undermines [the government's] contention that its non-discrimination policies can brook no departures." Fulton, 593 U.S. at 542. Here, Colorado has granted (and has discretion to grant) broad secular exemptions from the equal-opportunity mandate. Supra 7-11. By "fail[ing] to enact feasible measures to restrict other conduct producing substantial harm or alleged harm of the same sort," Colorado has demonstrated that "the interest given in justification of the [exclusion of Petitioners] is not compelling." Lukumi, 508 U.S. at 546-547; see Espinoza, 591 U.S. at 486 ("A law does not advance 'an interest of the highest order when it leaves appreciable damage to that supposedly vital interest unprohibited.'"). Or at minimum, even assuming the interest were compelling generally, Colorado's "robust 'system of exceptions'" undermines any assertion that rigidly excluding Petitioners "is necessary to serve" it. Mahmoud, 606 U.S. at 566-567.

Second, Colorado has identified neither an "'actual problem' in need of solving," Brown, 564 U.S. at 799, nor any actual harm that would result from granting Petitioners an accommodation, Gonzales v. O Centro Espírita Beneficente União do Vegetal, 546 U.S. 418, [*50] 431-432 (2006); see also Fulton, 593 U.S. at 542 ("[S]peculation is insufficient to satisfy strict scrutiny[.]"). The record is devoid of a single instance of an LGBTQ family's seeking admission to any one of Petitioners' preschools. Colorado has admitted that the "possibility" this would happen is "speculative." Dist. Ct. Mot. Dismiss (ECF.38) at 11. And, as Colorado also concedes, the Department has never received a single complaint alleging LGBTQ discrimination at any of Petitioners' preschools, even though they have been state-licensed for decades. J.A.335-336; see also J.A.158, 498. And if such a family did seek admission to one of Petitioners' preschools (either through UPK's matching process or otherwise), the preschool would easily be able to refer these families to any number of nearby preschools of comparable quality. The lack of harm to Colorado's interests further confirms that Colorado has no compelling reason to exclude

Archdiocesan preschools.

Third, excluding Catholic preschools from UPK undermines Colorado's stated interest. As this Court observed in Fulton, "[m]aximizing the number of foster families" is an "important goal[ ]," but "[i]f anything, including" a Catholic provider "seem[ed] likely to increase, not reduce, the number of available foster parents." Fulton, 593 U.S. at 541-542. The same is true here: including Catholic preschools in UPK will only increase access to UPK. And even assuming Colorado's interest were limited to increasing UPK access for LGBTQ families specifically, excluding Catholic preschools does not advance this contrived interest. Indeed, artificially deflating the total number of UPK seats available—while simultaneously incentivizing families to leave Catholic preschools so they can receive the UPK benefit—makes it harder for LGBTQ [*51] families to access UPK because more families are competing for fewer seats. It is thus unsurprising that Colorado's witnesses did not speak "directly to whether Plaintiff Preschools' participation in the UPK Program would increase or decrease the ability of LGBTQ+ families to access preschool services." Pet.App.94a.[8]

2. Nor has Colorado used the least restrictive means available to further its interests. "[I]f a less restrictive means is available for the Government to achieve its goals, the Government must use it." Holt v. Hobbs, 574 U.S. 352, 365 (2015). Colorado says it wants to ensure access to UPK preschools, but it ignores less restrictive alternatives that could remove barriers to access just as well or better than excluding Catholic preschools.

The Department's online portal provides detailed information about individual providers, including about their admissions policies. See, e.g., S.J.A.2-8 (various admissions restrictions). Colorado includes this information "[s]o that families understand" and can "mak[e] an informed choice about the provider[s]" they select. J.A.335. Additionally, the portal allows the Department to ask families questions to determine whether they meet a provider's enrollment requirements. J.A.247-248.

[*52] Colorado could use these built-in features to help families find the preschool that best meets their needs and ensure families are aware that Petitioners' preschools ask families to support their religious mission as a condition of enrollment. And even if Colorado were specifically concerned with helping LGBTQ families find UPK preschools that don't share the Archdiocese's beliefs about marriage and sexuality, Colorado could proactively designate such preschools, as the federal government has for foster-care families. 89 Fed. Reg. 34,818, 34,829 (Apr. 30, 2024) (designated placements must "[c]ommit to establish an environment that supports the child's LGBTQI+ status or identity").

Colorado rejected these less restrictive alternatives out of hand, offering no evidence demonstrating why they wouldn't similarly advance the State's interest. This evidentiary failure alone confirms it cannot satisfy strict scrutiny. Ramirez v. Collier, 595 U.S. 411, 429 (2022) ("conclusory defense of the policy's tailoring" insufficient); McCullen v. Coakley, 573 U.S. 464, 494 (2014) (Massachusetts failed to "show[ ] that it considered different methods" or "seriously undertook to address the problem with less intrusive tools readily available to it."); Yellowbear v. Lampert, 741 F.3d 48, 63 (10th Cir. 2014) (Gorsuch, J.) ("[T]he government's burden here isn't to mull the claimant's proposed alternatives, it is to demonstrate the claimant's alternatives are ineffective.").

* * *

Today, over 2,000 secular and religious preschools participate in UPK, and Colorado asserts that every single one, by agreeing to the equal-opportunity mandate, admits and accommodates LGBTQ families and [*53] children. Unsurprisingly, then, Colorado offers no evidence that even a single LGBTQ family in Colorado has been unable to access UPK-funded preschool. Yet since 2023, thousands of families have been shut out of UPK—for no other reason than their commitment to a Catholic preschool education. Colorado isn't just failing to advance its stated interest: It is actively undermining its stated interests and costing thousands of children the very benefits the State elsewhere touts as critical. Pet.App.187a-188a (long-term benefits of universal preschool access). Colorado's exclusion of Catholic preschools defies both the Constitution and common sense.

[8]The district court evaded this by recasting Colorado's alleged compelling interest as an interest in forcing Petitioners' preschools specifically to enroll LGBTQ families, ostensibly because they provide an excellent academic education. Pet.App.145a-146a. But even assuming there are "unique" educational benefits available only at Catholic preschools, that "hardly means a State may coopt" these schools into violating their beliefs. 303 Creative LLC v. Elenis, 600 U.S. 570, 592 (2023).

↑ **Conclusion.** The decision below should be reversed. Respectfully submitted.

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JUNE 2026

↑ **Lisa Roy, in Her Official Capacity as Executive Director of the Colorado Department of Early Childhood** Brief on the Merits · Aug. 17, 2026

Brief of respondents Lisa Roy, et al. filed.

Roy · Brief on the Merits · Aug. 17, 2026 · respondent — coupling row E
Cites 41 cases (102 mentions), 2 citations not resolved; 43 statutes and provisions (2 bare section cites not resolved).
Shares with Pet. 25% · Br. in Opp. 19% · Cert. Reply 14% · Pet'rs Br. 37% · Reply Br. 21%; closest: Pet'rs Br.
Its own ground: 10 cases no other filing cites; 5 shared with its own side only, 26 with the other side.
Statutes: Colo. Rev. Stat. § 26.5-4-205 ×16; 8 Colo. Code Regs. 1404-1 ×12; Colo. Rev. Stat. § 26.5-4-202 ×8; 20 U.S.C. § 1412 ×7 (around M.H.); Colo. Rev. Stat. § 26.5-4-204 ×7; 20 U.S.C. § 1400 ×3 (around M.H.); 20 U.S.C. § 1413 ×2 (Implied private rights of action (Cort v. Ash) and § 1983); 20 U.S.C. § 1414 ×2 (around M.H.); 35 more.

↑ **Questions Presented.** [*i] 1. Whether Carson v. Makin requires the application of strict scrutiny to neutral and generally applicable conditions on public benefits that incidentally burden religious exercise.

2. Whether a state's decision to allow publicly funded preschools to provide specialized services for disabled children and children from low-income families requires the state, as a constitutional matter, to allow religious preschools participating in that same program to exclude children based on their parents' (or their own) protected-class status.

3. Whether the Free Exercise Clause requires strict scrutiny of a state program's statutory equal-opportunity requirements when the program allows no exceptions to those requirements, authorizes no one to grant exceptions to those requirements, and allows no secular conduct that undermines the state's equal-opportunity interests. [*1]

↑ **Introduction.** Colorado's universal preschool program ("UPK") stands apart from many states' preschool programs. Rather than limiting participation to public entities, Colorado opened UPK to private preschools, including religious preschools providing religious education. UPK thus differs from the program in Carson v. Makin, 596 U.S. 767 (2022), which funded only schools providing a secular education.

From the start, Colorado has encouraged Petitioners and other faith-based preschools to join UPK. Participating religious preschools may continue to teach and shape their curricula according to their faith. No surprise then that many religious preschools, including Catholic preschools, participate. Pet.App.62a, 116a. Yet Petitioners claim that they have been "excluded" from UPK "solely on account of their religious exercise." Br.[1]. Not so. Petitioners remain welcome to participate in UPK, subject to the same equal-opportunity requirements that apply to all other publicly funded preschools—public and private, secular and religious.

All participating preschools must meet neutral, generally applicable quality standards, including health, safety, training, and teacher qualification requirements. These standards include the requirement that each preschool "provide eligible children an equal opportunity to enroll and receive preschool services regardless of race, ethnicity, religious affiliation, sexual orientation, gender identity, lack of housing, income level, or disability." Colo. Rev. Stat. ("C.R.S.") § 26.5- 4-205(2)(b). These conditions apply to every UPK provider. C.R.S. § 26.5-4-205(1)(b)(I).

[*2] Petitioners want to receive public funding without complying with those conditions—by, for example, excluding preschoolers based on their parents' sexual orientation. But as this Court recently reaffirmed, "the government is generally free to place incidental burdens on religious exercise so long as it does so pursuant to a neutral policy that is generally applicable." Mahmoud v. Taylor, 606 U.S. 522, 564 (2025) (citing Emp. Div. v. Smith, 494 U.S. 872, 878-79 (1990)).

Because UPK's equal-opportunity requirements are neutral and generally applicable, Petitioners' challenge fails under existing precedent. Indeed, after a full trial, the district court found no evidence of non-

[1] Allison H. Friedman-Krauss et al., The State of Preschool 2025, Nat'l Inst. for Early Educ. Rsch. 14-15, 47 (2026), https://coag.gov/app/uploads/2026/08/2025-nieer-yearbook.pdf (Colorado ranks third in the nation for preschool enrollment).

neutrality, refusing to "assume [or] manufacture facts" or "infer the existence of hostility where there is none." Pet.App.110a; see also Pet.App.108a-16a.

Petitioners nevertheless seek to transform Carson's rule against religious discrimination into a new rule that would trigger strict scrutiny whenever public-benefits conditions incidentally burden religiously motivated conduct. This Court should not chart that path. The facts of this case supply no basis to adopt a novel rule that departs from this Court's precedent, which protects religious exercise by empowering courts to strike down laws—both overt and covert—that are "specifically directed at . . . religious practice." Kennedy v. Bremerton Sch. Dist., 597 U.S. 507, 526 (2022) (quoting Smith, 494 U.S. at 878).

UPK's equal-opportunity requirements are also generally applicable. Neither UPK's statute nor its regulations allow any exceptions from those requirements. Participating preschools—religious and secular alike—may maintain curricular requirements and [*3] other enrollment criteria so long as those criteria do not deny equal opportunity based on protected-class status. The Colorado Department of Early Childhood ("CDEC") has no authority to waive compliance with the equal-opportunity requirements.

Petitioners insist that UPK has created exceptions to the equal-opportunity requirements by allowing public school districts and Head Start preschools to provide specialized services to children with disabilities and children living in poverty. Br.38-39. But Petitioners misinterpret UPK's statute, which expressly prioritizes specialized services for these children, and reflects legislatures' and courts' longstanding awareness that ensuring equal opportunity for these children often requires providing them with additional support. UPK does not allow any secular conduct that undermines Colorado's equal-opportunity interests when it allows the participation of preschools that provide those children with that support.

Whatever a family's publicly funded preschool options—however many or few—Colorado seeks to ensure those options are not limited by that family's protected-class status. Petitioners urge this Court to authorize them to receive public funds on terms different from every other participating preschool—terms that would allow them to exclude families based on protected-class status. The Constitution does not support that result. [*4]

Statement of the Case.

I. Colorado's universal preschool program

Thanks to UPK, Colorado now has one of the nation's highest rates of preschool enrollment. 1 UPK offers every four-year-old Coloradan up to 15 hours of free preschool each week. See C.R.S. § 26.5-4- 204(1)(a), (3)(a)(I); Pet.App.51a. The statute also requires the program to include, and provide specialized services to, children with disabilities and children from low-income families. C.R.S. §§ 26.5-4-202(1)(a)(V), (4); 26.5-4-204(1)-(4). The statute additionally makes clear that those children may receive additional hours of free preschool each week (on top of the 15 hours offered to all preschoolers). C.R.S. § 26.5- 4-204(1)(b), (3)(a)(V), (4)(a)(II).

A. UPK's "quality standards" are central to achieving the program's purpose

Because high-quality preschool can boost children's literacy, improve their performance on standardized tests, and increase their chance of graduating from high school, the UPK statute requires participating preschools to adhere to specific "quality standards." C.R.S. §§ 26.5-4-202(1)(a)(III); 26.5-4-205. These quality standards ensure that UPK's publicly funded preschools deliver high-quality early childhood education by, for example, capping classroom sizes and student-teacher ratios; setting minimums for the number of hours children spend directly with teachers [*5] during instruction; and providing families with voluntary vision, dental, and health screenings. C.R.S. § 26.5-4-205(2)(a), (c), (k).

The statute's quality standards also include equal-opportunity requirements ensuring that each participating preschool provide "eligible children an equal opportunity to enroll and receive preschool services regardless of race, ethnicity, religious affiliation, sexual orientation, gender identity, lack of housing, income level, or disability, as such characteristics and circumstances apply to the child or the child's family." C.R.S. § 26.5-4-205(2)(b). Given the critical importance of equal opportunity in ensuring access to high-quality, publicly funded preschool education, the statute allows no exceptions

from that provision. C.R.S. § 26.5-4-205(1)(b).

UPK is voluntary: No family or preschool is required to participate. But those preschools that choose to participate must adhere to the law's quality standards. C.R.S. § 26.5-4-205(1)(b).

B. Colorado has encouraged faith-based providers to participate in UPK from its start

Historically, many states (including Colorado) funded only public preschools. JA262-63; Pet.App.59a-60a. The UPK statute changed the state's early childhood education framework, opening the program to public and private preschools—including religious schools—in what is called a "mixed-delivery" system. C.R.S. §§ 26.5-4-202(1)(a)(VI); 26.5-4-203(12).

From UPK's inception, CDEC (the agency charged with implementing the program) sought to include religious providers. It convened an interfaith working [*6] group to solicit and respond to religious preschools' questions and suggestions regarding UPK. Pet.App.60a; JA233-34. Petitioner St. Mary Catholic Parish was an "early and lasting" participant, along with other faith-based providers. Pet.App.74a; JA233- 34. In response to that group's feedback, CDEC promulgated a "congregation preference" that enabled religious providers to prioritize "members of the community that the faith-based provider serves as the faith-based provider defines that community." Pet.App.69a-70a.

Neither the UPK statute nor CDEC regulates or restricts preschools' religious curricula or worship: Participating faith-based preschools remain free to teach their faith while receiving public funding. JA306-07; Pet.App.64a. In concrete terms, this means that Catholic schools participating in UPK may teach their religious views on sex, marriage, gender, family, and any other topic. But UPK does not allow any publicly funded preschool to exclude children who wish to enroll in the school simply because their parents are gay (to take one example).

CDEC's efforts to include religious preschools have succeeded. More than forty faith-based providers—including six Catholic Charities preschools that are part of the Archdiocese of Denver—participated in UPK's inaugural year. Pet.App.115a; Supp.App.2a.

↑ **II. UPK preserves and expands preschool services for children with disabilities and children from low-income families**

UPK built on the state's pre-existing framework that provided publicly funded preschool services to low-income families and children at risk of not being [*7] prepared for kindergarten (including children with disabilities). C.R.S. § 26.5-4-202(1)(a)(I)-(II), (4); JA265-67. The UPK statute recognized that the success of Colorado's move to a universal program requires the continuing participation of the school districts and Head Start preschools that provide specialized services to children with disabilities and children living in poverty. C.R.S. § 26.5-4-202(1)(a)(II), (1)(a)(IV), (3)(a)(II), (4); JA267.

A. UPK preserves and expands preschool services for children with disabilities

By enacting the Individuals with Disabilities Education Act ("IDEA") in 1975, Congress responded to the reality that millions of children with disabilities were excluded from public schools, denied the opportunity to learn alongside their peers, and deprived of the appropriate educational services they needed for equal educational opportunity. 20 U.S.C. § 1400(c)(2), (c)(7). To address those problems, IDEA gives federal funding to states that develop programs to provide eligible children with disabilities free appropriate public education that includes special education and related services. ~~20 U.S.C. §§ 1400(d)(1)(A), 1~~ **rep**411, 1412, 1419.

Public school districts (and their contracted partners 2) with qualified staff—including teachers, special-education coordinators, and aides—may provide[2] [*8] special education under IDEA. 3 See ~~20 U.S.C. §§ 1412(a)(1), 1~~ **rep**412(a)(10)(B), 1412(a)(14), 1413(a)(1); JA293-94. IDEA requires school districts to develop an individualized education program ("IEP") for each eligible child with a disability that identifies the special education and related services required to support that child's unique educational needs. 20 U.S.C. § 1414(d)(1)(A), (d)(2)(A); accord C.R.S. § 22-20- 103(15). That child's "IEP Team" (made up of educators along with the child's parents) then identifies the school where the child will receive these specialized services, known as the child's placement. 20 U.S.C. § 1414(d)(1)(B); 1 Colo. Code Regs. ("CCR") 301-8 § 4.03(8)(a). An IEP therefore determines where a child will receive the services they need in the least restrictive environment, which must be "as close as possible to the child's home." 34 C.F.R. § 300.116(b)(3).

UPK requires that children with disabilities receive a seat and services at a school that can meet their individual and diverse needs, and thus anticipates that school districts will participate in UPK. C.R.S. §§ 26.5-4-204(3)(a)(II), 26.5-4-203(14). Accordingly, an open seat at "any" school is not interchangeable with an open seat at a school specifically

in a private school or facility, but the public agency remains responsible for ensuring compliance with IDEA. See 20 U.S.C. § 1412(a)(10)(B); 34 C.F.R. §§ 300.145-.147; JA293-294. 3 These schools provide more than half of Colorado's UPK-

funded slots. Colo. Dep't of Early Childhood, UPK Program Year 2024-25 Annual Report 17, 33 (Jan. 2026), https://coag.gov/app/uploads/2026/08/colorado-UPK-2024-25- annual-report.pdf.

[*9] determined to be an appropriate placement for a disabled child to receive their necessary, specialized services. If IDEA-funded preschools had to turn away children with IEPs to enroll children who do not need specialized services (and who thus could be served effectively elsewhere), many children with disabilities would be forced into inappropriate placements, contravening both IDEA's and UPK's statutory objectives and requirements. C.R.S. §§ 26.5-4-202(4), 26.5-4- 204(3)(a)(II), (3)(b); 20 U.S.C. § 1412(a)(1)(A).

B. UPK preserves and expands preschool services for children from low-income families

The federal Head Start program promotes "the school readiness of low-income children" by providing those children with educational, health, and family support services. See 42 U.S.C. § 9831. Head Start funding is available to public and private nonprofit agencies that dedicate nearly all of their services to children and families who are at or below the poverty line, receive public assistance, are homeless, or are in foster care. See 42 U.S.C. §§ 9836(a)(1), 9840(a)(1)-(2); 45 C.F.R. § 1302.12.

In enacting the program, Congress responded to evidence that particularized support helps ensure equal opportunity for children from low-income families. Recommendations for a Head Start Program, U.S. Dep't of Health, Educ., and Welfare, Office of Child Dev. 2 (1965), https://coag.gov/app/uploads/2026/08/cooke-report.pdf (explaining that special programs for four- and five-year-olds in poverty improve their opportunities for success); id. at 4 (recognizing that children from poor families "have not [*10] had the kinds of experiences and opportunities, which are available to more economically, advantaged families"). Based on this evidence, Head Start agencies provide a broad package of services, including curricula that specifically foster children's skills in language, literacy, mathematics, science, and creative arts, along with their social, emotional, and physical skills. 42 U.S.C. §§ 9835(o), 9836a(a)(1)(B). Head Start programs also support parents' full partnership in their children's education through family literacy instruction, parenting skills training, substance abuse counseling, and related programming. 42 U.S.C. § 9837(b)(3)-(5).

Recognizing the importance of these services for children living in poverty, the UPK statute specifically anticipates that Head Start preschools will participate in UPK. C.R.S. §§ 26.5-4-202(1)(a)(II), (3)(a)(I)-(III); 26.5-4-203(12), (14)(e). UPK adds state funding to Head Start schools' existing federal funding (and other resources) to help improve and expand their broader educational, health, and family-support services. See C.R.S. § 26.5-4-204(3)(a)(V) (providing for additional UPK services for low-income students); 45 C.F.R. § 1303.4 (federal regulation capping federal funding for Head Start grant recipients at eighty percent of the total program costs); see also 42 U.S.C. § 9836a(a)(1) (Head Start curriculum requirements); 45 C.F.R. §§ 1302.40 (Head Start health services requirements), 1302.50 (Head Start family engagement requirements). Filling the seats at a Head Start preschool without regard to those children's Head Start eligibility—which largely turns on their families' low income—would deprive children living in poverty of [*11] Head Start's specialized services and thus of equal educational opportunity.

III. UPK's system for matching children with preschools allows no exceptions to the statute's equal-opportunity requirements

[2]IDEA assigns public educational agencies responsibility for

ensuring that eligible children receive the special education and related services to which they are entitled. See 20 U.S.C. §§ 1412(a)(1), 1413(a)(1). Those agencies may provide services directly or, where appropriate, arrange for a child to receive them

Operationalizing the UPK statute was no easy task. In its inaugural year, CDEC worked to create an enrollment system to help approximately 40,000 children and their parents identify, among the nearly 2,000 UPK providers across the state, the preschools that best meet their needs. See JA285, 302, 309. CDEC obtained software that provides families an online portal to rank up to five preschools; the software's algorithm then matches those families with one of their ranked choices. Pet.App.64a-65a; JA237-38. The algorithm also enables families to select additional preschools if none of their initial choices are available. Pet.App.64a.

Based on feedback from providers across Colorado, CDEC realized that—absent adjustment—this software's technical limits would create substantial logistical problems by simply defaulting into a first-come, first-served system. Pet.App.65a; JA286-91. Preschools warned CDEC that such a system would create unintended consequences like separating siblings, displacing children from the schools in which they were already enrolled, and preventing school districts from serving children who live within their geographic boundaries. Pet.App.7a, 65a-66a; JA235, 286- [*12] 308. These concerns illustrate the sorts of enrollment challenges commonly faced by many schools.[4]

To address these concerns, CDEC adopted a regulation allowing adjustments (known as "preferences") to the matching algorithm so that providers could give priority to families meeting their enrollment criteria—so long as those preferences complied with the equal-opportunity requirements. 8 CCR 1404-1 § 4.109(A)- (B); JA286-98, 302-04. The regulation does not authorize CDEC to approve (or disapprove) preschools' enrollment criteria; it instead authorizes CDEC to approve adjustments to the matching algorithm to facilitate preschools' ability to match with families that satisfy their enrollment criteria—again, so long as those adjustments do not allow a preschool to deny equal opportunity in violation of the statute. 8 CCR 1404-1 § 4.109(A)-(B); JA286-98, 302-04.

[*13] This regulation allowed adjustments that refined the software's blunt, first-come, first-served algorithm to implement the enrollment criteria commonly used by UPK providers. These algorithmic adjustments specifically enabled cooperative preschools to match with children whose families volunteer their time to the school; school districts to match with children who live within the district; children with IEPs and children from low-income families to match with the school district and Head Start preschools that provide specialized services for those children; preschools to match with their employees' children, continuing students, and those students' siblings; and dual-language programs to match with children who speak the program's languages. 8 CCR 1404-1 § 4.109(A)(1)-(8); JA291-98. The regulation makes clear that none of these adjustments can be used to allow preschools to depart from the equal-opportunity requirements. 8 CCR 1404-1 § 4.109(B); JA235, 237-38, 292-98. More than 1,000 preschools have utilized these specific adjustments, which are available to both secular and religious preschools on the same basis. Pet.App.69a.

When it learned that those specific adjustments still might not account for every provider's needs, CDEC added a final regulatory provision (sometimes called the "programmatic preference") that allows preschools—secular and religious alike—to request a specific adjustment to the algorithm to facilitate matching with students who meet their enrollment criteria (again, so long as those criteria do not violate the equal-opportunity requirements). 8 CCR 1404-1 § 4.109(A)(9), (B); Pet.App.73a-74a; JA302-04, 828-30. The regulation itself lists examples of "approved preferences" [*14] to illustrate the sorts of adjustments consistent with the equal-opportunity requirements, like an employer that operates an on-site preschool prioritizing the children of that employer's employees, and schools prioritizing families within a specified geographic area. 8 CCR 1404-1 § 4.109(A)(9). In UPK's inaugural year, CDEC approved 17 requests for adjustments under this provision. Dist.Ct. Pls.' Trial Ex. 34 (CA10.Aplt.App.VII

[4]For example, public schools in Colorado often make decisions about which students to admit based on a variety of enrollment criteria. See C.R.S. § 22-36-101(2)(a), (3)(c) (identifying such criteria to include age, course prerequisites, and academic performance); School Admission Priorities, Denver Pub. Schs. School Choice, https://perma.cc/PT86-AATC (last visited Aug. 16, 2026) (identifying such criteria to include geographic boundary and sibling priority). Medical residency and fellowship programs offer another illustration, using an algorithm to pair applicants with hospital placements. See Intro to the Match: How the Matching Algorithm Works, National Residency Matching Program, https://perma.cc/5GNT-5Q7T (last visited Aug. 16, 2026); see also 15 U.S.C. § 37b(a)(1)(B) (noting that, prior to the establishment of medical residency "matching" algorithms, the "situation was inefficient, chaotic, and unfair and it often led to placements that did not serve the interests of either medical students or residency programs").

at 1729-34). None depart from the equal-opportunity requirements. See Pet.App.32a, 72a-74a; see also Pet.App.122a.

↑ **IV. Petitioners decline to join UPK**

On January 14, 2023, the Archdiocese of Denver instructed its preschools not to register with UPK because there were "elements of [UPK's] non-discrimination requirements" that ran counter to the Archdiocese's prior guidance "with respect to issues of sexual and gender identity."[5] Pet.App.280a-82a; see Pet.App.12a, 79a-80a.

[*15] On February 17, 2023, a group of schools and educational institutions (that included the Archdiocese) wrote the state, asserting that "certain requirements under UPK will severely restrict the ability of faith-based providers to participate in the program without compromising their sincerely held religious beliefs." Pet.App.283a. Citing the statute, the letter expressed the group's opposition to the UPK's equal-opportunity requirements, but it provided no detail identifying which of the specific requirements the group found objectionable. Pet.App.283a-87a. Nor did the letter identify any particular provider or specify the precise exemption it sought. Id.

On February 28, 2023, CDEC Executive Director Dr. Lisa Roy responded to the letter. Pet.App.288a-90a. She explained that C.R.S. § 26.5-4-205(2)(b) requires UPK's equal-opportunity requirements and that she does "not have the authority to create an exemption that excludes faith-based providers from the . . . statute." Pet.App.289a. At the same time, Dr. Roy reiterated that "faith-based providers can, and are encouraged to, participate in the UPK program," and she pointed to the "interfaith working group, which meets weekly, to problem solve issues as they arise from within the faith-based community and facilitate participation." Pet.App.289a. [*16]

↑ **V. Proceedings below**

Petitioners St. Mary Catholic Parish and St. Bernadette Catholic Parish filed their complaint shortly after the start of UPK's first school year.[6] St. Mary operates, and St. Bernadette operated, preschools together with their K-8 schools.[7] They asserted financial burden based on their decision, grounded in their religious beliefs, not to participate in UPK because of its equal-opportunity requirements. Dist.Ct.Dkt.32-14, ¶ 47, St. Mary Catholic Parish v. Roy, No. 1:23-cv-02079 (D. Colo. Sep. 13, 2023); Dist.Ct.Dkt.32-16, ¶ 32.

Petitioners Daniel and Lisa Sheley are parents with a child who was attending St. Mary preschool at the time of trial. JA185-86. St. Mary's decision, grounded in its religious beliefs, not to participate in UPK because of its equal-opportunity requirements [*17] meant that the Sheleys paid tuition for their child's attendance there. Dist.Ct.Dkt.32-18, ¶ 6; see also Dist.Ct.Dkt.30, ¶ 91 (amended complaint adding Sheleys as plaintiffs).

Petitioners asked the district court to "[d]eclare that the religious affiliation, sexual orientation, and gender identity nondiscrimination requirements of [C.R.S.] § 26.5-4-205(2)(b) violate the First Amendment to the United States Constitution as applied to Plaintiffs' religious exercise." Dist.Ct.Dkt.30 at 35.

[5]The Archdiocese's instruction was a departure from its prior practice, where it allowed its preschools to agree to nondiscrimination requirements in other publicly funded early childhood programs, like the Colorado Child Care Assistance Program ("CCCAP") and the Denver Preschool Program ("DPP"). See Dist.Ct.Dkt.72 at 12-13 & n.4; JA836 (CCCAP contract requiring participating providers to "[a]ccept referrals for child care without discrimination with regard to race, color, national origin, age, sex, religion, marital status, sexual orientation or physical, intellectual or mental health disability"); JA849, 890-91 (DPP provision requiring participating preschools not to discriminate based on "race, color, religion, national origin, gender, age, . . . military status, sexual orientation, gender variance, marital status, or physical or mental disability"). There is no record evidence that any of the Archdiocese's preschools refused to provide childcare based on a child's or family's protected-class status, and CDEC did not anticipate objections to UPK's equal-opportunity provisions. See JA225-26.

[6]The district court dismissed the Archdiocese (also listed as a plaintiff on the original complaint) for lack of standing, Dist.Ct.Dkt.99 at 3. Because the Archdiocese did not present the question of its standing for this Court's review, it is not properly a party before this Court.

[7]St. Bernadette's K-8 school (which included a preschool) closed December 20, 2024, and its claim is moot. Notwithstanding Petitioners' suggestion to the contrary, Br.18, no record evidence indicates any link between UPK and any school's financial struggles. The Superintendent of Catholic Schools for the Archdiocese of Denver testified that Archdiocesan preschools had not experienced "a major hit on enrollment" because of UPK and that their enrollment numbers were "probably still holding steady." Supp.App.91a. St. Bernadette's Principal and Head of School testified that its K-8 school (which included a preschool along with nine other grades) had experienced declining enrollment for several years following divisions among faculty and staff and reports of a "toxic culture." JA62-63, 20, 27.

In other words, Petitioners sought exemptions from those three provisions of the equal-opportunity requirements.

Petitioners' witnesses testified that their schools would refuse to enroll the children of same-sex parents. JA141-43; see Pet.App.77a-78a, 272a-75a; JA198-200 (St. Bernadette denied enrollment to a fifth-grade child of same-sex parents). Petitioners also testified that if a currently enrolled child later identified as gender-diverse, that child's continued enrollment would "not be possible." JA143-45; see Pet.App.78a, 251a-55a (providing that enrollment or re-enrollment of a gender-nonconforming child "would not be appropriate"). Petitioners' request for relief makes clear that they seek the legal right to receive UPK funding while excluding families based on their sexual orientation, gender identity, and religious affiliation. Dist.Ct.Dkt.30 at 35-36.

A. The district court's decision

After a three-day trial, the district court determined that the UPK statute's sexual orientation and gender identity provisions are neutral and generally [*18] applicable, and it therefore applied rational-basis review. Pet.App.108a-16a, 133a-35a, 137a. Concluding that the provisions satisfied that review, it denied Petitioners' request for a permanent injunction exempting them from those provisions. Pet.App.166a, 171a-72a.

The district court determined, in the alternative, that strict scrutiny "would be satisfied" even if it applied. Pet.App.137a-38a. It held that CDEC's refusal to grant Petitioners an exemption was narrowly tailored to achieve Colorado's compelling equal-opportunity interest "in deciding that children may not be denied [publicly funded, quality preschool] based on specified discriminatory factors." Pet.App.146a; see also id. (if children and families are denied access to quality preschool due to protected-class status, "they may be denied the opportunity to achieve their maximum potential, to the detriment of all").

The procedural history of Petitioners' request for an exemption from the equal-opportunity requirements' religious affiliation provision is different. The district court determined that the "congregation preference" reflected CDEC's "attempts to include and accommodate faith-based providers," Pet.App.151a, but nevertheless violated the statute by allowing participating preschools to make enrollment decisions based on religious affiliation. Pet.App.135a-37a, 151a-52a. The district court enjoined CDEC from enforcing the religious-affiliation provision against Petitioners for as long as the congregation preference remained in place. Pet.App.171a-72a. To comply with the statute, CDEC completed a rulemaking process to remove the congregation preference. CA10.Dkt.125-1, 125-2. [*19]

B. The Tenth Circuit's decision

A unanimous Tenth Circuit panel affirmed, holding that Petitioners failed to meet their burden to show that UPK's equal-opportunity requirements are not neutral and generally applicable. Pet.App.5a, 28a, 32a-43a, 47a.[8]

First, the panel agreed with CDEC's interpretation of the statute, concluding that the "preferences for IEPs and Head Start are not exceptions to the nondiscrimination requirement." Pet.App.38a. "Even assuming, arguendo," that the preferences allowing publicly funded preschools to prioritize those children could somehow be understood as exceptions from the statute, the panel also concluded that "[n]othing about the IEP preference or the Head Start preference undermines the government's asserted interest in ensuring equal access to preschools." Pet.App.38a-39a. Yet, it concluded, the same could not be said of "[a]llowing some schools to ignore the nondiscrimination requirement with respect to sexual orientation and gender identity[.]" Pet.App.39a.

[8]As the Tenth Circuit observed, "[CDEC] added [the congregation] preference to accommodate faith-based providers. However, once the district court determined that this preference was incompatible with the nondiscrimination requirement, it was removed. [CDEC] has tried repeatedly to accommodate faith-based providers, but when it comes to the nondiscrimination provision, it can make no exceptions because the provision is required by statute." Pet.App.32a-33a; see also Pet.App.36a n.16 ("[T]he congregation preference no longer exists, and thus cannot undermine the law's general applicability.").

Second, the panel rejected Petitioners' claim that UPK allowed any discretionary exceptions from the [*20] equal-opportunity requirements. It affirmed the district court's factual findings that CDEC had no discretion to grant exemptions and that CDEC's witnesses understood that they had no such authority. Pet.App.29a-30a, 32a.

Third, it rejected Petitioners' argument that the UPK statute's temporary-waiver provision allows CDEC to grant exceptions from UPK's equal-opportunity requirements, interpreting the statute to foreclose such discretion. Pet.App.33a-35a.

The panel also distinguished Carson, holding that it did not require strict scrutiny of programs—like UPK—that do not single out religious schools for disfavor and are thus neutral toward religion. Pet.App.21a-22a.

The Tenth Circuit then applied rational-basis review and held that UPK satisfied this scrutiny. Pet.App.47a.

↑ **Summary of the Argument.** UPK welcomes faith-based preschools regardless of whether they are religious, whether they teach religion, or whether they deliver their services through a religious worldview. UPK does not discriminate against religious actors or the religious use of its funds. Instead, it requires all preschools—secular and religious alike—to deliver publicly-funded services without excluding families based on protected-class status.

Smith remains the governing rule for neutral and generally applicable laws like UPK. Carson didn't displace that rule for public benefit programs: It instead applied the settled principle that government may not [*21] target religion for disfavored treatment. Petitioners now ask this Court to adopt a sweeping new rule requiring strict scrutiny of any burden on religious conduct arising from neutral, generally applicable public-benefits conditions. No precedent supports that approach, and Petitioners offer no workable boundary for it. This Court need not, and should not, redesign Free Exercise doctrine to decide this case, which involves impartial and uniform conditions on providers of publicly funded services.

Petitioners also argue that UPK's inclusion of preschools providing specialized services to children with disabilities and children living in poverty creates an exception to the equal-opportunity requirements—and that this purported exception establishes a constitutional right to exclude other children based on their parents' (or their) sexual orientation, gender identity, or religious affiliation. Petitioners are mistaken. They misinterpret UPK's requirement that publicly funded preschools ensure "equal opportunity . . . regardless of . . . income level, or disability," as required by UPK's statute. C.R.S. § 26.5-4-205(2)(b). The statute expressly prioritizes services for children with disabilities and children from low-income families, and requires participation by school districts and Head Start preschools that provide such specialized services. Reading the statutory equal-opportunity requirements as ensuring equal opportunity regardless of having a disability or low income sensibly reconciles these directives and aligns with longstanding statutory practice. And allowing publicly funded preschools to provide specialized services neither devalues religion nor undermines UPK's general applicability.

[*22] Petitioners also argue that CDEC's discretion to make algorithmic adjustments to facilitate providers' ability to match with families meeting specified enrollment criteria shows that CDEC may grant exceptions to the equal-opportunity requirements. But departures from the algorithm unrelated to the characteristics protected by the equal-opportunity requirements, by definition, are not exceptions from those requirements. The statute, its implementing regulations, the program's actual operation, and the agency witnesses' "unwavering" testimony, Pet.App.72a-73a, all confirm that CDEC may authorize adjustments to the matching algorithm only when those adjustments do not violate the equal-opportunity requirements.

UPK's equal-opportunity requirements satisfy any level of scrutiny. They ensure that all Colorado parents—Catholic, Jewish, Muslim, gay, or straight—can trust that their four-year-olds will not be turned away from publicly funded preschools because of religion, sexual orientation, gender identity, or other protected characteristic.

Argument.

I. This Court has applied Smith's framework for more than thirty-five years

Pursuant to Smith and its progeny, neutral and generally applicable laws that incidentally burden religious conduct receive rational-basis review, while laws that are not neutral or not generally applicable receive strict scrutiny. See Smith, 494 U.S. at 878-79, 885-86; Fulton v. City of Philadelphia, 593 U.S. 522, 533-34 (2021).

Under Smith's framework, the Court first assesses the "neutrality" of the challenged law. See [*23] Church of the Lukumi Babalu Aye, Inc. v. City of Hialeah, 508 U.S. 520, 532 (1993). A law is not neutral—and thus receives strict scrutiny—if its "object . . . is to infringe upon or restrict practices because of their religious motivation." Id. at 533. Laws that "target" religious practice are not neutral regardless of whether their impermissible object is "masked" or "overt." Id. at 534. And a law that singles out religious conduct for disfavored treatment is not neutral regardless of whether it was motivated by the government's religious hostility, Masterpiece Cakeshop v. Colorado Civil Rights Commission, 584 U.S. 617, 634 (2018), or instead the state's antiestablishment interests, Carson, 596 U.S. at 781.

A law is also subject to strict scrutiny if it is not generally applicable. Fulton, 593 U.S. at 533-34. A law is not generally applicable if it prohibits religious conduct while permitting secular conduct that undermines the government's asserted interests in a similar way, or if it incorporates a mechanism for individualized exemptions. Id.; see Kennedy, 597 U.S. at 526.

Petitioners' brief, Br.21, demonstrates Smith's continued utility by citing numerous decisions in which this Court applied Smith's framework to adjudicate Free Exercise Clause challenges. See Kennedy, 597 U.S. at 525-27 (government action was neither neutral nor generally applicable); Carson, 596 U.S. at 781 (law was not neutral because it singled out religious education for exclusion); Fulton, 593 U.S. at 540 (government action was not generally applicable); Tandon v. Newsom, 593 U.S. 61, 63-64 (2021) (government action was not generally applicable); Roman Cath. Diocese of Brooklyn v. Cuomo, 592 U.S. 14, 16- [*24] 18 (2020) (government action was neither neutral nor generally applicable); Espinoza v. Mont. Dep't of Revenue, 591 U.S. 464, 476-77, 487 (2020) (law was not neutral because it singled out religious schools for exclusion); Masterpiece Cakeshop, 584 U.S. at 638-39 (government action was not neutral because motivated by religious hostility); Trinity Lutheran Church of Columbia, Inc. v. Comer, 582 U.S. 449, 462 (2017) (law was not neutral because it singled out religious entities for exclusion); Christian Legal Soc'y Chapter of the Univ. of Cal., Hastings Coll. of the Law v. Martinez, 561 U.S. 661, 697 n.27 (2010) (public university's policy was generally applicable); Lukumi, 508 U.S. at 542-46 (ordinance was neither neutral nor generally applicable).[9]

The fact that challengers prevailed in many of these cases does not weaken Smith's value in protecting religious exercise. Far from it: The decisions Petitioners cite show that Smith continues to exert meaningful force—not that this Court has abandoned it.

[*25] This Court has reaffirmed the now-familiar Smith framework for more than thirty-five years. See, e.g., Mahmoud, 606 U.S. at 564 (citing Smith, 494 U.S. at 878-79) ("Under our precedents, the government is generally free to place incidental burdens on religious exercise so long as it does so pursuant to a neutral policy that is generally applicable."); Kennedy, 597 U.S. at 525 (citing Smith, 494 U.S. at 879-91). It has also repeatedly declined invitations to overturn Smith, including in this case.

II. UPK's equal-opportunity requirements do not discriminate against religion, unlike the law at issue in Carson

Carson prohibited states from disqualifying private schools from public funding based solely on whether those schools provided religious education—the very activity for which the challengers sought public funding. Carson, 596 U.S. at 780-81. UPK does not bar participating schools from providing religious

[9] Petitioners also invoke post-Smith decisions that are inapposite because they involved combined Establishment and Free Exercise questions that implicate distinct doctrines—questions absent from many Free Exercise cases, including this one. See Locke v. Davey, 540 U.S. 712, 719-25 (2004); Hosanna-Tabor Evangelical Lutheran Church & Sch. v. EEOC, 565 U.S. 171, 181 (2012); Our Lady of Guadalupe Sch. v. Morrissey-Berru, 591 U.S. 732, 746 (2020); Cath. Charities Bureau, Inc. v. Wis. Lab. & Indus. Rev. Comm'n, 605 U.S. 238, 247-48 (2025). Petitioners also cite a decision that did not address the merits of the Free Exercise claim, so had no reason to engage Smith's framework. Sause v. Bauer, 585 U.S. 957, 960 (2018).

education, teaching religious doctrine, selecting religious curricula, or integrating worship into the school day. UPK instead regulates a different feature of the publicly funded transaction: whether families may be turned away from that education based on protected-class status. Petitioners' contrary rule would treat any neutral and generally applicable condition on publicly funded services as religious discrimination whenever a provider has a religious reason for noncompliance. Carson neither addressed nor adopted that rule. [*26]

A. Carson applies strict scrutiny when government singles out religious status or religious use for disfavored treatment.

Petitioners claim that Carson displaces Smith's framework whenever the challenged law concerns public benefits. But Carson did not depart from Smith; it aligned with it. Carson reaffirmed that the government is not neutral toward religion when it targets religious use or religious status for disfavored treatment. Carson, 596 U.S. at 780-81. And that principle remains true whether the government's targeting of religion is explicit or surreptitious. Lukumi, 508 U.S. at 534; see Kennedy, 597 U.S. at 526 (governmental actions are not neutral when they are "specifically directed at . . . religious practice") (quoting Smith, 494 U.S. at 878). UPK does not single out religious use or status for disfavored treatment—overtly or covertly—and that reality ends the neutrality inquiry.

In Carson, this Court considered a Free Exercise Clause challenge to Maine's program that provided tuition assistance for enrollment in "nonsectarian" private schools, but excluded "sectarian" schools (i.e., those that offered a religious education). 596 U.S. at 775. Acknowledging that it had "decline[d] to fund explicitly religious uses of public funds," Maine argued that strict scrutiny did not apply because its exclusion was motivated not by religious hostility but by its antiestablishment interests. Brief of Respondent at 37, 41, Carson v. Makin, 596 U.S. 767 (2022) (No. 20- 1088).

Rejecting Maine's argument, Carson invoked the "unremarkable" principle that strict scrutiny applies when government "expressly discriminate[s] against [*27] otherwise eligible recipients by disqualifying them from a public benefit solely because of their religious character." 596 U.S. at 779 (quoting Trinity Lutheran, 582 U.S. at 462); accord Espinoza, 591 U.S. at 477-78. This Court used Smith's "neutrality" vocabulary: "[T]here is nothing neutral about Maine's program. The State pays tuition for certain students at private schools—so long as the schools are not religious." Carson, 596 U.S. at 781. Consistent with Smith's framework that distinguishes neutral and generally applicable laws from laws that discriminate against religion, Maine's law warranted strict scrutiny because it "specifically carved out private religious schools from those eligible to receive" public funding. Id. at 780.

Maine made education's religious content the basis for exclusion. In stark contrast, UPK includes religious education and religious use, while its equal-opportunity requirements regulate only whether a family can be denied that education on protected grounds.

Petitioners' invocation of Catholic Charities Bureau, Inc. v. Wisconsin Labor & Industry Review Commission, 605 U.S. 238, 248-49 (2025), is inapposite. Br.32. The state programs at issue in that case defined eligible entities in terms "explicitly differentiating between religions based on theological practices." Cath. Charities, 605 U.S. at 250. UPK draws no such distinctions. For the same reason, Petitioners' claim that UPK picks "religious 'winners and losers,'" Br.32, is unsupported: UPK imposes the same neutral and generally applicable conditions on all who receive the public's funds. UPK does not "tilt the religious playing [*28] field," Br.32, when it uniformly prohibits participating providers from excluding preschoolers based on protected-class status regardless of that conduct's religious or secular motivation.[10]

B. This Court's precedent confirms no special "public-benefits" rule for Free Exercise challenges

Petitioners claim that Sherbert v. Verner, 374 U.S. 398 (1963), and Thomas v. Review Board of the Indiana Employment Security Division, 450 U.S. 707 (1981)—both decided before Smith—established that strict scrutiny applies to the government's neutral and generally applicable conditions on public

[10]Contrary to Petitioners' selective quotation of Locke, the "baseline" that Colorado offers through its UPK program is both neutral and "generally available" as to religion. See Br.30-31 (quoting 540 U.S. at 726-27 (Scalia, J., dissenting)). This fact distinguishes UPK from the scholarship program in Locke that excluded theology majors. Indeed, Justice Scalia's dissent invoked the language of non-neutrality later applied in Carson, as he objected to a public funding program that "carved out a solitary course of study [theology] for exclusion," observing that "[n]o field of study but religion is singled out for disfavor[.]" Locke, 540 U.S. at 727.

benefits, Br.33-34. But as Smith explained, the unemployment compensation programs in those cases allowed secular exemptions from those programs' general rule denying benefits to those refusing suitable work—while declining such exemptions to those refusing suitable work for religious reasons. Sherbert, 374 U.S. at 400-01; Thomas, 450 U.S. at 711-12. Smith distinguished those programs from the Oregon law before it not because public benefits were at stake (indeed, Smith itself involved unemployment benefits), but instead [*29] because the earlier laws allowed "individualized governmental assessment" of a claimant's reasons for refusing suitable work. 494 U.S. at 884. That discretionary, case-by-case approach meant that those laws were not generally applicable. Id. at 882-84; see Fulton, 593 U.S. at 533-34 (reaffirming that understanding of Sherbert).

Carson did not describe those cases as applying strict scrutiny to neutral and generally applicable public-benefits programs. It instead emphasized the vulnerability of government programs that are not neutral and generally applicable, pairing its citation to Sherbert (invalidating a program that credited secular but not religious reasons for refusing suitable work), with Everson v. Board of Education, 330 U.S. 1 (1947) (rejecting challengers' effort to exclude students attending religious schools from a program that funded families' school transportation). Carson, 596 U.S. at 778. Indeed, if this Court had recognized a special public-benefits exception to Smith regardless of whether a funding condition was neutral and generally applicable, then it could have disposed of each of the cases in the Carson trilogy with a single paragraph, rather than interrogating the neutrality of those states' funding conditions. See Carson, 596 U.S. at 780-89; Espinoza, 591 U.S. at 476-83; Trinity Lutheran, 582 U.S. at 462-65.

Also unavailing is Petitioners' claim that a selective quotation from Mahmoud supports their proposed [*30] public-benefits rule, Br.34.[11] Petitioners isolate a quotation about conditioning governmental benefits in exchange for surrendering religious status while unmooring that quotation from its context: a discussion of government's non-neutral actions toward religion. Mahmoud quoted Trinity Lutheran's discussion of policies that "expressly discriminate[] against otherwise eligible recipients by disqualifying them from a public benefit solely because of their religious character." Trinity Lutheran, 582 U.S. at 462. Trinity Lutheran, in turn, quoted McDaniel v. Paty's discussion of a state law that disqualified clergy from serving as constitutional convention delegates solely because of [*31] their ministerial calling. Trinity Lutheran, 582 U.S. at 459, 462 (citing McDaniel v. Paty, 435 U.S. 618, 626-27 (1978)). In contrast, UPK is neutral toward religion: It affirmatively includes religious preschools regardless of their religious status, and without regard to their religious use of UPK funds.

C. Smith's framework applies in both civil and criminal settings

The Solicitor General's contention that Smith applies only to criminal laws, U.S.Br.27-28, has no basis in precedent. Smith drew a bright line not between civil and criminal laws, but between laws that are neutral and generally applicable "across the board," and those that are not. Smith, 494 U.S. at 884. Smith itself made clear that this line applies not only to criminal laws, but also to civil enforcement frameworks like minimum wage and overtime provisions, tax collection rules, and equal-opportunity laws. Id. at 889 (collecting cases).

Nor have this Court's subsequent decisions drawn any civil-criminal divide, instead applying Smith in a variety of non-criminal contexts. See, e.g., Kennedy, 597 U.S. at 525 (public employer's discipline of employee); Fulton, 593 U.S. at 534-36 (government contracting for foster care services); Martinez, 561 U.S. at 697 n.27 (public university's limited public forum). Tellingly, the Solicitor General cites

[11] Mahmoud expressly recognized an exception from Smith whereby strict scrutiny applies to neutral and generally applicable government action that imposes on parents a burden "of the same character" as in Wisconsin v. Yoder, 406 U.S. 205 (1972), including an "educational requirement or curricular feature" that substantially interferes with parents' ability to direct their child's religious upbringing. 606 U.S. at 550, 565. Petitioners do not argue that the Mahmoud exception controls this case. Nor could they. Mahmoud recognized a free exercise right for parents to opt out of a specific curricular component that substantially interfered with their ability to control their children's religious development. Id. at 550, 568. The preschools here claim a far broader right to receive public funding while excluding families seeking to receive the curriculum Petitioners choose to provide. See Br.29- 30. To the extent the United States advances a new theory that Mahmoud's parental-rights rule should extend to religious institutions themselves, U.S.Br.32-34, this Court should summarily reject that argument as outside the scope of the questions presented. See, e.g., Okla. Tax Comm'n v. Chickasaw Nation, 515 U.S. 450, 465 n.14 (1995) (rejecting suggestion of United States as amicus that was "neither made in the lower courts nor presented here"); NYNEX Corp. v. Discon, Inc., 525 U.S. 128, 140 (1998) (declining to consider matter that "lies outside the questions presented for certiorari").

no decision by any court that has limited Smith to the criminal context. See U.S.Br.27-29.

The Solicitor General's attempted reinvention of Smith also defies common sense. Requiring states to satisfy a more demanding standard when they adopt [*32] milder forms of regulation would paradoxically provide less protection to religious conduct when the stakes are highest: when life and liberty are on the line in a criminal prosecution.

D. This Court should decline to adopt Petitioners' sweeping new public-benefits exception

Petitioners ask this Court (Br.25-26) to adopt a categorical "public benefits" exception—without engaging the very serious questions that would follow, including consequences regarding administrability, separation of powers, and fairness. Fulton declined to adopt such a categorical rule. 593 U.S. at 541; see id. at 543-44 (Barrett, J., concurring) (noting questions raised by, inter alia, a categorical rule's failure to attend to the differences between direct and indirect religious burdens and between institutional and individual claimants); see also Thomas, 450 U.S. at 720 (Rehnquist, J., dissenting) (discussing the "muddied waters" of Free Exercise jurisprudence). This Court can resolve this case by applying its existing Free Exercise precedents, without adopting a farreaching new "public benefits" exception to the Smith framework.

Indeed, Petitioners offer no limiting principle for determining which laws provide a "public benefit" and which do not. They thus leave open questions about their proposal's application to a wide range of government actions, including drivers' licenses; professional and other occupational licenses; compassionate release programs for inmates; parole decisions; trademark registration; public transportation; public [*33] education; public employment; public entities' speech forums; and access to government property.

At minimum, Petitioners' rule would apply to the funding conditions routinely attached to ensure safe, healthy, and high-quality publicly funded education. Not only would commonplace equal-opportunity requirements like UPK's become suspect under Petitioners' rule, but so would laws prohibiting corporal punishment in schools, see, e.g., Wis. Stat. § 118.31(2); or requiring that teachers are drug-free at school, see, e.g., Ala. Code § 16-1-24.1(a), (b)(1).

Petitioners' proposal would also extend to countless public-benefits programs addressing health care, land use, childcare, job training, food and nutrition, victim services, legal aid, reentry programs, and more. Each of these programs commonly feature multiple conditions governing provider qualifications, recordkeeping, oversight (such as home studies, inspections, audits, background checks), and required or prohibited conduct. For just a handful of the myriad examples, see N.C. Gen. Stat. § 108A-29(d), (h) (imposing work requirements on recipients of public assistance benefits); Tenn. Code Ann. § 37-2-414(b)(4)(B) (requiring foster care parents to facilitate a child's counseling or therapy); Ohio Rev. Code Ann. § 3113.36(A)(5) (requiring publicly funded domestic violence shelters to keep information about victims confidential from their spouses and others); Me. Rev. Stat. Ann. tit. 27, § 505(2)(D)(3), (7) (conditioning historic preservation grants on recipients' willingness to open their building to the public). Under Petitioners' proposal, any sincere religious objection to any of these conditions would automatically trigger claimant-specific strict scrutiny.

[*34] Petitioners may reply that strict scrutiny would not automatically require exemptions from every benefits condition. But strict scrutiny is deliberately demanding,[12] and Petitioners' proposal would constitutionalize individualized litigation over innumerable program conditions, requiring program-byprogram and claimant-by-claimant evaluations of whether each condition must yield to religious objections. See Smith, 494 U.S. at 885. States, in turn, would face sprawling administrative challenges in managing patchworks of exceptions. And these significant burdens could pressure states to restrict their public funding programs only to public entities—an outcome all parties want to avoid, and one that would sharply curtail opportunities for religious and other private providers.

[12] See Smith, 494 U.S. at 888 ("[I]f 'compelling interest' really means what it says (and watering it down here would subvert its rigor in the other fields where it is applied), many laws will not meet the test."). The destabilizing consequences of applying strict scrutiny in all these cases could lead courts to water down that scrutiny in ways ultimately detrimental to the robust protection of core constitutional rights. See Free Speech Coal., Inc. v. Paxton, 606 U.S. 461, 485 (2025) (observing that strict scrutiny's demanding standard is "ill suited for such nuanced work").

Petitioners' proposed redesign of Free Exercise doctrine would also deprive state and local officials of the power to adopt sensible, uniform conditions for governing publicly funded services. Smith left politically accountable actors to decide when religious exemptions from neutral, generally applicable laws are warranted—and when to ensure uniform application to all. Smith, 494 U.S. at 890. Legislatures make these choices when enacting, or declining to enact, Religious [*35] Freedom Restoration Acts. So too do states, like Colorado, exercise this choice when they sometimes exempt religious conduct from neutral and generally applicable statutes13—and sometimes, as in UPK, conclude instead that a statute's protections brook no departure. Established precedent leaves that decision with "the people" of Colorado and other states. See City of Boerne v. Flores, 521 U.S. 507, 544 (1997) (Scalia, J., concurring).

Petitioners' proposal would also authorize religious actors to obtain public funding and other public benefits on terms unavailable to all others, Smith, 494 U.S. at 885.

Petitioners do not acknowledge—much less seek to justify—the consequences of such a dramatic departure from precedent. This Court should decline to adopt their rule. It need only apply the rule Smith established, and that this Court has repeatedly used.

↑

III. UPK's equal-opportunity requirements are generally applicable

UPK's equal-opportunity requirements are generally applicable because they do not prohibit religious conduct while allowing secular conduct that undermines UPK's asserted interests in a similar way, and[13] [*36] because they have no mechanism for individualized exceptions. See Fulton, 593 U.S. at 533-34.

First, allowing publicly funded preschools to deliver specialized services to children with disabilities and to children living in poverty—as UPK does—advances Colorado's interests in ensuring that protected-class status does not deny families equal opportunity to quality, publicly funded preschools. Petitioners' proposed exemption, in contrast, would frustrate Colorado's interests by allowing publicly funded preschools to turn children away from available options because of their, or their parents', protected-class status.

Second, UPK provides no mechanism for granting individualized exceptions from its equal-opportunity requirements. Participating preschools—sectarian and secular alike—may maintain their own curricular approaches and enrollment criteria, but only so long as those criteria do not deny equal opportunity under the statute. CDEC has no authority to excuse any publicly funded preschool from complying with the equal-opportunity requirements.

A. Allowing publicly funded preschools to provide specialized services for children with disabilities and low-income families accords with UPK's statutory equal-opportunity requirements

The UPK statute does not permit any exceptions to its equal-opportunity requirements. See C.R.S. § 26.5-4-205(2)(b). Likewise, CDEC's regulations make clear that providers' requested adjustments to the matching algorithm must comply with the statute's equal-opportunity requirements. Compare id., with 8 CCR 1404-1 § 4.109(B).

[*37] Petitioners nonetheless argue that UPK's regulations create exceptions from the statutory equal-opportunity requirements by authorizing two algorithmic adjustments that enable publicly funded preschools to prioritize children with IEPs and children from low-income families. Br.36-39. In Petitioners' view, these providers impermissibly deny equal opportunity to children who are wealthy or not disabled. Id. And so (Petitioners' argument continues), when CDEC permits such supposed violations against children who are wealthy or nondisabled, then it must also permit Petitioners to deny enrollment based on sexual orientation, gender diversity, and religion. Id.

Petitioners misunderstand what it means under the UPK statute for publicly funded preschools to ensure "equal opportunity . . . regardless of . . . income level, or disability." C.R.S. § 26.5-4-205(2)(b). The statute's provisions consistently emphasize the role of specialized services in ensuring that

[13] See, e.g., C.R.S. §§ 24-34-600.3(1)(b) (excluding, from state public accommodations law, any church, synagogue, mosque, or other place principally used for religious purposes); 8-70- 140(1)(a)-(b) (exempting religious employment from state unemployment compensation program); 39-3-106(1) (exempting property "used solely and exclusively for religious purposes" from property tax); see also Smith, 494 U.S. at 890 (observing that Colorado had "made an exception to their drug laws for sacramental peyote use").

children with disabilities and children living in poverty have a meaningful opportunity to achieve primary school readiness. Recognizing that access to high-quality preschool can improve educational "outcomes . . . for children in low-income families and those who are at risk of entering kindergarten without being prepared to learn," C.R.S. § 26.5-4-202(1)(a)(II), the statute expressly prioritizes services for those children. C.R.S. § 26.5-4-204(1)(b)-(c). The statute also ensures the inclusion of school districts and Head Start agencies that, respectively, implement IEPs for children with disabilities and special programming for families below the poverty line. C.R.S. §§ 26.5-4-203(3) (tying the UPK Act's definition of "children with disabilities" to [*38] the definition provided elsewhere in the state Education Code to mean children who require an IEP); 26.5- 4-203(14)(c) and (e) (defining eligible "preschool providers" to include public "school district[s]" and "head start program[s]"). And the statute provides those children with free preschool hours beyond those available to other children. C.R.S. § 26.5-4-204(3)(a)(II), (V).

Taken together, these provisions make clear that preschools do not deny equal opportunity based on disability or income level in violation of the statute when they provide specialized services to children with disabilities and children living in poverty. See C.R.S. § 2- 4-201(1)(b) (declaring state legislature's presumption that "[t]he entire statute is intended to be effective"); In re W.P., 295 P.3d 514, 519 (Colo. 2013) (explaining that state statutory provisions are read "as a whole in order to accord consistent, harmonious, and sensible effect to all their parts").

This interpretation of the statutory language is also consistent with longstanding statutory practice. As this Court has recognized, in some contexts, distinctions based on protected characteristics can advance, rather than undermine, a state's interest in equal opportunity. See, e.g., West Virginia v. B. P. J., 146 S. Ct. 2356, 2367 (2026) (recognizing that "maintain[ing] separate women's and men's sports teams" ensures "equal opportunity for female athletes").

Disability law is such a setting. Legislatures have long recognized that specialized services and modifications are sometimes necessary to provide equal opportunity for those with disabilities. For this reason, statutes like the Americans with Disabilities Act [*39] ("ADA"), Rehabilitation Act, and IDEA "generally limit their protections to individuals who have a 'disability.' In that respect, the disability rights laws are very different from the laws that prohibit race and sex discrimination." Samuel R. Bagenstos, Disability Rights Law: Cases and Materials 15 (3d ed. 2021); see ADA, 42 U.S.C. § 12101(a)(7) (declaring ADA's goal to "assure equality of opportunity, full participation, independent living, and economic self-sufficiency" for "individuals with disabilities" (emphasis added)); Rehabilitation Act, 29 U.S.C. § 701(a)(6) (similar); IDEA, 20 U.S.C. § 1400(c)(1) ("Improving educational results for children with disabilities is an essential element of our national policy of ensuring equality of opportunity, full participation, independent living, and economic self-sufficiency for individuals with disabilities.").

This Court has embraced similar understandings of equal opportunity when interpreting disability rights statutes. See Endrew F. v. Douglas Cnty. Sch. Dist., 580 U.S. 386, 399-400 (2017) (explaining that providing specialized services for children with disabilities helps achieve IDEA's "ambitious" goals "in response to Congress' perception that a majority of handicapped children in the United States were either totally excluded from schools or were sitting idly in regular classrooms awaiting the time when they were old enough to drop out" (citation modified)); US Airways, Inc. v. Barnett, 535 U.S. 391, 397 (2002) ("[P]references [for individuals with disabilities] will sometimes prove necessary to achieve the [ADA's] basic equal opportunity goal."); Alexander v. Choate, 469 U.S. 287, 301 (1985) (explaining that federal funding recipients may have to make "reasonable accommodations" in their programs to ensure that those [*40] with disabilities have "meaningful access" to their benefits).

So too with laws providing specific benefits or other forms of special assistance to those living in poverty. This Court has long recognized that incomebased public assistance can "bring within the reach of the poor the same opportunities that are available to others to participate meaningfully in the life of the community." Goldberg v. Kelly, 397 U.S. 254, 265 (1970) (emphasis added); see Schweiker v. Hogan, 457 U.S. 569, 590 (1982) ("A decision to allocate medical assistance benefits only to the poor does not itself violate constitutional principles of equality; in terms of their ability to provide for essential medical services, the wealthy and the poor are not similarly situated and need

not be treated the same.").

Head Start is a prime example: In funding Head Start programs, Congress expressly recognized the need for specialized services to help children from low-income families achieve equality. See S. Rep. No. 109- 131, at 2 (2005) ("Children in Head Start enter the program with a number of factors that put them at risk of school failure, such as extreme poverty, family economic and housing instability, and limited family education attainment . . . Research shows that Head Start clearly makes a difference for children living in poverty."); see also Economic Opportunity Act of 1964, Pub. L. No. 88-452, 78 Stat. 508, 508 (1964) (declaring the Head Start program's objective "to eliminate the paradox of poverty in the midst of plenty in this Nation by opening to everyone the opportunity for education and training"). Federal law recognizes that [*41] ensuring equal opportunity for children living in poverty often requires providing them with specialized services, and Colorado's UPK law recognizes this too.

For all these reasons, the Tenth Circuit, like the trial court before it, correctly understood that preschools do not deny equal opportunity in violation of the statute when they provide specialized services to children with disabilities and children living in poverty. Pet.App.37a-38a; see also Pet.App.130a (Dist.Ct.) (concluding that "special programming" to serve children with disabilities and those in low-income families "does not violate the equal-opportunity requirement"). This Court generally accords "great deference" to lower federal court interpretation of state statutes. See Expressions Hair Design v. Schneiderman, 581 U.S. 37, 45 (2017); Frisby v. Schultz, 487 U.S. 474, 482 (1988). Petitioners have provided no grounds to disturb that deference here.

B. Allowing specialized services for children with disabilities and low-income families advances UPK's equal-opportunity interests

The UPK statute declares Colorado's interest in ensuring that every four-year-old Coloradan has equal opportunity, regardless of protected-class status, to enroll in and receive high-quality publicly funded preschool services. See C.R.S. § 26.5-4-205(2)(b); Br.37. Ensuring that UPK includes preschools that provide specialized services to children with disabilities and children from low-income families—and approving algorithmic adjustments that help match those children with those preschools—helps Colorado achieve these interests.

[*42] Those programs rest on the premise that certain children may require specified services if they are to have a reasonable opportunity for a quality education. For instance, a blind child may require Braille textbooks to learn. See 34 C.F.R. § 300.324(a)(2)(iii). And a family living in poverty may benefit from Head Start's programs for developing reading readiness and parenting skills. See 42 U.S.C. §§ 9836(d)(2)(H)(vi), 9837(b)(3)(A), (4)-(5). Petitioners seek something entirely different: permission to exclude children from publicly funded preschools, based on protected-class status. Their conduct undermines Colorado's equal-opportunity interests by depriving families, based on protected-class status, of otherwise-available publicly funded preschool options.

General applicability analysis, properly conducted, protects religious exercise by screening for government distinctions that prohibit religious conduct yet allow secular conduct that undermines the government's asserted interests in a similar way. E.g., Tandon, 593 U.S. at 62. This analysis identifies laws that devalue religious justifications for regulated conduct by treating them as less important than nonreligious reasons for conduct that poses similar risks to the government's interests. See Lukumi, 508 U.S. at 537-38; see also Fulton, 593 U.S. at 534.

Allowing publicly funded preschools to provide specialized services to disabled children and children living in poverty does not treat those children's needs as more important than others'; instead, it recognizes that those children have different needs that require [*43] different support to achieve equal opportunity.[14] Under this Court's precedent, treating conduct differently based on its different relationship to the state's equal-opportunity interests does not devalue religion, and does not defeat UPK's general applicability. See Fulton, 593 U.S. at 534.

[14]Contrast UPK with the very different school district policy invoked by Petitioners, Br.39, citing Fellowship of Christian Athletes v. San Jose Unified Sch. Dist. Bd. of Educ., 82 F.4th 664 (9th Cir. 2023) (en banc) ("FCA"). That policy required student groups to use non-discriminatory criteria for membership decisions, where both parties agreed that the board had discretion to grant exceptions. FCA, 82 F.4th at 678-88. And not only had the board exercised

The Free Exercise Clause has never forced legislatures to choose between providing specialized services for children with disabilities and children living in poverty to ensure their equal opportunity, on one hand, and protecting children from exclusion from publicly-funded services based on protected-class status, on the other. This Court should not interpret the Constitution to require that choice now. [*44]

C. CDEC has no authority to create or grant exceptions from the equal-opportunity requirements

The UPK statute, its implementing regulations, the program's actual operation, and the agency witnesses' testimony all confirm that CDEC may authorize adjustments (i.e., programmatic preferences) to the matching algorithm only so long as those adjustments are not used to violate the equal-opportunity requirements. 8 CCR 1404-1 § 4.109(A)(9)(b), 4.109(B). While CDEC has authority to determine whether the adjustments would comply with the statute, the agency has no authority to excuse publicly funded preschools from compliance.

1. UPK's statute and regulations foreclose individualized exceptions from the equal-opportunity requirements

To the extent Petitioners believe the statute, C.R.S. § 26.5-4-205(2)(b), empowered CDEC to grant individualized exceptions to the equal-opportunity requirements, they are wrong: "[T]he statute does not say anything like that." See Carson, 596 U.S. at 782.

Nor do UPK's implementing regulations allow any exceptions—discretionary or otherwise—from the equal-opportunity requirements. 8 CCR 1404-1 §§ 4.110(B), 4.109(B).

Petitioners and the Solicitor General assert, incorrectly, that CDEC's discretion to adjust the matching algorithm shows that the agency has discretion to grant exceptions to the equal-opportunity requirements. Br.43; U.S.Br.23-24. But an adjustment to the algorithm unrelated to the characteristics protected [*45] by the equal-opportunity requirements is not an exception to those requirements. UPK therefore stands in stark contrast with the contractual provision in Fulton that expressly empowered city officials to grant discretionary exceptions to the city's antidiscrimination requirement. See Fulton, 593 U.S. at 535.

2. Prioritizing families receiving publicassistance benefits neither violates UPK's equal-opportunity requirements nor undermines Colorado's equal-opportunity interests

UPK's operation conforms to its statutory and regulatory text. After a full trial, the district court determined that none of the algorithmic adjustments approved by CDEC under the programmatic preference allow a provider to deny equal opportunity in violation of the statute. Pet.App.122a-23a; see Pet.App.32a (court of appeals) (reviewing trial record and reaching the same conclusion).

Petitioners nevertheless argue that the regulation's illustrative example of a permissible adjustment—an adjustment to prioritize "families who are receiving a specific public assistance benefit(s) such as housing assistance"—shows CDEC's willingness to authorize a provider to deny equal opportunity based on "income level" in violation of the statute. Br.44. Petitioners are mistaken.

Even if preschools used families' receipt of certain public-assistance benefits as a proxy for low income, prioritizing low-income families does not deny equal opportunity in violation of the statute, as explained supra at IIIA. Nor, for the same reasons, does that preference undermine Colorado's equal-opportunity [*46] interests; instead, it advances those interests. See supra at IIIB.

Along the same lines, Petitioners argue that allowing preschools to prioritize families receiving housing assistance amounts to denying equal opportunity based on a "lack of housing," incorrectly assuming that individuals experiencing homelessness would be ineligible for such benefits. Br.44.[15] But allowing providers to prioritize families receiving public housing assistance would not authorize the exclusion of any family because they lack housing. Rather, those benefits serve families who lack housing by providing public housing, financial support for private housing, and other housing-related services. E.g., 42 U.S.C. §§ 11301-11435 (codifying federal homeless housing assistance

discretion to allow secular student groups to limit membership based on sex and ethnicity, but those exceptions posed risks to the schools' asserted equal-opportunity interests indistinguishable from those posed by the requested religious exception. Id. at 689-90. That case involved secular exceptions entirely absent here and thus had no need to consider the relationship between equal opportunity and specialized services for children with disabilities or from low-income families.

programs); C.R.S. § 24-32-721(2)(d)(VI)(A), (A.5), (D) (establishing state fund to pay for "[r]ental assistance and tenancy support service programs" for individuals experiencing homelessness).

Moreover, Petitioners assume that a family's receipt of public-assistance benefits is necessarily a proxy for its low income. But the regulation does not so limit the term "public assistance benefits" and, indeed, some such benefits are not tied to income at all. E.g., C.R.S. §§ 26-7-102(8), -105, -106 (state program providing families with financial assistance—under certain circumstances that are not tied to income—when adopting a child); 39-3-203(1) (exempting fifty [*47] percent of the first $200,000 of a home's value from property tax for older homeowners regardless of in-

3. UPK gives no one the authority to excuse participating preschools from complying with the equal-opportunity requirements

UPK's regulations empower CDEC to approve preschools' requests for algorithmic adjustments so long as those adjustments do not allow a publicly funded preschool to deny equal opportunity in violation of the statute. 8 CCR 1404-1 §§ 4.109(B), 4.110(B). The authority to assess a request's compliance with the statute is not the authority to waive compliance with the statute. And an official's mistaken view about whether hypothetical conduct would violate a statute is not the power to excuse conduct that violates the statute.

Dr. Roy, CDEC's Executive Director and the agency's top official, ultimately decides whether to approve such requests, after consulting with other CDEC staff, including members of CDEC's legal team. C.R.S. §§ 26.5-1-104, 26.5-1-105(1)(a); JA252, 348, 820-21. Dr. Roy's deposition testimony confirmed that she "cannot grant an accommodation to a nondiscrimination statute statement," that CDEC "cannot legally allow any participant to knowingly discriminate against children," and that she "cannot provide an exemption against what the law says." JA821, 826-27; see also Pet.App.288a-90a (Dr. Roy's letter explaining reasons for denying requested exemption); JA235-36, 252 (testimony from Early Childhood Transition Director Mary Michael Cooke confirming that Dr. Roy [*48] did not have authority to grant an exemption that violated the statute).

Petitioners nevertheless assert that UPK Director Dawn Odean's testimony shows that CDEC felt authorized to grant individualized exemptions from the equal-opportunity requirements. Br.10-11, 44-47. But Ms. Odean's response to hypothetical scenarios addressed only whether certain conduct would violate the equal-opportunity requirements; she did not claim any authority to waive those requirements—and, in fact, she repeatedly disclaimed such authority. JA347- 49. Again, neither UPK's statute nor its regulations allow exceptions to the equal-opportunity requirements—and a witness's testimony cannot alter the meaning of a statute or regulation. See Loper Bright Enters. v. Raimondo, 603 U.S. 369, 403 (2024) ("Courts interpret statutes, no matter the context, based on the traditional tools of statutory construction, not individual policy preferences.").

Put simply, CDEC has no authority to approve a preschool's request for an adjustment to the program's matching algorithm if that request violates the equal-opportunity requirements. 8 CCR 1404-1 §§ 4.109(B), 4.110(B). If any action by CDEC were to depart from the statute's equal-opportunity requirements, the appropriate recourse would be to declare that action invalid. See, e.g., Hanlen v. Gessler, 333 P.3d 41, 49 (Colo. 2014) ("A rule that conflicts with a statute is void."); C.R.S. § 24-4-103(8)(a) ("No rule shall be issued except within the power delegated to the agency and as authorized by law.").

Even if Ms. Odean's testimony were relevant to the statute's legal meaning, Petitioners misconstrue [*49] that testimony, which repudiated the possibility of any discretion to create exemptions from the statute. JA281-82, 301, 316-17, 347, 349-50. Ms. Odean was mistaken when she speculated that Petitioners' hypothetical preferences—prioritizing "children of color," "gender-nonconforming children," or "members of the LGBTQ community"—scenarios she had never previously considered or encountered—would not violate the equal-opportunity requirements. JA347-49. But mistakenly predicting what hypothetical conduct might violate the statute does not claim any power to waive that statute's requirements.

[15] Petitioners raised this argument for the first time in their opening brief before this Court, and the record contains no evidence about how providers might prioritize families receiving housing assistance. This Court should decline to consider this argument.

What matters instead for UPK's general applicability is that she—and CDEC's other witnesses—were "unwavering" in their insistence that the agency cannot and does not approve any preferences that would violate the statute. Pet.App.72a-73a; JA235-36, 252 (Cooke trial testimony), 281-82, 301, 316-17, 347, 349- 50 (Odean trial testimony), 821, 826-27 (Roy deposition testimony). After a full trial on the merits, the district court properly declined to find that CDEC had the authority to grant exceptions "based merely on hypotheticals and speculation when nothing in the UPK Statute or official documents from [CDEC] supports that it does." Pet.App.134a. Petitioners provide no basis to reverse that conclusion.

4. The statute's temporary-waiver provision does not allow exceptions from the equal-opportunity requirements

In a two-sentence footnote, Petitioners also argue that the statutory provision allowing for temporary [*50] waivers from UPK's quality standards creates a mechanism for CDEC's discretionary waiver of the equal-opportunity requirements. Br.44 n.6. It does not, for two reasons.

First, the statute allows a waiver only "for a limited time while working toward compliance with the quality standards" and only when "necessary to ensure the availability of a mixed delivery system within a community." C.R.S. § 26.5-4-205(1)(b)(II). A preschool seeking continuing permission to disregard the equal-opportunity requirements is not working toward compliance with those standards. As both courts below correctly interpreted the statute, the temporary-waiver provision does not allow "even a temporary exception to the nondiscrimination requirement." Pet.App.34a, 117a-21a.

Second, the temporary-waiver provision separately forbids waiver of UPK's "quality standards relating to health and safety," C.R.S. § 26.5-4- 205(1)(b)(II). The UPK statute requires CDEC to establish quality standards ensuring safe and healthy learning environments, and it expressly requires those quality standards to include the equal-opportunity requirements. C.R.S. § 26.5-4-205(1)(a); see also §§ 26.5-1-109(1), 26.5-1-113(1)(a), 26.5-4-204(1)(d). Because the equal-opportunity requirements help ensure safe and healthy learning environments, they cannot be waived even temporarily. Pet.App.120a ("The equal-opportunity requirement is a quality standard related to health and safety that cannot be waived under the UPK Statute."). [*51]

IV. Colorado's equal-opportunity requirements satisfy any level of scrutiny

Petitioners' argument depends on strict scrutiny; they identify no basis for an exemption under any lesser scrutiny. See Pet.App.47a. Because CDEC's equal-opportunity requirements are neutral and generally applicable, they are subject to rational-basis review, and that standard's application defeats Petitioners' challenge. In any event, the equal-opportunity requirements also satisfy strict scrutiny.

A. Colorado's equal-opportunity interest is compelling

Colorado has compelling interests in ensuring that every four-year-old Coloradan has equal opportunity, regardless of protected characteristics, to enroll in and receive high-quality, publicly funded preschool services. See Fulton, 593 U.S. at 542 (government has "weighty" interest in ensuring equal treatment regardless of parents' sexual orientation); Masterpiece Cakeshop, 584 U.S. at 631 ("Our society has come to the recognition that gay persons and gay couples cannot be treated as social outcasts or as inferior in dignity and worth."); Pet.App.47a (recognizing Colorado's "extraordinarily weighty [interest] in protecting equal access to preschool education for Colorado children"); see also Little v. Wuerl, 929 F.2d 944, 949 (3d Cir. 1991) ("In enacting Title VII, Congress clearly asserted a strong government interest in eliminating religious discrimination in employment."); cf. Roberts v. U.S. Jaycees, 468 U.S. 609, 625-26 (1984) (describing compelling state interests in "prohibiting gender discrimination in places of public accommodation").

[*52] Indeed, UPK reflects a commonplace example of government's longstanding interests in forbidding entities from engaging in various forms of discrimination when delivering publicly funded services. E.g., Lau v. Nichols, 414 U.S. 563, 569 (1974) (describing Congress's interest in enacting Title VI as ensuring that taxpayer funds not be used to entrench or subsidize racial discrimination); Gebser v. Lago Vista Indep. Sch. Dist., 524 U.S. 274, 286 (1998) (describing Congress's interest in enacting Title IX as "avoid[ing] the use of federal resources to support discriminatory practices").

Petitioners argue that Colorado's interest "is not compelling as applied to Petitioners." Br.49. Their first point in support of that position simply repeats their mischaracterization of UPK as allowing "broad secular exemptions from the equal-opportunity mandate," when UPK does no such thing. Br.49; see supra at III. And their remaining two arguments, Br.49-51, find no grounding in the record.

The record instead demonstrates Colorado's compelling interest in not granting Petitioners an exemption from the equal-opportunity requirements. Contra Br.49-50. Colorado's interest is not in ensuring that every child has some publicly funded preschool seat somewhere; it is in ensuring that a family's protected-class status does not deny them the ability to choose among available publicly funded preschools. See Pet.App.140a-48a (allowing Petitioners to exclude children based on their family's protected-class status would frustrate Colorado's compelling interests).

The unrebutted expert testimony confirmed that families choose preschools for many reasons, including [*53] location, class size, reputation, curriculum, teacher quality, and schedule. Pet.App.91a; JA356, 389-90. Because the nearly 2,000 UPK preschools statewide vary widely across these dimensions, they are not fungible—and families experience harm when they are excluded, based on protected-class status, from otherwise-available publicly funded preschool options.[16]

Parents—including same-sex parents and religious parents—often prefer schools located close to their home, work, or public transportation. SJA11-12, 26-27; JA1045. This is especially important for same-sex parents because they are disproportionately likely to live in poverty. Pet.App.90a.[17] Petitioners' suggestion that they "would easily be able to refer [excluded LGBTQ] families to any number of nearby preschools of comparable quality," Br.50, is thus unsupported by any record citation and contrary to the trial record. In [*54] practice, families' ability to enroll in preschool often turns on whether a preschool that will accept them is located close to their home, work, or public transportation.[18] Pet.App.91a. For some families, the only meaningfully accessible option for early childhood education may be a religious provider. Pet.App.91a.

Moreover, LGBTQ parents may seek out religious preschools because they—like any other parents—may draw on religion and faith as a source of solace and sustenance. Pet.App.93a; JA439. Those parents, too, may want the same opportunity to choose to enroll in a publicly funded religious school as is available to straight parents. JA439.

Finally, Petitioners dispute Colorado's compelling interest by mischaracterizing that interest as maximizing the total number of publicly funded preschool seats in the state. Br.50. But in doing so, Petitioners overlook UPK's commitment to the quality, not just quantity, of publicly funded preschools—demonstrated by UPK's quality standards regarding not only equal opportunity, but also caps on class size and student-to-teacher ratios, teacher qualifications, and more. See C.R.S. § 26.5-4-205(2)(c)-(d); 8 CCR 1404-1 § 4.110(C)-(D). As the district court recognized, "[s]imply adding to the list of UPK providers" does not address Colorado's interests in ensuring "preschool programs that best fit [a] family's needs" and avoiding [*55] the "risk for inadequate outcomes." Pet.App.143a; see Pet.App.143a-44a (distinguishing Colorado's interest from that asserted in Fulton, which included "maximizing the number of foster parents").

Properly characterized, Colorado has a compelling interest in enforcing the equal-opportunity requirements uniformly as to all UPK participants, including Petitioners.

B. The equal-opportunity requirements are narrowly tailored

[16]The fact Petitioners have decided not to participate in the new UPK program (and thus have received no complaints about excluding families from protected classes, Br.49-50) cannot be used to negate that harm. See Pet.App.141a ("It cannot be assumed that a lack of formal complaints in the past equates to discrimination not having occurred or evinces it is unlikely to occur in the future.").

[17]The district court found the experts' testimony "reliable and persuasive" in supporting Colorado's compelling interests, and that the "[u]ncontroverted testimony at trial" confirmed Colorado's interests as bona fide and "not factitious, hypothesized, or invented post hoc." Pet.App.94a, 139a. Petitioners nevertheless assert, Br.50, that CDEC conceded in its Motion to Dismiss that future harm to LGBTQ families is "speculative." See Dist.Ct.Dkt.38 at 11. But that Motion instead argued that the preschools' asserted injury and threatened enforcement were speculative for purposes of standing and ripeness. Dist.Ct.Dkt.38 at 8-15.

[18]As the district court additionally found, "[f]or LGBTQ+ parents in rural environments, sometimes the only option available for early childhood education is a religious provider." Pet.App.91a. Even in metropolitan areas, these parents experience challenges in accessing early childhood education. JA391- 93, SJA13.

UPK's equal-opportunity requirements are narrowly tailored to Colorado's compelling interests. Those requirements do not restrict publicly funded preschools' religious teaching or curricula, nor do they apply to any services that are not funded by UPK (for example, they do not apply to a religious provider's K-8 school, high school, or soup kitchen). JA306. Conversely, allowing Petitioners to exclude children based on protected-class status would frustrate Colorado's interests in ensuring its families are not disqualified from otherwise-available publicly funded preschool options based on their protected-class status.

And neither of Petitioners' proposed alternatives would effectively advance the state's interests. See Ashcroft v. ACLU, 542 U.S. 656, 665 (2004) (government establishes that it has adopted the least restrictive alternative when it shows that the proposed alternatives would not be as effective in achieving its interest).

Petitioners first propose that CDEC's online portal post information about which publicly funded preschools welcome families regardless of protected-class [*56] status, and which do not. Br.51-52. But Colorado's interest is not in preventing families from being surprised to learn that some publicly funded providers will exclude them; Colorado's interest instead seeks to prevent them from being excluded, based on protected-class status, at all.

Petitioners also propose that Colorado direct parents to publicly funded schools that will not exclude their family based on protected characteristics. Id. But requiring parents to travel farther to find a publicly funded preschool that will take them regardless of their sexual orientation, gender identity, or religious affiliation frustrates Colorado's interests in ensuring equal opportunity. As another illustration, parents might prefer a religious school because of its strong teachers and academic reputation. JA145 (discussing "excellent" reputation of Catholic schools), 160-61, 190. If turned away from that school because of their protected-class status, they "would lose out not only on receiving services from their preferred preschool but perhaps would also be forced to forgo 'the best academic experience.'" Pet.App.146a.

Again, Colorado's interest is not in ensuring that every family has access to some UPK preschool somewhere—but instead in ensuring that no family is deprived of an available publicly funded option because of their protected-class status. Allowing Petitioners to exclude families based on religious affiliation, sexual orientation, or gender identity would frustrate this interest. Denying Petitioners permission to exclude families based on protected-class status is the least restrictive means of achieving Colorado's compelling [*57] interest, and accordingly, CDEC's action satisfies strict scrutiny.

↑ **Conclusion.** The judgment below should be affirmed. [*58] Respectfully submitted,

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↑ **St. Mary Catholic Parish, Littleton, Colorado** Reply Brief · Sept. 16, 2026
Reply of petitioners St. Mary Catholic Parish in Littleton, Colorado, et al. filed. (Distributed)

St. Mary Catholic Parish · Reply Brief · Sept. 16, 2026 · petitioner — coupling row F
Cites 16 cases (41 mentions), 2 citations not resolved; 0 statutes and provisions (1 bare section cites not resolved).
Shares with Pet. 21% · Br. in Opp. 17% · Cert. Reply 9% · Pet'rs Br. 24% · Resp. Br. 21%; closest: Pet'rs Br.
Its own ground: 3 cases no other filing cites; 0 shared with its own side only, 13 with the other side.

↑ **Reply Brief.** [*1] From the beginning of this dispute, Colorado has offered a Marxist defense (Groucho, not Karl) of its actions: Colorado has its principles, but if you don't like those, well, Colorado has others. Colorado cycled through several definitions of the congregation exemption before dispensing with it altogether after trial. Colorado liberally handed out bespoke "preferences" before saying it could not do so for schools with certain religious beliefs. And Colorado insists it doesn't allow any distinction based on characteristics like race, disability, or income—except when it does. The only consistency in all this maneuvering is Colorado's dedication to keeping Catholic schools out of UPK.

Colorado's brief is more of the same. Colorado throws the testimony of its star trial witness, Respondent and UPK Director Dawn Odean, under the bus, repeatedly stating that "Ms. Odean was mistaken." Colorado also disavows the Tenth Circuit, disagreeing with that court's conclusion that Carson is part of a line of Free Exercise Clause precedent separate from Smith. And Colorado can't even keep its story straight on whether Smith really is an ironclad rule or not—trying to maintain that it is, even while admitting that, for example, "Mahmoud expressly recognized an exception from Smith." The list of Colorado's self-contradictions is longer than these examples, but suffice it to say there is no coherent legal principle behind the tergiversation.

That lack of principle is evident in Colorado's attempts to sideline Carson in favor of Smith. Like Rip Van Winkle, Colorado appears to have slept through the past three decades of Free Exercise decisions from this Court—all but one in favor of religious litigants— [*2] which confirm that numerous free exercise doctrines exist apart from Smith. And when it comes to Carson, Colorado treats that landmark case as merely restating Smith, a remarkable claim to make about a decision that does not even mention Smith.

This attempt to keep Carson out of the picture makes sense on one level, as Colorado doesn't really contest that if Carson applies, it must lose. Instead it says that if courts apply Carson the way it is written, a host of "consequences"—all hypothetical—would ensue. But those consequences are by turns implausible and cabined by existing precedent.

As for general applicability, Colorado offers no defense of the lower courts' reduction of Fulton and Tandon's ambit to cases involving either identical secular conduct or unfettered discretion. Instead, Colorado says general applicability depends on what the meaning of the word "equal" is. But even if "equal" means Colorado can grant enrollment preferences it calls "necessary" to ensure children have a "reasonable" opportunity to access UPK, it is still deciding which preferences are "necessary" and which ones aren't—a value-laden assessment. At bottom, the real operation of Colorado's program allows exceptions for many (favored) groups while uniquely denying them to (unfavored) religious groups. That triggers strict scrutiny.

Having triggered strict scrutiny, Colorado fails it. Colorado never explains why it has a compelling interest in specifically excluding Catholic preschools, sticking to a broad invocation of the purposes of UPK. But Colorado's approach undisputedly allows all manner of UPK preschools to continue serving their particular [*3] communities, while forbidding the Archdiocese's preschools from even prioritizing Catholic families. That inconsistent approach to broadening access to UPK means Colorado's interest is not compelling. Worse still, Colorado claims an interest in forcing Catholic schools to admit those who oppose Church teachings because they might be seeking "solace and sustenance." This at the expense of thousands of Catholic families who find "solace and sustenance" from providing their children with an authentically Catholic education under the religious guidance of their Archdiocese.

All the flailing might be comical were it not so consequential. For many families, $6,300 a year is the difference between sending a child to Catholic preschool or not. And for schools, UPK access is all too often

the difference between continuing to exist or not. Those high stakes explain why it is essential that the Court not just reject Colorado's unequal treatment of Catholic schools here, but also expressly reject the idea that Smith can be read as a get-out-of-the-First-Amendment card that allows government officials to finetune their way out of any challenge. As it stands, Smith plays too great a role in the lower courts and thus tempts too many governments to penalize the religious practices they don't like.

↑ **I. Smith is rarely controlling**

In response to Petitioners' taxonomy of Free Exercise Clause claims not controlled by Smith (Br.22-26), Colorado tries to treat virtually all this Court's precedent as plain-vanilla applications of Smith. But Colorado cannot dispute that the Court has declined to apply [*4] Smith in a variety of free exercise contexts—including cases involving "forced participation," "hybrid situations," "parental rights," "penalizing religious beliefs as such," and church autonomy. See Br.22-25; Resp.Br.24 n.9 ("distinct doctrines"); Resp.Br.30 n.11. This, at minimum, shows that the Free Exercise Clause is not synonymous with Smith and that the Court has continued to refine Free Exercise Clause jurisprudence since 1990. See U.S.Br.27-34. Yet lower courts frequently treat Smith as the beginning and the end of free exercise analysis, Br.26-27; U.S.Br.29-30— an error Colorado's brief indulges in, Resp.Br.22-23.

In telling its revisionist tale, Colorado suggests that some of the cases Petitioners cite as falling outside of Smith actually "applied Smith's framework." Resp.Br.23. But apart from the handful of cases that both sides agree applied Smith (Br.21), Colorado points only to this Court's public benefits cases and to one of Colorado's previous losses, Masterpiece Cakeshop. As explained below, Smith explicitly carved out this Court's public benefits line of precedent. Infra Section II.A. And Masterpiece is best understood as an application of the extra-Smith free exercise principle that religious animus is never permissible. Br.22 (e.g., no strict scrutiny); see also Fulton v. City of Philadelphia, 593 U.S. 522, 601 (2021) (Alito, J., concurring) (noting "tension between Smith and our opinion in Masterpiece"). Colorado's mistake is assuming that whenever a case's outcome could be explained under Smith then it was explained by Smith. Resp.Br.23-24 (suggesting the Court applied Smith in Carson, Espinoza, and Trinity Lutheran because the "law was not neutral"). That is not how ratio decidendi works.

[*5] Colorado's attempt to shoehorn more cases into "Smith's framework" is mistaken. This was the very maneuver Smith made on parental rights—recasting Yoder as a "hybrid rights" case—until the Court rejected it in Mahmoud v. Taylor, 606 U.S. 522, 565 n.14 (2025) (reinvigorating Yoder based on its original rationale). This Court should similarly reject Colorado's memory-holing, and certainly should not expand the controversial and malfunctioning Smith standard that five sitting Justices and many lower courts have suggested revisiting. E.g., Lewis-Williams v. San Francisco Bay Area Rapid Transit Dist., No. 25-618, 2026 WL 2674526, at *9 (9th Cir. Sep. 11, 2026) (Nelson, J., concurring) ("The real problem is that Smith is demonstrably erroneous."). Instead, to guide lower courts, this Court should state explicitly what its post-Smith free exercise precedent confirms: Smith applies infrequently, and even then, governmental burdens on religion are rarely both neutral and generally applicable. And the Court should reaffirm, in a way that even unwilling governments cannot pretend to mistake, that this Court's public benefits cases fall outside of Smith's framework.

↑ **II. Colorado's exclusion of Petitioners triggers strict scrutiny under Carson**

For nearly 80 years this Court has affirmed that "a State violates the Free Exercise Clause when it excludes religious observers from otherwise available public benefits." Carson v. Makin, 596 U.S. 767, 778 (2022) (citing Everson). Colorado would collapse this longstanding line of precedent into Smith's neutrality test. Resp.Br.25-27. But Carson did not frame its analysis, rule, or holding in Smith's terms. Sherbert and [*6] Thomas—the cases Carson relied on—are not neutrality cases. And, tellingly, not even the Tenth Circuit agreed with Colorado. Pet.App.19a ("These cases form an independent line of precedent in the Supreme Court's Free Exercise case law.").

A. Carson reaffirmed a longstanding rule prohibiting denial of benefits based on religious exercise

1. Carson itself refutes Colorado's claim that this Court's public benefits cases merely reflect a no-religious-targeting rule. When stating the applicable rule, Carson described how this Court has "repeatedly held" that a government "violates the Free Exercise Clause when it excludes religious

observers from otherwise available public benefits." Carson, 596 U.S. at 778 (citing Sherbert, Thomas, and Everson). Carson then described the holding in Sherbert: "A State may not withhold unemployment benefits, for instance, on the ground that an individual lost his job for refusing to abandon the dictates of his faith." Ibid. Notably absent is any reference to religious targeting or neutrality. Rather, this rule fits Petitioners' theory: Colorado "may not withhold" UPK funding "on the ground that" Petitioners "refus[e] to abandon the dictates of [their] faith." Ibid.; see U.S.Br.30.

That was also how the Court decided Carson. Immediately after articulating the rule, the Court concluded that this "'unremarkable' principle[ ] * * * suffice[s] to resolve this case." Carson, 596 U.S. at 780. Colorado's claim that this Court "interrogat[ed] the neutrality" of Maine's program, Resp.Br.29, is fiction. The section of Carson Colorado cites doesn't apply Smith—it applies the public benefits rule, concludes [*7] that Maine fails strict scrutiny, and then rejects Maine's attempt to "distinguish" Espinoza and Trinity Lutheran. Carson, 596 U.S. at 780-789. The reference to "neutrality" (id. at 781) came in response to the dissent's "neutrality vocabulary." Resp.Br.27.

Moreover, Carson rejected the same empty formalism Colorado pushes here. Maine, like Colorado, claimed it was not excluding religious schools, but was instead extending a particular benefit that had the incidental effect of keeping sectarian schools out: Maine would pay for only the "rough equivalent" of a public education. Carson, 596 U.S. at 782; Brief for Respondent 1-2, Carson, No. 20-1088 (Oct. 22, 2021) ("The public benefit Maine is offering is a free public education. Petitioners want an entirely different benefit."). The Court rejected this argument—both because Maine misinterpreted its law, Carson, 596 U.S. at 782-784, and because accepting the argument would render the benefits cases "essentially meaningless," id. at 784. As this Court explained, "our holding in Espinoza turned on the substance of free exercise protections, not on the presence or absence of magic words." Id. at 785. Thus, Espinoza's "holding applies fully whether the prohibited discrimination is in an express provision like § 2951(2) or in a party's reconceptualization of the public benefit." Ibid.; see id. at 784-785 ("[T]o allow States to 'recast a condition on funding' in this manner would be to see 'the First Amendment . . . reduced to a simple semantic exercise.'").

Put simply, the rule Carson reaffirmed and applied did not turn on any non-neutral language Maine used to exclude religious schools; it turned on whether [*8] Maine had denied a public benefit "based on a recipient's religious exercise." Carson, 596 U.S. at 784-785. Carson reiterated this rule three times—not once invoking Smith or limiting its rule to exclusions described in religious terms. Instead, the Court said the opposite: "Regardless of how the benefit and restriction are described, [Maine's] program operates to identify and exclude otherwise eligible schools on the basis of their religious exercise." Id. at 789 (emphasis added); see also id. at 781 ("because of their religious exercise"); id. at 785 ("based on a recipient's religious exercise"). For Carson purposes, as elsewhere in free-exercise doctrine, what matters is not labels but "the effect of [the] law in its real operation." Church of Lukumi Babalu Aye, Inc. v. City of Hialeah, 508 U.S. 520, 535 (1993) (citation omitted).

2. Carson's reliance on Sherbert and Thomas confirms the scope of this public benefits rule. Carson, 596 U.S. at 778. In both Sherbert and Thomas, the government applied facially neutral rules to deny the plaintiffs public benefits because of their religious exercise. Br.33-34; Sherbert v. Verner, 374 U.S. 398, 405 (1963); Thomas v. Review Bd., 450 U.S. 707, 717-718 (1981). In both cases, this Court's analysis focused on the denial of the public benefit—not on whether the government's rules were religiously neutral (they were). Sherbert, 374 U.S. at 405 ("[C]onditions upon public benefits cannot be sustained if they so operate, whatever their purpose, as to inhibit or deter the exercise of First Amendment freedoms."); Elrod v. Burns, 427 U.S. 347, 358 n.11 (1976) (plurality) (similar, collecting cases). Colorado does not disagree; it argues instead that Smith recast these cases as an application of its general applicability test. Resp.Br.28-29.

[*9] This argument fails four times over. First, Colorado cannot account for the fact that this Court in Carson (a post-Smith decision) invoked Sherbert and Thomas not for the proposition that non-neutral rules trigger strict scrutiny, but for the proposition that religious-exercise-based exclusions from public benefits trigger strict scrutiny. Carson, 596 U.S. at 778.

Second, "Smith did not overrule Sherbert," Thomas, or any of this Court's other public benefits cases. Fulton, 593 U.S. at 600 (Alito, J., concurring). While Smith cited Sherbert and Thomas twice, both times it distinguished the cases because they, unlike Smith, did not involve criminal prohibitions. Smith first noted that Sherbert and Thomas were inapplicable because "the conduct at issue in those cases was not prohibited by law." Employment Div. v. Smith, 494 U.S. 872, 876 (1990). Smith then cited a three-Justice plurality opinion from Bowen v. Roy describing Sherbert and Thomas as involving a "system of individual exemptions," but the majority did not purport to limit them to that rationale. Id. at 884. Quite the opposite: "Whether or not the decisions are that limited, they at least have nothing to do with an across-the-board criminal prohibition on a particular form of conduct." Ibid. (emphasis added).

Third, even assuming Sherbert and Thomas could be retconned as general applicability cases, that does not explain why Carson would cite them if, as Colorado argues, Carson was applying Smith's neutrality rule. Resp.Br.26-27. Colorado agrees that neutrality and general applicability are distinct inquiries. See Resp.Br.22-23. It would thus make little sense to spotlight two general applicability cases (especially ones [*10] that involve facially neutral laws) to explain Smith's neutrality rule. More sensible is what Carson actually did—apply Sherbert and Thomas on their own terms.

Fourth, Mahmoud further undermines Colorado's argument by applying Trinity Lutheran to a facially neutral law. Br.34. In response, Colorado notes that Trinity Lutheran involved "express[ ] discriminat[ion]." Resp.Br.30. But Colorado fails to explain why Mahmoud—a case in which the law was undisputedly neutral on its face—would invoke Trinity Lutheran if this precedent applied only to instances of explicit religious discrimination. The facts of Trinity Lutheran are no answer to Petitioners' Mahmoud argument.[1]

3. Colorado also offers no principled defense of the explicit-religious-exclusions-only line. Colorado never responds to the argument that its reading of Carson would allow for easy circumvention. Indeed, its theory would reduce Carson to a drafting instruction for state legislatures: use these words, not those, to keep unwanted religious schools out. That cannot be right. Carson, 596 U.S. at 785 (rejecting "magic words"); see also, e.g., Students for Fair Admissions, Inc. v. President & Fellows of Harvard Coll., 600 U.S. 181, 230 (2023) ("The Constitution deals with substance, not shadows.").

Nor can Colorado justify the implications of its new rule. Colorado's rule would permit governments to [*11] deny believers equal access to benefits solely on account of their religious exercise. So Jewish schools could be denied access to generally available security funding solely because they limit enrollment to Jews. Orthodox.Union.Br.20-21. Or a religious charity serving at-risk youth could have its grant funding cut off based on its sincere belief that it hire only fellow believers. Darren.Patterson.Br.27.

Thus, while Colorado claims Petitioners advance a "sweeping" rule (Resp.Br.32), Colorado's approach would sweep more broadly. It would allow government actors to step into any field or industry and offer public funding to some market participants—even if that funding came with conditions known to conflict with particular religious practices. The government could then leverage its spending power to push religious groups out, based solely on their sincere religious exercise—all while claiming that they could simply choose not to accept the funding. W.Va.Br.35 ("semantic sleight of hand"); Resp.Br.5 ("UPK is voluntary"). Accepting Colorado's approach could allow governments to withhold all sorts of public benefits from religious organizations whose longstanding religious practices the government tags as "discrimination." E.g., Koontz v. St. Johns River Water Mgmt. Dist., 570 U.S. 595, 607 (2013) ("[D]enial of a governmental benefit" can impose "coercive pressure" to "cede a constitutional right."); Everson v. Board of Educ., 330 U.S. 1, 17-18 (1947) (describing reluctance to send children to schools lacking "police and fire protection, connections for sewage disposal, public highways and sidewalks"). [*12]

B. Colorado's actions trigger strict scrutiny under Carson

[1]Contra Colorado (Resp.Br.30 n.11), the arguments already presented suffice to conclude that it would be "illogical and perverse" to apply a lesser standard of review here than in Mahmoud. U.S.Br.4, 34.

Straightforward application of this Court's public benefits precedents resolves this case. Colorado does not dispute the key facts: UPK funding is a public benefit, and Petitioners were denied this benefit solely because of their sincere religious exercise. Resp.Br.15- 16. These undisputed facts trigger strict scrutiny under Carson. Br.29-30; U.S.Br.33-34.

1. Instead, Colorado fights Carson's holding, claiming that applying Carson here will result in "sprawling administrative challenges" and render even "commonplace" restrictions on public funding "suspect." Resp.Br.32-35.

That is exactly backwards. The rule this Court adopted in Carson is simple: if a government chooses to create a public benefits program, it cannot deny religious people access to that benefit based on their sincere religious exercise. The alternative rule—Smith—is what leads to "sprawling" legal challenges. Smith's analysis—asking, among other things, whether the government has permitted any secular exceptions for others not before the court and what motivated the government to make the challenged decision in the first place—requires exactly the kind of large-scale litigation Colorado claims to fear.

Maine's response to Carson epitomizes this problem. Before this Court had even issued its decision, government officials in Maine began looking for ways to "outmaneuver" it. See Crosspoint.Br.1-2, 25. To start, Maine repealed a religious exemption from its nondiscrimination law, now sweeping in all religious schools receiving public funding. St. Dominic Acad. v. [*13] Makin, 181 F.4th 11, 26 (1st Cir. 2026). Next, Maine added a "religious expression rule" stating that "to the extent that an educational institution permits religious expression, it cannot discriminate between religions in so doing." Id. at 24. The undisputed effect of these new rules is that religious schools (with beliefs like Petitioners') remain barred from Maine's tuition funding program solely on account of their religious exercise. Id. at 27; Crosspoint Church v. Makin, 180 F.4th 354, 359 (1st Cir. 2026) (same).

But when the excluded schools challenged this chicanery, the First Circuit did not apply Carson. Instead it limited it, holding that because the amended non-discrimination law applies to both secular and religious schools, Maine's law "does not exclude religious schools from the tuition-assistance program solely based on their religious character." St. Dominic, 181 F.4th at 41, 59. The First Circuit then turned to Smith and applied rational basis review: "[W]e are not free to discard Smith based on an overly expansive interpretation of Carson, especially without any clarity as to what, exactly, would replace Smith." Id. at 42.

Maine is not alone. Several other states have pursued Carson "workaround[s]," hinging on the argument that Carson applies only to explicit religious exclusions. See Notre.Dame.Br.12-20 & n.24 (describing hostile reactions to Carson in Maine, Vermont, Maryland, and New Hampshire). As the First Circuit's decision in St. Dominic shows, that reading of Carson renders this Court's precedent trivially easy to avoid.

2. In contrast to these real-world examples, Colorado musters only speculation piled upon speculation. Colorado cites not a single case or real-world example [*14] to support its Chicken Little predictions about what straightforward application of Carson would mean for "programs addressing health care, land use, childcare, job training, food and nutrition," etc. Resp.Br.32-35. And, regardless, courts already have the tools necessary to deal with Colorado's hypotheticals should they arise.

First, if Colorado's concerns were at all likely, they would have arisen already. Forty states and the federal government have adopted (via RFRA) legal frameworks that apply heightened scrutiny to all substantial burdens on sincere religious exercise. See Robertson.Br.10-12 ("Forty states have rejected Smith."). Despite the fact that forty-one jurisdictions already apply a level of scrutiny consistent with the one Petitioners argue for in this case, Colorado fails to point to any cases in which the sorts of problems it alleges have actually arisen. And experience shows states can operate similar programs while accommodating Catholic schools. EdChoice.Br.31-33.

Second, strict scrutiny is a serious backstop. Contra Resp.Br.34. Both this Court and lower courts have applied heightened scrutiny for decades. E.g., Gonzales v. O Centro Espírita Beneficente União do Vegetal, 546 U.S. 418, 436 (2006) (courts "up to the task" of applying RFRA's "compelling interest test"). And there is no doubt that, in appropriate cases, governments can win under this standard. Would any court even seriously entertain the argument that the government [*15] lacks a compelling

interest in requiring domestic violence shelters to keep information about victims confidential? Contra Resp.Br.33.

Its slippery-slope argument unavailing, Colorado next says the right reading of Carson "defies common sense," because benefits conditions (falling outside Smith) are "milder forms of regulation" than direct prohibitions. Resp.Br.31-32. But nothing requires governments to create benefits programs in the first place; and if a government determines a benefits program no longer serves its intended purposes, it remains free to end it. Carson, 596 U.S. at 779 ("A State need not subsidize private education.") (quoting Espinoza); Resp.Br.34.

Throughout its brief, Colorado also clings to Smith's claim that "politically accountable actors" can "decide when religious exemptions * * * are warranted." Resp.Br.34. But even Smith conceded that this approach would disadvantage those with minority or unpopular religious beliefs. Smith, 494 U.S. at 890. Thirty-six years later, Smith's concession appears accurate. See, e.g., Fulton, 593 U.S. at 545 (Alito, J., concurring) (listing some of Smith's "startling consequences"); Orthodox.Union.Br.4 ("The ramifications for vulnerable minority communities of upholding Colorado's policy would be profound."). In any event, "[i]n this country," "the Bill of Rights and the doctrine of [*16] judicial review" protect those that politically accountable actors would rather ignore. Mahmoud, 606 U.S. at 563.

↑ **III. Colorado's mandate also fails Smith's general applicability test**

Colorado fares no better under Smith. Instead, its new legal theories before this Court simply confirm a central problem with Smith: it incentivizes governments to keep tweaking their programs (and their asserted government interests) to try to find a way to distinguish secular exemptions from religious exercise. See FCA.Br.20 (Smith encourages governments to "twist—and retwist—their rules in pretzels.").[2]

In the end, none of Colorado's maneuvering matters. Regardless of how Colorado interprets "equal opportunity," it cannot distinguish, in a constitutionally meaningful way, the secular conduct it permits from the religious accommodation Petitioners require. Throughout Colorado's brief, the distinction that actually does the work is Colorado's steadfast belief that Petitioners' religious exercise is bad, while the secular exemptions it allows are good. E.g., Resp.Br.36, 43 (contrasting "specialized services" for "children with [*17] disabilities" with "exclusion from publicly-funded services based on protected-class status"). That's both wrong and constitutionally impermissible. See Br.41- 42.

1. Under Tandon, Colorado's categorical exemptions for preschools that prioritize low-income families and children with disabilities show that the mandate is not generally applicable. Br.36-43. The mandate requires preschools to provide "eligible children an equal opportunity to enroll * * * regardless of" eight protected characteristics, including "religious affiliation," "sexual orientation," "gender identity," "disability," and "income level." Br.5-6. Colorado rests its argument before this Court on the meaning of "equal opportunity," claiming that enrollment preferences for low-income families and children with disabilities ensure "equal opportunity," because "specialized services and modifications are sometimes necessary to provide an equal opportunity." Resp.Br.38 (emphasis added).

While Petitioners disagree with Respondents' brand-new statutory interpretation argument (see Br.37-38), under either the statute's plain text or this new interpretation of "equal," allowing UPK preschools to consider disability and income level undermines the mandate's general applicability.

If the mandate is given its plain meaning and read to require UPK preschools to give all families an equal (i.e., the same) opportunity to enroll regardless of any protected characteristic, then enrollment preferences based on disability and income level are unmistakably comparable secular activity treated more favorably than Petitioners' religious exercise. Br.36-39; Tandon [*18] v. Newsom, 593 U.S. 61, 62 (2021) ("[G]overnment regulations are not neutral and generally applicable * * * whenever they treat any comparable secular activity more favorably than religious exercise.").

[2]Colorado also contorts the record. The Archdiocese's policies are anything but a "departure from its prior practice." Resp.Br.14 n.5. The Archdiocese's religious policies have been applied consistently across all programs and long predate UPK. J.A.150-156 (describing DPP, CCCAP, and Catholic Charities Head Start); Pet.App.83a (similar); J.A.140 (longstanding policy). And while the Archdiocese's preschool enrollment was initially "holding steady" in November 2023—three months after UPK began—it has since declined significantly. Compare Resp.Br.16 n.7 (citing Supp.App.91a), with Br.18 (almost 20% decline).

If, on the other hand, "equal" doesn't actually mean equal but instead means that Colorado can grant enrollment preferences because such preferences are, in its view, necessary to ensure children have a "reasonable" or "meaningful" opportunity to access UPK preschools, see Resp.Br.40, 42-43, Colorado still loses.

Religious accommodations, too, are sometimes necessary to "achieve equal opportunity," Resp.Br.43, because religious people face constraints on their conduct that others lack. As Sherbert explained, extending unemployment benefits to "Sabbatarians in common with Sunday worshippers reflects nothing more than the governmental obligation of neutrality in the face of religious differences." 374 U.S. at 409; Michael W. McConnell, Free Exercise Revisionism and the Smith Decision, 57 U. Chi. L. Rev. 1109, 1140 (1990) ("analogy can be drawn between free exercise theory and the theory of handicap discrimination"); Laycock.Br.15 (Colorado "devalue[s]" religious reasons "by judging them to be of lesser import than nonreligious reasons.").

Colorado thus offers no constitutionally meaningful way to distinguish disability and income level accommodations from Petitioners' religious accommodation. Instead, by extending preferential treatment to accommodate families whose options might be limited by their income or disability, but not families whose options are constrained by their Catholic faith (Br.29), [*19] Colorado is still favoring comparable secular conduct over Petitioners' religious exercise. See U.S.Br.15-20.

Colorado even admits it is making value judgments, explaining that its new theory hinges on "reconcil[ing]" multiple important secular interests found in various other parts of the UPK statute and in federal law. Resp.Br.21, 38 ("[t]aken together"). But once Colorado starts balancing competing interests, it effectively concedes that the law is "sufficiently open-ended to bring the regulation within the individualized exemption rule." Blackhawk v. Pennsylvania, 381 F.3d 202, 209-210 (3d Cir. 2004) (Alito, J.); Br.41-42. If Colorado can interpret the term "equal opportunity" flexibly to accommodate important secular interests found outside of the mandate, it must extend that flexible interpretation to accommodate Petitioners' sincere religious exercise. Fulton, 593 U.S. at 534.[3]

Moreover, this Court's precedent bars Colorado from concocting ever more elaborate and nuanced government interests during litigation to distinguish away the secular exemptions it allows. At the time Colorado denied Petitioners' request for a religious accommodation, its only argument was that "the department [*20] did not have the authority to grant an exception." J.A.252. Since then, new theories have appeared at each stage of the case. In the district court, Colorado said that enrollment preferences for low-income families and children with disabilities were justified because "historically, [these families] haven't had equitable access or aligned care that meets their needs." Defs.' Proposed Findings of Fact and Conclusions of Law, ¶¶ 88-90, ECF.109. In the Tenth Circuit, Colorado argued (for the first time) that the terms "disability" and "income level" in the mandate were "one-way ratchets" that just meant "with a disability" and "low income." Resp.C.A.Br.31. Before this Court, Colorado argues that "equal opportunity" sometimes means "reasonable opportunity," Resp.Br.38-43, and even claims that a central argument it made in its briefing below was "mistaken," Resp.Br.47-49.[4]

Colorado's constantly evolving legal theories are the opposite of the kind of "evenhanded, across-the-board" enforcement required by the general applicability rule. Kennedy v. Bremerton Sch. Dist., 597 U.S. 507, 527 (2022). "Government justifications for interfering with First Amendment rights must be genuine, not hypothesized or invented post hoc in response to litigation." Id. at 543 n.8 (cleaned up).

Finally, Colorado tries to fold its secular enrollment preferences into its asserted interest to avoid the implication that such preferences undermine its interest. E.g., Resp.Br.42. But Tandon rejected that gambit, holding that California's interest was in "reducing [*21] the spread of COVID," not in the granular distinctions it drew based on which activities ostensibly created greater risks of COVID transmission. See Tandon, 593 U.S. at 63-64 (also rejecting distinction between public and private buildings); U.S.Br.14-16.

[3]Colorado argues that seats at preschools serving children with specific disabilities are "not interchangeable." Resp.Br.8. This undermines Colorado's argument. A UPK preschool that specializes in serving blind children (cf. Resp.Br.42) must, for example, be able to turn away children with other disabilities. E.g., Colorado Universal Preschool, Anchor Center for Blind Children, https://perma.cc/KFX4-4DEU ("We prioritize children with vision impairments first."); NWLC.Br.29-30 (similar); J.A.118 ("serving children with certain disabilities"). Colorado's own strained logic thus "depriv[es] families, based on protected-class status, of otherwise-available publicly funded preschool options." Resp.Br.42.

[4]Colorado also appears to abandon the Tenth Circuit's "different barriers to equal access" theory. See Br.42-43.

Here, however, Colorado attempts to use the mandate's secular exemptions to reverse-engineer a government interest perfectly contoured to explain away those secular exemptions. "If accepted, this sort of circular defense can sidestep judicial review of almost any statute." Simon & Schuster, Inc. v. Members of N.Y. State Crime Victims Bd., 502 U.S. 105, 120 (1991) (rejecting attempt to equate "effect of the statute" with "State's interest"). Instead, general applicability analysis turns on the overall purpose of the challenged law or regulatory scheme—here, Colorado's stated interest in increasing access to free quality preschool for all. See Br.4-5, 37 (describing UPK statute's stated interests); U.S.Br.18-19.

2. Under Fulton, Colorado's case-by-case discretion also negates general applicability. Br.44-45; U.S.Br.20-24. Respondent Odean testified that UPK preschools could prioritize families based on race, sexual orientation, and gender identity. Br.44-45. Colorado now says that Odean lacked "any authority" to grant exemptions and says (three times) that she was "mistaken" about the UPK statute's meaning. Resp.Br.47-49.

But Respondent Odean consistently testified to the Department's understanding of what the UPK statute required. E.g., J.A.302. And if Odean were simply "mistaken," the Department's attorneys could have corrected her testimony. They never did. See J.A.348- [*22] 350. Instead, Odean's consistent testimony was that preferences for historically discriminated-against minorities did not violate the Department's understanding of what the law required. Br.45.

Colorado next invokes Loper Bright, claiming Odean's testimony is irrelevant because the mandate's text does not permit exemptions "based on the traditional tools of statutory construction." Resp.Br.48. But just seven pages earlier, Colorado urged this Court to defer to a patently atextual interpretation of the same statute. Resp.Br.41 ("great deference"). Colorado cannot have it both ways. Nor can Colorado dismiss Odean's testimony simply by invoking the mandate's text. Colorado must show both that the UPK statute and regulations are generally applicable as written and that its operation of the UPK program—its enforcement of the law—is generally applicable. Br.46- 47. Odean's sworn testimony is enough to conclude that the mandate is not generally applicable. Br.45; see U.S.Br.22-23 ("Assessing preschools' requests necessarily involves individualized consideration of why the school seeks the preference.").

In addition, the regulations governing the catchall exemption further confirm the Department's discretion, and thus also defeat general applicability under Fulton. Br.44; U.S.Br.24-25. As Petitioners explained, Colorado's regulations permit UPK preschools to prioritize families receiving "public assistance benefit(s)," including "housing assistance," even though the mandate requires equal access regardless of "income level" and "lack of housing." Br.5-6, 44. In response, Colorado merely states that prioritizing families who receive [*23] housing assistance helps families escape homelessness. Resp.Br.46. Perhaps—but that is irrelevant. Families receiving a subsidy for housing assistance no longer "lack housing." Br.44. Putting aside the purpose of housing assistance, Colorado does not dispute this preferential treatment.[5]

3. Colorado also doesn't dispute that the mandate has only been used to exclude religious preschools. Br.46 n.7. When "the only conduct" prohibited by a facially neutral law is religious, this Court has not hesitated to find an impermissible "religious gerrymander" that alone triggers strict scrutiny. Lukumi, 508 U.S. at 535.

↑ **IV. The mandate does not survive strict scrutiny**

Having triggered strict scrutiny, Colorado fails it. First, Colorado "rel[ies] on 'broadly formulated interests,'" Fulton, 593 U.S. at 541—providing quality preschool to all four-year-old Coloradans. Resp.Br.51. But Colorado must instead "scrutinize the asserted harm of granting specific exemptions to particular religious claimants." Fulton, 593 U.S. at 541. That means Colorado must show it has a compelling interest "in denying an exception" from the mandate specifically to Petitioners. [*24] Ibid. And "[o]nce properly narrowed, [Colorado's] asserted interests are insufficient," for the reasons identified in the opening brief and below. Ibid.[6]

[5]Colorado complains of "no evidence," Resp.Br.46 n.15, about how housing prioritization would work in practice, but it sprang these regulations on the court during trial. Br.7; J.A.313; see also Fulton, 593 U.S. at 537 (mere existence of discretion suffices).

[6]Nor does Colorado treat even this alleged interest as compelling: some UPK preschools can deny admission based on a family's "protected-class status." Supra n.3.

Second, Colorado cannot have a compelling interest in denying Petitioners a religious accommodation when it permits secular preschools to use enrollment preferences that similarly violate the mandate. Supra Section III. Colorado's actions belie its insistence that "its non-discrimination policies can brook no departures." Fulton, 593 U.S. at 542.

Third, Colorado cannot carry its burden of proof by hypothesizing. Br.49-50; Resp.Br.53-54, 56 (describing what "LGBTQ parents" "may" want, and describing "illustration[s]"). After a full merits trial and years of litigation, Colorado offers only pure "speculation," which "is insufficient to satisfy strict scrutiny." Fulton, 593 U.S. at 542.[7]

Nor has Colorado explained how excluding Catholic preschools helps any family that opposes Catholic teachings access UPK preschools. Instead, with the Archdiocese's preschools excluded, there are some Catholic families unable to forgo UPK benefits who are filling otherwise-available seats at non-Catholic UPK [*25] preschools. Br.50-51; see, e.g., Conscience.Project.Br.12-13. And contrary to Colorado's speculations, no one will be forced to "travel farther." Compare Resp.Br.56, with Pet.App.94a (no impact on LGBTQ preschool access). "If anything," including Catholic preschools "seems likely to increase, not reduce," UPK preschool access, even for families who oppose the Church's teachings. Fulton, 593 U.S. at 542. And while Colorado and its amici repeatedly bang the discrimination drum, they ignore Colorado's actual, governmental discrimination in favor of an attack on Petitioners' constitutionally protected religious exercise.

In a final fit of chutzpah, Colorado offers one more interest: helping people get religion. Colorado explains that some families who oppose the Church's teachings may nevertheless "seek out" the Archdiocese's preschools because they "draw on religion and faith as a source of solace and sustenance." Resp.Br.54. In Colorado's cynical calculus, families who want Church schools but not so much the Church herself are worthy of Colorado's attentions, while families who want their children to get a Catholic education as part of a faithful Catholic community are shunted aside.

* * *

At bottom, there has never been any evidence that excluding Catholic preschools makes UPK more accessible to families who oppose the Catholic Church's teachings. Meanwhile, thousands of parents who support those teachings, like the Sheleys, are forced to choose between a valuable public benefit and following their faith. Our Constitution demands more. [*26]

↑ **Conclusion.** The decision below should be reversed. Respectfully submitted.

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[7] Colorado suggests there have been no complaints about Catholic preschools excluding families because Petitioners are barred from UPK. Resp.Br.53 n.16. But Catholic preschools have been operating under state licensure for decades without any such complaints, as Colorado told the district court. Pet.App.306a; J.A.335-336.

↑ The Law Cited

Not part of the record. Every statute, constitutional provision and regulation the filings cite: the law in question first (what the questions presented and the parties' provisions-involved sections name, as each party sets it out), then the rest by who cites it. Each with its text where it is stored locally (current text, not as of the decision below). A cite of one of these provisions anywhere in this PDF links to its entry here.

Pet.: provisions involved

The First Amendment to the United States Constitution provides in relevant part: "Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof[.]" U.S. Const. Amend. I.

Colo. Rev. Stat. §§ 26.5-4-201 et seq. is reproduced in relevant part at App.187a-208a.

8 Code of Colorado Regulations § 1404-1 is reproduced in relevant part at App.209a-215a.

Pet'rs Br.: provisions involved

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8 Code of Colorado Regulations § 1404-1 is reproduced in relevant part at Pet.App.209a-215a.

The law in question (questions presented; provisions involved)

U.S. Const. amend. I

Cited by the petitioners 2 times (2 filings) and their amici 10 (8); by the respondent 0 (0) and its amici 4 (3).

Amendment I (H. Doc. 110-50)

Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; of the right of the people peaceably to assemble, and to petition the Government for a redress of grievances.

Colo. Rev. Stat. § 26.5-4-201

Cited by the petitioners 4 times (2 filings) and their amici 3 (3); by the respondent 0 (0) and its amici 2 (2). Reproduced in: Pet. App. 187a–208a.

Short title (current text, 2026 edition; retrieved 2026-10-25)

The short title of this part 2 is the "Colorado Universal Preschool Program Act".

Source: L. 2022: Entire article added, (HB 22-1295), ch. 123, p. 686, § 3, effective July 1.

Colo. Rev. Stat. § 26.5-4-202

Cited by the petitioners 0 times (0 filings) and their amici 6 (2); by the respondent 14 (2) and its amici 10 (6). Reproduced in: Pet. App. 187a–208a.

Cited as the 2021 edition; the text below is the current one.

Legislative declaration (current text, 2026 edition; retrieved 2026-10-25)

(1) (a) The general assembly finds and declares that:

(I) Colorado has prioritized early learning through its investments in the Colorado preschool program, established in 1988, and full-day kindergarten, adopted in 2019;

(II) Since establishing the Colorado preschool program, Colorado has steadily increased its investment in high-quality preschool programming, securing a significant return on investment by improving child outcomes year over year by expanding access to preschool for children in low-income families and those who are at risk of entering kindergarten without being prepared to learn;

(III) State and national research demonstrate the positive and long- and short-term impacts of high-quality preschool, including improved early literacy, reduced grade retention, decreased probability of developing a significant reading deficiency, improved performance on statewide standards-based assessments, and increased rate of high school graduation;

(IV) Research demonstrates that economically disadvantaged children derive greater benefits from preschool programs in states that offer universal programs than in states that offer preschool programs specifically for economically disadvantaged children;

(V) In the 2020 general election, the voters of Colorado approved proposition EE by a nearly two-to-one margin, establishing a dedicated source of funding for statewide, voluntary, universal preschool programming for children in the year preceding kindergarten and for additional preschool programming for children in low-income families

and children who are at risk of entering kindergarten without being prepared to learn. With the passage of this measure, Colorado voters in rural, urban, and suburban communities have demonstrated their strong commitment to expanding access to quality preschool for children regardless of their economic circumstances.

(VI) Creating a statewide mixed delivery system of preschool providers to make preschool programming universally available to children throughout Colorado compounds the benefits for children who are in low-income families and increases the ultimate social and economic benefits of high-quality preschool programming for the state as a whole.

(b) The general assembly finds, therefore, that it is in the best interests of the state and consistent with the will of the voters of Colorado to establish the Colorado universal preschool program to provide high-quality, voluntary preschool programming through a mixed delivery system for children throughout the state in the year preceding kindergarten enrollment and to provide for additional preschool services for children who are in low-income families or who meet identified qualifying factors.

(2) (a) The general assembly further finds and declares that:

(I) In 2000, the voters approved section 17 of article IX of the state constitution, which requires the general assembly to annually increase, by at least the rate of inflation, the statewide base per pupil funding, as defined by article 54 of title 22, for public education from preschool through twelfth grade;

(II) In the 2001-02 fiscal year and in every fiscal year since, the increases to statewide base per pupil funding have automatically applied to funding for preschool services provided by school districts, because the funding for preschool services has been calculated through the school finance formula established in article 54 of title 22, which applies to funding for public elementary and secondary education;

(III) To effectively and efficiently provide preschool services through a mixed delivery system of school- and community-based preschool providers, and to ensure that funding calculations account for the unique standards and features of preschool programs, state funding for preschool services, including preschool services for children with disabilities, must be appropriated and allocated separately from the funding for public elementary and secondary education, and, beginning in the 2023-24 fiscal year, the statewide base per pupil funding amount set annually for public elementary and secondary education will no longer apply to funding for preschool services;

(IV) To continue to meet the intent of section 17 (1) of article IX of the state constitution with regard to funding for preschool services, it is appropriate for the department of early childhood to establish a per-child constitutional compliance rate for the 2023-24 fiscal year that equals the portion of the statewide base per pupil funding amount established for the 2023-24 fiscal year that applies to the number of hours of universal preschool services provided to an eligible child, and to increase the per-child constitutional compliance rate annually by the rate of inflation.

(b) The general assembly, therefore, declares that, by establishing a per-child constitutional compliance rate and ensuring that the per-child rate that the department annually establishes for universal preschool services and for preschool services provided to children who are three years of age or younger meets or exceeds the per-child constitutional compliance rate, funding for the Colorado universal preschool program substantially complies with the requirements of section 17 (1) of article IX of the state constitution.

(3) (a) The general assembly further finds and declares that:

(I) In approving proposition EE, the voters supported funding for ten hours of high-quality preschool programming for all Colorado children in the year preceding kindergarten enrollment, as well as additional preschool programming for children who are at risk of entering kindergarten without being prepared to learn, including children in low-income families;

(II) Research demonstrates that participating in high-quality preschool programs helps to ensure that children in low-income families are able to enter kindergarten on par with their peers in higher-income families; and

(III) For the preschool program to serve children equitably, the state must invest in additional hours of preschool programming for children in low-income families, in addition to funding the ten hours of universal preschool services.

(b) The general assembly finds, therefore, that it is in the best interests of the state to allocate the amount appropriated for the Colorado universal preschool program to provide adequate funding for both a high-quality universal preschool program and additional preschool programming for children in low-income families.

(4) The general assembly recognizes the requirement of the federal "Individuals with Disabilities Education Act", 20 U.S.C. sec. 1400 et seq., as amended, to provide educational services to every three- or four-year-old child with a disability, in accordance with the child's individualized education program. The general assembly declares that, for purposes of section 17 of article IX of the state constitution, meeting the obligation of serving all three- and four-year-old children with disabilities through the Colorado universal preschool program is an important element of expanding the availability of preschool programs and may therefore receive funding from the state education fund created in section 17 (4) of article IX of the state constitution.

Source: L. 2022: Entire article added, (HB 22-1295), ch. 123, p. 686, § 3, effective July 1. L. 2024: (2)(a)(I) amended, (HB 24-1448), ch. 236, p. 1537, § 61, effective May 23.

Colo. Rev. Stat. § 26.5-4-203

Cited by the petitioners 0 times (0 filings) and their amici 3 (3); by the respondent 6 (2) and its amici 1 (1). Reproduced in: Pet. App. 187a–208a.

Definitions (current text, 2026 edition; retrieved 2026-10-25)

As used in this part 2, unless the context otherwise requires:

(1) "Additional preschool services" means hours of preschool services provided to a child in the year preceding enrollment in kindergarten that are in addition to the universal preschool services the child receives.

(2) "Charter school" means a charter school that is:

(a) A district charter school authorized pursuant to part 1 of article 30.5 of title 22, an institute charter school authorized pursuant to part 5 of article 30.5 of title 22, or a charter school authorized by the Colorado school for the deaf and the blind pursuant to section 22-80-102 (4)(b);

(b) Authorized in its charter contract to provide preschool services; and

(c) Licensed pursuant to part 3 of article 5 of this title 26.5 to operate as a preschool provider.

(3) "Children with disabilities" has the same meaning as provided in section 22-20-103.

(4) "Colorado universal preschool program" or "preschool program" means the program established within the department pursuant to section 26.5-4-204, and includes all participating preschool providers.

(5) Repealed.

(5.5) "Early childhood council" means an early childhood council identified or established locally in communities throughout the state pursuant to section 26.5-2-203.

(6) "ECEA" means the "Exceptional Children's Educational Act", article 20 of title 22, and its implementing rules.

(7) "Eligible child" means a child who is eligible to receive preschool services as provided in section 26.5-4-204 (3).

(8) "IDEA" means the federal "Individuals with Disabilities Education Act", 20 U.S.C. sec. 1400 et seq., as amended, and its implementing regulations.

(9) "Individualized education program" has the same meaning as provided in section 22-20-103.

(10) "Inflation" means the annual percentage change in the United States department of labor bureau of labor statistics consumer price index for Denver-Aurora-Lakewood for all items paid by all urban consumers, or its applicable successor index.

(11) Repealed.

(12) "Mixed delivery system" means a system for delivering preschool services through a combination of school- and community-based preschool providers, which include family child care homes, child care centers, and head start agencies, that are funded by a combination of public and private money.

(13) "Parent" has the same meaning as provided in section 22-20-103.

(14) "Preschool provider" means any of the following entities that are licensed pursuant to part 3 of article 5 of this title 26.5:

(a) A family child care home, as defined in section 26.5-5-303;

(b) A child care center, as defined in section 26.5-5-303;

(c) A school district licensed to operate as a public preschool provider;

(d) A charter school licensed to operate as a public preschool provider; or

(e) A head start program.

(15) "Qualifying factor" means a child or family circumstance, as identified by department rule pursuant to section 26.5-4-204 (4)(a)(II), that may negatively impact a child's cognitive, academic, social, physical, or behavioral health or development.

(16) "School district" means a school district organized pursuant to article 30 of title 22 that provides preschool services and is licensed pursuant to part 3 of article 5 of this title 26.5 as a preschool provider; or a board of cooperative services organized pursuant to article 5 of title 22 that provides preschool services and is licensed pursuant to part 3 of article 5 of this title 26.5 as a preschool provider.

(17) "Universal preschool services" means ten hours of preschool services per week made available, at no charge, to children in the state during the school year preceding the school year in which a child is eligible to enroll in kindergarten.

Source: L. 2022: Entire article added, (HB 22-1295), ch. 123, p. 688, § 3, effective July 1. L. 2026: (5.5) added, (SB 26-019), ch. 104, p. 425, § 17, effective May 5; (5) and (11) repealed, (SB 26-019), ch. 104, p. 425, § 17, effective July 1.

Colo. Rev. Stat. § 26.5-4-204

Cited by the petitioners 0 times (0 filings) and their amici 7 (6); by the respondent 8 (2) and its amici 8 (5). Reproduced in: Pet. App. 187a–208a.

Cited as the 2025 edition; the text below is the current one.

Colorado universal preschool program - created - eligibility - workforce development plan - program funding - legislative declaration - rules (current text, 2026 edition; retrieved 2026-10-25)

(1) There is created in the department the Colorado universal preschool program. The department shall administer the preschool program in accordance with this part 2 and shall ensure that, for the 2023-24 school year and school years thereafter, families may enroll their children in preschool providers that receive funding through the preschool program. The purposes of the preschool program are:

(a) To provide children in Colorado access to voluntary, high-quality, universal preschool services free of charge in the school year before a child enrolls in kindergarten;

(b) To provide access to additional preschool services in the school year before kindergarten eligibility for children in low-income families and children who lack overall learning readiness due to qualifying factors;

(c) To provide access to preschool services for children who are three years of age, or in limited circumstances younger than three years of age, and are children with disabilities, are in low-income families, or lack overall learning readiness due to qualifying factors; and

(d) To establish quality standards for publicly funded preschool providers that promote children's early learning and development, school readiness, and healthy beginnings.

(2) For the 2023-24 school year and each school year thereafter, subject to the availability and enrollment capacity of preschool providers, parents throughout the state may enroll their children, free of charge, in ten hours per week of publicly funded preschool services for the school year preceding the school year in which the children are eligible to enroll in kindergarten. The department, working with early childhood councils, shall identify and recruit preschool providers throughout the state to participate in the Colorado universal preschool program. In identifying and recruiting preschool providers, the department and early childhood councils shall, to the extent practicable, establish a mixed delivery system in communities throughout the state that enables parents to select preschool providers for their children from as broad a range as possible within their respective communities.

(3) (a) For the 2023-24 school year and for each school year thereafter:

(I) Subject to the availability and capacity of preschool providers, every child in the state may receive ten hours of preschool services per week, at no charge, during the school year preceding the school year in which the child is eligible to enroll in kindergarten.

(II) Pursuant to IDEA and ECEA, every child who is three or four years of age and is a child with disabilities must be offered preschool services in accordance with the child's individualized education program.

(III) Subject to available appropriations, a child who is three years of age, is not eligible to enroll in kindergarten in the next school year, and is in a low-income family or meets at least one qualifying factor may receive the number of hours of preschool services established by department rule.

(IV) Subject to available appropriations, a community in which a school district operated a district preschool program pursuant to article 28 of title 22, as it existed prior to July 1, 2023, with a waiver to serve children under three years of age, may continue to provide preschool services for the number of hours established by department rule for the same number of children under three years of age that received preschool services in the 2022-23 school year, so long as each child who receives the preschool services is in a low-income family or meets at least one qualifying factor.

(V) Subject to available appropriations, a child who is in a low-income family or who meets at least one qualifying factor may receive additional preschool services for the number of hours established by department rule in the school year preceding the school year in which the child is eligible to enroll in kindergarten.

(b) Notwithstanding any provision of subsection (3)(a) of this section to the contrary:

(I) The state shall provide to each three- or four-year-old child with a disability whose parent enrolls the child in the preschool program an educational program in accordance with IDEA and ECEA and the child's individualized education program; and

(II) For a school year in which federal money is provided to the state to fund preschool, other than federal money provided through IDEA, the executive director may allocate said funding to provide the number of hours of preschool services allowed under federal law for all children defined as eligible under federal law.

(4) (a) The executive director shall adopt rules to implement the preschool program, which must include:

(I) The level of income that identifies a family as being low-income for purposes of identifying children who are three years of age or younger and are eligible for preschool services and prioritizing funding for those additional preschool services. The executive director shall, to the extent practicable, ensure that the income eligibility requirements for other publicly funded child care programs are aligned with the income level set pursuant to this subsection (4)(a)(I).

(II) The qualifying factors that a child must meet to be eligible to receive additional preschool services. The executive director shall ensure that the qualifying factors are reviewed and, as necessary, revised at least every five years. The purpose of the qualifying factors is to identify children who are at risk of entering kindergarten without being ready for school. The qualifying factors must include identification as a dual-language learner or a child with disabilities and may include such other factors as the department may identify.

(III) The number of hours of preschool services that an eligible child may receive pursuant to subsection (3)(a)(III) or (3)(a)(IV) of this section; except that the number of hours for an eligible child who is a child with disabilities is determined in accordance with IDEA, ECEA, and the child's individualized education program;

(IV) The number of hours of additional preschool services that an eligible child may receive pursuant to subsection (3)(a)(V) of this section; except that the number of hours for an eligible child who is a child with disabilities is determined in accordance with IDEA, ECEA, and the child's individualized education program;

(V) Preschool quality standards, as provided in section 26.5-4-205;

(VI) The formulas for setting the per-child rates for universal preschool services, for preschool services for children with disabilities, for preschool services for eligible children who are three years of age or younger as described in subsections (3)(a)(III) and (3)(a)(IV) of this section, and for additional preschool services, as provided in section 26.5-4-208; and

(VII) Such other rules as are required in this part 2 or as may be necessary to implement the preschool program.

(b) In adopting rules, the executive director shall, to the extent possible:

(I) Align all rules pertaining to funding and preschool provider requirements to facilitate combining and coordinating federal, state, preschool program, and child care funding to the greatest extent allowed under state and federal law and regulation; and

(II) Align preschool quality standards and requirements with the child care licensing requirements and licensing requirements for school district and charter school preschool programs, as provided in part 3 of article 5 of this title 26.5, to reduce conflicts and duplication.

(5) In developing a plan for recruiting, training, and retaining a well-compensated, well-prepared, high-quality statewide early childhood workforce pursuant to section 26.5-6-101, the department shall ensure that the plan specifically addresses strategies for building and supporting the preschool workforce, especially with respect to:

(a) Simplifying the process for attaining credentials, meeting qualifications, and demonstrating professional competencies;

(b) Minimizing regulatory and administrative barriers to entry, including barriers faced by individuals who speak languages other than English;

(c) Increasing diversity in the preschool workforce;

(d) Establishing goals for increasing the qualifications of preschool teachers over time, including strategies for achieving the goal of supporting increased attainment of baccalaureate degrees in early childhood or baccalaureate degrees with supplemental early learning credentials for lead teachers employed by preschool providers; and

(e) Recruiting, compensating, providing continuing professional development for, and retaining individuals in the preschool workforce, including strategies for achieving the goal of compensating those individuals at a living wage.

(6) [Editor's note: This version of the introductory portion to subsection (6) is effective until July 1, 2027.] To preserve the general assembly's historic commitment to preschool program funding, the general assembly shall appropriate to the department for the Colorado universal preschool program:

(6) [Editor's note: This version of the introductory portion to subsection (6) is effective July 1, 2027.] To preserve the general assembly's historic commitment to preschool program funding, the general assembly shall appropriate from the general fund or the state education fund created in section 17 of article IX of the state constitution to the department for the Colorado universal preschool program:

(a) For the 2023-24 fiscal year, an amount at least equal to the difference between the amount of the state share of total program calculated pursuant to article 54 of title 22 for the 2022-23 budget year, after application of the budget stabilization factor and after any mid-year adjustment, and the amount that the state share of total program, after application of the budget stabilization factor and after any mid-year adjustment, would be for the 2022-23 budget year if calculated without including the statewide preschool program enrollment, as defined in section 22-54-103, for the 2022-23 budget year and the number of three- and four-year-old pupils with disabilities receiving an educational program under the "Exceptional Children's Educational Act", article 20 of title 22, for the 2022-23 budget year.

(b) For the 2024-25 fiscal year, and each fiscal year thereafter, an amount at least equal to the amount described in subsection (6)(a) of this section increased annually by the rate of inflation.

(6.5) [Editor's note: Subsection (6.5) is effective July 1, 2027.] The general assembly may appropriate money for the purposes of subsection (6) of this section from the state education fund created in section 17 of article IX of the state constitution. The general assembly declares that, for purposes of section 17 of article IX of the state constitution, the appropriations required in subsection (6) of this section are an important element of expanding the availability of preschool programs and may therefore receive funding from the state education fund created in section 17 (4) of article IX of the state constitution.

(7) Except as required by a court-issued subpoena or order, a preschool provider and the department shall keep all identifying records regarding children and all identifying facts learned about children and their relatives confidential. Notwithstanding any provision of part 2 of article 72 of title 24 to the contrary, the department and the preschool

provider shall not release individual child-level data that allows for the identification of a specific child or relative; except that individual child-level data that allows for the identification of a specific child or relative may be released to the person in interest, as defined in section 24-72-202.

Source: L. 2022: Entire article added, (HB 22-1295), ch. 123, p. 690, § 3, effective July 1. L. 2023: (6) added, (SB 23-216), ch. 94, p. 352, § 1, effective August 7. L. 2026: (2) amended, (SB 26-019), ch. 104, p. 425, § 18, effective May 5; (7) added, (HB 26-1259), ch. 119, p. 507, § 11, effective May 5; IP(6) amended and (6.5) added, (HB 26-1259), ch. 119, p. 507, § 11, effective July 1, 2027.

Colo. Rev. Stat. § 26.5-4-205

Cited by the petitioners 2 times (2 filings) and their amici 32 (13); by the respondent 24 (2) and its amici 29 (12). Reproduced in: Pet. App. 187a–208a.

Cited as the 2025 edition; the text below is the current one.

Quality standards - evaluation - support (current text, 2026 edition; retrieved 2026-10-25)

(1) (a) The department shall develop and the executive director shall establish by rule the quality standards that each preschool provider must meet to receive funding through the Colorado universal preschool program. The quality standards must, at a minimum, address the issues specified in this section and must reflect national and community-informed best practices with regard to school readiness, academic and cognitive development, healthy environments, social-emotional learning, and child and family outcomes. The department and the executive director shall work with families, educators, and program administrators to review and, as necessary, revise the quality standards at least every five years to ensure the standards continue to reflect national best practices and meet the other requirements specified in this section. In developing, reviewing, revising, and adopting the quality standards, the department and the executive director shall consider, at a minimum:

(I) The quality standards established for preschool providers participating in the Colorado preschool program pursuant to article 28 of title 22, as it existed prior to July 1, 2023;

(II) Nationally accepted standards for preschool programs;

(III) The child care licensing requirements established pursuant to part 3 of article 5 of this title 26.5 with which preschool providers are required to comply; and

(IV) The need to ensure the availability of preschool services for eligible children throughout the state while maintaining the quality of the preschool providers.

(b) (I) Except as provided in subsection (1)(b)(II) of this section, the department shall ensure that each preschool provider that participates in the preschool program meets the quality standards established by rule in accordance with this section. The department may work with an early childhood council to ensure that a preschool provider meets the quality standards. The department may prohibit a preschool provider that fails to meet one or more of the quality standards from participating in the preschool program.

(II) If necessary to ensure the availability of a mixed delivery system within a community, the department may allow a preschool provider that does not meet the quality standards to participate in the preschool program for a limited time while working toward compliance with the quality standards; except that each preschool provider must meet all quality standards relating to health and safety as a condition of participating in the preschool program.

(2) At a minimum, the quality standards established in rule must include:

(a) The minimum numbers of contact hours of instructional services per school year for universal preschool services for preschool services provided to children three years of age and younger, and for additional preschool services. The minimum number of contact hours of instructional services established in rule for universal preschool services must not be less than three hundred sixty hours per school year.

(b) A requirement that each preschool provider provide eligible children an equal opportunity to enroll and receive preschool services regardless of race, ethnicity, religious affiliation, sexual orientation, gender identity, lack of housing, income level, or disability, as such characteristics and circumstances apply to the child or the child's family;

(c) The maximum allowable educator-to-child ratios and group sizes, aligned with national best practices. The department, by rule, may implement a waiver process to allow a preschool provider that implements a nationally recognized preschool program model to implement the educator-to-child ratios and group sizes that support the instructional practices of the model, so long as the preschool provider meets the national standards for the model or is accredited to provide the model.

(d) Qualifications for preschool teachers. The quality standards must not require preschool teachers to be licensed pursuant to article 60.5 of title 22 and must allow a preschool provider to employ a nonlicensed preschool teacher as long as the teacher meets other qualifications established in department rule. The department shall work with the department of education to ensure that a preschool educator may meet the qualifications for preschool educators by demonstrating compliance with the qualifications for an early childhood teaching license endorsement provided by the department of education.

(e) Requirements for continuing professional development for teachers employed by a preschool provider, which

must be focused on improving teacher-child interactions and quality of instruction, including improving fidelity in implementing evidence-based curricula and student outcomes, and may allow for training in developmentally appropriate early numeracy, language, and literacy development, and the science of reading that is appropriate for early childhood education and comparable to the training required for early grade teachers pursuant to the "Colorado READ Act", part 12 of article 7 of title 22. The department shall work with the department of education to allow, to the fullest extent possible, a teacher who is licensed by the department of education to use the professional development required to renew the teaching license to also meet the professional development requirements established by the department for teachers employed by a preschool provider.

(f) Standards for preschool services that, at a minimum, are aligned with the Colorado early learning and development guidelines across all early childhood domains approved by the early childhood leadership commission and with the Colorado academic standards adopted by the state board of education pursuant to section 22-7-1005, are culturally inclusive, and are supported by the department in implementation;

(g) Standards for instructional practice that, at a minimum, must ensure that the instructional practice implemented by preschool providers:

(I) Promotes learning through developmentally appropriate practices that include a mix of structured activities and play; and

(II) Increases and supports learning using instructional practices that build on previous learning and include a focus on age-appropriate classroom environments and ongoing informal assessments of learning;

(h) Limitations on the use of, and required procedures for, out-of-school suspension and expulsion in accordance with section 22-33-106.1. In addition, to reduce the use of exclusionary discipline, the standards must reflect best practices in early childhood mental health, including promoting access to early childhood mental health consultation.

(i) Standards for family and community engagement to ensure that the preschool provider engages with parents and neighborhood leaders in a formal and meaningful way, including seeking input for policy and programming decisions;

(j) Requirements for serving children who are dual-language learners, which must, at a minimum, include:

(I) Identifying, screening, and assessing children in their home languages;

(II) Communicating with children's parents in their home languages; and

(III) Using teaching strategies that have been shown to meet the needs of children who are dual-language learners;

(k) Requirements for offering voluntary vision, hearing, dental, and health screenings, and, upon parent request, referrals to appropriate health providers for children who are enrolled by a preschool provider; and

(l) Requirements for providing voluntary developmental screenings, which must, at a minimum, include the use of valid and reliable screening tools that are developmentally, culturally, and linguistically appropriate.

(3) (a) Using the procedures specified in subsection (3)(b) of this section, the department shall create a resource bank of preschool curricula for use by preschool providers. The resource bank may include only curricula that, at a minimum:

(I) Are supported by evidence that use of the curricula improves student outcomes;

(II) Are developmentally appropriate, culturally relevant, and linguistically responsive to communities being served;

(III) Promote literacy, as developmentally appropriate, based on the science of reading by providing language development, including speech sounds, vocabulary, grammar, and use, and providing developmentally appropriate instruction to support children's success in early elementary grades when receiving instruction pursuant to the "Colorado READ Act", part 12 of article 7 of title 22, in the areas of phonemic awareness; phonics; vocabulary development; reading fluency, including oral skills; and reading comprehension;

(III.5) Promote developmentally appropriate early numeracy; and

(IV) Are aligned with the Colorado early learning and development guidelines approved by the early childhood leadership commission.

(b) The department shall develop and implement a procedure for identifying the curricula it includes in the resource bank of preschool curricula. At a minimum, the procedure must include:

(I) Soliciting through public notice, accepting, and promptly reviewing curricula from preschool providers and from publishers;

(II) Evaluating the curricula that the department identifies or receives, which evaluation is based on the criteria specified in subsection (3)(a) of this section and any additional criteria specified in department rule;

(III) Providing notice to preschool providers and publishers that submit curricula concerning whether the submitted curricula was included in the resource bank and, if excluded from the resource bank, the reasons for exclusion; and

(IV) Reviewing the resource bank at least every three years to update the resource bank and add curricula when appropriate. In reviewing and updating the resource bank, the department shall, at a minimum, comply with the procedures described in subsections (3)(b)(I) to (3)(b)(III) of this section.

(c) The department shall allow preschool providers and publishers to submit curricula to the department at any time to be reviewed and considered for inclusion in the resource bank, regardless of the schedule for reviewing the resource bank. The department shall review all submitted curricula in accordance with the adopted procedures described in

subsection (3)(b) of this section.

(d) The department shall make the resource bank accessible to the public through the department website.

Source: L. 2022: Entire article added, (HB 22-1295), ch. 123, p. 693, § 3, effective July 1. L. 2023: (2)(e) and (3)(a)(III) amended and (3)(a)(III.5) added, (HB 23-1231), ch. 190, p. 950, § 14, effective May 15. L. 2026: (1)(b)(I) amended, (SB 26-019), ch. 104, p. 425, § 19, effective May 5.

8 Colo. Code Regs. 1404-1

Cited by the petitioners 2 times (2 filings) and their amici 26 (8); by the respondent 12 (1) and its amici 8 (5). Reproduced in: Pet. App. 209a–215a.

UNIVERSAL PRESCHOOL PROGRAM RULES AND REGULATIONS (current text, retrieved 2026-10-25)

§ 4.100 *AUTHORITY.*

These rules and regulations are adopted pursuant to the rulemaking authority provided in sections 26.5-1-105(1) and 26.5-4-204(4), C.R.S., and are intended to be consistent with the requirements of the State Administrative Procedures Act, sections 24-4-101 through 24-4-204 (the "APA"), C.R.S., the Anna Jo Garcia Haynes Early Childhood Act, sections 26.5-1-101 through 26.5-6-101 (the "Early Childhood Act"), C.R.S., and the Colorado Universal Preschool Program Act, sections 26.5-4-201 through 26.5-4-211, C.R.S.

§ 4.101 *SCOPE AND PURPOSE.*

These rules and regulations shall govern the processes, procedures, and requirements of providers and families participating in the Colorado Universal Preschool Program.

§ 4.102 *APPLICABILITY.*

The provisions of these rules and regulations shall be applicable to all preschool providers participating in the Colorado Universal Preschool Program including: family child care homes, as defined in section 26.5-5-303, C.R.S.; child care centers, as defined in section 26.5-5-303, C.R.S.; school districts licensed to operate as a public preschool provider; charter schools licensed to operate as a public preschool provider; or head start programs licensed and regulated by the Colorado Department of Early Childhood.

§ 4.103 *DEFINITIONS.*

A. "Additional preschool services" means hours of preschool services provided to a child in the year preceding enrollment in kindergarten that are in addition to the universal preschool services the child receives.

B. "Administrative unit" means a school district, a board of cooperative services, a multi-district administrative unit, a charter school network, a charter school collaborative, or the state charter school institute, that is providing educational services to exceptional children and that is responsible for the local administration of the education of exceptional children pursuant to article 20 of title 22.

C. "Applicant 2" means an individual that resides in a family child care home and provides care regularly, in a recurring pattern and must have the same required training as the Primary Provider as specified in the "Rules Regulating Family Child Care Homes" located in 8 CCR 1402-1, rule section 2.304(A)(5).

D. "Child Find" means the program component of IDEA that requires states to find, identify, locate, evaluate, and serve all children with disabilities, from birth to twenty-one (21) years of age. Child Find includes: (a) Part C child find, which is the program component of IDEA that requires states to find, identify, locate, evaluate, and serve children with disabilities from birth through two (2) years of age; and (b) Part B child find, which is the program component of IDEA that requires states to find, identify, locate, evaluate, and serve children with disabilities from three (3) to twenty-one (21) years of age.

E. "Children with disabilities" has the same meaning as provided in section 22-20-103, C.R.S.

F. "Classroom" means the educational or instructional location used to support a preschool program by any Preschool Program provider, including: schools, child care centers, family child care homes, or other approved Colorado Universal Preschool Program locations.

G. "Colorado Academic Standards" means the comprehensive set of academic standards across all content areas adopted by the State Board of Education pursuant to section 22-7-1005, C.R.S. The Colorado Academic Standards are located at www.cde.state.co.us/standardsandinstruction/standards (2019-2025), and are hereby incorporated by reference. No later editions or amendments are incorporated. These standards are available for public inspection during regular business hours and at no cost from the Colorado Department of Education, located at 201 East Colfax Avenue, Denver, Colorado 80203, and are also available online at www.cde.state.co.us/standardsandinstruction/standards. Copies are also available for public inspection and copying at no cost, during regular business hours at the Colorado Department of Early Childhood located at 710 S. Ash St., Denver, CO 80246, during normal business hours.

H. "Colorado Child Care Assistance Program" or "CCCAP" means the public assistance program for child care known as the Colorado child care assistance program established in part 1 of article 4 of title 26.5.

I. "Colorado Early Learning and Development Guidelines" means the set of guidelines across all early childhood domains endorsed by the Early Childhood Leadership Commission (ECLC) that include approaches to learning, health

and physical development, social and emotional development, language, literacy, numeracy, logic and reasoning, and other subject-specific learning. The Colorado Early Learning and Development Guidelines (2020) are hereby incorporated by reference. No later editions or amendments are incorporated. These guidelines are available for public inspection and copying at no cost, during regular business hours from the Colorado Department of Early Childhood located at 710 S. Ash St., Bldg. C, Denver, CO 80246, and online at https://cdec.colorado.gov/for-families/learning-and-development-guidelines.

J. "Colorado Shines Quality Rating and Improvement System (QRIS)" means the system developed by the Department pursuant to section 26.5-5-101, C.R.S., which measures the level of preparedness of, and quality of services provided by, an early childhood education program to prepare children to enter elementary school.

K. "Colorado Universal Preschool Program" or "Preschool Program" means the program established within the Department pursuant to section 26.5-4-204, C.R.S., and includes all eligible preschool providers.

L. "Colorado's Competencies for Early Childhood Educators and Professionals" means the set of content areas, or domains, that describe the knowledge and skills early childhood educators need to work effectively with children, and are updated, maintained, and published by the Department.

M. "Cooperative Preschool Provider" means an eligible preschool provider which requires participating families to be meaningfully involved in the operation of the cooperative, and which is at least substantially operated, maintained, or administered by participating families.

N. "Department" means Colorado Department of Early Childhood.

O. "Dual-language learner" means a child whose native language is not English, or the native language spoken in the child's home is not English, or a child who is learning English while continuing to develop their native language.

P. "ECEA" means the "Exceptional Children's Educational Act", Article 20 of Title 22, and its implementing rules.

Q. "Early childhood mental health program" means a program which supports the mental wellness of children, or promotes the knowledge, ability, and capacity of individuals who support the mental wellness of children to address and enhance the social, emotional, cognitive, or behavioral developmental needs of children, including children aged birth to six (6).

R. "Early learning and assessment approach" means the eligible preschool provider's chosen methods for selecting, planning, and implementing preschool services; observing; documenting; and monitoring designed to support children's learning and development, in alignment with the Colorado Early Learning and Development Guidelines, and includes curricula and other pedagogical methods that support the curricula.

S. "Eligible child" means a child who is eligible to receive preschool services as provided in section 26.5-4-204(3), C.R.S.

T. "Eligible preschool provider" means a preschool provider that is actively participating in the Colorado Universal Preschool Program and is in good standing with the Department. As used in this context, "good standing" means that the preschool provider has either a permanent, provisional, or probationary license issued by the Department, as those terms are defined and used in 8 CCR 1402-1, rule sections 2.107, 2.108, and 2.109.

U. "Equally qualified provider" means an employee of a family child care home that has the same required trainings and qualifications as the primary provider as specified in the "Rules Regulating Family Child Care Homes" located in 8 CCR 1402-1, rule section 2.304(A)(29).

V. "Federal Poverty Level" (FPL) or "Federal Poverty Guidelines" (FPG) refers to figures set by the federal government annually. (changes noted in underline and strikethrough) These figures are based on gross monthly income levels for the corresponding households size, and are included in the tables in rule section 4.105(A).

W. "Foster care home" has the same meaning as provided in section 26-6-903(10), C.R.S.

X. "Full-day" means thirty to forty (30 to 40) hours of preschool service per week.

Y. "Half-day" means fifteen to twenty (15 to 20) hours of preschool service per week.

Z. "Head Start program" means a program operated by a local public or private nonprofit agency designated by the federal department of health and human services to operate a head start program pursuant to the provisions of Title V of the federal "Economic Opportunity Act of 1964," as amended.

AA. "IDEA" means the federal "Individuals with Disabilities Education Act", 20 U.S.C. sections 1400 through 1491, as amended, and its implementing regulations at 34 C.F.R. Parts 300 and 303 (2025), which are hereby incorporated by reference. No later editions or amendments are incorporated. These regulations are available at no cost from the United States Department of Education at www.ecfr.gov. These regulations are available for public inspection and copying at no cost from the Colorado Department of Early Childhood, 710 S. Ash St., Denver, CO 80246, during normal business hours.

BB. "Individualized Education Program" or "IEP" means a written statement for a child with a disability that is developed, reviewed, and revised in accordance with part 1 of article 20 of title 22, C.R.S., and the rules promulgated by the Colorado State Board of Education.

CC. "Instructional supervisor" means the employee who is responsible for the direct supervision of an employee who

is required to meet the ongoing professional development requirement of rule sections 4.114(B) and (C), and who as part of that direct supervision is responsible for overseeing the delivery of instruction or related services. For an eligible preschool provider who is a family child care home, the instructional supervisor shall mean the primary provider. For an eligible preschool provider who is a child care center (including a large child care center, small child care center, preschool, mobile part-day preschool program, or any combination thereof), the instructional supervisor shall mean the director of the child care center who is qualified and designated as the director as specified in 8 CCR 1402-1 rule sections 2.214, 2.215, 2.217 and 2.243, and also includes any other supervisory staff who meet this definition.

DD. "Lead teacher" means the employee of an eligible preschool provider that is primarily assigned to a Preschool Program classroom and responsible for delivering instruction or leading activities. A "lead teacher" means:

1. The primary provider of a family child care home; or

2. The early childhood teacher (as specified in 8 CCR 1402-1 rule section 2.216(A)) of a large child care center, small child care center, preschool, or mobile part-day preschool program as those terms are defined in rule section 2.204(B), who is responsible for delivering instruction or leading activities in their primarily assigned Preschool Program classroom.

EE. "Low-income" means that the child's parent or guardian's gross income must not exceed 265% of the Federal Poverty Guideline (FPG).

FF. "Noncertified kinship care" has the same meaning as provided in section 19-1-103(102), C.R.S.

GG. "Parent" has the same meaning as provided in section 22-20-103, C.R.S.

HH. "Part-day" means ten (10) hours of preschool service per week.

II. "Primary provider" means the person that resides in a family child care home and provides direct care, supervision, and education to child(ren) in care for at least sixty percent (60%) of the daily hours of operation of the family child care home.

JJ. "Preschool provider" means any of the following entities that are licensed pursuant to part 3 of article 5 of this title 26.5:

1. A family child care home, as defined in section 26.5-5-303, C.R.S.;

2. A child care center, as defined in section 26.5-5-303, C.R.S.;

3. A school district licensed to operate as a public preschool provider;

4. A charter school licensed to operate as a public preschool provider; or

5. A Head Start program.

KK. "Preschool services" means instructional and educational services including healthy child development in a variety of domain areas, including but not limited to cognitive, social-emotional, language, and physical development, which are provided to an eligible child by an eligible preschool provider pursuant to the Colorado Universal Preschool Program.

LL. "Program Year" means the period of time within the school year within the ten (10) months from August of a calendar year through May of the following calendar year during which an eligible preschool provider is actively providing preschool services to a participating and enrolled eligible child that is funded by the preschool program per-child rate. A provider may elect to have a program year that is nine (9) months, but that in no way alters the requirement that all preschool program services are funded and paid for based on actual enrollment in accordance with sections 26.5-4-201 through 211, C.R.S. and accompanying regulations at 8 C.C.R. 1404-1.

MM. "Qualifying factor" means a child or family circumstance, as identified by department rule pursuant to section 26.5-4-204(4)(a)(II), C.R.S., that may negatively impact a child's cognitive, academic, social, physical, or behavioral health or development.

NN. "Qualified substitute" means a substitute provider of a family child care home that has all required training and qualifications as determined in the Department's "Rules Regulating Family Child Care Homes" located in 8 CCR 1402-1 rule section 2.304(A)(71).

OO. "Resource Bank" means the collection of preschool curricula and other approved educational approaches, toolkits, self-assessments, templates, training, and other resources for use by eligible preschool providers that is created, administered, and updated by the Department pursuant to section 26.5-4-205(3), C.R.S.

PP. "School District" means a school district organized pursuant to article 30 of title 22, C.R.S., that provides preschool services and is licensed pursuant to part 3 of article 5 of title 26.5, C.R.S., as a preschool provider; or a board of cooperative services organized pursuant to article 5 of title 22, C.R.S., that provides preschool services and is licensed pursuant to part 3 of article 5 of title 26.5, C.R.S., as a preschool provider.

QQ. "School year" means the full school year as defined by the local school board of education.

RR. "Short term basis" means work performed in place of a regular staff member or volunteer who is unable to work their normally scheduled work hours due to a planned or unplanned event that requires the regular staff member or volunteer to be on leave for no more than two (2) calendar weeks and exclusively includes work performed by an

assistant early childhood teacher providing substitute services under 8 CCR 1402-1 rule section 2.216(F)(2), or a public school substitute providing services under 8 CCR 1402-1 rule section 2.243(C).

SS. "Sibling" means one (1) or more individuals having one (1) or both parents in common.

TT. "Stacking" means the practice of using only one (1) funding source per time period of service.

UU. "Staff aide" means an individual who assists the primary provider in a family child care home in the care of children at the family child care home. A staff aide must never be allowed to supervise a child(ren) alone. The primary provider, applicant 2, equally qualified provider, or qualified substitute provider must be present at all times when the staff aide is providing care for a child(ren).

VV. "Substitute" means a paid, volunteer, or contract individual of a family child care home responsible for caring for the children in the capacity of the employee, staff aide, or staff member. The primary provider, applicant 2, equally qualified provider, or qualified substitute must always be present at all times when a substitute is providing care for children.

WW."Universal preschool services" means ten (10) hours of preschool services per week made available, at no charge, to children in the state during the school year preceding the school year in which a child is eligible to enroll in kindergarten. For purposes of this definition, "school year preceding the school year in which a child is eligible to enroll in kindergarten" has the same meaning as "program year" as defined in 4.103 (LL).

§ 4.104 *COLORADO UNIVERSAL PRESCHOOL PROGRAM.*

The Colorado Universal Preschool Program was established to provide high-quality, voluntary, preschool programming through a mixed delivery system for children throughout the state in the year preceding eligibility for kindergarten enrollment, and to provide for additional preschool services for children who are experiencing poverty, or in low-income families and meet the criteria of an identified qualifying factor. The Department intends to work with preschool program services providers to meet families' needs, including for a half- or full-day program.

A. For the 2023-24 program year and program years thereafter, families may enroll their children in preschool providers that receive funding through the preschool program. Each child can enroll for preschool services with one (1) provider at a time. The purposes of the preschool program are:

1. To provide children in Colorado access to voluntary, high-quality, universal preschool services free of charge in the program year before a child enrolls in kindergarten;

2. To provide access to additional preschool services in the program year before kindergarten eligibility for children in low-income families and children who lack overall learning readiness due to qualifying factors;

3. To provide access to preschool services for children who are three (3) years of age, or in limited circumstances younger than three (3) years of age, and are children with disabilities, are in low-income families, or lack overall learning readiness due to qualifying factors; and

4. To establish quality standards for publicly funded preschool providers that promote children's early learning and development, school readiness, and healthy beginnings.

§ 4.105 *GENERAL CRITERIA FOR PRESCHOOL SERVICES.*

This rule is promulgated pursuant to section 26.5-4-204(4)(a)(I) and (II), C.R.S.

A. Poverty and Low-Income Eligibility Determinations.

1. Effective for the 2025-2026 program year, a child shall be considered as belonging to a family living in poverty if the gross monthly income of the child's parent(s) or guardian(s) does not exceed 100 percent of the 2024 Federal Poverty Guidelines (FPG). A child is considered belonging to a low-income family if the gross monthly income of the child's parent(s) or guardian(s) does not exceed 270 percent of the 2024 Federal Poverty Guidelines (FPG).

FAMILY SIZE | 100% 2024 FEDERAL POVERTY GUIDELINE (FPG) MONTHLY INCOME | 270% 2024 FEDERAL POVERTY GUIDELINE (FPG) MONTHLY INCOME

1 | $1,255.00 | $3,388.50
2 | $1,703.33 | $4,599.00
3 | $2,151.67 | $5,809.50
4 | $2,600.00 | $7,020.00
5 | $3,048.33 | $8,230.50
6 | $3,496.67 | $9,441.00
7 | $3,945.00 | $10,651.50
8 | $4,393.33 | $11,862.00
EACH ADDITIONAL PERSON | $448.33 | $1,210.50

2. Effective for the 2026-2027 program year, a child shall be considered as belonging to a family living in poverty if the gross monthly income of the child's parent(s) or guardian(s) does not exceed 100 percent of the 2025 Federal Poverty Guidelines (FPG). A child is considered belonging to a low-income family if the gross monthly income of the child's parent(s) or guardian(s) does not exceed 265 percent of the 2025 Federal Poverty Guidelines (FPG).

FAMILY SIZE | 100% 2025 FEDERAL POVERTY GUIDELINE (FPG) MONTHLY INCOME | 265% 2025 FEDERAL

POVERTY GUIDELINE (FPG) MONTHLY INCOME
1 | $1,304.17 | $3,456.04
2 | $1,762.50 | $4,670.63
3 | $2,220.83 | $5,885.21
4 | $2,679.17 | $7,099.79
5 | $3,137.50 | $8,314.38
6 | $3,595.83 | $9,528.96
7 | $4,054.17 | $10,743.54
8 | $4,512.50 | $11,958.13
EACH ADDITIONAL PERSON | $458.33 | $1,214.58

B. Qualifying Factors.

The following qualifying factors will be used to determine a child's eligibility for additional preschool services:

1. Child is identified as in poverty if the child's parent or guardian's gross income does not exceed 100% of the Federal Poverty Guideline (FPG).

2. Child is a dual-language learner and the native language spoken in the child's home is a language other than English, or the child's native language is not English.

3. Child has an IEP.

4. Child is currently in the custody of a state supervised and county administered foster care home or in non-certified kinship care.

5. Child is identified as homeless and/or unhoused, and lacks a fixed, regular, and adequate nighttime residence and at least one (1) of the following:

a. Sharing the housing of other persons due to loss of housing; economic hardship, or a similar reason; living in motels, hotels, or camping grounds due to the lack of alternative accommodations; or living in emergency or transitional shelters;

b. Has a primary nighttime residence that is a public or private place not designed for or ordinarily used as a regular sleeping accommodation for human beings;

c. Living in cars, parks, public spaces, abandoned buildings, substandard housing, bus or train stations, or in similar settings; or

d. Is a child who is migratory who qualifies as homeless for the purposes of this rule subsection because the child is living in circumstances described in this rule subsections (a) through (c), above.

C. Income Redeterminations.

Subject to available appropriations, a family may have their income redetermined based on a parent or caregiver having lost income through a layoff, reduction in hours, or reduction in pay that are unrelated to job performance. Any family seeking to have their income redetermined may apply for that redetermination in conformity with applicable Department policies and procedures. The Department shall publicly post all requirements and criteria for a family seeking to have their income redetermined.

D. School District Cut-Off Dates Impacting Eligibility.

The following criteria apply when determining a child's eligibility for preschool services in situations where school district age cut-off dates differ, except that this subsection (D) does not apply to children with disabilities with an IEP who must be provided services in accordance with their IEP and in conformity with rule section 4.110.F.

1. Families moving between school districts with different cut-off dates.

a. When a family receiving preschool program funding moves to a new school district and the child is no longer eligible for the preschool program because the new district's kindergarten cut-off date is later (meaning the child would be expected to enroll in kindergarten), the child may continue to receive preschool program funding for the remainder of the current program year, provided the family chooses to keep the child enrolled in the preschool program.

b. When a family receiving preschool program funding moves to a new school district and the child is no longer eligible for the current program year due to the new district's earlier eligibility cut-off date, the child's current preschool program funding will cease immediately. However, the child will remain eligible for a full year of preschool program funding in the subsequent program year.

2. Incorrect birthdates or inadvertent administrative errors.

When a child is incorrectly determined eligible for preschool program funding due to an inaccurate birthdate provided in the family's application, or due to an inadvertent administrative error made by the Department or any individual or entity acting on its behalf, and the corrected information makes the child ineligible, the application will be withdrawn and funding will end immediately. An incorrect birthdate or administrative error in one year will not affect the child's eligibility in the following year.

3. Families residing in a school district with a different cut-off date than the selected preschool provider.

When a family resides in one school district but chooses a preschool program provider located in a district with a different cut-off date, eligibility for funding is determined by the local Board of Education (as defined in section 22-33-102, C.R.S.) governing the district in which the provider is geographically located. Families are only entitled to one (1) year of preschool program funding in the year preceding kindergarten. They will not be eligible for a second year of funding if they subsequently move to a district with a different cut-off date.

E. Withdraw Procedures.

If an eligible child stops attending or otherwise withdraws from a provider's program, the preschool provider must notify the Department within ten (10) business days and report the reason for withdrawal. In addition to a family directly notifying the provider, a child is considered to have withdrawn if either:

1. the child has been absent from the program for fourteen (14) consecutive calendar days without explanation; or

2. the family attempts to enroll the child with a different preschool provider.

Until a child is formally withdrawn, providers must not fill the child's funded seat with another child. Children with disabilities with an IEP may not be formally withdrawn without consultation with and written agreement from the Administrative Unit.

§ 4.106 *ELIGIBILITY AND PRESCHOOL SERVICES FOR CHILDREN THREE (3) YEARS OF AGE OR YOUNGER.*

This rule section is promulgated pursuant to sections 26.5-4-204(3)(a)(II)-(IV) and 26.5-4-208(3)(c)(I) and (II), C.R.S. The Department or Local Coordinating Organization, as applicable, shall distribute funding to school districts and charter schools for preschool services for enrolled children who are three (3) years of age or younger. A school district may utilize the allotted three (3) year old funding, or may distribute all or a portion to a contracted head start agency or community-based preschool provider that provides preschool services.

A. Eligibility

1. Every child in the state who is three (3) years of age, or who is in the year two-years-before-kindergarten or is otherwise eligible for preschool services in accordance with their IEP, and is a child with disabilities, is eligible for preschool services in accordance with their Individualized Education Program (IEP).

2. Children who are three (3) years of age and are not eligible to enroll in kindergarten in the next school year, or who are under three (3) years of age and reside in a community in which a school district operates a district preschool program with a waiver to serve children under three (3) years of age, may be eligible for preschool services if they are low-income or have at least one (1) qualifying factor.

B. Preschool Services

1. Subject to available appropriations to provide preschool services for children three (3) years of age, a child three (3) years of age who is not eligible to enroll in kindergarten in the next school year, and is in a low-income family per rule section 4.105(A), or meets at least one (1) qualifying factor identified in rule section 4.105(B), may receive a minimum of ten (10) hours per week of preschool program services.

2. Subject to available appropriations with a waiver to serve children under three (3) years of age, a child who is under three (3) years of age and is in a low-income family per rule section 4.105(A), or meets at least one (1) qualifying factor identified in rule section 4.105(B), may receive a minimum of ten (10) hours per week of preschool program services.

§ 4.107 *ELIGIBILITY AND PRESCHOOL SERVICES FOR CHILDREN FOUR (4) YEARS OF AGE, IN THE YEAR PRECEDING KINDERGARTEN.*

This rule section is promulgated pursuant to sections 26.5-4-204(3)(a)(I), (II), and (V) and 26.5-4-208(3)(a), C.R.S.

A. Eligibility

1. Every child in the state who is four (4) years of age, or who is in the year-before-kindergarten or is otherwise eligible for preschool services in accordance with their IEP, and is a child with disabilities, is eligible for preschool services in accordance with their Individualized Education Program (IEP).

2. Children in the state who are in the program year preceding the school year in which the child is eligible to enroll in kindergarten, are eligible for ten (10) hours of universal preschool services per week.

3. Children who are in the program year preceding the school year in which the child is eligible to enroll in kindergarten, may be eligible for additional preschool services if they are low-income or have at least one (1) qualifying factor.

B. Additional Preschool Services

1. Subject to available appropriations, and after the Department allocates the amounts necessary to fund preschool services for eligible children who are three (3) years of age or younger, for children with disabilities, and to fully fund universal preschool services for children who enroll, the Department may distribute specified purpose funding equivalent to five (5) hours of preschool programming per week to children who enroll in the year preceding eligibility for enrollment in kindergarten to achieve the specified purpose of increasing whole child developmental outcomes and meeting family needs, by expanding universal access to preschool programs to a minimum of half-day preschool service.

2. Subject to available appropriations and after the Department allocates the amounts necessary to fund preschool services for eligible children who are three (3) years of age or younger, for children with disabilities, and to fully fund universal preschool services for children who enroll, a child who is in a low-income family per rule section 4.105(A), or who meets at least one (1) qualifying factor in rule section 4.105(B), may receive fifteen (15) additional hours per week of additional preschool services in the program year preceding the school year in which the child is eligible to enroll in kindergarten to achieve full-day preschool service.

a. A child who is eligible for and approved to receive additional preschool services shall maintain fifteen (15) additional hours per week until the final day of the program year.

C. Family Acceptance Timeline.

1. During the 'matching' phases of enrollment, families have seven (7) calendar days to accept matches with a provider. Before the provider can 'decline' the match so the next family can be matched, providers must have made a minimum of three (3) attempts to do outreach to families. Only after seven (7) calendar days has passed, and the provider has made a minimum of three (3) attempts to do outreach to the family, may the provider 'decline' the match so the next family can be matched.

2. Starting August 1st through the end of each program year, families who are awarded additional preschool program hours have the choice to enroll in a part-day, half-day, or full-day program. Separate from the seven (7) calendar day timeline to accept the match from the provider, these families have a maximum of thirty (30) calendar days from August 1st or the award notification date if that date is after August 1st, to accept a placement in a thirty (30) hour full-day program specifically. If a family does not enroll in a thirty (30) hour full-day program specifically within the allotted timeframe, but rather chooses to only partake in a part-day or half-day program, the thirty (30) hour award will be rescinded. The rescission of the thirty (30) hour full-day award in no way affects the family's match with the provider for the part-day or half-day award.

3. If a family has their additional full-day awarded hours rescinded because they did not accept a placement in a thirty (30) hour full-day program within thirty (30) calendar days of August 1st or the award notification date, and they wish to be placed in a full-day seat that later becomes available, they will need to apply to the Department in order to have the full-day award reinstated and be placed in a full-day seat, unless the hours are already qualified for in accordance with the child's IEP.

§ 4.108 *PRESCHOOL PROVIDER FUNDING FOR CHILDREN THREE (3) AND FOUR (4) YEARS OF AGE.*

A. Preschool program funding distributed to preschool providers shall be used only to pay the costs of providing preschool services directly to eligible children enrolled by the preschool provider or by a subcontracted preschool provider, as authorized for a school district pursuant to section 26.5-4-208(3)(c)(II), C.R.S. Where applicable, preschool program funding can be used to cover special education and related services costs that are in excess of the Exceptional Children's Educational Act (ECEA) and Individuals with Disabilities Act (IDEA) funds if the costs are allowable per subsections (A)(1) through (4) of this rule. The costs of providing preschool services include:

1. Teacher and paraprofessional salaries and benefits;

2. The cost of providing to teachers and paraprofessionals any professional development activities associated with the preschool services;

3. The costs incurred in purchasing supplies and materials used in providing the preschool services;

4. Any additional costs that a preschool provider would not have incurred but for the services provided in conjunction with the preschool services; and

5. A reasonable allocation of overhead costs as provided in rule section 4.108(I).

B. Eligible preschool providers must agree to guarantee families, free of tuition, at least the minimum number of hours defined in rule sections 4.106(B) and 4.107(A) and (B) for the per-child rate that is provided.

C. Pursuant to section 26.5-4-208(3)(b), C.R.S., in a year in which there is insufficient funding to provide additional preschool services to all eligible children, those eligible children who are in low-income families and meet at least one (1) qualifying factor will be prioritized.

D. Excess funds allocated to the preschool program through underspent funding for children three (3) years of age, or younger in waiver districts, and/or funds remaining after meeting the uses described in section 26.5-4-209(3)(a), C.R.S., may be distributed by the Department through hours of additional preschool services for children who enroll in the year preceding eligibility for enrollment in kindergarten, or may be distributed to provide services for children three (3) years of age.

E. The Department, in accordance with section 26.5-4-111, C.R.S., will make every effort to allow funds from both the Colorado Child Care Assistance Program (CCCAP) and the preschool program to be combined and coordinated to the extent allowed by state and federal law and federal regulations. When an eligible child is enrolled with an eligible preschool provider and is receiving both CCCAP and preschool program services and funding (dually-enrolled child(ren)), the enrolling provider must:

1. Ensure, to the greatest extent possible and in conformity with any applicable Department policies, procedures,

or guidance, that only one (1) funding source is utilized for a dually-enrolled child at any time for a designated purpose or service (colloquially referred to as 'stacking'), except for any overlap in hours of services that derives directly from the implementation of the federal requirement that services provided and paid for under CCCAP are provided in part-time and full-time increments rather than hours;

2. Ensure that each funding source for a dually-enrolled child is tracked and reported separately for different timeframes;

3. Ensure that, for dually-enrolled children, preschool program funds are used first, with CCCAP funding covering time in care that exceeds the amount of the eligible child's preschool program hours; and

4. Follow any and all applicable Department policies or procedures related to dually-enrolled children, including, but not limited to, which categories (i.e. part-day, half-day, or full-day) of eligible children are allowed to be funded for both CCCAP and preschool program services concurrently.

F. Eligible preschool providers must ensure that families are offered services that correspond to the per-child rate received, free of tuition. The per-child rate funding formula for all types of preschool services covered under the preschool program applies to the following categories of services that a family may enroll their eligible child in, as specified in sections 26.5-4-204 and -208, C.R.S., and clarified in these rules:

1. Universal preschool services for children in the program year before they are eligible for kindergarten, as described in rule section 4.104(A)(1).

2. Pursuant to section 26.5-4-204(3)(b), C.R.S., all children with disabilities described in rule sections 4.106(A)(1) and 4.107(A)(1), who are three (3) or four (4) years of age or are otherwise eligible for preschool services in accordance with their IEP, are eligible to receive funding for preschool services in accordance with their Individualized Education Program (IEP).

3. Preschool services for eligible children three (3) years of age or younger, in a waiver district as described in rule section 4.106(A)(2).

4. Preschool services to achieve a specified purpose as described in rule section 4.107(B).

5. Additional preschool services for eligible children four (4) years of age based on low-income status or meeting at least one (1) qualifying factor as described in rule section 4.107(A)(3).

G. For any hours of service provided above and beyond the awarded, tuition-free hours, as defined in the provider's calendar submission and determined by the child's award amount, providers may set the amount they will charge families for these services with the following requirements:

1. Provider payments received for preschool services shall not be utilized as a tuition reduction when calculating charges to families, since all services funded by the preschool program are tuition-free. Any tuition charges to families shall only be calculated for hours provided outside of the awarded hours.

2. Provider shall not charge a family participating in the Preschool Program tuition or fees for preschool services that exceed the amount that is charged to families of preschool-aged children that do not participate in the Preschool Program for the same or similar services.

3. The tuition must comply with all relevant state or federal laws or regulations, and any contractual agreements with the Department.

4. Tuition for services above and beyond what the Preschool Program award and rate cover may be structured on a monthly, weekly, or other schedule, provided it does not include any tuition charges for any hours of Preschool Program funded services, is clearly posted for families to reference on the provider's Preschool Program profile, and is in compliance with any applicable law, regulation, or contract term.

H. Preschool providers are required to submit a program year calendar annually, by August 1st, defining their program year for the exact hours they are providing preschool services under the Preschool Program. The program year calendar must outline the preschool provider's minimum hours per program year based on the program type (part-day, half-day, or full-day).

1. Payments in arrears will occur as defined each year within the provider contract and/or any publicly posted policies and procedures issued by the Department and dependent upon the preschool provider's program year start dates, as described below:

a. In order to receive a pre-payment in August, providers must show they have a demonstrated need as defined by the Department in publicly posted policies and procedures. The August 15th payment is considered a pre-payment for May services. The pre-payment will be recouped by the Department if the enrollment status ends before May services are rendered.

b. An August start date with no pre-payment will receive ten (10) payments September through the second May payment.

c. An August start date, with a pre-payment will receive ten (10) payments from August through the first May payment.

d. A September start date will receive ten (10) payments from October through the June reconciliation payment.

2. New preschool providers who begin participation in the middle of a program year will submit a program calendar as part of their onboarding. They will submit a program calendar defining an entire year of programming and are expected to complete the designated days and hours remaining in that program calendar.

I. Overhead or Indirect Costs. Overhead or indirect costs represent the expenses of doing business that are not readily identified with the delivery of preschool services, but are necessary for the general operation of eligible preschool providers. Preschool providers shall be allowed to expend a reasonable allocation on overhead or indirect costs, not to exceed fifteen percent (15%) of the total preschool program per-child rate funding received.

J. Per-Child Rate Funding Formula. The Colorado Universal Preschool Program per-child rate formula is expressed as ((PKC*PS*PA) + (PKC*(1-PS))*CL)* LIC*GF*QE*IEF). The formula includes a base rate cost of high quality preschool services (PKC) with specific parameters adjusting for personnel costs (PS) and variances to costs by region (PA). Further adjustments are applied for local costs of living (CL), considerations of a community's poverty level (LIC), geographical factors (GF), increased quality of services (QE), and an annual adjustment for inflation and economic factors (IEF).

1. PKC (pre-k costs) means the base cost of providing high quality preschool services based on unique characteristics of provider settings and the families/children they serve, recognized best practices and evidence-based standards, pursuant to sections 26.5-4-208(1)(a)(I) and 26.5-4-205(2), C.R.S.

2. PS (personnel share) means the share of costs accounted for by personnel costs, including salaries and benefits.

3. PA (personnel adjustment) means the adjustment factor that accounts for regional variations in personnel costs.

4. CL (cost of living) means a cost-of-living adjustment determined at the county level to reflect evolving local economic realities and support recruitment and retention of a high-quality workforce, as required by section 26.5-4-208(1)(a)(III), C.R.S.

5. LIC (low income by county) means the parameter determined at the county level to account for the identification of children in low-income families, as defined by rule section 4.105(A) and pursuant to section 26.5-4-208(1)(a)(IV), C.R.S.

6. GF (geographic factor) means the factor that adjusts for regional differences and circumstances unique to rural communities that result in variations in the cost of providing preschool services, which may include difficulties in achieving economies of scale in rural areas and in recruiting and retaining preschool educators, as required by section 26.5-4-208(1)(a)(III), C.R.S.

7. QE (quality enhancement) means the component that accounts for the cost of providing professional development activities and salary incentives to teachers and paraprofessionals pursuant to sections 26.5-4-208(1)(a)(I) and 26.5-4-205(2), C.R.S.

8. IEF (inflation and economic factors) means the annual rate of inflation, estimated for the Denver-Aurora-Lakewood core based statistical area, and other state economic factors, including but not limited to personal income, population and employment factors, and construction cost indicators, adjusted by the Department for any other financial forecasts and circumstances directly impacting available resources for the preschool program. The Department will evaluate and consider data from the Bureau of Economic Analysis, Colorado Department of Local Affairs, United States Census Bureau, and United States Bureau of Labor Statistics to develop the IEF annually as part of the per-child rate setting process.

§ 4.109 *PROVIDER MATCHING CRITERIA.*

A. Eligible preschool providers may utilize the following programmatic preferences to the deferred acceptance algorithm component of the matching process:

1. Cooperative preschool providers requiring participation in the cooperative;

2. School districts maintaining enrollment consistent with their established boundaries;

3. Participating preschool providers reserving placements for a student(s) with an Individualized Education Program (IEP) to ensure conformity with obligations incurred pursuant to the Individuals with Disabilities Education Act, 20 U.S.C. section 1400 (2004), or the Exceptional Children's Education Act, Article 20 of Title 22, C.R.S.;

4. Head Start programs' adhering to any applicable federal law requirements including eligibility requirements;

5. Participating preschool providers granting preference to an eligible child of one (1) of their employees;

6. Participating preschool providers granting preference to an eligible child to ensure continuity-of-care for that child;

7. Participating preschool providers granting preference to an eligible child to keep siblings similarly located;

8. Participating preschool providers granting preference to an eligible child who is a dual-language learner, to ensure proper delivery of services to that child; and

9. Participating preschool providers may grant preference to an eligible child based: on the child and/or family being a part of a specific community; having specific competencies or interests; having a specific relationship to the provider, provider's employees, students, or their families; receiving specific public assistance benefits; or participating in a specific activity. Participating preschool providers seeking to utilize this preference, must ensure:

a. That the specific community, competencies or interests, relationship, public assistance benefit, or activity being required of children and/or families who attend, is a requirement of all participating children and/or families.

b. That implementation of requiring the specific community, competencies or interests, relationship, public assistance benefit, or activity does not conflict with any other provision of the Colorado Universal Preschool Program statutes at sections 26.5-4-201 through 26.5-4-211, C.R.S., nor with any other applicable law or regulation.

c. Examples of approved preferences include, but are not limited to: participating preschool providers who require a focus in a certain knowledge area (such as science, technology, engineering, and math ("STEM")); providers who serve families with a family member who works or attends school at a specific site(s) or location(s); providers who serve families within a specific geographical catchment area; providers who require a certain amount of volunteering or participation by the participating family; providers who require certain vaccinations for the health and safety of its staff and students; and providers who serve families who are receiving a specific public assistance benefit(s) such as housing assistance.

B. In utilizing these programmatic preferences, eligible preschool providers must still comply with rule section 4.110(B).

§ 4.110 *QUALITY STANDARDS - GENERAL REQUIREMENTS AND PROVISIONS.*

A. All eligible preschool providers must meet the following minimum requirements as a condition of participating in the Preschool Program:

1. The minimum number of planned teacher-pupil contact hours of instructional services scheduled to be delivered by an eligible preschool provider for all students enrolled in the Preschool Program shall not be less than three-hundred and sixty (360) hours per program year for part-day programs; four-hundred and fifty (450) hours per program year for half-day programs; and nine-hundred (900) hours per program year for full-day programs.

a. When fulfilling this requirement, eligible preschool providers may take into consideration the number of available teacher-pupil contact hours left in the program year based on when a child enrolls in the Preschool Program, and this requirement shall not be construed as requiring the minimum number of planned teacher-pupil contact hours of instructional services (per rule section 4.110.A.1 above) when a child is not enrolled in the Preschool Program for the entire program year.

B. Eligible preschool providers must ensure that children receive an equal opportunity to enroll and receive universal preschool services regardless of race, ethnicity, religious affiliation, sexual orientation, gender identity, lack of housing, income level, or disability, as such characteristics and circumstances apply to the child or the child's family.

C. Eligible preschool providers shall maintain educator-to-child ratios and group sizes in accordance with the applicable maximum staff-child ratios and group sizes determined in the "Rules Regulating Child Care Centers" located in 8 CCR 1402-1, rule section 2.217(A), or "Rules Regulating Family Child Care Homes" located in 8 CCR 1402-1, rule sections 2.305 through 2.310. Beginning on July 1, 2026, no classroom of an eligible preschool provider shall have an educator-to-child ratio that exceeds 1:11. The approved maximum educator-to-child ratios and group sizes of this rule shall not supersede the maximum staff-child ratios and group sizes allowed, based on a primary provider's license type for a family child care home, as determined in 8 CCR 1402-1, rule sections 2.305 through 2.310.

1. Exceptions to the maximum educator-to-child ratios in this rule may be applied if an eligible preschool provider has a quality rating of four (4) or five (5) from the Department's Colorado Shines Quality Rating and Improvement System, and will be allowed to serve children up to the maximum staff-child ratio as determined in 8 CCR 1402-1, rule section 2.217(A).

2. If an eligible preschool provider has a Department approved wavier pursuant to 8 CCR 1402-1, rule section 2.115, the eligible preschool provider is permitted to serve larger group sizes than allowed per rule section 4.110(C), provided the group sizes are in accordance with the terms of the waiver received, and all other requirements are met.

3. This rule section shall not restrict an eligible preschool provider from having multiple groups that are not separated from each other by permanent or portable dividers or walls, or limit any other conduct allowed in 8 CCR 1402-1 rule sections 2.217(A)(15)(a)-(f), provided all other requirements are met.

D. Qualifications for lead teachers.

1. Eligible preschool providers must ensure that all teachers, educators, or other employees are qualified in accordance with their applicable requirements identified in the "Rules Regulating Child Care Centers" located in 8 CCR 1402-1, rule section 2.216; or in accordance with the primary provider's license type for a Family Child Care Home, and the "Rules Regulating Family Child Care Homes" located in 8 CCR 1402-1, rule sections 2.311 through 2.315.

2. This rule section shall not prevent an eligible preschool provider from enacting additional requirements for their employees, provided the employee(s) meet all other qualifications as required by these rules.

E. Pursuant to section 22-33-106.1, C.R.S., all eligible preschool providers must abide by the limitations and procedures set forth regarding suspensions and expulsions for preschool through second (2nd) grade.

F. Educating Children with Disabilities.

1. All eligible preschool providers educating children with disabilities shall ensure full compliance with the "Standards for Placement of Preschoolers with IEPs in Educational Programs (June 24, 2024)", herein incorporated by reference. No later editions or amendments are incorporated. These standards are available at no cost from the Colorado Department of Education, 201 East Colfax Avenue, Denver, CO 80203; or at https://www.cde.state.co.us/cdesped/appropriateedenvironments. These standards are also available for inspection and copying at the Colorado Department of Early Childhood, 710 S. Ash Street, Bldg. C, Denver, Colorado 80246, during regular business hours.

2. Eligible preschool providers educating children with disabilities shall ensure compliance with the applicable provisions of the "Individuals with Disabilities Education Act" (IDEA), as incorporated by reference in rule section 4.103(Z).

3. Eligible preschool providers educating children with disabilities shall comply with sections 22-20-101 through 22-20-206, C.R.S., known as the "Exceptional Children's Educational Act" (ECEA); and with the applicable provisions of the Colorado Department of Education's Rules for the Administration of the Exceptional Children's Educational Act, 1 CCR 301-8, effective May 15, 2025, which are hereby incorporated by reference. No later editions or amendments are incorporated. These rules are available for public inspection during regular business hours and at no cost from the Colorado Department of Education, located at 201 East Colfax Avenue, Denver, Colorado 80203, and are also available online at https://www.coloradosos.gov. Copies are available for public inspection and copying at no cost during regular business hours at the Colorado Department of Early Childhood, located at 710 S. Ash Street, Building C, Denver, Colorado 80246.

a. This includes, but is not limited to, an eligible preschool provider's obligation to ensure children with disabilities are served in a manner which conforms to the training, certification, referral, identification, licensing, authorization, and dispute resolution requirements found in 1 CCR 301-8, rule section 3.02(3).

§ 4.111 *QUALITY STANDARDS – INSTRUCTIONAL PRACTICE REQUIREMENTS.*

A. Learning Approaches.

1. Beginning July 1, 2026, and continuing thereafter, all eligible preschool providers must utilize an early learning and assessment approach approved and included in the Resource Bank by the Department, and that:

a. Aligns with the Colorado Early Learning and Development Guidelines and the Colorado Academic Standards, incorporated by reference in rule section 4.103(I) and (G), respectively;

b. Uses assessment findings for instructional decision-making;

c. Is culturally, developmentally, and linguistically appropriate;

d. Is inclusive of and appropriate for the diverse needs of each individual learner; and

e. Meets the requirements of section 26.5-4-205(3)(a)(I) through (IV), C.R.S.

B. On-Site Observations.

At least every three (3) years, eligible preschool providers will receive an independent on-site observation of environmental quality conducted by the Department. The Department will conduct these observations, in alignment with existing on-site observations performed pursuant to participation in Colorado Shines, the state quality rating and improvement system established pursuant to section 26.5-5-101, C.R.S. The Department shall conduct the observations only using staff who are trained in and familiar with assessing program environmental quality in the preschool setting. The Department and preschool provider shall ensure that observational methods and related resources that meet this requirement are pre-approved after consideration and review by the Department.

1. Measurement of a preschool provider's environmental quality shall include, but not be limited to:

a. The quality of adult-child and child-child interactions; and

b. The quality of the overall learning environment, including student and staff supportive services.

2. The Department shall ensure observations are conducted in an individualized and differentiated manner so that they are specific to each provider in supporting quality improvement for educators and classrooms while incorporating that provider's level of access to resources to ensure these standards are supported and implemented with fidelity.

C. This rule section does not affect an eligible preschool provider's right to engage in privately funded, inherently religious activity or affect the independence of eligible preschool providers, including any rights protected by the Colorado and U.S. Constitutions, and applicable law.

§ 4.112 *QUALITY STANDARDS - HEALTHY DEVELOPMENT REQUIREMENTS.*

A. Beginning July 1, 2026, and continuing thereafter, eligible preschool providers must meet the following requirements as a condition of participating in the Preschool Program:

1. Within six (6) months of participating in the Preschool Program, eligible preschool providers must create, make

publicly available and to the Department (either on the provider's website or in a handbook distributed to all participating families), and implement policies and procedures to ensure family access to the following services in an individualized manner taking into account what other services the child has received:

a. Voluntary developmental screening services (including vision, hearing, dental, and health as well as fine and gross motor, social-emotional, cognitive, and language);

b. Referrals for children and families seeking specialized services, upon request, except that any referrals being done for special education services must be done in conformity with rule sections 4.112.A.4.e and 4.110.F; and

c. Translation services for children and families to access information in their home language.

2. The Department, and preschool provider or entity or individual actually conducting the services, shall ensure that the assessments, tools, and related resources meet the requirements of this rule section 4.112(A)(1), and are pre-approved after consideration and review by the Department.

3. Eligible preschool providers will be responsible for ensuring the development of the policies and procedures as outlined in this rule section 4.112(A)(1), as well as ensuring family access to the screening services, referral processes, and translation services as described in this rule section 4.112(A)(1). The entity or individual actually conducting the screening services, referral processes, and/or translation services, are responsible for ensuring that those services are conducted using valid and reliable methods as described in this rule section 4.112(A)(4).

4. Any screening services, referral processes, or translation services administered, when appropriate, pursuant to this rule section 4.112(A)(1), must be conducted using valid and reliable screening tools and other related resources that are developmentally, culturally, and linguistically appropriate, and must:

a. Require, when appropriate, the screening services to be offered or coordinated within forty-five (45) calendar days of when a child first attends the eligible preschool provider;

b. Entail the use of research-based developmental standardized screening tools;

c. Meaningfully incorporate other information from family members, teachers, or other individuals with familiarity with the child's typical behavior;

d. Be tailored and conducted in a manner which promotes and allows for individualized usable information;

e. When involving a child suspected to need specialized instruction, the provider must comply with all Child Find referral procedures established by the Department of Education and refer the family to the Child Find contact in the child's Administrative Unit of attendance; and

f. Ensure that participating children and families have a pathway to access early childhood mental health programs.

5. All eligible preschool providers must notify families of the opportunity to participate in an annual survey of families' experiences in regard to screening, referral, and early childhood mental health best practices to be conducted by the Department.

§ 4.113 *QUALITY STANDARDS - FAMILY AND COMMUNITY ENGAGEMENT REQUIREMENTS.*

A. Beginning July 1, 2026, and continuing thereafter, eligible preschool providers must meet the following requirements as a condition of participating in the Preschool Program:

1. Within six (6) months of participating in the Preschool Program, preschool providers must create, make available publicly (either on the provider's website or in a handbook distributed to all participating families) and for the Department, and implement policies and procedures which ensure:

a. The usage of interpreters or other language resources to effectively communicate with families in their home language;

b. Seeking input from participating families on priorities, interests, home routines, and cultural and social practices;

c. Engaging families around goals which inform the preschool provider's interactions and instruction with children, including dual-language learners;

d. Engaging families and community partners in decision-making regarding the preschool provider's operations;

e. Involving families in the transition of their children into and out of the Preschool Program, including between classrooms within the Preschool Program and into Kindergarten; and

f. The quality of program-family and program-staff interactions.

2. All eligible preschool providers must notify families of the opportunity to participate in an annual survey of families' experiences with meaningful and culturally appropriate involvement in the program to be conducted by the Department.

§ 4.114 *QUALITY STANDARDS - PROFESSIONAL DEVELOPMENT REQUIREMENTS.*

A. The Department shall ensure that professional development hours required pursuant to this rule section be in alignment with Colorado's Competencies for Early Childhood Educators and Professionals, including alignment with the competency areas as defined in 8 CCR 1402-1 rule sections 2.213(M) and 2.312(R)(1).

1. This includes alignment with the seven (7) competency areas of:

a. Child growth and development, and learning;
b. Child observation and assessment;
c. Family and community partnerships;
d. Social-emotional health and development promotion;
e. Health, safety and nutrition;
f. Professional practice; and
g. Teaching practices.

2. Professional development courses taken to complete the requirements of 8 CCR 1402-1, rule sections 2.213(M) or 2.312(R)(1), to meet the Child Care Licensing requirements of fifteen (15) clock hours annually, may also be used to satisfy the professional development requirements of this rule section, provided all other requirements are met.

3. Lead teachers licensed by the Colorado Department of Education may use the professional development courses required to renew their teaching license pursuant to article 60.5 of title 22, C.R.S., to also satisfy the professional development requirements of this rule section, if applicable.

4. Nothing in this rule section shall be construed as requiring these trainings for staff aides of a family child care home or child care center, or individuals who are employed or volunteer only on a short term basis.

5. Verifying documentation shall be submitted demonstrating completion of the applicable professional development in accordance with policies and procedures established by the Department and published by the Department in an easily accessible manner including, but not limited to, being posted on the Department's website. These verification policies and procedures by the Department may include, but are not limited to, attestations, maintenance of an individual employee's profile within the Colorado Shines Professional Development Information System (PDIS), and the submission by employees or providers of any required information requested by the Department in a timely manner.

B. All Staff Professional Development Requirements.

Beginning July 1, 2026, within twelve (12) months of employment at an eligible preschool provider, all staff responsible for the direct care of eligible children receiving preschool services (including primary providers, applicant 2s, equally qualified providers, equally qualified substitutes, and substitutes of a family child care home, and early childhood teachers and assistant early childhood teachers of a child care center) must complete annually, at a minimum:

1. Four (4) hours of professional development in the competency area of social-emotional health and development promotion, with at least one (1) of those hours of training in trauma-informed practices specific to each staff member's professional role;

2. Two (2) hours of professional development in the competency area of teaching practices; and

3. Two (2) hours of professional development in the competency area of family and community partnerships, with at least one (1) of those hours of training in suspension and expulsion practices.

C. Instructional Supervisor Professional Development

Beginning July 1, 2026, within twelve (12) months of employment at an eligible preschool provider, instructional supervisors must complete annually, at a minimum, at least three (3) hours of professional development in the competency areas of child observation and assessment, and teaching practices, with at least one (1) hour of training in each competency area.

1. Any educator who is required to complete both the all-staff and instructional supervisor professional development requirements contained in rule sections 4.114(B) and (C), may use hours of professional development to fulfill both requirements concurrently, provided the applicable requirements are met.

The petitioners, not the respondent

28 U.S.C. § 1254

Cited by the petitioners 2 times (2 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

Courts of appeals; certiorari; certified questions

(1) By writ of certiorari granted upon the petition of any party to any civil or criminal case, before or after rendition of judgment or decree;

(2) By certification at any time by a court of appeals of any question of law in any civil or criminal case as to which instructions are desired, and upon such certification the Supreme Court may give binding instructions or require the entire record to be sent up for decision of the entire matter in controversy.

Cal. Civ. Code § 51

Cited by the petitioners 1 times (1 filings) and their amici 2 (1); by the respondent 0 (0) and its amici 2 (2).

(current text, 2025 edition; retrieved 2026-10-28)

(a) This section shall be known, and may be cited, as the Unruh Civil Rights Act.

(b) All persons within the jurisdiction of this state are free and equal, and no matter what their sex, race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, sexual orientation, citizenship, primary language, or immigration status are entitled to the full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever.

(c) This section shall not be construed to confer any right or privilege on a person that is conditioned or limited by law or that is applicable alike to persons of every sex, color, race, religion, ancestry, national origin, disability, medical condition, marital status, sexual orientation, citizenship, primary language, or immigration status, or to persons regardless of their genetic information.

(d) Nothing in this section shall be construed to require any construction, alteration, repair, structural or otherwise, or modification of any sort whatsoever, beyond that construction, alteration, repair, or modification that is otherwise required by other provisions of law, to any new or existing establishment, facility, building, improvement, or any other structure, nor shall anything in this section be construed to augment, restrict, or alter in any way the authority of the State Architect to require construction, alteration, repair, or modifications that the State Architect otherwise possesses pursuant to other laws.

(e) For purposes of this section:

(1) "Disability" means any mental or physical disability as defined in Sections 12926 and 12926.1 of the Government Code.

(2) (A) "Genetic information" means, with respect to any individual, information about any of the following:

(i) The individual's genetic tests.

(ii) The genetic tests of family members of the individual.

(iii) The manifestation of a disease or disorder in family members of the individual.

(B) "Genetic information" includes any request for, or receipt of, genetic services, or participation in clinical research that includes genetic services, by an individual or any family member of the individual.

(C) "Genetic information" does not include information about the sex or age of any individual.

(3) "Medical condition" has the same meaning as defined in subdivision (i) of Section 12926 of the Government Code.

(4) "Race" is inclusive of traits associated with race, including, but not limited to, hair texture and protective hairstyles. "Protective hairstyles" includes, but is not limited to, such hairstyles as braids, locs, and twists.

(5) "Religion" includes all aspects of religious belief, observance, and practice.

(6) "Sex" includes, but is not limited to, pregnancy, childbirth, or medical conditions related to pregnancy or childbirth. "Sex" also includes, but is not limited to, a person's gender. "Gender" means sex, and includes a person's gender identity and gender expression. "Gender expression" means a person's gender-related appearance and behavior whether or not stereotypically associated with the person's assigned sex at birth.

(7) "Sex, race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, sexual orientation, citizenship, primary language, or immigration status" includes any of the following:

(A) Any combination of those characteristics.

(B) A perception that the person has any particular characteristic or characteristics within the listed categories or any combination of those characteristics.

(C) A perception that the person is associated with a person who has, or is perceived to have, any particular characteristic or characteristics, or any combination of characteristics, within the listed categories.

(8) "Sexual orientation" has the same meaning as defined in subdivision (s) of Section 12926 of the Government Code.

(f) A violation of the right of any individual under the federal Americans with Disabilities Act of 1990 (Public Law 101-336) shall also constitute a violation of this section.

(g) Verification of immigration status and any discrimination based upon verified immigration status, where required by federal law, shall not constitute a violation of this section.

(h) Nothing in this section shall be construed to require the provision of services or documents in a language other than English, beyond that which is otherwise required by other provisions of federal, state, or local law, including Section 1632.

Amended by Stats. 2024, Ch. 779, Sec. 2.5. (SB 1137) Effective January 1, 2025.

Cal. Civ. Code § 51.2

Cited by the petitioners 1 times (1 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

(current text, 2025 edition; retrieved 2026-10-28)

(a) Section 51 shall be construed to prohibit a business establishment from discriminating in the sale or rental of housing based upon age. Where accommodations are designed to meet the physical and social needs of senior citizens, a business establishment may establish and preserve that housing for senior citizens, pursuant to Section 51.3, except housing as to which Section 51.3 is preempted by the prohibition in the federal Fair Housing Amendments Act of 1988 (Public Law 100-430) and implementing regulations against discrimination on the basis of familial status. For accommodations constructed before February 8, 1982, that meet all the criteria for senior citizen housing specified in Section 51.3, a business establishment may establish and preserve that housing development for senior citizens without the housing development being designed to meet physical and social needs of senior citizens.

(b) This section is intended to clarify the holdings in Marina Point, Ltd. v. Wolfson (1982) 30 Cal.3d 72 and O'Connor v. Village Green Owners Association (1983) 33 Cal.3d 790.

(c) This section shall not apply to the County of Riverside.

(d) A housing development for senior citizens constructed on or after January 1, 2001, shall be presumed to be designed to meet the physical and social needs of senior citizens if it includes all of the following elements:

(1) Entryways, walkways, and hallways in the common areas of the development, and doorways and paths of access to and within the housing units, shall be as wide as required by current laws applicable to new multifamily housing construction for provision of access to persons using a standard-width wheelchair.

(2) Walkways and hallways in the common areas of the development shall be equipped with standard height railings or grab bars to assist persons who have difficulty with walking.

(3) Walkways and hallways in the common areas shall have lighting conditions which are of sufficient brightness to assist persons who have difficulty seeing.

(4) Access to all common areas and housing units within the development shall be provided without use of stairs, either by means of an elevator or sloped walking ramps.

(5) The development shall be designed to encourage social contact by providing at least one common room and at least some common open space.

(6) Refuse collection shall be provided in a manner that requires a minimum of physical exertion by residents.

(7) The development shall comply with all other applicable requirements for access and design imposed by law, including, but not limited to, the Fair Housing Act (42 U.S.C. Sec. 3601 et seq.), the Americans with Disabilities Act (42 U.S.C. Sec. 12101 et seq.), and the regulations promulgated at Title 24 of the California Code of Regulations that relate to access for persons with disabilities or handicaps. Nothing in this section shall be construed to limit or reduce any right or obligation applicable under those laws.

(e) Selection preferences based on age, imposed in connection with a federally approved housing program, do not constitute age discrimination in housing.

Amended by Stats. 2010, Ch. 524, Sec. 2. (SB 1252) Effective January 1, 2011.

The respondent, not the petitioners

15 U.S.C. § 1691

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Scope of prohibition

(a) *Activities constituting discrimination.* It shall be unlawful for any creditor to discriminate against any applicant, with respect to any aspect of a credit transaction—

(1) on the basis of race, color, religion, national origin, sex or marital status, or age (provided the applicant has the capacity to contract);

(2) because all or part of the applicant's income derives from any public assistance program; or

(3) because the applicant has in good faith exercised any right under this chapter.

(b) *Activities not constituting discrimination.* It shall not constitute discrimination for purposes of this subchapter for a creditor—

(1) to make an inquiry of marital status if such inquiry is for the purpose of ascertaining the creditor's rights and remedies applicable to the particular extension of credit and not to discriminate in a determination of credit-worthiness;

(2) to make an inquiry of the applicant's age or of whether the applicant's income derives from any public assistance program if such inquiry is for the purpose of determining the amount and probable continuance of income levels, credit history, or other pertinent element of credit-worthiness as provided in regulations of the Bureau;

(3) to use any empirically derived credit system which considers age if such system is demonstrably and statistically

sound in accordance with regulations of the Bureau, except that in the operation of such system the age of an elderly applicant may not be assigned a negative factor or value;

(4) to make an inquiry or to consider the age of an elderly applicant when the age of such applicant is to be used by the creditor in the extension of credit in favor of such applicant; or

(5) to make an inquiry under section 1691c–2 of this title, in accordance with the requirements of that section.

(c) *Additional activities not constituting discrimination.* It is not a violation of this section for a creditor to refuse to extend credit offered pursuant to—

(1) any credit assistance program expressly authorized by law for an economically disadvantaged class of persons;

(2) any credit assistance program administered by a nonprofit organization for its members or an economically disadvantaged class of persons; or

(3) any special purpose credit program offered by a profit-making organization to meet special social needs which meets standards prescribed in regulations by the Bureau;

if such refusal is required by or made pursuant to such program.

(d) *Reason for adverse action; procedure applicable; "adverse action" defined.*

(1) Within thirty days (or such longer reasonable time as specified in regulations of the Bureau for any class of credit transaction) after receipt of a completed application for credit, a creditor shall notify the applicant of its action on the application.

(2) Each applicant against whom adverse action is taken shall be entitled to a statement of reasons for such action from the creditor. A creditor satisfies this obligation by—

(A) providing statements of reasons in writing as a matter of course to applicants against whom adverse action is taken; or

(B) giving written notification of adverse action which discloses (i) the applicant's right to a statement of reasons within thirty days after receipt by the creditor of a request made within sixty days after such notification, and (ii) the identity of the person or office from which such statement may be obtained. Such statement may be given orally if the written notification advises the applicant of his right to have the statement of reasons confirmed in writing on written request.

(3) A statement of reasons meets the requirements of this section only if it contains the specific reasons for the adverse action taken.

(4) Where a creditor has been requested by a third party to make a specific extension of credit directly or indirectly to an applicant, the notification and statement of reasons required by this subsection may be made directly by such creditor, or indirectly through the third party, provided in either case that the identity of the creditor is disclosed.

(5) The requirements of paragraph (2), (3), or (4) may be satisfied by verbal statements or notifications in the case of any creditor who did not act on more than one hundred and fifty applications during the calendar year preceding the calendar year in which the adverse action is taken, as determined under regulations of the Bureau.

(6) For purposes of this subsection, the term "adverse action" means a denial or revocation of credit, a change in the terms of an existing credit arrangement, or a refusal to grant credit in substantially the amount or on substantially the terms requested. Such term does not include a refusal to extend additional credit under an existing credit arrangement where the applicant is delinquent or otherwise in default, or where such additional credit would exceed a previously established credit limit.

(e) *Copies furnished to applicants.*

(1) *In general.* Each creditor shall furnish to an applicant a copy of any and all written appraisals and valuations developed in connection with the applicant's application for a loan that is secured or would have been secured by a first lien on a dwelling promptly upon completion, but in no case later than 3 days prior to the closing of the loan, whether the creditor grants or denies the applicant's request for credit or the application is incomplete or withdrawn.

(2) *Waiver.* The applicant may waive the 3 day requirement provided for in paragraph (1), except where otherwise required in law.

(3) *Reimbursement.* The applicant may be required to pay a reasonable fee to reimburse the creditor for the cost of the appraisal, except where otherwise required in law.

(4) *Free copy.* Notwithstanding paragraph (3), the creditor shall provide a copy of each written appraisal or valuation at no additional cost to the applicant.

(5) *Notification to applicants.* At the time of application, the creditor shall notify an applicant in writing of the right to receive a copy of each written appraisal and valuation under this subsection.

(6) *Valuation defined.* For purposes of this subsection, the term "valuation" shall include any estimate of the value of a dwelling developed in connection with a creditor's decision to provide credit, including those values developed pursuant to a policy of a government sponsored enterprise or by an automated valuation model, a broker price opinion, or other methodology or mechanism.

15 U.S.C. § 37b

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Confirmation of antitrust status of graduate medical resident matching programs

(a) *Findings and purposes.*

(1) *Findings.* Congress makes the following findings:

(A) For over 50 years, most United States medical school seniors and the large majority of graduate medical education programs (popularly known as "residency programs") have chosen to use a matching program to match medical students with residency programs to which they have applied. These matching programs have been an integral part of an educational system that has produced the finest physicians and medical researchers in the world.

(B) Before such matching programs were instituted, medical students often felt pressure, at an unreasonably early stage of their medical education, to seek admission to, and accept offers from, residency programs. As a result, medical students often made binding commitments before they were in a position to make an informed decision about a medical specialty or a residency program and before residency programs could make an informed assessment of students' qualifications. This situation was inefficient, chaotic, and unfair and it often led to placements that did not serve the interests of either medical students or residency programs.

(C) The original matching program, now operated by the independent non-profit National Resident Matching Program and popularly known as "the Match", was developed and implemented more than 50 years ago in response to widespread student complaints about the prior process. This Program includes on its board of directors individuals nominated by medical student organizations as well as by major medical education and hospital associations.

(D) The Match uses a computerized mathematical algorithm, as students had recommended, to analyze the preferences of students and residency programs and match students with their highest preferences from among the available positions in residency programs that listed them. Students thus obtain a residency position in the most highly ranked program on their list that has ranked them sufficiently high among its preferences. Each year, about 85 percent of participating United States medical students secure a place in one of their top 3 residency program choices.

(E) Antitrust lawsuits challenging the matching process, regardless of their merit or lack thereof, have the potential to undermine this highly efficient, pro-competitive, and long-standing process. The costs of defending such litigation would divert the scarce resources of our country's teaching hospitals and medical schools from their crucial missions of patient care, physician training, and medical research. In addition, such costs may lead to abandonment of the matching process, which has effectively served the interests of medical students, teaching hospitals, and patients for over half a century.

(2) *Purposes.* It is the purpose of this section to—

(A) confirm that the antitrust laws do not prohibit sponsoring, conducting, or participating in a graduate medical education residency matching program, or agreeing to do so; and

(B) ensure that those who sponsor, conduct or participate in such matching programs are not subjected to the burden and expense of defending against litigation that challenges such matching programs under the antitrust laws.

(b) *Application of antitrust laws to graduate medical education residency matching programs.*

(1) *Definitions.* In this subsection:

(A) *Antitrust laws.* The term "antitrust laws"—

(i) has the meaning given such term in subsection (a) of section 12 of this title, except that such term includes section 45 of this title to the extent such section 45 applies to unfair methods of competition; and

(ii) includes any State law similar to the laws referred to in clause (i).

(B) *Graduate medical education program.* The term "graduate medical education program" means—

(i) a residency program for the medical education and training of individuals following graduation from medical school;

(ii) a program, known as a specialty or subspecialty fellowship program, that provides more advanced training; and

(iii) an institution or organization that operates, sponsors or participates in such a program.

(C) *Graduate medical education residency matching program.* The term "graduate medical education residency matching program" means a program (such as those conducted by the National Resident Matching Program) that, in connection with the admission of students to graduate medical education programs, uses an algorithm and matching rules to match students in accordance with the preferences of students and the preferences of graduate medical education programs.

(D) *Student.* The term "student" means any individual who seeks to be admitted to a graduate medical education program.

(2) *Confirmation of antitrust status.* It shall not be unlawful under the antitrust laws to sponsor, conduct, or participate in a graduate medical education residency matching program, or to agree to sponsor, conduct, or participate in such a program. Evidence of any of the conduct described in the preceding sentence shall not be admissible in Federal court to support any claim or action alleging a violation of the antitrust laws.

(3) *Applicability.* Nothing in this section shall be construed to exempt from the antitrust laws any agreement on the part of 2 or more graduate medical education programs to fix the amount of the stipend or other benefits received by students participating in such programs.

(c) *Effective date.* This section shall take effect on April 10, 2004, shall apply to conduct whether it occurs prior to, on, or after April 10, 2004, and shall apply to all judicial and administrative actions or other proceedings pending on April 10, 2004.

20 U.S.C. § 1400

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 3 (1) and its amici 10 (3).

Short title; findings; purposes

(a) *Short title.* This chapter may be cited as the "Individuals with Disabilities Education Act".

(b) *Omitted.*

(c) *Findings.* Congress finds the following:

(1) Disability is a natural part of the human experience and in no way diminishes the right of individuals to participate in or contribute to society. Improving educational results for children with disabilities is an essential element of our national policy of ensuring equality of opportunity, full participation, independent living, and economic self-sufficiency for individuals with disabilities.

(2) Before the date of enactment of the Education for All Handicapped Children Act of 1975 (Public Law 94–142), the educational needs of millions of children with disabilities were not being fully met because—

(A) the children did not receive appropriate educational services;

(B) the children were excluded entirely from the public school system and from being educated with their peers;

(C) undiagnosed disabilities prevented the children from having a successful educational experience; or

(D) a lack of adequate resources within the public school system forced families to find services outside the public school system.

(3) Since the enactment and implementation of the Education for All Handicapped Children Act of 1975, this chapter has been successful in ensuring children with disabilities and the families of such children access to a free appropriate public education and in improving educational results for children with disabilities.

(4) However, the implementation of this chapter has been impeded by low expectations, and an insufficient focus on applying replicable research on proven methods of teaching and learning for children with disabilities.

(5) Almost 30 years of research and experience has demonstrated that the education of children with disabilities can be made more effective by—

(A) having high expectations for such children and ensuring their access to the general education curriculum in the regular classroom, to the maximum extent possible, in order to—

(i) meet developmental goals and, to the maximum extent possible, the challenging expectations that have been established for all children; and

(ii) be prepared to lead productive and independent adult lives, to the maximum extent possible;

(B) strengthening the role and responsibility of parents and ensuring that families of such children have meaningful opportunities to participate in the education of their children at school and at home;

(C) coordinating this chapter with other local, educational service agency, State, and Federal school improvement efforts, including improvement efforts under the Elementary and Secondary Education Act of 1965 [20 U.S.C. 6301 et seq.], in order to ensure that such children benefit from such efforts and that special education can become a service for such children rather than a place where such children are sent;

(D) providing appropriate special education and related services, and aids and supports in the regular classroom, to such children, whenever appropriate;

(E) supporting high-quality, intensive preservice preparation and professional development for all personnel who work with children with disabilities in order to ensure that such personnel have the skills and knowledge necessary to improve the academic achievement and functional performance of children with disabilities, including the use of scientifically based instructional practices, to the maximum extent possible;

(F) providing incentives for whole-school approaches, scientifically based early reading programs, positive behavioral interventions and supports, and early intervening services to reduce the need to label children as disabled in order to address the learning and behavioral needs of such children;

(G) focusing resources on teaching and learning while reducing paperwork and requirements that do not assist in improving educational results; and

(H) supporting the development and use of technology, including assistive technology devices and assistive technology services, to maximize accessibility for children with disabilities.

(6) While States, local educational agencies, and educational service agencies are primarily responsible for providing an education for all children with disabilities, it is in the national interest that the Federal Government have a supporting role in assisting State and local efforts to educate children with disabilities in order to improve results for such children and to ensure equal protection of the law.

(7) A more equitable allocation of resources is essential for the Federal Government to meet its responsibility to provide an equal educational opportunity for all individuals.

(8) Parents and schools should be given expanded opportunities to resolve their disagreements in positive and constructive ways.

(9) Teachers, schools, local educational agencies, and States should be relieved of irrelevant and unnecessary paperwork burdens that do not lead to improved educational outcomes.

(10)

(A) The Federal Government must be responsive to the growing needs of an increasingly diverse society.

(B) America's ethnic profile is rapidly changing. In 2000, 1 of every 3 persons in the United States was a member of a minority group or was limited English proficient.

(C) Minority children comprise an increasing percentage of public school students.

(D) With such changing demographics, recruitment efforts for special education personnel should focus on increasing the participation of minorities in the teaching profession in order to provide appropriate role models with sufficient knowledge to address the special education needs of these students.

(11)

(A) The limited English proficient population is the fastest growing in our Nation, and the growth is occurring in many parts of our Nation.

(B) Studies have documented apparent discrepancies in the levels of referral and placement of limited English proficient children in special education.

(C) Such discrepancies pose a special challenge for special education in the referral of, assessment of, and provision of services for, our Nation's students from non-English language backgrounds.

(12)

(A) Greater efforts are needed to prevent the intensification of problems connected with mislabeling and high dropout rates among minority children with disabilities.

(B) More minority children continue to be served in special education than would be expected from the percentage of minority students in the general school population.

(C) African-American children are identified as having intellectual disabilities and emotional disturbance at rates greater than their White counterparts.

(D) In the 1998–1999 school year, African-American children represented just 14.8 percent of the population aged 6 through 21, but comprised 20.2 percent of all children with disabilities.

(E) Studies have found that schools with predominately White students and teachers have placed disproportionately high numbers of their minority students into special education.

(13)

(A) As the number of minority students in special education increases, the number of minority teachers and related services personnel produced in colleges and universities continues to decrease.

(B) The opportunity for full participation by minority individuals, minority organizations, and Historically Black Colleges and Universities in awards for grants and contracts, boards of organizations receiving assistance under this chapter, peer review panels, and training of professionals in the area of special education is essential to obtain greater success in the education of minority children with disabilities.

(14) As the graduation rates for children with disabilities continue to climb, providing effective transition services to promote successful post-school employment or education is an important measure of accountability for children with disabilities.

(d) *Purposes.* The purposes of this chapter are—

(1)

(A) to ensure that all children with disabilities have available to them a free appropriate public education that emphasizes special education and related services designed to meet their unique needs and prepare them for further education, employment, and independent living;

(B) to ensure that the rights of children with disabilities and parents of such children are protected; and

(C) to assist States, localities, educational service agencies, and Federal agencies to provide for the education of all children with disabilities;

(2) to assist States in the implementation of a statewide, comprehensive, coordinated, multidisciplinary, interagency

system of early intervention services for infants and toddlers with disabilities and their families;

(3) to ensure that educators and parents have the necessary tools to improve educational results for children with disabilities by supporting system improvement activities; coordinated research and personnel preparation; coordinated technical assistance, dissemination, and support; and technology development and media services; and

(4) to assess, and ensure the effectiveness of, efforts to educate children with disabilities.

20 U.S.C. § 1411

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 1 (1).

Authorization; allotment; use of funds; authorization of appropriations

(a) *Grants to States.*

(1) *Purpose of grants.* The Secretary shall make grants to States, outlying areas, and freely associated States, and provide funds to the Secretary of the Interior, to assist them to provide special education and related services to children with disabilities in accordance with this subchapter.

(2) *Maximum amount.* The maximum amount of the grant a State may receive under this section—

(A) for fiscal years 2005 and 2006 is—

(i) the number of children with disabilities in the State who are receiving special education and related services—

(I) aged 3 through 5 if the State is eligible for a grant under section 1419 of this title; and

(II) aged 6 through 21; multiplied by

(ii) 40 percent of the average per-pupil expenditure in public elementary schools and secondary schools in the United States; and

(B) for fiscal year 2007 and subsequent fiscal years is—

(i) the number of children with disabilities in the 2004–2005 school year in the State who received special education and related services—

(I) aged 3 through 5 if the State is eligible for a grant under section 1419 of this title; and

(II) aged 6 through 21; multiplied by

(ii) 40 percent of the average per-pupil expenditure in public elementary schools and secondary schools in the United States; adjusted by

(iii) the rate of annual change in the sum of—

(I) 85 percent of such State's population described in subsection (d)(3)(A)(i)(II); and

(II) 15 percent of such State's population described in subsection (d)(3)(A)(i)(III).

(b) *Outlying areas and freely associated States; Secretary of the Interior.*

(1) *Outlying areas and freely associated States.*

(A) *Funds reserved.* From the amount appropriated for any fiscal year under subsection (i), the Secretary shall reserve not more than 1 percent, which shall be used as follows:

(i) To provide assistance to the outlying areas in accordance with their respective populations of individuals aged 3 through 21.

(ii)

(I) To provide each freely associated State a grant so that no freely associated State receives a lesser share of the total funds reserved for the freely associated State than the freely associated State received of those funds for fiscal year 2023.

(II) Each freely associated State shall establish its eligibility under this subparagraph consistent with the requirements for a State under section 1412 of this title.

(III) The funds provided to each freely associated State under this subchapter may be used to provide, to each infant or toddler with a disability (as defined in section 1432 of this title), either a free appropriate public education, consistent with section 1412 of this title, or early intervention services consistent with subchapter III, notwithstanding the application and eligibility requirements of sections 1431(2), 1435, and 1437 of this title.

(B) *Special rule.* The provisions of Public Law 95–134, permitting the consolidation of grants by the outlying areas, shall not apply to funds provided to the outlying areas or the freely associated States under this section.

(C) *Definition.* In this paragraph, the term "freely associated States" means the Republic of the Marshall Islands, the Federated States of Micronesia, and the Republic of Palau.

(2) *Secretary of the Interior.* From the amount appropriated for any fiscal year under subsection (i), the Secretary shall reserve 1.226 percent to provide assistance to the Secretary of the Interior in accordance with subsection (h).

(c) *Technical assistance.*

(1) *In general.* The Secretary may reserve not more than ½ of 1 percent of the amounts appropriated under this subchapter for each fiscal year to provide technical assistance activities authorized under section 1416(i) of this title.

(2) *Maximum amount.* The maximum amount the Secretary may reserve under paragraph (1) for any fiscal year is

$25,000,000, cumulatively adjusted by the rate of inflation as measured by the percentage increase, if any, from the preceding fiscal year in the Consumer Price Index For All Urban Consumers, published by the Bureau of Labor Statistics of the Department of Labor.

(d) *Allocations to States.*

(1) *In general.* After reserving funds for technical assistance, and for payments to the outlying areas, the freely associated States, and the Secretary of the Interior under subsections (b) and (c) for a fiscal year, the Secretary shall allocate the remaining amount among the States in accordance with this subsection.

(2) *Special rule for use of fiscal year 1999 amount.* If a State received any funds under this section for fiscal year 1999 on the basis of children aged 3 through 5, but does not make a free appropriate public education available to all children with disabilities aged 3 through 5 in the State in any subsequent fiscal year, the Secretary shall compute the State's amount for fiscal year 1999, solely for the purpose of calculating the State's allocation in that subsequent year under paragraph (3) or (4), by subtracting the amount allocated to the State for fiscal year 1999 on the basis of those children.

(3) *Increase in funds.* If the amount available for allocations to States under paragraph (1) for a fiscal year is equal to or greater than the amount allocated to the States under this paragraph for the preceding fiscal year, those allocations shall be calculated as follows:

(A) *Allocation of increase.*

(i) *In general.* Except as provided in subparagraph (B), the Secretary shall allocate for the fiscal year—

(I) to each State the amount the State received under this section for fiscal year 1999;

(II) 85 percent of any remaining funds to States on the basis of the States' relative populations of children aged 3 through 21 who are of the same age as children with disabilities for whom the State ensures the availability of a free appropriate public education under this subchapter; and

(III) 15 percent of those remaining funds to States on the basis of the States' relative populations of children described in subclause (II) who are living in poverty.

(ii) *Data.* For the purpose of making grants under this paragraph, the Secretary shall use the most recent population data, including data on children living in poverty, that are available and satisfactory to the Secretary.

(B) *Limitations.* Notwithstanding subparagraph (A), allocations under this paragraph shall be subject to the following:

(i) *Preceding year allocation.* No State's allocation shall be less than its allocation under this section for the preceding fiscal year.

(ii) *Minimum.* No State's allocation shall be less than the greatest of—

(I) the sum of—

(aa) the amount the State received under this section for fiscal year 1999; and

(bb) $^1/_3$ of 1 percent of the amount by which the amount appropriated under subsection (i) for the fiscal year exceeds the amount appropriated for this section for fiscal year 1999;

(II) the sum of—

(aa) the amount the State received under this section for the preceding fiscal year; and

(bb) that amount multiplied by the percentage by which the increase in the funds appropriated for this section from the preceding fiscal year exceeds 1.5 percent; or

(III) the sum of—

(aa) the amount the State received under this section for the preceding fiscal year; and

(bb) that amount multiplied by 90 percent of the percentage increase in the amount appropriated for this section from the preceding fiscal year.

(iii) *Maximum.* Notwithstanding clause (ii), no State's allocation under this paragraph shall exceed the sum of—

(I) the amount the State received under this section for the preceding fiscal year; and

(II) that amount multiplied by the sum of 1.5 percent and the percentage increase in the amount appropriated under this section from the preceding fiscal year.

(C) *Ratable reduction.* If the amount available for allocations under this paragraph is insufficient to pay those allocations in full, those allocations shall be ratably reduced, subject to subparagraph (B)(i).

(4) *Decrease in funds.* If the amount available for allocations to States under paragraph (1) for a fiscal year is less than the amount allocated to the States under this section for the preceding fiscal year, those allocations shall be calculated as follows:

(A) *Amounts greater than fiscal year 1999 allocations.* If the amount available for allocations is greater than the amount allocated to the States for fiscal year 1999, each State shall be allocated the sum of—

(i) the amount the State received under this section for fiscal year 1999; and

(ii) an amount that bears the same relation to any remaining funds as the increase the State received under this section for the preceding fiscal year over fiscal year 1999 bears to the total of all such increases for all States.

(B) *Amounts equal to or less than fiscal year 1999 allocations.*

(i) *In general.* If the amount available for allocations under this paragraph is equal to or less than the amount allocated to the States for fiscal year 1999, each State shall be allocated the amount the State received for fiscal year 1999.

(ii) *Ratable reduction.* If the amount available for allocations under this paragraph is insufficient to make the allocations described in clause (i), those allocations shall be ratably reduced.

(e) *State-level activities.*

(1) *State administration.*

(A) *In general.* For the purpose of administering this subchapter, including paragraph (3), section 1419 of this title, and the coordination of activities under this subchapter with, and providing technical assistance to, other programs that provide services to children with disabilities—

(i) each State may reserve for each fiscal year not more than the maximum amount the State was eligible to reserve for State administration under this section for fiscal year 2004 or $800,000 (adjusted in accordance with subparagraph (B)), whichever is greater; and

(ii) each outlying area may reserve for each fiscal year not more than 5 percent of the amount the outlying area receives under subsection (b)(1) for the fiscal year or $35,000, whichever is greater.

(B) *Cumulative annual adjustments.* For each fiscal year beginning with fiscal year 2005, the Secretary shall cumulatively adjust—

(i) the maximum amount the State was eligible to reserve for State administration under this subchapter for fiscal year 2004; and

(ii) $800,000,

by the rate of inflation as measured by the percentage increase, if any, from the preceding fiscal year in the Consumer Price Index For All Urban Consumers, published by the Bureau of Labor Statistics of the Department of Labor.

(C) *Certification.* Prior to expenditure of funds under this paragraph, the State shall certify to the Secretary that the arrangements to establish responsibility for services pursuant to section 1412(a)(12)(A) of this title are current.

(D) *Subchapter III.* Funds reserved under subparagraph (A) may be used for the administration of subchapter III, if the State educational agency is the lead agency for the State under such subchapter.

(2) *Other State-level activities.*

(A) *State-level activities.*

(i) *In general.* Except as provided in clause (iii), for the purpose of carrying out State-level activities, each State may reserve for each of the fiscal years 2005 and 2006 not more than 10 percent from the amount of the State's allocation under subsection (d) for each of the fiscal years 2005 and 2006, respectively. For fiscal year 2007 and each subsequent fiscal year, the State may reserve the maximum amount the State was eligible to reserve under the preceding sentence for fiscal year 2006 (cumulatively adjusted by the rate of inflation as measured by the percentage increase, if any, from the preceding fiscal year in the Consumer Price Index For All Urban Consumers, published by the Bureau of Labor Statistics of the Department of Labor).

(ii) *Small State adjustment.* Notwithstanding clause (i) and except as provided in clause (iii), in the case of a State for which the maximum amount reserved for State administration is not greater than $850,000, the State may reserve for the purpose of carrying out State-level activities for each of the fiscal years 2005 and 2006, not more than 10.5 percent from the amount of the State's allocation under subsection (d) for each of the fiscal years 2005 and 2006, respectively. For fiscal year 2007 and each subsequent fiscal year, such State may reserve the maximum amount the State was eligible to reserve under the preceding sentence for fiscal year 2006 (cumulatively adjusted by the rate of inflation as measured by the percentage increase, if any, from the preceding fiscal year in the Consumer Price Index For All Urban Consumers, published by the Bureau of Labor Statistics of the Department of Labor).

(iii) *Exception.* If a State does not reserve funds under paragraph (3) for a fiscal year, then—

(I) in the case of a State that is not described in clause (ii), for fiscal year 2005 or 2006, clause (i) shall be applied by substituting "9.0 percent" for "10 percent"; and

(II) in the case of a State that is described in clause (ii), for fiscal year 2005 or 2006, clause (ii) shall be applied by substituting "9.5 percent" for "10.5 percent".

(B) *Required activities.* Funds reserved under subparagraph (A) shall be used to carry out the following activities:

(i) For monitoring, enforcement, and complaint investigation.

(ii) To establish and implement the mediation process required by section 1415(e) of this title, including providing for the cost of mediators and support personnel.

(C) *Authorized activities.* Funds reserved under subparagraph (A) may be used to carry out the following activities:

(i) For support and direct services, including technical assistance, personnel preparation, and professional

development and training.

(ii) To support paperwork reduction activities, including expanding the use of technology in the IEP process.

(iii) To assist local educational agencies in providing positive behavioral interventions and supports and appropriate mental health services for children with disabilities.

(iv) To improve the use of technology in the classroom by children with disabilities to enhance learning.

(v) To support the use of technology, including technology with universal design principles and assistive technology devices, to maximize accessibility to the general education curriculum for children with disabilities.

(vi) Development and implementation of transition programs, including coordination of services with agencies involved in supporting the transition of children with disabilities to postsecondary activities.

(vii) To assist local educational agencies in meeting personnel shortages.

(viii) To support capacity building activities and improve the delivery of services by local educational agencies to improve results for children with disabilities.

(ix) Alternative programming for children with disabilities who have been expelled from school, and services for children with disabilities in correctional facilities, children enrolled in State-operated or State-supported schools, and children with disabilities in charter schools.

(x) To support the development and provision of appropriate accommodations for children with disabilities, or the development and provision of alternate assessments that are valid and reliable for assessing the performance of children with disabilities, in accordance with sections 6311(b) and 6361 of this title.

(xi) To provide technical assistance to schools and local educational agencies, and direct services, including direct student services described in section 6303b(c)(3) of this title to children with disabilities, to schools or local educational agencies implementing comprehensive support and improvement activities or targeted support and improvement activities under section 6311(d) of this title on the basis of consistent underperformance of the disaggregated subgroup of children with disabilities, including providing professional development to special and regular education teachers, who teach children with disabilities, based on scientifically based research to improve educational instruction, in order to improve academic achievement based on the challenging academic standards described in section 6311(b)(1) of this title.

(3) *Local educational agency risk pool.*

(A) *In general.*

(i) *Reservation of funds.* For the purpose of assisting local educational agencies (including a charter school that is a local educational agency or a consortium of local educational agencies) in addressing the needs of high need children with disabilities, each State shall have the option to reserve for each fiscal year 10 percent of the amount of funds the State reserves for State-level activities under paragraph (2)(A)—

(I) to establish and make disbursements from the high cost fund to local educational agencies in accordance with this paragraph during the first and succeeding fiscal years of the high cost fund; and

(II) to support innovative and effective ways of cost sharing by the State, by a local educational agency, or among a consortium of local educational agencies, as determined by the State in coordination with representatives from local educational agencies, subject to subparagraph (B)(ii).

(ii) *Definition of local educational agency.* In this paragraph the term "local educational agency" includes a charter school that is a local educational agency, or a consortium of local educational agencies.

(B) *Limitation on uses of funds.*

(i) *Establishment of high cost fund.* A State shall not use any of the funds the State reserves pursuant to subparagraph (A)(i), but may use the funds the State reserves under paragraph (1), to establish and support the high cost fund.

(ii) *Innovative and effective cost sharing.* A State shall not use more than 5 percent of the funds the State reserves pursuant to subparagraph (A)(i) for each fiscal year to support innovative and effective ways of cost sharing among consortia of local educational agencies.

(C) *State plan for high cost fund.*

(i) *Definition.* The State educational agency shall establish the State's definition of a high need child with a disability, which definition shall be developed in consultation with local educational agencies.

(ii) *State plan.* The State educational agency shall develop, not later than 90 days after the State reserves funds under this paragraph, annually review, and amend as necessary, a State plan for the high cost fund. Such State plan shall—

(I) establish, in coordination with representatives from local educational agencies, a definition of a high need child with a disability that, at a minimum—

(aa) addresses the financial impact a high need child with a disability has on the budget of the child's local educational agency; and

(bb) ensures that the cost of the high need child with a disability is greater than 3 times the average per

pupil expenditure (as defined in section 7801 of this title) in that State;

(II) establish eligibility criteria for the participation of a local educational agency that, at a minimum, takes into account the number and percentage of high need children with disabilities served by a local educational agency;

(III) develop a funding mechanism that provides distributions each fiscal year to local educational agencies that meet the criteria developed by the State under subclause (II); and

(IV) establish an annual schedule by which the State educational agency shall make its distributions from the high cost fund each fiscal year.

(iii) *Public availability.* The State shall make its final State plan publicly available not less than 30 days before the beginning of the school year, including dissemination of such information on the State website.

(D) *Disbursements from the high cost fund.*

(i) *In general.* Each State educational agency shall make all annual disbursements from the high cost fund established under subparagraph (A)(i) in accordance with the State plan published pursuant to subparagraph (C).

(ii) *Use of disbursements.* Each State educational agency shall make annual disbursements to eligible local educational agencies in accordance with its State plan under subparagraph (C)(ii).

(iii) *Appropriate costs.* The costs associated with educating a high need child with a disability under subparagraph (C)(i) are only those costs associated with providing direct special education and related services to such child that are identified in such child's IEP.

(E) *Legal fees.* The disbursements under subparagraph (D) shall not support legal fees, court costs, or other costs associated with a cause of action brought on behalf of a child with a disability to ensure a free appropriate public education for such child.

(F) *Assurance of a free appropriate public education.* Nothing in this paragraph shall be construed—

(i) to limit or condition the right of a child with a disability who is assisted under this subchapter to receive a free appropriate public education pursuant to section 1412(a)(1) of this title in the least restrictive environment pursuant to section 1412(a)(5) of this title; or

(ii) to authorize a State educational agency or local educational agency to establish a limit on what may be spent on the education of a child with a disability.

(G) *Special rule for risk pool and high need assistance programs in effect as of January 1, 2004.* Notwithstanding the provisions of subparagraphs (A) through (F), a State may use funds reserved pursuant to this paragraph for implementing a placement neutral cost sharing and reimbursement program of high need, low incidence, catastrophic, or extraordinary aid to local educational agencies that provides services to high need students based on eligibility criteria for such programs that were created not later than January 1, 2004, and are currently in operation, if such program serves children that meet the requirement of the definition of a high need child with a disability as described in subparagraph (C)(ii)(I).

(H) *Medicaid services not affected.* Disbursements provided under this paragraph shall not be used to pay costs that otherwise would be reimbursed as medical assistance for a child with a disability under the State medicaid program under title XIX of the Social Security Act [42 U.S.C. 1396 et seq.].

(I) *Remaining funds.* Funds reserved under subparagraph (A) in any fiscal year but not expended in that fiscal year pursuant to subparagraph (D) shall be allocated to local educational agencies for the succeeding fiscal year in the same manner as funds are allocated to local educational agencies under subsection (f) for the succeeding fiscal year.

(4) *Inapplicability of certain prohibitions.* A State may use funds the State reserves under paragraphs (1) and (2) without regard to—

(A) the prohibition on commingling of funds in section 1412(a)(17)(B) of this title; and

(B) the prohibition on supplanting other funds in section 1412(a)(17)(C) of this title.

(5) *Report on use of funds.* As part of the information required to be submitted to the Secretary under section 1412 of this title, each State shall annually describe how amounts under this section—

(A) will be used to meet the requirements of this chapter; and

(B) will be allocated among the activities described in this section to meet State priorities based on input from local educational agencies.

(6) *Special rule for increased funds.* A State may use funds the State reserves under paragraph (1)(A) as a result of inflationary increases under paragraph (1)(B) to carry out activities authorized under clause (i), (iii), (vii), or (viii) of paragraph (2)(C).

(7) *Flexibility in using funds for subchapter III.* Any State eligible to receive a grant under section 1419 of this title may use funds made available under paragraph (1)(A), subsection (f)(3), or section 1419(f)(5) of this title to develop and implement a State policy jointly with the lead agency under subchapter III and the State educational agency to

provide early intervention services (which shall include an educational component that promotes school readiness and incorporates preliteracy, language, and numeracy skills) in accordance with subchapter III to children with disabilities who are eligible for services under section 1419 of this title and who previously received services under subchapter III until such children enter, or are eligible under State law to enter, kindergarten, or elementary school as appropriate.

(f) *Subgrants to local educational agencies.*

(1) *Subgrants required.* Each State that receives a grant under this section for any fiscal year shall distribute any funds the State does not reserve under subsection (e) to local educational agencies (including public charter schools that operate as local educational agencies) in the State that have established their eligibility under section 1413 of this title for use in accordance with this subchapter.

(2) *Procedure for allocations to local educational agencies.* For each fiscal year for which funds are allocated to States under subsection (d), each State shall allocate funds under paragraph (1) as follows:

(A) *Base payments.* The State shall first award each local educational agency described in paragraph (1) the amount the local educational agency would have received under this section for fiscal year 1999, if the State had distributed 75 percent of its grant for that year under section 1411(d) of this title as section 1411(d) was then in effect.

(B) *Allocation of remaining funds.* After making allocations under subparagraph (A), the State shall—

(i) allocate 85 percent of any remaining funds to those local educational agencies on the basis of the relative numbers of children enrolled in public and private elementary schools and secondary schools within the local educational agency's jurisdiction; and

(ii) allocate 15 percent of those remaining funds to those local educational agencies in accordance with their relative numbers of children living in poverty, as determined by the State educational agency.

(3) *Reallocation of funds.* If a State educational agency determines that a local educational agency is adequately providing a free appropriate public education to all children with disabilities residing in the area served by that local educational agency with State and local funds, the State educational agency may reallocate any portion of the funds under this subchapter that are not needed by that local educational agency to provide a free appropriate public education to other local educational agencies in the State that are not adequately providing special education and related services to all children with disabilities residing in the areas served by those other local educational agencies.

(g) *Definitions.* In this section:

(1) *Average per-pupil expenditure in public elementary schools and secondary schools in the United States.* The term "average per-pupil expenditure in public elementary schools and secondary schools in the United States" means—

(A) without regard to the source of funds—

(i) the aggregate current expenditures, during the second fiscal year preceding the fiscal year for which the determination is made (or, if satisfactory data for that year are not available, during the most recent preceding fiscal year for which satisfactory data are available) of all local educational agencies in the 50 States and the District of Columbia; plus

(ii) any direct expenditures by the State for the operation of those agencies; divided by

(B) the aggregate number of children in average daily attendance to whom those agencies provided free public education during that preceding year.

(2) *State.* The term "State" means each of the 50 States, the District of Columbia, and the Commonwealth of Puerto Rico.

(h) *Use of amounts by Secretary of the Interior.*

(1) *Provision of amounts for assistance.*

(A) *In general.* The Secretary of Education shall provide amounts to the Secretary of the Interior to meet the need for assistance for the education of children with disabilities on reservations aged 5 to 21, inclusive, enrolled in elementary schools and secondary schools for Indian children operated or funded by the Secretary of the Interior. The amount of such payment for any fiscal year shall be equal to 80 percent of the amount allotted under subsection (b)(2) for that fiscal year. Of the amount described in the preceding sentence—

(i) 80 percent shall be allocated to such schools by July 1 of that fiscal year; and

(ii) 20 percent shall be allocated to such schools by September 30 of that fiscal year.

(B) *Calculation of number of children.* In the case of Indian students aged 3 to 5, inclusive, who are enrolled in programs affiliated with the Bureau of Indian Affairs (referred to in this subsection as the "BIA") schools and that are required by the States in which such schools are located to attain or maintain State accreditation, and which schools have such accreditation prior to October 7, 1991, the school shall be allowed to count those children for the purpose of distribution of the funds provided under this paragraph to the Secretary of the Interior. The Secretary of the Interior shall be responsible for meeting all of the requirements of this subchapter for those children, in accordance with paragraph (2).

(C) *Additional requirement.* With respect to all other children aged 3 to 21, inclusive, on reservations, the State educational agency shall be responsible for ensuring that all of the requirements of this subchapter are implemented.

(2) *Submission of information.* The Secretary of Education may provide the Secretary of the Interior amounts under paragraph (1) for a fiscal year only if the Secretary of the Interior submits to the Secretary of Education information that—

(A) demonstrates that the Department of the Interior meets the appropriate requirements, as determined by the Secretary of Education, of sections 1412 of this title (including monitoring and evaluation activities) and 1413 of this title;

(B) includes a description of how the Secretary of the Interior will coordinate the provision of services under this subchapter with local educational agencies, tribes and tribal organizations, and other private and Federal service providers;

(C) includes an assurance that there are public hearings, adequate notice of such hearings, and an opportunity for comment afforded to members of tribes, tribal governing bodies, and affected local school boards before the adoption of the policies, programs, and procedures related to the requirements described in subparagraph (A);

(D) includes an assurance that the Secretary of the Interior will provide such information as the Secretary of Education may require to comply with section 1418 of this title;

(E) includes an assurance that the Secretary of the Interior and the Secretary of Health and Human Services have entered into a memorandum of agreement, to be provided to the Secretary of Education, for the coordination of services, resources, and personnel between their respective Federal, State, and local offices and with State and local educational agencies and other entities to facilitate the provision of services to Indian children with disabilities residing on or near reservations (such agreement shall provide for the apportionment of responsibilities and costs, including child find, evaluation, diagnosis, remediation or therapeutic measures, and (where appropriate) equipment and medical or personal supplies as needed for a child to remain in school or a program); and

(F) includes an assurance that the Department of the Interior will cooperate with the Department of Education in its exercise of monitoring and oversight of this application, and any agreements entered into between the Secretary of the Interior and other entities under this subchapter, and will fulfill its duties under this subchapter.

(3) *Applicability.* The Secretary shall withhold payments under this subsection with respect to the information described in paragraph (2) in the same manner as the Secretary withholds payments under section 1416(e)(6) of this title.

(4) *Payments for education and services for Indian children with disabilities aged 3 through 5.*

(A) *In general.* With funds appropriated under subsection (i), the Secretary of Education shall make payments to the Secretary of the Interior to be distributed to tribes or tribal organizations (as defined under section 5304 of title 25) or consortia of tribes or tribal organizations to provide for the coordination of assistance for special education and related services for children with disabilities aged 3 through 5 on reservations served by elementary schools and secondary schools for Indian children operated or funded by the Department of the Interior. The amount of such payments under subparagraph (B) for any fiscal year shall be equal to 20 percent of the amount allotted under subsection (b)(2).

(B) *Distribution of funds.* The Secretary of the Interior shall distribute the total amount of the payment under subparagraph (A) by allocating to each tribe, tribal organization, or consortium an amount based on the number of children with disabilities aged 3 through 5 residing on reservations as reported annually, divided by the total of those children served by all tribes or tribal organizations.

(C) *Submission of information.* To receive a payment under this paragraph, the tribe or tribal organization shall submit such figures to the Secretary of the Interior as required to determine the amounts to be allocated under subparagraph (B). This information shall be compiled and submitted to the Secretary of Education.

(D) *Use of funds.* The funds received by a tribe or tribal organization shall be used to assist in child find, screening, and other procedures for the early identification of children aged 3 through 5, parent training, and the provision of direct services. These activities may be carried out directly or through contracts or cooperative agreements with the BIA, local educational agencies, and other public or private nonprofit organizations. The tribe or tribal organization is encouraged to involve Indian parents in the development and implementation of these activities. The tribe or tribal organization shall, as appropriate, make referrals to local, State, or Federal entities for the provision of services or further diagnosis.

(E) *Biennial report.* To be eligible to receive a grant pursuant to subparagraph (A), the tribe or tribal organization shall provide to the Secretary of the Interior a biennial report of activities undertaken under this paragraph, including the number of contracts and cooperative agreements entered into, the number of children contacted and receiving services for each year, and the estimated number of children needing services during the 2 years following the year in which the report is made. The Secretary of the Interior shall include a summary of this information on a biennial basis in the report to the Secretary of Education required under this subsection. The Secretary of Education may require any additional information from the Secretary of the Interior.

(F) *Prohibitions.* None of the funds allocated under this paragraph may be used by the Secretary of the Interior for

administrative purposes, including child count and the provision of technical assistance.

(5) *Plan for coordination of services.* The Secretary of the Interior shall develop and implement a plan for the coordination of services for all Indian children with disabilities residing on reservations covered under this chapter. Such plan shall provide for the coordination of services benefiting those children from whatever source, including tribes, the Indian Health Service, other BIA divisions, and other Federal agencies. In developing the plan, the Secretary of the Interior shall consult with all interested and involved parties. The plan shall be based on the needs of the children and the system best suited for meeting those needs, and may involve the establishment of cooperative agreements between the BIA, other Federal agencies, and other entities. The plan shall also be distributed upon request to States, State educational agencies and local educational agencies, and other agencies providing services to infants, toddlers, and children with disabilities, to tribes, and to other interested parties.

(6) *Establishment of advisory board.* To meet the requirements of section 1412(a)(21) of this title, the Secretary of the Interior shall establish, under the BIA, an advisory board composed of individuals involved in or concerned with the education and provision of services to Indian infants, toddlers, children, and youth with disabilities, including Indians with disabilities, Indian parents or guardians of such children, teachers, service providers, State and local educational officials, representatives of tribes or tribal organizations, representatives from State Interagency Coordinating Councils under section 1441 of this title in States having reservations, and other members representing the various divisions and entities of the BIA. The chairperson shall be selected by the Secretary of the Interior. The advisory board shall—

(A) assist in the coordination of services within the BIA and with other local, State, and Federal agencies in the provision of education for infants, toddlers, and children with disabilities;

(B) advise and assist the Secretary of the Interior in the performance of the Secretary of the Interior's responsibilities described in this subsection;

(C) develop and recommend policies concerning effective inter- and intra-agency collaboration, including modifications to regulations, and the elimination of barriers to inter- and intra-agency programs and activities;

(D) provide assistance and disseminate information on best practices, effective program coordination strategies, and recommendations for improved early intervention services or educational programming for Indian infants, toddlers, and children with disabilities; and

(E) provide assistance in the preparation of information required under paragraph (2)(D).

(7) *Annual reports.*

(A) *In general.* The advisory board established under paragraph (6) shall prepare and submit to the Secretary of the Interior and to Congress an annual report containing a description of the activities of the advisory board for the preceding year.

(B) *Availability.* The Secretary of the Interior shall make available to the Secretary of Education the report described in subparagraph (A).

(i) *Authorization of appropriations.* For the purpose of carrying out this subchapter, other than section 1419 of this title, there are authorized to be appropriated—

(1) $12,358,376,571 for fiscal year 2005;
(2) $14,648,647,143 for fiscal year 2006;
(3) $16,938,917,714 for fiscal year 2007;
(4) $19,229,188,286 for fiscal year 2008;
(5) $21,519,458,857 for fiscal year 2009;
(6) $23,809,729,429 for fiscal year 2010;
(7) $26,100,000,000 for fiscal year 2011; and
(8) such sums as may be necessary for fiscal year 2012 and each succeeding fiscal year.

20 U.S.C. § 1412

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 7 (1) and its amici 3 (1).

State eligibility

(a) *In general.* A State is eligible for assistance under this subchapter for a fiscal year if the State submits a plan that provides assurances to the Secretary that the State has in effect policies and procedures to ensure that the State meets each of the following conditions:

(1) *Free appropriate public education.*

(A) *In general.* A free appropriate public education is available to all children with disabilities residing in the State between the ages of 3 and 21, inclusive, including children with disabilities who have been suspended or expelled from school.

(B) *Limitation.* The obligation to make a free appropriate public education available to all children with disabilities does not apply with respect to children—

(i) aged 3 through 5 and 18 through 21 in a State to the extent that its application to those children would be

inconsistent with State law or practice, or the order of any court, respecting the provision of public education to children in those age ranges; and

(ii) aged 18 through 21 to the extent that State law does not require that special education and related services under this subchapter be provided to children with disabilities who, in the educational placement prior to their incarceration in an adult correctional facility—

(I) were not actually identified as being a child with a disability under section 1401 of this title; or

(II) did not have an individualized education program under this subchapter.

(C) *State flexibility.* A State that provides early intervention services in accordance with subchapter III to a child who is eligible for services under section 1419 of this title, is not required to provide such child with a free appropriate public education.

(2) *Full educational opportunity goal.* The State has established a goal of providing full educational opportunity to all children with disabilities and a detailed timetable for accomplishing that goal.

(3) *Child find.*

(A) *In general.* All children with disabilities residing in the State, including children with disabilities who are homeless children or are wards of the State and children with disabilities attending private schools, regardless of the severity of their disabilities, and who are in need of special education and related services, are identified, located, and evaluated and a practical method is developed and implemented to determine which children with disabilities are currently receiving needed special education and related services.

(B) *Construction.* Nothing in this chapter requires that children be classified by their disability so long as each child who has a disability listed in section 1401 of this title and who, by reason of that disability, needs special education and related services is regarded as a child with a disability under this subchapter.

(4) *Individualized education program.* An individualized education program, or an individualized family service plan that meets the requirements of section 1436(d) of this title, is developed, reviewed, and revised for each child with a disability in accordance with section 1414(d) of this title.

(5) *Least restrictive environment.*

(A) *In general.* To the maximum extent appropriate, children with disabilities, including children in public or private institutions or other care facilities, are educated with children who are not disabled, and special classes, separate schooling, or other removal of children with disabilities from the regular educational environment occurs only when the nature or severity of the disability of a child is such that education in regular classes with the use of supplementary aids and services cannot be achieved satisfactorily.

(B) *Additional requirement.*

(i) *In general.* A State funding mechanism shall not result in placements that violate the requirements of subparagraph (A), and a State shall not use a funding mechanism by which the State distributes funds on the basis of the type of setting in which a child is served that will result in the failure to provide a child with a disability a free appropriate public education according to the unique needs of the child as described in the child's IEP.

(ii) *Assurance.* If the State does not have policies and procedures to ensure compliance with clause (i), the State shall provide the Secretary an assurance that the State will revise the funding mechanism as soon as feasible to ensure that such mechanism does not result in such placements.

(6) *Procedural safeguards.*

(A) *In general.* Children with disabilities and their parents are afforded the procedural safeguards required by section 1415 of this title.

(B) *Additional procedural safeguards.* Procedures to ensure that testing and evaluation materials and procedures utilized for the purposes of evaluation and placement of children with disabilities for services under this chapter will be selected and administered so as not to be racially or culturally discriminatory. Such materials or procedures shall be provided and administered in the child's native language or mode of communication, unless it clearly is not feasible to do so, and no single procedure shall be the sole criterion for determining an appropriate educational program for a child.

(7) *Evaluation.* Children with disabilities are evaluated in accordance with subsections (a) through (c) of section 1414 of this title.

(8) *Confidentiality.* Agencies in the State comply with section 1417(c) of this title (relating to the confidentiality of records and information).

(9) *Transition from subchapter III to preschool programs.* Children participating in early intervention programs assisted under subchapter III, and who will participate in preschool programs assisted under this subchapter, experience a smooth and effective transition to those preschool programs in a manner consistent with section 1437(a)(9) of this title. By the third birthday of such a child, an individualized education program or, if consistent with sections 1414(d)(2)(B) and 1436(d) of this title, an individualized family service plan, has been developed and is being

implemented for the child. The local educational agency will participate in transition planning conferences arranged by the designated lead agency under section 1435(a)(10) of this title.

(10) *Children in private schools.*

(A) *Children enrolled in private schools by their parents.*

(i) *In general.* To the extent consistent with the number and location of children with disabilities in the State who are enrolled by their parents in private elementary schools and secondary schools in the school district served by a local educational agency, provision is made for the participation of those children in the program assisted or carried out under this subchapter by providing for such children special education and related services in accordance with the following requirements, unless the Secretary has arranged for services to those children under subsection (f):

(I) Amounts to be expended for the provision of those services (including direct services to parentally placed private school children) by the local educational agency shall be equal to a proportionate amount of Federal funds made available under this subchapter.

(II) In calculating the proportionate amount of Federal funds, the local educational agency, after timely and meaningful consultation with representatives of private schools as described in clause (iii), shall conduct a thorough and complete child find process to determine the number of parentally placed children with disabilities attending private schools located in the local educational agency.

(III) Such services to parentally placed private school children with disabilities may be provided to the children on the premises of private, including religious, schools, to the extent consistent with law.

(IV) State and local funds may supplement and in no case shall supplant the proportionate amount of Federal funds required to be expended under this subparagraph.

(V) Each local educational agency shall maintain in its records and provide to the State educational agency the number of children evaluated under this subparagraph, the number of children determined to be children with disabilities under this paragraph, and the number of children served under this paragraph.

(ii) *Child find requirement.*

(I) *In general.* The requirements of paragraph (3) (relating to child find) shall apply with respect to children with disabilities in the State who are enrolled in private, including religious, elementary schools and secondary schools.

(II) *Equitable participation.* The child find process shall be designed to ensure the equitable participation of parentally placed private school children with disabilities and an accurate count of such children.

(III) *Activities.* In carrying out this clause, the local educational agency, or where applicable, the State educational agency, shall undertake activities similar to those activities undertaken for the agency's public school children.

(IV) *Cost.* The cost of carrying out this clause, including individual evaluations, may not be considered in determining whether a local educational agency has met its obligations under clause (i).

(V) *Completion period.* Such child find process shall be completed in a time period comparable to that for other students attending public schools in the local educational agency.

(iii) *Consultation.* To ensure timely and meaningful consultation, a local educational agency, or where appropriate, a State educational agency, shall consult with private school representatives and representatives of parents of parentally placed private school children with disabilities during the design and development of special education and related services for the children, including regarding—

(I) the child find process and how parentally placed private school children suspected of having a disability can participate equitably, including how parents, teachers, and private school officials will be informed of the process;

(II) the determination of the proportionate amount of Federal funds available to serve parentally placed private school children with disabilities under this subparagraph, including the determination of how the amount was calculated;

(III) the consultation process among the local educational agency, private school officials, and representatives of parents of parentally placed private school children with disabilities, including how such process will operate throughout the school year to ensure that parentally placed private school children with disabilities identified through the child find process can meaningfully participate in special education and related services;

(IV) how, where, and by whom special education and related services will be provided for parentally placed private school children with disabilities, including a discussion of types of services, including direct services and alternate service delivery mechanisms, how such services will be apportioned if funds are insufficient to serve all children, and how and when these decisions will be made; and

(V) how, if the local educational agency disagrees with the views of the private school officials on the provision of services or the types of services, whether provided directly or through a contract, the local

educational agency shall provide to the private school officials a written explanation of the reasons why the local educational agency chose not to provide services directly or through a contract.

(iv) *Written affirmation.* When timely and meaningful consultation as required by clause (iii) has occurred, the local educational agency shall obtain a written affirmation signed by the representatives of participating private schools, and if such representatives do not provide such affirmation within a reasonable period of time, the local educational agency shall forward the documentation of the consultation process to the State educational agency.

(v) *Compliance.*

(I) *In general.* A private school official shall have the right to submit a complaint to the State educational agency that the local educational agency did not engage in consultation that was meaningful and timely, or did not give due consideration to the views of the private school official.

(II) *Procedure.* If the private school official wishes to submit a complaint, the official shall provide the basis of the noncompliance with this subparagraph by the local educational agency to the State educational agency, and the local educational agency shall forward the appropriate documentation to the State educational agency. If the private school official is dissatisfied with the decision of the State educational agency, such official may submit a complaint to the Secretary by providing the basis of the noncompliance with this subparagraph by the local educational agency to the Secretary, and the State educational agency shall forward the appropriate documentation to the Secretary.

(vi) *Provision of equitable services.*

(I) *Directly or through contracts.* The provision of services pursuant to this subparagraph shall be provided—

(aa) by employees of a public agency; or

(bb) through contract by the public agency with an individual, association, agency, organization, or other entity.

(II) *Secular, neutral, nonideological.* Special education and related services provided to parentally placed private school children with disabilities, including materials and equipment, shall be secular, neutral, and nonideological.

(vii) *Public control of funds.* The control of funds used to provide special education and related services under this subparagraph, and title to materials, equipment, and property purchased with those funds, shall be in a public agency for the uses and purposes provided in this chapter, and a public agency shall administer the funds and property.

(B) *Children placed in, or referred to, private schools by public agencies.*

(i) *In general.* Children with disabilities in private schools and facilities are provided special education and related services, in accordance with an individualized education program, at no cost to their parents, if such children are placed in, or referred to, such schools or facilities by the State or appropriate local educational agency as the means of carrying out the requirements of this subchapter or any other applicable law requiring the provision of special education and related services to all children with disabilities within such State.

(ii) *Standards.* In all cases described in clause (i), the State educational agency shall determine whether such schools and facilities meet standards that apply to State educational agencies and local educational agencies and that children so served have all the rights the children would have if served by such agencies.

(C) *Payment for education of children enrolled in private schools without consent of or referral by the public agency.*

(i) *In general.* Subject to subparagraph (A), this subchapter does not require a local educational agency to pay for the cost of education, including special education and related services, of a child with a disability at a private school or facility if that agency made a free appropriate public education available to the child and the parents elected to place the child in such private school or facility.

(ii) *Reimbursement for private school placement.* If the parents of a child with a disability, who previously received special education and related services under the authority of a public agency, enroll the child in a private elementary school or secondary school without the consent of or referral by the public agency, a court or a hearing officer may require the agency to reimburse the parents for the cost of that enrollment if the court or hearing officer finds that the agency had not made a free appropriate public education available to the child in a timely manner prior to that enrollment.

(iii) *Limitation on reimbursement.* The cost of reimbursement described in clause (ii) may be reduced or denied—

(I) if—

(aa) at the most recent IEP meeting that the parents attended prior to removal of the child from the public school, the parents did not inform the IEP Team that they were rejecting the placement proposed by the public agency to provide a free appropriate public education to their child, including stating their concerns and their intent to enroll their child in a private school at public expense; or

(bb) 10 business days (including any holidays that occur on a business day) prior to the removal of the child from the public school, the parents did not give written notice to the public agency of the information

described in item (aa);

(II) if, prior to the parents' removal of the child from the public school, the public agency informed the parents, through the notice requirements described in section 1415(b)(3) of this title, of its intent to evaluate the child (including a statement of the purpose of the evaluation that was appropriate and reasonable), but the parents did not make the child available for such evaluation; or

(III) upon a judicial finding of unreasonableness with respect to actions taken by the parents.

(iv) *Exception.* Notwithstanding the notice requirement in clause (iii)(I), the cost of reimbursement—

(I) shall not be reduced or denied for failure to provide such notice if—

(aa) the school prevented the parent from providing such notice;

(bb) the parents had not received notice, pursuant to section 1415 of this title, of the notice requirement in clause (iii)(I); or

(cc) compliance with clause (iii)(I) would likely result in physical harm to the child; and

(II) may, in the discretion of a court or a hearing officer, not be reduced or denied for failure to provide such notice if—

(aa) the parent is illiterate or cannot write in English; or

(bb) compliance with clause (iii)(I) would likely result in serious emotional harm to the child.

(11) *State educational agency responsible for general supervision.*

(A) *In general.* The State educational agency is responsible for ensuring that—

(i) the requirements of this subchapter are met;

(ii) all educational programs for children with disabilities in the State, including all such programs administered by any other State agency or local agency—

(I) are under the general supervision of individuals in the State who are responsible for educational programs for children with disabilities; and

(II) meet the educational standards of the State educational agency; and

(iii) in carrying out this subchapter with respect to homeless children, the requirements of subtitle B of title VII of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11431 et seq.) are met.

(B) *Limitation.* Subparagraph (A) shall not limit the responsibility of agencies in the State other than the State educational agency to provide, or pay for some or all of the costs of, a free appropriate public education for any child with a disability in the State.

(C) *Exception.* Notwithstanding subparagraphs (A) and (B), the Governor (or another individual pursuant to State law), consistent with State law, may assign to any public agency in the State the responsibility of ensuring that the requirements of this subchapter are met with respect to children with disabilities who are convicted as adults under State law and incarcerated in adult prisons.

(12) *Obligations related to and methods of ensuring services.*

(A) *Establishing responsibility for services.* The Chief Executive Officer of a State or designee of the officer shall ensure that an interagency agreement or other mechanism for interagency coordination is in effect between each public agency described in subparagraph (B) and the State educational agency, in order to ensure that all services described in subparagraph (B)(i) that are needed to ensure a free appropriate public education are provided, including the provision of such services during the pendency of any dispute under clause (iii). Such agreement or mechanism shall include the following:

(i) *Agency financial responsibility.* An identification of, or a method for defining, the financial responsibility of each agency for providing services described in subparagraph (B)(i) to ensure a free appropriate public education to children with disabilities, provided that the financial responsibility of each public agency described in subparagraph (B), including the State medicaid agency and other public insurers of children with disabilities, shall precede the financial responsibility of the local educational agency (or the State agency responsible for developing the child's IEP).

(ii) *Conditions and terms of reimbursement.* The conditions, terms, and procedures under which a local educational agency shall be reimbursed by other agencies.

(iii) *Interagency disputes.* Procedures for resolving interagency disputes (including procedures under which local educational agencies may initiate proceedings) under the agreement or other mechanism to secure reimbursement from other agencies or otherwise implement the provisions of the agreement or mechanism.

(iv) *Coordination of services procedures.* Policies and procedures for agencies to determine and identify the interagency coordination responsibilities of each agency to promote the coordination and timely and appropriate delivery of services described in subparagraph (B)(i).

(B) *Obligation of public agency.*

(i) *In general.* If any public agency other than an educational agency is otherwise obligated under Federal or State law, or assigned responsibility under State policy pursuant to subparagraph (A), to provide or pay for any services that are also considered special education or related services (such as, but not limited to, services described in section 1401(1) relating to assistive technology devices, 1401(2) relating to assistive technology services, 1401(26) relating to related services, 1401(33) relating to supplementary aids and services, and 1401(34) of this title relating to transition services) that are necessary for ensuring a free appropriate public education to children with disabilities within the State, such public agency shall fulfill that obligation or responsibility, either directly or through contract or other arrangement pursuant to subparagraph (A) or an agreement pursuant to subparagraph (C).

(ii) *Reimbursement for services by public agency.* If a public agency other than an educational agency fails to provide or pay for the special education and related services described in clause (i), the local educational agency (or State agency responsible for developing the child's IEP) shall provide or pay for such services to the child. Such local educational agency or State agency is authorized to claim reimbursement for the services from the public agency that failed to provide or pay for such services and such public agency shall reimburse the local educational agency or State agency pursuant to the terms of the interagency agreement or other mechanism described in subparagraph (A)(i) according to the procedures established in such agreement pursuant to subparagraph (A)(ii).

(C) *Special rule.* The requirements of subparagraph (A) may be met through—

(i) State statute or regulation;

(ii) signed agreements between respective agency officials that clearly identify the responsibilities of each agency relating to the provision of services; or

(iii) other appropriate written methods as determined by the Chief Executive Officer of the State or designee of the officer and approved by the Secretary.

(13) *Procedural requirements relating to local educational agency eligibility.* The State educational agency will not make a final determination that a local educational agency is not eligible for assistance under this subchapter without first affording that agency reasonable notice and an opportunity for a hearing.

(14) *Personnel qualifications.*

(A) *In general.* The State educational agency has established and maintains qualifications to ensure that personnel necessary to carry out this subchapter are appropriately and adequately prepared and trained, including that those personnel have the content knowledge and skills to serve children with disabilities.

(B) *Related services personnel and paraprofessionals.* The qualifications under subparagraph (A) include qualifications for related services personnel and paraprofessionals that—

(i) are consistent with any State-approved or State-recognized certification, licensing, registration, or other comparable requirements that apply to the professional discipline in which those personnel are providing special education or related services;

(ii) ensure that related services personnel who deliver services in their discipline or profession meet the requirements of clause (i) and have not had certification or licensure requirements waived on an emergency, temporary, or provisional basis; and

(iii) allow paraprofessionals and assistants who are appropriately trained and supervised, in accordance with State law, regulation, or written policy, in meeting the requirements of this subchapter to be used to assist in the provision of special education and related services under this subchapter to children with disabilities.

(C) *Qualifications for special education teachers.* The qualifications described in subparagraph (A) shall ensure that each person employed as a special education teacher in the State who teaches elementary school, middle school, or secondary school—

(i) has obtained full State certification as a special education teacher (including participating in an alternate route to certification as a special educator, if such alternate route meets minimum requirements described in section 2005.56(a)(2)(ii) of title 34, Code of Federal Regulations, as such section was in effect on November 28, 2008), or passed the State special education teacher licensing examination, and holds a license to teach in the State as a special education teacher, except with respect to any teacher teaching in a public charter school who shall meet the requirements set forth in the State's public charter school law;

(ii) has not had special education certification or licensure requirements waived on an emergency, temporary, or provisional basis; and

(iii) holds at least a bachelor's degree..

(D) *Policy.* In implementing this section, a State shall adopt a policy that includes a requirement that local educational agencies in the State take measurable steps to recruit, hire, train, and retain personnel who meet the applicable requirements described in this paragraph to provide special education and related services under this

subchapter to children with disabilities.

(E) *Rule of construction.* Notwithstanding any other individual right of action that a parent or student may maintain under this subchapter, nothing in this paragraph shall be construed to create a right of action on behalf of an individual student for the failure of a particular State educational agency or local educational agency staff person to meet the applicable requirements described in this paragraph, or to prevent a parent from filing a complaint about staff qualifications with the State educational agency as provided for under this subchapter.

(15) *Performance goals and indicators.* The State—

(A) has established goals for the performance of children with disabilities in the State that—

(i) promote the purposes of this chapter, as stated in section 1400(d) of this title;

(ii) are the same as the State's long-term goals and measurements of interim progress for children with disabilities under section 6311(c)(4)(A)(i) of this title;

(iii) address graduation rates and dropout rates, as well as such other factors as the State may determine; and

(iv) are consistent, to the extent appropriate, with any other goals and standards for children established by the State;

(B) has established performance indicators the State will use to assess progress toward achieving the goals described in subparagraph (A), including measurements of interim progress for children with disabilities under section 6311(c)(4)(A)(i) of this title; and

(C) will annually report to the Secretary and the public on the progress of the State, and of children with disabilities in the State, toward meeting the goals established under subparagraph (A), which may include elements of the reports required under section 6311(h) of this title.

(16) *Participation in assessments.*

(A) *In general.* All children with disabilities are included in all general State and districtwide assessment programs, including assessments described under section 6311 of this title, with appropriate accommodations and alternate assessments where necessary and as indicated in their respective individualized education programs.

(B) *Accommodation guidelines.* The State (or, in the case of a districtwide assessment, the local educational agency) has developed guidelines for the provision of appropriate accommodations.

(C) *Alternate assessments.*

(i) *In general.* The State (or, in the case of a districtwide assessment, the local educational agency) has developed and implemented guidelines for the participation of children with disabilities in alternate assessments for those children who cannot participate in regular assessments under subparagraph (A) with accommodations as indicated in their respective individualized education programs.

(ii) *Requirements for alternate assessments.* The guidelines under clause (i) shall provide for alternate assessments that—

(I) are aligned with the challenging State academic content standards under section 6311(b)(1) of this title and alternate academic achievement standards under section 6311(b)(1)(E) of this title; and

(II) if the State has adopted alternate academic achievement standards permitted under section 6311(b)(1)(E) of this title, measure the achievement of children with disabilities against those standards.

(iii) *Conduct of alternate assessments.* The State conducts the alternate assessments described in this subparagraph.

(D) *Reports.* The State educational agency (or, in the case of a districtwide assessment, the local educational agency) makes available to the public, and reports to the public with the same frequency and in the same detail as it reports on the assessment of nondisabled children, the following:

(i) The number of children with disabilities participating in regular assessments, and the number of those children who were provided accommodations in order to participate in those assessments.

(ii) The number of children with disabilities participating in alternate assessments described in subparagraph (C)(ii)(I).

(iii) The number of children with disabilities participating in alternate assessments described in subparagraph (C)(ii)(II).

(iv) The performance of children with disabilities on regular assessments and on alternate assessments (if the number of children with disabilities participating in those assessments is sufficient to yield statistically reliable information and reporting that information will not reveal personally identifiable information about an individual student), compared with the achievement of all children, including children with disabilities, on those assessments.

(E) *Universal design.* The State educational agency (or, in the case of a districtwide assessment, the local educational agency) shall, to the extent feasible, use universal design principles in developing and administering any assessments under this paragraph.

(17) *Supplementation of State, local, and other Federal funds.*

(A) *Expenditures.* Funds paid to a State under this subchapter will be expended in accordance with all the provisions of this subchapter.

(B) *Prohibition against commingling.* Funds paid to a State under this subchapter will not be commingled with State funds.

(C) *Prohibition against supplantation and conditions for waiver by Secretary.* Except as provided in section 1413 of this title, funds paid to a State under this subchapter will be used to supplement the level of Federal, State, and local funds (including funds that are not under the direct control of State or local educational agencies) expended for special education and related services provided to children with disabilities under this subchapter and in no case to supplant such Federal, State, and local funds, except that, where the State provides clear and convincing evidence that all children with disabilities have available to them a free appropriate public education, the Secretary may waive, in whole or in part, the requirements of this subparagraph if the Secretary concurs with the evidence provided by the State.

(18) *Maintenance of State financial support.*

(A) *In general.* The State does not reduce the amount of State financial support for special education and related services for children with disabilities, or otherwise made available because of the excess costs of educating those children, below the amount of that support for the preceding fiscal year.

(B) *Reduction of funds for failure to maintain support.* The Secretary shall reduce the allocation of funds under section 1411 of this title for any fiscal year following the fiscal year in which the State fails to comply with the requirement of subparagraph (A) by the same amount by which the State fails to meet the requirement.

(C) *Waivers for exceptional or uncontrollable circumstances.* The Secretary may waive the requirement of subparagraph (A) for a State, for 1 fiscal year at a time, if the Secretary determines that—

(i) granting a waiver would be equitable due to exceptional or uncontrollable circumstances such as a natural disaster or a precipitous and unforeseen decline in the financial resources of the State; or

(ii) the State meets the standard in paragraph (17)(C) for a waiver of the requirement to supplement, and not to supplant, funds received under this subchapter.

(D) *Subsequent years.* If, for any year, a State fails to meet the requirement of subparagraph (A), including any year for which the State is granted a waiver under subparagraph (C), the financial support required of the State in future years under subparagraph (A) shall be the amount that would have been required in the absence of that failure and not the reduced level of the State's support.

(19) *Public participation.* Prior to the adoption of any policies and procedures needed to comply with this section (including any amendments to such policies and procedures), the State ensures that there are public hearings, adequate notice of the hearings, and an opportunity for comment available to the general public, including individuals with disabilities and parents of children with disabilities.

(20) *Rule of construction.* In complying with paragraphs (17) and (18), a State may not use funds paid to it under this subchapter to satisfy State-law mandated funding obligations to local educational agencies, including funding based on student attendance or enrollment, or inflation.

(21) *State advisory panel.*

(A) *In general.* The State has established and maintains an advisory panel for the purpose of providing policy guidance with respect to special education and related services for children with disabilities in the State.

(B) *Membership.* Such advisory panel shall consist of members appointed by the Governor, or any other official authorized under State law to make such appointments, be representative of the State population, and be composed of individuals involved in, or concerned with, the education of children with disabilities, including—

(i) parents of children with disabilities (ages birth through 26);

(ii) individuals with disabilities;

(iii) teachers;

(iv) representatives of institutions of higher education that prepare special education and related services personnel;

(v) State and local education officials, including officials who carry out activities under subtitle B of title VII of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11431 et seq.);

(vi) administrators of programs for children with disabilities;

(vii) representatives of other State agencies involved in the financing or delivery of related services to children with disabilities;

(viii) representatives of private schools and public charter schools;

(ix) not less than 1 representative of a vocational, community, or business organization concerned with the provision of transition services to children with disabilities;

(x) a representative from the State child welfare agency responsible for foster care; and

(xi) representatives from the State juvenile and adult corrections agencies.

(C) *Special rule.* A majority of the members of the panel shall be individuals with disabilities or parents of children with disabilities (ages birth through 26).

(D) *Duties.* The advisory panel shall—

(i) advise the State educational agency of unmet needs within the State in the education of children with disabilities;

(ii) comment publicly on any rules or regulations proposed by the State regarding the education of children with disabilities;

(iii) advise the State educational agency in developing evaluations and reporting on data to the Secretary under section 1418 of this title;

(iv) advise the State educational agency in developing corrective action plans to address findings identified in Federal monitoring reports under this subchapter; and

(v) advise the State educational agency in developing and implementing policies relating to the coordination of services for children with disabilities.

(22) *Suspension and expulsion rates.*

(A) *In general.* The State educational agency examines data, including data disaggregated by race and ethnicity, to determine if significant discrepancies are occurring in the rate of long-term suspensions and expulsions of children with disabilities—

(i) among local educational agencies in the State; or

(ii) compared to such rates for nondisabled children within such agencies.

(B) *Review and revision of policies.* If such discrepancies are occurring, the State educational agency reviews and, if appropriate, revises (or requires the affected State or local educational agency to revise) its policies, procedures, and practices relating to the development and implementation of IEPs, the use of positive behavioral interventions and supports, and procedural safeguards, to ensure that such policies, procedures, and practices comply with this chapter.

(23) *Access to instructional materials.*

(A) *In general.* The State adopts the National Instructional Materials Accessibility Standard for the purposes of providing instructional materials to blind persons or other persons with print disabilities, in a timely manner after the publication of the National Instructional Materials Accessibility Standard in the Federal Register.

(B) *Rights of State educational agency.* Nothing in this paragraph shall be construed to require any State educational agency to coordinate with the National Instructional Materials Access Center. If a State educational agency chooses not to coordinate with the National Instructional Materials Access Center, such agency shall provide an assurance to the Secretary that the agency will provide instructional materials to blind persons or other persons with print disabilities in a timely manner.

(C) *Preparation and delivery of files.* If a State educational agency chooses to coordinate with the National Instructional Materials Access Center, not later than 2 years after December 3, 2004, the agency, as part of any print instructional materials adoption process, procurement contract, or other practice or instrument used for purchase of print instructional materials, shall enter into a written contract with the publisher of the print instructional materials to—

(i) require the publisher to prepare and, on or before delivery of the print instructional materials, provide to the National Instructional Materials Access Center electronic files containing the contents of the print instructional materials using the National Instructional Materials Accessibility Standard; or

(ii) purchase instructional materials from the publisher that are produced in, or may be rendered in, specialized formats.

(D) *Assistive technology.* In carrying out this paragraph, the State educational agency, to the maximum extent possible, shall work collaboratively with the State agency responsible for assistive technology programs.

(E) *Definitions.* In this paragraph:

(i) *National Instructional Materials Access Center.* The term "National Instructional Materials Access Center" means the center established pursuant to section 1474(e) of this title.

(ii) *National Instructional Materials Accessibility Standard.* The term "National Instructional Materials Accessibility Standard" has the meaning given the term in section 1474(e)(3)(A) of this title.

(iii) *Specialized formats.* The term "specialized formats" has the meaning given the term in section 1474(e)(3)(D) of this title.

(24) *Overidentification and disproportionality.* The State has in effect, consistent with the purposes of this chapter and with section 1418(d) of this title, policies and procedures designed to prevent the inappropriate overidentification or disproportionate representation by race and ethnicity of children as children with disabilities, including children with disabilities with a particular impairment described in section 1401 of this title.

(25) *Prohibition on mandatory medication.*

(A) *In general.* The State educational agency shall prohibit State and local educational agency personnel from requiring a child to obtain a prescription for a substance covered by the Controlled Substances Act (21 U.S.C. 801 et seq.) as a condition of attending school, receiving an evaluation under subsection (a) or (c) of section 1414 of this title, or receiving services under this chapter.

(B) *Rule of construction.* Nothing in subparagraph (A) shall be construed to create a Federal prohibition against teachers and other school personnel consulting or sharing classroom-based observations with parents or guardians regarding a student's academic and functional performance, or behavior in the classroom or school, or regarding the need for evaluation for special education or related services under paragraph (3).

(b) *State educational agency as provider of free appropriate public education or direct services.* If the State educational agency provides free appropriate public education to children with disabilities, or provides direct services to such children, such agency—

(1) shall comply with any additional requirements of section 1413(a) of this title, as if such agency were a local educational agency; and

(2) may use amounts that are otherwise available to such agency under this subchapter to serve those children without regard to section 1413(a)(2)(A)(i) of this title (relating to excess costs).

(c) *Exception for prior State plans.*

(1) *In general.* If a State has on file with the Secretary policies and procedures that demonstrate that such State meets any requirement of subsection (a), including any policies and procedures filed under this subchapter as in effect before the effective date of the Individuals with Disabilities Education Improvement Act of 2004, the Secretary shall consider such State to have met such requirement for purposes of receiving a grant under this subchapter.

(2) *Modifications made by State.* Subject to paragraph (3), an application submitted by a State in accordance with this section shall remain in effect until the State submits to the Secretary such modifications as the State determines necessary. This section shall apply to a modification to an application to the same extent and in the same manner as this section applies to the original plan.

(3) *Modifications required by the Secretary.* If, after the effective date of the Individuals with Disabilities Education Improvement Act of 2004, the provisions of this chapter are amended (or the regulations developed to carry out this chapter are amended), there is a new interpretation of this chapter by a Federal court or a State's highest court, or there is an official finding of noncompliance with Federal law or regulations, then the Secretary may require a State to modify its application only to the extent necessary to ensure the State's compliance with this subchapter.

(d) *Approval by the Secretary.*

(1) *In general.* If the Secretary determines that a State is eligible to receive a grant under this subchapter, the Secretary shall notify the State of that determination.

(2) *Notice and hearing.* The Secretary shall not make a final determination that a State is not eligible to receive a grant under this subchapter until after providing the State—

(A) with reasonable notice; and

(B) with an opportunity for a hearing.

(e) *Assistance under other Federal programs.* Nothing in this chapter permits a State to reduce medical and other assistance available, or to alter eligibility, under titles V and XIX of the Social Security Act [42 U.S.C. 701 et seq., 1396 et seq.] with respect to the provision of a free appropriate public education for children with disabilities in the State.

(f) *By-pass for children in private schools.*

(1) *In general.* If, on December 2, 1983, a State educational agency was prohibited by law from providing for the equitable participation in special programs of children with disabilities enrolled in private elementary schools and secondary schools as required by subsection (a)(10)(A), or if the Secretary determines that a State educational agency, local educational agency, or other entity has substantially failed or is unwilling to provide for such equitable participation, then the Secretary shall, notwithstanding such provision of law, arrange for the provision of services to such children through arrangements that shall be subject to the requirements of such subsection.

(2) *Payments.*

(A) *Determination of amounts.* If the Secretary arranges for services pursuant to this subsection, the Secretary, after consultation with the appropriate public and private school officials, shall pay to the provider of such services for a fiscal year an amount per child that does not exceed the amount determined by dividing—

(i) the total amount received by the State under this subchapter for such fiscal year; by

(ii) the number of children with disabilities served in the prior year, as reported to the Secretary by the State under section 1418 of this title.

(B) *Withholding of certain amounts.* Pending final resolution of any investigation or complaint that may result in a determination under this subsection, the Secretary may withhold from the allocation of the affected State educational agency the amount the Secretary estimates will be necessary to pay the cost of services described in

subparagraph (A).

(C) *Period of payments.* The period under which payments are made under subparagraph (A) shall continue until the Secretary determines that there will no longer be any failure or inability on the part of the State educational agency to meet the requirements of subsection (a)(10)(A).

(3) *Notice and hearing.*

(A) *In general.* The Secretary shall not take any final action under this subsection until the State educational agency affected by such action has had an opportunity, for not less than 45 days after receiving written notice thereof, to submit written objections and to appear before the Secretary or the Secretary's designee to show cause why such action should not be taken.

(B) *Review of action.* If a State educational agency is dissatisfied with the Secretary's final action after a proceeding under subparagraph (A), such agency may, not later than 60 days after notice of such action, file with the United States court of appeals for the circuit in which such State is located a petition for review of that action. A copy of the petition shall be forthwith transmitted by the clerk of the court to the Secretary. The Secretary thereupon shall file in the court the record of the proceedings on which the Secretary based the Secretary's action, as provided in section 2112 of title 28.

(C) *Review of findings of fact.* The findings of fact by the Secretary, if supported by substantial evidence, shall be conclusive, but the court, for good cause shown, may remand the case to the Secretary to take further evidence, and the Secretary may thereupon make new or modified findings of fact and may modify the Secretary's previous action, and shall file in the court the record of the further proceedings. Such new or modified findings of fact shall likewise be conclusive if supported by substantial evidence.

(D) *Jurisdiction of court of appeals; review by United States Supreme Court.* Upon the filing of a petition under subparagraph (B), the United States court of appeals shall have jurisdiction to affirm the action of the Secretary or to set it aside, in whole or in part. The judgment of the court shall be subject to review by the Supreme Court of the United States upon certiorari or certification as provided in section 1254 of title 28.

20 U.S.C. § 1413

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 2 (1) and its amici 0 (0).

Local educational agency eligibility

(a) *In general.* A local educational agency is eligible for assistance under this subchapter for a fiscal year if such agency submits a plan that provides assurances to the State educational agency that the local educational agency meets each of the following conditions:

(1) *Consistency with State policies.* The local educational agency, in providing for the education of children with disabilities within its jurisdiction, has in effect policies, procedures, and programs that are consistent with the State policies and procedures established under section 1412 of this title.

(2) *Use of amounts.*

(A) *In general.* Amounts provided to the local educational agency under this subchapter shall be expended in accordance with the applicable provisions of this subchapter and—

(i) shall be used only to pay the excess costs of providing special education and related services to children with disabilities;

(ii) shall be used to supplement State, local, and other Federal funds and not to supplant such funds; and

(iii) shall not be used, except as provided in subparagraphs (B) and (C), to reduce the level of expenditures for the education of children with disabilities made by the local educational agency from local funds below the level of those expenditures for the preceding fiscal year.

(B) *Exception.* Notwithstanding the restriction in subparagraph (A)(iii), a local educational agency may reduce the level of expenditures where such reduction is attributable to—

(i) the voluntary departure, by retirement or otherwise, or departure for just cause, of special education personnel;

(ii) a decrease in the enrollment of children with disabilities;

(iii) the termination of the obligation of the agency, consistent with this subchapter, to provide a program of special education to a particular child with a disability that is an exceptionally costly program, as determined by the State educational agency, because the child—

(I) has left the jurisdiction of the agency;

(II) has reached the age at which the obligation of the agency to provide a free appropriate public education to the child has terminated; or

(III) no longer needs such program of special education; or

(iv) the termination of costly expenditures for long-term purchases, such as the acquisition of equipment or the construction of school facilities.

(C) *Adjustment to local fiscal effort in certain fiscal years.*

(i) *Amounts in excess.* Notwithstanding clauses (ii) and (iii) of subparagraph (A), for any fiscal year for which the allocation received by a local educational agency under section 1411(f) of this title exceeds the amount the local educational agency received for the previous fiscal year, the local educational agency may reduce the level of expenditures otherwise required by subparagraph (A)(iii) by not more than 50 percent of the amount of such excess.

(ii) *Use of amounts to carry out activities under ESEA.* If a local educational agency exercises the authority under clause (i), the agency shall use an amount of local funds equal to the reduction in expenditures under clause (i) to carry out activities authorized under the Elementary and Secondary Education Act of 1965 [20 U.S.C. 6301 et seq.].

(iii) *State prohibition.* Notwithstanding clause (i), if a State educational agency determines that a local educational agency is unable to establish and maintain programs of free appropriate public education that meet the requirements of subsection (a) or the State educational agency has taken action against the local educational agency under section 1416 of this title, the State educational agency shall prohibit the local educational agency from reducing the level of expenditures under clause (i) for that fiscal year.

(iv) *Special rule.* The amount of funds expended by a local educational agency under subsection (f) shall count toward the maximum amount of expenditures such local educational agency may reduce under clause (i).

(D) *Schoolwide programs under title I of the ESEA.* Notwithstanding subparagraph (A) or any other provision of this subchapter, a local educational agency may use funds received under this subchapter for any fiscal year to carry out a schoolwide program under section 1114 of the Elementary and Secondary Education Act of 1965 [20 U.S.C. 6314], except that the amount so used in any such program shall not exceed—

(i) the number of children with disabilities participating in the schoolwide program; multiplied by

(ii)

(I) the amount received by the local educational agency under this subchapter for that fiscal year; divided by

(II) the number of children with disabilities in the jurisdiction of that agency.

(3) *Personnel development.* The local educational agency shall ensure that all personnel necessary to carry out this subchapter are appropriately and adequately prepared, subject to the requirements of section 1412(a)(14) of this title and section 2102(b) of the Elementary and Secondary Education Act of 1965 [20 U.S.C. 6612(b)].

(4) *Permissive use of funds.*

(A) *Uses.* Notwithstanding paragraph (2)(A) or section 1412(a)(17)(B) of this title (relating to commingled funds), funds provided to the local educational agency under this subchapter may be used for the following activities:

(i) *Services and aids that also benefit nondisabled children.* For the costs of special education and related services, and supplementary aids and services, provided in a regular class or other education-related setting to a child with a disability in accordance with the individualized education program of the child, even if 1 or more nondisabled children benefit from such services.

(ii) *Early intervening services.* To develop and implement coordinated, early intervening educational services in accordance with subsection (f).

(iii) *High cost education and related services.* To establish and implement cost or risk sharing funds, consortia, or cooperatives for the local educational agency itself, or for local educational agencies working in a consortium of which the local educational agency is a part, to pay for high cost special education and related services.

(B) *Administrative case management.* A local educational agency may use funds received under this subchapter to purchase appropriate technology for recordkeeping, data collection, and related case management activities of teachers and related services personnel providing services described in the individualized education program of children with disabilities, that is needed for the implementation of such case management activities.

(5) *Treatment of charter schools and their students.* In carrying out this subchapter with respect to charter schools that are public schools of the local educational agency, the local educational agency—

(A) serves children with disabilities attending those charter schools in the same manner as the local educational agency serves children with disabilities in its other schools, including providing supplementary and related services on site at the charter school to the same extent to which the local educational agency has a policy or practice of providing such services on the site to its other public schools; and

(B) provides funds under this subchapter to those charter schools—

(i) on the same basis as the local educational agency provides funds to the local educational agency's other public schools, including proportional distribution based on relative enrollment of children with disabilities; and

(ii) at the same time as the agency distributes other Federal funds to the agency's other public schools, consistent with the State's charter school law.

(6) *Purchase of instructional materials.*

(A) *In general.* Not later than 2 years after December 3, 2004, a local educational agency that chooses to coordinate with the National Instructional Materials Access Center, when purchasing print instructional materials, shall acquire the print instructional materials in the same manner and subject to the same conditions as a State educational agency acquires print instructional materials under section 1412(a)(23) of this title.

(B) *Rights of local educational agency.* Nothing in this paragraph shall be construed to require a local educational agency to coordinate with the National Instructional Materials Access Center. If a local educational agency chooses not to coordinate with the National Instructional Materials Access Center, the local educational agency shall provide an assurance to the State educational agency that the local educational agency will provide instructional materials to blind persons or other persons with print disabilities in a timely manner.

(7) *Information for State educational agency.* The local educational agency shall provide the State educational agency with information necessary to enable the State educational agency to carry out its duties under this subchapter, including, with respect to paragraphs (15) and (16) of section 1412(a) of this title, information relating to the performance of children with disabilities participating in programs carried out under this subchapter.

(8) *Public information.* The local educational agency shall make available to parents of children with disabilities and to the general public all documents relating to the eligibility of such agency under this subchapter.

(9) *Records regarding migratory children with disabilities.* The local educational agency shall cooperate in the Secretary's efforts under section 1308 of the Elementary and Secondary Education Act of 1965 [20 U.S.C. 6398] to ensure the linkage of records pertaining to migratory children with a disability for the purpose of electronically exchanging, among the States, health and educational information regarding such children.

(b) *Exception for prior local plans.*

(1) *In general.* If a local educational agency or State agency has on file with the State educational agency policies and procedures that demonstrate that such local educational agency, or such State agency, as the case may be, meets any requirement of subsection (a), including any policies and procedures filed under this subchapter as in effect before the effective date of the Individuals with Disabilities Education Improvement Act of 2004, the State educational agency shall consider such local educational agency or State agency, as the case may be, to have met such requirement for purposes of receiving assistance under this subchapter.

(2) *Modification made by local educational agency.* Subject to paragraph (3), an application submitted by a local educational agency in accordance with this section shall remain in effect until the local educational agency submits to the State educational agency such modifications as the local educational agency determines necessary.

(3) *Modifications required by State educational agency.* If, after the effective date of the Individuals with Disabilities Education Improvement Act of 2004, the provisions of this chapter are amended (or the regulations developed to carry out this chapter are amended), there is a new interpretation of this chapter by Federal or State courts, or there is an official finding of noncompliance with Federal or State law or regulations, then the State educational agency may require a local educational agency to modify its application only to the extent necessary to ensure the local educational agency's compliance with this subchapter or State law.

(c) *Notification of local educational agency or State agency in case of ineligibility.* If the State educational agency determines that a local educational agency or State agency is not eligible under this section, then the State educational agency shall notify the local educational agency or State agency, as the case may be, of that determination and shall provide such local educational agency or State agency with reasonable notice and an opportunity for a hearing.

(d) *Local educational agency compliance.*

(1) *In general.* If the State educational agency, after reasonable notice and an opportunity for a hearing, finds that a local educational agency or State agency that has been determined to be eligible under this section is failing to comply with any requirement described in subsection (a), the State educational agency shall reduce or shall not provide any further payments to the local educational agency or State agency until the State educational agency is satisfied that the local educational agency or State agency, as the case may be, is complying with that requirement.

(2) *Additional requirement.* Any State agency or local educational agency in receipt of a notice described in paragraph (1) shall, by means of public notice, take such measures as may be necessary to bring the pendency of an action pursuant to this subsection to the attention of the public within the jurisdiction of such agency.

(3) *Consideration.* In carrying out its responsibilities under paragraph (1), the State educational agency shall consider any decision made in a hearing held under section 1415 of this title that is adverse to the local educational agency or State agency involved in that decision.

(e) *Joint establishment of eligibility.*

(1) *Joint establishment.*

(A) *In general.* A State educational agency may require a local educational agency to establish its eligibility jointly with another local educational agency if the State educational agency determines that the local educational agency will be ineligible under this section because the local educational agency will not be able to establish and maintain

programs of sufficient size and scope to effectively meet the needs of children with disabilities.

(B) *Charter school exception.* A State educational agency may not require a charter school that is a local educational agency to jointly establish its eligibility under subparagraph (A) unless the charter school is explicitly permitted to do so under the State's charter school law.

(2) *Amount of payments.* If a State educational agency requires the joint establishment of eligibility under paragraph (1), the total amount of funds made available to the affected local educational agencies shall be equal to the sum of the payments that each such local educational agency would have received under section 1411(f) of this title if such agencies were eligible for such payments.

(3) *Requirements.* Local educational agencies that establish joint eligibility under this subsection shall—

(A) adopt policies and procedures that are consistent with the State's policies and procedures under section 1412(a) of this title; and

(B) be jointly responsible for implementing programs that receive assistance under this subchapter.

(4) *Requirements for educational service agencies.*

(A) *In general.* If an educational service agency is required by State law to carry out programs under this subchapter, the joint responsibilities given to local educational agencies under this subsection shall—

(i) not apply to the administration and disbursement of any payments received by that educational service agency; and

(ii) be carried out only by that educational service agency.

(B) *Additional requirement.* Notwithstanding any other provision of this subsection, an educational service agency shall provide for the education of children with disabilities in the least restrictive environment, as required by section 1412(a)(5) of this title.

(f) *Early intervening services.*

(1) *In general.* A local educational agency may not use more than 15 percent of the amount such agency receives under this subchapter for any fiscal year, less any amount reduced by the agency pursuant to subsection (a)(2)(C), if any, in combination with other amounts (which may include amounts other than education funds), to develop and implement coordinated, early intervening services, which may include interagency financing structures, for students in kindergarten through grade 12 (with a particular emphasis on students in kindergarten through grade 3) who have not been identified as needing special education or related services but who need additional academic and behavioral support to succeed in a general education environment.

(2) *Activities.* In implementing coordinated, early intervening services under this subsection, a local educational agency may carry out activities that include—

(A) professional development (which may be provided by entities other than local educational agencies) for teachers and other school staff to enable such personnel to deliver scientifically based academic instruction and behavioral interventions, including scientifically based literacy instruction, and, where appropriate, instruction on the use of adaptive and instructional software; and

(B) providing educational and behavioral evaluations, services, and supports, including scientifically based literacy instruction.

(3) *Construction.* Nothing in this subsection shall be construed to limit or create a right to a free appropriate public education under this subchapter.

(4) *Reporting.* Each local educational agency that develops and maintains coordinated, early intervening services under this subsection shall annually report to the State educational agency on—

(A) the number of students served under this subsection; and

(B) the number of students served under this subsection who subsequently receive special education and related services under this chapter during the preceding 2-year period.

(5) *Coordination with Elementary and Secondary Education Act of 1965.* Funds made available to carry out this subsection may be used to carry out coordinated, early intervening services aligned with activities funded by, and carried out under, the Elementary and Secondary Education Act of 1965 [20 U.S.C. 6301 et seq.] if such funds are used to supplement, and not supplant, funds made available under the Elementary and Secondary Education Act of 1965 for the activities and services assisted under this subsection.

(g) *Direct services by the State educational agency.*

(1) *In general.* A State educational agency shall use the payments that would otherwise have been available to a local educational agency or to a State agency to provide special education and related services directly to children with disabilities residing in the area served by that local educational agency, or for whom that State agency is responsible, if the State educational agency determines that the local educational agency or State agency, as the case may be—

(A) has not provided the information needed to establish the eligibility of such local educational agency or State agency under this section;

(B) is unable to establish and maintain programs of free appropriate public education that meet the requirements

of subsection (a);

(C) is unable or unwilling to be consolidated with 1 or more local educational agencies in order to establish and maintain such programs; or

(D) has 1 or more children with disabilities who can best be served by a regional or State program or service delivery system designed to meet the needs of such children.

(2) *Manner and location of education and services.* The State educational agency may provide special education and related services under paragraph (1) in such manner and at such locations (including regional or State centers) as the State educational agency considers appropriate. Such education and services shall be provided in accordance with this subchapter.

(h) *State agency eligibility.* Any State agency that desires to receive a subgrant for any fiscal year under section 1411(f) of this title shall demonstrate to the satisfaction of the State educational agency that—

(1) all children with disabilities who are participating in programs and projects funded under this subchapter receive a free appropriate public education, and that those children and their parents are provided all the rights and procedural safeguards described in this subchapter; and

(2) the agency meets such other conditions of this section as the Secretary determines to be appropriate.

(i) *Disciplinary information.* The State may require that a local educational agency include in the records of a child with a disability a statement of any current or previous disciplinary action that has been taken against the child and transmit such statement to the same extent that such disciplinary information is included in, and transmitted with, the student records of nondisabled children. The statement may include a description of any behavior engaged in by the child that required disciplinary action, a description of the disciplinary action taken, and any other information that is relevant to the safety of the child and other individuals involved with the child. If the State adopts such a policy, and the child transfers from 1 school to another, the transmission of any of the child's records shall include both the child's current individualized education program and any such statement of current or previous disciplinary action that has been taken against the child.

(j) *State agency flexibility.*

(1) *Adjustment to State fiscal effort in certain fiscal years.* For any fiscal year for which the allotment received by a State under section 1411 of this title exceeds the amount the State received for the previous fiscal year and if the State in school year 2003–2004 or any subsequent school year pays or reimburses all local educational agencies within the State from State revenue 100 percent of the non-Federal share of the costs of special education and related services, the State educational agency, notwithstanding paragraphs (17) and (18) of section 1412(a) of this title and section 1412(b) of this title, may reduce the level of expenditures from State sources for the education of children with disabilities by not more than 50 percent of the amount of such excess.

(2) *Prohibition.* Notwithstanding paragraph (1), if the Secretary determines that a State educational agency is unable to establish, maintain, or oversee programs of free appropriate public education that meet the requirements of this subchapter, or that the State needs assistance, intervention, or substantial intervention under section 1416(d)(2)(A) of this title, the Secretary shall prohibit the State educational agency from exercising the authority in paragraph (1).

(3) *Education activities.* If a State educational agency exercises the authority under paragraph (1), the agency shall use funds from State sources, in an amount equal to the amount of the reduction under paragraph (1), to support activities authorized under the Elementary and Secondary Education Act of 1965 [20 U.S.C. 6301 et seq.] or to support need based student or teacher higher education programs.

(4) *Report.* For each fiscal year for which a State educational agency exercises the authority under paragraph (1), the State educational agency shall report to the Secretary the amount of expenditures reduced pursuant to such paragraph and the activities that were funded pursuant to paragraph (3).

(5) *Limitation.* Notwithstanding paragraph (1), a State educational agency may not reduce the level of expenditures described in paragraph (1) if any local educational agency in the State would, as a result of such reduction, receive less than 100 percent of the amount necessary to ensure that all children with disabilities served by the local educational agency receive a free appropriate public education from the combination of Federal funds received under this chapter and State funds received from the State educational agency.

20 U.S.C. § 1414

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 2 (1) and its amici 3 (1).

Evaluations, eligibility determinations, individualized education programs, and educational placements

(a) *Evaluations, parental consent, and reevaluations.*

(1) *Initial evaluations.*

(A) *In general.* A State educational agency, other State agency, or local educational agency shall conduct a full and individual initial evaluation in accordance with this paragraph and subsection (b), before the initial provision of special education and related services to a child with a disability under this subchapter.

(B) *Request for initial evaluation.* Consistent with subparagraph (D), either a parent of a child, or a State educational agency, other State agency, or local educational agency may initiate a request for an initial evaluation to determine if the child is a child with a disability.

(C) *Procedures.*

(i) *In general.* Such initial evaluation shall consist of procedures—

(I) to determine whether a child is a child with a disability (as defined in 1401 of this title) within 60 days of receiving parental consent for the evaluation, or, if the State establishes a timeframe within which the evaluation must be conducted, within such timeframe; and

(II) to determine the educational needs of such child.

(ii) *Exception.* The relevant timeframe in clause (i)(I) shall not apply to a local educational agency if—

(I) a child enrolls in a school served by the local educational agency after the relevant timeframe in clause (i)(I) has begun and prior to a determination by the child's previous local educational agency as to whether the child is a child with a disability (as defined in section 1401 of this title), but only if the subsequent local educational agency is making sufficient progress to ensure a prompt completion of the evaluation, and the parent and subsequent local educational agency agree to a specific time when the evaluation will be completed; or

(II) the parent of a child repeatedly fails or refuses to produce the child for the evaluation.

(D) *Parental consent.*

(i) *In general.*

(I) *Consent for initial evaluation.* The agency proposing to conduct an initial evaluation to determine if the child qualifies as a child with a disability as defined in section 1401 of this title shall obtain informed consent from the parent of such child before conducting the evaluation. Parental consent for evaluation shall not be construed as consent for placement for receipt of special education and related services.

(II) *Consent for services.* An agency that is responsible for making a free appropriate public education available to a child with a disability under this subchapter shall seek to obtain informed consent from the parent of such child before providing special education and related services to the child.

(ii) *Absence of consent.*

(I) *For initial evaluation.* If the parent of such child does not provide consent for an initial evaluation under clause (i)(I), or the parent fails to respond to a request to provide the consent, the local educational agency may pursue the initial evaluation of the child by utilizing the procedures described in section 1415 of this title, except to the extent inconsistent with State law relating to such parental consent.

(II) *For services.* If the parent of such child refuses to consent to services under clause (i)(II), the local educational agency shall not provide special education and related services to the child by utilizing the procedures described in section 1415 of this title.

(III) *Effect on agency obligations.* If the parent of such child refuses to consent to the receipt of special education and related services, or the parent fails to respond to a request to provide such consent—

(aa) the local educational agency shall not be considered to be in violation of the requirement to make available a free appropriate public education to the child for the failure to provide such child with the special education and related services for which the local educational agency requests such consent; and

(bb) the local educational agency shall not be required to convene an IEP meeting or develop an IEP under this section for the child for the special education and related services for which the local educational agency requests such consent.

(iii) *Consent for wards of the State.*

(I) *In general.* If the child is a ward of the State and is not residing with the child's parent, the agency shall make reasonable efforts to obtain the informed consent from the parent (as defined in section 1401 of this title) of the child for an initial evaluation to determine whether the child is a child with a disability.

(II) *Exception.* The agency shall not be required to obtain informed consent from the parent of a child for an initial evaluation to determine whether the child is a child with a disability if—

(aa) despite reasonable efforts to do so, the agency cannot discover the whereabouts of the parent of the child;

(bb) the rights of the parents of the child have been terminated in accordance with State law; or

(cc) the rights of the parent to make educational decisions have been subrogated by a judge in accordance with State law and consent for an initial evaluation has been given by an individual appointed by the judge to represent the child.

(E) *Rule of construction.* The screening of a student by a teacher or specialist to determine appropriate instructional strategies for curriculum implementation shall not be considered to be an evaluation for eligibility for special education and related services.

(2) *Reevaluations.*

(A) *In general.* A local educational agency shall ensure that a reevaluation of each child with a disability is conducted in accordance with subsections (b) and (c)—

(i) if the local educational agency determines that the educational or related services needs, including improved academic achievement and functional performance, of the child warrant a reevaluation; or

(ii) if the child's parents or teacher requests a reevaluation.

(B) *Limitation.* A reevaluation conducted under subparagraph (A) shall occur—

(i) not more frequently than once a year, unless the parent and the local educational agency agree otherwise; and

(ii) at least once every 3 years, unless the parent and the local educational agency agree that a reevaluation is unnecessary.

(b) *Evaluation procedures.*

(1) *Notice.* The local educational agency shall provide notice to the parents of a child with a disability, in accordance with subsections (b)(3), (b)(4), and (c) of section 1415 of this title, that describes any evaluation procedures such agency proposes to conduct.

(2) *Conduct of evaluation.* In conducting the evaluation, the local educational agency shall—

(A) use a variety of assessment tools and strategies to gather relevant functional, developmental, and academic information, including information provided by the parent, that may assist in determining—

(i) whether the child is a child with a disability; and

(ii) the content of the child's individualized education program, including information related to enabling the child to be involved in and progress in the general education curriculum, or, for preschool children, to participate in appropriate activities;

(B) not use any single measure or assessment as the sole criterion for determining whether a child is a child with a disability or determining an appropriate educational program for the child; and

(C) use technically sound instruments that may assess the relative contribution of cognitive and behavioral factors, in addition to physical or developmental factors.

(3) *Additional requirements.* Each local educational agency shall ensure that—

(A) assessments and other evaluation materials used to assess a child under this section—

(i) are selected and administered so as not to be discriminatory on a racial or cultural basis;

(ii) are provided and administered in the language and form most likely to yield accurate information on what the child knows and can do academically, developmentally, and functionally, unless it is not feasible to so provide or administer;

(iii) are used for purposes for which the assessments or measures are valid and reliable;

(iv) are administered by trained and knowledgeable personnel; and

(v) are administered in accordance with any instructions provided by the producer of such assessments;

(B) the child is assessed in all areas of suspected disability;

(C) assessment tools and strategies that provide relevant information that directly assists persons in determining the educational needs of the child are provided; and

(D) assessments of children with disabilities who transfer from 1 school district to another school district in the same academic year are coordinated with such children's prior and subsequent schools, as necessary and as expeditiously as possible, to ensure prompt completion of full evaluations.

(4) *Determination of eligibility and educational need.* Upon completion of the administration of assessments and other evaluation measures—

(A) the determination of whether the child is a child with a disability as defined in section 1401(3) of this title and the educational needs of the child shall be made by a team of qualified professionals and the parent of the child in accordance with paragraph (5); and

(B) a copy of the evaluation report and the documentation of determination of eligibility shall be given to the parent.

(5) *Special rule for eligibility determination.* In making a determination of eligibility under paragraph (4)(A), a child shall not be determined to be a child with a disability if the determinant factor for such determination is—

(A) lack of appropriate instruction in reading, including in the essential components of reading instruction (as defined in section 6368(3) of this title, as such section was in effect on the day before December 10, 2015);

(B) lack of instruction in math; or

(C) limited English proficiency.

(6) *Specific learning disabilities.*

(A) *In general.* Notwithstanding section 1406(b) of this title, when determining whether a child has a specific learning disability as defined in section 1401 of this title, a local educational agency shall not be required to take into consideration whether a child has a severe discrepancy between achievement and intellectual ability in oral expression, listening comprehension, written expression, basic reading skill, reading comprehension, mathematical calculation, or mathematical reasoning.

(B) *Additional authority.* In determining whether a child has a specific learning disability, a local educational agency may use a process that determines if the child responds to scientific, research-based intervention as a part of the evaluation procedures described in paragraphs (2) and (3).

(c) *Additional requirements for evaluation and reevaluations.*

(1) *Review of existing evaluation data.* As part of an initial evaluation (if appropriate) and as part of any reevaluation under this section, the IEP Team and other qualified professionals, as appropriate, shall—

(A) review existing evaluation data on the child, including—

(i) evaluations and information provided by the parents of the child;

(ii) current classroom-based, local, or State assessments, and classroom-based observations; and

(iii) observations by teachers and related services providers; and

(B) on the basis of that review, and input from the child's parents, identify what additional data, if any, are needed to determine—

(i) whether the child is a child with a disability as defined in section 1401(3) of this title, and the educational needs of the child, or, in case of a reevaluation of a child, whether the child continues to have such a disability and such educational needs;

(ii) the present levels of academic achievement and related developmental needs of the child;

(iii) whether the child needs special education and related services, or in the case of a reevaluation of a child, whether the child continues to need special education and related services; and

(iv) whether any additions or modifications to the special education and related services are needed to enable the child to meet the measurable annual goals set out in the individualized education program of the child and to participate, as appropriate, in the general education curriculum.

(2) *Source of data.* The local educational agency shall administer such assessments and other evaluation measures as may be needed to produce the data identified by the IEP Team under paragraph (1)(B).

(3) *Parental consent.* Each local educational agency shall obtain informed parental consent, in accordance with subsection (a)(1)(D), prior to conducting any reevaluation of a child with a disability, except that such informed parental consent need not be obtained if the local educational agency can demonstrate that it had taken reasonable measures to obtain such consent and the child's parent has failed to respond.

(4) *Requirements if additional data are not needed.* If the IEP Team and other qualified professionals, as appropriate, determine that no additional data are needed to determine whether the child continues to be a child with a disability and to determine the child's educational needs, the local educational agency—

(A) shall notify the child's parents of—

(i) that determination and the reasons for the determination; and

(ii) the right of such parents to request an assessment to determine whether the child continues to be a child with a disability and to determine the child's educational needs; and

(B) shall not be required to conduct such an assessment unless requested to by the child's parents.

(5) *Evaluations before change in eligibility.*

(A) *In general.* Except as provided in subparagraph (B), a local educational agency shall evaluate a child with a disability in accordance with this section before determining that the child is no longer a child with a disability.

(B) *Exception.*

(i) *In general.* The evaluation described in subparagraph (A) shall not be required before the termination of a child's eligibility under this subchapter due to graduation from secondary school with a regular diploma, or due to exceeding the age eligibility for a free appropriate public education under State law.

(ii) *Summary of performance.* For a child whose eligibility under this subchapter terminates under circumstances described in clause (i), a local educational agency shall provide the child with a summary of the child's academic achievement and functional performance, which shall include recommendations on how to assist the child in meeting the child's postsecondary goals.

(d) *Individualized education programs.*

(1) *Definitions.* In this chapter:

(A) *Individualized education program.*

(i) *In general.* The term "individualized education program" or "IEP" means a written statement for each child with a disability that is developed, reviewed, and revised in accordance with this section and that includes—

(I) a statement of the child's present levels of academic achievement and functional performance, including—

(aa) how the child's disability affects the child's involvement and progress in the general education curriculum;

(bb) for preschool children, as appropriate, how the disability affects the child's participation in appropriate activities; and

(cc) for children with disabilities who take alternate assessments aligned to alternate achievement standards, a description of benchmarks or short-term objectives;

(II) a statement of measurable annual goals, including academic and functional goals, designed to—

(aa) meet the child's needs that result from the child's disability to enable the child to be involved in and make progress in the general education curriculum; and

(bb) meet each of the child's other educational needs that result from the child's disability;

(III) a description of how the child's progress toward meeting the annual goals described in subclause (II) will be measured and when periodic reports on the progress the child is making toward meeting the annual goals (such as through the use of quarterly or other periodic reports, concurrent with the issuance of report cards) will be provided;

(IV) a statement of the special education and related services and supplementary aids and services, based on peer-reviewed research to the extent practicable, to be provided to the child, or on behalf of the child, and a statement of the program modifications or supports for school personnel that will be provided for the child—

(aa) to advance appropriately toward attaining the annual goals;

(bb) to be involved in and make progress in the general education curriculum in accordance with subclause (I) and to participate in extracurricular and other nonacademic activities; and

(cc) to be educated and participate with other children with disabilities and nondisabled children in the activities described in this subparagraph;

(V) an explanation of the extent, if any, to which the child will not participate with nondisabled children in the regular class and in the activities described in subclause (IV)(cc);

(VI)

(aa) a statement of any individual appropriate accommodations that are necessary to measure the academic achievement and functional performance of the child on State and districtwide assessments consistent with section 1412(a)(16)(A) of this title; and

(bb) if the IEP Team determines that the child shall take an alternate assessment on a particular State or districtwide assessment of student achievement, a statement of why—

(AA) the child cannot participate in the regular assessment; and

(BB) the particular alternate assessment selected is appropriate for the child;

(VII) the projected date for the beginning of the services and modifications described in subclause (IV), and the anticipated frequency, location, and duration of those services and modifications; and

(VIII) beginning not later than the first IEP to be in effect when the child is 16, and updated annually thereafter—

(aa) appropriate measurable postsecondary goals based upon age appropriate transition assessments related to training, education, employment, and, where appropriate, independent living skills;

(bb) the transition services (including courses of study) needed to assist the child in reaching those goals; and

(cc) beginning not later than 1 year before the child reaches the age of majority under State law, a statement that the child has been informed of the child's rights under this chapter, if any, that will transfer to the child on reaching the age of majority under section 1415(m) of this title.

(ii) *Rule of construction.* Nothing in this section shall be construed to require—

(I) that additional information be included in a child's IEP beyond what is explicitly required in this section; and

(II) the IEP Team to include information under 1 component of a child's IEP that is already contained under another component of such IEP.

(B) *Individualized education program team.* The term "individualized education program team" or "IEP Team" means a group of individuals composed of—

(i) the parents of a child with a disability;

(ii) not less than 1 regular education teacher of such child (if the child is, or may be, participating in the regular education environment);

(iii) not less than 1 special education teacher, or where appropriate, not less than 1 special education provider of such child;

(iv) a representative of the local educational agency who—

(I) is qualified to provide, or supervise the provision of, specially designed instruction to meet the unique needs of children with disabilities;

(II) is knowledgeable about the general education curriculum; and

(III) is knowledgeable about the availability of resources of the local educational agency;

(v) an individual who can interpret the instructional implications of evaluation results, who may be a member of the team described in clauses (ii) through (vi);

(vi) at the discretion of the parent or the agency, other individuals who have knowledge or special expertise regarding the child, including related services personnel as appropriate; and

(vii) whenever appropriate, the child with a disability.

(C) *IEP Team attendance.*

(i) *Attendance not necessary.* A member of the IEP Team shall not be required to attend an IEP meeting, in whole or in part, if the parent of a child with a disability and the local educational agency agree that the attendance of such member is not necessary because the member's area of the curriculum or related services is not being modified or discussed in the meeting.

(ii) *Excusal.* A member of the IEP Team may be excused from attending an IEP meeting, in whole or in part, when the meeting involves a modification to or discussion of the member's area of the curriculum or related services, if—

(I) the parent and the local educational agency consent to the excusal; and

(II) the member submits, in writing to the parent and the IEP Team, input into the development of the IEP prior to the meeting.

(iii) *Written agreement and consent required.* A parent's agreement under clause (i) and consent under clause (ii) shall be in writing.

(D) *IEP Team transition.* In the case of a child who was previously served under subchapter III, an invitation to the initial IEP meeting shall, at the request of the parent, be sent to the subchapter III service coordinator or other representatives of the subchapter III system to assist with the smooth transition of services.

(2) *Requirement that program be in effect.*

(A) *In general.* At the beginning of each school year, each local educational agency, State educational agency, or other State agency, as the case may be, shall have in effect, for each child with a disability in the agency's jurisdiction, an individualized education program, as defined in paragraph (1)(A).

(B) *Program for child aged 3 through 5.* In the case of a child with a disability aged 3 through 5 (or, at the discretion of the State educational agency, a 2-year-old child with a disability who will turn age 3 during the school year), the IEP Team shall consider the individualized family service plan that contains the material described in section 1436 of this title, and that is developed in accordance with this section, and the individualized family service plan may serve as the IEP of the child if using that plan as the IEP is—

(i) consistent with State policy; and

(ii) agreed to by the agency and the child's parents.

(C) *Program for children who transfer school districts.*

(i) *In general.*

(I) *Transfer within the same State.* In the case of a child with a disability who transfers school districts within the same academic year, who enrolls in a new school, and who had an IEP that was in effect in the same State, the local educational agency shall provide such child with a free appropriate public education, including services comparable to those described in the previously held IEP, in consultation with the parents until such time as the local educational agency adopts the previously held IEP or develops, adopts, and implements a new IEP that is consistent with Federal and State law.

(II) *Transfer outside State.* In the case of a child with a disability who transfers school districts within the same academic year, who enrolls in a new school, and who had an IEP that was in effect in another State, the local educational agency shall provide such child with a free appropriate public education, including services comparable to those described in the previously held IEP, in consultation with the parents until such time as the local educational agency conducts an evaluation pursuant to subsection (a)(1), if determined to be necessary by such agency, and develops a new IEP, if appropriate, that is consistent with Federal and State law.

(ii) *Transmittal of records.* To facilitate the transition for a child described in clause (i)—

(I) the new school in which the child enrolls shall take reasonable steps to promptly obtain the child's records, including the IEP and supporting documents and any other records relating to the provision of special

education or related services to the child, from the previous school in which the child was enrolled, pursuant to section 99.31(a)(2) of title 34, Code of Federal Regulations; and

(II) the previous school in which the child was enrolled shall take reasonable steps to promptly respond to such request from the new school.

(3) *Development of IEP.*

(A) *In general.* In developing each child's IEP, the IEP Team, subject to subparagraph (C), shall consider—

(i) the strengths of the child;

(ii) the concerns of the parents for enhancing the education of their child;

(iii) the results of the initial evaluation or most recent evaluation of the child; and

(iv) the academic, developmental, and functional needs of the child.

(B) *Consideration of special factors.* The IEP Team shall—

(i) in the case of a child whose behavior impedes the child's learning or that of others, consider the use of positive behavioral interventions and supports, and other strategies, to address that behavior;

(ii) in the case of a child with limited English proficiency, consider the language needs of the child as such needs relate to the child's IEP;

(iii) in the case of a child who is blind or visually impaired, provide for instruction in Braille and the use of Braille unless the IEP Team determines, after an evaluation of the child's reading and writing skills, needs, and appropriate reading and writing media (including an evaluation of the child's future needs for instruction in Braille or the use of Braille), that instruction in Braille or the use of Braille is not appropriate for the child;

(iv) consider the communication needs of the child, and in the case of a child who is deaf or hard of hearing, consider the child's language and communication needs, opportunities for direct communications with peers and professional personnel in the child's language and communication mode, academic level, and full range of needs, including opportunities for direct instruction in the child's language and communication mode; and

(v) consider whether the child needs assistive technology devices and services.

(C) *Requirement with respect to regular education teacher.* A regular education teacher of the child, as a member of the IEP Team, shall, to the extent appropriate, participate in the development of the IEP of the child, including the determination of appropriate positive behavioral interventions and supports, and other strategies, and the determination of supplementary aids and services, program modifications, and support for school personnel consistent with paragraph (1)(A)(i)(IV).

(D) *Agreement.* In making changes to a child's IEP after the annual IEP meeting for a school year, the parent of a child with a disability and the local educational agency may agree not to convene an IEP meeting for the purposes of making such changes, and instead may develop a written document to amend or modify the child's current IEP.

(E) *Consolidation of IEP Team meetings.* To the extent possible, the local educational agency shall encourage the consolidation of reevaluation meetings for the child and other IEP Team meetings for the child.

(F) *Amendments.* Changes to the IEP may be made either by the entire IEP Team or, as provided in subparagraph (D), by amending the IEP rather than by redrafting the entire IEP. Upon request, a parent shall be provided with a revised copy of the IEP with the amendments incorporated.

(4) *Review and revision of IEP.*

(A) *In general.* The local educational agency shall ensure that, subject to subparagraph (B), the IEP Team—

(i) reviews the child's IEP periodically, but not less frequently than annually, to determine whether the annual goals for the child are being achieved; and

(ii) revises the IEP as appropriate to address—

(I) any lack of expected progress toward the annual goals and in the general education curriculum, where appropriate;

(II) the results of any reevaluation conducted under this section;

(III) information about the child provided to, or by, the parents, as described in subsection (c)(1)(B);

(IV) the child's anticipated needs; or

(V) other matters.

(B) *Requirement with respect to regular education teacher.* A regular education teacher of the child, as a member of the IEP Team, shall, consistent with paragraph (1)(C), participate in the review and revision of the IEP of the child.

(5) *Multi-year IEP demonstration.*

(A) *Pilot program.*

(i) *Purpose.* The purpose of this paragraph is to provide an opportunity for States to allow parents and local educational agencies the opportunity for long-term planning by offering the option of developing a comprehensive multi-year IEP, not to exceed 3 years, that is designed to coincide with the natural transition points for the child.

(ii) *Authorization.* In order to carry out the purpose of this paragraph, the Secretary is authorized to approve not more than 15 proposals from States to carry out the activity described in clause (i).

(iii) *Proposal.*

(I) *In general.* A State desiring to participate in the program under this paragraph shall submit a proposal to the Secretary at such time and in such manner as the Secretary may reasonably require.

(II) *Content.* The proposal shall include—

(aa) assurances that the development of a multi-year IEP under this paragraph is optional for parents;

(bb) assurances that the parent is required to provide informed consent before a comprehensive multi-year IEP is developed;

(cc) a list of required elements for each multi-year IEP, including—

(AA) measurable goals pursuant to paragraph (1)(A)(i)(II), coinciding with natural transition points for the child, that will enable the child to be involved in and make progress in the general education curriculum and that will meet the child's other needs that result from the child's disability; and

(BB) measurable annual goals for determining progress toward meeting the goals described in subitem (AA); and

(dd) a description of the process for the review and revision of each multi-year IEP, including—

(AA) a review by the IEP Team of the child's multi-year IEP at each of the child's natural transition points;

(BB) in years other than a child's natural transition points, an annual review of the child's IEP to determine the child's current levels of progress and whether the annual goals for the child are being achieved, and a requirement to amend the IEP, as appropriate, to enable the child to continue to meet the measurable goals set out in the IEP;

(CC) if the IEP Team determines on the basis of a review that the child is not making sufficient progress toward the goals described in the multi-year IEP, a requirement that the local educational agency shall ensure that the IEP Team carries out a more thorough review of the IEP in accordance with paragraph (4) within 30 calendar days; and

(DD) at the request of the parent, a requirement that the IEP Team shall conduct a review of the child's multi-year IEP rather than or subsequent to an annual review.

(B) *Report.* Beginning 2 years after December 3, 2004, the Secretary shall submit an annual report to the Committee on Education and the Workforce of the House of Representatives and the Committee on Health, Education, Labor, and Pensions of the Senate regarding the effectiveness of the program under this paragraph and any specific recommendations for broader implementation of such program, including—

(i) reducing—

(I) the paperwork burden on teachers, principals, administrators, and related service providers; and

(II) noninstructional time spent by teachers in complying with this subchapter;

(ii) enhancing longer-term educational planning;

(iii) improving positive outcomes for children with disabilities;

(iv) promoting collaboration between IEP Team members; and

(v) ensuring satisfaction of family members.

(C) *Definition.* In this paragraph, the term "natural transition points" means those periods that are close in time to the transition of a child with a disability from preschool to elementary grades, from elementary grades to middle or junior high school grades, from middle or junior high school grades to secondary school grades, and from secondary school grades to post-secondary activities, but in no case a period longer than 3 years.

(6) *Failure to meet transition objectives.* If a participating agency, other than the local educational agency, fails to provide the transition services described in the IEP in accordance with paragraph (1)(A)(i)(VIII), the local educational agency shall reconvene the IEP Team to identify alternative strategies to meet the transition objectives for the child set out in the IEP.

(7) *Children with disabilities in adult prisons.*

(A) *In general.* The following requirements shall not apply to children with disabilities who are convicted as adults under State law and incarcerated in adult prisons:

(i) The requirements contained in section 1412(a)(16) of this title and paragraph (1)(A)(i)(VI) (relating to participation of children with disabilities in general assessments).

(ii) The requirements of items (aa) and (bb) of paragraph (1)(A)(i)(VIII) (relating to transition planning and transition services), do not apply with respect to such children whose eligibility under this subchapter will end, because of such children's age, before such children will be released from prison.

(B) *Additional requirement.* If a child with a disability is convicted as an adult under State law and incarcerated in an adult prison, the child's IEP Team may modify the child's IEP or placement notwithstanding the requirements of sections 1412(a)(5)(A) of this title and paragraph (1)(A) if the State has demonstrated a bona fide security or compelling penological interest that cannot otherwise be accommodated.

(e) *Educational placements.* Each local educational agency or State educational agency shall ensure that the parents of each child with a disability are members of any group that makes decisions on the educational placement of their child.
(f) *Alternative means of meeting participation.* When conducting IEP team meetings and placement meetings pursuant to this section, section 1415(e) of this title, and section 1415(f)(1)(B) of this title, and carrying out administrative matters under section 1415 of this title (such as scheduling, exchange of witness lists, and status conferences), the parent of a child with a disability and a local educational agency may agree to use alternative means of meeting participation, such as video conferences and conference calls.

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Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Preschool grants

(a) *In general.* The Secretary shall provide grants under this section to assist States to provide special education and related services, in accordance with this subchapter—

(1) to children with disabilities aged 3 through 5, inclusive; and

(2) at the State's discretion, to 2-year-old children with disabilities who will turn 3 during the school year.

(b) *Eligibility.* A State shall be eligible for a grant under this section if such State—

(1) is eligible under section 1412 of this title to receive a grant under this subchapter; and

(2) makes a free appropriate public education available to all children with disabilities, aged 3 through 5, residing in the State.

(c) *Allocations to States.*

(1) *In general.* The Secretary shall allocate the amount made available to carry out this section for a fiscal year among the States in accordance with paragraph (2) or (3), as the case may be.

(2) *Increase in funds.* If the amount available for allocations to States under paragraph (1) for a fiscal year is equal to or greater than the amount allocated to the States under this section for the preceding fiscal year, those allocations shall be calculated as follows:

(A) *Allocation.*

(i) *In general.* Except as provided in subparagraph (B), the Secretary shall—

(I) allocate to each State the amount the State received under this section for fiscal year 1997;

(II) allocate 85 percent of any remaining funds to States on the basis of the States' relative populations of children aged 3 through 5; and

(III) allocate 15 percent of those remaining funds to States on the basis of the States' relative populations of all children aged 3 through 5 who are living in poverty.

(ii) *Data.* For the purpose of making grants under this paragraph, the Secretary shall use the most recent population data, including data on children living in poverty, that are available and satisfactory to the Secretary.

(B) *Limitations.* Notwithstanding subparagraph (A), allocations under this paragraph shall be subject to the following:

(i) *Preceding years.* No State's allocation shall be less than its allocation under this section for the preceding fiscal year.

(ii) *Minimum.* No State's allocation shall be less than the greatest of—

(I) the sum of—

(aa) the amount the State received under this section for fiscal year 1997; and

(bb) 1/3 of 1 percent of the amount by which the amount appropriated under subsection (j) for the fiscal year exceeds the amount appropriated for this section for fiscal year 1997;

(II) the sum of—

(aa) the amount the State received under this section for the preceding fiscal year; and

(bb) that amount multiplied by the percentage by which the increase in the funds appropriated under this section from the preceding fiscal year exceeds 1.5 percent; or

(III) the sum of—

(aa) the amount the State received under this section for the preceding fiscal year; and

(bb) that amount multiplied by 90 percent of the percentage increase in the amount appropriated under this section from the preceding fiscal year.

(iii) *Maximum.* Notwithstanding clause (ii), no State's allocation under this paragraph shall exceed the sum of—

(I) the amount the State received under this section for the preceding fiscal year; and

(II) that amount multiplied by the sum of 1.5 percent and the percentage increase in the amount appropriated under this section from the preceding fiscal year.

(C) *Ratable reductions.* If the amount available for allocations under this paragraph is insufficient to pay those allocations in full, those allocations shall be ratably reduced, subject to subparagraph (B)(i).

(3) *Decrease in funds.* If the amount available for allocations to States under paragraph (1) for a fiscal year is less than the amount allocated to the States under this section for the preceding fiscal year, those allocations shall be calculated as follows:

(A) *Allocations.* If the amount available for allocations is greater than the amount allocated to the States for fiscal year 1997, each State shall be allocated the sum of—

(i) the amount the State received under this section for fiscal year 1997; and

(ii) an amount that bears the same relation to any remaining funds as the increase the State received under this section for the preceding fiscal year over fiscal year 1997 bears to the total of all such increases for all States.

(B) *Ratable reductions.* If the amount available for allocations is equal to or less than the amount allocated to the States for fiscal year 1997, each State shall be allocated the amount the State received for fiscal year 1997, ratably reduced, if necessary.

(d) *Reservation for State activities.*

(1) *In general.* Each State may reserve not more than the amount described in paragraph (2) for administration and other State-level activities in accordance with subsections (e) and (f).

(2) *Amount described.* For each fiscal year, the Secretary shall determine and report to the State educational agency an amount that is 25 percent of the amount the State received under this section for fiscal year 1997, cumulatively adjusted by the Secretary for each succeeding fiscal year by the lesser of—

(A) the percentage increase, if any, from the preceding fiscal year in the State's allocation under this section; or

(B) the percentage increase, if any, from the preceding fiscal year in the Consumer Price Index For All Urban Consumers published by the Bureau of Labor Statistics of the Department of Labor.

(e) *State administration.*

(1) *In general.* For the purpose of administering this section (including the coordination of activities under this subchapter with, and providing technical assistance to, other programs that provide services to children with disabilities) a State may use not more than 20 percent of the maximum amount the State may reserve under subsection (d) for any fiscal year.

(2) *Administration of subchapter III.* Funds described in paragraph (1) may also be used for the administration of subchapter III.

(f) *Other State-level activities.* Each State shall use any funds the State reserves under subsection (d) and does not use for administration under subsection (e)—

(1) for support services (including establishing and implementing the mediation process required by section 1415(e) of this title), which may benefit children with disabilities younger than 3 or older than 5 as long as those services also benefit children with disabilities aged 3 through 5;

(2) for direct services for children eligible for services under this section;

(3) for activities at the State and local levels to meet the performance goals established by the State under section 1412(a)(15) of this title;

(4) to supplement other funds used to develop and implement a statewide coordinated services system designed to improve results for children and families, including children with disabilities and their families, but not more than 1 percent of the amount received by the State under this section for a fiscal year;

(5) to provide early intervention services (which shall include an educational component that promotes school readiness and incorporates preliteracy, language, and numeracy skills) in accordance with subchapter III to children with disabilities who are eligible for services under this section and who previously received services under subchapter III until such children enter, or are eligible under State law to enter, kindergarten; or

(6) at the State's discretion, to continue service coordination or case management for families who receive services under subchapter III.

(g) *Subgrants to local educational agencies.*

(1) *Subgrants required.* Each State that receives a grant under this section for any fiscal year shall distribute all of the grant funds that the State does not reserve under subsection (d) to local educational agencies in the State that have established their eligibility under section 1413 of this title, as follows:

(A) *Base payments.* The State shall first award each local educational agency described in paragraph (1) the amount that agency would have received under this section for fiscal year 1997 if the State had distributed 75 percent of its grant for that year under section 1419(c)(3) of this title, as such section was then in effect.

(B) *Allocation of remaining funds.* After making allocations under subparagraph (A), the State shall—

(i) allocate 85 percent of any remaining funds to those local educational agencies on the basis of the relative numbers of children enrolled in public and private elementary schools and secondary schools within the local educational agency's jurisdiction; and

(ii) allocate 15 percent of those remaining funds to those local educational agencies in accordance with their relative numbers of children living in poverty, as determined by the State educational agency.

(2) *Reallocation of funds.* If a State educational agency determines that a local educational agency is adequately providing a free appropriate public education to all children with disabilities aged 3 through 5 residing in the area served by the local educational agency with State and local funds, the State educational agency may reallocate any portion of the funds under this section that are not needed by that local educational agency to provide a free appropriate public education to other local educational agencies in the State that are not adequately providing special education and related services to all children with disabilities aged 3 through 5 residing in the areas the other local educational agencies serve.

(h) *Subchapter III inapplicable.* Subchapter III does not apply to any child with a disability receiving a free appropriate public education, in accordance with this subchapter, with funds received under this section.

(i) *State defined.* In this section, the term "State" means each of the 50 States, the District of Columbia, and the Commonwealth of Puerto Rico.

(j) *Authorization of appropriations.* There are authorized to be appropriated to carry out this section such sums as may be necessary.

29 U.S.C. § 623

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 1 (1).

Prohibition of age discrimination

(a) *Employer practices.* It shall be unlawful for an employer—

(1) to fail or refuse to hire or to discharge any individual or otherwise discriminate against any individual with respect to his compensation, terms, conditions, or privileges of employment, because of such individual's age;

(2) to limit, segregate, or classify his employees in any way which would deprive or tend to deprive any individual of employment opportunities or otherwise adversely affect his status as an employee, because of such individual's age; or

(3) to reduce the wage rate of any employee in order to comply with this chapter.

(b) *Employment agency practices.* It shall be unlawful for an employment agency to fail or refuse to refer for employment, or otherwise to discriminate against, any individual because of such individual's age, or to classify or refer for employment any individual on the basis of such individual's age.

(c) *Labor organization practices.* It shall be unlawful for a labor organization—

(1) to exclude or to expel from its membership, or otherwise to discriminate against, any individual because of his age;

(2) to limit, segregate, or classify its membership, or to classify or fail or refuse to refer for employment any individual, in any way which would deprive or tend to deprive any individual of employment opportunities, or would limit such employment opportunities or otherwise adversely affect his status as an employee or as an applicant for employment, because of such individual's age;

(3) to cause or attempt to cause an employer to discriminate against an individual in violation of this section.

(d) *Opposition to unlawful practices; participation in investigations, proceedings, or litigation.* It shall be unlawful for an employer to discriminate against any of his employees or applicants for employment, for an employment agency to discriminate against any individual, or for a labor organization to discriminate against any member thereof or applicant for membership, because such individual, member or applicant for membership has opposed any practice made unlawful by this section, or because such individual, member or applicant for membership has made a charge, testified, assisted, or participated in any manner in an investigation, proceeding, or litigation under this chapter.

(e) *Printing or publication of notice or advertisement indicating preference, limitation, etc..* It shall be unlawful for an employer, labor organization, or employment agency to print or publish, or cause to be printed or published, any notice or advertisement relating to employment by such an employer or membership in or any classification or referral for employment by such a labor organization, or relating to any classification or referral for employment by such an employment agency, indicating any preference, limitation, specification, or discrimination, based on age.

(f) *Lawful practices; age an occupational qualification; other reasonable factors; laws of foreign workplace; seniority system; employee benefit plans; discharge or discipline for good cause.* It shall not be unlawful for an employer, employment agency, or labor organization—

(1) to take any action otherwise prohibited under subsections (a), (b), (c), or (e) of this section where age is a bona fide occupational qualification reasonably necessary to the normal operation of the particular business, or where the differentiation is based on reasonable factors other than age, or where such practices involve an employee in a workplace in a foreign country, and compliance with such subsections would cause such employer, or a corporation controlled by such employer, to violate the laws of the country in which such workplace is located;

(2) to take any action otherwise prohibited under subsection (a), (b), (c), or (e) of this section—

(A) to observe the terms of a bona fide seniority system that is not intended to evade the purposes of this chapter, except that no such seniority system shall require or permit the involuntary retirement of any individual specified by section 631(a) of this title because of the age of such individual; or

(B) to observe the terms of a bona fide employee benefit plan—

(i) where, for each benefit or benefit package, the actual amount of payment made or cost incurred on behalf of an older worker is no less than that made or incurred on behalf of a younger worker, as permissible under section 1625.10, title 29, Code of Federal Regulations (as in effect on June 22, 1989); or

(ii) that is a voluntary early retirement incentive plan consistent with the relevant purpose or purposes of this chapter.

Notwithstanding clause (i) or (ii) of subparagraph (B), no such employee benefit plan or voluntary early retirement incentive plan shall excuse the failure to hire any individual, and no such employee benefit plan shall require or permit the involuntary retirement of any individual specified by section 631(a) of this title, because of the age of such individual. An employer, employment agency, or labor organization acting under subparagraph (A), or under clause (i) or (ii) of subparagraph (B), shall have the burden of proving that such actions are lawful in any civil enforcement proceeding brought under this chapter; or

(3) to discharge or otherwise discipline an individual for good cause.

(g) *Repealed. Pub. L. 101–239, title VI, § 6202(b)(3)(C)(i), Dec. 19, 1989, 103 Stat. 2233.*

(h) *Practices of foreign corporations controlled by American employers; foreign employers not controlled by American employers; factors determining control.*

(1) If an employer controls a corporation whose place of incorporation is in a foreign country, any practice by such corporation prohibited under this section shall be presumed to be such practice by such employer.

(2) The prohibitions of this section shall not apply where the employer is a foreign person not controlled by an American employer.

(3) For the purpose of this subsection the determination of whether an employer controls a corporation shall be based upon the—

(A) interrelation of operations,

(B) common management,

(C) centralized control of labor relations, and

(D) common ownership or financial control,

of the employer and the corporation.

(i) *Employee pension benefit plans; cessation or reduction of benefit accrual or of allocation to employee account; distribution of benefits after attainment of normal retirement age; compliance; highly compensated employees.*

(1) Except as otherwise provided in this subsection, it shall be unlawful for an employer, an employment agency, a labor organization, or any combination thereof to establish or maintain an employee pension benefit plan which requires or permits—

(A) in the case of a defined benefit plan, the cessation of an employee's benefit accrual, or the reduction of the rate of an employee's benefit accrual, because of age, or

(B) in the case of a defined contribution plan, the cessation of allocations to an employee's account, or the reduction of the rate at which amounts are allocated to an employee's account, because of age.

(2) Nothing in this section shall be construed to prohibit an employer, employment agency, or labor organization from observing any provision of an employee pension benefit plan to the extent that such provision imposes (without regard to age) a limitation on the amount of benefits that the plan provides or a limitation on the number of years of service or years of participation which are taken into account for purposes of determining benefit accrual under the plan.

(3) In the case of any employee who, as of the end of any plan year under a defined benefit plan, has attained normal retirement age under such plan—

(A) if distribution of benefits under such plan with respect to such employee has commenced as of the end of such plan year, then any requirement of this subsection for continued accrual of benefits under such plan with respect to such employee during such plan year shall be treated as satisfied to the extent of the actuarial equivalent of in-service distribution of benefits, and

(B) if distribution of benefits under such plan with respect to such employee has not commenced as of the end of such year in accordance with section 1056(a)(3) of this title and section 401(a)(14)(C) of title 26, and the payment of benefits under such plan with respect to such employee is not suspended during such plan year pursuant to section 1053(a)(3)(B) of this title or section 411(a)(3)(B) of title 26, then any requirement of this subsection for continued accrual of benefits under such plan with respect to such employee during such plan year shall be treated as satisfied to the extent of any adjustment in the benefit payable under the plan during such plan year attributable to the delay in the distribution of benefits after the attainment of normal retirement age.

The provisions of this paragraph shall apply in accordance with regulations of the Secretary of the Treasury. Such regulations shall provide for the application of the preceding provisions of this paragraph to all employee pension benefit plans subject to this subsection and may provide for the application of such provisions, in the case of any such

employee, with respect to any period of time within a plan year.

(4) Compliance with the requirements of this subsection with respect to an employee pension benefit plan shall constitute compliance with the requirements of this section relating to benefit accrual under such plan.

(5) Paragraph (1) shall not apply with respect to any employee who is a highly compensated employee (within the meaning of section 414(q) of title 26) to the extent provided in regulations prescribed by the Secretary of the Treasury for purposes of precluding discrimination in favor of highly compensated employees within the meaning of subchapter D of chapter 1 of title 26.

(6) A plan shall not be treated as failing to meet the requirements of paragraph (1) solely because the subsidized portion of any early retirement benefit is disregarded in determining benefit accruals or it is a plan permitted by subsection (m)..

(7) Any regulations prescribed by the Secretary of the Treasury pursuant to clause (v) of section 411(b)(1)(H) of title 26 and subparagraphs (C) and (D) of section 411(b)(2) of title 26 shall apply with respect to the requirements of this subsection in the same manner and to the same extent as such regulations apply with respect to the requirements of such sections 411(b)(1)(H) and 411(b)(2).

(8) A plan shall not be treated as failing to meet the requirements of this section solely because such plan provides a normal retirement age described in section 1002(24)(B) of this title and section 411(a)(8)(B) of title 26.

(9) For purposes of this subsection—

(A) The terms "employee pension benefit plan", "defined benefit plan", "defined contribution plan", and "normal retirement age" have the meanings provided such terms in section 1002 of this title.

(B) The term "compensation" has the meaning provided by section 414(s) of title 26.

(10) *Special rules relating to age.*—.

(A) *Comparison to similarly situated younger individual.*—.

(i) *In general.*—. A plan shall not be treated as failing to meet the requirements of paragraph (1) if a participant's accrued benefit, as determined as of any date under the terms of the plan, would be equal to or greater than that of any similarly situated, younger individual who is or could be a participant.

(ii) *Similarly situated.*—. For purposes of this subparagraph, a participant is similarly situated to any other individual if such participant is identical to such other individual in every respect (including period of service, compensation, position, date of hire, work history, and any other respect) except for age.

(iii) *Disregard of subsidized early retirement benefits.*—. In determining the accrued benefit as of any date for purposes of this clause, the subsidized portion of any early retirement benefit or retirement-type subsidy shall be disregarded.

(iv) *Accrued benefit.*—. For purposes of this subparagraph, the accrued benefit may, under the terms of the plan, be expressed as an annuity payable at normal retirement age, the balance of a hypothetical account, or the current value of the accumulated percentage of the employee's final average compensation.

(B) *Applicable defined benefit plans.*—.

(i) *Interest credits.*—.

(I) *In general.*—. An applicable defined benefit plan shall be treated as failing to meet the requirements of paragraph (1) unless the terms of the plan provide that any interest credit (or an equivalent amount) for any plan year shall be at a rate which is not greater than a market rate of return. A plan shall not be treated as failing to meet the requirements of this subclause merely because the plan provides for a reasonable minimum guaranteed rate of return or for a rate of return that is equal to the greater of a fixed or variable rate of return.

(II) *Preservation of capital.*—. An interest credit (or an equivalent amount) of less than zero shall in no event result in the account balance or similar amount being less than the aggregate amount of contributions credited to the account.

(III) *Market rate of return.*—. The Secretary of the Treasury may provide by regulation for rules governing the calculation of a market rate of return for purposes of subclause (I) and for permissible methods of crediting interest to the account (including fixed or variable interest rates) resulting in effective rates of return meeting the requirements of subclause (I). In the case of a governmental plan (as defined in the first sentence of section 414(d) of title 26), a rate of return or a method of crediting interest established pursuant to any provision of Federal, State, or local law (including any administrative rule or policy adopted in accordance with any such law) shall be treated as a market rate of return for purposes of subclause (I) and a permissible method of crediting interest for purposes of meeting the requirements of subclause (I), except that this sentence shall only apply to a rate of return or method of crediting interest if such rate or method does not violate any other requirement of this chapter.

(ii) *Special rule for plan conversions.*—. If, after June 29, 2005, an applicable plan amendment is adopted, the plan shall be treated as failing to meet the requirements of paragraph (1)(H) unless the requirements of clause (iii) are met with respect to each individual who was a participant in the plan immediately before the adoption

of the amendment.

(iii) *Rate of benefit accrual.*—. Subject to clause (iv), the requirements of this clause are met with respect to any participant if the accrued benefit of the participant under the terms of the plan as in effect after the amendment is not less than the sum of—

(I) the participant's accrued benefit for years of service before the effective date of the amendment, determined under the terms of the plan as in effect before the amendment, plus

(II) the participant's accrued benefit for years of service after the effective date of the amendment, determined under the terms of the plan as in effect after the amendment.

(iv) *Special rules for early retirement subsidies.*—. For purposes of clause (iii)(I), the plan shall credit the accumulation account or similar amount with the amount of any early retirement benefit or retirement-type subsidy for the plan year in which the participant retires if, as of such time, the participant has met the age, years of service, and other requirements under the plan for entitlement to such benefit or subsidy.

(v) *Applicable plan amendment.*—. For purposes of this subparagraph—

(I) *In general.*—. The term "applicable plan amendment" means an amendment to a defined benefit plan which has the effect of converting the plan to an applicable defined benefit plan.

(II) *Special rule for coordinated benefits.*—. If the benefits of 2 or more defined benefit plans established or maintained by an employer are coordinated in such a manner as to have the effect of the adoption of an amendment described in subclause (I), the sponsor of the defined benefit plan or plans providing for such coordination shall be treated as having adopted such a plan amendment as of the date such coordination begins.

(III) *Multiple amendments.*—. The Secretary of the Treasury shall issue regulations to prevent the avoidance of the purposes of this subparagraph through the use of 2 or more plan amendments rather than a single amendment.

(IV) *Applicable defined benefit plan.*—. For purposes of this subparagraph, the term "applicable defined benefit plan" has the meaning given such term by section 1053(f)(3) of this title.

(vi) *Termination requirements.*—. An applicable defined benefit plan shall not be treated as meeting the requirements of clause (i) unless the plan provides that, upon the termination of the plan—

(I) if the interest credit rate (or an equivalent amount) under the plan is a variable rate, the rate of interest used to determine accrued benefits under the plan shall be equal to the average of the rates of interest used under the plan during the 5-year period ending on the termination date, and

(II) the interest rate and mortality table used to determine the amount of any benefit under the plan payable in the form of an annuity payable at normal retirement age shall be the rate and table specified under the plan for such purpose as of the termination date, except that if such interest rate is a variable rate, the interest rate shall be determined under the rules of subclause (I).

(C) *Certain offsets permitted.*—. A plan shall not be treated as failing to meet the requirements of paragraph (1) solely because the plan provides offsets against benefits under the plan to the extent such offsets are allowable in applying the requirements of section 401(a) of title 26.

(D) *Permitted disparities in plan contributions or benefits.*—. A plan shall not be treated as failing to meet the requirements of paragraph (1) solely because the plan provides a disparity in contributions or benefits with respect to which the requirements of section 401(l) of title 26 are met.

(E) *Indexing permitted.*—.

(i) *In general.*—. A plan shall not be treated as failing to meet the requirements of paragraph (1) solely because the plan provides for indexing of accrued benefits under the plan.

(ii) *Protection against loss.*—. Except in the case of any benefit provided in the form of a variable annuity, clause (i) shall not apply with respect to any indexing which results in an accrued benefit less than the accrued benefit determined without regard to such indexing.

(iii) *Indexing.*—. For purposes of this subparagraph, the term "indexing" means, in connection with an accrued benefit, the periodic adjustment of the accrued benefit by means of the application of a recognized investment index or methodology.

(F) *Early retirement benefit or retirement-type subsidy.*—. For purposes of this paragraph, the terms "early retirement benefit" and "retirement-type subsidy" have the meaning given such terms in section 1054(g)(2)(A) of this title.2

(G) *Benefit accrued to date.*—. For purposes of this paragraph, any reference to the accrued benefit shall be a reference to such benefit accrued to date.

(j) *Employment as firefighter or law enforcement officer.* It shall not be unlawful for an employer which is a State, a political subdivision of a State, an agency or instrumentality of a State or a political subdivision of a State, or an interstate agency to fail or refuse to hire or to discharge any individual because of such individual's age if such action is taken—

(1) with respect to the employment of an individual as a firefighter or as a law enforcement officer, the employer has

complied with section 3(d)(2) of the Age Discrimination in Employment Amendments of 1996 2 if the individual was discharged after the date described in such section, and the individual has attained—

(A) the age of hiring or retirement, respectively, in effect under applicable State or local law on March 3, 1983; or

(B)

(i) if the individual was not hired, the age of hiring in effect on the date of such failure or refusal to hire under applicable State or local law enacted after September 30, 1996; or

(ii) if applicable State or local law was enacted after September 30, 1996, and the individual was discharged, the higher of—

(I) the age of retirement in effect on the date of such discharge under such law; and

(II) age 55; and

(2) pursuant to a bona fide hiring or retirement plan that is not a subterfuge to evade the purposes of this chapter.

(k) *Seniority system or employee benefit plan; compliance.* A seniority system or employee benefit plan shall comply with this chapter regardless of the date of adoption of such system or plan.

(l) *Lawful practices; minimum age as condition of eligibility for retirement benefits; deductions from severance pay; reduction of long-term disability benefits.* Notwithstanding clause (i) or (ii) of subsection (f)(2)(B)—

(1)

(A) It shall not be a violation of subsection (a), (b), (c), or (e) solely because—

(i) an employee pension benefit plan (as defined in section 1002(2) of this title) provides for the attainment of a minimum age as a condition of eligibility for normal or early retirement benefits; or

(ii) a defined benefit plan (as defined in section 1002(35) of this title) provides for—

(I) payments that constitute the subsidized portion of an early retirement benefit; or

(II) social security supplements for plan participants that commence before the age and terminate at the age (specified by the plan) when participants are eligible to receive reduced or unreduced old-age insurance benefits under title II of the Social Security Act (42 U.S.C. 401 et seq.), and that do not exceed such old-age insurance benefits.

(B) A voluntary early retirement incentive plan that—

(i) is maintained by—

(I) a local educational agency (as defined in section 7801 of title 20), or

(II) an education association which principally represents employees of 1 or more agencies described in subclause (I) and which is described in section 501(c)(5) or (6) of title 26 and exempt from taxation under section 501(a) of title 26, and

(ii) makes payments or supplements described in subclauses (I) and (II) of subparagraph (A)(ii) in coordination with a defined benefit plan (as so defined) maintained by an eligible employer described in section 457(e)(1)(A) of title 26 or by an education association described in clause (i)(II),

shall be treated solely for purposes of subparagraph (A)(ii) as if it were a part of the defined benefit plan with respect to such payments or supplements. Payments or supplements under such a voluntary early retirement incentive plan shall not constitute severance pay for purposes of paragraph (2).

(2)

(A) It shall not be a violation of subsection (a), (b), (c), or (e) solely because following a contingent event unrelated to age—

(i) the value of any retiree health benefits received by an individual eligible for an immediate pension;

(ii) the value of any additional pension benefits that are made available solely as a result of the contingent event unrelated to age and following which the individual is eligible for not less than an immediate and unreduced pension; or

(iii) the values described in both clauses (i) and (ii);

are deducted from severance pay made available as a result of the contingent event unrelated to age.

(B) For an individual who receives immediate pension benefits that are actuarially reduced under subparagraph (A)(i), the amount of the deduction available pursuant to subparagraph (A)(i) shall be reduced by the same percentage as the reduction in the pension benefits.

(C) For purposes of this paragraph, severance pay shall include that portion of supplemental unemployment compensation benefits (as described in section 501(c)(17) of title 26) that—

(i) constitutes additional benefits of up to 52 weeks;

(ii) has the primary purpose and effect of continuing benefits until an individual becomes eligible for an immediate and unreduced pension; and

(iii) is discontinued once the individual becomes eligible for an immediate and unreduced pension.

(D) For purposes of this paragraph and solely in order to make the deduction authorized under this paragraph, the term “retiree health benefits” means benefits provided pursuant to a group health plan covering retirees, for which

(determined as of the contingent event unrelated to age)—

(i) the package of benefits provided by the employer for the retirees who are below age 65 is at least comparable to benefits provided under title XVIII of the Social Security Act (42 U.S.C. 1395 et seq.);

(ii) the package of benefits provided by the employer for the retirees who are age 65 and above is at least comparable to that offered under a plan that provides a benefit package with one-fourth the value of benefits provided under title XVIII of such Act; or

(iii) the package of benefits provided by the employer is as described in clauses (i) and (ii).

(E)

(i) If the obligation of the employer to provide retiree health benefits is of limited duration, the value for each individual shall be calculated at a rate of $3,000 per year for benefit years before age 65, and $750 per year for benefit years beginning at age 65 and above.

(ii) If the obligation of the employer to provide retiree health benefits is of unlimited duration, the value for each individual shall be calculated at a rate of $48,000 for individuals below age 65, and $24,000 for individuals age 65 and above.

(iii) The values described in clauses (i) and (ii) shall be calculated based on the age of the individual as of the date of the contingent event unrelated to age. The values are effective on October 16, 1990, and shall be adjusted on an annual basis, with respect to a contingent event that occurs subsequent to the first year after October 16, 1990, based on the medical component of the Consumer Price Index for all-urban consumers published by the Department of Labor.

(iv) If an individual is required to pay a premium for retiree health benefits, the value calculated pursuant to this subparagraph shall be reduced by whatever percentage of the overall premium the individual is required to pay.

(F) If an employer that has implemented a deduction pursuant to subparagraph (A) fails to fulfill the obligation described in subparagraph (E), any aggrieved individual may bring an action for specific performance of the obligation described in subparagraph (E). The relief shall be in addition to any other remedies provided under Federal or State law.

(3) It shall not be a violation of subsection (a), (b), (c), or (e) solely because an employer provides a bona fide employee benefit plan or plans under which long-term disability benefits received by an individual are reduced by any pension benefits (other than those attributable to employee contributions)—

(A) paid to the individual that the individual voluntarily elects to receive; or

(B) for which an individual who has attained the later of age 62 or normal retirement age is eligible.

(m) *Voluntary retirement incentive plans.* Notwithstanding subsection (f)(2)(B), it shall not be a violation of subsection (a), (b), (c), or (e) solely because a plan of an institution of higher education (as defined in section 1001 of title 20) offers employees who are serving under a contract of unlimited tenure (or similar arrangement providing for unlimited tenure) supplemental benefits upon voluntary retirement that are reduced or eliminated on the basis of age, if—

(1) such institution does not implement with respect to such employees any age-based reduction or cessation of benefits that are not such supplemental benefits, except as permitted by other provisions of this chapter;

(2) such supplemental benefits are in addition to any retirement or severance benefits which have been offered generally to employees serving under a contract of unlimited tenure (or similar arrangement providing for unlimited tenure), independent of any early retirement or exit-incentive plan, within the preceding 365 days; and

(3) any employee who attains the minimum age and satisfies all non-age-based conditions for receiving a benefit under the plan has an opportunity lasting not less than 180 days to elect to retire and to receive the maximum benefit that could then be elected by a younger but otherwise similarly situated employee, and the plan does not require retirement to occur sooner than 180 days after such election.

29 U.S.C. § 631

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Age limits

(a) *Individuals at least 40 years of age.* The prohibitions in this chapter shall be limited to individuals who are at least 40 years of age.

(b) *Employees or applicants for employment in Federal Government.* In the case of any personnel action affecting employees or applicants for employment which is subject to the provisions of section 633a of this title, the prohibitions established in section 633a of this title shall be limited to individuals who are at least 40 years of age.

(c) *Bona fide executives or high policymakers.*

(1) Nothing in this chapter shall be construed to prohibit compulsory retirement of any employee who has attained 65 years of age and who, for the 2-year period immediately before retirement, is employed in a bona fide executive or a high policymaking position, if such employee is entitled to an immediate nonforfeitable annual retirement benefit from a pension, profit-sharing, savings, or deferred compensation plan, or any combination of such plans, of the

employer of such employee, which equals, in the aggregate, at least $44,000.

(2) In applying the retirement benefit test of paragraph (1) of this subsection, if any such retirement benefit is in a form other than a straight life annuity (with no ancillary benefits), or if employees contribute to any such plan or make rollover contributions, such benefit shall be adjusted in accordance with regulations prescribed by the Equal Employment Opportunity Commission, after consultation with the Secretary of the Treasury, so that the benefit is the equivalent of a straight life annuity (with no ancillary benefits) under a plan to which employees do not contribute and under which no rollover contributions are made.

29 U.S.C. § 701

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Findings; purpose; policy

(a) *Findings.* Congress finds that—

(1) millions of Americans have one or more physical or mental disabilities and the number of Americans with such disabilities is increasing;

(2) individuals with disabilities constitute one of the most disadvantaged groups in society;

(3) disability is a natural part of the human experience and in no way diminishes the right of individuals to—

(A) live independently;

(B) enjoy self-determination;

(C) make choices;

(D) contribute to society;

(E) pursue meaningful careers; and

(F) enjoy full inclusion and integration in the economic, political, social, cultural, and educational mainstream of American society;

(4) increased employment of individuals with disabilities can be achieved through implementation of statewide workforce development systems defined in section 3102 of this title that provide meaningful and effective participation for individuals with disabilities in workforce investment activities and activities carried out under the vocational rehabilitation program established under subchapter I, and through the provision of independent living services, support services, and meaningful opportunities for employment in integrated work settings through the provision of reasonable accommodations;

(5) individuals with disabilities continually encounter various forms of discrimination in such critical areas as employment, housing, public accommodations, education, transportation, communication, recreation, institutionalization, health services, voting, and public services;

(6) the goals of the Nation properly include the goal of providing individuals with disabilities with the tools necessary to—

(A) make informed choices and decisions; and

(B) achieve equality of opportunity, full inclusion and integration in society, employment, independent living, and economic and social self-sufficiency, for such individuals; and

(7)

(A) a high proportion of students with disabilities is leaving secondary education without being employed in competitive integrated employment, or being enrolled in postsecondary education; and

(B) there is a substantial need to support such students as they transition from school to postsecondary life.

(b) *Purpose.* The purposes of this chapter are—

(1) to empower individuals with disabilities to maximize employment, economic self-sufficiency, independence, and inclusion and integration into society, through—

(A) statewide workforce development systems defined in section 3102 of this title that include, as integral components, comprehensive and coordinated state-of-the-art programs of vocational rehabilitation;

(B) independent living centers and services;

(C) research;

(D) training;

(E) demonstration projects; and

(F) the guarantee of equal opportunity;

(2) to maximize opportunities for individuals with disabilities, including individuals with significant disabilities, for competitive integrated employment;

(3) to ensure that the Federal Government plays a leadership role in promoting the employment of individuals with disabilities, especially individuals with significant disabilities, and in assisting States and providers of services in fulfilling the aspirations of such individuals with disabilities for meaningful and gainful employment and independent living;

(4) to increase employment opportunities and employment outcomes for individuals with disabilities, including through encouraging meaningful input by employers and vocational rehabilitation service providers on successful and prospective employment and placement strategies; and

(5) to ensure, to the greatest extent possible, that youth with disabilities and students with disabilities who are transitioning from receipt of special education services under the Individuals with Disabilities Education Act (20 U.S.C. 1400 et seq.) and receipt of services under section 794 of this title have opportunities for postsecondary success.

(c) *Policy.* It is the policy of the United States that all programs, projects, and activities receiving assistance under this chapter shall be carried out in a manner consistent with the principles of—

(1) respect for individual dignity, personal responsibility, self-determination, and pursuit of meaningful careers, based on informed choice, of individuals with disabilities;

(2) respect for the privacy, rights, and equal access (including the use of accessible formats), of the individuals;

(3) inclusion, integration, and full participation of the individuals;

(4) support for the involvement of an individual's representative if an individual with a disability requests, desires, or needs such support; and

(5) support for individual and systemic advocacy and community involvement.

38 U.S.C. § 4311

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Discrimination against persons who serve in the uniformed services and acts of reprisal prohibited

(a) A person who is a member of, applies to be a member of, performs, has performed, applies to perform, or has an obligation to perform service in a uniformed service shall not be denied initial employment, reemployment, retention in employment, promotion, or any benefit of employment by an employer on the basis of that membership, application for membership, performance of service, application for service, or obligation.

(b) An employer may not discriminate in employment against or take any adverse employment action or other retaliatory action against any person because such person (1) has taken an action to enforce a protection afforded any person under this chapter, (2) has testified or otherwise made a statement in or in connection with any proceeding under this chapter, (3) has assisted or otherwise participated in an investigation under this chapter, or (4) has exercised a right provided for in this chapter. The prohibition in this subsection shall apply with respect to a person regardless of whether that person has performed service in the uniformed services.

(c) An employer shall be considered to have engaged in actions prohibited—

(1) under subsection (a), if the person's membership, application for membership, service, application for service, or obligation for service in the uniformed services is a motivating factor in the employer's action, unless the employer can prove that the action would have been taken in the absence of such membership, application for membership, service, application for service, or obligation for service; or

(2) under subsection (b), if the person's (A) action to enforce a protection afforded any person under this chapter, (B) testimony or making of a statement in or in connection with any proceeding under this chapter, (C) assistance or other participation in an investigation under this chapter, or (D) exercise of a right provided for in this chapter, is a motivating factor in the employer's action, unless the employer can prove that the action would have been taken in the absence of such person's enforcement action, testimony, statement, assistance, participation, or exercise of a right.

(d) The prohibitions in subsections (a) and (b) shall apply to any position of employment, including a position that is described in section 4312(d)(1)(C) of this title.

42 U.S.C. § 9831

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 1 (1).

Statement of purpose

(1) in a learning environment that supports children's growth in language, literacy, mathematics, science, social and emotional functioning, creative arts, physical skills, and approaches to learning; and

(2) through the provision to low-income children and their families of health, educational, nutritional, social, and other services that are determined, based on family needs assessments, to be necessary.

42 U.S.C. § 9835

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Allotment of funds

(a) *Distribution of appropriations; priorities, etc.*.

(1) Using the sums appropriated pursuant to section 9834 of this title for a fiscal year, the Secretary shall allocate such sums in accordance with paragraphs (2) through (5).

(2)

(A) The Secretary shall determine an amount for each fiscal year for each State that is equal to the amount received through base grants for the prior fiscal year by the Head Start agencies (including Early Head Start agencies) in the State that are not described in clause (ii) or (iii) of subparagraph (B).

(B) The Secretary shall reserve for each fiscal year such sums as are necessary—

(i) to provide each amount determined for a State under subparagraph (A) to the Head Start agencies (including Early Head Start agencies) in the State that are not described in clause (ii) or (iii), by allotting to each agency described in this clause an amount equal to that agency's base grant for the prior fiscal year;

(ii) to provide an amount for the Indian Head Start programs that is equal to the amount provided for base grants for such programs under this subchapter for the prior fiscal year, by allotting to each Head Start agency (including each Early Head Start agency) administering an Indian Head Start program an amount equal to that agency's base grant for the prior fiscal year;

(iii) to provide an amount for the migrant and seasonal Head Start programs, on a nationwide basis, that is equal to the amount provided nationwide for base grants for such programs under this subchapter for the prior fiscal year, by allotting to each Head Start agency administering a migrant or seasonal Head Start program an amount equal to that agency's base grant for the prior fiscal year;

(iv) to provide an amount for each of Guam, American Samoa, the Commonwealth of the Northern Mariana Islands, the Republic of Palau, and the Virgin Islands of the United States (for Head Start agencies (including Early Head Start agencies) in the jurisdiction) that is equal to the amount provided for base grants for such jurisdiction under this subchapter for the prior fiscal year, by allotting to each agency described in this clause an amount equal to that agency's base grant for the prior fiscal year;

(v) if a base grant has been established through appropriations for the Federated States of Micronesia or the Republic of the Marshall Islands, to provide an amount for that jurisdiction (for Head Start agencies (including Early Head Start agencies) in the jurisdiction) that is equal to the amount provided for base grants for such jurisdiction under this subchapter for the prior fiscal year, by allotting to each agency described in this clause an amount equal to that agency's base grant for the prior fiscal year; and

(vi) to provide an amount for a collaboration grant under section 9837b(a) of this title for each State, for the Indian Head Start programs, and for the migrant and seasonal Head Start programs, in the same amount as the corresponding collaboration grant provided under this subchapter for fiscal year 2007.

(C)

(i) The Secretary shall reserve for each fiscal year an amount that is not less than 2.5 percent and not more than 3 percent of the sums appropriated pursuant to section 9834 of this title for that fiscal year, to fund training and technical assistance activities, from which reserved amount—

(I) the Secretary shall set aside a portion, but not less than 20 percent, to be used to fund training and technical assistance activities for Early Head Start programs, in accordance with section 9840a(g)(2) of this title; and

(II) the Secretary shall set aside a portion, equal to the rest of the reserved amount, to fund training and technical assistance activities for other Head Start programs, in accordance with section 9843 of this title, of which portion—

(aa) not less than 50 percent shall be made available to Head Start agencies to use directly, which may include at their discretion the establishment of local or regional agreements with community experts, institutions of higher education, or private consultants, to make program improvements identified by such agencies, by carrying out the training and technical assistance activities described in section 9843(d) of this title;

(bb) not less than 25 percent shall be available to the Secretary to support a State-based training and technical assistance system, or a national system, described in section 9843(e) of this title for supporting program quality; and

(cc) the remainder of the portion set aside under this subclause shall be available to the Secretary to assist Head Start agencies in meeting and exceeding the standards described in section 9836a(a)(1) of this title by carrying out activities described in subsections (a), (b), (c), (f), and (g) of section 9843 of this title, including helping Head Start programs address weaknesses identified by monitoring activities conducted by the Secretary under section 9836a(c) of this title, except that not less than $3,000,000 of the remainder shall be made available to carry out activities described in section 9843(a)(3)(B)(ii) of this title.

(ii) In determining the portion set aside under clause (i)(I) and the amount reserved under this subparagraph,

the Secretary shall consider the number of Early Head Start programs newly funded for that fiscal year.

(D) The Secretary shall reserve not more than $20,000,000 to fund research, demonstration, and evaluation activities under section 9844 of this title, of which not more than $7,000,000 for each of fiscal years 2008 through 2012 shall be available to carry out impact studies under section 9844(g) of this title.

(E) The Secretary shall reserve not more than $42,000,000 for discretionary payments by the Secretary, including payments for all costs (other than compensation of Federal employees) for activities carried out under subsection (c) or (e) of section 9836a of this title.

(F) If the sums appropriated under section 9834 of this title are not sufficient to provide the amounts required to be reserved under subparagraphs (B) through (E), the amounts shall be reduced proportionately.

(G) Nothing in this section shall be construed to deny the Secretary the authority, consistent with sections 9836, 9836a, and 9841 of this title to terminate, suspend, or reduce funding to a Head Start agency.

(3)

(A) From any amount remaining for a fiscal year after the Secretary carries out paragraph (2) (referred to in this paragraph as the "remaining amount"), the Secretary shall—

(i) subject to clause (ii)—

(I) provide a cost of living increase for each Head Start agency (including each Early Head Start agency) funded under this subchapter for that fiscal year, to maintain the level of services provided during the prior year; and

(II) subject to subparagraph (B), provide $10,000,000 for Indian Head Start programs (including Early Head Start programs), and $10,000,000 for migrant and seasonal Head Start programs, to increase enrollment in the programs involved;

(ii) subject to clause (iii), if the remaining amount is not sufficient to carry out clause (i)—

(I) for each of fiscal years 2008, 2009, and 2010—

(aa) subject to subparagraph (B), provide 5 percent of that amount for Indian Head Start programs (including Early Head Start programs), and 5 percent of that amount for migrant and seasonal Head Start programs, to increase enrollment in the programs involved; and

(bb) use 90 percent of that amount to provide, for each Head Start agency (including each Early Head Start agency) funded as described in clause (i)(I), the same percentage (but not less than 50 percent) of the cost of living increase described in clause (i); and

(II) for fiscal year 2011 and each subsequent fiscal year—

(aa) provide, for each Head Start agency (including each Early Head Start agency) funded as described in clause (i)(I), the cost of living increase described in clause (i); and

(bb) subject to subparagraph (B), with any portion of the remaining amount that is not used under item (aa), provide equal amounts for Indian Head Start programs (including Early Head Start programs), and for migrant and seasonal Head Start programs, to increase enrollment in the programs involved; and

(iii) if the remaining amount is not sufficient to carry out clause (ii) for the fiscal year involved, use that amount to provide, for each Head Start agency (including each Early Head Start agency) funded as described in clause (i)(I), the same percentage of the cost of living increase described in clause (i).

(B)

(i) Notwithstanding any other provision of this paragraph, the Indian Head Start programs shall not receive more than a total cumulative amount of $50,000,000 for all fiscal years, and the migrant and seasonal Head Start programs shall not receive more than a total cumulative amount of $50,000,000 for all fiscal years, under clause (i)(II), and subclauses (I)(aa) and (II)(bb) of clause (ii), of subparagraph (A) (referred to in this subsection as the "special expansion provisions"), to increase enrollment in the programs involved.

(ii)

(I) Funds that are appropriated under section 9834 of this title for a fiscal year, and made available to Indian Head Start programs or migrant or seasonal Head Start programs under the special expansion provisions, shall remain available until the end of the following fiscal year.

(II) For purposes of subclause (I)—

(aa) if no portion is reallocated under clause (iii), those funds shall remain available to the programs involved; or

(bb) if a portion is reallocated under clause (iii), the portion shall remain available to the recipients of the portion.

(iii) Of the funds made available as described in clause (ii), the Secretary shall reallocate the portion that the Secretary determines is unobligated 18 months after the funds are made available. The Secretary shall add that portion to the balance described in paragraph (4), and reallocate the portion in accordance with paragraph (4), for the following fiscal year referred to in clause (ii).

(4)

(A) Except as provided in subparagraph (B), from any amount remaining for a fiscal year after the Secretary carries out paragraphs (2) and (3) (referred to in this paragraph as the "balance"), the Secretary shall—

(i) reserve 40 percent to carry out subparagraph (C) and paragraph (5);

(ii) reserve 45 percent to carry out subparagraph (D); and

(iii) reserve 15 percent (which shall remain available through the end of fiscal year 2012) to provide funds for carrying out section 9837b(b)(2) of this title.

(B)

(i) Under the circumstances described in clause (ii), from the balance, the Secretary shall—

(I) reserve 45 percent to carry out subparagraph (C) and paragraph (5); and

(II) reserve 55 percent to carry out subparagraph (D).

(ii) The Secretary shall make the reservations described in clause (i) for a fiscal year if—

(I) the total cumulative amount reserved under subparagraph (A)(iii) for all preceding fiscal years equals $100,000,000; or

(II) in the 2-year period preceding such fiscal year, funds were reserved under subparagraph (A)(iii) in an amount that totals not less than $15,000,000 and the Secretary received no approvable applications for such funds.

(iii) The total cumulative amount reserved under subparagraph (A)(iii) for all fiscal years may not be greater than $100,000,000.

(C) The Secretary shall fund the quality improvement activities described in paragraph (5) using the amount reserved under subparagraph (A)(i) or subparagraph (B)(i)(I), as appropriate, of which—

(i) a portion that is less than 10 percent may be reserved by the Secretary to provide funding to Head Start agencies (including Early Head Start agencies) that demonstrate the greatest need for additional funding for such activities, as determined by the Secretary; and

(ii) a portion that is not less than 90 percent shall be reserved by the Secretary to allot, to each Head Start agency (including each Early Head Start agency), an amount that bears the same ratio to such portion as the number of enrolled children served by the agency involved bears to the number of enrolled children served by all the Head Start agencies (including Early Head Start agencies), except that the Secretary shall account for the additional costs of serving children in Early Head Start programs and may consider whether an agency is providing a full-day program or whether an agency is providing a full-year program.

(D) The Secretary shall fund expansion of Head Start programs (including Early Head Start programs) using the amount reserved under subparagraph (A)(ii) or subparagraph (B)(i)(II), as appropriate, of which the Secretary shall—

(i) use 0.2 percent for Head Start programs funded under clause (iv) or (v) of paragraph (2)(B) (other than Early Head Start programs);

(ii) for any fiscal year after the last fiscal year for which Indian Head Start programs receive funds under the special expansion provisions, use 3 percent for Head Start programs funded under paragraph (2)(B)(ii) (other than Early Head Start programs), except that the Secretary may increase that percentage if the Secretary determines that the results of the study conducted under section 9844(k) of this title indicate that the percentage should be increased;

(iii) for any fiscal year after the last fiscal year for which migrant or seasonal Head Start programs receive funds under the special expansion provisions, use 4.5 percent for Head Start programs funded under paragraph (2)(B)(iii) (other than Early Head Start programs), except that the Secretary may increase that percentage if the Secretary determines that the results of the study conducted under section 9844(l) of this title indicate that the percentage should be increased; and

(iv) from the remainder of the reserved amount—

(I) use 50 percent for Head Start programs funded under paragraph (2)(B)(i) (other than Early Head Start programs), of which—

(aa) the covered percentage shall be allocated among the States serving less than 60 percent (as determined by the Secretary) of children who are 3 or 4 years of age from families whose income is below the poverty line, by allocating to each of those States an amount that bears the same relationship to that covered percentage as the number of children who are less than 5 years of age from families whose income is below the poverty line (referred to in this subclause as "young low-income children") in that State bears to the number of young low-income children in all those States; and

(bb) the remainder shall be allocated proportionately among the States on the basis of the number of young low-income children; and

(II) use 50 percent for Early Head Start programs.

(E) In this paragraph, the term "covered percentage" means—

(i) for fiscal year 2008, 30 percent;

(ii) for fiscal year 2009, 40 percent;

(iii) for fiscal year 2010, 50 percent;

(iv) for fiscal year 2011, 55 percent; and

(v) for fiscal year 2012, 55 percent.

(5)

(A) Not less than 50 percent of the amount reserved under subparagraph (A)(i) or subparagraph (B)(i)(I), as appropriate, of paragraph (4) to carry out quality improvement activities under paragraph (4)(C) and this paragraph shall be used to improve the compensation (including benefits) of educational personnel, family service workers, and child counselors, as described in sections 9839(a) and 9848 of this title, in the manner determined by the Head Start agencies (including Early Head Start agencies) involved, to—

(i) ensure that compensation is adequate to attract and retain qualified staff for the programs involved in order to enhance program quality;

(ii) improve staff qualifications and assist with the implementation of career development programs for staff that support ongoing improvement of their skills and expertise; and

(iii) provide education and professional development to enable teachers to be fully competent to meet the professional standards established under section 9843a(a)(1) of this title, including—

(I) providing assistance to complete postsecondary course work;

(II) improving the qualifications and skills of educational personnel to become certified and licensed as bilingual education teachers, or as teachers of English as a second language; and

(III) improving the qualifications and skills of educational personnel to teach and provide services to children with disabilities.

(B) Any remaining funds from the reserved amount described in subparagraph (A) shall be used to carry out any of the following activities:

(i) Supporting staff training, child counseling, and other services, necessary to address the challenges of children from immigrant, refugee, and asylee families, homeless children, children in foster care, limited English proficient children, children of migrant or seasonal farmworker families, children from families in crisis, children referred to Head Start programs (including Early Head Start programs) by child welfare agencies, and children who are exposed to chronic violence or substance abuse.

(ii) Ensuring that the physical environments of Head Start programs are conducive to providing effective program services to children and families, and are accessible to children with disabilities and other individuals with disabilities.

(iii) Employing additional qualified classroom staff to reduce the child-to-teacher ratio in the classroom and additional qualified family service workers to reduce the family-to-staff ratio for those workers.

(iv) Ensuring that Head Start programs have qualified staff that promote the language skills and literacy growth of children and that provide children with a variety of skills that have been identified, through scientifically based reading research, as predictive of later reading achievement.

(v) Increasing hours of program operation, including—

(I) conversion of part-day programs to full-working-day programs; and

(II) increasing the number of weeks of operation in a calendar year.

(vi) Improving communitywide strategic planning and needs assessments for Head Start programs and collaboration efforts for such programs, including outreach to children described in clause (i).

(vii) Transporting children in Head Start programs safely, except that not more than 10 percent of funds made available to carry out this paragraph may be used for such purposes.

(viii) Improving the compensation and benefits of staff of Head Start agencies, in order to improve the quality of Head Start programs.

(6) No sums appropriated under this subchapter may be combined with funds appropriated under any provision other than this subchapter if the purpose of combining funds is to make a single discretionary grant or a single discretionary payment, unless such sums appropriated under this subchapter are separately identified in such grant or payment and are used for the purposes of this subchapter.

(7) In this subsection:

(A) The term "base grant", used with respect to a fiscal year, means the amount of permanent ongoing funding (other than funding described in sections 9840a(g)(2)(A)(i) of this title and paragraph (2)(C)(i)(II)(aa)) provided to a Head Start agency (including an Early Head Start agency) under this subchapter for that fiscal year.

(B) The term "cost-of-living increase", used with respect to an agency for a fiscal year, means an increase in the funding for that agency, based on the percentage change in the Consumer Price Index for All Urban Consumers

(issued by the Bureau of Labor Statistics) for the prior fiscal year, calculated on the amount of the base grant for that agency for the prior fiscal year.

(C) For the purposes of this subsection, the term "State" does not include Guam, American Samoa, the Virgin Islands of the United States, the Commonwealth of the Northern Mariana Islands, the Federated States of Micronesia, the Republic of the Marshall Islands, and the Republic of Palau.

(b) *Federal share.* Financial assistance extended under this subchapter for a Head Start program shall not exceed 80 percent of the approved costs of the assisted program or activities, except that the Secretary may approve assistance in excess of such percentage if the Secretary determines that such action is required in furtherance of the purposes of this subchapter. For the purpose of making such determination, the Secretary shall take into consideration with respect to the Head Start program involved—

(1) the lack of resources available in the community that may prevent the Head Start agency from providing all or a portion of the non-Federal contribution that may be required under this subsection;

(2) the impact of the cost the Head Start agency may incur in initial years it carries out such program;

(3) the impact of an unanticipated increase in the cost the Head Start agency may incur to carry out such program;

(4) whether the Head Start agency is located in a community adversely affected by a major disaster; and

(5) the impact on the community that would result if the Head Start agency ceased to carry out such program.

Non-Federal contributions may be in cash or in kind, fairly evaluated, including plant, equipment, or services. The Secretary shall not require non-Federal contributions in excess of 20 percent of the approved costs of programs or activities assisted under this subchapter.

(c) *Services covered.* No programs shall be approved for assistance under this subchapter unless the Secretary is satisfied that the services to be provided under such program will be in addition to, and not in substitution for, comparable services previously provided without Federal assistance. The requirement imposed by the preceding sentence shall be subject to such regulations as the Secretary may prescribe.

(d) *Enrollment of children with disabilities and provision of services.*

(1) The Secretary shall establish policies and procedures to assure that, for fiscal year 2009 and thereafter, not less than 10 percent of the total number of children actually enrolled by each Head Start agency and each delegate agency will be children with disabilities who are determined to be eligible for special education and related services, or early intervention services, as appropriate, as determined under the Individuals with Disabilities Education Act (20 U.S.C. 1400 et seq.), by the State or local agency providing services under section 619 or part C of the Individuals with Disabilities Education Act (20 U.S.C. 1419, 1431 et seq.).

(2) Such policies and procedures shall ensure the provision of early intervening services, such as educational and behavioral services and supports, to meet the needs of children with disabilities, prior to an eligibility determination under the Individuals with Disabilities Education Act.

(3) Such policies and procedures shall require Head Start agencies to provide timely referral to and collaborate with the State or local agency providing services under section 619 or part C of the Individuals with Disabilities Education Act to ensure the provision of special education and related services and early intervention services, and the coordination of programmatic efforts, to meet the special needs of such children.

(4) The Secretary shall establish policies and procedures to provide Head Start agencies with waivers of the requirements of paragraph (1) for not more than 3 years. Such policies and procedures shall require Head Start agencies, in order to receive such waivers, to provide evidence demonstrating that the Head Start agencies are making reasonable efforts on an annual basis to comply with the requirements of that paragraph.

(5) Nothing in this subsection shall be construed to limit or create a right to a free appropriate public education under the Individuals with Disabilities Education Act.

(e) *Distribution of benefits between residents of rural and urban areas.* The Secretary shall adopt appropriate administrative measures to assure that the benefits of this subchapter will be distributed equitably between residents of rural and urban areas.

(f) *Guidelines for local service delivery models.*

(1) Not later than 1 year after December 12, 2007, the Secretary shall establish procedures to enable Head Start agencies to develop locally designed or specialized service delivery models to address local community needs, including models that leverage the capacity and capabilities of the delivery system of early childhood education and development services or programs.

(2) In establishing the procedures the Secretary shall establish procedures to provide for—

(A) the conversion of part-day programs to full-working-day programs or part-day slots to full-working-day slots; and

(B) serving additional infants and toddlers pursuant to section 9840(a)(5) of this title.

(g) *Maintenance of current services; expansion of Head Start programs.*

(1) For the purpose of expanding Head Start programs the Secretary shall take into consideration—

(A) the quality of the applicant's programs (including Head Start and other child care or child development programs) in existence on the date of the allocation, including, in the case of Head Start programs in existence on the date of the allocation, the extent to which such programs meet or exceed standards described in section 9836a(a)(1) of this title and other requirements under this subchapter, and the performance history of the applicant in providing services under other Federal programs (other than the program carried out under this subchapter);

(B) the applicant's capacity to expand services (including, in the case of Head Start programs in existence on the date of the allocation, whether the applicant accomplished any prior expansions in an effective and timely manner);

(C) the extent to which the applicant has undertaken a communitywide strategic planning and needs assessment involving other entities, including community organizations, and Federal, State, and local public agencies (including the local educational agency liaison designated under section 722(g)(1)(J)(ii) of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11432(g)(1)(J)(ii))), that provide services to children and families, such as—

(i) family support services;

(ii) child abuse prevention services;

(iii) protective services;

(iv) foster care;

(v) services for families in whose homes English is not the language customarily spoken;

(vi) services for children with disabilities; and

(vii) services for homeless children;

(D) the extent to which the family needs assessment and communitywide strategic planning and needs assessment of the applicant reflect a need to provide full-working-day or full calendar year services and the extent to which, and manner in which, the applicant demonstrates the ability to collaborate and participate with the State and local community providers of child care or preschool services to provide full-working-day full calendar year services;

(E) the number of eligible children, as described in clause (i) or (ii) of section 9840(a)(1)(B) of this title, in each community who are not participating in a Head Start program or any other publicly funded early childhood education and development program;

(F) the concentration of low-income families in each community;

(G) the extent to which the applicant proposes to foster partnerships with other service providers in a manner that will leverage the existing delivery systems of such services and enhance the resource capacity of the applicant; and

(H) the extent to which the applicant, in providing services, successfully coordinated activities with the local educational agency serving the community involved (including the local educational agency liaison designated under section 722(g)(1)(J)(ii) of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11432(g)(1)(J)(ii))), and with schools in which children participating in such applicant's program will enroll following such program, with respect to such services and the education services provided by such local educational agency.

(2) Notwithstanding paragraph (1), in using funds made available for expansion under subsection (a)(4)(D), the Secretary shall first allocate the funds to qualified applicants proposing to use such funds to serve children from families with incomes below the poverty line. Agencies that receive such funds are subject to the eligibility and enrollment requirements under section 9840(a)(1) of this title.

(3)

(A) In the event that the amount appropriated to carry out the program under this subchapter for a fiscal year does not exceed the amount appropriated for the prior fiscal year, or is not sufficient to maintain services comparable to the services provided under this subchapter during the prior fiscal year, a Head Start agency may negotiate with the Secretary a reduced funded enrollment level without a reduction in the amount of the grant received by the agency under this subchapter, if such agency can reasonably demonstrate that such reduced funded enrollment level is necessary to maintain the quality of services.

(B) In accordance with this paragraph, the Secretary shall set up a process for Head Start agencies to negotiate the reduced funded enrollment levels referred to in subparagraph (A) for the fiscal year involved.

(C) In the event described in subparagraph (A), the Secretary shall be required to notify Head Start agencies of their ability to negotiate the reduced funded enrollment levels if such an agency can reasonably demonstrate that such reduced funded enrollment level is necessary to maintain the quality of services.

(h) *Full-working-day services.* Financial assistance provided under this subchapter may be used by each Head Start program to provide full-working-day Head Start services to any eligible child throughout the full calendar year.

(i) *Vehicle safety regulations.* The Secretary shall issue regulations establishing requirements for the safety features, and the safe operation, of vehicles used by Head Start agencies to transport children participating in Head Start programs. The regulations shall also establish requirements to ensure the appropriate supervision of, and appropriate background

checks for, individuals with whom the agencies contract to transport those children.

(j) *Compensation of staff.* Any agency that receives financial assistance under this subchapter to improve the compensation of staff who provide services under this subchapter shall use the financial assistance to improve the compensation of such staff, regardless of whether the agency has the ability to improve the compensation of staff employed by the agency who do not provide Head Start services.

(k) *Flexibility in hours of service requirement.*

(1) The Secretary shall allow center-based Head Start programs the flexibility to satisfy the total number of hours of service required by the regulations in effect on May 18, 1994, to be provided to children in Head Start programs so long as such agencies do not—

(A) provide less than 3 hours of service per day;

(B) reduce the number of days of service per week; or

(C) reduce the number of days of service per year.

(2) The provisions of this subsection shall not be construed to restrict the authority of the Secretary to fund alternative program variations authorized under section 1306.35 of title 45 of the Code of Federal Regulations in effect on May 18, 1994.

(l) *Frequent relocation of migrant families.*

(1) With funds made available under this subchapter to expand migrant and seasonal Head Start programs, the Secretary shall give priority to migrant and seasonal Head Start programs that serve eligible children of migrant or seasonal farmworker families whose work requires them to relocate most frequently.

(2) In determining the need and demand for migrant and seasonal Head Start programs (and services provided through such programs), the Secretary shall consult with appropriate entities, including providers of services for migrant and seasonal Head Start programs. The Secretary shall, after taking into consideration the need and demand for migrant and seasonal Head Start programs (and such services), ensure that there is an adequate level of such services for eligible children of migrant farmworker families before approving an increase in the allocation of funds provided under this subchapter for unserved eligible children of seasonal farmworker families. In serving the eligible children of seasonal farmworker families, the Secretary shall ensure that services provided by migrant and seasonal Head Start programs do not duplicate or overlap with other Head Start services available to eligible children of such farmworker families.

(3) In carrying out this subchapter, the Secretary shall continue the administrative arrangement at the national level for meeting the needs of Indian children and children of migrant and seasonal farmworker families and shall ensure—

(A) the provision of training and technical assistance by staff with knowledge of and experience in working with such populations; and

(B) the appointment of a national Indian Head Start collaboration director and a national migrant and seasonal Head Start collaboration director.

(4)

(A) For the purposes of paragraph (3), the Secretary shall conduct an annual consultation in each affected Head Start region, with tribal governments operating Head Start (including Early Head Start) programs.

(B) The consultations shall be for the purpose of better meeting the needs of Indian, including Alaska Native, children and their families, in accordance with this subchapter, taking into consideration funding allocations, distribution formulas, and other issues affecting the delivery of Head Start services in their geographic locations.

(C) The Secretary shall publish a notification of the consultations in the Federal Register before conducting the consultations.

(D) The Secretary shall ensure that a detailed report of each consultation shall be prepared and made available, within 90 days after the consultation, to all tribal governments receiving funds under this subchapter.

(m) *Enrollment and participation of homeless children.* The Secretary shall issue rules to establish policies and procedures to remove barriers to the enrollment and participation of homeless children in Head Start programs. Such rules shall require Head Start agencies—

(1) to implement policies and procedures to ensure that homeless children are identified and prioritized for enrollment;

(2) to allow families of homeless children to apply to, enroll in, and attend Head Start programs while required documents, such as proof of residency, immunization and other medical records, birth certificates, and other documents, are obtained within a reasonable time frame; and

(3) to coordinate individual Head Start programs with efforts to implement subtitle B of title VII of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11431 et seq.).

(n) *Construction of prerequisites to participation in program.* Nothing in this subchapter shall be construed to require a State to establish a publicly funded program of early childhood education and development, or to require any child to participate in such a publicly funded program, including a State-funded preschool program, or to participate in any initial screening before participating in a publicly funded program of early childhood education and development,

except as provided under sections 612(a)(3) and 635(a)(5) of the Individuals with Disabilities Education Act (20 U.S.C. 1412(a)(3), 1435(a)(5)).

(o) *Curricula.* All curricula funded under this subchapter shall be based on scientifically valid research, and be age and developmentally appropriate. The curricula shall reflect all areas of child development and learning and be aligned with the Head Start Child Outcomes Framework. Parents shall have the opportunity to examine any such curricula or instructional materials funded under this subchapter.

42 U.S.C. § 9836

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 2 (1) and its amici 0 (0).

Designation of Head Start agencies

(a) *Authority to designate.*

(1) *In general.* The Secretary is authorized to designate as a Head Start agency any local public or private nonprofit agency, including community-based and faith-based organizations, or for-profit agency, within a community, pursuant to the requirements of this section.

(2) *Interim policy.* Notwithstanding paragraph (1), until such time as the Secretary develops and implements the system for designation renewal under this section, the Secretary is authorized to designate as a Head Start agency, any local public or private nonprofit agency, including community-based and faith-based organizations, or for-profit agency, within a community, in the manner and process utilized by the Secretary prior to December 12, 2007.

(b) *Application for designation renewal.* To be considered for designation renewal, an entity shall submit an application to the Secretary, at such time and in such manner as the Secretary may require.

(c) *System for designation renewal.*

(1) *In general.* The Secretary shall develop a system for designation renewal that integrates the recommendations of the expert panel convened under paragraph (2) to determine if a Head Start agency is delivering a high-quality and comprehensive Head Start program that meets the educational, health, nutritional, and social needs of the children and families it serves, and meets program and financial management requirements and standards described in section 9836a(a)(1) of this title, based on—

(A) annual budget and fiscal management data;

(B) program reviews conducted under section 9836a(c) of this title;

(C) annual audits required under section 9842 of this title;

(D) classroom quality as measured under section 9836a(c)(2)(F) of this title; and

(E) Program Information Reports.

(2) *Expert panel.* Not later than 3 months after December 12, 2007, the Secretary shall convene an expert panel of 7 members to make recommendations to the Secretary on the development of a transparent, reliable, and valid system for designation renewal.

(3) *Composition of expert panel.* The Secretary, in convening such panel, shall appoint the following:

(A)

(i) One member, who has demonstrated competency, as evidenced by training, expertise, and experience, in early childhood program accreditation.

(ii) One member, who has demonstrated competency (as so evidenced) in research on early childhood development.

(iii) One member, who has demonstrated competency (as so evidenced) in governance and finance of nonprofit organizations.

(iv) One member, who has demonstrated competency (as so evidenced) in delivery of services to populations of children with special needs and their families.

(v) One member, who has demonstrated competency (as so evidenced) in assessment and evaluation of programs serving young children.

(B) An employee from the Office of Head Start.

(C) An executive director of a Head Start agency.

(4) *Expert panel report.* Within 9 months after being convened by the Secretary, the expert panel shall issue a report to the Secretary that provides recommendations on a proposed system for designation renewal that takes into account the criteria in subparagraphs (A) through (E) of paragraph (1) to evaluate whether a Head Start agency is fulfilling its mission to deliver a high-quality and comprehensive Head Start program, including adequately meeting its governance, legal, and financial management requirements.

(5) *Public comment and consideration.* Not later than 3 months after receiving the report described in paragraph (4), the Secretary shall publish a notice describing a proposed system for designation renewal in the Federal Register, including a proposal for the transition to such system, providing at least 90 days for public comment. The Secretary shall review and consider public comments prior to finalizing the system for designation renewal described in this

subsection.

(6) *Designation renewal system.* Not later than 12 months after publishing a notice describing the proposed system under paragraph (5), the Secretary shall implement the system for designation renewal and use that system to determine—

(A) whether a Head Start grantee is successfully delivering a high-quality and comprehensive Head Start program; and

(B) whether the grantee has any unresolved deficiencies found during the last triennial review under section 9836a(c) of this title.

(7) *Implementation of the designation renewal system.*

(A) *In general.* A grantee who is determined under such system—

(i) to be delivering a high-quality and comprehensive Head Start program shall be designated (consistent with section 9838 of this title) as a Head Start agency for the period of 5 years described in section 9833 of this title;

(ii) to not be delivering a high-quality and comprehensive Head Start program shall be subject to an open competition as described in subsection (d); and

(iii) in the case of an Indian Head Start agency, to not be delivering a high-quality and comprehensive Head Start program shall (notwithstanding clause (ii)) be subject to the requirements of subparagraph (B).

(B) *Tribal government consultation and reevaluation.* On making a determination described in subparagraph (A)(iii), the Secretary shall engage in government-to-government consultation with the appropriate tribal government or governments for the purpose of establishing a plan to improve the quality of Head Start programs operated by the Indian Head Start agency. Such plan shall be established and implemented within 6 months after the Secretary's determination. Not more than 6 months after the implementation of that plan, the Secretary shall reevaluate the performance of the Indian Head Start agency. If the Indian Head Start agency is still not delivering a high-quality and comprehensive Head Start program, the Secretary shall conduct an open competition as described in subsection (d), subject to the limitations described in subsection (e).

(8) *Transparency, reliability, and validity.* The Secretary shall ensure the system for designation renewal is fair, consistent, and transparent and is applied in a manner that renews designations, in a timely manner, grantees as Head Start agencies for periods of 5 years if such grantees are delivering high-quality and comprehensive Head Start programs. The Secretary shall periodically evaluate whether the criteria of the system are being applied in a manner that is transparent, reliable, and valid.

(9) *Transition.*

(A) *In general.* Each Head Start agency shall be reviewed under the system for designation renewal described in paragraph (6), not later than 3 years after the implementation of such system.

(B) *Limitation.* A Head Start agency shall not be subject to the requirements of the system for designation renewal prior to 18 months after December 12, 2007.

(C) *Schedule.* The Secretary shall establish and implement a schedule for reviewing each Head Start agency under the system for designation renewal described in paragraph (6), consistent with subparagraphs (A) and (B).

(10) *Reports to Congress.* The Secretary shall—

(A) make available to the Committee on Education and Labor of the House of Representatives and the Committee on Health, Education, Labor, and Pensions of the Senate the report described in paragraph (4);

(B) concurrently with publishing a notice in the Federal Register as described in paragraph (5), provide a report to the Committee on Education and Labor of the House of Representatives and the Committee on Health, Education, Labor, and Pensions of the Senate that provides a detailed description of the proposed system described in paragraph (5), including a clear rationale for any differences between the proposed system and the recommendations of the expert panel, if any such differences exist; and

(C) prior to implementing the system for designation renewal, provide a report to the Committee on Education and Labor of the House of Representatives and the Committee on Health, Education, Labor, and Pensions of the Senate—

(i) summarizing the public comment on the proposed system and the Secretary's response to such comment; and

(ii) describing the final system for designation renewal and the plans for implementation of such system.

(d) *Designation when no entity is renewed.*

(1) *In general.* If no entity in a community is determined to be successfully delivering a high-quality and comprehensive Head Start program, as specified in subsection (c), the Secretary shall, after conducting an open competition, designate for a 5-year period a Head Start agency from among qualified applicants in such community.

(2) *Considerations for designation.* In selecting from among qualified applicants for designation as a Head Start agency, the Secretary shall consider the effectiveness of each such applicant to provide Head Start services, based on—

(A) any past performance of such applicant in providing services comparable to Head Start services, including how effectively such applicant provided such comparable services;

(B) the plan of such applicant to provide comprehensive health, educational, nutritional, social, and other services needed to aid participating children in attaining their full potential, and to prepare children to succeed in school;
(C) the plan of such applicant to attract and retain qualified staff capable of delivering, including implementing, a high-quality and comprehensive program, including the ability to carry out a research based curriculum aligned with the Head Start Child Outcomes Framework and, as appropriate, State early learning standards;
(D) the ability of such applicant to maintain child-to-teacher ratios and family service worker caseloads that reflect best practices and are tied to high-quality service delivery;
(E) the capacity of such applicant to serve eligible children with—
(i) curricula that are based on scientifically valid research, that are developmentally appropriate, and that promote the school readiness of children participating in the program involved; and
(ii) teaching practices that are based, as appropriate, on scientifically valid research, that are developmentally appropriate, and that promote the school readiness of children participating in the program involved;
(F) the plan of such applicant to meet standards described in section 9836a(a)(1) of this title, with particular attention to the standards described in subparagraphs (A) and (B) of such section;
(G) the proposed budget of the applicant and plan of such applicant to maintain strong fiscal controls and cost-effective fiscal management;
(H) the plan of such applicant to coordinate and collaborate with other public or private entities providing early childhood education and development programs and services for young children in the community involved, including—
(i) preschool programs under title I of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6301 et seq.);
(ii) programs under section 619 and part C of the Individuals with Disabilities Education Act (20 U.S.C. 1419, 1431 et seq.);
(iii) State prekindergarten programs;
(iv) child care programs;
(v) the educational programs that the children in the Head Start program involved will enter at the age of compulsory school attendance; and
(vi) local entities, such as a public or school library, for—
(I) conducting reading readiness programs;
(II) developing innovative programs to excite children about the world of books, including providing fresh books in the Head Start classroom;
(III) assisting in literacy training for Head Start teachers; or
(IV) supporting parents and other caregivers in literacy efforts;
(I) the plan of such applicant to coordinate the Head Start program that the applicant proposes to carry out, with public and private entities that are willing to commit resources to assist the Head Start program in meeting its program needs;
(J) the plan of such applicant—
(i) to facilitate the involvement of parents (including grandparents and kinship caregivers, as appropriate) of children participating in the proposed Head Start program, in activities (at home and, if practicable, at the location of the Head Start program) designed to help such parents become full partners in the education of their children;
(ii) to afford such parents the opportunity to participate in the development and overall conduct of the program at the local level, including transportation assistance, as appropriate;
(iii) to offer (directly or through referral to local entities, public and school libraries, and entities carrying out family support programs) to such parents—
(I) family literacy services; and
(II) parenting skills training;
(iv) to offer to parents of participating children substance abuse counseling (either directly or through referral to local entities), if needed, including information on the effect of drug exposure on infants and fetal alcohol syndrome;
(v) at the option of such applicant, to offer (directly or through referral to local entities) to such parents—
(I) training in basic child development (including cognitive, social, and emotional development);
(II) assistance in developing literacy and communication skills;
(III) opportunities to share experiences with other parents (including parent-mentor relationships);
(IV) regular in-home visitation;
(V) health services, including information on maternal depression; or
(VI) any other activity designed to help such parents become full partners in the education of their children;

(vi) to provide, with respect to each participating family, a family needs assessment that includes consultation with such parents (including foster parents, grandparents, and kinship caregivers, where applicable), in a manner and language that such parents can understand, to the extent practicable, about the benefits of parent involvement and about the activities described in this subparagraph in which such parents may choose to become involved (taking into consideration their specific family needs, work schedules, and other responsibilities); and
(vii) to extend outreach to fathers (including father figures), in appropriate cases, in order to strengthen the role of those fathers in families, in the education of young children, and in the Head Start program, by working directly with the fathers through activities such as—

(I) in appropriate cases, including the fathers in home visits and providing opportunities for direct father-child interactions; and

(II) targeting increased male participation in the conduct of the program;

(K) the plan of such applicant to meet the needs of limited English proficient children and their families, including procedures to identify such children, plans to provide trained personnel, and plans to provide services to assist the children in making progress toward the acquisition of the English language, while making meaningful progress in attaining the knowledge, skills, abilities, and development described in section 9836a(a)(1)(B) of this title;

(L) the plan of such applicant to meet the diverse needs of the population served;

(M) the plan of such applicant who chooses to assist younger siblings of children who will participate in the Head Start program to obtain health services from other sources;

(N) the plan of such applicant to meet the needs of children with disabilities, including procedures to identify such children, procedures for referral of such children for evaluation to State or local agencies providing services under section 619 or part C of the Individuals with Disabilities Education Act (20 U.S.C. 1419, 1431 et seq.), and plans for collaboration with those State or local agencies;

(O) the plan of such applicant to meet the needs of homeless children, including transportation needs, and the needs of children in foster care; and

(P) other factors related to the requirements of this subchapter.

(3) *Priority.* In selecting from among qualified applicants for designation as a Head Start agency, the Secretary shall give priority to applicants that have demonstrated capacity in providing effective, comprehensive, and well-coordinated early childhood education and development services and programs to children and their families.

(e) *Prohibition against non-Indian Head Start agency receiving a grant for an Indian Head Start program.*

(1) *In general.* Notwithstanding any other provision of law, except as provided in paragraph (2), under no condition may a non-Indian Head Start agency receive a grant to carry out an Indian Head Start program.

(2) *Exception.* In a community in which there is no Indian Head Start agency available for designation to carry out an Indian Head Start program, a non-Indian Head Start agency may receive a grant to carry out an Indian Head Start program but only until such time as an Indian Head Start agency in such community becomes available and is designated pursuant to this section.

(f) *Interim provider.* If no agency in a community is designated under subsection (d), and there is no qualified applicant in the community, the Secretary shall designate a qualified agency to carry out the Head Start program in the community on an interim basis until a qualified applicant from the community is designated under subsection (d).

(g) *Parent and community participation.* The Secretary shall require that the practice of significantly involving parents and community residents in the area affected by the program involved, in the selection of Head Start agencies, be continued.

(h) *Community.* For purposes of this subchapter, a community may be a city, county, or multicity or multicounty unit within a State, an Indian reservation (including Indians in any off-reservation area designated by an appropriate tribal government in consultation with the Secretary), or a neighborhood or other area (irrespective of boundaries or political subdivisions) that provides a suitable organizational base and possesses the commonality of interest needed to operate a Head Start program.

42 U.S.C. § 9837

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 2 (1) and its amici 0 (0).

Powers and functions of Head Start agencies

(a) *Authority.* To be designated as a Head Start agency under this subchapter, an agency shall have authority under its charter or applicable law to receive and administer funds under this subchapter, funds and contributions from private or local public sources that may be used in support of a Head Start program, and funds under any Federal or State assistance program pursuant to which a public or private nonprofit or for-profit agency (as the case may be) organized in accordance with this subchapter, could act as grantee, contractor, or sponsor of projects appropriate for inclusion in a Head Start program. Such an agency shall also be empowered to transfer funds so received, and to delegate powers to other agencies, subject to the powers of its governing board and its overall program responsibilities. The power to

transfer funds and delegate powers shall include the power to make transfers and delegations covering component projects in all cases where this will contribute to efficiency and effectiveness or otherwise further program objectives.

(b) *Family and community involvement; family services.* To be so designated, a Head Start agency shall, at a minimum, do all the following to involve and serve families and communities:

(1) Provide for the regular and direct participation of parents and community residents in the implementation of the Head Start program, including decisions that influence the character of such program, consistent with paragraphs (2)(D) and (3)(C) of subsection (c).

(2) Seek the involvement of parents, community residents, and local business in the design and implementation of the program.

(3) Establish effective procedures—

(A) to facilitate and seek the involvement of parents of participating children in activities designed to help such parents become full partners in the education of their children; and

(B) to afford such parents the opportunity to participate in the development and overall conduct of the program at the local level, including transportation assistance as appropriate.

(4) Offer (directly or through referral to local entities, public and school libraries, and entities carrying out family support programs) to such parents—

(A) family literacy services; and

(B) parenting skills training.

(5) Offer to parents of participating children substance abuse counseling (either directly or through referral to local entities), if needed, including information on the effect of drug exposure on infants and fetal alcohol syndrome.

(6) At the option of such agency, offer (directly or through referral to local entities) to such parents—

(A) training in basic child development (including cognitive, social, and emotional development);

(B) assistance in developing literacy and communication skills;

(C) opportunities to share experiences with other parents (including parent-mentor relationships);

(D) health services, including information on maternal depression;

(E) regular in-home visitation; or

(F) any other activity designed to help such parents become full partners in the education of their children.

(7) Provide, with respect to each participating family, a family needs assessment that includes consultation with such parents (including foster parents, grandparents, and kinship caregivers, where applicable), in a manner and language that such parents can understand (to the extent practicable), about the benefits of parent involvement and about the activities described in this subsection in which such parents may choose to be involved (taking into consideration their specific family needs, work schedules, and other responsibilities).

(8) Consider providing services to assist younger siblings of children participating in its Head Start program to obtain health services from other sources.

(9) Perform community outreach to encourage individuals previously unaffiliated with Head Start programs to participate in its Head Start program as volunteers.

(10)

(A) Inform custodial parents in single-parent families that participate in programs, activities, or services carried out or provided under this subchapter about the availability of child support services for purposes of establishing paternity and acquiring child support.

(B) Refer eligible parents to the child support offices of State and local governments.

(11) Provide to parents of limited English proficient children outreach and information, in an understandable and uniform format and, to the extent practicable, in a language that the parents can understand.

(12) Provide technical and other support needed to enable parents and community residents to secure, on their own behalf, available assistance from public and private sources.

(13) Promote the continued involvement of the parents (including foster parents, grandparents, and kinship caregivers, as appropriate) of children that participate in Head Start programs in the education of their children upon transition of their children to school, by working with the local educational agency—

(A) to provide training to the parents—

(i) to inform the parents about their rights and responsibilities concerning the education of their children; and

(ii) to enable the parents—

(I) to understand and work with schools in order to communicate with teachers and other school personnel;

(II) to support the schoolwork of their children; and

(III) to participate as appropriate in decisions relating to the education of their children; and

(B) to take other actions, as appropriate and feasible, to support the active involvement of the parents with schools, school personnel, and school-related organizations.

(14) Establish effective procedures for timely referral of children with disabilities to the State or local agency providing

services under section 619 or part C of the Individuals with Disabilities Education Act (20 U.S.C. 1419, 1431 et seq.), and collaboration with that agency, consistent with section 9835(d)(3) of this title.

(15) Establish effective procedures for providing necessary early intervening services to children with disabilities prior to an eligibility determination by the State or local agency responsible for providing services under section 619 or part C of such Act, consistent with section 9835(d)(2) of this title.

(16) At the option of the Head Start agency, partner with an institution of higher education and a nonprofit organization to provide college students with the opportunity to serve as mentors or reading partners for Head Start participants.

(c) *Program governance.* Upon receiving designation as a Head Start agency, the agency shall establish and maintain a formal structure for program governance, for the oversight of quality services for Head Start children and families and for making decisions related to program design and implementation. Such structure shall include the following:

(1) *Governing body.*

(A) *In general.* The governing body shall have legal and fiscal responsibility for the Head Start agency.

(B) *Composition.* The governing body shall be composed as follows:

(i) Not less than 1 member shall have a background and expertise in fiscal management or accounting.

(ii) Not less than 1 member shall have a background and expertise in early childhood education and development.

(iii) Not less than 1 member shall be a licensed attorney familiar with issues that come before the governing body.

(iv) Additional members shall—

(I) reflect the community to be served and include parents of children who are currently, or were formerly, enrolled in Head Start programs; and

(II) are selected for their expertise in education, business administration, or community affairs.

(v) Exceptions shall be made to the requirements of clauses (i) through (iv) for members of a governing body when those members oversee a public entity and are selected to their positions with the public entity by public election or political appointment.

(vi) If a person described in clause (i), (ii), or (iii) is not available to serve as a member of the governing body, the governing body shall use a consultant, or an other individual with relevant expertise, with the qualifications described in that clause, who shall work directly with the governing body.

(C) *Conflict of interest.* Members of the governing body shall—

(i) not have a financial conflict of interest with the Head Start agency (including any delegate agency);

(ii) not receive compensation for serving on the governing body or for providing services to the Head Start agency;

(iii) not be employed, nor shall members of their immediate family be employed, by the Head Start agency (including any delegate agency); and

(iv) operate as an entity independent of staff employed by the Head Start agency.

(D) *Exception.* If an individual holds a position as a result of public election or political appointment, and such position carries with it a concurrent appointment to serve as a member of a Head Start agency governing body, and such individual has any conflict of interest described in clause (ii) or (iii) of subparagraph (C)—

(i) such individual shall not be prohibited from serving on such body and the Head Start agency shall report such conflict to the Secretary; and

(ii) if the position held as a result of public election or political appointment provides compensation, such individual shall not be prohibited from receiving such compensation.

(E) *Responsibilities.* The governing body shall—

(i) have legal and fiscal responsibility for administering and overseeing programs under this subchapter, including the safeguarding of Federal funds;

(ii) adopt practices that assure active, independent, and informed governance of the Head Start agency, including practices consistent with subsection (d)(1), and fully participate in the development, planning, and evaluation of the Head Start programs involved;

(iii) be responsible for ensuring compliance with Federal laws (including regulations) and applicable State, tribal, and local laws (including regulations); and

(iv) be responsible for other activities, including—

(I) selecting delegate agencies and the service areas for such agencies;

(II) establishing procedures and criteria for recruitment, selection, and enrollment of children;

(III) reviewing all applications for funding and amendments to applications for funding for programs under this subchapter;

(IV) establishing procedures and guidelines for accessing and collecting information described in subsection (d)(2);

(V) reviewing and approving all major policies of the agency, including—

(aa) the annual self-assessment and financial audit;

(bb) such agency's progress in carrying out the programmatic and fiscal provisions in such agency's grant application, including implementation of corrective actions; and

(cc) personnel policies of such agencies regarding the hiring, evaluation, termination, and compensation of agency employees;

(VI) developing procedures for how members of the policy council are selected, consistent with paragraph (2)(B);

(VII) approving financial management, accounting, and reporting policies, and compliance with laws and regulations related to financial statements, including the—

(aa) approval of all major financial expenditures of the agency;

(bb) annual approval of the operating budget of the agency;

(cc) selection (except when a financial auditor is assigned by the State under State law or is assigned under local law) of independent financial auditors who shall report all critical accounting policies and practices to the governing body; and

(dd) monitoring of the agency's actions to correct any audit findings and of other action necessary to comply with applicable laws (including regulations) governing financial statement and accounting practices;

(VIII) reviewing results from monitoring conducted under section 9836a(c) of this title, including appropriate followup activities;

(IX) approving personnel policies and procedures, including policies and procedures regarding the hiring, evaluation, compensation, and termination of the Executive Director, Head Start Director, Director of Human Resources, Chief Fiscal Officer, and any other person in an equivalent position with the agency;

(X) establishing, adopting, and periodically updating written standards of conduct that establish standards and formal procedures for disclosing, addressing, and resolving—

(aa) any conflict of interest, and any appearance of a conflict of interest, by members of the governing body, officers and employees of the Head Start agency, and consultants and agents who provide services or furnish goods to the Head Start agency; and

(bb) complaints, including investigations, when appropriate; and

(XI) to the extent practicable and appropriate, at the discretion of the governing body, establishing advisory committees to oversee key responsibilities related to program governance and improvement of the Head Start program involved.

(2) *Policy council.*

(A) *In general.* Consistent with paragraph (1)(E), each Head Start agency shall have a policy council responsible for the direction of the Head Start program, including program design and operation, and long- and short-term planning goals and objectives, taking into account the annual communitywide strategic planning and needs assessment and self-assessment.

(B) *Composition and selection.*

(i) The policy council shall be elected by the parents of children who are currently enrolled in the Head Start program of the Head Start agency.

(ii) The policy council shall be composed of—

(I) parents of children who are currently enrolled in the Head Start program of the Head Start agency (including any delegate agency), who shall constitute a majority of the members of the policy council; and

(II) members at large of the community served by the Head Start agency (including any delegate agency), who may include parents of children who were formerly enrolled in the Head Start program of the agency.

(C) *Conflict of interest.* Members of the policy council shall—

(i) not have a conflict of interest with the Head Start agency (including any delegate agency); and

(ii) not receive compensation for serving on the policy council or for providing services to the Head Start agency.

(D) *Responsibilities.* The policy council shall approve and submit to the governing body decisions about each of the following activities:

(i) Activities to support the active involvement of parents in supporting program operations, including policies to ensure that the Head Start agency is responsive to community and parent needs.

(ii) Program recruitment, selection, and enrollment priorities.

(iii) Applications for funding and amendments to applications for funding for programs under this subchapter, prior to submission of applications described in this clause.

(iv) Budget planning for program expenditures, including policies for reimbursement and participation in policy council activities.

(v) Bylaws for the operation of the policy council.

(vi) Program personnel policies and decisions regarding the employment of program staff, consistent with

paragraph (1)(E)(iv)(IX), including standards of conduct for program staff, contractors, and volunteers and criteria for the employment and dismissal of program staff.

(vii) Developing procedures for how members of the policy council of the Head Start agency will be elected.

(viii) Recommendations on the selection of delegate agencies and the service areas for such agencies.

(3) *Policy committees.* Each delegate agency shall create a policy committee, which shall—

(A) be elected and composed of members, consistent with paragraph (2)(B) (with respect to delegate agencies);

(B) follow procedures to prohibit conflict of interest, consistent with clauses (i) and (ii) of paragraph (2)(C) (with respect to delegate agencies); and

(C) be responsible for approval and submission of decisions about activities as they relate to the delegate agency, consistent with paragraph (2)(D) (with respect to delegate agencies).

(d) *Program governance administration.*

(1) *Impasse policies.* The Secretary shall develop policies, procedures, and guidance for Head Start agencies concerning—

(A) the resolution of internal disputes, including any impasse in the governance of Head Start programs; and

(B) the facilitation of meaningful consultation and collaboration about decisions of the governing body and policy council.

(2) *Conduct of responsibilities.* Each Head Start agency shall ensure the sharing of accurate and regular information for use by the governing body and the policy council, about program planning, policies, and Head Start agency operations, including—

(A) monthly financial statements, including credit card expenditures;

(B) monthly program information summaries;

(C) program enrollment reports, including attendance reports for children whose care is partially subsidized by another public agency;

(D) monthly reports of meals and snacks provided through programs of the Department of Agriculture;

(E) the financial audit;

(F) the annual self-assessment, including any findings related to such assessment;

(G) the communitywide strategic planning and needs assessment of the Head Start agency, including any applicable updates;

(H) communication and guidance from the Secretary; and

(I) the program information reports.

(3) *Training and technical assistance.* Appropriate training and technical assistance shall be provided to the members of the governing body and the policy council to ensure that the members understand the information the members receive and can effectively oversee and participate in the programs of the Head Start agency.

(e) *Collaboration and coordination.* To be so designated, a Head Start agency shall collaborate and coordinate with public and private entities, to the maximum extent practicable, to improve the availability and quality of services to Head Start children and families, including carrying out the following activities:

(1) Conduct outreach to schools in which children participating in the Head Start program will enroll following the program, local educational agencies, the local business community, community-based organizations, faith-based organizations, museums, and libraries to generate support and leverage the resources of the entire local community in order to improve school readiness.

(2)

(A) In communities where both a public prekindergarten program and a Head Start program operate, collaborate and coordinate activities with the local educational agency or other public agency responsible for the operation of the prekindergarten program and providers of prekindergarten, including outreach activities to identify eligible children.

(B) With the permission of the parents of children enrolled in the Head Start program, regularly communicate with the schools in which the children will enroll following the program, to—

(i) share information about such children;

(ii) collaborate with the teachers in such schools regarding professional development and instructional strategies, as appropriate; and

(iii) ensure a smooth transition to school for such children.

(3) Coordinate activities and collaborate with programs under the Child Care and Development Block Grant Act of 1990 [42 U.S.C. 9857 et seq.], the agencies responsible for administering section 5106a of this title and parts B and E of title IV of the Social Security Act [42 U.S.C. 620 et seq., 670 et seq.], programs under subtitle B of title VII of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11431 et seq.), programs under section 619 and part C of the Individuals with Disabilities Education Act (20 U.S.C. 1419, 1431 et seq.), and other entities providing early childhood education and development programs or services, serving the children and families served by the Head Start agency.

(4) Take steps to coordinate activities with the local educational agency serving the community involved and with schools in which children participating in the Head Start program will enroll following the program, including—

(A) collaborating on the shared use of transportation and facilities, in appropriate cases;

(B) collaborating to reduce the duplication and enhance the efficiency of services while increasing the program participation of underserved populations of eligible children; and

(C) exchanging information on the provision of noneducational services to such children.

(5) Enter into a memorandum of understanding, not later than 1 year after December 12, 2007, with the appropriate local entity responsible for managing publicly funded preschool programs in the service area of the Head Start agency, that shall—

(A)

(i) provide for a review of each of the activities described in clause (ii); and

(ii) include plans to coordinate, as appropriate, activities regarding—

(I) educational activities, curricular objectives, and instruction;

(II) public information dissemination and access to programs for families contacting the Head Start program or any of the preschool programs;

(III) selection priorities for eligible children to be served by programs;

(IV) service areas;

(V) staff training, including opportunities for joint staff training on topics such as academic content standards, instructional methods, curricula, and social and emotional development;

(VI) program technical assistance;

(VII) provision of additional services to meet the needs of working parents, as applicable;

(VIII) communications and parent outreach for smooth transitions to kindergarten as required in paragraphs (3) and (6) of section 9837a(a) of this title;

(IX) provision and use of facilities, transportation, and other program elements; and

(X) other elements mutually agreed to by the parties to such memorandum;

(B) be submitted to the Secretary and the State Director of Head Start Collaboration not later than 30 days after the parties enter into such memorandum, except that—

(i) where there is an absence of publicly funded preschool programs in the service area of a Head Start agency, this paragraph shall not apply; or

(ii) where the appropriate local entity responsible for managing the publicly funded preschool programs is unable or unwilling to enter into such a memorandum, this paragraph shall not apply and the Head Start agency shall inform the Secretary and the State Director of Head Start Collaboration of such inability or unwillingness; and

(C) be revised periodically and renewed biennially by the parties to such memorandum, in alignment with the beginning of the school year.

(f) *Quality standards, curricula, and assessment.* To be so designated, each Head Start agency shall—

(1) take steps to ensure, to the maximum extent practicable, that children maintain the developmental and educational gains achieved in Head Start programs and build upon such gains in further schooling;

(2) establish a program with the standards set forth in section 9836a(a)(1) of this title, with particular attention to the standards set forth in subparagraphs (A) and (B) of such section;

(3) implement a research-based early childhood curriculum that—

(A) promotes young children's school readiness in the areas of language and cognitive development, early reading and mathematics skills, socio-emotional development, physical development, and approaches to learning;

(B) is based on scientifically valid research and has standardized training procedures and curriculum materials to support implementation;

(C) is comprehensive and linked to ongoing assessment, with developmental and learning goals and measurable objectives;

(D) is focused on improving the learning environment, teaching practices, family involvement, and child outcomes across all areas of development; and

(E) is aligned with the Head Start Child Outcomes Framework developed by the Secretary and, as appropriate, State early learning standards;

(4) implement effective interventions and support services that help promote the school readiness of children participating in the program;

(5) use research-based assessment methods that reflect the characteristics described in section 9836a(b)(2) of this title in order to support the educational instruction and school readiness of children in the program;

(6) use research-based developmental screening tools that have been demonstrated to be standardized, reliable, valid, and accurate for the child being assessed, to the maximum extent practicable, for the purpose of meeting the relevant

standards described in section 9836a(a)(1) of this title;

(7) adopt, in consultation with experts in child development and with classroom teachers, an evaluation to assess whether classroom teachers have mastered the functions discussed in section 9843a(a)(1) of this title;

(8) use the information provided from the assessment conducted under section 9836a(c)(2)(F) of this title to inform professional development plans, as appropriate, that lead to improved teacher effectiveness;

(9) establish goals and measurable objectives for the provision of health, educational, nutritional, and social services provided under this subchapter and related to the program mission and to promote school readiness; and

(10) develop procedures for identifying children who are limited English proficient, and informing the parents of such children about the instructional services used to help children make progress towards acquiring the knowledge and skills described in section 9836a(a)(1)(B) of this title and acquisition of the English language.

(g) *Funded enrollment; waiting list.* Each Head Start agency shall enroll 100 percent of its funded enrollment and maintain an active waiting list at all times with ongoing outreach to the community and activities to identify underserved populations.

(h) *Technical assistance and training plan.* In order to receive funds under this subchapter, a Head Start agency shall develop an annual technical assistance and training plan. Such plan shall be based on the agency's self-assessment, the communitywide strategic planning and needs assessment, the needs of parents and children to be served by such agency, and the results of the reviews conducted under section 9836a(c) of this title.

(i) *Financial management.* In order to receive funds under this subchapter, a Head Start agency shall document strong fiscal controls, including the employment of well-qualified fiscal staff with a history of successful management of a public or private organization.

42 U.S.C. § 9840

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Participation in Head Start programs

(a) *Criteria for eligibility.*

(a)

(1)

(A) The Secretary shall by regulation prescribe eligibility for the participation of persons in Head Start programs assisted under this subchapter.

(B) Except as provided in paragraph (2), such regulation shall provide—

(i) that children from low-income families shall be eligible for participation in programs assisted under this subchapter if their families' incomes are below the poverty line, or if their families are eligible or, in the absence of child care, would potentially be eligible for public assistance;

(ii) that homeless children shall be deemed to be eligible for such participation;

(iii) that programs assisted under this subchapter may include—

(I) to a reasonable extent (but not to exceed 10 percent of participants), participation of children in the area served who would benefit from such programs but who are not eligible under clause (i) or (ii); and

(II) from the area served, an additional 35 percent of participants who are not eligible under clause (i) or (ii) and whose families have incomes below 130 percent of the poverty line, if—

(aa) the Head Start agency involved establishes and implements outreach and enrollment policies and procedures that ensure such agency is meeting the needs of children eligible under clause (i) or (ii) (or subclause (I) if the child involved has a disability) prior to meeting the needs of children eligible under this subclause; and

(bb) in prioritizing the selection of children to be served, the Head Start agency establishes criteria that provide that the agency will serve children eligible under clause (i) or (ii) prior to serving the children eligible under this subclause;

(iv) that any Head Start agency serving children eligible under clause (iii)(II) shall report annually to the Secretary information on—

(I) how such agency is meeting the needs of children eligible under clause (i) or (ii), in the area served, including local demographic data on families of children eligible under clause (i) or (ii);

(II) the outreach and enrollment policies and procedures established by the agency that ensure the agency is meeting the needs of children eligible under clause (i) or (ii) (or clause (iii)(I) if the child involved has a disability) prior to meeting the needs of children eligible under clause (iii)(II);

(III) the efforts, including outreach efforts (that are appropriate to the community involved), of such agency to be fully enrolled with children eligible under clause (i) or (ii);

(IV) the policies, procedures, and selection criteria such agency is implementing to serve eligible children, consistent with clause (iii)(II);

(V) the agency's enrollment level, and enrollment level over the fiscal year prior to the fiscal year in which the report is submitted;

(VI) the number of children served by the agency, disaggregated by whether such children are eligible under clause (i), clause (ii), clause (iii)(I), or clause (iii)(II); and

(VII) the eligibility criteria category of the children on the agency's waiting list;

(v) that a child who has been determined to meet the eligibility criteria described in this subparagraph and who is participating in a Head Start program in a program year shall be considered to continue to meet the eligibility criteria through the end of the succeeding program year.

(C) In determining, for purposes of this paragraph, whether a child who has applied for enrollment in a Head Start program meets the eligibility criteria, an entity may consider evidence of family income during the 12 months preceding the month in which the application is submitted, or during the calendar year preceding the calendar year in which the application is submitted, whichever more accurately reflects the needs of the family at the time of application.

(2) Whenever a Head Start program is operated in a community with a population of 1,000 or less individuals and—

(A) there is no other preschool program in the community;

(B) the community is located in a medically underserved area, as designated by the Secretary pursuant to section 254c(b)(3) of this title and is located in a health professional shortage area, as designated by the Secretary pursuant to section 254e(a)(1) of this title;

(C) the community is in a location which, by reason of remoteness, does not permit reasonable access to the types of services described in clauses (A) and (B); and

(D) not less than 50 percent of the families to be served in the community are eligible under the eligibility criteria established by the Secretary under paragraph (1);

the Head Start program in each such locality shall establish the criteria for eligibility, except that no child residing in such community whose family is eligible under such eligibility criteria shall, by virtue of such project's eligibility criteria, be denied an opportunity to participate in such program. During the period beginning on October 30, 1984, and ending on October 1, 1994, and unless specifically authorized in any statute of the United States enacted after October 30, 1984, the Secretary may not make any change in the method, as in effect on April 25, 1984, of calculating income used to prescribe eligibility for the participation of persons in the Head Start programs assisted under this subchapter if such change would result in any reduction in, or exclusion from, participation of persons in any of such programs.

(3)

(A) In this paragraph:

(i) The term "dependent" has the meaning given the term in paragraphs (2)(A) and (4)(A)(i) of section 401(a) of title 37.

(ii) The terms "member" and "uniformed services" have the meanings given the terms in paragraphs (23) and (3), respectively, of section 101 of title 37.

(B) The following amounts of pay and allowance of a member of the uniformed services shall not be considered to be income for purposes of determining the eligibility of a dependent of such member for programs funded under this subchapter:

(i) The amount of any special pay payable under section 310 or 351 of title 37, relating to duty subject to hostile fire or imminent danger.

(ii) The amount of basic allowance payable under section 403 of such title, including any such amount that is provided on behalf of the member for housing that is acquired or constructed under the alternative authority for the acquisition and improvement of military housing under subchapter IV of chapter 169 of title 10 or any other related provision of law.

(4) After demonstrating a need through a communitywide strategic planning and needs assessment, a Head Start agency may apply to the Secretary to convert part-day sessions, particularly consecutive part-day sessions, into full-working-day sessions.

(5)

(A) Upon written request and pursuant to the requirements of this paragraph, a Head Start agency may use funds that were awarded under this subchapter to serve children age 3 to compulsory school age, in order to serve infants and toddlers if the agency submits an application to the Secretary containing, as specified in rules issued by the Secretary, all of the following information:

(i) The amount of such funds that are proposed to be used in accordance with section 9840a(b) of this title.

(ii) A communitywide strategic planning and needs assessment demonstrating how the use of such funds would best meet the needs of the community.

(iii) A description of how the needs of pregnant women, and of infants and toddlers, will be addressed in

accordance with section 9840a(b) of this title, and with regulations prescribed by the Secretary pursuant to section 9836a of this title in areas including the agency's approach to child development and provision of health services, approach to family and community partnerships, and approach to program design and management.

(iv) A description of how the needs of eligible children will be met in the community.

(v) Assurances that the agency will participate in technical assistance activities (including planning, start-up site visits, and national training activities) in the same manner as recipients of grants under section 9840a of this title.

(vi) Evidence that the agency meets the same eligibility criteria as recipients of grants under section 9840a of this title.

(B) An application that satisfies the requirements specified in subparagraph (A) shall be approved by the Secretary unless the Secretary finds that—

(i) the agency lacks adequate capacity and capability to carry out an effective Early Head Start program; or

(ii) the information provided under subparagraph (A) is inadequate.

(C) In approving such applications, the Secretary shall take into account the costs of serving persons under section 9840a of this title.

(D) Any Head Start agency with an application approved under subparagraph (B) shall be considered to be an Early Head Start agency and shall be subject to the same rules, regulations, and conditions as apply to recipients of grants under section 9840a of this title, with respect to activities carried out under this paragraph.

(b) *Establishment of fee schedule or charging of fees; payment by families willing and able to pay.* The Secretary shall not prescribe any fee schedule or otherwise provide for the charging of any fees for participation in Head Start programs, unless such fees are authorized by legislation hereafter enacted. Nothing in this subsection shall be construed to prevent the families of children who participate in Head Start programs and who are willing and able to pay the full cost of such participation from doing so. A Head Start agency that provides a Head Start program with full-working-day services in collaboration with other agencies or entities may collect a family copayment to support extended day services if a copayment is required in conjunction with the collaborative. The copayment charged to families receiving services through the Head Start program shall not exceed the copayment charged to families with similar incomes and circumstances who are receiving the services through participation in a program carried out by another agency or entity.

(c) *Availability of more than one year of services; children eligible.* Each Head Start program operated in a community shall be permitted to provide more than 1 year of Head Start services to eligible children in the State. Each Head Start program operated in a community shall be permitted to recruit and accept applications for enrollment of children throughout the year.

(d) *Indian tribes.*

(1) An Indian tribe that—

(A) operates a Head Start program;

(B) enrolls as participants in the program all children in the community served by the tribe (including a community that is an off-reservation area, designated by an appropriate tribal government, in consultation with the Secretary) from families that meet the low-income criteria prescribed under subsection (a)(1)(A); and

(C) has the resources to enroll additional children in the community who do not meet the low-income criteria;

may enroll such additional children in a Head Start program, in accordance with this subsection, if the program predominantly serves children who meet the low-income criteria.

(2) The Indian tribe shall enroll the children in the Head Start program in accordance with such requirements as the Secretary may specify by regulation promulgated after consultation with Indian tribes.

(3) Notwithstanding any other provision of this Act, an Indian tribe or tribes that operates both an Early Head Start program under section 9840a of this title and a Head Start program may, at its discretion, at any time during the grant period involved, reallocate funds between the Early Head Start program and the Head Start program in order to address fluctuations in client populations, including pregnant women and children from birth to compulsory school age. The reallocation of such funds between programs by an Indian tribe or tribes during a year shall not serve as the basis for the Secretary to reduce a base grant (as defined in section 9835(a)(7) of this title) for either program in succeeding years.

42 U.S.C. § 11301

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Findings and purpose

(a) *Findings.* The Congress finds that—

(1) the Nation faces an immediate and unprecedented crisis due to the lack of shelter for a growing number of individuals and families, including elderly persons, handicapped persons, families with children, Native Americans, and veterans;

(2) the problem of homelessness has become more severe and, in the absence of more effective efforts, is expected to become dramatically worse, endangering the lives and safety of the homeless;

(3) the causes of homelessness are many and complex, and homeless individuals have diverse needs;

(4) there is no single, simple solution to the problem of homelessness because of the different subpopulations of the homeless, the different causes of and reasons for homelessness, and the different needs of homeless individuals;

(5) due to the record increase in homelessness, States, units of local government, and private voluntary organizations have been unable to meet the basic human needs of all the homeless and, in the absence of greater Federal assistance, will be unable to protect the lives and safety of all the homeless in need of assistance; and

(6) the Federal Government has a clear responsibility and an existing capacity to fulfill a more effective and responsible role to meet the basic human needs and to engender respect for the human dignity of the homeless.

(b) *Purpose.* It is the purpose of this chapter—

(1) to establish the United States Interagency Council on Homelessness;

(2) to use public resources and programs in a more coordinated manner to meet the critically urgent needs of the homeless of the Nation; and

(3) to provide funds for programs to assist the homeless, with special emphasis on elderly persons, handicapped persons, families with children, Native Americans, and veterans.

42 U.S.C. § 12101

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 2 (1).

Findings and purpose

(a) *Findings.* The Congress finds that—

(1) physical or mental disabilities in no way diminish a person's right to fully participate in all aspects of society, yet many people with physical or mental disabilities have been precluded from doing so because of discrimination; others who have a record of a disability or are regarded as having a disability also have been subjected to discrimination;

(2) historically, society has tended to isolate and segregate individuals with disabilities, and, despite some improvements, such forms of discrimination against individuals with disabilities continue to be a serious and pervasive social problem;

(3) discrimination against individuals with disabilities persists in such critical areas as employment, housing, public accommodations, education, transportation, communication, recreation, institutionalization, health services, voting, and access to public services;

(4) unlike individuals who have experienced discrimination on the basis of race, color, sex, national origin, religion, or age, individuals who have experienced discrimination on the basis of disability have often had no legal recourse to redress such discrimination;

(5) individuals with disabilities continually encounter various forms of discrimination, including outright intentional exclusion, the discriminatory effects of architectural, transportation, and communication barriers, overprotective rules and policies, failure to make modifications to existing facilities and practices, exclusionary qualification standards and criteria, segregation, and relegation to lesser services, programs, activities, benefits, jobs, or other opportunities;

(6) census data, national polls, and other studies have documented that people with disabilities, as a group, occupy an inferior status in our society, and are severely disadvantaged socially, vocationally, economically, and educationally;

(7) the Nation's proper goals regarding individuals with disabilities are to assure equality of opportunity, full participation, independent living, and economic self-sufficiency for such individuals; and

(8) the continuing existence of unfair and unnecessary discrimination and prejudice denies people with disabilities the opportunity to compete on an equal basis and to pursue those opportunities for which our free society is justifiably famous, and costs the United States billions of dollars in unnecessary expenses resulting from dependency and nonproductivity.

(b) *Purpose.* It is the purpose of this chapter—

(1) to provide a clear and comprehensive national mandate for the elimination of discrimination against individuals with disabilities;

(2) to provide clear, strong, consistent, enforceable standards addressing discrimination against individuals with disabilities;

(3) to ensure that the Federal Government plays a central role in enforcing the standards established in this chapter on behalf of individuals with disabilities; and

(4) to invoke the sweep of congressional authority, including the power to enforce the fourteenth amendment and to regulate commerce, in order to address the major areas of discrimination faced day-to-day by people with disabilities.

42 U.S.C. § 12102

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 2 (1).

Definition of disability

(1) *Disability.* The term "disability" means, with respect to an individual—

(A) a physical or mental impairment that substantially limits one or more major life activities of such individual;

(B) a record of such an impairment; or

(C) being regarded as having such an impairment (as described in paragraph (3)).

(2) *Major life activities.*

(A) *In general.* For purposes of paragraph (1), major life activities include, but are not limited to, caring for oneself, performing manual tasks, seeing, hearing, eating, sleeping, walking, standing, lifting, bending, speaking, breathing, learning, reading, concentrating, thinking, communicating, and working.

(B) *Major bodily functions.* For purposes of paragraph (1), a major life activity also includes the operation of a major bodily function, including but not limited to, functions of the immune system, normal cell growth, digestive, bowel, bladder, neurological, brain, respiratory, circulatory, endocrine, and reproductive functions.

(3) *Regarded as having such an impairment.* For purposes of paragraph (1)(C):

(A) An individual meets the requirement of "being regarded as having such an impairment" if the individual establishes that he or she has been subjected to an action prohibited under this chapter because of an actual or perceived physical or mental impairment whether or not the impairment limits or is perceived to limit a major life activity.

(B) Paragraph (1)(C) shall not apply to impairments that are transitory and minor. A transitory impairment is an impairment with an actual or expected duration of 6 months or less.

(4) *Rules of construction regarding the definition of disability.* The definition of "disability" in paragraph (1) shall be construed in accordance with the following:

(A) The definition of disability in this chapter shall be construed in favor of broad coverage of individuals under this chapter, to the maximum extent permitted by the terms of this chapter.

(B) The term "substantially limits" shall be interpreted consistently with the findings and purposes of the ADA Amendments Act of 2008.

(C) An impairment that substantially limits one major life activity need not limit other major life activities in order to be considered a disability.

(D) An impairment that is episodic or in remission is a disability if it would substantially limit a major life activity when active.

(E)

(i) The determination of whether an impairment substantially limits a major life activity shall be made without regard to the ameliorative effects of mitigating measures such as—

(I) medication, medical supplies, equipment, or appliances, low-vision devices (which do not include ordinary eyeglasses or contact lenses), prosthetics including limbs and devices, hearing aids and cochlear implants or other implantable hearing devices, mobility devices, or oxygen therapy equipment and supplies;

(II) use of assistive technology;

(III) reasonable accommodations or auxiliary aids or services; or

(IV) learned behavioral or adaptive neurological modifications.

(ii) The ameliorative effects of the mitigating measures of ordinary eyeglasses or contact lenses shall be considered in determining whether an impairment substantially limits a major life activity.

(iii) As used in this subparagraph—

(I) the term "ordinary eyeglasses or contact lenses" means lenses that are intended to fully correct visual acuity or eliminate refractive error; and

(II) the term "low-vision devices" means devices that magnify, enhance, or otherwise augment a visual image.

42 U.S.C. § 12112

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 2 (1).

Discrimination

(a) *General rule.* No covered entity shall discriminate against a qualified individual on the basis of disability in regard to job application procedures, the hiring, advancement, or discharge of employees, employee compensation, job training, and other terms, conditions, and privileges of employment.

(b) *Construction.* As used in subsection (a), the term "discriminate against a qualified individual on the basis of disability" includes—

(1) limiting, segregating, or classifying a job applicant or employee in a way that adversely affects the opportunities or status of such applicant or employee because of the disability of such applicant or employee;

(2) participating in a contractual or other arrangement or relationship that has the effect of subjecting a covered entity's

qualified applicant or employee with a disability to the discrimination prohibited by this subchapter (such relationship includes a relationship with an employment or referral agency, labor union, an organization providing fringe benefits to an employee of the covered entity, or an organization providing training and apprenticeship programs);

(3) utilizing standards, criteria, or methods of administration—

(A) that have the effect of discrimination on the basis of disability; or

(B) that perpetuate the discrimination of others who are subject to common administrative control;

(4) excluding or otherwise denying equal jobs or benefits to a qualified individual because of the known disability of an individual with whom the qualified individual is known to have a relationship or association;

(5)

(A) not making reasonable accommodations to the known physical or mental limitations of an otherwise qualified individual with a disability who is an applicant or employee, unless such covered entity can demonstrate that the accommodation would impose an undue hardship on the operation of the business of such covered entity; or

(B) denying employment opportunities to a job applicant or employee who is an otherwise qualified individual with a disability, if such denial is based on the need of such covered entity to make reasonable accommodation to the physical or mental impairments of the employee or applicant;

(6) using qualification standards, employment tests or other selection criteria that screen out or tend to screen out an individual with a disability or a class of individuals with disabilities unless the standard, test or other selection criteria, as used by the covered entity, is shown to be job-related for the position in question and is consistent with business necessity; and

(7) failing to select and administer tests concerning employment in the most effective manner to ensure that, when such test is administered to a job applicant or employee who has a disability that impairs sensory, manual, or speaking skills, such test results accurately reflect the skills, aptitude, or whatever other factor of such applicant or employee that such test purports to measure, rather than reflecting the impaired sensory, manual, or speaking skills of such employee or applicant (except where such skills are the factors that the test purports to measure).

(c) *Covered entities in foreign countries.*

(1) *In general.* It shall not be unlawful under this section for a covered entity to take any action that constitutes discrimination under this section with respect to an employee in a workplace in a foreign country if compliance with this section would cause such covered entity to violate the law of the foreign country in which such workplace is located.

(2) *Control of corporation.*

(A) *Presumption.* If an employer controls a corporation whose place of incorporation is a foreign country, any practice that constitutes discrimination under this section and is engaged in by such corporation shall be presumed to be engaged in by such employer.

(B) *Exception.* This section shall not apply with respect to the foreign operations of an employer that is a foreign person not controlled by an American employer.

(C) *Determination.* For purposes of this paragraph, the determination of whether an employer controls a corporation shall be based on—

(i) the interrelation of operations;

(ii) the common management;

(iii) the centralized control of labor relations; and

(iv) the common ownership or financial control,

of the employer and the corporation.

(d) *Medical examinations and inquiries.*

(1) *In general.* The prohibition against discrimination as referred to in subsection (a) shall include medical examinations and inquiries.

(2) *Preemployment.*

(A) *Prohibited examination or inquiry.* Except as provided in paragraph (3), a covered entity shall not conduct a medical examination or make inquiries of a job applicant as to whether such applicant is an individual with a disability or as to the nature or severity of such disability.

(B) *Acceptable inquiry.* A covered entity may make preemployment inquiries into the ability of an applicant to perform job-related functions.

(3) *Employment entrance examination.* A covered entity may require a medical examination after an offer of employment has been made to a job applicant and prior to the commencement of the employment duties of such applicant, and may condition an offer of employment on the results of such examination, if—

(A) all entering employees are subjected to such an examination regardless of disability;

(B) information obtained regarding the medical condition or history of the applicant is collected and maintained on separate forms and in separate medical files and is treated as a confidential medical record, except that—

(i) supervisors and managers may be informed regarding necessary restrictions on the work or duties of the employee and necessary accommodations;

(ii) first aid and safety personnel may be informed, when appropriate, if the disability might require emergency treatment; and

(iii) government officials investigating compliance with this chapter shall be provided relevant information on request; and

(C) the results of such examination are used only in accordance with this subchapter.

(4) *Examination and inquiry.*

(A) *Prohibited examinations and inquiries.* A covered entity shall not require a medical examination and shall not make inquiries of an employee as to whether such employee is an individual with a disability or as to the nature or severity of the disability, unless such examination or inquiry is shown to be job-related and consistent with business necessity.

(B) *Acceptable examinations and inquiries.* A covered entity may conduct voluntary medical examinations, including voluntary medical histories, which are part of an employee health program available to employees at that work site. A covered entity may make inquiries into the ability of an employee to perform job-related functions.

(C) *Requirement.* Information obtained under subparagraph (B) regarding the medical condition or history of any employee are subject to the requirements of subparagraphs (B) and (C) of paragraph (3).

42 U.S.C. § 9836a

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 2 (1) and its amici 0 (0).

Standards; monitoring of Head Start agencies and programs

(a) *Standards.*

(1) *Content of standards.* The Secretary shall modify, as necessary, program performance standards by regulation applicable to Head Start agencies and programs under this subchapter, including—

(A) performance standards with respect to services required to be provided, including health, parental involvement, nutritional, and social services, transition activities described in section 9837a of this title, and other services;

(B) scientifically based and developmentally appropriate education performance standards related to school readiness that are based on the Head Start Child Outcomes Framework to ensure that the children participating in the program, at a minimum, develop and demonstrate—

(i) language knowledge and skills, including oral language and listening comprehension;

(ii) literacy knowledge and skills, including phonological awareness, print awareness and skills, and alphabetic knowledge;

(iii) mathematics knowledge and skills;

(iv) science knowledge and skills;

(v) cognitive abilities related to academic achievement and child development;

(vi) approaches to learning related to child development and early learning;

(vii) social and emotional development related to early learning, school success, and social problemsolving;

(viii) abilities in creative arts;

(ix) physical development; and

(x) in the case of limited English proficient children, progress toward acquisition of the English language while making meaningful progress in attaining the knowledge, skills, abilities, and development described in clauses (i) through (ix), including progress made through the use of culturally and linguistically appropriate instructional services;

(C) administrative and financial management standards;

(D) standards relating to the condition and location of facilities (including indoor air quality assessment standards, where appropriate) for such agencies, and programs, including regulations that require that the facilities used by Head Start agencies (including Early Head Start agencies and any delegate agencies) for regularly scheduled center-based and combination program option classroom activities—

(i) shall meet or exceed State and local requirements concerning licensing for such facilities; and

(ii) shall be accessible by State and local authorities for purposes of monitoring and ensuring compliance, unless State or local laws prohibit such access; and

(E) such other standards as the Secretary finds to be appropriate.

(2) *Considerations regarding standards.* In developing any modifications to standards required under paragraph (1), the Secretary shall—

(A) consult with experts in the fields of child development, early childhood education, child health care, family services (including linguistically and culturally appropriate services to non-English speaking children and their families), administration, and financial management, and with persons with experience in the operation of Head

Start programs;

(B) take into consideration—

(i) past experience with use of the standards in effect under this subchapter on December 12, 2007;

(ii) changes over the period since October 27, 1998, in the circumstances and problems typically facing children and families served by Head Start agencies;

(iii) recommendations from the study on Developmental Outcomes and Assessments for Young Children by the National Academy of Sciences, consistent with section 9844(j) of this title;

(iv) developments concerning research-based practices with respect to early childhood education and development, children with disabilities, homeless children, children in foster care, and family services, and best practices with respect to program administration and financial management;

(v) projected needs of an expanding Head Start program;

(vi) guidelines and standards that promote child health services and physical development, including participation in outdoor activity that supports children's motor development and overall health and nutrition;

(vii) changes in the characteristics of the population of children who are eligible to participate in Head Start programs, including country of origin, language background, and family structure of such children, and changes in the population and number of such children who are in foster care or are homeless children;

(viii) mechanisms to ensure that children participating in Head Start programs make a successful transition to the schools that the children will be attending;

(ix) the need for Head Start agencies to maintain regular communications with parents, including conducting periodic meetings to discuss the progress of individual children in Head Start programs; and

(x) the unique challenges faced by individual programs, including those programs that are seasonal or short term and those programs that serve rural populations;

(C)

(i) review and revise as necessary the standards in effect under this subsection; and

(ii) ensure that any such revisions in the standards will not result in the elimination of or any reduction in quality, scope, or types of health, educational, parental involvement, nutritional, social, or other services required to be provided under such standards as in effect on December 12, 2007; and

(D) consult with Indian tribes, including Alaska Natives, experts in Indian, including Alaska Native, early childhood education and development, linguists, and the National Indian Head Start Directors Association on the review and promulgation of standards under paragraph (1) (including standards for language acquisition and school readiness).

(3) *Standards relating to obligations to delegate agencies.* In developing any modifications to standards under paragraph (1), the Secretary shall describe the obligations of a Head Start agency to a delegate agency to which the Head Start agency has delegated responsibility for providing services under this subchapter.

(b) *Measures.*

(1) *In general.* The Secretary, in consultation with representatives of Head Start agencies and with experts in the fields of early childhood education and development, family services, and program management, shall use the study on Developmental Outcomes and Assessments for Young Children by the National Academy of Sciences and other relevant research to inform, revise, and provide guidance to Head Start agencies for utilizing, scientifically based measures that support, as appropriate—

(A) classroom instructional practices;

(B) identification of children with special needs;

(C) program evaluation; and

(D) administrative and financial management practices.

(2) *Characteristics of measures.* The measures under this subsection shall—

(A) be developmentally, linguistically, and culturally appropriate for the population served;

(B) be reviewed periodically, based on advances in the science of early childhood development;

(C) be consistent with relevant, nationally recognized professional and technical standards related to the assessment of young children;

(D) be valid and reliable in the language in which they are administered;

(E) be administered by staff with appropriate training for such administration;

(F) provide for appropriate accommodations for children with disabilities and children who are limited English proficient;

(G) be high-quality research-based measures that have been demonstrated to assist with the purposes for which they were devised; and

(H) be adaptable, as appropriate, for use in the self-assessment of Head Start agencies, including in the evaluation of administrative and financial management practices.

(3) *Use of measures; limitations on use.*

(A) *Use.* The measures shall be designed, as appropriate, for the purpose of—

(i) helping to develop the skills, knowledge, abilities, and development described in subsection (a)(1)(B) of children participating in Head Start programs, with an emphasis on measuring skills that scientifically valid research has demonstrated are related to children's school readiness and later success in school;

(ii) improving classroom practices, including reviewing children's strengths and weaknesses and individualizing instruction to better meet the needs of the children involved;

(iii) identifying the special needs of children; and

(iv) improving overall program performance in order to help programs identify problem areas that may require additional training and technical assistance resources.

(B) *Limitations.* Such measures shall not be used to exclude children from Head Start programs.

(4) *Confidentiality.*

(A) *In general.* The Secretary, through regulation, shall ensure the confidentiality of any personally identifiable data, information, and records collected or maintained under this subchapter by the Secretary and any Head Start agency. Such regulations shall provide the policies, protections, and rights equivalent to those provided to a parent, student, or educational agency or institution under section 1232g of title 20.

(B) *Prohibition on nationwide database.* Nothing in this subsection shall be construed to authorize the development of a nationwide database of personally identifiable data, information, or records on children resulting from the use of measures under this subsection.

(5) *Special rule.*

(A) *Prohibition.* The use of assessment items and data on any assessment authorized under this subchapter by any agent of the Federal Government is prohibited for the purposes of—

(i) ranking, comparing, or otherwise evaluating individual children for purposes other than research, training, or technical assistance; and

(ii) providing rewards or sanctions for individual children or teachers.

(B) *Results.* The Secretary shall not use the results of a single assessment as the sole method for assessing program effectiveness or making agency funding determinations at the national, regional, or local level under this subchapter.

(c) *Monitoring of local agencies and programs.*

(1) *In general.* To determine whether Head Start agencies meet standards described in subsection (a)(1) established under this subchapter with respect to program, administrative, financial management, and other requirements, and in order to help the programs identify areas for improvement and areas of strength as part of their ongoing self-assessment process, the Secretary shall conduct the following reviews of Head Start agencies, including the Head Start programs operated by such agencies:

(A) A full review, including the use of a risk-based assessment approach, of each such agency at least once during each 3-year period.

(B) A review of each newly designated Head Start agency immediately after the completion of the first year such agency carries out a Head Start program.

(C) Followup reviews, including—

(i) return visits to Head Start agencies with 1 or more findings of deficiencies, not later than 6 months after the Secretary provides notification of such findings, or not later than 12 months after such notification if the Secretary determines that additional time is necessary for an agency to address such a deficiency prior to the review; and

(ii) a review of Head Start agencies with significant areas of noncompliance.

(D) Other reviews, including unannounced site inspections of Head Start centers, as appropriate.

(2) *Conduct of reviews.* The Secretary shall ensure that reviews described in subparagraphs (A) through (C) of paragraph (1)—

(A) are conducted by review teams that—

(i) include individuals who are knowledgeable about Head Start programs and, to the maximum extent practicable, individuals who are knowledgeable about—

(I) other early childhood education and development programs, personnel management, financial accountability, and systems development and monitoring; and

(II) the diverse (including linguistic and cultural) needs of eligible children (including children with disabilities, homeless children, children in foster care, and limited English proficient children) and their families;

(ii) include, to the maximum extent practicable, current or former employees of the Department of Health and Human Services who are knowledgeable about Head Start programs; and

(iii) shall receive periodic training to ensure quality and consistency across reviews;

(B) include as part of the reviews, a review and assessment of program strengths and areas in need of improvement;

(C) include as part of the reviews, a review and assessment of whether programs have adequately addressed population and community needs (including those of limited English proficient children and children of migrant or seasonal farmworker families);

(D) include as part of the reviews, an assessment of the extent to which the programs address the communitywide strategic planning and needs assessment described in section 9835(g)(1)(C) of this title;

(E) include information on the innovative and effective efforts of the Head Start agencies to collaborate with the entities providing early childhood and development services or programs in the community and any barriers to such collaboration that the agencies encounter;

(F) include as part of the reviews, a valid and reliable research-based observational instrument, implemented by qualified individuals with demonstrated reliability, that assesses classroom quality, including assessing multiple dimensions of teacher-child interactions that are linked to positive child development and later achievement;

(G) are conducted in a manner that evaluates program performance, quality, and overall operations with consistency and objectivity, are based on a transparent and reliable system of review, and are conducted in a manner that includes periodic interrater reliability checks, to ensure quality and consistency, across and within regions, of the reviews and of noncompliance and deficiency determinations;

(H) in the case of reviews of Early Head Start agencies and programs, are conducted by a review team that includes individuals who are knowledgeable about the development of infants and toddlers;

(I) include as part of the reviews a protocol for fiscal management that shall be used to assess compliance with program requirements for—

(i) using Federal funds appropriately;

(ii) using Federal funds specifically to purchase property (consistent with section 9839(f) of this title) and to compensate personnel;

(iii) securing and using qualified financial officer support; and

(iv) reporting financial information and implementing appropriate internal controls to safeguard Federal funds;

(J) include as part of the reviews of the programs, a review and assessment of whether the programs are in conformity with the eligibility requirements under section 9840(a)(1) of this title, including regulations promulgated under such section and whether the programs have met the requirements for the outreach and enrollment policies and procedures, and selection criteria, in such section, for the participation of children in programs assisted under this subchapter;

(K) include as part of the reviews, a review and assessment of whether agencies have adequately addressed the needs of children with disabilities, including whether the agencies involved have met the 10 percent minimum enrollment requirement specified in section 9835(d) of this title and whether the agencies have made sufficient efforts to collaborate with State and local agencies providing services under section 619 or part C of the Individuals with Disabilities Education Act (20 U.S.C. 1419, 1431 et seq.); and

(L) include as part of the reviews, a review and assessment of child outcomes and performance as they relate to agency-determined school readiness goals described in subsection (g)(2), consistent with subsection (b)(5).

(3) *Standards relating to obligations to delegate agencies.* In conducting a review described in paragraph (1)(A) of a Head Start agency, the Secretary shall determine whether the agency complies with the obligations described in subsection (a)(3). The Secretary shall consider such compliance in determining whether to renew financial assistance to the Head Start agency under this subchapter.

(4) *Use of review findings.* The findings of a review described in paragraph (1) of a Head Start agency shall, at a minimum—

(A) be presented to the agency in a timely, transparent, and uniform manner that conveys information of program strengths and weaknesses and assists with program improvement; and

(B) be used by the agency to inform the development and implementation of its plan for training and technical assistance.

(d) *Evaluations and corrective action for delegate agencies.*

(1) *Procedures.* Each Head Start agency shall establish, subject to paragraph (4), procedures relating to its delegate agencies, including—

(A) procedures for evaluating delegate agencies;

(B) procedures for defunding delegate agencies; and

(C) procedures for a delegate agency to appeal a defunding decision.

(2) *Evaluation.* Each Head Start agency—

(A) shall evaluate its delegate agencies using the procedures established under this subsection; and

(B) shall inform the delegate agencies of the deficiencies identified through the evaluation that are required to be corrected.

(3) *Remedies to ensure corrective actions.* In the event that the Head Start agency identifies a deficiency for a delegate

agency through the evaluation, the Head Start agency shall take action, which may include—

(A) initiating procedures to terminate the designation of the agency unless the agency corrects the deficiency;

(B) conducting monthly monitoring visits to such delegate agency until all deficiencies are corrected or the Head Start agency decides to defund such delegate agency; and

(C) releasing funds to such delegate agency—

(i) only as reimbursements except that, upon receiving a request from the delegate agency accompanied by assurances satisfactory to the Head Start agency that the funds will be appropriately safeguarded, the Head Start agency shall provide to the delegate agency a working capital advance in an amount sufficient to cover the estimated expenses involved during an agreed upon disbursing cycle; and

(ii) only if there is continuity of services.

(4) *Termination.* The Head Start agency may not terminate a delegate agency's contract or reduce a delegate agency's service area without showing cause or demonstrating the cost-effectiveness of such a decision.

(5) *Rule of construction.* Nothing in this subsection shall be construed to limit the powers, duties, or functions of the Secretary with respect to Head Start agencies or delegate agencies that receive financial assistance under this subchapter.

(e) *Corrective action for Head Start agencies.*

(1) *Determination.* If the Secretary determines, on the basis of a review pursuant to subsection (c), that a Head Start agency designated pursuant to this subchapter fails to meet the standards described in subsection (a)(1) or fails to address the communitywide strategic planning and needs assessment, the Secretary shall—

(A) inform the agency of the deficiencies that shall be corrected and identify the assistance to be provided consistent with paragraph (3);

(B) with respect to each identified deficiency, require the agency—

(i) to correct the deficiency immediately, if the Secretary finds that the deficiency threatens the health or safety of staff or program participants or poses a threat to the integrity of Federal funds;

(ii) to correct the deficiency not later than 90 days after the identification of the deficiency if the Secretary finds, in the discretion of the Secretary, that such a 90-day period is reasonable, in light of the nature and magnitude of the deficiency; or

(iii) in the discretion of the Secretary (taking into consideration the seriousness of the deficiency and the time reasonably required to correct the deficiency), to comply with the requirements of paragraph (2) concerning a quality improvement plan; and

(C) initiate proceedings to terminate the designation of the agency unless the agency corrects the deficiency.

(2) *Quality improvement plan.*

(A) *Agency and program responsibilities.* To retain a designation as a Head Start agency under this subchapter, or in the case of a Head Start program to continue to receive funds from such agency, a Head Start agency that is the subject of a determination described in paragraph (1), or a Head Start program that is determined to have a deficiency under subsection (d)(2) (excluding an agency required to correct a deficiency immediately or during a 90-day period under clause (i) or (ii) of paragraph (1)(B)) shall—

(i) develop in a timely manner, a quality improvement plan that shall be subject to the approval of the Secretary, or in the case of a program, the sponsoring agency, and that shall specify—

(I) the deficiencies to be corrected;

(II) the actions to be taken to correct such deficiencies; and

(III) the timetable for accomplishment of the corrective actions specified; and

(ii) correct each deficiency identified, not later than the date for correction of such deficiency specified in such plan (which shall not be later than 1 year after the date the agency or Head Start program that is determined to have a deficiency received notice of the determination and of the specific deficiency to be corrected).

(B) *Secretarial responsibility.* Not later than 30 days after receiving from a Head Start agency a proposed quality improvement plan pursuant to subparagraph (A), the Secretary shall either approve such proposed plan or specify the reasons why the proposed plan cannot be approved.

(C) *Agency responsibility.* Not later than 30 days after receiving from a Head Start program a proposed quality improvement plan pursuant to subparagraph (A), the Head Start agency involved shall either approve such proposed plan or specify the reasons why the proposed plan cannot be approved.

(3) *Training and technical assistance.* The Secretary shall provide training and technical assistance to Head Start agencies and programs with respect to the development or implementation of such quality improvement plans to the extent the Secretary finds such provision to be feasible and appropriate given available funding and other statutory responsibilities.

(f) *Summaries of monitoring outcomes.*

(1) *In general.* Not later than 120 days after the end of each fiscal year, the Secretary shall publish a summary report on the findings of reviews conducted under subsection (c) and on the outcomes of quality improvement plans implemented under subsection (e), during such fiscal year.

(2) *Report availability.* Such report shall be made widely available to—

(A) parents with children receiving assistance under this subchapter—

(i) in an understandable and uniform format; and

(ii) to the extent practicable, in a language that the parents understand; and

(B) the public through means such as—

(i) distribution through public agencies; and

(ii) posting such information on the Internet.

(3) *Report information.* Such report shall contain detailed data—

(A) on compliance with specific standards and measures; and

(B) sufficient to allow Head Start agencies to use such data to improve the quality of their programs.

(g) *Self-assessments.*

(1) *In general.* Not less frequently than once each program year, with the consultation and participation of policy councils and, as applicable, policy committees and, as appropriate, other community members, each Head Start agency, and each delegate agency, that receives financial assistance under this subchapter shall conduct a comprehensive self-assessment of its effectiveness and progress in meeting program goals and objectives and in implementing and complying with standards described in subsection (a)(1).

(2) *Goals, reports, and improvement plans.*

(A) *Goals.* An agency conducting a self-assessment shall establish agency-determined program goals for improving the school readiness of children participating in a program under this subchapter, including school readiness goals that are aligned with the Head Start Child Outcomes Framework, State early learning standards as appropriate, and requirements and expectations of the schools the children will be attending.

(B) *Improvement plan.* The agency shall develop, and submit to the Secretary a report containing, an improvement plan approved by the governing body of the agency to strengthen any areas identified in the self-assessment as weaknesses or in need of improvement.

(3) *Ongoing monitoring.* Each Head Start agency (including each Early Head Start agency) and each delegate agency shall establish and implement procedures for the ongoing monitoring of their respective programs, to ensure that the operations of the programs work toward meeting program goals and objectives and standards described in subsection (a)(1).

(h) *Reduction of grants and redistribution of funds in cases of underenrollment.*

(1) *Definitions.* In this subsection:

(A) *Actual enrollment.* The term "actual enrollment" means, with respect to the program of a Head Start agency, the actual number of children enrolled in such program and reported by the agency (as required in paragraph (2)) in a given month.

(B) *Base grant.* The term "base grant" has the meaning given the term in section 9835(a)(7) of this title.

(C) *Funded enrollment.* The term "funded enrollment" means, with respect to the program of a Head Start agency in a fiscal year, the number of children that the agency is funded to serve through a grant for the program during such fiscal year, as indicated in the grant agreement.

(2) *Enrollment reporting requirement.* Each entity carrying out a Head Start program shall report on a monthly basis to the Secretary and the relevant Head Start agency—

(A) the actual enrollment in such program; and

(B) if such actual enrollment is less than the funded enrollment, any apparent reason for such enrollment shortfall.

(3) *Secretarial review and plan.* The Secretary shall—

(A) on a semiannual basis, determine which Head Start agencies are operating with an actual enrollment that is less than the funded enrollment based on not less than 4 consecutive months of data;

(B) for each such Head Start agency operating a program with an actual enrollment that is less than its funded enrollment, as determined under subparagraph (A), develop, in collaboration with such agency, a plan and timetable for reducing or eliminating underenrollment taking into consideration—

(i) the quality and extent of the outreach, recruitment, and communitywide strategic planning and needs assessment conducted by such agency;

(ii) changing demographics, mobility of populations, and the identification of new underserved low-income populations;

(iii) facilities-related issues that may impact enrollment;

(iv) the ability to provide full-working-day programs, where needed, through funds made available under this

subchapter or through collaboration with entities carrying out other early childhood education and development programs, or programs with other funding sources (where available);

(v) the availability and use by families of other early childhood education and development options in the community served; and

(vi) agency management procedures that may impact enrollment; and

(C) provide timely and ongoing technical assistance to each agency described in subparagraph (B) for the purpose of assisting the Head Start agency to implement the plan described in such subparagraph.

(4) *Implementation.* Upon receipt of the technical assistance described in paragraph (3)(C), a Head Start agency shall immediately implement the plan described in paragraph (3)(B). The Secretary shall, where determined appropriate, continue to provide technical assistance to such agency.

(5) *Secretarial review and adjustment for chronic underenrollment.*

(A) *In general.* If, after receiving technical assistance and developing and implementing the plan as described in paragraphs (3) and (4) for 12 months, a Head Start agency is operating a program with an actual enrollment that is less than 97 percent of its funded enrollment, the Secretary may—

(i) designate such agency as chronically underenrolled; and

(ii) recapture, withhold, or reduce the base grant for the program by a percentage equal to the percentage difference between funded enrollment and actual enrollment for the program for the most recent year for which the agency is determined to be underenrolled under paragraph (3)(A).

(B) *Waiver or limitation of reductions.* The Secretary may, as appropriate, waive or reduce the percentage recapturing, withholding, or reduction otherwise required by subparagraph (A), if, after the implementation of the plan described in paragraph (3)(B), the Secretary finds that—

(i) the causes of the enrollment shortfall, or a portion of the shortfall, are related to the agency's serving significant numbers of highly mobile children, or are other significant causes as determined by the Secretary;

(ii) the shortfall can reasonably be expected to be temporary; or

(iii) the number of slots allotted to the agency is small enough that underenrollment does not create a significant shortfall.

(6) *Redistribution of funds.*

(A) *In general.* Funds held by the Secretary as a result of recapturing, withholding, or reducing a base grant in a fiscal year shall be redistributed by the end of the following fiscal year as follows:

(i) *Indian Head Start programs.* If such funds are derived from an Indian Head Start program, then such funds shall be redistributed to increase enrollment by the end of the following fiscal year in 1 or more Indian Head Start programs.

(ii) *Migrant and seasonal Head Start programs.* If such funds are derived from a migrant or seasonal Head Start program, then such funds shall be redistributed to increase enrollment by the end of the following fiscal year in 1 or more programs of the type from which such funds are derived.

(iii) *Early Head Start programs.* If such funds are derived from an Early Head Start program in a State, then such funds shall be redistributed to increase enrollment by the end of the following fiscal year in 1 or more Early Head Start programs in that State. If such funds are derived from an Indian Early Head Start program, then such funds shall be redistributed to increase enrollment by the end of the following fiscal year in 1 or more Indian Early Head Start programs.

(iv) *Other Head Start programs.* If such funds are derived from a Head Start program in a State (excluding programs described in clauses (i) through (iii)), then such funds shall be redistributed to increase enrollment by the end of the following fiscal year in 1 or more Head Start programs (excluding programs described in clauses (i) through (iii)) that are carried out in such State.

(B) *Adjustment to funded enrollment.* The Secretary shall adjust as necessary the requirements relating to funded enrollment indicated in the grant agreement of a Head Start agency receiving redistributed funds under this paragraph.

34 C.F.R. § 300.116

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 1 (1).

Placements. (eCFR, current as of Oct. 22, 2026)

In determining the educational placement of a child with a disability, including a preschool child with a disability, each public agency must ensure that—

(a) The placement decision—

(1) Is made by a group of persons, including the parents, and other persons knowledgeable about the child, the meaning of the evaluation data, and the placement options; and

(2) Is made in conformity with the LRE provisions of this subpart, including §§ 300.114 through 300.118;

(b) The child's placement—
(1) Is determined at least annually;
(2) Is based on the child's IEP; and
(3) Is as close as possible to the child's home;
(c) Unless the IEP of a child with a disability requires some other arrangement, the child is educated in the school that he or she would attend if nondisabled;
(d) In selecting the LRE, consideration is given to any potential harmful effect on the child or on the quality of services that he or she needs; and
(e) A child with a disability is not removed from education in age-appropriate regular classrooms solely because of needed modifications in the general education curriculum.

34 C.F.R. § 300.145

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Applicability of §§ 300.146 through 300.147. (eCFR, current as of Oct. 22, 2026)
Sections 300.146 through 300.147 apply only to children with disabilities who are or have been placed in or referred to a private school or facility by a public agency as a means of providing special education and related services.

34 C.F.R. § 300.324

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Development, review, and revision of IEP. (eCFR, current as of Oct. 22, 2026)
(a) *Development of IEP*—(1) *General.* In developing each child's IEP, the IEP Team must consider—
(i) The strengths of the child;
(ii) The concerns of the parents for enhancing the education of their child;
(iii) The results of the initial or most recent evaluation of the child; and
(iv) The academic, developmental, and functional needs of the child.
(2) *Consideration of special factors.* The IEP Team must—
(i) In the case of a child whose behavior impedes the child's learning or that of others, consider the use of positive behavioral interventions and supports, and other strategies, to address that behavior;
(ii) In the case of a child with limited English proficiency, consider the language needs of the child as those needs relate to the child's IEP;
(iii) In the case of a child who is blind or visually impaired, provide for instruction in Braille and the use of Braille unless the IEP Team determines, after an evaluation of the child's reading and writing skills, needs, and appropriate reading and writing media (including an evaluation of the child's future needs for instruction in Braille or the use of Braille), that instruction in Braille or the use of Braille is not appropriate for the child;
(iv) Consider the communication needs of the child, and in the case of a child who is deaf or hard of hearing, consider the child's language and communication needs, opportunities for direct communications with peers and professional personnel in the child's language and communication mode, academic level, and full range of needs, including opportunities for direct instruction in the child's language and communication mode; and
(v) Consider whether the child needs assistive technology devices and services.
(3) *Requirement with respect to regular education teacher.* A regular education teacher of a child with a disability, as a member of the IEP Team, must, to the extent appropriate, participate in the development of the IEP of the child, including the determination of—
(i) Appropriate positive behavioral interventions and supports and other strategies for the child; and
(ii) Supplementary aids and services, program modifications, and support for school personnel consistent with § 300.320(a)(4).
(4) *Agreement.* (i) In making changes to a child's IEP after the annual IEP Team meeting for a school year, the parent of a child with a disability and the public agency may agree not to convene an IEP Team meeting for the purposes of making those changes, and instead may develop a written document to amend or modify the child's current IEP.
(ii) If changes are made to the child's IEP in accordance with paragraph (a)(4)(i) of this section, the public agency must ensure that the child's IEP Team is informed of those changes.
(5) *Consolidation of IEP Team meetings.* To the extent possible, the public agency must encourage the consolidation of reevaluation meetings for the child and other IEP Team meetings for the child.
(6) *Amendments.* Changes to the IEP may be made either by the entire IEP Team at an IEP Team meeting, or as provided in paragraph (a)(4) of this section, by amending the IEP rather than by redrafting the entire IEP. Upon request, a parent must be provided with a revised copy of the IEP with the amendments incorporated.
(b) *Review and revision of IEPs*—(1) *General.* Each public agency must ensure that, subject to paragraphs (b)(2) and (b)(3) of this section, the IEP Team—

(i) Reviews the child's IEP periodically, but not less than annually, to determine whether the annual goals for the child are being achieved; and

(ii) Revises the IEP, as appropriate, to address—

(A) Any lack of expected progress toward the annual goals described in § 300.320(a)(2), and in the general education curriculum, if appropriate;

(B) The results of any reevaluation conducted under § 300.303;

(C) Information about the child provided to, or by, the parents, as described under § 300.305(a)(2);

(D) The child's anticipated needs; or

(E) Other matters.

(2) *Consideration of special factors.* In conducting a review of the child's IEP, the IEP Team must consider the special factors described in paragraph (a)(2) of this section.

(3) *Requirement with respect to regular education teacher.* A regular education teacher of the child, as a member of the IEP Team, must, consistent with paragraph (a)(3) of this section, participate in the review and revision of the IEP of the child.

(c) *Failure to meet transition objectives*—(1) *Participating agency failure.* If a participating agency, other than the public agency, fails to provide the transition services described in the IEP in accordance with § 300.320(b), the public agency must reconvene the IEP Team to identify alternative strategies to meet the transition objectives for the child set out in the IEP.

(2) *Construction.* Nothing in this part relieves any participating agency, including a State vocational rehabilitation agency, of the responsibility to provide or pay for any transition service that the agency would otherwise provide to children with disabilities who meet the eligibility criteria of that agency.

(d) *Children with disabilities in adult prisons*—(1) *Requirements that do not apply.* The following requirements do not apply to children with disabilities who are convicted as adults under State law and incarcerated in adult prisons:

(i) The requirements contained in section 612(a)(16) of the Act and § 300.320(a)(6) (relating to participation of children with disabilities in general assessments).

(ii) The requirements in § 300.320(b) (relating to transition planning and transition services) do not apply with respect to the children whose eligibility under Part B of the Act will end, because of their age, before they will be eligible to be released from prison based on consideration of their sentence and eligibility for early release.

(2) *Modifications of IEP or placement.* (i) Subject to paragraph (d)(2)(ii) of this section, the IEP Team of a child with a disability who is convicted as an adult under State law and incarcerated in an adult prison may modify the child's IEP or placement if the State has demonstrated a bona fide security or compelling penological interest that cannot otherwise be accommodated.

(ii) The requirements of §§ 300.320 (relating to IEPs), and 300.114 (relating to LRE), do not apply with respect to the modifications described in paragraph (d)(2)(i) of this section.

[71 FR 46753, Aug. 14, 2006, as amended at 82 FR 29761, June 30, 2017]

45 C.F.R. § 1302.12

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Determining, verifying, and documenting eligibility. (eCFR, current as of Oct. 22, 2026)

(a) *Process overview.* (1) Program staff must:

(i) Conduct an in-person interview with each family, unless paragraph (a)(2) of this section applies;

(ii) Verify information as required in paragraphs (h) and (i) of this section; and,

(iii) Create an eligibility determination record for enrolled participants according to paragraph (k) of this section.

(2) Program staff may interview the family over the telephone if an in-person interview is not possible or convenient for the family.

(3) If a program has an alternate method to reasonably determine eligibility based on its community assessment, geographic and administrative data, or from other reliable data sources, it may petition the responsible HHS official to waive requirements in paragraphs (a)(1)(i) and (ii) of this section.

(b) *Age requirements.* (1) For Early Head Start, except when the child is transitioning to Head Start Preschool, a child must be an infant or a toddler younger than three years old.

(2) For Head Start Preschool, a child must:

(i) Be at least three years old or, turn three years old by the date used to determine eligibility for public school in the community in which the Head Start Preschool program is located; and,

(ii) Be no older than the age required to attend school.

(3) For Migrant or Seasonal Head Start, a child must be younger than compulsory school age by the date used to determine public school eligibility for the community in which the program is located.

(c) *Eligibility requirements.* (1) A pregnant woman or a child is eligible if:

(i) The family's income is equal to or below the poverty line; or,

(ii) The family is eligible for or, in the absence of child care, would be potentially eligible for public assistance; including TANF child-only payments; or,

(iii) The child is homeless, as defined in part 1305; or,

(iv) The child is in foster care.

(2) If the family does not meet a criterion under paragraph (c)(1) of this section, a program may enroll a child who would benefit from services, provided that these participants only make up to 10 percent of a program's enrollment in accordance with paragraph (d) of this section.

(d) *Additional allowances for programs.* (1) A program may enroll an additional 35 percent of participants whose families do not meet a criterion described in paragraph (c) of this section and whose incomes are below 130 percent of the poverty line, if the program:

(i) Establishes and implements outreach, and enrollment policies and procedures to ensure it is meeting the needs of eligible pregnant women, children, and children with disabilities, before serving pregnant women or children who do not meet the criteria in paragraph (c) of this section; and,

(ii) Establishes criteria that ensure pregnant women and children eligible under the criteria listed in paragraph (c) of this section are served first.

(2) If a program chooses to enroll participants who do not meet a criterion in paragraph (c) of this section, and whose family incomes are between 100 and 130 percent of the poverty line, it must be able to report to the Head Start regional program office:

(i) How it is meeting the needs of low-income families or families potentially eligible for public assistance, homeless children, and children in foster care, and include local demographic data on these populations;

(ii) Outreach and enrollment policies and procedures that ensure it is meeting the needs of eligible children or pregnant women, before serving over-income children or pregnant women;

(iii) Efforts, including outreach, to be fully enrolled with eligible pregnant women or children;

(iv) Policies, procedures, and selection criteria it uses to serve eligible children;

(v) Its current enrollment and its enrollment for the previous year;

(vi) The number of pregnant women and children served, disaggregated by the eligibility criteria in paragraphs (c) and (d)(1) of this section; and,

(vii) The eligibility criteria category of each child on the program's waiting list.

(e) *Additional allowances for Indian tribes.* (1) Notwithstanding paragraph (c) of this section, a Tribal program may determine any pregnant women or children in the approved service area to be eligible for services regardless of income, if they meet the requirements of paragraph (b) of this section.

(2) An Indian Tribe or Tribes that operates both an Early Head Start program and a Head Start Preschool program may, at its discretion, at any time during the grant period involved, reallocate funds between the Early Head Start program and the Head Start Preschool program in order to address fluctuations in client populations, including pregnant women and children from birth to compulsory school age. The reallocation of such funds between programs by an Indian Tribe or Tribes during a year may not serve as a basis for any reduction of the base grant for either program in succeeding years.

(f) *Migrant or Seasonal eligibility requirements.* Notwithstanding paragraph (c) of this section, pregnant women and children are eligible for Migrant or Seasonal Head Start if they have at least one family member whose income comes primarily from agricultural employment as defined in section 3 of the Migrant and Seasonal Agricultural Worker Protection Act (29 U.S.C. 1802), and if they meet the requirements of paragraph (b) of this section.

(g) *Eligibility requirements for communities with 1,000 or fewer individuals.* (1) A program may establish its own criteria for eligibility provided that it meets the criteria outlined in section 645(a)(2) of the Act.

(2) No child residing in such community whose family is eligible under criteria described in paragraphs (c) through (f) of this section, may be denied an opportunity to participate in the program under the eligibility criteria established under this paragraph (g).

(h) *Verifying age.* Program staff must verify a child's age according to program policies and procedures. A program's policies and procedures cannot require families to provide documents that confirm a child's age, if doing so creates a barrier for the family to enroll the child.

(i) *Verifying eligibility.* (1) To verify eligibility based on income, program staff must use tax forms, pay stubs, or other proof of income to determine the family income for the relevant time period.

(i) The program must calculate total gross income using applicable sources of income.

(ii) A program may make an adjustment to a family's gross income calculation for the purposes of determining eligibility to account for excessive housing costs. A program may use available bills, bank statements, and other relevant documentation provided by the family to calculate total annual housing costs with appropriate multipliers to:

(A) Determine if a family spends more than 30 percent of their total gross income on housing costs, as defined in part 1305 of this chapter; and

(B) If applicable, reduce the total gross income by the amount spent on housing costs that exceed more than 30 percent.

(iii) If the family cannot provide tax forms, pay stubs, or other proof of income for the relevant time period, program staff may accept written statements from employers, including individuals who are self-employed, for the relevant time period and use information provided to calculate total annual income with appropriate multipliers.

(iv) If the family reports no income for the relevant time period, a program may accept the family's signed declaration to that effect, if program staff describes efforts made to verify the family's income, and explains how the family's total income was calculated or seeks information from third parties about the family's eligibility, if the family gives written consent. If a family gives consent to contact third parties, program staff must adhere to program safety and privacy policies and procedures and ensure the eligibility determination record adheres to paragraph (k)(2) of this section.

(v) If the family can demonstrate a significant change in income for the relevant time period, program staff may consider current income circumstances.

(2) To verify whether a family is eligible for, or in the absence of child care, would be potentially eligible for public assistance, the program must have documentation from either the state, local, or tribal public assistance agency that shows the family either receives public assistance or that shows the family is potentially eligible to receive public assistance.

(3) To verify whether a family is homeless, a program may accept a written statement from a homeless services provider, school personnel, or other service agency attesting that the child is homeless or any other documentation that indicates homelessness, including documentation from a public or private agency, a declaration, information gathered on enrollment or application forms, or notes from an interview with staff to establish the child is homeless; or any other document that establishes homelessness.

(i) If a family can provide one of the documents described in this paragraph (i)(3), program staff must describe efforts made to verify the accuracy of the information provided and state whether the family is eligible because they are homeless.

(ii) If a family cannot provide one of the documents described in this paragraph (i)(3) to prove the child is homeless, a program may accept the family's signed declaration to that effect, if, in a written statement, program staff describe the child's living situation that meets the definition of homeless in part 1305 of this chapter.

(iii) Program staff may seek information from third parties who have firsthand knowledge about a family's living situation, if the family gives written consent. If the family gives consent to contact third parties, program staff must adhere to program privacy policies and procedures and ensure the eligibility determination record adheres to paragraph (k) of this section.

(4) To verify whether a child is in foster care, program staff must accept either a court order or other legal or government-issued document, a written statement from a government child welfare official that demonstrates the child is in foster care, or proof of a foster care payment.

(j) *Eligibility duration.* (1) If a child is determined eligible under this section and is participating in a Head Start program, he or she will remain eligible through the end of the succeeding program year except that the Head Start program may choose not to enroll a child when there are compelling reasons for the child not to remain in Head Start, such as when there is a change in the child's family income and there is a child with a greater need for Head Start services.

(2) Children who are enrolled in a program receiving funds under the authority of section 645A of the Act remain eligible while they participate in the program.

(3) If a child moves from an Early Head Start program to a Head Start Preschool program, program staff must verify the family's eligibility again.

(4) If a program operates both an Early Head Start and a Head Start Preschool program, and the parents wish to enroll their child who has been enrolled in the program's Early Head Start, the program must ensure, whenever possible, the child receives Head Start Preschool services until enrolled in school, provided the child is eligible.

(5) If a program operates a Migrant and Seasonal Head Start program, children younger than age three participating in the program remain eligible until they turn three years old consistent with paragraph (j)(2) of this section.

(k) *Records.* (1) A program must keep eligibility determination records for each participant and ongoing records of the eligibility training for staff required by paragraph (m) of this section. A program may keep these records electronically.

(2) Each eligibility determination record must include:

(i) Copies of any documents or statements, including declarations, that are deemed necessary to verify eligibility under paragraphs (h) and (i) of this section;

(ii) A statement that program staff has made reasonable efforts to verify information by:

(A) Conducting either an in-person, or a telephone interview with the family as described under paragraph

(a)(1)(i) or (a)(2) of this section; and,

(B) Describing efforts made to verify eligibility, as required under paragraphs (h) through (i) of this section; and, collecting documents required for third party verification that includes the family's written consent to contact each third party, the third parties' names, titles, and affiliations, and information from third parties regarding the family's eligibility.

(iii) A statement that identifies whether:

(A) The family's income is below income guidelines for its size, and lists the family's size;

(B) The family is eligible for or, in the absence of child care, potentially eligible for public assistance;

(C) The child is a homeless child or the child is in foster care;

(D) The family was determined to be eligible under the criterion in paragraph (c)(2) of this section; or,

(E) The family was determined to be eligible under the criterion in paragraph (d)(1) of this section.

(3) A program must keep eligibility determination records for those currently enrolled, as long as they are enrolled, and, for one year after they have either stopped receiving services; or are no longer enrolled.

(l) *Program policies and procedures on violating eligibility determination regulations.* A program must establish written policies and procedures that describe all actions taken against staff who intentionally violate Federal and program eligibility determination regulations and who enroll pregnant women and children that are not eligible to receive Head Start services.

(m) *Training on eligibility.* (1) A program must train all governing body, policy council, management, and staff who determine eligibility on applicable federal regulations and program policies and procedures. Training must, at a minimum:

(i) Include methods on how to collect complete and accurate eligibility information from families and third party sources;

(ii) Incorporate strategies for treating families with dignity and respect and for dealing with possible issues of domestic violence, stigma, and privacy; and,

(iii) Explain program policies and procedures that describe actions taken against staff, families, or participants who attempt to provide or intentionally provide false information.

(2) A program must train management and staff members who make eligibility determinations within 90 days of hiring new staff.

(3) A program must train all governing body and policy council members within 180 days of the beginning of the term of a new governing body or policy council.

(4) A program must develop policies on how often training will be provided after the initial training.

[81 FR 61412, Sept. 6, 2016, as amended at 89 FR 67807, Aug. 21, 2024]

45 C.F.R. § 1302.40

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Purpose. (eCFR, current as of Oct. 22, 2026)

(a) A program must provide high-quality health, oral health, mental health, and nutrition services that are developmentally, culturally, and linguistically appropriate and that will support each child's growth and school readiness.

(b) A program must establish and maintain a Health and Mental Health Services Advisory Committee that includes Head Start parents, professionals, and other volunteers from the community.

[81 FR 61412, Sept. 6, 2016, as amended at 89 FR 67810, Aug. 21, 2024]

45 C.F.R. § 1303.4

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Federal financial assistance, non-federal match, and waiver requirements. (eCFR, current as of Oct. 22, 2026)

In accordance with section 640(b) of the Act, federal financial assistance to a grant recipient will not exceed 80 percent of the approved total program costs. A grant recipient must contribute 20 percent as non-federal match each budget period. The responsible HHS official may approve a waiver of all or a portion of the non-federal match requirement on the basis of the grant recipient's written application submitted for the budget period and any supporting evidence the responsible HHS official requires. In deciding whether to grant a waiver, the responsible HHS official will consider the circumstances specified at section 640(b) of the Act and whether the grant recipient has made a reasonable effort to comply with the non-federal match requirement.

Ala. Code § 16-1-24.1

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Safe School and Drug-Free School Policy; Violations; Discipline Policy; Liability Limited for Discipline Actions
(current text, retrieved 2026-10-29)

(a) The Legislature finds a compelling public interest in ensuring that schools are made safe and drug-free for all students and school employees. The Legislature finds the need for a comprehensive safe school and drug-free school policy to be adopted by the State Board of Education. This policy should establish minimum standards for classes of offenses and prescribe uniform minimum procedures and penalties for those who violate the policies. It is the intent of the Legislature that our schools remain safe and drug-free for all students and school employees. The State Board of Education shall adopt and all local boards of education shall uniformly enforce policies that protect all students and school employees. The State Board of Education shall require local school systems to modify their policies, practices, or procedures so as to ensure a safe school environment free of illegal drugs, alcohol, or weapons. Any rules adopted by the State Board of Education pursuant to this section shall be exempt from Section 41-22-3(3). These modifications shall include the formulation of a discipline plan setting forth policies, practices, and procedures dealing with students or other individuals who bring illegal drugs, alcohol, or weapons on a school campus. The discipline plan shall also include uniform drug-free school policies with uniform penalties.

(b) (1) The principal shall notify appropriate law enforcement officials when any student or school employee violates local board of education policies concerning drugs, alcohol, weapons, physical harm to an individual, or threatened physical harm to an individual.

(2) The principal shall notify appropriate law enforcement officials immediately upon notice of any individual making a terrorist threat pursuant to Section 13A-10-241 or Section 13A-10-242.

(3) If any criminal charge is warranted arising from the conduct described in subdivision (1) or (2), the principal may sign a warrant or complaint. If that accused individual is a student enrolled in any public school in this state, the local school system shall immediately suspend that student from attending regular classes and schedule a hearing at the earliest possible date, which shall not be later than 30 calendar days, or pursuant to the due process procedures provided in Section 16-1-14, whichever is earliest. The length of the suspension shall depend on the outcome of the disciplinary hearing before the local board of education. The initiation of criminal charges against a student shall include a review and consideration of the student's exceptional status, if applicable, under Chapter 39, or appropriate federal statutory or case law.

(4) Any disciplinary action mandated by this subsection shall be subject to the student's existing rights and procedural safeguards under the federal Individuals with Disabilities Education Act (IDEA) and Section 504 of the Rehabilitation Act of 1973, which shall take precedence in the event of a conflict.

(c) Except as otherwise provided in subsection (e), if a student or school employee is found to have violated a local board of education policy concerning drugs, alcohol, weapons, physical harm to an individual, or threatened physical harm to an individual, the student or school employee may not be readmitted to the public schools of this state until: (i) all criminal charges or offenses arising from the conduct, if any, have been disposed of by appropriate authorities; and (ii) the student or school employee has satisfied all other requirements imposed by the local board of education as a condition for readmission.

(d) Except as otherwise provided in subsection (e), any student or school employee adjudicated delinquent or a youthful offender, or convicted of a criminal offense involving drugs, alcohol, weapons, physical harm to an individual, or threatened physical harm to an individual, may not be readmitted to the public schools of this state until the student or school employee has satisfied the conditions prescribed by the local board of education for preservation of the safety or security of students and employees of the local board of education, which may include, but are not limited to, psychiatric or psychological evaluation and counseling.

(e) (1) Any disciplinary action mandated by this subsection shall be subject to the student's existing rights and procedural safeguards under the federal Individuals with Disabilities Education Act (IDEA) and Section 504 of the Rehabilitation Act of 1973, which shall take precedence in the event of a conflict.

(2) If a student is charged with making a terrorist threat in the first or second degree, the school system shall immediately suspend that student from attending regular classes and schedule a hearing at the earliest possible date, which shall not be later than 30 calendar days after the suspension, or pursuant to the due process procedures provided in Section 16-1-14, whichever is earliest. This suspension shall not prevent a student from attending any hearing or official proceeding when summoned by the school administration or board of education. The student may not be readmitted to the public schools of this state until: (i) all criminal charges or offenses arising from the conduct have been disposed of by appropriate authorities; (ii) the student has completed a psychiatric or psychological evaluation and has begun counseling if prescribed by the court; and (iii) the student has satisfied all other requirements imposed by the local board of education as a condition for readmission.

(3) In addition to the recovery of damages and court costs provided in subdivision (f)(3), upon a student being

adjudicated or convicted of the crime of making a terrorist threat in the first or second degree, the student shall be expelled from school, and the court may order the student and the parent or guardian of the student to pay restitution to law enforcement, emergency medical service providers, and the local board of education for any costs incurred relating to the crime.

(f) (1) A copy of the school system's discipline plan shall be distributed to all students enrolled in the system, and their parents or guardians shall read the plan and sign a statement verifying that they have been given notice of the discipline policies of their respective school system. The local board of education shall have its official discipline plan reviewed on an annual basis to ensure that its policies and procedures are currently in compliance with applicable statutes, case law, and state and federal constitutional provisions.

(2) The discipline plan of a school system shall include, but not be limited to, all of the following:

a. A parent or guardian, excluding a foster parent, responsible for the care or control of a student enrolled in a public school system shall be responsible financially for the destructive acts of the student against school property or another individual.

b. A parent or guardian, excluding a foster parent, responsible for the care or control of a student enrolled in a public school system may be requested to appear at the school by an appropriate school official for a conference regarding the acts of the student specified in paragraph a.

c. A parent or guardian, excluding a foster parent, responsible for the care or control of a student enrolled in a public school system who has been summoned by proper notification by an appropriate school official shall attend the discipline conference specified in paragraph b.

(3) Any public school system may recover actual damages, plus necessary court costs, from the parent or guardian, or both, of any student who maliciously and willfully damages or destroys property belonging to the school system. This subdivision shall not apply to any parent whose parental control of a student has been removed by court order or decree or to any parent of an exceptional child with specific mental and physical impairments if the damage is determined to result from the impairments. The action authorized in this subdivision shall be in addition to all other actions that the school system may maintain and nothing in this subdivision shall preclude recovery in a greater amount from the student or from an individual, including the parents or guardian, or both, for damages to which the student would otherwise be liable.

(g) The local board of education shall adopt and make available to all teachers, school personnel, students, and parents or guardians, at the beginning of each school year, a code of student conduct developed in consultation with teachers, school personnel, students, and parents or guardians. The code shall be based on the rules governing student conduct and discipline adopted by the local board of education and may be made available at the school level in the student handbook or similar publication. The code shall include, but not be limited to, all of the following:

(1) Specific grounds for disciplinary action.

(2) Procedures to be followed for acts requiring discipline.

(3) An explanation of the responsibilities and rights of students with regard to attendance, respect for individuals, entities, and property, knowledge and observation of rules of conduct, and the right to learn, free speech and student publications, assembly, privacy, and participation in school programs and activities.

(h) Except in the case of excessive force or cruel and unusual punishment, no certified or noncertified employee of the State Board of Education or any local board of education shall be civilly liable for any action carried out in conformity with state law and system or school rules regarding the control, discipline, suspension, and expulsion of students.

(i) Nothing in this section shall be construed to prevent a local board of education from adopting more stringent rules than those adopted on the state level in order to foster and maintain a safe and drug-free environment in the public schools.

(Acts 1991, No. 91-323, p. 602, §22; Acts 1994, 1st Ex. Sess., No. 94-784, p. 72, §1; Act 2026-367, §1.)

Colo. Rev. Stat. § 2-4-201

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 2 (2) and its amici 0 (0).

Intentions in the enactment of statutes (current text, 2026 edition; retrieved 2026-10-29)

(1) In enacting a statute, it is presumed that:

(a) Compliance with the constitutions of the state of Colorado and the United States is intended;

(b) The entire statute is intended to be effective;

(c) A just and reasonable result is intended;

(d) A result feasible of execution is intended;

(e) Public interest is favored over any private interest.

Source: L. 73: R&RE, p. 1423, § 1. C.R.S. 1963: § 135-1-201.

Colo. Rev. Stat. § 22-20-103

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 3 (2) and its amici 0 (0).

Definitions (current text, 2026 edition; retrieved 2026-10-29)

As used in this part 1, unless the context otherwise requires:

(1) "Administrative unit" means a school district, a board of cooperative services, a multi-district administrative unit, a charter school network, a charter school collaborative, or the state charter school institute, that is providing educational services to exceptional children and that is responsible for the local administration of this article 20.

(2) (Deleted by amendment, L. 2011, (HB 11-1077), ch. 30, p. 75, § 3, effective August 10, 2011.)

(2.5) "Applicable revenues" means those revenues, as defined by rules promulgated by the state board pursuant to this article, that support special education expenditures.

(2.7) "Approved facility school" means an educational program that is operated by a facility to provide educational services to students placed in the facility and that, pursuant to section 22-2-407, has been placed on the list of facility schools that are approved to receive reimbursement for providing those educational services to students placed in the facility. An educational program provided by an administrative unit at a facility is not an approved facility school but is an educational program of the administrative unit that does not require approval by the department.

(3) "Board of cooperative services" means a regional educational services unit created pursuant to article 5 of this title and designed to provide supporting, instructional, administrative, facility, community, or any other services contracted by participating members.

(3.4) "Charter school collaborative" means a charter school collaborative formed pursuant to section 22-30.5-603.

(3.5) "Charter school network" means a charter school network formed pursuant to section 22-30.5-104.7.

(4) "Child find" means the program component of the IDEA that requires states to find, identify, locate, evaluate, and serve all children with disabilities, from birth to twenty-one years of age. Child find includes:

(a) Part C child find, administered by the department of human services, is the program component of IDEA that requires states to find, identify, locate, evaluate, and serve children with disabilities from birth through two years of age; and

(b) Part B child find, administered by the department, is the program component of IDEA that requires states to find, identify, locate, evaluate, and serve children with disabilities from three to twenty-one years of age.

(5) (a) "Children with disabilities" means:

(I) Those persons from three to twenty-one years of age who, by reason of one or more of the following conditions, are unable to receive reasonable benefit from general education:

(A) Autism spectrum disorders;

(B) A hearing impairment, including deafness;

(C) A serious emotional disability;

(D) An intellectual disability;

(E) Multiple disabilities;

(F) An orthopedic impairment;

(G) Other health impairment;

(H) A specific learning disability;

(I) A speech or language impairment;

(J) Traumatic brain injury;

(K) A visual impairment, including blindness; and

(L) Deaf-blindness.

(M) Repealed.

(II) Those persons from birth through two years of age who have been determined to be an infant or a toddler with a disability;

(III) Those persons from three through eight years of age who have been determined pursuant to 34 CFR 300.8 (b) to be children experiencing developmental delays.

(b) Notwithstanding the provisions of paragraph (a) or (b) of this subsection (5), for purposes of child find activities, "children with disabilities" means persons from birth to twenty-one years of age.

(6) "Communication mode or language" means one or more of the following systems or methods of communication applicable to children who are deaf or hard of hearing:

(a) American sign language;

(b) English-based manual or sign systems; or

(c) Oral, aural, or speech-based training.

(7) "Department" means the department of education created and existing pursuant to section 24-1-115, C.R.S.

(8) "District charter school" means a charter school authorized by a school district pursuant to part 1 of article 30.5 of this title.

(8.3) "Early intervening services" means programs and activities for students in kindergarten through grade twelve, with an emphasis on students in kindergarten through grade three, who at the time they receive early intervening services are not identified as children with disabilities, but who need additional academic and behavioral supports in order to succeed in a general education environment.

(8.5) Repealed.

(8.7) "Educational placement" means the provision of special education services, including but not limited to those points along the continuum of alternative placements. "Educational placement" does not mean a specific place, such as a specific classroom or school.

(9) (Deleted by amendment, L. 2011, (HB 11-1277), ch. 306, p. 1478, § 11, effective August 10, 2011.)

(9.5) "Emergency public placement" means a public placement made necessary because of an imminent danger to a child or others.

(10) "Equipment" means that equipment used especially for the instruction or assessment of children with disabilities.

(11) "Evaluation" means, for the purposes of part B child find, procedures used under IDEA for children with disabilities to determine whether a child has a disability and the nature and extent of special education and related services that the child will need.

(12) "Exceptional child" means:

(a) A child defined in subsection (5) of this section as a child with a disability. An administrative unit shall serve every child with a disability from three to twenty-one years of age.

(b) A child defined in section 22-20-202 (11) as a gifted child. Pursuant to section 22-20-204 (1), an administrative unit shall adopt and submit to the department a program plan to identify and serve gifted children who are at least five years of age.

(12.3) "Facility" means a day treatment center, residential child care facility, or other facility licensed by the department of human services pursuant to section 26-6-905 or a hospital licensed by the department of public health and environment pursuant to section 25-1.5-103.

(12.7) "Foster home" has the same meaning as a "foster care home" as defined in section 26-6-903 and must be licensed by the state department of human services or certified by a county department of human or social services or certified by a child placement agency as defined in section 26-6-903.

(13) (Deleted by amendment, L. 2011, (HB 11-1077), ch. 30, p. 75, § 3, effective August 10, 2011.)

(13.3) "Group home" means a congregate care facility licensed by the department of human services pursuant to section 26-6-905.

(13.5) (Deleted by amendment, L. 2011, (HB 11-1077), ch. 30, p. 75, § 3, effective August 10, 2011.)

(14) "IDEA" means the federal "Individuals with Disabilities Education Act", 20 U.S.C. sec. 1400 et seq., as amended, and its implementing regulations, 34 CFR part 300 and also 34 CFR part 303 as it pertains to child find.

(15) "Individualized education program" or "IEP" means a written statement for a child with a disability that is developed, reviewed, and revised in accordance with this part 1 and the rules promulgated by the state board.

(16) "Individualized family service plan" or "IFSP" means a written statement developed by an entity representing the department of human services for a child from birth through two years of age with a disability, which statement is developed, reviewed, and revised in accordance with part C child find of IDEA and with rules promulgated by the department of human services.

(17) "Institute charter school" means a charter school authorized by the state charter school institute pursuant to part 5 of article 30.5 of this title.

(18) "Least restrictive environment" means that:

(a) To the maximum extent appropriate, children with disabilities, including children in public or private institutions or other care facilities, are educated with children who do not have disabilities; and

(b) Special classes, separate schooling, or other removal of children with disabilities from the general educational environment occurs only if the nature and severity of the disability is such that education in general classes with the use of supplementary aids and services cannot be satisfactorily achieved.

(19) "Literacy mode" means one of the following four systems or methods of achieving literacy applicable to blind children:

(a) "Auditory mode" means any method or system of achieving literacy that depends upon the auditory senses, including the use of readers, taped materials, electronic speech, speech synthesis, or any combination of the above.

(b) "Braille" means the system of reading and writing by means of raised points, commonly known as standard English braille.

(c) "Print enlargement" means any method or system of achieving literacy that includes optical aids to enhance apprehension of printed material, electronic enlargement of printed material, books and textual materials printed in large print, and any combination of the above.

(d) "Regular print mode" means any method or system of achieving literacy that depends upon the apprehension of

regular-sized printed material.

(19.3) "Multi-district administrative unit" means a group of two or more school districts that did not form a board of cooperative services but were parties to an agreement existing on January 1, 2011, to provide educational services to exceptional children and to be responsible for the local administration of this article, which group of school districts the department recognized as of January 1, 2011, as an administrative unit.

(19.7) (a) "Parent" means:

(I) A biological or adoptive parent of a child;

(II) A foster parent;

(III) A guardian generally authorized to act as a child's parent, or authorized to make educational decisions for the child, but not the state if the child is a ward of the state;

(IV) An individual acting in the place of a biological or adoptive parent, including but not limited to a grandparent, stepparent, or other relative, and with whom the child lives, or an individual who is legally responsible for the child's welfare; or

(V) An educational surrogate parent assigned by the responsible administrative unit consistent with rules promulgated by the state board in accordance with this article.

(b) (I) Except as provided in subparagraph (II) of this paragraph (b), the biological or adoptive parent, when attempting to act as a parent pursuant to this article, and when more than one party is qualified pursuant to paragraph (a) of this subsection (19.7) to act as a parent, shall be presumed to be the parent for purposes of this subsection (19.7) unless the biological or adoptive parent does not have legal authority to make educational decisions for the child.

(II) If a judicial decree or order identifies a specific person or persons listed in subparagraphs (I) to (IV) of paragraph (a) of this subsection (19.7) to act as the parent of a child or to make educational decisions on behalf of a child, then the person or persons shall be determined to be the parent for purposes of this article.

(20) "Public agency" means a public agency that:

(a) Is not an administrative unit; and

(b) Is legally authorized to place a child in a facility or another out-of-home placement, including but not limited to a group home or a foster home.

(21) "Public placement" means the placement of a child with a disability in a facility or another out-of-home placement, including but not limited to a group home or foster home, by a court or public agency.

(22) "School district" means a school district organized and existing pursuant to law, but shall not include a local college district.

(22.7) "Special education expenditures" means those expenditures that are incurred by an administrative unit, state-operated program, or approved facility school for professional services associated with special education referrals and evaluations of children who may have a disability and the provision of special education services as identified on an individual student's individualized education program. Special education expenditures do not include the costs of the general education program. Special education expenditures shall be supplemental to the general education program and shall be above what is provided by the administrative unit, state-operated program, or approved facility school for general education students and staff and may include:

(a) Special education teachers;

(b) Home-hospital teachers for students with disabilities;

(c) Speech-language pathologists and speech-language pathology assistants;

(d) Specialty teachers;

(e) Special education instructional paraprofessionals;

(f) Educational interpreters;

(g) School nurses;

(h) Occupational therapists and occupational therapy assistants;

(i) Physical therapists and physical therapy assistants;

(j) School psychologists;

(k) School social workers;

(l) Audiologists;

(m) Orientation and mobility specialists;

(n) Other special education professionals;

(o) Special education administrators and office support;

(p) Other noncertified or nonlicensed support;

(q) Employee benefits for special education staff;

(r) Supplies, materials, and equipment used for individual students' special education programs and services;

(s) Purchased service contracts for personal services;

(t) Tuition to other administrative units and approved tuition rates to approved facility schools for special education;

(u) Staff travel related to special education;

(v) Professional development for special education staff, or all staff, if the content of the professional development is specific to services for children with disabilities;

(w) Other purchased services related to special education;

(x) Dues, fees, and other expenditures specific to the special education program; and

(y) Parent counseling and training, as defined by the IDEA and its implementing regulations.

(23) "Special education services" or "special education programs" means the services or programs provided to a child with a disability in conformity with the child's IEP.

(24) (Deleted by amendment, L. 2011, (HB 11-1077), ch. 30, p. 75, § 3, effective August 10, 2011.)

(25) "Specific learning disability" means a disorder in one or more of the basic psychological processes involved in understanding or in using language, spoken or written. The disorder may manifest itself in the imperfect ability to listen, think, speak, read, write, spell, or do mathematical calculations, and includes such conditions as perceptual disabilities, brain injury, minimal brain dysfunction, dyslexia, and developmental aphasia. "Specific learning disability" does not include a learning problem that is primarily the result of visual, hearing, or motor disabilities; an intellectual and developmental disability; an emotional disturbance; or an environmental, cultural, or economic disadvantage.

(26) "State board" means the state board of education created and existing pursuant to section 1 of article IX of the state constitution.

(27) "State charter school institute" means the state charter school institute created pursuant to part 5 of article 30.5 of this title.

(28) "State-operated program" means an approved school program supervised by the department and operated by:

(a) The Colorado school for the deaf and the blind;

(b) The department of corrections; or

(c) The department of human services, including but not limited to the division of youth services and the mental health institutes.

Source: L. 73: R&RE, p. 1258, § 1. C.R.S. 1963: § 123-22-3. L. 77: (5.5) added, p. 1067, § 11, effective July 1. L. 79: (1), (3), (4), and (5) amended and (3.4) and (3.7) added, p. 775, § 3, effective July 1. L. 81: (5.5) amended, p. 1055, § 2, effective June 1. L. 88: (3) amended and (5) repealed, pp. 762, 763, §§ 1, 4, effective May 31. L. 90: (4) amended, p. 1088, § 57, effective May 31; (3.4) and (4) amended, p. 1044, § 1, effective July 1. L. 93: (1.5) added and (3), (3.4), (4), and (5.5) amended, p. 1640, § 30, effective July 1. L. 94: (5.7) added, p. 914, § 1, effective July 1. L. 96: (1.7) added, p. 40, § 2, effective March 18. L. 97: (5.5) amended, p. 422, § 1, effective July 1. L. 2004: (1) and (5.5) amended and (2.5) and (11) added, p. 1624, § 22, effective July 1. L. 2006: Entire section amended, p. 317, § 2, effective August 7. L. 2007: Entire section amended, p. 1552, § 2, effective May 31; (12) amended, p. 1763, § 2, effective July 1. L. 2008: (12)(b) and (13) amended and (13.5) added, p. 774, § 1, effective May 14; (9) amended, p. 1386, § 14, effective May 27; (8.3) and (8.5) added, p. 624, § 3, effective July 1. L. 2011: IP, (2), (12), (13), (13.5), (15), and (24) amended, (HB 11-1077), ch. 30, p. 75, § 3, effective August 10; (4), (5), (9), (10), IP(12), (12)(a), (14), (18), (20)(b), (21), and (28) amended and (2.5), (2.7), (8.7), (9.5), (12.3), (12.7), (13.3), (19.7), and (22.7) added, (HB 11-1277), ch. 306, p. 1478, § 11, effective August 10. L. 2012: (5)(a)(I)(K) and (5)(a)(I)(L) amended, (5)(a)(III) added, and (5)(a)(I)(M) repealed, (HB 12-1345), ch. 188, p. 719, § 6, effective May 19. L. 2014: (1) amended and (19.3) added, (HB 14-1208), ch. 71, p. 300, § 1, effective March 27; (12)(b) amended, (HB 14-1102), ch. 330, p. 1472, § 11, effective August 6. L. 2016: (12.7) amended, (SB 16-189), ch. 210, p. 762, § 36, effective June 6. L. 2017: (28)(c) amended, (HB 17-1329), ch. 381, p. 1979, § 47, effective June 6. L. 2018: (12.7) amended, (SB 18-092), ch. 38 , p. 438, § 89 , effective August 8; (25) amended, (SB 18-096), ch. 44, p. 472, § 9, effective August 8. L. 2021: (4), (11), (12)(a), (16), and (23) amended, (SB 21-275), ch. 393, p. 2609, § 1, effective July 1, 2022; (8.5)(b) added by revision, (SB 21-275), ch. 393, pp. 2609, 2618, §§ 1, 15. L. 2022: (12.3), (12.7), and (13.3) amended, (HB 22-1295), ch. 123, p. 840, § 53, effective July 1; (1) amended and (3.4) and (3.5) added, (HB 22-1294), ch. 242, p. 1788, § 3, effective August 10.

Colo. Rev. Stat. § 22-36-101

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Choice of programs and schools within school districts (current text, 2026 edition; retrieved 2026-10-29)

(1) Except as otherwise provided in subsection (3) of this section, every school district, as defined in section 22-30-103 (13), shall allow:

(a) Its resident pupils who apply pursuant to the procedures established pursuant to subsection (2) of this section to enroll in particular programs or schools within such school district; and

(b) Commencing with the 1994-95 school year and thereafter, nonresident pupils from other school districts within the state who apply pursuant to the procedures established pursuant to subsection (2) of this section to enroll in particular programs or schools within such school district without requiring the nonresident pupils to pay tuition.

(2) (a) Every school district shall adopt such policies and procedures as are reasonable and necessary to implement the provisions of subsection (1) of this section, including, but not limited to, timelines for application to and acceptance in

any program or school that may provide for enrollment of the student on or before the pupil enrollment count day, and, while adopting policies and procedures, the school district shall consider adopting a policy establishing that an applicant with a proficiency rating of unsatisfactory in one or more academic areas who attends a public school that is required to implement a turnaround plan pursuant to section 22-11-406 or that is subject to restructuring pursuant to section 22-11-210 shall have priority over any other applicant for enrollment purposes. If a school district permits a student whose parent or guardian is a resident of the state but not a resident of the district to attend school in the district, the school district shall not require the parent, guardian, or student to pay tuition to attend school in the district, regardless of when during the school year, or under what circumstances, the student enrolls in or attends school in the district.

(b) In implementing the provisions of subsection (1) of this section, no school district shall be required to:

(I) Make alterations in the structure of a requested school or to make alterations to the arrangement or function of rooms within a requested school;

(II) Establish and offer any particular program in a school if such program is not currently offered in such school;

(III) Alter or waive any established eligibility criteria for participation in a particular program, including age requirements, course prerequisites, and required levels of performance; or

(IV) Enroll any student pursuant to this section in any program or school after the pupil enrollment count day.

(c) As used in this subsection (2), unless the context otherwise requires, "pupil enrollment count day" has the same meaning as set forth in section 22-54-103 (10.5).

(3) Any school district may deny any of its resident pupils or any nonresident pupils from other school districts within the state permission to enroll in particular programs or schools within such school district only for any of the following reasons:

(a) There is a lack of space or teaching staff within a particular program or school requested, in which case, priority shall be given to resident students applying for admission to such program or school.

(b) The school requested does not offer appropriate programs or is not structured or equipped with the necessary facilities to meet special needs of the pupil or does not offer a particular program requested.

(c) The pupil does not meet the established eligibility criteria for participation in a particular program, including age requirements, course prerequisites, and required levels of performance.

(d) A desegregation plan is in effect for the school district, and such denial is necessary in order to enable compliance with such desegregation plan.

(e) The student has been expelled, or is in the process of being expelled, for the reasons specified in section 22-33-106 (1)(c.5) or (1)(d) or the student may be denied permission to enroll pursuant to section 22-33-106 (3)(a), (3)(b), (3)(c), (3)(e), or (3)(f).

(4) Repealed.

(5) (a) Except as otherwise provided in paragraph (b) of this subsection (5), any pupil who enrolls in a school district other than the pupil's school district of residence pursuant to this article may remain enrolled in that school district's school or program through the end of the school year.

(b) This subsection (5) shall not apply if:

(I) The nonresident pupil is expelled pursuant to statute from the school or program described in paragraph (a) of this subsection (5);

(II) The nonresident pupil's attendance or participation in the school or program described in paragraph (a) of this subsection (5) requires the school district to perform any of the functions described in subparagraphs (I) to (III) of paragraph (b) of subsection (2) of this section; or

(III) The nonresident pupil is excluded from the school or program described in paragraph (a) of this subsection (5) for any of the reasons described in paragraphs (a) to (d) of subsection (3) of this section.

Source: L. 90: Entire article added, p. 1089, § 59, effective May 31. L. 91: (4) repealed, p. 467, § 1, effective June 7; (2) and (3) amended, p. 544, § 2, effective June 8. L. 92: (1) amended, p. 515, § 4, effective June 1. L. 94: (1), (2)(a), (2)(b)(II), (2)(b)(III), IP(3), and (3)(a) amended and (2)(b)(IV) and (3)(e) added, pp. 557, 558, §§ 1, 2, effective April 6. L. 2002: (5) added, p. 1794, § 60, effective June 7. L. 2003: Entire section amended, p. 857, § 1, effective July 1. L. 2009: (2)(a) amended, (SB 09-163), ch. 293, p. 1544, § 48, effective May 21. L. 2012: (2)(a) and (2)(b)(IV) amended and (2)(c) added, (HB 12-1090), ch. 44, p. 153, § 15, effective March 22. L. 2022: (2)(a) amended, (HB 22-1390), ch. 237, p. 1747, § 9, effective May 26.

Colo. Rev. Stat. § 24-4-103

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 2 (2) and its amici 0 (0).

Rule-making - procedure - definitions - statutory citation correction (current text, 2026 edition; retrieved 2026-10-29)

(1) When any agency is required or permitted by law to make rules, in order to establish procedures and to accord interested persons an opportunity to participate therein, the provisions of this section shall be applicable. Except when notice or hearing is otherwise required by law, this section does not apply to interpretative rules or general statements of policy, which are not meant to be binding as rules, or rules of agency organization.

(1.5) If an agency reinterprets an existing rule in a manner that is substantially different than previous agency interpretations of the rule or if there has been a change in a statute that affects the interpretation or the legality of a rule, the office of legislative legal services shall review the rule in the same manner as rules that have been newly adopted or amended under paragraph (d) of subsection (8) of this section upon receiving a request for such a review of the rule by any member of the general assembly.

(2) When rule-making is contemplated, public announcement thereof may be made at such time and in such manner as the agency determines. The agency shall establish a representative group of participants with an interest in the subject of the rule-making to submit views or otherwise participate informally in conferences on the proposals under consideration or to participate in the public rule-making proceedings on the proposed rules. In establishing the representative group, the agency shall make diligent attempts to solicit input from representatives of each of the various stakeholder interests that may be affected positively or negatively by the proposed rules. If the agency convenes a representative group prior to issuing a notice of proposed rule-making as provided in paragraph (a) of subsection (3) of this section, the agency shall add those persons who participated in the representative group to the list of persons who receive notification of proposed rule-making as provided in paragraph (b) of subsection (3) of this section.

(2.5) (a) At the time of filing a notice of proposed rule-making with the secretary of state as the secretary may require, an agency shall submit a draft of the proposed rule or the proposed amendment to an existing rule and a statement, in plain language, concerning the subject matter or purpose of the proposed rule or amendment to the office of the executive director in the department of regulatory agencies. The executive director, or his or her designee, shall distribute the proposed rule or amendment, the agency's statement concerning the subject matter or purpose of the proposed rule or amendment, and any cost-benefit analysis prepared pursuant to this section to all persons who have submitted a request to receive notices from the department of regulatory agencies about proposed rule-making. Any person may, within five days after publication of the notice of proposed rule-making in the Colorado register, request that the department of regulatory agencies require the agency submitting the proposed rule or amendment to prepare a cost-benefit analysis. The executive director, or his or her designee, shall determine, after consultation with the agency proposing the rule or amendment, whether to require the agency to prepare a cost-benefit analysis. If the executive director, or his or her designee, determines that a cost-benefit analysis is required, the agency shall complete a cost-benefit analysis at least ten days before the hearing on the rule or amendment, shall make the analysis available to the public by posting the analysis on the agency's official website, and shall submit a copy to the executive director or his or her designee. The executive director, or his or her designee, shall post the analysis on the department of regulatory agencies' official website. By filing an additional notice published in the Colorado register, the agency may postpone the hearing on the rule or amendment to comply with the requirement to complete the cost-benefit analysis at least ten days before the hearing. Failure to complete a requested cost-benefit analysis pursuant to this subsection (2.5) shall preclude the adoption of such rule or amendment. Such cost-benefit analysis shall include the following:

(I) The reason for the rule or amendment;

(II) The anticipated economic benefits of the rule or amendment, which shall include economic growth, the creation of new jobs, and increased economic competitiveness;

(III) The anticipated costs of the rule or amendment, which shall include the direct costs to the government to administer the rule or amendment and the direct and indirect costs to business and other entities required to comply with the rule or amendment;

(IV) Any adverse effects on the economy, consumers, private markets, small businesses, job creation, and economic competitiveness; and

(V) At least two alternatives to the proposed rule or amendment that can be identified by the submitting agency or a member of the public, including the costs and benefits of pursuing each of the alternatives identified.

(b) The executive director, or his or her designee, shall study the cost-benefit analysis and may urge the agency to revise the rule or amendment to eliminate or reduce the negative economic impact. The executive director, or his or her designee, may inform the public about the negative impact of the proposed rule or the proposed amendment to an existing rule.

(c) Any proprietary information provided to the department of revenue by a business or trade association for the purpose of preparing a cost-benefit analysis shall be confidential.

(d) If the agency has made a good faith effort to comply with the requirements of paragraph (a) of this subsection (2.5), the rule or amendment shall not be invalidated on the ground that the contents of the cost-benefit analysis are insufficient or inaccurate.

(e) This subsection (2.5) shall not apply to orders, licenses, permits, adjudication, or rules affecting the direct reimbursement of vendors or providers with state funds.

(f) Repealed.

(g) Each state rule-making agency with a website containing rule-making information shall include the following information on its website:

(I) Information about the cost-benefit analysis process set forth in this subsection (2.5); and

(II) A link to the online regulatory notice enrollment form created by the executive director of the department of regulatory agencies or the executive director's designee and listed on the department's website.

(2.7) (a) As used in this subsection (2.7):

(I) "Director" means the director of the office of state planning and budgeting.

(II) "State mandate" has the same meaning as set forth in section 29-1-304.5 (3)(d), C.R.S.

(b) No agency shall promulgate a rule creating a state mandate on a local government unless the agency complies with the requirements of section 29-1-304.5, C.R.S.

(c) (I) Except as provided in paragraph (g) of this subsection (2.7), beginning January 1, 2014, for each proposed rule that includes a state mandate, an agency shall provide to the director a description of:

(A) The proposed rule;

(B) The nature and extent of any consultations that the agency had with elected officials or other representatives of the local governments that would be affected by the proposed state mandate;

(C) The nature of any concerns of the elected officials or other representatives of the local governments;

(D) Any written communications or comments submitted to the agency by an elected official or other representative of a local government; and

(E) The agency's reasoning supporting the need to promulgate the rule containing the state mandate.

(II) The director shall review the information provided pursuant to subparagraph (I) of this paragraph (c) and, if it complies with the requirements of this paragraph (c), the director shall send a written notice of compliance to the agency. An agency shall not conduct a public rule-making proceeding unless the agency has received the written notice of compliance from the director.

(d) Each agency shall develop a process to actively solicit the meaningful and timely input of elected officials and other representatives of local governments into the development of proposed rules with state mandates affecting local governments. Each agency shall implement its process no later than January 1, 2014, and post the process on the agency's website.

(e) The executive director of each department shall be responsible for ensuring implementation of and compliance with this subsection (2.7).

(f) The general assembly shall appropriate any moneys necessary for the implementation of this subsection (2.7) to the office of state planning and budgeting in the annual general appropriation act for the fiscal year 2013-14.

(g) Beginning January 1, 2014, for each proposed rule of the state board of education that imposes a new state mandate or an increase in the level of service for an existing state mandate beyond that required by statute, the department of education shall comply with the provisions of paragraph (c) of this subsection (2.7).

(3) (a) Notice of proposed rule-making shall be published as provided in subsection (11) of this section and shall state the time, place, and nature of public rule-making proceedings that shall not be held less than twenty days after such publication, the authority under which the rule is proposed, and either the terms or the substance of the proposed rule or a description of the subjects and issues involved.

(a.5) If the agency proposes a rule to increase fees or fines, at the time of giving notice of proposed rule-making or within ten days following the adoption of an emergency or temporary rule that increases fees or fines, the agency shall send a written or electronic notification to each member of the general assembly notifying the members of the general assembly of the proposed rule or the adoption of an emergency rule and specifying the amount of the increase in the fees or fines.

(b) Each rule-making agency shall maintain a list of all persons who request notification of proposed rule-making, including temporary or emergency rule-making. Any person on such list who requests a copy of the proposed rules shall submit to the agency a fee that shall be set by such agency based upon the agency's actual cost of copying and mailing the proposed rules to such person. All fees collected by the agency are hereby appropriated to the agency solely for the purpose of defraying such cost. On or before the date of the publication of notice of proposed rule-making in the Colorado register, the agency shall mail the notice of proposed rule-making to all persons on such list. If a person requests to be notified by electronic mail, notice is sufficient by such means if a copy of the proposed rules is attached or included in the electronic mail or if the electronic mail provides the location where the proposed rules may be viewed on the internet. No fees shall be charged for notification by electronic mail. A person may only request notification on his or her own behalf, and a request for notification by one person on behalf of another person need not be honored.

(4) (a) At the place and time stated in the notice, the agency shall hold a public hearing at which it shall afford interested persons an opportunity to submit written data, views, or arguments and to present the same orally unless the agency deems it unnecessary. The agency shall consider all such submissions. Any proposed rule or revised proposed rule by an agency which is to be considered at the public hearing, together with a proposed statement of basis, specific statutory authority, purpose, and the regulatory analysis required in subsection (4.5) of this section, shall be made available to any

person at least five days prior to said hearing. The rules promulgated by the agency shall be based on the record, which shall consist of proposed rules, evidence, exhibits, and other matters presented or considered, matters officially noticed, rulings on exceptions, any findings of fact and conclusions of law proposed by any party, and any written comments or briefs filed.

(a.5) Subject to the provisions of section 24-72-204 (3)(a)(IV), any study or other documentation utilized by an agency as the basis of a proposed rule shall be a public document in accordance with the provisions of part 2 of article 72 of this title and shall be open for public inspection. Subject to the provisions of section 24-72-204 (3)(a)(IV), all information, including, but not limited to, the conclusions and underlying research data from any studies, reports, published papers, and documents, used by the agency in the development of a proposed rule shall be a public document in accordance with the provisions of part 2 of article 72 of this title and shall be open for public inspection.

(b) All proposed rules shall be reviewed by the agency. No rule shall be adopted unless:

(I) The record of the rule-making proceeding demonstrates the need for the regulation;

(II) The proper statutory authority exists for the regulation;

(III) To the extent practicable, the regulation is clearly and simply stated so that its meaning will be understood by any party required to comply with the regulation;

(IV) The regulation does not conflict with other provisions of law; and

(V) The duplication or overlapping of regulations is explained by the agency proposing the rule.

(c) Rules, as finally adopted, shall be consistent with the subject matter as set forth in the notice of proposed rule-making provided in subsection (11) of this section. After consideration of the relevant matter presented, the agency shall incorporate by reference on the rules adopted a written concise general statement of their basis, specific statutory authority, and purpose. The written statement of the basis, specific authority, regulatory analysis required by subsection (4.5) of this section, and purpose of a rule which involves scientific or technological issues shall include an evaluation of the scientific or technological rationale justifying the rule. Each agency shall maintain a copy of its currently effective rules and the current status of each published proposal for rules and minutes of all its action upon rules, as well as any attorney general's opinion rendered on any adopted or proposed rule. Such materials shall be available for inspection by any person during regular office hours.

(d) Within one hundred eighty days after the last public hearing on the proposed rule, the agency shall adopt a rule pursuant to the rule-making proceeding or terminate the proceeding by publication of a notice to that effect in the Colorado register.

(4.5) (a) Upon request of any person, at least fifteen days prior to the hearing, the agency shall issue a regulatory analysis of a proposed rule. The regulatory analysis shall contain:

(I) A description of the classes of persons who will be affected by the proposed rule, including classes that will bear the costs of the proposed rule and classes that will benefit from the proposed rule;

(II) To the extent practicable, a description of the probable quantitative and qualitative impact of the proposed rule, economic or otherwise, upon affected classes of persons;

(III) The probable costs to the agency and to any other agency of the implementation and enforcement of the proposed rule and any anticipated effect on state revenues;

(IV) A comparison of the probable costs and benefits of the proposed rule to the probable costs and benefits of inaction;

(V) A determination of whether there are less costly methods or less intrusive methods for achieving the purpose of the proposed rule; and

(VI) A description of any alternative methods for achieving the purpose of the proposed rule that were seriously considered by the agency and the reasons why they were rejected in favor of the proposed rule.

(b) Each regulatory analysis shall include quantification of the data to the extent practicable and shall take account of both short-term and long-term consequences.

(c) The regulatory analysis shall be available to the public at least five days prior to the rule-making hearing.

(d) If the agency has made a good faith effort to comply with the requirements of paragraphs (a) to (c) of this subsection (4.5), the rule shall not be invalidated on the ground that the contents of the regulatory analysis are insufficient or inaccurate.

(e) Nothing in paragraphs (a) to (c) of this subsection (4.5) shall limit an agency's discretionary authority to adopt or amend rules.

(f) The provisions of this subsection (4.5) shall not apply to rules and regulations promulgated by the department of revenue regarding the administration of any tax which is within the authority of said department.

(5) A rule shall become effective twenty days after publication of the rule as finally adopted, as provided in subsection (11) of this section, or on such later date as is stated in the rule. Once a rule becomes effective, the rule-making process shall be deemed to have become final agency action for judicial review purposes.

(6) (a) A temporary or emergency rule may be adopted without compliance with the procedures prescribed in subsection

(4) of this section and with less than the twenty days' notice prescribed in subsection (3) of this section, or where circumstances imperatively require, without notice, only if the agency finds that immediate adoption of the rule is imperatively necessary to comply with a state or federal law or federal regulation or for the preservation of public health, safety, or welfare and compliance with the requirements of this section would be contrary to the public interest and makes such a finding on the record. Such findings and a statement of the reasons for the action shall be published with the rule. A temporary or emergency rule may be adopted without compliance with subsections (2.5) and (2.7) of this section, but shall not become permanent without compliance with such subsections (2.5) and (2.7). A temporary or emergency rule shall become effective on adoption or on such later date as is stated in the rule, shall be published promptly, and shall have effect for not more than one hundred twenty days after its adoption or for such shorter period as may be specifically provided by the statute governing such agency, unless made permanent by compliance with subsections (3) and (4) of this section.

(b) The period of effectiveness provided by this subsection (6) does not apply to temporary or emergency rules adopted by the public utilities commission under section 40-2-108 (2), C.R.S.

(7) Any interested person shall have the right to petition for the issuance, amendment, or repeal of a rule. Such petition shall be open to public inspection. Action on such petition shall be within the discretion of the agency; but when an agency undertakes rule-making on any matter, all related petitions for the issuance, amendment, or repeal of rules on such matter shall be considered and acted upon in the same proceeding.

(8) (a) No rule shall be issued except within the power delegated to the agency and as authorized by law. A rule shall not be deemed to be within the statutory authority and jurisdiction of any agency merely because such rule is not contrary to the specific provisions of a statute. Any rule or amendment to an existing rule issued by any agency, including state institutions of higher education administered pursuant to title 23, C.R.S., which conflicts with a statute shall be void.

(b) An agency shall not issue a rule or amend an existing rule unless the issuing agency first submits the rule to the attorney general for the attorney general's opinion as to its constitutionality and legality. If an agency issues a rule or an amendment to an existing rule without first submitting the rule or amendment to the attorney general, the rule or amendment is void.

(c) (I) (A) Notwithstanding any other provision of law to the contrary, including section 24-4-107, and except as provided in subsection (8)(c)(I)(B) of this section, on and after November 1, 1993, all rules adopted or amended during any one-year period that begins each November 1 and continues through the following October 31 expire at 11:59 p.m. on the May 15 that follows such one-year period unless the general assembly by bill acts to postpone the expiration of a specific rule.

(B) A rule adopted pursuant to section 25.5-4-402.4 (6)(b)(III) expires at 11:59 p.m. on the May 15 following the adoption of the rule unless the general assembly acts by bill to postpone the expiration of a specific rule.

(C) Postponing the expiration of a rule does not constitute legislative approval of the rule and is not admissible in any court as evidence of legislative intent. Postponing the expiration date of a specific rule does not prohibit any action by the general assembly pursuant to subsection (8)(d) of this section with respect to the rule.

(II) It is the intent of the general assembly that, in the event of a conflict between this paragraph (c) and any other provision of law relating to suspension or extension of rules by joint resolution (whether said provision was adopted prior to or subsequent to this paragraph (c)), this paragraph (c) shall control, notwithstanding the rule of law that a specific provision of law controls over a general provision of law.

(d) (I) An agency that has adopted or amended a rule shall submit the adopted or amended rule, including a temporary or emergency rule, to the office of legislative legal services in the form and manner prescribed by the committee on legal services. The office of legislative legal services shall first review the rule or amendment to the existing rule to determine whether the rule or amendment is within the agency's rule-making authority and for later review by the committee on legal services for its opinion as to whether the rule conforms with subsection (8)(a) of this section.

(II) The committee on legal services shall direct the office of legislative legal services to review the rules submitted by adopting agencies using graduated levels of review based on criteria established by the committee. The criteria developed by the committee on legal services must provide that the office of legislative legal services review every rule as to form and compliance with filing procedures and that, upon request of any member of the committee or any other member of the general assembly, the office of legislative legal services provide full legal review of any rule during the time period that the rule is subject to review by the committee.

(III) The official certificate of the director of the office of legislative legal services, or the director's designee, as to the fact that an agency submitted a rule to the office of legislative legal services or as to the date an agency submitted a rule, as shown by the records of the director's office, as well as to the fact that an agency failed to submit a rule to the office of legislative legal services, as shown by the nonexistence of such records, shall be received and held in all civil cases as competent evidence of the facts contained in the official certificate. The office of legislative legal services shall retain records regarding the review of rules pursuant to this section in accordance with policies established pursuant to section 2-3-303 (2). If an agency issues a rule or an amendment to an existing

rule for review by the committee on legal services pursuant to this subsection (8) without submitting the rule or amendment to the office of legislative legal services within twenty days after the date of the attorney general's opinion on the rule or amendment pursuant to subsection (8)(b) of this section, the rule or amendment is void.

(IV) The office of legislative legal services shall present its findings to the committee on legal services at a public meeting held after timely notice to the public and affected agencies. The committee on legal services shall, on affirmative vote, submit such rules, comments, and proposed legislation at the next regular session of the general assembly. The committee on legal services is the committee of reference for any bill introduced pursuant to this subsection (8)(d)(IV). Any member of the general assembly may introduce a bill that rescinds or deletes portions of the rule. Rejection of such a bill does not constitute legislative approval of the rule. Only that portion of any rule specifically disapproved by bill is no longer effective, and that portion of the rule that remains after deletion of a portion of the rule retains its character as an administrative rule.

(V) Each agency shall revise its rules to conform with the action taken by the general assembly. An agency shall not repromulgate a rule that has been allowed to expire by action of the general assembly pursuant to subsection (8)(c) of this section because the rule, in the opinion of the general assembly, is not authorized by the state constitution or statute, unless the authority to promulgate the rule has been granted to the agency by a statutory amendment, by the state constitution, or by a judicial determination that statutory or constitutional authority exists. Any rule so repromulgated is void. Any rule that an agency revises pursuant to this subsection (8)(d)(V) shall be transmitted to the secretary of state for publication pursuant to subsection (11) of this section. Passage of a bill repealing a rule does not result in revival of a predecessor rule.

(VI) This subsection (8)(d) and subsection (4.5) of this section do not apply to rules of agency organization or general statements of policy that are not meant to be binding as rules.

(VII) For the purpose of performing the functions assigned it by this subsection (8)(d), the committee on legal services, with the approval of the speaker of the house of representatives and the president of the senate, may appoint subcommittees from the membership of the general assembly.

(e) The office of legislative legal services shall identify rules that were adopted during each applicable one-year period as a result of legislation enacted during any legislative session, regular or special, commencing on or after the previous eight calendar years. After the rules have been identified, the office of legislative legal services shall notify in writing any prime sponsors of the enacted legislation who are still serving in the general assembly and the current members of the applicable committees of reference in the senate and house of representatives for that enacted legislation that a rule has been adopted as a result of the legislation; except that the office of legislative legal services need not provide the notice regarding an adopted rule if the rule resulted from legislation that was enacted more than eight calendar years prior to the rule's adoption.

(8.1) (a) An agency shall maintain an official rule-making record for each proposed rule for which a notice of proposed rule-making has been published in the Colorado register. Such rule-making record shall be maintained by the agency until all administrative and judicial review procedures have been completed pursuant to the provisions of this article. The rule-making record shall be available for public inspection.

(b) The agency rule-making record must contain:

(I) Copies of all publications in the Colorado register with respect to the rule or the proceeding upon which the rule is based;

(II) Copies of any portions of the agency's public rule-making docket containing entries relating to the rule or the proceeding upon which the rule is based;

(III) All written petitions, requests, submissions, and comments received by the agency as of the date of the hearing on the rule and all other written materials, or a listing of such materials, considered by the agency in connection with the formulation, proposal, or adoption of the rule or the proceeding upon which the rule is based, which materials shall be available for public inspection during working hours;

(IV) Any official transcript of oral presentations made in the proceeding upon which the rule is based or, if not transcribed, any tape recording or stenographic record of those presentations and any memorandum prepared by a presiding official summarizing the contents of those presentations;

(V) A copy of any regulatory analysis or cost-benefit analysis prepared for the proceeding upon which the rule was based, if applicable, and any formal statement made to the agency promulgating the rule by the executive director of the department of regulatory agencies regarding such cost-benefit analysis;

(VI) A copy of the rule and explanatory statement filed in the office of the secretary of state;

(VII) All petitions for exceptions to, amendments of, or repeal or suspension of the rule;

(VIII) A copy of any objection to the rule presented to the committee on legal services by the office of legislative legal services pursuant to subsection (8)(d) of this section and the agency's response;

(IX) A copy of any filed executive order with respect to the rule; and

(X) A copy of any information provided to the director pursuant to paragraph (c) of subsection (2.7) of this section

and the written notice of compliance from the director.

(c) Upon judicial review, the record required by this section constitutes the official rule-making record with respect to a rule. The agency rule-making record need not constitute the exclusive basis for agency action on that rule or for judicial review thereof; except that, this paragraph (c) shall not be interpreted to allow the introduction of evidence or information into such rule-making record from outside of the public rule-making hearing, or to allow such introduction of evidence or information without notice to all parties to such hearing and opportunity to respond.

(d) If an agency includes information required by subparagraph (X) of paragraph (b) of this subsection (8.1) in the rule-making record, the agency shall provide a copy of the portion of the record that includes such information with the executive committee of the legislative council in accordance with the provisions of section 24-1-136 (9).

(8.2) (a) A rule adopted on or after September 1, 1988, shall be invalid unless adopted in substantial compliance with the provisions of this section. However, inadvertent failure to mail a notice of proposed rule-making to any person as required by subsection (3) of this section shall not invalidate a rule.

(b) An action to contest the validity of a rule on the grounds of its noncompliance with any provision of this section shall be commenced within thirty days after the effective date of the rule.

(8.3) (a) On or after August 11, 2010, all new or amended rules or regulations promulgated pursuant to this section that refer to persons with disabilities shall comply with the provisions of section 2-2-802, C.R.S., as applicable to the new or amended rule.

(b) Violation of this subsection (8.3) shall not be grounds to invalidate any new or amended rule; however, such rules shall be amended to reflect the provisions of section 2-2-802, C.R.S., in any subsequent revision.

(c) Nothing in this subsection (8.3) shall constitute a requirement to change the name of any department, agency, or program of the state.

(9) Each agency shall make available to the public and shall deliver to anyone requesting it a copy of any notice of proposed rule-making proceeding in which action has not been completed. Upon request, such copy shall be certified. The agency may make a reasonable charge for supplying any such copy.

(10) No rule shall be relied upon or cited against any person unless, if adopted after May 1, 1959, it has been published and, whether adopted before or after said date, it has been made available to the public in accordance with this section.

(11) (a) There is hereby established the code of Colorado regulations for the publication of rules of agencies of the executive branch and the Colorado register for the publication of notices of rule-making, proposed rules, attorney general's opinions relating to such rules, and adopted rules. The code and the register shall be the sole official publications for such rules, notices of rule-making, proposed rules, and attorney general's opinions. The code and the register shall contain, where applicable, references to court opinions and recommendations of the legal services committee of the general assembly that relate to or affect such rules and references to any action of the general assembly relating to the extension, expiration, deletion, or rescission of such rules and may contain other items that, in the opinion of the editor, are relevant to such rules. The register may also include other public notices, including annual departmental regulatory agendas submitted by principal departments to the secretary of state pursuant to section 2-7-203, C.R.S.; however, except as specifically permitted by law, the inclusion of such notices in the register shall be in addition to and not in substitution for existing public notice requirements.

(b) The secretary of state shall cause to be published in electronic form, and may cause to be published in printed form, at the least cost possible to the state, the code of Colorado regulations and the Colorado register no less often than once each calendar month. In the event of any discrepancy between the electronic and printed form of the code or the register, the electronic form shall prevail unless it is conclusively shown, by reference to the rule-making filings made with the secretary of state pursuant to this section, that the electronic form contains an error in publication.

(c) (Deleted by amendment, L. 2010, (SB 10-123), ch. 104, p. 350, § 1, effective April 15, 2010.)

(d) The agency adopting a rule shall file the adopted rule, together with the attorney general's opinion rendered in connection with the rule, with the secretary of state for publication in the Colorado register pursuant to subsection (12) of this section within twenty days after adoption of the rule. Upon written request of an agency, the secretary of state shall correct typographical and other nonsubstantive errors appearing in the rules as filed by the agency that occur after final adoption of the rules by the agency during the preparation of the rules for publication in order to conform the published rules with the adopted rules. The agency shall also file notices of rule-making proceedings pursuant to subsection (3) of this section with the secretary of state in sufficient time for publication in the register pursuant to subsection (5) of this section. An agency shall file rules revised to conform with action taken by the general assembly with the secretary of state for publication in the register and in the code of Colorado regulations. The office of legislative legal services shall notify the secretary of state whenever a rule published in the code is rescinded or a portion of the rule is deleted by the general assembly and whenever a rule or a portion of a rule is allowed to expire in accordance with subsection (8)(c)(I) of this section. The secretary of state shall direct the removal from the code of material that was deleted, rescinded, or allowed to expire.

(e) The secretary of state shall establish and maintain an accurate docket system for recording the time and date of

the filing of each document, the agency filing the same, and the title or description of such document required to be filed for publication under the provisions of this section, which docket system shall be cross-indexed as to such time, date, agency, and title or description.

(f) (Deleted by amendment, L. 2010, (SB 10-123), ch. 104, p. 350, § 1, effective April 15, 2010.)

(g) Publication of notices and other required information related to proposed and adopted rules shall be by electronic publication.

(h) (Deleted by amendment, L. 2010, (SB 10-123), ch. 104, p. 350, § 1, effective April 15, 2010.)

(i) (I) (Deleted by amendment, L. 2010, (SB 10-123), ch. 104, p. 350, § 1, effective April 15, 2010.)

(II) The Colorado register shall contain only such notices, proposed rules, adopted rules, opinions, and other relevant information and materials as are filed pursuant to law with the secretary of state.

(III) (Deleted by amendment, L. 2010, (SB 10-123), ch. 104, p. 350, § 1, effective April 15, 2010.)

(j) Repealed.

(k) (Deleted by amendment, L. 2010, (SB 10-123), ch. 104, p. 350, § 1, effective April 15, 2010.)

(l) (I) An agency may request the secretary of state to correct a statutory citation contained in a rule, including a form incorporated into a rule, as published in the code of Colorado regulations if:

(A) The general assembly has relocated the statute in a manner that renders the rule's citation to the statute inaccurate; and

(B) The agency submits to the secretary a written determination by the attorney general that finds that the condition specified in subsection (11)(l)(I)(A) of this section applies, specifies what the correct citation is, and identifies each citation that should be corrected.

(II) Upon receipt of a request that complies with subsection (11)(l)(I) of this section, the secretary of state shall correct in the code of Colorado regulations each statutory citation listed in the determination specified in subsection (11)(l)(I)(B) of this section.

(III) A statutory citation correction authorized by this subsection (11)(l) is not rule-making and need not comply with any requirements of this section other than those specified in this subsection (11)(l).

(m) Repealed.

(12) All rules of any agency that have been submitted to the attorney general under the provisions of subsection (8) of this section and the opinion of the attorney general, when issued, shall be filed in the office of the secretary of state. The secretary of state shall require that all rules of any agency that have been submitted to the attorney general under the provisions of subsection (8) of this section and the opinion of the attorney general, when issued, be filed in an electronic format that complies with any requirements established pursuant to sections 24-37.5-106 and 24-71.3-118.

(12.5) (a) A rule may incorporate by reference all or any part of a code, standard, guideline, or rule that has been adopted by an agency of the United States, this state, or another state, or adopted or published by a nationally recognized organization or association, if:

(I) Repeating verbatim the text of the code, standard, guideline, or rule in the rule would be unduly cumbersome, expensive, or otherwise inexpedient;

(II) The reference fully identifies the incorporated code, standard, guideline, or rule by citation and date, identifies the address of the agency where the code, standard, guideline, or rule is available for public inspection, and states that the rule does not include any later amendments or editions of the code, standard, guideline, or rule;

(III) The code, standard, guideline, or rule is readily available to the public in written or electronic form;

(IV) The rule states where copies of the code, standard, guideline, or rule are available for a reasonable charge from the agency adopting the rule and where copies are available from the agency of the United States, this state, another state, or the organization or association originally issuing the code, standard, guideline, or rule; and

(V) The agency maintains a copy of the code, standard, guideline, or rule readily available for public inspection at the agency office during regular business hours.

(b) The agency shall provide certified copies of the material incorporated at cost upon request or shall provide the requester with information on how to obtain a certified copy of the material incorporated by reference from the agency of the United States, this state, another state, or the organization or association originally issuing the code, standard, guideline, or rule.

(c) If any agency incorporates or proposes to incorporate any material by reference in a rule and the version or edition of the material to be incorporated has not previously been provided to the state publications depository and distribution center, and if the rule or proposed rule does not identify where the incorporated material is available to the public on the internet at no cost, then the agency shall provide one copy of the material in either paper or electronic format to the state publications depository and distribution center. The state librarian shall retain the copy of the material and shall make the copy available to the public.

(13) Any agency conducting a hearing shall have authority on its own motion or upon the motion of any interested person for good cause shown to: Administer oaths and affirmations; sign and issue subpoenas; regulate the course of

the hearing, set the time and place for continued hearings, and fix the time for the filing of appropriate documents; take depositions or have depositions taken; issue appropriate orders which shall control the subsequent course of the proceedings; and take any other action authorized by agency rule consistent with this article. In the event more than one person engages in the conduct of a hearing, such persons shall designate one of their number to perform the functions of this subsection (13) and subsection (14) of this section as can best be performed by one person only, and thereafter such person only shall perform those functions which are assigned to him by the several persons conducting such hearing.

(14) Subpoenas shall be issued without discrimination between public and private parties by any agency or any member, the secretary or chief administrative officer thereof, or, with respect to any hearing for which a hearing officer or an administrative law judge has been appointed, the hearing officer or administrative law judge. A subpoena shall be served in the same manner as a subpoena issued by a district court. Upon failure of any witness to comply with such subpoena, the agency may petition any district court, setting forth that due notice has been given of the time and place of attendance of the witness and the service of the subpoena, in which event, the district court, after hearing evidence in support of or contrary to the petition, may enter an order as in other civil actions compelling the witness to attend and testify or produce books, records, or other evidence, under penalty of punishment for contempt in case of contumacious failure to comply with the order of the court. A witness shall be entitled to the fees and mileage provided for a witness in sections 13-33-102 and 13-33-103, C.R.S.

Source: L. 59: p. 159, § 2. CRS 53: § 3-16-2. C.R.S. 1963: §3-16-2. L. 67: p. 300, § 2. L. 69: p. 82, §§ 2, 3. L. 76: (1) and (8)(a) amended and (8)(d) added, p. 582, § 15, effective May 24. L. 77: (8)(d) amended, p. 1134, § 2, effective May 31; (13) and (14) added, p. 1144, § 1, effective June 3; (4) amended, p. 1136, § 1, effective June 19; (4) amended and (11) R&RE, p. 1138, §§ 1, 2, effective June 19; (8)(d) amended, p. 1141, § 1, effective (see editor's note). L. 78: (12) amended, p. 390, § 1, March 30. L. 79: (5) amended, p. 842, § 2, effective May 22; (8)(d) and (11)(d) amended, p. 849, § 1, effective May 25; (8)(c) R&RE and (8)(d) amended, p. 845, §§ 1, 2, effective June 29. L. 81: (9) and (11) amended, (11)(k) added, and (11)(j) repealed, pp. 1129, 1130, §§ 1, 2; (12.5) added, p. 1131, § 1, effective July 1; (12) and (13) amended, p. 1133, § 2, effective July 1. L. 82: (11)(a) and (11)(d) amended, p. 360, § 1, effective March 11. L. 84: (4) amended, p. 649, § 1, effective July 1. L. 87: (11)(k) amended, p. 915, § 1, effective July 1; (8)(c)(I) and (8)(d) amended, p. 919, § 2, effective July 3; (14) amended, p. 961, § 65, effective March 13. L. 88: (8)(d) amended, p. 311, § 19, effective May 23; (3), (6), and (8)(d) amended, (4) R&RE, and (4.5), (8.1), and (8.2) added, pp. 884, 886, 887, §§ 1, 2, 3, effective May 17. L. 89: (4.5)(f) added and (8.1)(b)(V) amended, pp. 1502, 1503, §§ 10, 11, effective July 1, 1990. L. 91: (1) amended, p. 807, § 3, effective June 5. L. 93: (3)(b), (6), (8.1)(c), (8.2)(b), and (11)(d) amended, p. 1325, § 2, effective June 6; (8)(d) amended, p. 2109, § 12, effective June 9; (8)(c)(I) amended, p. 496, § 1, effective July 1. L. 94: (1.5) added and (3)(a) and (12.5) amended, p. 2587, § 1, effective July 1. L. 95: (6) amended, p. 232, § 2, effective April 17. L. 98: (4)(a.5) added, p. 721, § 1, effective May 18. L. 2000: (1) amended, p. 1861, § 73, effective August 2. L. 2001: (8)(d) amended, p. 318, § 2, effective April 12; (4)(a.5) amended, p. 1076, § 5, effective August 8; (12) amended, p. 38, § 2, effective August 8. L. 2002: (3)(b), (9), (11)(b), (11)(d), (11)(f), (11)(g), (11)(h), (11)(i), (11)(k), and (12) amended, p. 436, § 2, effective May 14. L. 2003: (11)(b) and (11)(d)(I) amended, p. 2048, § 1, effective May 22; (2.5) added and (6), (8.1)(b)(V), and (11)(b) amended, p. 2370, § 3, effective August 6. L. 2005: (12) amended, p. 768, § 36, effective June 1. L. 2006: IP(2.5)(a) and (2.5)(f)(I) amended, p. 202, § 1, effective March 31; (12) amended, p. 1735, § 20, effective June 6. L. 2007: (12) amended, p. 910, § 2, effective May 17. L. 2009: (8)(c)(I) amended, (HB 09-1293), ch. 152, p. 651, § 9, effective July 1. L. 2010: (3)(a), (8.1)(a), and (12.5) amended, (HB 10-1235), ch. 76, p. 258, § 1, effective April 5; (6) amended, (HB 10-1346), ch. 137, p. 460, § 1, effective April 15; (11) and (12) amended, (SB 10-123), ch. 104, p. 350, § 1, effective April 15; (8.3) added, (HB 10-1137), ch. 93, p. 320, § 2, effective August 11. L. 2012: (2), (3), and (11)(a) amended, (HB 12-1008), ch. 182, pp. 691, 694, §§ 2, 5, effective May 17; (2.7), (8.1)(b)(X), and (8.1)(d) added and (6)(a), (8.1)(b)(VIII), and (8.1)(b)(IX) amended, ch. 199, p. 797, § 1, effective August 8. L. 2013: IP(2.5)(a) amended and (8)(e) added, (SB 13-030), ch. 110, p. 379, § 1, effective April 8; IP(2.5)(a) and (2.5)(f) amended, (SB 13-158), ch. 283, p. 1490, § 1, effective July 1; IP(2.7)(c)(I) amended and (2.7)(g) added, (HB 13-1219), ch. 104, p. 366, § 20, effective August 7. L. 2015: (8)(e) amended, (SB 15-047), ch. 71, p. 190, § 1, effective August 5. L. 2016: (8)(b) amended, (HB 16-1094), ch. 94, p. 267, § 12, effective August 10. L. 2017: (11)(l) added, (HB 17-1006), ch. 31, p. 88, § 2, effective March 16; (11)(m) added, (SB 17-242), ch. 263, p. 1321, § 177, effective May 25; (8)(c)(I) amended, (SB 17-267), ch. 267, p. 1440, § 7, effective July 1. L. 2018: (2.5)(f) repealed and (2.5)(g) added, (HB 18-1237), ch. 165, p. 1137, § 2, effective August 8. L. 2021: (8)(e) amended, (HB 21-1137), ch. 37, p. 142, § 1, effective September 7. L. 2022: (8)(b), (8)(c)(I), (8)(d), IP(8.1)(b), (8.1)(b)(VIII), and (11)(d) amended, (SB 22-091), ch. 28, p. 165, § 1, effective August 10.

Colo. Rev. Stat. § 24-32-721

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Colorado affordable housing construction grants and loans - housing development grant fund - creation - housing assistance for persons with behavioral, mental health, or substance use disorders - cash fund - appropriation - report to general assembly - rules - definitions (current text, 2026 edition; retrieved 2026-10-29)

(1) There is created in the state treasury the housing development grant fund, which fund is administered by the division and is referred to in this section as the "fund". The fund consists of money credited to the fund in accordance with section 39-26-123 (3)(b); money transferred to the fund in accordance with section 24-22-118 (2); money transferred

to the fund from the ARPA refinance state money cash fund pursuant to section 24-75-226.5; money appropriated to the fund by the general assembly; all money transferred to the fund from the marijuana tax cash fund created in section 39-28.8-501 (1) and any other cash fund maintained by the state; all money transferred to the fund from the general fund and the revenue loss restoration cash fund created in section 24-75-227 (2) pursuant to subsections (6) and (7) of this section; all money collected by the division for purposes of this section from federal grants, from other contributions, gifts, grants, and donations received from any other organization, entity, or individual, public or private; and from any fees or interest earned on such money. The division is authorized and directed to solicit, accept, expend, and disburse all money collected for the fund from the sources specified in this subsection (1) for the purpose of making grants, loans, or other forms of assistance that may be awarded under section 24-32-721.7 and for program administration as provided in this section. All such money must be transmitted to the state treasurer to be credited to the fund. Except as otherwise provided in subsection (3)(b.5) of this section, the money in the fund is continuously appropriated to the division for the purposes of this section.

(1.5) and (1.7) Repealed.

(2) (a) Subject to the requirements of this section, upon the approval of the board, the division may make a grant or loan from money in the fund to improve, preserve, or expand the supply of affordable housing in Colorado as well as to fund the acquisition of housing and economic data necessary to advise the board on local housing conditions. In making loans or grants from the fund, the division shall give priority to owners of property that was either destroyed or incurred substantial damage as a result of one or more state or federally declared natural disasters where the property owner has received the maximum insurance proceeds and public disaster assistance. The division shall annually allocate, with or without board approval, at least one-third of the money credited to the fund in accordance with section 39-26-123 (3)(b) to improve, preserve, or expand affordable housing for households whose annual income is less than or equal to thirty percent of the area median income, as published annually by the United States department of housing and urban development. The division shall use at least five million dollars of the amount transferred to the fund in accordance with section 24-22-118 (2) to improve, preserve, or expand the supply of affordable housing in rural Colorado.

(b) and (c) (Deleted by amendment, L. 2014.)

(d) In addition to any other use authorized under this section, money may also be used for the following purposes, without limitation:

(I) Grants and loans for the acquisition, renovation, and construction of for-sale homes in nonurban areas for purchasers who reside in households with an annual income up to one hundred twenty percent of the area median income and down payment assistance programs that are financed in partnership with private and public entities for the development of housing and the delivery of services that assist persons in households with an annual income up to one hundred percent of the area median income;

(II) Programs for home rehabilitation;

(III) Repair, replacement, and disposal of mobile homes in conjunction with programs that are operated by local governments, local housing authorities, and private organizations;

(IV) Grants and loans for the financing of land acquisition and infrastructure costs associated with the provision of utilities to support development of a planned deed restricted rental or for-sale affordable housing development;

(V) Grants and loans to private and public entities to provide funding for the development, acquisition, and rehabilitation of affordable housing targeted at a specific area median income or income level; and

(VI) Rental assistance and tenancy support service programs that target one or more of the following persons or uses:

(A) Homeless families with dependents or other children enrolled in preschool, elementary, or secondary schools;

(A.5) Individuals experiencing homelessness;

(B) Medicaid clients in nursing homes who are able to live in their communities with in-home services;

(C) Family unification and related services;

(D) Homeless or disabled veterans;

(E) Low-income households with an annual income at or below sixty percent of the area median income; and

(F) Survivors of domestic violence.

(VII) Grants and loans to local governments and nonprofit organizations for the rental, acquisition, or renovation of underutilized hotels, underutilized motels, and other underutilized properties to provide noncongregate sheltering or affordable housing for people experiencing homelessness. The division shall define the terms "underutilized hotel", "underutilized motel", and "underutilized property" by policies and procedures. Local governments and nonprofit organizations that are awarded grants or loans under this subsection (2)(d)(VII) shall prioritize the rental, acquisition, or renovation of underutilized hotels, underutilized motels, and other underutilized properties that are minority-owned or women-owned businesses, that have annual revenues under five million dollars, that qualify as disadvantaged business enterprises as defined in part 26 of title 49 of the code of federal regulations, as amended, or that comply with the federal "Americans with Disabilities Act of 1990", 42 U.S.C. sec. 12101 et seq.,

as amended.

(e) In determining how best to allocate money to promote the various purposes specified in subsection (2)(d) of this section, the division shall consult with stakeholders from urban and rural communities and representatives from populations of different income levels with diverse housing needs and shall award funding to meet the needs of local communities that will optimize the socio-economic and housing stability of outcomes of households served; optimize the creation, operation, and affordability length of affordable housing stock created; optimize the preservation of naturally occurring and subsidized affordable housing; consider the impact of award terms on the financial stability of the organizations delivering these development projects and resident services; leverage or be leveraged by other available public or private sources of money; be layered with other funds administered by the state; address housing needs throughout the state; and serve populations with the greatest unmet need. The division may evaluate and award funding opportunities at all stages of a project, including predevelopment and first-in catalytic fund commitments.

(f) As used in this subsection (2), "area median income" is determined in accordance with guidelines or other standards promulgated by the United States department of housing and urban development.

(g) (I) Within three business days of June 26, 2021, the state treasurer shall transfer thirty million dollars from the affordable housing and home ownership cash fund created in section 24-75-229, that originates from money the state received from the federal coronavirus state fiscal recovery fund, to the housing development grant fund and transfer fifteen million dollars from the general fund to the affordable housing and home ownership cash fund created in section 24-75-229. Within three business days of May 27, 2022, the state treasurer shall transfer:

(A) One million eight hundred ninety-four thousand four dollars to the housing development grant fund from the affordable housing and home ownership cash fund created in section 24-75-229 that originates from the general fund;

(B) Twenty-eight million dollars to the housing development grant fund from the general fund; and

(C) Twenty-nine million eight hundred ninety-four thousand four dollars from the housing development grant fund to the affordable housing and home ownership cash fund created in section 24-75-229. The transfer required by this subsection (2)(g)(I)(C) is from money that was transferred on June 26, 2021, to the housing development grant fund from the affordable housing and home ownership cash fund that originated from money the state received from the federal coronavirus state fiscal recovery fund.

(II) The division shall use money transferred from the affordable housing and home ownership cash fund created in section 24-75-229, that originates from money the state received from the general fund, pursuant to subsection (2)(g)(I) of this section for the purposes allowed under subsection (2)(d)(VI)(A.5) of this section that are related to subsection (2)(d)(VII) of this section and for the purposes allowed by subsection (2)(d)(VII) of this section.

(III) During the department of local affairs' annual presentation in 2022 and 2023 to the committees of reference pursuant to section 2-7-203, the department shall include a summarized report of the rental and tenancy support service programs provided by the division of housing pursuant to subsection (2)(d)(VI)(A.5) of this section that are related to underutilized hotels, underutilized motels, and other underutilized properties and the grants and loans awarded by the division of housing for the rental, acquisition, or renovation of underutilized hotels, underutilized motels, and other underutilized properties pursuant to subsection (2)(d)(VII) of this section.

(h) Repealed.

(3) (a) Except as otherwise provided in section 24-75-226 (4)(c)(II), any money in the fund not expended or encumbered from any appropriation at the end of any fiscal year remains in the fund and does not revert to the general fund or any other fund and remains available for expenditure by the division in subsequent fiscal years for the purposes specified in subsection (1.5) or (2) of this section without further appropriation.

(b) Notwithstanding any other provision of this section, the division, in its discretion, may transfer twenty percent of the balance of the money in the fund into the housing investment trust fund established in section 24-32-717 (1)(a), which balance is calculated as of July 1 of the state fiscal year in which the money is transferred. For any given state fiscal year before state fiscal year 2025-26, no more than three percent of the money appropriated or transferred to the fund may be expended for the administrative costs of the division in administering the fund.

(b.5) Subject to annual appropriation by the general assembly beginning in state fiscal year 2025-26, for any given state fiscal year, the division may expend up to four percent of the money appropriated or transferred to the fund for the administrative costs of the division in administering the fund.

(c) Subject to the limitation on the percentage of money appropriated from the fund that may be expended for the administrative costs of the division in administering the fund specified in subsection (3)(b) of this section, the division may expend money from the fund to hire and employ individuals in order to fulfill the purposes of House Bill 19-1322, enacted in 2019.

(d) (I) The state treasurer shall credit all interest and income derived from the deposit and investment of money in the fund to the fund.

(II) Repealed.

(4) (a) As used in this subsection (4), unless the context otherwise requires, "person with a behavioral or mental health disorder" means an individual who has or, at any time during the previous twelve months, had a diagnosable mental, behavioral, or emotional disorder of sufficient duration to meet diagnostic criteria specified within the diagnostic and statistical manual of mental disorders, resulting in functional impairment that interferes with or limits one or more major life activities.

(b) In conjunction with its other programs to provide assistance in obtaining housing and subject to available appropriations, the division of housing shall establish a program that provides vouchers and other support services for housing assistance for:

(I) An individual with a mental health disorder, substance use disorder, or co-occurring behavioral health disorder who is transitioning from the department of corrections, the division of youth services in the department of human services, a mental health institute, a psychiatric hospital, or a county jail into the community; or

(II) An individual who is homeless or in an unstable housing environment and is transitioning from a residential treatment program or is engaged in the community transition specialist program created pursuant to section 27-66.5-103.

(c) In addition to any other uses specified in this section, the division shall also provide grants or loans for the acquisition, construction, or rehabilitation of rental housing for persons with behavioral or mental health disorders.

(d) There is created in the state treasury the housing assistance for persons transitioning from the criminal or juvenile justice system cash fund, referred to in this subsection (4) as the "cash fund". The cash fund consists of money that the general assembly appropriates to the cash fund. Subject to annual appropriation by the general assembly, the division may expend money in the cash fund for the purposes set forth in this subsection (4). All interest earned from the investment of money in the cash fund is credited to the cash fund. All money not expended at the end of the fiscal year remains in the cash fund, does not revert to the general fund or any other fund, and remains available for expenditure by the division in the next fiscal year for the purposes of this subsection (4) without further appropriation.

(e) In addition to any money appropriated to the division of housing pursuant to subsection (4)(d) of this section, for the 2019-20 fiscal year, and for each of the following four fiscal years, the general assembly shall annually appropriate one million dollars from the marijuana tax cash fund created in section 39-28.8-501 to the division of housing for the voucher program specified in subsection (4)(b) of this section.

(f) The executive director of the department of local affairs shall report to the senate committee on health and human services and the house of representatives committees on health and insurance and public health care and human services, or any successor committees, under the "State Measurement for Accountable, Responsive, and Transparent (SMART) Government Act", part 2 of article 7 of title 2, on:

(I) The number of projects funded under this section;

(II) The number of units in each project funded under this section;

(III) The number of qualified individuals housed as a result of this subsection (4); and

(IV) To the extent practicable, the number of individuals who, after receiving a voucher under subsection (4)(b) of this section, returned to the facilities from which the individuals were transitioning.

(5) Any principal or interest payments received by the division from a borrower pursuant to a loan originated using funds appropriated from the affordable housing and home ownership cash fund created in section 24-75-229 (3)(a) must be deposited in the housing investment trust fund created in section 24-32-717 (1).

(6) On June 27, 2021, the state treasurer shall transfer one million six hundred thousand dollars from the general fund to the housing development grant fund created in subsection (1) of this section. The division shall use the money transferred pursuant to this subsection (6) for the affordable housing guided toolkit and local officials guide program created in section 24-32-721.7.

(7) Repealed.

(8) If applications are required for money from the fund pursuant to this section, the application process must be in accordance with the process set forth in section 24-32-705.7.

Source: L. 2009: Entire section added, (HB 09-1213), ch. 217, p. 981, § 1, effective June 30. L. 2014: Entire section amended, (HB 14-1017), ch. 277, p. 1123, § 2, effective May 29. L. 2017: (4) added, (SB 17-021), ch. 305, p. 1659, § 2, effective June 2. L. 2018: (4)(d) amended, (SB 18-016), ch. 334, p. 2008, § 2, effective May 30. L. 2019: (3)(b) and (4)(b) amended and (4)(e) and (4)(f) added, (HB 19-1009), ch. 274, p. 2586, § 1, effective May 23; (1) and (2)(a) amended, (HB 19-1245), ch. 199, p. 2156, § 3, effective August 2; (1), (3)(a), and (4)(c) amended and (1.5), (2)(d), (2)(e), (2)(f), and (3)(c) added, (HB 19-1322), ch. 201, p. 2168, § 3, effective August 2. L. 2020: (4)(d) amended, (HB 20-1262), ch. 60, p. 202, § 2, effective March 20; (1.7) added, (HB 20-1410), ch. 112, p. 466, § 3, effective June 22; (1) and (2)(a) amended, (HB 20-1427), ch. 248, p. 1211, § 25, effective (see editor's note). L. 2020, 1st Ex. Sess.: (1.7)(b) amended and (1.7)(a.5), (1.7)(g.5), and (1.7)(h.5) added, (SB 20B-002), ch. 8, p. 40, § 1, effective December 7. L. 2021: (5) added, (HB 21-1329), ch. 347, p. 2257, § 2, effective June 25; IP(2)(d)(VI) amended and (2)(d)(VI)(A.5), (2)(d)(VII), (2)(g), and (2)(h) added, (SB 21-242), ch. 346, p. 2250, § 2, effective June 26; (1) amended and (6) added, (HB 21-1271), ch. 356, p. 2323, § 5, effective June 27; (3)(b) amended, (HB 21-1028), ch. 396, p. 2634, § 3, effective September 7. L. 2022: (3)(a) amended,

(HB 22-1342), ch. 137, p. 921, § 6, effective April 25; (2)(g)(I) and (2)(g)(II) amended, (HB 22-1411), ch. 271, p. 1957, § 7, effective May 27. L. 2023: (1) and (6) amended, (HB 23-1301), ch. 303, p. 1825, § 34, effective August 7. L. 2023, 1st Ex. Sess.: (1) amended and (7) added, (HB 23B-1001), ch. 6, p. 26, § 2, effective November 28. L. 2024: (1) amended, (HB 24-1466), ch. 429, p. 2938, § 18, effective June 5; (2)(e) amended and (8) added, (HB 24-1308), ch. 295, p. 2013, § 6, effective August 7. L. 2025: (1) and (3)(b) amended and (3)(b.5) added, (SB 25-245), ch. 122, p. 486, § 1, effective April 25; (3)(a) amended and (3)(d) added, (SB 25-317), ch. 385, p. 2143, § 10, effective June 3. L. 2026: (1.5) amended, (HB 26-1401), ch. 253, p. 1412, § 2, effective May 29.

Colo. Rev. Stat. § 24-34-600.3

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Definitions (current text, 2026 edition; retrieved 2026-10-29)

As used in this part 6, unless the context otherwise requires:

(1) (a) "Place of public accommodation" means any place of business engaged in any sales to the public and any place offering services, facilities, privileges, advantages, or accommodations to the public, including but not limited to:

(I) Any business offering wholesale or retail sales to the public;

(II) Any place to eat, drink, sleep, or rest, or any combination thereof;

(III) Any sporting or recreational area and facility;

(IV) Any public transportation facility;

(V) A barber shop, bathhouse, swimming pool, bath, steam or massage parlor, gymnasium, or other establishment conducted to serve the health, appearance, or physical condition of a person;

(VI) A campsite or trailer camp;

(VII) A dispensary, clinic, hospital, convalescent home, or other institution for the sick, ailing, aged, or infirm;

(VIII) A mortuary, undertaking parlor, or cemetery;

(IX) An educational institution; or

(X) Any public building, park, arena, theater, hall, auditorium, museum, library, exhibit, or public facility of any kind whether indoor or outdoor.

(b) "Place of public accommodation" does not include a church, synagogue, mosque, or other place that is principally used for religious purposes.

Source: L. 2025: Entire section added with relocations, (SB 25-275), ch. 377, p. 2063, § 156, effective August 6.

Colo. Rev. Stat. § 26.5-1-104

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Department of early childhood - created - executive director - powers, duties, and functions (current text, 2026 edition; retrieved 2026-10-25)

(1) There is created the department of early childhood, the head of which is the executive director of the department of early childhood, which office is created. The governor shall appoint the executive director, with the consent of the senate, and the executive director serves at the pleasure of the governor. The reappointment of an executive director after an initial election of a governor is subject to the provisions of section 24-20-109. In appointing an executive director, the governor shall make concerted efforts to identify qualified individuals who are representative of the diverse populations of children and families residing in Colorado. The executive director has those powers, duties, and functions prescribed for the heads of principal departments in the "Administrative Organization Act of 1968", article 1 of title 24, and any powers, duties, and functions set forth in this title 26.5.

(2) The department of early childhood consists of an executive director of the department of early childhood and such divisions, sections, other units, and advisory boards as the executive director may establish pursuant to subsection (3) of this section and as may be specified in this title 26.5.

(3) The executive director may establish such divisions, sections, other units, and advisory boards within the department as are necessary for the proper and efficient discharge of the powers, duties, and functions of the department.

(4) The department of early childhood is responsible for administering the functions and programs as set forth in this title 26.5.

(5) Repealed.

Source: L. 2021: Entire title added, (HB 21-1304), ch. 307, p. 1848, § 4, effective July 1, 2022. L. 2022: (5) repealed, (HB 22-1295), ch. 123, p. 775, § 5, effective July 1.

Colo. Rev. Stat. § 26.5-1-105

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Powers and duties of the executive director - rules - rules advisory council - repeal (current text, 2026 edition; retrieved 2026-10-25)

(1) (a) The executive director is authorized to promulgate, in accordance with the "State Administrative Procedure Act", article 4 of title 24, all rules for the administration of the department and for the execution and administration of the functions specified in section 26.5-1-109 and for the programs and services specified in this title 26.5. In promulgating rules, the executive director shall, to the greatest extent possible:

(I) Reduce the administrative burden on families and providers of accessing programs and services, implementing programs, and providing services;

(II) Decrease duplication and conflicts in implementing programs and providing services;

(III) Increase equity in access to programs and services and in child and family outcomes;

(IV) Increase administrative efficiencies among the programs and services provided by the department; and

(V) Ensure that the rules are coordinated across programs and services so that programs are implemented and services are provided with improved ease of access, quality of family and provider experience, and ease of implementation by state, local, and tribal agencies.

(b) The department may adopt guidelines and procedures to assist in the implementation and delivery of the programs and services that the department provides pursuant to this title 26.5. When appropriate to reduce potential administrative burden, the department may differentiate in the adopted guidelines and procedures among communities, including communities in rural areas, based on community capacity and readiness for implementing programs and delivering services.

(c) This subsection (1) is repealed, effective September 1, 2031. Before the repeal, this subsection (1) is scheduled for review in accordance with section 24-34-104.

(2) (a) The executive director shall convene a rules advisory council for consultation and advice in promulgating rules for the functions, programs, and services that the department provides. The executive director shall appoint the members of the rules advisory council, taking into consideration a list of nominees provided by the early childhood leadership commission pursuant to this subsection (2)(a). To ensure that the council is representative and collaborative and embodies a wide range of perspectives and experience with regard to early childhood and family support programs and services, the early childhood leadership commission shall conduct outreach to a wide range of early childhood industry organizations and partners and shall publicly solicit applications from qualified and interested individuals to serve on the council. In addition to soliciting applications, the early childhood leadership commission shall consult with parents and with counties, county human services directors, school districts, providers, and the organizations that represent these entities and shall accept nominations from said organizations. Based on the applications and nominations received, the early childhood leadership commission shall submit to the executive director a list of nominees for consideration as appointments to the council. To the extent practicable, the list of nominees must include nominees that satisfy the requirements specified in subsections (2)(b), (2)(c), and (2)(d) of this section. The early childhood leadership commission shall submit a list of nominees to the executive director as provided in this subsection (2)(a) for the initial and subsequent appointments to the council.

(b) The executive director shall appoint fifteen persons, taking into consideration the list of nominees received from the early childhood leadership commission, to serve on the council, which appointments must include at least one person from each of the following categories:

(I) Representatives from programmatically diverse communities, including:

(A) A representative from a school-based preschool provider;

(B) A representative from a private early childhood provider, who may be a head start program or in-home child care provider; and

(C) A representative who provides child care as a nonparental family member, friend, or neighbor;

(II) Representatives of county departments, as defined in section 26.5-4-103, in diverse geographic areas of the state who are knowledgeable of and responsible for implementing child protection programs and the Colorado child care assistance program and have expertise in fiscal matters for county departments. Notwithstanding any provision of this subsection (2)(b) to the contrary, the executive director shall appoint at least two persons from the category described in this subsection (2)(b)(II).

(III) A representative of a foundation, business, or early childhood advocacy organization;

(IV) A representative who is an expert in the funding for and rules and federal regulations concerning early childhood and family support programs and services, including the laws, rules, and regulations pertaining to children with disabilities;

(V) A representative of institutions of higher education; and

(VI) An early childhood health-care or mental health-care professional.

(c) At least eight of the members appointed to the council must be included in one or more of the following categories:

(I) Parents, families, or caregivers of children who are enrolled in a variety of school- and community-based preschool programs and public and private early childhood programs;

(II) Members of the early childhood workforce, including educators in school- and community-based programs; and

(III) Members of historically underserved and under-resourced communities.

(d) In appointing members of the council, the executive director shall ensure that the appointed members are from regions throughout the state, including urban, suburban, and rural areas, and, to the extent practicable, are diverse with regard to race, ethnicity, immigration status, age, sexual orientation, gender identity, culture, and language.

(e) Members of the council are appointed to serve four-year terms and may serve two consecutive terms; except that, of the members initially appointed to the council, the executive director shall appoint five members to serve two-year terms, five members to serve three-year terms, and five members to serve four-year terms. If a vacancy arises on the council, the executive director shall appoint a person to fill the vacancy for the remainder of the unexpired term.

(f) The executive director may create issue-specific subcommittees of the council that must include a member of the council and may include representatives from other state agencies, representatives of local and tribal agencies or other local leaders in early childhood and family support issues, and issue experts.

(g) There is created a county subcommittee of the rules advisory council to provide information and advice to the council concerning the development and implementation of early childhood and family support programs that impact county departments, as defined in section 26.5-4-103, including the Colorado child care assistance program. The subcommittee consists of representatives from up to twelve county departments, appointed by a statewide association of human services directors. The appointees must be representative of the diversity of counties in the state, including large and small and urban and rural counties. In addition to providing information and advice to the council, the county subcommittee, to promote coordination and alignment of programs and services, shall provide information and advice to the policy advisory committee that advises the department of human services.

(h) (I) The council shall meet as often as requested by the executive director. Except as otherwise provided in subsection (2)(h)(II) of this section, a member of the council and a non-council member who serves on a subcommittee may receive the same per diem compensation for attendance at council or subcommittee meetings as is provided for members of boards and commissions pursuant to section 12-20-103 (6) and reimbursement for any expenses necessary to support the member's participation at a council or subcommittee meeting, including any required dependent or attendant care and, if the member resides more than fifty miles from the location of the council or subcommittee meeting, expenses incurred in traveling to and from the meeting, including any required dependent or attendant travel, food, and lodging.

(II) A member of the council or of a subcommittee shall not receive reimbursement for expenses or per diem compensation if the member's employer compensates the member for time spent serving on the council or the subcommittee.

(i) In reviewing and making recommendations concerning rules and in preparing other recommendations for the executive director, the council shall strive to develop recommendations that are detailed and measurable and consider the impacts on children, parents, families, providers, school districts, counties, and early childhood councils. The rules advisory council must approve recommendations by a majority vote and provide those recommendations to the executive director in writing. Members of the council voting in the minority may submit a written explanation of their opposition to the recommendations to the executive director.

(j) Before promulgating a rule, the executive director shall solicit feedback from and consider the recommendations of the council. If the executive director decides not to follow the recommendations of the council with regard to a rule, the executive director shall provide a written explanation of the rationale for the decision.

(k) The council is a state public body for purposes of the open meetings law specified in section 24-6-402 and is subject to the requirements of the "Colorado Open Records Act", part 2 of article 72 of title 24.

(l) This subsection (2) is repealed, effective July 1, 2032. Before the repeal, this subsection (2) is scheduled for review in accordance with section 2-3-1203.

Source: L. 2022: Entire section added, (HB 22-1295), ch. 123, p. 567, § 2, effective April 25. L. 2024: (1)(c) amended, (HB 24-1332), ch. 253, p. 1672, § 2, effective August 7. L. 2026: (2)(f) amended, (HB 26-1259), ch. 119, p. 503, § 1, effective May 5; (2)(i) amended, (SB 26-019), ch. 104, p. 423, § 11, effective May 5.

Colo. Rev. Stat. § 26.5-1-109

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 2 (2) and its amici 1 (1).

Department functions - operating principles (current text, 2026 edition; retrieved 2026-10-25)

(1) The department shall execute the following functions and operate programs and provide services associated with those functions as described in this title 26.5 and authorized by federal law:

(a) Promote child physical, oral, and behavioral health and use multigenerational and culturally and linguistically appropriate strategies to support child and parent outcomes that improve overall family well-being;

(b) Identify and address child and family trauma and support a trauma-informed, as defined in section 19-1-103, approach to early childhood;

(c) Provide support to families for healthy early childhood development;

(d) Promote access to quality early childhood care and education, including monitoring and increasing the capacity of quality early childhood care and education programs to support the availability of said programs for children throughout the state;

(e) Promote and support access to a coherent and aligned system of preparation and ongoing professional development opportunities for persons who provide early childhood and family support programs and services;

(f) Support state and local infrastructure for providing early childhood and family support programs and services, including early childhood care and education and physical, oral, and behavioral health care for children;

(g) Collaborate formally and informally with all state departments and local and tribal agencies that administer or otherwise provide support for early childhood and family support programs and services to ensure effective and efficient administration of said programs and services, including combining and coordinating the funding for said programs and services that are under the jurisdiction of the department to the fullest extent allowed under state and federal laws and regulations, and to ensure consistency in the experience of families who benefit from these programs and services and promote whole-child and whole-family well-being;

(h) Collaborate with other state departments and local and tribal agencies to set, and assess achievement of, statewide goals for quality, availability, capacity, and delivery of early childhood and family support programs and services and statewide goals for support and development of the workforce that provides early childhood and family support programs and services, including physical, oral, and behavioral health care for children;

(i) Collaborate with other state departments, local and tribal agencies, and early childhood councils to safely collect and share data, eliminating duplication of data collection when possible, while ensuring privacy and security for children and families, to enable the department to gauge the statewide quality, availability, capacity, and delivery of early childhood and family support programs and services;

(j) Evaluate the quality of early childhood and family support programs and services throughout the state using identified outcome metrics and provide support for early childhood providers and the workforce that provides early childhood and family support programs and services, including physical, oral, and behavioral health care for children;

(k) Collaborate with other state departments to promote the overall effectiveness of early childhood systems in the state by jointly identifying metrics that all departments use to monitor early childhood outcomes throughout the state, which must include outcomes in health, including physical, social-emotional, and dental; learning; and overall well-being;

(l) Support innovation in methods and strategies for accessing and providing early childhood and family support programs and services through research and review of programs and systems implemented within Colorado and in other states and countries; and

(m) In coordination with the department of human services and county departments, as defined in section 26.5-4-103, integrate outreach for early childhood and family support programs and services into efforts to provide families access to a wide range of services and resources, including access to food, cash assistance, and health care.

(2) In executing the functions described in subsection (1) of this section and implementing the programs and providing the services related to those functions, the department shall ensure to the greatest extent possible that:

(a) Early childhood and family support programs and services are:

(I) Implemented and provided across functions rather than being siloed as individual programs, which includes providing a seamless application experience for families and providers as described in section 26.5-1-110, increasing the efficiency of programs and services, and reducing duplication and administrative burden;

(II) Designed with a focus on the user experience of families, children, providers, and other end-users and designed to serve the whole family and the whole child;

(III) Available statewide and provided on an equitable, affordable, and culturally and linguistically responsive basis to all families who choose to use the programs and services;

(IV) With regard to early childhood programs and services, provided through child care providers; a mixed delivery system of school- and community-based preschool program providers; and a diverse workforce of licensed, voluntarily credentialed, and informal childhood caregivers and educators; and

(V) With regard to family support programs and services, provided through a mixed delivery system of public and private providers and a diverse workforce; and

(b) Funding for programs and services is combined and coordinated at the state level, when possible and to the fullest extent allowed under state and federal laws and regulations, before distribution to local and tribal agencies, families, and providers; and

(c) Resources are used with maximum efficiency to ensure that parents, children, and early childhood program and service providers are prioritized and receive the greatest possible level of investment and financial support with the lowest possible level of administrative burden; and

(d) The department works in partnership with families, public and private providers, and local early childhood communities.

(3) To assist the department in executing the functions and meeting the requirements specified in this section, the executive director shall ensure that there is at least one staff member among the upper management levels of the department whose job responsibilities include ensuring that staff support and communicate, interact, and partner with the counties and the county departments, as defined in section 26.5-4-103.

(4) In executing the functions described in subsection (1) of this section, the department shall collaborate with the departments of education, higher education, human services, public health and environment, and health care policy and financing to strengthen coordination and promote alignment among education, higher education, human services, health care, and mental health care in serving and supporting children, families, providers, and the early childhood workforce.

Source: L. 2022: Entire section added, (HB 22-1295), ch. 123, p. 574, § 2, effective April 25. L. 2026: (1)(i) amended, (SB 26-019), ch. 104, p. 423, § 12, effective May 5.

Colo. Rev. Stat. § 26.5-4-103

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Definitions (current text, 2026 edition; retrieved 2026-10-25)

As used in this part 1, unless the context otherwise requires:

(1) "Applicant" means an individual or a family who submits an application to the Colorado child care assistance program.

(1.5) "Child care assistance program" or "CCCAP" means the public assistance program for child care known as the Colorado child care assistance program established in this part 1.

(2) "Colorado universal preschool program" means the state preschool program established in part 2 of this article 4.

(3) "County department" means the county or district department of human or social services, or, for functions and responsibilities administered pursuant to the centralized member integrity service, established in section 25.5-1-210, a county contracted to administer the centralized member integrity service pursuant to section 25.5-1-210.

(3.5) "Customer service" means activities that provide one-on-one support for families in submitting applications and navigating services, and providing access to transparent and easy-to-understand consumer education resources for the Colorado child care assistance program.

(4) "Early care and education provider" means a school district or provider that is licensed pursuant to part 3 of article 5 of this title 26.5 or that participates in the Colorado preschool program pursuant to article 28 of title 22, as it existed prior to July 1, 2023, or the Colorado universal preschool program pursuant to part 2 of this article 4.

(5) "Enrollment contract" means a contractual agreement directly with a provider or network that assures a specified number of child care service enrollments will be made available to serve a specified number of children who qualify for child care assistance. Enrollment contracts are an allowable use of federal child care funds.

(6) "Head start program" means a program operated by a local public or private nonprofit agency designated by the federal department of health and human services to operate a head start program pursuant to the provisions of Title V of the federal "Economic Opportunity Act of 1964", as amended.

(7) "High-quality early childhood program" means a program that is operated by a provider with a fiscal agreement through CCCAP and that is in the top three levels of the state's quality rating and improvement system, is accredited by a department-approved accrediting body, or is an early head start or head start program that meets federal standards.

(8) "Participant" means a participant, as defined in section 26-2-703 (15), in the Colorado works program.

(9) "Provider" means a child care provider licensed pursuant to part 3 of article 5 of this title 26.5 that has an agreement or enrollment contract to participate in the child care assistance program.

(10) "Recipient" means an individual or a family who is receiving or has received benefits from the Colorado child care assistance program pursuant to the provisions of this part 1.

(11) "Regular provider reimbursement rate" means the base rate paid for child care and excludes any additional payment for additional fees that are included in the reimbursement paid to providers.

(12) "Works program" means the Colorado works program established pursuant to part 7 of article 2 of title 26.

Source: L. 2022: Entire article added with relocations, (HB 22-1295), ch. 123, p. 660, § 3, effective July 1. L. 2024: (1) amended and (1.5) and (3.5) added, (HB 24-1223), ch. 390, p. 2696, § 3, effective June 4. L. 2026: (3) amended, (HB 26-1429), ch. 374, p. 2317,

§ 18, effective June 4.

Colo. Rev. Stat. § 26-7-102

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Definitions (current text, 2026 edition; retrieved 2026-10-29)

As used in this article 7, unless the context otherwise requires:

(1) "Agreement" means an adoption assistance agreement negotiated and entered into pursuant to section 26-7-107.

(2) "Anticipated needs" means those needs that are reasonably foreseeable and as defined in the eligibility criteria listed in subsection (8) of this section that are known at the time of finalization of the adoption. Consideration of these anticipated needs and services are part of the good-faith negotiation of the amount of the adoption assistance payment and services and must comply with the funding requirements in section 26-7-103.

(3) "Benefit" means any subsidy or service available to adoptive families pursuant to this article 7, including monthly subsidy payments. These payments must not include payments for services that are reasonably accessible and can be funded through other public or private sources, including but not limited to social security and medicaid, as required in 20 U.S.C. sec. 1440.

(4) "Child placement agency" means any entity that, pursuant to the requirements in section 26-6-903, may place, facilitate placement, or arrange for the placement of an eligible child or youth for the purpose of adoption, treatment, or foster care. Only eligible children or youth who are placed by a county department or through a child placement agency that is designated as a nonprofit entity and licensed by the state department are eligible to receive benefits pursuant to this article 7.

(5) "Circumstances of the family" means the capacity of the family, including but not limited to financial capacity, to meet the anticipated needs of the eligible child or youth.

(6) "County department" means a county department of human or social services.

(7) "Dissolved adoption" means an adoption in which the legal relationship between the adoptive parents and adoptive child or youth is severed, either voluntarily or involuntarily, after the adoption is legally finalized. This may result in the child or youth's return to, or entry into, foster care.

(8) "Eligible child or youth" means a child or youth who meets the medical and disability requirements for federal supplemental security income or is a child or youth with one or more specific factors or conditions that would make it reasonable to conclude that a child or youth cannot be adopted without providing benefits to assist in the adoption. Such factors may include but are not limited to:

(a) A physical disability, such as hearing, vision, or physical impairment; neurological conditions; disfiguring defects; metabolic disorder; a child or youth infected with the human immunodeficiency virus; or heart defects that have been documented by a licensed medical professional;

(b) A mental, intellectual, or developmental disability that has been documented by a licensed medical professional, such as a perceptual, speech, or language disability or any disability that results in educational delays or significant learning difficulties;

(c) An emotional handicap, such as post-traumatic stress disorder, bipolar disorder, or other mental health disorder that has been documented by a licensed mental health professional;

(d) Hereditary factors that have been documented by a licensed medical provider or mental health professional;

(e) An educational disability that qualifies for section 504 of the federal "Rehabilitation Act of 1973", as amended, 29 U.S.C. sec. 701 et seq., or special education services;

(f) Factors that place a child or youth in a "high-risk" category, such as being drug- or alcohol-exposed in utero;

(g) Other conditions that act as a barrier to the child's or youth's adoption, including but not limited to a healthy child or youth over seven years of age or a sibling group that should remain intact and medical conditions that are likely to require further treatment; or

(h) Ethnic background or membership in a minority group whose children or youth might be difficult to place.

(9) "Program" means the adoption assistance program created in section 26-7-103.

(10) "Services" means any benefits other than monthly subsidy payments that a family may receive as part of an agreement.

(11) "State department" means the state department of human services.

(12) "Subsidy" refers exclusively to monthly cash payments that are provided to eligible families as part of an agreement.

(13) "Title IV-E" refers to federal funds administered through the social security act to support states' programs, including but not limited to foster care, adoption assistance, and guardianship assistance.

Source: L. 2019: Entire article R&RE, (SB 19-178), ch. 180, p. 2041, § 1, effective August 2. L. 2022: (4) amended, (HB 22-1295), ch. 123, p. 859, § 104, effective July 1.

Me. Stat. tit. 27, § 505

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Director (current text, retrieved 2026-10-27)

1. Appointment. The Maine Historic Preservation Commission may appoint a director who must be qualified by special training or experience in the field of historic preservation and who shall also serve as the State Historic Preservation Officer upon appointment by the Governor and is subject to removal for cause under the Civil Service Law. The commission shall fix compensation for the director within salary range 88.

[PL 1991, c. 528, Pt. E, §33 (AMD); PL 1991, c. 528, Pt. RRR (AFF); PL 1991, c. 591, Pt. E, §33 (AMD).]

2. Duties.

A. The Maine Historic Preservation Commission is under the management and supervision of a director who may adopt rules pursuant to the Maine Administrative Procedure Act to implement this section.

[PL 1991, c. 824, Pt. A, §56 (RPR).]

B. The director may employ, subject to the personnel laws, such assistants as the business of the office may require.

[PL 1979, c. 21 (NEW).]

C. The director shall, subject to the approval of the commission, accept gifts, devises, bequests and endowments for purposes, consistent with the purposes of this chapter. Any funds given as an endowment shall be invested by the Treasurer of State according to the laws governing investment of trust funds. All gifts, devises, bequests and proceeds of endowment funds shall be used solely to carry out the purposes for which they were made.

[PL 1979, c. 21 (NEW).]

D. The director may administer a program of state financed grants for the preservation and restoration of historic properties consistent with the following conditions.

(1) An applicant for a grant must be either a governmental or a nonprofit organization.

(2) The historic property that is the subject of the grant application must be listed on the National Register of Historic Places as authorized by the National Historic Preservation Act of 1966 or have been nominated to the register by the commission.

(3) An applicant must provide assurance that public access to the historic property will be reasonably provided with respect to admission fees, visitation hours and physical accessibility, while maintaining the historic integrity of the historic property.

(4) Applications must address, to the satisfaction of the commission, the applicant's organizational and financial capacity to provide long-term maintenance of the historic property that is the subject of the application.

(5) Grants may not exceed 50% of the total expense of the proposed project, except that grants to the State may be 100% of the total expense of the proposed project.

(6) All grants are subject to final approval by the commission.

(7) Prior to final approval, the commission may require the applicant to execute a covenant to secure continued public access to and maintenance of the historic integrity of the historic property.

With respect to the quality of work to be performed through this grant program, the commission and the director must be guided by the United States Secretary of the Interior's Standards for the Treatment of Historic Properties.

[PL 2023, c. 9, §1 (AMD).]

[PL 2023, c. 9, §1 (AMD).]

SECTION HISTORY PL 1971, c. 536, §1 (NEW). PL 1975, c. 771, §296 (AMD). PL 1979, c. 21 (RPR). PL 1983, c. 585, §2 (AMD). PL 1985, c. 785, §B125 (AMD). PL 1989, c. 647, §2 (AMD). PL 1989, c. 700, §§B39,40 (AMD). PL 1991, c. 528, §E33 (AMD). PL 1991, c. 528, §RRR (AFF). PL 1991, c. 591, §E33 (AMD). PL 1991, c. 824, §A56 (AMD). PL 2023, c. 9, §1 (AMD).

N.C. Gen. Stat. § 108A-29

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Priority for employment services (current text, retrieved 2026-10-29)

(a) Repealed by Session Laws 2009-489, s. 12, effective August 26, 2009.

(b) Individuals seeking to apply or reapply for Work First Program assistance and who are not exempt from work requirements shall register with the Division of Employment Security for employment services. The point of registration shall be at an office of the Division in the county in which the individual resides or at another location designated in a Memorandum of Understanding between the Division and the local department of social services.

(c) Individuals who are not otherwise exempt shall present verification of registration for Work First Program assistance. Unless exempt, the individual shall not be approved for Work First Program assistance until verification is received. Child-only cases are exempt from this requirement.

(d) Once an individual has registered as required in subsection (c) of this section and upon verification of the registration by the agency or contractor providing the Work First Program assistance, the individual's eligibility for Work First Program assistance may be evaluated and the application completed. Continued receipt of Work First Program benefits

is contingent upon successful participation in employment services in the Mutual Responsibility Agreement, and lack of cooperation and participation in employment services may result in the termination of benefits to the individual.

(e) Repealed by Session Laws 2009-489, s. 12, effective August 26, 2009.

(f) Each county department of social services shall enter into a cooperative agreement with the local Division to operate the Job Search component on behalf of Work First Program registrants. The cooperative agreement shall include a provision for payment to the Division by the county department of social services for the cost of providing those services, not otherwise available to all clients of the Division, described in this subsection as the same are reflected as a component of the County Plan payable from fund allocations in the county block grant. The county department of social services may also enter into a cooperative agreement with the community college system or any other entity to operate the Job Preparedness component. This cooperative agreement shall include a provision for payment to that entity by the county department of social services for the cost of providing those services, not otherwise available to all clients of the Division, described in this subsection as the same are reflected as a component of the County Plan payable from fund allocations in the county block grant.

(g) The Division shall further assist registrants through job search, job placement, or referral to community service, if contracted to do so.

(h) An individual placed in the Job Search component of the Division or other agency providing Job Search services shall look for work and shall accept any suitable employment. If contracted, the Division shall refer individuals to current job openings and shall make job development contacts for individuals. Individuals so referred shall be required to keep a record of their job search activities on a job search record form provided by the Division, and the Division will monitor these activities. A "job search record" means a written list of dates, times, places, addresses, telephone numbers, names, and circumstances of job interviews. The Job Search component shall include at least one weekly contact with the Division. The Division shall adopt rules to accomplish this subsection.

(i) The Division of Employment Security shall notify all employers in the State of the "Exclusive No-Fault" Referral Service available through the Division of Employment Security to employers who hire personnel through Job Service referrals.

(j) All individuals referred to jobs through the Division of Employment Security shall be instructed in the procedures for applying for the Federal Earned Income Credit (FEIC). All individuals referred to jobs through the Division who qualify for the FEIC shall apply for the FEIC by filing a W-5 form with their employers.

(k) The FEIC shall not be counted as income when eligibility is determined for Work First Program assistance, Medicaid, food and nutrition services, public housing, or Supplemental Security Income.

(l) The Division of Employment Security shall work with the Department of Labor to develop a relationship with these private employment agencies to utilize their services and make referrals of individuals registered with the Division of Employment Security.

(m) An individual who has not found a job within 12 weeks of being placed in the Job Search component of the Program may also be placed in the Community Service component at the county's option.

(n) If after evaluation of an individual the Division of Employment Security believes it necessary, the Division or the county department of social services also may refer an individual to a Job Preparedness provider. The local community college should include adult high school equivalency diploma, Adult Basic Education, or Human Resources Development programs that are already in existence as a part of the Job Preparedness component. Additionally, the Division or the county department of social services may refer an individual to a literacy council. Through a Memorandum of Understanding between the Division of Employment Security, the local department of social services, and other contracted entities, a system shall be established to monitor an individual's progress through close communications with the agencies assisting the individual. The Division of Employment Security or Job Preparedness provider shall adopt rules to accomplish this subsection.

(o) The Job Preparedness component of the Program shall last a maximum of 12 weeks unless the recipient is registered and is satisfactorily progressing in a program that requires additional time to complete. Every reasonable effort shall be made to place the recipient in part-time employment or part-time community service if the time required exceeds the 12-week maximum. The county department of social services may contract with service providers to provide the services described in this section and shall monitor the provision of the services by the service providers. Registrants may participate in more than one component at a time.

(p) The Division shall expand its Labor Market Information System. The expansion shall at least include: statistical information on unemployment rates and other labor trends by county; and publications dealing with licensing requirements, economic development, and career projections, and information technology systems which can be used to track participants through the employment and training process.

(q) , (r) Repealed by Session Laws 2009-489, s. 12, effective August 26, 2009.

(s) Members of families with dependent children and with aggregate family income at or below the level required for eligibility for Work First Family Assistance, regardless of whether or not they have applied for such assistance, shall be given priority in obtaining employment services including training and community service provided by or through State

agencies or counties or with funds which are allocated to the State of North Carolina directly or indirectly through prime sponsors or otherwise for the purpose of employment of unemployed persons. (1961, c. 998; 1963, c. 1061; 1965, c. 939, s. 2; 1969, c. 546, s. 1; 1971, c. 283; 1973, c. 476, s. 138; 1977, c. 362; 1981, c. 275, s. 1; 1981 (Reg. Sess., 1982), c. 1282, s. 19; 1989 (Reg. Sess., 1990), c. 966, s. 1; 1997-443, s. 12.7(a); 1998-212, s. 12.27A(l), (m); 1999-340, s. 9; 2001-424, s. 21.13(d), (e); 2007-97, s. 8; 2009-489, s. 12; 2011-401, s. 3.12; 2014-115, s. 28(d).)

Ohio Rev. Code Ann. § 3113.36

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Shelter requirements for qualifying for funds (current text, retrieved 2026-10-29)
Effective: January 18, 1980
Latest Legislation: Senate Bill 46 - 113th General Assembly
(A) To qualify for funds under section 3113.35 of the Revised Code, a shelter for victims of domestic violence shall meet all of the following requirements:

(1) Be incorporated in this state as a nonprofit corporation;

(2) Have trustees who represent the racial, ethnic, and socioeconomic diversity of the community to be served, including at least one person who is or has been a victim of domestic violence;

(3) Receive at least twenty-five per cent of its funds from sources other than funds distributed pursuant to section 3113.35 of the Revised Code. These other sources may be public or private, and may include funds distributed pursuant to section 3113.37 of the Revised Code, and contributions of goods or services, including materials, commodities, transportation, office space, or other types of facilities or personal services.

(4) Provide residential service or facilities for children when accompanied by a parent, guardian, or custodian who is a victim of domestic violence and who is receiving temporary residential service at the shelter;

(5) Require persons employed by or volunteering services to the shelter to maintain the confidentiality of any information that would identify individuals served by the shelter.

(B) A shelter for victims of domestic violence does not qualify for funds if it discriminates in its admissions or provision of services on the basis of race, religion, color, age, marital status, national origin, or ancestry. A shelter does not qualify for funds in the second half of any year if its application projects the provision of residential service and such service has not been provided in the first half of that year; such a shelter does not qualify for funds in the following year.

Tenn. Code Ann. § 37-2-414

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Source error: LexisNexis-only publication; its terms forbid automated access (see DATASOURCES.md)

Wis. Stat. § 118.31

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Corporal punishment (current text, retrieved 2026-10-29)
(1) In this section, "corporal punishment" means the intentional infliction of physical pain which is used as a means of discipline. "Corporal punishment" includes, but is not limited to, paddling, slapping or prolonged maintenance of physically painful positions, when used as a means of discipline. "Corporal punishment" does not include actions consistent with an individualized education program developed under s. 115.787 or reasonable physical activities associated with athletic training.
(2) Except as provided in sub. (3), no official, employee or agent of a school board may subject a pupil enrolled in the school district to corporal punishment.
(3) Subsection (2) does not prohibit an official, employee or agent of a school board from:

(a) Using reasonable and necessary force to quell a disturbance or prevent an act that threatens physical injury to any person.

(b) Using reasonable and necessary force to obtain possession of a weapon or other dangerous object within a pupil's control.

(c) Using reasonable and necessary force for the purpose of self-defense or the defense of others under s. 939.48.

(d) Using reasonable and necessary force for the protection of property under s. 939.49.

(e) Using reasonable and necessary force to remove a disruptive pupil from a school premises or motor vehicle, as defined in s. 125.09 (2) (a) 1. and 4., or from school-sponsored activities.

(f) Using reasonable and necessary force to prevent a pupil from inflicting harm on himself or herself.

(g) Using reasonable and necessary force to protect the safety of others.

(h) Using incidental, minor or reasonable physical contact designed to maintain order and control.

(4) Each school board shall adopt a policy that allows any official, employee or agent of the school board to use reasonable and necessary force for the purposes of sub. (3) (a) to (h). In determining whether or not a person was acting within

the exceptions in sub. (3), deference shall be given to reasonable, good faith judgments made by an official, employee or agent of a school board.
(5) Except as provided in s. 939.61 (1), this section does not create a separate basis for civil liability of a school board or their officials, employees or agents for damages arising out of claims involving allegations of improper or unnecessary use of force by school employees against students.
(6) Nothing in this section shall prohibit, permit or otherwise affect any action taken by an official, employee or agent of a school board with regard to a person who is not a pupil enrolled in the school district.
(7) Nothing in this section abrogates or restricts any statutory or common law defense to prosecution for any crime.
History: 1987 a. 303; 1989 a. 26; 1991 a. 164; 1993 a. 334; 1997 a. 164; 1999 a. 127.

Amici only (no party cites it)

U.S. Const. amend. XIV

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Amendment XIV (H. Doc. 110-50)
§ 1 All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.
§ 2 Representatives shall be apportioned among the several States according to their respective numbers, counting the whole number of persons in each State, excluding Indians not taxed. But when the right to vote at any election for the choice of electors for President and Vice President of the United States, Representatives in Congress, the Executive and Judicial officers of a State, or the members of the Legislature thereof, is denied to any of the male inhabitants of such State, being twenty-one years of age, and citizens of the United States, or in any way abridged, except for participation in rebellion, or other crime, the basis of representation therein shall be reduced in the proportion which the number of such male citizens shall bear to the whole number of male citizens twenty-one years of age in such State.
§ 3 No person shall be a Senator or Representative in Congress, or elector of President and Vice President, or hold any office, civil or military, under the United States, or under any State, who, having previously taken an oath, as a member of Congress, or as an officer of the United States, or as a member of any State legislature, or as an executive or judicial officer of any State, to support the Constitution of the United States, shall have engaged in insurrection or rebellion against the same, or given aid or comfort to the enemies thereof. But Congress may by a vote of two-thirds of each House, remove such disability.
§ 4 The validity of the public debt of the United States, authorized by law, including debts incurred for payment of pensions and bounties for services in suppressing insurrection or rebellion, shall not be questioned. But neither the United States nor any State shall assume or pay any debt or obligation incurred in aid of insurrection or rebellion against the United States, or any claim for the loss or emancipation of any slave; but all such debts, obligations and claims shall be held illegal and void.
§ 5 The Congress shall have power to enforce, by appropriate legislation, the provisions of this article.

U.S. Const. art. I

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Article I (H. Doc. 110-50)
§ 1 All legislative Powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and House of Representatives.
§ 2 The House of Representatives shall be composed of Members chosen every second Year by the People of the several States, and the Electors in each State shall have the Qualifications requisite for Electors of the most numerous Branch of the State Legislature.
No Person shall be a Representative who shall not have attained to the Age of twenty five Years, and been seven Years a Citizen of the United States, and who shall not, when elected, be an Inhabitant of that State in which he shall be chosen.
Representatives and direct Taxes shall be apportioned among the several States which may be included within this Union, according to their respective Numbers, which shall be determined by adding to the whole Number of free Persons, including those bound to Service for a Term of Years, and excluding Indians not taxed, three fifths of all other Persons. The actual Enumeration shall be made within three Years after the first Meeting of the Congress of the United States, and within every subsequent Term of ten Years, in such Manner as they shall by Law direct. The Number of Representatives shall not exceed one for every thirty Thousand, but each State shall have at Least one Representative; and until such enumeration shall be made, the State of New Hampshire shall be entitled to chuse three, Massachusetts eight, Rhode

Island and Providence Plantations one, Connecticut five, New York six, New Jersey four, Pennsylvania eight, Delaware one, Maryland six, Virginia ten, North Carolina five, South Carolina five, and Georgia three.

When vacancies happen in the Representation from any State, the Executive Authority thereof shall issue Writs of Election to fill such Vacancies.

The House of Representatives shall chuse their Speaker and other Officers; and shall have the sole Power of Impeachment.

§ 3 The Senate of the United States shall be composed of two Senators from each State, chosen by the Legislature thereof for six Years; and each Senator shall have one Vote.

Immediately after they shall be assembled in Consequence of the first Election, they shall be divided as equally as may be into three Classes. The Seats of the Senators of the first Class shall be vacated at the Expiration of the second Year, of the second Class at the Expiration of the fourth Year, and of the third Class at the Expiration of the sixth Year, so that one third may be chosen every second Year; and if Vacancies happen by Resignation or otherwise, during the Recess of the Legislature of any State, the Executive thereof may make temporary Appointments until the next Meeting of the Legislature, which shall then fill such Vacancies.

No Person shall be a Senator who shall not have attained to the Age of thirty Years, and been nine Years a Citizen of the United States, and who shall not, when elected, be an Inhabitant of that State for which he shall be chosen.

The Vice President of the United States shall be President of the Senate, but shall have no Vote, unless they be equally divided.

The Senate shall chuse their other Officers, and also a President pro tempore, in the Absence of the Vice President, or when he shall exercise the Office of President of the United States.

The Senate shall have the sole Power to try all Impeachments. When sitting for that Purpose, they shall be on Oath or Affirmation. When the President of the United States is tried, the Chief Justice shall preside: And no Person shall be convicted without the Concurrence of two thirds of the Members present.

Judgment in Cases of Impeachment shall not extend further than to removal from Office, and disqualification to hold and enjoy any Office of honor, Trust or Profit under the United States: but the Party convicted shall nevertheless be liable and subject to Indictment, Trial, Judgment and Punishment, according to Law.

§ 4 The Times, Places and Manner of holding Elections for Senators and Representatives, shall be prescribed in each State by the Legislature thereof; but the Congress may at any time by Law make or alter such Regulations, except as to the Places of chusing Senators.

The Congress shall assemble at least once in every Year and such Meeting shall be on the first Monday in December, unless they shall by Law appoint a different Day.

§ 5 Each House shall be the Judge of the Elections, Returns and Qualifications of its own Members, and a Majority of each shall constitute a Quorum to do Business; but a smaller Number may adjourn from day to day, and may be authorized to compel the Attendance of absent Members, in such Manner, and under such Penalties as each House may provide.

Each House may determine the Rules of its Proceedings, punish its Members for disorderly Behavior, and, with the Concurrence of two thirds, expel a Member.

Each House shall keep a Journal of its Proceedings, and from time to time publish the same, excepting such Parts as may in their Judgment require Secrecy; and the Yeas and Nays of the Members of either House on any question shall, at the Desire of one fifth of those Present, be entered on the Journal.

Neither House, during the Session of Congress, shall, without the Consent of the other, adjourn for more than three days, nor to any other Place than that in which the two Houses shall be sitting.

§ 6 The Senators and Representatives shall receive a Compensation for their Services, to be ascertained by Law, and paid out of the Treasury of the United States. They shall in all Cases, except Treason, Felony and Breach of the Peace, be privileged from Arrest during their Attendance at the Session of their respective Houses, and in going to and returning from the same; and for any Speech or Debate in either House, they shall not be questioned in any other Place.

No Senator or Representative shall, during the Time for which he was elected, be appointed to any civil Office under the Authority of the United States, which shall have been created, or the Emoluments whereof shall have been encreased during such time; and no Person holding any Office under the United States, shall be a Member of either House during his Continuance in Office.

§ 7 All Bills for raising Revenue shall originate in the House of Representatives; but the Senate may propose or concur with Amendments as on other Bills.

Every Bill which shall have passed the House of Representatives and the Senate, shall, before it become a Law, be presented to the President of the United States; If he approve he shall sign it, but if not he shall return it, with his Objections to that House in which it shall have originated, who shall enter the Objections at large on their Journal, and proceed to reconsider it. If after such Reconsideration two thirds of that House shall agree to pass the Bill, it shall be sent, together with the Objections, to the other House, by which it shall likewise be reconsidered, and if approved by two thirds of that House, it shall become a Law. But in all such Cases the Votes of both Houses shall be determined by

Yeas and Nays, and the Names of the Persons voting for and against the Bill shall be entered on the Journal of each House respectively. If any Bill shall not be returned by the President within ten Days (Sundays excepted) after it shall have been presented to him, the Same shall be a Law, in like Manner as if he had signed it, unless the Congress by their Adjournment prevent its Return, in which Case it shall not be a Law.

Every Order, Resolution, or Vote to which the Concurrence of the Senate and House of Representatives may be necessary (except on a question of Adjournment) shall be presented to the President of the United States; and before the Same shall take Effect, shall be approved by him, or being disapproved by him, shall be repassed by two thirds of the Senate and House of Representatives, according to the Rules and Limitations prescribed in the Case of a Bill.

§ 8 The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States;

To borrow Money on the credit of the United States;

To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes;

To establish a uniform Rule of Naturalization, and uniform Laws on the subject of Bankruptcies throughout the United States;

To coin Money, regulate the Value thereof, and of foreign Coin, and fix the Standard of Weights and Measures;

To provide for the Punishment of counterfeiting the Securities and current Coin of the United States;

To establish Post Offices and post Roads;

To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries;

To constitute Tribunals inferior to the supreme Court;

To define and punish Piracies and Felonies committed on the high Seas, and Offences against the Law of Nations;

To declare War, grant Letters of Marque and Reprisal, and make Rules concerning Captures on Land and Water;

To raise and support Armies, but no Appropriation of Money to that Use shall be for a longer Term than two Years;

To provide and maintain a Navy;

To make Rules for the Government and Regulation of the land and naval Forces;

To provide for calling forth the Militia to execute the Laws of the Union, suppress Insurrections and repel Invasions;

To provide for organizing, arming, and disciplining, the Militia, and for governing such Part of them as may be employed in the Service of the United States, reserving to the States respectively, the Appointment of the Officers, and the Authority of training the Militia according to the discipline prescribed by Congress;

To exercise exclusive Legislation in all Cases whatsoever, over such District (not exceeding ten Miles square) as may, by Cession of particular States, and the Acceptance of Congress, become the Seat of the Government of the United States, and to exercise like Authority over all Places purchased by the Consent of the Legislature of the State in which the Same shall be, for the Erection of Forts, Magazines, Arsenals, dock-Yards, and other needful buildings;–And

To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

§ 9 The Migration or Importation of such Persons as any of the States now existing shall think proper to admit, shall not be prohibited by the Congress prior to the Year one thousand eight hundred and eight, but a Tax or duty may be imposed on such Importation, not exceeding ten dollars for each Person.

The Privilege of the Writ of Habeas Corpus shall not be suspended, unless when in Cases of Rebellion or Invasion the public Safety may require it.

No Bill of Attainder or ex post facto Law shall be passed.

No Capitation, or other direct, Tax shall be laid, unless in Proportion to the Census or Enumeration herein before directed to be taken.

No Tax or Duty shall be laid on Articles exported from any State.

No Preference shall be given by any Regulation of Commerce or Revenue to the Ports of one State over those of another: nor shall Vessels bound to, or from, one State, be obliged to enter, clear, or pay Duties in another.

No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law; and a regular Statement and Account of the Receipts and Expenditures of all public Money shall be published from time to time.

No Title of Nobility shall be granted by the United States: And no Person holding any Office of Profit or Trust under them, shall, without the Consent of the Congress, accept of any present, Emolument, Office, or Title, of any kind whatever, from any King, Prince, or foreign State.

§ 10 No State shall enter into any Treaty, Alliance, or Confederation; grant Letters of Marque and Reprisal; coin Money; emit Bills of Credit; make any Thing but gold and silver Coin a Tender in Payment of Debts; pass any Bill of Attainder, ex post facto Law, or Law impairing the Obligation of Contracts, or grant any Title of Nobility.

No State shall, without the Consent of the Congress, lay any Imposts or Duties on Imports or Exports, except what may be absolutely necessary for executing its inspection Laws: and the net Produce of all Duties and Imposts, laid by any

State on Imports or Exports, shall be for the Use of the Treasury of the United States; and all such Laws shall be subject to the Revision and Control of the Congress.

No State shall, without the Consent of Congress, lay any Duty of Tonnage, keep Troops, or Ships of War in time of Peace, enter into any Agreement or Compact with another State, or with a foreign Power, or engage in War, unless actually invaded, or in such imminent Danger as will not admit of delay.

5 U.S.C. § 2108

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Veteran; disabled veteran; preference eligible

(1) "veteran" means an individual who—

(A) served on active duty in the armed forces during a war, in a campaign or expedition for which a campaign badge has been authorized, or during the period beginning April 28, 1952, and ending July 1, 1955;

(B) served on active duty as defined by section 101(21) of title 38 at any time in the armed forces for a period of more than 180 consecutive days any part of which occurred after January 31, 1955, and before October 15, 1976, not including service under section 12103(d) of title 10 pursuant to an enlistment in the Army National Guard or the Air National Guard or as a Reserve for service in the Army Reserve, Navy Reserve, Air Force Reserve, Marine Corps Reserve, or Coast Guard Reserve;

(C) served on active duty as defined by section 101(21) of title 38 in the armed forces during the period beginning on August 2, 1990, and ending on January 2, 1992; or

(D) served on active duty as defined by section 101(21) of title 38 at any time in the armed forces for a period of more than 180 consecutive days any part of which occurred during the period beginning on September 11, 2001, and ending on the date prescribed by Presidential proclamation or by law as the last date of Operation Iraqi Freedom;

and, except as provided under section 2108a, who has been discharged or released from active duty in the armed forces under honorable conditions;

(2) "disabled veteran" means an individual who has served on active duty in the armed forces, (except as provided under section 2108a) has been separated therefrom under honorable conditions, and has established the present existence of a service-connected disability or is receiving compensation, disability retirement benefits, or pension because of a public statute administered by the Department of Veterans Affairs or a military department;

(3) "preference eligible" means, except as provided in paragraph (4) of this section or section 2108a(c)—

(A) a veteran as defined by paragraph (1)(A) of this section;

(B) a veteran as defined by paragraph (1)(B), (C), or (D) of this section;

(C) a disabled veteran;

(D) the unmarried widow or widower of a veteran as defined by paragraph (1)(A) of this section;

(E) the wife or husband of a service-connected disabled veteran if the veteran has been unable to qualify for any appointment in the civil service or in the government of the District of Columbia;

(F) the parent of an individual who lost his or her life under honorable conditions while serving in the armed forces during a period named by paragraph (1)(A) of this section, if—

(i) the spouse of that parent is totally and permanently disabled; or

(ii) that parent, when preference is claimed, is unmarried or, if married, legally separated from his or her spouse;

(G) the parent of a service-connected permanently and totally disabled veteran, if—

(i) the spouse of that parent is totally and permanently disabled; or

(ii) that parent, when preference is claimed, is unmarried or, if married, legally separated from his or her spouse; and

(H) a veteran who was discharged or released from a period of active duty by reason of a sole survivorship discharge (as that term is defined in section 1174(i) of title 10);

but does not include applicants for, or members of, the Senior Executive Service, the Defense Intelligence Senior Executive Service, the Senior Cryptologic Executive Service, or the Federal Bureau of Investigation and Drug Enforcement Administration Senior Executive Service;

(4) except for the purposes of chapters 43 and 75 of this title, "preference eligible" does not include a retired member of the armed forces unless—

(A) the individual is a disabled veteran; or

(B) the individual retired below the rank of major or its equivalent; and

(5) "retired member of the armed forces" means a member or former member of the armed forces who is entitled, under statute, to retired, retirement, or retainer pay on account of service as a member.

7 U.S.C. § 2131

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Congressional statement of policy

(1) to insure that animals intended for use in research facilities or for exhibition purposes or for use as pets are provided humane care and treatment;

(2) to assure the humane treatment of animals during transportation in commerce; and

(3) to protect the owners of animals from the theft of their animals by preventing the sale or use of animals which have been stolen.

17 U.S.C. § 106

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Exclusive rights in copyrighted works

(1) to reproduce the copyrighted work in copies or phonorecords;

(2) to prepare derivative works based upon the copyrighted work;

(3) to distribute copies or phonorecords of the copyrighted work to the public by sale or other transfer of ownership, or by rental, lease, or lending;

(4) in the case of literary, musical, dramatic, and choreographic works, pantomimes, and motion pictures and other audiovisual works, to perform the copyrighted work publicly;

(5) in the case of literary, musical, dramatic, and choreographic works, pantomimes, and pictorial, graphic, or sculptural works, including the individual images of a motion picture or other audiovisual work, to display the copyrighted work publicly; and

(6) in the case of sound recordings, to perform the copyrighted work publicly by means of a digital audio transmission.

18 U.S.C. § 17

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Insanity defense

(a) *Affirmative Defense.*—. It is an affirmative defense to a prosecution under any Federal statute that, at the time of the commission of the acts constituting the offense, the defendant, as a result of a severe mental disease or defect, was unable to appreciate the nature and quality or the wrongfulness of his acts. Mental disease or defect does not otherwise constitute a defense.

(b) *Burden of Proof.*—. The defendant has the burden of proving the defense of insanity by clear and convincing evidence.

18 U.S.C. § 922

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Unlawful acts

(a) It shall be unlawful—

(1) for any person—

(A) except a licensed importer, licensed manufacturer, or licensed dealer, to engage in the business of importing, manufacturing, or dealing in firearms, or in the course of such business to ship, transport, or receive any firearm in interstate or foreign commerce; or

(B) except a licensed importer or licensed manufacturer, to engage in the business of importing or manufacturing ammunition, or in the course of such business, to ship, transport, or receive any ammunition in interstate or foreign commerce;

(2) for any importer, manufacturer, dealer, or collector licensed under the provisions of this chapter to ship or transport in interstate or foreign commerce any firearm to any person other than a licensed importer, licensed manufacturer, licensed dealer, or licensed collector, except that—

(A) this paragraph and subsection (b)(3) shall not be held to preclude a licensed importer, licensed manufacturer, licensed dealer, or licensed collector from returning a firearm or replacement firearm of the same kind and type to a person from whom it was received; and this paragraph shall not be held to preclude an individual from mailing a firearm owned in compliance with Federal, State, and local law to a licensed importer, licensed manufacturer, licensed dealer, or licensed collector;

(B) this paragraph shall not be held to preclude a licensed importer, licensed manufacturer, or licensed dealer from depositing a firearm for conveyance in the mails to any officer, employee, agent, or watchman who, pursuant to the provisions of section 1715 of this title, is eligible to receive through the mails pistols, revolvers, and other firearms capable of being concealed on the person, for use in connection with his official duty; and

(C) nothing in this paragraph shall be construed as applying in any manner in the District of Columbia, the Commonwealth of Puerto Rico, or any possession of the United States differently than it would apply if the District

of Columbia, the Commonwealth of Puerto Rico, or the possession were in fact a State of the United States;

(3) for any person, other than a licensed importer, licensed manufacturer, licensed dealer, or licensed collector to transport into or receive in the State where he resides (or if the person is a corporation or other business entity, the State where it maintains a place of business) any firearm purchased or otherwise obtained by such person outside that State, except that this paragraph (A) shall not preclude any person who lawfully acquires a firearm by bequest or intestate succession in a State other than his State of residence from transporting the firearm into or receiving it in that State, if it is lawful for such person to purchase or possess such firearm in that State, (B) shall not apply to the transportation or receipt of a firearm obtained in conformity with subsection (b)(3) of this section, and (C) shall not apply to the transportation of any firearm acquired in any State prior to the effective date of this chapter;

(4) for any person, other than a licensed importer, licensed manufacturer, licensed dealer, or licensed collector, to transport in interstate or foreign commerce any destructive device, machinegun (as defined in section 5845 of the Internal Revenue Code of 1986), short-barreled shotgun, or short-barreled rifle, except as specifically authorized by the Attorney General consistent with public safety and necessity;

(5) for any person (other than a licensed importer, licensed manufacturer, licensed dealer, or licensed collector) to transfer, sell, trade, give, transport, or deliver any firearm to any person (other than a licensed importer, licensed manufacturer, licensed dealer, or licensed collector) who the transferor knows or has reasonable cause to believe does not reside in (or if the person is a corporation or other business entity, does not maintain a place of business in) the State in which the transferor resides; except that this paragraph shall not apply to (A) the transfer, transportation, or delivery of a firearm made to carry out a bequest of a firearm to, or an acquisition by intestate succession of a firearm by, a person who is permitted to acquire or possess a firearm under the laws of the State of his residence, and (B) the loan or rental of a firearm to any person for temporary use for lawful sporting purposes;

(6) for any person in connection with the acquisition or attempted acquisition of any firearm or ammunition from a licensed importer, licensed manufacturer, licensed dealer, or licensed collector, knowingly to make any false or fictitious oral or written statement or to furnish or exhibit any false, fictitious, or misrepresented identification, intended or likely to deceive such importer, manufacturer, dealer, or collector with respect to any fact material to the lawfulness of the sale or other disposition of such firearm or ammunition under the provisions of this chapter;

(7) for any person to manufacture or import armor piercing ammunition, unless—

(A) the manufacture of such ammunition is for the use of the United States, any department or agency of the United States, any State, or any department, agency, or political subdivision of a State;

(B) the manufacture of such ammunition is for the purpose of exportation; or

(C) the manufacture or importation of such ammunition is for the purpose of testing or experimentation and has been authorized by the Attorney General;

(8) for any manufacturer or importer to sell or deliver armor piercing ammunition, unless such sale or delivery—

(A) is for the use of the United States, any department or agency of the United States, any State, or any department, agency, or political subdivision of a State;

(B) is for the purpose of exportation; or

(C) is for the purpose of testing or experimentation and has been authorized by the Attorney General;

(9) for any person, other than a licensed importer, licensed manufacturer, licensed dealer, or licensed collector, who does not reside in any State to receive any firearms unless such receipt is for lawful sporting purposes.

(b) It shall be unlawful for any licensed importer, licensed manufacturer, licensed dealer, or licensed collector to sell or deliver—

(1) any firearm or ammunition to any individual who the licensee knows or has reasonable cause to believe is less than eighteen years of age, and, if the firearm, or ammunition is other than a shotgun or rifle, or ammunition for a shotgun or rifle, to any individual who the licensee knows or has reasonable cause to believe is less than twenty-one years of age;

(2) any firearm to any person in any State where the purchase or possession by such person of such firearm would be in violation of any State law or any published ordinance applicable at the place of sale, delivery or other disposition, unless the licensee knows or has reasonable cause to believe that the purchase or possession would not be in violation of such State law or such published ordinance;

(3) any firearm to any person who the licensee knows or has reasonable cause to believe does not reside in (or if the person is a corporation or other business entity, does not maintain a place of business in) the State in which the licensee's place of business is located, except that this paragraph (A) shall not apply to the sale or delivery of any rifle or shotgun to a resident of a State other than a State in which the licensee's place of business is located if the transferee meets in person with the transferor to accomplish the transfer, and the sale, delivery, and receipt fully comply with the legal conditions of sale in both such States (and any licensed manufacturer, importer or dealer shall be presumed, for purposes of this subparagraph, in the absence of evidence to the contrary, to have had actual knowledge of the State laws and published ordinances of both States), and (B) shall not apply to the loan or rental of

a firearm to any person for temporary use for lawful sporting purposes;

(4) to any person any destructive device, machinegun (as defined in section 5845 of the Internal Revenue Code of 1986), short-barreled shotgun, or short-barreled rifle, except as specifically authorized by the Attorney General consistent with public safety and necessity; and

(5) any firearm or armor-piercing ammunition to any person unless the licensee notes in his records, required to be kept pursuant to section 923 of this chapter, the name, age, and place of residence of such person if the person is an individual, or the identity and principal and local places of business of such person if the person is a corporation or other business entity.

Paragraphs (1), (2), (3), and (4) of this subsection shall not apply to transactions between licensed importers, licensed manufacturers, licensed dealers, and licensed collectors. Paragraph (4) of this subsection shall not apply to a sale or delivery to any research organization designated by the Attorney General.

(c) In any case not otherwise prohibited by this chapter, a licensed importer, licensed manufacturer, or licensed dealer may sell a firearm to a person who does not appear in person at the licensee's business premises (other than another licensed importer, manufacturer, or dealer) only if—

(1) the transferee submits to the transferor a sworn statement in the following form:

"Subject to penalties provided by law, I swear that, in the case of any firearm other than a shotgun or a rifle, I am twenty-one years or more of age, or that, in the case of a shotgun or a rifle, I am eighteen years or more of age; that I am not prohibited by the provisions of chapter 44 of title 18, United States Code, from receiving a firearm in interstate or foreign commerce; and that my receipt of this firearm will not be in violation of any statute of the State and published ordinance applicable to the locality in which I reside. Further, the true title, name, and address of the principal law enforcement officer of the locality to which the firearm will be delivered are _____

_____

(2) the transferor has—

(A) prior to the shipment or delivery of the firearm, forwarded a copy of the sworn statement, together with a description of the firearm, in a form prescribed by the Attorney General, to the chief law enforcement officer of the transferee's place of residence, by—

(i) registered or certified mail (return receipt requested); or

(ii) verified electronic notification; and

(B)

(i) with respect to a delivery method described in subparagraph (A)(i)—

(I) received a return receipt evidencing delivery of the statement; or

(II) had the statement returned due to the refusal of the named addressee to accept such letter in accordance with United States Post Office Department regulations; or

(ii) with respect to a delivery method described in subparagraph (A)(ii), received a return receipt evidencing delivery of the statement; and

(3) the transferor has delayed shipment or delivery for a period of at least seven days following receipt of the notification of the acceptance or refusal of delivery of the statement.

A copy of the sworn statement and a copy of the notification to the local law enforcement officer, together with evidence of receipt or rejection of that notification shall be retained by the licensee as a part of the records required to be kept under section 923(g).

(d) It shall be unlawful for any person to sell or otherwise dispose of any firearm or ammunition to any person knowing or having reasonable cause to believe that such person, including as a juvenile—

(1) is under indictment for, or has been convicted in any court of, a crime punishable by imprisonment for a term exceeding one year;

(2) is a fugitive from justice;

(3) is an unlawful user of or addicted to any controlled substance (as defined in section 102 of the Controlled Substances Act (21 U.S.C. 802));

(4) has been adjudicated as a mental defective or has been committed to any mental institution at 16 years of age or older;

(5) who, being an alien—

(A) is illegally or unlawfully in the United States; or

(B) except as provided in subsection (y)(2), has been admitted to the United States under a nonimmigrant visa (as that term is defined in section 101(a)(26) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(26)));

(6) who has been discharged from the Armed Forces under dishonorable conditions;

(7) who, having been a citizen of the United States, has renounced his citizenship;

(8) is subject to a court order that restrains such person from harassing, stalking, or threatening an intimate partner of such person or child of such intimate partner or person, or engaging in other conduct that would place an intimate

partner in reasonable fear of bodily injury to the partner or child, except that this paragraph shall only apply to a court order that—

(A) was issued after a hearing of which such person received actual notice, and at which such person had the opportunity to participate; and

(B)

(i) includes a finding that such person represents a credible threat to the physical safety of such intimate partner or child; or

(ii) by its terms explicitly prohibits the use, attempted use, or threatened use of physical force against such intimate partner or child that would reasonably be expected to cause bodily injury;

(9) has been convicted in any court of a misdemeanor crime of domestic violence;

(10) intends to sell or otherwise dispose of the firearm or ammunition in furtherance of a felony, a Federal crime of terrorism, or a drug trafficking offense (as such terms are defined in section 932(a)); or

(11) intends to sell or otherwise dispose of the firearm or ammunition to a person described in any of paragraphs (1) through (10).

This subsection shall not apply with respect to the sale or disposition of a firearm or ammunition to a licensed importer, licensed manufacturer, licensed dealer, or licensed collector who pursuant to subsection (b) of section 925 is not precluded from dealing in firearms or ammunition, or to a person who has been granted relief from disabilities pursuant to subsection (c) of section 925.

(e) It shall be unlawful for any person knowingly to deliver or cause to be delivered to any common or contract carrier for transportation or shipment in interstate or foreign commerce, to persons other than licensed importers, licensed manufacturers, licensed dealers, or licensed collectors, any package or other container in which there is any firearm or ammunition without written notice to the carrier that such firearm or ammunition is being transported or shipped; except that any passenger who owns or legally possesses a firearm or ammunition being transported aboard any common or contract carrier for movement with the passenger in interstate or foreign commerce may deliver said firearm or ammunition into the custody of the pilot, captain, conductor or operator of such common or contract carrier for the duration of the trip without violating any of the provisions of this chapter. No common or contract carrier shall require or cause any label, tag, or other written notice to be placed on the outside of any package, luggage, or other container that such package, luggage, or other container contains a firearm.

(f)

(1) It shall be unlawful for any common or contract carrier to transport or deliver in interstate or foreign commerce any firearm or ammunition with knowledge or reasonable cause to believe that the shipment, transportation, or receipt thereof would be in violation of the provisions of this chapter.

(2) It shall be unlawful for any common or contract carrier to deliver in interstate or foreign commerce any firearm without obtaining written acknowledgement of receipt from the recipient of the package or other container in which there is a firearm.

(g) It shall be unlawful for any person—

(1) who has been convicted in any court of, a crime punishable by imprisonment for a term exceeding one year;

(2) who is a fugitive from justice;

(3) who is an unlawful user of or addicted to any controlled substance (as defined in section 102 of the Controlled Substances Act (21 U.S.C. 802));

(4) who has been adjudicated as a mental defective or who has been committed to a mental institution;

(5) who, being an alien—

(A) is illegally or unlawfully in the United States; or

(B) except as provided in subsection (y)(2), has been admitted to the United States under a nonimmigrant visa (as that term is defined in section 101(a)(26) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(26)));

(6) who has been discharged from the Armed Forces under dishonorable conditions;

(7) who, having been a citizen of the United States, has renounced his citizenship;

(8) who is subject to a court order that—

(A) was issued after a hearing of which such person received actual notice, and at which such person had an opportunity to participate;

(B) restrains such person from harassing, stalking, or threatening an intimate partner of such person or child of such intimate partner or person, or engaging in other conduct that would place an intimate partner in reasonable fear of bodily injury to the partner or child; and

(C)

(i) includes a finding that such person represents a credible threat to the physical safety of such intimate partner or child; or

(ii) by its terms explicitly prohibits the use, attempted use, or threatened use of physical force against such

intimate partner or child that would reasonably be expected to cause bodily injury; or

(9) who has been convicted in any court of a misdemeanor crime of domestic violence,

to ship or transport in interstate or foreign commerce, or possess in or affecting commerce, any firearm or ammunition; or to receive any firearm or ammunition which has been shipped or transported in interstate or foreign commerce.

(h) It shall be unlawful for any individual, who to that individual's knowledge and while being employed for any person described in any paragraph of subsection (g) of this section, in the course of such employment—

(1) to receive, possess, or transport any firearm or ammunition in or affecting interstate or foreign commerce; or

(2) to receive any firearm or ammunition which has been shipped or transported in interstate or foreign commerce.

(i) It shall be unlawful for any person to transport or ship in interstate or foreign commerce, any stolen firearm or stolen ammunition, knowing or having reasonable cause to believe that the firearm or ammunition was stolen.

(j) It shall be unlawful for any person to receive, possess, conceal, store, barter, sell, or dispose of any stolen firearm or stolen ammunition, or pledge or accept as security for a loan any stolen firearm or stolen ammunition, which is moving as, which is a part of, which constitutes, or which has been shipped or transported in, interstate or foreign commerce, either before or after it was stolen, knowing or having reasonable cause to believe that the firearm or ammunition was stolen.

(k) It shall be unlawful for any person knowingly to transport, ship, or receive, in interstate or foreign commerce, any firearm which has had the importer's or manufacturer's serial number removed, obliterated, or altered or to possess or receive any firearm which has had the importer's or manufacturer's serial number removed, obliterated, or altered and has, at any time, been shipped or transported in interstate or foreign commerce.

(l) Except as provided in section 925(d) of this chapter, it shall be unlawful for any person knowingly to import or bring into the United States or any possession thereof any firearm or ammunition; and it shall be unlawful for any person knowingly to receive any firearm or ammunition which has been imported or brought into the United States or any possession thereof in violation of the provisions of this chapter.

(m) It shall be unlawful for any licensed importer, licensed manufacturer, licensed dealer, or licensed collector knowingly to make any false entry in, to fail to make appropriate entry in, or to fail to properly maintain, any record which he is required to keep pursuant to section 923 of this chapter or regulations promulgated thereunder.

(n) It shall be unlawful for any person who is under indictment for a crime punishable by imprisonment for a term exceeding one year to ship or transport in interstate or foreign commerce any firearm or ammunition or receive any firearm or ammunition which has been shipped or transported in interstate or foreign commerce.

(o)

(1) Except as provided in paragraph (2), it shall be unlawful for any person to transfer or possess a machinegun.

(2) This subsection does not apply with respect to—

(A) a transfer to or by, or possession by or under the authority of, the United States or any department or agency thereof or a State, or a department, agency, or political subdivision thereof; or

(B) any lawful transfer or lawful possession of a machinegun that was lawfully possessed before the date this subsection takes effect.

(p)

(1) It shall be unlawful for any person to manufacture, import, sell, ship, deliver, possess, transfer, or receive any firearm—

(A) that, after removal of grips, stocks, and magazines, is not as detectable as the Security Exemplar, by walk-through metal detectors calibrated and operated to detect the Security Exemplar; or

(B) any major component of which, when subjected to inspection by the types of x-ray machines commonly used at airports, does not generate an image that accurately depicts the shape of the component. Barium sulfate or other compounds may be used in the fabrication of the component.

(2) For purposes of this subsection—

(A) the term "firearm" does not include the frame or receiver of any such weapon;

(B) the term "major component" means, with respect to a firearm, the barrel, the slide or cylinder, or the frame or receiver of the firearm; and

(C) the term "Security Exemplar" means an object, to be fabricated at the direction of the Attorney General, that is—

(i) constructed of, during the 12-month period beginning on the date of the enactment of this subsection, 3.7 ounces of material type 17–4 PH stainless steel in a shape resembling a handgun; and

(ii) suitable for testing and calibrating metal detectors:

(3) Under such rules and regulations as the Attorney General shall prescribe, this subsection shall not apply to the manufacture, possession, transfer, receipt, shipment, or delivery of a firearm by a licensed manufacturer or any person acting pursuant to a contract with a licensed manufacturer, for the purpose of examining and testing such firearm to determine whether paragraph (1) applies to such firearm. The Attorney General shall ensure that rules

and regulations adopted pursuant to this paragraph do not impair the manufacture of prototype firearms or the development of new technology.

(4) The Attorney General shall permit the conditional importation of a firearm by a licensed importer or licensed manufacturer, for examination and testing to determine whether or not the unconditional importation of such firearm would violate this subsection.

(5) This subsection shall not apply to any firearm which—

(A) has been certified by the Secretary of Defense or the Director of Central Intelligence, after consultation with the Attorney General and the Administrator of the Federal Aviation Administration, as necessary for military or intelligence applications; and

(B) is manufactured for and sold exclusively to military or intelligence agencies of the United States.

(6) This subsection shall not apply with respect to any firearm manufactured in, imported into, or possessed in the United States before the date of the enactment of the Undetectable Firearms Act of 1988.

(q)

(1) The Congress finds and declares that—

(A) crime, particularly crime involving drugs and guns, is a pervasive, nationwide problem;

(B) crime at the local level is exacerbated by the interstate movement of drugs, guns, and criminal gangs;

(C) firearms and ammunition move easily in interstate commerce and have been found in increasing numbers in and around schools, as documented in numerous hearings in both the Committee on the Judiciary the House of Representatives and the Committee on the Judiciary of the Senate;

(D) in fact, even before the sale of a firearm, the gun, its component parts, ammunition, and the raw materials from which they are made have considerably moved in interstate commerce;

(E) while criminals freely move from State to State, ordinary citizens and foreign visitors may fear to travel to or through certain parts of the country due to concern about violent crime and gun violence, and parents may decline to send their children to school for the same reason;

(F) the occurrence of violent crime in school zones has resulted in a decline in the quality of education in our country;

(G) this decline in the quality of education has an adverse impact on interstate commerce and the foreign commerce of the United States;

(H) States, localities, and school systems find it almost impossible to handle gun-related crime by themselves—even States, localities, and school systems that have made strong efforts to prevent, detect, and punish gun-related crime find their efforts unavailing due in part to the failure or inability of other States or localities to take strong measures; and

(I) the Congress has the power, under the interstate commerce clause and other provisions of the Constitution, to enact measures to ensure the integrity and safety of the Nation's schools by enactment of this subsection.

(2)

(A) It shall be unlawful for any individual knowingly to possess a firearm that has moved in or that otherwise affects interstate or foreign commerce at a place that the individual knows, or has reasonable cause to believe, is a school zone.

(B) Subparagraph (A) does not apply to the possession of a firearm—

(i) on private property not part of school grounds;

(ii) if the individual possessing the firearm is licensed to do so by the State in which the school zone is located or a political subdivision of the State, and the law of the State or political subdivision requires that, before an individual obtains such a license, the law enforcement authorities of the State or political subdivision verify that the individual is qualified under law to receive the license;

(iii) that is—

(I) not loaded; and

(II) in a locked container, or a locked firearms rack that is on a motor vehicle;

(iv) by an individual for use in a program approved by a school in the school zone;

(v) by an individual in accordance with a contract entered into between a school in the school zone and the individual or an employer of the individual;

(vi) by a law enforcement officer acting in his or her official capacity; or

(vii) that is unloaded and is possessed by an individual while traversing school premises for the purpose of gaining access to public or private lands open to hunting, if the entry on school premises is authorized by school authorities.

(3)

(A) Except as provided in subparagraph (B), it shall be unlawful for any person, knowingly or with reckless disregard for the safety of another, to discharge or attempt to discharge a firearm that has moved in or that otherwise affects

interstate or foreign commerce at a place that the person knows is a school zone.

(B) Subparagraph (A) does not apply to the discharge of a firearm—

(i) on private property not part of school grounds;

(ii) as part of a program approved by a school in the school zone, by an individual who is participating in the program;

(iii) by an individual in accordance with a contract entered into between a school in a school zone and the individual or an employer of the individual; or

(iv) by a law enforcement officer acting in his or her official capacity.

(4) Nothing in this subsection shall be construed as preempting or preventing a State or local government from enacting a statute establishing gun free school zones as provided in this subsection.

(r) It shall be unlawful for any person to assemble from imported parts any semiautomatic rifle or any shotgun which is identical to any rifle or shotgun prohibited from importation under section 925(d)(3) of this chapter as not being particularly suitable for or readily adaptable to sporting purposes except that this subsection shall not apply to—

(1) the assembly of any such rifle or shotgun for sale or distribution by a licensed manufacturer to the United States or any department or agency thereof or to any State or any department, agency, or political subdivision thereof; or

(2) the assembly of any such rifle or shotgun for the purposes of testing or experimentation authorized by the Attorney General.

(s)

(1) Beginning on the date that is 90 days after the date of enactment of this subsection and ending on the day before the date that is 60 months after such date of enactment, it shall be unlawful for any licensed importer, licensed manufacturer, or licensed dealer to sell, deliver, or transfer a handgun (other than the return of a handgun to the person from whom it was received) to an individual who is not licensed under section 923, unless—

(A) after the most recent proposal of such transfer by the transferee—

(i) the transferor has—

(I) received from the transferee a statement of the transferee containing the information described in paragraph (3);

(II) verified the identity of the transferee by examining the identification document presented;

(III) within 1 day after the transferee furnishes the statement, provided notice of the contents of the statement to the chief law enforcement officer of the place of residence of the transferee; and

(IV) within 1 day after the transferee furnishes the statement, transmitted a copy of the statement to the chief law enforcement officer of the place of residence of the transferee; and

(ii)

(I) 5 business days (meaning days on which State offices are open) have elapsed from the date the transferor furnished notice of the contents of the statement to the chief law enforcement officer, during which period the transferor has not received information from the chief law enforcement officer that receipt or possession of the handgun by the transferee would be in violation of Federal, State, or local law; or

(II) the transferor has received notice from the chief law enforcement officer that the officer has no information indicating that receipt or possession of the handgun by the transferee would violate Federal, State, or local law;

(B) the transferee has presented to the transferor a written statement, issued by the chief law enforcement officer of the place of residence of the transferee during the 10-day period ending on the date of the most recent proposal of such transfer by the transferee, stating that the transferee requires access to a handgun because of a threat to the life of the transferee or of any member of the household of the transferee;

(C)

(i) the transferee has presented to the transferor a permit that—

(I) allows the transferee to possess or acquire a handgun; and

(II) was issued not more than 5 years earlier by the State in which the transfer is to take place; and

(ii) the law of the State provides that such a permit is to be issued only after an authorized government official has verified that the information available to such official does not indicate that possession of a handgun by the transferee would be in violation of the law;

(D) the law of the State requires that, before any licensed importer, licensed manufacturer, or licensed dealer completes the transfer of a handgun to an individual who is not licensed under section 923, an authorized government official verify that the information available to such official does not indicate that possession of a handgun by the transferee would be in violation of law;

(E) the Attorney General has approved the transfer under section 5812 of the Internal Revenue Code of 1986; or

(F) on application of the transferor, the Attorney General has certified that compliance with subparagraph (A)(i)(III) is impracticable because—

(i) the ratio of the number of law enforcement officers of the State in which the transfer is to occur to the number of square miles of land area of the State does not exceed 0.0025;

(ii) the business premises of the transferor at which the transfer is to occur are extremely remote in relation to the chief law enforcement officer; and

(iii) there is an absence of telecommunications facilities in the geographical area in which the business premises are located.

(2) A chief law enforcement officer to whom a transferor has provided notice pursuant to paragraph (1)(A)(i)(III) shall make a reasonable effort to ascertain within 5 business days whether receipt or possession would be in violation of the law, including research in whatever State and local recordkeeping systems are available and in a national system designated by the Attorney General.

(3) The statement referred to in paragraph (1)(A)(i)(I) shall contain only—

(A) the name, address, and date of birth appearing on a valid identification document (as defined in section 1028(d)(1)) of the transferee containing a photograph of the transferee and a description of the identification used;

(B) a statement that the transferee—

(i) is not under indictment for, and has not been convicted in any court of, a crime punishable by imprisonment for a term exceeding 1 year, and has not been convicted in any court of a misdemeanor crime of domestic violence;

(ii) is not a fugitive from justice;

(iii) is not an unlawful user of or addicted to any controlled substance (as defined in section 102 of the Controlled Substances Act);

(iv) has not been adjudicated as a mental defective or been committed to a mental institution;

(v) is not an alien who—

(I) is illegally or unlawfully in the United States; or

(II) subject to subsection (y)(2), has been admitted to the United States under a nonimmigrant visa (as that term is defined in section 101(a)(26) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(26)));

(vi) has not been discharged from the Armed Forces under dishonorable conditions; and

(vii) is not a person who, having been a citizen of the United States, has renounced such citizenship;

(C) the date the statement is made; and

(D) notice that the transferee intends to obtain a handgun from the transferor.

(4) Any transferor of a handgun who, after such transfer, receives a report from a chief law enforcement officer containing information that receipt or possession of the handgun by the transferee violates Federal, State, or local law shall, within 1 business day after receipt of such request, communicate any information related to the transfer that the transferor has about the transfer and the transferee to—

(A) the chief law enforcement officer of the place of business of the transferor; and

(B) the chief law enforcement officer of the place of residence of the transferee.

(5) Any transferor who receives information, not otherwise available to the public, in a report under this subsection shall not disclose such information except to the transferee, to law enforcement authorities, or pursuant to the direction of a court of law.

(6)

(A) Any transferor who sells, delivers, or otherwise transfers a handgun to a transferee shall retain the copy of the statement of the transferee with respect to the handgun transaction, and shall retain evidence that the transferor has complied with subclauses (III) and (IV) of paragraph (1)(A)(i) with respect to the statement.

(B) Unless the chief law enforcement officer to whom a statement is transmitted under paragraph (1)(A)(i)(IV) determines that a transaction would violate Federal, State, or local law—

(i) the officer shall, within 20 business days after the date the transferee made the statement on the basis of which the notice was provided, destroy the statement, any record containing information derived from the statement, and any record created as a result of the notice required by paragraph (1)(A)(i)(III);

(ii) the information contained in the statement shall not be conveyed to any person except a person who has a need to know in order to carry out this subsection; and

(iii) the information contained in the statement shall not be used for any purpose other than to carry out this subsection.

(C) If a chief law enforcement officer determines that an individual is ineligible to receive a handgun and the individual requests the officer to provide the reason for such determination, the officer shall provide such reasons to the individual in writing within 20 business days after receipt of the request.

(7) A chief law enforcement officer or other person responsible for providing criminal history background information pursuant to this subsection shall not be liable in an action at law for damages—

(A) for failure to prevent the sale or transfer of a handgun to a person whose receipt or possession of the handgun is unlawful under this section; or

(B) for preventing such a sale or transfer to a person who may lawfully receive or possess a handgun.

(8) For purposes of this subsection, the term "chief law enforcement officer" means the chief of police, the sheriff, or an equivalent officer or the designee of any such individual.

(9) The Attorney General shall take necessary actions to ensure that the provisions of this subsection are published and disseminated to licensed dealers, law enforcement officials, and the public.

(t)

(1) Beginning on the date that is 30 days after the Attorney General notifies licensees under section 103(d) of the Brady Handgun Violence Prevention Act that the national instant criminal background check system is established, a licensed importer, licensed manufacturer, or licensed dealer shall not transfer a firearm to any other person who is not licensed under this chapter, unless—

(A) before the completion of the transfer, the licensee contacts the national instant criminal background check system established under section 103 of that Act;

(B)

(i) the system provides the licensee with a unique identification number; or

(ii) subject to subparagraph (C), 3 business days (meaning a day on which State offices are open) have elapsed since the licensee contacted the system, and the system has not notified the licensee that the receipt of a firearm by such other person would violate subsection (g) or (n) of this section, or State, local, or Tribal law;

(C) in the case of a person less than 21 years of age, in addition to all other requirements of this chapter—

(i) the system provides the licensee with a unique identification number;

(ii) 3 business days (meaning a day on which State offices are open) have elapsed since the licensee contacted the system, and the system has not notified the licensee that cause exists to further investigate a possibly disqualifying juvenile record under subsection (d); or

(iii) in the case of such a person with respect to whom the system notifies the licensee in accordance with clause (ii) that cause exists to further investigate a possibly disqualifying juvenile record under subsection (d), 10 business days (meaning a day on which State offices are open) have elapsed since the licensee contacted the system, and the system has not notified the licensee that—

(I) transferring the firearm to the other person would violate subsection (d) of this section; or

(II) receipt of a firearm by the other person would violate subsection (g) or (n) of this section, or State, local, or Tribal law; and

(D) the transferor has verified the identity of the transferee by examining a valid identification document (as defined in section 1028(d) of this title) of the transferee containing a photograph of the transferee.

(2) If transfer or receipt of a firearm would not violate subsection (d), (g), or (n) (as applicable) or State, local or Tribal law, the system shall—

(A) assign a unique identification number to the transfer;

(B) provide the licensee with the number; and

(C) destroy all records of the system with respect to the call (other than the identifying number and the date the number was assigned) and all records of the system relating to the person or the transfer.

(3) Paragraph (1) shall not apply to a firearm transfer between a licensee and another person if—

(A)

(i) such other person has presented to the licensee a permit that—

(I) allows such other person to possess or acquire a firearm; and

(II) was issued not more than 5 years earlier by the State in which the transfer is to take place; and

(ii) the law of the State provides that such a permit is to be issued only after an authorized government official has verified that the information available to such official does not indicate that possession of a firearm by such other person would be in violation of law;

(B) the Attorney General has approved the transfer under section 5812 of the Internal Revenue Code of 1986; or

(C) on application of the transferor, the Attorney General has certified that compliance with paragraph (1)(A) is impracticable because—

(i) the ratio of the number of law enforcement officers of the State in which the transfer is to occur to the number of square miles of land area of the State does not exceed 0.0025;

(ii) the business premises of the licensee at which the transfer is to occur are extremely remote in relation to the chief law enforcement officer (as defined in subsection (s)(8)); and

(iii) there is an absence of telecommunications facilities in the geographical area in which the business premises are located.

(4) If the national instant criminal background check system notifies the licensee that the information available to

the system does not demonstrate that the transfer of a firearm to or receipt of a firearm by such other person would violate subsection (d), (g), or (n) (as applicable) or State local, or Tribal law, and the licensee transfers a firearm to such other person, the licensee shall include in the record of the transfer the unique identification number provided by the system with respect to the transfer.

(5) If the licensee knowingly transfers a firearm to such other person and knowingly fails to comply with paragraph (1) of this subsection with respect to the transfer and, at the time such other person most recently proposed the transfer, the national instant criminal background check system was operating and information was available to the system demonstrating that transfer of a firearm to or receipt of a firearm by such other person would violate subsection (d), (g), or (n) (as applicable) of this section or State 5 local, or Tribal law, the Attorney General may, after notice and opportunity for a hearing, suspend for not more than 6 months or revoke any license issued to the licensee under section 923, and may impose on the licensee a civil fine of not more than $5,000.

(6) Neither a local government nor an employee of the Federal Government or of any State or local government, responsible for providing information to the national instant criminal background check system shall be liable in an action at law for damages—

(A) for failure to prevent the sale or transfer of a firearm to a person whose receipt or possession of the firearm is unlawful under this section; or

(B) for preventing such a sale or transfer to a person who may lawfully receive or possess a firearm.

(u) It shall be unlawful for a person to steal or unlawfully take or carry away from the person or the premises of a person who is licensed to engage in the business of importing, manufacturing, or dealing in firearms, any firearm in the licensee's business inventory that has been shipped or transported in interstate or foreign commerce.

(v) , (w) Repealed. Pub. L. 103–322, title XI, § 110105(2), Sept. 13, 1994, 108 Stat. 2000.]

(x)

(1) It shall be unlawful for a person to sell, deliver, or otherwise transfer to a person who the transferor knows or has reasonable cause to believe is a juvenile—

(A) a handgun; or

(B) ammunition that is suitable for use only in a handgun.

(2) It shall be unlawful for any person who is a juvenile to knowingly possess—

(A) a handgun; or

(B) ammunition that is suitable for use only in a handgun.

(3) This subsection does not apply to—

(A) a temporary transfer of a handgun or ammunition to a juvenile or to the possession or use of a handgun or ammunition by a juvenile if the handgun and ammunition are possessed and used by the juvenile—

(i) in the course of employment, in the course of ranching or farming related to activities at the residence of the juvenile (or on property used for ranching or farming at which the juvenile, with the permission of the property owner or lessee, is performing activities related to the operation of the farm or ranch), target practice, hunting, or a course of instruction in the safe and lawful use of a handgun;

(ii) with the prior written consent of the juvenile's parent or guardian who is not prohibited by Federal, State, or local law from possessing a firearm, except—

(I) during transportation by the juvenile of an unloaded handgun in a locked container directly from the place of transfer to a place at which an activity described in clause (i) is to take place and transportation by the juvenile of that handgun, unloaded and in a locked container, directly from the place at which such an activity took place to the transferor; or

(II) with respect to ranching or farming activities as described in clause (i), a juvenile may possess and use a handgun or ammunition with the prior written approval of the juvenile's parent or legal guardian and at the direction of an adult who is not prohibited by Federal, State or local law from possessing a firearm;

(iii) the juvenile has the prior written consent in the juvenile's possession at all times when a handgun is in the possession of the juvenile; and

(iv) in accordance with State and local law;

(B) a juvenile who is a member of the Armed Forces of the United States or the National Guard who possesses or is armed with a handgun in the line of duty;

(C) a transfer by inheritance of title (but not possession) of a handgun or ammunition to a juvenile; or

(D) the possession of a handgun or ammunition by a juvenile taken in defense of the juvenile or other persons against an intruder into the residence of the juvenile or a residence in which the juvenile is an invited guest.

(4) A handgun or ammunition, the possession of which is transferred to a juvenile in circumstances in which the transferor is not in violation of this subsection shall not be subject to permanent confiscation by the Government if its possession by the juvenile subsequently becomes unlawful because of the conduct of the juvenile, but shall be returned to the lawful owner when such handgun or ammunition is no longer required by the Government for the

purposes of investigation or prosecution.

(5) For purposes of this subsection, the term "juvenile" means a person who is less than 18 years of age.

(6)

(A) In a prosecution of a violation of this subsection, the court shall require the presence of a juvenile defendant's parent or legal guardian at all proceedings.

(B) The court may use the contempt power to enforce subparagraph (A).

(C) The court may excuse attendance of a parent or legal guardian of a juvenile defendant at a proceeding in a prosecution of a violation of this subsection for good cause shown.

(y) *Provisions Relating to Aliens Admitted Under Nonimmigrant Visas.*—.

(1) *Definitions.*—. In this subsection—

(A) the term "alien" has the same meaning as in section 101(a)(3) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(3)); and

(B) the term "nonimmigrant visa" has the same meaning as in section 101(a)(26) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(26)).

(2) *Exceptions.*—. Subsections (d)(5)(B), (g)(5)(B), and (s)(3)(B)(v)(II) do not apply to any alien who has been lawfully admitted to the United States under a nonimmigrant visa, if that alien is—

(A) admitted to the United States for lawful hunting or sporting purposes or is in possession of a hunting license or permit lawfully issued in the United States;

(B) an official representative of a foreign government who is—

(i) accredited to the United States Government or the Government's mission to an international organization having its headquarters in the United States; or

(ii) en route to or from another country to which that alien is accredited;

(C) an official of a foreign government or a distinguished foreign visitor who has been so designated by the Department of State; or

(D) a foreign law enforcement officer of a friendly foreign government entering the United States on official law enforcement business.

(3) *Waiver.*—.

(A) *Conditions for waiver.*—. Any individual who has been admitted to the United States under a nonimmigrant visa may receive a waiver from the requirements of subsection (g)(5), if—

(i) the individual submits to the Attorney General a petition that meets the requirements of subparagraph (C); and

(ii) the Attorney General approves the petition.

(B) *Petition.*—. Each petition under subparagraph (B) shall—

(i) demonstrate that the petitioner has resided in the United States for a continuous period of not less than 180 days before the date on which the petition is submitted under this paragraph; and

(ii) include a written statement from the embassy or consulate of the petitioner, authorizing the petitioner to acquire a firearm or ammunition and certifying that the alien would not, absent the application of subsection (g)(5)(B), otherwise be prohibited from such acquisition under subsection (g).

(C) *Approval of petition.*—. The Attorney General shall approve a petition submitted in accordance with this paragraph, if the Attorney General determines that waiving the requirements of subsection (g)(5)(B) with respect to the petitioner—

(i) would be in the interests of justice; and

(ii) would not jeopardize the public safety.

(z) *Secure Gun Storage or Safety Device.*—.

(1) *In general.*—. Except as provided under paragraph (2), it shall be unlawful for any licensed importer, licensed manufacturer, or licensed dealer to sell, deliver, or transfer any handgun to any person other than any person licensed under this chapter, unless the transferee is provided with a secure gun storage or safety device (as defined in section 921(a)(34)) for that handgun.

(2) *Exceptions.*—. Paragraph (1) shall not apply to—

(A)

(i) the manufacture for, transfer to, or possession by, the United States, a department or agency of the United States, a State, or a department, agency, or political subdivision of a State, of a handgun; or

(ii) the transfer to, or possession by, a law enforcement officer employed by an entity referred to in clause (i) of a handgun for law enforcement purposes (whether on or off duty); or

(B) the transfer to, or possession by, a rail police officer directly employed by or contracted by a rail carrier and certified or commissioned as a police officer under the laws of a State of a handgun for purposes of law enforcement (whether on or off duty);

(C) the transfer to any person of a handgun listed as a curio or relic by the Secretary pursuant to section 921(a)(13); or

(D) the transfer to any person of a handgun for which a secure gun storage or safety device is temporarily unavailable for the reasons described in the exceptions stated in section 923(e), if the licensed manufacturer, licensed importer, or licensed dealer delivers to the transferee within 10 calendar days from the date of the delivery of the handgun to the transferee a secure gun storage or safety device for the handgun.

(3) *Liability for use.—*.

(A) *In general.—*. Notwithstanding any other provision of law, a person who has lawful possession and control of a handgun, and who uses a secure gun storage or safety device with the handgun, shall be entitled to immunity from a qualified civil liability action.

(B) *Prospective actions.—*. A qualified civil liability action may not be brought in any Federal or State court.

(C) *Defined term.—*. As used in this paragraph, the term "qualified civil liability action"—

(i) means a civil action brought by any person against a person described in subparagraph (A) for damages resulting from the criminal or unlawful misuse of the handgun by a third party, if—

(I) the handgun was accessed by another person who did not have the permission or authorization of the person having lawful possession and control of the handgun to have access to it; and

(II) at the time access was gained by the person not so authorized, the handgun had been made inoperable by use of a secure gun storage or safety device; and

(ii) shall not include an action brought against the person having lawful possession and control of the handgun for negligent entrustment or negligence per se.

[APPENDIX A Repealed. Pub. L. 103–322, title XI, § 110105(2), Sept. 13, 1994, 108 Stat. 2000]

18 U.S.C. § 5032

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Delinquency proceedings in district courts; transfer for criminal prosecution

A juvenile alleged to have committed an act of juvenile delinquency, other than a violation of law committed within the special maritime and territorial jurisdiction of the United States for which the maximum authorized term of imprisonment does not exceed six months, shall not be proceeded against in any court of the United States unless the Attorney General, after investigation, certifies to the appropriate district court of the United States that (1) the juvenile court or other appropriate court of a State does not have jurisdiction or refuses to assume jurisdiction over said juvenile with respect to such alleged act of juvenile delinquency, (2) the State does not have available programs and services adequate for the needs of juveniles, or (3) the offense charged is a crime of violence that is a felony or an offense described in section 401 of the Controlled Substances Act (21 U.S.C. 841), or section 1002(a), 1003, 1005, 1009, or 1010(b)(1), (2), or (3) of the Controlled Substances Import and Export Act (21 U.S.C. 952(a), 953, 955, 959, 960(b)(1), (2), (3)), section 922(x) or section 924(b), (g), or (h) of this title, and that there is a substantial Federal interest in the case or the offense to warrant the exercise of Federal jurisdiction.

If the Attorney General does not so certify, such juvenile shall be surrendered to the appropriate legal authorities of such State. For purposes of this section, the term "State" includes a State of the United States, the District of Columbia, and any commonwealth, territory, or possession of the United States.

If an alleged juvenile delinquent is not surrendered to the authorities of a State pursuant to this section, any proceedings against him shall be in an appropriate district court of the United States. For such purposes, the court may be convened at any time and place within the district, in chambers or otherwise. The Attorney General shall proceed by information or as authorized under section 3401(g) of this title, and no criminal prosecution shall be instituted for the alleged act of juvenile delinquency except as provided below.

A juvenile who is alleged to have committed an act of juvenile delinquency and who is not surrendered to State authorities shall be proceeded against under this chapter unless he has requested in writing upon advice of counsel to be proceeded against as an adult, except that, with respect to a juvenile fifteen years and older alleged to have committed an act after his fifteenth birthday which if committed by an adult would be a felony that is a crime of violence or an offense described in section 401 of the Controlled Substances Act (21 U.S.C. 841), or section 1002(a), 1005, or 1009 of the Controlled Substances Import and Export Act (21 U.S.C. 952(a), 955, 959), or section 922(x) of this title, or in section 924(b), (g), or (h) of this title, criminal prosecution on the basis of the alleged act may be begun by motion to transfer of the Attorney General in the appropriate district court of the United States, if such court finds, after hearing, such transfer would be in the interest of justice. In the application of the preceding sentence, if the crime of violence is an offense under section 113(a), 113(b), 113(c), 1111, 1113, or, if the juvenile possessed a firearm during the offense, section 2111, 2113, 2241(a), or 2241(c), "thirteen" shall be substituted for "fifteen" and "thirteenth" shall be substituted for "fifteenth". Notwithstanding sections 1152 and 1153, no person subject to the criminal jurisdiction of an Indian tribal government shall be subject to the preceding sentence for any offense the Federal jurisdiction for which is predicated solely on Indian

country (as defined in section 1151), and which has occurred within the boundaries of such Indian country, unless the governing body of the tribe has elected that the preceding sentence have effect over land and persons subject to its criminal jurisdiction. However, a juvenile who is alleged to have committed an act after his sixteenth birthday which if committed by an adult would be a felony offense that has as an element thereof the use, attempted use, or threatened use of physical force against the person of another, or that, by its very nature, involves a substantial risk that physical force against the person of another may be used in committing the offense, or would be an offense described in section 32, 81, 844(d), (e), (f), (h), (i) or 2275 of this title, subsection (b)(1)(A), (B), or (C), (d), or (e) of section 401 of the Controlled Substances Act, or section 1002(a), 1003, 1009, or 1010(b)(1), (2), or (3) of the Controlled Substances Import and Export Act (21 U.S.C. 952(a), 953, 959, 960(b)(1), (2), (3)), and who has previously been found guilty of an act which if committed by an adult would have been one of the offenses set forth in this paragraph or an offense in violation of a State felony statute that would have been such an offense if a circumstance giving rise to Federal jurisdiction had existed, shall be transferred to the appropriate district court of the United States for criminal prosecution.

Evidence of the following factors shall be considered, and findings with regard to each factor shall be made in the record, in assessing whether a transfer would be in the interest of justice: the age and social background of the juvenile; the nature of the alleged offense; the extent and nature of the juvenile's prior delinquency record; the juvenile's present intellectual development and psychological maturity; the nature of past treatment efforts and the juvenile's response to such efforts; the availability of programs designed to treat the juvenile's behavioral problems. In considering the nature of the offense, as required by this paragraph, the court shall consider the extent to which the juvenile played a leadership role in an organization, or otherwise influenced other persons to take part in criminal activities, involving the use or distribution of controlled substances or firearms. Such a factor, if found to exist, shall weigh in favor of a transfer to adult status, but the absence of this factor shall not preclude such a transfer.

Reasonable notice of the transfer hearing shall be given to the juvenile, his parents, guardian, or custodian and to his counsel. The juvenile shall be assisted by counsel during the transfer hearing, and at every other critical stage of the proceedings.

Once a juvenile has entered a plea of guilty or the proceeding has reached the stage that evidence has begun to be taken with respect to a crime or an alleged act of juvenile delinquency subsequent criminal prosecution or juvenile proceedings based upon such alleged act of delinquency shall be barred.

Statements made by a juvenile prior to or during a transfer hearing under this section shall not be admissible at subsequent criminal prosecutions.

Whenever a juvenile transferred to district court under this section is not convicted of the crime upon which the transfer was based or another crime which would have warranted transfer had the juvenile been initially charged with that crime, further proceedings concerning the juvenile shall be conducted pursuant to the provisions of this chapter.

A juvenile shall not be transferred to adult prosecution nor shall a hearing be held under section 5037 (disposition after a finding of juvenile delinquency) until any prior juvenile court records of such juvenile have been received by the court, or the clerk of the juvenile court has certified in writing that the juvenile has no prior record, or that the juvenile's record is unavailable and why it is unavailable.

Whenever a juvenile is adjudged delinquent pursuant to the provisions of this chapter, the specific acts which the juvenile has been found to have committed shall be described as part of the official record of the proceedings and part of the juvenile's official record.

20 U.S.C. § 1401

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (2).

Definitions

(1) *Assistive technology device.*

(A) *In general.* The term "assistive technology device" means any item, piece of equipment, or product system, whether acquired commercially off the shelf, modified, or customized, that is used to increase, maintain, or improve functional capabilities of a child with a disability.

(B) *Exception.* The term does not include a medical device that is surgically implanted, or the replacement of such device.

(2) *Assistive technology service.* The term "assistive technology service" means any service that directly assists a child with a disability in the selection, acquisition, or use of an assistive technology device. Such term includes—

(A) the evaluation of the needs of such child, including a functional evaluation of the child in the child's customary environment;

(B) purchasing, leasing, or otherwise providing for the acquisition of assistive technology devices by such child;

(C) selecting, designing, fitting, customizing, adapting, applying, maintaining, repairing, or replacing assistive technology devices;

(D) coordinating and using other therapies, interventions, or services with assistive technology devices, such as those

associated with existing education and rehabilitation plans and programs;

(E) training or technical assistance for such child, or, where appropriate, the family of such child; and

(F) training or technical assistance for professionals (including individuals providing education and rehabilitation services), employers, or other individuals who provide services to, employ, or are otherwise substantially involved in the major life functions of such child.

(3) *Child with a disability.*

(A) *In general.* The term "child with a disability" means a child—

(i) with intellectual disabilities, hearing impairments (including deafness), speech or language impairments, visual impairments (including blindness), serious emotional disturbance (referred to in this chapter as "emotional disturbance"), orthopedic impairments, autism, traumatic brain injury, other health impairments, or specific learning disabilities; and

(ii) who, by reason thereof, needs special education and related services.

(B) *Child aged 3 through 9.* The term "child with a disability" for a child aged 3 through 9 (or any subset of that age range, including ages 3 through 5), may, at the discretion of the State and the local educational agency, include a child—

(i) experiencing developmental delays, as defined by the State and as measured by appropriate diagnostic instruments and procedures, in 1 or more of the following areas: physical development; cognitive development; communication development; social or emotional development; or adaptive development; and

(ii) who, by reason thereof, needs special education and related services.

(4) *Repealed. Pub. L. 114–95, title IX, § 9215(ss)(1)(A), Dec. 10, 2015, 129 Stat. 2181.*

(5) *Educational service agency.* The term "educational service agency"—

(A) means a regional public multiservice agency—

(i) authorized by State law to develop, manage, and provide services or programs to local educational agencies; and

(ii) recognized as an administrative agency for purposes of the provision of special education and related services provided within public elementary schools and secondary schools of the State; and

(B) includes any other public institution or agency having administrative control and direction over a public elementary school or secondary school.

(6) *Elementary school.* The term "elementary school" means a nonprofit institutional day or residential school, including a public elementary charter school, that provides elementary education, as determined under State law.

(7) *Equipment.* The term "equipment" includes—

(A) machinery, utilities, and built-in equipment, and any necessary enclosures or structures to house such machinery, utilities, or equipment; and

(B) all other items necessary for the functioning of a particular facility as a facility for the provision of educational services, including items such as instructional equipment and necessary furniture; printed, published, and audio-visual instructional materials; telecommunications, sensory, and other technological aids and devices; and books, periodicals, documents, and other related materials.

(8) *Excess costs.* The term "excess costs" means those costs that are in excess of the average annual per-student expenditure in a local educational agency during the preceding school year for an elementary school or secondary school student, as may be appropriate, and which shall be computed after deducting—

(A) amounts received—

(i) under subchapter II;

(ii) under part A of title I of the Elementary and Secondary Education Act of 1965 [20 U.S.C. 6311 et seq.]; and

(iii) under part A of title III of that Act [20 U.S.C. 6811 et seq.]; and

(B) any State or local funds expended for programs that would qualify for assistance under any of those parts.

(9) *Free appropriate public education.* The term "free appropriate public education" means special education and related services that—

(A) have been provided at public expense, under public supervision and direction, and without charge;

(B) meet the standards of the State educational agency;

(C) include an appropriate preschool, elementary school, or secondary school education in the State involved; and

(D) are provided in conformity with the individualized education program required under section 1414(d) of this title.

(10) *Repealed. Pub. L. 114–95, title IX, § 9214(d)(1), Dec. 10, 2015, 129 Stat. 2164.*

(11) *Homeless children.* The term "homeless children" has the meaning given the term "homeless children and youths" in section 11434a of title 42.

(12) *Indian.* The term "Indian" means an individual who is a member of an Indian tribe.

(13) *Indian tribe.* The term "Indian tribe" means any Federal or State Indian tribe, band, rancheria, pueblo, colony, or

community, including any Alaska Native village or regional village corporation (as defined in or established under the Alaska Native Claims Settlement Act (43 U.S.C. 1601 et seq.)).

(14) *Individualized education program; IEP.* The term "individualized education program" or "IEP" means a written statement for each child with a disability that is developed, reviewed, and revised in accordance with section 1414(d) of this title.

(15) *Individualized family service plan.* The term "individualized family service plan" has the meaning given the term in section 1436 of this title.

(16) *Infant or toddler with a disability.* The term "infant or toddler with a disability" has the meaning given the term in section 1432 of this title.

(17) *Institution of higher education.* The term "institution of higher education"—

(A) has the meaning given the term in section 1001 of this title; and

(B) also includes any college or university receiving funding from the Secretary of the Interior under the Tribally Controlled Colleges and Universities Assistance Act of 1978 [25 U.S.C. 1801 et seq.].

(18) *Limited English proficient.* The term "limited English proficient" has the meaning given the term "English learner" in section 8101 of the Elementary and Secondary Education Act of 1965 [20 U.S.C. 7801].

(19) *Local educational agency.*

(A) *In general.* The term "local educational agency" means a public board of education or other public authority legally constituted within a State for either administrative control or direction of, or to perform a service function for, public elementary schools or secondary schools in a city, county, township, school district, or other political subdivision of a State, or for such combination of school districts or counties as are recognized in a State as an administrative agency for its public elementary schools or secondary schools.

(B) *Educational service agencies and other public institutions or agencies.* The term includes—

(i) an educational service agency; and

(ii) any other public institution or agency having administrative control and direction of a public elementary school or secondary school.

(C) *BIA funded schools.* The term includes an elementary school or secondary school funded by the Bureau of Indian Affairs, but only to the extent that such inclusion makes the school eligible for programs for which specific eligibility is not provided to the school in another provision of law and the school does not have a student population that is smaller than the student population of the local educational agency receiving assistance under this chapter with the smallest student population, except that the school shall not be subject to the jurisdiction of any State educational agency other than the Bureau of Indian Affairs.

(20) *Native language.* The term "native language", when used with respect to an individual who is limited English proficient, means the language normally used by the individual or, in the case of a child, the language normally used by the parents of the child.

(21) *Nonprofit.* The term "nonprofit", as applied to a school, agency, organization, or institution, means a school, agency, organization, or institution owned and operated by 1 or more nonprofit corporations or associations no part of the net earnings of which inures, or may lawfully inure, to the benefit of any private shareholder or individual.

(22) *Outlying area.* The term "outlying area" means the United States Virgin Islands, Guam, American Samoa, and the Commonwealth of the Northern Mariana Islands.

(23) *Parent.* The term "parent" means—

(A) a natural, adoptive, or foster parent of a child (unless a foster parent is prohibited by State law from serving as a parent);

(B) a guardian (but not the State if the child is a ward of the State);

(C) an individual acting in the place of a natural or adoptive parent (including a grandparent, stepparent, or other relative) with whom the child lives, or an individual who is legally responsible for the child's welfare; or

(D) except as used in sections 1415(b)(2) and 1439(a)(5) of this title, an individual assigned under either of those sections to be a surrogate parent.

(24) *Parent organization.* The term "parent organization" has the meaning given the term in section 1471(g) of this title.

(25) *Parent training and information center.* The term "parent training and information center" means a center assisted under section 1471 or 1472 of this title.

(26) *Related services.*

(A) *In general.* The term "related services" means transportation, and such developmental, corrective, and other supportive services (including speech-language pathology and audiology services, interpreting services, psychological services, physical and occupational therapy, recreation, including therapeutic recreation, social work services, school nurse services designed to enable a child with a disability to receive a free appropriate public education as described in the individualized education program of the child, counseling services, including rehabilitation counseling, orientation and mobility services, and medical services, except that such medical services shall be for diagnostic and evaluation

purposes only) as may be required to assist a child with a disability to benefit from special education, and includes the early identification and assessment of disabling conditions in children.

(B) *Exception.* The term does not include a medical device that is surgically implanted, or the replacement of such device.

(27) *Secondary school.* The term "secondary school" means a nonprofit institutional day or residential school, including a public secondary charter school, that provides secondary education, as determined under State law, except that it does not include any education beyond grade 12.

(28) *Secretary.* The term "Secretary" means the Secretary of Education.

(29) *Special education.* The term "special education" means specially designed instruction, at no cost to parents, to meet the unique needs of a child with a disability, including—

(A) instruction conducted in the classroom, in the home, in hospitals and institutions, and in other settings; and

(B) instruction in physical education.

(30) *Specific learning disability.*

(A) *In general.* The term "specific learning disability" means a disorder in 1 or more of the basic psychological processes involved in understanding or in using language, spoken or written, which disorder may manifest itself in the imperfect ability to listen, think, speak, read, write, spell, or do mathematical calculations.

(B) *Disorders included.* Such term includes such conditions as perceptual disabilities, brain injury, minimal brain dysfunction, dyslexia, and developmental aphasia.

(C) *Disorders not included.* Such term does not include a learning problem that is primarily the result of visual, hearing, or motor disabilities, of intellectual disabilities, of emotional disturbance, or of environmental, cultural, or economic disadvantage.

(31) *State.* The term "State" means each of the 50 States, the District of Columbia, the Commonwealth of Puerto Rico, and each of the outlying areas.

(32) *State educational agency.* The term "State educational agency" means the State board of education or other agency or officer primarily responsible for the State supervision of public elementary schools and secondary schools, or, if there is no such officer or agency, an officer or agency designated by the Governor or by State law.

(33) *Supplementary aids and services.* The term "supplementary aids and services" means aids, services, and other supports that are provided in regular education classes or other education-related settings to enable children with disabilities to be educated with nondisabled children to the maximum extent appropriate in accordance with section 1412(a)(5) of this title.

(34) *Transition services.* The term "transition services" means a coordinated set of activities for a child with a disability that—

(A) is designed to be within a results-oriented process, that is focused on improving the academic and functional achievement of the child with a disability to facilitate the child's movement from school to post-school activities, including post-secondary education, vocational education, integrated employment (including supported employment), continuing and adult education, adult services, independent living, or community participation;

(B) is based on the individual child's needs, taking into account the child's strengths, preferences, and interests; and

(C) includes instruction, related services, community experiences, the development of employment and other post-school adult living objectives, and, when appropriate, acquisition of daily living skills and functional vocational evaluation.

(35) *Universal design.* The term "universal design" has the meaning given the term in section 3002 of title 29.

(36) *Ward of the State.*

(A) *In general.* The term "ward of the State" means a child who, as determined by the State where the child resides, is a foster child, is a ward of the State, or is in the custody of a public child welfare agency.

(B) *Exception.* The term does not include a foster child who has a foster parent who meets the definition of a parent in paragraph (23).

20 U.S.C. § 1431

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Findings and policy

(a) *Findings.* Congress finds that there is an urgent and substantial need—

(1) to enhance the development of infants and toddlers with disabilities, to minimize their potential for developmental delay, and to recognize the significant brain development that occurs during a child's first 3 years of life;

(2) to reduce the educational costs to our society, including our Nation's schools, by minimizing the need for special education and related services after infants and toddlers with disabilities reach school age;

(3) to maximize the potential for individuals with disabilities to live independently in society;

(4) to enhance the capacity of families to meet the special needs of their infants and toddlers with disabilities; and

(5) to enhance the capacity of State and local agencies and service providers to identify, evaluate, and meet the needs of all children, particularly minority, low-income, inner city, and rural children, and infants and toddlers in foster care.

(b) *Policy.* It is the policy of the United States to provide financial assistance to States—

(1) to develop and implement a statewide, comprehensive, coordinated, multidisciplinary, interagency system that provides early intervention services for infants and toddlers with disabilities and their families;

(2) to facilitate the coordination of payment for early intervention services from Federal, State, local, and private sources (including public and private insurance coverage);

(3) to enhance State capacity to provide quality early intervention services and expand and improve existing early intervention services being provided to infants and toddlers with disabilities and their families; and

(4) to encourage States to expand opportunities for children under 3 years of age who would be at risk of having substantial developmental delay if they did not receive early intervention services.

20 U.S.C. § 6301

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Statement of purpose

The purpose of this subchapter is to provide all children significant opportunity to receive a fair, equitable, and high-quality education, and to close educational achievement gaps.

20 U.S.C. § 6311

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

State plans

(a) *Filing for grants.*

(1) *In general.* For any State desiring to receive a grant under this part, the State educational agency shall file with the Secretary a plan that is—

(A) developed by the State educational agency with timely and meaningful consultation with the Governor, members of the State legislature and State board of education (if the State has a State board of education), local educational agencies (including those located in rural areas), representatives of Indian tribes located in the State, teachers, principals, other school leaders, charter school leaders (if the State has charter schools), specialized instructional support personnel, paraprofessionals, administrators, other staff, and parents; and

(B) is coordinated with other programs under this chapter, the Individuals with Disabilities Education Act (20 U.S.C. 1400 et seq.), the Rehabilitation Act of 1973 (20 U.S.C. 701 et seq.), the Carl D. Perkins Career and Technical Education Act of 2006 (20 U.S.C. 2301 et seq.), the Workforce Innovation and Opportunity Act (29 U.S.C. 3101 et seq.), the Head Start Act (42 U.S.C. 9831 et seq.), the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9858 et seq.), the Education Sciences Reform Act of 2002 (20 U.S.C. 9501 et seq.), the Education Technical Assistance Act of 2002 (20 U.S.C. 9601 et. seq.), the National Assessment of Educational Progress Authorization Act (20 U.S.C. 9621 et seq.), the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11301 et seq.), and the Adult Education and Family Literacy Act (29 U.S.C. 3271 et seq.).

(2) *Limitation.* Consultation required under paragraph (1)(A) shall not interfere with the timely submission of the plan required under this section.

(3) *Consolidated plan.* A State plan submitted under paragraph (1) may be submitted as part of a consolidated plan under section 7842 of this title.

(4) *Peer review and Secretarial approval.*

(A) *In general.* The Secretary shall—

(i) establish a peer-review process to assist in the review of State plans;

(ii) establish multidisciplinary peer-review teams and appoint members of such teams—

(I) who are representative of—

(aa) parents, teachers, principals, other school leaders, specialized instructional support personnel, State educational agencies, local educational agencies, and the community (including the business community); and

(bb) researchers who are familiar with—

(AA) the implementation of academic standards, assessments, or accountability systems; and

(BB) how to meet the needs of disadvantaged students, children with disabilities, and English learners, the needs of low-performing schools, and other educational needs of students;

(II) that include, to the extent practicable, majority representation of individuals who, in the most recent 2 years, have had practical experience in the classroom, school administration, or State or local government (such as direct employees of a school, local educational agency, or State educational agency); and

(III) who represent a regionally diverse cross-section of States;

(iii) make available to the public, including by such means as posting to the Department's website, the list of peer reviewers who have reviewed State plans under this section;
(iv) ensure that the peer-review teams consist of varied individuals so that the same peer reviewers are not reviewing all of the State plans;
(v) approve a State plan not later than 120 days after its submission, unless the Secretary meets the requirements of clause (vi);
(vi) have the authority to disapprove a State plan only if—
(I) the Secretary—
(aa) determines how the State plan fails to meet the requirements of this section;
(bb) immediately provides to the State, in writing, notice of such determination, and the supporting information and rationale to substantiate such determination;
(cc) offers the State an opportunity to revise and resubmit its State plan, and provides the State—
(AA) technical assistance to assist the State in meeting the requirements of this section;
(BB) in writing, all peer-review comments, suggestions, recommendations, or concerns relating to its State plan; and
(CC) a hearing, unless the State declines the opportunity for such hearing; and
(II) the State—
(aa) does not revise and resubmit its State plan; or
(bb) in a case in which a State revises and resubmits its State plan after a hearing is conducted under subclause (I)(cc)(CC), or after the State has declined the opportunity for such a hearing, the Secretary determines that such revised State plan does not meet the requirements of this section.
(B) *Purpose of peer review.* The peer-review process shall be designed to—
(i) maximize collaboration with each State;
(ii) promote effective implementation of the challenging State academic standards through State and local innovation; and
(iii) provide transparent, timely, and objective feedback to States designed to strengthen the technical and overall quality of the State plans.
(C) *Standard and nature of review.* Peer reviewers shall conduct an objective review of State plans in their totality and out of respect for State and local judgments, with the goal of supporting State- and local-led innovation and providing objective feedback on the technical and overall quality of a State plan.
(D) *Prohibition.* Neither the Secretary nor the political appointees of the Department, may attempt to participate in, or influence, the peer-review process.
(5) *Public review.* All written communications, feedback, and notifications under this subsection shall be conducted in a manner that is transparent and immediately made available to the public on the Department's website, including—
(A) plans submitted or resubmitted by a State;
(B) peer-review guidance, notes, and comments and the names of the peer reviewers (once the peer reviewers have completed their work);
(C) State plan determinations by the Secretary, including approvals or disapprovals; and
(D) notices and transcripts of hearings under this section.
(6) *Duration of the plan.*
(A) *In general.* Each State plan shall—
(i) remain in effect for the duration of the State's participation under this part; and
(ii) be periodically reviewed and revised as necessary by the State educational agency to reflect changes in the State's strategies and programs under this part.
(B) *Additional information.*
(i) *In general.* If a State makes significant changes to its plan at any time, such as the adoption of new challenging State academic standards or new academic assessments under subsection (b), or changes to its accountability system under subsection (c), such information shall be submitted to the Secretary in the form of revisions or amendments to the State plan.
(ii) *Review of revised plans.* The Secretary shall review the information submitted under clause (i) and approve changes to the State plan, or disapprove such changes in accordance with paragraph (4)(A)(vi), within 90 days, without undertaking the peer-review process under such paragraph.
(iii) *Special rule for standards.* If a State makes changes to its challenging State academic standards, the requirements of subsection (b)(1), including the requirement that such standards need not be submitted to the Secretary pursuant to subsection (b)(1)(A), shall still apply.
(7) *Failure to meet requirements.* If a State fails to meet any of the requirements of this section, the Secretary may withhold funds for State administration under this part until the Secretary determines that the State has fulfilled

those requirements.

(8) *Public comment.* Each State shall make the State plan publicly available for public comment for a period of not less than 30 days, by electronic means and in an easily accessible format, prior to submission to the Secretary for approval under this subsection. The State, in the plan it files under this subsection, shall provide an assurance that public comments were taken into account in the development of the State plan.

(b) *Challenging academic standards and academic assessments.*

(1) *Challenging State academic standards.*

(A) *In general.* Each State, in the plan it files under subsection (a), shall provide an assurance that the State has adopted challenging academic content standards and aligned academic achievement standards (referred to in this chapter as "challenging State academic standards"), which achievement standards shall include not less than 3 levels of achievement, that will be used by the State, its local educational agencies, and its schools to carry out this part. A State shall not be required to submit such challenging State academic standards to the Secretary.

(B) *Same standards.* Except as provided in subparagraph (E), the standards required by subparagraph (A) shall—

(i) apply to all public schools and public school students in the State; and

(ii) with respect to academic achievement standards, include the same knowledge, skills, and levels of achievement expected of all public school students in the State.

(C) *Subjects.* The State shall have such academic standards for mathematics, reading or language arts, and science, and may have such standards for any other subject determined by the State.

(D) *Alignment.*

(i) *In general.* Each State shall demonstrate that the challenging State academic standards are aligned with entrance requirements for credit-bearing coursework in the system of public higher education in the State and relevant State career and technical education standards.

(ii) *Rule of construction.* Nothing in this chapter shall be construed to authorize public institutions of higher education to determine the specific challenging State academic standards required under this paragraph.

(E) *Alternate academic achievement standards for students with the most significant cognitive disabilities.*

(i) *In general.* The State may, through a documented and validated standards-setting process, adopt alternate academic achievement standards for students with the most significant cognitive disabilities, provided those standards—

(I) are aligned with the challenging State academic content standards under subparagraph (A);

(II) promote access to the general education curriculum, consistent with the Individuals with Disabilities Education Act (20 U.S.C. 1400 et seq.);

(III) reflect professional judgment as to the highest possible standards achievable by such students;

(IV) are designated in the individualized education program developed under section 614(d)(3) of the Individuals with Disabilities Education Act (20 U.S.C. 1414(d)(3)) for each such student as the academic achievement standards that will be used for the student; and

(V) are aligned to ensure that a student who meets the alternate academic achievement standards is on track to pursue postsecondary education or employment, consistent with the purposes of Public Law 93–112 [29 U.S.C. 701 et seq.], as in effect on July 22, 2014.

(ii) *Prohibition on any other alternate or modified academic achievement standards.* A State shall not develop, or implement for use under this part, any alternate academic achievement standards for children with disabilities that are not alternate academic achievement standards that meet the requirements of clause (i).

(F) *English language proficiency standards.* Each State plan shall demonstrate that the State has adopted English language proficiency standards that—

(i) are derived from the 4 recognized domains of speaking, listening, reading, and writing;

(ii) address the different proficiency levels of English learners; and

(iii) are aligned with the challenging State academic standards.

(G) *Prohibitions.*

(i) *Standards review or approval.* A State shall not be required to submit any standards developed under this subsection to the Secretary for review or approval.

(ii) *Federal control.* The Secretary shall not have the authority to mandate, direct, control, coerce, or exercise any direction or supervision over any of the challenging State academic standards adopted or implemented by a State.

(H) *Existing standards.* Nothing in this part shall prohibit a State from revising, consistent with this section, any standards adopted under this part before or after December 10, 2015.

(2) *Academic assessments.*

(A) *In general.* Each State plan shall demonstrate that the State educational agency, in consultation with local educational agencies, has implemented a set of high-quality student academic assessments in mathematics, reading or language arts, and science. The State retains the right to implement such assessments in any other subject chosen by the State.

(B) *Requirements.* The assessments under subparagraph (A) shall—

(i) except as provided in subparagraph (D), be—

(I) the same academic assessments used to measure the achievement of all public elementary school and secondary school students in the State; and

(II) administered to all public elementary school and secondary school students in the State;

(ii) be aligned with the challenging State academic standards, and provide coherent and timely information about student attainment of such standards and whether the student is performing at the student's grade level;

(iii) be used for purposes for which such assessments are valid and reliable, consistent with relevant, nationally recognized professional and technical testing standards, objectively measure academic achievement, knowledge, and skills, and be tests that do not evaluate or assess personal or family beliefs and attitudes, or publicly disclose personally identifiable information;

(iv) be of adequate technical quality for each purpose required under this chapter and consistent with the requirements of this section, the evidence of which shall be made public, including on the website of the State educational agency;

(v)

(I) in the case of mathematics and reading or language arts, be administered—

(aa) in each of grades 3 through 8; and

(bb) at least once in grades 9 through 12;

(II) in the case of science, be administered not less than one time during—

(aa) grades 3 through 5;

(bb) grades 6 through 9; and

(cc) grades 10 through 12; and

(III) in the case of any other subject chosen by the State, be administered at the discretion of the State;

(vi) involve multiple up-to-date measures of student academic achievement, including measures that assess higher-order thinking skills and understanding, which may include measures of student academic growth and may be partially delivered in the form of portfolios, projects, or extended performance tasks;

(vii) provide for—

(I) the participation in such assessments of all students;

(II) the appropriate accommodations, such as interoperability with, and ability to use, assistive technology, for children with disabilities (as defined in section 602(3) of the Individuals with Disabilities Education Act (20 U.S.C. 1401(3))), including students with the most significant cognitive disabilities, and students with a disability who are provided accommodations under an Act other than the Individuals with Disabilities Education Act (20 U.S.C. 1400 et seq.), necessary to measure the academic achievement of such children relative to the challenging State academic standards or alternate academic achievement standards described in paragraph (1)(E); and

(III) the inclusion of English learners, who shall be assessed in a valid and reliable manner and provided appropriate accommodations on assessments administered to such students under this paragraph, including, to the extent practicable, assessments in the language and form most likely to yield accurate data on what such students know and can do in academic content areas, until such students have achieved English language proficiency, as determined under subparagraph (G);

(viii) at the State's discretion—

(I) be administered through a single summative assessment; or

(II) be administered through multiple statewide interim assessments during the course of the academic year that result in a single summative score that provides valid, reliable, and transparent information on student achievement or growth;

(ix) notwithstanding clause (vii)(III), provide for assessments (using tests in English) of reading or language arts of any student who has attended school in the United States (not including the Commonwealth of Puerto Rico) for 3 or more consecutive school years, except that if the local educational agency determines, on a case-by-case individual basis, that academic assessments in another language or form would likely yield more accurate and reliable information on what such student knows and can do, the local educational agency may make a determination to assess such student in the appropriate language other than English for a period that does not exceed 2 additional consecutive years, provided that such student has not yet reached a level of English

language proficiency sufficient to yield valid and reliable information on what such student knows and can do on tests (written in English) of reading or language arts;

(x) produce individual student interpretive, descriptive, and diagnostic reports, consistent with clause (iii), regarding achievement on such assessments that allow parents, teachers, principals, and other school leaders to understand and address the specific academic needs of students, and that are provided to parents, teachers, and school leaders, as soon as is practicable after the assessment is given, in an understandable and uniform format, and to the extent practicable, in a language that parents can understand;

(xi) enable results to be disaggregated within each State, local educational agency, and school by—

(I) each major racial and ethnic group;

(II) economically disadvantaged students as compared to students who are not economically disadvantaged;

(III) children with disabilities as compared to children without disabilities;

(IV) English proficiency status;

(V) gender; and

(VI) migrant status,

(xii) enable itemized score analyses to be produced and reported, consistent with clause (iii), to local educational agencies and schools, so that parents, teachers, principals, other school leaders, and administrators can interpret and address the specific academic needs of students as indicated by the students' achievement on assessment items; and

(xiii) be developed, to the extent practicable, using the principles of universal design for learning.

except that such disaggregation shall not be required in the case of a State, local educational agency, or a school in which the number of students in a subgroup is insufficient to yield statistically reliable information or the results would reveal personally identifiable information about an individual student;

(C) *Exception for advanced mathematics in middle school.* A State may exempt any 8th grade student from the assessment in mathematics described in subparagraph (B)(v)(I)(aa) if—

(i) such student takes the end-of-course assessment the State typically administers to meet the requirements of subparagraph (B)(v)(I)(bb) in mathematics;

(ii) such student's achievement on such end-of-course assessment is used for purposes of subsection (c)(4)(B)(i), in lieu of such student's achievement on the mathematics assessment required under subparagraph (B)(v)(I)(aa), and such student is counted as participating in the assessment for purposes of subsection (c)(4)(B)(vi); and

(iii) in high school, such student takes a mathematics assessment pursuant to subparagraph (B)(v)(I)(bb) that—

(I) is any end-of-course assessment or other assessment that is more advanced than the assessment taken by such student under clause (i) of this subparagraph; and

(II) shall be used to measure such student's academic achievement for purposes of subsection (c)(4)(B)(i).

(D) *Alternate assessments for students with the most significant cognitive disabilities.*

(i) *Alternate assessments aligned with alternate academic achievement standards.* A State may provide for alternate assessments aligned with the challenging State academic standards and alternate academic achievement standards described in paragraph (1)(E) for students with the most significant cognitive disabilities, if the State—

(I) consistent with clause (ii), ensures that, for each subject, the total number of students assessed in such subject using the alternate assessments does not exceed 1 percent of the total number of all students in the State who are assessed in such subject;

(II) ensures that the parents of such students are clearly informed, as part of the process for developing the individualized education program (as defined in section 614(d)(1)(A) of the Individuals with Disabilities Education Act (20 U.S.C. 1414(d)(1)(A)))—

(aa) that their child's academic achievement will be measured based on such alternate standards; and

(bb) how participation in such assessments may delay or otherwise affect the student from completing the requirements for a regular high school diploma;

(III) promotes, consistent with the Individuals with Disabilities Education Act (20 U.S.C. 1400 et seq.), the involvement and progress of students with the most significant cognitive disabilities in the general education curriculum;

(IV) describes in the State plan the steps the State has taken to incorporate universal design for learning, to the extent feasible, in alternate assessments;

(V) describes in the State plan that general and special education teachers, and other appropriate staff—

(aa) know how to administer the alternate assessments; and

(bb) make appropriate use of accommodations for students with disabilities on all assessments required under this paragraph;

(VI) develops, disseminates information on, and promotes the use of appropriate accommodations to increase

the number of students with significant cognitive disabilities—

(aa) participating in academic instruction and assessments for the grade level in which the student is enrolled; and

(bb) who are tested based on challenging State academic standards for the grade level in which the student is enrolled; and

(VII) does not preclude a student with the most significant cognitive disabilities who takes an alternate assessment based on alternate academic achievement standards from attempting to complete the requirements for a regular high school diploma.

(ii) *Special rules.*

(I) *Responsibility under IDEA.* Subject to the authority and requirements for the individualized education program team for a child with a disability under section 614(d)(1)(A)(i)(VI)(bb) of the Individuals with Disabilities Education Act (20 U.S.C. 1414(d)(1)(A)(i)(VI)(bb)), such team, consistent with the guidelines established by the State and required under section 612(a)(16)(C) of such Act (20 U.S.C. 1412(c)(16)(C)) and clause (i)(II) of this subparagraph, shall determine when a child with a significant cognitive disability shall participate in an alternate assessment aligned with the alternate academic achievement standards.

(II) *Prohibition on local cap.* Nothing in this subparagraph shall be construed to permit the Secretary or a State educational agency to impose on any local educational agency a cap on the percentage of students administered an alternate assessment under this subparagraph, except that a local educational agency exceeding the cap applied to the State under clause (i)(I) shall submit information to the State educational agency justifying the need to exceed such cap.

(III) *State support.* A State shall provide appropriate oversight, as determined by the State, of any local educational agency that is required to submit information to the State under subclause (II).

(IV) *Waiver authority.* This subparagraph shall be subject to the waiver authority under section 7861 of this title.

(E) *State authority.* If a State educational agency provides evidence, which is satisfactory to the Secretary, that neither the State educational agency nor any other State government official, agency, or entity has sufficient authority, under State law, to adopt challenging State academic standards, and academic assessments aligned with such standards, which will be applicable to all students enrolled in the State's public elementary schools and secondary schools, then the State educational agency may meet the requirements of this subsection by—

(i) adopting academic standards and academic assessments that meet the requirements of this subsection, on a statewide basis, and limiting their applicability to students served under this part; or

(ii) adopting and implementing policies that ensure that each local educational agency in the State that receives grants under this part will adopt academic content and student academic achievement standards, and academic assessments aligned with such standards, which—

(I) meet all of the criteria in this subsection and any regulations regarding such standards and assessments that the Secretary may publish; and

(II) are applicable to all students served by each such local educational agency.

(F) *Language assessments.*

(i) *In general.* Each State plan shall identify the languages other than English that are present to a significant extent in the participating student population of the State and indicate the languages for which annual student academic assessments are not available and are needed.

(ii) *Secretarial assistance.* The State shall make every effort to develop such assessments and may request assistance from the Secretary if linguistically accessible academic assessment measures are needed. Upon request, the Secretary shall assist with the identification of appropriate academic assessment measures in the needed languages, but shall not mandate a specific academic assessment or mode of instruction.

(G) *Assessments of English language proficiency.*

(i) *In general.* Each State plan shall demonstrate that local educational agencies in the State will provide for an annual assessment of English proficiency of all English learners in the schools served by the State educational agency.

(ii) *Alignment.* The assessments described in clause (i) shall be aligned with the State's English language proficiency standards described in paragraph (1)(F).

(H) *Locally-selected assessment.*

(i) *In general.* Nothing in this paragraph shall be construed to prohibit a local educational agency from administering a locally-selected assessment in lieu of the State-designed academic assessment under subclause (I)(bb) and subclause (II)(cc) of subparagraph (B)(v), if the local educational agency selects a nationally-recognized high school academic assessment that has been approved for use by the State as described in clause (iii) or (iv) of this subparagraph.

(ii) *State technical criteria.* To allow for State approval of nationally-recognized high school academic assessments that are available for local selection under clause (i), a State educational agency shall establish technical criteria to determine if any such assessment meets the requirements of clause (v).

(iii) *State approval.* If a State educational agency chooses to make a nationally-recognized high school assessment available for selection by a local educational agency under clause (i), which has not already been approved under this clause, such State educational agency shall—

(I) conduct a review of the assessment to determine if such assessment meets or exceeds the technical criteria established by the State educational agency under clause (ii);

(II) submit evidence in accordance with subsection (a)(4) that demonstrates such assessment meets the requirements of clause (v); and

(III) after fulfilling the requirements of subclauses (I) and (II), approve such assessment for selection and use by any local educational agency that requests to use such assessment under clause (i).

(iv) *Local educational agency option.*

(I) *Local educational agency.* If a local educational agency chooses to submit a nationally-recognized high school academic assessment to the State educational agency, subject to the approval process described in subclause (I) and subclause (II) of clause (iii) to determine if such assessment fulfills the requirements of clause (v), the State educational agency may approve the use of such assessment consistent with clause (i).

(II) *State educational agency.* Upon such approval, the State educational agency shall approve the use of such assessment in any other local educational agency in the State that subsequently requests to use such assessment without repeating the process described in subclauses (I) and (II) of clause (iii).

(v) *Requirements.* To receive approval from the State educational agency under clause (iii), a locally-selected assessment shall—

(I) be aligned to the State's academic content standards under paragraph (1), address the depth and breadth of such standards, and be equivalent in its content coverage, difficulty, and quality to the State-designed assessments under this paragraph (and may be more rigorous in its content coverage and difficulty than such State-designed assessments);

(II) provide comparable, valid, and reliable data on academic achievement, as compared to the State-designed assessments, for all students and for each subgroup of students defined in subsection (c)(2), with results expressed in terms consistent with the State's academic achievement standards under paragraph (1), among all local educational agencies within the State;

(III) meet the requirements for the assessments under subparagraph (B) of this paragraph, including technical criteria, except the requirement under clause (i) of such subparagraph; and

(IV) provide unbiased, rational, and consistent differentiation between schools within the State to meet the requirements of subsection (c).

(vi) *Parental notification.* A local educational agency shall notify the parents of high school students served by the local educational agency—

(I) of its request to the State educational agency for approval to administer a locally-selected assessment; and

(II) upon approval, and at the beginning of each subsequent school year during which the locally selected assessment will be administered, that the local educational agency will be administering a different assessment than the State-designed assessments under subclause (I)(bb) and subclause (II)(cc) of subparagraph (B)(v).

(I) *Deferral.* A State may defer the commencement, or suspend the administration, but not cease the development, of the assessments described in this paragraph, for 1 year for each year for which the amount appropriated for grants under part B is less than $369,100,000.

(J) *Adaptive assessments.*

(i) *In general.* Subject to clause (ii), a State retains the right to develop and administer computer adaptive assessments as the assessments described in this paragraph, provided the computer adaptive assessments meet the requirements of this paragraph, except that—

(I) subparagraph (B)(i) shall not be interpreted to require that all students taking the computer adaptive assessment be administered the same assessment items; and

(II) such assessment—

(aa) shall measure, at a minimum, each student's academic proficiency based on the challenging State academic standards for the student's grade level and growth toward such standards; and

(bb) may measure the student's level of academic proficiency and growth using items above or below the student's grade level, including for use as part of a State's accountability system under subsection (c).

(ii) *Students with the most significant cognitive disabilities and English learners.* In developing and administering computer adaptive assessments—

(I) as the assessments allowed under subparagraph (D), a State shall ensure that such computer adaptive

assessments—

(aa) meet the requirements of this paragraph, including subparagraph (D), except such assessments shall not be required to meet the requirements of clause (i)(II); and

(bb) assess the student's academic achievement to measure, in the subject being assessed, whether the student is performing at the student's grade level; and

(II) as the assessments required under subparagraph (G), a State shall ensure that such computer adaptive assessments—

(aa) meet the requirements of this paragraph, including subparagraph (G), except such assessment shall not be required to meet the requirements of clause (i)(II); and

(bb) assess the student's language proficiency, which may include growth towards such proficiency, in order to measure the student's acquisition of English.

(K) *Rule of construction on parent rights.* Nothing in this paragraph shall be construed as preempting a State or local law regarding the decision of a parent to not have the parent's child participate in the academic assessments under this paragraph.

(L) *Limitation on assessment time.* Subject to Federal or State requirements related to assessments, evaluations, and accommodations, each State may, at the sole discretion of such State, set a target limit on the aggregate amount of time devoted to the administration of assessments for each grade, expressed as a percentage of annual instructional hours.

(3) *Exception for recently arrived English learners.*

(A) *Assessments.* With respect to recently arrived English learners who have been enrolled in a school in one of the 50 States in the United States or the District of Columbia for less than 12 months, a State may choose to—

(i) exclude—

(I) such an English learner from one administration of the reading or language arts assessment required under paragraph (2); and

(II) such an English learner's results on any of the assessments required under paragraph (2)(B)(v)(I) or (2)(G) for the first year of the English learner's enrollment in such a school for the purposes of the State-determined accountability system under subsection (c); or

(ii)

(I) assess, and report the performance of, such an English learner on the reading or language arts and mathematics assessments required under paragraph (2)(B)(v)(I) in each year of the student's enrollment in such a school; and

(II) for the purposes of the State-determined accountability system—

(aa) for the first year of the student's enrollment in such a school, exclude the results on the assessments described in subclause (I);

(bb) include a measure of student growth on the assessments described in subclause (I) in the second year of the student's enrollment in such a school; and

(cc) include proficiency on the assessments described in subclause (I) in the third year of the student's enrollment in such a school, and each succeeding year of such enrollment.

(B) *English learner subgroup.* With respect to a student previously identified as an English learner and for not more than 4 years after the student ceases to be identified as an English learner, a State may include the results of the student's assessments under paragraph (2)(B)(v)(I) within the English learner subgroup of the subgroups of students (as defined in subsection (c)(2)(D)) for the purposes of the State-determined accountability system.

(c) *Statewide accountability system.*

(1) *In general.* Each State plan shall describe a statewide accountability system that complies with the requirements of this subsection and subsection (d).

(2) *Subgroup of students.* In this subsection and subsection (d), the term "subgroup of students" means—

(A) economically disadvantaged students;

(B) students from major racial and ethnic groups;

(C) children with disabilities; and

(D) English learners.

(3) *Minimum number of students.* Each State shall describe—

(A) with respect to any provisions under this part that require disaggregation of information by each subgroup of students—

(i) the minimum number of students that the State determines are necessary to be included to carry out such requirements and how that number is statistically sound, which shall be the same State-determined number for all students and for each subgroup of students in the State;

(ii) how such minimum number of students was determined by the State, including how the State collaborated

with teachers, principals, other school leaders, parents, and other stakeholders when determining such minimum number; and

(iii) how the State ensures that such minimum number is sufficient to not reveal any personally identifiable information.

(4) *Description of system.* The statewide accountability system described in paragraph (1) shall be based on the challenging State academic standards for reading or language arts and mathematics described in subsection (b)(1) to improve student academic achievement and school success. In designing such system to meet the requirements of this part, the State shall carry out the following:

(A) *Establishment of long-term goals.* Establish ambitious State-designed long-term goals, which shall include measurements of interim progress toward meeting such goals—

(i) for all students and separately for each subgroup of students in the State—

(I) for, at a minimum, improved—

(aa) academic achievement, as measured by proficiency on the annual assessments required under subsection (b)(2)(B)(v)(I); and

(bb) high school graduation rates, including—

(AA) the four-year adjusted cohort graduation rate; and

(BB) at the State's discretion, the extended-year adjusted cohort graduation rate, except that the State shall set a more rigorous long-term goal for such graduation rate, as compared to the long-term goal set for the four-year adjusted cohort graduation rate;

(II) for which the term set by the State for such goals is the same multi-year length of time for all students and for each subgroup of students in the State; and

(III) that, for subgroups of students who are behind on the measures described in items (aa) and (bb) of subclause (I), take into account the improvement necessary on such measures to make significant progress in closing statewide proficiency and graduation rate gaps; and

(ii) for English learners, for increases in the percentage of such students making progress in achieving English language proficiency, as defined by the State and measured by the assessments described in subsection (b)(2)(G), within a State-determined timeline.

(B) *Indicators.* Except for the indicator described in clause (iv), annually measure, for all students and separately for each subgroup of students, the following indicators:

(i) For all public schools in the State, based on the long-term goals established under subparagraph (A), academic achievement—

(I) as measured by proficiency on the annual assessments required under subsection (b)(2)(B)(v)(I); and

(II) at the State's discretion, for each public high school in the State, student growth, as measured by such annual assessments.

(ii) For public elementary schools and secondary schools that are not high schools in the State—

(I) a measure of student growth, if determined appropriate by the State; or

(II) another valid and reliable statewide academic indicator that allows for meaningful differentiation in school performance.

(iii) For public high schools in the State, and based on State-designed long term goals established under subparagraph (A)—

(I) the four-year adjusted cohort graduation rate; and

(II) at the State's discretion, the extended-year adjusted cohort graduation rate.

(iv) For public schools in the State, progress in achieving English language proficiency, as defined by the State and measured by the assessments described in subsection (b)(2)(G), within a State-determined timeline for all English learners—

(I) in each of the grades 3 through 8; and

(II) in the grade for which such English learners are otherwise assessed under subsection (b)(2)(B)(v)(I) during the grade 9 through grade 12 period, with such progress being measured against the results of the assessments described in subsection (b)(2)(G) taken in the previous grade.

(v)

(I) For all public schools in the State, not less than one indicator of school quality or student success that—

(aa) allows for meaningful differentiation in school performance;

(bb) is valid, reliable, comparable, and statewide (with the same indicator or indicators used for each grade span, as such term is determined by the State); and

(cc) may include one or more of the measures described in subclause (II).

(II) For purposes of subclause (I), the State may include measures of—

(III) student engagement;

(IV) 6 educator engagement;
(V) 6 student access to and completion of advanced coursework;
(VI) 6 postsecondary readiness;
(VII) 6 school climate and safety; and
(VIII) 6 any other indicator the State chooses that meets the requirements of this clause.

(C) *Annual meaningful differentiation.* Establish a system of meaningfully differentiating, on an annual basis, all public schools in the State, which shall—

(i) be based on all indicators in the State's accountability system under subparagraph (B), for all students and for each of subgroup of students, consistent with the requirements of such subparagraph;

(ii) with respect to the indicators described in clauses (i) through (iv) of subparagraph (B) afford—

(I) substantial weight to each such indicator; and

(II) in the aggregate, much greater weight than is afforded to the indicator or indicators utilized by the State and described in subparagraph (B)(v), in the aggregate; and

(iii) include differentiation of any such school in which any subgroup of students is consistently underperforming, as determined by the State, based on all indicators under subparagraph (B) and the system established under this subparagraph.

(D) *Identification of schools.* Based on the system of meaningful differentiation described in subparagraph (C), establish a State-determined methodology to identify—

(i) beginning with school year 2017–2018, and at least once every three school years thereafter, one statewide category of schools for comprehensive support and improvement, as described in subsection (d)(1), which shall include—

(I) not less than the lowest-performing 5 percent of all schools receiving funds under this part in the State;
(II) all public high schools in the State failing to graduate one third or more of their students; and
(III) public schools in the State described under subsection (d)(3)(A)(i)(II); and

(ii) at the discretion of the State, additional statewide categories of schools.

(E) *Annual measurement of achievement.*

(i) Annually measure the achievement of not less than 95 percent of all students, and 95 percent of all students in each subgroup of students, who are enrolled in public schools on the assessments described under subsection (b)(2)(v)(I).

(ii) For the purpose of measuring, calculating, and reporting on the indicator described in subparagraph (B)(i), include in the denominator the greater of—

(I) 95 percent of all such students, or 95 percent of all such students in the subgroup, as the case may be; or
(II) the number of students participating in the assessments.

(iii) Provide a clear and understandable explanation of how the State will factor the requirement of clause (i) of this subparagraph into the statewide accountability system.

(F) *Partial attendance.*

(i) In the case of a student who has not attended the same school within a local educational agency for at least half of a school year, the performance of such student on the indicators described in clauses (i), (ii), (iv), and (v) of subparagraph (B)—

(I) may not be used in the system of meaningful differentiation of all public schools as described in subparagraph (C) for such school year; and

(II) shall be used for the purpose of reporting on the State and local educational agency report cards under subsection (h) for such school year.

(ii) In the case of a high school student who has not attended the same school within a local educational agency for at least half of a school year and has exited high school without a regular high school diploma and without transferring to another high school that grants a regular high school diploma during such school year, the local educational agency shall, in order to calculate the graduation rate pursuant to subparagraph (B)(iii), assign such student to the high school—

(I) at which such student was enrolled for the greatest proportion of school days while enrolled in grades 9 through 12; or
(II) in which the student was most recently enrolled.

(5) *Accountability for charter schools.* The accountability provisions under this chapter shall be overseen for charter schools in accordance with State charter school law.

(d) *School support and improvement activities.*

(1) *Comprehensive support and improvement.*

(A) *In general.* Each State educational agency receiving funds under this part shall notify each local educational agency in the State of any school served by the local educational agency that is identified for comprehensive support and improvement under subsection (c)(4)(D)(i).

(B) *Local educational agency action.* Upon receiving such information from the State, the local educational agency shall, for each school identified by the State and in partnership with stakeholders (including principals and other school leaders, teachers, and parents), locally develop and implement a comprehensive support and improvement plan for the school to improve student outcomes, that—

(i) is informed by all indicators described in subsection (c)(4)(B), including student performance against State-determined long-term goals;

(ii) includes evidence-based interventions;

(iii) is based on a school-level needs assessment;

(iv) identifies resource inequities, which may include a review of local educational agency and school-level budgeting, to be addressed through implementation of such comprehensive support and improvement plan;

(v) is approved by the school, local educational agency, and State educational agency; and

(vi) upon approval and implementation, is monitored and periodically reviewed by the State educational agency.

(C) *State educational agency discretion.* With respect to any high school in the State identified under subsection (c)(4)(D)(i)(II), the State educational agency may—

(i) permit differentiated improvement activities that utilize evidence-based interventions in the case of such a school that predominantly serves students—

(I) returning to education after having exited secondary school without a regular high school diploma; or

(II) who, based on their grade or age, are significantly off track to accumulate sufficient academic credits to meet high school graduation requirements, as established by the State; and

(ii) in the case of such a school that has a total enrollment of less than 100 students, permit the local educational agency to forego implementation of improvement activities required under this paragraph.

(D) *Public school choice.*

(i) *In general.* A local educational agency may provide all students enrolled in a school identified by the State for comprehensive support and improvement under subsection (c)(4)(D)(i) with the option to transfer to another public school served by the local educational agency, unless such an option is prohibited by State law.

(ii) *Priority.* In providing students the option to transfer to another public school, the local educational agency shall give priority to the lowest-achieving children from low-income families, as determined by the local educational agency for the purposes of allocating funds to schools under section 6313(a)(3) of this title.

(iii) *Treatment.* A student who uses the option to transfer to another public school shall be enrolled in classes and other activities in the public school to which the student transfers in the same manner as all other students at the public school.

(iv) *Special rule.* A local educational agency shall permit a student who transfers to another public school under this paragraph to remain in that school until the student has completed the highest grade in that school.

(v) *Funding for transportation.* A local educational agency may spend an amount equal to not more than 5 percent of its allocation under subpart 2 of this part to pay for the provision of transportation for students who transfer under this paragraph to the public schools to which the students transfer.

(2) *Targeted support and improvement.*

(A) *In general.* Each State educational agency receiving funds under this part shall, using the meaningful differentiation of schools described in subsection (c)(4)(C)—

(i) notify each local educational agency in the State of any school served by the local educational agency in which any subgroup of students is consistently underperforming, as described in subsection (c)(4)(C)(iii); and

(ii) ensure such local educational agency provides notification to such school with respect to which subgroup or subgroups of students in such school are consistently underperforming as described in subsection (c)(4)(C)(iii).

(B) *Targeted support and improvement plan.* Each school receiving a notification described in this paragraph, in partnership with stakeholders (including principals and other school leaders, teachers and parents), shall develop and implement a school-level targeted support and improvement plan to improve student outcomes based on the indicators in the statewide accountability system established under subsection (c)(4), for each subgroup of students that was the subject of notification that—

(i) is informed by all indicators described in subsection (c)(4)(B), including student performance against long-term goals;

(ii) includes evidence-based interventions;

(iii) is approved by the local educational agency prior to implementation of such plan;

(iv) is monitored, upon submission and implementation, by the local educational agency; and

(v) results in additional action following unsuccessful implementation of such plan after a number of years determined by the local educational agency.

(C) *Additional targeted support.* A plan described in subparagraph (B) that is developed and implemented in any school receiving a notification under this paragraph from the local educational agency in which any subgroup of students, on its own, would lead to identification under subsection (c)(4)(D)(i)(I) using the State's methodology under subsection (c)(4)(D) shall also identify resource inequities (which may include a review of local educational agency and school level budgeting), to be addressed through implementation of such plan.

(D) *Special rule.* The State educational agency, based on the State's differentiation of schools under subsection (c)(4)(C) for school year 2017–2018, shall notify local educational agencies of any schools served by the local educational agency in which any subgroup of students, on its own, would lead to identification under subsection (c)(4)(D)(i)(I) using the State's methodology under subsection (c)(4)(D), after which notification of such schools under this paragraph shall result from differentiation of schools pursuant to subsection (c)(4)(C)(iii).

(3) *Continued support for school and local educational agency improvement.* To ensure continued progress to improve student academic achievement and school success in the State, the State educational agency—

(A) shall—

(i) establish statewide exit criteria for—

(I) schools identified by the State for comprehensive support and improvement under subsection (c)(4)(D)(i), which, if not satisfied within a State-determined number of years (not to exceed four years), shall result in more rigorous State-determined action, such as the implementation of interventions (which may include addressing school-level operations); and

(II) schools described in paragraph (2)(C), which, if not satisfied within a State-determined number of years, shall, in the case of such schools receiving assistance under this part, result in identification of the school by the State for comprehensive support and improvement under subsection (c)(4)(D)(i)(III);

(ii) periodically review resource allocation to support school improvement in each local educational agency in the State serving—

(I) a significant number of schools identified for comprehensive support and improvement under subsection (c)(4)(D)(i); and

(II) a significant number of schools implementing targeted support and improvement plans under paragraph (2); and

(iii) provide technical assistance to each local educational agency in the State serving a significant number of—

(I) schools implementing comprehensive support and improvement plans under paragraph (1); or

(II) schools implementing targeted support and improvement plans under paragraph (2); and

(B) may—

(i) take action to initiate additional improvement in any local educational agency with—

(I) a significant number of schools that are consistently identified by the State for comprehensive support and improvement under subsection (c)(4)(D)(i) and not meeting exit criteria established by the State under subparagraph (A)(i)(I); or

(II) a significant number of schools implementing targeted support and improvement plans under paragraph (2); and

(ii) consistent with State law, establish alternative evidence-based State determined strategies that can be used by local educational agencies to assist a school identified for comprehensive support and improvement under subsection (c)(4)(D)(i).

(4) *Rule of construction for collective bargaining.* Nothing in this subsection shall be construed to alter or otherwise affect the rights, remedies, and procedures afforded to school or local educational agency employees under Federal, State, or local laws (including applicable regulations or court orders) or under the terms of collective bargaining agreements, memoranda of understanding, or other agreements between such employers and their employees.

(e) *Prohibition.*

(1) *In general.* Nothing in this chapter shall be construed to authorize or permit the Secretary—

(A) when promulgating any rule or regulation, to promulgate any rule or regulation on the development or implementation of the statewide accountability system established under this section that would—

(i) add new requirements that are inconsistent with or outside the scope of this part;

(ii) add new criteria that are inconsistent with or outside the scope of this part; or

(iii) be in excess of statutory authority granted to the Secretary;

(B) as a condition of approval of the State plan, or revisions or amendments to, the State plan, or approval of a waiver request submitted under section 7861 of this title, to—

(i) require a State to add any requirements that are inconsistent with or outside the scope of this part;

(ii) require a State to add or delete one or more specific elements of the challenging State academic standards;

or

(iii) prescribe—

(I) numeric long-term goals or measurements of interim progress that States establish for all students, for any subgroups of students, and for English learners with respect to English language proficiency, under this part, including—

(aa) the length of terms set by States in designing such goals; or

(bb) the progress expected from any subgroups of students in meeting such goals;

(II) specific academic assessments or assessment items that States or local educational agencies use to meet the requirements of subsection (b)(2) or otherwise use to measure student academic achievement or student growth under this part;

(III) indicators that States use within the State accountability system under this section, including any requirement to measure student growth, or, if a State chooses to measure student growth, the specific metrics used to measure such growth under this part;

(IV) the weight of any measure or indicator used to identify or meaningfully differentiate schools, under this part;

(V) the specific methodology used by States to meaningfully differentiate or identify schools under this part;

(VI) any specific school support and improvement strategies or activities that State or local educational agencies establish and implement to intervene in, support, and improve schools and improve student outcomes under this part;

(VII) exit criteria established by States under subsection (d)(3)(A)(i);

(VIII) provided that the State meets the requirements in subsection (c)(3), a minimum number of students established by a State under such subsection;

(IX) any aspect or parameter of a teacher, principal, or other school leader evaluation system within a State or local educational agency;

(X) indicators or specific measures of teacher, principal, or other school leader effectiveness or quality; or

(XI) the way in which the State factors the requirement under subsection (c)(4)(E)(i) into the statewide accountability system under this section; or

(C) to issue new non-regulatory guidance that—

(i) in seeking to provide explanation of requirements under this section for State or local educational agencies, either in response to requests for information or in anticipation of such requests, provides a strictly limited or exhaustive list to illustrate successful implementation of provisions under this section; or

(ii) purports to be legally binding; or

(D) to require data collection under this part beyond data derived from existing Federal, State, and local reporting requirements.

(2) *Defining terms.* In carrying out this part, the Secretary shall not, through regulation or as a condition of approval of the State plan or revisions or amendments to the State plan, promulgate a definition of any term used in this part, or otherwise prescribe any specification for any such term, that is inconsistent with or outside the scope of this part or is in violation of paragraph (1).

(f) *Existing State law.* Nothing in this section shall be construed to alter any State law or regulation granting parents authority over schools that repeatedly failed to make adequate yearly progress under this part, as in effect on the day before December 10, 2015.

(g) *Other plan provisions.*

(1) *Descriptions.* Each State plan shall describe—

(A) how the State will provide assistance to local educational agencies and individual elementary schools choosing to use funds under this part to support early childhood education programs;

(B) how low-income and minority children enrolled in schools assisted under this part are not served at disproportionate rates by ineffective, out-of-field, or inexperienced teachers, and the measures the State educational agency will use to evaluate and publicly report the progress of the State educational agency with respect to such description (except that nothing in this subparagraph shall be construed as requiring a State to develop or implement a teacher, principal, or other school leader evaluation system);

(C) how the State educational agency will support local educational agencies receiving assistance under this part to improve school conditions for student learning, including through reducing—

(i) incidences of bullying and harassment;

(ii) the overuse of discipline practices that remove students from the classroom; and

(iii) the use of aversive behavioral interventions that compromise student health and safety;

(D) how the State will support local educational agencies receiving assistance under this part in meeting the needs of students at all levels of schooling (particularly students in the middle grades and high school), including how the

State will work with such local educational agencies to provide effective transitions of students to middle grades and high school to decrease the risk of students dropping out;

(E) the steps a State educational agency will take to ensure collaboration with the State agency responsible for administering the State plans under parts B and E of title IV of the Social Security Act (42 U.S.C. 621 et seq. and 670 et seq.) to ensure the educational stability of children in foster care, including assurances that—

(i) any such child enrolls or remains in such child's school of origin, unless a determination is made that it is not in such child's best interest to attend the school of origin, which decision shall be based on all factors relating to the child's best interest, including consideration of the appropriateness of the current educational setting and the proximity to the school in which the child is enrolled at the time of placement;

(ii) when a determination is made that it is not in such child's best interest to remain in the school of origin, the child is immediately enrolled in a new school, even if the child is unable to produce records normally required for enrollment;

(iii) the enrolling school shall immediately contact the school last attended by any such child to obtain relevant academic and other records; and

(iv) the State educational agency will designate an employee to serve as a point of contact for child welfare agencies and to oversee implementation of the State agency responsibilities required under this subparagraph, and such point of contact shall not be the State's Coordinator for Education of Homeless Children and Youths under section 722(d)(3) of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11432(d)(3));

(F) how the State educational agency will provide support to local educational agencies in the identification, enrollment, attendance, and school stability of homeless children and youths; and

(G) such other factors the State educational agency determines appropriate to provide students an opportunity to achieve the knowledge and skills described in the challenging State academic standards.

(2) *Assurances.* Each State plan shall contain assurances that—

(A) the State will make public any methods or criteria the State is using to measure teacher, principal, or other school leader effectiveness for the purpose of meeting the requirements described in paragraph (1)(B);

(B) the State educational agency will notify local educational agencies, Indian tribes and tribal organizations, schools, teachers, parents, and the public of the challenging State academic standards, academic assessments, and State accountability system, developed under this section;

(C) the State educational agency will assist each local educational agency and school affected by the State plan to meet the requirements of this part;

(D) the State will participate in the biennial State academic assessments in reading and mathematics in grades 4 and 8 of the National Assessment of Educational Progress carried out under section 303(b)(3) of the National Assessment of Educational Progress Authorization Act (20 U.S.C. 9622(b)(3)) if the Secretary pays the costs of administering such assessments;

(E) the State educational agency will modify or eliminate State fiscal and accounting barriers so that schools can easily consolidate funds from other Federal, State, and local sources to improve educational opportunities and reduce unnecessary fiscal and accounting requirements;

(F) the State educational agency will support the collection and dissemination to local educational agencies and schools of effective parent and family engagement strategies, including those included in the parent and family engagement policy under section 6318 of this title;

(G) the State educational agency will provide the least restrictive and burdensome regulations for local educational agencies and individual schools participating in a program assisted under this part;

(H) the State educational agency will ensure that local educational agencies, in developing and implementing programs under this part, will, to the extent feasible, work in consultation with outside intermediary organizations (such as educational service agencies), or individuals, that have practical expertise in the development or use of evidence-based strategies and programs to improve teaching, learning, and schools;

(I) the State educational agency has appropriate procedures and safeguards in place to ensure the validity of the assessment process;

(J) the State educational agency will ensure that all teachers and paraprofessionals working in a program supported with funds under this part meet applicable State certification and licensure requirements, including any requirements for certification obtained through alternative routes to certification;

(K) the State educational agency will coordinate activities funded under this part with other Federal activities as appropriate;

(L) the State educational agency has involved the committee of practitioners established under section 6573(b) of this title in developing the plan and monitoring its implementation;

(M) the State has professional standards for paraprofessionals working in a program supported with funds under this part, including qualifications that were in place on the day before December 10, 2015; and

(N) the State educational agency will provide the information described in clauses (ii), (iii), and (vii) of subsection (h)(1)(C) to the public in an easily accessible and user-friendly manner that can be cross-tabulated by, at a minimum, each major racial and ethnic group, gender, English proficiency status, and children with or without disabilities, which—

(i) may be accomplished by including such information on the annual State report card described subsection (h)(1)(C); and

(ii) shall be presented in a manner that—

(I) is first anonymized and does not reveal personally identifiable information about an individual student;

(II) does not include a number of students in any subgroup of students that is insufficient to yield statistically reliable information or that would reveal personally identifiable information about an individual student; and

(III) is consistent with the requirements of section 1232g of this title (commonly known as the "Family Educational Rights and Privacy Act of 1974").

(3) *Rules of construction.* Nothing in paragraph (2)(N) shall be construed to—

(A) require groups of students obtained by any entity that cross-tabulates the information provided under such paragraph to be considered subgroups of students, as defined in subsection (c)(2), for the purposes of the State accountability system under subsection (c); or

(B) require or prohibit States or local educational agencies from publicly reporting data in a cross-tabulated manner, in order to meet the requirements of paragraph (2)(N).

(4) *Technical assistance.* Upon request by a State educational agency, the Secretary shall provide technical assistance to such agency to—

(A) meet the requirements of paragraph (2)(N); or

(B) in the case of a State educational agency choosing, at its sole discretion, to disaggregate data described in clauses (ii) and (iii)(II) of subsection (h)(1)(C) for Asian and Native Hawaiian or Pacific Islander students using the same race response categories as the decennial census of the population, assist such State educational agency in such disaggregation and in using such data to improve academic outcomes for such students.

(h) *Reports.*

(1) *Annual State report card.*

(A) *In general.* A State that receives assistance under this part shall prepare and disseminate widely to the public an annual State report card for the State as a whole that meets the requirements of this paragraph.

(B) *Implementation.* The State report card required under this paragraph shall be—

(i) concise;

(ii) presented in an understandable and uniform format that is developed in consultation with parents and, to the extent practicable, in a language that parents can understand; and

(iii) widely accessible to the public, which shall include making available on a single webpage of the State educational agency's website, the State report card, all local educational agency report cards for each local educational agency in the State required under paragraph (2), and the annual report to the Secretary under paragraph (5).

(C) *Minimum requirements.* Each State report card required under this subsection shall include the following information:

(i) A clear and concise description of the State's accountability system under subsection (c), including—

(I) the minimum number of students that the State determines are necessary to be included in each of the subgroups of students, as defined in subsection (c)(2), for use in the accountability system;

(II) the long-term goals and measurements of interim progress for all students and for each of the subgroups of students, as defined in subsection (c)(2);

(III) the indicators described in subsection (c)(4)(B) used to meaningfully differentiate all public schools in the State;

(IV) the State's system for meaningfully differentiating all public schools in the State, including—

(aa) the specific weight of the indicators described in subsection (c)(4)(B) in such differentiation;

(bb) the methodology by which the State differentiates all such schools;

(cc) the methodology by which the State differentiates a school as consistently underperforming for any subgroup of students described in section (c)(4)(C)(iii), including the time period used by the State to determine consistent underperformance; and

(dd) the methodology by which the State identifies a school for comprehensive support and improvement as required under subsection (c)(4)(D)(i);

(V) the number and names of all public schools in the State identified by the State for comprehensive support and improvement under subsection (c)(4)(D)(i) or implementing targeted support and improvement plans under subsection (d)(2); and

(VI) the exit criteria established by the State as required under clause (i) of subsection (d)(3)(A), including the length of years established under clause (i)(II) of such subsection.

(ii) For all students and disaggregated by each subgroup of students described in subsection (b)(2)(B)(xi), homeless status, status as a child in foster care, and status as a student with a parent who is a member of the Armed Forces (as defined in section 101(a)(4) of title 10), information on student achievement on the academic assessments described in subsection (b)(2) at each level of achievement, as determined by the State under subsection (b)(1).

(iii) For all students and disaggregated by each of the subgroups of students, as defined in subsection (c)(2), and for purposes of subclause (II) of this clause, homeless status and status as a child in foster care—

(I) information on the performance on the other academic indicator under subsection (c)(4)(B)(ii) for public elementary schools and secondary schools that are not high schools, used by the State in the State accountability system; and

(II) high school graduation rates, including four-year adjusted cohort graduation rates and, at the State's discretion, extended-year adjusted cohort graduation rates.

(iv) Information on the number and percentage of English learners achieving English language proficiency.

(v) For all students and disaggregated by each of the subgroups of students, as defined in subsection (c)(2), information on the performance on the other indicator or indicators of school quality or student success under subsection (c)(4)(B)(v) used by the State in the State accountability system.

(vi) Information on the progress of all students and each subgroup of students, as defined in subsection (c)(2), toward meeting the State-designed long term goals under subsection (c)(4)(A), including the progress of all students and each such subgroup of students against the State measurements of interim progress established under such subsection.

(vii) For all students and disaggregated by each subgroup of students described in subsection (b)(2)(B)(xi), the percentage of students assessed and not assessed.

(viii) Information submitted by the State educational agency and each local educational agency in the State, in accordance with data collection conducted pursuant to section 3413(c)(1) of this title, on—

(I) measures of school quality, climate, and safety, including rates of in-school suspensions, out-of-school suspensions, expulsions, school-related arrests, referrals to law enforcement, chronic absenteeism (including both excused and unexcused absences), incidences of violence, including bullying and harassment; and

(II) the number and percentage of students enrolled in—

(aa) preschool programs; and

(bb) accelerated coursework to earn postsecondary credit while still in high school, such as Advanced Placement and International Baccalaureate courses and examinations, and dual or concurrent enrollment programs.

(ix) The professional qualifications of teachers in the State, including information (that shall be presented in the aggregate and disaggregated by high-poverty compared to low-poverty schools) on the number and percentage of—

(I) inexperienced teachers, principals, and other school leaders;

(II) teachers teaching with emergency or provisional credentials; and

(III) teachers who are not teaching in the subject or field for which the teacher is certified or licensed.

(x) The per-pupil expenditures of Federal, State, and local funds, including actual personnel expenditures and actual nonpersonnel expenditures of Federal, State, and local funds, disaggregated by source of funds, for each local educational agency and each school in the State for the preceding fiscal year.

(xi) The number and percentages of students with the most significant cognitive disabilities who take an alternate assessment under subsection (b)(2)(D), by grade and subject.

(xii) Results on the State academic assessments in reading and mathematics in grades 4 and 8 of the National Assessment of Educational Progress carried out under section 303(b)(3) of the National Assessment of Educational Progress Authorization Act (20 U.S.C. 9622(b)(3)), compared to the national average of such results.

(xiii) Where available, for each high school in the State, and beginning with the report card prepared under this paragraph for 2017, the cohort rate (in the aggregate, and disaggregated for each subgroup of students defined in subsection (c)(2)), at which students who graduate from the high school enroll, for the first academic year that begins after the students' graduation—

(I) in programs of public postsecondary education in the State; and

(II) if data are available and to the extent practicable, in programs of private postsecondary education in the State or programs of postsecondary education outside the State.

(xiv) Any additional information that the State believes will best provide parents, students, and other members of the public with information regarding the progress of each of the State's public elementary schools and

secondary schools, which may include the number and percentage of students meeting State determined levels of performance for core indicators, as defined by section 113(b)(3)(A) of the Carl D. Perkins Career and Technical Education Act of 2006 (20 U.S.C. 2323(b)(3)(A)), and reported by States only in a manner consistent with section 113(b)(3)(C) of such Act (20 U.S.C. 2323(b)(3)(C)).

(D) *Rules of construction.* Nothing in subparagraph (C)(viii) shall be construed as requiring—

(i) reporting of any data that are not collected in accordance with section 3413(c)(1) of this title; or

(ii) disaggregation of any data other than as required under subsection (b)(2)(B)(xi).

(2) *Annual local educational agency report cards.*

(A) *Preparation and dissemination.* A local educational agency that receives assistance under this part shall prepare and disseminate an annual local educational agency report card that includes information on such agency as a whole and each school served by the agency.

(B) *Implementation.* Each local educational agency report card shall be—

(i) concise;

(ii) presented in an understandable and uniform format, and to the extent practicable, in a language that parents can understand; and

(iii) accessible to the public, which shall include—

(I) placing such report card on the website of the local educational agency; and

(II) in any case in which a local educational agency does not operate a website, providing the information to the public in another manner determined by the local educational agency.

(C) *Minimum requirements.* The State educational agency shall ensure that each local educational agency collects appropriate data and includes in the local educational agency's annual report the information described in paragraph (1)(C), disaggregated in the same manner as required under such paragraph, except for clause (xii) of such paragraph, as applied to the local educational agency and each school served by the local educational agency, including—

(i) in the case of a local educational agency, information that shows how students served by the local educational agency achieved on the academic assessments described in subsection (b)(2) compared to students in the State as a whole;

(ii) in the case of a school, information that shows how the school's students' achievement on the academic assessments described in subsection (b)(2) compared to students served by the local educational agency and the State as a whole; and

(iii) any other information that the local educational agency determines is appropriate and will best provide parents, students, and other members of the public with information regarding the progress of each public school served by the local educational agency, whether or not such information is included in the annual State report card.

(D) *Additional information.* In the case of a local educational agency that issues a report card for all students, the local educational agency may include the information under this section as part of such report.

(3) *Preexisting report cards.* A State educational agency or local educational agency may use public report cards on the performance of students, schools, local educational agencies, or the State, that were in effect prior to December 10, 2015, for the purpose of this subsection, so long as any such report card is modified, as may be needed, to contain the information required by this subsection, and protects the privacy of individual students.

(4) *Cost reduction.* Each State educational agency and local educational agency receiving assistance under this part shall, wherever possible, take steps to reduce data collection costs and duplication of effort by obtaining the information required under this subsection through existing data collection efforts.

(5) *Annual State report to the Secretary.* Each State educational agency receiving assistance under this part shall report annually to the Secretary, and make widely available within the State—

(A) information on the achievement of students on the academic assessments required by subsection (b)(2), including the disaggregated results for the subgroups of students as defined in subsection (c)(2);

(B) information on the acquisition of English proficiency by English learners;

(C) the number and names of each public school in the State—

(i) identified for comprehensive support and improvement under subsection (c)(4)(D)(i); and

(ii) implementing targeted support and improvement plans under subsection (d)(2); and

(D) information on the professional qualifications of teachers in the State, including information on the number and the percentage of the following teachers:

(i) Inexperienced teachers.

(ii) Teachers teaching with emergency or provisional credentials.

(iii) Teachers who are not teaching in the subject or field for which the teacher is certified or licensed.

(6) *Report to Congress.*

The Secretary shall transmit annually to the Committee on Education and the Workforce of the House of Representatives and the Committee on Health, Education, Labor, and Pensions of the Senate a report that provides national and State-level data on the information collected under paragraph (5). Such report shall be submitted through electronic means only.

(i) *Privacy.*

(1) *In general.* Information collected or disseminated under this section (including any information collected for or included in the reports described in subsection (h)) shall be collected and disseminated in a manner that protects the privacy of individuals consistent with section 1232g of this title (commonly known as the "Family Educational Rights and Privacy Act of 1974") and this chapter.

(2) *Sufficiency.* The reports described in subsection (h) shall only include data that are sufficient to yield statistically reliable information.

(3) *Disaggregation.* Disaggregation under this section shall not be required if such disaggregation will reveal personally identifiable information about any student, teacher, principal, or other school leader, or will provide data that are insufficient to yield statistically reliable information.

(j) *Voluntary partnerships.* A State retains the right to enter into a voluntary partnership with another State to develop and implement the challenging State academic standards and assessments required under this section, except that the Secretary shall not attempt to influence, incentivize, or coerce State—

(1) adoption of the Common Core State Standards developed under the Common Core State Standards Initiative or any other academic standards common to a significant number of States, or assessments tied to such standards; or

(2) participation in such partnerships.

(k) *Special rule with respect to Bureau-funded schools.* In determining the assessments to be used by each school operated or funded by the Bureau of Indian Education receiving funds under this part, the following shall apply until the requirements of section 7824(c) of this title have been met:

(1) Each such school that is accredited by the State in which it is operating shall use the assessments and other academic indicators the State has developed and implemented to meet the requirements of this section, or such other appropriate assessment and academic indicators as approved by the Secretary of the Interior.

(2) Each such school that is accredited by a regional accrediting organization (in consultation with and with the approval of the Secretary of the Interior, and consistent with assessments and academic indicators adopted by other schools in the same State or region) shall adopt an appropriate assessment and other academic indicators that meet the requirements of this section.

(3) Each such school that is accredited by a tribal accrediting agency or tribal division of education shall use an assessment and other academic indicators developed by such agency or division, except that the Secretary of the Interior shall ensure that such assessment and academic indicators meet the requirements of this section.

(l) *Construction.* Nothing in this part shall be construed to prescribe the use of the academic assessments described in this part for student promotion or graduation purposes.

20 U.S.C. § 6312

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Local educational agency plans

(a) *Plans required.*

(1) *Subgrants.* A local educational agency may receive a subgrant under this part for any fiscal year only if such agency has on file with the State educational agency a plan, approved by the State educational agency, that—

(A) is developed with timely and meaningful consultation with teachers, principals, other school leaders, paraprofessionals, specialized instructional support personnel, charter school leaders (in a local educational agency that has charter schools), administrators (including administrators of programs described in other parts of this subchapter), other appropriate school personnel, and with parents of children in schools served under this part; and

(B) as appropriate, is coordinated with other programs under this chapter, the Individuals with Disabilities Education Act (20 U.S.C. 1400 et seq.), the Rehabilitation Act of 1973 (20 U.S.C. 701 et seq.), the Carl D. Perkins Career and Technical Education Act of 2006 (20 U.S.C. 2301 et seq.), the Workforce Innovation and Opportunity Act (29 U.S.C. 3101 et seq.), the Head Start Act (42 U.S.C. 9831 et seq.), the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11301 et seq.), the Adult Education and Family Literacy Act (29 U.S.C. 3271 et seq.), and other Acts as appropriate.

(2) *Consolidated application.* The plan may be submitted as part of a consolidated application under section 7845 of this title.

(3) *State approval.*

(A) *In general.* Each local educational agency plan shall be filed according to a schedule established by the State educational agency.

(B) *Approval.* The State educational agency shall approve a local educational agency's plan only if the State educational agency determines that the local educational agency's plan—

(i) provides that schools served under this part substantially help children served under this part meet the challenging State academic standards; and

(ii) meets the requirements of this section.

(4) *Duration.* Each local educational agency plan shall be submitted for the first year for which this part is in effect following December 10, 2015, and shall remain in effect for the duration of the agency's participation under this part.

(5) *Review.* Each local educational agency shall periodically review and, as necessary, revise its plan.

(6) *Rule of construction.* Consultation required under paragraph (1)(A) shall not interfere with the timely submission of the plan required under this section.

(b) *Plan provisions.* To ensure that all children receive a high-quality education, and to close the achievement gap between children meeting the challenging State academic standards and those children who are not meeting such standards, each local educational agency plan shall describe—

(1) how the local educational agency will monitor students' progress in meeting the challenging State academic standards by—

(A) developing and implementing a well-rounded program of instruction to meet the academic needs of all students;

(B) identifying students who may be at risk for academic failure;

(C) providing additional educational assistance to individual students the local educational agency or school determines need help in meeting the challenging State academic standards; and

(D) identifying and implementing instructional and other strategies intended to strengthen academic programs and improve school conditions for student learning;

(2) how the local educational agency will identify and address, as required under State plans as described in section 6311(g)(1)(B) of this title, any disparities that result in low-income students and minority students being taught at higher rates than other students by ineffective, inexperienced, or out-of-field teachers;

(3) how the local educational agency will carry out its responsibilities under paragraphs (1) and (2) of section 6311(d) of this title;

(4) the poverty criteria that will be used to select school attendance areas under section 6313 of this title;

(5) in general, the nature of the programs to be conducted by such agency's schools under sections 6314 and 6315 of this title and, where appropriate, educational services outside such schools for children living in local institutions for neglected or delinquent children, and for neglected and delinquent children in community day school programs;

(6) the services the local educational agency will provide homeless children and youths, including services provided with funds reserved under section 6313(c)(3)(A) of this title, to support the enrollment, attendance, and success of homeless children and youths, in coordination with the services the local educational agency is providing under the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11301 et seq.);

(7) the strategy the local educational agency will use to implement effective parent and family engagement under section 6318 of this title;

(8) if applicable, how the local educational agency will support, coordinate, and integrate services provided under this part with early childhood education programs at the local educational agency or individual school level, including plans for the transition of participants in such programs to local elementary school programs;

(9) how teachers and school leaders, in consultation with parents, administrators, paraprofessionals, and specialized instructional support personnel, in schools operating a targeted assistance school program under section 6315 of this title, will identify the eligible children most in need of services under this part;

(10) how the local educational agency will implement strategies to facilitate effective transitions for students from middle grades to high school and from high school to postsecondary education including, if applicable—

(A) through coordination with institutions of higher education, employers, and other local partners; and

(B) through increased student access to early college high school or dual or concurrent enrollment opportunities, or career counseling to identify student interests and skills;

(11) how the local educational agency will support efforts to reduce the overuse of discipline practices that remove students from the classroom, which may include identifying and supporting schools with high rates of discipline, disaggregated by each of the subgroups of students, as defined in section 6311(c)(2) of this title;

(12) if determined appropriate by the local educational agency, how such agency will support programs that coordinate and integrate—

(A) academic and career and technical education content through coordinated instructional strategies, that may incorporate experiential learning opportunities and promote skills attainment important to in-demand occupations

or industries in the State; and

(B) work-based learning opportunities that provide students in-depth interaction with industry professionals and, if appropriate, academic credit; and

(13) any other information on how the local educational agency proposes to use funds to meet the purposes of this part, and that the local educational agency determines appropriate to provide, which may include how the local educational agency will—

(A) assist schools in identifying and serving gifted and talented students; and

(B) assist schools in developing effective school library programs to provide students an opportunity to develop digital literacy skills and improve academic achievement.

(c) *Assurances.* Each local educational agency plan shall provide assurances that the local educational agency will—

(1) ensure that migratory children and formerly migratory children who are eligible to receive services under this part are selected to receive such services on the same basis as other children who are selected to receive services under this part;

(2) provide services to eligible children attending private elementary schools and secondary schools in accordance with section 6320 of this title, and timely and meaningful consultation with private school officials regarding such services;

(3) participate, if selected, in the National Assessment of Educational Progress in reading and mathematics in grades 4 and 8 carried out under section 9622(b)(3) of this title;

(4) coordinate and integrate services provided under this part with other educational services at the local educational agency or individual school level, such as services for English learners, children with disabilities, migratory children, American Indian, Alaska Native, and Native Hawaiian children, and homeless children and youths, in order to increase program effectiveness, eliminate duplication, and reduce fragmentation of the instructional program;

(5) collaborate with the State or local child welfare agency to—

(A) designate a point of contact if the corresponding child welfare agency notifies the local educational agency, in writing, that the agency has designated an employee to serve as a point of contact for the local educational agency; and

(B) by not later than 1 year after December 10, 2015, develop and implement clear written procedures governing how transportation to maintain children in foster care in their school of origin when in their best interest will be provided, arranged, and funded for the duration of the time in foster care, which procedures shall—

(i) ensure that children in foster care needing transportation to the school of origin will promptly receive transportation in a cost-effective manner and in accordance with section 675(4)(A) of title 42; and

(ii) ensure that, if there are additional costs incurred in providing transportation to maintain children in foster care in their schools of origin, the local educational agency will provide transportation to the school of origin if—

(I) the local child welfare agency agrees to reimburse the local educational agency for the cost of such transportation;

(II) the local educational agency agrees to pay for the cost of such transportation; or

(III) the local educational agency and the local child welfare agency agree to share the cost of such transportation; and

(6) ensure that all teachers and paraprofessionals working in a program supported with funds under this part meet applicable State certification and licensure requirements, including any requirements for certification obtained through alternative routes to certification; and

(7) in the case of a local educational agency that chooses to use funds under this part to provide early childhood education services to low-income children below the age of compulsory school attendance, ensure that such services comply with the performance standards established under section 641A(a) of the Head Start Act (42 U.S.C. 9836a(a)).

(d) *Special rule.* For local educational agencies using funds under this part for the purposes described in subsection (c)(7), the Secretary shall—

(1) consult with the Secretary of Health and Human Services and establish procedures (taking into consideration existing State and local laws, and local teacher contracts) to assist local educational agencies to comply with such subsection; and

(2) disseminate to local educational agencies the education performance standards in effect under section 641A(a) of the Head Start Act (42 U.S.C. 9836a(a)), and such agencies affected by such subsection (c)(7) shall plan to comply with such subsection (taking into consideration existing State and local laws, and local teacher contracts), including by pursuing the availability of other Federal, State, and local funding sources to assist with such compliance.

(e) *Parents right-to-know.*

(1) *Information for parents.*

(A) *In general.* At the beginning of each school year, a local educational agency that receives funds under this part shall notify the parents of each student attending any school receiving funds under this part that the parents may request, and the agency will provide the parents on request (and in a timely manner), information regarding the professional qualifications of the student's classroom teachers, including at a minimum, the following:

(i) Whether the student's teacher—

(I) has met State qualification and licensing criteria for the grade levels and subject areas in which the teacher provides instruction;

(II) is teaching under emergency or other provisional status through which State qualification or licensing criteria have been waived; and

(III) is teaching in the field of discipline of the certification of the teacher.

(ii) Whether the child is provided services by paraprofessionals and, if so, their qualifications.

(B) *Additional information.* In addition to the information that parents may request under subparagraph (A), a school that receives funds under this part shall provide to each individual parent of a child who is a student in such school, with respect to such student—

(i) information on the level of achievement and academic growth of the student, if applicable and available, on each of the State academic assessments required under this part; and

(ii) timely notice that the student has been assigned, or has been taught for 4 or more consecutive weeks by, a teacher who does not meet applicable State certification or licensure requirements at the grade level and subject area in which the teacher has been assigned.

(2) *Testing transparency.*

(A) *In general.* At the beginning of each school year, a local educational agency that receives funds under this part shall notify the parents of each student attending any school receiving funds under this part that the parents may request, and the local educational agency will provide the parents on request (and in a timely manner), information regarding any State or local educational agency policy regarding student participation in any assessments mandated by section 6311(b)(2) of this title and by the State or local educational agency, which shall include a policy, procedure, or parental right to opt the child out of such assessment, where applicable.

(B) *Additional information.* Subject to subparagraph (C), each local educational agency that receives funds under this part shall make widely available through public means (including by posting in a clear and easily accessible manner on the local educational agency's website and, where practicable, on the website of each school served by the local educational agency) for each grade served by the local educational agency, information on each assessment required by the State to comply with section 6311 of this title, other assessments required by the State, and where such information is available and feasible to report, assessments required districtwide by the local educational agency, including—

(i) the subject matter assessed;

(ii) the purpose for which the assessment is designed and used;

(iii) the source of the requirement for the assessment; and

(iv) where such information is available—

(I) the amount of time students will spend taking the assessment, and the schedule for the assessment; and

(II) the time and format for disseminating results.

(C) *Local educational agency that does not operate a website.* In the case of a local educational agency that does not operate a website, such local educational agency shall determine how to make the information described in subparagraph (A) widely available, such as through distribution of that information to the media, through public agencies, or directly to parents.

(3) *Language instruction.*

(A) *Notice.* Each local educational agency using funds under this part or subchapter III to provide a language instruction educational program as determined under subchapter III shall, not later than 30 days after the beginning of the school year, inform parents of an English learner identified for participation or participating in such a program, of—

(i) the reasons for the identification of their child as an English learner and in need of placement in a language instruction educational program;

(ii) the child's level of English proficiency, how such level was assessed, and the status of the child's academic achievement;

(iii) the methods of instruction used in the program in which their child is, or will be, participating and the methods of instruction used in other available programs, including how such programs differ in content, instructional goals, and the use of English and a native language in instruction;

(iv) how the program in which their child is, or will be, participating will meet the educational strengths and

needs of their child;

(v) how such program will specifically help their child learn English and meet age-appropriate academic achievement standards for grade promotion and graduation;

(vi) the specific exit requirements for the program, including the expected rate of transition from such program into classrooms that are not tailored for English learners, and the expected rate of graduation from high school (including four-year adjusted cohort graduation rates and extended-year adjusted cohort graduation rates for such program) if funds under this part are used for children in high schools;

(vii) in the case of a child with a disability, how such program meets the objectives of the individualized education program of the child, as described in section 614(d) of the Individuals with Disabilities Education Act (20 U.S.C. 1414(d)); and

(viii) information pertaining to parental rights that includes written guidance—

(I) detailing the right that parents have to have their child immediately removed from such program upon their request;

(II) detailing the options that parents have to decline to enroll their child in such program or to choose another program or method of instruction, if available; and

(III) assisting parents in selecting among various programs and methods of instruction, if more than 1 program or method is offered by the eligible entity.

(B) *Special rule applicable during the school year.* For those children who have not been identified as English learners prior to the beginning of the school year but are identified as English learners during such school year, the local educational agency shall notify the children's parents during the first 2 weeks of the child being placed in a language instruction educational program consistent with subparagraph (A).

(C) *Parental participation.*

(i) *In general.* Each local educational agency receiving funds under this part shall implement an effective means of outreach to parents of English learners to inform the parents regarding how the parents can—

(I) be involved in the education of their children; and

(II) be active participants in assisting their children to—

(aa) attain English proficiency;

(bb) achieve at high levels within a well-rounded education; and

(cc) meet the challenging State academic standards expected of all students.

(ii) *Regular meetings.* Implementing an effective means of outreach to parents under clause (i) shall include holding, and sending notice of opportunities for, regular meetings for the purpose of formulating and responding to recommendations from parents of students assisted under this part or subchapter III.

(D) *Basis for admission or exclusion.* A student shall not be admitted to, or excluded from, any federally assisted education program on the basis of a surname or language-minority status.

(4) *Notice and format.* The notice and information provided to parents under this subsection shall be in an understandable and uniform format and, to the extent practicable, provided in a language that the parents can understand.

20 U.S.C. § 6315

Cited by the petitioners 0 times (0 filings) and their amici 2 (1); by the respondent 0 (0) and its amici 0 (0).

Targeted assistance schools

(a) *In general.* In all schools selected to receive funds under section 6313(c) of this title that are ineligible for a schoolwide program under section 6314 of this title, have not received a waiver under section 6314(a)(1)(B) of this title to operate such a schoolwide program, or choose not to operate such a schoolwide program, a local educational agency serving such school may use funds received under this part only for programs that provide services to eligible children under subsection (c) identified as having the greatest need for special assistance.

(b) *Targeted assistance school program.* To assist targeted assistance schools and local educational agencies to meet their responsibility to provide for all their students served under this part the opportunity to meet the challenging State academic standards, each targeted assistance program under this section shall—

(1) determine which students will be served;

(2) serve participating students identified as eligible children under subsection (c), including by—

(A) using resources under this part to help eligible children meet the challenging State academic standards, which may include programs, activities, and academic courses necessary to provide a well-rounded education;

(B) using methods and instructional strategies to strengthen the academic program of the school through activities, which may include—

(i) expanded learning time, before- and after-school programs, and summer programs and opportunities; and

(ii) a schoolwide tiered model to prevent and address behavior problems, and early intervening services, coordinated with similar activities and services carried out under the Individuals with Disabilities Education Act

(20 U.S.C. 1400 et seq.);

(C) coordinating with and supporting the regular education program, which may include services to assist preschool children in the transition from early childhood education programs such as Head Start, the literacy program under subpart 2 of part B of subchapter II, or State-run preschool programs to elementary school programs;

(D) providing professional development with resources provided under this part, and, to the extent practicable, from other sources, to teachers, principals, other school leaders, paraprofessionals, and, if appropriate, specialized instructional support personnel, and other school personnel who work with eligible children in programs under this section or in the regular education program;

(E) implementing strategies to increase the involvement of parents of eligible children in accordance with section 6318 of this title; and

(F) if appropriate and applicable, coordinating and integrating Federal, State, and local services and programs, such as programs supported under this chapter, violence prevention programs, nutrition programs, housing programs, Head Start programs, adult education programs, career and technical education programs, and comprehensive support and improvement activities or targeted support and improvement activities under section 6311(d) of this title; and

(G) provide to the local educational agency assurances that the school will—

(i) help provide an accelerated, high-quality curriculum;

(ii) minimize the removal of children from the regular classroom during regular school hours for instruction provided under this part; and

(iii) on an ongoing basis, review the progress of eligible children and revise the targeted assistance program under this section, if necessary, to provide additional assistance to enable such children to meet the challenging State academic standards.

(c) *Eligible children.*

(1) *Eligible population.*

(A) *In general.* The eligible population for services under this section is—

(i) children not older than age 21 who are entitled to a free public education through grade 12; and

(ii) children who are not yet at a grade level at which the local educational agency provides a free public education.

(B) *Eligible children from eligible population.* From the population described in subparagraph (A), eligible children are children identified by the school as failing, or most at risk of failing, to meet the challenging State academic standards on the basis of multiple, educationally related, objective criteria established by the local educational agency and supplemented by the school, except that children from preschool through grade 2 shall be selected solely on the basis of criteria, including objective criteria, established by the local educational agency and supplemented by the school.

(2) *Children included.*

(A) *In general.* Children who are economically disadvantaged, children with disabilities, migrant children or English learners, are eligible for services under this part on the same basis as other children selected to receive services under this part.

(B) *Head Start and preschool children.* A child who, at any time in the 2 years preceding the year for which the determination is made, participated in a Head Start program, the literacy program under subpart 2 of part B of subchapter II, or in preschool services under this subchapter, is eligible for services under this part.

(C) *Migrant children.* A child who, at any time in the 2 years preceding the year for which the determination is made, received services under part C is eligible for services under this part.

(D) *Neglected or delinquent children.* A child in a local institution for neglected or delinquent children and youth or attending a community day program for such children is eligible for services under this part.

(E) *Homeless children.* A child who is homeless and attending any school served by the local educational agency is eligible for services under this part.

(3) *Special rule.* Funds received under this part may not be used to provide services that are otherwise required by law to be made available to children described in paragraph (2) but may be used to coordinate or supplement such services.

(d) *Integration of professional development.* To promote the integration of staff supported with funds under this part into the regular school program and overall school planning and improvement efforts, public school personnel who are paid with funds received under this part may—

(1) participate in general professional development and school planning activities; and

(2) assume limited duties that are assigned to similar personnel who are not so paid, including duties beyond classroom instruction or that do not benefit participating children, so long as the amount of time spent on such duties is the same proportion of total work time as prevails with respect to similar personnel at the same school.

(e) *Special rules.*

(1) *Simultaneous service.* Nothing in this section shall be construed to prohibit a school from serving students under this section simultaneously with students with similar educational needs, in the same educational settings where appropriate.

(2) *Comprehensive services.* If—

(A) health, nutrition, and other social services are not otherwise available to eligible children in a targeted assistance school and such school, if appropriate, has engaged in a comprehensive needs assessment and established a collaborative partnership with local service providers; and

(B) funds are not reasonably available from other public or private sources to provide such services, then a portion of the funds provided under this part may be used as a last resort to provide such services, including—

(i) the provision of basic medical equipment, such as eyeglasses and hearing aids;

(ii) compensation of a coordinator;

(iii) family support and engagement services;

(iv) integrated student supports; and

(v) professional development necessary to assist teachers, specialized instructional support personnel, other staff, and parents in identifying and meeting the comprehensive needs of eligible children.

(f) *Use of funds for dual or concurrent enrollment programs.* A secondary school operating a targeted assistance program under this section may use funds received under this part to provide dual or concurrent enrollment program services described under section 6314(e) of this title to eligible children under subsection (c)(1)(B) who are identified as having the greatest need for special assistance.

(g) *Prohibition.* Nothing in this section shall be construed to authorize the Secretary or any other officer or employee of the Federal Government to require a local educational agency or school to submit the results of a comprehensive needs assessment or plan under section 6314(b) of this title, or a program described in subsection (b), for review or approval by the Secretary.

(h) *Delivery of services.* The services of a targeted assistance program under this section may be delivered by nonprofit or for-profit external providers with expertise in using evidence-based or other effective strategies to improve student achievement.

20 U.S.C. § 1232g

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Family educational and privacy rights

(a) *Conditions for availability of funds to educational agencies or institutions; inspection and review of education records; specific information to be made available; procedure for access to education records; reasonableness of time for such access; hearings; written explanations by parents; definitions.*

(1)

(A) No funds shall be made available under any applicable program to any educational agency or institution which has a policy of denying, or which effectively prevents, the parents of students who are or have been in attendance at a school of such agency or at such institution, as the case may be, the right to inspect and review the education records of their children. If any material or document in the education record of a student includes information on more than one student, the parents of one of such students shall have the right to inspect and review only such part of such material or document as relates to such student or to be informed of the specific information contained in such part of such material. Each educational agency or institution shall establish appropriate procedures for the granting of a request by parents for access to the education records of their children within a reasonable period of time, but in no case more than forty-five days after the request has been made.

(B) No funds under any applicable program shall be made available to any State educational agency (whether or not that agency is an educational agency or institution under this section) that has a policy of denying, or effectively prevents, the parents of students the right to inspect and review the education records maintained by the State educational agency on their children who are or have been in attendance at any school of an educational agency or institution that is subject to the provisions of this section.

(C) The first sentence of subparagraph (A) shall not operate to make available to students in institutions of postsecondary education the following materials:

(i) financial records of the parents of the student or any information contained therein;

(ii) confidential letters and statements of recommendation, which were placed in the education records prior to January 1, 1975, if such letters or statements are not used for purposes other than those for which they were specifically intended;

(iii) if the student has signed a waiver of the student's right of access under this subsection in accordance with subparagraph (D), confidential recommendations—

(I) respecting admission to any educational agency or institution,

(II) respecting an application for employment, and

(III) respecting the receipt of an honor or honorary recognition.

(D) A student or a person applying for admission may waive his right of access to confidential statements described in clause (iii) of subparagraph (C), except that such waiver shall apply to recommendations only if (i) the student is, upon request, notified of the names of all persons making confidential recommendations and (ii) such recommendations are used solely for the purpose for which they were specifically intended. Such waivers may not be required as a condition for admission to, receipt of financial aid from, or receipt of any other services or benefits from such agency or institution.

(2) No funds shall be made available under any applicable program to any educational agency or institution unless the parents of students who are or have been in attendance at a school of such agency or at such institution are provided an opportunity for a hearing by such agency or institution, in accordance with regulations of the Secretary, to challenge the content of such student's education records, in order to insure that the records are not inaccurate, misleading, or otherwise in violation of the privacy rights of students, and to provide an opportunity for the correction or deletion of any such inaccurate, misleading or otherwise inappropriate data contained therein and to insert into such records a written explanation of the parents respecting the content of such records.

(3) For the purposes of this section the term "educational agency or institution" means any public or private agency or institution which is the recipient of funds under any applicable program.

(4)

(A) For the purposes of this section, the term "education records" means, except as may be provided otherwise in subparagraph (B), those records, files, documents, and other materials which—

(i) contain information directly related to a student; and

(ii) are maintained by an educational agency or institution or by a person acting for such agency or institution.

(B) The term "education records" does not include—

(i) records of instructional, supervisory, and administrative personnel and educational personnel ancillary thereto which are in the sole possession of the maker thereof and which are not accessible or revealed to any other person except a substitute;

(ii) records maintained by a law enforcement unit of the educational agency or institution that were created by that law enforcement unit for the purpose of law enforcement;

(iii) in the case of persons who are employed by an educational agency or institution but who are not in attendance at such agency or institution, records made and maintained in the normal course of business which relate exclusively to such person in that person's capacity as an employee and are not available for use for any other purpose; or

(iv) records on a student who is eighteen years of age or older, or is attending an institution of postsecondary education, which are made or maintained by a physician, psychiatrist, psychologist, or other recognized professional or paraprofessional acting in his professional or paraprofessional capacity, or assisting in that capacity, and which are made, maintained, or used only in connection with the provision of treatment to the student, and are not available to anyone other than persons providing such treatment, except that such records can be personally reviewed by a physician or other appropriate professional of the student's choice.

(5)

(A) For the purposes of this section the term "directory information" relating to a student includes the following: the student's name, address, telephone listing, date and place of birth, major field of study, participation in officially recognized activities and sports, weight and height of members of athletic teams, dates of attendance, degrees and awards received, and the most recent previous educational agency or institution attended by the student.

(B) Any educational agency or institution making public directory information shall give public notice of the categories of information which it has designated as such information with respect to each student attending the institution or agency and shall allow a reasonable period of time after such notice has been given for a parent to inform the institution or agency that any or all of the information designated should not be released without the parent's prior consent.

(6) For the purposes of this section, the term "student" includes any person with respect to whom an educational agency or institution maintains education records or personally identifiable information, but does not include a person who has not been in attendance at such agency or institution.

(b) *Release of education records; parental consent requirement; exceptions; compliance with judicial orders and subpoenas; audit and evaluation of federally-supported education programs; recordkeeping.*

(1) No funds shall be made available under any applicable program to any educational agency or institution which has a policy or practice of permitting the release of education records (or personally identifiable information contained therein other than directory information, as defined in paragraph (5) of subsection (a)) of students without the

written consent of their parents to any individual, agency, or organization, other than to the following—

(A) other school officials, including teachers within the educational institution or local educational agency, who have been determined by such agency or institution to have legitimate educational interests, including the educational interests of the child for whom consent would otherwise be required;

(B) officials of other schools or school systems in which the student seeks or intends to enroll, upon condition that the student's parents be notified of the transfer, receive a copy of the record if desired, and have an opportunity for a hearing to challenge the content of the record;

(C)

(i) authorized representatives of (I) the Comptroller General of the United States, (II) the Secretary, or (III) State educational authorities, under the conditions set forth in paragraph (3), or (ii) authorized representatives of the Attorney General for law enforcement purposes under the same conditions as apply to the Secretary under paragraph (3);

(D) in connection with a student's application for, or receipt of, financial aid;

(E) State and local officials or authorities to whom such information is specifically allowed to be reported or disclosed pursuant to State statute adopted—

(i) before November 19, 1974, if the allowed reporting or disclosure concerns the juvenile justice system and such system's ability to effectively serve the student whose records are released, or

(ii) after November 19, 1974, if—

(I) the allowed reporting or disclosure concerns the juvenile justice system and such system's ability to effectively serve, prior to adjudication, the student whose records are released; and

(II) the officials and authorities to whom such information is disclosed certify in writing to the educational agency or institution that the information will not be disclosed to any other party except as provided under State law without the prior written consent of the parent of the student.

(F) organizations conducting studies for, or on behalf of, educational agencies or institutions for the purpose of developing, validating, or administering predictive tests, administering student aid programs, and improving instruction, if such studies are conducted in such a manner as will not permit the personal identification of students and their parents by persons other than representatives of such organizations and such information will be destroyed when no longer needed for the purpose for which it is conducted;

(G) accrediting organizations in order to carry out their accrediting functions;

(H) parents of a dependent student of such parents, as defined in section 152 of title 26;

(I) subject to regulations of the Secretary, in connection with an emergency, appropriate persons if the knowledge of such information is necessary to protect the health or safety of the student or other persons;

(J)

(i) the entity or persons designated in a Federal grand jury subpoena, in which case the court shall order, for good cause shown, the educational agency or institution (and any officer, director, employee, agent, or attorney for such agency or institution) on which the subpoena is served, to not disclose to any person the existence or contents of the subpoena or any information furnished to the grand jury in response to the subpoena; and

(ii) the entity or persons designated in any other subpoena issued for a law enforcement purpose, in which case the court or other issuing agency may order, for good cause shown, the educational agency or institution (and any officer, director, employee, agent, or attorney for such agency or institution) on which the subpoena is served, to not disclose to any person the existence or contents of the subpoena or any information furnished in response to the subpoena;

(K) the Secretary of Agriculture, or authorized representative from the Food and Nutrition Service or contractors acting on behalf of the Food and Nutrition Service, for the purposes of conducting program monitoring, evaluations, and performance measurements of State and local educational and other agencies and institutions receiving funding or providing benefits of 1 or more programs authorized under the Richard B. Russell National School Lunch Act (42 U.S.C. 1751 et seq.) or the Child Nutrition Act of 1966 (42 U.S.C. 1771 et seq.) for which the results will be reported in an aggregate form that does not identify any individual, on the conditions that—

(i) any data collected under this subparagraph shall be protected in a manner that will not permit the personal identification of students and their parents by other than the authorized representatives of the Secretary; and

(ii) any personally identifiable data shall be destroyed when the data are no longer needed for program monitoring, evaluations, and performance measurements; and

(L) an agency caseworker or other representative of a State or local child welfare agency, or tribal organization (as defined in section 5304 of title 25), who has the right to access a student's case plan, as defined and determined by the State or tribal organization, when such agency or organization is legally responsible, in accordance with State or tribal law, for the care and protection of the student, provided that the education records, or the personally identifiable information contained in such records, of the student will not be disclosed by such agency or

organization, except to an individual or entity engaged in addressing the student's education needs and authorized by such agency or organization to receive such disclosure and such disclosure is consistent with the State or tribal laws applicable to protecting the confidentiality of a student's education records.

Nothing in subparagraph (E) of this paragraph shall prevent a State from further limiting the number or type of State or local officials who will continue to have access thereunder.

(2) No funds shall be made available under any applicable program to any educational agency or institution which has a policy or practice of releasing, or providing access to, any personally identifiable information in education records other than directory information, or as is permitted under paragraph (1) of this subsection, unless—

(A) there is written consent from the student's parents specifying records to be released, the reasons for such release, and to whom, and with a copy of the records to be released to the student's parents and the student if desired by the parents, or

(B) except as provided in paragraph (1)(J), such information is furnished in compliance with judicial order, or pursuant to any lawfully issued subpoena, upon condition that parents and the students are notified of all such orders or subpoenas in advance of the compliance therewith by the educational institution or agency, except when a parent is a party to a court proceeding involving child abuse and neglect (as defined in section 3 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5101 note)) or dependency matters, and the order is issued in the context of that proceeding, additional notice to the parent by the educational agency or institution is not required.

(3) Nothing contained in this section shall preclude authorized representatives of (A) the Comptroller General of the United States, (B) the Secretary, or (C) State educational authorities from having access to student or other records which may be necessary in connection with the audit and evaluation of Federally-supported education programs, or in connection with the enforcement of the Federal legal requirements which relate to such programs: Provided, That except when collection of personally identifiable information is specifically authorized by Federal law, any data collected by such officials shall be protected in a manner which will not permit the personal identification of students and their parents by other than those officials, and such personally identifiable data shall be destroyed when no longer needed for such audit, evaluation, and enforcement of Federal legal requirements.

(4)

(A) Each educational agency or institution shall maintain a record, kept with the education records of each student, which will indicate all individuals (other than those specified in paragraph (1)(A) of this subsection), agencies, or organizations which have requested or obtained access to a student's education records maintained by such educational agency or institution, and which will indicate specifically the legitimate interest that each such person, agency, or organization has in obtaining this information. Such record of access shall be available only to parents, to the school official and his assistants who are responsible for the custody of such records, and to persons or organizations authorized in, and under the conditions of, clauses (A) and (C) of paragraph (1) as a means of auditing the operation of the system.

(B) With respect to this subsection, personal information shall only be transferred to a third party on the condition that such party will not permit any other party to have access to such information without the written consent of the parents of the student. If a third party outside the educational agency or institution permits access to information in violation of paragraph (2)(A), or fails to destroy information in violation of paragraph (1)(F), the educational agency or institution shall be prohibited from permitting access to information from education records to that third party for a period of not less than five years.

(5) Nothing in this section shall be construed to prohibit State and local educational officials from having access to student or other records which may be necessary in connection with the audit and evaluation of any federally or State supported education program or in connection with the enforcement of the Federal legal requirements which relate to any such program, subject to the conditions specified in the proviso in paragraph (3).

(6)

(A) Nothing in this section shall be construed to prohibit an institution of postsecondary education from disclosing, to an alleged victim of any crime of violence (as that term is defined in section 16 of title 18), or a nonforcible sex offense, the final results of any disciplinary proceeding conducted by such institution against the alleged perpetrator of such crime or offense with respect to such crime or offense.

(B) Nothing in this section shall be construed to prohibit an institution of postsecondary education from disclosing the final results of any disciplinary proceeding conducted by such institution against a student who is an alleged perpetrator of any crime of violence (as that term is defined in section 16 of title 18), or a nonforcible sex offense, if the institution determines as a result of that disciplinary proceeding that the student committed a violation of the institution's rules or policies with respect to such crime or offense.

(C) For the purpose of this paragraph, the final results of any disciplinary proceeding—

(i) shall include only the name of the student, the violation committed, and any sanction imposed by the institution on that student; and

(ii) may include the name of any other student, such as a victim or witness, only with the written consent of that other student.

(7)

(A) Nothing in this section may be construed to prohibit an educational institution from disclosing information provided to the institution under section 14071 of title 42 concerning registered sex offenders who are required to register under such section.

(B) The Secretary shall take appropriate steps to notify educational institutions that disclosure of information described in subparagraph (A) is permitted.

(c) *Surveys or data-gathering activities; regulations.* Not later than 240 days after October 20, 1994, the Secretary shall adopt appropriate regulations or procedures, or identify existing regulations or procedures, which protect the rights of privacy of students and their families in connection with any surveys or data-gathering activities conducted, assisted, or authorized by the Secretary or an administrative head of an education agency. Regulations established under this subsection shall include provisions controlling the use, dissemination, and protection of such data. No survey or data-gathering activities shall be conducted by the Secretary, or an administrative head of an education agency under an applicable program, unless such activities are authorized by law.

(d) *Students' rather than parents' permission or consent.* For the purposes of this section, whenever a student has attained eighteen years of age, or is attending an institution of postsecondary education, the permission or consent required of and the rights accorded to the parents of the student shall thereafter only be required of and accorded to the student.

(e) *Informing parents or students of rights under this section.* No funds shall be made available under any applicable program to any educational agency or institution unless such agency or institution effectively informs the parents of students, or the students, if they are eighteen years of age or older, or are attending an institution of postsecondary education, of the rights accorded them by this section.

(f) *Enforcement; termination of assistance.* The Secretary shall take appropriate actions to enforce this section and to deal with violations of this section, in accordance with this chapter, except that action to terminate assistance may be taken only if the Secretary finds there has been a failure to comply with this section, and he has determined that compliance cannot be secured by voluntary means.

(g) *Office and review board; creation; functions.* The Secretary shall establish or designate an office and review board within the Department for the purpose of investigating, processing, reviewing, and adjudicating violations of this section and complaints which may be filed concerning alleged violations of this section. Except for the conduct of hearings, none of the functions of the Secretary under this section shall be carried out in any of the regional offices of such Department.

(h) *Disciplinary records; disclosure.* Nothing in this section shall prohibit an educational agency or institution from—

(1) including appropriate information in the education record of any student concerning disciplinary action taken against such student for conduct that posed a significant risk to the safety or well-being of that student, other students, or other members of the school community; or

(2) disclosing such information to teachers and school officials, including teachers and school officials in other schools, who have legitimate educational interests in the behavior of the student.

(i) *Drug and alcohol violation disclosures.*

(1) *In general.* Nothing in this Act or the Higher Education Act of 1965 [20 U.S.C. 1001 et seq.] shall be construed to prohibit an institution of higher education from disclosing, to a parent or legal guardian of a student, information regarding any violation of any Federal, State, or local law, or of any rule or policy of the institution, governing the use or possession of alcohol or a controlled substance, regardless of whether that information is contained in the student's education records, if—

(A) the student is under the age of 21; and

(B) the institution determines that the student has committed a disciplinary violation with respect to such use or possession.

(2) *State law regarding disclosure.* Nothing in paragraph (1) shall be construed to supersede any provision of State law that prohibits an institution of higher education from making the disclosure described in subsection (a).

(j) *Investigation and prosecution of terrorism.*

(1) *In general.* Notwithstanding subsections (a) through (i) or any provision of State law, the Attorney General (or any Federal officer or employee, in a position not lower than an Assistant Attorney General, designated by the Attorney General) may submit a written application to a court of competent jurisdiction for an ex parte order requiring an educational agency or institution to permit the Attorney General (or his designee) to—

(A) collect education records in the possession of the educational agency or institution that are relevant to an authorized investigation or prosecution of an offense listed in section 2332b(g)(5)(B) of title 18, or an act of domestic or international terrorism as defined in section 2331 of that title; and

(B) for official purposes related to the investigation or prosecution of an offense described in paragraph (1)(A), retain, disseminate, and use (including as evidence at trial or in other administrative or judicial proceedings) such

records, consistent with such guidelines as the Attorney General, after consultation with the Secretary, shall issue to protect confidentiality.

(2) *Application and approval.*

(A) *In general.—.* An application under paragraph (1) shall certify that there are specific and articulable facts giving reason to believe that the education records are likely to contain information described in paragraph (1)(A).

(B) The court shall issue an order described in paragraph (1) if the court finds that the application for the order includes the certification described in subparagraph (A).

(3) *Protection of educational agency or institution.* An educational agency or institution that, in good faith, produces education records in accordance with an order issued under this subsection shall not be liable to any person for that production.

(4) *Record-keeping.* Subsection (b)(4) does not apply to education records subject to a court order under this subsection.

21 U.S.C. § 829

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Prescriptions

(a) *Schedule II substances.* Except when dispensed directly by a practitioner, other than a pharmacist, to an ultimate user, no controlled substance in schedule II, which is a prescription drug as determined under the Federal Food, Drug, and Cosmetic Act [21 U.S.C. 301 et seq.], may be dispensed without the written prescription of a practitioner, except that in emergency situations, as prescribed by the Secretary by regulation after consultation with the Attorney General, such drug may be dispensed upon oral prescription in accordance with section 503(b) of that Act [21 U.S.C. 353(b)]. Prescriptions shall be retained in conformity with the requirements of section 827 of this title. No prescription for a controlled substance in schedule II may be refilled.

(b) *Schedule III and IV substances.* Except when dispensed directly by a practitioner, other than a pharmacist, to an ultimate user, no controlled substance in schedule III or IV, which is a prescription drug as determined under the Federal Food, Drug, and Cosmetic Act [21 U.S.C. 301 et seq.], may be dispensed without a written or oral prescription in conformity with section 503(b) of that Act [21 U.S.C. 353(b)]. Such prescriptions may not be filled or refilled more than six months after the date thereof or be refilled more than five times after the date of the prescription unless renewed by the practitioner.

(c) *Schedule V substances.* No controlled substance in schedule V which is a drug may be distributed or dispensed other than for a medical purpose.

(d) *Non-prescription drugs with abuse potential.* Whenever it appears to the Attorney General that a drug not considered to be a prescription drug under the Federal Food, Drug, and Cosmetic Act [21 U.S.C. 301 et seq.] should be so considered because of its abuse potential, he shall so advise the Secretary and furnish to him all available data relevant thereto.

(e) *Controlled substances dispensed by means of the Internet.*

(1) No controlled substance that is a prescription drug as determined under the Federal Food, Drug, and Cosmetic Act [21 U.S.C. 301 et seq.] may be delivered, distributed, or dispensed by means of the Internet without a valid prescription.

(2) As used in this subsection:

(A) The term "valid prescription" means a prescription that is issued for a legitimate medical purpose in the usual course of professional practice by—

(i) a practitioner who has conducted at least 1 in-person medical evaluation of the patient; or

(ii) a covering practitioner.

(B)

(i) The term "in-person medical evaluation" means a medical evaluation that is conducted with the patient in the physical presence of the practitioner, without regard to whether portions of the evaluation are conducted by other health professionals.

(ii) Nothing in clause (i) shall be construed to imply that 1 in-person medical evaluation demonstrates that a prescription has been issued for a legitimate medical purpose within the usual course of professional practice.

(C) The term "covering practitioner" means, with respect to a patient, a practitioner who conducts a medical evaluation (other than an in-person medical evaluation) at the request of a practitioner who—

(i) has conducted at least 1 in-person medical evaluation of the patient or an evaluation of the patient through the practice of telemedicine, within the previous 24 months; and

(ii) is temporarily unavailable to conduct the evaluation of the patient.

(3) Nothing in this subsection shall apply to—

(A) the delivery, distribution, or dispensing of a controlled substance by a practitioner engaged in the practice of telemedicine; or

(B) the dispensing or selling of a controlled substance pursuant to practices as determined by the Attorney General by regulation, which shall be consistent with effective controls against diversion.

(f) *Partial fills of schedule II controlled substances.*

(1) *Partial fills.* A prescription for a controlled substance in schedule II may be partially filled if—

(A) it is not prohibited by State law;

(B) the prescription is written and filled in accordance with this subchapter, regulations prescribed by the Attorney General, and State law;

(C) the partial fill is requested by the patient or the practitioner that wrote the prescription; and

(D) the total quantity dispensed in all partial fillings does not exceed the total quantity prescribed.

(2) *Remaining portions.*

(A) *In general.* Except as provided in subparagraph (B), remaining portions of a partially filled prescription for a controlled substance in schedule II—

(i) may be filled; and

(ii) shall be filled not later than 30 days after the date on which the prescription is written.

(B) *Emergency situations.* In emergency situations, as described in subsection (a), the remaining portions of a partially filled prescription for a controlled substance in schedule II—

(i) may be filled; and

(ii) shall be filled not later than 72 hours after the prescription is issued.

(3) *Currently lawful partial fills.* Notwithstanding paragraph (1) or (2), in any circumstance in which, as of the day before July 22, 2016, a prescription for a controlled substance in schedule II may be lawfully partially filled, the Attorney General may allow such a prescription to be partially filled.

22 U.S.C. § 6401

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Findings; policy

(a) *Findings.* Congress makes the following findings:

(1) The right to freedom of religion undergirds the very origin and existence of the United States. Many of our Nation's founders fled religious persecution abroad, cherishing in their hearts and minds the ideal of religious freedom. They established in law, as a fundamental right and as a pillar of our Nation, the right to freedom of religion. From its birth to this day, the United States has prized this legacy of religious freedom and honored this heritage by standing for religious freedom and offering refuge to those suffering religious persecution.

(2) Freedom of religious belief and practice is a universal human right and fundamental freedom articulated in numerous international instruments, including the Universal Declaration of Human Rights, the International Covenant on Civil and Political Rights, the Helsinki Accords, the Declaration on the Elimination of All Forms of Intolerance and Discrimination Based on Religion or Belief, the United Nations Charter, and the European Convention for the Protection of Human Rights and Fundamental Freedoms.

(3) Article 18 of the Universal Declaration of Human Rights recognizes that "Everyone has the right to freedom of thought, conscience, and religion. This right includes freedom to change his religion or belief, and freedom, either alone or in community with others and in public or private, to manifest his religion or belief in teaching, practice, worship, and observance.". Article 18(1) of the International Covenant on Civil and Political Rights recognizes that "Everyone shall have the right to freedom of thought, conscience, and religion. This right shall include freedom to have or to adopt a religion or belief of his choice, and freedom, either individually or in community with others and in public or private, to manifest his religion or belief in worship, observance, practice, and teaching". The freedom of thought, conscience, and religion is understood to protect theistic and non-theistic beliefs and the right not to profess or practice any religion. Governments have the responsibility to protect the fundamental rights of their citizens and to pursue justice for all. Religious freedom is a fundamental right of every individual, regardless of race, sex, country, creed, or nationality, and should never be arbitrarily abridged by any government.

(4) The right to freedom of religion is under renewed and, in some cases, increasing assault in many countries around the world. More than one-half of the world's population lives under regimes that severely restrict or prohibit the freedom of their citizens to study, believe, observe, and freely practice the religious faith of their choice. Religious believers and communities suffer both government-sponsored and government-tolerated violations of their rights to religious freedom. Among the many forms of such violations are state-sponsored slander campaigns, confiscations of property, desecration of cemeteries, surveillance by security police, including by special divisions of "religious police", severe prohibitions against construction and repair of places of worship, denial of the right to assemble and relegation of religious communities to illegal status through arbitrary registration laws, prohibitions against the pursuit of education or public office, and prohibitions against publishing, distributing, or possessing religious literature and materials. A policy or practice of routinely denying applications for visas for religious workers in a

country can be indicative of a poor state of religious freedom in that country.

(5) Even more abhorrent, religious believers in many countries face such severe and violent forms of religious persecution as detention, torture, beatings, forced marriage, rape, imprisonment, enslavement, mass resettlement, and death merely for the peaceful belief in, change of or practice of their faith. In many countries, religious believers are forced to meet secretly, and religious leaders are targeted by national security forces and hostile mobs.

(6) Though not confined to a particular region or regime, religious persecution and the specific targeting of non-theists, humanists, and atheists because of their beliefs is often particularly widespread, systematic, and heinous under totalitarian governments and in countries with militant, politicized religious majorities and in regions where non-state actors exercise significant political power and territorial control.

(7) Congress has recognized and denounced acts of religious persecution through the adoption of the following resolutions:

(A) House Resolution 515 of the One Hundred Fourth Congress, expressing the sense of the House of Representatives with respect to the persecution of Christians worldwide.

(B) Senate Concurrent Resolution 71 of the One Hundred Fourth Congress, expressing the sense of the Senate regarding persecution of Christians worldwide.

(C) House Concurrent Resolution 102 of the One Hundred Fourth Congress, expressing the sense of the House of Representatives concerning the emancipation of the Iranian Baha'i community.

(b) *Policy.*

(1) *In general.* The following shall be the policy of the United States:

(A) To condemn violations of religious freedom, and to promote, and to assist other governments in the promotion of, the fundamental right to freedom of religion.

(B) To seek to channel United States security and development assistance to governments other than those found to be engaged in gross violations of the right to freedom of religion, as set forth in the Foreign Assistance Act of 1961 [22 U.S.C. 2151 et seq.], in the International Financial Institutions Act of 1977, and in other formulations of United States human rights policy.

(C) To be vigorous and flexible, reflecting both the unwavering commitment of the United States to religious freedom and the desire of the United States for the most effective and principled response, in light of the range of violations of religious freedom by a variety of persecuting regimes, and the status of the relations of the United States with different nations.

(D) To work with foreign governments that affirm and protect religious freedom, in order to develop multilateral documents and initiatives to combat violations of religious freedom and promote the right to religious freedom abroad.

(E) Standing for liberty and standing with the persecuted, to use and implement appropriate tools in the United States foreign policy apparatus, including diplomatic, political, commercial, charitable, educational, and cultural channels, to promote respect for religious freedom by all governments and peoples.

(2) *Evolving policies and coordinated diplomatic responses.* Because the promotion of international religious freedom protects human rights, advances democracy abroad, and advances United States interests in stability, security, and development globally, the promotion of international religious freedom requires new and evolving policies and diplomatic responses that—

(A) are drawn from the expertise of the national security agencies, the diplomatic services, and other governmental agencies and nongovernmental organizations; and

(B) are coordinated across and carried out by the entire range of Federal agencies.

26 U.S.C. § 1

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Tax imposed

(a) *Married individuals filing joint returns and surviving spouses.* There is hereby imposed on the taxable income of—

(1) every married individual (as defined in section 7703) who makes a single return jointly with his spouse under section 6013, and

(2) every surviving spouse (as defined in section 2(a)),

a tax determined in accordance with the following table: If taxable income is:The tax is: Not over $36,90015% of taxable income. Over $36,900 but not over $89,150$5,535, plus 28% of the excess over $36,900. Over $89,150 but not over $140,000$20,165, plus 31% of the excess over $89,150. Over $140,000 but not over $250,000$35,928.50, plus 36% of the excess over $140,000. Over $250,000$75,528.50, plus 39.6% of the excess over $250,000.

(b) *Heads of households.* There is hereby imposed on the taxable income of every head of a household (as defined in section 2(b)) a tax determined in accordance with the following table: If taxable income is:The tax is: Not over $29,60015% of taxable income. Over $29,600 but not over $76,400$4,440, plus 28% of the excess over $29,600. Over $76,400 but not

over $127,500$17,544, plus 31% of the excess over $76,400. Over $127,500 but not over $250,000$33,385, plus 36% of the excess over $127,500. Over $250,000$77,485, plus 39.6% of the excess over $250,000.

(c) *Unmarried individuals (other than surviving spouses and heads of households).* There is hereby imposed on the taxable income of every individual (other than a surviving spouse as defined in section 2(a) or the head of a household as defined in section 2(b)) who is not a married individual (as defined in section 7703) a tax determined in accordance with the following table: If taxable income is:The tax is: Not over $22,10015% of taxable income. Over $22,100 but not over $53,500$3,315, plus 28% of the excess over $22,100. Over $53,500 but not over $115,000$12,107, plus 31% of the excess over $53,500. Over $115,000 but not over $250,000$31,172, plus 36% of the excess over $115,000. Over $250,000$79,772, plus 39.6% of the excess over $250,000.

(d) *Married individuals filing separate returns.* There is hereby imposed on the taxable income of every married individual (as defined in section 7703) who does not make a single return jointly with his spouse under section 6013, a tax determined in accordance with the following table: If taxable income is:The tax is: Not over $18,45015% of taxable income. Over $18,450 but not over $44,575$2,767.50, plus 28% of the excess over $18,450. Over $44,575 but not over $70,000$10,082.50, plus 31% of the excess over $44,575. Over $70,000 but not over $125,000$17,964.25, plus 36% of the excess over $70,000. Over $125,000$37,764.25, plus 39.6% of the excess over $125,000.

(e) *Estates and trusts.* There is hereby imposed on the taxable income of—

(1) every estate, and

(2) every trust,

taxable under this subsection a tax determined in accordance with the following table: If taxable income is:The tax is: Not over $1,50015% of taxable income. Over $1,500 but not over $3,500$225, plus 28% of the excess over $1,500. Over $3,500 but not over $5,500$785, plus 31% of the excess over $3,500. Over $5,500 but not over $7,500$1,405, plus 36% of the excess over $5,500. Over $7,500$2,125, plus 39.6% of the excess over $7,500.

(f) *Phaseout of marriage penalty in 15-percent bracket; adjustments in tax tables so that inflation will not result in tax increases.*

(1) *In general.* Not later than December 15 of 1993, and each subsequent calendar year, the Secretary shall prescribe tables which shall apply in lieu of the tables contained in subsections (a), (b), (c), (d), and (e) with respect to taxable years beginning in the succeeding calendar year.

(2) *Method of prescribing tables.* The table which under paragraph (1) is to apply in lieu of the table contained in subsection (a), (b), (c), (d), or (e), as the case may be, with respect to taxable years beginning in any calendar year shall be prescribed—

(A) except as provided in paragraph (8), by increasing the minimum and maximum dollar amounts for each bracket for which a tax is imposed under such table by the cost-of-living adjustment for such calendar year, determined—

(i) except as provided in clause (ii), by substituting "1992" for "2016" in paragraph (3)(A)(ii), and

(ii) in the case of adjustments to the dollar amounts at which the 36 percent rate bracket begins or at which the 39.6 percent rate bracket begins, by substituting "1993" for "2016" in paragraph (3)(A)(ii),

(B) by not changing the rate applicable to any rate bracket as adjusted under subparagraph (A), and

(C) by adjusting the amounts setting forth the tax to the extent necessary to reflect the adjustments in the rate brackets.

(3) *Cost-of-living adjustment.* For purposes of this subsection—

(A) *In general.* The cost-of-living adjustment for any calendar year is the percentage (if any) by which—

(i) the C-CPI-U for the preceding calendar year, exceeds

(ii) the CPI for calendar year 2016, multiplied by the amount determined under subparagraph (B).

(B) *Amount determined.* The amount determined under this clause is the amount obtained by dividing—

(i) the C-CPI-U for calendar year 2016, by

(ii) the CPI for calendar year 2016.

(C) *Special rule for adjustments with a base year after 2016.* For purposes of any provision of this title which provides for the substitution of a year after 2016 for "2016" in subparagraph (A)(ii), subparagraph (A) shall be applied by substituting "the C-CPI-U for calendar year 2016" for "the CPI for calendar year 2016" and all that follows in clause (ii) thereof.

(4) *CPI for any calendar year.* For purposes of paragraph (3), the CPI for any calendar year is the average of the Consumer Price Index as of the close of the 12-month period ending on August 31 of such calendar year.

(5) *Consumer Price Index.* For purposes of paragraph (4), the term "Consumer Price Index" means the last Consumer Price Index for all-urban consumers published by the Department of Labor. For purposes of the preceding sentence, the revision of the Consumer Price Index which is most consistent with the Consumer Price Index for calendar year 1986 shall be used.

(6) *C-CPI-U.* For purposes of this subsection—

(A) *In general.* The term "C-CPI-U" means the Chained Consumer Price Index for All Urban Consumers (as published

by the Bureau of Labor Statistics of the Department of Labor). The values of the Chained Consumer Price Index for All Urban Consumers taken into account for purposes of determining the cost-of-living adjustment for any calendar year under this subsection shall be the latest values so published as of the date on which such Bureau publishes the initial value of the Chained Consumer Price Index for All Urban Consumers for the month of August for the preceding calendar year.

(B) *Determination for calendar year.* The C-CPI-U for any calendar year is the average of the C-CPI-U as of the close of the 12-month period ending on August 31 of such calendar year.

(7) *Rounding.*

(A) *In general.* If any increase determined under paragraph (2)(A), section 63(c)(4), section 68(b)(2) or section 151(d)(4) is not a multiple of $50, such increase shall be rounded to the next lowest multiple of $50.

(B) *Table for married individuals filing separately.* In the case of a married individual filing a separate return, subparagraph (A) (other than with respect to sections 63(c)(4) and 151(d)(4)(A)) shall be applied by substituting "$25" for "$50" each place it appears.

(8) *Elimination of marriage penalty in 15-percent bracket.* With respect to taxable years beginning after December 31, 2003, in prescribing the tables under paragraph (1)—

(A) the maximum taxable income in the 15-percent rate bracket in the table contained in subsection (a) (and the minimum taxable income in the next higher taxable income bracket in such table) shall be 200 percent of the maximum taxable income in the 15-percent rate bracket in the table contained in subsection (c) (after any other adjustment under this subsection), and

(B) the comparable taxable income amounts in the table contained in subsection (d) shall be ½ of the amounts determined under subparagraph (A).

(g) *Certain unearned income of children taxed as if parent's income.*

(1) *In general.* In the case of any child to whom this subsection applies, the tax imposed by this section shall be equal to the greater of—

(A) the tax imposed by this section without regard to this subsection, or

(B) the sum of—

(i) the tax which would be imposed by this section if the taxable income of such child for the taxable year were reduced by the net unearned income of such child, plus

(ii) such child's share of the allocable parental tax.

(2) *Child to whom subsection applies.* This subsection shall apply to any child for any taxable year if—

(A) such child—

(i) has not attained age 18 before the close of the taxable year, or

(ii)

(I) has attained age 18 before the close of the taxable year and meets the age requirements of section 152(c)(3) (determined without regard to subparagraph (B) thereof), and

(II) whose earned income (as defined in section 911(d)(2)) for such taxable year does not exceed one-half of the amount of the individual's support (within the meaning of section 152(c)(1)(D) after the application of section 152(f)(5) (without regard to subparagraph (A) thereof)) for such taxable year,

(B) either parent of such child is alive at the close of the taxable year, and

(C) such child does not file a joint return for the taxable year.

(3) *Allocable parental tax.* For purposes of this subsection—

(A) *In general.* The term "allocable parental tax" means the excess of—

(i) the tax which would be imposed by this section on the parent's taxable income if such income included the net unearned income of all children of the parent to whom this subsection applies, over

(ii) the tax imposed by this section on the parent without regard to this subsection.

For purposes of clause (i), net unearned income of all children of the parent shall not be taken into account in computing any exclusion, deduction, or credit of the parent.

(B) *Child's share.* A child's share of any allocable parental tax of a parent shall be equal to an amount which bears the same ratio to the total allocable parental tax as the child's net unearned income bears to the aggregate net unearned income of all children of such parent to whom this subsection applies.

(C) *Special rule where parent has different taxable year.* Except as provided in regulations, if the parent does not have the same taxable year as the child, the allocable parental tax shall be determined on the basis of the taxable year of the parent ending in the child's taxable year.

(4) *Net unearned income.* For purposes of this subsection—

(A) *In general.* The term "net unearned income" means the excess of—

(i) the portion of the adjusted gross income for the taxable year which is not attributable to earned income (as defined in section 911(d)(2)), over

(ii) the sum of—

(I) the amount in effect for the taxable year under section 63(c)(5)(A) (relating to limitation on standard deduction in the case of certain dependents), plus

(II) the greater of the amount described in subclause (I) or, if the child itemizes his deductions for the taxable year, the amount of the itemized deductions allowed by this chapter for the taxable year which are directly connected with the production of the portion of adjusted gross income referred to in clause (i).

(B) *Limitation based on taxable income.* The amount of the net unearned income for any taxable year shall not exceed the individual's taxable income for such taxable year.

(C) *Treatment of distributions from qualified disability trusts.* For purposes of this subsection, in the case of any child who is a beneficiary of a qualified disability trust (as defined in section 642(b)(2)(C)(ii)), any amount included in the income of such child under sections 652 and 662 during a taxable year shall be considered earned income of such child for such taxable year.

(5) *Special rules for determining parent to whom subsection applies.* For purposes of this subsection, the parent whose taxable income shall be taken into account shall be—

(A) in the case of parents who are not married (within the meaning of section 7703), the custodial parent (within the meaning of section 152(e)) of the child, and

(B) in the case of married individuals filing separately, the individual with the greater taxable income.

(6) *Providing of parent's TIN.* The parent of any child to whom this subsection applies for any taxable year shall provide the TIN of such parent to such child and such child shall include such TIN on the child's return of tax imposed by this section for such taxable year.

(7) *Election to claim certain unearned income of child on parent's return.*

(A) *In general.* If—

(i) any child to whom this subsection applies has gross income for the taxable year only from interest and dividends (including Alaska Permanent Fund dividends),

(ii) such gross income is more than the amount described in paragraph (4)(A)(ii)(I) and less than 10 times the amount so described,

(iii) no estimated tax payments for such year are made in the name and TIN of such child, and no amount has been deducted and withheld under section 3406, and

(iv) the parent of such child (as determined under paragraph (5)) elects the application of subparagraph (B),

such child shall be treated (other than for purposes of this paragraph) as having no gross income for such year and shall not be required to file a return under section 6012.

(B) *Income included on parent's return.* In the case of a parent making the election under this paragraph—

(i) the gross income of each child to whom such election applies (to the extent the gross income of such child exceeds twice the amount described in paragraph (4)(A)(ii)(I)) shall be included in such parent's gross income for the taxable year,

(ii) the tax imposed by this section for such year with respect to such parent shall be the amount equal to the sum of—

(I) the amount determined under this section after the application of clause (i), plus

(II) for each such child, 10 percent of the lesser of the amount described in paragraph (4)(A)(ii)(I) or the excess of the gross income of such child over the amount so described, and

(iii) any interest which is an item of tax preference under section 57(a)(5) of the child shall be treated as an item of tax preference of such parent (and not of such child).

(C) *Regulations.* The Secretary shall prescribe such regulations as may be necessary or appropriate to carry out the purposes of this paragraph.

(h) *Maximum capital gains rate.*

(1) *In general.* If a taxpayer has a net capital gain for any taxable year, the tax imposed by this section for such taxable year shall not exceed the sum of—

(A) a tax computed at the rates and in the same manner as if this subsection had not been enacted on the greater of—

(i) taxable income reduced by the net capital gain; or

(ii) the lesser of—

(I) the amount of taxable income taxed at a rate below 25 percent; or

(II) taxable income reduced by the adjusted net capital gain;

(B) 0 percent of so much of the adjusted net capital gain (or, if less, taxable income) as does not exceed the excess (if any) of—

(i) the amount of taxable income which would (without regard to this paragraph) be taxed at a rate below 25 percent, over

(ii) the taxable income reduced by the adjusted net capital gain;

(C) 15 percent of the lesser of—

(i) so much of the adjusted net capital gain (or, if less, taxable income) as exceeds the amount on which a tax is determined under subparagraph (B), or

(ii) the excess of—

(I) the amount of taxable income which would (without regard to this paragraph) be taxed at a rate below 39.6 percent, over

(II) the sum of the amounts on which a tax is determined under subparagraphs (A) and (B),

(D) 20 percent of the adjusted net capital gain (or, if less, taxable income) in excess of the sum of the amounts on which tax is determined under subparagraphs (B) and (C),

(E) 25 percent of the excess (if any) of—

(i) the unrecaptured section 1250 gain (or, if less, the net capital gain (determined without regard to paragraph (11))), over

(ii) the excess (if any) of—

(I) the sum of the amount on which tax is determined under subparagraph (A) plus the net capital gain, over

(II) taxable income; and

(F) 28 percent of the amount of taxable income in excess of the sum of the amounts on which tax is determined under the preceding subparagraphs of this paragraph.

(2) *Net capital gain taken into account as investment income.* For purposes of this subsection, the net capital gain for any taxable year shall be reduced (but not below zero) by the amount which the taxpayer takes into account as investment income under section 163(d)(4)(B)(iii).

(3) *Adjusted net capital gain.* For purposes of this subsection, the term "adjusted net capital gain" means the sum of—

(A) net capital gain (determined without regard to paragraph (11)) reduced (but not below zero) by the sum of—

(i) unrecaptured section 1250 gain, and

(ii) 28-percent rate gain, plus

(B) qualified dividend income (as defined in paragraph (11)).

(4) *28-percent rate gain.* For purposes of this subsection, the term "28-percent rate gain" means the excess (if any) of—

(A) the sum of—

(i) collectibles gain; and

(ii) section 1202 gain, over

(B) the sum of—

(i) collectibles loss;

(ii) the net short-term capital loss; and

(iii) the amount of long-term capital loss carried under section 1212(b)(1)(B) to the taxable year.

(5) *Collectibles gain and loss.* For purposes of this subsection—

(A) *In general.* The terms "collectibles gain" and "collectibles loss" mean gain or loss (respectively) from the sale or exchange of a collectible (as defined in section 408(m) without regard to paragraph (3) thereof) which is a capital asset held for more than 1 year but only to the extent such gain is taken into account in computing gross income and such loss is taken into account in computing taxable income.

(B) *Partnerships, etc..* For purposes of subparagraph (A), any gain from the sale of an interest in a partnership, S corporation, or trust which is attributable to unrealized appreciation in the value of collectibles shall be treated as gain from the sale or exchange of a collectible. Rules similar to the rules of section 751 shall apply for purposes of the preceding sentence.

(6) *Unrecaptured section 1250 gain.* For purposes of this subsection—

(A) *In general.* The term "unrecaptured section 1250 gain" means the excess (if any) of—

(i) the amount of long-term capital gain (not otherwise treated as ordinary income) which would be treated as ordinary income if section 1250(b)(1) included all depreciation and the applicable percentage under section 1250(a) were 100 percent, over

(ii) the excess (if any) of—

(I) the amount described in paragraph (4)(B); over

(II) the amount described in paragraph (4)(A).

(B) *Limitation with respect to section 1231 property.* The amount described in subparagraph (A)(i) from sales, exchanges, and conversions described in section 1231(a)(3)(A) for any taxable year shall not exceed the net section 1231 gain (as defined in section 1231(c)(3)) for such year.

(7) *Section 1202 gain.* For purposes of this subsection, the term "section 1202 gain" means the excess of—

(A) the gain which would be excluded from gross income under section 1202 but for the percentage limitation in

section 1202(a), over

(B) the gain excluded from gross income under section 1202.

(8) *Coordination with recapture of net ordinary losses under section 1231.* If any amount is treated as ordinary income under section 1231(c), such amount shall be allocated among the separate categories of net section 1231 gain (as defined in section 1231(c)(3)) in such manner as the Secretary may by forms or regulations prescribe.

(9) *Regulations.* The Secretary may prescribe such regulations as are appropriate (including regulations requiring reporting) to apply this subsection in the case of sales and exchanges by pass-thru entities and of interests in such entities.

(10) *Pass-thru entity defined.* For purposes of this subsection, the term "pass-thru entity" means—

(A) a regulated investment company;

(B) a real estate investment trust;

(C) an S corporation;

(D) a partnership;

(E) an estate or trust;

(F) a common trust fund; and

(G) a qualified electing fund (as defined in section 1295).

(11) *Dividends taxed as net capital gain.*

(A) *In general.* For purposes of this subsection, the term "net capital gain" means net capital gain (determined without regard to this paragraph) increased by qualified dividend income.

(B) *Qualified dividend income.* For purposes of this paragraph—

(i) *In general.* The term "qualified dividend income" means dividends received during the taxable year from—

(I) domestic corporations, and

(II) qualified foreign corporations.

(ii) *Certain dividends excluded.* Such term shall not include—

(I) any dividend from a corporation which for the taxable year of the corporation in which the distribution is made, or the preceding taxable year, is a corporation exempt from tax under section 501 or 521,

(II) any amount allowed as a deduction under section 591 (relating to deduction for dividends paid by mutual savings banks, etc.), and

(III) any dividend described in section 404(k).

(iii) *Coordination with section 246(c).* Such term shall not include any dividend on any share of stock—

(I) with respect to which the holding period requirements of section 246(c) are not met (determined by substituting in section 246(c) "60 days" for "45 days" each place it appears and by substituting "121-day period" for "91-day period"), or

(II) to the extent that the taxpayer is under an obligation (whether pursuant to a short sale or otherwise) to make related payments with respect to positions in substantially similar or related property.

(C) *Qualified foreign corporations.*

(i) *In general.* Except as otherwise provided in this paragraph, the term "qualified foreign corporation" means any foreign corporation if—

(I) such corporation is incorporated in a possession of the United States, or

(II) such corporation is eligible for benefits of a comprehensive income tax treaty with the United States which the Secretary determines is satisfactory for purposes of this paragraph and which includes an exchange of information program.

(ii) *Dividends on stock readily tradable on United States securities market.* A foreign corporation not otherwise treated as a qualified foreign corporation under clause (i) shall be so treated with respect to any dividend paid by such corporation if the stock with respect to which such dividend is paid is readily tradable on an established securities market in the United States.

(iii) *Exclusion of dividends of certain foreign corporations.* Such term shall not include—

(I) any foreign corporation which for the taxable year of the corporation in which the dividend was paid, or the preceding taxable year, is a passive foreign investment company (as defined in section 1297), and

(II) any corporation which first becomes a surrogate foreign corporation (as defined in section 7874(a)(2)(B)) after the date of the enactment of this subclause, other than a foreign corporation which is treated as a domestic corporation under section 7874(b).

(iv) *Coordination with foreign tax credit limitation.* Rules similar to the rules of section 904(b)(2)(B) shall apply with respect to the dividend rate differential under this paragraph.

(D) *Special rules.*

(i) *Amounts taken into account as investment income.* Qualified dividend income shall not include any amount which the taxpayer takes into account as investment income under section 163(d)(4)(B).

(ii) *Extraordinary dividends.* If a taxpayer to whom this section applies receives, with respect to any share of stock, qualified dividend income from 1 or more dividends which are extraordinary dividends (within the meaning of section 1059(c)), any loss on the sale or exchange of such share shall, to the extent of such dividends, be treated as long-term capital loss.

(iii) *Treatment of dividends from regulated investment companies and real estate investment trusts.* A dividend received from a regulated investment company or a real estate investment trust shall be subject to the limitations prescribed in sections 854 and 857.

(i) *Rate reductions after 2000.*

(1) *10-percent rate bracket.*

(A) *In general.* In the case of taxable years beginning after December 31, 2000—

(i) the rate of tax under subsections (a), (b), (c), and (d) on taxable income not over the initial bracket amount shall be 10 percent, and

(ii) the 15 percent rate of tax shall apply only to taxable income over the initial bracket amount but not over the maximum dollar amount for the 15-percent rate bracket.

(B) *Initial bracket amount.* For purposes of this paragraph, the initial bracket amount is—

(i) $14,000 in the case of subsection (a),

(ii) $10,000 in the case of subsection (b), and

(iii) ½ the amount applicable under clause (i) (after adjustment, if any, under subparagraph (C)) in the case of subsections (c) and (d).

(C) *Inflation adjustment.* In prescribing the tables under subsection (f) which apply with respect to taxable years beginning in calendar years after 2003—

(i) the cost-of-living adjustment shall be determined under subsection (f)(3) by substituting "2002" for "2016" in subparagraph (A)(ii) thereof, and

(ii) the adjustments under clause (i) shall not apply to the amount referred to in subparagraph (B)(iii).

If any amount after adjustment under the preceding sentence is not a multiple of $50, such amount shall be rounded to the next lowest multiple of $50.

(2) *25-, 28-, and 33-percent rate brackets.* The tables under subsections (a), (b), (c), (d), and (e) shall be applied—

(A) by substituting "25%" for "28%" each place it appears (before the application of subparagraph (B)),

(B) by substituting "28%" for "31%" each place it appears, and

(C) by substituting "33%" for "36%" each place it appears.

(3) *Modifications to income tax brackets for high-income taxpayers.*

(A) *35-percent rate bracket.* In the case of taxable years beginning after December 31, 2012—

(i) the rate of tax under subsections (a), (b), (c), and (d) on a taxpayer's taxable income in the highest rate bracket shall be 35 percent to the extent such income does not exceed an amount equal to the excess of—

(I) the applicable threshold, over

(II) the dollar amount at which such bracket begins, and

(ii) the 39.6 percent rate of tax under such subsections shall apply only to the taxpayer's taxable income in such bracket in excess of the amount to which clause (i) applies.

(B) *Applicable threshold.* For purposes of this paragraph, the term "applicable threshold" means—

(i) $450,000 in the case of subsection (a),

(ii) $425,000 in the case of subsection (b),

(iii) $400,000 in the case of subsection (c), and

(iv) ½ the amount applicable under clause (i) (after adjustment, if any, under subparagraph (C)) in the case of subsection (d).

(C) *Inflation adjustment.* For purposes of this paragraph, with respect to taxable years beginning in calendar years after 2013, each of the dollar amounts under clauses (i), (ii), and (iii) of subparagraph (B) shall be adjusted in the same manner as under paragraph (1)(C)(i), except that subsection (f)(3)(A)(ii) shall be applied by substituting "2012" for "2016".

(4) *Adjustment of tables.* The Secretary shall adjust the tables prescribed under subsection (f) to carry out this subsection.

(j) *Modifications for taxable years beginning after 2017.*

(1) *In general.* In the case of a taxable year beginning after December 31, 2017—

(A) subsection (i) shall not apply, and

(B) this section (other than subsection (i)) shall be applied as provided in paragraphs (2) through (6).

(2) *Rate tables.*

(A) *Married individuals filing joint returns and surviving spouses.* The following table shall be applied in lieu of the table contained in subsection (a): If taxable income is:The tax is: Not over $19,05010% of taxable income. Over $19,050 but not over $77,400$1,905, plus 12% of the excess over $19,050. Over $77,400 but not over $165,000$8,907, plus 22% of the excess over $77,400. Over $165,000 but not over $315,000$28,179, plus 24% of the excess over $165,000. Over $315,000 but not over $400,000$64,179, plus 32% of the excess over $315,000. Over $400,000 but not over $600,000$91,379, plus 35% of the excess over $400,000. Over $600,000$161,379, plus 37% of the excess over $600,000.

(B) *Heads of households.* The following table shall be applied in lieu of the table contained in subsection (b): If taxable income is:The tax is: Not over $13,60010% of taxable income. Over $13,600 but not over $51,800$1,360, plus 12% of the excess over $13,600. Over $51,800 but not over $82,500$5,944, plus 22% of the excess over $51,800. Over $82,500 but not over $157,500$12,698, plus 24% of the excess over $82,500. Over $157,500 but not over $200,000$30,698, plus 32% of the excess over $157,500. Over $200,000 but not over $500,000$44,298, plus 35% of the excess over $200,000. Over $500,000$149,298, plus 37% of the excess over $500,000.

(C) *Unmarried individuals other than surviving spouses and heads of households.* The following table shall be applied in lieu of the table contained in subsection (c): If taxable income is:The tax is: Not over $9,52510% of taxable income. Over $9,525 but not over $38,700$952.50, plus 12% of the excess over $9,525. Over $38,700 but not over $82,500$4,453.50, plus 22% of the excess over $38,700. Over $82,500 but not over $157,500$14,089.50, plus 24% of the excess over $82,500. Over $157,500 but not over $200,000$32,089.50, plus 32% of the excess over $157,500. Over $200,000 but not over $500,000$45,689.50, plus 35% of the excess over $200,000. Over $500,000$150,689.50, plus 37% of the excess over $500,000.

(D) *Married individuals filing separate returns.* The following table shall be applied in lieu of the table contained in subsection (d): If taxable income is:The tax is: Not over $9,52510% of taxable income. Over $9,525 but not over $38,700$952.50, plus 12% of the excess over $9,525. Over $38,700 but not over $82,500$4,453.50, plus 22% of the excess over $38,700. Over $82,500 but not over $157,500$14,089.50, plus 24% of the excess over $82,500. Over $157,500 but not over $200,000$32,089.50, plus 32% of the excess over $157,500. Over $200,000 but not over $300,000$45,689.50, plus 35% of the excess over $200,000. Over $300,000$80,689.50, plus 37% of the excess over $300,000.

(E) *Estates and trusts.* The following table shall be applied in lieu of the table contained in subsection (e): If taxable income is:The tax is: Not over $2,55010% of taxable income. Over $2,550 but not over $9,150$255, plus 24% of the excess over $2,550. Over $9,150 but not over $12,500$1,839, plus 35% of the excess over $9,150. Over $12,500$3,011.50, plus 37% of the excess over $12,500.

(F) *References to rate tables.* Any reference in this title to a rate of tax under subsection (c) shall be treated as a reference to the corresponding rate bracket under subparagraph (C) of this paragraph, except that the reference in section 3402(q)(1) to the third lowest rate of tax applicable under subsection (c) shall be treated as a reference to the fourth lowest rate of tax under subparagraph (C).

(3) *Adjustments.*

(A) *No adjustment in 2018.* The tables contained in paragraph (2) shall apply without adjustment for taxable years beginning after December 31, 2017, and before January 1, 2019.

(B) *Subsequent years.* For taxable years beginning after December 31, 2018, the Secretary shall prescribe tables which shall apply in lieu of the tables contained in paragraph (2) in the same manner as under paragraphs (1) and (2) of subsection (f) (applied without regard to clauses (i) and (ii) of subsection (f)(2)(A)), except that in prescribing such tables—

(i) solely for purposes of determining the dollar amounts at which any rate bracket higher than 12 percent ends and at which any rate bracket higher than 22 percent begins, subsection (f)(3) shall be applied by substituting "calendar year 2017" for "calendar year 2016" in subparagraph (A)(ii) thereof,

(ii) subsection (f)(7)(B) shall apply to any unmarried individual other than a surviving spouse or head of household, and

(iii) subsection (f)(8) shall not apply.

(4) *Repealed. Pub. L. 116–94, div. O, title V, § 501(a), Dec. 20, 2019, 133 Stat. 3180].*

(5) *Application of current income tax brackets to capital gains brackets.*

(A) *In general.* Section 1(h)(1) shall be applied—

(i) by substituting "below the maximum zero rate amount" for "which would (without regard to this paragraph) be taxed at a rate below 25 percent" in subparagraph (B)(i), and

(ii) by substituting "below the maximum 15-percent rate amount" for "which would (without regard to this paragraph) be taxed at a rate below 39.6 percent" in subparagraph (C)(ii)(I).

(B) *Maximum amounts defined.* For purposes of applying section 1(h) with the modifications described in subpara-

graph (A)—

(i) *Maximum zero rate amount.* The maximum zero rate amount shall be—

(I) in the case of a joint return or surviving spouse, $77,200,

(II) in the case of an individual who is a head of household (as defined in section 2(b)), $51,700,

(III) in the case of any other individual (other than an estate or trust), an amount equal to ½ of the amount in effect for the taxable year under subclause (I), and

(IV) in the case of an estate or trust, $2,600.

(ii) *Maximum 15-percent rate amount.* The maximum 15-percent rate amount shall be—

(I) in the case of a joint return or surviving spouse, $479,000 (½ such amount in the case of a married individual filing a separate return),

(II) in the case of an individual who is the head of a household (as defined in section 2(b)), $452,400,

(III) in the case of any other individual (other than an estate or trust), $425,800, and

(IV) in the case of an estate or trust, $12,700.

(C) *Inflation adjustment.* In the case of any taxable year beginning after 2018, each of the dollar amounts in clauses (i) and (ii) of subparagraph (B) shall be increased by an amount equal to—

(i) such dollar amount, multiplied by

(ii) the cost-of-living adjustment determined under subsection (f)(3) for the calendar year in which the taxable year begins, determined by substituting "calendar year 2017" for "calendar year 2016" in subparagraph (A)(ii) thereof.

If any increase under this subparagraph is not a multiple of $50, such increase shall be rounded to the next lowest multiple of $50.

(6) *Section 15 not to apply.* Section 15 shall not apply to any change in a rate of tax by reason of this subsection.

26 U.S.C. § 161

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Allowance of deductions

In computing taxable income under section 63, there shall be allowed as deductions the items specified in this part, subject to the exceptions provided in part IX (sec. 261 and following, relating to items not deductible).

26 U.S.C. § 501-530a

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Text not stored locally (not in the title 26 XML (renumbered or repealed, or a cite we misread)).

26 U.S.C. § 530

Cited by the petitioners 0 times (0 filings) and their amici 2 (1); by the respondent 0 (0) and its amici 0 (0).

Coverdell education savings accounts

(a) *General rule.* A Coverdell education savings account shall be exempt from taxation under this subtitle. Notwithstanding the preceding sentence, the Coverdell education savings account shall be subject to the taxes imposed by section 511 (relating to imposition of tax on unrelated business income of charitable organizations).

(b) *Definitions and special rules.* For purposes of this section—

(1) *Coverdell education savings account.* The term "Coverdell education savings account" means a trust created or organized in the United States exclusively for the purpose of paying the qualified education expenses of an individual who is the designated beneficiary of the trust (and designated as a Coverdell education savings account at the time created or organized), but only if the written governing instrument creating the trust meets the following requirements:

(A) No contribution will be accepted—

(i) unless it is in cash,

(ii) after the date on which such beneficiary attains age 18, or

(iii) except in the case of rollover contributions, if such contribution would result in aggregate contributions for the taxable year exceeding $2,000.

(B) The trustee is a bank (as defined in section 408(n)) or another person who demonstrates to the satisfaction of the Secretary that the manner in which that person will administer the trust will be consistent with the requirements of this section or who has so demonstrated with respect to any individual retirement plan.

(C) No part of the trust assets will be invested in life insurance contracts.

(D) The assets of the trust shall not be commingled with other property except in a common trust fund or common investment fund.

(E) Except as provided in subsection (d)(7), any balance to the credit of the designated beneficiary on the date on

which the beneficiary attains age 30 shall be distributed within 30 days after such date to the beneficiary or, if the beneficiary dies before attaining age 30, shall be distributed within 30 days after the date of death of such beneficiary.

The age limitations in subparagraphs (A)(ii) and (E), and paragraphs (5) and (6) of subsection (d), shall not apply to any designated beneficiary with special needs (as determined under regulations prescribed by the Secretary).

(2) *Qualified education expenses.*

(A) *In general.* The term "qualified education expenses" means—

(i) qualified higher education expenses (as defined in section 529(e)(3)), and

(ii) qualified elementary and secondary education expenses (as defined in paragraph (3)).

(B) *Qualified tuition programs.* Such term shall include any contribution to a qualified tuition program (as defined in section 529(b)) on behalf of the designated beneficiary (as defined in section 529(e)(1)); but there shall be no increase in the investment in the contract for purposes of applying section 72 by reason of any portion of such contribution which is not includible in gross income by reason of subsection (d)(2).

(3) *Qualified elementary and secondary education expenses.*

(A) *In general.* The term "qualified elementary and secondary education expenses" means—

(i) expenses for tuition, fees, academic tutoring, special needs services in the case of a special needs beneficiary, books, supplies, and other equipment which are incurred in connection with the enrollment or attendance of the designated beneficiary of the trust as an elementary or secondary school student at a public, private, or religious school,

(ii) expenses for room and board, uniforms, transportation, and supplementary items and services (including extended day programs) which are required or provided by a public, private, or religious school in connection with such enrollment or attendance, and

(iii) expenses for the purchase of any computer technology or equipment or Internet access and related services, if such technology, equipment, or services are to be used by the beneficiary and the beneficiary's family during any of the years the beneficiary is in school.

Clause (iii) shall not include expenses for computer software designed for sports, games, or hobbies unless the software is predominantly educational in nature.

(B) *School.* The term "school" means any school which provides elementary education or secondary education (kindergarten through grade 12), as determined under State law.

(C) *Computer technology or equipment.* The term "computer technology or equipment" means computer software (as defined by section 197(e)(3)(B)), computer or peripheral equipment (as defined by section 168(i)(2)(B)), and fiber optic cable related to computer use.

(4) *Time when contributions deemed made.* An individual shall be deemed to have made a contribution to an education individual retirement account on the last day of the preceding taxable year if the contribution is made on account of such taxable year and is made not later than the time prescribed by law for filing the return for such taxable year (not including extensions thereof).

(c) *Reduction in permitted contributions based on adjusted gross income.*

(1) *In general.* In the case of a contributor who is an individual, the maximum amount the contributor could otherwise make to an account under this section shall be reduced by an amount which bears the same ratio to such maximum amount as—

(A) the excess of—

(i) the contributor's modified adjusted gross income for such taxable year, over

(ii) $95,000 ($190,000 in the case of a joint return), bears to

(B) $15,000 ($30,000 in the case of a joint return).

(2) *Modified adjusted gross income.* For purposes of paragraph (1), the term "modified adjusted gross income" means the adjusted gross income of the taxpayer for the taxable year increased by any amount excluded from gross income under section 911, 931, or 933.

(d) *Tax treatment of distributions.*

(1) *In general.* Any distribution shall be includible in the gross income of the distributee in the manner as provided in section 72.

(2) *Distributions for qualified education expenses.*

(A) *In general.* No amount shall be includible in gross income under paragraph (1) if the qualified education expenses of the designated beneficiary during the taxable year are not less than the aggregate distributions during the taxable year.

(B) *Distributions in excess of expenses.* If such aggregate distributions exceed such expenses during the taxable year, the amount otherwise includible in gross income under paragraph (1) shall be reduced by the amount which bears the same ratio to the amount which would be includible in gross income under paragraph (1) (without regard to

this subparagraph) as the qualified education expenses bear to such aggregate distributions.

(C) *Coordination with American Opportunity and Lifetime Learning credits and qualified tuition programs.* For purposes of subparagraph (A)—

(i) *Credit coordination.* The total amount of qualified education expenses with respect to an individual for the taxable year shall be reduced—

(I) as provided in section 25A(g)(2), and

(II) by the amount of such expenses which were taken into account in determining the credit allowed to the taxpayer or any other person under section 25A.

(ii) *Coordination with qualified tuition programs.* If, with respect to an individual for any taxable year—

(I) the aggregate distributions during such year to which subparagraph (A) and section 529(c)(3)(B) apply, exceed

(II) the total amount of qualified education expenses (after the application of clause (i)) for such year,

the taxpayer shall allocate such expenses among such distributions for purposes of determining the amount of the exclusion under subparagraph (A) and section 529(c)(3)(B).

(D) *Disallowance of excluded amounts as deduction, credit, or exclusion.* No deduction, credit, or exclusion shall be allowed to the taxpayer under any other section of this chapter for any qualified education expenses to the extent taken into account in determining the amount of the exclusion under this paragraph.

(3) *Special rules for applying estate and gift taxes with respect to account.* Rules similar to the rules of paragraphs (2), (4), and (5) of section 529(c) shall apply for purposes of this section.

(4) *Additional tax for distributions not used for educational expenses.*

(A) *In general.* The tax imposed by this chapter for any taxable year on any taxpayer who receives a payment or distribution from a Coverdell education savings account which is includible in gross income shall be increased by 10 percent of the amount which is so includible.

(B) *Exceptions.* Subparagraph (A) shall not apply if the payment or distribution is—

(i) made to a beneficiary (or to the estate of the designated beneficiary) on or after the death of the designated beneficiary,

(ii) attributable to the designated beneficiary's being disabled (within the meaning of section 72(m)(7)),

(iii) made on account of a scholarship, allowance, or payment described in section 25A(g)(2) received by the designated beneficiary to the extent the amount of the payment or distribution does not exceed the amount of the scholarship, allowance, or payment,

(iv) made on account of the attendance of the designated beneficiary at the United States Military Academy, the United States Naval Academy, the United States Air Force Academy, the United States Coast Guard Academy, or the United States Merchant Marine Academy, to the extent that the amount of the payment or distribution does not exceed the costs of advanced education (as defined by section 2005(e)(3) of title 10, United States Code, as in effect on the date of the enactment of this section) attributable to such attendance, or

(v) an amount which is includible in gross income solely by application of paragraph (2)(C)(i)(II) for the taxable year.

(C) *Contributions returned before certain date.* Subparagraph (A) shall not apply to the distribution of any contribution made during a taxable year on behalf of the designated beneficiary if—

(i) such distribution is made before the first day of the sixth month of the taxable year following the taxable year, and

(ii) such distribution is accompanied by the amount of net income attributable to such excess contribution.

Any net income described in clause (ii) shall be included in gross income for the taxable year in which such excess contribution was made.

(5) *Rollover contributions.* Paragraph (1) shall not apply to any amount paid or distributed from a Coverdell education savings account to the extent that the amount received is paid, not later than the 60th day after the date of such payment or distribution, into another Coverdell education savings account for the benefit of the same beneficiary or a member of the family (within the meaning of section 529(e)(2)) of such beneficiary who has not attained age 30 as of such date. The preceding sentence shall not apply to any payment or distribution if it applied to any prior payment or distribution during the 12-month period ending on the date of the payment or distribution.

(6) *Change in beneficiary.* Any change in the beneficiary of a Coverdell education savings account shall not be treated as a distribution for purposes of paragraph (1) if the new beneficiary is a member of the family (as so defined) of the old beneficiary and has not attained age 30 as of the date of such change.

(7) *Special rules for death and divorce.* Rules similar to the rules of paragraphs (7) and (8) of section 220(f) shall apply. In applying the preceding sentence, members of the family (as so defined) of the designated beneficiary shall be treated in the same manner as the spouse under such paragraph (8).

(8) *Deemed distribution on required distribution date.* In any case in which a distribution is required under subsection

(b)(1)(E), any balance to the credit of a designated beneficiary as of the close of the 30-day period referred to in such subsection for making such distribution shall be deemed distributed at the close of such period.

(9) *Military death gratuity.*

(A) *In general.* For purposes of this section, the term "rollover contribution" includes a contribution to a Coverdell education savings account made before the end of the 1-year period beginning on the date on which the contributor receives an amount under section 1477 of title 10, United States Code, or section 1967 of title 38 of such Code, with respect to a person, to the extent that such contribution does not exceed—

(i) the sum of the amounts received during such period by such contributor under such sections with respect to such person, reduced by

(ii) the amounts so received which were contributed to a Roth IRA under section 408A(e)(2) or to another Coverdell education savings account.

(B) *Annual limit on number of rollovers not to apply.* The last sentence of paragraph (5) shall not apply with respect to amounts treated as a rollover by subparagraph (A).

(C) *Application of section 72.* For purposes of applying section 72 in the case of a distribution which is includible in gross income under paragraph (1), the amount treated as a rollover by reason of subparagraph (A) shall be treated as investment in the contract.

(e) *Tax treatment of accounts.* Rules similar to the rules of paragraphs (2) and (4) of section 408(e) shall apply to any Coverdell education savings account.

(f) *Community property laws.* This section shall be applied without regard to any community property laws.

(g) *Custodial accounts.* For purposes of this section, a custodial account shall be treated as a trust if the assets of such account are held by a bank (as defined in section 408(n)) or another person who demonstrates, to the satisfaction of the Secretary, that the manner in which he will administer the account will be consistent with the requirements of this section, and if the custodial account would, except for the fact that it is not a trust, constitute an account described in subsection (b)(1). For purposes of this title, in the case of a custodial account treated as a trust by reason of the preceding sentence, the custodian of such account shall be treated as the trustee thereof.

(h) *Reports.* The trustee of a Coverdell education savings account shall make such reports regarding such account to the Secretary and to the beneficiary of the account with respect to contributions, distributions, and such other matters as the Secretary may require. The reports required by this subsection shall be filed at such time and in such manner and furnished to such individuals at such time and in such manner as may be required.

26 U.S.C. § 2010

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Unified credit against estate tax

(a) *General rule.* A credit of the applicable credit amount shall be allowed to the estate of every decedent against the tax imposed by section 2001.

(b) *Adjustment to credit for certain gifts made before 1977.* The amount of the credit allowable under subsection (a) shall be reduced by an amount equal to 20 percent of the aggregate amount allowed as a specific exemption under section 2521 (as in effect before its repeal by the Tax Reform Act of 1976) with respect to gifts made by the decedent after September 8, 1976.

(c) *Applicable credit amount.*

(1) *In general.* For purposes of this section, the applicable credit amount is the amount of the tentative tax which would be determined under section 2001(c) if the amount with respect to which such tentative tax is to be computed were equal to the applicable exclusion amount.

(2) *Applicable exclusion amount.* For purposes of this subsection, the applicable exclusion amount is the sum of—

(A) the basic exclusion amount, and

(B) in the case of a surviving spouse, the deceased spousal unused exclusion amount.

(3) *Basic exclusion amount.*

(A) *In general.* For purposes of this subsection, the basic exclusion amount is $15,000,000.

(B) *Inflation adjustment.* In the case of any decedent dying in a calendar year after 2026, the dollar amount in subparagraph (A) shall be increased by an amount equal to—

(i) such dollar amount, multiplied by

(ii) the cost-of-living adjustment determined under section 1(f)(3) for such calendar year by substituting "calendar year 2025" for "calendar year 2016" in subparagraph (A)(ii) thereof.

If any amount as adjusted under the preceding sentence is not a multiple of $10,000, such amount shall be rounded to the nearest multiple of $10,000.

(4) *Deceased spousal unused exclusion amount.* For purposes of this subsection, with respect to a surviving spouse of a deceased spouse dying after December 31, 2010, the term "deceased spousal unused exclusion amount" means the

lesser of—

(A) the basic exclusion amount, or

(B) the excess of—

(i) the applicable exclusion amount of the last such deceased spouse of such surviving spouse, over

(ii) the amount with respect to which the tentative tax is determined under section 2001(b)(1) on the estate of such deceased spouse.

(5) *Special rules.*

(A) *Election required.* A deceased spousal unused exclusion amount may not be taken into account by a surviving spouse under paragraph (2) unless the executor of the estate of the deceased spouse files an estate tax return on which such amount is computed and makes an election on such return that such amount may be so taken into account. Such election, once made, shall be irrevocable. No election may be made under this subparagraph if such return is filed after the time prescribed by law (including extensions) for filing such return.

(B) *Examination of prior returns after expiration of period of limitations with respect to deceased spousal unused exclusion amount.* Notwithstanding any period of limitation in section 6501, after the time has expired under section 6501 within which a tax may be assessed under chapter 11 or 12 with respect to a deceased spousal unused exclusion amount, the Secretary may examine a return of the deceased spouse to make determinations with respect to such amount for purposes of carrying out this subsection.

(6) *Regulations.* The Secretary shall prescribe such regulations as may be necessary or appropriate to carry out this subsection.

(d) *Limitation based on amount of tax.* The amount of the credit allowed by subsection (a) shall not exceed the amount of the tax imposed by section 2001.

26 U.S.C. § 25F

Cited by the petitioners 0 times (0 filings) and their amici 9 (1); by the respondent 0 (0) and its amici 0 (0).

Qualified elementary and secondary education scholarships

(a) *Allowance of credit.* In the case of an individual who is a citizen or resident of the United States (within the meaning of section 7701(a)(9)), there shall be allowed as a credit against the tax imposed by this chapter for the taxable year an amount equal to the aggregate amount of qualified contributions made by the taxpayer during the taxable year.

(b) *Limitations.*

(1) *In general.* The credit allowed under subsection (a) to any taxpayer for any taxable year shall not exceed $1,700.

(2) *Reduction based on State credit.* The amount allowed as a credit under subsection (a) for a taxable year shall be reduced by the amount allowed as a credit on any State tax return of the taxpayer for qualified contributions made by the taxpayer during the taxable year.

(c) *Definitions.* For purposes of this section—

(1) *Covered State.* The term "covered State" means one of the States, or the District of Columbia, that, for a calendar year, voluntarily elects to participate under this section and to identify scholarship granting organizations in the State, in accordance with subsection (g).

(2) *Eligible student.* The term "eligible student" means an individual who—

(A) is a member of a household with an income which, for the calendar year prior to the date of the application for a scholarship, is not greater than 300 percent of the area median gross income (as such term is used in section 42), and

(B) is eligible to enroll in a public elementary or secondary school.

(3) *Qualified contribution.* The term "qualified contribution" means a charitable contribution of cash to a scholarship granting organization that uses the contribution to fund scholarships for eligible students solely within the State in which the organization is listed pursuant to subsection (g).

(4) *Qualified elementary or secondary education expense.* The term "qualified elementary or secondary education expense" means any expense of an eligible student which is described in section 530(b)(3)(A).

(5) *Scholarship granting organization.* The term "scholarship granting organization" means any organization—

(A) which—

(i) is described in section 501(c)(3) and exempt from tax under section 501(a), and

(ii) is not a private foundation,

(B) which prevents the co-mingling of qualified contributions with other amounts by maintaining one or more separate accounts exclusively for qualified contributions,

(C) which satisfies the requirements of subsection (d), and

(D) which is included on the list submitted for the applicable covered State under subsection (g) for the applicable year.

(d) *Requirements for scholarship granting organizations.*

(1) *In general.* An organization meets the requirements of this subsection if—

(A) such organization provides scholarships to 10 or more students who do not all attend the same school,

(B) such organization spends not less than 90 percent of the income of the organization on scholarships for eligible students,

(C) such organization does not provide scholarships for any expenses other than qualified elementary or secondary education expenses,

(D) such organization provides a scholarship to eligible students with a priority for—

(i) students awarded a scholarship the previous school year, and

(ii) after application of clause (i), any eligible students who have a sibling who was awarded a scholarship from such organization,

(E) such organization does not earmark or set aside contributions for scholarships on behalf of any particular student, and

(F) such organization—

(i) verifies the annual household income and family size of eligible students who apply for scholarships to ensure such students meet the requirement of subsection (c)(2)(A), and

(ii) limits the awarding of scholarships to eligible students who are a member of a household for which the income does not exceed the amount established under subsection (c)(2)(A).

(2) *Prohibition on self-dealing.*

(A) *In general.* A scholarship granting organization may not award a scholarship to any disqualified person.

(B) *Disqualified person.* For purposes of this paragraph, a disqualified person shall be determined pursuant to rules similar to the rules of section 4946.

(e) *Denial of double benefit.* Any qualified contribution for which a credit is allowed under this section shall not be taken into account as a charitable contribution for purposes of section 170.

(f) *Carryforward of unused credit.*

(1) *In general.* If the credit allowable under subsection (a) for any taxable year exceeds the limitation imposed by section 26(a) for such taxable year reduced by the sum of the credits allowable under this subpart (other than this section, section 23, and section 25D), such excess shall be carried to the succeeding taxable year and added to the credit allowable under subsection (a) for such taxable year.

(2) *Limitation.* No credit may be carried forward under this subsection to any taxable year following the fifth taxable year after the taxable year in which the credit arose. For purposes of the preceding sentence, credits shall be treated as used on a first-in first-out basis.

(g) *State list of scholarship granting organizations.*

(1) *List.*

(A) *In general.* Not later than January 1 of each calendar year (or, with respect to the first calendar year for which this section applies, as early as practicable), a State that voluntarily elects to participate under this section shall provide to the Secretary a list of the scholarship granting organizations that meet the requirements described in subsection (c)(5) and are located in the State.

(B) *Process.* The election under this paragraph shall be made by the Governor of the State or by such other individual, agency, or entity as is designated under State law to make such elections on behalf of the State with respect to Federal tax benefits.

(2) *Certification.* Each list submitted under paragraph (1) shall include a certification that the individual, agency, or entity submitting such list on behalf of the State has the authority to perform this function.

(h) *Regulations and guidance.* The Secretary shall issue such regulations or other guidance as the Secretary determines necessary to carry out the purposes of this section, including regulations or other guidance—

(1) providing for enforcement of the requirements under subsections (d) and (g), and

(2) with respect to recordkeeping or information reporting for purposes of administering the requirements of this section.

29 U.S.C. § 213

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Exemptions

(a) *Minimum wage and maximum hour requirements.* The provisions of sections 206 (except subsection (d) in the case of paragraph (1) of this subsection) and 207 of this title shall not apply with respect to—

(1) any employee employed in a bona fide executive, administrative, or professional capacity (including any employee employed in the capacity of academic administrative personnel or teacher in elementary or secondary schools), or in the capacity of outside salesman (as such terms are defined and delimited from time to time by regulations of

the Secretary, subject to the provisions of subchapter II of chapter 5 of title 5, except that an employee of a retail or service establishment shall not be excluded from the definition of employee employed in a bona fide executive or administrative capacity because of the number of hours in his workweek which he devotes to activities not directly or closely related to the performance of executive or administrative activities, if less than 40 per centum of his hours worked in the workweek are devoted to such activities); or

(2) Repealed. Pub. L. 101–157, § 3(c)(1), Nov. 17, 1989, 103 Stat. 939.

(3) any employee employed by an establishment which is an amusement or recreational establishment, organized camp, or religious or non-profit educational conference center, if (A) it does not operate for more than seven months in any calendar year, or (B) during the preceding calendar year, its average receipts for any six months of such year were not more than $33\frac{1}{3}$ per centum of its average receipts for the other six months of such year, except that the exemption from sections 206 and 207 of this title provided by this paragraph does not apply with respect to any employee of a private entity engaged in providing services or facilities (other than, in the case of the exemption from section 206 of this title, a private entity engaged in providing services and facilities directly related to skiing) in a national park or a national forest, or on land in the National Wildlife Refuge System, under a contract with the Secretary of the Interior or the Secretary of Agriculture; or

(4) Repealed. Pub. L. 101–157, § 3(c)(1), Nov. 17, 1989, 103 Stat. 939.

(5) any employee employed in the catching, taking, propagating, harvesting, cultivating, or farming of any kind of fish, shellfish, crustacea, sponges, seaweeds, or other aquatic forms of animal and vegetable life, or in the first processing, canning or packing such marine products at sea as an incident to, or in conjunction with, such fishing operations, including the going to and returning from work and loading and unloading when performed by any such employee; or

(6) any employee employed in agriculture (A) if such employee is employed by an employer who did not, during any calendar quarter during the preceding calendar year, use more than five hundred man-days of agricultural labor, (B) if such employee is the parent, spouse, child, or other member of his employer's immediate family, (C) if such employee (i) is employed as a hand harvest laborer and is paid on a piece rate basis in an operation which has been, and is customarily and generally recognized as having been, paid on a piece rate basis in the region of employment, (ii) commutes daily from his permanent residence to the farm on which he is so employed, and (iii) has been employed in agriculture less than thirteen weeks during the preceding calendar year, (D) if such employee (other than an employee described in clause (C) of this subsection) (i) is sixteen years of age or under and is employed as a hand harvest laborer, is paid on a piece rate basis in an operation which has been, and is customarily and generally recognized as having been, paid on a piece rate basis in the region of employment, (ii) is employed on the same farm as his parent or person standing in the place of his parent, and (iii) is paid at the same piece rate as employees over age sixteen are paid on the same farm, or (E) if such employee is principally engaged in the range production of livestock; or

(7) any employee to the extent that such employee is exempted by regulations, order, or certificate of the Secretary issued under section 214 of this title; or

(8) any employee employed in connection with the publication of any weekly, semiweekly, or daily newspaper with a circulation of less than four thousand the major part of which circulation is within the county where published or counties contiguous thereto; or

(9) Repealed. Pub. L. 93–259, § 23(a)(1), Apr. 8, 1974, 88 Stat. 69.

(10) any switchboard operator employed by an independently owned public telephone company which has not more than seven hundred and fifty stations; or

(11) Repealed. Pub. L. 93–259, § 10(a), Apr. 8, 1974, 88 Stat. 63.

(12) any employee employed as a seaman on a vessel other than an American vessel; or

(13) , (14) Repealed. Pub. L. 93–259, §§ 9(b)(1), 23(b)(1), Apr. 8, 1974, 88 Stat. 63, 69.

(15) any employee employed on a casual basis in domestic service employment to provide babysitting services or any employee employed in domestic service employment to provide companionship services for individuals who (because of age or infirmity) are unable to care for themselves (as such terms are defined and delimited by regulations of the Secretary); or

(16) a criminal investigator who is paid availability pay under section 5545a of title 5;

(17) any employee who is a computer systems analyst, computer programmer, software engineer, or other similarly skilled worker, whose primary duty is—

(A) the application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software, or system functional specifications;

(B) the design, development, documentation, analysis, creation, testing, or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(C) the design, documentation, testing, creation, or modification of computer programs related to machine operating systems; or

(D) a combination of duties described in subparagraphs (A), (B), and (C) the performance of which requires the same level of skills, and

who, in the case of an employee who is compensated on an hourly basis, is compensated at a rate of not less than $27.63 an hour; or

(18) any employee who is a border patrol agent, as defined in section 5550(a) of title 5; or

(19) any employee employed to play baseball who is compensated pursuant to a contract that provides for a weekly salary for services performed during the league's championship season (but not spring training or the off season) at a rate that is not less than a weekly salary equal to the minimum wage under section 206(a) of this title for a workweek of 40 hours, irrespective of the number of hours the employee devotes to baseball related activities.

(b) *Maximum hour requirements.* The provisions of section 207 of this title shall not apply with respect to—

(1) any employee with respect to whom the Secretary of Transportation has power to establish qualifications and maximum hours of service pursuant to the provisions of section 31502 of title 49; or

(2) any employee of an employer engaged in the operation of a rail carrier subject to part A of subtitle IV of title 49; or

(3) any employee of a carrier by air subject to the provisions of title II of the Railway Labor Act [45 U.S.C. 181 et seq.]; or

(4) Repealed. Pub. L. 93–259, § 11(c), Apr. 8, 1974, 88 Stat. 64.

(5) any individual employed as an outside buyer of poultry, eggs, cream, or milk, in their raw or natural state; or

(6) any employee employed as a seaman; or

(7) Repealed. Pub. L. 93–259, § 21(b)(3), Apr. 8, 1974, 88 Stat. 68.

(8) Repealed. Pub. L. 95–151, § 14(b), Nov. 1, 1977, 91 Stat. 1252.

(9) any employee employed as an announcer, news editor, or chief engineer by a radio or television station the major studio of which is located (A) in a city or town of one hundred thousand population or less, according to the latest available decennial census figures as compiled by the Bureau of the Census, except where such city or town is part of a standard metropolitan statistical area, as defined and designated by the Office of Management and Budget, which has a total population in excess of one hundred thousand, or (B) in a city or town of twenty-five thousand population or less, which is part of such an area but is at least 40 airline miles from the principal city in such area; or

(10)

(A) any salesman, partsman, or mechanic primarily engaged in selling or servicing automobiles, trucks, or farm implements, if he is employed by a nonmanufacturing establishment primarily engaged in the business of selling such vehicles or implements to ultimate purchasers; or

(B) any salesman primarily engaged in selling trailers, boats, or aircraft, if he is employed by a nonmanufacturing establishment primarily engaged in the business of selling trailers, boats, or aircraft to ultimate purchasers; or

(11) any employee employed as a driver or driver's helper making local deliveries, who is compensated for such employment on the basis of trip rates, or other delivery payment plan, if the Secretary shall find that such plan has the general purpose and effect of reducing hours worked by such employees to, or below, the maximum workweek applicable to them under section 207(a) of this title; or

(12) any employee employed in agriculture or in connection with the operation or maintenance of ditches, canals, reservoirs, or waterways, not owned or operated for profit, or operated on a sharecrop basis, and which are used exclusively for supply and storing of water, at least 90 percent of which was ultimately delivered for agricultural purposes during the preceding calendar year; or

(13) any employee with respect to his employment in agriculture by a farmer, notwithstanding other employment of such employee in connection with livestock auction operations in which such farmer is engaged as an adjunct to the raising of livestock, either on his own account or in conjunction with other farmers, if such employee (A) is primarily employed during his workweek in agriculture by such farmer, and (B) is paid for his employment in connection with such livestock auction operations at a wage rate not less than that prescribed by section 206(a)(1) of this title; or

(14) any employee employed within the area of production (as defined by the Secretary) by an establishment commonly recognized as a country elevator, including such an establishment which sells products and services used in the operation of a farm, if no more than five employees are employed in the establishment in such operations; or

(15) any employee engaged in the processing of maple sap into sugar (other than refined sugar) or syrup; or

(16) any employee engaged (A) in the transportation and preparation for transportation of fruits or vegetables, whether or not performed by the farmer, from the farm to a place of first processing or first marketing within the same State, or (B) in transportation, whether or not performed by the farmer, between the farm and any point within the same State of persons employed or to be employed in the harvesting of fruits or vegetables; or

(17) any driver employed by an employer engaged in the business of operating taxicabs; or

(18) , (19) Repealed. Pub. L. 93–259, §§ 15(c), 16(b), Apr. 8, 1974, 88 Stat. 65.

(20) any employee of a public agency who in any workweek is employed in fire protection activities or any employee of a public agency who in any workweek is employed in law enforcement activities (including security personnel in

correctional institutions), if the public agency employs during the workweek less than 5 employees in fire protection or law enforcement activities, as the case may be; or

(21) any employee who is employed in domestic service in a household and who resides in such household; or

(22) Repealed. Pub. L. 95–151, § 5, Nov. 1, 1977, 91 Stat. 1249.

(23) Repealed. Pub. L. 93–259, § 10(b)(3), Apr. 8, 1974, 88 Stat. 64.

(24) any employee who is employed with his spouse by a nonprofit educational institution to serve as the parents of children—

(A) who are orphans or one of whose natural parents is deceased, or

(B) who are enrolled in such institution and reside in residential facilities of the institution,

while such children are in residence at such institution, if such employee and his spouse reside in such facilities, receive, without cost, board and lodging from such institution, and are together compensated, on a cash basis, at an annual rate of not less than $10,000; or

(25) , (26) Repealed. Pub. L. 95–151, §§ 6(a), 7(a), Nov. 1, 1977, 91 Stat. 1249, 1250.

(27) any employee employed by an establishment which is a motion picture theater; or

(28) any employee employed in planting or tending trees, cruising, surveying, or felling timber, or in preparing or transporting logs or other forestry products to the mill, processing plant, railroad, or other transportation terminal, if the number of employees employed by his employer in such forestry or lumbering operations does not exceed eight;

(29) any employee of an amusement or recreational establishment located in a national park or national forest or on land in the National Wildlife Refuge System if such employee (A) is an employee of a private entity engaged in providing services or facilities in a national park or national forest, or on land in the National Wildlife Refuge System, under a contract with the Secretary of the Interior or the Secretary of Agriculture, and (B) receives compensation for employment in excess of fifty-six hours in any workweek at a rate not less than one and one-half times the regular rate at which he is employed; or

(30) a criminal investigator who is paid availability pay under section 5545a of title 5.

(c) *Child labor requirements.*

(1) Except as provided in paragraph (2) or (4), the provisions of section 212 of this title relating to child labor shall not apply to any employee employed in agriculture outside of school hours for the school district where such employee is living while he is so employed, if such employee—

(A) is less than twelve years of age and (i) is employed by his parent, or by a person standing in the place of his parent, on a farm owned or operated by such parent or person, or (ii) is employed, with the consent of his parent or person standing in the place of his parent, on a farm, none of the employees of which are (because of subsection (a)(6)(A)) required to be paid at the wage rate prescribed by section 206(a)(5) of this title,

(B) is twelve years or thirteen years of age and (i) such employment is with the consent of his parent or person standing in the place of his parent, or (ii) his parent or such person is employed on the same farm as such employee, or

(C) is fourteen years of age or older.

(2) The provisions of section 212 of this title relating to child labor shall apply to an employee below the age of sixteen employed in agriculture in an occupation that the Secretary of Labor finds and declares to be particularly hazardous for the employment of children below the age of sixteen, except where such employee is employed by his parent or by a person standing in the place of his parent on a farm owned or operated by such parent or person.

(3) The provisions of section 212 of this title relating to child labor shall not apply to any child employed as an actor or performer in motion pictures or theatrical productions, or in radio or television productions.

(4)

(A) An employer or group of employers may apply to the Secretary for a waiver of the application of section 212 of this title to the employment for not more than eight weeks in any calendar year of individuals who are less than twelve years of age, but not less than ten years of age, as hand harvest laborers in an agricultural operation which has been, and is customarily and generally recognized as being, paid on a piece rate basis in the region in which such individuals would be employed. The Secretary may not grant such a waiver unless he finds, based on objective data submitted by the applicant, that—

(i) the crop to be harvested is one with a particularly short harvesting season and the application of section 212 of this title would cause severe economic disruption in the industry of the employer or group of employers applying for the waiver;

(ii) the employment of the individuals to whom the waiver would apply would not be deleterious to their health or well-being;

(iii) the level and type of pesticides and other chemicals used would not have an adverse effect on the health or well-being of the individuals to whom the waiver would apply;

(iv) individuals age twelve and above are not available for such employment; and

(v) the industry of such employer or group of employers has traditionally and substantially employed individuals under twelve years of age without displacing substantial job opportunities for individuals over sixteen years of age.

(B) Any waiver granted by the Secretary under subparagraph (A) shall require that—

(i) the individuals employed under such waiver be employed outside of school hours for the school district where they are living while so employed;

(ii) such individuals while so employed commute daily from their permanent residence to the farm on which they are so employed; and

(iii) such individuals be employed under such waiver (I) for not more than eight weeks between June 1 and October 15 of any calendar year, and (II) in accordance with such other terms and conditions as the Secretary shall prescribe for such individuals' protection.

(5)

(A) In the administration and enforcement of the child labor provisions of this chapter, employees who are 16 and 17 years of age shall be permitted to load materials into, but not operate or unload materials from, scrap paper balers and paper box compactors—

(i) that are safe for 16- and 17-year-old employees loading the scrap paper balers or paper box compactors; and

(ii) that cannot be operated while being loaded.

(B) For purposes of subparagraph (A), scrap paper balers and paper box compactors shall be considered safe for 16- or 17-year-old employees to load only if—

(i)

(I) the scrap paper balers and paper box compactors meet the American National Standards Institute's Standard ANSI Z245.5–1990 for scrap paper balers and Standard ANSI Z245.2–1992 for paper box compactors; or

(II) the scrap paper balers and paper box compactors meet an applicable standard that is adopted by the American National Standards Institute after August 6, 1996, and that is certified by the Secretary to be at least as protective of the safety of minors as the standard described in subclause (I);

(ii) the scrap paper balers and paper box compactors include an on-off switch incorporating a key-lock or other system and the control of the system is maintained in the custody of employees who are 18 years of age or older;

(iii) the on-off switch of the scrap paper balers and paper box compactors is maintained in an off position when the scrap paper balers and paper box compactors are not in operation; and

(iv) the employer of 16- and 17-year-old employees provides notice, and posts a notice, on the scrap paper balers and paper box compactors stating that—

(I) the scrap paper balers and paper box compactors meet the applicable standard described in clause (i);

(II) 16- and 17-year-old employees may only load the scrap paper balers and paper box compactors; and

(III) any employee under the age of 18 may not operate or unload the scrap paper balers and paper box compactors.

The Secretary shall publish in the Federal Register a standard that is adopted by the American National Standards Institute for scrap paper balers or paper box compactors and certified by the Secretary to be protective of the safety of minors under clause (i)(II).

(C)

(i) Employers shall prepare and submit to the Secretary reports—

(I) on any injury to an employee under the age of 18 that requires medical treatment (other than first aid) resulting from the employee's contact with a scrap paper baler or paper box compactor during the loading, operation, or unloading of the baler or compactor; and

(II) on any fatality of an employee under the age of 18 resulting from the employee's contact with a scrap paper baler or paper box compactor during the loading, operation, or unloading of the baler or compactor.

(ii) The reports described in clause (i) shall be used by the Secretary to determine whether or not the implementation of subparagraph (A) has had any effect on the safety of children.

(iii) The reports described in clause (i) shall provide—

(I) the name, telephone number, and address of the employer and the address of the place of employment where the incident occurred;

(II) the name, telephone number, and address of the employee who suffered an injury or death as a result of the incident;

(III) the date of the incident;

(IV) a description of the injury and a narrative describing how the incident occurred; and

(V) the name of the manufacturer and the model number of the scrap paper baler or paper box compactor involved in the incident.

(iv) The reports described in clause (i) shall be submitted to the Secretary promptly, but not later than 10 days

after the date on which an incident relating to an injury or death occurred.

(v) The Secretary may not rely solely on the reports described in clause (i) as the basis for making a determination that any of the employers described in clause (i) has violated a provision of section 212 of this title relating to oppressive child labor or a regulation or order issued pursuant to section 212 of this title. The Secretary shall, prior to making such a determination, conduct an investigation and inspection in accordance with section 212(b) of this title.

(vi) The reporting requirements of this subparagraph shall expire 2 years after August 6, 1996.

(6) In the administration and enforcement of the child labor provisions of this chapter, employees who are under 17 years of age may not drive automobiles or trucks on public roadways. Employees who are 17 years of age may drive automobiles or trucks on public roadways only if—

(A) such driving is restricted to daylight hours;

(B) the employee holds a State license valid for the type of driving involved in the job performed and has no records of any moving violation at the time of hire;

(C) the employee has successfully completed a State approved driver education course;

(D) the automobile or truck is equipped with a seat belt for the driver and any passengers and the employee's employer has instructed the employee that the seat belts must be used when driving the automobile or truck;

(E) the automobile or truck does not exceed 6,000 pounds of gross vehicle weight;

(F) such driving does not involve—

(i) the towing of vehicles;

(ii) route deliveries or route sales;

(iii) the transportation for hire of property, goods, or passengers;

(iv) urgent, time-sensitive deliveries;

(v) more than two trips away from the primary place of employment in any single day for the purpose of delivering goods of the employee's employer to a customer (other than urgent, time-sensitive deliveries);

(vi) more than two trips away from the primary place of employment in any single day for the purpose of transporting passengers (other than employees of the employer);

(vii) transporting more than three passengers (including employees of the employer); or

(viii) driving beyond a 30 mile radius from the employee's place of employment; and

(G) such driving is only occasional and incidental to the employee's employment.

For purposes of subparagraph (G), the term "occasional and incidental" is no more than one-third of an employee's worktime in any workday and no more than 20 percent of an employee's worktime in any workweek.

(7)

(A)

(i) Subject to subparagraph (B), in the administration and enforcement of the child labor provisions of this chapter, it shall not be considered oppressive child labor for a new entrant into the workforce to be employed inside or outside places of business where machinery is used to process wood products.

(ii) In this paragraph, the term "new entrant into the workforce" means an individual who—

(I) is under the age of 18 and at least the age of 14, and

(II) by statute or judicial order is exempt from compulsory school attendance beyond the eighth grade.

(B) The employment of a new entrant into the workforce under subparagraph (A) shall be permitted—

(i) if the entrant is supervised by an adult relative of the entrant or is supervised by an adult member of the same religious sect or division as the entrant;

(ii) if the entrant does not operate or assist in the operation of power-driven woodworking machines;

(iii) if the entrant is protected from wood particles or other flying debris within the workplace by a barrier appropriate to the potential hazard of such wood particles or flying debris or by maintaining a sufficient distance from machinery in operation; and

(iv) if the entrant is required to use personal protective equipment to prevent exposure to excessive levels of noise and saw dust.

(d) *Delivery of newspapers and wreathmaking.* The provisions of sections 206, 207, and 212 of this title shall not apply with respect to any employee engaged in the delivery of newspapers to the consumer or to any homeworker engaged in the making of wreaths composed principally of natural holly, pine, cedar, or other evergreens (including the harvesting of the evergreens or other forest products used in making such wreaths).

(e) *Maximum hour requirements and minimum wage employees.* The provisions of section 207 of this title shall not apply with respect to employees for whom the Secretary of Labor is authorized to establish minimum wage rates as provided in section 206(a)(3) 1 of this title, except with respect to employees for whom such rates are in effect; and with respect to such employees the Secretary may make rules and regulations providing reasonable limitations and allowing reasonable variations, tolerances, and exemptions to and from any or all of the provisions of section 207 of this title if he shall find,

after a public hearing on the matter, and taking into account the factors set forth in section 206(a)(3) 1 of this title, that economic conditions warrant such action.

(f) *Employment in foreign countries and certain United States territories.* The provisions of sections 206, 207, 211, and 212 of this title shall not apply with respect to any employee whose services during the workweek are performed in a workplace within a foreign country or within territory under the jurisdiction of the United States other than the following: a State of the United States; the District of Columbia; Puerto Rico; the Virgin Islands; outer Continental Shelf lands defined in the Outer Continental Shelf Lands Act (ch. 345, 67 Stat. 462) [43 U.S.C. 1331 et seq.]; American Samoa; Guam; Wake Island; Eniwetok Atoll; Kwajalein Atoll; and Johnston Island.

(g) *Certain employment in retail or service establishments, agriculture.* The exemption from section 206 of this title provided by paragraph (6) of subsection (a) of this section shall not apply with respect to any employee employed by an establishment (1) which controls, is controlled by, or is under common control with, another establishment the activities of which are not related for a common business purpose to, but materially support the activities of the establishment employing such employee; and (2) whose annual gross volume of sales made or business done, when combined with the annual gross volume of sales made or business done by each establishment which controls, is controlled by, or is under common control with, the establishment employing such employee, exceeds $10,000,000 (exclusive of excise taxes at the retail level which are separately stated).

(h) *Maximum hour requirement: fourteen workweek limitation.* The provisions of section 207 of this title shall not apply for a period or periods of not more than fourteen workweeks in the aggregate in any calendar year to any employee who—

(1) is employed by such employer—

(A) exclusively to provide services necessary and incidental to the ginning of cotton in an establishment primarily engaged in the ginning of cotton;

(B) exclusively to provide services necessary and incidental to the receiving, handling, and storing of raw cotton and the compressing of raw cotton when performed at a cotton warehouse or compress-warehouse facility, other than one operated in conjunction with a cotton mill, primarily engaged in storing and compressing;

(C) exclusively to provide services necessary and incidental to the receiving, handling, storing, and processing of cottonseed in an establishment primarily engaged in the receiving, handling, storing, and processing of cottonseed; or

(D) exclusively to provide services necessary and incidental to the processing of sugar cane or sugar beets in an establishment primarily engaged in the processing of sugar cane or sugar beets; and

(2) receives for—

(A) such employment by such employer which is in excess of ten hours in any workday, and

(B) such employment by such employer which is in excess of forty-eight hours in any workweek,

compensation at a rate not less than one and one-half times the regular rate at which he is employed.

Any employer who receives an exemption under this subsection shall not be eligible for any other exemption under this section or section 207 of this title.

(i) *Cotton ginning.* The provisions of section 207 of this title shall not apply for a period or periods of not more than fourteen workweeks in the aggregate in any period of fifty-two consecutive weeks to any employee who—

(1) is engaged in the ginning of cotton for market in any place of employment located in a county where cotton is grown in commercial quantities; and

(2) receives for any such employment during such workweeks—

(A) in excess of ten hours in any workday, and

(B) in excess of forty-eight hours in any workweek,

compensation at a rate not less than one and one-half times the regular rate at which he is employed. No week included in any fifty-two week period for purposes of the preceding sentence may be included for such purposes in any other fifty-two week period.

(j) *Processing of sugar beets, sugar beet molasses, or sugar cane.* The provisions of section 207 of this title shall not apply for a period or periods of not more than fourteen workweeks in the aggregate in any period of fifty-two consecutive weeks to any employee who—

(1) is engaged in the processing of sugar beets, sugar beet molasses, or sugar cane into sugar (other than refined sugar) or syrup; and

(2) receives for any such employment during such workweeks—

(A) in excess of ten hours in any workday, and

(B) in excess of forty-eight hours in any workweek,

compensation at a rate not less than one and one-half times the regular rate at which he is employed. No week included in any fifty-two week period for purposes of the preceding sentence may be included for such purposes in any other fifty-two week period.

42 U.S.C. § 608

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Prohibitions; requirements

(a) *In general.*

(1) *No assistance for families without a minor child.* A State to which a grant is made under section 603 of this title shall not use any part of the grant to provide assistance to a family, unless the family includes a minor child who resides with the family (consistent with paragraph (10)) or a pregnant individual.

(2) *Reduction or elimination of assistance for noncooperation in establishing paternity or obtaining child support.* If the agency responsible for administering the State plan approved under part D determines that an individual is not cooperating with the State in establishing paternity or in establishing, modifying, or enforcing a support order with respect to a child of the individual, and the individual does not qualify for any good cause or other exception established by the State pursuant to section 654(29) of this title, then the State—

(A) shall deduct from the assistance that would otherwise be provided to the family of the individual under the State program funded under this part an amount equal to not less than 25 percent of the amount of such assistance; and

(B) may deny the family any assistance under the State program.

(3) *No assistance for families not assigning certain support rights to the State.* A State to which a grant is made under section 603 of this title shall require, as a condition of paying assistance to a family under the State program funded under this part, that a member of the family assign to the State any right the family member may have (on behalf of the family member or of any other person for whom the family member has applied for or is receiving such assistance) to support from any other person, not exceeding the total amount of assistance so paid to the family, which accrues during the period that the family receives assistance under the program.

(4) *No assistance for teenage parents who do not attend high school or other equivalent training program.* A State to which a grant is made under section 603 of this title shall not use any part of the grant to provide assistance to an individual who has not attained 18 years of age, is not married, has a minor child at least 12 weeks of age in his or her care, and has not successfully completed a high-school education (or its equivalent), if the individual does not participate in—

(A) educational activities directed toward the attainment of a high school diploma or its equivalent; or

(B) an alternative educational or training program that has been approved by the State.

(5) *No assistance for teenage parents not living in adult-supervised settings.*

(A) *In general.*

(i) *Requirement.* Except as provided in subparagraph (B), a State to which a grant is made under section 603 of this title shall not use any part of the grant to provide assistance to an individual described in clause (ii) of this subparagraph if the individual and the minor child referred to in clause (ii)(II) do not reside in a place of residence maintained by a parent, legal guardian, or other adult relative of the individual as such parent's, guardian's, or adult relative's own home.

(ii) *Individual described.* For purposes of clause (i), an individual described in this clause is an individual who—

(I) has not attained 18 years of age; and

(II) is not married, and has a minor child in his or her care.

(B) *Exception.*

(i) *Provision of, or assistance in locating, adult-supervised living arrangement.* In the case of an individual who is described in clause (ii), the State agency referred to in section 602(a)(4) of this title shall provide, or assist the individual in locating, a second chance home, maternity home, or other appropriate adult-supervised supportive living arrangement, taking into consideration the needs and concerns of the individual, unless the State agency determines that the individual's current living arrangement is appropriate, and thereafter shall require that the individual and the minor child referred to in subparagraph (A)(ii)(II) reside in such living arrangement as a condition of the continued receipt of assistance under the State program funded under this part attributable to funds provided by the Federal Government (or in an alternative appropriate arrangement, should circumstances change and the current arrangement cease to be appropriate).

(ii) *Individual described.* For purposes of clause (i), an individual is described in this clause if the individual is described in subparagraph (A)(ii), and—

(I) the individual has no parent, legal guardian, or other appropriate adult relative described in subclause (II) of his or her own who is living or whose whereabouts are known;

(II) no living parent, legal guardian, or other appropriate adult relative, who would otherwise meet applicable State criteria to act as the individual's legal guardian, of such individual allows the individual to live in the home of such parent, guardian, or relative;

(III) the State agency determines that—

(aa) the individual or the minor child referred to in subparagraph (A)(ii)(II) is being or has been subjected to serious physical or emotional harm, sexual abuse, or exploitation in the residence of the individual's own parent or legal guardian; or

(bb) substantial evidence exists of an act or failure to act that presents an imminent or serious harm if the individual and the minor child lived in the same residence with the individual's own parent or legal guardian; or

(IV) the State agency otherwise determines that it is in the best interest of the minor child to waive the requirement of subparagraph (A) with respect to the individual or the minor child.

(iii) *Second-chance home.* For purposes of this subparagraph, the term "second-chance home" means an entity that provides individuals described in clause (ii) with a supportive and supervised living arrangement in which such individuals are required to learn parenting skills, including child development, family budgeting, health and nutrition, and other skills to promote their long-term economic independence and the well-being of their children.

(6) *No medical services.*

(A) *In general.* A State to which a grant is made under section 603 of this title shall not use any part of the grant to provide medical services.

(B) *Exception for prepregnancy family planning services.* As used in subparagraph (A), the term "medical services" does not include prepregnancy family planning services.

(7) *No assistance for more than 5 years.*

(A) *In general.* A State to which a grant is made under section 603 of this title shall not use any part of the grant to provide assistance to a family that includes an adult who has received assistance under any State program funded under this part attributable to funds provided by the Federal Government, for 60 months (whether or not consecutive) after the date the State program funded under this part commences, subject to this paragraph.

(B) *Minor child exception.* In determining the number of months for which an individual who is a parent or pregnant has received assistance under the State program funded under this part, the State shall disregard any month for which such assistance was provided with respect to the individual and during which the individual was—

(i) a minor child; and

(ii) not the head of a household or married to the head of a household.

(C) *Hardship exception.*

(i) *In general.* The State may exempt a family from the application of subparagraph (A) by reason of hardship or if the family includes an individual who has been battered or subjected to extreme cruelty.

(ii) *Limitation.* The average monthly number of families with respect to which an exemption made by a State under clause (i) is in effect for a fiscal year shall not exceed 20 percent of the average monthly number of families to which assistance is provided under the State program funded under this part during the fiscal year or the immediately preceding fiscal year (but not both), as the State may elect.

(iii) *Battered or subject to extreme cruelty defined.* For purposes of clause (i), an individual has been battered or subjected to extreme cruelty if the individual has been subjected to—

(I) physical acts that resulted in, or threatened to result in, physical injury to the individual;

(II) sexual abuse;

(III) sexual activity involving a dependent child;

(IV) being forced as the caretaker relative of a dependent child to engage in nonconsensual sexual acts or activities;

(V) threats of, or attempts at, physical or sexual abuse;

(VI) mental abuse; or

(VII) neglect or deprivation of medical care.

(D) *Disregard of months of assistance received by adult while living in Indian country or an Alaskan Native village with 50 percent unemployment.*

(i) *In general.* In determining the number of months for which an adult has received assistance under a State or tribal program funded under this part, the State or tribe shall disregard any month during which the adult lived in Indian country or an Alaskan Native village if the most reliable data available with respect to the month (or a period including the month) indicate that at least 50 percent of the adults living in Indian country or in the village were not employed.

(ii) *"Indian country" defined.* As used in clause (i), the term "Indian country" has the meaning given such term in section 1151 of title 18.

(E) *Rule of interpretation.* Subparagraph (A) shall not be interpreted to require any State to provide assistance to any individual for any period of time under the State program funded under this part.

(F) *Rule of interpretation.* This part shall not be interpreted to prohibit any State from expending State funds

not originating with the Federal Government on benefits for children or families that have become ineligible for assistance under the State program funded under this part by reason of subparagraph (A).

(G) *Inapplicability to welfare-to-work grants and assistance.* For purposes of subparagraph (A) of this paragraph, a grant made under section 603(a)(5) of this title shall not be considered a grant made under section 603 of this title, and noncash assistance from funds provided under section 603(a)(5) of this title shall not be considered assistance.

(8) *Denial of assistance for 10 years to a person found to have fraudulently misrepresented residence in order to obtain assistance in 2 or more States.* A State to which a grant is made under section 603 of this title shall not use any part of the grant to provide cash assistance to an individual during the 10-year period that begins on the date the individual is convicted in Federal or State court of having made a fraudulent statement or representation with respect to the place of residence of the individual in order to receive assistance simultaneously from 2 or more States under programs that are funded under this subchapter, subchapter XIX, or the Food and Nutrition Act of 2008 [7 U.S.C. 2011 et seq.], or benefits in 2 or more States under the supplemental security income program under subchapter XVI. The preceding sentence shall not apply with respect to a conviction of an individual, for any month beginning after the President of the United States grants a pardon with respect to the conduct which was the subject of the conviction.

(9) *Denial of assistance for fugitive felons and probation and parole violators.*

(A) *In general.* A State to which a grant is made under section 603 of this title shall not use any part of the grant to provide assistance to any individual who is—

(i) fleeing to avoid prosecution, or custody or confinement after conviction, under the laws of the place from which the individual flees, for a crime, or an attempt to commit a crime, which is a felony under the laws of the place from which the individual flees, or which, in the case of the State of New Jersey, is a high misdemeanor under the laws of such State; or

(ii) violating a condition of probation or parole imposed under Federal or State law.

The preceding sentence shall not apply with respect to conduct of an individual, for any month beginning after the President of the United States grants a pardon with respect to the conduct.

(B) *Exchange of information with law enforcement agencies.* If a State to which a grant is made under section 603 of this title establishes safeguards against the use or disclosure of information about applicants or recipients of assistance under the State program funded under this part, the safeguards shall not prevent the State agency administering the program from furnishing a Federal, State, or local law enforcement officer, upon the request of the officer, with the current address of any recipient if the officer furnishes the agency with the name of the recipient and notifies the agency that—

(i) the recipient—

(I) is described in subparagraph (A); or

(II) has information that is necessary for the officer to conduct the official duties of the officer; and

(ii) the location or apprehension of the recipient is within such official duties.

(10) *Denial of assistance for minor children who are absent from the home for a significant period.*

(A) *In general.* A State to which a grant is made under section 603 of this title shall not use any part of the grant to provide assistance for a minor child who has been, or is expected by a parent (or other caretaker relative) of the child to be, absent from the home for a period of 45 consecutive days or, at the option of the State, such period of not less than 30 and not more than 180 consecutive days as the State may provide for in the State plan submitted pursuant to section 602 of this title.

(B) *State authority to establish good cause exceptions.* The State may establish such good cause exceptions to subparagraph (A) as the State considers appropriate if such exceptions are provided for in the State plan submitted pursuant to section 602 of this title.

(C) *Denial of assistance for relative who fails to notify State agency of absence of child.* A State to which a grant is made under section 603 of this title shall not use any part of the grant to provide assistance for an individual who is a parent (or other caretaker relative) of a minor child and who fails to notify the agency administering the State program funded under this part of the absence of the minor child from the home for the period specified in or provided for pursuant to subparagraph (A), by the end of the 5-day period that begins with the date that it becomes clear to the parent (or relative) that the minor child will be absent for such period so specified or provided for.

(11) *Medical assistance required to be provided for certain families having earnings from employment or child support.*

(A) *Earnings from employment.* A State to which a grant is made under section 603 of this title and which has a State plan approved under subchapter XIX shall provide that in the case of a family that is treated (under section 1396u–1(b)(1)(A) of this title for purposes of subchapter XIX) as receiving aid under a State plan approved under this part (as in effect on July 16, 1996), that would become ineligible for such aid because of hours of or income from employment of the caretaker relative (as defined under this part as in effect on such date) or because of section 602(a)(8)(B)(ii)(II) of this title (as so in effect), and that was so treated as receiving such aid in at least 3 of the 6 months immediately preceding the month in which such ineligibility begins, the family shall remain eligible

for medical assistance under the State's plan approved under subchapter XIX for an extended period or periods as provided in section 1396r–6 or 1396a(e)(1) of this title (as applicable), and that the family will be appropriately notified of such extension as required by section 1396r–6(a)(2) of this title.

(B) *Child support.* A State to which a grant is made under section 603 of this title and which has a State plan approved under subchapter XIX shall provide that in the case of a family that is treated (under section 1396u–1(b)(1)(A) of this title for purposes of subchapter XIX) as receiving aid under a State plan approved under this part (as in effect on July 16, 1996), that would become ineligible for such aid as a result (wholly or partly) of the collection of child or spousal support under part D and that was so treated as receiving such aid in at least 3 of the 6 months immediately preceding the month in which such ineligibility begins, the family shall remain eligible for medical assistance under the State's plan approved under subchapter XIX for an extended period or periods as provided in section 1396u–1(c)(1) of this title.

(12) *State requirement to prevent unauthorized spending of benefits.*

(A) *In general.* A State to which a grant is made under section 603 of this title shall maintain policies and practices as necessary to prevent assistance provided under the State program funded under this part from being used in any electronic benefit transfer transaction in—

(i) any liquor store;

(ii) any casino, gambling casino, or gaming establishment; or

(iii) any retail establishment which provides adult-oriented entertainment in which performers disrobe or perform in an unclothed state for entertainment.

(B) *Definitions.* For purposes of subparagraph (A)—

(i) *Liquor store.* The term "liquor store" means any retail establishment which sells exclusively or primarily intoxicating liquor. Such term does not include a grocery store which sells both intoxicating liquor and groceries including staple foods (within the meaning of section 3(r) of the Food and Nutrition Act of 2008 (7 U.S.C. 2012(r))).

(ii) *Casino, gambling casino, or gaming establishment.* The terms "casino", "gambling casino", and "gaming establishment" do not include—

(I) a grocery store which sells groceries including such staple foods and which also offers, or is located within the same building or complex as, casino, gambling, or gaming activities; or

(II) any other establishment that offers casino, gambling, or gaming activities incidental to the principal purpose of the business.

(iii) *Electronic benefit transfer transaction.* The term "electronic benefit transfer transaction" means the use of a credit or debit card service, automated teller machine, point-of-sale terminal, or access to an online system for the withdrawal of funds or the processing of a payment for merchandise or a service.

(b) *Individual responsibility plans.*

(1) *Assessment.* The State agency responsible for administering the State program funded under this part shall make an initial assessment of the skills, prior work experience, and employability of each recipient of assistance under the program who—

(A) has attained 18 years of age; or

(B) has not completed high school or obtained a certificate of high school equivalency, and is not attending secondary school.

(2) *Contents of plans.*

(A) *In general.* On the basis of the assessment made under subsection (a) with respect to an individual, the State agency, in consultation with the individual, may develop an individual responsibility plan for the individual, which—

(i) sets forth an employment goal for the individual and a plan for moving the individual immediately into private sector employment;

(ii) sets forth the obligations of the individual, which may include a requirement that the individual attend school, maintain certain grades and attendance, keep school age children of the individual in school, immunize children, attend parenting and money management classes, or do other things that will help the individual become and remain employed in the private sector;

(iii) to the greatest extent possible is designed to move the individual into whatever private sector employment the individual is capable of handling as quickly as possible, and to increase the responsibility and amount of work the individual is to handle over time;

(iv) describes the services the State will provide the individual so that the individual will be able to obtain and keep employment in the private sector, and describe the job counseling and other services that will be provided by the State; and

(v) may require the individual to undergo appropriate substance abuse treatment.

(B) *Timing.* The State agency may comply with paragraph (1) with respect to an individual—

(i) within 90 days (or, at the option of the State, 180 days) after the effective date of this part, in the case of an individual who, as of such effective date, is a recipient of aid under the State plan approved under part A (as in effect immediately before such effective date); or

(ii) within 30 days (or, at the option of the State, 90 days) after the individual is determined to be eligible for such assistance, in the case of any other individual.

(3) *Penalty for noncompliance by individual.* In addition to any other penalties required under the State program funded under this part, the State may reduce, by such amount as the State considers appropriate, the amount of assistance otherwise payable under the State program to a family that includes an individual who fails without good cause to comply with an individual responsibility plan signed by the individual.

(4) *State discretion.* The exercise of the authority of this subsection shall be within the sole discretion of the State.

(c) *Sanctions against recipients not considered wage reductions.* A penalty imposed by a State against the family of an individual by reason of the failure of the individual to comply with a requirement under the State program funded under this part shall not be construed to be a reduction in any wage paid to the individual.

(d) *Nondiscrimination provisions.* The following provisions of law shall apply to any program or activity which receives funds provided under this part:

(1) The Age Discrimination Act of 1975 (42 U.S.C. 6101 et seq.).

(2) Section 794 of title 29.

(3) The Americans with Disabilities Act of 1990 (42 U.S.C. 12101 et seq.).

(4) Title VI of the Civil Rights Act of 1964 (42 U.S.C. 2000d et seq.).

(e) *Special rules relating to treatment of certain aliens.* For special rules relating to the treatment of certain aliens, see title IV of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 [8 U.S.C. 1601 et seq.].

(f) *Special rules relating to treatment of non-213A aliens.* The following rules shall apply if a State elects to take the income or resources of any sponsor of a non-213A alien into account in determining whether the alien is eligible for assistance under the State program funded under this part, or in determining the amount or types of such assistance to be provided to the alien:

(1) *Deeming of sponsor's income and resources.* For a period of 3 years after a non-213A alien enters the United States:

(A) *Income deeming rule.* The income of any sponsor of the alien and of any spouse of the sponsor is deemed to be income of the alien, to the extent that the total amount of the income exceeds the sum of—

(i) the lesser of—

(I) 20 percent of the total of any amounts received by the sponsor or any such spouse in the month as wages or salary or as net earnings from self-employment, plus the full amount of any costs incurred by the sponsor and any such spouse in producing self-employment income in such month; or

(II) $175;

(ii) the cash needs standard established by the State for purposes of determining eligibility for assistance under the State program funded under this part for a family of the same size and composition as the sponsor and any other individuals living in the same household as the sponsor who are claimed by the sponsor as dependents for purposes of determining the sponsor's Federal personal income tax liability but whose needs are not taken into account in determining whether the sponsor's family has met the cash needs standard;

(iii) any amounts paid by the sponsor or any such spouse to individuals not living in the household who are claimed by the sponsor as dependents for purposes of determining the sponsor's Federal personal income tax liability; and

(iv) any payments of alimony or child support with respect to individuals not living in the household.

(B) *Resource deeming rule.* The resources of a sponsor of the alien and of any spouse of the sponsor are deemed to be resources of the alien to the extent that the aggregate value of the resources exceeds $1,500.

(C) *Sponsors of multiple non-213A aliens.* If a person is a sponsor of 2 or more non-213A aliens who are living in the same home, the income and resources of the sponsor and any spouse of the sponsor that would be deemed income and resources of any such alien under subparagraph (A) shall be divided into a number of equal shares equal to the number of such aliens, and the State shall deem the income and resources of each such alien to include 1 such share.

(2) *Ineligibility of non-213A aliens sponsored by agencies; exception.* A non-213A alien whose sponsor is or was a public or private agency shall be ineligible for assistance under a State program funded under this part, during a period of 3 years after the alien enters the United States, unless the State agency administering the program determines that the sponsor either no longer exists or has become unable to meet the alien's needs.

(3) *Information provisions.*

(A) *Duties of non-213A aliens.* A non-213A alien, as a condition of eligibility for assistance under a State program funded under this part during the period of 3 years after the alien enters the United States, shall be required to provide to the State agency administering the program—

(i) such information and documentation with respect to the alien's sponsor as may be necessary in order for the State agency to make any determination required under this subsection, and to obtain any cooperation from the sponsor necessary for any such determination; and

(ii) such information and documentation as the State agency may request and which the alien or the alien's sponsor provided in support of the alien's immigration application.

(B) *Duties of Federal agencies.* The Secretary shall enter into agreements with the Secretary of State and the Attorney General under which any information available to them and required in order to make any determination under this subsection will be provided by them to the Secretary (who may, in turn, make the information available, upon request, to a concerned State agency).

(4) *"Non-213A alien" defined.* An alien is a non-213A alien for purposes of this subsection if the affidavit of support or similar agreement with respect to the alien that was executed by the sponsor of the alien's entry into the United States was executed other than pursuant to section 213A of the Immigration and Nationality Act [8 U.S.C. 1183a].

(5) *Inapplicability to alien minor sponsored by a parent.* This subsection shall not apply to an alien who is a minor child if the sponsor of the alien or any spouse of the sponsor is a parent of the alien.

(6) *Inapplicability to certain categories of aliens.* This subsection shall not apply to an alien who is—

(A) admitted to the United States as a refugee under section 207 of the Immigration and Nationality Act [8 U.S.C. 1157];

(B) paroled into the United States under section 212(d)(5) of such Act [8 U.S.C. 1182(d)(5)] for a period of at least 1 year; or

(C) granted political asylum by the Attorney General under section 208 of such Act [8 U.S.C. 1158].

(g) *State required to provide certain information.* Each State to which a grant is made under section 603 of this title shall, at least 4 times annually and upon request of the Immigration and Naturalization Service, furnish the Immigration and Naturalization Service with the name and address of, and other identifying information on, any individual who the State knows is not lawfully present in the United States.

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Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Eligibility for benefits

(a) *"Eligible individual" defined.*

(1) Each aged, blind, or disabled individual who does not have an eligible spouse and—

(A) whose income, other than income excluded pursuant to section 1382a(b) of this title, is at a rate of not more than $1,752 (or, if greater, the amount determined under section 1382f of this title) for the calendar year 1974 or any calendar year thereafter, and

(B) whose resources, other than resources excluded pursuant to section 1382b(a) of this title, are not more than (i) in case such individual has a spouse with whom he is living, the applicable amount determined under paragraph (3)(A), or (ii) in case such individual has no spouse with whom he is living, the applicable amount determined under paragraph (3)(B),

shall be an eligible individual for purposes of this subchapter.

(2) Each aged, blind, or disabled individual who has an eligible spouse and—

(A) whose income (together with the income of such spouse), other than income excluded pursuant to section 1382a(b) of this title, is at a rate of not more than $2,628 (or, if greater, the amount determined under section 1382f of this title) for the calendar year 1974, or any calendar year thereafter, and

(B) whose resources (together with the resources of such spouse), other than resources excluded pursuant to section 1382b(a) of this title, are not more than the applicable amount determined under paragraph (3)(A),

shall be an eligible individual for purposes of this subchapter.

(3)

(A) The dollar amount referred to in clause (i) of paragraph (1)(B), and in paragraph (2)(B), shall be $2,250 prior to January 1, 1985, and shall be increased to $2,400 on January 1, 1985, to $2,550 on January 1, 1986, to $2,700 on January 1, 1987, to $2,850 on January 1, 1988, and to $3,000 on January 1, 1989.

(B) The dollar amount referred to in clause (ii) of paragraph (1)(B), shall be $1,500 prior to January 1, 1985, and shall be increased to $1,600 on January 1, 1985, to $1,700 on January 1, 1986, to $1,800 on January 1, 1987, to $1,900 on January 1, 1988, and to $2,000 on January 1, 1989.

(b) *Amount of benefits.*

(1) The benefit under this subchapter for an individual who does not have an eligible spouse shall be payable at the rate of $1,752 (or, if greater, the amount determined under section 1382f of this title) for the calendar year 1974 and any calendar year thereafter, reduced by the amount of income, not excluded pursuant to section 1382a(b) of this title, of such individual.

(2) The benefit under this subchapter for an individual who has an eligible spouse shall be payable at the rate of $2,628 (or, if greater, the amount determined under section 1382f of this title) for the calendar year 1974 and any calendar year thereafter, reduced by the amount of income, not excluded pursuant to section 1382a(b) of this title, of such individual and spouse.

(c) *Period for determination of benefits.*

(1) An individual's eligibility for a benefit under this subchapter for a month shall be determined on the basis of the individual's (and eligible spouse's, if any) income, resources, and other relevant characteristics in such month, and, except as provided in paragraphs (2), (3), (4), (5), and (6), the amount of such benefit shall be determined for such month on the basis of income and other characteristics in the first or, if the Commissioner of Social Security so determines, second month preceding such month. Eligibility for and the amount of such benefits shall be redetermined at such time or times as may be provided by the Commissioner of Social Security.

(2) The amount of such benefit for the month in which an application for benefits becomes effective (or, if the Commissioner of Social Security so determines, for such month and the following month) and for any month immediately following a month of ineligibility for such benefits (or, if the Commissioner of Social Security so determines, for such month and the following month) shall—

(A) be determined on the basis of the income of the individual and the eligible spouse, if any, of such individual and other relevant circumstances in such month; and

(B) in the case of the first month following a period of ineligibility in which eligibility is restored after the first day of such month, bear the same ratio to the amount of the benefit which would have been payable to such individual if eligibility had been restored on the first day of such month as the number of days in such month including and following the date of restoration of eligibility bears to the total number of days in such month.

(3) For purposes of this subsection, an increase in the benefit amount payable under subchapter II (over the amount payable in the preceding month, or, at the election of the Commissioner of Social Security, the second preceding month) to an individual receiving benefits under this subchapter shall be included in the income used to determine the benefit under this subchapter of such individual for any month which is—

(A) the first month in which the benefit amount payable to such individual under this title is increased pursuant to section 1382f of this title, or

(B) at the election of the Commissioner of Social Security, the month immediately following such month.

(4)

(A) Notwithstanding paragraph (3), if the Commissioner of Social Security determines that reliable information is currently available with respect to the income and other circumstances of an individual for a month (including information with respect to a class of which such individual is a member and information with respect to scheduled cost-of-living adjustments under other benefit programs), the benefit amount of such individual under this subchapter for such month may be determined on the basis of such information.

(B) The Commissioner of Social Security shall prescribe by regulation the circumstances in which information with respect to an event may be taken into account pursuant to subparagraph (A) in determining benefit amounts under this subchapter.

(5) Notwithstanding paragraphs (1) and (2), any income which is paid to or on behalf of an individual in any month pursuant to (A) a State program funded under part A of subchapter IV, (B) section 672 of this title (relating to foster care assistance), (C) section 1522(e) of title 8 (relating to assistance for refugees), (D) section 501(a) of Public Law 96-422 (relating to assistance for Cuban and Haitian entrants), or (E) section 13 of title 25 (relating to assistance furnished by the Bureau of Indian Affairs), shall be taken into account in determining the amount of the benefit under this subchapter of such individual (and his eligible spouse, if any) only for that month, and shall not be taken into account in determining the amount of the benefit for any other month.

(6) The dollar amount in effect under subsection (b) as a result of any increase in benefits under this subchapter by reason of section 1382f of this title shall be used to determine the value of any in-kind support and maintenance required to be taken into account in determining the benefit payable under this subchapter to an individual (and the eligible spouse, if any, of the individual) for the 1st 2 months for which the increase in benefits applies.

(7) For purposes of this subsection, an application of an individual for benefits under this subchapter shall be effective on the later of—

(A) the first day of the month following the date such application is filed, or

(B) the first day of the month following the date such individual becomes eligible for such benefits with respect to

such application.

(8) The Commissioner of Social Security may waive the limitations specified in subparagraphs (A) and (B) of subsection (e)(1) on an individual's eligibility and benefit amount for a month (to the extent either such limitation is applicable by reason of such individual's presence throughout such month in a hospital, extended care facility, nursing home, or intermediate care facility) if such waiver would promote the individual's removal from such institution or facility. Upon waiver of such limitations, the Commissioner of Social Security shall apply, to the month preceding the month of removal, or, if the Commissioner of Social Security so determines, the two months preceding the month of removal, the benefit rate that is appropriate to such individual's living arrangement subsequent to his removal from such institution or facility.

(9)

(A) Notwithstanding paragraphs (1) and (2), any nonrecurring income which is paid to an individual in the first month of any period of eligibility shall be taken into account in determining the amount of the benefit under this subchapter of such individual (and his eligible spouse, if any) only for that month, and shall not be taken into account in determining the amount of the benefit for any other month.

(B) For purposes of subparagraph (A), payments to an individual in varying amounts from the same or similar source for the same or similar purpose shall not be considered to be nonrecurring income.

(10) For purposes of this subsection, remuneration for service performed as a member of a uniformed service may be treated as received in the month in which it was earned, if the Commissioner of Social Security determines that such treatment would promote the economical and efficient administration of the program authorized by this subchapter.

(d) *Limitation on amount of gross income earned; "gross income" defined.* The Commissioner of Social Security may prescribe the circumstances under which, consistently with the purposes of this subchapter, the gross income from a trade or business (including farming) will be considered sufficiently large to make an individual ineligible for benefits under this subchapter. For purposes of this subsection, the term "gross income" has the same meaning as when used in chapter 1 of the Internal Revenue Code of 1986.

(e) *Limitation on eligibility of certain individuals.*

(1)

(A) Except as provided in subparagraphs (B), (C), (D), (E), and (G), no person shall be an eligible individual or eligible spouse for purposes of this subchapter with respect to any month if throughout such month he is an inmate of a public institution.

(B) In any case where an eligible individual or his eligible spouse (if any) is, throughout any month (subject to subparagraph (G)), in a medical treatment facility receiving payments (with respect to such individual or spouse) under a State plan approved under subchapter XIX, or an eligible individual is a child described in section 1382c(f)(2)(B) of this title, or, in the case of an eligible individual who is a child under the age of 18, receiving payments (with respect to such individual) under any health insurance policy issued by a private provider of such insurance the benefit under this subchapter for such individual for such month shall be payable (subject to subparagraph (E))—

(i) at a rate not in excess of $360 per year (reduced by the amount of any income not excluded pursuant to section 1382a(b) of this title) in the case of an individual who does not have an eligible spouse;

(ii) in the case of an individual who has an eligible spouse, if only one of them is in such a facility throughout such month, at a rate not in excess of the sum of—

(I) the rate of $360 per year (reduced by the amount of any income, not excluded pursuant to section 1382a(b) of this title, of the one who is in such facility), and

(II) the applicable rate specified in subsection (b)(1) (reduced by the amount of any income, not excluded pursuant to section 1382a(b) of this title, of the other); and

(iii) at a rate not in excess of $720 per year (reduced by the amount of any income not excluded pursuant to section 1382a(b) of this title) in the case of an individual who has an eligible spouse, if both of them are in such a facility throughout such month.

For purposes of this subsection, a medical treatment facility that provides services described in section 1396p(c)(1)(C) of this title shall be considered to be receiving payments with respect to an individual under a State plan approved under subchapter XIX during any period of ineligibility of such individual provided for under the State plan pursuant to section 1396p(c) of this title.

(C) As used in subparagraph (A), the term "public institution" does not include a publicly operated community residence which serves no more than 16 residents.

(D) A person may be an eligible individual or eligible spouse for purposes of this subchapter with respect to any month throughout which he is a resident of a public emergency shelter for the homeless (as defined in regulations which shall be prescribed by the Commissioner of Social Security); except that no person shall be an eligible individual or eligible spouse by reason of this subparagraph more than 6 months in any 9-month period.

(E) Notwithstanding subparagraphs (A) and (B), any individual who—

(i)

(I) is an inmate of a public institution, the primary purpose of which is the provision of medical or psychiatric care, throughout any month as described in subparagraph (A), or

(II) is in a medical treatment facility throughout any month as described in subparagraph (B),

(ii) was eligible under section 1382h(a) or (b) of this title for the month preceding such month, and

(iii) under an agreement of the public institution or the medical treatment facility is permitted to retain any benefit payable by reason of this subparagraph,

may be an eligible individual or eligible spouse for purposes of this subchapter (and entitled to a benefit determined on the basis of the rate applicable under subsection (b)) for the month referred to in subclause (I) or (II) of clause (i) and, if such subclause still applies, for the succeeding month.

(F) An individual who is an eligible individual or an eligible spouse for a month by reason of subparagraph (E) shall not be treated as being eligible under section 1382h(a) or (b) of this title for such month for purposes of clause (ii) of such subparagraph.

(G) A person may be an eligible individual or eligible spouse for purposes of this subchapter, and subparagraphs (A) and (B) shall not apply, with respect to any particular month throughout which he or she is an inmate of a public institution the primary purpose of which is the provision of medical or psychiatric care, or is in a medical treatment facility receiving payments (with respect to such individual or spouse) under a State plan approved under subchapter XIX or, in the case of an individual who is a child under the age of 18, under any health insurance policy issued by a private provider of such insurance, if it is determined in accordance with subparagraph (H) or (J) that—

(i) such person's stay in that institution or facility (or in that institution or facility and one or more other such institutions or facilities during a continuous period of institutionalization) is likely (as certified by a physician) not to exceed 3 months, and the particular month involved is one of the first 3 months throughout which such person is in such an institution or facility during a continuous period of institutionalization; and

(ii) such person needs to continue to maintain and provide for the expenses of the home or living arrangement to which he or she may return upon leaving the institution or facility.

The benefit of any person under this subchapter (including State supplementation if any) for each month to which this subparagraph applies shall be payable, without interruption of benefit payments and on the date the benefit involved is regularly due, at the rate that was applicable to such person in the month prior to the first month throughout which he or she is in the institution or facility.

(H) The Commissioner of Social Security shall establish procedures for the determinations required by clauses (i) and (ii) of subparagraph (G), and may enter into agreements for making such determinations (or for providing information or assistance in connection with the making of such determinations) with appropriate State and local public and private agencies and organizations. Such procedures and agreements shall include the provision of appropriate assistance to individuals who, because of their physical or mental condition, are limited in their ability to furnish the information needed in connection with the making of such determinations.

(I)

(i) The Commissioner shall enter into an agreement, with any interested State or local institution comprising a jail, prison, penal institution, or correctional facility, or with any other interested State or local institution a purpose of which is to confine individuals as described in section 402(x)(1)(A)(ii) of this title, under which—

(I) the institution shall provide to the Commissioner, on a monthly basis and in a manner specified by the Commissioner, the first, middle, and last names, social security account numbers or taxpayer identification numbers, prison assigned inmate numbers, last known addresses, dates of birth, confinement commencement dates, dates of release or anticipated dates of release, dates of work release, and, to the extent available to the institution, such other identifying information concerning the inmates of the institution as the Commissioner may require for the purpose of carrying out this paragraph and clause (iv) of this subparagraph and the other provisions of this subchapter; and

(II) the Commissioner shall pay to any such institution, with respect to each individual who receives in the month preceding the first month throughout which such individual is an inmate of the jail, prison, penal institution, or correctional facility that furnishes information respecting such individual pursuant to subclause (I), or is confined in the institution (that so furnishes such information) as described in section 402(x)(1)(A)(ii) of this title, a benefit under this subchapter for such preceding month, and who is determined by the Commissioner to be ineligible for benefits under this subchapter by reason of confinement based on the information provided by such institution, $400 (subject to reduction under clause (ii)) if the institution furnishes the information described in subclause (I) to the Commissioner within 15 days after the date such individual becomes an inmate of such institution, or $200 (subject to reduction under clause (ii)) if the

institution furnishes such information after 15 days after such date but within 90 days after such date.

(ii) The dollar amounts specified in clause (i)(II) shall be reduced by 50 percent if the Commissioner is also required to make a payment to the institution with respect to the same individual under an agreement entered into under section 402(x)(3)(B) of this title.

(iii) The Commissioner shall maintain, and shall provide on a reimbursable basis, information obtained pursuant to agreements entered into under clause (i) to any Federal or federally-assisted cash, food, or medical assistance program for eligibility and other administrative purposes under such program, for statistical and research activities conducted by Federal and State agencies, and to the Secretary of the Treasury for the purposes of tax administration, debt collection, and identifying, preventing, and recovering improper payments under federally funded programs.

(iv) Payments to institutions required by clause (i)(II) shall be made from funds otherwise available for the payment of benefits under this subchapter and shall be treated as direct spending for purposes of the Balanced Budget and Emergency Deficit Control Act of 1985 [2 U.S.C. 900 et seq.].

(v)

(I) The Commissioner may disclose information received pursuant to this paragraph to any officer, employee, agent, or contractor of the Department of the Treasury whose official duties require such information to assist in the identification, prevention, and recovery of improper payments or in the collection of delinquent debts owed to the United States, including payments certified by the head of an executive, judicial, or legislative paying agency, and payments made to individuals whose eligibility, or continuing eligibility, to participate in a Federal program (including those administered by a State or political subdivision thereof) is being reviewed.

(II) Notwithstanding the provisions of section 552a of title 5 or any other provision of Federal or State law, the Secretary of the Treasury may compare information disclosed under subclause (I) with any other personally identifiable information derived from a Federal system of records or similar records maintained by a Federal contractor, a Federal grantee, or an entity administering a Federal program or activity and may redisclose such comparison of information to any paying or administering agency and to the head of the Federal Bureau of Prisons and the head of any State agency charged with the administration of prisons with respect to inmates whom the Secretary of the Treasury has determined may have been issued, or facilitated in the issuance of, an improper payment.

(III) The comparison of information disclosed under subclause (I) shall not be considered a matching program for purposes of section 552a of title 5.

(J) For the purpose of carrying out this paragraph, the Commissioner of Social Security shall conduct periodic computer matches with data maintained by the Secretary of Health and Human Services under subchapter XVIII or XIX. The Secretary shall furnish to the Commissioner, in such form and manner and under such terms as the Commissioner and the Secretary shall mutually agree, such information as the Commissioner may request for this purpose. Information obtained pursuant to such a match may be substituted for the physician's certification otherwise required under subparagraph (G)(i).

(2) No person shall be an eligible individual or eligible spouse for purposes of this subchapter if, after notice to such person by the Commissioner of Social Security that it is likely that such person is eligible for any payments of the type enumerated in section 1382a(a)(2)(B) of this title, such person fails within 30 days to take all appropriate steps to apply for and (if eligible) obtain any such payments.

(3) Notwithstanding anything to the contrary in the criteria being used by the Commissioner of Social Security in determining when a husband and wife are to be considered two eligible individuals for purposes of this subchapter and when they are to be considered an eligible individual with an eligible spouse, the State agency administering or supervising the administration of a State plan under any other program under this chapter may (in the administration of such plan) treat a husband and wife living in the same medical treatment facility described in paragraph (1)(B) as though they were an eligible individual with his or her eligible spouse for purposes of this subchapter (rather than two eligible individuals), after they have continuously lived in the same such facility for 6 months, if treating such husband and wife as two eligible individuals would prevent either of them from receiving benefits or assistance under such plan or reduce the amount thereof.

(4)

(A) No person shall be considered an eligible individual or eligible spouse for purposes of this subchapter with respect to any month if during such month the person is—

(i) fleeing to avoid prosecution, or custody or confinement after conviction, under the laws of the place from which the person flees, for a crime, or an attempt to commit a crime, which is a felony under the laws of the place from which the person flees, or, in jurisdictions that do not define crimes as felonies, is punishable by death or imprisonment for a term exceeding 1 year regardless of the actual sentence imposed; or

(ii) violating a condition of probation or parole imposed under Federal or State law.

(B) Notwithstanding subparagraph (A), the Commissioner shall, for good cause shown, treat the person referred to in subparagraph (A) as an eligible individual or eligible spouse if the Commissioner determines that—

(i) a court of competent jurisdiction has found the person not guilty of the criminal offense, dismissed the charges relating to the criminal offense, vacated the warrant for arrest of the person for the criminal offense, or issued any similar exonerating order (or taken similar exonerating action), or

(ii) the person was erroneously implicated in connection with the criminal offense by reason of identity fraud.

(C) Notwithstanding subparagraph (A), the Commissioner may, for good cause shown based on mitigating circumstances, treat the person referred to in subparagraph (A) as an eligible individual or eligible spouse if the Commissioner determines that—

(i) the offense described in subparagraph (A)(i) or underlying the imposition of the probation or parole described in subparagraph (A)(ii) was nonviolent and not drug-related, and

(ii) in the case of a person who is not considered an eligible individual or eligible spouse pursuant to subparagraph (A)(ii), the action that resulted in the violation of a condition of probation or parole was nonviolent and not drug-related.

(5) Notwithstanding any other provision of law (other than section 6103 of the Internal Revenue Code of 1986 and section 1306(c) of this title), the Commissioner shall furnish any Federal, State, or local law enforcement officer, upon the written request of the officer, with the current address, Social Security number, and photograph (if applicable) of any recipient of benefits under this subchapter, if the officer furnishes the Commissioner with the name of the recipient, and other identifying information as reasonably required by the Commissioner to establish the unique identity of the recipient, and notifies the Commissioner that—

(A) the recipient is described in clause (i) or (ii) of paragraph (4)(A); and

(B) the location or apprehension of the recipient is within the officer's official duties.

(f) *Individuals outside United States; determination of status.*

(1) Notwithstanding any other provision of this subchapter, no individual (other than a child described in section 1382c(a)(1)(B)(ii) of this title) shall be considered an eligible individual for purposes of this subchapter for any month during all of which such individual is outside the United States (and no person shall be considered the eligible spouse of an individual for purposes of this subchapter with respect to any month during all of which such person is outside the United States). For purposes of the preceding sentence, after an individual has been outside the United States for any period of 30 consecutive days, he shall be treated as remaining outside the United States until he has been in the United States for a period of 30 consecutive days.

(2) For a period of not more than 1 year, the first sentence of paragraph (1) shall not apply to any individual who—

(A) was eligible to receive a benefit under this subchapter for the month immediately preceding the first month during all of which the individual was outside the United States; and

(B) demonstrates to the satisfaction of the Commissioner of Social Security that the absence of the individual from the United States will be—

(i) for not more than 1 year; and

(ii) for the purpose of conducting studies as part of an educational program that is—

(I) designed to substantially enhance the ability of the individual to engage in gainful employment;

(II) sponsored by a school, college, or university in the United States; and

(III) not available to the individual in the United States.

(g) *Individuals deemed to meet resources test.* In the case of any individual or any individual and his spouse (as the case may be) who—

(1) received aid or assistance for December 1973 under a plan of a State approved under subchapter I, X, XIV, or XVI,

(2) has, since December 31, 1973, continuously resided in the State under the plan of which he or they received such aid or assistance for December 1973, and

(3) has, since December 31, 1973, continuously been (except for periods not in excess of six consecutive months) an eligible individual or eligible spouse with respect to whom supplemental security income benefits are payable,

the resources of such individual or such individual and his spouse (as the case may be) shall be deemed not to exceed the amount specified in subsections (a)(1)(B) and (a)(2)(B) during any period that the resources of such individual or such individual and his spouse (as the case may be) does not exceed the maximum amount of resources specified in the State plan, as in effect for October 1972, under which he or they received such aid or assistance for December 1973.

(h) *Individuals deemed to meet income test.* In determining eligibility for, and the amount of, benefits payable under this section in the case of any individual or any individual and his spouse (as the case may be) who—

(1) received aid or assistance for December 1973 under a plan of a State approved under subchapter X or XVI,

(2) is blind under the definition of that term in the plan, as in effect for October 1972, under which he or they received such aid or assistance for December 1973,

(3) has, since December 31, 1973, continuously resided in the State under the plan of which he or they received such

aid or assistance for December 1973, and

(4) has, since December 31, 1973, continuously been (except for periods not in excess of six consecutive months) an eligible individual or an eligible spouse with respect to whom supplemental security income benefits are payable,

there shall be disregarded an amount equal to the greater of (A) the maximum amount of any earned or unearned income which could have been disregarded under the State plan, as in effect for October 1972, under which he or they received such aid or assistance for December 1973, and (B) the amount which would be required to be disregarded under section 1382a of this title without application of this subsection.

(i) *Application and review requirements for certain individuals.* For application and review requirements affecting the eligibility of certain individuals, see section 1383(j) of this title.

42 U.S.C. § 1983

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Civil action for deprivation of rights

Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress, except that in any action brought against a judicial officer for an act or omission taken in such officer's judicial capacity, injunctive relief shall not be granted unless a declaratory decree was violated or declaratory relief was unavailable. For the purposes of this section, any Act of Congress applicable exclusively to the District of Columbia shall be considered to be a statute of the District of Columbia.

42 U.S.C. § 3607

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Religious organization or private club exemption

(a) Nothing in this subchapter shall prohibit a religious organization, association, or society, or any nonprofit institution or organization operated, supervised or controlled by or in conjunction with a religious organization, association, or society, from limiting the sale, rental or occupancy of dwellings which it owns or operates for other than a commercial purpose to persons of the same religion, or from giving preference to such persons, unless membership in such religion is restricted on account of race, color, or national origin. Nor shall anything in this subchapter prohibit a private club not in fact open to the public, which as an incident to its primary purpose or purposes provides lodgings which it owns or operates for other than a commercial purpose, from limiting the rental or occupancy of such lodgings to its members or from giving preference to its members.

(b)

(1) Nothing in this subchapter limits the applicability of any reasonable local, State, or Federal restrictions regarding the maximum number of occupants permitted to occupy a dwelling. Nor does any provision in this subchapter regarding familial status apply with respect to housing for older persons.

(2) As used in this section, "housing for older persons" means housing—

(A) provided under any State or Federal program that the Secretary determines is specifically designed and operated to assist elderly persons (as defined in the State or Federal program); or

(B) intended for, and solely occupied by, persons 62 years of age or older; or

(C) intended and operated for occupancy by persons 55 years of age or older, and—

(i) at least 80 percent of the occupied units are occupied by at least one person who is 55 years of age or older;

(ii) the housing facility or community publishes and adheres to policies and procedures that demonstrate the intent required under this subparagraph; and

(iii) the housing facility or community complies with rules issued by the Secretary for verification of occupancy, which shall—

(I) provide for verification by reliable surveys and affidavits; and

(II) include examples of the types of policies and procedures relevant to a determination of compliance with the requirement of clause (ii). Such surveys and affidavits shall be admissible in administrative and judicial proceedings for the purposes of such verification.

(3) Housing shall not fail to meet the requirements for housing for older persons by reason of:

(A) persons residing in such housing as of September 13, 1988, who do not meet the age requirements of subsections (2)(B) or (C): Provided, That new occupants of such housing meet the age requirements of subsections (2)(B) or (C); or

(B) unoccupied units: Provided, That such units are reserved for occupancy by persons who meet the age requirements of subsections 1 (2)(B) or (C).

(4) Nothing in this subchapter prohibits conduct against a person because such person has been convicted by any court of competent jurisdiction of the illegal manufacture or distribution of a controlled substance as defined in section 802 of title 21.

(5)

(A) A person shall not be held personally liable for monetary damages for a violation of this subchapter if such person reasonably relied, in good faith, on the application of the exemption under this subsection relating to housing for older persons.

(B) For the purposes of this paragraph, a person may only show good faith reliance on the application of the exemption by showing that—

(i) such person has no actual knowledge that the facility or community is not, or will not be, eligible for such exemption; and

(ii) the facility or community has stated formally, in writing, that the facility or community complies with the requirements for such exemption.

42 U.S.C. § 9849

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Nondiscrimination provisions

(a) *Discrimination based on race, creed, color, etc., as basis for denial of financial assistance.* The Secretary shall not provide financial assistance for any program, project, or activity under this subchapter unless the grant or contract with respect thereto specifically provides that no person with responsibilities in the operation thereof will discriminate with respect to any such program, project, or activity because of race, creed, color, national origin, sex, political affiliation, or beliefs.

(b) *Sex discrimination; enforcement provisions applicable.* No person in the United States shall on the ground of sex be excluded from participation in, be denied the benefits of, be subjected to discrimination under, or be denied employment in connection with any program or activity receiving assistance under this subchapter. The Secretary shall enforce the provisions of the preceding sentence in accordance with section 2000d–1 of this title. Section 2000d–2 of this title shall apply with respect to any action taken by the Secretary to enforce such sentence. This section shall not be construed as affecting any other legal remedy that a person may have if such person is excluded from participation in, denied the benefits of, subjected to discrimination under, or denied employment in connection with, any program, project, or activity receiving assistance under this subchapter.

(c) *Discrimination based on handicapping condition as basis for denial of financial assistance.* The Secretary shall not provide financial assistance for any program, project, or activity under this subchapter unless the grant or contract relating to the financial assistance specifically provides that no person with responsibilities in the operation of the program, project, or activity will discriminate against any individual because of a handicapping condition in violation of section 794 of title 29.

42 U.S.C. § 10406

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Formula grants to States

(a) *Formula grants to States.* The Secretary shall award grants to States in order to assist in supporting the establishment, maintenance, and expansion of programs and projects—

(1) to prevent incidents of family violence, domestic violence, and dating violence;

(2) to provide immediate shelter, supportive services, and access to community-based programs for victims of family violence, domestic violence, or dating violence, and their dependents; and

(3) to provide specialized services for children exposed to family violence, domestic violence, or dating violence, underserved populations, and victims who are members of racial and ethnic minority populations.

(b) *Administrative expenses.*

(1) *Administrative costs.* Each State may use not more than 5 percent of the grant funds for State administrative costs.

(2) *Subgrants to eligible entities.* The State shall use the remainder of the grant funds to make subgrants to eligible entities for approved purposes as described in section 10408 of this title.

(c) *Grant conditions.*

(1) *Approved activities.* In carrying out the activities under this chapter, grantees and subgrantees may collaborate with and provide information to Federal, State, local, and tribal public officials and agencies, in accordance with limitations on disclosure of confidential or private information as described in paragraph (5), to develop and implement policies to reduce or eliminate family violence, domestic violence, and dating violence.

(2) *Discrimination prohibited.*

(A) *Application of civil rights provisions.* For the purpose of applying the prohibitions against discrimination on the basis of age under the Age Discrimination Act of 1975 (42 U.S.C. 6101 et seq.), on the basis of disability under section 504 of the Rehabilitation Act of 1973 (29 U.S.C. 794), on the basis of sex under title IX of the Education Amendments of 1972 (20 U.S.C. 1681 et seq.), or on the basis of race, color, or national origin under title VI of the Civil Rights Act of 1964 (42 U.S.C. 2000d et seq.), programs and activities funded in whole or in part with funds made available under this chapter are considered to be programs and activities receiving Federal financial assistance.

(B) *Prohibition on discrimination on basis of sex, religion.*

(i) *In general.* No person shall on the ground of sex or religion be excluded from participation in, be denied the benefits of, or be subject to discrimination under, any program or activity funded in whole or in part with funds made available under this chapter. Nothing in this chapter shall require any such program or activity to include any individual in any program or activity without taking into consideration that individual's sex in those certain instances where sex is a bona fide occupational qualification or programmatic factor reasonably necessary to the normal or safe operation of that particular program or activity.

(ii) *Enforcement.* The Secretary shall enforce the provisions of clause (i) in accordance with section 602 of the Civil Rights Act of 1964 (42 U.S.C. 2000d–1). Section 603 of such Act (42 U.S.C. 2000d–2) shall apply with respect to any action taken by the Secretary to enforce such clause.

(iii) *Construction.* This subparagraph shall not be construed as affecting any legal remedy provided under any other provision of law.

(C) *Enforcement authorities of Secretary.* Whenever the Secretary finds that a State, Indian tribe, or other entity that has received financial assistance under this chapter has failed to comply with a provision of law referred to in subparagraph (A), with subparagraph (B), or with an applicable regulation (including one prescribed to carry out subparagraph (B)), the Secretary shall notify the chief executive officer of the State involved or the tribally designated official of the tribe involved and shall request such officer or official to secure compliance. If, within a reasonable period of time, not to exceed 60 days, the chief executive officer or official fails or refuses to secure compliance, the Secretary may—

(i) refer the matter to the Attorney General with a recommendation that an appropriate civil action be instituted;

(ii) exercise the powers and functions provided by title VI of the Civil Rights Act of 1964 (42 U.S.C. 2000d et seq.), the Age Discrimination Act of 1975 (42 U.S.C. 6101 et seq.), sections 504 and 505 of the Rehabilitation Act of 1973 [29 U.S.C. 794, 794a], or title IX of the Education Amendments of 1972 (20 U.S.C. 1681 et seq.), as may be applicable; or

(iii) take such other action as may be provided by law.

(D) *Enforcement authority of Attorney General.* When a matter is referred to the Attorney General pursuant to subparagraph (C)(i), or whenever the Attorney General has reason to believe that a State, an Indian tribe, or an entity described in subparagraph (C) is engaged in a pattern or practice in violation of a provision of law referred to in subparagraph (A) or in violation of subparagraph (B), the Attorney General may bring a civil action in any appropriate district court of the United States for such relief as may be appropriate, including injunctive relief.

(3) *Income eligibility standards.* No income eligibility standard may be imposed upon individuals with respect to eligibility for assistance or services supported with funds appropriated to carry out this chapter. No fees may be levied for assistance or services provided with funds appropriated to carry out this chapter.

(4) *Match.* No grant shall be made under this section to any entity other than a State or an Indian tribe unless the entity agrees that, with respect to the costs to be incurred by the entity in carrying out the program or project for which the grant is awarded, the entity will make available (directly or through donations from public or private entities) non-Federal contributions in an amount that is not less than $1 for every $5 of Federal funds provided under the grant. The non-Federal contributions required under this paragraph may be in cash or in kind.

(5) *Nondisclosure of confidential or private information.*

(A) *In general.* In order to ensure the safety of adult, youth, and child victims of family violence, domestic violence, or dating violence, and their families, grantees and subgrantees under this chapter shall protect the confidentiality and privacy of such victims and their families.

(B) *Nondisclosure.* Subject to subparagraphs (C), (D), and (E), grantees and subgrantees shall not—

(i) disclose any personally identifying information collected in connection with services requested (including services utilized or denied), through grantees' and subgrantees' programs; or

(ii) reveal personally identifying information without informed, written, reasonably time-limited consent by the person about whom information is sought, whether for this program or any other Federal or State grant program, which consent—

(I) shall be given by—

(aa) the person, except as provided in item (bb) or (cc);
(bb) in the case of an unemancipated minor, the minor and the minor's parent or guardian; or
(cc) in the case of an individual with a guardian, the individual's guardian; and
(II) may not be given by the abuser or suspected abuser of the minor or individual with a guardian, or the abuser or suspected abuser of the other parent of the minor.

(C) *Release.* If release of information described in subparagraph (B) is compelled by statutory or court mandate—
(i) grantees and subgrantees shall make reasonable attempts to provide notice to victims affected by the release of the information; and
(ii) grantees and subgrantees shall take steps necessary to protect the privacy and safety of the persons affected by the release of the information.

(D) *Information sharing.* Grantees and subgrantees may share—
(i) nonpersonally identifying information, in the aggregate, regarding services to their clients and demographic nonpersonally identifying information in order to comply with Federal, State, or tribal reporting, evaluation, or data collection requirements;
(ii) court-generated information and law enforcement-generated information contained in secure, governmental registries for protective order enforcement purposes; and
(iii) law enforcement- and prosecution-generated information necessary for law enforcement and prosecution purposes.

(E) *Oversight.* Nothing in this paragraph shall prevent the Secretary from disclosing grant activities authorized in this chapter to the Committee on Education and Labor of the House of Representatives and the Committee on Health, Education, Labor, and Pensions of the Senate and exercising congressional oversight authority. In making all such disclosures, the Secretary shall protect the confidentiality of individuals and omit personally identifying information, including location information about individuals and shelters.

(F) *Statutorily permitted reports of abuse or neglect.* Nothing in this paragraph shall prohibit a grantee or subgrantee from reporting abuse and neglect, as those terms are defined by law, where mandated or expressly permitted by the State or Indian tribe involved.

(G) *Preemption.* Nothing in this paragraph shall be construed to supersede any provision of any Federal, State, tribal, or local law that provides greater protection than this paragraph for victims of family violence, domestic violence, or dating violence.

(H) *Confidentiality of location.* The address or location of any shelter facility assisted under this chapter that otherwise maintains a confidential location shall, except with written authorization of the person or persons responsible for the operation of such shelter, not be made public.

(6) *Supplement not supplant.* Federal funds made available to a State or Indian tribe under this chapter shall be used to supplement and not supplant other Federal, State, tribal, and local public funds expended to provide services and activities that promote the objectives of this chapter.

(d) *Reports and evaluation.* Each grantee shall submit an annual performance report to the Secretary at such time as shall be reasonably required by the Secretary. Such performance report shall describe the grantee and subgrantee activities that have been carried out with grant funds made available under subsection (a) or section 10409 of this title, contain an evaluation of the effectiveness of such activities, and provide such additional information as the Secretary may reasonably require.

42 U.S.C. § 12132

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discrimination

Subject to the provisions of this subchapter, no qualified individual with a disability shall, by reason of such disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity, or be subjected to discrimination by any such entity.

42 U.S.C. § 12182

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (2).

Prohibition of discrimination by public accommodations

(a) *General rule.* No individual shall be discriminated against on the basis of disability in the full and equal enjoyment of the goods, services, facilities, privileges, advantages, or accommodations of any place of public accommodation by any person who owns, leases (or leases to), or operates a place of public accommodation.

(b) *Construction.*

(1) *General prohibition.*

(A) *Activities.*

(i) *Denial of participation.* It shall be discriminatory to subject an individual or class of individuals on the basis of a disability or disabilities of such individual or class, directly, or through contractual, licensing, or other arrangements, to a denial of the opportunity of the individual or class to participate in or benefit from the goods, services, facilities, privileges, advantages, or accommodations of an entity.

(ii) *Participation in unequal benefit.* It shall be discriminatory to afford an individual or class of individuals, on the basis of a disability or disabilities of such individual or class, directly, or through contractual, licensing, or other arrangements with the opportunity to participate in or benefit from a good, service, facility, privilege, advantage, or accommodation that is not equal to that afforded to other individuals.

(iii) *Separate benefit.* It shall be discriminatory to provide an individual or class of individuals, on the basis of a disability or disabilities of such individual or class, directly, or through contractual, licensing, or other arrangements with a good, service, facility, privilege, advantage, or accommodation that is different or separate from that provided to other individuals, unless such action is necessary to provide the individual or class of individuals with a good, service, facility, privilege, advantage, or accommodation, or other opportunity that is as effective as that provided to others.

(iv) *Individual or class of individuals.* For purposes of clauses (i) through (iii) of this subparagraph, the term "individual or class of individuals" refers to the clients or customers of the covered public accommodation that enters into the contractual, licensing or other arrangement.

(B) *Integrated settings.* Goods, services, facilities, privileges, advantages, and accommodations shall be afforded to an individual with a disability in the most integrated setting appropriate to the needs of the individual.

(C) *Opportunity to participate.* Notwithstanding the existence of separate or different programs or activities provided in accordance with this section, an individual with a disability shall not be denied the opportunity to participate in such programs or activities that are not separate or different.

(D) *Administrative methods.* An individual or entity shall not, directly or through contractual or other arrangements, utilize standards or criteria or methods of administration—

(i) that have the effect of discriminating on the basis of disability; or

(ii) that perpetuate the discrimination of others who are subject to common administrative control.

(E) *Association.* It shall be discriminatory to exclude or otherwise deny equal goods, services, facilities, privileges, advantages, accommodations, or other opportunities to an individual or entity because of the known disability of an individual with whom the individual or entity is known to have a relationship or association.

(2) *Specific prohibitions.*

(A) *Discrimination.* For purposes of subsection (a), discrimination includes—

(i) the imposition or application of eligibility criteria that screen out or tend to screen out an individual with a disability or any class of individuals with disabilities from fully and equally enjoying any goods, services, facilities, privileges, advantages, or accommodations, unless such criteria can be shown to be necessary for the provision of the goods, services, facilities, privileges, advantages, or accommodations being offered;

(ii) a failure to make reasonable modifications in policies, practices, or procedures, when such modifications are necessary to afford such goods, services, facilities, privileges, advantages, or accommodations to individuals with disabilities, unless the entity can demonstrate that making such modifications would fundamentally alter the nature of such goods, services, facilities, privileges, advantages, or accommodations;

(iii) a failure to take such steps as may be necessary to ensure that no individual with a disability is excluded, denied services, segregated or otherwise treated differently than other individuals because of the absence of auxiliary aids and services, unless the entity can demonstrate that taking such steps would fundamentally alter the nature of the good, service, facility, privilege, advantage, or accommodation being offered or would result in an undue burden;

(iv) a failure to remove architectural barriers, and communication barriers that are structural in nature, in existing facilities, and transportation barriers in existing vehicles and rail passenger cars used by an establishment for transporting individuals (not including barriers that can only be removed through the retrofitting of vehicles or rail passenger cars by the installation of a hydraulic or other lift), where such removal is readily achievable; and

(v) where an entity can demonstrate that the removal of a barrier under clause (iv) is not readily achievable, a failure to make such goods, services, facilities, privileges, advantages, or accommodations available through alternative methods if such methods are readily achievable.

(B) *Fixed route system.*

(i) *Accessibility.* It shall be considered discrimination for a private entity which operates a fixed route system and which is not subject to section 12184 of this title to purchase or lease a vehicle with a seating capacity in excess of 16 passengers (including the driver) for use on such system, for which a solicitation is made after the 30th day following the effective date of this subparagraph, that is not readily accessible to and usable by individuals with disabilities, including individuals who use wheelchairs.

(ii) *Equivalent service.* If a private entity which operates a fixed route system and which is not subject to section 12184 of this title purchases or leases a vehicle with a seating capacity of 16 passengers or less (including the driver) for use on such system after the effective date of this subparagraph that is not readily accessible to or usable by individuals with disabilities, it shall be considered discrimination for such entity to fail to operate such system so that, when viewed in its entirety, such system ensures a level of service to individuals with disabilities, including individuals who use wheelchairs, equivalent to the level of service provided to individuals without disabilities.

(C) *Demand responsive system.* For purposes of subsection (a), discrimination includes—

(i) a failure of a private entity which operates a demand responsive system and which is not subject to section 12184 of this title to operate such system so that, when viewed in its entirety, such system ensures a level of service to individuals with disabilities, including individuals who use wheelchairs, equivalent to the level of service provided to individuals without disabilities; and

(ii) the purchase or lease by such entity for use on such system of a vehicle with a seating capacity in excess of 16 passengers (including the driver), for which solicitations are made after the 30th day following the effective date of this subparagraph, that is not readily accessible to and usable by individuals with disabilities (including individuals who use wheelchairs) unless such entity can demonstrate that such system, when viewed in its entirety, provides a level of service to individuals with disabilities equivalent to that provided to individuals without disabilities.

(D) *Over-the-road buses.*

(i) *Limitation on applicability.* Subparagraphs (B) and (C) do not apply to over-the-road buses.

(ii) *Accessibility requirements.* For purposes of subsection (a), discrimination includes (I) the purchase or lease of an over-the-road bus which does not comply with the regulations issued under section 12186(a)(2) of this title by a private entity which provides transportation of individuals and which is not primarily engaged in the business of transporting people, and (II) any other failure of such entity to comply with such regulations.

(3) *Specific construction.* Nothing in this subchapter shall require an entity to permit an individual to participate in or benefit from the goods, services, facilities, privileges, advantages and accommodations of such entity where such individual poses a direct threat to the health or safety of others. The term "direct threat" means a significant risk to the health or safety of others that cannot be eliminated by a modification of policies, practices, or procedures or by the provision of auxiliary aids or services.

42 U.S.C. § 1437f

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Low-income housing assistance

(a) *Authorization for assistance payments.* For the purpose of aiding low-income families in obtaining a decent place to live and of promoting economically mixed housing, assistance payments may be made with respect to existing housing in accordance with the provisions of this section.

(b) *Other existing housing programs.*

(1) *In general.—.* The Secretary is authorized to enter into annual contributions contracts with public housing agencies pursuant to which such agencies may enter into contracts to make assistance payments to owners of existing dwelling units in accordance with this section. In areas where no public housing agency has been organized or where the Secretary determines that a public housing agency is unable to implement the provisions of this section, the Secretary is authorized to enter into such contracts and to perform the other functions assigned to a public housing agency by this section.

(2) The Secretary is authorized to enter into annual contributions contracts with public housing agencies for the purpose of replacing public housing transferred in accordance with subchapter II–A of this chapter. Each contract entered into under this subsection shall be for a term of not more than 60 months.

(c) *Contents and purposes of contracts for assistance payments; amount and scope of monthly assistance payments.*

(1)

(A) An assistance contract entered into pursuant to this section shall establish the maximum monthly rent (including utilities and all maintenance and management charges) which the owner is entitled to receive for each dwelling unit with respect to which such assistance payments are to be made. The maximum monthly rent shall not exceed by

more than 10 per centum the fair market rental established by the Secretary periodically but not less than annually for existing or newly constructed rental dwelling units of various sizes and types in the market area suitable for occupancy by persons assisted under this section, except that the maximum monthly rent may exceed the fair market rental (A) by more than 10 but not more than 20 per centum where the Secretary determines that special circumstances warrant such higher maximum rent or that such higher rent is necessary to the implementation of a housing strategy as defined in section 12705 of this title, or (B) by such higher amount as may be requested by a tenant and approved by the public housing agency in accordance with paragraph (3)(B). In the case of newly constructed and substantially rehabilitated units, the exception in the preceding sentence shall not apply to more than 20 per centum of the total amount of authority to enter into annual contributions contracts for such units which is allocated to an area and obligated with respect to any fiscal year beginning on or after October 1, 1980. Each fair market rental in effect under this subsection shall be adjusted to be effective on October 1 of each year to reflect changes, based on the most recent available data trended so the rentals will be current for the year to which they apply, of rents for existing or newly constructed rental dwelling units, as the case may be, of various sizes and types in the market area suitable for occupancy by persons assisted under this section. Notwithstanding any other provision of this section, after October 12, 1977, the Secretary shall prohibit high-rise elevator projects for families with children unless there is no practical alternative. If units assisted under this section are exempt from local rent control while they are so assisted or otherwise, the maximum monthly rent for such units shall be reasonable in comparison with other units in the market area that are exempt from local rent control.

(B) Fair market rentals for an area shall be published not less than annually by the Secretary on the site of the Department on the World Wide Web and in any other manner specified by the Secretary. Notice that such fair market rentals are being published shall be published in the Federal Register, and such fair market rentals shall become effective no earlier than 30 days after the date of such publication. The Secretary shall establish a procedure for public housing agencies and other interested parties to comment on such fair market rentals and to request, within a time specified by the Secretary, reevaluation of the fair market rentals in a jurisdiction before such rentals become effective. The Secretary shall cause to be published for comment in the Federal Register notices of proposed material changes in the methodology for estimating fair market rentals and notices specifying the final decisions regarding such proposed substantial methodological changes and responses to public comments.

(2)

(A) The assistance contract shall provide for adjustment annually or more frequently in the maximum monthly rents for units covered by the contract to reflect changes in the fair market rentals established in the housing area for similar types and sizes of dwelling units or, if the Secretary determines, on the basis of a reasonable formula. However, where the maximum monthly rent, for a unit in a new construction, substantial rehabilitation, or moderate rehabilitation project, to be adjusted using an annual adjustment factor exceeds the fair market rental for an existing dwelling unit in the market area, the Secretary shall adjust the rent only to the extent that the owner demonstrates that the adjusted rent would not exceed the rent for an unassisted unit of similar quality, type, and age in the same market area, as determined by the Secretary. The immediately foregoing sentence shall be effective only during fiscal year 1995, fiscal year 1996 prior to April 26, 1996, and fiscal years 1997 and 1998, and during fiscal year 1999 and thereafter. Except for assistance under the certificate program, for any unit occupied by the same family at the time of the last annual rental adjustment, where the assistance contract provides for the adjustment of the maximum monthly rent by applying an annual adjustment factor and where the rent for a unit is otherwise eligible for an adjustment based on the full amount of the factor, 0.01 shall be subtracted from the amount of the factor, except that the factor shall not be reduced to less than 1.0. In the case of assistance under the certificate program, 0.01 shall be subtracted from the amount of the annual adjustment factor (except that the factor shall not be reduced to less than 1.0), and the adjusted rent shall not exceed the rent for a comparable unassisted unit of similar quality, type, and age in the market area. The immediately foregoing two sentences shall be effective only during fiscal year 1995, fiscal year 1996 prior to April 26, 1996, and fiscal years 1997 and 1998, and during fiscal year 1999 and thereafter. In establishing annual adjustment factors for units in new construction and substantial rehabilitation projects, the Secretary shall take into account the fact that debt service is a fixed expense. The immediately foregoing sentence shall be effective only during fiscal year 1998.

(B) The contract shall further provide for the Secretary to make additional adjustments in the maximum monthly rent for units under contract to the extent he determines such adjustments are necessary to reflect increases in the actual and necessary expenses of owning and maintaining the units which have resulted from substantial general increases in real property taxes, utility rates, or similar costs which are not adequately compensated for by the adjustment in the maximum monthly rent authorized by subparagraph (A). The Secretary shall make additional adjustments in the maximum monthly rent for units under contract (subject to the availability of appropriations for contract amendments) to the extent the Secretary determines such adjustments are necessary to reflect increases in the actual and necessary expenses of owning and maintaining the units that have resulted from the expiration

of a real property tax exemption. Where the Secretary determines that a project assisted under this section is located in a community where drug-related criminal activity is generally prevalent and the project's operating, maintenance, and capital repair expenses have been substantially increased primarily as a result of the prevalence of such drug-related activity, the Secretary may (at the discretion of the Secretary and subject to the availability of appropriations for contract amendments for this purpose), on a project by project basis, provide adjustments to the maximum monthly rents, to a level no greater than 120 percent of the project rents, to cover the costs of maintenance, security, capital repairs, and reserves required for the owner to carry out a strategy acceptable to the Secretary for addressing the problem of drug-related criminal activity. Any rent comparability standard required under this paragraph may be waived by the Secretary to so implement the preceding sentence. The Secretary may (at the discretion of the Secretary and subject to the availability of appropriations for contract amendments), on a project by project basis for projects receiving project-based assistance, provide adjustments to the maximum monthly rents to cover the costs of evaluating and reducing lead-based paint hazards, as defined in section 4851b of this title.

(C) Adjustments in the maximum rents under subparagraphs (A) and (B) shall not result in material differences between the rents charged for assisted units and unassisted units of similar quality, type, and age in the same market area, as determined by the Secretary. In implementing the limitation established under the preceding sentence, the Secretary shall establish regulations for conducting comparability studies for projects where the Secretary has reason to believe that the application of the formula adjustments under subparagraph (A) would result in such material differences. The Secretary shall conduct such studies upon the request of any owner of any project, or as the Secretary determines to be appropriate by establishing, to the extent practicable, a modified annual adjustment factor for such market area, as the Secretary shall designate, that is geographically smaller than the applicable housing area used for the establishment of the annual adjustment factor under subparagraph (A). The Secretary shall establish such modified annual adjustment factor on the basis of the results of a study conducted by the Secretary of the rents charged, and any change in such rents over the previous year, for assisted units and unassisted units of similar quality, type, and age in the smaller market area. Where the Secretary determines that such modified annual adjustment factor cannot be established or that such factor when applied to a particular project would result in material differences between the rents charged for assisted units and unassisted units of similar quality, type, and age in the same market area, the Secretary may apply an alternative methodology for conducting comparability studies in order to establish rents that are not materially different from rents charged for comparable unassisted units. If the Secretary or appropriate State agency does not complete and submit to the project owner a comparability study not later than 60 days before the anniversary date of the assistance contract under this section, the automatic annual adjustment factor shall be applied. The Secretary may not reduce the contract rents in effect on or after April 15, 1987, for newly constructed, substantially rehabilitated, or moderately rehabilitated projects assisted under this section (including projects assisted under this section as in effect prior to November 30, 1983), unless the project has been refinanced in a manner that reduces the periodic payments of the owner. Any maximum monthly rent that has been reduced by the Secretary after April 14, 1987, and prior to November 7, 1988, shall be restored to the maximum monthly rent in effect on April 15, 1987. For any project which has had its maximum monthly rents reduced after April 14, 1987, the Secretary shall make assistance payments (from amounts reserved for the original contract) to the owner of such project in an amount equal to the difference between the maximum monthly rents in effect on April 15, 1987, and the reduced maximum monthly rents, multiplied by the number of months that the reduced maximum monthly rents were in effect.

(3) The amount of the monthly assistance payment with respect to any dwelling unit shall be the difference between the maximum monthly rent which the contract provides that the owner is to receive for the unit and the rent the family is required to pay under section 1437a(a) of this title.

(4) The assistance contract shall provide that assistance payments may be made only with respect to a dwelling unit under lease for occupancy by a family determined to be a lower income family at the time it initially occupied such dwelling unit, except that such payments may be made with respect to unoccupied units for a period not exceeding sixty days (A) in the event that a family vacates a dwelling unit before the expiration date of the lease for occupancy or (B) where a good faith effort is being made to fill an unoccupied unit, and, subject to the provisions of the following sentence, such payments may be made, in the case of a newly constructed or substantially rehabilitated project, after such sixty-day period in an amount equal to the debt service attributable to such an unoccupied dwelling unit for a period not to exceed one year, if a good faith effort is being made to fill the unit and the unit provides decent, safe, and sanitary housing. No such payment may be made after such sixty-day period if the Secretary determines that the dwelling unit is in a project which provides the owner with revenues exceeding the costs incurred by such owner with respect to such project.

(5) The Secretary shall take such steps as may be necessary, including the making of contracts for assistance payments in amounts in excess of the amounts required at the time of the initial renting of dwelling units, the reservation of

annual contributions authority for the purpose of amending housing assistance contracts, or the allocation of a portion of new authorizations for the purpose of amending housing assistance contracts, to assure that assistance payments are increased on a timely basis to cover increases in maximum monthly rents or decreases in family incomes.

(6) Redesignated (5).

(7) Repealed. Pub. L. 105–276, title V, § 550(a)(3)(C), Oct. 21, 1998, 112 Stat. 2609

(8)

(A) Not less than one year before termination of any contract under which assistance payments are received under this section, other than a contract for tenant-based assistance under this section, an owner shall provide written notice to the Secretary and the tenants involved of the proposed termination. The notice shall also include a statement that, if the Congress makes funds available, the owner and the Secretary may agree to a renewal of the contract, thus avoiding termination, and that in the event of termination the Department of Housing and Urban Development will provide tenant-based rental assistance to all eligible residents, enabling them to choose the place they wish to rent, which is likely to include the dwelling unit in which they currently reside. Any contract covered by this paragraph that is renewed may be renewed for a period of up to 1 year or any number or years, with payments subject to the availability of appropriations for any year.

(B) In the event the owner does not provide the notice required, the owner may not evict the tenants or increase the tenants' rent payment until such time as the owner has provided the notice and 1 year has elapsed. The Secretary may allow the owner to renew the terminating contract for a period of time sufficient to give tenants 1 year of advance notice under such terms and conditions as the Secretary may require.

(C) Any notice under this paragraph shall also comply with any additional requirements established by the Secretary.

(D) For purposes of this paragraph, the term "termination" means the expiration of the assistance contract or an owner's refusal to renew the assistance contract, and such term shall include termination of the contract for business reasons.

(d) *Required provisions and duration of contracts for assistance payments; waiver of limitation.*

(1) Contracts to make assistance payments entered into by a public housing agency with an owner of existing housing units shall provide (with respect to any unit) that—

(A) the selection of tenants shall be the function of the owner, subject to the annual contributions contract between the Secretary and the agency, except that with respect to the certificate and moderate rehabilitation programs only, for the purpose of selecting families to be assisted, the public housing agency may establish local preferences, consistent with the public housing agency plan submitted under section 1437c–1 of this title by the public housing agency;

(B)

(i) the lease between the tenant and the owner shall be for at least one year or the term of such contract, whichever is shorter, and shall contain other terms and conditions specified by the Secretary;

(ii) during the term of the lease, the owner shall not terminate the tenancy except for serious or repeated violation of the terms and conditions of the lease, for violation of applicable Federal, State, or local law, or for other good cause;

(iii) during the term of the lease, any criminal activity that threatens the health, safety, or right to peaceful enjoyment of the premises by other tenants, any criminal activity that threatens the health, safety, or right to peaceful enjoyment of their residences by persons residing in the immediate vicinity of the premises, or any drug-related criminal activity on or near such premises, engaged in by a tenant of any unit, any member of the tenant's household, or any guest or other person under the tenant's control, shall be cause for termination of tenancy;

(iv) any termination of tenancy shall be preceded by the owner's provision of written notice to the tenant specifying the grounds for such action; and

(v) it shall be cause for termination of the tenancy of a tenant if such tenant—

(I) is fleeing to avoid prosecution, or custody or confinement after conviction, under the laws of the place from which the individual flees, for a crime, or attempt to commit a crime, which is a felony under the laws of the place from which the individual flees, or which, in the case of the State of New Jersey, is a high misdemeanor under the laws of such State; or

(II) is violating a condition of probation or parole imposed under Federal or State law;

(C) maintenance and replacement (including redecoration) shall be in accordance with the standard practice for the building concerned as established by the owner and agreed to by the agency; and

(D) the agency and the owner shall carry out such other appropriate terms and conditions as may be mutually agreed to by them.

(2)

(A) Each contract for an existing structure entered into under this section shall be for a term of not less than one

month nor more than one hundred and eighty months. The Secretary shall permit public housing agencies to enter into contracts for assistance payments of less than 12 months duration in order to avoid disruption in assistance to eligible families if the annual contributions contract is within 1 year of its expiration date.

(B)

(i) In determining the amount of assistance provided under an assistance contract for project-based assistance under this paragraph or a contract for assistance for housing constructed or substantially rehabilitated pursuant to assistance provided under subsection (b)(2) of this section (as such subsection existed immediately before October 1, 1983), the Secretary may consider and annually adjust, with respect to such project, for the cost of employing or otherwise retaining the services of one or more service coordinators under section 661 of the Housing and Community Development Act of 1992 [42 U.S.C. 13631] to coordinate the provision of any services within the project for residents of the project who are elderly or disabled families.

(ii) The budget authority available under section 1437c(c) of this title for assistance under this section is authorized to be increased by $15,000,000 on or after October 1, 1992, and by $15,000,000 on or after October 1, 1993. Amounts made available under this subparagraph shall be used to provide additional amounts under annual contributions contracts for assistance under this section which shall be made available through assistance contracts only for the purpose of providing service coordinators under clause (i) for projects receiving project-based assistance under this paragraph and to provide additional amounts under contracts for assistance for projects constructed or substantially rehabilitated pursuant to assistance provided under subsection (b)(2) of this section (as such subsection existed immediately before October 1, 1983) only for such purpose.

(C) An assistance contract for project-based assistance under this paragraph shall provide that the owner shall ensure and maintain compliance with subtitle C of title VI of the Housing and Community Development Act of 1992 [42 U.S.C. 13601 et seq.] and any regulations issued under such subtitle.

(D) An owner of a covered section 8 [42 U.S.C. 1437f] housing project (as such term is defined in section 659 of the Housing and Community Development Act of 1992 [42 U.S.C. 13619]) may give preference for occupancy of dwelling units in the project, and reserve units for occupancy, in accordance with subtitle D of title VI of the Housing and Community Development Act of 1992 [42 U.S.C. 13611 et seq.].

(3) Notwithstanding any other provision of law, with the approval of the Secretary the public housing agency administering a contract under this section with respect to existing housing units may exercise all management and maintenance responsibilities with respect to those units pursuant to a contract between such agency and the owner of such units.

(4) A public housing agency that serves more than one unit of general local government may, at the discretion of the agency, in allocating assistance under this section, give priority to disabled families that are not elderly families.

(5) *Calculation of limit.—.* Any contract entered into under section 514 of the Multifamily Assisted Housing Reform and Affordability Act of 1997 shall be excluded in computing the limit on project-based assistance under this subsection.

(6) *Treatment of common areas.—.* The Secretary may not provide any assistance amounts pursuant to an existing contract for project-based assistance under this section for a housing project and may not enter into a new or renewal contract for such assistance for a project unless the owner of the project provides consent, to such local law enforcement agencies as the Secretary determines appropriate, for law enforcement officers of such agencies to enter common areas of the project at any time and without advance notice upon a determination of probable cause by such officers that criminal activity is taking place in such areas.

(e) *Restrictions on contracts for assistance payments.*

(1) Nothing in this chapter shall be deemed to prohibit an owner from pledging, or offering as security for any loan or obligation, a contract for assistance payments entered into pursuant to this section: Provided, That such security is in connection with a project constructed or rehabilitated pursuant to authority granted in this section, and the terms of the financing or any refinancing have been approved by the Secretary.

(2) Repealed. Pub. L. 101–625, title II, § 289(b), Nov. 28, 1990, 104 Stat. 4128

(f) *Definitions.* As used in this section—

(1) the term "owner" means any private person or entity, including a cooperative, an agency of the Federal Government, or a public housing agency, having the legal right to lease or sublease dwelling units;

(2) the terms "rent" or "rental" mean, with respect to members of a cooperative, the charges under the occupancy agreements between such members and the cooperative;

(3) the term "debt service" means the required payments for principal and interest made with respect to a mortgage secured by housing assisted under this chapter;

(4) the term "participating jurisdiction" means a State or unit of general local government designated by the Secretary to be a participating jurisdiction under title II of the Cranston-Gonzalez National Affordable Housing Act [42 U.S.C. 12721 et seq.];

(5) the term "drug-related criminal activity" means the illegal manufacture, sale, distribution, use, or possession with

intent to manufacture, sell, distribute, or use, of a controlled substance (as defined in section 802 of title 21);

(6) the term "project-based assistance" means rental assistance under subsection (b) that is attached to the structure pursuant to subsection (d)(2) or (o)(13); and

(7) the term "tenant-based assistance" means rental assistance under subsection (o) that is not project-based assistance and that provides for the eligible family to select suitable housing and to move to other suitable housing.

(g) *Regulations applicable for implementation of assistance payments.* Notwithstanding any other provision of this chapter, assistance payments under this section may be provided, in accordance with regulations prescribed by the Secretary, with respect to some or all of the units in any project approved pursuant to section 1701q of title 12.

(h) *Nonapplicability of inconsistent provisions to contracts for assistance payments.* Sections 1437c(e) and 1437d of this title (except as provided in section 1437d(j)(3) of this title), and any other provisions of this chapter which are inconsistent with the provisions of this section shall not apply to contracts for assistance entered into under this section.

(i) *Receipt of assistance by public housing agency under other law not to be considered.* The Secretary may not consider the receipt by a public housing agency of assistance under section 811(b)(1) of the Cranston-Gonzalez National Affordable Housing Act [42 U.S.C. 8013(b)(1)], or the amount received, in approving assistance for the agency under this section or determining the amount of such assistance to be provided.

(j) *Carbon monoxide alarms.* Each owner of a dwelling unit receiving project-based assistance under this section shall ensure that carbon monoxide alarms or detectors are installed in the dwelling unit in a manner that meets or exceeds—

(1) the standards described in chapters 9 and 11 of the 2018 publication of the International Fire Code, as published by the International Code Council; or

(2) any other standards as may be adopted by the Secretary, including any relevant updates to the International Fire Code, through a notice published in the Federal Register.

(k) *Verification of income.* The Secretary shall establish procedures which are appropriate and necessary to assure that income data provided to public housing agencies and owners by families applying for or receiving assistance under this section is complete and accurate. In establishing such procedures, the Secretary shall randomly, regularly, and periodically select a sample of families to authorize the Secretary to obtain information on these families for the purpose of income verification, or to allow those families to provide such information themselves. Such information may include, but is not limited to, data concerning unemployment compensation and Federal income taxation and data relating to benefits made available under the Social Security Act [42 U.S.C. 301 et seq.], the Food and Nutrition Act of 2008 [7 U.S.C. 2011 et seq.], or title 38. Any such information received pursuant to this subsection shall remain confidential and shall be used only for the purpose of verifying incomes in order to determine eligibility of families for benefits (and the amount of such benefits, if any) under this section.

(l) *Qualifying smoke alarms.*

(1) *In general.* Each owner of a dwelling unit receiving project-based assistance under this section shall ensure that qualifying smoke alarms are installed in accordance with applicable codes and standards published by the International Code Council or the National Fire Protection Association and the requirements of the National Fire Protection Association Standard 72, or any successor standard, in each level and in or near each sleeping area in such dwelling unit, including in basements but excepting crawl spaces and unfinished attics, and in each common area in a project containing such a dwelling unit.

(2) *Definitions.* For purposes of this subsection, the following definitions shall apply:

(A) *Smoke alarm defined.* The term "smoke alarm" has the meaning given the term "smoke detector" in section 2225(d) of title 15.

(B) *Qualifying smoke alarm defined.* The term "qualifying smoke alarm" means a smoke alarm that—

(i) in the case of a dwelling unit built before December 29, 2022, and not substantially rehabilitated after December 29, 2022—

(I)

(aa) is hardwired; or

(bb) uses 10-year non rechargeable, nonreplaceable primary batteries and—

(AA) is sealed;

(BB) is tamper resistant; and

(CC) contains silencing means; and

(II) provides notification for persons with hearing loss as required by the National Fire Protection Association Standard 72, or any successor standard; or

(ii) in the case of a dwelling unit built or substantially rehabilitated after December 29, 2022, is hardwired.

(m) *Repealed. Pub. L. 98–181, title I [title II, § 209(a)(5)], Nov. 30, 1983, 97 Stat. 1183.*

(n) *Repealed. Pub. L. 105–276, title V, § 550(a)(7), Oct. 21, 1998, 112 Stat. 2609.*

(o) *Voucher program.*

(1) *Authority.*

(A) *In general.* The Secretary may provide assistance to public housing agencies for tenant-based assistance using a payment standard established in accordance with subparagraph (B). The payment standard shall be used to determine the monthly assistance that may be paid for any family, as provided in paragraph (2).

(B) *Establishment of payment standard.* Except as provided under subparagraph (D), the payment standard for each size of dwelling unit in a market area shall not exceed 110 percent of the fair market rental established under subsection (c) for the same size of dwelling unit in the same market area and shall be not less than 90 percent of that fair market rental, except that no public housing agency shall be required as a result of a reduction in the fair market rental to reduce the payment standard applied to a family continuing to reside in a unit for which the family was receiving assistance under this section at the time the fair market rental was reduced. The Secretary shall allow public housing agencies to request exception payment standards within fair market rental areas subject to criteria and procedures established by the Secretary.

(C) *Set-aside.* The Secretary may set aside not more than 5 percent of the budget authority made available for assistance under this subsection as an adjustment pool. The Secretary shall use amounts in the adjustment pool to make adjusted payments to public housing agencies under subparagraph (A), to ensure continued affordability, if the Secretary determines that additional assistance for such purpose is necessary, based on documentation submitted by a public housing agency.

(D) *Approval.* The Secretary may require a public housing agency to submit the payment standard of the public housing agency to the Secretary for approval, if the payment standard is less than 90 percent of the fair market rental or exceeds 110 percent of the fair market rental, except that a public housing agency may establish a payment standard of not more than 120 percent of the fair market rent where necessary as a reasonable accommodation for a person with a disability, without approval of the Secretary. A public housing agency may use a payment standard that is greater than 120 percent of the fair market rent as a reasonable accommodation for a person with a disability, but only with the approval of the Secretary. In connection with the use of any increased payment standard established or approved pursuant to either of the preceding two sentences as a reasonable accommodation for a person with a disability, the Secretary may not establish additional requirements regarding the amount of adjusted income paid by such person for rent.

(E) *Review.* The Secretary—

(i) shall monitor rent burdens and review any payment standard that results in a significant percentage of the families occupying units of any size paying more than 30 percent of adjusted income for rent; and

(ii) may require a public housing agency to modify the payment standard of the public housing agency based on the results of that review.

(2) *Amount of monthly assistance payment.* Subject to the requirement under section 1437a(a)(3) of this title (relating to minimum rental amount), the monthly assistance payment for a family receiving assistance under this subsection shall be determined as follows:

(A) *Tenant-based assistance; rent not exceeding payment standard.* For a family receiving tenant-based assistance, if the rent for the family (including the amount allowed for tenant-paid utilities) does not exceed the applicable payment standard established under paragraph (1), the monthly assistance payment for the family shall be equal to the amount by which the rent (including the amount allowed for tenant-paid utilities) exceeds the greatest of the following amounts, rounded to the nearest dollar:

(i) 30 percent of the monthly adjusted income of the family.

(ii) 10 percent of the monthly income of the family.

(iii) If the family is receiving payments for welfare assistance from a public agency and a part of those payments, adjusted in accordance with the actual housing costs of the family, is specifically designated by that agency to meet the housing costs of the family, the portion of those payments that is so designated.

(B) *Tenant-based assistance; rent exceeding payment standard.* For a family receiving tenant-based assistance, if the rent for the family (including the amount allowed for tenant-paid utilities) exceeds the applicable payment standard established under paragraph (1), the monthly assistance payment for the family shall be equal to the amount by which the applicable payment standard exceeds the greatest of amounts under clauses (i), (ii), and (iii) of subparagraph (A).

(C) *Families receiving project-based assistance.* For a family receiving project-based assistance, the rent that the family is required to pay shall be determined in accordance with section 1437a(a)(1) of this title, and the amount of the housing assistance payment shall be determined in accordance with subsection (c)(3) of this section.

(D) *Utility allowance.*

(i) *General.* In determining the monthly assistance payment for a family under subparagraphs (A) and (B), the amount allowed for tenant-paid utilities shall not exceed the appropriate utility allowance for the family unit size as determined by the public housing agency regardless of the size of the dwelling unit leased by the family.

(ii) *Exception for families in including persons with disabilities.* Notwithstanding subparagraph (A), upon request by a family that includes a person with disabilities, the public housing agency shall approve a utility allowance that is higher than the applicable amount on the utility allowance schedule if a higher utility allowance is needed as a reasonable accommodation to make the program accessible to and usable by the family member with a disability.

(3) *40 percent limit.* At the time a family initially receives tenant-based assistance under this section with respect to any dwelling unit, the total amount that a family may be required to pay for rent may not exceed 40 percent of the monthly adjusted income of the family.

(4) *Eligible families.* To be eligible to receive assistance under this subsection, a family shall, at the time a family initially receives assistance under this subsection, be a low-income family that is—

(A) a very low-income family;

(B) a family previously assisted under this subchapter;

(C) a low-income family that meets eligibility criteria specified by the public housing agency;

(D) a family that qualifies to receive a voucher in connection with a homeownership program approved under title IV of the Cranston-Gonzalez National Affordable Housing Act; or

(E) a family that qualifies to receive a voucher under section 223 or 226 of the Low-Income Housing Preservation and Resident Homeownership Act of 1990 [12 U.S.C. 4113, 4116].

(5) *Reviews of family income.*

(A) *In general.* Reviews of family incomes for purposes of this section shall be subject to paragraphs (1), (6), and (7) of section 1437a(a) of this title and to section 3544 of this title.

(B) *Procedures.* Each public housing agency administering assistance under this subsection shall establish procedures that are appropriate and necessary to ensure that income data provided to the agency and owners by families applying for or receiving assistance from the agency is complete and accurate.

(6) *Selection of families and disapproval of owners.*

(A) *Preferences.*

(i) *Authority to establish.* Each public housing agency may establish a system for making tenant-based assistance under this subsection available on behalf of eligible families that provides preference for such assistance to eligible families having certain characteristics, which may include a preference for families residing in public housing who are victims of a crime of violence (as such term is defined in section 16 of title 18) that has been reported to an appropriate law enforcement agency.

(ii) *Content.* Each system of preferences established pursuant to this subparagraph shall be based upon local housing needs and priorities, as determined by the public housing agency using generally accepted data sources, including any information obtained pursuant to an opportunity for public comment as provided under section 1437c–1(f) of this title and under the requirements applicable to the comprehensive housing affordability strategy for the relevant jurisdiction.

(B) *Selection of tenants.* Each housing assistance payment contract entered into by the public housing agency and the owner of a dwelling unit) shall provide that the screening and selection of families for those units shall be the function of the owner. In addition, the public housing agency may elect to screen applicants for the program in accordance with such requirements as the Secretary may establish. That an applicant or participant is or has been a victim of domestic violence, dating violence, or stalking is not an appropriate basis for denial of program assistance or for denial of admission if the applicant otherwise qualifies for assistance or admission.

(C) *PHA disapproval of owners.* In addition to other grounds authorized by the Secretary, a public housing agency may elect not to enter into a housing assistance payments contract under this subsection with an owner who refuses, or has a history of refusing, to take action to terminate tenancy for activity engaged in by the tenant, any member of the tenant's household, any guest, or any other person under the control of any member of the household that—

(i) threatens the health or safety of, or right to peaceful enjoyment of the premises by, other tenants or employees of the public housing agency, owner, or other manager of the housing;

(ii) threatens the health or safety of, or right to peaceful enjoyment of the residences by, persons residing in the immediate vicinity of the premises; or

(iii) is drug-related or violent criminal activity.

(7) *Leases and tenancy.* Each housing assistance payment contract entered into by the public housing agency and the owner of a dwelling unit—

(A) shall provide that the lease between the tenant and the owner shall be for a term of not less than 1 year, except that the public housing agency may approve a shorter term for an initial lease between the tenant and the dwelling unit owner if the public housing agency determines that such shorter term would improve housing opportunities for the tenant and if such shorter term is considered to be a prevailing local market practice;

(B) shall provide that the dwelling unit owner shall offer leases to tenants assisted under this subsection that—

(i) are in a standard form used in the locality by the dwelling unit owner; and

(ii) contain terms and conditions that—

(I) are consistent with State and local law; and

(II) apply generally to tenants in the property who are not assisted under this section;

(C) shall provide that during the term of the lease, the owner shall not terminate the tenancy except for serious or repeated violation of the terms and conditions of the lease, for violation of applicable Federal, State, or local law, or for other good cause, and in the case of an owner who is an immediate successor in interest pursuant to foreclosure during the term of the lease vacating the property prior to sale shall not constitute other good cause, except that the owner may terminate the tenancy effective on the date of transfer of the unit to the owner if the owner—

(i) will occupy the unit as a primary residence; and

(ii) has provided the tenant a notice to vacate at least 90 days before the effective date of such notice.;

(D) shall provide that during the term of the lease, any criminal activity that threatens the health, safety, or right to peaceful enjoyment of the premises by other tenants, any criminal activity that threatens the health, safety, or right to peaceful enjoyment of their residences by persons residing in the immediate vicinity of the premises, or any violent or drug-related criminal activity on or near such premises, engaged in by a tenant of any unit, any member of the tenant's household, or any guest or other person under the tenant's control, shall be cause for termination of tenancy;

(E) shall provide that any termination of tenancy under this subsection shall be preceded by the provision of written notice by the owner to the tenant specifying the grounds for that action, and any relief shall be consistent with applicable State and local law; and

(F) may include any addenda required by the Secretary to set forth the provisions of this subsection. In the case of any foreclosure on any federally-related mortgage loan (as that term is defined in section 2602 of title 12) or on any residential real property in which a recipient of assistance under this subsection resides, the immediate successor in interest in such property pursuant to the foreclosure shall assume such interest subject to the lease between the prior owner and the tenant and to the housing assistance payments contract between the prior owner and the public housing agency for the occupied unit, except that this provision and the provisions related to foreclosure in subparagraph (C) shall not shall not 3 affect any State or local law that provides longer time periods or other additional protections for tenants.

(8) *Inspection of units by PHAs.*

(A) *Initial inspection.*

(i) *In general.* For each dwelling unit for which a housing assistance payment contract is established under this subsection, the public housing agency (or other entity pursuant to paragraph (11)) shall inspect the unit before any assistance payment is made to determine whether the dwelling unit meets the housing quality standards under subparagraph (B), except as provided in clause (ii) or (iii) of this subparagraph.

(ii) *Correction of non-life-threatening conditions.* In the case of any dwelling unit that is determined, pursuant to an inspection under clause (i), not to meet the housing quality standards under subparagraph (B), assistance payments may be made for the unit notwithstanding subparagraph (C) if failure to meet such standards is a result only of non-life-threatening conditions, as such conditions are established by the Secretary. A public housing agency making assistance payments pursuant to this clause for a dwelling unit shall, 30 days after the beginning of the period for which such payments are made, withhold any assistance payments for the unit if any deficiency resulting in noncompliance with the housing quality standards has not been corrected by such time. The public housing agency shall recommence assistance payments when such deficiency has been corrected, and may use any payments withheld to make assistance payments relating to the period during which payments were withheld.

(iii) *Use of alternative inspection method for interim period.* In the case of any property that within the previous 24 months has met the requirements of an inspection that qualifies as an alternative inspection method pursuant to subparagraph (E), a public housing agency may authorize occupancy before the inspection under clause (i) has been completed, and may make assistance payments retroactive to the beginning of the lease term after the unit has been determined pursuant to an inspection under clause (i) to meet the housing quality standards under subparagraph (B). This clause may not be construed to exempt any dwelling unit from compliance with the requirements of subparagraph (D).

(iv) *Initial inspection prior to lease agreement.*

(I) *Definition.* In this clause, the term "new landlord" means an owner of a dwelling unit who has not previously entered into a housing assistance payment contract with a public housing agency under this subsection for any dwelling unit.

(II) *Early inspection.* Upon the request of a new landlord, a public housing agency may inspect the dwelling unit owned by the new landlord to determine whether the unit meets the housing quality standards under subparagraph (B) before the unit is selected by a tenant assisted under this subsection.

(III) *Effect.* An inspection conducted under subclause (II) that determines that the dwelling unit meets the housing quality standards under subparagraph (B) shall satisfy this subparagraph and subparagraph (C) if the new landlord enters into a lease agreement with a tenant assisted under this subsection not later than 60 days after the date of the inspection.

(IV) *Information when family is selected.* When a public housing agency selects a family to participate in the tenant-based assistance program under this subsection, the public housing agency shall include in the information provided to the family a list of dwelling units that have been inspected under subclause (II) and determined to meet the housing quality standards under subparagraph (B).

(B) *Housing quality standards.* The housing quality standards under this subparagraph are standards for safe and habitable housing established—

(i) by the Secretary for purposes of this subsection; or

(ii) by local housing codes or by codes adopted by public housing agencies that—

(I) meet or exceed housing quality standards, except that the Secretary may waive the requirement under this subclause to significantly increase access to affordable housing and to expand housing opportunities for families assisted under this subsection, except where such waiver could adversely affect the health or safety of families assisted under this subsection; and

(II) do not severely restrict housing choice

(C) *Inspection.* The determination required under subparagraph (A) shall be made by the public housing agency (or other entity, as provided in paragraph (11)) pursuant to an inspection of the dwelling unit conducted before any assistance payment is made for the unit. Inspections of dwelling units under this subparagraph shall be made before the expiration of the 15-day period beginning upon a request by the resident or landlord to the public housing agency or, in the case of any public housing agency that provides assistance under this subsection on behalf of more than 1250 families, before the expiration of a reasonable period beginning upon such request. The performance of the agency in meeting the 15-day inspection deadline shall be taken into consideration in assessing the performance of the agency.

(D) *Biennial inspections.*

(i) *Requirement.* Each public housing agency providing assistance under this subsection (or other entity, as provided in paragraph (11)) shall, for each assisted dwelling unit, make inspections not less often than biennially during the term of the housing assistance payments contract for the unit to determine whether the unit is maintained in accordance with the requirements under subparagraph (A).

(ii) *Use of alternative inspection method.* The requirements under clause (i) may be complied with by use of inspections that qualify as an alternative inspection method pursuant to subparagraph (E).

(iii) *Records.* The public housing agency (or other entity) shall retain the records of the inspection for a reasonable time, as determined by the Secretary, and shall make the records available upon request to the Secretary, the Inspector General for the Department of Housing and Urban Development, and any auditor conducting an audit under section 1437c(h) of this title.

(iv) *Mixed-finance properties.* The Secretary may adjust the frequency of inspections for mixed-finance properties assisted with vouchers under paragraph (13) to facilitate the use of the alternative inspections in subparagraph (E).

(E) *Alternative inspection method.* An inspection of a property shall qualify as an alternative inspection method for purposes of this subparagraph if—

(i) the inspection was conducted pursuant to requirements under a Federal, State, or local housing program (including the Home investment partnership program under title II of the Cranston-Gonzalez National Affordable Housing Act [42 U.S.C. 12721 et seq.] and the low-income housing tax credit program under section 42 of title 26); and

(ii) pursuant to such inspection, the property was determined to meet the standards or requirements regarding housing quality or safety applicable to properties assisted under such program, and, if a non-Federal standard or requirement was used, the public housing agency has certified to the Secretary that such standard or requirement provides the same (or greater) protection to occupants of dwelling units meeting such standard or requirement as would the housing quality standards under subparagraph (B).

(F) *Interim inspections.* Upon notification to the public housing agency, by a family (on whose behalf tenant-based rental assistance is provided under this subsection) or by a government official, that the dwelling unit for which such assistance is provided does not comply with the housing quality standards under subparagraph (B), the public housing agency shall inspect the dwelling unit—

(i) in the case of any condition that is life-threatening, within 24 hours after the agency's receipt of such notification, unless waived by the Secretary in extraordinary circumstances; and

(ii) in the case of any condition that is not life-threatening, within a reasonable time frame, as determined by the Secretary.

(G) *Enforcement of housing quality standards.*

(i) *Determination of noncompliance.* A dwelling unit that is covered by a housing assistance payments contract under this subsection shall be considered, for purposes of subparagraphs (D) and (F), to be in noncompliance with the housing quality standards under subparagraph (B) if—

(I) the public housing agency or an inspector authorized by the State or unit of local government determines upon inspection of the unit that the unit fails to comply with such standards;

(II) the agency or inspector notifies the owner of the unit in writing of such failure to comply; and

(III) the failure to comply is not corrected—

(aa) in the case of any such failure that is a result of life-threatening conditions, within 24 hours after such notice has been provided; and

(bb) in the case of any such failure that is a result of non-life-threatening conditions, within 30 days after such notice has been provided or such other reasonable longer period as the public housing agency may establish.

(ii) *Withholding of assistance amounts during correction.* The public housing agency may withhold assistance amounts under this subsection with respect to a dwelling unit for which a notice pursuant to clause (i)(II), of failure to comply with housing quality standards under subparagraph (B) as determined pursuant to an inspection conducted under subparagraph (D) or (F), has been provided. If the unit is brought into compliance with such housing quality standards during the periods referred to in clause (i)(III), the public housing agency shall recommence assistance payments and may use any amounts withheld during the correction period to make assistance payments relating to the period during which payments were withheld.

(iii) *Abatement of assistance amounts.* The public housing agency shall abate all of the assistance amounts under this subsection with respect to a dwelling unit that is determined, pursuant to clause (i) of this subparagraph, to be in noncompliance with housing quality standards under subparagraph (B). Upon completion of repairs by the public housing agency or the owner sufficient so that the dwelling unit complies with such housing quality standards, the agency shall recommence payments under the housing assistance payments contract to the owner of the dwelling unit.

(iv) *Notification.* If a public housing agency providing assistance under this subsection abates rental assistance payments pursuant to clause (iii) with respect to a dwelling unit, the agency shall, upon commencement of such abatement—

(I) notify the tenant and the owner of the dwelling unit that—

(aa) such abatement has commenced; and

(bb) if the dwelling unit is not brought into compliance with housing quality standards within 60 days after the effective date of the determination of noncompliance under clause (i) or such reasonable longer period as the agency may establish, the tenant will have to move; and

(II) issue the tenant the necessary forms to allow the tenant to move to another dwelling unit and transfer the rental assistance to that unit.

(v) *Protection of tenants.* An owner of a dwelling unit may not terminate the tenancy of any tenant because of the withholding or abatement of assistance pursuant to this subparagraph. During the period that assistance is abated pursuant to this subparagraph, the tenant may terminate the tenancy by notifying the owner.

(vi) *Termination of lease or assistance payments contract.* If assistance amounts under this section for a dwelling unit are abated pursuant to clause (iii) and the owner does not correct the noncompliance within 60 days after the effective date of the determination of noncompliance under clause (i), or such other reasonable longer period as the public housing agency may establish, the agency shall terminate the housing assistance payments contract for the dwelling unit.

(vii) *Relocation.*

(I) *Lease of new unit.* The agency shall provide the family residing in such a dwelling unit a period of 90 days or such longer period as the public housing agency determines is reasonably necessary to lease a new unit, beginning upon termination of the contract, to lease a new residence with tenant-based rental assistance under this section.

(II) *Availability of public housing units.* If the family is unable to lease such a new residence during such period, the public housing agency shall, at the option of the family, provide such family a preference for occupancy in a dwelling unit of public housing that is owned or operated by the agency that first becomes available for occupancy after the expiration of such period.

(III) *Assistance in finding unit.* The public housing agency may provide assistance to the family in finding a new residence, including use of up to two months of any assistance amounts withheld or abated pursuant to clause (ii) or (iii), respectively, for costs directly associated with relocation of the family to a new residence, which shall include security deposits as necessary and may include reimbursements for reasonable moving expenses incurred by the household, as established by the Secretary. The agency may require that a family receiving assistance for a security deposit shall remit, to the extent of such assistance, the amount of any security deposit refunds made by the owner of the dwelling unit for which the lease was terminated.

(viii) *Tenant-caused damages.* If a public housing agency determines that any damage to a dwelling unit that results in a failure of the dwelling unit to comply with housing quality standards under subparagraph (B), other than any damage resulting from ordinary use, was caused by the tenant, any member of the tenant's household, or any guest or other person under the tenant's control, the agency may waive the applicability of this subparagraph, except that this clause shall not exonerate a tenant from any liability otherwise existing under applicable law for damages to the premises caused by such tenant.

(ix) *Applicability.* This subparagraph shall apply to any dwelling unit for which a housing assistance payments contract is entered into or renewed after the date of the effectiveness of the regulations implementing this subparagraph.

(H) *Inspection guidelines.* The Secretary shall establish procedural guidelines and performance standards to facilitate inspections of dwelling units and conform such inspections with practices utilized in the private housing market. Such guidelines and standards shall take into consideration variations in local laws and practices of public housing agencies and shall provide flexibility to authorities appropriate to facilitate efficient provision of assistance under this subsection.

(I) *Satisfaction of inspection requirements through participation in other housing programs.*

(i) *Low-income housing tax credit-financed buildings.* A dwelling unit shall be deemed to meet the inspection requirements under this paragraph if—

(I) the dwelling unit is in a building, the acquisition, rehabilitation, or construction of which was done by a building owner who may be eligible for low-income housing credits because the building had been allocated a housing credit dollar amount under section 42(h) of title 26 or is described in section 42(h)(4) of such title (concerning buildings that meet a criterion for a certain amount of tax-exempt financing);

(II) the dwelling unit, during the preceding 12-month period, was physically inspected and satisfied the suitability-for-occupancy requirement in section 42(i)(3)(B)(ii) of such title; and

(III) the applicable public housing agency performed the inspection itself or is able to obtain the results of the inspection described in subclause (II).

(ii) *HOME Investment Partnerships Program.* A dwelling shall be deemed to meet the inspection requirements under this paragraph if—

(I) the dwelling unit is assisted under the HOME Investment Partnerships Program under title II of the Cranston-Gonzalez National Affordable Housing Act (42 U.S.C. 12721 et seq.);

(II) the dwelling unit was physically inspected and passed inspection as part of the program described in subclause (I) during the preceding 12-month period; and

(III) the applicable public housing agency is able to obtain the results of the inspection described in subclause (II).

(iii) *Rural housing service.* A dwelling unit shall be deemed to meet the inspection requirements under this paragraph if—

(I) the dwelling unit is assisted by the Rural Housing Service of the Department of Agriculture;

(II) the dwelling unit was physically inspected and passed inspection in connection with the assistance described in subclause (I) during the preceding 12-month period; and

(III) the applicable public housing agency is able to obtain the results of the inspection described in subclause (II).

(iv) *Remote or video inspections.* When complying with inspection requirements for a housing unit located in a rural or small area using assistance under this section, the Secretary may allow a grantee to conduct a remote or video inspection of a unit if the remote or video inspection—

(I) is thorough;

(II) does not misrepresent the condition of the unit; and

(III) provides the information necessary to fully and accurately evaluate the conditions of the unit to ensure

that the unit meets the relevant standards.

(v) *Rule of construction.* Nothing in clause (i), (ii), (iii), or (iv) shall be construed to affect the operation of a housing program described in, or authorized under a provision of law described in, that clause.

(9) *Vacated units.* If an assisted family vacates a dwelling unit for which rental assistance is provided under a housing assistance payment contract before the expiration of the term of the lease for the unit, rental assistance pursuant to such contract may not be provided for the unit after the month during which the unit was vacated.

(10) *Rent.*

(A) *Reasonableness.* The rent for dwelling units for which a housing assistance payment contract is established under this subsection shall be reasonable in comparison with rents charged for comparable dwelling units in the private, unassisted local market.

(B) *Negotiations.* A public housing agency (or other entity, as provided in paragraph (11)) shall, at the request of a family receiving tenant-based assistance under this subsection, assist that family in negotiating a reasonable rent with a dwelling unit owner. A public housing agency (or such other entity) shall review the rent for a unit under consideration by the family (and all rent increases for units under lease by the family) to determine whether the rent (or rent increase) requested by the owner is reasonable. If a public housing agency (or other such entity) determines that the rent (or rent increase) for a dwelling unit is not reasonable, the public housing agency (or other such entity) shall not make housing assistance payments to the owner under this subsection with respect to that unit.

(C) *Units exempt from local rent control.* If a dwelling unit for which a housing assistance payment contract is established under this subsection is exempt from local rent control provisions during the term of that contract, the rent for that unit shall be reasonable in comparison with other units in the market area that are exempt from local rent control provisions.

(D) *Timely payments.* Each public housing agency shall make timely payment of any amounts due to a dwelling unit owner under this subsection. The housing assistance payment contract between the owner and the public housing agency may provide for penalties for the late payment of amounts due under the contract, which shall be imposed on the public housing agency in accordance with generally accepted practices in the local housing market.

(E) *Penalties.* Unless otherwise authorized by the Secretary, each public housing agency shall pay any penalties from administrative fees collected by the public housing agency, except that no penalty shall be imposed if the late payment is due to factors that the Secretary determines are beyond the control of the public housing agency.

(F) *Tax credit projects.* In the case of a dwelling unit receiving tax credits pursuant to section 42 of title 26 or for which assistance is provided under subtitle A of title II of the Cranston Gonzalez National Affordable Housing Act of 1990 [42 U.S.C. 12741 et seq.], for which a housing assistance contract not subject to paragraph (13) of this subsection is established, rent reasonableness shall be determined as otherwise provided by this paragraph, except that—

(i) comparison with rent for units in the private, unassisted local market shall not be required if the rent is equal to or less than the rent for other comparable units receiving such tax credits or assistance in the project that are not occupied by families assisted with tenant-based assistance under this subsection; and

(ii) the rent shall not be considered reasonable for purposes of this paragraph if it exceeds the greater of—

(I) the rents charged for other comparable units receiving such tax credits or assistance in the project that are not occupied by families assisted with tenant-based assistance under this subsection; and

(II) the payment standard established by the public housing agency for a unit of the size involved.

(11) *Leasing of units owned by PHA.*

(A) *Inspections and rent determinations.* If an eligible family assisted under this subsection leases a dwelling unit (other than a public housing dwelling unit) that is owned by a public housing agency administering assistance under this subsection, the Secretary shall require the unit of general local government or another entity approved by the Secretary, to make inspections required under paragraph (8) and rent determinations required under paragraph (10). The agency shall be responsible for any expenses of such inspections and determinations.

(B) *Units owned by PHA.* For purposes of this subsection, the term "owned by a public housing agency" means, with respect to a dwelling unit, that the dwelling unit is in a project that is owned by such agency, by an entity wholly controlled by such agency, or by a limited liability company or limited partnership in which such agency (or an entity wholly controlled by such agency) holds a controlling interest in the managing member or general partner. A dwelling unit shall not be deemed to be owned by a public housing agency for purposes of this subsection because the agency holds a fee interest as ground lessor in the property on which the unit is situated, holds a security interest under a mortgage or deed of trust on the unit, or holds a non-controlling interest in an entity which owns the unit or in the managing member or general partner of an entity which owns the unit.

(12) *Assistance for rental of manufactured housing.*

(A) *In general.* A public housing agency may make assistance payments in accordance with this subsection on behalf of a family that utilizes a manufactured home as a principal place of residence and rents the real property on which the manufactured home owned by any such family is located.

(B) *Rent calculation.*

(i) *Charges included.* For assistance pursuant to this paragraph, rent shall mean the sum of the monthly payments made by a family assisted under this paragraph to amortize the cost of purchasing the manufactured home, including any required insurance and property taxes, the monthly amount allowed for tenant-paid utilities, and the monthly rent charged for the real property on which the manufactured home is located, including monthly management and maintenance charges.

(ii) *Monthly assistance payment.* The monthly assistance payment for a family assisted under this paragraph shall be determined in accordance with paragraph (2). If the amount of the monthly assistance payment for a family exceeds the monthly rent charged for the real property on which the manufactured home is located, including monthly management and maintenance charges, a public housing agency may pay the remainder to the family, lender or utility company, or may choose to make a single payment to the family for the entire monthly assistance amount.

(13) *PHA project-based assistance.*

(A) *In general.* A public housing agency may use amounts provided under an annual contributions contract under this subsection to enter into a housing assistance payment contract with respect to an existing, newly constructed, or rehabilitated project, that is attached to the project, subject to the limitations and requirements of this paragraph.

(B) *Percentage limitation.*

(i) *In general.* Subject to clause (ii), a public housing agency may use for project-based assistance under this paragraph not more than 20 percent of the authorized units for the agency.

(ii) *Exception.* A public housing agency may use up to an additional 10 percent of the authorized units for the agency for project-based assistance under this paragraph, to provide units that house individuals and families that meet the definition of homeless under section 103 of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11302), that house families with veterans, that provide supportive housing to persons with disabilities or elderly persons, that house eligible youths receiving assistance pursuant to subsection (x)(2)(B), or that are located in areas where vouchers under this subsection are difficult to use, as specified in subparagraph (D)(ii)(II). Any units of project-based assistance that are attached to units previously subject to federally required rent restrictions or receiving another type of long-term housing subsidy provided by the Secretary shall not count toward the percentage limitation under clause (i) of this subparagraph. The Secretary may, by regulation, establish additional categories for the exception under this clause.

(C) *Consistency with PHA plan and other goals.* A public housing agency may approve a housing assistance payment contract pursuant to this paragraph only if the contract is consistent with—

(i) the public housing agency plan for the agency approved under section 1437c–1 of this title; and

(ii) the goal of deconcentrating poverty and expanding housing and economic opportunities.

(D) *Income-mixing requirement.*

(i) *In general.* Except as provided in clause (ii), not more than the greater of 25 dwelling units or 25 percent of the dwelling units in any project may be assisted under a housing assistance payment contract for project-based assistance pursuant to this paragraph. For purposes of this subparagraph, the term "project" means a single building, multiple contiguous buildings, or multiple buildings on contiguous parcels of land.

(ii) *Exceptions.*

(I) *Certain families.* The limitation under clause (i) shall not apply to dwelling units assisted under a contract that are exclusively made available to elderly families, to eligible youths receiving assistance pursuant to subsection (x)(2)(B), or to households eligible for supportive services that are made available to the assisted residents of the project, according to standards for such services the Secretary may establish.

(II) *Certain areas.* With respect to areas in which tenant-based vouchers for assistance under this subsection are difficult to use, as determined by the Secretary, and with respect to census tracts with a poverty rate of 20 percent or less, clause (i) shall be applied by substituting "40 percent" for "25 percent", and the Secretary may, by regulation, establish additional conditions.

(III) *Certain contracts.* The limitation under clause (i) shall not apply with respect to contracts or renewal of contracts under which a greater percentage of the dwelling units in a project were assisted under a housing assistance payment contract for project-based assistance pursuant to this paragraph on July 29, 2016.

(IV) *Certain properties.* Any units of project-based assistance under this paragraph that are attached to units previously subject to federally required rent restrictions or receiving other project-based assistance provided by the Secretary shall not count toward the percentage limitation imposed by this subparagraph (D).

(iii) *Additional monitoring and oversight requirements.* The Secretary may establish additional requirements for monitoring and oversight of projects in which more than 40 percent of the dwelling units are assisted under a housing assistance payment contract for project-based assistance pursuant to this paragraph.

(E) *Resident choice requirement.* A housing assistance payment contract pursuant to this paragraph shall provide as follows:

(i) *Mobility.* Each low-income family occupying a dwelling unit assisted under the contract may move from the housing at any time after the family has occupied the dwelling unit for 12 months.

(ii) *Continued assistance.* Upon such a move, the public housing agency shall provide the low-income family with tenant-based rental assistance under this section or such other tenant-based rental assistance that is subject to comparable income, assistance, rent contribution, affordability, and other requirements, as the Secretary shall provide by regulation. If such rental assistance is not immediately available to fulfill the requirement under the preceding sentence with respect to a low-income family, such requirement may be met by providing the family priority to receive the next voucher or other tenant-based rental assistance amounts that become available under the program used to fulfill such requirement.

(F) *Contract term.*

(i) *Term.* A housing assistance payment contract pursuant to this paragraph between a public housing agency and the owner of a project may have a term of up to 20 years, subject to—

(I) the availability of sufficient appropriated funds for the purpose of renewing expiring contracts for assistance payments, as provided in appropriation Acts and in the agency's annual contributions contract with the Secretary, provided that in the event of insufficient appropriated funds, payments due under contracts under this paragraph shall take priority if other cost-saving measures that do not require the termination of an existing contract are available to the agency; and

(II) compliance with the inspection requirements under paragraph (8), except that the agency shall not be required to make biennial inspections of each assisted unit in the development.

(ii) *Addition of eligible units.* Subject to the limitations of subparagraphs (B) and (D), the agency and the owner may add eligible units within the same project to a housing assistance payments contract at any time during the term thereof without being subject to any additional competitive selection procedures.

(iii) *Housing under construction or recently constructed.* An agency may enter into a housing assistance payments contract with an owner for any unit that does not qualify as existing housing and is under construction or recently has been constructed whether or not the agency has executed an agreement to enter into a contract with the owner, provided that the owner demonstrates compliance with applicable requirements prior to execution of the housing assistance payments contract. This clause shall not subject a housing assistance payments contract for existing housing under this paragraph to such requirements or otherwise limit the extent to which a unit may be assisted as existing housing.

(iv) *Additional conditions.* The contract may specify additional conditions, including with respect to continuation, termination, or expiration, and shall specify that upon termination or expiration of the contract without extension, each assisted family may elect to use its assistance under this subsection to remain in the same project if its unit complies with the inspection requirements under paragraph (8), the rent for the unit is reasonable as required by paragraph (10)(A), and the family pays its required share of the rent and the amount, if any, by which the unit rent (including the amount allowed for tenant-based utilities) exceeds the applicable payment standard.

(G) *Extension of contract term.* A public housing agency may enter into a contract with the owner of a project assisted under a housing assistance payment contract pursuant to this paragraph to extend the term of the underlying housing assistance payment contract for such period as the agency determines to be appropriate to achieve long-term affordability of the housing or to expand housing opportunities. Such contract may, at the election of the public housing agency and the owner of the project, specify that such contract shall be extended for renewal terms of up to 20 years each, if the agency makes the determination required by this subparagraph and the owner is in compliance with the terms of the contract. Such a contract shall provide that the extension of such term shall be contingent upon the future availability of appropriated funds for the purpose of renewing expiring contracts for assistance payments, as provided in appropriations Acts, and may obligate the owner to have such extensions of the underlying housing assistance payment contract accepted by the owner and the successors in interest of the owner. A public housing agency may agree to enter into such a contract at the time it enters into the initial agreement for a housing assistance payment contract or at any time thereafter that is before the expiration of the housing assistance payment contract.

(H) *Rent calculation.* A housing assistance payment contract pursuant to this paragraph shall establish rents for each unit assisted in an amount that does not exceed 110 percent of the applicable fair market rental (or any exception payment standard approved by the Secretary pursuant to paragraph (1)(D)), except that if a contract covers a dwelling unit that has been allocated low-income housing tax credits pursuant to section 42 of title 26

and is not located in a qualified census tract (as such term is defined in subsection (d) of such section 42), the rent for such unit may be established at any level that does not exceed the rent charged for comparable units in the building that also receive the low-income housing tax credit but do not have additional rental assistance, except that in the case of a contract unit that has been allocated low-income housing tax credits and for which the rent limitation pursuant to such section 42 is less than the amount that would otherwise be permitted under this subparagraph, the rent for such unit may, in the sole discretion of a public housing agency, be established at the higher section 8 [42 U.S.C. 1437f] rent, subject only to paragraph (10)(A). The rents established by housing assistance payment contracts pursuant to this paragraph may vary from the payment standards established by the public housing agency pursuant to paragraph (1)(B), but shall be subject to paragraph (10)(A).

(I) *Rent adjustments.* A housing assistance payments contract pursuant to this paragraph entered into after July 29, 2016, shall provide for annual rent adjustments upon the request of the owner, except that—

(i) by agreement of the parties, a contract may allow a public housing agency to adjust the rent for covered units using an operating cost adjustment factor established by the Secretary pursuant to section 524(c) of the Multifamily Assisted Housing Reform and Affordability Act of 1997 (which shall not result in a negative adjustment), in which case the contract may require an additional adjustment, if requested, up to the reasonable rent periodically during the term of the contract, and shall require such an adjustment, if requested, upon extension pursuant to subparagraph (G);

(ii) the adjusted rent shall not exceed the maximum rent permitted under subparagraph (H);

(iii) the contract may provide that the maximum rent permitted for a dwelling unit shall not be less than the initial rent for the dwelling unit under the initial housing assistance payments contract covering the units; and

(iv) the provisions of subsection (c)(2)(C) shall not apply.

(J) *Tenant selection.* A public housing agency may select families to receive project-based assistance pursuant to this paragraph from its waiting list for assistance under this subsection or may permit owners to select applicants from site-based waiting lists as specified in this subparagraph. Eligibility for such project-based assistance shall be subject to the provisions of section 1437n(b) of this title that apply to tenant-based assistance. The agency or owner may establish preferences or criteria for selection for a unit assisted under this paragraph that are consistent with the public housing agency plan for the agency approved under section 1437c–1 of this title and that give preference to families who qualify for voluntary services, including disability-specific services, offered in conjunction with assisted units. Any family that rejects an offer of project-based assistance under this paragraph or that is rejected for admission to a project by the owner or manager of a project assisted under this paragraph shall retain its place on the waiting list as if the offer had not been made. A public housing agency may establish and utilize procedures for owner-maintained site-based waiting lists, under which applicants may apply at, or otherwise designate to the public housing agency, the project or projects in which they seek to reside, except that all eligible applicants on the waiting list of an agency for assistance under this subsection shall be permitted to place their names on such separate list, subject to policies and procedures established by the Secretary. All such procedures shall comply with title VI of the Civil Rights Act of 1964 [42 U.S.C. 2000d et seq.], the Fair Housing Act [42 U.S.C. 3601 et seq.], section 794 of title 29, and other applicable civil rights laws. The owner or manager of a project assisted under this paragraph shall not admit any family to a dwelling unit assisted under a contract pursuant to this paragraph other than a family referred by the public housing agency from its waiting list, or a family on a site-based waiting list that complies with the requirements of this subparagraph. A public housing agency shall disclose to each applicant all other options in the selection of a project in which to reside that are provided by the public housing agency and are available to the applicant.

(K) *Vacated units.* Notwithstanding paragraph (9), a housing assistance payment contract pursuant to this paragraph may provide as follows:

(i) *Payment for vacant units.* That the public housing agency may, in its discretion, continue to provide assistance under the contract, for a reasonable period not exceeding 60 days, for a dwelling unit that becomes vacant, but only: (I) if the vacancy was not the fault of the owner of the dwelling unit; and (II) the agency and the owner take every reasonable action to minimize the likelihood and extent of any such vacancy. Rental assistance may not be provided for a vacant unit after the expiration of such period.

(ii) *Reduction of contract.* That, if despite reasonable efforts of the agency and the owner to fill a vacant unit, no eligible family has agreed to rent the unit within 120 days after the owner has notified the agency of the vacancy, the agency may reduce its housing assistance payments contract with the owner by the amount equivalent to the remaining months of subsidy attributable to the vacant unit. Amounts deobligated pursuant to such a contract provision shall be available to the agency to provide assistance under this subsection.

Eligible applicants for assistance under this subsection may enforce provisions authorized by this subparagraph.

(L) *Use in cooperative housing and elevator buildings.* A public housing agency may enter into a housing assistance payments contract under this paragraph with respect to—

(i) dwelling units in cooperative housing; and

(ii) notwithstanding subsection (c), dwelling units in a high-rise elevator project, including such a project that is occupied by families with children, without review and approval of the contract by the Secretary.

(M) *Reviews.*

(i) *Subsidy layering.* A subsidy layering review in accordance with section 3545(d) of this title shall not be required for assistance under this paragraph in the case of a housing assistance payments contract for an existing project, or if a subsidy layering review has been conducted by the applicable State or local agency.

(ii) *Environmental review.* A public housing agency shall not be required to undertake any environmental review before entering into a housing assistance payments contract under this paragraph for an existing project, except to the extent such a review is otherwise required by law or regulation relating to funding other than housing assistance payments.

(N) *Structure owned by agency.* A public housing agency engaged in an initiative to improve, develop, or replace a public housing property or site may attach assistance to an existing, newly constructed, or rehabilitated structure in which the agency has an ownership interest or which the agency has control of without following a competitive process, provided that the agency has notified the public of its intent through its public housing agency plan and subject to the limitations and requirements of this paragraph.

(O) *Special purpose vouchers.* A public housing agency that administers vouchers authorized under subsection (o)(19) or (x) of this section may provide such assistance in accordance with the limitations and requirements of this paragraph, without additional requirements for approval by the Secretary.

(14) *Inapplicability to tenant-based assistance.* Subsection (c) shall not apply to tenant-based assistance under this subsection.

(15) *Homeownership option.*

(A) *In general.* A public housing agency providing assistance under this subsection may, at the option of the agency, provide assistance for homeownership under subsection (y).

(B) *Alternative administration.* A public housing agency may contract with a nonprofit organization to administer a homeownership program under subsection (y).

(16) *Rental vouchers for relocation of witnesses and victims of crime.*

(A) *Witnesses.* Of amounts made available for assistance under this subsection in each fiscal year, the Secretary, in consultation with the Inspector General, shall make available such sums as may be necessary for the relocation of witnesses in connection with efforts to combat crime in public and assisted housing pursuant to requests from law enforcement or prosecution agencies.

(B) *Victims of crime.*

(i) *In general.* Of amounts made available for assistance under this section in each fiscal year, the Secretary shall make available such sums as may be necessary for the relocation of families residing in public housing who are victims of a crime of violence (as that term is defined in section 16 of title 18) that has been reported to an appropriate law enforcement agency.

(ii) *Notice.* A public housing agency that receives amounts under this subparagraph shall establish procedures for providing notice of the availability of that assistance to families that may be eligible for that assistance.

(17) *Deed restrictions.* Assistance under this subsection may not be used in any manner that abrogates any local deed restriction that applies to any housing consisting of 1 to 4 dwelling units. This paragraph may not be construed to affect the provisions or applicability of the Fair Housing Act [42 U.S.C. 3601 et seq.].

(18) *Rental assistance for assisted living facilities.*

(A) *In general.* A public housing agency may make assistance payments on behalf of a family that uses an assisted living facility as a principal place of residence and that uses such supportive services made available in the facility as the agency may require. Such payments may be made only for covering costs of rental of the dwelling unit in the assisted living facility and not for covering any portion of the cost of residing in such facility that is attributable to service relating to assisted living.

(B) *Rent calculation.*

(i) *Charges included.* For assistance pursuant to this paragraph, the rent of the dwelling unit that is an assisted living facility with respect to which assistance payments are made shall include maintenance and management charges related to the dwelling unit and tenant-paid utilities. Such rent shall not include any charges attributable to services relating to assisted living.

(ii) *Payment standard.* In determining the monthly assistance that may be paid under this paragraph on behalf of any family residing in an assisted living facility, the public housing agency shall utilize the payment standard established under paragraph (1), for the market area in which the assisted living facility is located, for the applicable size dwelling unit.

(iii) *Monthly assistance payment.* The monthly assistance payment for a family assisted under this paragraph

shall be determined in accordance with paragraph (2) (using the rent and payment standard for the dwelling unit as determined in accordance with this subsection), except that a family may be required at the time the family initially receives such assistance to pay rent in an amount exceeding 40 percent of the monthly adjusted income of the family by such an amount or percentage that is reasonable given the services and amenities provided and as the Secretary deems appropriate..3

(C) *Definition.* For the purposes of this paragraph, the term "assisted living facility" has the meaning given that term in section 232(b) of the National Housing Act (12 U.S.C. 1715w(b)), except that such a facility may be contained within a portion of a larger multifamily housing project.

(19) *Rental vouchers for Veterans Affairs supported housing program.*

(A) *Set aside.* Subject to subparagraph (C), the Secretary shall set aside, from amounts made available for rental assistance under this subsection, the amounts specified in subparagraph (B) for use only for providing such assistance through a supported housing program administered in conjunction with the Department of Veterans Affairs. Such program shall provide rental assistance on behalf of homeless veterans who have chronic mental illnesses or chronic substance use disorders, shall require agreement of the veteran to continued treatment for such mental illness or substance use disorder as a condition of receipt of such rental assistance, and shall ensure such treatment and appropriate case management for each veteran receiving such rental assistance.

(B) *Amount.* The amount specified in this subparagraph is—

(i) for fiscal year 2007, the amount necessary to provide 500 vouchers for rental assistance under this subsection;

(ii) for fiscal year 2008, the amount necessary to provide 1,000 vouchers for rental assistance under this subsection;

(iii) for fiscal year 2009, the amount necessary to provide 1,500 vouchers for rental assistance under this subsection;

(iv) for fiscal year 2010, the amount necessary to provide 2,000 vouchers for rental assistance under this subsection; and

(v) for fiscal year 2011, the amount necessary to provide 2,500 vouchers for rental assistance under this subsection.

(C) *Funding through incremental assistance.* In any fiscal year, to the extent that this paragraph requires the Secretary to set aside rental assistance amounts for use under this paragraph in an amount that exceeds the amount set aside in the preceding fiscal year, such requirement shall be effective only to such extent or in such amounts as are or have been provided in appropriation Acts for such fiscal year for incremental rental assistance under this subsection.

(D) *Veteran defined.* In this paragraph, the term "veteran" has the meaning given that term in section 2002(b) of title 38, United States Code.

(20) *Collection of utility data.*

(A) *Publication.* The Secretary shall, to the extent that data can be collected cost effectively, regularly publish such data regarding utility consumption and costs in local areas as the Secretary determines will be useful for the establishment of allowances for tenant-paid utilities for families assisted under this subsection.

(B) *Use of data.* The Secretary shall provide such data in a manner that—

(i) avoids unnecessary administrative burdens for public housing agencies and owners; and

(ii) protects families in various unit sizes and building types, and using various utilities, from high rent and utility cost burdens relative to income.

(21) *Carbon monoxide alarms.* Each dwelling unit receiving tenant-based assistance or project-based assistance under this subsection shall have carbon monoxide alarms or detectors installed in the dwelling unit in a manner that meets or exceeds—

(A) the standards described in chapters 9 and 11 of the 2018 publication of the International Fire Code, as published by the International Code Council; or

(B) any other standards as may be adopted by the Secretary, including any relevant updates to the International Fire Code, through a notice published in the Federal Register.

(22) *Qualifying smoke alarms.*

(A) *In general.* Each dwelling unit receiving tenant-based assistance or project-based assistance under this subsection shall have a qualifying smoke alarm installed in accordance with applicable codes and standards published by the International Code Council or the National Fire Protection Association and the requirements of the National Fire Protection Association Standard 72, or any successor standard, in each level and in or near each sleeping area in such dwelling unit, including in basements but excepting crawl spaces and unfinished attics, and in each common area in a project containing such a dwelling unit.

(B) *Definitions.* For purposes of this paragraph, the following definitions shall apply:

(i) *Smoke alarm defined.* The term "smoke alarm" has the meaning given the term "smoke detector" in section

2225(d) of title 15.

(ii) *Qualifying smoke alarm defined.* The term "qualifying smoke alarm" means a smoke alarm that—

(I) in the case of a dwelling unit built before December 29, 2022, and not substantially rehabilitated after December 29, 2022—

(aa)

(AA) is hardwired; or

(BB) uses 10-year non rechargeable, nonreplaceable primary batteries and is sealed, is tamper resistant, and contains silencing means; and

(bb) provides notification for persons with hearing loss as required by the National Fire Protection Association Standard 72, or any successor standard; or

(II) in the case of a dwelling unit built or substantially rehabilitated after December 29, 2022, is hardwired.

(p) *Shared housing for elderly and handicapped.* In order to assist elderly families (as defined in section 1437a(b)(3) of this title who elect to live in a shared housing arrangement in which they benefit as a result of sharing the facilities of a dwelling with others in a manner that effectively and efficiently meets their housing needs and thereby reduces their cost of housing, the Secretary shall permit assistance provided under the existing housing and moderate rehabilitation programs to be used by such families in such arrangements. In carrying out this subsection, the Secretary shall issue minimum habitability standards for the purpose of assuring decent, safe, and sanitary housing for such families while taking into account the special circumstances of shared housing.

(q) *Administrative fees.*

(1) *Fee for ongoing costs of administration.*

(A) *In general.* The Secretary shall establish fees for the costs of administering the tenant-based assistance, certificate, voucher, and moderate rehabilitation programs under this section.

(B) *Fiscal year 1999.*

(i) *Calculation.* For fiscal year 1999, the fee for each month for which a dwelling unit is covered by an assistance contract shall be—

(I) in the case of a public housing agency that, on an annual basis, is administering a program for not more than 600 dwelling units, 7.65 percent of the base amount; and

(II) in the case of an agency that, on an annual basis, is administering a program for more than 600 dwelling units (aa) for the first 600 units, 7.65 percent of the base amount, and (bb) for any additional dwelling units under the program, 7.0 percent of the base amount.

(ii) *Base amount.* For purposes of this subparagraph, the base amount shall be the higher of—

(I) the fair market rental established under subsection (c) of this section (as in effect immediately before the effective date under section 503(a) of the Quality Housing and Work Responsibility Act of 1998) for fiscal year 1993 for a 2-bedroom existing rental dwelling unit in the market area of the agency, and

(II) the amount that is the lesser of (aa) such fair market rental for fiscal year 1994, or (bb) 103.5 percent of the amount determined under clause (i),

adjusted based on changes in wage data or other objectively measurable data that reflect the costs of administering the program, as determined by the Secretary. The Secretary may require that the base amount be not less than a minimum amount and not more than a maximum amount.

(C) *Subsequent fiscal years.* For subsequent fiscal years, the Secretary shall publish a notice in the Federal Register, for each geographic area, establishing the amount of the fee that would apply for public housing agencies administering the program, based on changes in wage data or other objectively measurable data that reflect the costs of administering the program, as determined by the Secretary.

(D) *Increase.* The Secretary may increase the fee if necessary to reflect the higher costs of administering small programs and programs operating over large geographic areas.

(E) *Decrease.* The Secretary may decrease the fee for units owned by a public housing agency to reflect reasonable costs of administration.

(2) *Fee for preliminary expenses.* The Secretary shall also establish reasonable fees (as determined by the Secretary) for—

(A) the costs of preliminary expenses, in the amount of $500, for a public housing agency, except that such fee shall apply to an agency only in the first year that the agency administers a tenant-based assistance program under this section, and only if, immediately before the effective date under section 503(a) of the Quality Housing and Work Responsibility Act of 1998, the agency was not administering a tenant-based assistance program under this chapter (as in effect immediately before such effective date), in connection with its initial increment of assistance received;

(B) the costs incurred in assisting families who experience difficulty (as determined by the Secretary) in obtaining appropriate housing under the programs; and

(C) extraordinary costs approved by the Secretary.

(3) *Transfer of fees in cases of concurrent geographical jurisdiction.* In each fiscal year, if any public housing agency provides tenant-based assistance under this section on behalf of a family who uses such assistance for a dwelling unit that is located within the jurisdiction of such agency but is also within the jurisdiction of another public housing agency, the Secretary shall take such steps as may be necessary to ensure that the public housing agency that provides the services for a family receives all or part of the administrative fee under this section (as appropriate).

(4) *Applicability.* This subsection shall apply to fiscal year 1999 and fiscal years thereafter.

(5) *Supplements for administering assistance for youth aging out of foster care.* The Secretary may provide supplemental fees under this subsection to the public housing agency for the cost of administering any assistance for foster youth under subsection (x)(2)(B), in an amount determined by the Secretary, but only if the agency waives for such eligible youth receiving assistance any residency requirement that it has otherwise established pursuant to subsection (r)(1)(B)(i).

(r) *Portability.*

(1) *In general.*—.

(A) Any family receiving tenant-based assistance under subsection (o) may receive such assistance to rent an eligible dwelling unit if the dwelling unit to which the family moves is within any area in which a program is being administered under this section.

(B)

(i) Notwithstanding subparagraph (A) and subject to any exceptions established under clause (ii) of this subparagraph, a public housing agency may require that any family not living within the jurisdiction of the public housing agency at the time the family applies for assistance from the agency shall, during the 12-month period beginning on the date of initial receipt of housing assistance made available on behalf of the family from such agency, lease and occupy an eligible dwelling unit located within the jurisdiction served by the agency.

(ii) The Secretary may establish such exceptions to the authority of public housing agencies established under clause (i).

(2) The public housing agency having authority with respect to the dwelling unit to which a family moves under this subsection shall have the responsibility of carrying out the provisions of this subsection with respect to the family.

(3) In providing assistance under subsection (o) for any fiscal year, the Secretary shall give consideration to any reduction in the number of resident families incurred by a public housing agency in the preceding fiscal year as a result of the provisions of this subsection. The Secretary shall establish procedures for the compensation of public housing agencies that issue vouchers to families that move into or out of the jurisdiction of the public housing agency under portability procedures. The Secretary may reserve amounts available for assistance under subsection (o) to compensate those public housing agencies.

(4) The provisions of this subsection may not be construed to restrict any authority of the Secretary under any other provision of law to provide for the portability of assistance under this section.

(5) *Lease violations.*—. A family may not receive a voucher from a public housing agency and move to another jurisdiction under the tenant-based assistance program if the family has moved out of the assisted dwelling unit of the family in violation of a lease, except that a family may receive a voucher from a public housing agency and move to another jurisdiction under the tenant-based assistance program if the family has complied with all other obligations of the section 8 [42 U.S.C. 1437f] program and has moved out of the assisted dwelling unit in order to protect the health or safety of an individual who is or has been the victim of domestic violence, dating violence, or stalking and who reasonably believed he or she was imminently threatened by harm from further violence if he or she remained in the assisted dwelling unit.

(s) *Prohibition of denial of certificates and vouchers to residents of public housing.* In selecting families for the provision of assistance under this section (including subsection (o)), a public housing agency may not exclude or penalize a family solely because the family resides in a public housing project.

(t) *Enhanced vouchers.*

(1) *In general.* Enhanced voucher assistance under this subsection for a family shall be voucher assistance under subsection (o), except that under such enhanced voucher assistance—

(A) subject only to subparagraph (D), the assisted family shall pay as rent no less than the amount the family was paying on the date of the eligibility event for the project in which the family was residing on such date;

(B) the assisted family may elect to remain in the same project in which the family was residing on the date of the eligibility event for the project, and if, during any period the family makes such an election and continues to so reside, the rent for the dwelling unit of the family in such project exceeds the applicable payment standard established pursuant to subsection (o) for the unit, the amount of rental assistance provided on behalf of the family shall be determined using a payment standard that is equal to the rent for the dwelling unit (as such rent may be increased from time-to-time), subject to paragraph (10)(A) of subsection (o) and any other reasonable limit prescribed by the Secretary, except that a limit shall not be considered reasonable for purposes of this subparagraph

if it adversely affects such assisted families;

(C) subparagraph (B) of this paragraph shall not apply and the payment standard for the dwelling unit occupied by the family shall be determined in accordance with subsection (o) if—

(i) the assisted family moves, at any time, from such project; or

(ii) the voucher is made available for use by any family other than the original family on behalf of whom the voucher was provided; and

(D) if the annual adjusted income of the assisted family declines to a significant extent, the percentage of annual adjusted income paid by the family for rent shall not exceed the greater of 30 percent or the percentage of annual adjusted income paid at the time of the eligibility event for the project.

(2) *Eligibility event.* For purposes of this subsection, the term "eligibility event" means, with respect to a multifamily housing project, the prepayment of the mortgage on such housing project, the voluntary termination of the insurance contract for the mortgage for such housing project (including any such mortgage prepayment during fiscal year 1996 or a fiscal year thereafter or any insurance contract voluntary termination during fiscal year 1996 or a fiscal year thereafter), the termination or expiration of the contract for rental assistance under this section for such housing project (including any such termination or expiration during fiscal years after fiscal year 1994 prior to the effective date of the Departments of Veterans Affairs and Housing and Urban Development, and Independent Agencies Appropriations Act, 2001), or the transaction under which the project is preserved as affordable housing, that, under paragraphs (3) and (4) of section 515(c), section 524(d) of the Multifamily Assisted Housing Reform and Affordability Act of 1997 (42 U.S.C. 1437f note), section 4113(f) of title 12, or section 1715z–1a(p) of title 12, results in tenants in such housing project being eligible for enhanced voucher assistance under this subsection.

(3) *Treatment of enhanced vouchers provided under other authority.*

(A) *In general.* Notwithstanding any other provision of law, any enhanced voucher assistance provided under any authority specified in subparagraph (B) shall (regardless of the date that the amounts for providing such assistance were made available) be treated, and subject to the same requirements, as enhanced voucher assistance under this subsection.

(B) *Identification of other authority.* The authority specified in this subparagraph is the authority under—

(i) the 10th, 11th, and 12th provisos under the "Preserving Existing Housing Investment" account in title II of the Departments of Veterans Affairs and Housing and Urban Development, and Independent Agencies Appropriations Act, 1997 (Public Law 104–204; 110 Stat. 2884), pursuant to such provisos, the first proviso under the "Housing Certificate Fund" account in title II of the Departments of Veterans Affairs and Housing and Urban Development, and Independent Agencies Appropriations Act, 1998 (Public Law 105–65; 111 Stat. 1351), or the first proviso under the "Housing Certificate Fund" account in title II of the Departments of Veterans Affairs and Housing and Urban Development, and Independent Agencies Appropriations Act, 1999 (Public Law 105–276; 112 Stat. 2469); and

(ii) paragraphs (3) and (4) of section 515(c) of the Multifamily Assisted Housing Reform and Affordability Act of 1997 (42 U.S.C. 1437f note), as in effect before October 20, 1999.

(4) *Authorization of appropriations.* There are authorized to be appropriated for each of fiscal years 2000, 2001, 2002, 2003, and 2004 such sums as may be necessary for enhanced voucher assistance under this subsection.

(u) *Assistance for residents of rental rehabilitation projects.* In the case of low-income families living in rental projects rehabilitated under section 1437o of this title or section 1490m of this title before rehabilitation—

(1) vouchers under this section shall be made for families who are required to move out of their units because of the physical rehabilitation activities or because of overcrowding;

(2) at the discretion of each public housing agency or other agency administering the allocation of assistance or vouchers under this section may be made for families who would have to pay more than 30 percent of their adjusted income for rent after rehabilitation whether they choose to remain in, or to move from, the project; and

(3) the Secretary shall allocate assistance for vouchers under this section to ensure that sufficient resources are available to address the physical or economic displacement, or potential economic displacement, of existing tenants pursuant to paragraphs (1) and (2).

(v) *Extension of expiring contracts.* The Secretary may extend expiring contracts entered into under this section for project-based loan management assistance to the extent necessary to prevent displacement of low-income families receiving such assistance as of September 30, 1996.

(w) *Repealed. Pub. L. 106–74, title V, § 531(d)(2), Oct. 20, 1999, 113 Stat. 1116.*

(x) *Family unification.*

(1) *Increase in budget authority.* The budget authority available under section 1437c(c) of this title for assistance under subsection (b) is authorized to be increased by $100,000,000 on or after October 1, 1992, and by $104,200,000 on or after October 1, 1993.

(2) *Use of funds.* The amounts made available under this subsection shall be used only in connection with tenant-based

assistance under this section on behalf of (A) any family (i) who is otherwise eligible for such assistance, and (ii) who the public child welfare agency for the jurisdiction has certified is a family for whom the lack of adequate housing is a primary factor in the imminent placement of the family's child or children in out-of-home care or the delayed discharge of a child or children to the family from out-of-home care and (B) subject to paragraph (5), for a period not to exceed 36 months, otherwise eligible youths who have attained at least 18 years of age and not more than 24 years of age and who have left foster care, or will leave foster care within 90 days, in accordance with a transition plan described in section 475(5)(H) of the Social Security Act [42 U.S.C. 675(5)(H)], and is homeless or is at risk of becoming homeless at age 16 or older.

(3) *Allocation.*

(A) *In general.* The amounts made available under this subsection shall be allocated by the Secretary through a national competition among applicants based on demonstrated need for the assistance under this subsection. To be considered for assistance, an applicant shall submit to the Secretary a written proposal containing a report from the public child welfare agency serving the jurisdiction of the applicant that describes how a lack of adequate housing in the jurisdiction is resulting in the initial or prolonged separation of children from their families, and how the applicant will coordinate with the public child welfare agency to identify eligible families and provide the families with assistance under this subsection.

(B) *Assistance for youth aging out of foster care.* Notwithstanding any other provision of law, the Secretary shall, subject only to the availability of funds, allocate such assistance to any public housing agencies that (i) administer assistance pursuant to paragraph (2)(B), or seek to administer such assistance, consistent with procedures established by the Secretary, (ii) have requested such assistance so that they may provide timely assistance to eligible youth, and (iii) have submitted to the Secretary a statement describing how the agency will connect assisted youths with local community resources and self-sufficiency services, to the extent they are available, and obtain referrals from public child welfare agencies regarding youths in foster care who become eligible for such assistance.

(4) *Coordination between public housing agencies and public child welfare agencies.* The Secretary shall, not later than the expiration of the 180-day period beginning on July 29, 2016, and after consultation with other appropriate Federal agencies, issue guidance to improve coordination between public housing agencies and public child welfare agencies in carrying out the program under this subsection, which shall provide guidance on—

(A) identifying eligible recipients for assistance under this subsection and establishing a point of contact at public housing agencies to ensure that public housing agencies receive appropriate referrals regarding eligible recipients;

(B) coordinating with other local youth and family providers in the community and participating in the Continuum of Care program established under subtitle C of title IV of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11381 et seq.);

(C) implementing housing strategies to assist eligible families and youth;

(D) aligning system goals to improve outcomes for families and youth and reducing lapses in housing for families and youth; and

(E) identifying resources that are available to eligible families and youth to provide supportive services available through parts B and E of title IV of the Social Security Act (42 U.S.C. 621 et seq.; 670 et seq.) or that the head of household of a family or youth may be entitled to receive under section 477 of the Social Security Act (42 U.S.C. 677).

(5) *Requirements for assistance for youth aging out of foster care.* Assistance provided under this subsection for an eligible youth pursuant to paragraph (2)(B) shall be subject to the following requirements:

(A) *Requirements to extend assistance.*

(i) *Participation in family self-sufficiency.* In the case of a public housing agency that is providing such assistance under this subsection on behalf of an eligible youth and that is carrying out a family self-sufficiency program under section 1437u of this title, the agency shall, subject only to the availability of such assistance, extend the provision of such assistance for up to 24 months beyond the period referred to in paragraph (2)(B), but only during such period that the youth is in compliance with the terms and conditions applicable under section 1437u of this title and the regulations implementing such section to a person participating in a family self-sufficiency program.

(ii) *Education, workforce development, or employment.* In the case of a public housing agency that is providing such assistance under this subsection on behalf of an eligible youth and that is not carrying out a family self-sufficiency program under section 1437u of this title, or is carrying out such a program in which the youth has been unable to enroll, the agency shall, subject only to the availability of such assistance, extend the provision of such assistance for two successive 12-month periods, after the period referred to in paragraph (2)(B), but only if for not less than 9 months of the 12-month period preceding each such extension the youth was—

(I) engaged in obtaining a recognized postsecondary credential or a secondary school diploma or its recognized equivalent;

(II) enrolled in an institution of higher education, as such term is defined in section 1001(a) of title 20 and including the institutions described in subparagraphs (A) and (B) of section 1002(a)(1) of title 20; or

(III) participating in a career pathway, as such term is defined in section 3102 of title 29.

(iii) *Exceptions.* Notwithstanding clauses (i) and (ii), a public housing agency that is providing such assistance under this subsection on behalf of an eligible youth shall extend the provision of such assistance for up to 24 months beyond the period referred to in paragraph (2)(B), and clauses (i) and (ii) of this subparagraph shall not apply, if the eligible youth certifies that he or she is—

(I) a parent or other household member responsible for the care of a dependent child under the age of 6 or for the care of an incapacitated person;

(II) a person who is regularly and actively participating in a drug addiction or alcohol treatment and rehabilitation program; or

(III) a person who is incapable of complying with the requirement under clause (i) or (ii), as applicable, due to a documented medical condition.

(iv) *Verification of compliance.* The Secretary shall require the public housing agency to verify compliance with the requirements under this subparagraph by each eligible youth on whose behalf the agency provides such assistance under this subsection on an annual basis in conjunction with reviews of income for purposes of determining income eligibility for such assistance.

Notwithstanding any other provision of this clause, a public housing agency shall consider employment as satisfying the requirements under this subparagraph.

(B) *Supportive services.*

(i) *Eligibility.* Each eligible youth on whose behalf such assistance under this subsection is provided shall be eligible for any supportive services (as such term is defined in section 3102 of title 29) made available, in connection with any housing assistance program of the agency, by or through the public housing agency providing such assistance.

(ii) *Information.* Upon the initial provision of such assistance under this subsection on behalf of any eligible youth, the public housing agency shall inform such eligible youth of the existence of any programs or services referred to in clause (i) and of their eligibility for such programs and services.

(C) *Applicability to Moving to Work agencies.* Notwithstanding any other provision of law, the requirements of this paragraph shall apply to assistance under this subsection pursuant to paragraph (2)(B) made available by each public housing agency participating in the Moving to Work Program under section 204 of the Departments of Veterans Affairs and Housing and Urban Development, and Independent Agencies Appropriations Act, 1996 (42 U.S.C. 1437f note), except that in lieu of compliance with clause (i) or (ii) of subparagraph (A) of this paragraph, such an agency may comply with the requirements under such clauses by complying with such terms, conditions, and requirements as may be established by the agency for persons on whose behalf such rental assistance under this subsection is provided.

(D) *Termination of vouchers upon turn-over.* A public housing agency shall not reissue any such assistance made available from appropriated funds when assistance for the youth initially assisted is terminated, unless specifically authorized by the Secretary.

(E) *Reports.*

(i) *In general.* The Secretary shall require each public housing agency that provides such assistance under this subsection in any fiscal year to submit a report to the Secretary for such fiscal year that—

(I) specifies the number of persons on whose behalf such assistance under this subsection was provided during such fiscal year;

(II) specifies the number of persons who applied during such fiscal year for such assistance under this subsection, but were not provided such assistance, and provides a brief identification in each instance of the reason why the public housing agency was unable to award such assistance; and

(III) describes how the public housing agency communicated or collaborated with public child welfare agencies to collect such data.

(ii) *Information collections.* The Secretary shall, to the greatest extent possible, utilize existing information collections, including the voucher management system (VMS), the Inventory Management System/PIH Information Center (IMS/PIC), or the successors of those systems, to collect information required under this subparagraph.

(F) *Consultation.* The Secretary shall consult with the Secretary of Health and Human Services to provide such information and guidance to the Secretary of Health and Human Services as may be necessary to facilitate such Secretary in informing States and public child welfare agencies on how to correctly and efficiently implement and comply with the requirements of this subsection relating to assistance provided pursuant to paragraph (2)(B).

(6) *Definitions.* For purposes of this subsection:

(A) *Applicant.* The term "applicant" means a public housing agency or any other agency responsible for administering

assistance under this section.

(B) *Public child welfare agency.* The term "public child welfare agency" means the public agency responsible under applicable State law for determining that a child is at imminent risk of placement in out-of-home care or that a child in out-of-home care under the supervision of the public agency may be returned to his or her family.

(y) *Homeownership option.*

(1) *Use of assistance for homeownership.* A public housing agency providing tenant-based assistance on behalf of an eligible family under this section may provide assistance for an eligible family that purchases a dwelling unit (including a unit under a lease-purchase agreement) that will be owned by 1 or more members of the family, and will be occupied by the family, if the family—

(A) is a first-time homeowner, or owns or is acquiring shares in a cooperative;

(B) demonstrates that the family has income from employment or other sources (other than public assistance, except that the Secretary may provide for the consideration of public assistance in the case of an elderly family or a disabled family), as determined in accordance with requirements of the Secretary, that is not less than twice the payment standard established by the public housing agency (or such other amount as may be established by the Secretary);

(C) except as provided by the Secretary, demonstrates at the time the family initially receives tenant-based assistance under this subsection that one or more adult members of the family have achieved employment for the period as the Secretary shall require;

(D) participates in a homeownership and housing counseling program provided by the agency; and

(E) meets any other initial or continuing requirements established by the public housing agency in accordance with requirements established by the Secretary.

(2) *Determination of amount of assistance.*

(A) *Monthly expenses not exceeding payment standard.* If the monthly homeownership expenses, as determined in accordance with requirements established by the Secretary, do not exceed the payment standard, the monthly assistance payment shall be the amount by which the homeownership expenses exceed the highest of the following amounts, rounded to the nearest dollar:

(i) 30 percent of the monthly adjusted income of the family.

(ii) 10 percent of the monthly income of the family.

(iii) If the family is receiving payments for welfare assistance from a public agency, and a portion of those payments, adjusted in accordance with the actual housing costs of the family, is specifically designated by that agency to meet the housing costs of the family, the portion of those payments that is so designated.

(B) *Monthly expenses exceed payment standard.* If the monthly homeownership expenses, as determined in accordance with requirements established by the Secretary, exceed the payment standard, the monthly assistance payment shall be the amount by which the applicable payment standard exceeds the highest of the amounts under clauses (i), (ii), and (iii) of subparagraph (A).

(3) *Inspections and contract conditions.*

(A) *In general.* Each contract for the purchase of a unit to be assisted under this section shall—

(i) provide for pre-purchase inspection of the unit by an independent professional; and

(ii) require that any cost of necessary repairs be paid by the seller.

(B) *Annual inspections not required.* The requirement under subsection (o)(8)(A)(ii) 6 for annual inspections shall not apply to units assisted under this section.

(4) *Other authority of the Secretary.* The Secretary may—

(A) limit the term of assistance for a family assisted under this subsection; and

(B) modify the requirements of this subsection as the Secretary determines to be necessary to make appropriate adaptations for lease-purchase agreements.

(5) *Inapplicability of certain provisions.* Assistance under this subsection shall not be subject to the requirements of the following provisions:

(A) Subsection (c)(3)(B) 6 of this section.

(B) Subsection (d)(1)(B)(i) of this section.

(C) Any other provisions of this section governing maximum amounts payable to owners and amounts payable by assisted families.

(D) Any other provisions of this section concerning contracts between public housing agencies and owners.

(E) Any other provisions of this chapter that are inconsistent with the provisions of this subsection.

(6) *Reversion to rental status.*

(A) *FHA-insured mortgages.* If a family receiving assistance under this subsection for occupancy of a dwelling defaults under a mortgage for the dwelling insured by the Secretary under the National Housing Act [12 U.S.C. 1701 et seq.], the family may not continue to receive rental assistance under this section unless the family (i) transfers

to the Secretary marketable title to the dwelling, (ii) moves from the dwelling within the period established or approved by the Secretary, and (iii) agrees that any amounts the family is required to pay to reimburse the escrow account under section 1437u(d)(3) 6 of this title may be deducted by the public housing agency from the assistance payment otherwise payable on behalf of the family.

(B) *Other mortgages.* If a family receiving assistance under this subsection defaults under a mortgage not insured under the National Housing Act [12 U.S.C. 1701 et seq.], the family may not continue to receive rental assistance under this section unless it complies with requirements established by the Secretary.

(C) *All mortgages.* A family receiving assistance under this subsection that defaults under a mortgage may not receive assistance under this subsection for occupancy of another dwelling owned by one or more members of the family.

(7) *Downpayment assistance.*

(A) *Authority.* A public housing agency may, in lieu of providing monthly assistance payments under this subsection on behalf of a family eligible for such assistance and at the discretion of the public housing agency, provide assistance for the family in the form of a single grant to be used only as a contribution toward the downpayment required in connection with the purchase of a dwelling for fiscal year 2000 and each fiscal year thereafter to the extent provided in advance in appropriations Acts.

(B) *Amount.* The amount of a downpayment grant on behalf of an assisted family may not exceed the amount that is equal to the sum of the assistance payments that would be made during the first year of assistance on behalf of the family, based upon the income of the family at the time the grant is to be made.

(8) *"First-time homeowner" defined.* For purposes of this subsection, the term "first-time homeowner" means—

(A) a family, no member of which has had a present ownership interest in a principal residence during the 3 years preceding the date on which the family initially receives assistance for homeownership under this subsection; and

(B) any other family, as the Secretary may prescribe.

(z) *Termination of section 1437f contracts and reuse of recaptured budget authority.*

(1) *General authority.* The Secretary may reuse any budget authority, in whole or part, that is recaptured on account of expiration or termination of a housing assistance payments contract only for one or more of the following:

(A) *Tenant-based assistance.* Pursuant to a contract with a public housing agency, to provide tenant-based assistance under this section to families occupying units formerly assisted under the terminated contract.

(B) *Project-based assistance.* Pursuant to a contract with an owner, to attach assistance to one or more structures under this section, for relocation of families occupying units formerly assisted under the terminated contract.

(2) *Families occupying units formerly assisted under terminated contract.* Pursuant to paragraph (1), the Secretary shall first make available tenant- or project-based assistance to families occupying units formerly assisted under the terminated contract. The Secretary shall provide project-based assistance in instances only where the use of tenant-based assistance is determined to be infeasible by the Secretary.

(aa) *Omitted.*

(bb) *Transfer, reuse, and rescission of budget authority.*

(1) *Transfer of budget authority.* If an assistance contract under this section, other than a contract for tenant-based assistance, is terminated or is not renewed, or if the contract expires, the Secretary shall, in order to provide continued assistance to eligible families, including eligible families receiving the benefit of the project-based assistance at the time of the termination, transfer any budget authority remaining in the contract to another contract. The transfer shall be under such terms as the Secretary may prescribe.

(2) *Reuse and rescission of certain recaptured budget authority.* Notwithstanding paragraph (1), if a project-based assistance contract for an eligible multifamily housing project subject to actions authorized under this subchapter is terminated or amended as part of restructuring under section 517 of the Multifamily Assisted Housing Reform and Affordability Act of 1997, the Secretary shall recapture the budget authority not required for the terminated or amended contract and use such amounts as are necessary to provide housing assistance for the same number of families covered by such contract for the remaining term of such contract, under a contract providing for project-based or tenant-based assistance. The amount of budget authority saved as a result of the shift to project-based or tenant-based assistance shall be rescinded.

(cc) *Law enforcement and security personnel.*

(1) *In general.* Notwithstanding any other provision of this chapter, in the case of assistance attached to a structure, for the purpose of increasing security for the residents of a project, an owner may admit, and assistance under this section may be provided to, police officers and other security personnel who are not otherwise eligible for assistance under the chapter.

(2) *Rent requirements.* With respect to any assistance provided by an owner under this subsection, the Secretary may—

(A) permit the owner to establish such rent requirements and other terms and conditions of occupancy that the

Secretary considers to be appropriate; and

(B) require the owner to submit an application for those rent requirements, which application shall include such information as the Secretary, in the discretion of the Secretary, determines to be necessary.

(3) *Applicability.* This subsection shall apply to fiscal year 1999 and fiscal years thereafter.

(dd) *Tenant-based contract renewals.* Subject to amounts provided in appropriation Acts, starting in fiscal year 1999, the Secretary shall renew all expiring tenant-based annual contribution contracts under this section by applying an inflation factor based on local or regional factors to an allocation baseline. The allocation baseline shall be calculated by including, at a minimum, amounts sufficient to ensure continued assistance for the actual number of families assisted as of October 1, 1997, with appropriate upward adjustments for incremental assistance and additional families authorized subsequent to that date.

42 U.S.C. § 2000a

Cited by the petitioners 0 times (0 filings) and their amici 2 (1); by the respondent 0 (0) and its amici 3 (3).

Prohibition against discrimination or segregation in places of public accommodation

(a) *Equal access.* All persons shall be entitled to the full and equal enjoyment of the goods, services, facilities, privileges, advantages, and accommodations of any place of public accommodation, as defined in this section, without discrimination or segregation on the ground of race, color, religion, or national origin.

(b) *Establishments affecting interstate commerce or supported in their activities by State action as places of public accommodation; lodgings; facilities principally engaged in selling food for consumption on the premises; gasoline stations; places of exhibition or entertainment; other covered establishments.* Each of the following establishments which serves the public is a place of public accommodation within the meaning of this subchapter if its operations affect commerce, or if discrimination or segregation by it is supported by State action:

(1) any inn, hotel, motel, or other establishment which provides lodging to transient guests, other than an establishment located within a building which contains not more than five rooms for rent or hire and which is actually occupied by the proprietor of such establishment as his residence;

(2) any restaurant, cafeteria, lunchroom, lunch counter, soda fountain, or other facility principally engaged in selling food for consumption on the premises, including, but not limited to, any such facility located on the premises of any retail establishment; or any gasoline station;

(3) any motion picture house, theater, concert hall, sports arena, stadium or other place of exhibition or entertainment; and

(4) any establishment (A)(i) which is physically located within the premises of any establishment otherwise covered by this subsection, or (ii) within the premises of which is physically located any such covered establishment, and (B) which holds itself out as serving patrons of such covered establishment.

(c) *Operations affecting commerce; criteria; "commerce" defined.* The operations of an establishment affect commerce within the meaning of this subchapter if (1) it is one of the establishments described in paragraph (1) of subsection (b); (2) in the case of an establishment described in paragraph (2) of subsection (b), it serves or offers to serve interstate travelers or a substantial portion of the food which it serves, or gasoline or other products which it sells, has moved in commerce; (3) in the case of an establishment described in paragraph (3) of subsection (b), it customarily presents films, performances, athletic teams, exhibitions, or other sources of entertainment which move in commerce; and (4) in the case of an establishment described in paragraph (4) of subsection (b), it is physically located within the premises of, or there is physically located within its premises, an establishment the operations of which affect commerce within the meaning of this subsection. For purposes of this section, "commerce" means travel, trade, traffic, commerce, transportation, or communication among the several States, or between the District of Columbia and any State, or between any foreign country or any territory or possession and any State or the District of Columbia, or between points in the same State but through any other State or the District of Columbia or a foreign country.

(d) *Support by State action.* Discrimination or segregation by an establishment is supported by State action within the meaning of this subchapter if such discrimination or segregation (1) is carried on under color of any law, statute, ordinance, or regulation; or (2) is carried on under color of any custom or usage required or enforced by officials of the State or political subdivision thereof; or (3) is required by action of the State or political subdivision thereof.

(e) *Private establishments.* The provisions of this subchapter shall not apply to a private club or other establishment not in fact open to the public, except to the extent that the facilities of such establishment are made available to the customers or patrons of an establishment within the scope of subsection (b).

42 U.S.C. § 2000bb

Cited by the petitioners 0 times (0 filings) and their amici 4 (3); by the respondent 0 (0) and its amici 0 (0).

Congressional findings and declaration of purposes

(a) *Findings.* The Congress finds that—

(1) the framers of the Constitution, recognizing free exercise of religion as an unalienable right, secured its protection in the First Amendment to the Constitution;

(2) laws "neutral" toward religion may burden religious exercise as surely as laws intended to interfere with religious exercise;

(3) governments should not substantially burden religious exercise without compelling justification;

(4) in Employment Division v. Smith, 494 U.S. 872 (1990) the Supreme Court virtually eliminated the requirement that the government justify burdens on religious exercise imposed by laws neutral toward religion; and

(5) the compelling interest test as set forth in prior Federal court rulings is a workable test for striking sensible balances between religious liberty and competing prior governmental interests.

(b) *Purposes.* The purposes of this chapter are—

(1) to restore the compelling interest test as set forth in Sherbert v. Verner, 374 U.S. 398 (1963) and Wisconsin v. Yoder, 406 U.S. 205 (1972) and to guarantee its application in all cases where free exercise of religion is substantially burdened; and

(2) to provide a claim or defense to persons whose religious exercise is substantially burdened by government.

42 U.S.C. § 2000bb-1

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Free exercise of religion protected

(a) *In general.* Government shall not substantially burden a person's exercise of religion even if the burden results from a rule of general applicability, except as provided in subsection (b).

(b) *Exception.* Government may substantially burden a person's exercise of religion only if it demonstrates that application of the burden to the person—

(1) is in furtherance of a compelling governmental interest; and

(2) is the least restrictive means of furthering that compelling governmental interest.

(c) *Judicial relief.* A person whose religious exercise has been burdened in violation of this section may assert that violation as a claim or defense in a judicial proceeding and obtain appropriate relief against a government. Standing to assert a claim or defense under this section shall be governed by the general rules of standing under article III of the Constitution.

42 U.S.C. § 2000cc

Cited by the petitioners 0 times (0 filings) and their amici 2 (2); by the respondent 0 (0) and its amici 0 (0).

Protection of land use as religious exercise

(a) *Substantial burdens.*

(1) *General rule.* No government shall impose or implement a land use regulation in a manner that imposes a substantial burden on the religious exercise of a person, including a religious assembly or institution, unless the government demonstrates that imposition of the burden on that person, assembly, or institution—

(A) is in furtherance of a compelling governmental interest; and

(B) is the least restrictive means of furthering that compelling governmental interest.

(2) *Scope of application.* This subsection applies in any case in which—

(A) the substantial burden is imposed in a program or activity that receives Federal financial assistance, even if the burden results from a rule of general applicability;

(B) the substantial burden affects, or removal of that substantial burden would affect, commerce with foreign nations, among the several States, or with Indian tribes, even if the burden results from a rule of general applicability; or

(C) the substantial burden is imposed in the implementation of a land use regulation or system of land use regulations, under which a government makes, or has in place formal or informal procedures or practices that permit the government to make, individualized assessments of the proposed uses for the property involved.

(b) *Discrimination and exclusion.*

(1) *Equal terms.* No government shall impose or implement a land use regulation in a manner that treats a religious assembly or institution on less than equal terms with a nonreligious assembly or institution.

(2) *Nondiscrimination.* No government shall impose or implement a land use regulation that discriminates against any assembly or institution on the basis of religion or religious denomination.

(3) *Exclusions and limits.* No government shall impose or implement a land use regulation that—

(A) totally excludes religious assemblies from a jurisdiction; or

(B) unreasonably limits religious assemblies, institutions, or structures within a jurisdiction.

42 U.S.C. § 2000cc-5

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Definitions

(1) *Claimant.* The term "claimant" means a person raising a claim or defense under this chapter.

(2) *Demonstrates.* The term "demonstrates" means meets the burdens of going forward with the evidence and of persuasion.

(3) *Free Exercise Clause.* The term "Free Exercise Clause" means that portion of the first amendment to the Constitution that proscribes laws prohibiting the free exercise of religion.

(4) *Government.* The term "government"—

(A) means—

(i) a State, county, municipality, or other governmental entity created under the authority of a State;

(ii) any branch, department, agency, instrumentality, or official of an entity listed in clause (i); and

(iii) any other person acting under color of State law; and

(B) for the purposes of sections 2000cc–2(b) and 2000cc–3 of this title, includes the United States, a branch, department, agency, instrumentality, or official of the United States, and any other person acting under color of Federal law.

(5) *Land use regulation.* The term "land use regulation" means a zoning or landmarking law, or the application of such a law, that limits or restricts a claimant's use or development of land (including a structure affixed to land), if the claimant has an ownership, leasehold, easement, servitude, or other property interest in the regulated land or a contract or option to acquire such an interest.

(6) *Program or activity.* The term "program or activity" means all of the operations of any entity as described in paragraph (1) or (2) of section 2000d–4a of this title.

(7) *Religious exercise.*

(A) *In general.* The term "religious exercise" includes any exercise of religion, whether or not compelled by, or central to, a system of religious belief.

(B) *Rule.* The use, building, or conversion of real property for the purpose of religious exercise shall be considered to be religious exercise of the person or entity that uses or intends to use the property for that purpose.

42 U.S.C. § 2000d

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 6 (3).

Prohibition against exclusion from participation in, denial of benefits of, and discrimination under federally assisted programs on ground of race, color, or national origin

No person in the United States shall, on the ground of race, color, or national origin, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving Federal financial assistance.

42 U.S.C. § 2000e

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 1 (1).

Definitions

(a) The term "person" includes one or more individuals, governments, governmental agencies, political subdivisions, labor unions, partnerships, associations, corporations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees, trustees in cases under title 11, or receivers.

(b) The term "employer" means a person engaged in an industry affecting commerce who has fifteen or more employees for each working day in each of twenty or more calendar weeks in the current or preceding calendar year, and any agent of such a person, but such term does not include (1) the United States, a corporation wholly owned by the Government of the United States, an Indian tribe, or any department or agency of the District of Columbia subject by statute to procedures of the competitive service (as defined in section 2102 of title 5), or (2) a bona fide private membership club (other than a labor organization) which is exempt from taxation under section 501(c) of title 26, except that during the first year after March 24, 1972, persons having fewer than twenty-five employees (and their agents) shall not be considered employers.

(c) The term "employment agency" means any person regularly undertaking with or without compensation to procure employees for an employer or to procure for employees opportunities to work for an employer and includes an agent of such a person.

(d) The term "labor organization" means a labor organization engaged in an industry affecting commerce, and any agent

of such an organization, and includes any organization of any kind, any agency, or employee representation committee, group, association, or plan so engaged in which employees participate and which exists for the purpose, in whole or in part, of dealing with employers concerning grievances, labor disputes, wages, rates of pay, hours, or other terms or conditions of employment, and any conference, general committee, joint or system board, or joint council so engaged which is subordinate to a national or international labor organization.

(e) A labor organization shall be deemed to be engaged in an industry affecting commerce if (1) it maintains or operates a hiring hall or hiring office which procures employees for an employer or procures for employees opportunities to work for an employer, or (2) the number of its members (or, where it is a labor organization composed of other labor organizations or their representatives, if the aggregate number of the members of such other labor organization) is (A) twenty-five or more during the first year after March 24, 1972, or (B) fifteen or more thereafter, and such labor organization—

(1) is the certified representative of employees under the provisions of the National Labor Relations Act, as amended [29 U.S.C. 151 et seq.], or the Railway Labor Act, as amended [45 U.S.C. 151 et seq.];

(2) although not certified, is a national or international labor organization or a local labor organization recognized or acting as the representative of employees of an employer or employers engaged in an industry affecting commerce; or

(3) has chartered a local labor organization or subsidiary body which is representing or actively seeking to represent employees of employers within the meaning of paragraph (1) or (2); or

(4) has been chartered by a labor organization representing or actively seeking to represent employees within the meaning of paragraph (1) or (2) as the local or subordinate body through which such employees may enjoy membership or become affiliated with such labor organization; or

(5) is a conference, general committee, joint or system board, or joint council subordinate to a national or international labor organization, which includes a labor organization engaged in an industry affecting commerce within the meaning of any of the preceding paragraphs of this subsection.

(f) The term "employee" means an individual employed by an employer, except that the term "employee" shall not include any person elected to public office in any State or political subdivision of any State by the qualified voters thereof, or any person chosen by such officer to be on such officer's personal staff, or an appointee on the policy making level or an immediate adviser with respect to the exercise of the constitutional or legal powers of the office. The exemption set forth in the preceding sentence shall not include employees subject to the civil service laws of a State government, governmental agency or political subdivision. With respect to employment in a foreign country, such term includes an individual who is a citizen of the United States.

(g) The term "commerce" means trade, traffic, commerce, transportation, transmission, or communication among the several States; or between a State and any place outside thereof; or within the District of Columbia, or a possession of the United States; or between points in the same State but through a point outside thereof.

(h) The term "industry affecting commerce" means any activity, business, or industry in commerce or in which a labor dispute would hinder or obstruct commerce or the free flow of commerce and includes any activity or industry "affecting commerce" within the meaning of the Labor-Management Reporting and Disclosure Act of 1959 [29 U.S.C. 401 et seq.], and further includes any governmental industry, business, or activity.

(i) The term "State" includes a State of the United States, the District of Columbia, Puerto Rico, the Virgin Islands, American Samoa, Guam, Wake Island, the Canal Zone, and Outer Continental Shelf lands defined in the Outer Continental Shelf Lands Act [43 U.S.C. 1331 et seq.].

(j) The term "religion" includes all aspects of religious observance and practice, as well as belief, unless an employer demonstrates that he is unable to reasonably accommodate to an employee's or prospective employee's religious observance or practice without undue hardship on the conduct of the employer's business.

(k) The terms "because of sex" or "on the basis of sex" include, but are not limited to, because of or on the basis of pregnancy, childbirth, or related medical conditions; and women affected by pregnancy, childbirth, or related medical conditions shall be treated the same for all employment-related purposes, including receipt of benefits under fringe benefit programs, as other persons not so affected but similar in their ability or inability to work, and nothing in section 2000e–2(h) of this title shall be interpreted to permit otherwise. This subsection shall not require an employer to pay for health insurance benefits for abortion, except where the life of the mother would be endangered if the fetus were carried to term, or except where medical complications have arisen from an abortion: Provided, That nothing herein shall preclude an employer from providing abortion benefits or otherwise affect bargaining agreements in regard to abortion.

(l) The term "complaining party" means the Commission, the Attorney General, or a person who may bring an action or proceeding under this subchapter.

(m) The term "demonstrates" means meets the burdens of production and persuasion.

(n) The term "respondent" means an employer, employment agency, labor organization, joint labor-management committee controlling apprenticeship or other training or retraining program, including an on-the-job training program,

or Federal entity subject to section 2000e–16 of this title.

42 U.S.C. § 2000e-1

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Exemption

(a) *Inapplicability of subchapter to certain aliens and employees of religious entities.* This subchapter shall not apply to an employer with respect to the employment of aliens outside any State, or to a religious corporation, association, educational institution, or society with respect to the employment of individuals of a particular religion to perform work connected with the carrying on by such corporation, association, educational institution, or society of its activities.

(b) *Compliance with statute as violative of foreign law.* It shall not be unlawful under section 2000e–2 or 2000e–3 of this title for an employer (or a corporation controlled by an employer), labor organization, employment agency, or joint labor-management committee controlling apprenticeship or other training or retraining (including on-the-job training programs) to take any action otherwise prohibited by such section, with respect to an employee in a workplace in a foreign country if compliance with such section would cause such employer (or such corporation), such organization, such agency, or such committee to violate the law of the foreign country in which such workplace is located.

(c) *Control of corporation incorporated in foreign country.*

(1) If an employer controls a corporation whose place of incorporation is a foreign country, any practice prohibited by section 2000e–2 or 2000e–3 of this title engaged in by such corporation shall be presumed to be engaged in by such employer.

(2) Sections 2000e–2 and 2000e–3 of this title shall not apply with respect to the foreign operations of an employer that is a foreign person not controlled by an American employer.

(3) For purposes of this subsection, the determination of whether an employer controls a corporation shall be based on—

(A) the interrelation of operations;

(B) the common management;

(C) the centralized control of labor relations; and

(D) the common ownership or financial control,

of the employer and the corporation.

42 U.S.C. § 2000e-2

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 4 (4).

Unlawful employment practices

(a) *Employer practices.* It shall be an unlawful employment practice for an employer—

(1) to fail or refuse to hire or to discharge any individual, or otherwise to discriminate against any individual with respect to his compensation, terms, conditions, or privileges of employment, because of such individual's race, color, religion, sex, or national origin; or

(2) to limit, segregate, or classify his employees or applicants for employment in any way which would deprive or tend to deprive any individual of employment opportunities or otherwise adversely affect his status as an employee, because of such individual's race, color, religion, sex, or national origin.

(b) *Employment agency practices.* It shall be an unlawful employment practice for an employment agency to fail or refuse to refer for employment, or otherwise to discriminate against, any individual because of his race, color, religion, sex, or national origin, or to classify or refer for employment any individual on the basis of his race, color, religion, sex, or national origin.

(c) *Labor organization practices.* It shall be an unlawful employment practice for a labor organization—

(1) to exclude or to expel from its membership, or otherwise to discriminate against, any individual because of his race, color, religion, sex, or national origin;

(2) to limit, segregate, or classify its membership or applicants for membership, or to classify or fail or refuse to refer for employment any individual, in any way which would deprive or tend to deprive any individual of employment opportunities, or would limit such employment opportunities or otherwise adversely affect his status as an employee or as an applicant for employment, because of such individual's race, color, religion, sex, or national origin; or

(3) to cause or attempt to cause an employer to discriminate against an individual in violation of this section.

(d) *Training programs.* It shall be an unlawful employment practice for any employer, labor organization, or joint labor-management committee controlling apprenticeship or other training or retraining, including on-the-job training programs to discriminate against any individual because of his race, color, religion, sex, or national origin in admission to, or employment in, any program established to provide apprenticeship or other training.

(e) *Businesses or enterprises with personnel qualified on basis of religion, sex, or national origin; educational institutions with personnel of particular religion.* Notwithstanding any other provision of this subchapter, (1) it shall not be an unlawful employment practice for an employer to hire and employ employees, for an employment agency to classify, or refer for employment any individual, for a labor organization to classify its membership or to classify or refer for employment any

individual, or for an employer, labor organization, or joint labor-management committee controlling apprenticeship or other training or retraining programs to admit or employ any individual in any such program, on the basis of his religion, sex, or national origin in those certain instances where religion, sex, or national origin is a bona fide occupational qualification reasonably necessary to the normal operation of that particular business or enterprise, and (2) it shall not be an unlawful employment practice for a school, college, university, or other educational institution or institution of learning to hire and employ employees of a particular religion if such school, college, university, or other educational institution or institution of learning is, in whole or in substantial part, owned, supported, controlled, or managed by a particular religion or by a particular religious corporation, association, or society, or if the curriculum of such school, college, university, or other educational institution or institution of learning is directed toward the propagation of a particular religion.

(f) *Members of Communist Party or Communist-action or Communist-front organizations.* As used in this subchapter, the phrase "unlawful employment practice" shall not be deemed to include any action or measure taken by an employer, labor organization, joint labor-management committee, or employment agency with respect to an individual who is a member of the Communist Party of the United States or of any other organization required to register as a Communist-action or Communist-front organization by final order of the Subversive Activities Control Board pursuant to the Subversive Activities Control Act of 1950 [50 U.S.C. 781 et seq.].

(g) *National security.* Notwithstanding any other provision of this subchapter, it shall not be an unlawful employment practice for an employer to fail or refuse to hire and employ any individual for any position, for an employer to discharge any individual from any position, or for an employment agency to fail or refuse to refer any individual for employment in any position, or for a labor organization to fail or refuse to refer any individual for employment in any position, if—

(1) the occupancy of such position, or access to the premises in or upon which any part of the duties of such position is performed or is to be performed, is subject to any requirement imposed in the interest of the national security of the United States under any security program in effect pursuant to or administered under any statute of the United States or any Executive order of the President; and

(2) such individual has not fulfilled or has ceased to fulfill that requirement.

(h) *Seniority or merit system; quantity or quality of production; ability tests; compensation based on sex and authorized by minimum wage provisions.* Notwithstanding any other provision of this subchapter, it shall not be an unlawful employment practice for an employer to apply different standards of compensation, or different terms, conditions, or privileges of employment pursuant to a bona fide seniority or merit system, or a system which measures earnings by quantity or quality of production or to employees who work in different locations, provided that such differences are not the result of an intention to discriminate because of race, color, religion, sex, or national origin, nor shall it be an unlawful employment practice for an employer to give and to act upon the results of any professionally developed ability test provided that such test, its administration or action upon the results is not designed, intended or used to discriminate because of race, color, religion, sex or national origin. It shall not be an unlawful employment practice under this subchapter for any employer to differentiate upon the basis of sex in determining the amount of the wages or compensation paid or to be paid to employees of such employer if such differentiation is authorized by the provisions of section 206(d) of title 29.

(i) *Businesses or enterprises extending preferential treatment to Indians.* Nothing contained in this subchapter shall apply to any business or enterprise on or near an Indian reservation with respect to any publicly announced employment practice of such business or enterprise under which a preferential treatment is given to any individual because he is an Indian living on or near a reservation.

(j) *Preferential treatment not to be granted on account of existing number or percentage imbalance.* Nothing contained in this subchapter shall be interpreted to require any employer, employment agency, labor organization, or joint labor-management committee subject to this subchapter to grant preferential treatment to any individual or to any group because of the race, color, religion, sex, or national origin of such individual or group on account of an imbalance which may exist with respect to the total number or percentage of persons of any race, color, religion, sex, or national origin employed by any employer, referred or classified for employment by any employment agency or labor organization, admitted to membership or classified by any labor organization, or admitted to, or employed in, any apprenticeship or other training program, in comparison with the total number or percentage of persons of such race, color, religion, sex, or national origin in any community, State, section, or other area, or in the available work force in any community, State, section, or other area.

(k) *Burden of proof in disparate impact cases.*

(1)

(A) An unlawful employment practice based on disparate impact is established under this subchapter only if—

(i) a complaining party demonstrates that a respondent uses a particular employment practice that causes a disparate impact on the basis of race, color, religion, sex, or national origin and the respondent fails to demonstrate that the challenged practice is job related for the position in question and consistent with business

necessity; or

(ii) the complaining party makes the demonstration described in subparagraph (C) with respect to an alternative employment practice and the respondent refuses to adopt such alternative employment practice.

(B)

(i) With respect to demonstrating that a particular employment practice causes a disparate impact as described in subparagraph (A)(i), the complaining party shall demonstrate that each particular challenged employment practice causes a disparate impact, except that if the complaining party can demonstrate to the court that the elements of a respondent's decisionmaking process are not capable of separation for analysis, the decisionmaking process may be analyzed as one employment practice.

(ii) If the respondent demonstrates that a specific employment practice does not cause the disparate impact, the respondent shall not be required to demonstrate that such practice is required by business necessity.

(C) The demonstration referred to by subparagraph (A)(ii) shall be in accordance with the law as it existed on June 4, 1989, with respect to the concept of "alternative employment practice".

(2) A demonstration that an employment practice is required by business necessity may not be used as a defense against a claim of intentional discrimination under this subchapter.

(3) Notwithstanding any other provision of this subchapter, a rule barring the employment of an individual who currently and knowingly uses or possesses a controlled substance, as defined in schedules I and II of section 102(6) of the Controlled Substances Act (21 U.S.C. 802(6)), other than the use or possession of a drug taken under the supervision of a licensed health care professional, or any other use or possession authorized by the Controlled Substances Act [21 U.S.C. 801 et seq.] or any other provision of Federal law, shall be considered an unlawful employment practice under this subchapter only if such rule is adopted or applied with an intent to discriminate because of race, color, religion, sex, or national origin.

(l) *Prohibition of discriminatory use of test scores.* It shall be an unlawful employment practice for a respondent, in connection with the selection or referral of applicants or candidates for employment or promotion, to adjust the scores of, use different cutoff scores for, or otherwise alter the results of, employment related tests on the basis of race, color, religion, sex, or national origin.

(m) *Impermissible consideration of race, color, religion, sex, or national origin in employment practices.* Except as otherwise provided in this subchapter, an unlawful employment practice is established when the complaining party demonstrates that race, color, religion, sex, or national origin was a motivating factor for any employment practice, even though other factors also motivated the practice.

(n) *Resolution of challenges to employment practices implementing litigated or consent judgments or orders.*

(1)

(A) Notwithstanding any other provision of law, and except as provided in paragraph (2), an employment practice that implements and is within the scope of a litigated or consent judgment or order that resolves a claim of employment discrimination under the Constitution or Federal civil rights laws may not be challenged under the circumstances described in subparagraph (B).

(B) A practice described in subparagraph (A) may not be challenged in a claim under the Constitution or Federal civil rights laws—

(i) by a person who, prior to the entry of the judgment or order described in subparagraph (A), had—

(I) actual notice of the proposed judgment or order sufficient to apprise such person that such judgment or order might adversely affect the interests and legal rights of such person and that an opportunity was available to present objections to such judgment or order by a future date certain; and

(II) a reasonable opportunity to present objections to such judgment or order; or

(ii) by a person whose interests were adequately represented by another person who had previously challenged the judgment or order on the same legal grounds and with a similar factual situation, unless there has been an intervening change in law or fact.

(2) Nothing in this subsection shall be construed to—

(A) alter the standards for intervention under rule 24 of the Federal Rules of Civil Procedure or apply to the rights of parties who have successfully intervened pursuant to such rule in the proceeding in which the parties intervened;

(B) apply to the rights of parties to the action in which a litigated or consent judgment or order was entered, or of members of a class represented or sought to be represented in such action, or of members of a group on whose behalf relief was sought in such action by the Federal Government;

(C) prevent challenges to a litigated or consent judgment or order on the ground that such judgment or order was obtained through collusion or fraud, or is transparently invalid or was entered by a court lacking subject matter jurisdiction; or

(D) authorize or permit the denial to any person of the due process of law required by the Constitution.

(3) Any action not precluded under this subsection that challenges an employment consent judgment or order

described in paragraph (1) shall be brought in the court, and if possible before the judge, that entered such judgment or order. Nothing in this subsection shall preclude a transfer of such action pursuant to section 1404 of title 28.

47 U.S.C. § 1726

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

General provisions

(a) *Nondiscrimination.*

(1) *In general.* No individual in the United States may, on the basis of actual or perceived race, color, religion, national origin, sex, gender identity, sexual orientation, age, or disability, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any program or activity that is funded in whole or in part with funds made available to carry out this subchapter.

(2) *Enforcement.* The Assistant Secretary shall effectuate paragraph (1) with respect to any program or activity described in that paragraph by issuing regulations and taking actions consistent with section 2000d–1 of title 42.

(3) *Judicial review.* Judicial review of an action taken by the Assistant Secretary under paragraph (2) shall be available to the extent provided in section 2000d–2 of title 42.

(b) *Technological neutrality.* The Assistant Secretary shall, to the extent practicable, carry out this subchapter in a technologically neutral manner.

(c) *Audit and oversight.* Beginning in the first fiscal year in which amounts are made available to carry out an activity authorized under this subchapter, and in each of the 4 fiscal years thereafter, there is authorized to be appropriated to the Office of Inspector General for the Department of Commerce $1,000,000 for audits and oversight of funds made available to carry out this subchapter, which shall remain available until expended.

49 U.S.C. § 5332

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Nondiscrimination

(a) *Definition.*—. In this section, "person" includes a governmental authority, political subdivision, authority, legal representative, trust, unincorporated organization, trustee, trustee in bankruptcy, and receiver.

(b) *Prohibitions.*—. A person may not be excluded from participating in, denied a benefit of, or discriminated against under, a project, program, or activity receiving financial assistance under this chapter because of race, color, religion, national origin, sex, disability, or age.

(c) *Compliance.*—.

(1) The Secretary shall take affirmative action to ensure compliance with subsection (b) of this section.

(2) When the Secretary decides that a person receiving financial assistance under this chapter is not complying with subsection (b) of this section, a civil rights law of the United States, or a regulation or order under that law, the Secretary shall notify the person of the decision and require action be taken to ensure compliance with subsection (b).

(d) *Authority of Secretary for Noncompliance.*—. If a person does not comply with subsection (b) of this section within a reasonable time after receiving notice, the Secretary shall—

(1) direct that no further financial assistance of the United States Government under this chapter be provided to the person;

(2) refer the matter to the Attorney General with a recommendation that a civil action be brought;

(3) proceed under title VI of the Civil Rights Act of 1964 (42 U.S.C. 2000d et seq.); or

(4) take any other action provided by law.

(e) *Civil Actions by Attorney General.*—. The Attorney General may bring a civil action for appropriate relief when—

(1) a matter is referred to the Attorney General under subsection (d)(2) of this section; or

(2) the Attorney General believes a person is engaged in a pattern or practice in violation of this section.

(f) *Application and Relationship to Other Laws.*—. This section applies to an employment or business opportunity and is in addition to title VI of the Civil Rights Act of 1964 (42 U.S.C. 2000d et seq.).

24 C.F.R. § 5.105

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Other Federal requirements. (eCFR, current as of Oct. 28, 2026)

The requirements set forth in this section apply to all HUD programs, except as may be otherwise noted in the respective program regulations in title 24 of the CFR, or unless inconsistent with statutes authorizing certain HUD programs:

(a) *Nondiscrimination and equal opportunity.* (1) The Fair Housing Act (42 U.S.C. 3601-19) and implementing regulations at 24 CFR part 100 *et seq.;* Executive Order 11063, as amended by Executive Order 12259 (3 CFR, 1959-1963 Comp., p. 652 and 3 CFR, 1980 Comp., p. 307) (Equal Opportunity in Housing Programs) and implementing regulations at 24 CFR part 107; title VI of the Civil Rights Act of 1964 (42 U.S.C. 2000d-2000d-4) (Nondiscrimination in Federally Assisted

Programs) and implementing regulations at 24 CFR part 1; the Age Discrimination Act of 1975 (42 U.S.C. 6101-6107) and implementing regulations at 24 CFR part 146; section 504 of the Rehabilitation Act of 1973 (29 U.S.C. 794) and implementing regulations at part 8 of this title; title II of the Americans with Disabilities Act, 42 U.S.C. 12101 *et seq.;* 24 CFR part 8; Executive Order 11246, as amended by Executive Orders 11375, 11478, 12086, and 12107 (3 CFR, 1964-1965 Comp., p. 339; 3 CFR, 1966-1970 Comp., p. 684; 3 CFR, 1966-1970 Comp., p. 803; 3 CFR, 1978 Comp., p. 230; and 3 CFR, 1978 Comp., p. 264, respectively) (Equal Employment Opportunity Programs) and implementing regulations at 41 CFR chapter 60; Executive Order 11625, as amended by Executive Order 12007 (3 CFR, 1971-1975 Comp., p. 616 and 3 CFR, 1977 Comp., p. 139) (Minority Business Enterprises); Executive Order 12432 (3 CFR, 1983 Comp., p. 198) (Minority Business Enterprise Development); and Executive Order 12138, as amended by Executive Order 12608 (3 CFR, 1977 Comp., p. 393 and 3 CFR, 1987 Comp., p. 245) (Women's Business Enterprise).

(2) *Equal access to HUD-assisted or -insured housing.* A determination of eligibility for housing that is assisted by HUD or subject to a mortgage insured by HUD shall be made in accordance with the eligibility requirements provided for such program by HUD, and such housing shall be made available without regard to actual or perceived sexual orientation, gender identity, or marital status.

(b) *Disclosure requirements.* The disclosure requirements and prohibitions of 31 U.S.C. 1352 and implementing regulations at 24 CFR part 87; and the requirements for funding competitions established by the Department of Housing and Urban Development Reform Act of 1989 (42 U.S.C. 3531 *et seq.*).

(c) Debarred, suspended, or ineligible contractors and participants. The prohibitions at 2 CFR part 2424 on the use of debarred, suspended, or ineligible contractors and participants.

(d) *Drug-free workplace.* The Drug-Free Workplace Act of 1988 (41 U.S.C. 701, *et seq.*) and HUD's implementing regulations at 2 CFR part 2429.

[61 FR 5202, Feb. 9, 1996, as amended at 65 FR 16715, Mar. 29, 2000; 72 FR 73491, Dec. 27, 2007; 76 FR 45167, July 28, 2011; 77 FR 5674, Feb. 3, 2012; 81 FR 64782, Sept. 21, 2016; 81 FR 80993, Nov. 17, 2016; 85 FR 61562, Sept. 29, 2020]

24 C.F.R. § 982.207

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Waiting list: Local preferences in admission to program. (eCFR, current as of Oct. 28, 2026)

(a) *Establishment of PHA local preferences.* (1) The PHA may establish a system of local preferences for selection of families admitted to the program. PHA selection preferences must be described in the PHA Administrative Plan.

(2) The PHA system of local preferences must be based on local housing needs and priorities, as determined by the PHA. In determining such needs and priorities, the PHA shall use generally accepted data sources. The PHA shall consider public comment on the proposed public housing agency plan (as received pursuant to § 903.17 of this chapter) and on the consolidated plan for the relevant jurisdiction (as received pursuant to part 91 of this title).

(3) The PHA may limit the number of applicants that may qualify for any local preference.

(4) The PHA shall not deny a local preference, nor otherwise exclude or penalize a family in admission to the program, solely because the family resides in a public housing project. The PHA may establish a preference for families residing in public housing who are victims of a crime of violence (as defined in 18 U.S.C. 16).

(b) *Particular local preferences*—(1) *Residency requirements or preferences.* (i) Residency requirements are prohibited. Although a PHA is not prohibited from adopting a residency preference, the PHA may only adopt or implement residency preferences in accordance with non-discrimination and equal opportunity requirements listed at § 5.105(a) of this title.

(ii) A residency preference is a preference for admission of persons who reside in a specified geographic area ("residency preference area"). A county or municipality may be used as a residency preference area. An area smaller than a county or municipality may not be used as a residency preference area.

(iii) Any PHA residency preferences must be included in the statement of PHA policies that govern eligibility, selection and admission to the program, which is included in the PHA annual plan (or supporting documents) pursuant to part 903 of this title. Such policies must specify that use of a residency preference will not have the purpose or effect of delaying or otherwise denying admission to the program based on the race, color, ethnic origin, gender, religion, disability, or age of any member of an applicant family.

(iv) A residency preference must not be based on how long an applicant has resided or worked in a residency preference area.

(v) Applicants who are working or who have been notified that they are hired to work in a residency preference area must be treated as residents of the residency preference area. The PHA may treat graduates of, or active participants in, education and training programs in a residency preference area as residents of the residency preference area if the education or training program is designed to prepare individuals for the job market.

(2) *Preference for working families.* The PHA may adopt a preference for admission of working families (families where the head, spouse or sole member is employed). However, an applicant shall be given the benefit of the working family preference if the head and spouse, or sole member is age 62 or older, or is a person with disabilities.

(3) *Preference for person with disabilities.* The PHA may adopt a preference for admission of families that include a person with disabilities. However, the PHA may not adopt a preference for admission of persons with a specific disability.

(4) *Preference for victims of domestic violence, dating violence, sexual assault, or stalking.* The PHA should consider whether to adopt a local preference for admission of families that include victims of domestic violence, dating violence, sexual assault, or stalking.

(5) *Preference for single persons who are elderly, displaced, homeless, or persons with disabilities.* The PHA may adopt a preference for admission of single persons who are age 62 or older, displaced, homeless, or persons with disabilities over other single persons.

(c) *Selection among families with preference.* The PHA system of preferences may use either of the following to select among applicants on the waiting list with the same preference status:

(1) Date and time of application; or

(2) A drawing or other random choice technique.

(d) *Preference for higher-income families.* The PHA must not select families for admission to the program in an order different from the order on the waiting list for the purpose of selecting higher income families for admission to the program.

(e) *Verification of selection method.* The method for selecting applicants from a preference category must leave a clear audit trail that can be used to verify that each applicant has been selected in accordance with the method specified in the Administrative Plan.

[64 FR 26643, May 14, 1999, as amended at 64 FR 56912, Oct. 21, 1999; 65 FR 16821, Mar. 30, 2000; 81 FR 80816, Nov. 16, 2016]

28 C.F.R. § 35.130

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

General prohibitions against discrimination. (eCFR, current as of Oct. 28, 2026)

(a) No qualified individual with a disability shall, on the basis of disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity, or be subjected to discrimination by any public entity.

(b)(1) A public entity, in providing any aid, benefit, or service, may not, directly or through contractual, licensing, or other arrangements, on the basis of disability—

(i) Deny a qualified individual with a disability the opportunity to participate in or benefit from the aid, benefit, or service;

(ii) Afford a qualified individual with a disability an opportunity to participate in or benefit from the aid, benefit, or service that is not equal to that afforded others;

(iii) Provide a qualified individual with a disability with an aid, benefit, or service that is not as effective in affording equal opportunity to obtain the same result, to gain the same benefit, or to reach the same level of achievement as that provided to others;

(iv) Provide different or separate aids, benefits, or services to individuals with disabilities or to any class of individuals with disabilities than is provided to others unless such action is necessary to provide qualified individuals with disabilities with aids, benefits, or services that are as effective as those provided to others;

(v) Aid or perpetuate discrimination against a qualified individual with a disability by providing significant assistance to an agency, organization, or person that discriminates on the basis of disability in providing any aid, benefit, or service to beneficiaries of the public entity's program;

(vi) Deny a qualified individual with a disability the opportunity to participate as a member of planning or advisory boards;

(vii) Otherwise limit a qualified individual with a disability in the enjoyment of any right, privilege, advantage, or opportunity enjoyed by others receiving the aid, benefit, or service.

(2) A public entity may not deny a qualified individual with a disability the opportunity to participate in services, programs, or activities that are not separate or different, despite the existence of permissibly separate or different programs or activities.

(3) A public entity may not, directly or through contractual or other arrangements, utilize criteria or methods of administration:

(i) That have the effect of subjecting qualified individuals with disabilities to discrimination on the basis of disability;

(ii) That have the purpose or effect of defeating or substantially impairing accomplishment of the objectives of the public entity's program with respect to individuals with disabilities; or

(iii) That perpetuate the discrimination of another public entity if both public entities are subject to common administrative control or are agencies of the same State.

(4) A public entity may not, in determining the site or location of a facility, make selections—

(i) That have the effect of excluding individuals with disabilities from, denying them the benefits of, or otherwise subjecting them to discrimination; or

(ii) That have the purpose or effect of defeating or substantially impairing the accomplishment of the objectives of the service, program, or activity with respect to individuals with disabilities.

(5) A public entity, in the selection of procurement contractors, may not use criteria that subject qualified individuals with disabilities to discrimination on the basis of disability.

(6) A public entity may not administer a licensing or certification program in a manner that subjects qualified individuals with disabilities to discrimination on the basis of disability, nor may a public entity establish requirements for the programs or activities of licensees or certified entities that subject qualified individuals with disabilities to discrimination on the basis of disability. The programs or activities of entities that are licensed or certified by a public entity are not, themselves, covered by this part.

(7)(i) A public entity shall make reasonable modifications in policies, practices, or procedures when the modifications are necessary to avoid discrimination on the basis of disability, unless the public entity can demonstrate that making the modifications would fundamentally alter the nature of the service, program, or activity.

(ii) A public entity is not required to provide a reasonable modification to an individual who meets the definition of "disability" solely under the "regarded as" prong of the definition of "disability" at § 35.108(a)(1)(iii).

(8) A public entity shall not impose or apply eligibility criteria that screen out or tend to screen out an individual with a disability or any class of individuals with disabilities from fully and equally enjoying any service, program, or activity, unless such criteria can be shown to be necessary for the provision of the service, program, or activity being offered.

(c) Nothing in this part prohibits a public entity from providing benefits, services, or advantages to individuals with disabilities, or to a particular class of individuals with disabilities beyond those required by this part.

(d) A public entity shall administer services, programs, and activities in the most integrated setting appropriate to the needs of qualified individuals with disabilities.

(e)(1) Nothing in this part shall be construed to require an individual with a disability to accept an accommodation, aid, service, opportunity, or benefit provided under the ADA or this part which such individual chooses not to accept.

(2) Nothing in the Act or this part authorizes the representative or guardian of an individual with a disability to decline food, water, medical treatment, or medical services for that individual.

(f) A public entity may not place a surcharge on a particular individual with a disability or any group of individuals with disabilities to cover the costs of measures, such as the provision of auxiliary aids or program accessibility, that are required to provide that individual or group with the nondiscriminatory treatment required by the Act or this part.

(g) A public entity shall not exclude or otherwise deny equal services, programs, or activities to an individual or entity because of the known disability of an individual with whom the individual or entity is known to have a relationship or association.

(h) A public entity may impose legitimate safety requirements necessary for the safe operation of its services, programs, or activities. However, the public entity must ensure that its safety requirements are based on actual risks, not on mere speculation, stereotypes, or generalizations about individuals with disabilities.

(i) Nothing in this part shall provide the basis for a claim that an individual without a disability was subject to discrimination because of a lack of disability, including a claim that an individual with a disability was granted a reasonable modification that was denied to an individual without a disability.

[Order No. 1512-91, 56 FR 35716, July 26, 1991, as amended by AG Order No. 3180-2010, 75 FR 56178, Sept. 15, 2010; AG Order 3702-2016, 81 FR 53225, Aug. 11, 2016]

29 C.F.R. § 1604.2

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Sex as a bona fide occupational qualification. (eCFR, current as of Oct. 28, 2026)

(a) The commission believes that the bona fide occupational qualification exception as to sex should be interpreted narrowly. Label—"Men's jobs" and "Women's jobs"—tend to deny employment opportunities unnecessarily to one sex or the other.

(1) The Commission will find that the following situations do not warrant the application of the bona fide occupational qualification exception:

(i) The refusal to hire a woman because of her sex based on assumptions of the comparative employment characteristics of women in general. For example, the assumption that the turnover rate among women is higher than among men.

(ii) The refusal to hire an individual based on stereotyped characterizations of the sexes. Such stereotypes include, for example, that men are less capable of assembling intricate equipment: that women are less capable of aggressive salesmanship. The principle of nondiscrimination requires that individuals be considered on the basis of individual

capacities and not on the basis of any characteristics generally attributed to the group.

(iii) The refusal to hire an individual because of the preferences of coworkers, the employer, clients or customers except as covered specifically in paragraph (a)(2) of this section.

(2) Where it is necessary for the purpose of authenticity or genuineness, the Commission will consider sex to be a bona fide occupational qualification, e.g., an actor or actress.

(b) Effect of sex-oriented State employment legislation.

(1) Many States have enacted laws or promulgated administrative regulations with respect to the employment of females. Among these laws are those which prohibit or limit the employment of females, e.g., the employment of females in certain occupations, in jobs requiring the lifting or carrying of weights exceeding certain prescribed limits, during certain hours of the night, for more than a specified number of hours per day or per week, and for certain periods of time before and after childbirth. The Commission has found that such laws and regulations do not take into account the capacities, preferences, and abilities of individual females and, therefore, discriminate on the basis of sex. The Commission has concluded that such laws and regulations conflict with and are superseded by title VII of the Civil Rights Act of 1964. Accordingly, such laws will not be considered a defense to an otherwise established unlawful employment practice or as a basis for the application of the bona fide occupational qualification exception.

(2) The Commission has concluded that State laws and regulations which discriminate on the basis of sex with regard to the employment of minors are in conflict with and are superseded by title VII to the extent that such laws are more restrictive for one sex. Accordingly, restrictions on the employment of minors of one sex over and above those imposed on minors of the other sex will not be considered a defense to an otherwise established unlawful employment practice or as a basis for the application of the bona fide occupational qualification exception.

(3) A number of States require that minimum wage and premium pay for overtime be provided for female employees. An employer will be deemed to have engaged in an unlawful employment practice if:

(i) It refuses to hire or otherwise adversely affects the employment opportunities of female applicants or employees in order to avoid the payment of minimum wages or overtime pay required by State law; or

(ii) It does not provide the same benefits for male employees.

(4) As to other kinds of sex-oriented State employment laws, such as those requiring special rest and meal periods or physical facilities for women, provision of these benefits to one sex only will be a violation of title VII. An employer will be deemed to have engaged in an unlawful employment practice if:

(i) It refuses to hire or otherwise adversely affects the employment opportunities of female applicants or employees in order to avoid the provision of such benefits; or

(ii) It does not provide the same benefits for male employees. If the employer can prove that business necessity precludes providing these benefits to both men and women, then the State law is in conflict with and superseded by title VII as to this employer. In this situation, the employer shall not provide such benefits to members of either sex.

(5) Some States require that separate restrooms be provided for employees of each sex. An employer will be deemed to have engaged in an unlawful employment practice if it refuses to hire or otherwise adversely affects the employment opportunities of applicants or employees in order to avoid the provision of such restrooms for persons of that sex.

34 C.F.R. § 300.17

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Free appropriate public education. (eCFR, current as of Oct. 22, 2026)

Free appropriate public education or *FAPE* means special education and related services that—

(a) Are provided at public expense, under public supervision and direction, and without charge;

(b) Meet the standards of the SEA, including the requirements of this part;

(c) Include an appropriate preschool, elementary school, or secondary school education in the State involved; and

(d) Are provided in conformity with an individualized education program (IEP) that meets the requirements of §§ 300.320 through 300.324.

34 C.F.R. § 300.109

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Full educational opportunity goal (FEOG). (eCFR, current as of Oct. 22, 2026)

The State must have in effect policies and procedures to demonstrate that the State has established a goal of providing full educational opportunity to all children with disabilities, aged birth through 21, and a detailed timetable for accomplishing that goal.

34 C.F.R. § 300.114

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 3 (1).

LRE requirements. (eCFR, current as of Oct. 22, 2026)

(a) *General.* (1) Except as provided in § 300.324(d)(2) (regarding children with disabilities in adult prisons), the State must have in effect policies and procedures to ensure that public agencies in the State meet the LRE requirements of this section and §§ 300.115 through 300.120.

(2) Each public agency must ensure that—

(i) To the maximum extent appropriate, children with disabilities, including children in public or private institutions or other care facilities, are educated with children who are nondisabled; and

(ii) Special classes, separate schooling, or other removal of children with disabilities from the regular educational environment occurs only if the nature or severity of the disability is such that education in regular classes with the use of supplementary aids and services cannot be achieved satisfactorily.

(b) *Additional requirement—State funding mechanism*—(1) *General.* (i) A State funding mechanism must not result in placements that violate the requirements of paragraph (a) of this section; and

(ii) A State must not use a funding mechanism by which the State distributes funds on the basis of the type of setting in which a child is served that will result in the failure to provide a child with a disability FAPE according to the unique needs of the child, as described in the child's IEP.

(2) *Assurance.* If the State does not have policies and procedures to ensure compliance with paragraph (b)(1) of this section, the State must provide the Secretary an assurance that the State will revise the funding mechanism as soon as feasible to ensure that the mechanism does not result in placements that violate that paragraph.

34 C.F.R. § 300.320

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Definition of individualized education program. (eCFR, current as of Oct. 22, 2026)

(a) *General.* As used in this part, the term individualized education program or IEP means a written statement for each child with a disability that is developed, reviewed, and revised in a meeting in accordance with §§ 300.320 through 300.324, and that must include—

(1) A statement of the child's present levels of academic achievement and functional performance, including—

(i) How the child's disability affects the child's involvement and progress in the general education curriculum (i.e., the same curriculum as for nondisabled children); or

(ii) For preschool children, as appropriate, how the disability affects the child's participation in appropriate activities;

(2)(i) A statement of measurable annual goals, including academic and functional goals designed to—

(A) Meet the child's needs that result from the child's disability to enable the child to be involved in and make progress in the general education curriculum; and

(B) Meet each of the child's other educational needs that result from the child's disability;

(ii) For children with disabilities who take alternate assessments aligned to alternate academic achievement standards, a description of benchmarks or short-term objectives;

(3) A description of—

(i) How the child's progress toward meeting the annual goals described in paragraph (2) of this section will be measured; and

(ii) When periodic reports on the progress the child is making toward meeting the annual goals (such as through the use of quarterly or other periodic reports, concurrent with the issuance of report cards) will be provided;

(4) A statement of the special education and related services and supplementary aids and services, based on peer-reviewed research to the extent practicable, to be provided to the child, or on behalf of the child, and a statement of the program modifications or supports for school personnel that will be provided to enable the child—

(i) To advance appropriately toward attaining the annual goals;

(ii) To be involved in and make progress in the general education curriculum in accordance with paragraph (a)(1) of this section, and to participate in extracurricular and other nonacademic activities; and

(iii) To be educated and participate with other children with disabilities and nondisabled children in the activities described in this section;

(5) An explanation of the extent, if any, to which the child will not participate with nondisabled children in the regular class and in the activities described in paragraph (a)(4) of this section;

(6)(i) A statement of any individual appropriate accommodations that are necessary to measure the academic achievement and functional performance of the child on State and districtwide assessments consistent with section 612(a)(16) of the Act; and

(ii) If the IEP Team determines that the child must take an alternate assessment instead of a particular regular

State or districtwide assessment of student achievement, a statement of why—

(A) The child cannot participate in the regular assessment; and

(B) The particular alternate assessment selected is appropriate for the child; and

(7) The projected date for the beginning of the services and modifications described in paragraph (a)(4) of this section, and the anticipated frequency, location, and duration of those services and modifications.

(b) *Transition services.* Beginning not later than the first IEP to be in effect when the child turns 16, or younger if determined appropriate by the IEP Team, and updated annually, thereafter, the IEP must include—

(1) Appropriate measurable postsecondary goals based upon age appropriate transition assessments related to training, education, employment, and, where appropriate, independent living skills; and

(2) The transition services (including courses of study) needed to assist the child in reaching those goals.

(c) *Transfer of rights at age of majority.* Beginning not later than one year before the child reaches the age of majority under State law, the IEP must include a statement that the child has been informed of the child's rights under Part B of the Act, if any, that will transfer to the child on reaching the age of majority under § 300.520.

(d) *Construction.* Nothing in this section shall be construed to require—

(1) That additional information be included in a child's IEP beyond what is explicitly required in section 614 of the Act; or

(2) The IEP Team to include information under one component of a child's IEP that is already contained under another component of the child's IEP.

[71 FR 46753, Aug. 14, 2006, as amended at 72 FR 61307, Oct. 30, 2007]

Alaska Stat. § 18.80.230

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Unlawful practices in places of public accommodation (current text, retrieved 2026-10-28)

(a) It is unlawful for the owner, lessee, manager, agent, or employee of a public accommodation

(1) to refuse, withhold from, or deny to a person any of its services, goods, facilities, advantages, or privileges because of sex, physical or mental disability, marital status, changes in marital status, pregnancy, parenthood, race, religion, color, or national origin;

(2) to publish, circulate, issue, display, post, or mail a written or printed communication, notice, or advertisement that states or implies

(A) that any of the services, goods, facilities, advantages, or privileges of the public accommodation will be refused, withheld from, or denied to a person of a certain race, religion, sex, physical or mental disability, marital status, color, or national origin or because of pregnancy, parenthood, or a change in marital status, or

(B) that the patronage of a person belonging to a particular race, creed, sex, marital status, color, or national origin or who, because of pregnancy, parenthood, physical or mental disability, or a change in marital status, is unwelcome, not desired, or solicited.

(b) Notwithstanding (a) of this section, a physical fitness facility may limit public accommodation to only males or only females to protect the privacy interests of its users. Public accommodation may be limited under this subsection only to those rooms in the facility that are primarily used for weight loss, aerobic, and other exercises, or for resistance weight training. Public accommodation may not be limited under this subsection to rooms in the facility primarily used for other purposes, including conference rooms, dining rooms, and premises licensed under AS 04.09. This subsection does not apply to swimming pools or golf courses.

Alaska Stat. § 18.80.240

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Unlawful practices in the sale or rental of real property (current text, retrieved 2026-10-28)

It is unlawful for the owner, lessee, manager, or other person having the right to sell, lease, or rent real property

(1) to refuse to sell, lease, or rent the real property to a person because of sex, marital status, changes in marital status, pregnancy, race, religion, physical or mental disability, color, or national origin; however, nothing in this paragraph prohibits the sale, lease, or rental of classes of real property commonly known as housing for "singles" or "married couples" only;

(2) to discriminate against a person because of sex, marital status, changes in marital status, pregnancy, race, religion, physical or mental disability, color, or national origin in a term, condition, or privilege relating to the use, sale, lease, or rental of real property; however, nothing in this paragraph prohibits the sale, lease, or rental of classes of real property commonly known as housing for "singles" or "married couples" only;

(3) to make a written or oral inquiry or record of the sex, marital status, changes in marital status, race, religion, physical or mental disability, color, or national origin of a person seeking to buy, lease, or rent real property;

(4) to offer, solicit, accept, use, or retain a listing of real property with the understanding that a person may be

discriminated against in a real estate transaction or in the furnishing of facilities or sources in connection therewith because of a person's sex, marital status, changes in marital status, pregnancy, race, religion, physical or mental disability, color, national origin, or age;
(5) to represent to a person that real property is not available for inspection, sale, rental, or lease when in fact it is so available, or to refuse to allow a person to inspect real property because of the race, religion, physical or mental disability, color, national origin, age, sex, marital status, change in marital status, or pregnancy of that person or of any person associated with that person;
(6) to engage in blockbusting;
(7) to make, print, or publish, or cause to be made, printed, or published, any notice, statement, or advertisement with respect to the sale or rental of real property that indicates any preference, limitation, or discrimination based on race, color, religion, physical or mental disability, sex, or national origin, or an intention to make the preference, limitation, or discrimination.

Ala. Code § 16-33A-7

Cited by the petitioners 0 times (0 filings) and their amici 2 (2); by the respondent 0 (0) and its amici 0 (0).
Cited as the 1978 edition; the text below is the current one.

Nonsectarian Use of Funds Required (current text, retrieved 2026-10-29)
(a) In the case of a student enrolled in an institution which has a religious or denominational affiliation, the ACHE shall devise and implement rules, regulations and procedures to insure that the maximum amount of assistance available to a student at a given institution under the program does not exceed the per student operating expenditures of the institution for nonsectarian, secular educational purposes.
(b) Under no circumstances shall any funds paid pursuant to this chapter be utilized by an institution for religious, sectarian or denominational purposes, and the ACHE shall devise and implement such regulations and procedures as may be appropriate to insure that such funds are used solely for nonsectarian, secular educational purposes. Any institution receiving grant funds on behalf of and to the credit of eligible students shall segregate such funds in a special revenue account and shall identify nonsectarian expenditures of such funds in its budget. Each institution shall maintain documentation acceptable to ACHE of its expenditure of grant funds to permit verification by ACHE, the chief examiner of public accounts or the state auditor.
(c) Under no circumstances shall this chapter be construed as authorizing money raised for the support of public schools in the State of Alabama to be appropriated or used for the support of any sectarian or denominational school. All grants permitted by this chapter are strictly limited to eligible students enrolled or accepted for enrollment in an approved institution as defined in this chapter.
(Acts 1978, 2nd Ex. Sess., No. 90, p. 1778, §7.)

Ala. Code § 16-6J-5

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Requirements for Education Service Providers (current text, retrieved 2026-10-29)
(a) To be approved by the department, an education service provider must do all of the following:
(1) Submit to the department any information required by the department for implementation of the program, including its address, contact information, and a summary of each program or service it proposes to provide to participating students.
(2) Agree not to refund, rebate, or share any portion of program funds with a parent or student in any manner. Program funds may only be used for qualifying expenses.
(3) Agree to submit annual reports to the department concerning implementation of the program, including the number of students participating, services provided, and other similar information requested by the department.
(4) Agree not to discriminate based on grounds of race, color, or national origin in the provision of its services.
(5) Agree to document amounts received for all qualifying expenses in a manner prescribed by the department.
(6) Agree to comply with the Family Educational Rights and Privacy Act, 20 U.S.C. § 1232g.
(7) Agree not to discriminate against participating students in setting tuition or fees.
(b) To be approved by the department, a participating school must do all of the following, in addition to satisfying the requirements of subsection (a):
(1) Agree to comply with all applicable health and safety laws or codes.
(2) Hold a valid occupancy permit if required by the municipality where the school is located.
(3) Agree to comply with the Alabama Child Protection Act of 1999, Chapter 22A.
(4) Provide financial statements that demonstrate, to the satisfaction of the department, the school's ability to adequately provide for participating students' continued receipt of educational services in the event the school suffers a financial failure. Alternatively, the school may file with the department a surety bond payable in an amount

determined by the department to be equal to the aggregate amount of the program funds expected to be paid during the academic year from participating students enrolled at the participating school.

(5) a. Require all participating students receiving program funds to take a standardized assessment aligned to the curricula of the participating school, a nationally norm-referenced achievement assessment, or a nationally recognized aptitude assessment of the participating school's choice. Students with disabilities for whom testing is not appropriate are exempt from this requirement.

b. Provide the parents of each participating student who is tested with a copy of the results of the tests on an annual basis, beginning with the first year of testing.

c. Provide the department with school-level test results for participating students, provided that no party shall disaggregate data to a level that could identify the academic level of individual students.

(6) Require participating students to make payments of tuition and other fees periodically on a schedule to be established by the department.

(7) Inform the department of a participating student's graduation, withdrawal from the school, misuse of program funds, or other event affecting the student's eligibility for the program.

(c) Fulfillment of the agreements made pursuant to subsections (a) and (b) is a requirement of continuing approval as an education service provider or participating school. Failure to fulfill the agreements made pursuant to subsections (a) or (b) shall constitute grounds for the department, in its discretion, to suspend or disqualify the education service provider or participating school from receiving program funds.

(d) A public school that becomes an education service provider under this chapter shall be given maximum flexibility to accommodate participating students and may create a process and establish requirements for accepting, selecting, or limiting the number of allowable participating students who are not assigned to that public school.

(e) No provision of this chapter shall be construed to require any public school, school system, or school district or any nonpublic school, school system, or school district to enroll any student.

(f) The Legislature finds and declares that education service providers, including participating schools, that accept program funds shall be given the maximum freedom possible to provide for the educational needs of students, consistent with state and federal law. To that end, unless clear from the text of this chapter, no provision of this chapter shall be construed to limit the independence or autonomy of any education service provider; to act as a restriction, direction, or mandate regarding instructional content or curriculum provided by any education service provider; to require an education service provider to alter its creed, practices, admissions policies, hiring policies, codes of conduct for employees or students, tuition, or fees; to expand the regulatory authority of the state, its officers, or any school district; or to otherwise deprive or diminish the protections for nonpublic schools, including nonpublic schools with a religious affiliation, available under any source of existing law, including Section 16-1-11.1 or Section 16-1-11.2, or Executive Order No. 733 issued by the Governor on January 20, 2023.

(g) A resident school district shall provide a participating school or other education service provider that has admitted an eligible student under the program with the complete copy of the student's school records consistent with the Family Educational Rights and Privacy Act of 1974, 20 U.S.C. § 1232g.

(Act 2024-21, §5.)

Ala. Code § 24-8-4

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Unlawful Discriminatory Housing Practices (current text, retrieved 2026-10-29)

It shall be unlawful:

(1) To refuse to sell or rent after the making of a bona fide offer, to refuse to negotiate for the sale or rental of, or otherwise to make unavailable or deny a dwelling to any person because of race, color, religion, sex, familial status, or national origin;

(2) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection with it, because of race, color, religion, sex, familial status, or national origin;

(3) To make, print or publish, or cause to be made, printed, or published, any notice, statement, or advertisement with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination based on race, color, religion, sex, handicap, familial status, or national origin or an intention to make the preference, limitation, or discrimination;

(4) To represent to any person because of race, color, religion, sex, handicap, familial status, or national origin that any dwelling is not available to inspection, sale or rental when the dwelling is available;

(5) For profit, to induce or attempt to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, color, religion, sex, handicap, familial status, or national origin;

(6) To discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of:

a. That buyer or renter;

b. A person residing in or intending to reside in that dwelling after it is sold, rented, or made available; or

c. Any person associated with that buyer or renter;

(7) To discriminate against a person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection with the dwelling, because of a handicap of:

a. That person;

b. A person residing in or intending to reside in that dwelling after it is sold, rented, or made available; or

c. Any person associated with that person.

(Acts 1991, No. 91-659, p. 1248, §4.)

Ala. Code § 26-24-23

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Duties of Office (current text, retrieved 2026-10-29)

The Office of School Readiness shall do all of the following:

(1) Establish criteria and administer such programs and services as may be necessary for the operation and management of a voluntary prekindergarten program.

(2) Administer such programs and services as may be necessary for the operation and management of preschool and certain child development programs coordinating with the Department of Education for the inclusion of preschool special education.

(3) Ensure that the prekindergarten program provides a developmentally appropriate preschool program emphasizing growth in language and literacy, math concepts, science, arts, physical development, and personal and social competence.

(4) Receive and disperse any funds appropriated to the office from the Legislature for the establishment, operation, and administration of the prekindergarten program. The budget of the office shall be part of the Department of Early Childhood Education.

(5) Assist local units of administration in this state so as to assure the proliferation of services under this article.

(6) Coordinate with the regulatory division for the licensing of child care centers and with the administration of the United States child and adult care food programs at the child care centers participating in the prekindergarten program.

(7) Issue annual reports to the Governor, secretary, and Legislature concerning the administration and operation of the prekindergarten program.

(8) Provide leadership for enhancement of school readiness in this state by aggressively establishing a unified approach to the state's efforts toward enhancement of school readiness. In support of this effort, the office may develop and implement specific strategies that address the state's school readiness programs.

(9) Safeguard the effective use of federal, state, local, and private resources to achieve the highest possible level of school readiness for the state's children.

(10) Provide technical assistance to local programs.

(11) Assess gaps in services.

(12) By January 2001, adopt a system for measuring school readiness that provides objective data regarding the expectations for school readiness, and establish a method for collecting the data and guidelines for using the data. The measurement, the data collection, and the use of the data must serve the statewide school readiness goals. The criteria for determining which data to collect should be the usefulness of the data to state policymakers and local programs' administrators in administering programs and allocating state funds, and must include the tracking of school readiness system information back to individual school readiness programs to assist in determining program effectiveness.

(Act 2000-613, p. 1230, §5; Act 2015-160, §1.)

Ark. Code Ann. § 6-35-107

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

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Ark. Code Ann. § 16-123-107

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (1).

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Ark. Code Ann. § 16-123-314

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

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Ark. Code Ann. § 16-123-401

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

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Ark. Code Ann. § 21-3-302

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

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Ariz. Rev. Stat. Ann. § 15-2401

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Definitions (current text, retrieved 2026-10-29)

In this chapter, unless the context otherwise requires:

1. "Annual education plan" means an initial individualized evaluation and subsequent annual reviews that are developed for a qualified student who meets the criteria specified in paragraph 7, subdivision (a), item (i), (ii) or (iii) of this section to determine ongoing annual eligibility through the school year in which the qualified student reaches twenty-two years of age and whether the student may be eligible pursuant to section 36-2981 and should be referred for eligibility determination.

2. "Curriculum" means a course of study for content areas or grade levels, including any supplemental materials required or recommended by the curriculum, approved by the department.

3. "Department" means the department of education.

4. "Eligible postsecondary institution" means a community college as defined in section 15-1401, a university under the jurisdiction of the Arizona board of regents or an accredited private postsecondary institution.

5. "Parent" means a resident of this state who is the parent, stepparent or legal guardian of a qualified student.

6. "Qualified school" means a nongovernmental primary or secondary school or a preschool for pupils with disabilities that is located in this state or, for qualified students who reside within the boundaries of an Indian reservation in this state, that is located in an adjacent state and that is within two miles of the border of the state in which the qualified student resides, and that does not discriminate on the basis of race, color or national origin.

7. "Qualified student" means a resident of this state who:

(a) Is any of the following:

(i) Identified as having a disability under section 504 of the rehabilitation act of 1973 (29 United States Code section 794).

(ii) Identified by a school district or by an independent third party pursuant to section 15-2403, subsection J as a child with a disability as defined in section 15-731 or 15-761.

(iii) A child with a disability who is eligible to receive services from a school district under section 15-763.

(iv) Attending a school or school district that was assigned a letter grade of D or F pursuant to section 15-241 for the most recent year in which letter grades were assigned or is currently eligible to attend kindergarten and resides within the attendance boundary of a school that was assigned a letter grade of D or F pursuant to section 15-241 for the most recent year in which letter grades were assigned. A child who meets the requirements of this item and who meets the income eligibility requirements for free and reduced-price lunches under the national school lunch and child nutrition acts (42 United States Code sections 1751 through 1793) is not subject to subdivision (b) of this paragraph.

(v) A previous recipient of a scholarship issued pursuant to this section, unless the qualified student's parent has been removed from eligibility in the program for failure to comply pursuant to section 15-2403, subsection C.

(vi) A child of a parent who is a member of the armed forces of the United States and who is on active duty or was killed in the line of duty. A child who meets the requirements of this item is not subject to subdivision (b) of this paragraph.

(vii) A child who is a ward of the juvenile court and who is residing with a prospective permanent placement pursuant to section 8-862 and the case plan is adoption or permanent guardianship.

(viii) A child who was a ward of the juvenile court and who achieved permanency through adoption or permanent guardianship.

(ix) A child who is the sibling of a current or previous Arizona empowerment scholarship account recipient or of an eligible qualified student who accepts the terms of and enrolls in an Arizona empowerment scholarship account.

(x) A child who resides within the boundaries of an Indian reservation in this state as determined by the department

of education or a tribal government.

(xi) A child of a parent who is legally blind or deaf or hard of hearing as defined in section 36-1941.

(b) And, except as provided in subdivision (a), items (iv) and (vi) of this paragraph, who meets any of the following requirements:

(i) Attended a governmental primary or secondary school as a full-time student as defined in section 15-901 for at least forty-five days of the current or prior fiscal year and who transferred from a governmental primary or secondary school under a contract to participate in an Arizona empowerment scholarship account. Kindergarten students who are enrolled in Arizona online instruction must receive one hundred hours of logged instruction to be eligible pursuant to this item. First, second and third grade students who are enrolled in Arizona online instruction must receive two hundred hours of logged instruction to be eligible pursuant to this item. Fourth, fifth and sixth grade students who are enrolled in Arizona online instruction must receive two hundred fifty hours of logged instruction to be eligible pursuant to this item. Seventh and eighth grade students who are enrolled in Arizona online instruction must receive two hundred seventy-five hours of logged instruction to be eligible pursuant to this item. High school students who are enrolled in Arizona online instruction must receive two hundred fifty hours of logged instruction to be eligible pursuant to this item.

(ii) Previously participated in an Arizona empowerment scholarship account.

(iii) Received a scholarship under section 43-1505 and who continues to attend a qualified school if the student attended a governmental primary or secondary school as a full-time student as defined in section 15-901 for at least ninety days of the prior fiscal year or one full semester before attending a qualified school.

(iv) Was eligible for an Arizona scholarship for pupils with disabilities and received monies from a school tuition organization pursuant to section 43-1505 or received an Arizona scholarship for pupils with disabilities but did not receive monies from a school tuition organization pursuant to section 43-1505 and who continues to attend a qualified school if the student attended a governmental primary or secondary school as a full-time student as defined in section 15-901 for at least ninety days of the prior fiscal year or one full semester before attending a qualified school.

(v) Attended a nonpublic school for pupils with disabilities in the prior year if placement at the school was approved by the department of education and contracted for by a public school district.

(vi) Has not previously attended a governmental primary or secondary school but is currently eligible to enroll in a kindergarten program in a school district or charter school in this state or attended a program for preschool children with disabilities. For the purposes of this item, a child is eligible to enroll in a kindergarten program if the child is at least five years of age on January 1 of the current school year, is under seven years of age, has not already completed a kindergarten program and is not enrolled in grade one of a private or governmental school in the current year.

(vii) Has not previously attended a governmental primary or secondary school but is currently eligible to enroll in a program for preschool children with disabilities in this state.

8. "Treasurer" means the office of the state treasurer.

Ariz. Rev. Stat. Ann. § 43-1601

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (1).

Definitions (current text, retrieved 2026-10-29)

In this chapter, unless the context otherwise requires:

1. "Allocate" includes reserving money for an award of a multiyear educational scholarship or tuition grant for a specific student.

2. "Fiscal year" means the fiscal year of the state as prescribed in section 35-102.

3. "Qualified school" means a preschool that offers services to students with disabilities, nongovernmental primary school or secondary school that is located in this state and that does not discriminate on the basis of race, color, disability, familial status or national origin and that requires all teaching staff and personnel that have unsupervised contact with students to be fingerprinted. Qualified school does not include a charter school or programs operated by a charter school.

4. "Students with disabilities" means students who have any of the following conditions:

(a) Hearing impairment.

(b) Visual impairment.

(c) Developmental delay.

(d) Preschool severe delay.

(e) Speech/language impairment.

Cal. Code Regs. tit. 2, § 12140

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Source error: no source: the official CCR is a Westlaw-hosted OAL compilation with no bulk download

Cal. Educ. Code § 200

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

(current text, 2025 edition; retrieved 2026-10-29)

It is the policy of the State of California to afford all persons in public schools, regardless of their disability, gender, gender identity, gender expression, nationality, race or ethnicity, religion, sexual orientation, or any other characteristic that is contained in the definition of hate crimes set forth in Section 422.55 of the Penal Code, including immigration status, equal rights, and opportunities in the educational institutions of the state. The purpose of this chapter is to prohibit acts that are contrary to that policy and to provide remedies that will eliminate these discriminatory acts, including discrimination not just because of one protected trait, but also because of the combination of two or more protected bases.

Amended by Stats. 2024, Ch. 779, Sec. 3. (SB 1137) Effective January 1, 2025.

Cal. Educ. Code § 56366.1

Cited by the petitioners 0 times (0 filings) and their amici 2 (2); by the respondent 0 (0) and its amici 0 (0).

Cited as the 1993 edition; the text below is the current one.

(current text, 2025 edition; retrieved 2026-10-29)

(a) A nonpublic, nonsectarian school or agency that seeks certification shall file an application with the Superintendent on forms provided by the department, and shall include all of the following information on the application:

(1) A description of the special education and designated instruction and services provided to individuals with exceptional needs if the application is for nonpublic, nonsectarian school certification.

(2) A description of the designated instruction and services provided to individuals with exceptional needs if the application is for nonpublic, nonsectarian agency certification.

(3) A list of appropriately qualified staff, a description of the credential, license, or registration that qualifies each staff member rendering special education or designated instruction and services to do so, and copies of their credentials, licenses, or certificates of registration with the appropriate state or national organization that has established standards for the service rendered.

(4) (A) (i) Commencing with the 2020–21 school year, documentation that the nonpublic, nonsectarian school or agency will train staff who will have contact or interaction with pupils during the schoolday in the use of evidence-based practices and interventions specific to the unique behavioral needs of the nonpublic, nonsectarian school's or agency's pupil population. The training shall be provided within 30 days of employment to new staff who have any contact or interaction with pupils during the schoolday, and annually to all staff who have any contact or interaction with pupils during the schoolday.

(ii) For a nonpublic, nonsectarian school or agency that was in existence as of the January 1 immediately preceding a school year, documentation that the nonpublic, nonsectarian school's or agency's staff members who will have contact or interaction with pupils during the schoolday have received training that complies with the requirements of subparagraphs (B) and (C).

(B) The training described in this paragraph shall be selected and conducted by the nonpublic, nonsectarian school or agency and shall satisfy all of the following conditions:

(i) Be conducted by persons licensed or certified in fields related to the evidence-based practices and interventions being taught.

(ii) Be taught in a manner consistent with the development and implementation of individualized education programs.

(iii) Be consistent with the requirements of Article 5.2 (commencing with Section 49005) of Chapter 6 of Part 27, relating to pupil discipline.

(C) The content of the training described in this paragraph shall include, but is not limited to, all of the following:

(i) Positive behavioral intervention and supports, including collection, analysis, and use of data to inform, plan, and implement behavioral supports.

(ii) How to understand and address challenging behaviors, including evidence-based strategies for preventing those behaviors.

(iii) Evidence-based interventions for reducing and replacing challenging behaviors, including de-escalation techniques.

(D) (i) The contracting local educational agency shall verify the nonpublic, nonsectarian school's or agency's compliance with the requirements of this paragraph, and the nonpublic, nonsectarian school or agency shall report

the contracting local educational agency's verification to the Superintendent annually with the annual certification documents described in subdivision (h).

(ii) For a nonpublic, nonsectarian school or agency seeking initial certification, the contracting local educational agency shall verify that the plan and timeline for training provided pursuant to this paragraph are included in the master contract.

(iii) For a nonpublic, nonsectarian school or agency not in existence as of the January 1 immediately preceding a school year, the contracting local educational agency shall, 30 days following the commencement of the school year, verify that the nonpublic, nonsectarian school or agency provided the training required by this paragraph, and shall submit the verification to the Superintendent at that time.

(iv) The nonpublic, nonsectarian school or agency shall maintain written records of the training provided pursuant to this paragraph, and shall provide written verification of the training upon request.

(5) Commencing with the 2021–22 school year, documentation that the administrator of the nonpublic, nonsectarian school holds or is in the process of obtaining one of the following:

(A) An administrative credential granted by an accredited postsecondary educational institution and two years of experience with pupils with disabilities.

(B) A pupil personnel services credential that authorizes school counseling or psychology.

(C) A license as a clinical social worker issued by the Board of Behavioral Sciences.

(D) A license in psychology regulated by the Board of Psychology.

(E) A master's degree issued by an accredited postsecondary institution in education, special education, psychology, counseling, behavioral analysis, social work, behavioral science, or rehabilitation.

(F) A credential authorizing special education instruction and at least two years of experience teaching in special education before becoming an administrator.

(G) A license as a marriage and family therapist certified by the Board of Behavioral Sciences.

(H) A license as an educational psychologist issued by the Board of Behavioral Sciences.

(I) A license as a professional clinical counselor issued by the Board of Behavioral Sciences.

(6) An annual operating budget.

(7) Affidavits and assurances necessary to comply with all applicable federal, state, and local laws and regulations that include criminal record summaries required of all nonpublic, nonsectarian school or agency personnel having contact with minor children under Section 44237.

(8) Assurances of compliance with Article 5 (commencing with Section 49000) and Article 5.2 (commencing with Section 49005) of Chapter 6 of Part 27, and Section 56521.1, relating to behavioral interventions.

(9) Commencing with the 2024–25 school year, a nonpublic nonsectarian school shall include assurances that for any pupil served by the school who is a foster child as defined in subdivision (a) of Section 48853.5, the school agrees to do both of the following:

(A) Serve as the school of origin of the foster child, as applicable pursuant to subdivision (g) of Section 48853.5.

(B) Allow the foster child to continue their education in the school, as applicable pursuant to subdivisions (f) and (g) of Section 48853.5.

(b) (1) The applicant shall provide the special education local plan area in which the applicant is located with the written notification of its intent to seek certification or renewal of its certification. The local educational agency representatives shall acknowledge that they have been notified of the intent to certify or renew certification. The acknowledgment shall include a statement that representatives of the local educational agency for the area in which the applicant is located have had the opportunity to review the application at least 60 calendar days before submission of an initial application to the Superintendent, or at least 30 calendar days before submission of a renewal application to the Superintendent. The acknowledgment shall provide assurances that local educational agency representatives have had the opportunity to provide input on all required components of the application.

(2) If the local educational agency has not acknowledged an applicant's intent to be certified 60 calendar days from the date of submission for initial applications or 30 calendar days from the date of the return receipt for renewal applications, the applicant may file the application with the Superintendent.

(3) The department shall provide electronic notification of the availability of renewal application materials to certified nonpublic, nonsectarian schools and agencies at least 120 days before the date their current certification expires.

(c) If the applicant operates a facility or program on more than one site, each site shall be certified.

(d) If the applicant is part of a larger program or facility on the same site, the Superintendent shall consider the effect of the total program on the applicant. A copy of the policies and standards for the nonpublic, nonsectarian school or agency and the larger program shall be available to the Superintendent.

(e) (1) Before certification, the Superintendent shall conduct an onsite review of the facility and program for which the applicant seeks certification. The Superintendent may be assisted by representatives of the special education local plan area in which the applicant is located and a nonpublic, nonsectarian school or agency representative who does

not have a conflict of interest with the applicant. The Superintendent shall conduct an additional onsite review of the facility and program within three years of the effective date of the certification, unless the Superintendent conditionally certifies the nonpublic, nonsectarian school or agency, or unless the Superintendent receives a formal complaint against the nonpublic, nonsectarian school or agency. In the latter two cases, the Superintendent shall conduct an onsite review at least annually.

(2) In carrying out paragraph (1), the Superintendent may verify that the nonpublic, nonsectarian school or agency has received a successful criminal background check clearance and has enrolled in subsequent arrest notice service, pursuant to Section 44237, for each owner, operator, and employee of the nonpublic, nonsectarian school or agency.

(3) Commencing with the 2026–27 school year, the Superintendent shall also do all of the following before certifying a nonpublic, nonsectarian school located outside of California:

(A) Review assurances provided pursuant to paragraph (8) of subdivision (a) relating to behavioral interventions to evaluate consistency with California laws.

(B) Ensure that pupils have been provided a copy of their rights and procedural safeguards, as referenced in Section 300.504(a) of Title 34 of the Code of Federal Regulations, and information on how to contact the department's Constituent Services Office, upon admission to the nonpublic, nonsectarian school and that this information is accessible and require the telephone number for the department's Constituent Services Office to be prominently displayed at the nonpublic, nonsectarian school.

(C) Review policies, procedures, and practices of the nonpublic, nonsectarian school to determine if there is a clear and confidential process for residents to report grievances without fear of retaliation and review the process for investigating and reporting internal and external resident complaints.

(D) Examine the use of positive behavioral reinforcement systems, including if the nonpublic, nonsectarian school correctly implements behavior intervention pursuant to Chapter 5.5 (commencing with Section 56520) and manifestation determinations pursuant to Section 300.530(e) of Title 34 of the Code of Federal Regulations, and provide a copy of the nonpublic, nonsectarian school's policies on behavior intervention to pupils and parents of pupils enrolled in the nonpublic, nonsectarian school.

(E) Review protocols for identifying signs of abuse or neglect, both physical and psychological, for consistency with the mandated reporting requirements of Section 11165.7 of the Penal Code, ensure that all staff are trained to recognize these signs, and review any behavior emergency reports required pursuant to Section 56521.1 to ensure compliance with that section.

(4) Commencing with the 2020–21 school year, a local educational agency that enters into a master contract with a nonpublic, nonsectarian school shall conduct, at minimum, all of the following:

(A) An onsite visit to the nonpublic, nonsectarian school before placement of a pupil if the local educational agency does not have any pupils enrolled at the school at the time of placement.

(B) At least one onsite monitoring visit during each school year to the nonpublic, nonsectarian school at which the local educational agency has a pupil attending and with which it maintains a master contract. The monitoring visit shall include, but is not limited to, a review of services provided to the pupil through the individual service agreement between the local educational agency and the nonpublic, nonsectarian school, a review of progress the pupil is making toward the goals set forth in the pupil's individualized education program, a review of progress the pupil is making toward the goals set forth in the pupil's behavioral intervention plan, if applicable, an observation of the pupil during instruction, a walkthrough of the facility, and, for a pupil placed in a nonpublic, nonsectarian school located outside of California, an in-person interview with the pupil, in a manner consistent with the pupil's individualized education program, to evaluate the pupil's health and safety. The local educational agency shall report the findings resulting from the monitoring visit to the department, using the "Local Educational Agency Onsite Visit for Nonpublic School" form developed and published by the department on its internet website, within 60 calendar days of the onsite visit. On or before July 1, 2026, the department shall update the form to additionally require, for nonpublic, nonsectarian schools located outside of California, all of the following findings to be reported to the department:

(i) A summary of the local educational agency's interview of pupils to assess their perceptions of the nonpublic, nonsectarian school and the services provided, including whether pupils feel that they are treated with respect and dignity and whether nonpublic, nonsectarian school staff maintain appropriate professional boundaries. The local educational agency may also use the tool used by the Superintendent to conduct interviews or develop its own interview tool and shall respect any limitations caused by the pupil's disability and conduct the interview in a manner consistent with the pupil's individualized education program.

(ii) Evidence of positive behavioral support, for which the local educational agency shall examine the use of positive behavioral reinforcement systems, including if the nonpublic, nonsectarian school correctly implements behavior intervention pursuant to Chapter 5.5 (commencing with Section 56520) and manifestation determinations pursuant to Section 300.530(e) of Title 34 of the Code of Federal Regulations.

(iii) Evidence of screening for abuse and neglect, for which the local educational agency shall review the protocols for identifying signs of abuse or neglect, both physical and psychological, and ensure that all staff are trained to recognize these signs through a review of any behavior emergency reports required pursuant to Section 56521.1.

(C) A quarterly check-in with a pupil attending the nonpublic, nonsectarian school located outside of California through an unmonitored telephone call, in a manner consistent with the pupil's individualized education program.

(f) (1) The Superintendent shall make a determination on an application within 120 days of receipt of the application and shall certify, conditionally certify, or deny certification to the applicant. If the Superintendent fails to take one of these actions within 120 days, the applicant is automatically granted conditional certification for a period terminating on August 31 of the current school year. If certification is denied, the Superintendent shall provide reasons for the denial. The Superintendent shall not certify the nonpublic, nonsectarian school or agency for a period longer than one year.

(2) Commencing with the 2026–27 school year, for a nonpublic, nonsectarian school located outside of California, the Superintendent shall make available, upon request from a local educational agency or a special education local plan area, the following information, if available:

(A) The certification status of the nonpublic, nonsectarian school or agency, including whether certification was granted, denied, revoked, suspended, or granted with conditions.

(B) A summary of the findings supporting the Superintendent's determination, including any corrective actions or areas of noncompliance identified.

(C) Access to relevant documentation used to support the determination, including compliance review reports and any findings resulting from onsite monitoring visits.

(3) A local educational agency shall disclose the information received in paragraph (2), if available, to the parent or guardian at the time the individualized education program team considers placement of the pupil in a nonpublic, nonsectarian school or agency.

(4) The local educational agency shall document in the individualized education program that the information described in paragraph (2), if available, was provided to the parent or guardian and that the parent or guardian was given an opportunity to review and discuss the information as part of the placement decision.

(5) This subdivision does not authorize the disclosure of any personally identifiable information and shall be consistent with applicable state and federal pupil privacy laws.

(g) Certification becomes effective on the date the nonpublic, nonsectarian school or agency meets all the application requirements and is approved by the Superintendent. Certification may be retroactive if the nonpublic, nonsectarian school or agency met all the requirements of this section on the date the retroactive certification is effective. Certification expires on December 31 of the terminating year.

(h) The Superintendent annually shall review the certification of each nonpublic, nonsectarian school or agency. For this purpose, a certified nonpublic, nonsectarian school or agency annually shall update its application between August 1 and October 31, unless the state board grants a waiver pursuant to Section 56101. The Superintendent may conduct an onsite review as part of the annual review.

(i) (1) The Superintendent shall conduct an investigation of a nonpublic, nonsectarian school or agency onsite at any time without prior notice if there is substantial reason to believe that there is an immediate danger to the health, safety, or welfare of a child. The Superintendent shall document the concern and submit it to the nonpublic, nonsectarian school or agency at the time of the onsite investigation. The Superintendent shall require a written response to any noncompliance or deficiency found.

(2) A nonpublic, nonsectarian school or agency shall notify the department and the local educational agency with which it has a master contract of any pupil-involved incident at the school or agency in which law enforcement was contacted. This notification shall be provided in writing, no later than one business day after the incident occurred.

(3) With respect to a nonpublic, nonsectarian school or agency, the Superintendent shall conduct an investigation, which may include an unannounced onsite visit, if the Superintendent receives evidence of a significant deficiency in the quality of educational services provided, a violation of Section 56366.9, or noncompliance with the policies expressed by subdivision (b) of Section 1501 of the Health and Safety Code by the nonpublic, nonsectarian school or agency. The Superintendent shall document the complaint and the results of the investigation and shall provide copies of the documentation to the complainant, the nonpublic, nonsectarian school or agency, and the contracting local educational agency.

(4) Violations or noncompliance documented pursuant to paragraph (1) or (3) shall be reflected in the status of the certification of the nonpublic, nonsectarian school or agency, at the discretion of the Superintendent, pending an approved plan of correction by the nonpublic, nonsectarian school or agency. The department shall retain for a period of 10 years all violations pertaining to certification of the nonpublic, nonsectarian school or agency.

(5) In carrying out this subdivision, the Superintendent may verify that the nonpublic, nonsectarian school or agency received a successful criminal background check clearance and has enrolled in subsequent arrest notice service,

pursuant to Section 44237, for each owner, operator, and employee of the nonpublic, nonsectarian school or agency.

(j) The Superintendent shall monitor the facilities, the educational environment, and the quality of the educational program, including the teaching staff, the credentials authorizing service, the standards-based core curriculum being employed, and the standards-focused instructional materials used, of an existing certified nonpublic, nonsectarian school or agency on a three-year cycle, as follows:

(1) The nonpublic, nonsectarian school or agency shall complete a self-review in year one.

(2) The Superintendent shall conduct an onsite review of the nonpublic, nonsectarian school or agency in year two.

(3) The Superintendent shall conduct a followup visit to the nonpublic, nonsectarian school or agency in year three.

(k) (1) During an onsite review of a nonpublic, nonsectarian school located outside of California, the Superintendent shall interview all pupils with individualized education programs to discuss progress and address any concerns respecting any limitations due to the pupils' disabilities at the following times:

(A) If the nonpublic, nonsectarian school is the subject of an investigation pursuant to subdivision (i).

(B) If there is a change in certification status or during the year-three monitoring followup visit specified in paragraph (3) of subdivision (j).

(C) If the nonpublic, nonsectarian school has pupil-level findings from year two.

(2) On or before July 1, 2026, the Superintendent shall develop an interview tool to be used for interviews with pupils to assess the pupils' perceptions of the nonpublic, nonsectarian school and the services provided, discuss progress, and address any concerns. The interview tool shall require interviews to include, at minimum, the pupil's perceptions of being treated with respect and dignity and of whether the staff maintain appropriate professional boundaries. This tool shall be made available to local educational agencies upon request to conduct interviews.

(l) (1) Notwithstanding any other law, the Superintendent shall not certify a nonpublic, nonsectarian school or agency that proposes to initiate or expand services to pupils currently educated in the immediate prior fiscal year in a juvenile court program, community school pursuant to Section 56150, or other nonspecial education program, including independent study or adult school, or both, unless the nonpublic, nonsectarian school or agency notifies the county superintendent of schools and the special education local plan area in which the proposed new or expanded nonpublic, nonsectarian school or agency is located of its intent to seek certification.

(2) The notification shall occur no later than the December 1 before the new fiscal year in which the proposed or expanding school or agency intends to initiate services. The notice shall include the following:

(A) The specific date upon which the proposed nonpublic, nonsectarian school or agency is to be established.

(B) The location of the proposed program or facility.

(C) The number of pupils proposed for services, the number of pupils currently served in the juvenile court, community school, or other nonspecial education program, the current school services including special education and related services provided for these pupils, and the specific program of special education and related services to be provided under the proposed program.

(D) The reason for the proposed change in services.

(E) The number of staff who will provide special education and designated instruction and services and hold a current valid California credential or license in the service rendered.

(3) In addition to the requirements in subdivisions (a) to (f), inclusive, the Superintendent shall require and consider the following in determining whether to certify a nonpublic, nonsectarian school or agency as described in this subdivision:

(A) A complete statement of the information required as part of the notice under paragraph (1).

(B) Documentation of the steps taken in preparation for the conversion to a nonpublic, nonsectarian school or agency, including information related to changes in the population to be served and the services to be provided pursuant to each pupil's individualized education program.

(4) Notwithstanding any other law, the certification becomes effective no earlier than July 1 if the nonpublic, nonsectarian school or agency provided the notification required pursuant to paragraph (1).

(m) (1) Notwithstanding any other law, the Superintendent shall not certify or renew the certification of a nonpublic, nonsectarian school that also operates a licensed children's institution, unless all of the following conditions are met:

(A) The entity operating the nonpublic, nonsectarian school maintains separate financial records for each entity that it operates, with each nonpublic, nonsectarian school identified separately from any licensed children's institution that it operates.

(B) The entity submits an annual budget that identifies the projected costs and revenues for each entity and demonstrates that the rates to be charged are reasonable to support the operation of the entity.

(C) The entity submits an entitywide annual audit that identifies its costs and revenues, by entity, in accordance with generally accepted accounting and auditing principles. The audit shall clearly document the amount of moneys received and expended on the educational program provided by the nonpublic, nonsectarian school.

(D) The relationship between various entities operated by the same entity are documented, defining the responsi-

bilities of the entities. The documentation shall clearly identify the services to be provided as part of each program, for example, the residential or medical program, the mental health program, or the educational program. The entity shall not seek funding from a public agency for a service, either separately or as part of a package of services, if the service is funded by another public agency, either separately or as part of a package of services.

(2) For purposes of this section, "licensed children's institution" has the same meaning as it is defined by Section 56155.5.

(n) (1) The nonpublic, nonsectarian school or agency shall be charged a reasonable fee for certification. The Superintendent may adjust the fee annually commensurate with the statewide average percentage inflation adjustment computed for local control funding formula allocations pursuant to Section 42238.02, as implemented by Section 42238.03, of unified school districts with greater than 1,500 units of average daily attendance if the percentage increase is reflected in the school district local control funding formula allocation pursuant to Section 42238.02, as implemented by Section 42238.03, for inflation purposes. For purposes of this section, the base fee shall be the following:

(1)1–5 pupils $300 (2)6–10 pupils 500 (3)11–24 pupils 1,000 (4)25–75 pupils 1,500 (5)76 pupils and over 2,000

(2) The nonpublic, nonsectarian school or agency shall pay this fee when it applies for certification and when it updates its application for annual renewal by the Superintendent. The Superintendent shall use these fees to conduct onsite reviews, which may include field experts. A fee shall not be refunded if the application is withdrawn or is denied by the Superintendent.

(o) (1) Notwithstanding any other law, only those nonpublic, nonsectarian schools or agencies that provide special education and designated instruction and services using administrators and staff who hold a certificate, permit, or other document equivalent to that which staff in a public school are required to hold in the service rendered are eligible to receive certification. Only those nonpublic, nonsectarian schools or agencies located outside of California that employ staff who hold a current valid credential or license to render special education and related services as required by that state shall be eligible to be certified. Commencing with the 2021–22 school year, this paragraph shall not apply to administrators.

(2) Commencing with the 2021–22 school year, notwithstanding any other law, only those nonpublic, nonsectarian schools or agencies that provide special education and related services using administrators who hold or are in the process of obtaining a credential, degree, or license in accordance with paragraph (5) of subdivision (a) are eligible to be certified.

(3) The state board shall develop regulations to implement this subdivision.

(p) In addition to meeting the standards adopted by the state board, a nonpublic, nonsectarian school or agency shall provide written assurances that it meets all applicable standards relating to fire, health, sanitation, and building safety.

(q) (1) Notwithstanding subdivision (n) of Section 44237, and for purposes of enabling the Superintendent to carry out the duties pursuant to this section, a nonpublic, nonsectarian school or agency shall, upon demand, make available to the Superintendent evidence of a successful criminal background check clearance and enrollment in subsequent arrest notice service, conducted pursuant to Section 44237, for each owner, operator, and employee of the nonpublic, nonsectarian school or agency.

(2) The nonpublic, nonsectarian school or agency shall retain the evidence and store it in a locked file separate from other files.

Amended by Stats. 2025, Ch. 579, Sec. 4. (SB 373) Effective January 1, 2026.

Cal. Evid. Code § 950

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

(current text, 2025 edition; retrieved 2026-10-28)

As used in this article, "lawyer" means a person authorized, or reasonably believed by the client to be authorized, to practice law in any state or nation.

Enacted by Stats. 1965, Ch. 299.

Cal. Gov't Code § 8588.9

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

(current text, 2025 edition; retrieved 2026-10-28)

(a) The California State Nonprofit Security Grant Program is hereby established under the administration of the director to improve the physical security of nonprofit organizations, including schools, clinics, community centers, churches, synagogues, mosques, temples, and similar locations that are at a high risk for violent attacks or hate crimes due to ideology, beliefs, or mission.

(b) The California State Nonprofit Security Grant Program shall do all of the following:

(1) Provide grants to nonprofit organizations for the purpose of hardening soft targets that are nonprofit organizations and at a high risk for violent attacks and hate crimes, as described in subdivision (a).

(A) Grant money may be distributed to an applicant for all of the following enhancements to that applicant's security:

(i) Security guards.

(ii) Reinforced doors and gates.

(iii) High-intensity lighting and alarms.

(iv) Security training.

(v) Any other security enhancement consistent with the purpose of the California State Nonprofit Security Grant Program.

(B) Grant money may be distributed for all of the purposes described in this subparagraph to an applicant that provides support to another nonprofit organization or a cluster of other nonprofit organizations at a high risk for violent attacks and hate crimes, as described in subdivision (a).

(i) Vulnerability assessments.

(ii) Security trainings.

(iii) Mass notification alert systems.

(iv) Monitoring and response systems.

(v) Lifesaving emergency equipment.

(2) Allow award recipients to use grant funds for the purposes of paying staff or third-party contractors or consultants to assist with the management and administration of the grant funds awarded. Award recipients shall use no more than 5 percent of the grant funds awarded for the purpose stated in this paragraph.

(3) Limit construction or renovation activities done in support of the target hardening activities related to security, such as installing additional emergency exits, to one hundred thousand dollars ($100,000) of the grant funds awarded.

(c) An applicant shall not be granted an amount greater than five hundred thousand dollars ($500,000).

(d) The director shall not take an applicant's prior history with or receipt of grant funding to improve its physical security into account during the evaluation of the entity's application.

(e) When evaluating applications, the director shall consider whether an applicant is more likely to be a target of hate-motivated violence.

(f) The operation of the California State Nonprofit Security Grant Program is contingent upon an appropriation in the annual Budget Act for purposes of this section.

(g) The director shall adopt, as necessary, application procedures, forms, administrative guidelines, and other requirements for purposes of implementing and administering the California State Nonprofit Security Grant Program. All application procedures, forms, administrative guidelines, and other requirements developed by the director pursuant to this subdivision shall be exempt from the rulemaking provisions of the Administrative Procedure Act (Chapter 3.5 (commencing with Section 11340) of Part 1 of Division 3).

(h) The Office of Emergency Services shall provide ongoing technical assistance for nonprofit organizations that require a vulnerability assessment for a state application to the California State Nonprofit Security Grant Program or a threat assessment for a federal application to the Nonprofit Security Grant Program of the United States Department of Homeland Security. This assistance shall include, but not be limited to, the following:

(1) A resource page, which includes a toll-free telephone number, on the Office of Emergency Service's internet website that describes available resources for vulnerability assessments at no cost to the applicant.

(2) Continuous outreach to stakeholders on available resources for vulnerability assessments outside the established grant cycle.

Amended by Stats. 2023, Ch. 566, Sec. 1. (AB 1185) Effective January 1, 2024.

Cal. Gov't Code § 11135

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

(current text, 2025 edition; retrieved 2026-10-28)

(a) No person in the State of California shall, on the basis of sex, race, color, religion, ancestry, national origin, ethnic group identification, age, mental disability, physical disability, medical condition, genetic information, marital status, or sexual orientation, be unlawfully denied full and equal access to the benefits of, or be unlawfully subjected to discrimination under, any program or activity that is conducted, operated, or administered by the state or by any state agency, is funded directly by the state, or receives any financial assistance from the state. Notwithstanding Section 11000, this section applies to the California State University.

(b) With respect to discrimination on the basis of disability, programs and activities subject to subdivision (a) shall meet the protections and prohibitions contained in Section 202 of the federal Americans with Disabilities Act of 1990 (42 U.S.C. Sec. 12132), and the federal rules and regulations adopted in implementation thereof, except that if the laws of this state prescribe stronger protections and prohibitions, the programs and activities subject to subdivision (a) shall be subject to the stronger protections and prohibitions.

(c) The protected bases referenced in this section have the same meanings as those terms are defined in Section 12926.
(d) The protected bases used in this section include a perception that a person has any of those characteristics or that the person is associated with a person who has, or is perceived to have, any of those characteristics.
Amended by Stats. 2016, Ch. 870, Sec. 4. (SB 1442) Effective January 1, 2017.

Cal. Gov't Code § 12940

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

(current text, 2025 edition; retrieved 2026-10-28)

It is an unlawful employment practice, unless based upon a bona fide occupational qualification, or, except where based upon applicable security regulations established by the United States or the State of California:
(a) For an employer, because of the race, religious creed, color, national origin, ancestry, physical disability, mental disability, reproductive health decisionmaking, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, or veteran or military status of any person, to refuse to hire or employ the person or to refuse to select the person for a training program leading to employment, or to bar or to discharge the person from employment or from a training program leading to employment, or to discriminate against the person in compensation or in terms, conditions, or privileges of employment.

(1) This part does not prohibit an employer from refusing to hire or discharging an employee with a physical or mental disability, or subject an employer to any legal liability resulting from the refusal to employ or the discharge of an employee with a physical or mental disability, if the employee, because of a physical or mental disability, is unable to perform the employee's essential duties even with reasonable accommodations, or cannot perform those duties in a manner that would not endanger the employee's health or safety or the health or safety of others even with reasonable accommodations.

(2) This part does not prohibit an employer from refusing to hire or discharging an employee who, because of the employee's medical condition, is unable to perform the employee's essential duties even with reasonable accommodations, or cannot perform those duties in a manner that would not endanger the employee's health or safety or the health or safety of others even with reasonable accommodations. Nothing in this part shall subject an employer to any legal liability resulting from the refusal to employ or the discharge of an employee who, because of the employee's medical condition, is unable to perform the employee's essential duties, or cannot perform those duties in a manner that would not endanger the employee's health or safety or the health or safety of others even with reasonable accommodations.

(3) Nothing in this part relating to discrimination on account of marital status shall do either of the following:

(A) Affect the right of an employer to reasonably regulate, for reasons of supervision, safety, security, or morale, the working of spouses in the same department, division, or facility, consistent with the rules and regulations adopted by the council.

(B) Prohibit bona fide health plans from providing additional or greater benefits to employees with dependents than to those employees without or with fewer dependents.

(4) Nothing in this part relating to discrimination on account of sex shall affect the right of an employer to use veteran status as a factor in employee selection or to give special consideration to Vietnam-era veterans.

(5) (A) This part does not prohibit an employer from refusing to employ an individual because of the individual's age if the law compels or provides for that refusal. Promotions within the existing staff, hiring or promotion on the basis of experience and training, rehiring on the basis of seniority and prior service with the employer, or hiring under an established recruiting program from high schools, colleges, universities, or trade schools do not, in and of themselves, constitute unlawful employment practices.

(B) The provisions of this part relating to discrimination on the basis of age do not prohibit an employer from providing health benefits or health care reimbursement plans to retired persons that are altered, reduced, or eliminated when the person becomes eligible for Medicare health benefits. This subparagraph applies to all retiree health benefit plans and contractual provisions or practices concerning retiree health benefits and health care reimbursement plans in effect on or after January 1, 2011.

(b) For a labor organization, because of the race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, reproductive health decisionmaking, or veteran or military status of any person, to exclude, expel, or restrict from its membership the person, or to provide only second-class or segregated membership or to discriminate against any person because of the race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, reproductive health decisionmaking, or veteran or military status of the person in the election of officers of the labor organization or in the selection of the labor organization's staff or to discriminate in any way against any of its members or against any employer or against any person employed by an employer.
(c) For any person to discriminate against any person in the selection, termination, training, or other terms or treatment

of that person in any apprenticeship training program, any other training program leading to employment, an unpaid internship, or another limited duration program to provide unpaid work experience for that person because of the race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, reproductive health decisionmaking, or veteran or military status of the person discriminated against.

(d) For any employer or employment agency to print or circulate or cause to be printed or circulated any publication, or to make any nonjob-related inquiry of an employee or applicant, either verbal or through use of an application form, that expresses, directly or indirectly, any limitation, specification, or discrimination as to race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, reproductive health decisionmaking, or veteran or military status, or any intent to make any such limitation, specification, or discrimination. This part does not prohibit an employer or employment agency from inquiring into the age of an applicant, or from specifying age limitations, if the law compels or provides for that action.

(e) (1) Except as provided in paragraph (2) or (3), for any employer or employment agency to require any medical or psychological examination of an applicant, to make any medical or psychological inquiry of an applicant, to make any inquiry whether an applicant has a mental disability or physical disability or medical condition, or to make any inquiry regarding the nature or severity of a physical disability, mental disability, or medical condition.

(2) Notwithstanding paragraph (1), an employer or employment agency may inquire into the ability of an applicant to perform job-related functions and may respond to an applicant's request for reasonable accommodation.

(3) Notwithstanding paragraph (1), an employer or employment agency may require a medical or psychological examination or make a medical or psychological inquiry of a job applicant after an employment offer has been made but prior to the commencement of employment duties, provided that the examination or inquiry is job related and consistent with business necessity and that all entering employees in the same job classification are subject to the same examination or inquiry.

(f) (1) Except as provided in paragraph (2), for any employer or employment agency to require any medical or psychological examination of an employee, to make any medical or psychological inquiry of an employee, to make any inquiry whether an employee has a mental disability, physical disability, or medical condition, or to make any inquiry regarding the nature or severity of a physical disability, mental disability, or medical condition.

(2) Notwithstanding paragraph (1), an employer or employment agency may require any examinations or inquiries that it can show to be job related and consistent with business necessity. An employer or employment agency may conduct voluntary medical examinations, including voluntary medical histories, which are part of an employee health program available to employees at that worksite.

(g) For any employer, labor organization, or employment agency to harass, discharge, expel, or otherwise discriminate against any person because the person has made a report pursuant to Section 11161.8 of the Penal Code that prohibits retaliation against hospital employees who report suspected patient abuse by health facilities or community care facilities.

(h) For any employer, labor organization, employment agency, or person to discharge, expel, or otherwise discriminate against any person because the person has opposed any practices forbidden under this part or because the person has filed a complaint, testified, or assisted in any proceeding under this part.

(i) For any person to aid, abet, incite, compel, or coerce the doing of any of the acts forbidden under this part, or to attempt to do so.

(j) (1) For an employer, labor organization, employment agency, apprenticeship training program or any training program leading to employment, or any other person, because of race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, reproductive health decisionmaking, or veteran or military status, to harass an employee, an applicant, an unpaid intern or volunteer, or a person providing services pursuant to a contract. Harassment of an employee, an applicant, an unpaid intern or volunteer, or a person providing services pursuant to a contract by an employee, other than an agent or supervisor, shall be unlawful if the entity, or its agents or supervisors, knows or should have known of this conduct and fails to take immediate and appropriate corrective action. An employer may also be responsible for the acts of nonemployees, with respect to harassment of employees, applicants, unpaid interns or volunteers, or persons providing services pursuant to a contract in the workplace, if the employer, or its agents or supervisors, knows or should have known of the conduct and fails to take immediate and appropriate corrective action. In reviewing cases involving the acts of nonemployees, the extent of the employer's control and any other legal responsibility that the employer may have with respect to the conduct of those nonemployees shall be considered. An entity shall take all reasonable steps to prevent harassment from occurring. Loss of tangible job benefits shall not be necessary in order to establish harassment.

(2) The provisions of this subdivision are declaratory of existing law, except for the new duties imposed on employers with regard to harassment.

(3) An employee of an entity subject to this subdivision is personally liable for any harassment prohibited by this section that is perpetrated by the employee, regardless of whether the employer or covered entity knows or should have known of the conduct and fails to take immediate and appropriate corrective action.

(4) (A) For purposes of this subdivision only, "employer" means any person regularly employing one or more persons or regularly receiving the services of one or more persons providing services pursuant to a contract, or any person acting as an agent of an employer, directly or indirectly, the state, or any political or civil subdivision of the state, and cities. The definition of "employer" in subdivision (d) of Section 12926 applies to all provisions of this section other than this subdivision.

(B) Notwithstanding subparagraph (A), for purposes of this subdivision, "employer" does not include a religious association or corporation not organized for private profit, except as provided in Section 12926.2.

(C) For purposes of this subdivision, "harassment" because of sex includes sexual harassment, gender harassment, and harassment based on pregnancy, childbirth, or related medical conditions. Sexually harassing conduct need not be motivated by sexual desire.

(5) For purposes of this subdivision, "a person providing services pursuant to a contract" means a person who meets all of the following criteria:

(A) The person has the right to control the performance of the contract for services and discretion as to the manner of performance.

(B) The person is customarily engaged in an independently established business.

(C) The person has control over the time and place the work is performed, supplies the tools and instruments used in the work, and performs work that requires a particular skill not ordinarily used in the course of the employer's work.

(k) For an employer, labor organization, employment agency, apprenticeship training program, or any training program leading to employment, to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring.

(l) (1) For an employer or other entity covered by this part to refuse to hire or employ a person or to refuse to select a person for a training program leading to employment or to bar or to discharge a person from employment or from a training program leading to employment, or to discriminate against a person in compensation or in terms, conditions, or privileges of employment because of a conflict between the person's religious belief or observance and any employment requirement, unless the employer or other entity covered by this part demonstrates that it has explored any available reasonable alternative means of accommodating the religious belief or observance, including the possibilities of excusing the person from those duties that conflict with the person's religious belief or observance or permitting those duties to be performed at another time or by another person, but is unable to reasonably accommodate the religious belief or observance without undue hardship, as defined in subdivision (u) of Section 12926, on the conduct of the business of the employer or other entity covered by this part. Religious belief or observance, as used in this section, includes, but is not limited to, observance of a Sabbath or other religious holy day or days, reasonable time necessary for travel prior and subsequent to a religious observance, and religious dress practice and religious grooming practice as described in subdivision (q) of Section 12926. This subdivision shall also apply to an apprenticeship training program, an unpaid internship, and any other program to provide unpaid experience for a person in the workplace or industry.

(2) An accommodation of an individual's religious dress practice or religious grooming practice is not reasonable if the accommodation requires segregation of the individual from other employees or the public.

(3) An accommodation is not required under this subdivision if it would result in a violation of this part or any other law prohibiting discrimination or protecting civil rights, including subdivision (b) of Section 51 of the Civil Code and Section 11135 of this code.

(4) For an employer or other entity covered by this part to, in addition to the employee protections provided pursuant to subdivision (h), retaliate or otherwise discriminate against a person for requesting accommodation under this subdivision, regardless of whether the request was granted.

(m) (1) For an employer or other entity covered by this part to fail to make reasonable accommodation for the known physical or mental disability of an applicant or employee. Nothing in this subdivision or in paragraph (1) or (2) of subdivision (a) shall be construed to require an accommodation that is demonstrated by the employer or other covered entity to produce undue hardship, as defined in subdivision (u) of Section 12926, to its operation.

(2) For an employer or other entity covered by this part to, in addition to the employee protections provided pursuant to subdivision (h), retaliate or otherwise discriminate against a person for requesting accommodation under this subdivision, regardless of whether the request was granted.

(n) For an employer or other entity covered by this part to fail to engage in a timely, good faith, interactive process with the employee or applicant to determine effective reasonable accommodations, if any, in response to a request for reasonable accommodation by an employee or applicant with a known physical or mental disability or known medical condition.

(o) For an employer or other entity covered by this part, to subject, directly or indirectly, any employee, applicant, or other person to a test for the presence of a genetic characteristic.
(p) For an employer to require, as a condition of employment, continued employment, or a benefit of employment, the disclosure of information relating to an applicant's or employee's reproductive health decisionmaking.
(q) (1) For an employer to include a statement in a job advertisement, posting, application, or other material that an applicant must have a driver's license unless both of the following conditions are satisfied:
(A) The employer reasonably expects driving to be one of the job functions for the position.
(B) The employer reasonably believes that satisfying the job function described in paragraph (1) using an alternative form of transportation would not be comparable in travel time or cost to the employer.
(2) For purposes of this subdivision, "alternative form of transportation" includes, but is not limited to, all of the following:
(A) Using a ride hailing service.
(B) Using a taxi.
(C) Carpooling.
(D) Bicycling.
(E) Walking.
(r) Nothing in this section shall be interpreted as preventing the ability of employers to identify members of the military or veterans for purposes of awarding a veteran's preference as permitted by law.
Amended by Stats. 2024, Ch. 877, Sec. 1. (SB 1100) Effective January 1, 2025.

Cal. Gov't Code § 12955

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (2).

(current text, 2025 edition; retrieved 2026-10-28)
It shall be unlawful:
(a) For the owner of any housing accommodation to discriminate against or harass any person because of the race, color, religion, sex, gender, gender identity, gender expression, sexual orientation, marital status, national origin, ancestry, familial status, source of income, disability, veteran or military status, or genetic information of that person.
(b) For the owner of any housing accommodation to make or to cause to be made any written or oral inquiry concerning the race, color, religion, sex, gender, gender identity, gender expression, sexual orientation, marital status, national origin, ancestry, familial status, disability, veteran or military status, or genetic information of any person seeking to purchase, rent, or lease any housing accommodation.
(c) For any person to make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a housing accommodation that indicates any preference, limitation, or discrimination based on race, color, religion, sex, gender, gender identity, gender expression, sexual orientation, marital status, national origin, ancestry, familial status, source of income, disability, veteran or military status, or genetic information or an intention to make that preference, limitation, or discrimination.
(d) For any person subject to the provisions of Section 51 of the Civil Code, as that section applies to housing accommodations, to discriminate against any person on the basis of sex, gender, gender identity, gender expression, sexual orientation, color, race, religion, ancestry, national origin, familial status, marital status, disability, genetic information, source of income, veteran or military status, or on any other basis prohibited by that section. Selection preferences based on age, imposed in connection with a federally approved housing program, do not constitute age discrimination in housing.
(e) For any person, bank, mortgage company, or other financial institution that provides financial assistance for the purchase, refinance, organization, or construction of any housing accommodation to discriminate against any person or group of persons because of the race, color, religion, sex, gender, gender identity, gender expression, sexual orientation, marital status, national origin, ancestry, familial status, source of income, disability, veteran or military status, or genetic information in the terms, conditions, or privileges relating to the obtaining or use of that financial assistance.
(f) For any owner of housing accommodations to harass, evict, or otherwise discriminate against any person in the sale or rental of housing accommodations when the owner's dominant purpose is retaliation against a person who has opposed practices unlawful under this section, informed law enforcement agencies of practices believed unlawful under this section, has testified or assisted in any proceeding under this part, or has aided or encouraged a person to exercise or enjoy the rights secured by this part. Nothing herein is intended to cause or permit the delay of an unlawful detainer action.
(g) For any person to aid, abet, incite, compel, or coerce the doing of any of the acts or practices declared unlawful in this section, or to attempt to do so.
(h) For any person, for profit, to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, color, religion, sex, gender, gender

identity, gender expression, sexual orientation, marital status, ancestry, disability, genetic information, source of income, familial status, veteran or military status, or national origin.

(i) (1) For any person or other organization or entity whose business involves real estate-related transactions to discriminate against any person in making available a transaction, or in the terms and conditions of a transaction, because of race, color, religion, sex, gender, gender identity, gender expression, sexual orientation, marital status, national origin, ancestry, source of income, familial status, disability, veteran or military status, or genetic information.

(2) For any person or other entity whose business includes performing appraisals, as defined in subdivision (b) of Section 11302 of the Business and Professions Code, of residential real property to discriminate against any person in making available those services, or in the performance of those services, because of race, color, religion, sex, gender, gender identity, gender expression, sexual orientation, familial status, source of income, disability, genetic information, veteran or military status, or national origin.

(j) To deny a person access to, or membership or participation in, a multiple listing service, real estate brokerage organization, or other service because of race, color, religion, sex, gender, gender identity, gender expression, sexual orientation, marital status, ancestry, disability, genetic information, familial status, source of income, veteran or military status, or national origin.

(k) To otherwise make unavailable or deny a dwelling based on discrimination because of race, color, religion, sex, gender, gender identity, gender expression, sexual orientation, familial status, source of income, disability, genetic information, veteran or military status, or national origin.

(l) To discriminate through public or private land use practices, decisions, and authorizations because of race, color, religion, sex, gender, gender identity, gender expression, sexual orientation, familial status, marital status, disability, genetic information, national origin, source of income, veteran or military status, or ancestry. Discrimination includes, but is not limited to, restrictive covenants, zoning laws, denials of use permits, and other actions authorized under the Planning and Zoning Law (Title 7 (commencing with Section 65000)), that make housing opportunities unavailable. Discrimination under this subdivision also includes the existence of a restrictive covenant, regardless of whether accompanied by a statement that the restrictive covenant is repealed or void.

(m) As used in this section, "race, color, religion, sex, gender, gender identity, gender expression, sexual orientation, marital status, national origin, ancestry, familial status, source of income, disability, veteran or military status, or genetic information," includes a perception that the person has any of those characteristics or that the person is associated with a person who has, or is perceived to have, any of those characteristics.

(n) To use a financial or income standard in the rental of housing that fails to account for the aggregate income of persons residing together or proposing to reside together on the same basis as the aggregate income of married persons residing together or proposing to reside together.

(o) (1) In instances in which there is a government rent subsidy, to do either of the following:

(A) Use a financial or income standard in assessing eligibility for the rental of housing that is not based on the portion of the rent to be paid by the tenant.

(B) (i) Use a person's credit history as part of the application process for a rental accommodation without offering the applicant the option, at the applicant's discretion, of providing lawful, verifiable alternative evidence of the applicant's reasonable ability to pay the portion of the rent to be paid by the tenant, including, but not limited to, government benefit payments, pay records, and bank statements.

(ii) If the applicant elects to provide lawful, verifiable alternative evidence of the applicant's reasonable ability to pay pursuant to clause (i), the housing provider shall do both of the following:

(I) Provide the applicant reasonable time to respond with that alternative evidence.

(II) Reasonably consider that alternative evidence in lieu of the person's credit history in determining whether to offer the rental accommodation to the applicant.

(2) This subdivision does not limit the ability of the owner of a housing accommodation to request information or documentation to verify employment, to request landlord references, or to verify the identity of a person.

(p) (1) For the purposes of this section, "source of income" means lawful, verifiable income paid directly to a tenant, or to a representative of a tenant, or paid to a housing owner or landlord on behalf of a tenant, including federal, state, or local public assistance, and federal, state, or local housing subsidies, including, but not limited to, federal housing assistance vouchers issued under Section 8 of the United States Housing Act of 1937 (42 U.S.C. Sec. 1437f). "Source of income" includes a federal Department of Housing and Urban Development Veterans Affairs Supportive Housing voucher. For the purposes of this section, a housing owner or landlord is not considered a representative of a tenant unless the source of income is a federal Department of Housing and Urban Development Veterans Affairs Supportive Housing voucher.

(2) For the purposes of this section, it shall not constitute discrimination based on source of income to make a written or oral inquiry concerning the level or source of income.

Amended by Stats. 2023, Ch. 776, Sec. 1. (SB 267) Effective January 1, 2024.

Cal. Health & Safety Code § 1367.25

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

(current text, 2025 edition; retrieved 2026-10-28)

(a) A group health care service plan contract, except for a specialized health care service plan contract, that is issued, amended, renewed, or delivered on or after January 1, 2000, to December 31, 2015, inclusive, and an individual health care service plan contract that is amended, renewed, or delivered on or after January 1, 2000, to December 31, 2015, inclusive, except for a specialized health care service plan contract, shall provide coverage for the following, under general terms and conditions applicable to all benefits:

(1) A health care service plan contract that provides coverage for outpatient prescription drug benefits shall include coverage for a variety of federal Food and Drug Administration (FDA)-approved prescription contraceptive methods designated by the plan. In the event the patient's participating provider, acting within the provider's scope of practice, determines that none of the methods designated by the plan is medically appropriate for the patient's medical or personal history, the plan shall also provide coverage for another FDA-approved, medically appropriate prescription contraceptive method prescribed by the patient's provider.

(2) Benefits for an enrollee under this subdivision shall be the same for an enrollee's covered spouse and covered nonspouse dependents.

(b) (1) A health care service plan contract, except for a specialized health care service plan contract, that is issued, amended, renewed, or delivered on or after January 1, 2016, shall provide coverage for all of the following services and contraceptive methods for all subscribers and enrollees:

(A) (i) Except as provided in clause (ii) and in subparagraphs (B) and (C) of paragraph (2), all FDA-approved contraceptive drugs, devices, and other products, including all FDA-approved contraceptive drugs, devices, and products available over the counter, as prescribed by the enrollee's provider.

(ii) For any health care service plan contract described in paragraph (1) that is issued, amended, renewed, or delivered on or after January 1, 2024, both of the following conditions shall apply:

(I) A prescription shall not be required to trigger coverage of over-the-counter FDA-approved contraceptive drugs, devices, and products.

(II) Point-of-sale coverage for over-the-counter FDA-approved contraceptive drugs, devices, and products shall be provided at in-network pharmacies without cost sharing or medical management restrictions.

(B) Voluntary tubal ligation and other similar sterilization procedures.

(C) Clinical services related to the provision or use of contraception, including consultations, examinations, procedures, device insertion, ultrasound, anesthesia, patient education, referrals, and counseling.

(D) Followup services related to the drugs, devices, products, and procedures covered under this subdivision, including, but not limited to, management of side effects, counseling for continued adherence, and device removal.

(2) (A) Except for a grandfathered health plan, a health care service plan subject to this subdivision shall not impose a deductible, coinsurance, copayment, or any other cost-sharing requirement on the coverage provided pursuant to this subdivision. Cost sharing shall not be imposed on any Medi-Cal beneficiary.

(B) If the FDA has approved one or more therapeutic equivalents, as that term is defined by the FDA, of a contraceptive drug, device, or product, a health care service plan is not required to cover all of those therapeutically equivalent versions in accordance with this subdivision, as long as at least one is covered without cost sharing in accordance with this subdivision. If there is no therapeutic equivalent generic substitute available in the market, a health care service plan shall provide coverage without cost sharing for the original, brand name contraceptive.

(C) If a covered therapeutic equivalent of a drug, device, or product is deemed medically inadvisable by the enrollee's provider, a health care service plan shall defer to the determination and judgment of the provider and provide coverage for the alternative prescribed contraceptive drug, device, product, or service without imposing any cost-sharing requirements. Medical inadvisability may include considerations such as severity of side effects, differences in permanence or reversibility of contraceptives, and ability to adhere to the appropriate use of the drug or item, as determined by the provider. The department may promulgate regulations establishing an easily accessible, transparent, and sufficiently expedient process that is not unduly burdensome, including timeframes, for an enrollee, an enrollee's designee, or an enrollee's provider to request coverage of an alternative prescribed contraceptive. A request for coverage under this subparagraph that is submitted by an enrollee, an enrollee's designee, or provider shall be approved by the health care service plan in compliance with the time limits in Section 1367.241 and, as applicable, with the plan's Medi-Cal managed care contract.

(3) Except as otherwise authorized under this section, a health care service plan shall not infringe upon an enrollee's choice of contraceptive drug, device, or product and shall not impose any restrictions or delays on the coverage required under this subdivision, including prior authorization, step therapy, or other utilization control techniques.

(4) Benefits for an enrollee under this subdivision shall be the same for an enrollee's covered spouse and covered nonspouse dependents.

(5) For purposes of this subdivision, "health care service plan" shall include Medi-Cal managed care plans that contract with the State Department of Health Care Services pursuant to Chapter 7 (commencing with Section 14000) and Chapter 8 (commencing with Section 14200) of Part 3 of Division 9 of the Welfare and Institutions Code, to the extent that the benefits described in this subdivision are made the financial responsibility of the Medi-Cal managed care plan under its comprehensive risk contract with the State Department of Health Care Services. If some or all of the benefits described in this subdivision are not the financial responsibility of the Medi-Cal managed care plan, as determined by the State Department of Health Care Services, those benefits shall be available to Medi-Cal beneficiaries on a fee-for-service basis pursuant to subdivision (n) of Section 14132 of the Welfare and Institutions Code.

(c) (1) Notwithstanding any other provision of this section, a religious employer may request a health care service plan contract without coverage for FDA-approved contraceptive methods that are contrary to the religious employer's religious tenets. If so requested, a health care service plan contract shall be provided without coverage for contraceptive methods. The exclusion from coverage under this provision shall not apply to a contraceptive drug, device, procedure, or other product that is used for purposes other than contraception.

(2) For purposes of this section, a "religious employer" is an entity for which each of the following is true:

(A) The inculcation of religious values is the purpose of the entity.

(B) The entity primarily employs persons who share the religious tenets of the entity.

(C) The entity serves primarily persons who share the religious tenets of the entity.

(D) The entity is a nonprofit organization as described in Section 6033(a)(3)(A)(i) or (iii) of the Internal Revenue Code of 1986, as amended.

(d) (1) Every health care service plan contract that is issued, amended, renewed, or delivered on or after January 1, 2017, shall cover up to a 12-month supply of FDA-approved, self-administered hormonal contraceptives when dispensed or furnished at one time for an enrollee by a provider, pharmacist, or at a location licensed or otherwise authorized to dispense drugs or supplies.

(2) This subdivision shall not be construed to require a health care service plan contract to cover contraceptives provided by an out-of-network provider, pharmacy, or location licensed or otherwise authorized to dispense drugs or supplies, except as may be otherwise authorized by state or federal law or by the plan's policies governing out-of-network coverage.

(3) This subdivision shall not be construed to require a provider to prescribe, furnish, or dispense 12 months of self-administered hormonal contraceptives at one time.

(4) A health care service plan subject to this subdivision, shall not impose utilization controls or other forms of medical management limiting the supply of FDA-approved, self-administered hormonal contraceptives that may be dispensed or furnished by a provider or pharmacist, or at a location licensed or otherwise authorized to dispense drugs or supplies to an amount that is less than a 12-month supply, and shall not require an enrollee to make any formal request for such coverage other than a pharmacy claim.

(e) This section shall not be construed to exclude coverage for contraceptive supplies as prescribed by a provider, acting within the provider's scope of practice, for reasons other than contraceptive purposes, such as decreasing the risk of ovarian cancer or eliminating symptoms of menopause, or for contraception that is necessary to preserve the life or health of an enrollee.

(f) This section shall not be construed to deny or restrict in any way the department's authority to ensure plan compliance with this chapter when a plan provides coverage for contraceptive drugs, devices, and products.

(g) This section shall not be construed to require an individual or group health care service plan contract to cover experimental or investigational treatments.

(h) For purposes of this section, the following definitions apply:

(1) "Grandfathered health plan" has the meaning set forth in Section 1251 of PPACA.

(2) "PPACA" means the federal Patient Protection and Affordable Care Act (Public Law 111-148), as amended by the federal Health Care and Education Reconciliation Act of 2010 (Public Law 111-152), and any rules, regulations, or guidance issued thereunder.

(3) With respect to health care service plan contracts issued, amended, or renewed on or after January 1, 2016, "provider" means an individual who is certified or licensed to furnish family planning services within their scope of practice pursuant to Division 2 (commencing with Section 500) of the Business and Professions Code, including a pharmacist authorized pursuant to Section 4052 or 4052.3 of the Business and Professions Code, or an initiative act referred to in that division, or Division 2.5 (commencing with Section 1797) of this code.

(4) For purposes of this section, "over-the-counter FDA-approved contraceptive drugs, devices, and products" and "over-the-counter birth control methods" are limited to those included as essential health benefits pursuant to Section 1367.005.

Amended by Stats. 2022, Ch. 630, Sec. 13. (SB 523) Effective January 1, 2023.

Cal. Ins. Code § 10123.196

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

(current text, 2025 edition; retrieved 2026-10-29)

(a) An individual or group policy of disability insurance issued, amended, renewed, or delivered on or after January 1, 2000, through December 31, 2015, inclusive, that provides coverage for hospital, medical, or surgical expenses, shall provide coverage for the following, under the same terms and conditions as applicable to all benefits:

(1) A disability insurance policy that provides coverage for outpatient prescription drug benefits shall include coverage for a variety of federal Food and Drug Administration (FDA)-approved prescription contraceptive methods, as designated by the insurer. If an insured's health care provider determines that none of the methods designated by the disability insurer is medically appropriate for the insured's medical or personal history, the insurer shall, in the alternative, provide coverage for some other FDA-approved prescription contraceptive method prescribed by the patient's health care provider.

(2) Coverage with respect to an insured under this subdivision shall be identical for an insured's covered spouse and covered nonspouse dependents.

(b) (1) A group or individual policy of disability insurance, except for a specialized health insurance policy, that is issued, amended, renewed, or delivered on or after January 1, 2016, shall provide coverage for all of the following services and contraceptive methods for all policyholders and insureds:

(A) (i) Except as provided in clause (ii) and in subparagraphs (B) and (C) of paragraph (2), all FDA-approved, contraceptive drugs, devices, and other products, including all FDA-approved, contraceptive drugs, devices, and products available over the counter, as prescribed by the insured's provider.

(ii) For any policy described in paragraph (1) that is issued, amended, renewed, or delivered on or after January 1, 2024, both of the following conditions shall apply:

(I) A prescription shall not be required to trigger coverage of over-the-counter FDA-approved contraceptive drugs, devices, and products.

(II) Point-of-sale coverage for over-the-counter FDA-approved contraceptive drugs, devices, and products shall be provided at in-network pharmacies without cost sharing or medical management restrictions.

(B) Voluntary tubal ligation and other similar sterilization procedures.

(C) Clinical services related to the provision or use of contraception, including consultations, examinations, procedures, device insertion, ultrasound, anesthesia, patient education, referrals, and counseling.

(D) Followup services related to the drugs, devices, products, and procedures covered under this subdivision, including, but not limited to, management of side effects, counseling for continued adherence, and device removal.

(2) (A) Except for a grandfathered health plan, a disability insurer subject to this subdivision shall not impose a deductible, coinsurance, copayment, or any other cost-sharing requirement on the coverage provided pursuant to this subdivision.

(B) If the FDA has approved one or more therapeutic equivalents, as that term is defined by the FDA, of a contraceptive drug, device, or product, a disability insurer is not required to cover all of those therapeutically equivalent versions in accordance with this subdivision, as long as at least one is covered without cost sharing in accordance with this subdivision. If there is no therapeutically equivalent generic substitute available in the market, an insurer shall provide coverage without cost sharing for the original, brand name contraceptive.

(C) If a covered therapeutic equivalent of a drug, device, or product is deemed medically inadvisable by the insured's provider, a disability insurer shall defer to the determination and judgment of the provider and provide coverage for the alternative prescribed contraceptive drug, device, product, or service without imposing any cost-sharing requirements. Medical inadvisability may include considerations such as severity of side effects, differences in permanence or reversibility of contraceptives, and ability to adhere to the appropriate use of the drug or item, as determined by the provider. The department may promulgate regulations establishing an easily accessible, transparent, and sufficiently expedient process that is not unduly burdensome, including timeframes, for an insured, an insured's designee, or an insured's provider to request coverage of an alternative prescribed contraceptive. A request for coverage under this subparagraph that is submitted by an insured, an insured's designee, or a provider shall be approved by the disability insurer in compliance with the time limits in Section 10123.191.

(3) Except as otherwise authorized under this section, an insurer shall not infringe upon an insured's choice of contraceptive drug, device, or product and shall not impose any restrictions or delays on the coverage required under this subdivision, including prior authorization, step therapy, or other utilization control techniques.

(4) Coverage with respect to an insured under this subdivision shall be identical for an insured's covered spouse and covered nonspouse dependents.

(c) This section shall not be construed to deny or restrict in any way any existing right or benefit provided under law or by contract.

(d) This section shall not be construed to require an individual or group disability insurance policy to cover experimental

or investigational treatments.

(e) (1) Notwithstanding any other provision of this section, a religious employer may request a disability insurance policy without coverage for contraceptive methods that are contrary to the religious employer's religious tenets. If so requested, a disability insurance policy shall be provided without coverage for contraceptive methods. The exclusion from coverage under this provision shall not apply to a contraceptive drug, device, procedure, or other product that is used for purposes other than contraception.

(2) For purposes of this section, a "religious employer" is an entity for which each of the following is true:

(A) The inculcation of religious values is the purpose of the entity.

(B) The entity primarily employs persons who share the religious tenets of the entity.

(C) The entity serves primarily persons who share the religious tenets of the entity.

(D) The entity is a nonprofit organization pursuant to Section 6033(a)(3)(A)(i) or (iii) of the Internal Revenue Code of 1986, as amended.

(f) (1) A group or individual policy of disability insurance, except for a specialized health insurance policy, that is issued, amended, renewed, or delivered on or after January 1, 2017, shall cover up to a 12-month supply of FDA-approved, self-administered hormonal contraceptives when dispensed or furnished at one time for an insured by a provider, pharmacist, or at a location licensed or otherwise authorized to dispense drugs or supplies.

(2) This subdivision shall not be construed to require a policy to cover contraceptives provided by an out-of-network provider, pharmacy, or location licensed or otherwise authorized to dispense drugs or supplies, except as may be otherwise authorized by state or federal law or by the insurer's policies governing out-of-network coverage.

(3) This subdivision shall not be construed to require a provider to prescribe, furnish, or dispense 12 months of self-administered hormonal contraceptives at one time.

(4) An insurer subject to this subdivision shall not impose utilization controls or other forms of medical management limiting the supply of FDA-approved, self-administered hormonal contraceptives that may be dispensed or furnished by a provider or pharmacist, or at a location licensed or otherwise authorized to dispense drugs or supplies to an amount that is less than a 12-month supply, and shall not require an insured to make any formal request for such coverage other than a pharmacy claim.

(g) This section shall not be construed to exclude coverage for contraceptive supplies as prescribed by a provider, acting within the provider's scope of practice, for reasons other than contraceptive purposes, such as decreasing the risk of ovarian cancer or eliminating symptoms of menopause, or for contraception that is necessary to preserve the life or health of an insured.

(h) This section only applies to disability insurance policies or contracts that are defined as health benefit plans pursuant to subdivision (a) of Section 10198.6, except that for accident only, specified disease, or hospital indemnity coverage, coverage for benefits under this section applies to the extent that the benefits are covered under the general terms and conditions that apply to all other benefits under the policy or contract. This section shall not be construed as imposing a new benefit mandate on accident only, specified disease, or hospital indemnity insurance.

(i) For purposes of this section, the following definitions apply:

(1) "Grandfathered health plan" has the meaning set forth in Section 1251 of PPACA.

(2) "PPACA" means the federal Patient Protection and Affordable Care Act (Public Law 111-148), as amended by the federal Health Care and Education Reconciliation Act of 2010 (Public Law 111-152), and any rules, regulations, or guidance issued thereunder.

(3) With respect to policies of disability insurance issued, amended, or renewed on or after January 1, 2016, "health care provider" means an individual who is certified or licensed to furnish family planning services within their scope of practice pursuant to Division 2 (commencing with Section 500) of the Business and Professions Code, including a pharmacist authorized pursuant to Section 4052 or 4052.3 of the Business and Professions Code, or an initiative act referred to in that division, or Division 2.5 (commencing with Section 1797) of the Health and Safety Code.

(4) For purposes of this section, "over-the-counter FDA-approved contraceptive drugs, devices, and products" and "over-the-counter birth control methods" are limited to those included as essential health benefits pursuant to Section 10112.27.

Amended by Stats. 2022, Ch. 630, Sec. 17. (SB 523) Effective January 1, 2023.

Cal. Welf. & Inst. Code § 14184.102

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

(current text, 2025 edition; retrieved 2026-10-29)

(a) Consistent with federal law, the department shall seek federal approval for, and implement, the CalAIM initiative, including, but not limited to, all of the following components:

(1) Continuation of the Medi-Cal Managed Care program, described in part in Sections 14184.200 to 14184.208, inclusive, and, elsewhere in this chapter and Chapter 8 (commencing with Section 14200), and which includes any

comprehensive risk contract between the department and an individual, organization, or entity to provide covered full-scope health care services to enrolled Medi-Cal beneficiaries pursuant to any provision of this chapter or Chapter 8 (commencing with Section 14200).

(2) Continuation of the Global Payment Program, described in Section 14184.40, as amended by the act that added this section, and Section 14184.300.

(3) Continuation of the Medi-Cal Specialty Mental Health Services Program, as described in part in Section 14184.400.

(4) Continuation of the Drug Medi-Cal organized delivery system program, as described in part in Section 14184.401.

(5) Behavioral Health Medical Necessity Changes, Payment Reform, Administrative Simplification, and Behavioral Health Quality Improvement Program, as described in Sections 14184.402, 14184.403, 14184.404, and 14184.405.

(6) The State Plan Dental Improvement Program, as described in Section 14184.500.

(7) Enhancing County Oversight and Monitoring, as described in Section 14184.600.

(8) Providing Access and Transforming Health (PATH) Supports, as described in Section 14184.700.

(9) Targeted Pre-Release Medi-Cal Benefits for Qualified Inmates, as described in Section 14184.800.

(10) Employment Supports and BridgeCare, as described in Section 14184.900.

(b) The department shall report to the Legislature any conflicts between this article and the CalAIM Terms and Conditions, including identification of the specific conflicts and recommendations for conforming language.

(c) The department, as appropriate and to the extent practicable, shall consult with interested stakeholders with regard to implementation of applicable components of CalAIM under subdivision (a) in which they will participate, including, but not limited to, the issuance of departmental guidance pursuant to subdivision (d). Interested stakeholders may include, but need not be limited to, designated public hospitals, district and municipal public hospitals, other local governmental agencies, consumer representatives, and Medi-Cal managed care plans.

(d) Notwithstanding Chapter 3.5 (commencing with Section 11340) of Part 1 of Division 3 of Title 2 of the Government Code, the department may implement, interpret, or make specific this article or the CalAIM Terms and Conditions, in whole or in part, by means of all-county letters, plan letters, provider bulletins, information notices, or other similar instructions, without taking any further regulatory action. The department shall make use of appropriate processes to ensure that affected stakeholders are timely informed of, and have access to, applicable guidance issued pursuant to this authority, and that this guidance remains publicly available until all payments related to the applicable CalAIM component are finalized.

(e) For purposes of implementing this article or the CalAIM Terms and Conditions, the department may enter into exclusive or nonexclusive contracts, or amend existing contracts, on a bid or negotiated basis, and may implement changes to existing information technology systems. Notwithstanding any other law, contracts entered into or amended, or changes to existing information technology systems, pursuant to this subdivision shall be exempt from Chapter 6 (commencing with Section 14825) of Part 5.5 of Division 3 of Title 2 of the Government Code, Section 19130 of the Government Code, and Part 2 (commencing with Section 10100) of Division 2 of the Public Contract Code, and shall be exempt from the review or approval of any division of the Department of General Services.

(f) The department shall seek any federal approvals it deems necessary to implement CalAIM under this article and other provisions of law amended by the act that added this subdivision. This shall include, but need not be limited to, approval of any amendment, addition, or technical correction to the CalAIM Terms and Conditions, as the department deems necessary. This article shall be implemented only to the extent that any necessary federal approvals are obtained and federal financial participation is available and is not otherwise jeopardized.

(g) Consistent with subdivision (b), the director shall report to the Legislature on any recommended amendments to any provision, process, or methodology specified in this article, Article 5.4 (commencing with Section 14180), Article 5.5 (commencing with Section 14184), or other sections of law amended by the act that added this subdivision, to the extent necessary to comply with federal law or the CalAIM Terms and Conditions, to obtain or maintain federal approval, or to ensure federal financial participation is available and not otherwise jeopardized, if the amendment is consistent with the goals set forth in this article and its individual components, and does not significantly alter the relative level of support for participating entities. If the director, after consulting with those entities participating in the applicable CalAIM component and that would be affected by that amendment, determines that the potential amendment would be consistent with the goals set forth in this article and would not significantly alter the relative level of support for affected participating entities, the amendment shall be submitted to the Legislature for its consideration.

(h) During the course of the CalAIM term, the department may develop and implement successor payment methodologies or programs to continue to support entities participating in one or more components of CalAIM following the expiration of the CalAIM term and that further the goals set forth in this article. The department shall consult with the entities participating in the payment methodologies or program components under CalAIM, affected stakeholders, and the Legislature in the development of any successor payment methodologies or program components pursuant to this subdivision.

(i) The department may seek to extend the payment methodologies or programs described in this article, or in the

CalAIM Terms and Conditions, including modification thereto, through the CalAIM term or to subsequent time periods by way of amendment or extension of the relevant CalAIM Terms and Conditions, amendment to the Medi-Cal State Plan, or any combination thereof, consistent with the applicable federal requirements. This subdivision shall only be implemented after consultation with the entities participating in, or affected by, those methodologies or programs, and only to the extent that any necessary federal approvals are obtained and federal financial participation is available and is not otherwise jeopardized.

(j) Notwithstanding any other state or local law, including, but not limited to, Section 5328 of this code, and Sections 11812 and 11845.5 of the Health and Safety Code, the sharing of health, social services, housing, and criminal justice information, records, and other data with and among the department, other state departments, including the State Department of Public Health and the State Department of Social Services, Medi-Cal managed care plans, Medi-Cal behavioral health delivery systems, counties, health care providers, social services organizations, care coordination and case management teams, and other authorized provider or plan entities, and contractors of all of those entities, shall be permitted to the extent necessary to implement applicable CalAIM components described in this article and the CalAIM Terms and Conditions, and to the extent consistent with federal law. The department shall issue guidance identifying permissible data-sharing arrangements to implement CalAIM.

(k) (1) Notwithstanding any other law, and to the extent authorized by the CalAIM Terms and Conditions, the department may claim federal financial participation for expenditures associated with the designated state health programs identified in the CalAIM Terms and Conditions for use solely by the department as specified in this subdivision.

(2) Any federal financial participation claimed pursuant to paragraph (1) shall be used to offset applicable General Fund expenditures. These amounts are hereby appropriated to the department and shall be available for transfer to the General Fund for this purpose.

(3) An amount of General Fund moneys equal to the federal financial participation that may be claimed pursuant to paragraph (1) is hereby appropriated to the Health Care Deposit Fund for use by the department for purposes of implementing this article.

(4) (A) Notwithstanding any other law, the department shall maintain reimbursement rates in the Medi-Cal program for primary care, obstetric care, and behavioral health services, and shall increase reimbursement rates for those service codes, as necessary to meet federally imposed minimum requirements specified in the CalAIM Terms and Conditions for dates of service on or after January 1, 2024, to the extent required by the federal Centers for Medicare and Medicaid Services as a condition of claiming federal financial participation for designated state health programs as described in this subdivision.

(B) To the extent required by the CalAIM Terms and Conditions, subparagraph (A) shall apply to claims for the identified codes paid by the department in fee-for-service and to claims paid by a Medi-Cal managed care plan.

Amended by Stats. 2026, Ch. 27, Sec. 89. (SB 164) Effective June 29, 2026.

Colo. Const. art. IX

Cited by the petitioners 0 times (0 filings) and their amici 3 (2); by the respondent 0 (0) and its amici 0 (0).

Colo. Const. art. IX (current text, 2026 edition; retrieved 2026-10-25)

§ 1 *Supervision of schools - board of education.*
§ 2 *Establishment and maintenance of public schools.*
§ 3 *School fund inviolate.*
§ 4 *County treasurer to collect and disburse.*
§ 5 *Of what school fund consists.*
§ 6 *County superintendent of schools.*
§ 7 *Aid to private schools, churches, sectarian purpose, forbidden.*
§ 8 *Religious test and race discrimination forbidden - sectarian tenets.*
§ 9 *State board of land commissioners.*
§ 10 *Selection and management of public trust lands.*
§ 11 *Compulsory education.*
§ 12 *Regents of university.*
§ 13 *President of university.*
§ 14 *Control of university. (Repealed).*
§ 15 *School districts - board of education.*
§ 16 *Textbooks in public schools.*
§ 17 *Education - Funding.*

Colo. Rev. Stat. § 24-33.5-1810

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

School security disbursement program - created - rules - definitions - repeal (current text, 2026 edition; retrieved 2026-10-29)

(1) As used in this section, unless the context otherwise requires:

(a) "Disbursement program" means the school security disbursement program created in subsection (2) of this section.

(b) "Eligible entity" means a local education provider or an eligible nonprofit organization.

(c) "Eligible nonprofit organization" means a nonprofit organization that is exempt from taxation under section 501 (c)(3) of the federal "Internal Revenue Code of 1986", as amended, that applies to work with specific local education providers or first responders, and that:

(I) Has experience providing training for school safety incident response;

(II) Has experience working with law enforcement agencies and other first responders;

(III) Has experience working with school districts, school personnel, and students on issues related to school safety incident response; and

(IV) Identifies in its application local education providers or first responders that will participate in school safety incident response training or programs.

(d) "Local education provider" means a school district, a charter school that is authorized pursuant to part 1 of article 30.5 of title 22, an institute charter school that is authorized pursuant to part 5 of article 30.5 of title 22, or a board of cooperative services as defined in section 22-5-103.

(2) (a) There is created in the department the school security disbursement program to provide disbursements to eligible entities to use for the purposes described in subsection (3) of this section to improve security within public schools.

(b) Subject to available appropriations, the department shall disburse money to applicants as provided in subsection (5) of this section from money credited to the school security disbursement cash fund, created in section 24-33.5-1811. It is the intent of the general assembly that the department distribute the money credited to the school security disbursement cash fund as quickly as practicable based on the receipt of qualifying applications.

(3) An eligible entity that receives a disbursement from the disbursement program may use the disbursed money only for the following purposes:

(a) Capital construction that improves the security of a public school facility or public school vehicle, including but not limited to any structure or installed hardware, device, or equipment that protects a public school facility or public school vehicle and the students, educators, and other individuals who attend, work in, or visit a public school facility or are transported in a public school vehicle from threats of physical harm including but not limited to any structure or installed hardware, device, or equipment that:

(I) Prevents the entry of unauthorized individuals into a public school facility or a protected space within a public school facility or onto a public school vehicle; or

(II) Can be used to expedite communication when a threat is present;

(b) Training in student threat assessment for all school building staff who have contact with students, which must include best practices for conducting threat assessments, such as instruction on how to prevent bias when conducting a threat assessment;

(c) In collaboration with local law enforcement agencies, providing the training for peace officers on interactions with students at school;

(d) School emergency response training for all school building staff;

(e) Programs to help students become more resilient in meeting the daily challenges they face without resorting to violence against themselves or others, including addressing the fundamental causes of violence and aggression and helping students become responsible members of their schools, neighborhoods, communities, and families;

(f) Developing and providing training programs, curriculums, and seminars related to school safety incident response;

(g) Developing best practices and protocols related to school safety incident response;

(h) Implementing a school resource officer program; and

(i) To implement a co-responder program.

(4) An eligible entity, including any combination of eligible entities that wish to apply together as a single, regional applicant, may apply for a disbursement from the disbursement program by submitting an application to the department that includes the following information:

(a) The purpose or purposes described in subsection (3) of this section for which the applicant is requesting the disbursement;

(b) The amount of disbursed money requested based on an itemized estimate of the expected cost of the purpose or purposes for which the applicant is requesting the disbursement and taking into account any matching money, if applicable, pursuant to subsection (5) of this section;

(c) Evidence of the availability of and commitment of the applicant to use financial resources to match the amount of

the disbursement;

(d) The applicant's commitment to provide information to the department as required for the annual report described in subsection (6) of this section;

(e) If the eligible entity is a charter school that is authorized pursuant to part 1 of article 30.5 of title 22, located within a school district facility, and participating in the school district's safety and security services, information demonstrating that the charter school has collaborated with the school district in preparing and submitting the application; and

(f) Any additional information, as specified by rule of the executive director, that is necessary for the department to evaluate the likely effectiveness of the applicant's use of the disbursed money in improving security in public school facilities or vehicles.

(5) The department shall review each application received pursuant to subsection (4) of this section. Subject to available appropriations, the department shall disburse money to the applicant if the department determines that the application meets the requirements specified in subsection (4) of this section and the purpose or purposes for which the applicant intends to use the disbursed money are likely to improve security in public school facilities or vehicles and are not likely to exacerbate identified student disciplinary disparities. The department shall give priority to applicants that commit to providing financial resources to match the amount of the disbursement. The department shall determine the disbursement amount taking into account the amount identified in the application.

(6) (a) On or before August 1, 2023, and on or before August 1 each year thereafter, each eligible entity that received a disbursement in the preceding school year shall submit a report to the department specifying the amount received; the source and amount of matching money provided, if applicable; and the purpose or purposes for which the eligible entity used the disbursed money, including an itemized accounting of how the money was expended.

(b) Beginning with the annual presentation in 2024 provided by the department to the committees of reference pursuant to section 2-7-203, the department shall include in the annual presentation a summary of the reports received pursuant to subsection (6)(a) of this section. Notwithstanding section 24-1-136 (11)(a)(I), beginning in January 2024, and every January thereafter, the department shall submit a summary of the reports received pursuant to subsection (6)(a) of this section to the education committees of the senate and the house of representatives, or any successor committees.

(7) The executive director shall promulgate rules pursuant to the "State Administrative Procedure Act", article 4 of this title 24, to establish the time frames for submitting disbursement applications and awarding disbursements and to specify any additional information that must be included in disbursement applications as described in subsection (4)(f) of this section.

(8) This section is repealed, effective July 1, 2032.

Source: L. 2018: Entire section added, (SB 18-269), ch. 408, p. 2395, § 1, effective June 6. L. 2019: (6)(b) amended, (SB 19-252), ch. 254, p. 2452, § 3, effective August 2. L. 2022: Entire section RC&RE, (HB 22-1120), ch. 188, p. 1256, § 1, effective May 19. L. 2023: (3)(f) amended and (3)(h) and (3)(i) added, (SB 23-241), ch. 120, p. 446, § 6, effective April 27.

Colo. Rev. Stat. § 24-33.5-2104

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

School access for emergency response grant program - created - rules (current text, 2026 edition; retrieved 2026-10-29)

(1) There is hereby created in the department in the office of school safety created in section 24-33.5-2702 the school access for emergency response grant program to provide grants to schools and public safety communications system owners to provide funding for needed interoperable communication hardware, software, equipment maintenance, and training to allow for seamless communications between new or existing school communications systems and first responder communications systems.

(2) Grant recipients may use the money received through the grant program for the following purposes:

(a) To deliver training programs to teach district-based security personnel and appropriate school personnel basic procedures for effective communications with first responders in an emergency;

(b) To implement an interoperable technology solution to provide or to upgrade the following:

(I) A system or technology that can be activated and deactivated by the public safety 911 answering point, the network administrator, and the school over both the radio system and other communications networks;

(II) Radio and other technology bridge ability that is nonradio vendor specific for connecting independent school networks across the school district and public safety networks in the region; and

(III) An interoperability solution that operates over radio networks and other communications networks;

(c) To maintain or improve a school's existing interoperable communication hardware or software or to provide interoperable communication hardware and software to a school that does not yet have it; and

(d) For any necessary radio system capacity expansions where school loading has been determined to have a significant impact on public safety system loading.

(3) The office of school safety created in section 24-33.5-2702 shall administer the grant program and, subject to available appropriations, shall award grants as provided in this part 21. Subject to available appropriations, grants must be paid out of the fund created in section 24-33.5-2107.

(4) The director or the director's designee, in consultation with the grant selection committee created in subsection (5) of this section, shall implement the grant program in accordance with this part 21. Pursuant to article 4 of this title 24, the director or the director's designee shall promulgate such rules as are required in this part 21 and such additional rules as may be necessary to implement the grant program. At a minimum, the rules must specify the time frames for applying for grants, the form of the grant program application, and the time frames for distributing grant money.

(5) There is hereby created the grant selection committee to work with the director or the director's designee to determine whether a grant applicant satisfies the criteria to receive a grant. The committee shall be composed of seven members appointed as specified in this subsection (5). The members of the committee shall serve without compensation; except that committee members shall not suffer any loss of salary while participating in the activities of the committee. Members of the committee shall meet as often as deemed necessary by the director or the director's designee to accomplish the work of the committee. Members of the committee shall be appointed on or before June 1, 2018, as follows:

(a) The chief information officer shall appoint one employee from the office;

(b) The speaker of the house of representatives shall appoint one person who represents urban or suburban school districts with interoperability experience in accordance with the school response framework;

(c) The president of the senate shall appoint one person who represents rural school districts with interoperability experience in accordance with the school response framework;

(d) The minority leader of the house of representatives shall appoint one person who represents the chiefs of police with interoperability experience in accordance with the school response framework;

(e) The minority leader of the senate shall appoint one person who represents county sheriffs with interoperability experience in accordance with the school response framework; and

(f) The director of the department of public safety shall appoint two employees from the department of public safety.

Source: L. 2018: Entire part added, (SB 18-158), ch. 214, p. 1362, § 1, effective May 16. L. 2023: (1) and (3) amended, (SB 23-241), ch. 120, p. 446, § 8, effective April 27.

Colo. Rev. Stat. § 24-34-402

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Cited as the 2025 edition; the text below is the current one.

Discriminatory or unfair employment practices - affirmative defense - definition (current text, 2026 edition; retrieved 2026-10-29)

(1) It is a discriminatory or an unfair employment practice:

(a) (I) For an employer to refuse to hire, to discharge, to promote or demote, to harass during the course of employment, or to discriminate in matters of compensation, terms, conditions, or privileges of employment against any individual otherwise qualified because of disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, marital status, religion, age, national origin, or ancestry.

(II) With regard to a disability, it is not a discriminatory or an unfair employment practice for an employer to refuse to hire, to discharge, or to promote or demote an individual with a disability if there is no reasonable accommodation that the employer can make with regard to the disability that would allow the individual to satisfy the essential functions of the job and the disability actually disqualifies the individual from the job.

(b) (I) For an employment agency to:

(A) Refuse to list and properly classify for employment or refuse to refer an individual for employment in a known available job for which the individual is otherwise qualified because of disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, marital status, religion, age, national origin, or ancestry; or

(B) Comply with a request from an employer for referral of applicants for employment if the request indicates either directly or indirectly that the employer discriminates in employment on account of disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, marital status, religion, age, national origin, or ancestry.

(II) With regard to a disability, it is not a discriminatory or an unfair employment practice for an employment agency to refuse to list and properly classify for employment or to refuse to refer an individual for employment in a known available job for which the individual is otherwise qualified if there is no reasonable accommodation that the employer can make with regard to the disability that would allow the individual to satisfy the essential functions of the job and the disability actually disqualifies the applicant from the job.

(c) For a labor organization to exclude any individual otherwise qualified from full membership rights in the labor organization, to expel an individual from membership in the labor organization, or to otherwise discriminate against

any of its members in the full enjoyment of work opportunity because of disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, marital status, religion, age, national origin, or ancestry;

(d) For any employer, employment agency, or labor organization to print or circulate or cause to be printed or circulated any statement, advertisement, or publication, or to use any form of application for employment or membership, or to make any inquiry in connection with prospective employment or membership that expresses, either directly or indirectly, any limitation, specification, or discrimination as to disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, marital status, religion, age, national origin, or ancestry or intent to make any such limitation, specification, or discrimination, unless based on a bona fide occupational qualification or required by and given to an agency of government for security reasons;

(e) For any person, whether or not an employer, an employment agency, a labor organization, or the employees or members thereof:

(I) To aid, abet, incite, compel, or coerce the doing of any act defined in this section to be a discriminatory or unfair employment practice;

(II) To obstruct or prevent any person from complying with the provisions of this part 4 or any order issued with respect thereto;

(III) To attempt, either directly or indirectly, to commit any act defined in this section to be a discriminatory or unfair employment practice;

(IV) To discriminate against any person because such person has opposed any practice made a discriminatory or an unfair employment practice by this part 4, because he has filed a charge with the commission, or because he has testified, assisted, or participated in any manner in an investigation, proceeding, or hearing conducted pursuant to parts 3 and 4 of this article;

(f) For any employer, labor organization, joint apprenticeship committee, sponsor of an apprenticeship program registered pursuant to article 15.7 of title 8, or vocational school providing, coordinating, or controlling apprenticeship programs or providing, coordinating, or controlling on-the-job training programs or other instruction, training, or retraining programs:

(I) (A) To deny to or withhold from any qualified individual because of disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, marital status, religion, age, national origin, or ancestry the right to be admitted to or participate in an apprenticeship training program, an on-the-job training program, or any other occupational instruction, training, or retraining program.

(B) With regard to a disability, it is not a discriminatory or an unfair employment practice to deny or withhold the right to be admitted to or participate in any such program if there is no reasonable accommodation that can be made with regard to the disability that would allow the individual to satisfy the essential functions of the program and the disability actually disqualifies the individual from the program.

(II) To discriminate against any qualified individual in pursuit of such programs or to discriminate against the individual in the terms, conditions, or privileges of such programs because of disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, marital status, religion, age, national origin, or ancestry; or

(III) To print or circulate or cause to be printed or circulated any statement, advertisement, or publication, or to use any form of application for such programs, or to make any inquiry in connection with such programs that expresses, directly or indirectly, any limitation, specification, or discrimination as to disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, marital status, religion, age, national origin, or ancestry or any intent to make any such limitation, specification, or discrimination, unless based on a bona fide occupational qualification;

(g) For any private employer to refuse to hire, or to discriminate against, any person, whether directly or indirectly, who is otherwise qualified for employment solely because the person did not apply for employment through a private employment agency; but an employer shall not be deemed to have violated the provisions of this section if such employer retains one or more employment agencies as exclusive suppliers of personnel and no employment fees are charged to an employee who is hired as a result of having to utilize the services of any such employment agency;

(h) (I) For any employer to discharge an employee or to refuse to hire or promote a person solely on the basis that such employee or person is married to or plans to marry another employee of the employer; but this subsection (1)(h)(I) does not apply to employers with twenty-five or fewer employees.

(II) It is not unfair or discriminatory for an employer to discharge an employee or to refuse to hire or promote a person for the reasons stated in subsection (1)(h)(I) of this section under circumstances where:

(A) One spouse directly or indirectly would exercise supervisory, appointment, or dismissal authority or disciplinary action over the other spouse;

(B) One spouse would audit, verify, receive, or be entrusted with moneys received or handled by the other spouse; or

(C) One spouse has access to the employer's confidential information, including payroll and personnel records.

(i) Unless otherwise permitted by federal law, for an employer to discharge, discipline, discriminate against, coerce, intimidate, threaten, or interfere with any employee or other person because the employee inquired about, disclosed, compared, or otherwise discussed the employee's wages; to require as a condition of employment nondisclosure by an employee of his or her wages; or to require an employee to sign a waiver or other document that purports to deny an employee the right to disclose his or her wage information.

(1.3) (a) As used in subsections (1)(a) and (1.5) of this section and in this subsection (1.3), "harass" or "harassment" means to engage in, or the act of engaging in, any unwelcome physical or verbal conduct or any written, pictorial, or visual communication directed at an individual or group of individuals because of that individual's or group's membership in, or perceived membership in, a protected class, as described in subsection (1)(a) of this section, which conduct or communication is subjectively offensive to the individual alleging harassment and is objectively offensive to a reasonable individual who is a member of the same protected class. The conduct or communication need not be severe or pervasive to constitute a discriminatory or an unfair employment practice under subsection (1)(a) of this section and is a violation of subsection (1)(a) of this section if:

(I) Submission to the conduct or communication is explicitly or implicitly made a term or condition of the individual's employment;

(II) Submission to, objection to, or rejection of the conduct or communication is used as a basis for employment decisions affecting the individual; or

(III) The conduct or communication has the purpose or effect of unreasonably interfering with the individual's work performance or creating an intimidating, hostile, or offensive working environment.

(b) The nature of the work or the frequency with which harassment in the workplace occurred in the past is not relevant to whether the conduct or communication is a discriminatory or an unfair employment practice under subsection (1)(a) of this section.

(c) (I) Notwithstanding subsection (1)(a) of this section, petty slights, minor annoyances, and lack of good manners do not constitute harassment unless the slights, annoyances, or lack of manners, when taken individually or in combination and under the totality of the circumstances, meet the standards set forth in subsection (1.3)(a) of this section.

(II) Factors to consider under the totality of the circumstances include:

(A) The frequency of the conduct or communication, recognizing that a single incident may rise to the level of harassment;

(B) The number of individuals engaged in the conduct or communication;

(C) The type or nature of the conduct or communication, recognizing that conduct or communication that, at one time, was or is welcome between two or more individuals may become unwelcome to one or more of those individuals;

(D) The duration of the conduct or communication;

(E) The location where the conduct or communication occurred;

(F) Whether the conduct or communication is threatening;

(G) Whether any power differential exists between the individual alleged to have engaged in harassment and the individual alleging the harassment;

(H) Any use of epithets, slurs, or other conduct or communication that is humiliating or degrading; and

(I) Whether the conduct or communication reflects stereotypes about an individual or group of individuals in a protected class.

(1.5) (a) When an employee proves that a supervisor unlawfully harassed that employee, as described in subsection (1.3)(a)(III) of this section, the employer may assert an affirmative defense to the harassment claim only if the employer establishes that:

(I) The employer has established a program that is reasonably designed to prevent harassment, deter future harassers, and protect employees from harassment. An employer's program satisfies this subsection (1.5)(a)(I) if the employer can demonstrate that:

(A) The employer takes prompt, reasonable action to investigate or address alleged discriminatory or unfair employment practices, as described in subsection (1)(a) of this section; and

(B) The employer takes prompt, reasonable remedial actions, when warranted, in response to complaints of discriminatory or unfair employment practices, as described in subsection (1)(a) of this section.

(II) The employer has communicated the existence and details of the program specified in subsection (1.5)(a)(I) of this section to both its supervisory and nonsupervisory employees; and

(III) The employee has unreasonably failed to take advantage of the employer's program specified in subsection (1.5)(a)(I) of this section.

(b) Nothing in this subsection (1.5) supersedes or eliminates any other analyses, evaluations, or standards of liability for harassment established in this section and through judicial interpretation of Title VII of the federal "Civil Rights

Act of 1964", as amended, 42 U.S.C. sec. 2000e et seq.; the federal "Age Discrimination in Employment Act of 1967", as amended, 29 U.S.C. sec. 621 et seq.; Titles I and V of the federal "Americans with Disabilities Act of 1990", as amended, 42 U.S.C. sec. 12111 et seq.; the federal "Civil Rights Act of 1991", as amended, 42 U.S.C. sec. 1981a; and the United States constitution and amendments to the constitution.

(2) Notwithstanding any provisions of this section to the contrary, it is not a discriminatory or an unfair employment practice for the division of unemployment insurance in the department of labor and employment to ascertain and record the disability, sex, age, race, creed, color, or national origin of any individual for the purpose of making reports as may be required by law to agencies of the federal or state government only. The division may make and keep the records in the manner required by the federal or state law, but neither the division nor the department of labor and employment shall divulge the information to prospective employers as a basis for employment, except as provided in this subsection (2).

(3) Nothing in this section shall prohibit any employer from making individualized agreements with respect to compensation or the terms, conditions, or privileges of employment for persons suffering a disability if such individualized agreement is part of a therapeutic or job-training program of no more than twenty hours per week and lasting no more than eighteen months.

(4) Notwithstanding any other provision of this section to the contrary, it shall not be a discriminatory or an unfair employment practice with respect to age:

(a) To take any action otherwise prohibited by this section if age is a bona fide occupational qualification reasonably necessary to the normal operation of the particular employer or where the differentiation is based on reasonable factors other than age; or

(b) To observe the terms of a bona fide seniority system or any bona fide employee benefit plan, such as a retirement, pension, or insurance plan, which is not a subterfuge to evade the purposes of this section; except that, unless authorized in paragraph (a) of this subsection (4), no such employee benefit plan shall require or permit the involuntary retirement of any individual because of the age of such individual; or

(c) To compel the retirement of any employee who is sixty-five years of age or older and under seventy years of age and who, for the two-year period immediately before retirement, is employed in a bona fide executive or a high policy-making position if such employee is entitled to an immediate nonforfeitable annual retirement benefit from a pension, profit-sharing, savings, or deferred compensation plan, or any combination of such plans, of the employer of such employee and if such plan equals, in the aggregate, at least forty-four thousand dollars; or

(d) To discharge or otherwise discipline an individual for reasons other than age.

(5) Nothing in this section shall preclude an employer from requiring compliance with a reasonable dress code as long as the dress code is applied consistently.

(6) Notwithstanding any other provision of law, this section shall not apply to a religious corporation, association, educational institution, or society with respect to the employment of individuals of a particular religion to perform work connected with the carrying on by such corporation, association, educational institution, or society of its activities.

(7) For purposes of this section, "employer" shall not include any religious organization or association, except for any religious organization or association that is supported in whole or in part by money raised by taxation or public borrowing.

(8) Notwithstanding any other provision of this section to the contrary, it is not a discriminatory or an unfair employment practice with respect to sex for a person to consider sex when hiring an employee engaged in child-care-related domestic services.

Source: L. 79: Entire part R&RE, p. 929, § 3, effective July 1. L. 86: (1)(a) to (1)(d), (1)(f)(I), (1)(f)(II), (1)(f)(III), and (2) amended and (4) added, p. 931, § 4, effective May 8. L. 89: (1)(h) added, p. 1163, § 1, effective April 17; (1)(e) amended, p. 1041, § 6, effective July 1. L. 93: (1)(a) to (1)(d), (1)(f), (2), and (3) amended, p. 1657, § 61, effective July 1. L. 99: (1)(a) amended, p. 354, § 1, effective July 1. L. 2007: (1)(a), (1)(b), (1)(c), (1)(d), and (1)(f) amended and (5), (6), and (7) added, p. 1254, § 2, effective August 3. L. 2008: (1)(i) added, p. 524, § 1, effective August 5. L. 2009: (1)(a) amended, (SB 09-110), ch. 238, p. 1085, § 7, effective July 1. L. 2012: (2) amended, (HB 12-1120), ch. 27, p. 108, § 23, effective June 1. L. 2017: (1)(i) amended, (HB 17-1269), ch. 290, p. 1608, § 1, effective August 9. L. 2021: IP(1), (1)(a), (1)(b), (1)(c), (1)(d), and (1)(f) amended, (HB 21-1108), ch. 156, p. 884, § 4, effective September 7. L. 2022: (8) added, (HB 22-1367), ch. 473, p. 3456, § 4, effective August 10. L. 2023: IP(1), (1)(a), (1)(b), (1)(c), (1)(d), (1)(f), (1)(h)(I), and IP(1)(h)(II) amended and (1.3) and (1.5) added, (SB 23-172), ch. 389, p. 2325, § 4, effective August 7.

Colo. Rev. Stat. § 24-34-502

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Unfair housing practices prohibited - definition (current text, 2026 edition; retrieved 2026-10-29)

(1) It is an unfair housing practice, unlawful, and prohibited:

(a) (I) For any person to refuse to show, sell, transfer, rent, or lease any housing; refuse to receive and transmit any bona fide offer to buy, sell, rent, or lease any housing; or otherwise make unavailable or deny or withhold from an individual any housing because of disability, race, creed, color, sex, sexual orientation, gender identity,

gender expression, marital status, familial status, veteran or military status, religion, national origin, or ancestry; to discriminate against an individual because of disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, marital status, familial status, veteran or military status, religion, national origin, or ancestry in the terms, conditions, or privileges pertaining to any housing or the transfer, sale, rental, or lease of housing or in furnishing facilities or services in connection with housing; or to cause to be made any written or oral inquiry or record concerning the disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, marital status, familial status, veteran or military status, religion, national origin, or ancestry of an individual seeking to purchase, rent, or lease any housing; however, nothing in this subsection (1)(a) requires a dwelling to be made available to an individual whose tenancy would constitute a direct threat to the health or safety of other individuals or whose tenancy would result in substantial physical damage to the property of others.

(II) Nothing in this subsection (1)(a) prohibits a written or oral inquiry or record concerning military or veteran status when the purpose of the inquiry or record is to determine a person's eligibility for veteran or military housing or for a veteran or military housing benefit.

(III) For the purposes of subsection (1)(a)(I) of this section:

(A) The mere presence of an assistance animal does not constitute a direct threat to health or safety.

(B) The mere presence of an assistance animal is not presumed to result in substantial physical damage to the property of others.

(C) A housing provider may consider documented, specific conduct of an assistance animal that poses a direct threat to the health or safety of others or causes substantial physical damage to property.

(b) For any person to whom application is made for financial assistance for the acquisition, construction, rehabilitation, repair, or maintenance of any housing to make or cause to be made any written or oral inquiry concerning the disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, marital status, familial status, veteran or military status, religion, national origin, or ancestry of an individual seeking financial assistance or concerning the disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, marital status, familial status, veteran or military status, religion, national origin, or ancestry of prospective occupants or tenants of the housing, or to discriminate against any individual because of the disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, marital status, familial status, veteran or military status, religion, national origin, or ancestry of the individual or prospective occupants or tenants in the terms, conditions, or privileges relating to obtaining or using any such financial assistance;

(c) (I) For any person to include in any transfer, sale, rental, or lease of housing any restrictive covenants, but shall not include any person who, in good faith and in the usual course of business, delivers any document or copy of a document regarding the transfer, sale, rental, or lease of housing which includes any restrictive covenants which are based upon race or religion, or reference thereto; or

(II) For any person to honor or exercise or attempt to honor or exercise any restrictive covenant pertaining to housing;

(d) (I) For any person to make, print, or publish or cause to be made, printed, or published any notice or advertisement relating to the sale, transfer, rental, or lease of any housing that indicates any preference, limitation, specification, or discrimination based on disability, race, creed, color, religion, sex, sexual orientation, gender identity, gender expression, marital status, familial status, veteran or military status, national origin, or ancestry.

(II) This subsection (1)(d) does not apply when the purpose of the notice or advertisement is to promote veteran or military housing or a veteran or military housing benefit.

(e) For any person: To aid, abet, incite, compel, or coerce the doing of any act defined in this section as an unfair housing practice; to obstruct or prevent any person from complying with the provisions of this part 5 or any order issued with respect thereto; to attempt either directly or indirectly to commit any act defined in this section to be an unfair housing practice; to discriminate against any person because such person has opposed any practice made an unfair housing practice by this part 5, because he has filed a charge with the commission, or because he has testified, assisted, or participated in any manner in an investigation, proceeding, or hearing conducted pursuant to parts 3 and 5 of this article; or to coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of, or on account of his having exercised or enjoyed, or on account of his having aided or encouraged, any other person in the exercise of any right granted or protected by parts 3 and 5 of this article;

(f) For any person to discharge, demote, or discriminate in matters of compensation against any employee or agent because of said employee's or agent's obedience to the provisions of this part 5;

(g) For any person whose business includes residential real estate-related transactions, which transactions involve making or purchasing loans secured by residential real estate or providing other financial assistance for purchasing, constructing, improving, repairing, or maintaining a dwelling or selling, brokering, or appraising residential real property, to discriminate against an individual in making available such a transaction or in fixing the terms or conditions of such a transaction because of race, creed, color, religion, sex, sexual orientation, gender identity, gender

expression, marital status, disability, familial status, veteran or military status, national origin, or ancestry;

(h) For any person to deny an individual access to or membership or participation in any multiple-listing service, real estate brokers' organization, or other service, organization, or facility related to the business of selling or renting dwellings or to discriminate against the individual in the terms or conditions of such access, membership, or participation on account of race, creed, color, religion, sex, sexual orientation, gender identity, gender expression, disability, marital status, familial status, veteran or military status, national origin or ancestry, or source of income;

(i) For any person, for profit, to induce or attempt to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of any individual of a particular race, color, religion, sex, sexual orientation, gender identity, gender expression, disability, familial status, veteran or military status, creed, national origin, or ancestry;

(j) For any person to represent to any other person that a dwelling is not available for inspection, sale, or rental, when the dwelling is in fact available, for the purpose of discriminating against any individual on the basis of race, color, religion, sex, sexual orientation, gender identity, gender expression, disability, familial status, veteran or military status, creed, national origin, or ancestry;

(k) For any person to violate the provisions of section 24-34-502.2;

(l) For any person to refuse to rent or lease, to refuse to show housing for rent or lease, to refuse to receive and transmit any bona fide offer to rent or lease, or to otherwise make unavailable or deny or withhold from another person any housing for rent or lease because of a person's source of income;

(m) For any person to discriminate in the terms, conditions, or privileges pertaining to the rental or lease of any housing, or in the furnishing of facilities or services in connection therewith, because of a person's source of income, including a person's receipt of public housing assistance or a person's participation in a third-party contract required by a public housing assistance program; except that, if the initial payment to the landlord is not made timely in accordance with applicable regulations promulgated by the United States department of housing and urban development due to processing delays or a government shutdown, then a landlord may exercise any right or pursue any remedy available under law;

(n) For any person to make, print, or publish or cause to be made, printed, or published any notice or advertisement relating to the rental or lease of any housing that indicates any limitation, specification, or discrimination based on a person's source of income;

(o) For any person to represent to another person that any housing is not available for rent or lease when the housing is in fact available for the purpose of discriminating against the person on the basis of the person's source of income;

(p) For any person, for profit, to induce or attempt to induce another person to rent any housing by representations regarding the entry or prospective entry into the neighborhood of a person or persons with particular sources of income;

(q) For any person to violate section 38-12-904 (1)(c) or (1)(d); or

(r) For any landlord, as defined in section 38-12-1501 (1), to fail to:

(I) Make reasonable efforts to timely respond to requests for information and documentation necessary for a rental assistance application process; or

(II) Cooperate with a tenant who is applying for rental assistance in good faith, including by refusing to provide documents that are required by a state government agency, a local government agency, or other administrating entity to support the tenant's application.

(1.5) (a) Subsections (1)(l) to (1)(p) of this section do not apply to a landlord with three or fewer units of housing for rent or lease.

(b) Nothing in subsection (1) of this section precludes a landlord from checking the credit of a prospective tenant. Checking the credit of a prospective tenant is not an unfair housing practice under this section, provided that the landlord checks the credit of every prospective tenant.

(c) As used in this subsection (1.5) and in subsection (1) of this section, "landlord" means a person who owns, manages, leases, or subleases a unit of housing and who makes that housing available for rent or lease.

(1.7) Notwithstanding any provision of subsection (1) of this section to the contrary, if a landlord owns five or fewer single family rental homes and no more than five total rental units including any single family homes, the landlord is not required to accept federal housing choice vouchers for any of those five single family homes as an acceptable source of income under subsection (1) of this section.

(1.8) It is not a violation of this section for a landlord to ask a residential tenant whether the tenant receives supplemental security income, social security disability insurance under Title II of the federal "Social Security Act", 42 U.S.C. sec. 401 et seq., as amended, or cash assistance through the Colorado works program created in part 7 of article 2 of title 26 for the purposes of complying with section 13-40-110 (1).

(2) The provisions of this section shall not apply to or prohibit compliance with local zoning ordinance provisions concerning residential restrictions on marital status.

(3) Nothing contained in this part 5 shall be construed to bar any religious or denominational institution or organization which is operated or supervised or controlled by or is operated in connection with a religious or denominational organization from limiting the sale, rental, or occupancy of dwellings which it owns or operates for other than a commercial purpose to persons of the same religion, or from giving preference to such persons, unless membership in such religion is restricted on account of race, color, or national origin, nor shall anything in this part 5 prohibit a private club not in fact open to the public which, as an incident to its primary purpose or purposes provides lodgings which it owns or operates for other than a commercial purpose, from limiting the rental or occupancy of such lodgings to its members or from giving preference to its members.

(4) (Deleted by amendment, L. 92, p. 1122, § 4, effective July 1, 1992.)

(5) Nothing in this section shall be construed to prevent or restrict the sale, lease, rental, transfer, or development of housing designed or intended for the use of persons with disabilities.

(6) Nothing in this part 5 prohibits a person engaged in the business of furnishing appraisals of real property from taking into consideration factors other than race, creed, color, religion, sex, sexual orientation, gender identity, gender expression, marital status, familial status, veteran or military status, disability, religion, national origin, or ancestry.

(7) (a) Nothing in this section shall limit the applicability of any reasonable local, state, or federal restrictions regarding the maximum number of occupants permitted to occupy a dwelling. Nor shall any provision in this section regarding familial status apply with respect to housing for older persons.

(b) As used in this subsection (7), "housing for older persons" means housing provided under any state or federal program that the division determines is specifically designed and operated to assist older persons, or is intended for, and solely occupied by, persons sixty-two years of age or older, or is intended and operated for occupancy by at least one person fifty-five years of age or older per unit. In determining whether housing intended and operated for occupancy by one person fifty-five years of age or older per unit qualifies as housing for older persons under this subsection (7), the division shall require the following:

(I) That the housing facility or community publish and adhere to policies and procedures that demonstrate the intent required under this paragraph (b);

(II) That at least eighty percent of the occupied units be occupied by at least one person who is fifty-five years of age or older; and

(III) That the housing facility or community comply with rules promulgated by the commission for verification of occupancy. Such rules shall:

(A) Provide for verification by reliable surveys and affidavits; and

(B) Include examples of the types of policies and procedures relevant to a determination of such compliance with the requirements of subparagraph (II) of this paragraph (b). Such surveys and affidavits shall be admissible in administrative and judicial proceedings for the purposes of verification of occupancy in accordance with this section.

(c) Housing shall not fail to meet the requirements for housing for older persons by reason of persons residing in such housing as of March 12, 1989, who do not meet the age requirements of paragraph (b) of this subsection (7) if the new occupants of such housing meet the age requirements of paragraph (b) of this subsection (7) or, by reason of unoccupied units, if such units are reserved for occupancy by persons who meet the age requirements of paragraph (b) of this subsection (7).

(d) (I) A person shall not be held personally liable for monetary damages for a violation of this part 5 if such person reasonably relied, in good faith, on the application of the exemption available under this part 5 relating to housing for older persons.

(II) For purposes of this paragraph (d), a person may only show good faith reliance on the application of an exemption by showing that:

(A) Such person has no actual knowledge that the facility or community is not or will not be eligible for the exemption claimed; and

(B) The owner, operator, or other official representative of the facility or community has stated, formally, in writing, that the facility or community complies with the requirements of the exemption claimed.

(8) (a) With respect to "familial status", nothing in this part 5 shall apply to the following:

(I) Any single-family house sold or rented by an owner if such private individual owner does not own more than three such single-family houses at any one time. In the case of the sale of any such single-family house by a private individual owner not residing in such house at the time of such sale or who was not the most recent resident of such house prior to such sale, the exemption granted by this subsection (8) shall apply only with respect to one such sale within any twenty-four-month period. Such bona fide private individual owner shall not own any interest in, nor shall there be owned or reserved on his behalf, under any express or voluntary agreement, title to or any right to all or a portion of the proceeds from the sale or rental of more than three such single-family houses at any one time. The sale or rental of any such single-family house shall be excepted from the application of this

subsection (8) only if such house is sold or rented:

(A) Without the use in any manner of the sales or rental facilities or the sales or rental services of any real estate broker, agent, or salesman, or of such facilities or services of any person in the business of selling or renting dwellings, or of any employee or agent of any such broker, agent, salesman, or person; and

(B) Without the publication, posting, or mailing, after notice, of any advertisement or written notice in violation of this section; but nothing in this section shall prohibit the use of attorneys, escrow agents, abstractors, title companies, and other such professional assistance as necessary to perfect or transfer the title.

(II) Rooms or units in dwellings containing living quarters occupied or intended to be occupied by no more than four families living independently of each other, if the owner actually maintains and occupies one of such living quarters as his residence.

(b) For the purposes of paragraph (a) of this subsection (8), a person shall be deemed to be in the business of selling or renting dwellings if:

(I) He has, within the preceding twelve months, participated as principal in three or more transactions involving the sale or rental of any dwelling or any interest therein;

(II) He has, within the preceding twelve months, participated as agent, other than in the sale of his own personal residence in providing sales or rental facilities or sales or rental services in two or more transactions involving the sale or rental of any dwelling or any interest therein; or

(III) He is the owner of any dwelling designed or intended for occupancy by, or occupied by, five or more families.

(9) Repealed.

(10) (a) Nothing in this part 5 prohibits a seller of property from considering legitimate and nondiscriminatory factors when deciding whether to accept an offer.

(b) Nothing in this part 5 prohibits adherence to requirements under 38 CFR 36 that govern the United States department of veterans affairs benefits, including restrictions on options on a home contract, or prohibits inquiry regarding an individual's veteran or military status to the extent necessary to determine if the individual is eligible for a benefit offered to veterans or members of the military. Such adherence does not constitute a violation of this part 5.

Source: L. 79: Entire part R&RE, p. 933, § 3, effective July 1. L. 89: (1)(e) amended, p. 1042, § 9, effective July 1. L. 90: (1)(a), (1)(b), (1)(d), and (1)(e) amended and (1)(g), (1)(h), and (6) to (8) added, pp. 1225, 1226, §§ 5, 6, 7, effective April 16; (1)(c) amended, p. 1647, § 2, effective April 16; (9) added by revision, pp. 1225, 1226, 1232, §§ 5, 6, 7, 12. L. 92: (1)(a), (1)(d), (1)(g), (3), (4), (7)(b), and (8)(a)(II) amended and (1)(i) and (1)(j) added, p. 1122, § 4, effective July 1. L. 93: (9) repealed, p. 1784, § 57, effective June 6; (1)(a), (1)(b), (1)(d), (1)(g) to (1)(j), and (5) amended, p. 1659, § 63, effective July 1. L. 94: (6) amended, p. 1637, § 50, effective May 31. L. 99: (7)(b) amended and (7)(d) added, p. 152, § 2, effective August 4. L. 2008: (1)(a), (1)(b), (1)(d), (1)(g), (1)(h), (1)(i), (1)(j), and (6) amended, p. 1595, § 5, effective May 29. L. 2014: (1)(k) added, (SB 14-118), ch. 250, p. 977, § 4, effective August 6. L. 2020: (1)(h) amended and (1)(l), (1)(m), (1)(n), (1)(o), (1)(p), (1.5), and (1.7) added, (HB 20-1332), ch. 298, p. 1480, § 2, effective January 1, 2021. L. 2021: IP(1), (1)(a), (1)(b), (1)(d), (1)(g), (1)(h), (1)(i), (1)(j), and (6) amended, (HB 21-1108), ch. 156, p. 886, § 6, effective September 7. L. 2022: (1)(a), (1)(b), (1)(d), (1)(g), (1)(h), (1)(i), (1)(j), and (6) amended and (10) added, (HB 22-1102), ch. 65, p. 324, § 2, effective August 10. L. 2023: (1.8) added, (HB 23-1120), ch. 414, p. 2455, § 5, effective June 6; (1)(o) and (1)(p) amended and (1)(q) added, (SB 23-184), ch. 402, p. 2413, § 4, effective August 7. L. 2025: (1)(p) and (1)(q) amended and (1)(r) added, (HB 25-1240), ch. 291, p. 1496, § 4, effective May 29. L. 2026: (1)(a)(III) added, (HB 26-1045), ch. 202, p. 1151, § 4, effective August 12.

Colo. Rev. Stat. § 24-34-601

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 3 (3).

Cited as the 2020 edition; the text below is the current one.

Discrimination in places of public accommodation - rules (current text, 2026 edition; retrieved 2026-10-29)

(1) Repealed.

(2) (a) It is a discriminatory practice and unlawful for a person, directly or indirectly, to refuse, withhold from, or deny to an individual or a group, because of disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, marital status, national origin, or ancestry the full and equal enjoyment of the goods, services, facilities, privileges, advantages, or accommodations of a place of public accommodation or, directly or indirectly, to publish, circulate, issue, display, post, or mail any written, electronic, or printed communication, notice, or advertisement that indicates that the full and equal enjoyment of the goods, services, facilities, privileges, advantages, or accommodations of a place of public accommodation will be refused, withheld from, or denied an individual or that an individual's patronage or presence at a place of public accommodation is unwelcome, objectionable, unacceptable, or undesirable because of disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, marital status, national origin, or ancestry.

(b) Repealed.

(c) (I) An educational institution, including an elementary or secondary school and an institution of higher education,

denies a person the full and equal enjoyment of a place of public accommodation when the educational institution:

(A) On the basis of one or more of the protected classes described in subsection (2)(a) of this section, excludes a student from participation in, denies a student the benefits of, or otherwise subjects a student to discrimination in any of the educational institution's programs or activities;

(B) Without a legitimate, nondiscriminatory, nonpretextual basis, and based on one or more of the protected classes described in subsection (2)(a) of this section, denies educational services, benefits, or opportunities to a student or group of students by treating them differently from a similarly situated student who is, or group of students who are, part of a different subgroup of students within the same protected class; or

(C) Has actual notice that a hostile environment based on one or more of the protected classes described in subsection (2)(a) of this section exists at the educational institution but fails to take prompt and effective steps reasonably calculated to eliminate the hostile environment, end the harassment that gave rise to the hostile environment, and prevent the harassment from recurring.

(II) In interpreting the standards in subsection (2)(c)(I) of this section, the division and the commission may consider federal nondiscrimination law as persuasive but nonbinding authority. State law governs in the case of a conflict between applicable state and federal law.

(III) The commission may adopt rules specific to complaints of discrimination involving educational institutions.

(2.5) It is a discriminatory practice and unlawful for any person to discriminate against any individual or group because such person or group has opposed any practice made a discriminatory practice by this part 6, because such person or group has requested reasonable accommodations on the basis of a person's disability, or because such person or group has made a charge, testified, assisted, or participated in any manner in an investigation, proceeding, or hearing conducted pursuant to this part 6.

(3) Notwithstanding any other provisions of this section, it is not a discriminatory practice for a person to restrict admission to a place of public accommodation to individuals of one sex if such restriction has a bona fide relationship to the goods, services, facilities, privileges, advantages, or accommodations of such place of public accommodation.

(4) As used in this section, unless the context otherwise requires, "nonprofit" means any person that is listed as an exempt organization in 26 U.S.C. sec. 501 (c) and that is exempt from taxation pursuant to 26 U.S.C. sec. 501 (a) of the federal "Internal Revenue Code of 1986", as amended.

(5) A nonprofit does not directly or indirectly participate or intervene in a political campaign merely by renting out space for a political event at the nonprofit's customary and usual rates.

Source: L. 79: Entire part R&RE, p. 937, § 3, effective July 1. L. 89: (2.5) added, p. 1043, § 11, effective July 1. L. 93: (2) amended, p. 1661, § 65, effective July 1. L. 2008: (1) and (2) amended, p. 1596, § 6, effective May 29. L. 2014: (2) amended, (SB 14-118), ch. 250, p. 978, § 7, effective August 6. L. 2021: (2)(a) amended, (HB 21-1108), ch. 156, p. 888, § 7, effective September 7. L. 2024: (1) amended and (4) and (5) added, (HB 24-1124), ch. 224, p. 1393, § 1, effective August 7. L. 2025: (1) repealed, (SB 25-275), ch. 377, p. 2109, § 336, effective August 6; (2)(b) repealed and (2.5) amended, (HB 25-1239), ch. 232, p. 1099, § 2, effective August 6. L. 2026: (2)(c) added, (HB 26-1141), ch. 296, p. 1621, § 1, effective August 12.

Colo. Rev. Stat. § 26.5-1-102

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 6 (4).

Cited as the 2022 edition; the text below is the current one.

Legislative intent (current text, 2026 edition; retrieved 2026-10-25)

(1) It is the intent of the general assembly that the department of early childhood shall work with other state and local agencies, public and private early childhood providers, head start agencies, nonprofit organizations, and parents and families to:

(a) Provide high-quality, voluntary, affordable early childhood opportunities for all children in Colorado;

(b) Coordinate the availability of early childhood programs and services in Colorado to meet the needs of all families;

(c) Establish state and community partnerships that provide for a mixed delivery of child care and early childhood programs through school-based and community-based providers;

(d) Ensure that parent and community input are prioritized in the continuing design and implementation of programs and policies affecting children and families;

(e) Maximize the efficient use of resources to ensure that parents, children, and early childhood program and service providers are prioritized and receive the greatest level of investment and financial support with the lowest possible administrative burden;

(f) Prioritize the equitable delivery of resources and supports for early childhood;

(g) Unify within the department the administration of child care and early learning programs to effectively and efficiently support a streamlined parent and provider experience and to support a diverse array of providers of early childhood care and learning services. Unification of the programs must include:

(I) Development of a common program application process, which, to the extent practicable, is accessible in families'

preferred languages, to streamline the eligibility and enrollment experience for families;

(II) Quality program standards that support child development and successful transitions to elementary education and are aligned and integrated with standards from other early care and learning programs; and

(III) Focus on recruitment and retention strategies, including strategies designed to recruit and retain individuals from different cultural backgrounds, and compensation strategies for the early care and learning workforce to elevate and support the workforce across all care and learning settings; and

(h) Improve outcomes for children and families through:

(I) Strategies that support recruitment, training, and compensation of the early childhood workforce, including strategies designed to recruit and retain individuals from different cultural backgrounds;

(II) Implementation of evidence- and practice-based best practices in education, family support, and child development with a focus on continuous improvement and innovation;

(III) Program evaluation for continuous improvement, including monitoring metrics that promote transparency and efficiency of administration, program quality assessment, and child and family outcomes and accountability, which are reported annually and must address removal or reduction of access barriers, realization of administrative or financial efficiencies, and progress toward achieving the department's mission;

(IV) Alignment with state and federal requirements under the state "Exceptional Children's Educational Act", part 1 of article 20 of title 22, and part B and part C of the federal "Individuals with Disabilities Education Act", 20 U.S.C. sec. 1400 et seq., as amended; and

(V) Education and training regarding how to identify and address child and family trauma and support a trauma-informed approach to early childhood.

Source: L. 2021: Entire title added, (HB 21-1304), ch. 307, p. 1847, § 4, effective July 1, 2022.

Colo. Rev. Stat. § 26.5-1-113

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Children's mental health program - appropriation - legislative declaration - definitions - repeal (current text, 2026 edition; retrieved 2026-10-25)

(1) (a) The general assembly finds and declares that:

(I) Neurobiological research confirms that stressful experiences early in life can have profound and destructive impacts on the architecture of the brain;

(II) Additional scientific research has shown, however, that responsive, nurturing relationships between young children and their caregivers that lead to secure attachment serve as powerful, protective buffers to stressful experiences early in life;

(III) Providing an evidence-based, two-generation, and home-based prevention and early intervention mental health program can prevent or ameliorate the damage caused by stressful experiences; and

(IV) It is possible to decrease the stress experienced by families by connecting family members to needed services through intensive care coordination. By providing psychotherapy to a caregiver and child together, it is possible to repair the impact of stress on the child and strengthen the caregiving relationship.

(b) The general assembly finds, therefore, that:

(I) Given the harmful consequences of the economic disruptions resulting from and exacerbated by the COVID-19 public health emergency, it is in the best interest of the state to authorize the department of early childhood to contract with a nonprofit entity to provide evidence-based, two-generation, and home-based prevention and early intervention children's mental health programs; and

(II) The purpose of children's mental health programs is to enhance the mental health and development of caregivers and young children. Children's mental health programs must combine comprehensive, coordinated services and psychotherapeutic intervention for caregivers and children, increase adult self-regulation and executive functioning, and result in long-term positive outcomes for children and families.

(c) It is the intent of the general assembly that the department and a nonprofit entity work collaboratively to share information as necessary to promote efficient and effective implementation of the children's mental health programs in Colorado.

(d) The general assembly further finds and declares that contracting with a nonprofit entity to provide children's mental health programs constitutes critical government services.

(2) As used in this section, unless the context otherwise requires:

(a) "Children's mental health program" means an evidence-based, two-generation, and home-based prevention and early intervention program for families with children from prenatal to six years of age who are experiencing chronic stress and trauma. A children's mental health program must be proven to significantly improve child emotional and behavioral health, child language development, and caregiver mental health, as well as decrease child abuse and neglect, resulting in long-term positive outcomes for children and families.

(b) "Entity" means a Colorado-based nonprofit organization.

(3) (a) On or before November 1, 2022, the department shall contract with a Colorado-based nonprofit entity to provide children's mental health programs. The entity must have previous and current experience serving the target demographic using a curriculum that:

(I) Includes components that provide for intervening with families with young children who are experiencing chronic stress and trauma. The curriculum must connect the families to needed services through intensive care coordination while also providing psychotherapy for the child and parent or guardian.

(II) Has been previously implemented with success by providers in Colorado.

(b) The entity with which the department contracts shall:

(I) Perform community implementation readiness assessments and provide training, coaching, and monitoring for the implementation of children's mental health programs;

(II) Provide ongoing quality assessments and improvement recommendations to ensure high-quality implementation and sustainability of children's mental health programs;

(III) Provide the department with site-specific and statewide process and outcome evaluations of children's mental health programs; and

(IV) Annually prepare and submit to the department and the behavioral health administration an evaluation of the outcomes of all of the children's mental health programs implemented.

(4) (a) For the 2022-23 state fiscal year, the general assembly shall appropriate two million dollars to the department for the purposes of implementing this section from the economic recovery and relief cash fund created in section 24-75-228. The department is authorized to expend up to five percent to pay the costs incurred in implementing this section, including the costs incurred in contracting with a nonprofit entity.

(b) Money spent pursuant to this subsection (4) must conform with the allowable purposes set forth in the federal "American Rescue Plan Act of 2021", Pub.L. 117-2, as amended. The department must either spend or obligate such appropriation in accordance with section 24-75-226 (4)(d).

(c) This subsection (4) is repealed, effective September 1, 2027.

(5) The department and the contracted entity shall comply with the compliance, reporting, record-keeping, and program evaluation requirements established by the office of state planning and budgeting and the state controller in accordance with section 24-75-226 (5).

Source: L. 2022: Entire section added, (HB 22-1369), ch. 346, p. 2470, § 1, effective June 3; (4)(b) amended, (HB 22-1411), ch. 271, p. 1960, § 18, effective June 3.

Colo. Rev. Stat. § 26.5-5-303

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Definitions (current text, 2026 edition; retrieved 2026-10-25)

As used in this part 3, unless the context otherwise requires:

(1) "Adverse action" has the same meaning as "negative licensing action" as defined in subsection (16)(a) of this section.

(1.5) "Affiliate of a licensee" means:

(a) Any person or entity that owns more than five percent of the ownership interest in the business operated by the licensee or the applicant for a license; or

(b) Any person who is directly responsible for the care and welfare of children served; or

(c) Any executive, officer, member of the governing board, or employee of a licensee; or

(d) A relative of a licensee, which relative provides care to children at the licensee's facility or is otherwise involved in the management or operations of the licensee's facility.

(2) "Application" means a declaration of intent to obtain or continue a license for a child care facility.

(3) (a) "Child care center" means a facility, by whatever name known, that is maintained for the whole or part of a day for the care of five or more children, unless otherwise specified in this subsection (3), who are eighteen years of age or younger and who are not related to the owner, operator, or manager thereof, whether the facility is operated with or without compensation for such care and with or without stated educational purposes. The term includes, but is not limited to, facilities commonly known as child care centers, school-age child care centers, before- and after-school programs, kindergartens, preschools, outdoor nature-based preschool programs, day camps, and summer camps, and includes those facilities for children under six years of age with stated educational purposes operated in conjunction with a public, private, or parochial college or a private or parochial school; except that the term does not apply to any kindergarten maintained in connection with a public, private, or parochial elementary school system of at least six grades.

(b) Notwithstanding the provisions of subsection (3)(a) of this section, a child care center that operates as an outdoor nature-based preschool program serves children who are at least three years of age but under eight years of age.

(4) "Child care provider", as used in section 26.5-5-325, means a licensee, or an affiliate of a licensee, when the licensee

holds a license to operate a family child care home pursuant to this part 3.

(5) (a) "Children's resident camp" means a facility operating for three or more consecutive twenty-four-hour days during one or more seasons of the year that offers group living experiences or seasonal outdoor adventure day camp programs for five or more children. The purpose of the facility is to offer an outdoor experience for youth development through multiple educational and recreational activities in an outdoor, nature-based environment. The recreational activities occur at a permanent facility or on trips off the premises.

(b) (I) A children's resident camp serves children who have completed kindergarten or are six years of age or older through children younger than nineteen years of age; except that a person nineteen years of age or twenty years of age may attend a children's resident camp if, within six months prior to attending the children's resident camp, the person has attended or has graduated from high school.

(II) Notwithstanding the provisions of subsection (5)(b)(I) of this section, a children's resident camp that offers seasonal outdoor adventure day camp programs serves children who are five years of age or older.

(5.5) "Colorado state courts data access system" means the official public access site for the Colorado judicial branch maintained by the Colorado state court administrator's office containing read-only access to court data, including a name index and register of actions.

(6) "Exempt family child care home provider" means a family child care home provider who is exempt from certain provisions of this part 3 pursuant to section 26.5-5-304 (1)(f).

(7) "Family child care home" means a facility for child care operated with or without compensation or educational purposes in a place of residence of a family or person for the purpose of providing less than twenty-four-hour care for children under the age of eighteen years who are not related to the head of such home. "Family child care home" may include infant-toddler child care homes, large family child care homes, experienced child care provider homes, and such other types of family child care homes designated by department rules pursuant to section 26.5-5-314 (2)(n), as the executive director deems necessary and appropriate.

(8) "Governing body" means the individual, partnership, corporation, or association in which the ultimate authority and legal responsibility is vested for the administration and operation of a child care facility.

(9) "Guardian" means a person who is entrusted by law with the care of a child under eighteen years of age.

(10) "Guest child care facility" means a facility operated by a ski area, as that term is defined in section 33-44-103 (6), where children are cared for:

(a) While parents or persons in charge of such child are patronizing the ski area;

(b) Fewer than ten total hours per day;

(c) Fewer than ten consecutive days per year; and

(d) Fewer than forty-five days in a calendar year, with thirty or fewer of such forty-five days occurring in either the winter or summer months.

(11) Repealed.

(12) "Kindergarten" means any facility providing an educational program for children only for the year preceding their entrance to the first grade, whether such facility is called a kindergarten, preschool, or any other name.

(13) "License" means a legal document issued pursuant to this part 3 granting permission to operate a child care facility. A license may be in the form of a provisional, probationary, or permanent license.

(14) "Licensee" means the entity or individual to which a license is issued and that has the legal capacity to enter into an agreement or contract, assume obligations, incur and pay debts, sue and be sued in its own right, and be held responsible for its actions. A licensee may be a governing body.

(15) "Licensing" means the process by which the department approves a facility for the purpose of conducting business as a child care facility.

(16) (a) "Negative licensing action", or "adverse action", means a final agency action resulting in the denial of an application, the imposition of fines, or the suspension or revocation of a license issued pursuant to this part 3 or the demotion of such a license to a probationary license.

(b) As used in this subsection (16), "final agency action" means the determination made by the department, after an opportunity for a hearing, to deny, suspend, revoke, or demote to probationary status a license issued pursuant to this part 3 or an agreement between the department and the licensee concerning the demotion of such a license to a probationary license.

(17) (a) "Neighborhood youth organization" means a nonprofit organization that provides programs and services, as described in section 26.5-5-308, to children, youth, and families through comprehensive wraparound supports to ensure positive growth and development during childhood and adolescence, and is designed to serve youth as young as five years of age who are enrolled in kindergarten and as old as eighteen years of age.

(b) A neighborhood youth organization does not include faith-based centers, organizations or programs operated by state or city parks or special districts, or departments or facilities that are currently licensed as child care centers.

(17.5) "Nonprofit organization" means an organization that is exempt from taxation pursuant to section 501 (c)(3) of

the federal "Internal Revenue Code of 1986", 26 U.S.C. sec. 501, as amended.

(18) "Occasional care" means care of children, with or without compensation, that is provided on an infrequent and irregular basis with no apparent pattern.

(18.5) "Outdoor nature-based preschool program" or "outdoor program" means a full-day or partial-day outdoor nature-based preschool program for children who are at least three years of age but under eight years of age that operates at least fifty percent of the outdoor program's operating hours outdoors in a department-approved outdoor natural space.

(19) "Person" means any corporation, partnership, association, firm, agency, institution, or individual.

(20) "Place of residence" means the place or abode where a person actually lives and provides child care.

(20.3) "Plain language" means writing that is clear, concise, well-organized, and that follows other best practices appropriate to the subject or field and intended audience, as defined by the federal "Plain Writing Act of 2010", Pub.L. 111-274.

(20.5) "Prevalent languages" means the two most prevalent languages spoken in the state of Colorado, as identified in the latest American community survey published by the federal census bureau.

(21) "Public preschool provider" means a school district, or a charter school authorized pursuant to article 30.5 of title 22, that provides a preschool program.

(22) "Public services short-term child care facility" means a facility that is operated by or for a county department of human or social services or a court and that provides care for a child:

(a) While the child's parent or the person in charge of the child is conducting business with the county department of human or social services or participating in court proceedings;

(b) Fewer than ten total hours per day;

(c) Fewer than fifteen consecutive days per year; and

(d) Fewer than forty-five days in a calendar year.

(23) "Related" means any of the following relationships by blood, marriage, or adoption: Parent, grandparent, brother, sister, stepparent, stepbrother, stepsister, uncle, aunt, niece, nephew, or cousin.

(24) "Relative" means any of the following relationships by blood, marriage, or adoption: Parent, grandparent, son, daughter, grandson, granddaughter, brother, sister, stepparent, stepbrother, stepsister, stepson, stepdaughter, uncle, aunt, niece, nephew, or cousin.

(25) "Routine medications", as used in section 26.5-5-325, means any prescribed oral, topical, or inhaled medication, or unit dose epinephrine, that is administered pursuant to section 26.5-5-325.

(25.5) "Seasonal outdoor adventure day camp program" means a program that operates for at least six hours a day, on a seasonal basis, primarily during the summer and winter months, for a number of days specific to the approved registration of seasonal outdoor adventure day camp participants. Seasonal outdoor adventure day camp programs serve children who are five years of age or older.

(26) "Sibling" means one or more individuals having one or both parents in common.

(27) "Substitute child care provider" means a person who provides temporary care for a child or children in a licensed child care facility, including a child care center and a family child care home.

(28) "Substitute placement agency" means any corporation, partnership, association, firm, agency, or institution that places or that facilitates or arranges placement of short-term or long-term substitute child care providers in licensed child care facilities providing less than twenty-four-hour care.

(29) "Supervisory employee" means, as used in section 26.5-5-307:

(a) A person directly responsible for managing a guest child care facility and the employees of the facility; or

(b) A person directly responsible for managing a public services short-term child care facility and the employees of the facility.

(30) "Youth member" means a youth who is five years of age and enrolled in kindergarten or who is older than five years of age and up to eighteen years of age whose parent or legal guardian has provided written consent for the youth to participate in the activities of a neighborhood youth organization.

Source: L. 2022: Entire article added with relocations, (HB 22-1295), ch. 123, p. 719, § 3, effective July 1; (17)(a) and (30) amended with relocations and (17.5) added with relocations (SB 22-064), ch. 22, p. 144, § 1, effective March 17. L. 2023: (1), (3), (7), (12), (13), and (16)(a) amended, (1.5) and (5.5) added, and (11) repealed, (HB 23-1235), ch. 434, p. 2546, § 10, effective June 7; (17)(a) amended, (HB 23-1301), ch. 303, p. 1836, § 62, effective August 7. L. 2024: (5) amended and (25.5) added, (SB 24-071), ch. 50, p. 176, § 1, effective April 4; (20.3) and (20.5) added, (HB 24-1009), ch. 472, p. 3318, § 2, effective June 6; (3) amended and (18.5) added, (SB 24-078), ch. 441, p. 3085, § 2, effective August 7.

Colo. Rev. Stat. § 26-6.2-301

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Text not stored locally (not in title-26.xml (renumbered or repealed since, or a cite we misread)).

8 Colo. Code Regs. 1401-1

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Text not stored locally (`tribonian state fetch CO ccr 8-1401-1` gets it).

Conn. Gen. Stat. § 46a-63

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discriminatory public accommodation practices: Definitions (current text, 2025 + 2026sup edition; retrieved 2026-10-29)
As used in this chapter:
(1) "Place of public accommodation, resort or amusement" means any establishment which caters or offers its services or facilities or goods to the general public, including, but not limited to, any commercial property or building lot, on which it is intended that a commercial building will be constructed or offered for sale or rent;
(2) "Deaf person" means a person who cannot readily understand spoken language through hearing alone and who may also have a speech defect which renders his speech unintelligible to most people with normal hearing;
(3) "Lawful source of income" means income derived from Social Security, supplemental security income, housing assistance, child support, alimony or public or state-administered general assistance.
(P.A. 80-422, S. 11; June Sp. Sess. P.A. 83-3, S. 1; P.A. 89-288, S. 1; P.A. 90-246, S. 2; P.A. 91-58, S. 23; P.A. 04-76, S. 37.)

Conn. Gen. Stat. § 46a-64

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

(Formerly Sec. 53-35). Discriminatory public accommodations practices prohibited. Penalty (current text, 2025 + 2026sup edition; retrieved 2026-10-29)
(a) It shall be a discriminatory practice in violation of this section: (1) To deny any person within the jurisdiction of this state full and equal accommodations in any place of public accommodation, resort or amusement because of race, creed, color, national origin, ancestry, sex, gender identity or expression, marital status, age, lawful source of income, intellectual disability, mental disability, physical disability, including, but not limited to, blindness or deafness, status as a veteran or status as a victim of domestic violence, of the applicant, subject only to the conditions and limitations established by law and applicable alike to all persons; (2) to discriminate, segregate or separate on account of race, creed, color, national origin, ancestry, sex, gender identity or expression, marital status, age, lawful source of income, intellectual disability, mental disability, learning disability, physical disability, including, but not limited to, blindness or deafness, status as a veteran or status as a victim of domestic violence; (3) for a place of public accommodation, resort or amusement to restrict or limit the right of a mother to breast-feed her child; (4) for a place of public accommodation, resort or amusement to refuse entry to a person with a disability who is accompanied by a service animal; or (5) to deny any person with a disability or any person training an animal as a service animal to assist a person with a disability, accompanied by such service animal, full and equal access to any place of public accommodation, resort or amusement. Any person with a disability or any person training an animal as a service animal may keep such service animal at all times in such place of public accommodation, resort or amusement at no extra charge, provided such service animal is in the direct custody and control of such person. When it is not obvious what service an animal provides, staff of a place of public accommodation, resort or amusement may inquire of the owner or keeper whether such animal is a service animal required because of a disability and what work or task the animal has been trained to perform. Nothing in this subsection shall preclude a business owner's ability to recover for damage caused to a person or property by a service animal. For the purposes of this subsection, "disability" and "service animal" have the same meanings as provided in section 22-345 and "place of public accommodation, resort or amusement" has the same meaning as provided in section 46a-44.
(b) (1) The provisions of this section with respect to the prohibition of sex discrimination shall not apply to (A) the rental of sleeping accommodations provided by associations and organizations which rent all such sleeping accommodations on a temporary or permanent basis for the exclusive use of persons of the same sex or (B) separate bathrooms or locker rooms based on sex. (2) The provisions of this section with respect to the prohibition of discrimination on the basis of age shall not apply to minors or to special discount or other public or private programs to assist persons sixty years of age and older. (3) The provisions of this section with respect to the prohibition of discrimination on the basis of physical disability shall not require any person to modify his property in any way or provide a higher degree of care for a physically disabled person, including, but not limited to blind or deaf persons, than for a person not physically disabled. (4) The provisions of this section with respect to the prohibition of discrimination on the basis of creed shall not apply to the practice of granting preference in admission of residents into a nursing home as defined in section 19a-490, if (A) the

nursing home is owned, operated by or affiliated with a religious organization, exempt from taxation for federal income tax purposes and (B) the class of persons granted preference in admission is consistent with the religious mission of the nursing home. (5) The provisions of this section with respect to the prohibition of discrimination on the basis of lawful source of income shall not prohibit the denial of full and equal accommodations solely on the basis of insufficient income.
(c) Any person who violates any provision of this section shall be guilty of a class D misdemeanor.
(1949 Rev., S. 8375; 1949, 1953, S. 3267d; 1959, P.A. 113; 1961, P.A. 472; 1963, P.A. 594; February, 1965, P.A. 141; 1967, P.A. 177, S. 1; 1972, P.A. 186, S. 15; P.A. 73-119; 73-279, S. 6; P.A. 74-205; P.A. 75-323; P.A. 76-49, S. 3; P.A. 77-604, S. 37, 84; P.A. 78-148, S. 12; P.A. 79-186; P.A. 80-422, S. 12; 80-483, S. 135, 186; P.A. 85-289, S. 7; 85-512, S. 5; P.A. 88-114; 88-288; P.A. 89-21, S. 2; 89-288, S. 2; P.A. 90-230, S. 63, 101; 90-246, S. 3; 90-330, S. 4, 11; P.A. 94-238, S. 4, 6; P.A. 97-141, S. 2; 97-210, S. 1; P.A. 07-217, S. 167; P.A. 11-55, S. 25; 11-129, S. 20; P.A. 12-80, S. 94; P.A. 17-127, S. 5; P.A. 22-82, S. 13; P.A. 24-18, S. 12.)

D.C. Code § 2-1402.31

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Prohibitions (current text, retrieved 2026-10-29)
(a) General. — It shall be an unlawful discriminatory practice to do any of the following acts, wholly or partially for a discriminatory reason based on the actual or perceived: race, color, religion, national origin, sex, age, marital status, personal appearance, sexual orientation, gender identity or expression, familial status, family responsibilities, genetic information, disability, matriculation, political affiliation, source of income, or place of residence or business of any individual:

(1) To deny, directly or indirectly, any person the full and equal enjoyment of the goods, services, facilities, privileges, advantages, and accommodations of any place of public accommodations;

(2) To print, circulate, post, or mail, or otherwise cause, directly or indirectly, to be published a statement, advertisement, or sign which indicates that the full and equal enjoyment of the goods, services, facilities, privileges, advantages, and accommodations of a place of public accommodation will be unlawfully refused, withheld from or denied an individual; or that an individual's patronage of, or presence at, a place of public accommodation is objectional, unwelcome, unacceptable, or undesirable.

(3) A health benefit plan or health insurer shall not establish rules for the eligibility, new or continued, of any individual or adjust premium or contribution amounts for an individual on the basis of genetic information concerning the individual or family member of the individual, including information about a request for or receipt of genetic services by an individual or the individual's family member.

(4) A health benefit plan or health insurer shall not request or require an individual or the individual's family member to undergo a genetic test. Nothing in this paragraph shall:

(A) Limit the authority of a health care professional who is providing health care services to an individual to request that the individual or the individual's family member undergo a genetic test;

(B) Limit the authority of a health care professional who is employed by or affiliated with a health benefit plan or a health insurer and who is providing health care services to an individual to notify such individual of the availability of a genetic test or to provide information to such individual regarding such genetic test; or

(C) Authorize or permit a health care professional to require that an individual undergo a genetic test.

(b) Subterfuge. — It is further unlawful to do any of the above said acts for any reason that would not have been asserted but for, wholly or partially, a discriminatory reason based on the actual or perceived: race, color, religion, national origin, sex, age, marital status, personal appearance, sexual orientation, gender identity or expression, familial status, family responsibilities, genetic information, disability, matriculation, political affiliation, source of income, or place of residence or business of any individual.
(c) Repealed.
History Dec. 13, 1977, D.C. Law 2-38, title II, § 231, 24 DCR 6038 June 28, 1994, D.C. Law 10-129, § 2(e), 41 DCR 2583 Apr. 20, 1999, D.C. Law 12-242,§ 2(f), 46 DCR 952 Apr. 12, 2000, D.C. Law 13-91, § 133, 47 DCR 520 Apr. 19, 2002, D.C. Law 14-114, § 292(c), 49 DRC 1468 Oct. 1, 2002, D.C. Law 14-189, § 2(d), 49 DCR 6523 Apr. 5, 2005, D.C. Law 15-263, § 2(e), 52 DCR 237 Apr. 13, 2005, D.C. Law 15-354, § 8(b), 52 DCR 2638 Mar. 8, 2006, D.C. Law 16-58, § 2(e), 53 DCR 14

Del. Code Ann. tit. 6, § 4500

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Short title (current text, retrieved 2026-10-26)
This chapter may be cited as the "Delaware Equal Accommodations Law."
70 Del. Laws, c. 350, § 1;

Del. Code Ann. tit. 6, § 4504

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Unlawful practices (current text, retrieved 2026-10-26)

(a) (1) a. No person being the owner, lessee, proprietor, manager, director, supervisor, superintendent, agent, or employee of any place of public accommodation, may directly or indirectly refuse, withhold from, or deny to any person, on account of race, age, marital status, creed, religion, color, sex, disability, sexual orientation, gender identity, military status, or national origin, any of the accommodations, facilities, advantages, or privileges of the public accommodation.

b. A person who does not allow parking by a holder of a special license plate or permit for persons with disabilities as allowed under § 2134 through § 2135 of Title 21 is engaged in an unlawful practice under this chapter.

(2) A place of public accommodation may provide reasonable accommodations based on gender identity in areas of facilities where disrobing is likely, such as locker rooms or other changing facilities, which reasonable accommodations may include a separate or private place for the use of persons whose gender-related identity, appearance or expression is different from their assigned sex at birth, provided that such reasonable accommodations are not inconsistent with the gender-related identity of such persons.

(3) A place of public accommodation must permit service animals as follows:

a. An individual with a disability accompanied by a service animal in any place of public accommodation.

b. An individual training a service animal to be used by persons with disabilities accompanied by a service animal in any place of public accommodation.

(4) Except as provided under paragraph (a)(6) of this section, it is a violation of paragraph (a)(1)a. of this section for a person to do any of the following:

a. To impose or apply eligibility criteria that screen out or tend to screen out an individual with a disability or any class of individuals with disabilities from fully and equally enjoying any goods, services, facilities, privileges, advantages, or accommodations of a place of public accommodation, unless the criteria can be shown to be necessary for the provision of the goods, services, facilities, privileges, advantages, or accommodations being offered.

b. To fail to make reasonable modifications in policies, practices, or procedures to afford goods, services, facilities, privileges, advantages, or accommodations to individuals with disabilities, unless the place of public accommodation can demonstrate that making the modifications would fundamentally alter the nature of the goods, services, facilities, privileges, advantages, or accommodations.

c. To fail to take measures that may be necessary to ensure that no individual with a disability is excluded, denied services, segregated, or otherwise treated differently than other individuals because of the absence of auxiliary aids and services, unless the place of public accommodation can demonstrate that taking the steps would fundamentally alter the nature of the goods, services, facilities, privileges, advantages, or accommodations being offered or would result in an undue burden.

d. 1. To fail to remove architectural barriers and communication barriers that are structural in nature, where such removal is readily achievable, in existing facilities,

2. Where a place of public accommodation can demonstrate that the removal of a barrier under paragraph (a)(4)d.1. of this section is not readily achievable, to fail to make goods, services, facilities, privileges, advantages, or accommodations available through alternative methods if such methods are readily achievable.

(5) Nothing in paragraph (a)(4) of this section may be construed to require either of the following:

a. An individual with a disability to accept an accommodation, modification, aid, service, opportunity, or benefit that the individual chooses not to accept.

b. A place of public accommodation to provide individuals with disabilities with personal devices, such as wheelchairs, eyeglasses, hearing aids, or readers for personal use or study, or personal services to assist with feeding, toileting, or dressing.

(6) Paragraph (a)(4) of this section does not apply to religious organizations or entities controlled by religious organizations, including places of worship.

(b) (1) No person, being the owner, lessee, proprietor, manager, superintendent, agent, or employee of any place of public accommodation, shall directly or indirectly publish, issue, circulate, post, or display any written, typewritten, mimeographed, printed, television, Internet, or radio communications notice or advertisement to the effect that any of the accommodations, facilities, advantages, and privileges of any place of public accommodation shall be refused, withheld from or denied to any person on account of race, age, marital status, creed, religion, color, sex, disability, sexual orientation, gender identity, military status, or national origin, or that the patronage or custom thereat of any person belonging to, purporting to be, or appearing to be of any particular race, age, marital status, creed, religion, color, sex, disability, sexual orientation, gender identity, military status, or national origin is unlawful, objectionable, or not acceptable, desired, accommodated, or solicited, or that the patronage of persons of any particular race, age, marital status, creed, religion, color, sex, disability, sexual orientation, gender identity, military status, or national origin

is preferred or is particularly welcomed, desired, or solicited.

(2) A sign that prohibits parking by a holder of a special license plate or permit for persons with disabilities as allowed under § 2134 through § 2135 of Title 21 is a violation under paragraph (b)(1) of this section.

(c) It is unlawful to assist, induce, incite, or coerce another person to commit any discriminatory public accommodations practice prohibited under subsection (a) or (b) of this section.

(d) Requirements for newly constructed places of public accommodation. — All buildings which are constructed after January 1, 2011, and intended for use as places of public accommodation (as defined in § 4502 of this title), must be equipped with an automatic door or calling device at each entrance that is intended to be a main entrance accessible by members of the general public. For purposes of this subsection, a calling device shall mean any device that allows a person with a disability to request assistance with entry meeting the following minimum specifications:

(1) The device must provide a recognizable signal inside the place of public accommodation;

(2) The device must be capable of being operated using only 1 hand or limb;

(3) The device must have at least 1 sign next to it which identifies the device and how to use it; and

(4) The device must be capable of being operated in accordance with all requirements of the Americans with Disabilities Act [42 U.S.C. § 12101 et seq.] Accessibility Guidelines.

(e) Nothing in this section may be interpreted as an abrogation of any requirements otherwise imposed by applicable federal or state laws or regulations.

(1) If federal or state law provide additional rights to members of a protected class or requirements for a place of public accommodation, this section must be interpreted as providing that right or requirement.

(2) Discrimination prohibited under this chapter shall continue to include those acts prohibited on the basis of disability by 29 U.S.C. § 794, and any implementing regulations, as those regulations were in effect as January 1, 2025.

(3) The provisions of this section shall be interpreted broadly and to the fullest extent possible under state and federal law, in order to continue the protections afforded persons with disabilities under this chapter and throughout the general laws of the state.

(4) Whenever the term "§ 504 of the Rehabilitation Act" or "§ 504" appears outside of this section, in Delaware Code or regulations, when used in the context of the Rehabilitation Act of 1973, 29 U.S.C. § 794, that term will be interpreted to mean this chapter, the Delaware Equal Accommodations Law.

(f) A person, being the owner, lessee, proprietor, manager, director, supervisor, superintendent, agent, or employee of any place of public accommodation, may not engage in an act or practice that is unlawful under subsections (a) through (d) of this section or otherwise retaliate against an individual because the individual has done 1 of the following:

(1) Opposed an act or practice that is unlawful under subsections (a) through (d) of this section.

(2) Made a charge, testified, assisted, or participated in any manner in an investigation, proceeding, or hearing to enforce subsections (a) through (d) of this section.

(g) A place of public accommodation may not deny a request by an individual with a disability for a reasonable modification or for auxiliary aids or services solely because the individual did not use the exact terms under this chapter when making the request, such as by requesting a "reasonable accommodation" or for the auxiliary aid or service.

6 Del. C. 1953, § 4504; 54 Del. Laws, c. 181, § 1; 58 Del. Laws, c. 133, § 1; 58 Del. Laws, c. 386, § 1; 65 Del. Laws, c. 377, § 3; 66 Del. Laws, c. 68, § 1; 70 Del. Laws, c. 350, § 1; 75 Del. Laws, c. 356, §§ 10, 28; 77 Del. Laws, c. 90, § 4; 77 Del. Laws, c. 346, §§ 2, 4; 79 Del. Laws, c. 47, § 5; 81 Del. Laws, c. 440, § 3; 82 Del. Laws, c. 209, § 1; 83 Del. Laws, c. 74, § 4; 83 Del. Laws, c. 160, § 1; 83 Del. Laws, c. 450, § 4; 85 Del. Laws, c. 68, § 14; 85 Del. Laws, c. 104, § 1; 85 Del. Laws, c. 286, § 1;

Del. Code Ann. tit. 6, § 4602

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Definitions (current text, retrieved 2026-10-26)

For purposes of this chapter:

(1) "Age" — For the purpose of defining what is a discriminatory housing practice, "age" means any age 18 years or older.

(2) "Aggrieved persons" includes any person who:

a. Claims to have been injured, directly or indirectly, by a discriminatory housing practice;

b. Believes that such person will be injured, directly or indirectly, by a discriminatory housing practice that is about to occur; or

c. Is associated with a person having a protected status under this chapter and claims to have been injured, directly or indirectly, as a result of a discriminatory housing practice against such person having the protected status.

(3) "Chairperson" means the Chairperson of the Delaware Human and Civil Rights Commission.

(4) "Commission" means the Delaware Human and Civil Rights Commission.

(5) "Complainant" means the person (including the Commission) who files a complaint under § 4610 of this title.

(6) "Conciliation" means the attempted resolution of issues raised by a complaint, or by the investigation of such complaint, through informal negotiations involving the aggrieved person, the respondent and the Commission.
(7) "Conciliation agreement" means a written agreement setting forth the resolution of the issues in conciliation.
(8) "Court" means the Superior Court of the State unless otherwise designated.
(9) "Covered multifamily dwellings" means:
a. Buildings consisting of 4 or more dwelling units if such buildings have 1 or more elevators; and
b. Ground floor dwelling units in other buildings consisting of 4 or more dwelling units.
(10) "Disability" means as defined in § 4502 of this title.
(11) "Discriminatory housing practice" means an act that is unlawful under § 4603, § 4604, § 4605, § 4606 or § 4618 of this title.
(12) "Division" means the Division of Human and Civil Rights.
(13) "Dwelling" means any building, structure or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by 1 or more families, together with any land which is offered for sale, rent or exchange therewith and also means any vacant land which is offered for sale, lease or exchange for the construction or location thereon of any such building, structure or portion thereof. "Dwelling" also includes the public and common use areas associated therewith.
(14) "Familial status" means: one or more individuals who have not attained the age of 18 years being domiciled with:
a. A parent or another person having legal custody of such individual or individuals; or
b. The designee of such parent or other person having such custody, with the written permission of such parent or other person; or
c. Any person who is pregnant or is in the process of securing legal custody of any individual who has not attained the age of 18 years.
(15) "Family" includes a single individual.
(16) "Gender identity" means a gender-related identity, appearance, expression or behavior of a person, regardless of the person's assigned sex at birth.
(17) "Housing for older persons" means housing:
a. Provided under any state or federal program that the Commission determines is specifically designed and operated to assist elderly persons;
b. Intended for, and solely occupied by, persons 62 years of age or older; or
c. Intended and operated for occupancy by at least 1 person 55 years of age or older per unit. In determining whether housing qualifies as housing for older persons under this subsection, the Commission shall develop regulations which shall require at least the following factors:
1. That at least 80 percent of the units are occupied by at least 1 person 55 years of age or older per unit; and
2. The publication of, and adherence to, policies and procedures which demonstrate an intent by the owner or manager to provide housing for persons 55 years of age or older.
(18) "Housing status" means an individual, family, or youth's current overnight residence regardless of permanence or habitability.
(19) "Marital status" means the legal relationship of parties as determined by the laws of marriage applicable to them or the absence of such a legal relationship.
(20) "Military status" means status as any of the following:
a. A member of the uniformed forces, as defined in 10 U.S.C. § 101, or a reserve component thereof listed under 10 U.S.C. § 10101.
b. A "veteran" as defined in 38 U.S.C. § 101.
c. A "dependent" of a servicemember as defined in 50 U.S.C. § 3911.
(21) "Panel" means 3 or more Commissioners appointed by the Chair to perform any act authorized under this chapter.
(22) "Panel Chair": that Commissioner designated by the Commission Chair to preside at case hearings, and, further, to perform such other duties as may be specified by applicable laws and regulations.
(23) "Person" includes 1 or more individuals, corporations, partnerships, associations, labor organizations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees, trustees in bankruptcy in cases under Title 11 of the United States Code, receivers, fiduciaries and land use commissions or boards.
(24) "Protective hairstyle" includes braids, locks, and twists.
(25) "Race" includes traits historically associated with race, including hair texture and a protective hairstyle.
(26) "Residential real estate-related transaction" means any of the following:
a. The making, brokering or purchasing of loans or providing other financial assistance:
1. For purchasing, constructing, improving, repairing or maintaining a dwelling; or
2. Secured by residential real estate; or
b. The selling, brokering or appraising of residential real property.

(27) "Respondent" means:

a. The person or other entity accused in a complaint of an unfair housing practice; and

b. Any other person or entity identified in the course of investigation and notified as required with respect to respondents so identified under § 4610(a)(2)a. of this title.

(28) "Sexual orientation" includes heterosexuality, homosexuality, bisexuality, asexuality, or pansexuality.

(29) "Source of income" means any lawful source of money paid directly, indirectly, or on behalf of a renter or buyer of housing including:

a. Income derived from any lawful profession or occupation;

b. Income or rental payments derived from any government or private assistance, grant, or loan program.

(30) "Special Administration Fund" means the Fund established and maintained pursuant to § 3005 of Title 31.

(31) "To rent" includes to lease, to sublease, to assign a lease, to let and otherwise to grant, continue or renew for a consideration the right to occupy premises not owned by the occupant.

(32) "To sell" or "sale" includes a sale, gift, exchange or other means of conveyance.

6 Del. C. 1953, § 4601; 57 Del. Laws, c. 32, § 1; 62 Del. Laws, c. 330, § 2; 68 Del. Laws, c. 311, § 1; 75 Del. Laws, c. 356, §§ 21-23, 27; 77 Del. Laws, c. 90, § 6; 79 Del. Laws, c. 47, §§ 7, 8; 80 Del. Laws, c. 355, § 2; 83 Del. Laws, c. 13, § 3; 83 Del. Laws, c. 195, § 2; 83 Del. Laws, c. 305, § 5; 84 Del. Laws, c. 428, § 1; 84 Del. Laws, c. 530, § 2; 85 Del. Laws, c. 104, § 2;

Del. Code Ann. tit. 6, § 4603

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discrimination in sale or rental of housing and other prohibited practices (current text, retrieved 2026-10-26)

(a) For purposes of paragraphs (b)(1)-(5) of this section, the unlawful discrimination against a person on the basis of a specified protected status refers to the protected status of any of the following:

(1) A buyer, renter, or aggrieved person.

(2) A person residing in or intending to reside in that dwelling after it is sold, rented, or made available.

(3) A person associated with that buyer or renter.

(b) Except as exempted by § 4607 of this title, it is unlawful:

(1) To discriminate in the sale or rental, to refuse to sell or rent, to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, national origin, religion, creed, sex, marital status, familial status, source of income, age, sexual orientation, gender identity, disability, military status, or housing status.

(2) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, national origin, religion, creed, sex, marital status, familial status, source of income, age, sexual orientation, gender identity, disability, military status, or housing status.

(3) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination based on race, color, national origin, religion, creed, sex, marital status, familial status, source of income, age, sexual orientation, gender identity, disability, military status, or housing status, or an intention to make any such preference, limitation, or discrimination. However, nothing in this chapter restricts the inclusion of information about the availability of housing accessible to persons with a disability in advertising of dwellings.

(4) To represent to any person because of race, color, national origin, religion, creed, sex, marital status, familial status, source of income, age, sexual orientation, gender identity, disability, military status, or housing status that any dwelling is not available for inspection, sale or rental when such dwelling is in fact so available.

(5) To induce or attempt to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, color, national origin, religion, creed, sex, marital status, familial status, source of income, age, sexual orientation, gender identity, disability, military status, or housing status.

(6) The rights provided under this subsection do not preclude a landlord's consideration of any other factor not enumerated herein that is permissible under Delaware state or federal law.

(c) Nothing in this section requires that a dwelling be made available to persons with disabilities whose tenancy would constitute a direct threat to the health or safety of other individuals or whose tenancy would result in substantial physical damage to the property of others.

6 Del. C. 1953, § 4603; 57 Del. Laws, c. 32, § 1; 58 Del. Laws, c. 133, § 2; 58 Del. Laws, c. 386, § 2; 62 Del. Laws, c. 330, §§ 4, 5; 68 Del. Laws, c. 311, § 1; 75 Del. Laws, c. 356, §§ 24, 26, 28, 37, 38; 77 Del. Laws, c. 90, § 7; 79 Del. Laws, c. 47, § 9; 80 Del. Laws, c. 355, § 3; 84 Del. Laws, c. 428, § 1; 85 Del. Laws, c. 104, § 2;

Fla. Stat. § 252.3712

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Nonprofit Security Grant Program.— (current text, 2026 edition; retrieved 2026-10-29)

(1) The division shall establish a Nonprofit Security Grant Program that shall consist of funds appropriated by the Legislature to nonprofit organizations, including houses of worship, schools, museums, and community centers, that are at high risk for violent attacks or hate crimes. The grants may be used to increase security and safety, including, but not limited to:

(a) The purchase and installation of security infrastructure, perimeter lighting, materials for door hardening, security camera systems, perimeter fencing, barriers and bollards, and blast-resistant film and shatter-resistant glass for windows.

(b) Hiring security personnel.

(c) Training for security personnel and staff on threat awareness, emergency procedures, and first aid.

(2) The division shall award grants to applicants that meet eligibility criteria for the United States Department of Homeland Security's Nonprofit Security Grant Program.

(3) The minimum amount of any grant award is $10,000, and the maximum grant award amount is $150,000. The total amount of funds available for the program is limited to the amount appropriated by the Legislature.

(4) The division may use up to 3 percent of the total amount appropriated to administer the grant program.

(5) The division shall adopt rules to administer this section, including rules providing criteria for all of the following:

(a) Awarding of grant funds to an owner of a facility for hardening security measures.

(b) Awarding of grant funds to an owner or a renter of a facility for nonhardening security measures.

(c) Establishing the need for grant funds to be awarded to an owner or a renter of a facility that has been operational for a period of at least 6 months or that has received a sufficient number of threats.

(d) Prioritizing applicants that are houses of worship or whose facilities are frequented by children or students on a daily basis.

(6) By June 1, 2024, and annually thereafter, the division shall provide a list of grants awarded during that fiscal year to the President of the Senate and the Speaker of the House of Representatives.

(7) This section is repealed January 1, 2028, unless reviewed and saved from repeal through reenactment by the Legislature.

History.—s. 1, ch. 2023-180; s. 1, ch. 2023-352.

Fla. Stat. § 553.503

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Adoption of federal standards.— (current text, 2026 edition; retrieved 2026-10-29)

Subject to modifications under this part, the federal Americans with Disabilities Act Standards for Accessible Design, and related regulations provided in 28 C.F.R. parts 35 and 36 and 49 C.F.R. part 37, are hereby adopted and incorporated by reference as the law of this state and shall be incorporated into the Florida Accessibility Code for Building Construction and adopted by the Florida Building Commission in accordance with chapter 120.

History.—s. 1, ch. 93-183; s. 2, ch. 97-76; s. 65, ch. 2000-141; s. 59, ch. 2000-154; s. 22, ch. 2011-222.

Fla. Stat. § 760.08

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discrimination in places of public accommodation.— (current text, 2026 edition; retrieved 2026-10-29)

All persons are entitled to the full and equal enjoyment of the goods, services, facilities, privileges, advantages, and accommodations of any place of public accommodation without discrimination or segregation on the ground of race, color, national origin, sex, pregnancy, handicap, familial status, or religion.

History.—s. 5, ch. 2003-396; s. 5, ch. 2015-68.

Fla. Stat. § 760.23

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discrimination in the sale or rental of housing and other prohibited practices.— (current text, 2026 edition; retrieved 2026-10-29)

(1) It is unlawful to refuse to sell or rent after the making of a bona fide offer, to refuse to negotiate for the sale or rental of, or otherwise to make unavailable or deny a dwelling to any person because of race, color, national origin, sex, disability, familial status, or religion.

(2) It is unlawful to discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, national origin, sex, disability, familial status, or religion.

(3) It is unlawful to make, print, or publish, or cause to be made, printed, or published, any notice, statement, or advertisement with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination based on race, color, national origin, sex, disability, familial status, or religion or an intention to make any such preference, limitation, or discrimination.
(4) It is unlawful to represent to any person because of race, color, national origin, sex, disability, familial status, or religion that any dwelling is not available for inspection, sale, or rental when such dwelling is in fact so available.
(5) It is unlawful, for profit, to induce or attempt to induce any person to sell or rent any dwelling by a representation regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, color, national origin, sex, disability, familial status, or religion.
(6) The protections afforded under ss. 760.20-760.37 against discrimination on the basis of familial status apply to any person who is pregnant or is in the process of securing legal custody of any individual who has not attained the age of 18 years.
(7) It is unlawful to discriminate in the sale or rental of, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a disability of:
(a) That buyer or renter;
(b) A person residing in or intending to reside in that dwelling after it is sold, rented, or made available; or
(c) Any person associated with the buyer or renter.
(8) It is unlawful to discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection with such dwelling, because of a disability of:
(a) That buyer or renter;
(b) A person residing in or intending to reside in that dwelling after it is sold, rented, or made available; or
(c) Any person associated with the buyer or renter.
(9) For purposes of subsections (7) and (8), discrimination includes:
(a) A refusal to permit, at the expense of the person with a disability, reasonable modifications of existing premises occupied or to be occupied by such person if such modifications may be necessary to afford such person full enjoyment of the premises; or
(b) A refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling.
(10) Covered multifamily dwellings as defined herein which are intended for first occupancy after March 13, 1991, shall be designed and constructed to have at least one building entrance on an accessible route unless it is impractical to do so because of the terrain or unusual characteristics of the site as determined by commission rule. Such buildings shall also be designed and constructed in such a manner that:
(a) The public use and common use portions of such dwellings are readily accessible to and usable by persons with disabilities.
(b) All doors designed to allow passage into and within all premises within such dwellings are sufficiently wide to allow passage by a person in a wheelchair.
(c) All premises within such dwellings contain the following features of adaptive design:
1. An accessible route into and through the dwelling.
2. Light switches, electrical outlets, thermostats, and other environmental controls in accessible locations.
3. Reinforcements in bathroom walls to allow later installation of grab bars.
4. Usable kitchens and bathrooms such that a person in a wheelchair can maneuver about the space.
(d) Compliance with the appropriate requirements of the American National Standards Institute for buildings and facilities providing accessibility and usability for persons with physical disabilities, commonly cited as ANSI A117.1-1986, suffices to satisfy the requirements of paragraph (c).
State agencies with building construction regulation responsibility or local governments, as appropriate, shall review the plans and specifications for the construction of covered multifamily dwellings to determine consistency with the requirements of this subsection.
History.—s. 5, ch. 83-221; s. 2, ch. 84-117; s. 2, ch. 89-321; s. 6, ch. 2020-76.

Fla. Stat. § 828.12

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).
Cited as the 1987 edition; the text below is the current one.

Cruelty to animals.— (current text, 2026 edition; retrieved 2026-10-29)
(1) A person who unnecessarily overloads, overdrives, torments, deprives of necessary sustenance or shelter, or unnecessarily mutilates, or kills any animal, or causes the same to be done, or carries in or upon any vehicle, or otherwise, any animal in a cruel or inhumane manner, commits animal cruelty, a misdemeanor of the first degree, punishable as provided in s. 775.082 or by a fine of not more than $5,000, or both.

(2) A person who intentionally commits an act to any animal, or a person who owns or has the custody or control of any animal and fails to act, which results in the cruel death, or excessive or repeated infliction of unnecessary pain or suffering, or causes the same to be done, commits aggravated animal cruelty, a felony of the third degree, punishable as provided in s. 775.082 or by a fine of not more than $10,000, or both.

(a) A person convicted of a violation of this subsection, where the finder of fact determines that the violation includes the knowing and intentional torture or torment of an animal that injures, mutilates, or kills the animal, shall be ordered to pay a minimum mandatory fine of $2,500 and undergo psychological counseling or complete an anger management treatment program.

(b) A person convicted of a second or subsequent violation of this subsection shall be required to pay a minimum mandatory fine of $5,000 and serve a minimum mandatory period of incarceration of 6 months. In addition, the person shall be released only upon expiration of sentence, is not eligible for parole, control release, or any form of early release, and must serve 100 percent of the court-imposed sentence. Any plea of nolo contendere shall be considered a conviction for purposes of this subsection.

(3) A person who commits multiple acts of animal cruelty or aggravated animal cruelty against an animal may be charged with a separate offense for each such act. A person who commits animal cruelty or aggravated animal cruelty against more than one animal may be charged with a separate offense for each animal such cruelty was committed upon.

(4) A person 18 years of age or older commits a felony of the third degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084, if he or she causes or entices a minor to commit, or in the presence of a minor commits, a violation of subsection (2).

(5) (a) If a minor commits an act of animal cruelty as described in subsection (1) or subsection (2), the juvenile court must order the minor to undergo a psychological evaluation and, if recommended, receive counseling or treatment for a length of time as prescribed by the juvenile court.

(b) The minor's parent or guardian, or the state if the minor is a ward of the state, shall pay the cost of the psychological evaluation, counseling, or treatment as ordered by the juvenile court in paragraph (a). If the juvenile court makes a finding of indigency and significant financial hardship, the court shall waive the fee or reduce it to an amount deemed appropriate. If the minor's parent or guardian willfully refuses to follow the recommended treatment for the minor, the juvenile court may hold the parent or guardian in contempt.

(6) A veterinarian licensed to practice in the state shall be held harmless from either criminal or civil liability for any decisions made or services rendered under the provisions of this section. Such a veterinarian is, therefore, under this subsection, immune from a lawsuit for his or her part in an investigation of cruelty to animals.

(7) A person who intentionally trips, fells, ropes, or lassos the legs of a horse by any means for the purpose of entertainment or sport commits a felony of the third degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084. As used in this subsection, the term "trip" means any act that consists of the use of any wire, pole, stick, rope, or other apparatus to cause a horse to fall or lose its balance, and the term "horse" means any animal of any registered breed of the genus Equus, or any recognized hybrid thereof. This subsection does not apply when tripping is used:

(a) To control a horse that is posing an immediate threat to other livestock or human beings;

(b) For the purpose of identifying ownership of the horse when its ownership is unknown; or

(c) For the purpose of administering veterinary care to the horse.

(8) In addition to other penalties prescribed by law, a person who is convicted of a violation of this section may be prohibited by the court from owning, possessing, keeping, harboring, or having custody or control over any animal for a period of time determined by the court.

(9) (a) By January 1, 2027, the Department of Law Enforcement shall post on its website, in a searchable format prescribed by the department, the names and any aliases, the date of birth, the race, the counties of conviction, the charge or charges, the case numbers, the dispositions, the description of any identifying marks and tattoos, and a photograph taken at the time of booking related to the animal cruelty offense of each individual who has been convicted of, or who has entered a plea of guilty or nolo contendere to, regardless of adjudication, a violation of this section.

(b) The department shall post the information about each individual as required in paragraph (a) for the following periods:

1. Three years from the date of conviction, for a first conviction of a misdemeanor offense.

2. Five years from the date of conviction, for a first conviction of a felony offense.

3. Ten years from the date of conviction, for a subsequent conviction of either a misdemeanor or felony offense.

(c) The department shall develop a procedure to allow a person whose conviction has been overturned or who has received a sealing of the criminal history record for which his or her information was publicly posted as required in paragraph (a) to petition for the removal of his or her information. The department, after receiving a petition with adequate documentation, must remove such information from the website within 30 days. The department may adopt rules to implement this paragraph.

(d) Each clerk of court and county detention facility must provide the Department of Law Enforcement with the

information, data, and images required in paragraph (a).

(10) Each clerk of court and county detention facility must provide the Department of Law Enforcement with the information, data, and images required in subsection (9).

History.—s. 4, ch. 4971, 1901; GS 3395; RGS 5244; CGL 7363; s. 2, ch. 70-50; s. 4, ch. 71-12; s. 949, ch. 71-136; s. 1, ch. 82-116; s. 2, ch. 89-194; s. 5, ch. 94-339; s. 1286, ch. 97-102; s. 26, ch. 99-391; s. 35, ch. 2000-308; s. 1, ch. 2002-51; s. 1, ch. 2013-245; s. 2, ch. 2018-87; s. 2, ch. 2025-102; s. 1, ch. 2026-76; s. 1, ch. 2026-78.

Ga. Const. art. LVI

Cited by the petitioners 0 times (0 filings) and their amici 4 (2); by the respondent 0 (0) and its amici 0 (0).

Source error: not sourced: the state's code (LexisNexis-only, terms forbid automated access; see DATASOURCES.md) carries it, and no separately published official text has been evaluated yet

Ga. Code Ann. § 20-2-642

Cited by the petitioners 0 times (0 filings) and their amici 2 (2); by the respondent 0 (0) and its amici 0 (0).

Cited as the 1961 edition; the text below is the current one.

Source error: LexisNexis-only publication; its terms forbid automated access (see DATASOURCES.md)

Ga. Code Ann. § 160-5-1

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (1).

Source error: LexisNexis-only publication; its terms forbid automated access (see DATASOURCES.md)

Haw. Rev. Stat. § 489-3

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (2).

Discriminatory practices prohibition (current text, retrieved 2026-10-29)

Unfair discriminatory practices that deny, or attempt to deny, a person the full and equal enjoyment of the goods, services, facilities, privileges, advantages, and accommodations of a place of public accommodation on the basis of race; sex, including gender identity or expression; sexual orientation; color; religion; ancestry; or disability, including the use of a service animal, are prohibited. [L 1986, c 292, pt of §1; am L 1990, c 210, §2; am L 1992, c 33, §5; am L 2006, c 76, §3; am L 2018, c 217, §8]

Haw. Rev. Stat. § 515-3

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discriminatory practices (current text, retrieved 2026-10-29)

(a) It is a discriminatory practice for an owner or any other person engaging in a real estate transaction, or for a real estate broker or salesperson, because of race; sex, including gender identity or expression; sexual orientation; color; religion; marital status; familial status; ancestry; disability; age; or human immunodeficiency virus infection:

(1) To refuse to engage in a real estate transaction with a person;

(2) To discriminate against a person in the terms, conditions, or privileges of a real estate transaction or in the furnishing of facilities or services in connection with a real estate transaction;

(3) To refuse to receive or to fail to transmit a bona fide offer to engage in a real estate transaction from a person;

(4) To refuse to negotiate for a real estate transaction with a person;

(5) To represent to a person that real property is not available for inspection, sale, rental, or lease when in fact it is available; fail to bring a property listing to the person's attention; refuse to permit the person to inspect real property; or steer a person seeking to engage in a real estate transaction;

(6) To offer, solicit, accept, use, or retain a listing of real property with the understanding that a person may be discriminated against in a real estate transaction or in the furnishing of facilities or services in connection with a real estate transaction;

(7) To solicit or require as a condition of engaging in a real estate transaction that the buyer, renter, or lessee be tested for human immunodeficiency virus infection, the causative agent of acquired immunodeficiency syndrome;

(8) To refuse to permit, at the expense of a person with a disability, reasonable modifications to existing premises occupied or to be occupied by the person if modifications may be necessary to afford the person full enjoyment of the premises; provided that a real estate broker or salesperson, where it is reasonable to do so, may condition permission for a modification on the person agreeing to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted;

(9) To refuse to make reasonable accommodations in rules, policies, practices, or services, when the accommodations may be necessary to afford a person with a disability equal opportunity to use and enjoy a housing accommodation; provided that if reasonable accommodations include the use of an assistance animal, reasonable restrictions may

be imposed; provided further that if the disability is not readily apparent, an owner or other person engaging in a real estate transaction may request information that verifies that the person has a disability, defined as a physical or mental impairment that substantially limits a major life activity. An owner or other person engaging in a real estate transaction shall not request medical records or access to health care providers, and shall not inquire as to the diagnosis, nature, or severity of the person's disability. If the disability-related need for an assistance animal is not readily apparent, an owner or other person engaging in a real estate transaction may request verification that the assistance animal is needed to alleviate one or more symptoms of the person's disability. Verification may be provided by a letter or other communication from the person's treating health care professional, mental health professional, or social worker. Possession of a vest or other distinguishing animal garment, tag, or registration documents that are commonly purchased online and purporting to identify an animal as a service animal or assistance animal shall not constitute valid verification;

(10) In connection with the design and construction of covered multifamily housing accommodations for first occupancy after March 13, 1991, to fail to design and construct housing accommodations in such a manner that:

(A) The housing accommodations have at least one accessible entrance, unless it is impractical to do so because of the terrain or unusual characteristics of the site; and

(B) With respect to housing accommodations with an accessible building entrance:

(i) The public use and common use portions of the housing accommodations are accessible to and usable by persons with disabilities;

(ii) Doors allow passage by persons in wheelchairs; and

(iii) All premises within covered multifamily housing accommodations contain an accessible route into and through the housing accommodations; light switches, electrical outlets, thermostats, and other environmental controls are in accessible locations; reinforcements in the bathroom walls allow installation of grab bars; and kitchens and bathrooms are accessible by wheelchair; or

(11) To discriminate against or deny a person access to or membership or participation in any multiple listing service, real estate broker's organization, or other service, organization, or facility involved either directly or indirectly in real estate transactions, or to discriminate against any person in the terms or conditions of access, membership, or participation.

(b) For purposes of this section, "assistance animal" means an animal that is needed to perform disability-related work, services, or tasks for the benefit of a person with a disability or provide emotional support that alleviates one or more identified symptoms or effects of a person's disability. "Assistance animals" may include but are not limited to service animals, therapy animals, comfort animals, or emotional support animals that may have formal training or may be untrained and may include species other than dogs. [L 1967, c 193, §3; HRS §515-3; am L 1971, c 124, §1; am L 1975, c 109, §5; am L 1976, c 159, §4; am L 1984, c 105, §2; gen ch 1985; am L 1987, c 365, §1 and c 370, §1; am L 1989, c 391, §2; am L 1990, c 67, §8 and c 275, §3; am L 1991, c 178, §2; am L 1992, c 33, §4 and c 171, §3; am L 1993, c 140, §2; am L 1997, c 311, §1; am L 2005, c 214, §3; am L 2011, c 31, §2 and c 175, §8; am L 2022, c 154, §2]

Iowa Code § 20.27

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Conflict with federal aid (current text, 2026 edition; retrieved 2026-10-29)

If any provision of this chapter jeopardizes the receipt by the state or any of its political subdivisions of any federal grant-in-aid funds or other federal allotment of money, the provisions of this chapter shall, insofar as the fund is jeopardized, be deemed to be inoperative.

[C75, 77, 79, 81, §20.27]

Iowa Code § 216.7

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Unfair practices — accommodations or services (current text, 2026 edition; retrieved 2026-10-29)

1. It shall be an unfair or discriminatory practice for any owner, lessee, sublessee, proprietor, manager, or superintendent of any public accommodation or any agent or employee thereof:

a. To refuse or deny to any person because of race, creed, color, sex, sexual orientation, national origin, religion, or disability the accommodations, advantages, facilities, services, or privileges thereof, or otherwise to discriminate against any person because of race, creed, color, sex, sexual orientation, national origin, religion, or disability in the furnishing of such accommodations, advantages, facilities, services, or privileges.

b. To directly or indirectly advertise or in any other manner indicate or publicize that the patronage of persons of any particular race, creed, color, sex, sexual orientation, national origin, religion, or disability is unwelcome, objectionable, not acceptable, or not solicited.

2. This section shall not apply to:

a. Any bona fide religious institution with respect to any qualifications the institution may impose based on religion or sexual orientation when such qualifications are related to a bona fide religious purpose.

b. The rental or leasing to transient individuals of less than six rooms within a single housing accommodation by the occupant or owner of such housing accommodation if the occupant or owner or members of that person's family reside therein.

3. This section shall not require any state or local government unit or tax-supported district to provide for sex reassignment surgery or any other cosmetic, reconstructive, or plastic surgery procedure related to transsexualism, hermaphroditism, gender identity disorder, or body dysmorphic disorder.

[C97, §5008; C24, 27, 31, 35, 39, §13251; C46, 50, 54, 58, §735.1; C66, 71, §105A.6; C73, §601A.6; C75, 77, 79, 81, §601A.7]
C93, §216.7
2007 Acts, ch 191, §5, 6; 2019 Acts, ch 85, §93, 94; 2025 Acts, ch 1, §14, 15

Iowa Code § 216.8

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Unfair or discriminatory practices — housing (current text, 2026 edition; retrieved 2026-10-29)

1. It shall be an unfair or discriminatory practice for any person, owner, or person acting for an owner, of rights to housing or real property, with or without compensation, including but not limited to persons licensed as real estate brokers or salespersons, attorneys, auctioneers, agents or representatives by power of attorney or appointment, or any person acting under court order, deed of trust, or will:

a. To refuse to sell, rent, lease, assign, sublease, refuse to negotiate, or to otherwise make unavailable, or deny any real property or housing accommodation or part, portion, or interest therein, to any person because of the race, color, creed, sex, sexual orientation, religion, national origin, disability, or familial status of such person.

b. To discriminate against any person because of the person's race, color, creed, sex, sexual orientation, religion, national origin, disability, or familial status, in the terms, conditions, or privileges of the sale, rental, lease assignment, or sublease of any real property or housing accommodation or any part, portion, or interest in the real property or housing accommodation or in the provision of services or facilities in connection with the real property or housing accommodation.

c. To directly or indirectly advertise, or in any other manner indicate or publicize that the purchase, rental, lease, assignment, or sublease of any real property or housing accommodation or any part, portion, or interest therein, by persons of any particular race, color, creed, sex, sexual orientation, religion, national origin, disability, or familial status is unwelcome, objectionable, not acceptable, or not solicited.

d. To discriminate against the lessee or purchaser of any real property or housing accommodation or part, portion, or interest of the real property or housing accommodation, or against any prospective lessee or purchaser of the property or accommodation, because of the race, color, creed, religion, sex, sexual orientation, disability, age, or national origin of persons who may from time to time be present in or on the lessee's or owner's premises for lawful purposes at the invitation of the lessee or owner as friends, guests, visitors, relatives, or in any similar capacity.

2. For purposes of this section, "person" means one or more individuals, corporations, partnerships, associations, labor organizations, legal representatives, mutual companies, joint stock companies, trusts, unincorporated organizations, trustees, trustees in cases under Tit. 11 of the United States Code, receivers, and fiduciaries.

[C71, §105A.13; C73, §601A.13; C75, 77, 79, 81, §601A.8]
89 Acts, ch 205, §2; 92 Acts, ch 1129, §4
C93, §216.8
2007 Acts, ch 191, §7; 2009 Acts, ch 41, §86; 2025 Acts, ch 1, §16

Iowa Code § 675.1

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Short title (current text, 2026 edition; retrieved 2026-10-29)

This chapter shall be known and may be cited as the "Religious Freedom Restoration Act".

2024 Acts, ch 1003, §3, 7, 8

Idaho Code § 67-5909

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Text not stored locally (`tribonian state fetch ID code 67` gets it).

105 Ill. Comp. Stat. 5/22-10

Cited by the petitioners 0 times (0 filings) and their amici 2 (2); by the respondent 0 (0) and its amici 0 (0).
Cited as the 1961 edition; the text below is the current one.

Payments and grants in aid of church or sectarian purpose (current text, retrieved 2026-10-29)
No county, city, town, township, school district or other public corporation shall make any appropriation, or pay from any school fund anything in aid of any church or sectarian purpose or to support or sustain any school, academy, seminary, college, university or other literary or scientific institution controlled by any church or sectarian denomination; nor shall any grant or donation of money or other personal property be made by any such corporation to any church or for any sectarian purpose. Any officer or other person having under his charge or direction school funds or property who perverts the same in the manner forbidden in this section shall be guilty of a Class A misdemeanor.
(Source: P.A. 77-2267.)

625 Ill. Comp. Stat. 5/11-205

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).
Cited as the 2025 edition; the text below is the current one.

Public officers and employees to obey Act-Exceptions (current text, retrieved 2026-10-29)
(a) The provisions of this Chapter applicable to the drivers of vehicles upon the highways shall apply to the drivers of all vehicles owned or operated by the United States, this State or any county, city, town, district or any other political subdivision of the State, except as provided in this Section and subject to such specific exceptions as set forth in this Chapter with reference to authorized emergency vehicles.
(b) The driver of an authorized emergency vehicle, when responding to an emergency call or when in the pursuit of an actual or suspected violator of the law or when responding to but not upon returning from a fire alarm, may exercise the privileges set forth in this Section, but subject to the conditions herein stated.
(c) The driver of an authorized emergency vehicle may:
1. Park or stand, irrespective of the provisions of
this Chapter;
2. Proceed past a red or stop signal or stop sign,
but only after slowing down as may be required and necessary for safe operation;
3. Exceed the maximum speed limits so long as he does
not endanger life or property;
4. Disregard regulations governing direction of
movement or turning in specified directions.
(d) The exceptions herein granted to an authorized emergency vehicle, other than a police vehicle, shall apply only when the vehicle is making use of either an audible signal when in motion or visual signals meeting the requirements of Section 12-215 of this Act.
(e) The foregoing provisions do not relieve the driver of an authorized emergency vehicle from the duty of driving with due regard for the safety of all persons, nor do such provisions protect the driver from the consequences of his reckless disregard for the safety of others.
(f) Unless specifically made applicable, the provisions of this Chapter, except those contained in Section 11-204 and Articles IV and V of this Chapter, shall not apply to persons, motor vehicles and equipment while actually engaged in work upon a highway but shall apply to such persons and vehicles when traveling to or from such work.
(Source: P.A. 89-710, eff. 2-14-97; 90-257, eff. 7-30-97.)

720 Ill. Comp. Stat. 5/7-1

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Use of force in defense of person (current text, retrieved 2026-10-29)
(a) A person is justified in the use of force against another when and to the extent that he reasonably believes that such conduct is necessary to defend himself or another against such other's imminent use of unlawful force. However, he is justified in the use of force which is intended or likely to cause death or great bodily harm only if he reasonably believes that such force is necessary to prevent imminent death or great bodily harm to himself or another, or the commission of a forcible felony.
(b) In no case shall any act involving the use of force justified under this Section give rise to any claim or liability brought by or on behalf of any person acting within the definition of "aggressor" set forth in Section 7-4 of this Article, or the estate, spouse, or other family member of such a person, against the person or estate of the person using such justified force, unless the use of force involves willful or wanton misconduct.
(Source: P.A. 93-832, eff. 7-28-04.)

775 Ill. Comp. Stat. 5/1-103

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

General definitions (current text, retrieved 2026-10-29)

When used in this Act, unless the context requires otherwise, the term:

(A) Age. "Age" means the chronological age of a person who is at least 40 years old, except with regard to any practice described in Section 2-102, insofar as that practice concerns training or apprenticeship programs. In the case of training or apprenticeship programs, for the purposes of Section 2-102, "age" means the chronological age of a person who is 18 but not yet 40 years old.

(B) Aggrieved party. "Aggrieved party" means a person who is alleged or proved to have been injured by a civil rights violation or believes he or she will be injured by a civil rights violation under Article 3 that is about to occur.

(B-5) Arrest record. "Arrest record" means:

(1) an arrest not leading to a conviction;

(2) a juvenile record; or

(3) criminal history record information ordered

expunged, sealed, or impounded under Section 5.2 of the Criminal Identification Act.

(C) Charge. "Charge" means an allegation filed with the Department by an aggrieved party or initiated by the Department under its authority.

(D) Civil rights violation. "Civil rights violation" includes and shall be limited to only those specific acts set forth in Sections 2-102, 2-103, 2-105, 3-102, 3-102.1, 3-103, 3-102.10, 3-104.1, 3-105, 3-105.1, 4-102, 4-103, 5-102, 5A-102, 6-101, 6-101.5, and 6-102 of this Act.

(E) Commission. "Commission" means the Human Rights Commission created by this Act.

(F) Complaint. "Complaint" means the formal pleading filed by the Department with the Commission following an investigation and finding of substantial evidence of a civil rights violation.

(G) Complainant. "Complainant" means a person including the Department who files a charge of civil rights violation with the Department or the Commission.

(G-5) Conviction record. "Conviction record" means information indicating that a person has been convicted of a felony, misdemeanor or other criminal offense, placed on probation, fined, imprisoned, or paroled pursuant to any law enforcement or military authority.

(H) Department. "Department" means the Department of Human Rights created by this Act.

(I) Disability.

(1) "Disability" means a determinable physical or mental characteristic of a person, including, but not limited to, a determinable physical characteristic which necessitates the person's use of a guide, hearing or support dog, the history of such characteristic, or the perception of such characteristic by the person complained against, which may result from disease, injury, congenital condition of birth or functional disorder and which characteristic:

(a) For purposes of Article 2, is unrelated to the

person's ability to perform the duties of a particular job or position and, pursuant to Section 2-104 of this Act, a person's illegal use of drugs or alcohol is not a disability;

(b) For purposes of Article 3, is unrelated to the

person's ability to acquire, rent, or maintain a housing accommodation;

(c) For purposes of Article 4, is unrelated to a

person's ability to repay;

(d) For purposes of Article 5, is unrelated to a

person's ability to utilize and benefit from a place of public accommodation;

(e) For purposes of Article 5, also includes any

mental, psychological, or developmental disability, including autism spectrum disorders.

(2) Discrimination based on disability includes unlawful discrimination against an individual because of the individual's association with a person with a disability.

(J) Marital status. "Marital status" means the legal status of being married, single, separated, divorced, or widowed.

(J-1) Military status. "Military status" means a person's status on active duty in or status as a veteran of the armed forces of the United States, status as a current member or veteran of any reserve component of the armed forces of the United States, including the United States Army Reserve, United States Marine Corps Reserve, United States Navy Reserve, United States Air Force Reserve, and United States Coast Guard Reserve, or status as a current member or veteran of the Illinois Army National Guard or Illinois Air National Guard.

(K) National origin. "National origin" means the place in which a person or one of his or her ancestors was born.

(K-5) "Order of protection status" means a person's status as being a person protected under an order of protection issued pursuant to the Illinois Domestic Violence Act of 1986, Article 112A of the Code of Criminal Procedure of 1963, the Stalking No Contact Order Act, or the Civil No Contact Order Act, or an order of protection issued by a court of

another state.

(L) Person. "Person" includes one or more individuals, partnerships, associations or organizations, labor organizations, labor unions, joint apprenticeship committees, or union labor associations, corporations, the State of Illinois and its instrumentalities, political subdivisions, units of local government, legal representatives, trustees in bankruptcy or receivers.

(L-5) Pregnancy. "Pregnancy" means pregnancy, childbirth, or medical or common conditions related to pregnancy or childbirth.

(M) Public contract. "Public contract" includes every contract to which the State, any of its political subdivisions, or any municipal corporation is a party.

(M-5) Race. "Race" includes traits associated with race, including, but not limited to, hair texture and protective hairstyles such as braids, locks, and twists.

(N) Religion. "Religion" includes all aspects of religious observance and practice, as well as belief, except that with respect to employers, for the purposes of Article 2, "religion" has the meaning ascribed to it in paragraph (F) of Section 2-101.

(O) Sex. "Sex" means the status of being male or female.

(O-1) Sexual orientation. "Sexual orientation" means actual or perceived heterosexuality, homosexuality, bisexuality, or gender-related identity, whether or not traditionally associated with the person's designated sex at birth. "Sexual orientation" does not include a physical or sexual attraction to a minor by an adult.

(O-2) Reproductive health decisions. "Reproductive health decisions" means a person's decisions regarding the person's use of: contraception; fertility or sterilization care; assisted reproductive technologies; miscarriage management care; healthcare related to the continuation or termination of pregnancy; or prenatal, intranatal, or postnatal care.

(O-5) Source of income. "Source of income" means the lawful manner by which an individual supports himself or herself and his or her dependents.

(P) Unfavorable military discharge. "Unfavorable military discharge" includes discharges from the Armed Forces of the United States, their Reserve components, or any National Guard or Naval Militia which are classified as RE-3 or the equivalent thereof, but does not include those characterized as RE-4 or "Dishonorable".

(Q) Unlawful discrimination. "Unlawful discrimination" means discrimination against a person because of his or her actual or perceived: race, color, religion, national origin, ancestry, age, sex, marital status, order of protection status, disability, military status, sexual orientation, pregnancy, reproductive health decisions, or unfavorable discharge from military service as those terms are defined in this Section.

(Source: P.A. 102-362, eff. 1-1-22; 102-419, eff. 1-1-22; 102-558, eff. 8-20-21; 102-813, eff. 5-13-22; 102-896, eff. 1-1-23; 102-1102, eff. 1-1-23; 103-154, eff. 6-30-23; 103-785, eff. 1-1-25.)

775 Ill. Comp. Stat. 5/3-102

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Civil rights violations; real estate transactions and other prohibited acts (current text, retrieved 2026-10-29)

It is a civil rights violation for an owner or any other person, or for a real estate broker or salesman, because of unlawful discrimination, familial status, immigration status, source of income, or an arrest record, as defined under subsection (B-5) of Section 1-103, to:

(A) Transactions. Refuse to engage in a real estate
transaction or deny real property, or to discriminate in making available such a transaction;

(B) Terms. Alter the terms, conditions or privileges
of a real estate transaction or in the furnishing of facilities or services in connection therewith;

(C) Offers. Refuse to receive or to fail to transmit
a bona fide offer in a real estate transaction from a person;

(D) Negotiation. Refuse to negotiate a real estate
transaction with a person;

(E) Representations. Represent to a person that real
property is not available for inspection, sale, rental, or lease when in fact it is so available, or to fail to bring a property listing to the person's attention, or to refuse to permit the person to inspect real property;

(F) Publication of Intent. Make, print, circulate,
post, mail, publish or cause to be made, printed, circulated, posted, mailed, or published any notice, statement, advertisement or sign, or use a form of application for a real estate transaction, or make a record or inquiry in connection with a prospective real estate transaction, that indicates any preference, limitation, or discrimination based on unlawful discrimination or unlawful discrimination based on familial status, immigration status, source of income, or an arrest record, or an intention to make any such preference, limitation, or discrimination;

(G) Listings. Offer, solicit, accept, use or retain a

listing of real property with knowledge that unlawful discrimination or discrimination on the basis of familial status, immigration status, source of income, or an arrest record in a real estate transaction is intended.

(H) Criteria. Use criteria or methods that have the

effect of subjecting individuals to unlawful discrimination or discrimination based on familial status, immigration status, source of income, or an arrest record in a real estate transaction. Such criteria or methods are unlawful under this subsection if they are not necessary to achieve a substantial, legitimate, non-discriminatory interest; or if the substantial, legitimate, non-discriminatory interest could be served by another practice that has a less discriminatory effect.

(Source: P.A. 102-896, eff. 1-1-23; 103-232, eff. 1-1-24; 103-859, eff. 1-1-25.)

775 Ill. Comp. Stat. 5/5-102

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Civil Rights Violations: Public Accommodations (current text, retrieved 2026-10-29)

It is a civil rights violation for any person on the basis of unlawful discrimination to:

(A) Enjoyment of Facilities, Goods, and Services. Deny or refuse to another the full and equal enjoyment of the facilities, goods, and services of any public place of accommodation;

(B) Written Communications. Directly or indirectly, as the operator of a place of public accommodation, publish, circulate, display or mail any written communication, except a private communication sent in response to a specific inquiry, which the operator knows is to the effect that any of the facilities of the place of public accommodation will be denied to any person or that any person is unwelcome, objectionable or unacceptable because of unlawful discrimination;

(C) Public Officials. Deny or refuse to another, as a public official, the full and equal enjoyment of the accommodations, advantage, facilities or privileges of the official's office or services or of any property under the official's care because of unlawful discrimination.

(Source: P.A. 95-668, eff. 10-10-07.)

Ind. Code § 20-51-4-3

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discrimination prohibited; random visits by department; access by department; certification of compliance (current text, 2026 edition; retrieved 2026-10-29)

Sec. 3.

(a) An eligible school may not discriminate on the basis of race, color, or national origin.

(b) An eligible school shall abide by the school's written admission policy fairly and without discrimination with regard to students who:

(1) apply for; or

(2) are awarded;

scholarships under this chapter.

(c) The department shall make random visits to at least five percent (5%) of eligible schools during a particular school year to verify that the eligible school complies with the provisions of this chapter and the Constitutions of the State of Indiana and the United States.

(d) Each eligible school shall grant the department reasonable access to its premises, including access to the school's grounds, buildings, and property.

(e) Each year the principal of each eligible school shall certify under penalties of perjury to the department that the eligible school is complying with the requirements of this chapter. The department shall develop a process for eligible schools to follow to make certifications.

As added by P.L.92-2011, SEC.10. Amended by P.L.229-2011, SEC.222; P.L.172-2011, SEC.126; P.L.6-2012, SEC.144; P.L.106-2016, SEC.16; P.L.246-2023, SEC.43.

Ind. Code § 22-9-1-2

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (1).

Public policy; construction of chapter (current text, 2026 edition; retrieved 2026-10-29)

Sec. 2.

(a) It is the public policy of the state to provide all of its citizens equal opportunity for education, employment, access to public conveniences and accommodations, and acquisition through purchase or rental of real property, including but not limited to housing, and to eliminate segregation or separation based solely on race, religion, color, sex, disability, national origin, or ancestry, since such segregation is an impediment to equal opportunity. Equal education and employment opportunities and equal access to and use of public accommodations and equal opportunity for acquisition of real property are hereby declared to be civil rights.

(b) The practice of denying these rights to properly qualified persons by reason of the race, religion, color, sex, disability,

national origin, or ancestry of such person is contrary to the principles of freedom and equality of opportunity and is a burden to the objectives of the public policy of this state and shall be considered as discriminatory practices. The promotion of equal opportunity without regard to race, religion, color, sex, disability, national origin, or ancestry through reasonable methods is the purpose of this chapter.

(c) It is also the public policy of this state to protect employers, labor organizations, employment agencies, property owners, real estate brokers, builders, and lending institutions from unfounded charges of discrimination.

(d) It is hereby declared to be contrary to the public policy of the state and an unlawful practice for any person, for profit, to induce or attempt to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, religion, color, sex, disability, national origin, or ancestry.

(e) The general assembly recognizes that on February 16, 1972, there are institutions of learning in Indiana presently and traditionally following the practice of limiting admission of students to males or to females. It is further recognized that it would be unreasonable to impose upon these institutions the expense of remodeling facilities to accommodate students of both sexes, and that educational facilities of similar quality and type are available in coeducational institutions for those students desiring such facilities. It is further recognized that this chapter is susceptible of interpretation to prevent these institutions from continuing their traditional policies, a result not intended by the general assembly. Therefore, the amendment effected by Acts 1972, P.L.176, is desirable to permit the continuation of the policies described.

(f) It is against the public policy of the state and a discriminatory practice for an employer to discriminate against a prospective employee on the basis of status as a veteran by:

(1) refusing to employ an applicant for employment on the basis that the applicant is a veteran of the armed forces of the United States; or

(2) refusing to employ an applicant for employment on the basis that the applicant is a member of the Indiana National Guard or member of a reserve component.

(g) It is against the public policy of the state for any person to violate another person's rights protected by the Constitution of the United States or the Constitution of the State of Indiana.

(h) This chapter shall be construed broadly to effectuate its purpose.

Formerly: Acts 1961, c.208, s.2; Acts 1963, c.173, s.2; Acts 1965, c.214, s.1; Acts 1967, c.276, s.1; Acts 1969, c.298, s.1; Acts 1971, P.L.357, SEC.2; Acts 1975, P.L.256, SEC.1. As amended by P.L.5-1988, SEC.116; P.L.23-1993, SEC.130; P.L.136-2014, SEC.2; P.L.83-2026, SEC.1.

Ind. Code § 34-13-9-0.7

Cited by the petitioners 0 times (0 filings) and their amici 2 (1); by the respondent 0 (0) and its amici 0 (0).

Application (current text, 2026 edition; retrieved 2026-10-29)

Sec. 0.7. This chapter does not:

(1) authorize a provider to refuse to offer or provide services, facilities, use of public accommodations, goods, employment, or housing to any member or members of the general public on the basis of race, color, religion, ancestry, age, national origin, disability, sex, sexual orientation, gender identity, or United States military service;

(2) establish a defense to a civil action or criminal prosecution for refusal by a provider to offer or provide services, facilities, use of public accommodations, goods, employment, or housing to any member or members of the general public on the basis of race, color, religion, ancestry, age, national origin, disability, sex, sexual orientation, gender identity, or United States military service; or

(3) negate any rights available under the Constitution of the State of Indiana.

As added by P.L.4-2015, SEC.1.

Kan. Stat. Ann. § 44-1009

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Unlawful employment practices; unlawful discriminatory practices (current text, retrieved 2026-10-29)

(a) It shall be an unlawful employment practice:

(1) For an employer, because of the race, religion, color, sex, disability, national origin or ancestry of any person to refuse to hire or employ such person to bar or discharge such person from employment or to otherwise discriminate against such person in compensation or in terms, conditions or privileges of employment; to limit, segregate, separate, classify or make any distinction in regards to employees; or to follow any employment procedure or practice which, in fact, results in discrimination, segregation or separation without a valid business necessity.

(2) For a labor organization, because of the race, religion, color, sex, disability, national origin or ancestry of any person, to exclude or to expel from its membership such person or to discriminate in any way against any of its members or against any employer or any person employed by an employer.

(3) For any employer, employment agency or labor organization to print or circulate or cause to be printed or circulated

any statement, advertisement or publication, or to use any form of application for employment or membership or to make any inquiry in connection with prospective employment or membership, which expresses, directly or indirectly, any limitation, specification or discrimination as to race, religion, color, sex, disability, national origin or ancestry, or any intent to make any such limitation, specification or discrimination, unless based on a bona fide occupational qualification.

(4) For any employer, employment agency or labor organization to discharge, expel or otherwise discriminate against any person because such person has opposed any practices or acts forbidden under this act or because such person has filed a complaint, testified or assisted in any proceeding under this act.

(5) For an employment agency to refuse to list and properly classify for employment or to refuse to refer any person for employment or otherwise discriminate against any person because of such person's race, religion, color, sex, disability, national origin or ancestry; or to comply with a request from an employer for a referral of applicants for employment if the request expresses, either directly or indirectly, any limitation, specification or discrimination as to race, religion, color, sex, disability, national origin or ancestry.

(6) For an employer, labor organization, employment agency, or school which provides, coordinates or controls apprenticeship, on-the-job, or other training or retraining program, to maintain a practice of discrimination, segregation or separation because of race, religion, color, sex, disability, national origin or ancestry, in admission, hiring, assignments, upgrading, transfers, promotion, layoff, dismissal, apprenticeship or other training or retraining program, or in any other terms, conditions or privileges of employment, membership, apprenticeship or training; or to follow any policy or procedure which, in fact, results in such practices without a valid business motive.

(7) For any person, whether an employer or an employee or not, to aid, abet, incite, compel or coerce the doing of any of the acts forbidden under this act, or attempt to do so.

(8) For an employer, labor organization, employment agency or joint labor-management committee to: (A) Limit, segregate or classify a job applicant or employee in a way that adversely affects the opportunities or status of such applicant or employee because of the disability of such applicant or employee; (B) participate in a contractual or other arrangement or relationship, including a relationship with an employment or referral agency, labor union, an organization providing fringe benefits to an employee or an organization providing training and apprenticeship programs that has the effect of subjecting a qualified applicant or employee with a disability to the discrimination prohibited by this act; (C) utilize standards criteria, or methods of administration that have the effect of discrimination on the basis of disability or that perpetuate the discrimination of others who are subject to common administrative control; (D) exclude or otherwise deny equal jobs or benefits to a qualified individual because of the known disability of an individual with whom the qualified individual is known to have a relationship or association; (E) not make reasonable accommodations to the known physical or mental limitations of an otherwise qualified individual with a disability who is an applicant or employee, unless such employer, labor organization, employment agency or joint labor-management committee can demonstrate that the accommodation would impose an undue hardship on the operation of the business thereof; (F) deny employment opportunities to a job applicant or employee who is an otherwise qualified individual with a disability, if such denial is based on the need to make reasonable accommodation to the physical or mental impairments of the employee or applicant; (G) use qualification standards, employment tests or other selection criteria that screen out or tend to screen out an individual with a disability or a class of individuals with disabilities unless the standard, test or other selection criteria, as used, is shown to be job-related for the position in question and is consistent with business necessity; or (H) fail to select and administer tests concerning employment in the most effective manner to ensure that, when such test is administered to a job applicant or employee who has a disability that impairs sensory, manual or speaking skills, the test results accurately reflect the skills, aptitude or whatever other factor of such applicant or employee that such test purports to measure, rather than reflecting the impaired sensory, manual or speaking skills of such employee or applicant (except where such skills are the factors that the test purports to measure).

(9) For any employer to:

(A) Seek to obtain, to obtain or to use genetic screening or testing information of an employee or a prospective employee to distinguish between or discriminate against or restrict any right or benefit otherwise due or available to an employee or a prospective employee; or

(B) subject, directly or indirectly, any employee or prospective employee to any genetic screening or test.

(b) It shall not be an unlawful employment practice to fill vacancies in such way as to eliminate or reduce imbalance with respect to race, religion, color, sex, disability, national origin or ancestry.

(c) It shall be an unlawful discriminatory practice:

(1) For any person, as defined herein being the owner, operator, lessee, manager, agent or employee of any place of public accommodation to refuse, deny or make a distinction, directly or indirectly, in offering its goods, services, facilities, and accommodations to any person as covered by this act because of race, religion, color, sex, disability, national origin or ancestry, except where a distinction because of sex is necessary because of the intrinsic nature of

such accommodation.

(2) For any person, whether or not specifically enjoined from discriminating under any provisions of this act, to aid, abet, incite, compel or coerce the doing of any of the acts forbidden under this act, or to attempt to do so.

(3) For any person, to refuse, deny, make a distinction, directly or indirectly, or discriminate in any way against persons because of the race, religion, color, sex, disability, national origin or ancestry of such persons in the full and equal use and enjoyment of the services, facilities, privileges and advantages of any institution, department or agency of the state of Kansas or any political subdivision or municipality thereof.

History: L. 1961, ch. 248, § 5; L. 1965, ch. 323, § 6; L. 1970, ch. 192, § 5; L. 1972, ch. 194, § 7; L. 1974, ch. 209, § 6; L. 1991, ch. 147, § 6; L. 1999, ch. 32, § 2; July 1.

Kan. Stat. Ann. § 44-1016

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Same; unlawful acts in connection with sale or rental of real property (current text, retrieved 2026-10-29)

Subject to the provisions of K.S.A. 44-1018 and amendments thereto, it shall be unlawful for any person:

(a) To refuse to sell or rent after the making of a bona fide offer, to fail to transmit a bona fide offer or refuse to negotiate in good faith for the sale or rental of, or otherwise make unavailable or deny, real property to any person because of race, religion, color, sex, disability, familial status, national origin or ancestry.

(b) To discriminate against any person in the terms, conditions or privileges of sale or rental of real property, or in the provision of services or facilities in connection therewith, because of race, religion, color, sex, disability, familial status, national origin or ancestry.

(c) To make, print, publish, disseminate or use, or cause to be made, printed, published, disseminated or used, any notice, statement, advertisement or application, with respect to the sale or rental of real property that indicates any preference, limitation, specification or discrimination based on race, religion, color, sex, disability, familial status, national origin or ancestry, or an intention to make any such preference, limitation, specification or discrimination.

(d) To represent to any person because of race, religion, color, sex, disability, familial status, national origin or ancestry that any real property is not available for inspection, sale or rental when such real property is in fact so available.

(e) For profit, to induce or attempt to induce any person to sell or rent any real property by representation regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, religion, color, sex, disability, familial status, national origin or ancestry.

(f) To deny any person access to or membership or participation in any multiple-listing service, real estate brokers' organization or other service, organization or facility relating to the business of selling or renting real property, or to discriminate against such person in the terms or conditions of such access, membership or participation, because of race, religion, color, sex, disability, familial status, national origin or ancestry.

(g) To discriminate against any person in such person's use or occupancy of real property because of the race, religion, color, sex, disability, familial status, national origin or ancestry of the people with whom such person associates.

(h) (1) To discriminate in the sale or rental, or to otherwise make unavailable or deny, residential real property to any buyer or renter because of a disability of:

(A) That buyer or renter;

(B) a person residing in or intending to reside in such real property after it is sold, rented or made available; or

(C) any person associated with that buyer or renter.

(2) To discriminate against any person in the terms, conditions or privileges of sale or rental of residential real property or in the provision of services or facilities in connection with such real property because of a disability of:

(A) That person;

(B) a person residing in or intending to reside in that real property after it is so sold, rented or made available; or

(C) any person associated with that person.

(3) For purposes of this subsection (h), discrimination includes:

(A) A refusal to permit, at the expense of the person with a disability, reasonable modifications of existing premises occupied or to be occupied by such person if such modifications may be necessary to afford such person full enjoyment of the premises;

(B) a refusal to make reasonable accommodations in rules, policies, practices or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy residential real property; or

(C) in connection with the design and construction of covered multifamily residential real property for first occupancy on and after January 1, 1992, a failure to design and construct such residential real property in such a manner that:

(i) The public use and common use portions of such residential real property are readily accessible to and usable by persons with disabilities;

(ii) all the doors designed to allow passage into and within all premises within such residential real property are

sufficiently wide to allow passage by persons with disabilities who are in wheelchairs; and

(iii) all premises within such residential real property contain the following features of adaptive design: An accessible route into and through the residential real property; light switches, electrical outlets, thermostats and other environmental controls in accessible locations; reinforcements in bathroom walls to allow later installation of grab bars; and usable kitchens and bathrooms such that an individual in a wheelchair can maneuver about the space.

(4) Compliance with the appropriate requirements of the American national standard for buildings and facilities providing accessibility and usability for physically handicapped people, commonly cited as "ANSI A 117.1," suffices to satisfy the requirements of subsection (h)(3)(C)(iii).

(5) As used in this subsection (h), "covered multifamily residential real property" means:

(A) Buildings consisting of four or more units if such buildings have one or more elevators; and

(B) ground floor units in other buildings consisting of four or more units.

(6) Nothing in this act shall be construed to invalidate or limit any state law or ordinance that requires residential real property to be designed and constructed in a manner that affords persons with disabilities greater access than is required by this act.

(7) Nothing in this subsection (h) requires that residential real property be made available to an individual whose tenancy would constitute a direct threat to the health or safety of other individuals or whose tenancy would result in substantial physical damage to the property of others.

History: L. 1970, ch. 193, § 2; L. 1972, ch. 194, § 8; L. 1991, ch. 147, § 8; L. 1992, ch. 142, § 1; July 1.

Kan. Stat. Ann. § 73-201

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Preference in governmental employment and promotion; definitions; notice when veteran not hired; notice of job openings, information regarding preference; remedy when preference not provided (current text, retrieved 2026-10-29)

(a) As used in this act:

(1) "Veteran" means:

(A) A person who served in the active military, naval, air or space service, including those groups and individuals listed under 38 C.F.R. § 3.7, and who was discharged or released therefrom under an honorable discharge or a general discharge under honorable conditions;

(B) any person who has been issued the purple heart by the United States government or who:

(i) Served in the active military, naval, air or space service, including those groups and individuals listed under 38 C.F.R. § 3.7, and who was discharged therefrom under an honorable discharge or a general discharge under honorable conditions;

(ii) received a disability that was incurred or aggravated in the line of duty in the active military, naval, air or space service, including those groups and individuals listed under 38 C.F.R. § 3.7; and

(iii) has a disability certified by the Kansas office of veterans services as being service-connected, pursuant to 38 U.S.C. § 1101 et seq. or 10 U.S.C. § 1201 et seq.;

(C) the spouse of a service-connected disabled veteran with a permanent and total combined service-connected evaluation percentage of 100%;

(D) the surviving spouse of a veteran who died in the line of duty in the active military, naval, air or space service; and

(E) the spouse of a prisoner of war, as defined by K.S.A. 75-4364, and amendments thereto.

Veteran preference in government employment shall not apply to any person who retired from the active military service with the pay grade of 04 or above unless the person retired due to wounds received in combat or is a disabled veteran with a service-connected disability evaluation rating equal to or greater than 10%, pursuant to 38 U.S.C. § 1101 et seq. or 10 U.S.C. § 1201 et seq.

(2) "Competent" means a good faith determination that the person is likely to successfully meet the performance standards of the position based on what a reasonable person knowledgeable in the operation of the position would conclude from all information available at the time the determination is made. The basis for such determination shall include experience, training, education, licensure, certification or other factors determined by the decision-making authority as appropriate to determine the applicant's overall qualification and ability to successfully meet the performance standards of the position. The decision-making authority shall document such factors prior to the initiation of the selection process.

(3) "Disabled veteran" means a person who:

(A) Served in the active military, naval, air or space service, including those groups and individuals listed under 38 C.F.R. § 3.7, and was discharged or released therefrom under an honorable discharge or a general discharge under

honorable conditions;

(B) received a disability that was incurred or aggravated in the line of duty in the active military, naval, air or space service, including those groups and individuals listed under 38 C.F.R. § 3.7; and

(C) has a service-connected evaluation percentage, pursuant to 38 U.S.C. § 1101 et seq. or 10 U.S.C. § 1201 et seq.

(b) In grateful recognition of the services, sacrifices and sufferings of veterans who served in the army, navy, air force, coast guard or marine corps of the United States in world war I and world war II, and of persons who have served with the armed forces of the United States during the military, naval and air operations in Korea, Vietnam, Iraq, Afghanistan or other places under the flags of the United States and the United Nations or under the flag of the United States alone, and have been honorably discharged therefrom, the provisions of this section are enacted.

(c) Veterans shall be preferred for initial employment and first promotion in the state government of Kansas, and in the counties and cities of this state, if competent to perform such services. Any veteran thus preferred shall not be disqualified from holding any position in such service on account of the veteran's age or by reason of any physical or mental disability as long as such age or disability does not render the veteran incompetent to perform the duties of the position applied for. When any veteran shall apply for appointment to any such position, place, or employment, the officer, board or person whose duty it is or may be to appoint a person to fill such position, place or employment shall, if the applicant be a veteran of good reputation, and can competently perform the duties of the position applied for by the veteran, consider the veteran for appointment to such position, place, or employment. Within 30 days of filling a position, eligible veterans who have applied and are not hired shall be notified by certified mail or personal service that they are not being hired. Such notice also shall advise the veteran of any administrative appeal available.

(d) The provisions of this act shall not be applicable to any persons classed as conscientious objectors. The provisions of this act shall not be controlling over the provisions of any statute, county resolution or city ordinance relating to retirement or termination on the basis of age, of employees of the state or any county or city. Whenever under any statute, county resolution or city ordinance, retirement or termination on the basis of age of any employee is required at a certain age or is optional with the employer at a certain age, such statute, resolution or ordinance shall be controlling and shall not be limited by this section.

(e) (1) All notices of job openings, if any, and all applications for employment, if any, by the state and any city or county in this state shall state that the job is subject to a veteran's preference, how the preference works and how veterans may take advantage of the preference and post a written statement of:

(A) The qualifications for such position;

(B) any preferred qualifications of such position;

(C) performance standards for the position; and

(D) the process that will be used for selection.

(2) A veteran, veteran's spouse or surviving spouse who qualifies for the veteran's preference, desiring to use a veteran's preference shall provide the hiring authority with a copy of the veteran's DD form 214, DD form 1300, NGB form 22 or other official discharge document recognized by the department of veterans affairs under which the spouse qualifies for the preference.

(f) Every employment center of the state and any city or county human resources department, if any, shall openly display documents that indicate that veterans are eligible for a preference in their initial employment and any first promotion within the employment of the governmental entity.

(g) Any veteran who alleges that a state agency, city or county has not provided the veterans preference as required by this act, after exhausting any available administrative remedy, may bring an action in the district court.

History: L. 1886, ch. 160, § 1; L. 1901, ch. 186, § 1; L. 1907, ch. 374, § 1; L. 1919, ch. 280, § 1; R.S. 1923, 73-201; L. 1945, ch. 301, § 1; L. 1951, ch. 429, § 1; L. 1970, ch. 306, § 1; L. 2008, ch. 99, § 1; L. 2024, ch. 84, § 22; L. 2025, ch. 97, § 9; July 1.

Ky. Rev. Stat. Ann. § 344.120

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Text not stored locally (`tribonian state fetch KY krs 344` gets it).

Ky. Rev. Stat. Ann. § 344.360

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Text not stored locally (`tribonian state fetch KY krs 344` gets it).

Mass. Const. pt. 1, art. II

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

(current text, retrieved 2026-10-27)

§ I
§ II
§ III
§ IV
§ V
§ VI
§ VII
§ VIII
§ IX
§ I
§ II
§ III

Mass. Gen. Laws ch. 272, § 98

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Section 98: Discrimination in admission to, or treatment in, place of public accommodation; punishment; forfeiture; civil right (current text, retrieved 2026-10-29)

Whoever makes any distinction, discrimination or restriction on account of race, color, religious creed, national origin, sex, gender identity, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, deafness, blindness or any physical or mental disability or ancestry relative to the admission of any person to, or his treatment in any place of public accommodation, resort or amusement, as defined in section ninety-two A, or whoever aids or incites such distinction, discrimination or restriction, shall be punished by a fine of not more than twenty-five hundred dollars or by imprisonment for not more than one year, or both, and shall be liable to any person aggrieved thereby for such damages as are enumerated in section five of chapter one hundred and fifty-one B; provided, however, that such civil forfeiture shall be of an amount not less than three hundred dollars; but such person so aggrieved shall not recover against more than one person by reason of any one act of distinction, discrimination or restriction. All persons shall have the right to the full and equal accommodations, advantages, facilities and privileges of any place of public accommodation, resort or amusement subject only to the conditions and limitations established by law and applicable to all persons. This right is recognized and declared to be a civil right.

Mass. Gen. Laws ch. 151B, § 4

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (2).

Section 4: Unlawful practices (current text, retrieved 2026-10-28)

It shall be an unlawful practice:

1. For an employer, by himself or his agent, because of the race, color, religious creed, national origin, sex, gender identity, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, genetic information, pregnancy or a condition related to said pregnancy including, but not limited to, lactation or the need to express breast milk for a nursing child, ancestry or status as a veteran of any individual to refuse to hire or employ or to bar or to discharge from employment such individual or to discriminate against such individual in compensation or in terms, conditions or privileges of employment, unless based upon a bona fide occupational qualification.

1A. It shall be unlawful discriminatory practice for an employer to impose upon an individual as a condition of obtaining or retaining employment any terms or conditions, compliance with which would require such individual to violate, or forego the practice of, his creed or religion as required by that creed or religion including but not limited to the observance of any particular day or days or any portion thereof as a sabbath or holy day and the employer shall make reasonable accommodation to the religious needs of such individual. No individual who has given notice as hereinafter provided shall be required to remain at his place of employment during any day or days or portion thereof that, as a requirement of his religion, he observes as his sabbath or other holy day, including a reasonable time prior and subsequent thereto for travel between his place of employment and his home, provided, however, that any employee intending to be absent from work when so required by his or her creed or religion shall notify his or her employer not less than ten days in advance of each absence, and that any such absence from work shall, wherever practicable in the judgment of the employer, be made up by an equivalent amount of time at some other mutually convenient time. Nothing under this subsection shall be deemed to require an employer to compensate an employee for such absence. ”Reasonable Accommodation”, as used in this subsection shall mean such accommodation to an employee’s or prospective employee’s

religious observance or practice as shall not cause undue hardship in the conduct of the employer's business. The employee shall have the burden of proof as to the required practice of his creed or religion. As used in this subsection, the words "creed or religion" mean any sincerely held religious beliefs, without regard to whether such beliefs are approved, espoused, prescribed or required by an established church or other religious institution or organization.

Undue hardship, as used herein, shall include the inability of an employer to provide services which are required by and in compliance with all federal and state laws, including regulations or tariffs promulgated or required by any regulatory agency having jurisdiction over such services or where the health or safety of the public would be unduly compromised by the absence of such employee or employees, or where the employee's presence is indispensable to the orderly transaction of business and his or her work cannot be performed by another employee of substantially similar qualifications during the period of absence, or where the employee's presence is needed to alleviate an emergency situation. The employer shall have the burden of proof to show undue hardship.

1B. For an employer in the private sector, by himself or his agent, because of the age of any individual, to refuse to hire or employ or to bar or to discharge from employment such individual, or to discriminate against such individual in compensation or in terms, conditions or privileges of employment, unless based upon a bona fide occupational qualification.

1C. For the commonwealth or any of its political subdivisions, by itself or its agent, because of the age of any individual, to refuse to hire or employ or to bar or discharge from employment such individual in compensation or in terms, conditions or privileges of employment unless pursuant to any other general or special law.

1D. For an employer, an employment agency, the commonwealth or any of its political subdivisions, by itself or its agents, to deny initial employment, reemployment, retention in employment, promotion or any benefit of employment to a person who is a member of, applies to perform, or has an obligation to perform, service in a uniformed military service of the United States, including the National Guard, on the basis of that membership, application or obligation.

1E. (a) For an employer to deny a reasonable accommodation for an employee's pregnancy or any condition related to the employee's pregnancy including, but not limited to, lactation or the need to express breast milk for a nursing child if the employee requests such an accommodation; provided, however, that an employer may deny such an accommodation if the employer can demonstrate that the accommodation would impose an undue hardship on the employer's program, enterprise or business. It shall also be an unlawful practice under this subsection to:

(i) take adverse action against an employee who requests or uses a reasonable accommodation in terms, conditions or privileges of employment including, but not limited to, failing to reinstate the employee to the original employment status or to an equivalent position with equivalent pay and accumulated seniority, retirement, fringe benefits and other applicable service credits when the need for a reasonable accommodation ceases;

(ii) deny an employment opportunity to an employee if the denial is based on the need of the employer to make a reasonable accommodation to the known conditions related to the employee's pregnancy including, but not limited to, lactation or the need to express breast milk for a nursing child;

(iii) require an employee affected by pregnancy, or require said employee affected by a condition related to the pregnancy, including, but not limited to, lactation or the need to express breast milk for a nursing child, to accept an accommodation that the employee chooses not to accept, if that accommodation is unnecessary to enable the employee to perform the essential functions of the job;

(iv) require an employee to take a leave if another reasonable accommodation may be provided for the known conditions related to the employee's pregnancy, including, but not limited to, lactation or the need to express breast milk for a nursing child, without undue hardship on the employer's program, enterprise or business;

(v) refuse to hire a person who is pregnant because of the pregnancy or because of a condition related to the person's pregnancy, including, but not limited to, lactation or the need to express breast milk for a nursing child; provided, however, that the person is capable of performing the essential functions of the position with a reasonable accommodation and that reasonable accommodation would not impose an undue hardship, demonstrated by the employer, on the employer's program, enterprise or business.

(b) As used in this subsection, the following words shall have the following meanings unless the context clearly requires otherwise:

"Reasonable accommodation", may include, but shall not be limited to: (i) more frequent or longer paid or unpaid breaks; (ii) time off to attend to a pregnancy complication or recover from childbirth with or without pay; (iii) acquisition or modification of equipment or seating; (iv) temporary transfer to a less strenuous or hazardous position; (v) job restructuring; (vi) light duty; (vii) private non-bathroom space for expressing breast milk; (viii) assistance with manual labor; or (ix) a modified work schedule; provided, however, that an employer shall not be required to discharge or transfer an employee with more seniority or promote an employee who is not able to perform the essential functions of the job with or without a reasonable accommodation.

"Undue hardship", an action requiring significant difficulty or expense; provided, however, that the employer shall have the burden of proving undue hardship; provided further, that in making a determination of undue hardship,

the following factors shall be considered: (i) the nature and cost of the needed accommodation; (ii) the overall financial resources of the employer; (iii) the overall size of the business of the employer with respect to the number of employees and the number, type and location of its facilities; and (iv) the effect on expenses and resources or any other impact of the accommodation on the employer's program, enterprise or business.

(c) Upon request for an accommodation from the employee or prospective employee capable of performing the essential functions of the position involved, the employee or prospective employee and the employer shall engage in a timely, good faith and interactive process to determine an effective, reasonable accommodation to enable the employee or prospective employee to perform the essential functions of the employee's job or the position to which the prospective employee has applied. An employer may require that documentation about the need for a reasonable accommodation come from an appropriate health care or rehabilitation professional; provided, however, that an employer shall not require documentation from an appropriate health care or rehabilitation professional for the following accommodations: (i) more frequent restroom, food or water breaks; (ii) seating; (iii) limits on lifting more than 20 pounds; and (iv) private non-bathroom space for expressing breast milk. An "appropriate health care or rehabilitation professional" shall include, but shall not be limited to, a medical doctor, including a psychiatrist, a psychologist, a nurse practitioner, a physician assistant, a psychiatric clinical nurse specialist, a physical therapist, an occupational therapist, a speech therapist, a vocational rehabilitation specialist, a midwife, a lactation consultant or another licensed mental health professional authorized to perform specified mental health services. An employer may require documentation for an extension of the accommodation beyond the originally agreed to accommodation.

(d) Written notice of the right to be free from discrimination in relation to pregnancy or a condition related to the employee's pregnancy including, but not limited to, lactation or the need to express breast milk for a nursing child, including the right to reasonable accommodations for conditions related to pregnancy pursuant to this subsection, shall be distributed by an employer to its employees. The notice shall be provided in a handbook, pamphlet or other means of notice to all employees including, but not limited to: (i) new employees at or prior to the commencement of employment; and (ii) an employee who notifies the employer of a pregnancy or an employee who notifies the employer of a condition related to the employee's pregnancy including, but not limited to, lactation or the need to express breast milk for a nursing child not more than 10 days after such notification.

(e) Subject to appropriation, the commission shall develop courses of instruction and conduct public education efforts as necessary to inform employers, employees and employment agencies about the rights and responsibilities established under this subsection not more than 180 days after the appropriation.

(f) This subsection shall not be construed to preempt, limit, diminish or otherwise affect any other law relating to sex discrimination or pregnancy or in any way diminish the coverage for pregnancy or a condition related to pregnancy including, but not limited to, lactation or the need to express breast milk for a nursing child under section 105D of chapter 149.

2. For a labor organization, because of the race, color, religious creed, national origin, sex, gender identity, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, age, genetic information, ancestry or status as a veteran of any individual, or because of the handicap of any person alleging to be a qualified handicapped person, to exclude from full membership rights or to expel from its membership such individual or to discriminate in any way against any of its members or against any employer or any individual employed by an employer unless based upon a bona fide occupational qualification.

3. For any employer or employment agency to print or circulate or cause to be printed or circulated any statement, advertisement or publication, or to use any form of application for employment or to make any inquiry or record in connection with employment, which expresses, directly or indirectly, any limitation, specification or discrimination as to the race, color, religious creed, national origin, sex, gender identity, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, age, genetic information, pregnancy or a condition related to said pregnancy including, but not limited to, lactation or the need to express breast milk for a nursing child, ancestry or status as a veteran, or the handicap of a qualified handicapped person or any intent to make any such limitation, specification or discrimination, or to discriminate in any way on the ground of race, color, religious creed, national origin, sex, gender identity, sexual orientation, age, genetic information, pregnancy or a condition related to said pregnancy including, but not limited to, lactation or the need to express breast milk for a nursing child, ancestry, status as a veteran or the handicap of a qualified handicapped person, unless based upon a bona fide occupational qualification.

3A. For any person engaged in the insurance or bonding business, or his agent, to make any inquiry or record of any person seeking a bond or surety bond conditioned upon faithful performance of his duties or to use any form of application in connection with the furnishing of such bond, which seeks information relative to the race, color, religious creed, national origin, sex, gender identity, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, genetic information, or ancestry of the person to be bonded.

3B. For any person whose business includes granting mortgage loans or engaging in residential real estate-related

transactions to discriminate against any person in the granting of any mortgage loan or in making available such a transaction, or in the terms or conditions of such a loan or transaction, because of race, color, religion, sex, gender identity, sexual orientation which shall not include persons whose sexual orientation involves minor children as the sex object, children, national origin, genetic information, ancestry, age or handicap. Such transactions shall include, but not be limited to:

(1) the making or purchasing of loans or the provision of other financial assistance for purchasing, constructing, improving, repairing, or maintaining a dwelling; or the making or purchasing of loans or the provision of other financial assistance secured by residential real estate; or

(2) the selling, brokering, or appraising of residential real estate.

In the case of age, the following shall not be an unlawful practice:

(1) an inquiry of age for the purpose of determining a pertinent element of credit worthiness;

(2) the use of an empirically derived credit system which considers age; provided, however, that such system is based on demonstrably and statistically sound data; and provided, further, that such system does not assign a negative factor or score to any applicant who has reached age sixty-two;

(3) the offering of credit life insurance or credit disability insurance, in conjunction with any mortgage loan, to a limited age group;

(4) the failure or refusal to grant any mortgage loan to a person who has not attained the age of majority;

(5) the failure or refusal to grant any mortgage loan the duration of which exceeds the life expectancy of the applicant as determined by the most recent Individual Annuity Mortality Table.

Nothing in this subsection prohibits a person engaged in the business of furnishing appraisals of real property from taking into consideration factors other than those hereinabove proscribed.

3C. For any person to deny another person access to, or membership or participation in, a multiple listing service, real estate brokers' organization, or other service, organization, or facility relating to the business of selling or renting dwellings, or to discriminate against such person in the terms or conditions of such access, membership, or participation, on account of race, color, religion, sex, gender identity, sexual orientation which shall not include persons whose sexual orientation involves minor children as the sex object, children, national origin, genetic information, ancestry, age, or handicap.

4. For any person, employer, labor organization or employment agency to discharge, expel or otherwise discriminate against any person because he has opposed any practices forbidden under this chapter or because he has filed a complaint, testified or assisted in any proceeding under section five.

4A. For any person to coerce, intimidate, threaten, or interfere with another person in the exercise or enjoyment of any right granted or protected by this chapter, or to coerce, intimidate, threaten or interfere with such other person for having aided or encouraged any other person in the exercise or enjoyment of any such right granted or protected by this chapter.

5. For any person, whether an employer or an employee or not, to aid, abet, incite, compel or coerce the doing of any of the acts forbidden under this chapter or to attempt to do so.

6. For the owner, lessee, sublessee, licensed real estate broker, assignee or managing agent of publicly assisted or multiple dwelling or contiguously located housing accommodations or other person having the right of ownership or possession or right to rent or lease, or sell or negotiate for the sale of such accommodations, or any agent or employee of such a person, or any organization of unit owners in a condominium or housing cooperative: (a) to refuse to rent or lease or sell or negotiate for sale or otherwise to deny to or withhold from any person or group of persons such accommodations because of the race, religious creed, color, national origin, sex, gender identity, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, age, genetic information, ancestry, or marital status of such person or persons or because such person is a veteran or member of the armed forces, or because such person is blind, or hearing impaired or has any other handicap; (b) to discriminate against any person because of his race, religious creed, color, national origin, sex, gender identity, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, age, ancestry, or marital status or because such person is a veteran or member of the armed forces, or because such person is blind, or hearing impaired or has any other handicap in the terms, conditions or privileges of such accommodations or the acquisitions thereof, or in the furnishings of facilities and services in connection therewith, or because such a person possesses a trained dog guide as a consequence of blindness, or hearing impairment; (c) to cause to be made any written or oral inquiry or record concerning the race, religious creed, color, national origin, sex, gender identity, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, age, genetic information, ancestry or marital status of the person seeking to rent or lease or buy any such accommodation, or concerning the fact that such person is a veteran or a member of the armed forces or because such person is blind or hearing impaired or has any other handicap. The word "age" as used in this subsection shall not apply to persons who are minors nor to residency in state-aided or federally-aided housing developments for the elderly nor to residency

in housing developments assisted under the federal low income housing tax credit and intended for use as housing for persons 55 years of age or over or 62 years of age or over, nor to residency in communities consisting of either a structure or structures constructed expressly for use as housing for persons 55 years of age or over or 62 years of age or over if the housing owner or manager register biennially with the executive office of housing and livable communities. For the purpose of this subsection, housing intended for occupancy by persons fifty-five or over and sixty-two or over shall comply with the provisions set forth in 42 USC 3601 et seq.

For purposes of this subsection, discrimination on the basis of handicap includes, but is not limited to, in connection with the design and construction of: (1) all units of a dwelling which has three or more units and an elevator which are constructed for first occupancy after March thirteenth, nineteen hundred and ninety-one; and (2) all ground floor units of other dwellings consisting of three or more units which are constructed for first occupancy after March thirteenth, nineteen hundred and ninety-one, a failure to design and construct such dwellings in such a manner that (i) the public use and common use portions of such dwellings are readily accessible to and usable by handicapped persons; (ii) all the doors are designed to allow passage into and within all premises within such dwellings and are sufficiently wide to allow passage by handicapped persons in wheelchairs; and (iii) all premises within such dwellings contain the following features of adaptive design; (a) an accessible route into and through the dwelling; (b) light switches, electrical outlets, thermostats, and other environmental controls in accessible locations; (c) reinforcements in bathroom walls to allow later installation of grab bars; and (d) usable kitchens and bathrooms such that an individual in a wheelchair can maneuver about the space.

7. For the owner, lessee, sublessee, real estate broker, assignee or managing agent of other covered housing accommodations or of land intended for the erection of any housing accommodation included under subsection 10, 11, 12, or 13 of section one, or other person having the right of ownership or possession or right to rent or lease or sell, or negotiate for the sale or lease of such land or accommodations, or any agent or employee of such a person or any organization of unit owners in a condominium or housing cooperative: (a) to refuse to rent or lease or sell or negotiate for sale or lease or otherwise to deny or withhold from any person or group of persons such accommodations or land because of race, color, religious creed, national origin, sex, gender identity, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, age, genetic information, ancestry, or marital status, veteran status or membership in the armed forces, blindness, hearing impairment, or because such person possesses a trained dog guide as a consequence of blindness or hearing impairment or other handicap of such person or persons; (b) to discriminate against any person because of his race, color, religious creed, national origin, sex, gender identity, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, age, genetic information, ancestry, or marital status, veteran status or membership in the armed services, blindness, or hearing impairment or other handicap, or because such person possesses a trained dog guide as a consequence of blindness or hearing impairment in the terms, conditions or privileges of such accommodations or land or the acquisition thereof, or in the furnishing of facilities and services in the connection therewith or (c) to cause to be made any written or oral inquiry or record concerning the race, color, religious creed, national origin, sex, gender identity, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, age, genetic information, ancestry, marital status, veteran status or membership in the armed services, blindness, hearing impairment or other handicap or because such person possesses a trained dog guide as a consequence of blindness or hearing impairment, of the person seeking to rent or lease or buy any such accommodation or land; provided, however, that this subsection shall not apply to the leasing of a single apartment or flat in a two family dwelling, the other occupancy unit of which is occupied by the owner as his residence. The word "age" as used in this subsection shall not apply to persons who are minors nor to residency in state-aided or federally-aided housing developments for the elderly nor to residency in housing developments assisted under the federal low income housing tax credit and intended for use as housing for persons 55 years of age or over or 62 years of age or over, nor to residency in communities consisting of either a structure or structures constructed expressly for use as housing for persons 55 years of age or over or 62 years of age or over if the housing owner or manager register biennially with the executive office of housing and livable communities. For the purpose of this subsection, housing intended for occupancy by persons fifty-five or over and sixty-two or over shall comply with the provisions set forth in 42 USC 3601 et seq.

7A. For purposes of subsections 6 and 7 discrimination on the basis of handicap shall include but not be limited to: **(1)** a refusal to permit or to make, at the expense of the handicapped person, reasonable modification of existing premises occupied or to be occupied by such person if such modification is necessary to afford such person full enjoyment of such premises; provided, however, that, in the case of publicly assisted housing, multiple dwelling housing consisting of ten or more units, or contiguously located housing consisting of ten or more units, reasonable modification shall be at the expense of the owner or other person having the right of ownership; provided, further, that, in the case of public ownership of such housing units the cost of such reasonable modification shall be subject to appropriation; and provided, further, that, in the case of a rental, the landlord may, where the modification to be

paid for by the handicapped person will materially alter the marketability of the housing, condition permission for a modification on the tenant agreeing to restore or pay for the cost of restoring, the interior of the premises to the condition that existed prior to such modification, reasonable wear and tear excepted;

(2) a refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford a handicapped person equal opportunity to use and enjoy a dwelling; and

(3) discrimination against or a refusal to rent to a person because of such person's need for reasonable modification or accommodation.

Reasonable modification shall include, but not be limited to, making the housing accessible to mobility-impaired, hearing-impaired and sight-impaired persons including installing raised numbers which may be read by a sight-impaired person, installing a door bell which flashes a light for a hearing-impaired person, lowering a cabinet, ramping a front entrance of five or fewer vertical steps, widening a doorway, and installing a grab bar; provided, however, that for purposes of this subsection, the owner or other person having the right of ownership shall not be required to pay for ramping a front entrance of more than five steps or for installing a wheelchair lift.

Notwithstanding any other provisions of this subsection, an accommodation or modification which is paid for by the owner or other person having the right of ownership is not considered to be reasonable if it would impose an undue hardship upon the owner or other person having the right of ownership and shall therefore not be required. Factors to be considered shall include, but not be limited to, the nature and cost of the accommodation or modification needed, the extent to which the accommodation or modification would materially alter the marketability of the housing, the overall size of the housing business of the owner or other person having the right of ownership, including but not limited to, the number and type of housing units, size of budget and available assets, and the ability of the owner or other person having the right of ownership to recover the cost of the accommodation or modification through a federal tax deduction. Ten percent shall be the maximum number of units for which an owner or other person having the right of ownership shall be required to pay for a modification in order to make units fully accessible to persons using a wheelchair pursuant to the requirements of this subsection.

In the event a wheelchair accessible unit becomes or will become vacant, the owner or other person having the right of ownership shall give timely notice to a person who has, within the previous twelve months, notified the owner or person having the right of ownership that such person is in need of a unit which is wheelchair accessible, and the owner or other person having the right of ownership shall give at least fifteen days notice of the vacancy to MassAbility, which shall maintain a central registry of accessible apartment housing under the provisions of section seventy-nine of chapter six. During such fifteen day notice period, the owner or other person having the right of ownership may lease or agree to lease the unit only if it is to be occupied by a person who is in need of wheelchair accessibility.

Notwithstanding any general or special law, by-law or ordinance to the contrary, there shall not be established or imposed a rent or other charge for such handicap-accessible housing which is higher than the rent or other charge for comparable nonaccessible housing of the owner or other person having the right of ownership.

7B. For any person to make print, or publish, or cause to be made, printed, or published any notice, statement or advertisement, with respect to the sale or rental of multiple dwelling, contiguously located, publicly assisted or other covered housing accommodations that indicates any preference, limitation, or discrimination based on race, color, religion, sex, gender identity, sexual orientation which shall not include persons whose sexual orientation involves minor children as the sex object, national origin, genetic information, ancestry, children, marital status, public assistance recipiency, or handicap or an intention to make any such preference, limitation or discrimination except where otherwise legally permitted.

8. For the owner, lessee, sublessee, or managing agent of, or other person having the right of ownership or possession of or the right to sell, rent or lease, commercial space: (1) To refuse to sell, rent, lease or otherwise deny to or withhold from any person or group of persons such commercial space because of race, color, religious creed, national origin, sex, gender identity, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, age, genetic information, ancestry handicap or marital status of such person or persons. (2) To discriminate against any person because of his race, color, religious creed, national origin, sex, gender identity, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, age, genetic information, ancestry, handicap or marital status in the terms, conditions or privileges of the sale, rental or lease of any such commercial space or in the furnishing of facilities or services in connection therewith. (3) To cause to be made any written or oral inquiry or record concerning the race, color, religious creed, national origin, sex, gender identity, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, age, genetic information, ancestry, handicap or marital status of a person seeking to rent or lease or buy any such commercial space. The word "age" as used in this subsection shall not apply to persons who are minors, nor to residency in state-aided or federally-aided housing developments for the elderly nor to residency in self-contained retirement communities constructed expressly for use by the elderly and which are at least twenty acres in size and have a minimum age requirement for residency of at least fifty-five years.

9. For an employer, himself or through his agent, in connection with an application for employment, or the terms, conditions, or privileges of employment, or the transfer, promotion, bonding, or discharge of any person, or in any other matter relating to the employment of any person, to request any information, to make or keep a record of such information, to use any form of application or application blank which requests such information, or to exclude, limit or otherwise discriminate against any person by reason of his or her failure to furnish such information through a written application or oral inquiry or otherwise regarding: (i) an arrest, detention, or disposition regarding any violation of law in which no conviction resulted, or (ii) a first conviction for any of the following misdemeanors: drunkenness, simple assault, speeding, minor traffic violations, affray, or disturbance of the peace, or (iii) any conviction of a misdemeanor where the date of such conviction or the completion of any period of incarceration resulting therefrom, whichever date is later, occurred 3 or more years prior to the date of such application for employment or such request for information, unless such person has been convicted of any offense within 3 years immediately preceding the date of such application for employment or such request for information, or (iv) a criminal record, or anything related to a criminal record, that has been sealed or expunged pursuant to chapter 276.

No person shall be held under any provision of any law to be guilty of perjury or of otherwise giving a false statement by reason of his failure to recite or acknowledge such information as he has a right to withhold by this subsection.

Nothing contained herein shall be construed to affect the application of section thirty-four of chapter ninety-four C, or of chapter two hundred and seventy-six relative to the sealing of records.

91/2. For an employer to request on its initial written application form criminal offender record information; provided, however, that except as otherwise prohibited by subsection 9, an employer may inquire about any criminal convictions on an applicant's application form if: (i) the applicant is applying for a position for which any federal or state law or regulation creates mandatory or presumptive disqualification based on a conviction for 1 or more types of criminal offenses; or (ii) the employer or an affiliate of such employer is subject to an obligation imposed by any federal or state law or regulation not to employ persons, in either 1 or more positions, who have been convicted of 1 or more types of criminal offenses.

9A. For an employer himself or through his agent to refuse, unless based upon a bonafide occupational qualification, to hire or employ or to bar or discharge from employment any person by reason of his or her failure to furnish information regarding his or her admission, on one or more occasions, voluntarily or involuntarily, to any public or private facility for the care and treatment of mentally ill persons, provided that such person has been discharged from such facility or facilities and can prove by a psychiatrist's certificate that he is mentally competent to perform the job or the job for which he is applying. No application for employment shall contain any questions or requests for information regarding the admission of an applicant, on one or more occasions, voluntarily or involuntarily, to any public or private facility for the care and treatment of mentally ill persons, provided that such applicant has been discharged from such public or private facility or facilities and is no longer under treatment directly related to such admission.

10. For any person furnishing credit, services or rental accommodations to discriminate against any individual who is a recipient of federal, state, or local public assistance, including medical assistance, or who is a tenant receiving federal, state, or local housing subsidies, including rental assistance or rental supplements, because the individual is such a recipient, or because of any requirement of such public assistance, rental assistance, or housing subsidy program.

11. For the owner, sublessees, real estate broker, assignee or managing agent of publicly assisted or multiple dwelling or contiguously located housing accommodations or other covered housing accommodations, or other person having the right of ownership or possession or right to rent or lease or sell such accommodations, or any agent or employee of such person or organization of unit owners in a condominium or housing cooperative, to refuse to rent or lease or sell or otherwise to deny to or withhold from any person such accommodations because such person has a child or children who shall occupy the premises with such person or to discriminate against any person in the terms, conditions, or privileges of such accommodations or the acquisition thereof, or in the furnishing of facilities and services in connection therewith, because such person has a child or children who occupy or shall occupy the premises with such person; provided, however, that nothing herein shall limit the applicability of any local, state, or federal restrictions regarding the maximum number of persons permitted to occupy a dwelling. When the commission or a court finds that discrimination in violation of this paragraph has occurred with respect to a residential premises containing dangerous levels of lead in paint, plaster, soil, or other accessible material, notification of such finding shall be sent to the director of the childhood lead poisoning prevention program.

This subsection shall not apply to:

(1) Dwellings containing three apartments or less, one of which apartments is occupied by an elderly or infirm person for whom the presence of children would constitute a hardship. For purposes of this subsection, an "elderly person" shall mean a person sixty-five years of age or over, and an "infirm person" shall mean a person who is disabled or suffering from a chronic illness.

(2) The temporary leasing or temporary subleasing of a single family dwelling, a single apartment, or a single unit of a condominium or housing cooperative, by the owner of such dwelling, apartment, or unit, or in the case of a subleasing, by the sublessor thereof, who ordinarily occupies the dwelling, apartment, or unit as his or her principal place of residence. For purposes of this subsection, the term "temporary leasing" shall mean leasing during a period of the owner's or sublessor's absence not to exceed one year.

(3) The leasing of a single dwelling unit in a two family dwelling, the other occupancy unit of which is occupied by the owner as his residence.

11A. For an employer, or an employer's agent, to refuse to restore certain employees to employment following an absence by reason of a parental leave taken pursuant to section 105D of chapter 149 or to otherwise fail to comply with that section, or for the commonwealth and any of its boards, departments and commissions to deny vacation credit to an employee for the fiscal year during which the employee is absent due to a parental leave taken pursuant to said section 105D of said chapter 149, or to impose any other penalty as a result of a parental leave of absence.

12. For any retail store which provides credit or charge account privileges to refuse to extend such privileges to a customer solely because said customer had attained age sixty-two or over.

13. For any person to directly or indirectly induce, attempt to induce, prevent, or attempt to prevent the sale, purchase, or rental of any dwelling or dwellings by:

(a) implicit or explicit representations regarding the entry or prospective entry into the neighborhood of a person or persons of a particular age, race, color, religion, sex, gender identity, national or ethnic origin, or economic level or a handicapped person, or a person having a child, or implicit or explicit representations regarding the effects or consequences of any such entry or prospective entry;

(b) unrequested contact or communication with any person or persons, initiated by any means, for the purpose of so inducing or attempting to induce the sale, purchase, or rental of any dwelling or dwellings when he knew or, in the exercise of reasonable care, should have known that such unrequested solicitation would reasonably be associated by the persons solicited with the entry into the neighborhood of a person or persons of a particular age, race, color, religion, sex, gender identity, national or ethnic origin, or economic level or a handicapped person, or a person having a child;

(c) implicit or explicit false representations regarding the availability of suitable housing within a particular neighborhood or area, or failure to disclose or offer to show all properties listed or held for sale or rent within a requested price or rental range, regardless of location; or

(d) false representations regarding the listing, prospective listing, sale, or prospective sale of any dwelling.

14. For any person furnishing credit or services to deny or terminate such credit or services or to adversely affect an individual's credit standing because of such individual's sex, gender identity, marital status, age or sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object; provided that in the case of age the following shall not be unlawful practices:

(1) an inquiry of age for the purpose of determining a pertinent element of creditworthiness;

(2) the use of empirically derived credit systems which consider age, provided such systems are based on demonstrably and statistically sound data and provided further that such systems do not assign a negative factor or score to any applicant who has reached age sixty-two;

(3) the offering of credit life insurance or credit disability insurance, in conjunction with any credit or services, to a limited age group;

(4) the denial of any credit or services to a person who has not attained the age of majority;

(5) the denial of any credit or services the duration of which exceeds the life expectancy of the applicant as determined by the most recent Individual Annuity Mortality Table; or

(6) the offering of more favorable credit terms to students, to persons aged eighteen to twenty-one, or to persons who have reached the age of sixty-two.

Any person who violates the provisions of this subsection shall be liable in an action of contract for actual damages; provided, however, that, if there are no actual damages, the court may assess special damages to the aggrieved party not to exceed one thousand dollars; and provided further, that any person who has been found to violate a provision of this subsection by a court of competent jurisdiction shall be assessed the cost of reasonable legal fees actually incurred.

15. For any person responsible for recording the name of or establishing the personal identification of an individual for any purpose, including that of extending credit, to require such individual to use, because of such individual's sex or marital status, any surname other than the one by which such individual is generally known.

16. For any employer, personally or through an agent, to dismiss from employment or refuse to hire, rehire or advance in employment or otherwise discriminate against, because of his handicap, any person alleging to be a qualified handicapped person, capable of performing the essential functions of the position involved with reasonable accommodation, unless the employer can demonstrate that the accommodation required to be made to the physical

or mental limitations of the person would impose an undue hardship to the employer's business. For purposes of this subsection, the word employer shall include an agency which employs individuals directly for the purpose of furnishing part-time or temporary help to others.

In determining whether an accommodation would impose an undue hardship on the conduct of the employer's business, factors to be considered include:—

(1) the overall size of the employer's business with respect to the number of employees, number and type of facilities, and size of budget or available assets;

(2) the type of the employer's operation, including the composition and structure of the employer's workforce; and

(3) the nature and cost of the accommodation needed.

Physical or mental job qualification requirement with respect to hiring, promotion, demotion or dismissal from employment or any other change in employment status or responsibilities shall be functionally related to the specific job or jobs for which the individual is being considered and shall be consistent with the safe and lawful performance of the job.

An employer may not make preemployment inquiry of an applicant as to whether the applicant is a handicapped individual or as to the nature or severity of the handicap, except that an employer may condition an offer of employment on the results of a medical examination conducted solely for the purpose of determining whether the employee, with reasonable accommodation, is capable of performing the essential functions of the job, and an employer may invite applicants to voluntarily disclose their handicap for purposes of assisting the employer in its affirmative action efforts.

16A. For an employer, personally or through its agents, to sexually harass any employee.

17. Notwithstanding any provision of this chapter, it shall not be an unlawful employment practice for any person, employer, labor organization or employment agency to:

(a) observe the terms of a bona fide seniority system or any bona fide employee benefit plan such as a retirement, pension, or insurance plan, which is not a subterfuge to evade the purposes of this section, except that no such employee benefit plan shall excuse the failure to hire any person, and no such seniority system or employee benefit plan shall require or permit the involuntary retirement of any person because of age except as permitted by paragraph (b).

(b) require the compulsory retirement of any person who has attained the age of sixty-five and who, for the two year period immediately before retirement, is employed in a bona fide executive or high policymaking position, if such person entitled to an immediate nonforfeitable annual retirement benefit from a pension, profit-sharing, savings or deferred compensation plan, or any combination of such plans, of the employer, which equals, in the aggregate, at least forty-four thousand dollars.

(c) require the retirement of any employee who has attained seventy years of age and who is serving under a contract of unlimited tenure or similar arrangement providing for unlimited tenure at an independent institution of higher education, or to limit the employment in a faculty capacity of such an employee, or another person who has attained seventy years of age who was formerly employed under a contract of unlimited tenure or similar arrangement, to such terms and to such a period as would serve the present and future needs of the institution, as determined by it; provided, however, that in making such a determination, no institution shall use as a qualification for employment or reemployment, the fact that the individual is under any particular age.

18. For the owner, lessee, sublessee, licensed real estate broker, assignee, or managing agent of publicly assisted or multiple dwelling or contiguously located housing accommodations or other covered housing accommodations, or other person having the right of ownership or possession, or right to rent or lease, or sell or negotiate for the sale of such accommodations, or any agent or employee of such person or any organization of unit owners in a condominium or housing cooperative to sexually harass any tenant, prospective tenant, purchaser or prospective purchaser of property.

Notwithstanding the foregoing provisions of this section, it shall not be an unlawful employment practice for any person, employer, labor organization or employment agency to inquire of an applicant for employment or membership as to whether or not he or she is a veteran or a citizen.

Notwithstanding the provisions of any general or special law nothing herein shall be construed to bar any religious or denominational institution or organization, or any organization operated for charitable or educational purposes, which is operated, supervised or controlled by or in connection with a religious organization, from limiting admission to or giving preference to persons of the same religion or denomination or from taking any action with respect to matters of employment, discipline, faith, internal organization, or ecclesiastical rule, custom, or law which are calculated by such organization to promote the religious principles for which it is established or maintained.

Notwithstanding the foregoing provisions of this section, (a) every employer, every employment agency, including the division of employment and training, and every labor organization shall make and keep such records relating to race, color or national origin as the commission may prescribe from time to time by rule or regulation, after public hearing, as reasonably necessary for the purpose of showing compliance with the requirements of this chapter, and

(b) every employer and labor organization may keep and maintain such records and make such reports as may from time to time be necessary to comply, or show compliance with, any executive order issued by the President of the United States or any rules or regulations issued thereunder prescribing fair employment practices for contractors and subcontractors under contract with the United States, or, if not subject to such order, in the manner prescribed therein and subject to the jurisdiction of the commission. Such requirements as the commission may, by rule or regulation, prescribe for the making and keeping of records under clause (a) shall impose no greater burden or requirement on the employer, employment agency or labor organization subject thereto, than the comparable requirements which could be prescribed by Federal rule or regulation so long as no such requirements have in fact been prescribed, or which have in fact been prescribed for an employer, employment agency or labor organization under the authority of the Civil Rights Act of 1964, from time to time amended. This paragraph shall apply only to employers who on each working day in each of twenty or more calendar weeks in the annual period ending with each date set forth below, employed more employees than the number set forth beside such date, and to labor organizations which have more members on each such working day during such period.

Nothing contained in this chapter or in any rule or regulation issued by the commission shall be interpreted as requiring any employer, employment agency or labor organization to grant preferential treatment to any individual or to any group because of the race, color, religious creed, national origin, sex, gender identity, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, age, genetic information or ancestry of such individual or group because of imbalance which may exist between the total number or percentage of persons employed by any employer, referred or classified for employment by any employment agency or labor organization, admitted to membership or classified by any labor organization or admitted to or employed in, any apprenticeship or other training program, and the total number or percentage of persons of such race, color, religious creed, national origin, sex, gender identity, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, age, genetic information or ancestry in the commonwealth or in any community, section or other area therein, or in the available work force in the commonwealth or in any of its political subdivisions.

19. (a) It shall be unlawful discrimination for any employer, employment agency, labor organization, or licensing agency to

(1) refuse to hire or employ, represent, grant membership to, or license a person on the basis of that person's genetic information;

(2) collect, solicit or require disclosure of genetic information from any person as a condition of employment, or membership, or of obtaining a license;

(3) solicit submission to, require, or administer a genetic test to any person as a condition of employment, membership, or obtaining a license;

(4) offer a person an inducement to undergo a genetic test or otherwise disclose genetic information;

(5) question a person about their genetic information or genetic information concerning their family members, or inquire about previous genetic testing;

(6) use the results of a genetic test or other genetic information to affect the terms, conditions, compensation or privileges of a person's employment, representation, membership, or the ability to obtain a license;

(7) terminate or refuse to renew a person's employment, representation, membership, or license on the basis of a genetic test or other genetic information; or

(8) otherwise seek, receive, or maintain genetic information for non-medical purposes.

[There is no paragraph (b).]

Md. Code Ann., Educ. § 5-317

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

(current text, retrieved 2026-10-29)

(a) In this section, "Program" means the School Safety Grant Program.

(b) (1) There is a School Safety Grant Program.

(2) The purpose of the Program is to provide grants to county boards for school security improvements, including:

(i) Secure and lockable classroom doors for each classroom in the school;

(ii) An area of safe refuge in each classroom in the school; and

(iii) Surveillance and other security technology for school monitoring purposes.

(c) The Program shall be implemented and administered by the Interagency Commission, in consultation with the Maryland Center for School Safety.

(d) The Interagency Commission shall:

(1) Provide grants to county boards for public school security improvements;

(2) Develop a procedure for a county board to apply for a grant under the Program; and

(3) Develop eligibility requirements for a county board to receive a grant under the Program.

(e) In addition to the annual amount otherwise provided in the capital improvement program of the Public School Construction Program, the Governor shall provide an additional $10,000,000 in the annual operating or capital budget bill that may be used only to award grants under the Program.

(f) The State funding provided under the Program is supplemental to and is not intended to take the place of funding that would otherwise be appropriated for public school construction purposes to a county board from any other source.

(g) The Interagency Commission shall adopt regulations necessary to implement this section.

Md. Code Ann., Educ. § 26-704

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

(current text, retrieved 2026-10-29)

(a) This section applies to:

(1) A county board;

(2) A public prekindergarten program;

(3) A public primary or secondary school;

(4) A nonpublic prekindergarten program that receives State funds; and

(5) A nonpublic primary or secondary school that receives State funds.

(b) An entity listed under subsection (a) of this section may not:

(1) Discriminate against a current student, a prospective student, or the parent or guardian of a current or prospective student on the basis of race, ethnicity, color, religion, sex, age, national origin, marital status, sexual orientation, gender identity, or disability;

(2) Refuse enrollment of a prospective student, expel a current student, or withhold privileges from a current student, a prospective student, or the parent or guardian of a current or prospective student because of an individual's race, ethnicity, color, religion, sex, age, national origin, marital status, sexual orientation, gender identity, or disability; or

(3) Discipline, invoke a penalty against, or take any other retaliatory action against a student or parent or guardian of a student who files a complaint alleging that the program or school discriminated against the student, regardless of the outcome of the complaint.

(c) An entity listed under subsection (a) of this section shall print in its student handbook the following statement:

"It is the policy of the State of Maryland that all public and publicly funded schools and school programs operate in compliance with:

(1) Title VI of the federal Civil Rights Act of 1964; and

(2) Title 26, Subtitle 7 of the Education Article of the Maryland Code, which states that public and publicly funded schools and programs may not:

(i) Discriminate against a current student, a prospective student, or the parent or guardian of a current or prospective student on the basis of race, ethnicity, color, religion, sex, age, national origin, marital status, sexual orientation, gender identity, or disability;

(ii) Refuse enrollment of a prospective student, expel a current student, or withhold privileges from a current student, a prospective student, or the parent or guardian of a current or prospective student because of an individual's race, ethnicity, color, religion, sex, age, national origin, marital status, sexual orientation, gender identity, or disability; or

(iii) Discipline, invoke a penalty against, or take any other retaliatory action against a student or parent or guardian of a student who files a complaint alleging that the program or school discriminated against the student, regardless of the outcome of the complaint.".

Md. Code Ann., State Gov't § 20-304

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

(current text, retrieved 2026-10-29)

An owner or operator of a place of public accommodation or an agent or employee of the owner or operator may not refuse, withhold from, or deny to any person any of the accommodations, advantages, facilities, or privileges of the place of public accommodation because of the person's race, sex, age, color, creed, national origin, marital status, sexual orientation, gender identity, or disability.

Md. Code Ann., State Gov't § 20-701

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

(current text, retrieved 2026-10-29)

(a) In this subtitle the following words have the meanings indicated.

(b) (1) "Disability" means:

(i) a physical or mental impairment that substantially limits one or more of an individual's major life activities;

(ii) a record of having a physical or mental impairment that substantially limits one or more of an individual's major life activities; or

(iii) being regarded as having a physical or mental impairment that substantially limits one or more of an individual's major life activities.

(2) "Disability" does not include the current illegal use of or addiction to:

(i) a controlled dangerous substance, as defined in § 5–101 of the Criminal Law Article; or

(ii) a controlled substance, as defined in 21 U.S.C. § 802.

(c) "Discriminatory housing practice" means an act that is prohibited under § 20–705, § 20–706, § 20–707, or § 20–708 of this subtitle.

(d) "Dwelling" means:

(1) any building, structure, or portion of a building or structure that is occupied, or designed or intended for occupancy, as a residence by one or more families; and

(2) any vacant land that is offered for sale or lease for the construction or location on the land of any building, structure, or portion of a building or structure described in item (1) of this subsection.

(e) (1) "Familial status" means the status of one or more minors who are domiciled with:

(i) a parent or other person having legal custody of the minor; or

(ii) the designee of a parent or other person having legal custody of the minor with the written permission of the parent or other person.

(2) "Familial status" includes the status of being:

(i) a pregnant woman; or

(ii) an individual who is in the process of securing legal custody of a minor.

(f) "Family" includes a single individual.

(g) "In the business of selling or renting dwellings" means:

(1) within the preceding 12 months, participating as a principal in three or more transactions involving the sale or rental of any dwelling or any interest in a dwelling;

(2) within the preceding 12 months, participating as an agent, other than in the sale of the individual's own personal residence, in providing sales or rental facilities or services in two or more transactions involving the sale or rental of any dwelling or any interest in a dwelling; or

(3) being the owner of any dwelling occupied, or designed or intended for occupancy, by five or more families.

(h) "Marital status" means the state of being single, married, separated, divorced, or widowed.

(i) "Rent" includes to lease, sublease, let, or otherwise grant for a consideration the right to occupy premises not owned by the occupant.

(j) (1) "Source of income" means any lawful source of money paid directly or indirectly to or on behalf of a renter or buyer of housing.

(2) "Source of income" includes income from:

(i) a lawful profession, occupation, or job;

(ii) any government or private assistance, grant, loan, or rental assistance program, including low–income housing assistance certificates and vouchers issued under the United States Housing Act of 1937;

(iii) a gift, an inheritance, a pension, an annuity, alimony, child support, or any other consideration or benefit; or

(iv) the sale or pledge of property or an interest in property.

Md. Code Ann., State Gov't § 20-705

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

(current text, retrieved 2026-10-29)

Except as provided in §§ 20–703 and 20–704 of this subtitle, a person may not:

(1) refuse to sell or rent after the making of a bona fide offer, refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, disability, marital status, familial status, sexual orientation, gender identity, national origin, source of income, or military status;

(2) discriminate against any person in the terms, conditions, or privileges of the sale or rental of a dwelling, or in the provision of services or facilities in connection with the sale or rental of a dwelling, because of race, color, religion, sex, disability, marital status, familial status, sexual orientation, gender identity, national origin, source of income, or military

status;
(3) make, print, or publish, or cause to be made, printed, or published, any notice, statement, or advertisement with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination based on race, color, religion, sex, disability, marital status, familial status, sexual orientation, gender identity, national origin, source of income, or military status, or an intention to make any preference, limitation, or discrimination;
(4) represent to any person, because of race, color, religion, sex, disability, marital status, familial status, sexual orientation, gender identity, national origin, source of income, or military status, that any dwelling is not available for inspection, sale, or rental when the dwelling is available; or
(5) for profit, induce or attempt to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of a person of a particular race, color, religion, sex, disability, marital status, familial status, sexual orientation, gender identity, national origin, source of income, or military status.

Md. Code Ann., State Gov't § 26-606

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Text not stored locally (not fetched: only the cited sections of gsg are local (–fetch-state-law gets it; tribonian state fetch MD code gsg for the whole)).

Me. Stat. tit. 5, § 21

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Definitions (current text, retrieved 2026-10-29)
As used in this chapter, unless the context otherwise indicates, the following terms have the following meanings.
[PL 1985, c. 167 (NEW).]
1. Legislative committee. "Legislative committee" means a joint standing committee of the Legislature, a joint select committee of the Legislature, a task force, commission or council or any other committee established by the Legislature and composed wholly or partly of Legislators for the purpose of conducting legislative business.
[PL 1985, c. 167 (NEW).]
2. Nonpartisan staff. "Nonpartisan staff" means the directors and staffs of the Office of Policy and Legal Analysis, the Office of Fiscal and Program Review, the Office of the Revisor of Statutes, the Legislative Information Office, the Law and Legislative Reference Library, the Office of Program Evaluation and Government Accountability, the Office of Legislative Information Technology and the Office of the Executive Director of the Legislative Council.
[PL 2015, c. 102, §7 (AMD).]
3. Own time. "Own time" means an employee's personal time or authorized leave time, earned as a condition of employment.
[PL 1985, c. 167 (NEW).]
4. State employee. "State employee" means any employee of an agency, independent agency or parts of agencies which receive support from the General Fund or that are established, created or incorporated by reference to the laws, except nonpartisan staff of the Legislature.
[PL 1989, c. 483, Pt. A, §5 (AMD).]
5. Supervisor. "Supervisor" means a commissioner, bureau chief, director, manager or any other person who oversees or supervises state employees in their employment.
[PL 1985, c. 167 (NEW).]
6. Legislative inquiry. "Legislative inquiry" means any request made by a legislative committee or individual Legislator to a state employee for public information or the state employee's personal opinion.
[PL 1989, c. 483, Pt. A, §6 (NEW); PL 1989, c. 878, Pt. A, §8 (AMD).]
SECTION HISTORY PL 1985, c. 167 (NEW). PL 1985, c. 737, §B5 (AMD). PL 1989, c. 483, §§A5,A6 (AMD). PL 1989, c. 878, §A8 (AMD). PL 2015, c. 102, §7 (AMD).

Me. Stat. tit. 5, § 4553

Cited by the petitioners 0 times (0 filings) and their amici 5 (5); by the respondent 0 (0) and its amici 0 (0).

Definitions (current text, retrieved 2026-10-29)
As used in this Act, unless the context or subchapter otherwise indicates, the following words have the following meanings.
[PL 1995, c. 393, §1 (AMD).]
1. Commission. "Commission" means the Maine Human Rights Commission established by this Act.
[PL 1971, c. 501, §1 (NEW).]
1-A. Commercial facilities. "Commercial facilities" means facilities that are intended for nonresidential use.
[PL 1995, c. 393, §2 (NEW).]

1-B. Covered entity. For purposes of subchapter 3, "covered entity" means an employer, employment agency, labor organization or joint labor-management committee. For purposes of subchapter 5, "covered entity" means any applicable private entity or public entity.
[PL 2019, c. 464, §1 (AMD).]
1-C. Direct threat. For purposes of subchapter 3, "direct threat" means a significant risk to the health or safety of others that can not be eliminated by reasonable accommodation.
[PL 2019, c. 464, §1 (AMD).]
1-D. Aggrieved person. "Aggrieved person" includes any person who claims to have been subject to unlawful discrimination on the basis of protected class status, including discrimination based on the person's known relationship or association with a member of a protected class and discrimination on the basis of perceived protected class status. "Aggrieved person" also includes any person who claims to have been injured by unlawful housing discrimination.
[PL 2019, c. 464, §1 (AMD).]
1-E. Complainant. "Complainant" means a person who files a complaint under section 4611.
[PL 2019, c. 464, §1 (AMD).]
1-F. Conciliation. "Conciliation" means the attempted resolution after a finding by the commission that unlawful discrimination has occurred of issues raised by a complaint filed under section 4611 or by an investigation of such a complaint through informal negotiations involving the complainant, the respondent and the commission.
[PL 2019, c. 464, §1 (AMD).]
1-G. Conciliation agreement. "Conciliation agreement" means a written agreement setting forth the resolution of the issues in conciliation.
[PL 2011, c. 613, §4 (NEW); PL 2011, c. 613, §29 (AFF).]
1-H. Assistance animal. "Assistance animal" means, for the purposes of subchapter 4:

A. An animal that has been determined necessary for an individual with a physical or mental disability to mitigate the effects of a physical or mental disability by a physician, psychologist, physician associate, nurse practitioner, licensed social worker, licensed professional counselor or other licensed health professional with knowledge of the disability-related need for an assistance animal; or
[PL 2019, c. 464, §1 (AMD); PL 2025, c. 316, §3 (REV).]

B. An animal individually trained to do work or perform tasks for the benefit of an individual with a physical or mental disability, including, but not limited to, guiding individuals with impaired vision, alerting individuals who are deaf or hard of hearing to intruders or sounds, providing reasonable protection or rescue work, pulling a wheelchair or retrieving dropped items.
[PL 2015, c. 457, §1 (NEW).]
[PL 2019, c. 464, §1 (AMD); PL 2025, c. 316, §3 (REV).]

2. Discriminate. "Discriminate" includes, without limitation, segregate, separate or subject to harassment.
For purposes of subchapter 3, "discriminate" also includes:

A. Limiting, segregating or classifying a job applicant or employee in a way that adversely affects the opportunities or status of the applicant or employee because of the protected class of the applicant or employee;
[PL 2019, c. 464, §1 (AMD).]

B. Participating in a contractual or other arrangement or relationship that has the effect of subjecting a covered entity's qualified applicant or employee to the discrimination prohibited by this Act. A relationship includes a relationship with an employment or referral agency, labor union, an organization providing fringe benefits to an employee of the covered entity or an organization providing training and apprenticeship programs;
[PL 2019, c. 464, §1 (AMD).]

C. Utilizing standards, criteria or methods of administration:

(1) That have the effect of discrimination on the basis of protected class status; or

(2) That perpetuate discrimination on the basis of protected class status by others who are subject to common administrative control;
[PL 2019, c. 464, §1 (AMD).]

D. Excluding or otherwise denying equal jobs or benefits to a qualified individual because of the known protected class status of an individual with whom the qualified individual is known to have a relationship or association;
[PL 2019, c. 464, §1 (AMD).]

E. Not making reasonable accommodations to the known physical or mental limitations of an otherwise qualified individual with a disability who is an applicant or employee, unless the covered entity can demonstrate that the accommodation would impose an undue hardship on the operation of the business of the covered entity;
[PL 1995, c. 393, §3 (NEW).]

F. Denying employment opportunities to a job applicant or employee who is an otherwise qualified individual with a disability, if the denial is based on the need of the covered entity to make reasonable accommodation to the physical

or mental impairments of the employee or applicant;

[PL 1995, c. 393, §3 (NEW).]

G. Using qualification standards, employment tests or other selection criteria that screen out or tend to screen out an individual or a class of individuals based on their protected class status unless the standard, test or other selection criteria, as used by the covered entity, is shown to be job-related for the position in question and is consistent with business necessity; and

[PL 2019, c. 464, §1 (AMD).]

H. Failing to select and administer tests concerning employment in the most effective manner to ensure that, when the test is administered to a job applicant or employee who has a disability that impairs sensory, manual or speaking skills, the test results accurately reflect the skills, aptitude or any other factor of the applicant or employee that the test purports to measure, rather than reflecting the impaired sensory, manual or speaking skills of the employee or applicant, except when the skills are the factors that the test purports to measure.

[PL 1995, c. 393, §3 (NEW).]

[PL 2019, c. 464, §1 (AMD).]

2-A. Educational institution. "Educational institution" means any public school or educational program, any public postsecondary institution, any private school or educational program approved for tuition purposes and the governing body of each such school or program.

[PL 2023, c. 188, §1 (AMD).]

3. Employee. "Employee" means an individual employed by an employer. "Employee" does not include any individual employed by that individual's parents, spouse or child, except for purposes of disability-related discrimination, in which case the individual is considered to be an employee.

[PL 1995, c. 393, §5 (AMD).]

4. Employer. "Employer" includes any person in this State employing any number of employees, whatever the place of employment of the employees, and any person outside this State employing any number of employees whose usual place of employment is in this State; any person acting in the interest of any employer, directly or indirectly, such that the person's actions are considered the actions of the employer for purposes of liability; and labor organizations, whether or not organized on a religious, fraternal or sectarian basis, with respect to their employment of employees. "Employer" does not include a religious or fraternal corporation or association, not organized for private profit and in fact not conducted for private profit, with respect to employment of its members of the same religion, sect or fraternity, except for purposes of disability-related discrimination, in which case the corporation or association is considered to be an employer.

[PL 2019, c. 464, §1 (AMD).]

5. Employment agency. "Employment agency" includes any person undertaking with or without compensation to procure opportunities to work, or to procure, recruit, refer or place employees; it includes, without limitation, placement services, training schools and centers, and labor organizations, to the extent that they act as employee referral sources; and it includes any agent of such person acting in the interest of the person such that the agent's actions are considered the actions of the employment agency for purposes of liability.

[PL 2019, c. 464, §1 (AMD).]

5-A. Familial status. "Familial status" means a family unit that contains:

A. One or more individuals who have not attained 18 years of age and are living with a parent or another person having legal custody of the individual or individuals or the designee of the parent or other person having custody with the written permission of the parent or other person; or

[PL 2021, c. 366, §2 (AMD).]

B. [PL 2021, c. 366, §2 (RP).]

B-1. One or more individuals 18 years of age or older who lack the ability to meet essential requirements for physical health, safety or self-care because the individual or individuals are unable to receive and evaluate information or make or communicate decisions.

[PL 2021, c. 366, §2 (NEW).]

The protections afforded against discrimination on the basis of familial status apply to any person who is pregnant or who is in the process of securing legal custody of any individual who has not attained 18 years of age.

[PL 2021, c. 366, §2 (AMD).]

5-B. Family. "Family" includes, but is not limited to, a single individual.

[PL 2011, c. 613, §5 (NEW); PL 2011, c. 613, §29 (AFF).]

5-C. Gender identity. "Gender identity" means the gender-related identity, appearance, mannerisms or other gender-related characteristics of an individual, regardless of the individual's assigned sex at birth.

[PL 2019, c. 464, §1 (NEW).]

6. Housing accommodation. "Housing accommodation" includes any building or structure or portion thereof, or any

parcel of land, developed or undeveloped, that is occupied, or is intended to be occupied or to be developed for occupancy, for residential purposes.

A. [PL 2011, c. 613, §6 (RP); PL 2011, c. 613, §29 (AFF).]

B. [PL 2011, c. 613, §6 (RP); PL 2011, c. 613, §29 (AFF).]

C. [PL 2011, c. 613, §6 (RP); PL 2011, c. 613, §29 (AFF).]

[PL 2011, c. 613, §6 (AMD); PL 2011, c. 613, §29 (AFF).]

6-A. Normal retirement age. "Normal retirement age" means the specified age, the years of service requirement or any age and years of service combination at which a member may become eligible for retirement benefits. This subsection may not be construed to require the mandatory retirement of a member or to deny employment to any person based solely on that person's normal retirement age.

[PL 2005, c. 10, §2 (AMD).]

7. Person. "Person" includes one or more individuals, partnerships, associations, organizations, corporations, municipal corporations, legal representatives, trustees, trustees in bankruptcy, receivers and other legal representatives, labor organizations, mutual companies, joint-stock companies and unincorporated organizations and includes the State and all agencies thereof.

[PL 2011, c. 613, §7 (AMD); PL 2011, c. 613, §29 (AFF).]

7-A. Physical or mental disability. "Physical or mental disability" has the meaning set forth in section 4553-A.

[PL 2007, c. 385, §1 (RPR).]

7-B. Person with physical or mental disability.

[PL 2007, c. 385, §2 (RP).]

8. Place of public accommodation. "Place of public accommodation" means a facility, operated by a public entity or private entity, whose operations fall within at least one of the following categories:

A. An inn, hotel, motel or other place of lodging, whether conducted for the entertainment or accommodation of transient guests or those seeking health, recreation or rest;

[PL 1995, c. 393, §7 (NEW).]

B. A restaurant, eating house, bar, tavern, buffet, saloon, soda fountain, ice cream parlor or other establishment serving or selling food or drink;

[PL 1995, c. 393, §7 (NEW).]

C. A motion picture house, theater, concert hall, stadium, roof garden, airdrome or other place of exhibition or entertainment;

[PL 1995, c. 393, §7 (NEW).]

D. An auditorium, convention center, lecture hall or other place of public gathering;

[PL 1995, c. 393, §7 (NEW).]

E. A bakery, grocery store, clothing store, hardware store, shopping center, garage, gasoline station or other sales or rental establishment;

[PL 1995, c. 393, §7 (NEW).]

F. A laundromat, dry cleaner, bank, barber shop, beauty shop, travel service, shoe repair service, funeral parlor, gas station, office of an accountant or lawyer, pharmacy, insurance office, professional office of a health care provider, hospital, dispensary, clinic, bathhouse or other service establishment;

[PL 1995, c. 393, §7 (NEW).]

G. All public conveyances operated on land or water or in the air as well as a terminal, depot or other station used for specified public transportation;

[PL 1995, c. 393, §7 (NEW).]

H. A museum, library, gallery or other place of public display or collection;

[PL 1995, c. 393, §7 (NEW).]

I. A park, zoo, amusement park, race course, skating rink, fair, bowling alley, golf course, golf club, country club, gymnasium, health spa, shooting gallery, billiard or pool parlor, swimming pool, seashore accommodation or boardwalk or other place of recreation, exercise or health;

[PL 1995, c. 393, §7 (NEW).]

J. A nursery, elementary, secondary, undergraduate or postgraduate school or other place of education;

[PL 1995, c. 393, §7 (NEW).]

K. A day care center, senior citizen center, homeless shelter, food bank, adoption agency or other social service center establishment;

[PL 2019, c. 464, §1 (AMD).]

L. Public elevators of buildings occupied by 2 or more tenants or by the owner and one or more tenants;

[PL 1995, c. 393, §7 (NEW).]

M. A municipal building, courthouse, town hall or other establishment of the State or a local government; and

[PL 1995, c. 393, §7 (NEW).]

N. Any establishment that in fact caters to, or offers its goods, facilities or services to, or solicits or accepts patronage from, the general public.

[PL 1995, c. 393, §7 (NEW).]

When a place of public accommodation is located in a private residence, the portion of the residence used exclusively as a residence is not covered by this subchapter, but that portion used exclusively in the operation of the place of public accommodation or that portion used both for the place of public accommodation and for the residential purposes is covered by this subchapter. The covered portion of the residence extends to those elements used to enter the place of public accommodation, and those exterior and interior portions of the residence available to or used by customers or clients, including rest rooms.

[PL 2019, c. 464, §1 (AMD).]

8-A. Private entity. "Private entity" means any entity other than a public entity.

[PL 1995, c. 393, §8 (NEW).]

8-B. Public accommodation. "Public accommodation" means a public entity or private entity that owns, leases, leases to or operates a place of public accommodation.

[PL 2019, c. 464, §1 (AMD).]

8-C. Public entity. "Public entity" means:

A. The State or any local government;

[PL 1995, c. 393, §8 (NEW).]

B. Any department, agency, special purpose district or other instrumentality of the State, 2 or more states or a local government; and

[PL 1995, c. 393, §8 (NEW).]

C. A state, local or private commuter authority as defined in the federal Rail Passenger Service Act.

[PL 2019, c. 464, §1 (AMD).]

[PL 2019, c. 464, §1 (AMD).]

8-D. Qualified individual with a disability. "Qualified individual with a disability" applies to only:

A. Subchapter 3 (employment).

[PL 2023, c. 489, §1 (AMD).]

B. [PL 2023, c. 489, §2 (RP).]

For purposes of subchapter 3, "qualified individual with a disability" means an individual with a physical or mental disability who, with or without reasonable accommodation, can perform the essential functions of the employment position that the individual holds or desires.

[PL 2023, c. 489, §§1-3 (AMD).]

8-E. Pregnancy-related condition. "Pregnancy-related condition" means a known limitation of an employee's ability to perform the functions of a job due to pregnancy, childbirth or related medical conditions, including but not limited to lactation.

[PL 2019, c. 490, §1 (NEW).]

Revisor's Note: (Subsection 8-E as enacted by PL 2019, c. 464, §1 is REALLOCATED TO TITLE 5, SECTION 4553, SUBSECTION 8-F)

8-F. (REALLOCATED FROM T. 5, §4553, sub-§8-E) Protected class. "Protected class" means a class of individuals protected from unlawful discrimination under this Act.

[PL 2019, c. 464, §1 (NEW); RR 2019, c. 1, Pt. A, §5 (RAL).]

8-G. Protective hairstyle. "Protective hairstyle" includes braids, twists and locks.

[PL 2021, c. 643, §1 (NEW).]

8-H. Race, for purposes of subchapters 3 and 5-B. "Race," for the purposes of subchapters 3 and 5-B, includes traits associated with race, including hair texture, Afro hairstyles and protective hairstyles.

[PL 2021, c. 643, §2 (NEW).]

9. Real estate broker and sales agent. "Real estate broker" and "real estate sales agent" have the same meanings as in Title 32, sections 13198 and 13200 respectively; but include all persons meeting those definitions, whether they are licensed or required to be licensed.

[PL 2019, c. 464, §1 (AMD).]

9-A. Reasonable accommodation. For purposes of subchapter 3, "reasonable accommodation" may include, but is not limited to:

A. Making existing facilities used by employees readily accessible to and usable by individuals with disabilities; and

[PL 1995, c. 393, §8 (NEW).]

B. Job restructuring, part-time or modified work schedules, reassignment to a vacant position, leaves of absence, acquisition or modification of equipment or devices, appropriate adjustment or modifications of examinations, training

materials or policies, the provision of qualified readers or interpreters and other similar accommodations for individuals with disabilities.

[PL 2019, c. 464, §1 (AMD).]

[PL 2019, c. 464, §1 (AMD).]

9-B. Undue hardship; undue burden. "Undue hardship" or "undue burden" means an action requiring undue financial or administrative hardship. In determining whether an action would result in an undue hardship, factors to be considered include:

A. The nature and cost of the accommodation needed under this Act;

[PL 1995, c. 393, §8 (NEW).]

B. The overall financial resources of the facility or facilities involved in the action, the number of persons employed at the facility, the effect on expenses and resources or the impact otherwise of the action upon the operation of the facility;

[PL 1995, c. 393, §8 (NEW).]

C. The overall financial resources of the covered entity, the overall size of the business of a covered entity with respect to the number of its employees and the number, type and location of its facilities;

[PL 1995, c. 393, §8 (NEW).]

D. The type of operation or operations of the covered entity, including the composition, structure and functions of the work force of the entity, the geographic separateness, administrative or fiscal relationship of the facility or facilities in question to the covered entity;

[PL 1995, c. 393, §8 (NEW).]

E. All the resources available to meet the costs of the accommodation, including any government funding or other grants available for making public accommodations and places of employment accessible;

[PL 1995, c. 393, §8 (NEW).]

F. The extent to which current costs of accommodations have been minimized by past efforts to provide equal access to persons with disabilities;

[PL 1995, c. 393, §8 (NEW).]

G. The extent to which resources spent on improving inaccessible equipment or service could have been spent on making an accommodation so that service or equipment is accessible to individuals with disabilities, as well as to individuals without disabilities;

[PL 1995, c. 393, §8 (NEW).]

H. Documented good faith efforts to explore less restrictive or less expensive alternatives;

[PL 1995, c. 393, §8 (NEW).]

I. The availability of equipment and technology for the accommodation;

[PL 1995, c. 393, §8 (NEW).]

J. Whether an accommodation would result in a fundamental change in the nature of the public accommodation;

[PL 1995, c. 393, §8 (NEW).]

K. Efforts to minimize costs by spreading costs over time; and

[PL 1995, c. 393, §8 (NEW).]

L. The extent to which resources saved by failing to make an accommodation for persons who have disabilities could have been saved by cutting costs in equipment or services for the general public.

[PL 1995, c. 393, §8 (NEW).]

"Undue hardship" or "undue burden" is a higher standard than "readily achievable" and requires a greater level of effort on the part of the public accommodation.

[PL 2019, c. 464, §1 (AMD).]

9-C. Sexual orientation. "Sexual orientation" means a person's actual or perceived heterosexuality, bisexuality or homosexuality.

[PL 2023, c. 41, §1 (AMD).]

9-D. Service animal.

[PL 2011, c. 369, §1 (RP).]

9-E. Service animal. "Service animal" means:

A. [PL 2015, c. 457, §2 (RP).]

B. For the purposes of subchapter 5, a dog that is individually trained to do work or perform tasks for the benefit of an individual with a disability, including a physical, sensory, psychiatric, intellectual or other mental disability. Other species of animals, whether wild or domestic, trained or untrained, are not service animals for the purposes of this definition. The work or tasks performed by a service animal must be directly related to the individual's disability. Examples of such work or tasks include, but are not limited to, assisting an individual who is totally or partially blind with navigation and other tasks, alerting an individual who is deaf or hard of hearing to the presence of people

or sounds, providing nonviolent protection or rescue work, pulling a wheelchair, assisting an individual during a seizure, alerting an individual to the presence of allergens, retrieving items such as medicine or a telephone, providing physical support and assistance with balance and stability to an individual with a mobility disability and helping a person with a psychiatric or neurological disability by preventing or interrupting impulsive or destructive behaviors. The crime deterrent effects of an animal's presence and the provision of emotional support, well-being, comfort or companionship do not constitute work or tasks for the purposes of this definition.

[PL 2011, c. 369, §2 (NEW).]

[PL 2015, c. 457, §2 (AMD).]

9-F. Rent. "Rent" includes to lease, to sublease, to let or otherwise to grant for a consideration the right to occupy premises not owned by the occupant.

[PL 2011, c. 613, §8 (NEW); PL 2011, c. 613, §29 (AFF).]

9-G. Respondent. "Respondent" means a person accused of unlawful discrimination in a complaint filed under section 4611.

[PL 2019, c. 464, §1 (AMD).]

10. Unlawful discrimination. "Unlawful discrimination" includes:

A. Unlawful employment discrimination as defined and limited by subchapter 3;

[PL 2019, c. 464, §1 (AMD).]

B. Unlawful housing discrimination as defined and limited by subchapter 4;

[PL 2019, c. 464, §1 (AMD).]

C. Unlawful public accommodations discrimination as defined by subchapter 5;

[PL 2019, c. 464, §1 (AMD).]

D. Aiding, abetting, inciting, compelling or coercing another to do any of such types of unlawful discrimination; obstructing or preventing any person from complying with this Act or any order issued in this subsection; attempting to do any act of unlawful discrimination; and punishing or penalizing, or attempting to punish or penalize, any person for seeking to exercise any of the civil rights declared by this Act or for complaining of a violation of this Act or for testifying in any proceeding brought in this subsection;

[PL 1983, c. 578, §2 (AMD).]

E. In determining whether a person is acting as an agent or employee of another person so as to make such other person responsible for that person's acts, the question of whether the specific acts performed were actually authorized or subsequently ratified is not controlling;

[PL 2005, c. 10, §4 (AMD).]

F. Unlawful educational discrimination as defined and limited by subchapter 5-B;

[PL 2023, c. 489, §4 (AMD).]

G. Discrimination in employment, housing, public accommodation, credit and educational opportunity on the basis of sexual orientation or gender identity, except that a religious corporation, association or organization that does not receive public funds is exempt from this provision with respect to:

(1) Employment, as is more fully set forth in section 4553, subsection 4 and section 4573-A;

(2) Housing; and

(3) Educational opportunity.

Any for-profit organization owned, controlled or operated by a religious association or corporation and subject to the provisions of the United States Internal Revenue Code of 1986, 26 United States Code, Section 511(a) is not covered by the exemptions set forth in this paragraph; and

[PL 2023, c. 489, §5 (AMD).]

H. Unlawful discrimination by public entities as described in section 4630.

[PL 2023, c. 489, §6 (NEW).]

[PL 2023, c. 489, §§4-6 (AMD).]

SECTION HISTORY PL 1971, c. 501, §1 (NEW). PL 1973, c. 415, §1 (AMD). PL 1975, c. 182, §1 (AMD). PL 1975, c. 358, §2 (AMD). PL 1979, c. 350, §1 (AMD). PL 1983, c. 437, §1 (AMD). PL 1983, c. 578, §§1,2 (AMD). PL 1987, c. 478, §2 (AMD). PL 1989, c. 245, §2 (AMD). PL 1991, c. 99, §2 (AMD). PL 1991, c. 109 (AMD). PL 1995, c. 393, §§1-8 (AMD). RR 1999, c. 2, §2 (COR). PL 2005, c. 10, §§2-6 (AMD). PL 2007, c. 385, §§1, 2 (AMD). PL 2007, c. 664, §1 (AMD). PL 2011, c. 369, §§1, 2 (AMD). PL 2011, c. 613, §§1-9 (AMD). PL 2011, c. 613, §29 (AFF). PL 2015, c. 457, §§1, 2 (AMD). PL 2019, c. 464, §1 (AMD). PL 2019, c. 490, §1 (AMD). RR 2019, c. 1, Pt. A, §5 (COR). PL 2021, c. 366, §§2, 3 (AMD). PL 2021, c. 643, §§1, 2 (AMD). PL 2023, c. 41, §1 (AMD). PL 2023, c. 188, §1 (AMD). PL 2023, c. 489, §§1-6 (AMD). PL 2025, c. 316, §3 (REV).

Me. Stat. tit. 5, § 4581

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Right to freedom from discrimination in housing; exceptions (current text, retrieved 2026-10-29)

The opportunity for an individual to secure housing in accordance with the individual's ability to pay, and without discrimination because of race, color, sex, sexual orientation or gender identity, physical or mental disability, religion, ancestry, national origin or familial status or because the individual has sought and received an order of protection under Title 19-A, former section 4007 or a final protection order pursuant to Title 19-A, section 4110 or pursuant to a substantially similar provision of the law of another state or nation, is hereby recognized as and declared to be a civil right.

[PL 2025, c. 269, §2 (AMD).]

1. Number of occupants. Nothing in this subchapter limits the applicability of any reasonable local, state or federal restrictions regarding the maximum number of occupants permitted to occupy a dwelling. Nor does any provision in this subchapter regarding familial status apply with respect to housing for older persons.

[PL 2007, c. 243, §1 (AMD).]

2. Definition. As used in this section, "housing for older persons" means housing:

A. Provided under any state or federal program that the United States Secretary of Housing and Urban Development determines is specifically designed and operated to assist elderly persons as defined in the state or federal program;

[PL 2011, c. 613, §10 (AMD); PL 2011, c. 613, §29 (AFF).]

B. Intended for, and solely occupied by, persons 62 years of age or older; or

[PL 1989, c. 245, §3 (NEW).]

C. Intended and operated for occupancy by at least one person 55 years of age or older per unit. In determining whether housing qualifies as housing for older persons under this paragraph, the housing must meet at least the following factors:

(2) That at least 80% of the dwellings are occupied by at least one person 55 years of age or older per unit; and

(3) The publication of, and adherence to, policies and procedures that demonstrate an intent by the owner or manager to provide housing for persons 55 years of age or older.

[PL 1997, c. 85, §1 (AMD).]

[PL 2011, c. 613, §10 (AMD); PL 2011, c. 613, §29 (AFF).]

3. Requirements. Housing does not fail to meet the requirements for "housing for older persons" by reason of:

A. Persons residing in the housing as of the date of enactment of this subsection who do not meet the requirements of subsection 2, paragraph B or C if new occupants of the housing meet the age requirements of subsection 2, paragraphs B and C; or

[PL 2011, c. 613, §10 (AMD); PL 2011, c. 613, §29 (AFF).]

B. Unoccupied units if the units are reserved for occupancy by persons who meet the age requirements of subsection 2, paragraphs B and C.

[PL 2011, c. 613, §10 (AMD); PL 2011, c. 613, §29 (AFF).]

[PL 2011, c. 613, §10 (AMD); PL 2011, c. 613, §29 (AFF).]

4. Housing accommodation exceptions. The following exceptions apply in this chapter:

A. This chapter does not prohibit the rental of any dwelling owned, controlled or operated for other than a commercial purpose by a religious corporation to its membership unless such membership is restricted on account of race, color or national origin; and

[PL 2011, c. 613, §10 (NEW); PL 2011, c. 613, §29 (AFF).]

B. Except as provided in section 4581-A, subsection 1, paragraph C and section 4581-A, subsections 2 and 3, this chapter does not apply to:

(1) The rental of a one-family unit of a 2-family dwelling, one unit of which is occupied by the owner; or

(2) The rental of not more than 4 rooms of a one-family dwelling that is occupied by the owner.

[PL 2011, c. 613, §10 (NEW); PL 2011, c. 613, §29 (AFF).]

[PL 2011, c. 613, §10 (NEW); PL 2011, c. 613, §29 (AFF).]

SECTION HISTORY PL 1971, c. 501, §1 (NEW). PL 1973, c. 347, §8 (AMD). PL 1973, c. 705, §7 (AMD). PL 1975, c. 355, §8 (AMD). PL 1975, c. 358, §11 (AMD). PL 1975, c. 770, §35 (RPR). PL 1989, c. 245, §3 (AMD). PL 1991, c. 99, §12 (AMD). PL 1997, c. 85, §1 (AMD). PL 2005, c. 10, §13 (AMD). PL 2007, c. 243, §1 (AMD). PL 2011, c. 613, §10 (AMD). PL 2011, c. 613, §29 (AFF). PL 2021, c. 366, §7 (AMD). PL 2021, c. 476, §2 (AMD). PL 2025, c. 269, §2 (AMD).

Me. Stat. tit. 5, § 4591

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Equal access to public accommodations (current text, retrieved 2026-10-29)

The opportunity for every individual to have equal access to places of public accommodation without discrimination because of race, color, sex, sexual orientation or gender identity, age, physical or mental disability, religion, ancestry or national origin is recognized as and declared to be a civil right.

[PL 2021, c. 366, §12 (AMD).]

SECTION HISTORY PL 1971, c. 501, §1 (NEW). PL 1973, c. 347, §11 (AMD). PL 1975, c. 355, §10 (AMD). PL 1975, c. 358, §§13-A (AMD). PL 1975, c. 770, §38 (RPR). PL 1991, c. 99, §20 (AMD). PL 2005, c. 10, §16 (AMD). PL 2021, c. 366, §12 (AMD).

Me. Stat. tit. 5, § 4602

Cited by the petitioners 0 times (0 filings) and their amici 19 (8); by the respondent 0 (0) and its amici 0 (0).

Unlawful educational discrimination (current text, retrieved 2026-10-29)

1. Unlawful educational discrimination. It is unlawful educational discrimination in violation of this Act, on the basis of sex, sexual orientation or gender identity, physical or mental disability, ancestry, national origin, race, color or religion, to:

A. Exclude a person from participation in, deny a person the benefits of, or subject a person to, discrimination in any academic, extracurricular, research, occupational training or other program or activity;

[PL 1985, c. 797, §1 (AMD).]

B. Deny a person equal opportunity in athletic programs;

[PL 1983, c. 578, §3 (NEW).]

C. Apply any rule concerning the actual or potential familial status or marital status of a person or to exclude any person from any program or activity because of pregnancy or related conditions or because of sex or sexual orientation or gender identity;

[PL 2021, c. 366, §19 (AMD).]

D. Deny a person admission to the institution or program or to fail to provide equal access to and information about an institution or program through recruitment; or

[PL 2021, c. 366, §19 (AMD).]

E. Deny a person financial assistance availability and opportunity.

[PL 2021, c. 366, §19 (AMD).]

[PL 2021, c. 366, §19 (AMD).]

2. Unlawful educational discrimination on the basis of physical or mental disability.

[PL 2021, c. 366, §19 (RP).]

3. Unlawful educational discrimination on the basis of national origin or race.

[PL 2021, c. 366, §19 (RP).]

4. Unlawful education discrimination on the basis of sexual orientation.

[PL 2021, c. 366, §19 (RP).]

5. Application. Nothing in this section:

A. Requires an educational institution to provide separate athletic or other extracurricular programs to serve a person with a physical or mental disability;

[PL 2021, c. 366, §19 (NEW).]

B. May be construed to affect the rights of a person with a physical or mental disability to special education programs under state or federal law;

[PL 2021, c. 366, §19 (NEW).]

C. Requires a religious corporation, association or society that does not receive public funding to comply with this section as it relates to sexual orientation or gender identity; or

[PL 2021, c. 366, §19 (NEW).]

D. Requires an educational institution to participate in or endorse any religious beliefs or practices; to the extent that an educational institution permits religious expression, it cannot discriminate between religions in so doing.

[PL 2021, c. 366, §19 (NEW).]

[PL 2021, c. 366, §19 (NEW).]

SECTION HISTORY PL 1983, c. 578, §3 (NEW). PL 1985, c. 797, §1 (AMD). PL 1987, c. 478, §4 (AMD). PL 1989, c. 725, §2 (AMD). PL 1991, c. 99, §28 (AMD). PL 1991, c. 100, §2 (AMD). PL 2005, c. 10, §21 (AMD). PL 2005, c. 662, §A1 (AMD). PL 2021, c. 366, §19 (AMD).

Me. Stat. tit. 20-A, § 2951

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Approval for tuition purposes (current text, retrieved 2026-10-29)

A private school may be approved for the receipt of public funds for tuition purposes only if it:

[PL 2005, c. 153, §2 (AMD).]

1. Basic approval. Meets the requirements for basic school approval under subchapter I;

[PL 1981, c. 693, §§5, 8 (NEW).]

2. Nonsectarian.

[PL 2025, c. 112, §5 (RP).]

3. Incorporated; located within State. Is incorporated under the laws of the State and, notwithstanding any provision of law to the contrary, if the instructional facility and administrative offices are located within the State;

[PL 2025, c. 632, §2 (AMD).]

4. Reports and audits.

[PL 1983, c. 859, Pt. A, §§8, 25 (RP).]

5. Additional requirements. Complies with the reporting and auditing requirements in sections 2952 and 2953 and the requirements adopted pursuant to section 2954;

[PL 1997, c. 266, §7 (AMD).]

6. Student assessment and other requirements. At a minimum, meets or exceeds the following requirements:

A. It participates in the statewide assessment program to measure and evaluate the academic achievements of students;

[PL 2021, c. 386, §1 (AMD).]

B. It meets the applicable requirements of and has a curriculum aligned with the system of learning results established in section 6209;

[PL 2021, c. 386, §1 (AMD).]

C. It meets health and safety requirements applicable to public schools; and

[PL 2021, c. 386, §1 (NEW).]

D. If public funding supports more than 85% of the school's students, as determined by the previous year's October and April average enrollment, and the municipality where the school is located does not exercise school choice, it enrolls all students from that municipality, including those with disabilities, who must be served in accordance with applicable state and federal law.

[PL 2021, c. 386, §1 (NEW).]

Except as provided in paragraph D, the requirements of this subsection apply only to a school that enrolls 60% or more publicly funded students, as determined by the previous year's October and April average enrollment; and

[PL 2021, c. 386, §1 (AMD); PL 2021, c. 386, §2 (AFF).]

7. Release of student records. Upon the request of a school unit, releases copies of all student records for students transferring from the private school to the school unit.

[PL 2017, c. 342, §3 (AMD).]

SECTION HISTORY PL 1981, c. 693, §§5,8 (NEW). PL 1983, c. 859, §§A8-A9,A25 (AMD). PL 1985, c. 797, §§25-27 (AMD). PL 1997, c. 266, §§7-9 (AMD). PL 2005, c. 153, §2 (AMD). PL 2017, c. 342, §§2, 3 (AMD). PL 2021, c. 386, §1 (AMD). PL 2021, c. 386, §2 (AFF). PL 2025, c. 112, §5 (AMD). PL 2025, c. 632, §2 (AMD).

Minn. Stat. § 363A.03

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

DEFINITIONS (current text, 2025 edition; retrieved 2026-10-29)

Subdivision 1.Terms. For the purposes of this chapter, the words defined in this section have the meanings ascribed to them.

Subd. 2.Age. The prohibition against unfair employment or education practices based on age prohibits using a person's age as a basis for a decision if the person is over the age of majority except for section 363A.13 which shall be deemed to protect any individual over the age of 25 years.

Subd. 3. MS 2022 [Repealed, 2024 c 105 s 20]

Subd. 4.Business. The term "business" includes any partnership, association, corporation, legal representative, trustee, trustee in bankruptcy, or receiver, but excludes the state and its departments, agencies, and political subdivisions.

Subd. 5.Charging party. "Charging party" means a person filing a charge with the commissioner or the commissioner's designated agent pursuant to section 363A.28, subdivision 1.

Subd. 6.Closed case file. "Closed case file" means a file containing human rights investigative data in which an order or other decision resolving the alleged or suspected discrimination has been made or issued by the commissioner, a hearing officer, or a court, and the time for any reconsideration of or appeal from the order or decision has expired.

Subd. 7.Commissioner. "Commissioner" means the commissioner of human rights.

Subd. 8.Complainant. "Complainant" means the commissioner of human rights after issuing a complaint pursuant to sections 363A.06, subdivision 3, paragraph (8), and 363A.28, subdivisions 1 to 9.

Subd. 9.Confidential, private, and public data on individuals and protected nonpublic data not on individuals. "Confidential," "private," "public data on individuals," "protected nonpublic data not on individuals," and any other terms concerning the availability of human rights investigative data have the meanings given them by section 13.02 of the Minnesota Government Data Practices Act.

Subd. 10.Demand responsive system. "Demand responsive system" means a system of providing public transportation that is not a fixed route system.

Subd. 11.Department. "Department" means the Department of Human Rights.

Subd. 12.Disability. "Disability" means any condition or characteristic that renders a person a disabled person. A disabled person is any person who (1) has a physical, sensory, or mental impairment which materially limits one or more major life activities; (2) has a record of such an impairment; (3) is regarded as having such an impairment; or (4) has an impairment that is episodic or in remission and would materially limit a major life activity when active.

Subd. 13.Discriminate. The term "discriminate" includes segregate, separate, or harassment.

Subd. 14.Educational institution. "Educational institution" means a public or private institution and includes an academy, college, elementary or secondary school, extension course, kindergarten, nursery, school system and a business, nursing, professional, secretarial, technical, vocational school, and includes an agent of an educational institution.

Subd. 15.Employee. "Employee" means an individual who is employed by an employer and who resides or works in this state. Employee includes a commission salesperson, as defined in section 181.145, who resides or works in this state.

Subd. 16.Employer. "Employer" means a person who has one or more employees.

Subd. 17.Employment agency. "Employment agency" means a person or persons who, or an agency which regularly undertakes, with or without compensation, to procure employees or opportunities for employment.

Subd. 18.Familial status. "Familial status" means the condition of one or more minors having legal status or custody with (1) the minor's parent or parents or the minor's legal guardian or guardians or (2) the designee of the parent or parents or guardian or guardians with the written permission of the parent or parents or guardian or guardians. Familial status also means residing with and caring for one or more individuals who lack the ability to meet essential requirements for physical health, safety, or self-care because the individual or individuals are unable to receive and evaluate information or make or communicate decisions. The protections afforded against discrimination on the basis of family status apply to any person who is pregnant or is in the process of securing legal custody of an individual who has not attained the age of majority.

Subd. 19.Fixed route system. "Fixed route system" means a system of providing public transportation on which a vehicle is operated along a prescribed route according to a fixed schedule.

Subd. 20.Historic or antiquated rail passenger car. "Historic or antiquated rail passenger car" means a rail passenger car:

(1) that is at least 30 years old at the time of its use for transporting individuals;

(2) the manufacturer of which is no longer in the business of manufacturing rail passenger cars; or

(3) that has consequential association with events or persons significant to the past or embodies, or is being restored to embody, the distinctive characteristics of a type of rail passenger car used in the past or to represent a time period that has passed.

Subd. 21.Human rights investigative data. "Human rights investigative data" means written documents issued or gathered by the department for the purpose of investigating and prosecuting alleged or suspected discrimination.

Subd. 22.Labor organization. "Labor organization" means any organization that exists wholly or partly for one or more of the following purposes:

(1) collective bargaining;

(2) dealing with employers concerning grievances, terms or conditions of employment; or

(3) mutual aid or protection of employees.

Subd. 23.Local commission. "Local commission" means an agency of a city, county, or group of counties created pursuant to law, resolution of a county board, city charter, or municipal ordinance for the purpose of dealing with discrimination on the basis of race, color, creed, religion, national origin, sex, gender identity, age, disability, marital status, status with regard to public assistance, sexual orientation, or familial status.

Subd. 24.Marital status. "Marital status" means whether a person is single, married, remarried, divorced, separated, or a surviving spouse and, in employment cases, includes protection against discrimination on the basis of the identity, situation, actions, or beliefs of a spouse or former spouse.

Subd. 25.National origin. "National origin" means the place of birth of an individual or of any of the individual's lineal ancestors.

Subd. 26.Open case file. "Open case file" means a file containing human rights investigative data in which no order or other decision resolving the alleged or suspected discrimination has been made or issued by the commissioner, a hearing

officer, or a court, or a file in which an order or other decision has been issued but the time for any reconsideration or appeal of the order or decision has either not yet expired or the reconsideration or appeal is then pending.

Subd. 27.Operates. "Operates," when used with respect to a demand responsive or fixed route system, includes the operation of the system by a person under a contractual or other arrangement or relationship with a public or private entity.

Subd. 28.Over-the-road bus. "Over-the-road bus" means a bus characterized by an elevated passenger deck located over a baggage compartment.

Subd. 29.Party in interest. "Party in interest" means the complainant, respondent, or commissioner.

Subd. 30.Person. "Person" includes partnership, association, corporation, legal representative, trustee, trustee in bankruptcy, receiver, and the state and its departments, agencies, and political subdivisions.

Subd. 31.Physical access. "Physical access" means (1) the absence of physical obstacles that limit a disabled person's opportunity for full and equal use of or benefit from goods, services, and privileges; or, when necessary, (2) the use of methods to overcome the discriminatory effect of physical obstacles. The methods may include redesign of equipment, assignment of aides, or use of alternate accessible locations.

Subd. 32.Private entity. "Private entity" means an entity other than a public service.

Subd. 33.Program access. "Program access" means (1) the use of auxiliary aids or services to ensure full and equal use of or benefit from goods, services, and privileges; and (2) the absence of criteria or methods of administration that directly, indirectly, or through contractual or other arrangements, have the effect of subjecting qualified disabled persons to discrimination on the basis of disability, or have the effect of defeating or impairing the accomplishment of the objectives of the program.

Subd. 34.Place of public accommodation. "Place of public accommodation" means a business, accommodation, refreshment, entertainment, recreation, or transportation facility of any kind, whether licensed or not, whose goods, services, facilities, privileges, advantages or accommodations are extended, offered, sold, or otherwise made available to the public.

Subd. 35.Public service. "Public service" means any public facility, department, agency, board or commission, owned, operated or managed by or on behalf of the state of Minnesota, or any subdivision thereof, including any county, city, town, township, or independent district in the state.

Subd. 36.Qualified disabled person. "Qualified disabled person" means:

(1) with respect to employment, a disabled person who, with reasonable accommodation, can perform the essential functions required of all applicants for the job in question; and

(2) with respect to public services, a person with a disability who, with or without reasonable modifications to rules, policies, or practices, removal of architectural, communications, or transportation barriers, or the provision of auxiliary aids and services, meets the essential eligibility requirements for receipt of services and for participation in programs and activities provided by the public service.

For the purposes of this subdivision, "disability" excludes any condition resulting from alcohol or drug abuse which prevents a person from performing the essential functions of the job in question or constitutes a direct threat to property or the safety of others.

If a respondent contends that the person is not a qualified disabled person, the burden is on the respondent to prove that it was reasonable to conclude the disabled person, with reasonable accommodation, could not have met the requirements of the job or that the selected person was demonstrably better able to perform the job.

Subd. 36a.Race. "Race" is inclusive of traits associated with race, including but not limited to hair texture and hair styles such as braids, locs, and twists.

Subd. 37.Rail passenger car. "Rail passenger car" means, with respect to intercity or commuter rail transportation, single- and bi-level coach cars, dining cars, sleeping cars, lounge cars, restroom cars, and food service cars.

Subd. 38.Real estate broker or salesperson. "Real estate broker or salesperson" means, respectively, a real estate broker as defined by section 82.55, subdivision 19, and a real estate salesperson as defined by section 82.55, subdivision 20.

Subd. 39.Real property. "Real property" includes real estate, lands, tenements, and hereditaments, corporeal and incorporeal.

Subd. 40.Religious or denominational educational institution. "Religious or denominational educational institution" means an educational institution which is operated, supervised, controlled or sustained primarily by a religious or denominational organization, or one which is stated by the parent church body to be and is, in fact, officially related to that church by being represented on the board of the institution, and by providing substantial financial assistance and which has certified, in writing, to the board that it is a religious or denominational educational institution.

Subd. 41.Respondent. "Respondent" means a person against whom a complaint has been filed or issued.

Subd. 42.Sex. "Sex" includes, but is not limited to, pregnancy, childbirth, and disabilities related to pregnancy or childbirth.

Subd. 43.Sexual harassment. "Sexual harassment" includes unwelcome sexual advances, requests for sexual favors, sexually motivated physical contact or other verbal or physical conduct or communication of a sexual nature when:

(1) submission to that conduct or communication is made a term or condition, either explicitly or implicitly, of obtaining employment, public accommodations or public services, education, or housing;

(2) submission to or rejection of that conduct or communication by an individual is used as a factor in decisions affecting that individual's employment, public accommodations or public services, education, or housing; or

(3) that conduct or communication has the purpose or effect of substantially interfering with an individual's employment, public accommodations or public services, education, or housing, or creating an intimidating, hostile, or offensive employment, public accommodations, public services, educational, or housing environment.

Subd. 44.Sexual orientation. "Sexual orientation" means to whom someone is, or is perceived of as being, emotionally, physically, or sexually attracted to based on sex or gender identity. A person may be attracted to men, women, both, neither, or to people who are genderqueer, androgynous, or have other gender identities.

Subd. 45.Specified public transportation. "Specified public transportation" means transportation by bus, rail, or any other conveyance other than aircraft that provides the general public with general or special service, including charter service, on a regular and continuing basis.

Subd. 46.Station. "Station" means property located next to a right-of-way on which intercity and commuter transportation is operated, which is used by the general public and is related to the provision of the transportation, including passenger platforms, designated waiting areas, ticketing areas, restrooms, drinking fountains, public telephones, and, if a public service providing rail transportation owns the property, concessions areas to the extent that the public service exercises control over the selection, design, construction, or alteration of the property. Station does not include flag stops.

Subd. 47.Status with regard to public assistance. "Status with regard to public assistance" means the condition of being a recipient of federal, state, or local assistance, including medical assistance, or of being a tenant receiving federal, state, or local subsidies, including rental assistance or rent supplements.

Subd. 48.Unfair discriminatory practice. "Unfair discriminatory practice" means any act described in sections 363A.08 to 363A.19 and 363A.28, subdivision 10.

Subd. 49.Vehicle. "Vehicle" does not include a rail passenger car, railroad locomotive, railroad freight car, railroad caboose, or railroad car.

Subd. 50.Gender identity. "Gender identity" means a person's inherent sense of being a man, woman, both, or neither. A person's gender identity may or may not correspond to their assigned sex at birth or to their primary or secondary sex characteristics. A person's gender identity is not necessarily visible to others.

History: 1955 c 516 s 3; 1961 c 428 s 1-3; 1967 c 897 s 1-9; 1969 c 975 s 1,2; 1973 c 123 art 5 s 7; 1973 c 729 s 1; 1976 c 2 s 130; 1977 c 351 s 1; 1977 c 408 s 1; 1980 c 531 s 1,2; 1982 c 492 s 1; 1982 c 619 s 2,3; 1983 c 276 s 1-4; 1Sp1985 c 13 s 320-324; 1986 c 444; 1987 c 23 s 1; 1987 c 282 s 2; 1988 c 660 s 1; 1989 c 144 art 2 s 8; 1989 c 280 s 1-3; 1989 c 329 art 9 s 26; 1989 c 335 art 1 s 243; 1989 c 356 s 18; 1990 c 567 s 1,10; 1992 c 527 s 1-10; 1993 c 22 s 1,2; 1993 c 277 s 1-4; 1994 c 465 art 3 s 20; 2001 c 194 s 1; 2004 c 203 art 2 s 61; 2023 c 3 s 1; 2023 c 52 art 19 s 46-48; 2024 c 105 s 2-5

Minn. Stat. § 363A.08

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

UNFAIR DISCRIMINATORY PRACTICES RELATING TO EMPLOYMENT OR UNFAIR EMPLOYMENT PRACTICE (current text, 2025 edition; retrieved 2026-10-29)

Subdivision 1.Labor organization. Except when based on a bona fide occupational qualification, it is an unfair employment practice for a labor organization, because of race, color, creed, religion, national origin, sex, gender identity, marital status, status with regard to public assistance, familial status, disability, sexual orientation, or age:

(1) to deny full and equal membership rights to a person seeking membership or to a member;

(2) to expel a member from membership;

(3) to discriminate against a person seeking membership or a member with respect to hiring, apprenticeship, tenure, compensation, terms, upgrading, conditions, facilities, or privileges of employment; or

(4) to fail to classify properly, or refer for employment or otherwise to discriminate against a person or member.

Subd. 2.Employer. Except when based on a bona fide occupational qualification, it is an unfair employment practice for an employer, because of race, color, creed, religion, national origin, sex, gender identity, marital status, status with regard to public assistance, familial status, membership or activity in a local commission, disability, sexual orientation, or age to:

(1) refuse to hire or to maintain a system of employment which unreasonably excludes a person seeking employment; or

(2) discharge an employee; or

(3) discriminate against a person with respect to hiring, tenure, compensation, terms, upgrading, conditions, facilities,

or privileges of employment.

[See Note.]

Subd. 3.Employment agency. Except when based on a bona fide occupational qualification, it is an unfair employment practice for an employment agency, because of race, color, creed, religion, national origin, sex, gender identity, marital status, status with regard to public assistance, familial status, disability, sexual orientation, or age to:

(1) refuse or fail to accept, register, classify properly, or refer for employment or otherwise to discriminate against a person; or

(2) comply with a request from an employer for referral of applicants for employment if the request indicates directly or indirectly that the employer fails to comply with the provisions of this chapter.

Subd. 4.Employer, employment agency, or labor organization. (a) Except when based on a bona fide occupational qualification, it is an unfair employment practice for an employer, employment agency, or labor organization, before a person is employed by an employer or admitted to membership in a labor organization, to:

(1) require or request the person to furnish information that pertains to race, color, creed, religion, national origin, sex, gender identity, marital status, status with regard to public assistance, familial status, disability, sexual orientation, or age; or, subject to section 363A.20, to require or request a person to undergo physical examination; unless for the sole and exclusive purpose of national security, information pertaining to national origin is required by the United States, this state or a political subdivision or agency of the United States or this state, or for the sole and exclusive purpose of compliance with the Public Contracts Act or any rule, regulation, or laws of the United States or of this state requiring the information or examination. A law enforcement agency may, after notifying an applicant for a peace officer or part-time peace officer position that the law enforcement agency is commencing the background investigation on the applicant, request the applicant's date of birth, gender, and race on a separate form for the sole and exclusive purpose of conducting a criminal history check, a driver's license check, and fingerprint criminal history inquiry. The form shall include a statement indicating why the data is being collected and what its limited use will be. No document which has date of birth, gender, or race information will be included in the information given to or available to any person who is involved in selecting the person or persons employed other than the background investigator. No person may act both as background investigator and be involved in the selection of an employee except that the background investigator's report about background may be used in that selection as long as no direct or indirect references are made to the applicant's race, age, or gender; or

(2) seek and obtain for purposes of making a job decision, information from any source that pertains to the person's race, color, creed, religion, national origin, sex, gender identity, marital status, status with regard to public assistance, familial status, disability, sexual orientation, or age, unless for the sole and exclusive purpose of compliance with the Public Contracts Act or any rule, regulation, or laws of the United States or of this state requiring the information; or

(3) cause to be printed or published a notice or advertisement that relates to employment or membership and discloses a preference, limitation, specification, or discrimination based on race, color, creed, religion, national origin, sex, gender identity, marital status, status with regard to public assistance, familial status, disability, sexual orientation, or age.

(b) Any individual who is required to provide information that is prohibited by this subdivision is an aggrieved party under section 363A.28, subdivisions 1 to 9.

Subd. 5.Fringe benefits. Except when based on a bona fide occupational qualification, it is an unfair employment practice for an employer, an employment agency, or a labor organization, with respect to all employment related purposes, including receipt of benefits under fringe benefit programs, not to treat women affected by pregnancy, childbirth, or disabilities related to pregnancy or childbirth, the same as other persons who are not so affected but who are similar in their ability or inability to work, including a duty to make reasonable accommodations as provided by subdivision 6.

Subd. 6.Reasonable accommodation. (a) Except when based on a bona fide occupational qualification, it is an unfair employment practice for an employer with a number of part-time or full-time employees for each working day in each of 20 or more calendar weeks in the current or preceding calendar year equal to or greater than 25 effective July 1, 1992, and equal to or greater than 15 effective July 1, 1994, an employment agency, or a labor organization, not to provide a reasonable accommodation for a job applicant or qualified employee with a disability unless the employer, agency, or organization can demonstrate that the accommodation would impose an undue hardship on the business, agency, or organization. "Reasonable accommodation" means steps which must be taken to accommodate the known physical or mental limitations of a qualified individual with a disability. To determine the appropriate reasonable accommodation the employer, agency, or organization shall initiate an informal, interactive process with the individual with a disability in need of the accommodation. This process should identify the limitations resulting from the disability and any potential reasonable accommodations that could overcome those limitations. "Reasonable accommodation" may include but is not limited to, nor does it necessarily require: (1) making facilities readily accessible to and usable by individuals with disabilities; and (2) job restructuring, modified work schedules, reassignment to a vacant position, acquisition or

modification of equipment or devices, and the provision of aides on a temporary or periodic basis.

(b) In determining whether an accommodation would impose an undue hardship on the operation of a business or organization, factors to be considered include:

(1) the overall size of the business or organization with respect to number of employees or members and the number and type of facilities;

(2) the type of the operation, including the composition and structure of the work force, and the number of employees at the location where the employment would occur;

(3) the nature and cost of the needed accommodation;

(4) the reasonable ability to finance the accommodation at each site of business; and

(5) documented good faith efforts to explore less restrictive or less expensive alternatives, including consultation with the disabled person or with knowledgeable disabled persons or organizations.

A prospective employer need not pay for an accommodation for a job applicant if it is available from an alternative source without cost to the employer or applicant.

Subd. 7.Interference with age and pension rights. For purposes of this section, discrimination on account of age shall include acts which interfere with an employee's opportunity to acquire pension credits or pension benefits when the interference cannot be shown to have been based on just cause unrelated to the employee's status with regard to pension credits or pension benefits.

[See Note.]

Subd. 8.Inquiries into pay history prohibited. (a) "Pay history" as used in this subdivision means any prior or current wage, salary, earnings, benefits, or any other compensation about an applicant for employment.

(b) An employer, employment agency, or labor organization shall not inquire into, consider, or require disclosure from any source the pay history of an applicant for employment for the purpose of determining wages, salary, earnings, benefits, or other compensation for that applicant. The general prohibition against inquiring into the pay history of an applicant does not apply if the job applicant's pay history is a matter of public record under federal or state law, unless the employer, employment agency, or labor organization sought access to those public records with the intent of obtaining pay history of the applicant for the purpose of determining wages, salary, earnings, benefits, or other compensation for that applicant.

(c) Nothing in this subdivision shall prevent an applicant for employment from voluntarily and without asking, encouraging, or prompting disclosing pay history for the purposes of negotiating wages, salary, benefits, or other compensation. If an applicant for employment voluntarily and without asking, encouraging, or prompting discloses pay history to a prospective employer, employment agency, or labor organization, nothing in this subdivision shall prohibit that employer, employment agency, or labor organization from considering or acting on that voluntarily disclosed salary history information to support a wage or salary higher than initially offered by the employer, employment agency, or labor organization.

(d) Nothing in this subdivision limits, prohibits, or prevents a person from bringing a charge, grievance, or any other cause of action alleging wage discrimination because of race, color, creed, religion, national origin, sex, gender identity, marital status, status with regard to public assistance, familial status, membership or activity in a local commission, disability, sexual orientation, or age, as otherwise provided in this chapter.

(e) Nothing in this subdivision shall be construed to prevent an employer from:

(1) providing information about the wages, benefits, compensation, or salary offered in relation to a position; or

(2) inquiring about or otherwise engaging in discussions with an applicant about the applicant's expectations or requests with respect to wages, salary, benefits, or other compensation.

History: 1955 c 516 s 5; 1961 c 428 s 5; 1965 c 585 s 2; 1965 c 586 s 1; 1967 c 897 s 12-16; 1969 c 9 s 80; 1969 c 975 s 3-5; 1973 c 296 s 1; 1973 c 729 s 3,16; 1974 c 354 s 1; 1975 c 206 s 2-5; 1977 c 351 s 5-7; 1977 c 408 s 3; 1980 c 531 s 4; 1980 c 540 s 1,2; 1981 c 330 s 1; 1982 c 517 s 8; 1983 c 216 art 1 s 59; 1983 c 276 s 7-10; 1984 c 533 s 2,3; 1985 c 248 s 70; 1986 c 444; 1987 c 23 s 3; 1987 c 129 s 3; 1987 c 141 s 2; 1987 c 245 s 1; 1988 c 660 s 4; 1989 c 280 s 9-14,21; 1990 c 567 s 3-6; 1992 c 527 s 12-16; 1993 c 22 s 8-15; 1993 c 277 s 5-7; 1994 c 630 art 12 s 1; 1995 c 212 art 2 s 10; 1997 c 171 s 1; 2001 c 186 s 1; 2001 c 194 s 2; 2014 c 239 art 4 s 6-9 ; 1Sp2021 c 11 art 3 s 13; 2023 c 52 art 19 s 52-56; 2026 c 88 art 1 s 196 NOTE: Any statutory exemptions to this section are covered under sections 363A.20 and 363A.26. NOTE: Causes of action under subdivision 2 which require interpretation of a federal labor agreement were found preempted by the federal National Labor Relations Act in Boldt v. Northern States Power Co., 195 F.Supp.3d 1057 (D. Minn. 2016). NOTE: Subdivision 7 was found preempted by the federal Employment Retirement Income Security Act (ERISA) for ERISA pension plans in McLain v. Andersen Corp., 567 F.3d 956 (8th Cir. 2009).

Minn. Stat. § 363A.09

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

UNFAIR DISCRIMINATORY PRACTICES RELATING TO REAL PROPERTY (current text, 2025 edition; retrieved 2026-10-29)

Subdivision 1.Real property interest; action by owner, lessee, and others. It is an unfair discriminatory practice for an owner, lessee, sublessee, assignee, or managing agent of, or other person having the right to sell, rent or lease any real property, or any agent of any of these:

(1) to refuse to sell, rent, or lease or otherwise deny to or withhold from any person or group of persons any real property because of race, color, creed, religion, national origin, sex, gender identity, marital status, status with regard to public assistance, disability, sexual orientation, or familial status; or

(2) to discriminate against any person or group of persons because of race, color, creed, religion, national origin, sex, gender identity, marital status, status with regard to public assistance, disability, sexual orientation, or familial status in the terms, conditions or privileges of the sale, rental or lease of any real property or in the furnishing of facilities or services in connection therewith, except that nothing in this clause shall be construed to prohibit the adoption of reasonable rules intended to protect the safety of minors in their use of the real property or any facilities or services furnished in connection therewith; or

(3) in any transaction involving real property, to print, circulate or post or cause to be printed, circulated, or posted any advertisement or sign, or use any form of application for the purchase, rental or lease of real property, or make any record or inquiry in connection with the prospective purchase, rental, or lease of real property which expresses, directly or indirectly, any limitation, specification, or discrimination as to race, color, creed, religion, national origin, sex, gender identity, marital status, status with regard to public assistance, disability, sexual orientation, or familial status, or any intent to make any such limitation, specification, or discrimination except that nothing in this clause shall be construed to prohibit the advertisement of a dwelling unit as available to adults-only if the person placing the advertisement reasonably believes that the provisions of this section prohibiting discrimination because of familial status do not apply to the dwelling unit.

Subd. 2.Real property interest; action by brokers, agents, and others. It is an unfair discriminatory practice for a real estate broker, real estate salesperson, or employee, or agent thereof:

(1) to refuse to sell, rent, or lease or to offer for sale, rental, or lease any real property to any person or group of persons or to negotiate for the sale, rental, or lease of any real property to any person or group of persons because of race, color, creed, religion, national origin, sex, gender identity, marital status, status with regard to public assistance, disability, sexual orientation, or familial status or represent that real property is not available for inspection, sale, rental, or lease when in fact it is so available, or otherwise deny or withhold any real property or any facilities of real property to or from any person or group of persons because of race, color, creed, religion, national origin, sex, gender identity, marital status, status with regard to public assistance, disability, sexual orientation, or familial status; or

(2) to discriminate against any person because of race, color, creed, religion, national origin, sex, gender identity, marital status, status with regard to public assistance, disability, sexual orientation, or familial status in the terms, conditions or privileges of the sale, rental or lease of real property or in the furnishing of facilities or services in connection therewith; or

(3) to print, circulate, or post or cause to be printed, circulated, or posted any advertisement or sign, or use any form of application for the purchase, rental, or lease of any real property or make any record or inquiry in connection with the prospective purchase, rental or lease of any real property, which expresses directly or indirectly, any limitation, specification or discrimination as to race, color, creed, religion, national origin, sex, gender identity, marital status, status with regard to public assistance, disability, sexual orientation, or familial status or any intent to make any such limitation, specification, or discrimination except that nothing in this clause shall be construed to prohibit the advertisement of a dwelling unit as available to adults-only if the person placing the advertisement reasonably believes that the provisions of this section prohibiting discrimination because of familial status do not apply to the dwelling unit.

Subd. 3.Real property interest; action by financial institution. It is an unfair discriminatory practice for a person, bank, banking organization, mortgage company, insurance company, or other financial institution or lender to whom application is made for financial assistance for the purchase, lease, acquisition, construction, rehabilitation, repair or maintenance of any real property or any agent or employee thereof:

(1) to discriminate against any person or group of persons because of race, color, creed, religion, national origin, sex, gender identity, marital status, status with regard to public assistance, disability, sexual orientation, or familial status of the person or group of persons or of the prospective occupants or tenants of the real property in the granting, withholding, extending, modifying or renewing, or in the rates, terms, conditions, or privileges of the financial assistance or in the extension of services in connection therewith; or

(2) to use any form of application for the financial assistance or make any record or inquiry in connection with applications for the financial assistance which expresses, directly or indirectly, any limitation, specification, or

discrimination as to race, color, creed, religion, national origin, sex, gender identity, marital status, status with regard to public assistance, disability, sexual orientation, or familial status or any intent to make any such limitation, specification, or discrimination; or

(3) to discriminate against any person or group of persons who desire to purchase, lease, acquire, construct, rehabilitate, repair, or maintain real property in a specific urban or rural area or any part thereof solely because of the social, economic, or environmental conditions of the area in the granting, withholding, extending, modifying, or renewing, or in the rates, terms, conditions, or privileges of the financial assistance or in the extension of services in connection therewith.

Subd. 4.Real property transaction. It is an unfair discriminatory practice for any real estate broker or real estate salesperson, for the purpose of inducing a real property transaction from which the person, the person's firm, or any of its members may benefit financially, to represent that a change has occurred or will or may occur in the composition with respect to race, creed, color, national origin, sex, gender identity, marital status, status with regard to public assistance, sexual orientation, or disability of the owners or occupants in the block, neighborhood, or area in which the real property is located, and to represent, directly or indirectly, that this change will or may result in undesirable consequences in the block, neighborhood, or area in which the real property is located, including but not limited to the lowering of property values, an increase in criminal or antisocial behavior, or a decline in the quality of schools or other public facilities.

Subd. 5.Real property full and equal access. It is an unfair discriminatory practice for a person to deny full and equal access to real property provided for in sections 363A.08 to 363A.19, and 363A.28, subdivision 10, to a person who has a disability and who uses a service animal. The person may not be required to pay extra compensation for the service animal but is liable for damage done to the premises by the service animal.

Subd. 6.Real property interest; interference with. It is an unfair discriminatory practice for a person to coerce, intimidate, threaten, or interfere with a person in the exercise or enjoyment of, or on account of that person having exercised or enjoyed, or on account of that person having aided or encouraged a third person in the exercise or enjoyment of, any right granted or protected by this section.

History: 1955 c 516 s 5; 1961 c 428 s 5; 1965 c 585 s 2; 1965 c 586 s 1; 1967 c 897 s 12-16; 1969 c 9 s 80; 1969 c 975 s 3-5; 1973 c 296 s 1; 1973 c 729 s 3,16; 1974 c 354 s 1; 1975 c 206 s 2-5; 1977 c 351 s 5-7; 1977 c 408 s 3; 1980 c 531 s 4; 1980 c 540 s 1,2; 1981 c 330 s 1; 1982 c 517 s 8; 1983 c 216 art 1 s 59; 1983 c 276 s 7-10; 1984 c 533 s 2,3; 1985 c 248 s 70; 1986 c 444; 1987 c 23 s 3; 1987 c 129 s 3; 1987 c 141 s 2; 1987 c 245 s 1; 1988 c 660 s 4; 1989 c 280 s 9-14,21; 1990 c 567 s 3-6; 1992 c 527 s 12-16; 1993 c 22 s 8-15; 1993 c 277 s 5-7; 1994 c 630 art 12 s 1; 1995 c 212 art 2 s 10; 1997 c 171 s 1; 2001 c 186 s 1; 2001 c 194 s 2 ; 1Sp2021 c 8 art 2 s 5; 2023 c 52 art 19 s 57-60 NOTE: Any statutory exemptions to this section are covered under sections 363A.21, 363A.22, and 363A.26.

Minn. Stat. § 363A.11

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

PUBLIC ACCOMMODATIONS (current text, 2025 edition; retrieved 2026-10-29)

Subdivision 1.Full and equal enjoyment of public accommodations. (a) It is an unfair discriminatory practice:

(1) to deny any person the full and equal enjoyment of the goods, services, facilities, privileges, advantages, and accommodations of a place of public accommodation because of race, color, creed, religion, disability, national origin, marital status, sexual orientation, sex, or gender identity, or for a taxicab company to discriminate in the access to, full utilization of, or benefit from service because of a person's disability; or

(2) for a place of public accommodation not to make reasonable accommodation to the known physical, sensory, or mental disability of a disabled person. In determining whether an accommodation is reasonable, the factors to be considered may include:

(i) the frequency and predictability with which members of the public will be served by the accommodation at that location;

(ii) the size of the business or organization at that location with respect to physical size, annual gross revenues, and the number of employees;

(iii) the extent to which disabled persons will be further served from the accommodation;

(iv) the type of operation;

(v) the nature and amount of both direct costs and legitimate indirect costs of making the accommodation and the reasonableness for that location to finance the accommodation; and

(vi) the extent to which any persons may be adversely affected by the accommodation.

(b) State or local building codes control where applicable. Violations of state or local building codes are not violations of this chapter and must be enforced under normal building code procedures.

Subd. 2.General prohibitions. This subdivision lists general prohibitions against discrimination on the basis of disability. For purposes of this subdivision, "individual" or "class of individuals" refers to the clients or customers of the covered public accommodation that enter into the contractual, licensing, or other arrangement.

(1) It is discriminatory to:

(i) subject an individual or class of individuals on the basis of a disability of that individual or class, directly or through contractual, licensing, or other arrangements, to a denial of the opportunity of the individual or class to participate in or benefit from the goods, services, facilities, privileges, advantages, or accommodations of an entity;

(ii) afford an individual or class of individuals on the basis of the disability of that individual or class, directly or through contractual, licensing, or other arrangements, with the opportunity to participate in or benefit from the goods, services, facilities, privileges, advantages, or accommodations that are not equal to those afforded to other individuals;

(iii) provide an individual or class of individuals, on the basis of a disability of that individual or class, directly or through contractual, licensing, or other arrangements, with goods, services, facilities, privileges, advantages, or accommodations that are different or separate from those provided to other individuals, unless the action is necessary to provide the individual or class of individuals with goods, services, facilities, privileges, advantages, or accommodations, or other opportunities that are as effective as those provided to others; and

(iv) not provide a deaf or hard-of-hearing individual or class of deaf or hard-of-hearing individuals with closed-captioned television when television services are provided to other individuals.

(2) Goods, services, facilities, privileges, advantages, and accommodations must be afforded to an individual with a disability in the most integrated setting appropriate to the needs of the individual.

(3) Notwithstanding the existence of separate or different programs or activities provided in accordance with sections 363A.08 to 363A.19, and 363A.28, subdivision 10, the individual with a disability may not be denied the opportunity to participate in the programs or activities that are not separate or different.

(4) An individual or entity may not, directly or through contractual or other arrangements, use standards or criteria and methods of administration:

(i) that have the effect of discriminating on the basis of disability; or

(ii) that perpetuate the discrimination of others who are subject to common administrative control.

Subd. 3.Specific prohibitions. This subdivision lists specific prohibitions against discrimination on the basis of disability. For purposes of this subdivision, discrimination includes:

(1) the imposition or application of eligibility criteria that screen out or tend to screen out an individual with a disability or any class of individuals with disabilities from fully and equally enjoying any goods, services, facilities, privileges, advantages, or accommodations, unless the criteria can be shown to be necessary for the provision of the goods, services, facilities, privileges, advantages, or accommodations;

(2) failure to make reasonable modifications in policies, practices, or procedures when the modifications are necessary to afford the goods, services, facilities, privileges, advantages, or accommodations to individuals with disabilities, unless the entity can demonstrate that making the modifications would fundamentally alter the nature of the goods, services, facilities, privileges, advantages, or accommodations;

(3) failure to take all necessary steps to ensure that no individual with a disability is excluded, denied services, segregated, or otherwise treated differently than other individuals because of the absence of auxiliary aids and services, unless the entity can demonstrate that taking the steps would fundamentally alter the nature of the goods, services, facilities, privileges, advantages, or accommodations being offered and would result in an undue burden;

(4) failure to remove architectural barriers, and communication barriers that are structural in nature, in existing facilities, and transportation barriers in existing vehicles used by an establishment for transporting individuals, not including barriers that can only be removed through the retrofitting of vehicles by the installation of hydraulic or other lifts, if the removal is readily achievable; and

(5) if an entity can demonstrate that the removal of a barrier under clause (4) is not readily achievable or cannot be considered a reasonable accommodation, a failure to make the goods, services, facilities, privileges, advantages, or accommodations available through alternative means if the means are readily achievable.

Subd. 4.Direct threat to health and safety. Nothing in this chapter requires an entity to permit an individual to participate in and benefit from the goods, services, facilities, privileges, advantages, and accommodations of the entity if the individual poses a direct threat to the health or safety of others. "Direct threat" means a significant risk to the health or safety of others that cannot be eliminated by a modification of policies, practices, or procedures or by the provision of auxiliary aids or services.

Subd. 5.Private entity providing public transportation. No individual may be discriminated against on the basis of disability in the full and equal enjoyment of specified public transportation services provided by a private entity that is primarily engaged in the business of transporting people and whose operations affect commerce. For purposes of this subdivision, it is an unfair discriminatory practice for a private entity providing public transportation to engage in one or more of the following practices:

(1) imposition or application of eligibility criteria that screen out, or tend to screen out, an individual with a disability or a class of individuals with disabilities from fully enjoying the specified public transportation services provided by the entity, unless the criteria can be shown to be necessary for the provision of the services being offered;

(2) failure to make reasonable modifications, provide auxiliary aids and services, and remove barriers, consistent with section 363A.11, subdivision 3;

(3) the purchase or lease of a new vehicle, other than an automobile or van with a seating capacity of fewer than eight passengers, including the driver, or an over-the-road bus, that is to be used to provide specified public transportation that is not readily accessible to and usable by individuals with disabilities, including individuals who use wheelchairs, except that a new vehicle need not be readily accessible to and usable by individuals with disabilities if the vehicle is to be used solely in a demand responsive system and if the private entity can demonstrate that the system, when viewed in its entirety, provides a level of services to individuals with disabilities equivalent to the level of service provided to the general public;

(4) purchase or lease a new railroad passenger car that is to be used to provide specified public transportation if the car is not readily accessible to and usable by individuals with disabilities, including individuals who use wheelchairs, or to manufacture railroad passenger cars or purchase used cars that have been remanufactured so as to extend their usable life by ten years or more, unless the remanufactured car, to the maximum extent feasible, is made readily accessible to and usable by individuals with disabilities, including individuals who use wheelchairs, except that compliance with this clause is not required to the extent that compliance would significantly alter the historic or antiquated character of historic or antiquated railroad passenger cars or rail stations served exclusively by those cars;

(5) purchase or lease a new, used, or remanufactured vehicle with a seating capacity in excess of 16 passengers, including the driver, for use on a fixed route public transportation system, that is not readily accessible to and usable by individuals with disabilities, including individuals who use wheelchairs. If a private entity that operates a fixed route public transportation system purchases or leases a new, used, or remanufactured vehicle with a seating capacity of 16 passengers or fewer, including the driver, for use on the system which is not readily accessible to and usable by individuals with disabilities, it is an unfair discriminatory practice for the entity to fail to operate the system so that, when viewed in its entirety, the system ensures a level of service to individuals with disabilities, including individuals who use wheelchairs, equivalent to the level of service provided to individuals without disabilities; or

(6) to fail to operate a demand responsive system so that, when viewed in its entirety, the system ensures a level of service to individuals with disabilities, including individuals who use wheelchairs, equivalent to the level of service provided to individuals without disabilities. It is an unfair discriminatory practice for the entity to purchase or lease for use on a demand responsive system a new, used, or remanufactured vehicle with a seating capacity in excess of 16 passengers, including the driver, that is not readily accessible to and usable by individuals with disabilities, including individuals who use wheelchairs, unless the entity can demonstrate that the system, when viewed in its entirety, provides a level of service to individuals with disabilities equivalent to that provided to individuals without disabilities.

Subd. 6.Construction of new facility or station; accessibility. It is an unfair discriminatory practice to construct a new facility or station to be used in the provision of public transportation services, unless the facilities or stations are readily accessible to and usable by individuals with disabilities, including individuals who use wheelchairs. It is an unfair discriminatory practice for a facility or station currently used for the provision of public transportation services defined in this section to fail to make alterations necessary in order, to the maximum extent feasible, to make the altered portions of facilities or stations readily accessible to and usable by individuals with disabilities, including individuals who use wheelchairs. If the private entity is undertaking an alteration that affects or could affect the usability of or access to an area of the facility containing a primary function, the entity shall make the alterations so that, to the maximum extent feasible, the path of travel to the altered area, and the bathrooms, drinking fountains, and telephones serving the altered area, are readily accessible to and usable by individuals with disabilities if the alterations to the path of travel or to the functions mentioned are not disproportionate to the overall alterations in terms of cost and scope. The entity raising this defense has the burden of proof, and the department shall review these cases on a case-by-case basis.

History: 1955 c 516 s 5; 1961 c 428 s 5; 1965 c 585 s 2; 1965 c 586 s 1; 1967 c 897 s 12-16; 1969 c 9 s 80; 1969 c 975 s 3-5; 1973 c 296 s 1; 1973 c 729 s 3,16; 1974 c 354 s 1; 1975 c 206 s 2-5; 1977 c 351 s 5-7; 1977 c 408 s 3; 1980 c 531 s 4; 1980 c 540 s 1,2; 1981 c 330 s 1; 1982 c 517 s 8; 1983 c 216 art 1 s 59; 1983 c 276 s 7-10; 1984 c 533 s 2,3; 1985 c 248 s 70; 1986 c 444; 1987 c 23 s 3; 1987 c 129 s 3; 1987 c 141 s 2; 1987 c 245 s 1; 1988 c 660 s 4; 1989 c 280 s 9-14,21; 1990 c 567 s 3-6; 1992 c 527 s 12-16; 1993 c 22 s 8-15; 1993 c 277 s 5-7; 1994 c 630 art 12 s 1; 1995 c 212 art 2 s 10; 1997 c 171 s 1; 2001 c 186 s 1; 2001 c 194 s 2 ; 2023 c 52 art 19 s 61,62 NOTE: Any statutory exemptions to this section are covered under section 363A.24.

Mo. Rev. Stat. § 166.700

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Definitions. — (current text, retrieved 2026-10-29)

As used in sections 166.700 to 166.720, the following terms mean:

(1) "Curriculum", a complete course of study for a particular content area or grade level, including any supplemental materials;

(2) "District", the same meaning as used in section 160.011;

(3) "Educational assistance organization", the same meaning as used in section 135.712;
(4) "Illegal alien", any person who is not lawfully present in the United States or any person who gained illegal entry into the United States;
(5) "Parent", the same meaning as used in section 135.712;
(6) "Private school", a school that is not a part of the public school system of the state of Missouri and that charges tuition for the rendering of elementary or secondary educational services;
(7) "Program", the same meaning as used in section 135.712;
(8) "Qualified school", an FPE school or any of the following entities that is incorporated in Missouri and that does not discriminate on the basis of race, color, or national origin:
(a) A charter school as defined in section 160.400;
(b) A private school;
(c) A public school as defined in section 160.011; or
(d) A public or private virtual school;
(9) "Qualified student", any elementary or secondary school student who is a resident of this state, who is not an illegal alien, and who:
(a) Has an approved "individualized education plan" (IEP) developed under the federal Individuals with Disabilities Education Act (IDEA), 20 U.S.C. Section 1400 et seq., as amended; or
(b) Is a member of a household whose total annual income does not exceed an amount equal to three hundred percent of the income standard used to qualify for free and reduced price lunches, and that meets at least one of the following qualifications:
a. Attended a public school as a full-time student for at least one semester during the previous twelve months;
b. Is a child who is eligible to begin kindergarten or first grade under sections 160.051 to 160.055; or
c. Is a sibling of a qualified student who received a scholarship grant in the previous school year and will receive a scholarship grant in the current school year.

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(L. 2021 H.B. 349, A.L. 2024 S.B. 727)

Mo. Rev. Stat. § 213.040

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Unlawful housing practices — discrimination in housing — sufficient compliance with other standards — local government compliance — construction of law — housing for older persons, defined — conviction for controlled substances, effect — religious organizations, effect of. — (current text, retrieved 2026-10-29)
1. It shall be an unlawful housing practice:
(1) To refuse to sell or rent after the making of a bona fide offer, to refuse to negotiate for the sale or rental of, to deny or otherwise make unavailable, a dwelling to any person because of race, color, religion, national origin, ancestry, sex, disability, or familial status;
(2) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, national origin, ancestry, sex, disability, or familial status;
(3) To make, print, or publish, or cause to be made, printed, or published any notice, statement or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination because of race, color, religion, national origin, ancestry, sex, disability, or familial status, or an intention to make any such preference, limitation, or discrimination;
(4) To represent to any person because of race, color, religion, national origin, ancestry, sex, disability, or familial status that any dwelling is not available for inspection, sale, or rental when such dwelling is in fact so available;
(5) To induce or attempt to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of a person or persons because of a particular race, color, religion, national origin, ancestry, sex, disability, or familial status;
(6) To discriminate in the sale or rental of, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a disability of:
(a) That buyer or renter;
(b) A person residing in or intending to reside in that dwelling after it is so sold, rented, or made available; or
(c) Any person associated with that buyer or renter;
(7) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection with such dwelling, because of a disability of:
(a) That person;
(b) A person residing in or intending to reside in that dwelling after it is so sold, rented, or made available; or

(c) Any person associated with that person.

2. For purposes of this section and sections 213.045 and 213.050, discrimination includes:

(1) A refusal to permit, at the expense of the person with the disability, reasonable modifications of existing premises occupied or to be occupied by such person if such modifications may be necessary to afford such person full enjoyment of the premises, except that, in the case of a rental, the landlord may, where it is reasonable to do so, condition permission for a modification on the renter's agreeing to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted;

(2) A refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling; or

(3) In connection with the design and construction of covered multifamily dwellings for first occupancy after March 13, 1991, a failure to design and construct those dwellings in such a manner that:

(a) The public use and common use portions of such dwellings are readily accessible to and usable by persons with a disability;

(b) All the doors designed to allow passage into and within all premises within such dwellings are sufficiently wide to allow passage by persons with a disability in wheelchairs; and

(c) All premises within such dwellings contain the following features of adaptive design:

a. An accessible route into and through the dwelling;

b. Light switches, electrical outlets, thermostats, and other environmental controls in accessible locations;

c. Reinforcements in bathroom walls to allow later installation of grab bars; and

d. Usable kitchens and bathrooms such that an individual in a wheelchair can maneuver about the space.

3. As used in subdivision (3) of subsection 2 of this section, the term "covered multifamily dwelling" means:

(1) Buildings consisting of four or more units if such buildings have one or more elevators; and

(2) Ground floor units in other buildings consisting of four or more units.

4. Compliance with the appropriate requirements of the American National Standard for Buildings and Facilities providing accessibility and usability for people with physical disabilities, commonly cited as "ANSI A117.1", suffices to satisfy the requirements of paragraph (a) of subdivision (3) of subsection 2 of this section.

5. Where a unit of general local government has incorporated into its laws the requirements set forth in subdivision (3) of subsection 2 of this section, compliance with such laws shall be deemed to satisfy the requirements of that subdivision. Such compliance shall be subject to the following provisions:

(1) A unit of general local government may review and approve newly constructed covered multifamily dwellings for the purpose of making determinations as to whether the design and construction requirements of subdivision (3) of subsection 2 of this section are met;

(2) The commission shall encourage, but may not require, the units of local government to include in their existing procedures for the review and approval of newly constructed covered multifamily dwellings, determinations as to whether the design and construction of such dwellings are consistent with subdivision (3) of subsection 2 of this section, and shall provide technical assistance to units of local government and other persons to implement the requirements of subdivision (3) of subsection 2 of this section;

(3) Nothing in this chapter shall be construed to require the commission to review or approve the plans, designs or construction of all covered dwellings, to determine whether the design and construction of such dwellings are consistent with the requirements of subdivision (3) of subsection 2 of this section.

6. Nothing in this chapter shall be construed to invalidate or limit any law of the state or political subdivision of the state, or other jurisdiction in which this chapter shall be effective, that requires dwellings to be designed and constructed in a manner that affords persons with disabilities greater access than is required by this chapter.

7. Nothing in this section and sections 213.045 and 213.050 requires that a dwelling be made available to an individual whose tenancy would constitute a direct threat to the health or safety of other individuals or whose tenancy would result in substantial physical damage to the property of others.

8. Nothing in this section and sections 213.045 and 213.050 limits the applicability of any reasonable local or state restriction regarding the maximum number of occupants permitted to occupy a dwelling, nor does any provision in this section and sections 213.045 and 213.050 regarding familial status apply with respect to housing for older persons.

9. As used in this section and sections 213.045 and 213.050, "housing for older persons" means housing:

(1) Provided under any state or federal program that the commission determines is specifically designed and operated to assist elderly persons, as defined in the state or federal program;

(2) Intended for, and solely occupied by, persons sixty-two years of age or older; or

(3) Intended and operated for occupancy by at least one person fifty-five years of age or older per unit. In determining whether housing qualifies as housing for older persons under this subsection, the commission shall develop regulations which require at least the following factors:

(a) The existence of significant facilities and services specifically designed to meet the physical or social needs of

older persons, or if the provision of such facilities and services is not practicable, that such housing is necessary to provide important housing opportunities for older persons; and

(b) That at least eighty percent of the units are occupied by at least one person fifty-five years of age or older per unit; and

(c) The publication of, and adherence to, policies and procedures which demonstrate an intent by the owner or manager to provide housing for persons fifty-five years of age or older.

10. Housing shall not fail to meet the requirements for housing for older persons by reason of:

(1) Persons residing in such housing as of August 28, 1992, who do not meet the age requirements of subdivision (2) or (3) of subsection 9 of this section, provided that new occupants of such housing meet the age requirements of subdivision (2) or (3) of subsection 9 of this section; or

(2) Unoccupied units, provided that such units are reserved for occupancy by persons who meet the age requirements of subdivision (2) or (3) of subsection 9 of this section.

11. Nothing in this section or section 213.045 or 213.050 shall prohibit conduct against a person because such person has been convicted by any court of competent jurisdiction of the illegal manufacture or distribution of a controlled substance, as defined by section 195.010.

12. Nothing in this chapter shall prohibit a religious organization, association, or society, or any nonprofit institution or organization operated, supervised or controlled by or in conjunction with a religious organization, association, or society, from limiting the sale, rental or occupancy of dwellings which it owns or operates for other than a commercial purpose to persons of the same religion, or from giving preference to such persons, unless membership in such religion is restricted on account of race, color, or national origin. Nor shall anything in this chapter prohibit a private club not in fact open to the public, which as an incident to its primary purpose or purposes provides lodging which it owns or operates for other than a commercial purpose, from limiting the rental or occupancy of such lodging to its members or from giving preference to its members.

13. Nothing in this chapter, other than the prohibitions against discriminatory advertising in subdivision (3) of subsection 1 of this section, shall apply to:

(1) The sale or rental of any single family house by a private individual owner, provided the following conditions are met:

(a) The private individual owner does not own or have any interest in more than three single family houses at any one time; and

(b) The house is sold or rented without the use of a real estate broker, agent or salesperson or the facilities of any person in the business of selling or renting dwellings and without publication, posting or mailing of any advertisement. If the owner selling the house does not reside in it at the time of the sale or was not the most recent resident of the house prior to such sale, the exemption in this section applies to only one such sale in any twenty-four-month period; or

(2) Rooms or units in dwellings containing living quarters occupied or intended to be occupied by no more than four families living independently of each other, if the owner actually maintains and occupies one of such living quarters as his or her residence.

(L. 1986 S.B. 513, A.L. 1992 H.B. 1619, A.L. 1998 S.B. 786, A.L. 2017 S.B. 43)

Mo. Rev. Stat. § 213.065

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discrimination in public accommodations prohibited, exceptions. — (current text, retrieved 2026-10-29)

1. All persons within the jurisdiction of the state of Missouri are free and equal and shall be entitled to the full and equal use and enjoyment within this state of any place of public accommodation, as hereinafter defined, without discrimination or segregation because of race, color, religion, national origin, sex, ancestry, or disability.

2. It is an unlawful discriminatory practice for any person, directly or indirectly, to refuse, withhold from or deny any other person, or to attempt to refuse, withhold from or deny any other person, any of the accommodations, advantages, facilities, services, or privileges made available in any place of public accommodation, as defined in section 213.010 and this section, or to segregate or discriminate against any such person in the use thereof because of race, color, religion, national origin, sex, ancestry, or disability.

3. The provisions of this section shall not apply to a private club, a place of accommodation owned by or operated on behalf of a religious corporation, association or society, or other establishment which is not in fact open to the public, unless the facilities of such establishments are made available to the customers or patrons of a place of public accommodation as defined in section 213.010 and this section.

(L. 1986 S.B. 513, A.L. 1992 H.B. 1619, A.L. 1998 S.B. 786, A.L. 2017 S.B. 43)

Miss. Code Ann. § 25-9-303

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

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Miss. Code Ann. § 37-181-15

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

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Miss. Code Ann. § 43-33-723

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

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Mont. Const. art. X

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Mont. Const. art. X (current text, retrieved 2026-10-27)

§ 1 *Educational goals and duties.*
§ 2 *Public school fund.*
§ 3 *Public school fund inviolate.*
§ 4 *Board of land commissioners.*
§ 5 *Public school fund revenue.*
§ 6 *Aid prohibited to sectarian schools.*
§ 7 *Nondiscrimination in education.*
§ 8 *School district trustees.*
§ 9 *Boards of education.*
§ 10 *State university funds.*
§ 11 *Public land trust, disposition.*

Mont. Code Ann. § 20-7-1703

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 4 (1).

Definitions (current text, retrieved 2026-10-29)

As used in this part, the following definitions apply:

(1) "Eligible postsecondary institution" means an accredited postsecondary institution located in Montana.

(2) "ESA student amount" means the sum of:

(a) the data-for-achievement payment rate under 20-9-306;

(b) the Indian education for all payment rate under 20-9-306;

(c) the per-ANB amounts of the instructional block grant and related services block grant under 20-9-321; and

(d) the applicable per-ANB maximum rate established in 20-9-306 for the student multiplied by the ratio of adopted general fund budget to maximum general fund budget in the prior year, rounded to the nearest one hundredth and not to exceed 1.00, in the district in which the student is included for ANB purposes under the program.

(3) "Montana special needs equal opportunity education savings account" or "account" means an account within the trust established in 20-7-1710 in which a payment under 20-7-1709 is deposited on behalf of a qualified student for the purpose of reimbursement for the purchase of allowable educational resources pursuant to 20-7-1704 for qualified students.

(4) "Parent" means a biological parent, adoptive parent, legal guardian, custodian, or other person with legal authority to act on behalf of a qualified student, and whose parental rights have not been terminated.

(5) "Program" means the Montana special needs equal opportunity education savings account program established in 20-7-1702.

(6) "Qualified school" means a nonpublic school serving any combination of grades kindergarten through 12 that:

(a) is in compliance with applicable local health and safety regulations;

(b) holds a valid occupancy permit, if required by the municipality;

(c) does not discriminate on the basis of race, creed, religion, sex, as defined in 1-1-209, marital status, color, age, physical disability, or national origin or because of mental disability, unless based on reasonable grounds, pursuant to 49-2-307;

(d) requires that any employee who may have unsupervised access to children be subject to a criminal history background check prior to employment pursuant to and in support of 42 U.S.C. 5119(a) and (c); and

(e) meets the requirements for Montana nonpublic schools under 20-5-109.

(7) "Qualified student" means a resident of the state who:

(a) in the current school year:

(i) is identified as a "child with a disability" under the Individuals With Disabilities Education Act, 20 U.S.C. 1400, et seq.; and

(ii) is between the ages of 5 and 19 on September 10;

(b) is not currently enrolled in a school operating for the purpose of providing educational services to youth in department of corrections commitment programs or in the Montana school for the deaf and blind; and

(c) (i) was counted during the previous school year for purposes of school district ANB funding;

(ii) was enrolled during the previous school year in a program listed in subsection (7)(b);

(iii) did not reside in the state in the previous school year; or

(iv) is eligible to enter a kindergarten program pursuant to 20-7-117.

(8) "Resident school district" means the school district in which a student resides.

History: En. Sec. 3, Ch. 616, L. 2023; amd. Sec. 15, Ch. 778, L. 2025.

Mont. Code Ann. § 49-2-304

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discrimination in public accommodations (current text, retrieved 2026-10-27)

(1) Except when the distinction is based on reasonable grounds, it is an unlawful discriminatory practice for the owner, lessee, manager, agent, or employee of a public accommodation:

(a) to refuse, withhold from, or deny to a person any of its services, goods, facilities, advantages, or privileges because of sex, marital status, race, age, physical or mental disability, creed, religion, color, or national origin;

(b) to publish, circulate, issue, display, post, or mail a written or printed communication, notice, or advertisement which states or implies that any of the services, goods, facilities, advantages, or privileges of the public accommodation will be refused, withheld from, or denied to a person of a certain race, creed, religion, sex, marital status, age, physical or mental disability, color, or national origin.

(2) Except when the distinction is based on reasonable grounds, it is an unlawful discriminatory practice for a licensee under Title 16, chapter 4, to exclude from its membership or from its services, goods, facilities, advantages, privileges, or accommodations any individual on the grounds of race, color, religion, creed, sex, marital status, age, physical or mental disability, or national origin. This subsection does not apply to any lodge of a recognized national fraternal organization.

(3) Nothing in this section prohibits public accommodations from giving or providing special benefits, incentives, discounts, or promotions for the benefit of individuals based on age.

History: En. 64-306 by Sec. 2, Ch. 283, L. 1974; amd. Sec. 2, Ch. 121, L. 1975; amd. Sec. 3, Ch. 524, L. 1975; amd. Sec. 7, Ch. 38, L. 1977; R.C.M. 1947, 64-306(3); amd. Sec. 1, Ch. 3, L. 1989; amd. Sec. 2, Ch. 543, L. 1989; amd. Sec. 1, Ch. 454, L. 1991; amd. Sec. 4, Ch. 407, L. 1993.

Mont. Code Ann. § 49-2-305

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discrimination in housing – exemptions (current text, retrieved 2026-10-27)

(1) It is an unlawful discriminatory practice for the owner, lessor, or manager having the right to sell, lease, or rent a housing accommodation or improved or unimproved property or for any other person:

(a) to refuse to sell, lease, or rent the housing accommodation or property to a person because of sex, marital status, race, creed, religion, color, age, familial status, physical or mental disability, or national origin;

(b) to discriminate against a person because of sex, marital status, race, creed, religion, age, familial status, physical or mental disability, color, or national origin in a term, condition, or privilege relating to the use, sale, lease, or rental of the housing accommodation or property;

(c) to make an inquiry of the sex, marital status, race, creed, religion, age, familial status, physical or mental disability, color, or national origin of a person seeking to buy, lease, or rent a housing accommodation or property for the purpose of discriminating on the basis of sex, marital status, race, creed, religion, age, familial status, physical or mental disability, color, or national origin;

(d) to refuse to negotiate for a sale or to otherwise make unavailable or deny a housing accommodation or property because of sex, marital status, race, creed, religion, age, familial status, physical or mental disability, color, or national origin;

(e) to represent to a person that a housing accommodation or property is not available for inspection, sale, or rental because of that person's sex, marital status, race, creed, religion, age, familial status, physical or mental disability, color, or national origin when the housing accommodation or property is in fact available; or

(f) for profit, to induce or attempt to induce a person to sell or rent a housing accommodation or property by representations regarding the entry or prospective entry into the neighborhood of a person or persons of a particular sex, marital status, race, creed, religion, age, familial status, physical or mental disability, color, or national origin.

(2) The rental of sleeping rooms in a private residence designed for single-family occupancy in which the owner also resides is excluded from the provisions of subsection (1), provided that the owner rents no more than three sleeping rooms within the residence.

(3) It is an unlawful discriminatory practice to make, print, or publish or cause to be made, printed, or published any notice, statement, or advertisement that indicates any preference, limitation, or discrimination that is prohibited by subsection (1) or any intention to make or have a prohibited preference, limitation, or discrimination.

(4) It is an unlawful discriminatory practice for a person to discriminate because of a physical or mental disability of a buyer, lessee, or renter; a person residing in or intending to reside in or on the housing accommodation or property after it is sold, leased, rented, or made available; or any person associated with that buyer, lessee, or renter:

(a) in the sale, rental, or availability of the housing accommodation or property;

(b) in the terms, conditions, or privileges of a sale or rental of the housing accommodation or property; or

(c) in the provision of services or facilities in connection with the housing accommodation or property.

(5) (a) For purposes of subsections (1) and (4), discrimination because of physical or mental disability includes:

(i) refusal to permit, at the expense of the person with a disability, reasonable modifications of existing premises occupied or to be occupied by the person with a disability if the modifications may be necessary to allow the person full enjoyment of the premises, except that in the case of a lease or rental, the landlord may, when it is reasonable to do so, condition permission for a modification on the lessee's or renter's agreement to restore the interior of the premises to the condition that existed before the modification, except for reasonable wear and tear;

(ii) refusal to make reasonable accommodations in rules, policies, practices, or services when the accommodations may be necessary to allow the person equal opportunity to use and enjoy a housing accommodation or property; or

(iii) except as provided in subsection (5)(b), in connection with the design and construction of a covered multifamily housing accommodation, a failure to design and construct the housing accommodation in a manner that:

(A) provides at least one accessible building entrance on an accessible route;

(B) makes the public use and common use portions of the housing accommodation readily accessible to and usable by a person with a disability;

(C) provides that all doors designed to allow passage into and within all premises within the housing accommodation are sufficiently wide to allow passage by a person with a disability who uses a wheelchair; and

(D) ensures that all premises within the housing accommodation contain the following features:

(I) an accessible route into and through the housing accommodation;

(II) light switches, electrical outlets, thermostats, and other environmental controls in accessible locations;

(III) reinforcements in bathroom walls to allow later installation of grab bars; and

(IV) usable kitchens and bathrooms that allow an individual who uses a wheelchair to maneuver about the space.

(b) A covered multifamily housing accommodation that does not have at least one building entrance on an accessible route because it is impractical to do so due to the terrain or unusual characteristics of the site is not required to comply with the requirements of subsection (5)(a)(iii).

(6) For purposes of subsection (5), the term "covered multifamily housing accommodation" means:

(a) a building consisting of four or more dwelling units if the building has one or more elevators; and

(b) ground floor units in a building consisting of four or more dwelling units.

(7) (a) It is an unlawful discriminatory practice for any person or other entity whose business includes engaging in residential real estate-related transactions to discriminate because of sex, marital status, race, creed, religion, age, familial status, physical or mental disability, color, or national origin against a person in making available a transaction or in the terms or conditions of a transaction.

(b) For purposes of this subsection (7), the term "residential real estate-related transaction" means any of the following:

(i) the making or purchasing of loans or providing other financial assistance:

(A) for purchasing, constructing, improving, repairing, or maintaining a housing accommodation or property; or

(B) secured by residential real estate; or

(ii) the selling, brokering, or appraising of residential real property.

(8) It is an unlawful discriminatory practice to deny a person access to or membership or participation in a multiple-listing service; real estate brokers' organization; or other service, organization, or facility relating to the business of selling, leasing, or renting housing accommodations or property or to discriminate against the person in the terms or conditions of access, membership, or participation because of sex, marital status, race, creed, religion, age, familial status, physical or mental disability, color, or national origin.

(9) It is an unlawful discriminatory practice to coerce, intimidate, threaten, or interfere with a person in the exercise or enjoyment of or because of the person having exercised or enjoyed or having aided or encouraged any other person in the exercise or enjoyment of a right granted or protected by this section.

(10) The prohibitions of this section against discrimination because of age and familial status do not extend to housing for older persons. "Housing for older persons" means housing:

(a) provided under any state or federal program specifically designed and operated to assist elderly persons;

(b) intended for, and solely occupied by, persons 62 years of age or older; or

(c) intended and operated for occupancy by at least one person 55 years of age or older per unit in accordance with the provisions of 42 U.S.C. 3607(b)(2)(C) and (b)(3) through (b)(5), as those provisions read on March 31, 1996.

(11) The prohibitions of subsection (1) against discrimination because of age and familial status do not extend to rooms or units in dwellings containing living quarters occupied or intended to be occupied by no more than two families living independently of each other, if the owner actually maintains and occupies one of the living quarters as the owner's residence.

(12) For purposes of this section, "familial status" means having a child or children who live or will live with a person. A distinction based on familial status includes one that is based on the age of a child or children who live or will live with a person.

History: En. 64-306 by Sec. 2, Ch. 283, L. 1974; amd. Sec. 2, Ch. 121, L. 1975; amd. Sec. 3, Ch. 524, L. 1975; amd. Sec. 7, Ch. 38, L. 1977; R.C.M. 1947, 64-306(4); amd. Sec. 6, Ch. 177, L. 1979; amd. Sec. 1, Ch. 335, L. 1981; amd. Sec. 1, Ch. 503, L. 1989; amd. Sec. 1, Ch. 328, L. 1991; amd. Sec. 2, Ch. 454, L. 1991; amd. Sec. 1, Ch. 801, L. 1991; amd. Sec. 5, Ch. 407, L. 1993; amd. Sec. 1, Ch. 194, L. 1997; amd. Sec. 3, Ch. 205, L. 2011.

N.C. Const. art. XIX

Cited by the petitioners 0 times (0 filings) and their amici 4 (2); by the respondent 0 (0) and its amici 0 (0).

Text not stored locally (not in NCConstitution.xml (renumbered or repealed since, or a cite we misread)).

N.C. Gen. Stat. § 115C-562.5

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Obligations of nonpublic schools accepting eligible students receiving scholarship grants (current text, retrieved 2026-10-29)

(a) A nonpublic school that accepts eligible students receiving scholarship grants shall comply with the following:

(1) Provide to the Authority documentation for required tuition and fees charged to the student by the nonpublic school.

(2) Provide to the Authority a criminal background check conducted for the staff member with the highest decision-making authority, as defined by the bylaws, articles of incorporation, or other governing document. Information provided to the Authority in accordance with this subdivision is privileged information and is not a public record but is for the exclusive use of the Authority.

(3) Provide to the parent or guardian of an eligible student, whose tuition and fees are paid in whole or in part with a scholarship grant, an annual written explanation of the student's progress, including the student's scores on standardized achievement tests.

(4) Administer, at least once in each school year, tests as provided in this subdivision. Test performance data shall be submitted to the Authority by July 15 of each year. Test performance data reported to the Authority under this subdivision is not a public record under Chapter 132 of the General Statutes. Tests shall be administered to all eligible students enrolled in grades three and higher whose tuition and fees are paid in whole or in part with a scholarship grant as follows:

a. The nationally standardized test designated by the Authority in grades three and eight.

b. The ACT in grade 11.

c. A nationally standardized test or other nationally standardized equivalent measurement selected by the chief administrative officer of the nonpublic school in all other grades four and higher. For grades four through seven, the nationally standardized test or other equivalent measurement selected must measure achievement in the areas of English grammar, reading, spelling, and mathematics. For grades nine, 10, and 12, the nationally standardized test or other equivalent measurement selected must measure either (i) achievement in the areas of English grammar, reading, spelling, and mathematics or (ii) competencies in the verbal and quantitative areas.

(5) Provide to the Authority graduation rates of the students receiving scholarship grants in a manner consistent with nationally recognized standards.

(6) Contract with a certified public accountant to perform a financial review, consistent with generally accepted methods of accounting or any other comprehensive basis of accounting recognized by the American Institute of Certified Public Accountants (AICPA) for each school year in which the school enrolls 70 or more students receiving scholarship grants or scholarship funds awarded by the Authority.

(7) Maintain a school facility within the State where in-person instruction is provided. This subdivision does not prohibit a school from offering remote-only courses of instruction in addition to in-person instruction.

(8) Provide the following information annually to the Division:

a. Name and address of the school, including physical location address. A school with more than one physical location shall establish a separate notice of intent for each physical location and shall provide all information required by this subdivision for each physical location.

b. The name of the owners and chief administrator.

c. Number of students in attendance at the school as of October 1.

(b) A nonpublic school that accepts students receiving scholarship grants shall not require any additional fees based on the status of the student as a scholarship grant recipient.

(c) A nonpublic school enrolling more than 25 students in any grade whose tuition and fees are paid in whole or in part with a scholarship grant shall provide and retain information on student test performance in each grade with more than 25 students, as follows:

(1) Report to the Authority on the aggregate standardized test performance of eligible students in grades three, eight, and 11. Aggregate test performance data reported to the Authority which does not contain personally identifiable student data shall be a public record under Chapter 132 of the General Statutes. Test performance data may be shared with public or private institutions of higher education located in North Carolina and shall be provided to an independent research organization selected by the Authority for research purposes as permitted by the Federal Education Rights and Privacy Act, 20 U.S.C. § 1232g.

(2) Retain standardized test performance data for eligible students in all other grades and annually certify to the Authority compliance with the requirements of subdivision (4) of subsection (a) of this section.

(c1) A nonpublic school shall not discriminate with respect to the categories listed in 42 U.S.C. § 2000d, as that statute read on January 1, 2014.

(d) If the Authority determines that a nonpublic school is not in compliance with the requirements of this section, the nonpublic school shall be ineligible to receive future scholarship funds. The nonpublic school shall notify the parent or guardian of any enrolled student receiving a scholarship grant that the nonpublic school is no longer eligible to receive future scholarship grants. The Authority shall establish by rule a process for a nonpublic school to appeal for reconsideration of eligibility after one year. To ensure compliance, the Board of Directors of the Authority shall review the criminal history provided under subdivision (2) of subsection (a) of this section to ensure that the person has not been convicted of any crime listed in G.S. 115C-332. The Board shall determine through this review whether the nonpublic school is noncompliant with this section. The Board shall make written findings with regard to how the criminal history information was used when making the compliance determination. The Board of Directors may delegate any of the duties in this subsection to the Executive Director of the Authority. As part of its review, the Board shall determine whether the results indicate that the staff member has any of the following disqualifying characteristics:

(1) Poses a threat to the physical safety of students or personnel.

(2) Demonstrates that he or she does not have the integrity or honesty to fulfill his or her duties in overseeing State funds and the requirements of the scholarship grant program.

(3) Has not fully satisfied the criminal sentencing obligations imposed following his or her conviction by a court of competent jurisdiction.

(e) If a nonpublic school terminates operation during the school's regular schedule and fails to (i) report the date of the closure to the Division within 14 days and (ii) return funds owed to the Authority in a timely manner for students who received scholarship grants, any other nonpublic school opened during that school year or subsequent school years by an owner or chief administrator listed in the report submitted to the Division under subdivision (8) of subsection (a) of this section for that closed school shall be ineligible to receive scholarship grants until such time the Authority determines the obligation to return those funds has been satisfied. (2013-360, s. 8.29(a); 2014-100, s. 8.25(d), (d1); 2021-111, s. 1(c); 2022-74, s. 8A.5(a)-(c); 2023-134, ss. 7.80(c), (d), 8A.6(e), 8A.12(a), 8A.16(b); 2024-1, ss. 2.7, 2.15(b).)

N.C. Gen. Stat. § 41A-4

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Unlawful discriminatory housing practices (current text, retrieved 2026-10-29)

(a) It is an unlawful discriminatory housing practice for any person in a real estate transaction, because of race, color, religion, sex, national origin, handicapping condition, or familial status to:

(1) Refuse to engage in a real estate transaction;

(2) Discriminate against a person in the terms, conditions, or privileges of a real estate transaction or in the furnishing of facilities or services in connection therewith;

(2a) , (2c) Repealed by Session Laws 2009-388, s. 1, effective October 1, 2009.

(3) Refuse to receive or fail to transmit a bona fide offer to engage in a real estate transaction;

(4) Refuse to negotiate for a real estate transaction;

(5) Represent to a person that real property is not available for inspection, sale, rental, or lease when in fact it is so

available, or fail to bring a property listing to his attention, or refuse to permit him to inspect real property;

(6) Make, print, circulate, post, or mail or cause to be so published a statement, advertisement, or sign, or use a form or application for a real estate transaction, or make a record or inquiry in connection with a prospective real estate transaction, which indicates directly or indirectly, an intent to make a limitation, specification, or discrimination with respect thereto;

(7) Offer, solicit, accept, use, or retain a listing of real property with the understanding that any person may be discriminated against in a real estate transaction or in the furnishing of facilities or services in connection therewith; or

(8) Otherwise make unavailable or deny housing.

(b) Repealed by Session Laws 1989, c. 507, s. 2.

(b1) It is an unlawful discriminatory housing practice for any person or other entity whose business includes engaging in residential real estate related transactions to discriminate against any person in making available such a transaction, or in the terms and conditions of such a transaction, because of race, color, religion, sex, national origin, handicapping condition, or familial status. As used in this subsection, "residential real estate related transaction" means:

(1) The making or purchasing of loans or providing financial assistance (i) for purchasing, constructing, improving, repairing, or maintaining a dwelling, or (ii) where the security is residential real estate; or

(2) The selling, brokering, or appraising of residential real estate.

The provisions of this subsection shall not prohibit any financial institution from using a loan application which inquires into a person's financial and dependent obligations or from basing its actions on the income or financial abilities of any person.

(c) It is an unlawful discriminatory housing practice for a person to induce or attempt to induce another to enter into a real estate transaction from which such person may profit:

(1) By representing that a change has occurred, or may or will occur in the composition of the residents of the block, neighborhood, or area in which the real property is located with respect to race, color, religion, sex, national origin, handicapping condition, or familial status of the owners or occupants; or

(2) By representing that a change has resulted, or may or will result in the lowering of property values, an increase in criminal or antisocial behavior, or a decline in the quality of schools in the block, neighborhood, or area in which the real property is located.

(d) It is an unlawful discriminatory housing practice to deny any person who is otherwise qualified by State law access to or membership or participation in any real estate brokers' organization, multiple listing service, or other service, organization, or facility relating to the business of engaging in real estate transactions, or to discriminate in the terms or conditions of such access, membership, or participation because of race, color, religion, sex, national origin, handicapping condition, or familial status.

(e) It is an unlawful discriminatory housing practice to coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of, on account of having exercised or enjoyed, or on account of having aided or encouraged any other person in the exercise or enjoyment of any right granted or protected by this Chapter.

(f) It is an unlawful discriminatory housing practice to:

(1) Refuse to permit, at the expense of a handicapped person, reasonable modifications of existing premises occupied or to be occupied by the person if the modifications are necessary to the handicapped person's full enjoyment of the premises; except that, in the case of a rental unit, the landlord may, where it is reasonable to do so, condition permission for modifications on agreement by the renter to restore the interior of the premises to the condition that existed before the modifications, reasonable wear and tear excepted.

(2) Refuse to make reasonable accommodations in rules, policies, practices, or services, when these accommodations may be necessary to a handicapped person's equal use and enjoyment of a dwelling.

(3) Fail to design and construct covered multifamily dwellings available for first occupancy after March 13, 1991, so that:

a. The dwellings have at least one building entrance on an accessible route, unless it is impractical to do so because of terrain or unusual site characteristics; or

b. With respect to dwellings with a building entrance on an accessible route:

1. The public and common use portions are readily accessible to and usable by handicapped persons;

2. There is an accessible route into and through all dwellings and units;

3. All doors designed to allow passage into, within, and through these dwellings and individual units are wide enough for wheelchairs;

4. Light switches, electrical switches, electrical outlets, thermostats, and other environmental controls are in accessible locations;

5. Bathroom walls are reinforced to allow later installation of grab bars; and

6. Kitchens and bathrooms have space for an individual in a wheelchair to maneuver.

(g) It is an unlawful discriminatory housing practice to discriminate in land-use decisions or in the permitting of development based on race, color, religion, sex, national origin, handicapping condition, familial status, or, except as otherwise provided by law, the fact that a development or proposed development contains affordable housing units for families or individuals with incomes below eighty percent (80%) of area median income. It is not a violation of this Chapter if land-use decisions or permitting of development is based on considerations of limiting high concentrations of affordable housing. (1983, c. 522, s. 1; 1989, c. 507, s. 2; 1989 (Reg. Sess., 1990), c. 979, s. 3; 2009-388, s. 1; 2009-533, s. 1.)

N.D. Cent. Code § 14-02.4-02

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (1).

Definitions (current text, retrieved 2026-10-29)

In this chapter, unless the context or subject matter otherwise requires:

1. "Age" insofar as it refers to any prohibited unfair employment or other practice means at least forty years of age.

2. "Aggrieved person" includes any person who claims to have been injured by a discriminatory practice.

3. "Court" means the district court in the judicial district in which the alleged discriminatory practice occurred.

4. "Department" means the division of human rights within the department of labor and human rights.

5. "Disability" means a physical or mental impairment that substantially limits one or more major life activities, a record of this impairment, or being regarded as having this impairment.

6. "Discriminatory practice" means an act or attempted act which because of race, color, religion, sex, national origin, age, physical or mental disability, status with regard to marriage or public assistance, or participation in lawful activity off the employer's premises during nonworking hours which is not in direct conflict with the essential business-related interests of the employer results in the unequal treatment or separation or segregation of any persons, or denies, prevents, limits, or otherwise adversely affects, or if accomplished would deny, prevent, limit, or otherwise adversely affect, the benefit of enjoyment by any person of employment, labor union membership, public accommodations, public services, or credit transactions. The term "discriminate" includes segregate or separate and for purposes of discrimination based on sex, it includes sexual harassment. Sexual harassment includes unwelcome sexual advances, requests for sexual favors, sexually motivated physical conduct or other verbal or physical conduct or communication of a sexual nature when:

a. Submission to that conduct or communication is made a term or condition, either explicitly or implicitly, of obtaining employment, public accommodations or public services, or education;

b. Submission to or rejection of that conduct or communication by an individual is accommodations or public services, education, or housing; or

c. That conduct or communication has the purpose or effect of substantially employer is responsible for its acts and those of its supervisory employees if it and appropriate action.

7. "Employee" means a person who performs services for an employer, who employs one or more individuals, for compensation, whether in the form of wages, salaries, commission, or otherwise. "Employee" does not include a person elected to public office in the state or political subdivision by the qualified voters thereof, or a person chosen by the officer to be on the officer's political staff, or an appointee on the policymaking level or an immediate adviser with respect to the exercise of the constitutional or legal powers of the office. Provided, "employee" does include a person subject to the civil service or merit system or civil service laws of the state government, governmental agency, or a political subdivision.

8. "Employer" means a person within the state who employs one or more employees for more than one quarter of the year and a person wherever situated who employs one or more employees whose services are to be partially or wholly performed in the state.

9. "Employment agency" means a person regularly undertaking, with or without compensation, to procure employees for an employer or to procure for employees opportunity to work for an employer and includes any agent of the person.

10. "Labor organization" means a person, employee representation committee, plan in which employees participate, or other organization which exists solely or in part for the purpose of dealing with employers concerning grievances, labor disputes, wages, rates of pay, hours, or other terms or conditions of employment.

11. "National origin" means the place of birth of an individual or any of the individual's lineal ancestors.

12. "Otherwise qualified person" means a person who is capable of performing the essential functions of the particular employment in question.

13. "Person" means an individual, partnership, association, corporation, limited liability company, unincorporated organization, mutual company, joint stock company, trust, agent, legal representative, trustee, trustee in bankruptcy, receiver, labor organization, public body, public corporation, and the state and a political subdivision and agency thereof.

14. "Public accommodation" means every place, establishment, or facility of whatever kind, nature, or class that caters

or offers services, facilities, or goods to the general public for a fee, charge, or gratuity. "Public accommodation" does not include a bona fide private club or other place, establishment, or facility which is by its nature distinctly private; provided, however, the distinctly private place, establishment, or facility is a "public accommodation" during the period it caters or offers services, facilities, or goods to the general public for a fee, charge, or gratuity.

15. "Public service" means a public facility, department, agency, board, or commission owned, operated, or managed by or on behalf of this state, a political subdivision thereof, or a public corporation.

16. "Readily achievable" means easily accomplishable and able to be carried out without much difficulty or expense by a person engaged in the provision of public accommodations.

17. "Reasonable accommodations" means accommodations by an employer that do not:

a. Unduly disrupt or interfere with the employer's normal operations;

b. Threaten the health or safety of the individual with a disability or others;

c. Contradict a business necessity of the employer; or

d. Impose undue hardship on the employer, based on the size of the employer's business, the type of business, the financial resources of the employer, and the estimated cost and extent of the accommodation.

18. "Sex" includes pregnancy, childbirth, and disabilities related to pregnancy or childbirth.

19. "Status with regard to public assistance" means the condition of being a recipient of federal, state, or local assistance, including medical assistance, or of being a tenant receiving federal, state, or local subsidies, including rental assistance or rent supplements.

N.D. Cent. Code § 14-02.4-08.1

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Cited as the 2021 edition; the text below is the current one.

Exercise of religion (current text, retrieved 2026-10-29)

1. Notwithstanding any other provision of law, a state or local government entity may not:

a. Substantially burden a person's exercise of religion unless applying the burden to that person's exercise of religion in a particular situation is essential to further a
that compelling government interest;

b. Treat religious conduct more restrictively than any secular conduct of reasonably comparable risk; or

c. Treat religious conduct more restrictively than any comparable secular conduct because of alleged economic need or benefit.

2. A person claiming to be aggrieved by a violation of this section may assert that violation as a claim or defense in a judicial proceeding and obtain appropriate relief, including costs and reasonable attorney's fees.

N.D. Cent. Code § 14-02.4-14

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Public accommodations - Discriminatory practices (current text, retrieved 2026-10-29)

1. It is a discriminatory practice for a person engaged in the provision of public accommodations to fail to provide to a person access to the use of any benefit from the services and facilities of the public accommodations; or to give adverse, unlawful, or unequal treatment to a person with respect to the availability to the services and facilities, the price or other consideration therefor, the scope and equality thereof, or the terms and conditions under which the same are made available because of the person's race, color, religion, sex, national origin, age, physical or mental disability, or status with respect to marriage or public assistance.

2. If a place of public accommodation has an architectural or communication barrier, the person engaged in the provision of public accommodations shall remove the barrier, if removal is readily achievable. If a public accommodation can demonstrate that barrier removal is not readily achievable, the public accommodation shall make that person's goods, services, facilities, privileges, advantages, or accommodations available through alternative methods, if those alternative methods are readily achievable.

N.D. Cent. Code § 14-02.5-02

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Sale or rental (current text, retrieved 2026-10-29)

1. A person may not refuse to sell or rent, after the making of a bona fide offer, refuse to negotiate for the sale or rental of, or in any other manner make unavailable or deny a dwelling to an individual because of race, color, religion, sex, disability, age, familial status, national origin, or status with respect to marriage or public assistance.

2. A person may not discriminate against an individual in the terms, conditions, or privileges of sale or rental of a dwelling or in providing services or facilities in connection with a sale or rental of a dwelling because of race, color, religion, sex, disability, age, familial status, national origin, or status with respect to marriage or public assistance.

3. An applicant for or tenant of housing that is part of a state housing program may not be denied admission to, denied assistance under, terminated from participating in, or evicted from housing on the basis that the applicant or tenant is or has been a victim of domestic violence, dating violence, sexual assault, or stalking, if the applicant or tenant otherwise qualifies for admission, assistance, participation, or occupancy.
4. This section does not prohibit discrimination against an individual because the individual has been convicted under federal law or the law of any state of the illegal manufacture or distribution of a controlled substance.
5. Nothing in this chapter prevents a person from refusing to rent a dwelling to two unrelated individuals of opposite gender who are not married to each other.

Neb. Rev. Stat. § 20-134

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discriminatory practices; violation; penalty (current text, retrieved 2026-10-29)
(1) Any person who directly or indirectly refuses, withholds from, denies, or attempts to refuse, withhold, or deny, to any other person any of the accommodations, advantages, facilities, services, or privileges, or who segregates any person in a place of public accommodation on the basis of race, creed, color, sex, religion, national origin, disability, ancestry, or military or veteran status, shall be guilty of discriminatory practice and shall be subject to the penalties of sections 20-132 to 20-143.
(2) It is not a discriminatory practice under sections 20-132 to 20-143 for a person or a place of public accommodation to, on an otherwise nondiscriminatory basis, limit admission or service to veterans or servicemembers or their family members or provide discounts or other benefits to veterans or servicemembers or their family members.
Source:Laws 1973, LB 112, § 3; Laws 1974, LB 681, § 2; Laws 2021, LB540, § 13; Laws 2025, LB150, § 10.

Neb. Rev. Stat. § 20-318

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Unlawful acts enumerated (current text, retrieved 2026-10-29)
Except as exempted by section 20-322, it shall be unlawful to:
(1) Refuse to sell or rent after the making of a bona fide offer, refuse to negotiate for the sale or rental of or otherwise make unavailable or deny, refuse to show, or refuse to receive and transmit an offer for a dwelling to any person because of race, color, religion, national origin, disability, familial status, sex, or military or veteran status;
(2) Discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling or in the provision of services or facilities in connection therewith because of race, color, religion, national origin, disability, familial status, sex, or military or veteran status;
(3) Make, print, publish, or cause to be made, printed, or published any notice, statement, or advertisement with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination based on race, color, religion, national origin, disability, familial status, sex, or military or veteran status or an intention to make any such preference, limitation, or discrimination;
(4) Represent to any person because of race, color, religion, national origin, disability, familial status, sex, or military or veteran status that any dwelling is not available for inspection, sale, or rental when such dwelling is in fact so available;
(5) Cause to be made any written or oral inquiry or record concerning the race, color, religion, national origin, disability, familial status, sex, or military or veteran status of a person seeking to purchase, rent, or lease any housing;
(6) Include in any transfer, sale, rental, or lease of housing any restrictive covenants or honor or exercise or attempt to honor or exercise any restrictive covenant pertaining to housing;
(7) Discharge or demote an employee or agent or discriminate in the compensation of such employee or agent because of such employee's or agent's compliance with the Nebraska Fair Housing Act; and
(8) Induce or attempt to induce, for profit, any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, color, religion, national origin, disability, familial status, sex, or military or veteran status.
Source:Laws 1969, c. 120, § 3, p. 540; Laws 1979, LB 80, § 64; R.S.1943, (1987), § 20-107; Laws 1991, LB 825, § 19; Laws 2021, LB540, § 19; Laws 2025, LB150, § 13.

Neb. Rev. Stat. § 20-703

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Cited as the 2024 edition; the text below is the current one.

Right to the exercise of religion; operation of a religious organization during a state of emergency; restrictions on state action (current text, retrieved 2026-10-29)
Notwithstanding any other provision of law, state action shall not:
(1) Substantially burden a person's right to the exercise of religion unless it is demonstrated that applying the burden to

that person's exercise of religion in this particular instance is essential to further a compelling governmental interest and is the least restrictive means of furthering that compelling governmental interest; or

(2) Restrict a religious organization from operating and engaging in religious services during a state of emergency to a greater extent than the state restricts other organizations or businesses from operating during a state of emergency.

Source:Laws 2024, LB43, § 3.

N.H. Const. pt. I

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (1).

Source error: no source: www.nh.gov (the constitution's only official host) blocks non-browser clients

N.H. Rev. Stat. Ann. § 194-F:6

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Requirements for Education Service Providers. – (current text, retrieved 2026-10-29)

I. The scholarship organization may approve education service providers on its own initiative, at the request of parents, or by notice to the scholarship organization provided by prospective education service providers.

II. A prospective education service provider that wishes to receive payments from EFAs shall:

(a) Submit notice to the scholarship organization that it wishes to receive payments from EFAs.

(b) Agree not to refund, rebate, or share EFA funds with parents or EFA students in any manner, except that funds may be remitted or refunded to an EFA in accordance with procedures established by the scholarship organization.

(c) Comply with all state and federal anti-discrimination laws.

Source. 2021, 91:431, eff. Aug. 24, 2021.

N.H. Rev. Stat. Ann. § 354-A:10

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Civil Rights Violations; Real Estate Transactions. – (current text, retrieved 2026-10-29)

It shall be an unlawful discriminatory practice because of age, sex, gender identity, race, religion, color, marital status, familial status, physical or mental disability or national origin to:

I. Refuse to engage in a real estate transaction with a person or to discriminate in making available such a transaction.

II. Alter the terms, conditions or privileges of a real estate transaction or in the furnishing of facilities or services in connection therewith.

III. Refuse to receive or to fail to transmit a bona fide offer to engage in a real estate transaction from a person.

IV. Refuse to negotiate for a real estate transaction with a person.

V. Represent to a person that real property is not available for inspection, sale, rental, or lease when in fact it is so available, or to fail to bring a property listing to his or her attention, or to refuse to permit him or her to inspect real property.

VI. Make, print, or publish, or cause to be made, printed, or published, any notice, statement, advertisement, or sign, with respect to the sale or rental of a dwelling, or commercial structure, that indicates any preference, limitation, or discrimination based on race, color, religion, sex, marital status, familial status, physical or mental disability, sexual orientation, or national origin, or an intention to make any such preference, limitation, or discrimination.

VII. Offer, solicit, accept, use or retain a listing of real property with knowledge that unlawful discrimination or discrimination on the basis of familial status or an arrest record in a real estate transaction is intended.

Source. 2021, 152:2, Pt. III, Sec. 1, eff. Jan. 1, 2022.

N.H. Rev. Stat. Ann. § 354-A:17

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (1).

Unlawful Discriminatory Practices in Public Accommodations. – (current text, retrieved 2026-10-29)

It shall be an unlawful discriminatory practice for any person, being the owner, lessee, proprietor, manager, superintendent, agent or employee of any place of public accommodation, because of the age, sex, gender identity, race, creed, color, marital status, physical or mental disability or national origin of any person, directly or indirectly, to refuse, withhold from or deny to such person any of the accommodations, advantages, facilities or privileges thereof; or, directly or indirectly, to publish, circulate, issue, display, post or mail any written or printed communication, notice or advertisement to the effect that any of the accommodations, advantages, facilities and privileges of any such place shall be refused, withheld from or denied to any person on account of age, sex, gender identity, race, creed, color, marital status, physical or mental disability or national origin; or that the patronage or custom thereat of any person belonging to or purporting to be of any particular age, sex, gender identity, race, creed, color, marital status, physical or mental disability or national origin is unwelcome, objectionable or acceptable, desired or solicited. In addition, no person shall be denied the benefit of the rights afforded by this section on account of that person's sexual orientation.

Source. 1992, 224:1. 1997, 108:15, eff. Jan. 1, 1998. 2018, 176:9, eff. July 8, 2018. 2019, 332:2, eff. Oct. 15, 2019.

N.J. Const. art. XVIII

Cited by the petitioners 0 times (0 filings) and their amici 4 (2); by the respondent 0 (0) and its amici 0 (0).

Text not stored locally (not in constitution.xml (renumbered or repealed since, or a cite we misread)).

N.J. Stat. Ann. § 10:5-1

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Short title (current text, retrieved 2026-10-29)

This act shall be known as "Law Against Discrimination."

L.1945, c. 169, p. 589, s. 1, eff. April 16, 1945.

N.J. Stat. Ann. § 10:5-9.1

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Enforcement of laws against discrimination in public housing and real property (current text, retrieved 2026-10-29)

1.

The Division on Civil Rights in the Department of Law and Public Safety shall enforce the laws of this State against unlawful discrimination in housing built with, or leased with the assistance of, public funds or public assistance, pursuant to any law, and in real property, as defined in the law hereby supplemented, because of race, religious principles, color, national origin, ancestry, marital status, affectional or sexual orientation, familial status, disability, service in the Armed Forces of the United States or liability for service in the Armed Forces of the United States, nationality, sex, gender identity or expression, or source of lawful income used for rental or mortgage payments. These laws shall be enforced in the manner prescribed in P.L.1945, c.169 (C.10:5-1 et seq.).

L.1954, c.198, s.1; amended 1961, c.106, s.5; 1963, c.40, s.18; 1970, c.80, s.12; 1991, c.519, s.6; 1992, c.146, s.7; 2002, c.82, s.2; 2003, c.180, s.9; 2006, c.100, s.7; 2017, c.184, s.2; 2025, c.307, s.6.

N.J. Stat. Ann. § 10:5-12

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Unlawful employment practices, discrimination (current text, retrieved 2026-10-29)

11.

It shall be an unlawful employment practice, or, as the case may be, an unlawful discrimination:

a. For an employer, because of the race, creed, color, national origin, ancestry, age, marital status, civil union status, domestic partnership status, affectional or sexual orientation, genetic information, pregnancy or breastfeeding, sex, gender identity or expression, disability, or atypical hereditary cellular or blood trait of any individual, or because of an individual's service in the Armed Forces of the United States or liability for service in the Armed Forces of the United States or the nationality of any individual, or because of the refusal to submit to a genetic test or make available the results of a genetic test to an employer, to refuse to hire or employ or to bar or to discharge or require to retire, unless justified by lawful considerations other than age, from employment such individual or to discriminate against such individual in compensation or in terms, conditions or privileges of employment; provided, however, it shall not be an unlawful employment practice to refuse to accept for employment an applicant who has received a notice of induction or orders to report for active duty in the armed forces; provided further that nothing herein contained shall be construed to bar an employer from refusing to accept for employment any person on the basis of sex in those certain circumstances where sex is a bona fide occupational qualification, reasonably necessary to the normal operation of the particular business or enterprise; provided further that it shall not be an unlawful employment practice for a club exclusively social or fraternal to use club membership as a uniform qualification for employment, or for a religious association or organization to utilize religious affiliation as a uniform qualification in the employment of clergy, religious teachers, or other employees engaged in the religious activities of the association or organization, or in following the tenets of its religion in establishing and utilizing criteria for employment of an employee; provided further that it shall not be an unlawful employment practice to require the retirement of any employee who, for the two-year period immediately before retirement, is employed in a bona fide executive or a high policy-making position, if that employee is entitled to an immediate non-forfeitable annual retirement benefit from a pension, profit sharing, savings or deferred retirement plan, or any combination of those plans, of the employer of that employee which equals in the aggregate at least $27,000; and provided further that an employer may restrict employment to citizens of the United States where such restriction is required by federal law or is otherwise necessary to protect the national interest.

The provisions of subsections a. and b. of section 57 of P.L.2003, c.246 (C.34:11A-20), and the provisions of section 58 of P.L.2003, c.246 (C.26:8A-11), shall not be deemed to be an unlawful discrimination under P.L.1945, c.169 (C.10:5-1 et seq.).

For the purposes of this subsection, a "bona fide executive" is a top-level employee who exercises substantial executive authority over a significant number of employees and a large volume of business. A "high policy-making position" is a

position in which a person plays a significant role in developing policy and in recommending the implementation thereof. For the purposes of this subsection, an unlawful employment practice occurs, with respect to discrimination in compensation or in the financial terms or conditions of employment, each occasion that an individual is affected by application of a discriminatory compensation decision or other practice, including, but not limited to, each occasion that wages, benefits, or other compensation are paid, resulting in whole or in part from the decision or other practice.

In addition to any other relief authorized by the "Law Against Discrimination," P.L.1945, c.169 (C.10:5-1 et seq.) for discrimination in compensation or in the financial terms or conditions of employment, liability shall accrue and an aggrieved person may obtain relief for back pay for the entire period of time, except not more than six years, in which the violation with regard to discrimination in compensation or in the financial terms or conditions of employment has been continuous, if the violation continues to occur within the statute of limitations.

Nothing in this subsection shall prohibit the application of the doctrine of "continuing violation" or the "discovery rule" to any appropriate claim as those doctrines currently exist in New Jersey common law. It shall be an unlawful employment practice to require employees or prospective employees to consent to a shortened statute of limitations or to waive any of the protections provided by the "Law Against Discrimination," P.L.1945, c.169 (C.10:5-1 et seq.).

For the purposes of this subsection, an unlawful employment practice occurs when an employer denies reemployment to an employee who takes leave for military service consistent with the requirements of the Uniformed Services Employment and Reemployment Rights Act of 1994, 38 U.S.C. s. 4301 et seq.

b. For a labor organization, because of the race, creed, color, national origin, ancestry, age, marital status, civil union status, domestic partnership status, affectional or sexual orientation, gender identity or expression, disability, pregnancy or breastfeeding, or sex of any individual, or because of the individual's service in the Armed Forces of the United States or liability for service in the Armed Forces of the United States or nationality of any individual, to exclude or to expel from its membership such individual or to discriminate in any way against any of its members, against any applicant for, or individual included in, any apprentice or other training program or against any employer or any individual employed by an employer; provided, however, that nothing herein contained shall be construed to bar a labor organization from excluding from its apprentice or other training programs any person on the basis of sex in those certain circumstances where sex is a bona fide occupational qualification reasonably necessary to the normal operation of the particular apprentice or other training program.

c. For any employer or employment agency to print or circulate, or cause to be printed or circulated, any statement, advertisement, or publication, or to use any form of application for employment, or to make an inquiry in connection with prospective employment, which expresses, directly or indirectly, any limitation, specification, or discrimination as to race, creed, color, national origin, ancestry, age, marital status, civil union status, domestic partnership status, affectional or sexual orientation, gender identity or expression, disability, nationality, pregnancy or breastfeeding, sex, or service in the Armed Forces of the United States or liability of any applicant for employment for service in the Armed Forces of the United States, or any intent to make any such limitation, specification, or discrimination, unless based upon a bona fide occupational qualification.

d. For any person to take reprisals against any person because that person has opposed any practices or acts forbidden under P.L.1945, c.169 (C.10:5-1 et seq.) or because that person has sought legal advice regarding rights under P.L.1945, c.169 (C.10:5-1 et seq.), shared relevant information with legal counsel, shared information with a governmental entity, or filed a complaint, testified, or assisted in any proceeding under P.L.1945, c.169 (C.10:5-1 et seq.) or to coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of, or on account of that person having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by P.L.1945, c.169 (C.10:5-1 et seq.).

e. For any person, whether an employer or an employee or not, to aid, abet, incite, compel, or coerce the doing of any of the acts forbidden under P.L.1945, c.169 (C.10:5-1 et seq.) or to attempt to do so.

f. (1) For any owner, lessee, proprietor, manager, superintendent, agent, or employee of any place of public accommodation, directly or indirectly, to refuse, withhold from, or deny to any person any of the accommodations, advantages, facilities, or privileges thereof, or to discriminate against any person in the furnishing thereof, or, directly or indirectly, to publish, circulate, issue, display, post, or mail any written or printed communication, notice, or advertisement to the effect that any of the accommodations, advantages, facilities, or privileges of any such place will be refused, withheld from, or denied to any person on account of the race, creed, color, national origin, ancestry, marital status, civil union status, domestic partnership status, pregnancy or breastfeeding, sex, gender identity or expression, affectional or sexual orientation, disability, service in the Armed Forces of the United States or liability for service in the Armed Forces of the United States, or nationality of such person, or that the patronage or custom thereat of any person of any particular race, creed, color, national origin, ancestry, marital status, civil union status, domestic partnership status, pregnancy or breastfeeding status, sex, gender identity or expression, affectional or sexual orientation, disability, service in the Armed Forces of the United States or liability for service in the Armed Forces of the United States, or nationality is unwelcome, objectionable, or not acceptable, desired, or solicited, and the production of any such written or printed communication,

notice, or advertisement, purporting to relate to any such place and to be made by any owner, lessee, proprietor, superintendent, or manager thereof, shall be presumptive evidence in any action that the same was authorized by such person; provided, however, that nothing contained herein shall be construed to bar any place of public accommodation which is in its nature reasonably restricted exclusively to individuals of one sex, and which shall include, but not be limited to, any summer camp, day camp, or resort camp, bathhouse, dressing room, swimming pool, gymnasium, comfort station, dispensary, clinic or hospital, or school or educational institution which is restricted exclusively to individuals of one sex, provided individuals shall be admitted based on their gender identity or expression, from refusing, withholding from, or denying to any individual of the opposite sex any of the accommodations, advantages, facilities, or privileges thereof on the basis of sex; and provided further that the foregoing limitation shall not apply to any restaurant as defined in R.S.33:1-1 or place where alcoholic beverages are served.

(2) Notwithstanding the definition of "a place of public accommodation" as set forth in subsection l. of section 5 of P.L.1945, c.169 (C.10:5-5), for any owner, lessee, proprietor, manager, superintendent, agent, or employee of any private club or association to, directly or indirectly, refuse, withhold from, or deny to any individual who has been accepted as a club member and has contracted for or is otherwise entitled to full club membership any of the accommodations, advantages, facilities or privileges thereof, or to discriminate against any member in the furnishing thereof on account of the race, creed, color, national origin, ancestry, marital status, civil union status, domestic partnership status, pregnancy or breastfeeding, sex, gender identity or expression, affectional or sexual orientation, disability, service in the Armed Forces of the United States or liability for service in the Armed Forces of the United States, or nationality of such person.

In addition to the penalties otherwise provided for a violation of P.L.1945, c.169 (C.10:5-1 et seq.), if the violator of paragraph (2) of subsection f. of this section is the holder of an alcoholic beverage license issued under the provisions of R.S.33:1-12 for that private club or association, the matter shall be referred to the Director of the Division of Alcoholic Beverage Control who shall impose an appropriate penalty in accordance with the procedures set forth in R.S.33:1-31.

g. For any person, including, but not limited to, any owner, lessee, sublessee, assignee, or managing agent of, or other person having the right of ownership or possession of or the right to sell, rent, lease, assign, or sublease any real property or part or portion thereof, or any agent or employee of any of these:

(1) To refuse to sell, rent, lease, assign, or sublease or otherwise to deny to or withhold from any person or group of persons any real property or part or portion thereof because of race, creed, color, national origin, ancestry, marital status, civil union status, domestic partnership status, pregnancy or breastfeeding, sex, gender identity or expression, affectional or sexual orientation, familial status, disability, service in the Armed Forces of the United States or liability for service in the Armed Forces of the United States, nationality, or source of lawful income used for rental or mortgage payments;

(2) To discriminate against any person or group of persons because of race, creed, color, national origin, ancestry, marital status, civil union status, domestic partnership status, pregnancy or breastfeeding, sex, gender identity or expression, affectional or sexual orientation, familial status, disability, service in the Armed Forces of the United States or liability for service in the Armed Forces of the United States, nationality, or source of lawful income used for rental or mortgage payments in the terms, conditions, or privileges of the sale, rental, or lease of any real property or part or portion thereof or in the furnishing of facilities or services in connection therewith;

(3) To print, publish, circulate, issue, display, post, or mail, or cause to be printed, published, circulated, issued, displayed, posted, or mailed, any statement, advertisement, publication, or sign, or to use any form of application for the purchase, rental, lease, assignment, or sublease of any real property or part or portion thereof, or to make any record or inquiry in connection with the prospective purchase, rental, lease, assignment, or sublease of any real property, or part or portion thereof which expresses, directly or indirectly, any limitation, specification, or discrimination as to race, creed, color, national origin, ancestry, marital status, civil union status, domestic partnership status, pregnancy or breastfeeding, sex, gender identity or expression, affectional or sexual orientation, familial status, disability, service in the Armed Forces of the United States or liability for service in the Armed Forces of the United States, nationality, or source of lawful income used for rental or mortgage payments, or any intent to make any such limitation, specification or discrimination, and the production of any such statement, advertisement, publicity, sign, form of application, record, or inquiry purporting to be made by any such person shall be presumptive evidence in any action that the same was authorized by such person; provided, however, that nothing contained in this subsection shall be construed to bar any person from refusing to sell, rent, lease, assign, or sublease or from advertising or recording a qualification as to sex for any room, apartment, flat in a dwelling, or residential facility which is planned exclusively for and occupied by individuals of one sex to any individual of the exclusively opposite sex on the basis of sex, provided individuals shall be qualified based on their gender identity or expression;

(4) To refuse to sell, rent, lease, assign, or sublease or otherwise to deny to or withhold from any person or group of persons any real property or part or portion thereof because of the source of any lawful income received by the

person or the source of any lawful rent payment to be paid for the real property, including, but not limited to, by refusing to accept as payment any source of lawful income or by applying, in assessing eligibility for the rental of housing, any minimum income requirement or financial standard that is not based exclusively on the portion of the rent to be paid by the tenant; or

(5) To refuse to rent or lease any real property to another person because that person's family includes children under 18 years of age, or to make an agreement, rental, or lease of any real property which provides that the agreement, rental, or lease shall be rendered null and void upon the birth of a child. This paragraph shall not apply to housing for older persons as defined in subsection mm. of section 5 of P.L.1945, c.169 (C.10:5-5).

h. For any person, including, but not limited to, any real estate broker, real estate salesperson, or employee or agent thereof:

(1) To refuse to sell, rent, assign, lease, or sublease, or offer for sale, rental, lease, assignment, or sublease any real property or part or portion thereof to any person or group of persons or to refuse to negotiate for the sale, rental, lease, assignment, or sublease of any real property or part or portion thereof to any person or group of persons because of race, creed, color, national origin, ancestry, marital status, civil union status, domestic partnership status, familial status, pregnancy or breastfeeding, sex, gender identity or expression, affectional or sexual orientation, liability for service in the Armed Forces of the United States, disability, nationality, or source of lawful income used for rental or mortgage payments, or to represent that any real property or portion thereof is not available for inspection, sale, rental, lease, assignment, or sublease when in fact it is so available, or otherwise to deny or withhold any real property or any part or portion of facilities thereof to or from any person or group of persons because of race, creed, color, national origin, ancestry, marital status, civil union status, domestic partnership status, familial status, pregnancy or breastfeeding, sex, gender identity or expression, affectional or sexual orientation, disability, liability for service in the Armed Forces of the United States, nationality, or source of lawful income used for rental or mortgage payments;

(2) To discriminate against any person because of race, creed, color, national origin, ancestry, marital status, civil union status, domestic partnership status, familial status, pregnancy or breastfeeding, sex, gender identity or expression, affectional or sexual orientation, disability, service in the Armed Forces of the United States or liability for service in the Armed Forces of the United States, nationality, or source of lawful income used for rental or mortgage payments in the terms, conditions, or privileges of the sale, rental, lease, assignment, or sublease of any real property or part or portion thereof or in the furnishing of facilities or services in connection therewith;

(3) To print, publish, circulate, issue, display, post, or mail, or cause to be printed, published, circulated, issued, displayed, posted, or mailed, any statement, advertisement, publication, or sign, or to use any form of application for the purchase, rental, lease, assignment, or sublease of any real property or part or portion thereof or to make any record or inquiry in connection with the prospective purchase, rental, lease, assignment, or sublease of any real property or part or portion thereof which expresses, directly or indirectly, any limitation, specification, or discrimination as to race, creed, color, national origin, ancestry, marital status, civil union status, domestic partnership status, familial status, pregnancy or breastfeeding, sex, gender identity or expression, affectional or sexual orientation, disability, service in the Armed Forces of the United States or liability for service in the Armed Forces of the United States, nationality, or source of lawful income used for rental or mortgage payments or any intent to make any such limitation, specification, or discrimination, and the production of any such statement, advertisement, publicity, sign, form of application, record, or inquiry purporting to be made by any such person shall be presumptive evidence in any action that the same was authorized by such person; provided, however, that nothing contained in this subsection h., shall be construed to bar any person from refusing to sell, rent, lease, assign, or sublease or from advertising or recording a qualification as to sex for any room, apartment, flat in a dwelling, or residential facility which is planned exclusively for and occupied exclusively by individuals of one sex to any individual of the opposite sex on the basis of sex, provided individuals shall be qualified based on their gender identity or expression;

(4) To refuse to sell, rent, lease, assign, or sublease or otherwise to deny to or withhold from any person or group of persons any real property or part or portion thereof because of the source of any lawful income received by the person or the source of any lawful rent payment to be paid for the real property, including, but not limited to, by refusing to accept as payment any source of lawful income, or by applying, in assessing eligibility for the rental of housing, any minimum income requirement or financial standard that is not based exclusively on the portion of the rent to be paid by the tenant; or

(5) To refuse to rent or lease any real property to another person because that person's family includes children under 18 years of age, or to make an agreement, rental, or lease of any real property which provides that the agreement, rental, or lease shall be rendered null and void upon the birth of a child. This paragraph shall not apply to housing for older persons as defined in subsection mm. of section 5 of P.L.1945, c.169 (C.10:5-5).

i. For any person, bank, banking organization, mortgage company, insurance company, or other financial institution, lender, or credit institution involved in the making or purchasing of any loan or extension of credit, for whatever purpose, whether secured by residential real estate or not, including, but not limited to, financial assistance for the purchase,

acquisition, construction, rehabilitation, repair, or maintenance of any real property or part or portion thereof or any agent or employee thereof:

(1) To discriminate against any person or group of persons because of race, creed, color, national origin, ancestry, marital status, civil union status, domestic partnership status, pregnancy or breastfeeding, sex, gender identity or expression, affectional or sexual orientation, disability, service in the Armed Forces of the United States or liability for service in the Armed Forces of the United States, familial status, or nationality, in the granting, withholding, extending, modifying, renewing, or purchasing, or in the fixing of the rates, terms, conditions, or provisions of any such loan, extension of credit, or financial assistance or purchase thereof or in the extension of services in connection therewith;

(2) To use any form of application for such loan, extension of credit, or financial assistance or to make record or inquiry in connection with applications for any such loan, extension of credit, or financial assistance which expresses, directly or indirectly, any limitation, specification, or discrimination as to race, creed, color, national origin, ancestry, marital status, civil union status, domestic partnership status, pregnancy or breastfeeding, sex, gender identity or expression, affectional or sexual orientation, disability, service in the Armed Forces of the United States or liability for service in the Armed Forces of the United States, familial status, or nationality, or any intent to make any such limitation, specification, or discrimination, unless otherwise required by law or regulation to retain or use such information;

(3) (Deleted by amendment, P.L.2003, c.180)

(4) To discriminate against any person or group of persons because of the source of any lawful income received by the person or the source of any lawful rent payment to be paid for the real property; or

(5) To discriminate against any person or group of persons because that person's family includes children under 18 years of age, or to make an agreement or mortgage which provides that the agreement or mortgage shall be rendered null and void upon the birth of a child. This paragraph shall not apply to housing for older persons as defined in subsection mm. of section 5 of P.L.1945, c.169 (C.10:5-5).

j. For any person whose activities are included within the scope of this act to refuse to post or display such notices concerning the rights or responsibilities of persons affected by P.L.1945, c.169 (C.10:5-1 et seq.) as the Attorney General may by regulation require.

k. For any real estate broker, real estate salesperson, or employee or agent thereof or any other individual, corporation, partnership, or organization, for the purpose of inducing a transaction for the sale or rental of real property from which transaction such person or any of its members may benefit financially, to represent that a change has occurred or will or may occur in the composition with respect to race, creed, color, national origin, ancestry, marital status, civil union status, domestic partnership status, familial status, pregnancy or breastfeeding, sex, gender identity or expression, affectional or sexual orientation, disability, service in the Armed Forces of the United States or liability for service in the Armed Forces of the United States, nationality, or source of lawful income used for rental or mortgage payments of the owners or occupants in the block, neighborhood, or area in which the real property is located, and to represent, directly or indirectly, that this change will or may result in undesirable consequences in the block, neighborhood, or area in which the real property is located, including, but not limited to, the lowering of property values, an increase in criminal or anti-social behavior, or a decline in the quality of schools or other facilities.

l. For any person to refuse to buy from, sell to, lease from or to, license, contract with, or trade with, provide goods, services, or information to, or otherwise do business with any other person on the basis of the race, creed, color, national origin, ancestry, age, pregnancy or breastfeeding, sex, gender identity or expression, affectional or sexual orientation, marital status, civil union status, domestic partnership status, service in the Armed Forces of the United States or liability for service in the Armed Forces of the United States, disability, nationality, or source of lawful income used for rental or mortgage payments of such other person or of such other person's family members, partners, members, stockholders, directors, officers, managers, superintendents, agents, employees, business associates, suppliers, or customers. This subsection shall not prohibit refusals or other actions (1) pertaining to employee-employer collective bargaining, labor disputes, or unfair labor practices, or (2) made or taken in connection with a protest of unlawful discrimination or unlawful employment practices.

m. For any person to:

(1) Grant or accept any letter of credit or other document which evidences the transfer of funds or credit, or enter into any contract for the exchange of goods or services, where the letter of credit, contract, or other document contains any provisions requiring any person to discriminate against or to certify that such person has not dealt with any other person on the basis of the race, creed, color, national origin, ancestry, age, pregnancy or breastfeeding, sex, gender identity or expression, affectional or sexual orientation, marital status, civil union status, domestic partnership status, disability, service in the Armed Forces of the United States or liability for service in the Armed Forces of the United States, or nationality of such other person or of such other person's family members, partners, members, stockholders, directors, officers, managers, superintendents, agents, employees, business associates, suppliers, or customers.

(2) Refuse to grant or accept any letter of credit or other document which evidences the transfer of funds or credit, or refuse to enter into any contract for the exchange of goods or services, on the ground that it does not contain such a discriminatory provision or certification.

The provisions of this subsection shall not apply to any letter of credit, contract, or other document which contains any provision pertaining to employee-employer collective bargaining, a labor dispute, or an unfair labor practice, or made in connection with the protest of an unlawful employment practice, if the other provisions of such letter of credit, contract, or other document do not otherwise violate the provisions of this subsection.

n. For any person to aid, abet, incite, compel, coerce, or induce the doing of any act forbidden by subsections l. and m. of section 11 of P.L.1945, c.169 (C.10:5-12), or to attempt or to conspire to do so. Such prohibited conduct shall include, but not be limited to:

(1) Buying from, selling to, leasing from or to, licensing, contracting with, trading with, providing goods, services, or information to, or otherwise doing business with any person because that person does, or agrees or attempts to do, any such act or any act prohibited by this subsection; or

(2) Boycotting, commercially blacklisting, or refusing to buy from, sell to, lease from or to, license, contract with, provide goods, services, or information to, or otherwise do business with any person because that person has not done or refuses to do any such act or any act prohibited by this subsection, provided that this subsection shall not prohibit refusals or other actions either pertaining to employee-employer collective bargaining, labor disputes, or unfair labor practices, or made or taken in connection with a protest of unlawful discrimination or unlawful employment practices.

o. For any multiple listing service, real estate brokers' organization, or other service, organization, or facility related to the business of selling or renting dwellings to deny any person access to or membership or participation in such organization, or to discriminate against such person in the terms or conditions of such access, membership, or participation, on account of race, creed, color, national origin, ancestry, age, marital status, civil union status, domestic partnership status, familial status, pregnancy or breastfeeding, sex, gender identity or expression, affectional or sexual orientation, disability, service in the Armed Forces of the United States or liability for service in the Armed Forces of the United States, or nationality.

p. Nothing in the provisions of this section shall affect the ability of an employer to require employees to adhere to reasonable workplace appearance, grooming, and dress standards not precluded by other provisions of State or federal law, except that an employer shall allow an employee to appear, groom, and dress consistent with the employee's gender identity or expression.

q. (1) For any employer to impose upon a person as a condition of obtaining or retaining employment, including opportunities for promotion, advancement, or transfers, any terms or conditions that would require a person to violate or forego a sincerely held religious practice or religious observance, including, but not limited to, the observance of any particular day or days or any portion thereof as a Sabbath or other holy day in accordance with the requirements of the religion or religious belief, unless, after engaging in a bona fide effort, the employer demonstrates that it is unable to reasonably accommodate the employee's religious observance or practice without undue hardship on the conduct of the employer's business. Notwithstanding any other provision of law to the contrary, an employee shall not be entitled to premium wages or premium benefits for work performed during hours to which those premium wages or premium benefits would ordinarily be applicable, if the employee is working during those hours only as an accommodation to the employee's religious requirements. Nothing in this subsection q. shall be construed as reducing:

(a) The number of the hours worked by the employee which are counted towards the accruing of seniority, pension, or other benefits; or

(b) Any premium wages or benefits provided to an employee pursuant to a collective bargaining agreement.

(2) For an employer to refuse to permit an employee to utilize leave, as provided for in this subsection q., which is solely used to accommodate the employee's sincerely held religious observance or practice. Except where it would cause an employer to incur an undue hardship, no person shall be required to remain at the person's place of employment during any day or days or portion thereof that, as a requirement of the person's religion, the person observes as the person's Sabbath or other holy day, including a reasonable time prior and subsequent thereto for travel between the person's place of employment and the person's home, provided that any such absence from work shall, wherever practicable in the reasonable judgment of the employer, be made up by an equivalent amount of time and work at some other mutually convenient time, or shall be charged against any leave with pay ordinarily granted, other than sick leave, and any such absence not so made up or charged may be treated by the employer of that person as leave taken without pay.

(3) (a) For purposes of this subsection q., "undue hardship" means an accommodation requiring unreasonable expense or difficulty, unreasonable interference with the safe or efficient operation of the workplace, or a violation of a bona fide seniority system or a violation of any provision of a bona fide collective bargaining agreement.

(b) In determining whether the accommodation constitutes an undue hardship, the factors considered shall include:

(i) The identifiable cost of the accommodation, including the costs of loss of productivity and of retaining or hiring employees or transferring employees from one facility to another, in relation to the size and operating

cost of the employer.

(ii) The number of individuals who will need the particular accommodation for a sincerely held religious observance or practice.

(iii) For an employer with multiple facilities, the degree to which the geographic separateness or administrative or fiscal relationship of the facilities will make the accommodation more difficult or expensive.

(c) An accommodation shall be considered to constitute an undue hardship if it will result in the inability of an employee to perform the essential functions of the position in which the employee is employed.

(d) (i) The provisions of this subsection q. shall be applicable only to reasonable accommodations of religious observances and shall not supersede any definition of undue hardship or standards for reasonable accommodation of the disabilities of employees.

(ii) This subsection q. shall not apply where the uniform application of terms and conditions of attendance to employees is essential to prevent undue hardship to the employer. The burden of proof regarding the applicability of this subparagraph (d) shall be upon the employer.

r. For any employer to take reprisals against any employee for requesting from, discussing with, or disclosing to, any other employee or former employee of the employer, a lawyer from whom the employee seeks legal advice, or any government agency information regarding the job title, occupational category, and rate of compensation, including benefits, of the employee or any other employee or former employee of the employer, or the gender, race, ethnicity, military status, or national origin of the employee or any other employee or former employee of the employer, regardless of whether the request was responded to, or to require, as a condition of employment, any employee or prospective employee to sign a waiver, or to otherwise require an employee or prospective employee to agree, not to make those requests or disclosures. Nothing in this subsection shall be construed to require an employee to disclose such information about the employee herself to any other employee or former employee of the employer or to any authorized representative of the other employee or former employee.

s. For an employer to treat, for employment-related purposes, an employee that the employer knows, or should know, is affected by pregnancy or breastfeeding in a manner less favorable than the treatment of other persons not affected by pregnancy or breastfeeding but similar in their ability or inability to work. In addition, an employer of an employee who is affected by pregnancy shall make available to the employee reasonable accommodation in the workplace, such as bathroom breaks, breaks for increased water intake, periodic rest, assistance with manual labor, job restructuring or modified work schedules, and temporary transfers to less strenuous or hazardous work, for needs related to the pregnancy when the employee, based on the advice of the employee's physician, requests the accommodation, and, in the case of an employee breast feeding the employee's infant child, the accommodation shall include reasonable break time each day to the employee and a suitable room or other location with privacy, other than a toilet stall, in close proximity to the work area for the employee to express breast milk for the child, unless the employer can demonstrate that providing the accommodation would be an undue hardship on the business operations of the employer. The employer shall not in any way penalize the employee in terms, conditions, or privileges of employment for requesting or using the accommodation. Workplace accommodation provided pursuant to this subsection and paid or unpaid leave provided to an employee affected by pregnancy or breastfeeding shall not be provided in a manner less favorable than accommodations or leave provided to other employees not affected by pregnancy or breastfeeding but similar in their ability or inability to work. This subsection shall not be construed as otherwise increasing or decreasing any employee's rights under law to paid or unpaid leave in connection with pregnancy or breastfeeding.

For the purposes of this section "pregnancy or breastfeeding" means pregnancy, childbirth, and breast feeding or expressing milk for breastfeeding, or medical conditions related to pregnancy, childbirth, or breastfeeding, including recovery from childbirth.

For the purposes of this subsection, in determining whether an accommodation would impose undue hardship on the operation of an employer's business, the factors to be considered include: the overall size of the employer's business with respect to the number of employees, number and type of facilities, and size of budget; the type of the employer's operations, including the composition and structure of the employer's workforce; the nature and cost of the accommodation needed, taking into consideration the availability of tax credits, tax deductions, and outside funding; and the extent to which the accommodation would involve waiver of an essential requirement of a job as opposed to a tangential or non-business necessity requirement.

t. For an employer to pay any of its employees who is a member of a protected class at a rate of compensation, including benefits, which is less than the rate paid by the employer to employees who are not members of the protected class for substantially similar work, when viewed as a composite of skill, effort, and responsibility. An employer who is paying a rate of compensation in violation of this subsection shall not reduce the rate of compensation of any employee in order to comply with this subsection. An employer may pay a different rate of compensation only if the employer demonstrates that the differential is made pursuant to a seniority system, a merit system, or the employer demonstrates:

(1) That the differential is based on one or more legitimate, bona fide factors other than the characteristics of members

of the protected class, such as training, education or experience, or the quantity or quality of production;

(2) That the factor or factors are not based on, and do not perpetuate, a differential in compensation based on sex or any other characteristic of members of a protected class;

(3) That each of the factors is applied reasonably;

(4) That one or more of the factors account for the entire wage differential; and

(5) That the factors are job-related with respect to the position in question and based on a legitimate business necessity. A factor based on business necessity shall not apply if it is demonstrated that there are alternative business practices that would serve the same business purpose without producing the wage differential.

Comparisons of wage rates shall be based on wage rates in all of an employer's operations or facilities. For the purposes of this subsection, "member of a protected class" means an employee who has one or more characteristics, including race, creed, color, national origin, nationality, ancestry, age, marital status, civil union status, domestic partnership status, affectional or sexual orientation, genetic information, pregnancy, sex, gender identity or expression, disability, or atypical hereditary cellular or blood trait of any individual, or service in the Armed Forces of the United States or liability for service in the Armed Forces of the United States, for which subsection a. of this section prohibits an employer from refusing to hire or employ or barring or discharging or requiring to retire from employment or discriminating against the individual in compensation or in terms, conditions or privileges of employment.

L.1945, c.169, s.11; amended 1949, c.11, s.7; 1951, c.64, s.6; 1961, c.106, s.4; 1962, c.37, ss.7,9; 1962, c.175; 1966, c.17, s.4; 1970, c.80, s.14; 1973, c.276; 1975, c.35; 1977, c.96, s.2; 1977, c.122, s.2; 1979, c.86, s.2; 1981, c.185, s.2; 1985, c.73, s.3; 1991, c.519, s.8; 1992, c.146, s.9; 1996, c.126, s.5; 1997, c.179; 2002, c.82, s.3; 2003, c.180, s.12; 2003, c.246, s.12; 2006, c.100, s.9; 2006, c.103, s.88; 2007, c.325, s.2; 2013, c.154; 2013, c.220, s.2; 2017, c.184, s.3; 2017, c.263; 2018, c.9, s.2; 2019, c.436, s.3; 2021, c.248, s.2; 2025, c.251, s.5; 2025, c.307, s.7.

N.M. Stat. Ann. § 28-1-7

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (1).

Unlawful discriminatory practice (current text, retrieved 2026-10-29)

It is an unlawful discriminatory practice for:

A. an employer, unless based on a bona fide occupational qualification or other statutory prohibition, to refuse to hire, to discharge, to promote or demote or to discriminate in matters of compensation, terms, conditions or privileges of employment against any person otherwise qualified because of race, age, religion, color, national origin, ancestry, sex, sexual orientation, gender, gender identity, pregnancy, childbirth or condition related to pregnancy or childbirth, physical or mental disability, serious medical condition or military status, or, if the employer has fifty or more employees, spousal affiliation; provided, however, that 29 U.S.C. Section 631(c)(1) and (2) shall apply to discrimination based on age;

B. a labor organization to exclude a person or to expel or otherwise discriminate against any of its members or against any employer or employee because of race, religion, color, national origin, ancestry, sex, sexual orientation, gender, gender identity, pregnancy, childbirth or condition related to pregnancy or childbirth, spousal affiliation, physical or mental disability, serious medical condition or military status;

C. any employer, labor organization or joint apprenticeship committee to refuse to admit or employ any person in any program established to provide an apprenticeship or other training or retraining because of race, religion, color, national origin, ancestry, sex, sexual orientation, gender, gender identity, pregnancy, childbirth or condition related to pregnancy or childbirth, physical or mental disability, serious medical condition or military status, or, if the employer has fifty or more employees, spousal affiliation;

D. any person, employer, employment agency or labor organization to print or circulate or cause to be printed or circulated any statement, advertisement or publication, to use any form of application for employment or membership or to make any inquiry regarding prospective membership or employment that expresses, directly or indirectly, any limitation, specification or discrimination as to race, color, religion, national origin, ancestry, sex, sexual orientation, gender, gender identity, pregnancy, childbirth or condition related to pregnancy or childbirth, physical or mental disability, serious medical condition or military status, or, if the employer has fifty or more employees, spousal affiliation, unless based on a bona fide occupational qualification;

E. an employment agency to refuse to list and properly classify for employment or refer a person for employment in a known available job, for which the person is otherwise qualified, because of race, religion, color, national origin, ancestry, sex, sexual orientation, gender, gender identity, pregnancy, childbirth or condition related to pregnancy or childbirth, spousal affiliation, physical or mental disability or serious medical condition, unless based on a bona fide occupational qualification, or to comply with a request from an employer for referral of applicants for employment if the request indicates, either directly or indirectly, that the employer discriminates in employment on the basis of race, religion, color, national origin, ancestry, sex, sexual orientation, gender, gender identity, pregnancy, childbirth or condition related to pregnancy or childbirth, spousal affiliation, physical or mental disability, serious medical condition, unless based on a bona fide occupational qualification, or military status;

F. any person in any public accommodation to make a distinction, directly or indirectly, in offering or refusing to offer its services, facilities, accommodations or goods to any person because of race, religion, color, national origin, ancestry, sex, sexual orientation, gender, gender identity, pregnancy, childbirth or condition related to pregnancy or childbirth, spousal affiliation, physical or mental disability or military status; provided that the physical or mental disability is unrelated to a person's ability to acquire or rent and maintain particular real property or housing accommodation;

G. any person to:

(1) refuse to sell, rent, assign, lease or sublease or offer for sale, rental, lease, assignment or sublease any housing accommodation or real property to any person or to refuse to negotiate for the sale, rental, lease, assignment or sublease of any housing accommodation or real property to any person because of race, religion, color, national origin, ancestry, sex, sexual orientation, gender, gender identity, pregnancy, childbirth or condition related to pregnancy or childbirth, spousal affiliation, physical or mental disability or military status; provided that the physical or mental disability is unrelated to a person's ability to acquire or rent and maintain particular real property or housing accommodation;

(2) discriminate against any person in the terms, conditions or privileges of the sale, rental, assignment, lease or sublease of any housing accommodation or real property or in the provision of facilities or services in connection therewith because of race, religion, color, national origin, ancestry, sex, sexual orientation, gender, gender identity, pregnancy, childbirth or condition related to pregnancy or childbirth, spousal affiliation, physical or mental disability or military status; provided that the physical or mental disability is unrelated to a person's ability to acquire or rent and maintain particular real property or housing accommodation; or

(3) print, circulate, display or mail or cause to be printed, circulated, displayed or mailed any statement, advertisement, publication or sign or use any form of application for the purchase, rental, lease, assignment or sublease of any housing accommodation or real property or to make any record or inquiry regarding the prospective purchase, rental, lease, assignment or sublease of any housing accommodation or real property that expresses any preference, limitation or discrimination as to race, religion, color, national origin, ancestry, sex, sexual orientation, gender, gender identity, pregnancy, childbirth or condition related to pregnancy or childbirth, spousal affiliation, physical or mental disability or military status; provided that the physical or mental disability is unrelated to a person's ability to acquire or rent and maintain particular real property or housing accommodation;

H. any person to whom application is made either for financial assistance for the acquisition, construction, rehabilitation, repair or maintenance of any housing accommodation or real property or for any type of consumer credit, including financial assistance for the acquisition of any consumer good as defined by Section 55-9-102 NMSA 1978, to:

(1) consider the race, religion, color, national origin, ancestry, sex, sexual orientation, gender, gender identity, pregnancy, childbirth or condition related to pregnancy or childbirth, spousal affiliation or physical or mental disability of any individual in the granting, withholding, extending, modifying or renewing or in the fixing of the rates, terms, conditions or provisions of any financial assistance or in the extension of services in connection with the request for financial assistance; or

(2) use any form of application for financial assistance or to make any record or inquiry in connection with applications for financial assistance that expresses, directly or indirectly, any limitation, specification or discrimination as to race, religion, color, national origin, ancestry, sex, sexual orientation, gender, gender identity, pregnancy, childbirth or condition related to pregnancy or childbirth, spousal affiliation or physical or mental disability;

I. any person or employer to:

(1) aid, abet, incite, compel or coerce the doing of any unlawful discriminatory practice or to attempt to do so;

(2) engage in any form of threats, reprisal or discrimination against any person who has opposed any unlawful discriminatory practice or has filed a complaint, testified or participated in any proceeding under the Human Rights Act; or

(3) willfully obstruct or prevent any person from complying with the provisions of the Human Rights Act or to resist, prevent, impede or interfere with the commission or any of its members, staff or representatives in the performance of their duties under the Human Rights Act;

J. any employer to refuse or fail to accommodate a person's physical or mental disability or serious medical condition, unless such accommodation is unreasonable or an undue hardship;

K. any employer to refuse or fail to make reasonable accommodation for an employee or job applicant with a need arising from pregnancy, childbirth or condition related to pregnancy or childbirth;

L. any employer to require an employee with a need arising from pregnancy, childbirth or condition related to pregnancy or childbirth to take paid or unpaid leave if another reasonable accommodation can be provided unless the employee voluntarily requests to be placed on leave or the employee is placed on leave pursuant to federal law; or

M. a governmental entity or a public contractor to refuse or otherwise limit or put conditions on services to a person because of race, age, religion, color, national origin, ancestry, sex, sexual orientation, gender, gender identity, pregnancy, childbirth or condition related to pregnancy or childbirth, physical or mental disability, serious medical condition or

spousal affiliation; provided that nothing in this subsection shall be construed to require a governmental entity or a public contractor to provide services or programs beyond services or programs to the specific populations that the governmental entity or public contractor is tasked with serving.

History: 1953 Comp., § 4-33-7, enacted by Laws 1969, ch. 196, § 7; 1973, ch. 58, § 1; 1973, ch. 155, § 2; 1975, ch. 62, § 1; 1978 Comp., 28-1-7; 1983, ch. 241, § 2; 1987, ch. 76, § 2; 1995, ch. 125, § 1; 2001, ch. 347, § 1; 2003, ch. 383, § 2; 2004, ch. 115, § 1; 2019, ch. 96, § 1; 2020, ch. 49, § 2; 2023, ch. 29, § 2; 2024, ch. 21, § 5.

Nev. Rev. Stat. § 118.100

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Prohibited acts and practices (current text, 2026R1 edition; retrieved 2026-10-29)

A person shall not, because of race, religious creed, color, national origin, disability, sexual orientation, gender identity or expression, ancestry, familial status or sex:

1. Refuse to sell or rent or refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person.

2. Discriminate against any person in the terms, conditions or privileges of sale or rental of a dwelling, including the amount of breakage or brokerage fees, deposits or other undue penalties, or in the provision of services or facilities in connection therewith.

3. Make, print or publish, or cause to be made, printed or published, any notice, statement or advertisement with respect to the sale or rental of a dwelling that indicates any preference, limitation or discrimination, or an intention to make any preference, limitation or discrimination. As used in this subsection, "dwelling" includes a house, room or unit described in subsection 2 or 3 of NRS 118.060.

4. Represent to any person because of race, religious creed, color, national origin, disability, sexual orientation, gender identity or expression, ancestry, familial status or sex that any dwelling is not available for inspection, sale or rental when the dwelling is in fact so available.

5. For profit, induce or attempt to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of a person of a particular race, religious creed, color, national origin, disability, sexual orientation, gender identity or expression, ancestry, familial status or sex.

6. Coerce, intimidate, threaten or interfere with any person in the exercise or enjoyment of, or on account of that person having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected in this chapter.

(Added to NRS by 1971, 731; A 1973, 195; 1991, 1020, 1980; 1995, 405; 1997, 51; 2011, 868)

Nev. Rev. Stat. § 651.070

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

All persons entitled to equal enjoyment of places of public accommodation (current text, 2026R1 edition; retrieved 2026-10-29)

All persons are entitled to the full and equal enjoyment of the goods, services, facilities, privileges, advantages and accommodations of any place of public accommodation, without discrimination or segregation on the ground of race, color, religion, national origin, disability, sexual orientation, sex, or gender identity or expression.

(Added to NRS by 1965, 689; A 1969, 587; 1991, 1028; 2009, 717; 2011, 876)

N.Y. Const. art. XXXVIII

Cited by the petitioners 0 times (0 filings) and their amici 4 (2); by the respondent 0 (0) and its amici 0 (0).

Text not stored locally (not in CNS.xml (renumbered or repealed since, or a cite we misread)).

N.Y. Civ. Rights Law § 40-c

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discrimination (current text, retrieved 2026-10-29)

1. All persons within the jurisdiction of this state shall be entitled to the equal protection of the laws of this state or any subdivision thereof.

2. No person shall, because of race, creed, color, national origin, sex, marital status, sexual orientation, gender identity or expression, or disability, as such term is defined in section two hundred ninety-two of the executive law, be subjected to any discrimination in his or her civil rights, or to any harassment, as defined in section 240.25 of the penal law, in the exercise thereof, by any other person or by any firm, corporation or institution, or by the state or any agency or subdivision of the state.

N.Y. Exec. Law § 291

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Equality of opportunity a civil right (current text, retrieved 2026-10-28)

1. The opportunity to obtain employment without discrimination because of age, race, creed, color, national origin, sexual orientation, gender identity or expression, military status, sex, marital status, or disability, is hereby recognized as and declared to be a civil right.

2. The opportunity to obtain education, the use of places of public accommodation and the ownership, use and occupancy of housing accommodations and commercial space without discrimination because of age, race, creed, color, national origin, sexual orientation, gender identity or expression, military status, sex, marital status, or disability, as specified in section two hundred ninety-six of this article, is hereby recognized as and declared to be a civil right.

3. The opportunity to obtain medical treatment of an infant prematurely born alive in the course of an abortion shall be the same as the rights of an infant born spontaneously.

N.Y. Exec. Law § 292

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Definitions (current text, retrieved 2026-10-28)

When used in this article:

1. The term "person" includes one or more individuals, partnerships, associations, corporations, legal representatives, trustees, trustees in bankruptcy, or receivers.

2. The term "employment agency" includes any person undertaking to procure employees or opportunities to work.

3. The term "labor organization" includes any organization which exists and is constituted for the purpose, in whole or in part, of collective bargaining or of dealing with employers concerning grievances, terms or conditions of employment, or of other mutual aid or protection in connection with employment.

4. The term "unlawful discriminatory practice" includes only those practices specified in sections two hundred ninety-six, two hundred ninety-six-a, two hundred ninety-six-c and two hundred ninety-six-d of this article.

5. The term "employer" shall include all employers within the state. For the purposes of this article, (a) the state of New York shall be considered an employer of any employee or official, including any elected official, of the New York state executive, legislature, or judiciary, including persons serving in any judicial capacity, and persons serving on the staff of any elected official in New York state,

(b) a city, county, town, village or other political subdivision of the state of New York shall be considered an employer of any employee or official, including any elected official, of such locality's executive, legislature or judiciary, including persons serving in any local judicial capacity, and persons serving on the staff of any local elected official.

6. The term "employee" in this article does not include any individual employed by his or her parents, spouse, or child.

7. The term "commissioner", unless a different meaning clearly appears from the context, means the state commissioner of human rights; and the term "division" means the state division of human rights created by this article.

8. The term "national origin" shall, for the purposes of this article, include "ancestry."

9. The term "place of public accommodation, resort or amusement" shall include, regardless of whether the owner or operator of such place is a state or local government entity or a private individual or entity, except as hereinafter specified, all places included in the meaning of such terms as: inns, taverns, road houses, hotels, motels, whether conducted for the entertainment of transient guests or for the accommodation of those seeking health, recreation or rest, or restaurants, or eating houses, or any place where food is sold for consumption on the premises; buffets, saloons, barrooms, or any store, park or enclosure where spirituous or malt liquors are sold; ice cream parlors, confectionaries, soda fountains, and all stores where ice cream, ice and fruit preparations or their derivatives, or where beverages of any kind are retailed for consumption on the premises; wholesale and retail stores and establishments dealing with goods or services of any kind, dispensaries, clinics, hospitals, bath-houses, swimming pools, laundries and all other cleaning establishments, barber shops, beauty parlors, theatres, motion picture houses, airdromes, roof gardens, music halls, race courses, skating rinks, amusement and recreation parks, trailer camps, resort camps, fairs, bowling alleys, golf courses, gymnasiums, shooting galleries, billiard and pool parlors; garages, all public conveyances operated on land or water or in the air, as well as the stations and terminals thereof; travel or tour advisory services, agencies or bureaus; public halls, public rooms, public elevators, and any public areas of any building or structure. Such term shall not include kindergartens, primary and secondary schools, high schools, academies, colleges and universities, extension courses, and all educational institutions under the supervision of the regents of the state of New York; any such kindergarten, primary and secondary school, academy, college, university, professional school, extension course or other education facility, supported in whole or in part by public funds or by contributions solicited from the general public; or any institution, club or place of accommodation which proves that it is in its nature distinctly private. In no event shall an institution, club or place of accommodation be considered in its nature distinctly private if it has more than one hundred members, provides regular meal service and regularly receives payment for dues, fees, use of space, facilities, services, meals or

beverages directly or indirectly from or on behalf of a nonmember for the furtherance of trade or business. An institution, club, or place of accommodation which is not deemed distinctly private pursuant to this subdivision may nevertheless apply such selective criteria as it chooses in the use of its facilities, in evaluating applicants for membership and in the conduct of its activities, so long as such selective criteria do not constitute discriminatory practices under this article or any other provision of law. For the purposes of this section, a corporation incorporated under the benevolent orders law or described in the benevolent orders law but formed under any other law of this state or a religious corporation incorporated under the education law or the religious corporations law shall be deemed to be in its nature distinctly private.

No institution, club, organization or place of accommodation which sponsors or conducts any amateur athletic contest or sparring exhibition and advertises or bills such contest or exhibition as a New York state championship contest or uses the words "New York state" in its announcements shall be deemed a private exhibition within the meaning of this section.

10. The term "housing accommodation" includes any building, structure, or portion thereof which is used or occupied or is intended, arranged or designed to be used or occupied, as the home, residence or sleeping place of one or more human beings. The term "housing accommodation" also includes any accessory dwelling unit, defined as any attached or a detached residential dwelling unit that provides complete independent living facilities for one or more persons which is located on a lot with a proposed or existing primary residence and shall include permanent provisions for living, sleeping, eating, cooking, and sanitation on the same lot as the single-family or multi-family dwelling.

11. The term "publicly-assisted housing accommodations" shall include all housing accommodations within the state of New York in

(a) public housing,

(b) housing operated by housing companies under the supervision of the commissioner of housing,

(c) housing constructed after July first, nineteen hundred fifty, within the state of New York

(1) which is exempt in whole or in part from taxes levied by the state or any of its political subdivisions,

(2) which is constructed on land sold below cost by the state or any of its political subdivisions or any agency thereof, pursuant to the federal housing act of nineteen hundred forty-nine,

(3) which is constructed in whole or in part on property acquired or assembled by the state or any of its political subdivisions or any agency thereof through the power of condemnation or otherwise for the purpose of such construction, or

(4) for the acquisition, construction, repair or maintenance of which the state or any of its political subdivisions or any agency thereof supplies funds or other financial assistance,

(d) housing which is located in a multiple dwelling, the acquisition, construction, rehabilitation, repair or maintenance of which is, after July first, nineteen hundred fifty-five, financed in whole or in part by a loan, whether or not secured by a mortgage, the repayment of which is guaranteed or insured by the federal government or any agency thereof, or the state or any of its political subdivisions or any agency thereof, provided that such a housing accommodation shall be deemed to be publicly assisted only during the life of such loan and such guaranty or insurance; and

(e) housing which is offered for sale by a person who owns or otherwise controls the sale of ten or more housing accommodations located on land that is contiguous (exclusive of public streets), if (1) the acquisition, construction, rehabilitation, repair or maintenance of such housing accommodations is, after July first, nineteen hundred fifty-five, financed in whole or in part by a loan, whether or not secured by a mortgage, the repayment of which is guaranteed or insured by the federal government or any agency thereof, or the state or any of its political subdivisions or any agency thereof, provided that such a housing accommodation shall be deemed to be publicly assisted only during the life of such loan and guaranty or insurance, or (2) a commitment, issued by a government agency after July first, nineteen hundred fifty-five, is outstanding that acquisition of such housing accommodations may be financed in whole or in part by a loan, whether or not secured by a mortgage, the repayment of which is guaranteed or insured by the federal government or any agency thereof, or the state or any of its political subdivisions or any agency thereof.

12. The term "multiple dwelling", as herein used, means a dwelling which is occupied, as a rule, for permanent residence purposes and which is either sold, rented, leased, let or hired out, to be occupied as the residence or home of three or more families living independently of each other. A "multiple dwelling" shall not be deemed to include a hospital, convent, monastery, asylum or public institution, or a fireproof building used wholly for commercial purposes except for not more than one janitor's apartment and not more than one penthouse occupied by not more than two families. The term "family," as used herein, means either a person occupying a dwelling and maintaining a household, with not more than four boarders, roomers or lodgers, or two or more persons occupying a dwelling, living together and maintaining a common household, with not more than four boarders, roomers or lodgers. A "boarder," "roomer" or "lodger" residing with a family means a person living within the household who pays a consideration for such residence and does not occupy such space within the household as an incident of employment therein. Within the context of this definition, the terms "multiple dwelling" and "multi-family dwelling" are interchangeable.

13. The term "commercial space" means any space in a building, structure, or portion thereof which is used or occupied

or is intended, arranged or designed to be used or occupied for the manufacture, sale, resale, processing, reprocessing, displaying, storing, handling, garaging or distribution of personal property; and any space which is used or occupied, or is intended, arranged or designed to be used or occupied as a separate business or professional unit or office in any building, structure or portion thereof.

14. The term "real estate broker" means any person, firm or corporation who, for another and for a fee, commission or other valuable consideration, lists for sale, sells, at auction or otherwise, exchanges, buys or rents, or offers or attempts to negotiate a sale, at auction or otherwise, exchange, purchase or rental of an estate or interest in real estate, or collects or offers or attempts to collect rent for the use of real estate, or negotiates, or offers or attempts to negotiate, a loan secured or to be secured by a mortgage or other incumbrance upon or transfer of real estate. In the sale of lots pursuant to the provisions of article nine-a of the real property law, the term "real estate broker" shall also include any person, partnership, association or corporation employed by or on behalf of the owner or owners of lots or other parcels of real estate, at a stated salary, or upon a commission, or upon a salary and commission, or otherwise, to sell such real estate, or any parts thereof, in lots or other parcels, and who shall sell or exchange, or offer or attempt or agree to negotiate the sale or exchange, of any such lot or parcel of real estate.

15. The term "real estate salesperson" means a person employed by a licensed real estate broker to list for sale, sell or offer for sale, at auction or otherwise, to buy or offer to buy or to negotiate the purchase or sale or exchange of real estate, or to negotiate a loan on real estate, or to lease or rent or offer to lease, rent or place for rent any real estate, or who collects or offers or attempts to collect rent for the use of real estate for or in behalf of such real estate broker.

16. The term "necessary party" means any person who has such an interest in the subject matter of a proceeding under this article, or whose rights are so involved, that no complete and effective disposition can be made without his or her participation in the proceeding.

17. The term "parties to the proceeding" means the complainant, respondent, necessary parties and persons permitted to intervene as parties in a proceeding with respect to a complaint filed under this article.

18. The term "hearing examiner" means an employee of the division who shall be assigned for stated periods to no other work than the conduct of hearings under this article;

19. The term "discrimination" shall include segregation and separation.

20. The term "credit", when used in this article means the right conferred upon a person by a creditor to incur debt and defer its payment, whether or not any interest or finance charge is made for the exercise of this right.

21. The term "disability" means (a) a physical, mental or medical impairment resulting from anatomical, physiological, genetic or neurological conditions which prevents the exercise of a normal bodily function or is demonstrable by medically accepted clinical or laboratory diagnostic techniques or (b) a record of such an impairment or (c) a condition regarded by others as such an impairment, provided, however, that in all provisions of this article dealing with employment, the term shall be limited to disabilities which, upon the provision of reasonable accommodations, do not prevent the complainant from performing in a reasonable manner the activities involved in the job or occupation sought or held.

21-a. "Predisposing genetic characteristic" shall mean any inherited gene or chromosome, or alteration thereof, and determined by a genetic test or inferred from information derived from an individual or family member that is scientifically or medically believed to predispose an individual or the offspring of that individual to a disease or disability, or to be associated with a statistically significant increased risk of development of a physical or mental disease or disability.

21-b. "Genetic test" shall mean a test for determining the presence or absence of an inherited genetic characteristic in an individual, including tests of nucleic acids such as DNA, RNA and mitochondrial DNA, chromosomes or proteins in order to identify a predisposing genetic characteristic.

21-e. The term "reasonable accommodation" means actions taken which permit an employee, prospective employee or member with a disability, or a pregnancy-related condition, to perform in a reasonable manner the activities involved in the job or occupation sought or held and include, but are not limited to, provision of an accessible worksite, acquisition or modification of equipment, support services for persons with impaired hearing or vision, job restructuring and modified work schedules; provided, however, that such actions do not impose an undue hardship on the business, program or enterprise of the entity from which action is requested.

21-f. The term "pregnancy-related condition" means a medical condition related to pregnancy or childbirth that inhibits the exercise of a normal bodily function or is demonstrable by medically accepted clinical or laboratory diagnostic techniques, including but not limited to lactation; provided, however, that in all provisions of this article dealing with employment, the term shall be limited to conditions which, upon the provision of reasonable accommodations, do not prevent the complainant from performing in a reasonable manner the activities involved in the job or occupation sought or held; and provided further, however, that pregnancy-related conditions shall be treated as temporary disabilities for the purposes of this article.

22. The term "creditor", when used in this article, means any person or financial institution which does business in this state and which extends credit or arranges for the extension of credit by others. The term creditor includes, but is not limited to, banks and trust companies, private bankers, foreign banking corporations and national banks, savings

banks, licensed lenders, savings and loan associations, credit unions, sales finance companies, insurance premium finance agencies, insurers, credit card issuers, mortgage brokers, mortgage companies, mortgage insurance corporations, wholesale and retail merchants and factors.

23. The term "credit reporting bureau", when used in this article, means any person doing business in this state who regularly makes credit reports, as such term is defined by subdivision e of section three hundred seventy-one of the general business law.

24. The term "regulated creditor", when used in this article, means any creditor, as herein defined, which has received its charter, license, or organization certificate, as the case may be, from the department of financial services or which is otherwise subject to the supervision of the department of financial services.

25. The term "superintendent", when used in this article, means the head of the department of financial services appointed pursuant to section two hundred two of the financial services law.

26. The term "familial status", when used in this article, means:

(a) any person who is pregnant or has a child or is in the process of securing legal custody of any individual who has not attained the age of eighteen years, or

(b) one or more individuals (who have not attained the age of eighteen years) being domiciled with:

(1) a parent or another person having legal custody of such individual or individuals, or

(2) the designee of such parent.

27. The term "sexual orientation" means heterosexuality, homosexuality, bisexuality or asexuality, whether actual or perceived.

28. The term "military status" when used in this article means a person's participation in the military service of the United States or the military service of the state, including but not limited to, the armed forces of the United States, the army national guard, the air national guard, the New York naval militia, the New York guard, and such additional forces as may be created by the federal or state government as authorized by law.

29. The term "reserve armed forces", when used in this article, means service other than permanent, full-time service in the military forces of the United States including but not limited to service in the United States Army Reserve, the United States Naval Reserve, the United States Marine Corps Reserve, the United States Air Force Reserve, or the United States Coast Guard Reserve.

30. The term "organized militia of the state", when used in this article, means service other than permanent, full-time service in the military forces of the state of New York including but not limited to the New York army national guard, the New York air national guard, the New York naval militia and the New York guard.

34. The term "victim of domestic violence" shall have the same meaning as is ascribed to such term by section four hundred fifty-nine-a of the social services law.

35. The term "gender identity or expression" means a person's actual or perceived gender-related identity, appearance, behavior, expression, or other gender-related characteristic regardless of the sex assigned to that person at birth, including, but not limited to, the status of being transgender.

36. The term "lawful source of income" shall include, but not be limited to, child support, alimony, foster care subsidies, income derived from social security, or any form of federal, state, or local public assistance or housing assistance including, but not limited to, section 8 vouchers, or any other form of housing assistance payment or credit whether or not such income or credit is paid or attributed directly to a landlord, and any other forms of lawful income. The provisions of this subdivision shall not be construed to prohibit the use of criteria or qualifications of eligibility for the sale, rental, leasing or occupancy of publicly-assisted housing accommodations where such criteria or qualifications are required to comply with federal or state law, or are necessary to obtain the benefits of a federal or state program. A publicly assisted housing accommodation may include eligibility criteria in statements, advertisements, publications or applications, and may make inquiry or request information to the extent necessary to determine eligibility.

37. The term "race" shall, for the purposes of this article include traits historically associated with race, including but not limited to, hair texture and protective hairstyles.

38. The term "private employer" as used in section two hundred ninety-seven of this article shall include any person, company, corporation, labor organization or association. It shall not include the state or any local subdivision thereof, or any state or local department, agency, board or commission.

39. The term "protective hairstyles" shall include, but not be limited to, such hairstyles as braids, locks, and twists.

40. The term "educational institution" shall mean:

(a) any education corporation or association which holds itself out to the public to be non-sectarian and exempt from taxation pursuant to the provisions of article four of the real property tax law; or

(b) any for-profit entity that operates a college, university, licensed private career school or certified English as a second language school which holds itself out to the public to be non-sectarian and which is not exempt from taxation pursuant to the provisions of article four of the real property tax law; or

(c) any public school, including any school district, board of cooperative educational services, public college or

public university.

41. The term "citizenship or immigration status" means the citizenship of any person or the immigration status of any person who is not a citizen of the United States. Nothing in this article shall preclude verification of citizenship or immigration status where required by law, nor shall an adverse action based on verification of citizenship or immigration status be prohibited where such adverse action is required by law.

42. The term "real estate appraisal" shall have the same meaning as in subdivision two of section one hundred sixty-a of this chapter. Provided, however, that (a) real estate appraisals subject to this article include those performed by any person or entity whose business holds itself out as engaging in residential real estate appraisals, regardless of whether or not such person or entity is certified or licensed to provide real estate appraisals pursuant to the provisions of article six-E of this chapter, and (b) for the purposes of this article, the real estate appraisal includes all oral communications and all written comments and other documents submitted as support for the estimate, opinion of value, or analysis.

N.Y. Exec. Law § 296

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (2).

Unlawful discriminatory practices (current text, retrieved 2026-10-28)

1. It shall be an unlawful discriminatory practice:

(a) For an employer or licensing agency, because of an individual's age, race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, disability, predisposing genetic characteristics, familial status, marital status, or status as a victim of domestic violence, to refuse to hire or employ or to bar or to discharge from employment such individual or to discriminate against such individual in compensation or in terms, conditions or privileges of employment.

(b) For an employment agency to discriminate against any individual because of age, race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, disability, predisposing genetic characteristics, familial status, marital status, or status as a victim of domestic violence, in receiving, classifying, disposing or otherwise acting upon applications for its services or in referring an applicant or applicants to an employer or employers.

(c) For a labor organization, because of the age, race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, disability, predisposing genetic characteristics, familial status, marital status, or status as a victim of domestic violence, of any individual, to exclude or to expel from its membership such individual or to discriminate in any way against any of its members or against any employer or any individual employed by an employer.

(d) For any employer or employment agency to print or circulate or cause to be printed or circulated any statement, advertisement or publication, or to use any form of application for employment or to make any inquiry in connection with prospective employment, which expresses directly or indirectly, any limitation, specification or discrimination as to age, race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, disability, predisposing genetic characteristics, familial status, marital status, or status as a victim of domestic violence, or any intent to make any such limitation, specification or discrimination, unless based upon a bona fide occupational qualification; provided, however, that neither this paragraph nor any provision of this chapter or other law shall be construed to prohibit the department of civil service or the department of personnel of any city containing more than one county from requesting information from applicants for civil service examinations concerning any of the aforementioned characteristics, other than sexual orientation, for the purpose of conducting studies to identify and resolve possible problems in recruitment and testing of members of minority groups to ensure the fairest possible and equal opportunities for employment in the civil service for all persons, regardless of age, race, creed, color, national origin, citizenship or immigration status, sexual orientation or gender identity or expression, military status, sex, disability, predisposing genetic characteristics, familial status, or marital status.

(e) For any employer, labor organization or employment agency to discharge, expel or otherwise discriminate against any person because he or she has opposed any practices forbidden under this article or because he or she has filed a complaint, testified or assisted in any proceeding under this article.

(f) Nothing in this subdivision shall affect any restrictions upon the activities of persons licensed by the state liquor authority with respect to persons under twenty-one years of age.

(g) For an employer to compel an employee who is pregnant to take a leave of absence, unless the employee is prevented by such pregnancy from performing the activities involved in the job or occupation in a reasonable manner.

(h) For an employer, licensing agency, employment agency or labor organization to subject any individual to harassment because of an individual's age, race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, disability, predisposing genetic characteristics, familial status, marital status, status as a victim of domestic violence, or because the individual has opposed any practices forbidden under this article or because the individual has filed a complaint, testified or assisted in any proceeding under this

article, regardless of whether such harassment would be considered severe or pervasive under precedent applied to harassment claims. Such harassment is an unlawful discriminatory practice when it subjects an individual to inferior terms, conditions or privileges of employment because of the individual's membership in one or more of these protected categories. The fact that such individual did not make a complaint about the harassment to such employer, licensing agency, employment agency or labor organization shall not be determinative of whether such employer, licensing agency, employment agency or labor organization shall be liable. Nothing in this section shall imply that an employee must demonstrate the existence of an individual to whom the employee's treatment must be compared. It shall be an affirmative defense to liability under this subdivision that the harassing conduct does not rise above the level of what a reasonable victim of discrimination with the same protected characteristic or characteristics would consider petty slights or trivial inconveniences.

1-a. It shall be an unlawful discriminatory practice for an employer, labor organization, employment agency or any joint labor-management committee controlling apprentice training programs:

(a) To select persons for an apprentice training program registered with the state of New York on any basis other than their qualifications, as determined by objective criteria which permit review;

(b) To deny to or withhold from any person because of race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, age, disability, familial status, marital status, or status as a victim of domestic violence, the right to be admitted to or participate in a guidance program, an apprenticeship training program, on-the-job training program, executive training program, or other occupational training or retraining program;

(c) To discriminate against any person in his or her pursuit of such programs or to discriminate against such a person in the terms, conditions or privileges of such programs because of race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, age, disability, familial status, marital status, or status as a victim of domestic violence;

(d) To print or circulate or cause to be printed or circulated any statement, advertisement or publication, or to use any form of application for such programs or to make any inquiry in connection with such program which expresses, directly or indirectly, any limitation, specification or discrimination as to race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, age, disability, familial status, marital status, or status as a victim of domestic violence, or any intention to make any such limitation, specification or discrimination, unless based on a bona fide occupational qualification.

2. (a) It shall be an unlawful discriminatory practice for any person, being the owner, lessee, proprietor, manager, superintendent, agent or employee of any place of public accommodation, resort or amusement, because of the race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, disability, marital status, or status as a victim of domestic violence, of any person, directly or indirectly, to refuse, withhold from or deny to such person any of the accommodations, advantages, facilities or privileges thereof, including the extension of credit, or, directly or indirectly, to publish, circulate, issue, display, post or mail any written or printed communication, notice or advertisement, to the effect that any of the accommodations, advantages, facilities and privileges of any such place shall be refused, withheld from or denied to any person on account of race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, disability or marital status, or that the patronage or custom thereat of any person of or purporting to be of any particular race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex or marital status, or having a disability is unwelcome, objectionable or not acceptable, desired or solicited.

(b) Nothing in this subdivision shall be construed to prevent the barring of any person, because of the sex of such person, from places of public accommodation, resort or amusement if the division grants an exemption based on bona fide considerations of public policy; nor shall this subdivision apply to the rental of rooms in a housing accommodation which restricts such rental to individuals of one sex.

(c) For the purposes of paragraph (a) of this subdivision, "discriminatory practice" includes:

(i) a refusal to make reasonable modifications in policies, practices, or procedures, when such modifications are necessary to afford facilities, privileges, advantages or accommodations to individuals with disabilities, unless such person can demonstrate that making such modifications would fundamentally alter the nature of such facilities, privileges, advantages or accommodations;

(ii) a refusal to take such steps as may be necessary to ensure that no individual with a disability is excluded or denied services because of the absence of auxiliary aids and services, unless such person can demonstrate that taking such steps would fundamentally alter the nature of the facility, privilege, advantage or accommodation being offered or would result in an undue burden;

(iii) a refusal to remove architectural barriers, and communication barriers that are structural in nature, in existing facilities, and transportation barriers in existing vehicles and rail passenger cars used by an establishment for

transporting individuals (not including barriers that can only be removed through the retrofitting of vehicles or rail passenger cars by the installation of a hydraulic or other lift), where such removal is readily achievable;

(iv) where such person is a local or state government entity, a refusal to remove architectural barriers, and communication barriers that are structural in nature, in existing facilities, and transportation barriers in existing vehicles and rail passenger cars used by an establishment for transporting individuals (not including barriers that can only be removed through the retrofitting of vehicles or rail passenger cars by the installation of a hydraulic or other lift), where such removal does not constitute an undue burden; except as set forth in paragraph (e) of this subdivision; nothing in this section would require a public entity to: necessarily make each of its existing facilities accessible to and usable by individuals with disabilities; take any action that would threaten or destroy the historical significance of an historic property; or to make structural changes in existing facilities where other methods are effective in achieving compliance with this section; and

(v) where such person can demonstrate that the removal of a barrier under subparagraph (iii) of this paragraph is not readily achievable, a failure to make such facilities, privileges, advantages or accommodations available through alternative methods if such methods are readily achievable.

(d) For the purposes of this subdivision:

(i) "Readily achievable" means easily accomplishable and able to be carried out without much difficulty or expense. In determining whether an action is readily achievable, factors to be considered include:

(A) the nature and cost of the action needed under this subdivision;

(B) the overall financial resources of the facility or facilities involved in the action; the number of persons employed at such facility; the effect on expenses and resources or the impact otherwise of such action upon the operation of the facility;

(C) the overall financial resources of the place of public accommodation, resort or amusement; the overall size of the business of such a place with respect to the number of its employees; the number, type and location of its facilities; and

(D) the type of operation or operations of the place of public accommodation, resort or amusement, including the composition, structure and functions of the workforce of such place; the geographic separateness, administrative or fiscal relationship of the facility or facilities in question to such place.

(ii) "Auxiliary aids and services" include:

(A) qualified interpreters or other effective methods of making aurally delivered materials available to individuals with hearing impairments;

(B) qualified readers, taped texts or other effective methods of making visually delivered materials available to individuals with visual impairments;

(C) acquisition or modification of equipment or devices; and

(D) other similar services and actions.

(iii) "Undue burden" means significant difficulty or expense. In determining whether an action would result in an undue burden, factors to be considered shall include:

(A) The nature and cost of the action needed under this article;

(B) The overall financial resources of the site or sites involved in the action; the number of persons employed at the site; the effect on expenses and resources; legitimate safety requirements that are necessary for safe operation, including crime prevention measures; or the impact otherwise of the action upon the operation of the site;

(C) The geographic separateness, and the administrative or fiscal relationship of the site or sites in question to any parent corporation or entity;

(D) If applicable, the overall financial resources of any parent corporation or entity; the overall size of the parent corporation or entity with respect to the number of its employees; the number, type, and location of its facilities; and

(E) If applicable, the type of operation or operations of any parent corporation or entity, including the composition, structure, and functions of the workforce of the parent corporation or entity.

(iv) "Reasonable modifications in policies, practices, procedures" includes modification to permit the use of a service animal by a person with a disability, consistent with federal regulations implementing the Americans with Disabilities Act, Title III, at 28 CFR 36.302(c).

(e) Paragraphs (c) and (d) of this subdivision do not apply to any air carrier, the National Railroad Passenger Corporation, or public transportation facilities, vehicles or services owned, leased or operated by the state, a county, city, town or village, or any agency thereof, or by any public benefit corporation or authority.

2-a. It shall be an unlawful discriminatory practice for the owner, lessee, sub-lessee, assignee, or managing agent of publicly-assisted housing accommodations or other person having the right of ownership or possession of or the right to rent or lease such accommodations:

(a) To refuse to sell, rent or lease or otherwise to deny to or withhold from any person or group of persons such housing accommodations because of the race, creed, color, disability, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, age, sex, marital status, status as a victim of domestic violence, lawful source of income or familial status of such person or persons, or to represent that any housing accommodation or land is not available for inspection, sale, rental or lease when in fact it is so available.

(b) To discriminate against any person because of his or her race, creed, color, disability, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, age, sex, marital status, status as a victim of domestic violence, lawful source of income or familial status in the terms, conditions or privileges of any publicly-assisted housing accommodations or in the furnishing of facilities or services in connection therewith.

(c) To cause to be made any written or oral inquiry or record concerning the race, creed, color, disability, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, membership in the reserve armed forces of the United States or in the organized militia of the state, age, sex, marital status, status as a victim of domestic violence, lawful source of income or familial status of a person seeking to rent or lease any publicly-assisted housing accommodation; provided, however, that nothing in this subdivision shall prohibit a member of the reserve armed forces of the United States or in the organized militia of the state from voluntarily disclosing such membership.

(c-1) To print or circulate or cause to be printed or circulated any statement, advertisement or publication, or to use any form of application for the purchase, rental or lease of such housing accommodation or to make any record or inquiry in connection with the prospective purchase, rental or lease of such a housing accommodation which expresses, directly or indirectly, any limitation, specification or discrimination as to race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, age, disability, marital status, status as a victim of domestic violence, lawful source of income or familial status, or any intent to make any such limitation, specification or discrimination.

(d) (1) To refuse to permit, at the expense of the person with a disability, reasonable modifications of existing premises occupied or to be occupied by the said person, if the modifications may be necessary to afford the said person full enjoyment of the premises, in conformity with the provisions of the New York state uniform fire prevention and building code, except that, in the case of a rental, the landlord may, where it is reasonable to do so, condition permission for a modification on the renter's agreeing to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted.

(2) To refuse to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford a person with a disability equal opportunity to use and enjoy a dwelling, including the use of an animal as a reasonable accommodation to alleviate symptoms or effects of a disability, and including reasonable modification to common use portions of the dwelling, or

(3) In connection with the design and construction of covered multi-family dwellings for first occupancy after March thirteenth, nineteen hundred ninety-one, a failure to design and construct dwellings in accordance with the accessibility requirements of the New York state uniform fire prevention and building code, to provide that:

(i) The public use and common use portions of the dwellings are readily accessible to and usable by disabled persons with disabilities;

(ii) All the doors are designed in accordance with the New York state uniform fire prevention and building code to allow passage into and within all premises and are sufficiently wide to allow passage by persons in wheelchairs; and

(iii) All premises within covered multi-family dwelling units contain an accessible route into and through the dwelling; light switches, electrical outlets, thermostats, and other environmental controls are in accessible locations; there are reinforcements in the bathroom walls to allow later installation of grab bars; and there are usable kitchens and bathrooms such that an individual in a wheelchair can maneuver about the space, in conformity with the New York state uniform fire prevention and building code.

(e) Nothing in this subdivision shall restrict the consideration of age in the rental of publicly-assisted housing accommodations if the division grants an exemption based on bona fide considerations of public policy for the purpose of providing for the special needs of a particular age group without the intent of prejudicing other age groups.

(f) Nothing in this subdivision shall be deemed to restrict the rental of rooms in school or college dormitories to individuals of the same sex.

3. (a) It shall be an unlawful discriminatory practice for an employer, licensing agency, employment agency or labor organization to refuse to provide reasonable accommodations to the known disabilities, or pregnancy-related conditions, of an employee, prospective employee or member in connection with a job or occupation sought or held or participation in a training program.

(b) Nothing contained in this subdivision shall be construed to require provision of accommodations which can be demonstrated to impose an undue hardship on the operation of an employer's, licensing agency's, employment agency's or labor organization's business, program or enterprise.

In making such a demonstration with regard to undue hardship the factors to be considered include:

(i) The overall size of the business, program or enterprise with respect to the number of employees, number and type of facilities, and size of budget;

(ii) The type of operation which the business, program or enterprise is engaged in, including the composition and structure of the workforce; and

(iii) The nature and cost of the accommodation needed.

(c) Nothing in this subdivision regarding "reasonable accommodation" or in the chapter of the laws of two thousand fifteen which added this paragraph shall alter, diminish, increase, or create new or additional requirements to accommodate protected classes pursuant to this article other than the additional requirements as explicitly set forth in such chapter of the laws of two thousand fifteen.

(d) The employee must cooperate in providing medical or other information that is necessary to verify the existence of the disability or pregnancy-related condition, or that is necessary for consideration of the accommodation. The employee has a right to have such medical information kept confidential.

3-a. It shall be an unlawful discriminatory practice:

(a) For an employer or licensing agency to refuse to hire or employ or license or to bar or to terminate from employment an individual eighteen years of age or older, or to discriminate against such individual in promotion, compensation or in terms, conditions, or privileges of employment, because of such individual's age.

(b) For any employer, licensing agency or employment agency to print or circulate or cause to be printed or circulated any statement, advertisement or publication, or to use any form of application for employment or to make any inquiry in connection with prospective employment, which expresses, directly or indirectly, any limitation, specification or discrimination on account of age respecting individuals eighteen years of age or older, or any intent to make any such limitation, specification, or discrimination.

(c) For any employer, licensing agency or employment agency to discharge or otherwise discriminate against any person because he or she has opposed any practices forbidden under this article or because he or she has filed a complaint, testified or assisted in any proceeding under this article.

(d) Notwithstanding any other provision of law, no employee shall be subject to termination or retirement from employment on the basis of age, except where age is a bona fide occupational qualification reasonably necessary to the normal operation of a particular business, where the differentiation is based on reasonable factors other than age, or as otherwise specified in paragraphs (e) and (f) of this subdivision or in article fourteen-A of the retirement and social security law.

(e) Nothing contained in this subdivision or in subdivision one of this section shall be construed to prevent the compulsory retirement of any employee who has attained sixty-five years of age, and who, for a two-year period immediately before retirement, is employed in a bona fide executive or a high policymaking position, if such employee is entitled to an immediate nonforfeitable annual retirement benefit from a pension, profit-sharing, savings, or deferred compensation plan, or any combination of such plans, of the employer of such employee, which equals, in the aggregate, at least forty-four thousand dollars; provided that for the purposes of this paragraph only, the term "employer" includes any employer as otherwise defined in this article but does not include (i) the state of New York, (ii) a county, city, town, village or any other political subdivision or civil division of the state, (iii) a school district or any other governmental entity operating a public school, college or university, (iv) a public improvement or special district, (v) a public authority, commission or public benefit corporation, or (vi) any other public corporation, agency, instrumentality or unit of government which exercises governmental power under the laws of the state. In applying the retirement benefit test of this paragraph, if any such retirement benefit is in a form other than a straight life annuity with no ancillary benefits, or if employees contribute to any such plan or make rollover contributions, such benefit shall be adjusted in accordance with rules and regulations promulgated by the division, after an opportunity for public hearing, so that the benefit is the equivalent of a straight life annuity with no ancillary benefits under a plan to which employees do not contribute and under which no rollover contributions are made.

(f) Nothing contained in this subdivision, in subdivision one of this section or in article fourteen-A of the retirement and social security law shall be construed to prevent the compulsory retirement of any employee who has attained seventy years of age and is serving under a contract for unlimited tenure, or a similar arrangement providing for unlimited tenure, at a nonpublic institution of higher education. For purposes of such subdivisions or article, the term "institution of higher education" means an educational institution which (i) admits as regular students only persons having a certificate of graduation from a school providing secondary education, or the recognized equivalent of such a certificate, (ii) is lawfully authorized to provide a program of education beyond secondary education, and (iii) provides an educational program for which it awards a bachelor's degree or provides not less than a two-year program which is acceptable for full credit toward such a degree.

(g) In the event of a conflict between the provisions of this subdivision and the provisions of article fourteen-A of the retirement and social security law, the provisions of article fourteen-A of such law shall be controlling.

But nothing contained in this subdivision, in subdivision one of this section or in article fourteen-A of the retirement and social security law shall be construed to prevent the termination of the employment of any person who, even upon the provision of reasonable accommodations, is physically unable to perform his or her duties or to affect the retirement policy or system of any employer where such policy or system is not merely a subterfuge to evade the purposes of said subdivisions or said article; nor shall anything in such subdivisions or such article be deemed to preclude the varying of insurance coverages according to an employee's age.

The provisions of this subdivision shall not affect any restriction upon the activities of persons licensed by the state liquor authority with respect to persons under twenty-one years of age.

3-b. It shall be an unlawful discriminatory practice for any real estate broker, real estate salesperson or employee or agent thereof or any other individual, corporation, partnership or organization for the purpose of inducing a real estate transaction from which any such person or any of its stockholders or members may benefit financially, to represent that a change has occurred or will or may occur in the composition with respect to race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, disability, marital status, status as a victim of domestic violence, or familial status of the owners or occupants in the block, neighborhood or area in which the real property is located, and to represent, directly or indirectly, that this change will or may result in undesirable consequences in the block, neighborhood or area in which the real property is located, including but not limited to the lowering of property values, an increase in criminal or anti-social behavior, or a decline in the quality of schools or other facilities.

4. It shall be an unlawful discriminatory practice for an educational institution to deny the use of its facilities to any person otherwise qualified, or to permit the harassment of any student or applicant, by reason of his race, color, religion, disability, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, age, marital status, or status as a victim of domestic violence, except that any such institution which establishes or maintains a policy of educating persons of one sex exclusively may admit students of only one sex.

5. (a) It shall be an unlawful discriminatory practice for the owner, lessee, sub-lessee, assignee, or managing agent of, or other person having the right to sell, rent or lease a housing accommodation, constructed or to be constructed, or any agent or employee thereof:

(1) To refuse to sell, rent, lease or otherwise to deny to or withhold from any person or group of persons such a housing accommodation because of the race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, age, disability, marital status, status as a victim of domestic violence, lawful source of income or familial status of such person or persons, or to represent that any housing accommodation or land is not available for inspection, sale, rental or lease when in fact it is so available.

(2) To discriminate against any person because of race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, age, disability, marital status, status as a victim of domestic violence, lawful source of income or familial status in the terms, conditions or privileges of the sale, rental or lease of any such housing accommodation or in the furnishing of facilities or services in connection therewith.

(3) To print or circulate or cause to be printed or circulated any statement, advertisement or publication, or to use any form of application for the purchase, rental or lease of such housing accommodation or to make any record or inquiry in connection with the prospective purchase, rental or lease of such a housing accommodation which expresses, directly or indirectly, any limitation, specification or discrimination as to race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, age, disability, marital status, status as a victim of domestic violence, lawful source of income or familial status, or any intent to make any such limitation, specification or discrimination.

(4) (i) The provisions of subparagraphs one and two of this paragraph shall not apply (1) to the rental of a housing accommodation in a building which contains housing accommodations for not more than two families living independently of each other, if the owner resides in one of such housing accommodations, (2) to the restriction of the rental of all rooms in a housing accommodation to individuals of the same sex or (3) to the rental of a room or rooms in a housing accommodation, if such rental is by the occupant of the housing accommodation or by the owner of the housing accommodation and the owner resides in such housing accommodation or (4) solely with respect to age and familial status to the restriction of the sale, rental or lease of housing accommodations exclusively to persons sixty-two years of age or older and the spouse of any such person, or for housing intended and operated for occupancy by at least one person fifty-five years of age or older per unit. In determining whether housing is intended and operated for occupancy by persons fifty-five years of age or older, Sec. 807(b) (2) (c) (42 U.S.C. 3607 (b) (2) (c)) of the federal Fair Housing Act of 1988, as amended, shall apply. However, such rental property shall no longer be exempt from the provisions of subparagraphs one and two of this paragraph if there is unlawful discriminatory conduct pursuant to subparagraph three of this paragraph.

(ii) The provisions of subparagraphs one, two, and three of this paragraph shall not apply (1) to the restriction of the rental of all rooms in a housing accommodation to individuals of the same sex, (2) to the rental of a room

or rooms in a housing accommodation, if such rental is by the occupant of the housing accommodation or by the owner of the housing accommodation and the owner resides in such housing accommodation, or (3) solely with respect to age and familial status to the restriction of the sale, rental or lease of housing accommodations exclusively to persons sixty-two years of age or older and the spouse of any such person, or for housing intended and operated for occupancy by at least one person fifty-five years of age or older per unit. In determining whether housing is intended and operated for occupancy by persons fifty-five years of age or older, Sec. 807(b) (2) (c) (42 U.S.C. 3607 (b) (2) (c)) of the federal Fair Housing Act of 1988, as amended, shall apply.

(b) It shall be an unlawful discriminatory practice for the owner, lessee, sub-lessee, or managing agent of, or other person having the right of ownership or possession of or the right to sell, rent or lease, land or commercial space:

(1) To refuse to sell, rent, lease or otherwise deny to or withhold from any person or group of persons land or commercial space because of the race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, age, disability, marital status, status as a victim of domestic violence, or familial status of such person or persons, or to represent that any housing accommodation or land is not available for inspection, sale, rental or lease when in fact it is so available;

(2) To discriminate against any person because of race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, age, disability, marital status, status as a victim of domestic violence, or familial status in the terms, conditions or privileges of the sale, rental or lease of any such land or commercial space; or in the furnishing of facilities or services in connection therewith;

(3) To print or circulate or cause to be printed or circulated any statement, advertisement or publication, or to use any form of application for the purchase, rental or lease of such land or commercial space or to make any record or inquiry in connection with the prospective purchase, rental or lease of such land or commercial space which expresses, directly or indirectly, any limitation, specification or discrimination as to race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, age, disability, marital status, status as a victim of domestic violence, or familial status; or any intent to make any such limitation, specification or discrimination.

(4) With respect to age and familial status, the provisions of this paragraph shall not apply to the restriction of the sale, rental or lease of land or commercial space exclusively to persons fifty-five years of age or older and the spouse of any such person, or to the restriction of the sale, rental or lease of land to be used for the construction, or location of housing accommodations exclusively for persons sixty-two years of age or older, or intended and operated for occupancy by at least one person fifty-five years of age or older per unit. In determining whether housing is intended and operated for occupancy by persons fifty-five years of age or older, Sec. 807(b) (2) (c) (42 U.S.C. 3607(b) (2) (c)) of the federal Fair Housing Act of 1988, as amended, shall apply.

(c) It shall be an unlawful discriminatory practice for any real estate broker, real estate salesperson or employee or agent thereof:

(1) To refuse to sell, rent or lease any housing accommodation, land or commercial space to any person or group of persons or to refuse to negotiate for the sale, rental or lease, of any housing accommodation, land or commercial space to any person or group of persons because of the race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, age, disability, marital status, status as a victim of domestic violence, lawful source of income or familial status of such person or persons, or to represent that any housing accommodation, land or commercial space is not available for inspection, sale, rental or lease when in fact it is so available, or otherwise to deny or withhold any housing accommodation, land or commercial space or any facilities of any housing accommodation, land or commercial space from any person or group of persons because of the race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, age, disability, marital status, lawful source of income or familial status of such person or persons.

(2) To print or circulate or cause to be printed or circulated any statement, advertisement or publication, or to use any form of application for the purchase, rental or lease of any housing accommodation, land or commercial space or to make any record or inquiry in connection with the prospective purchase, rental or lease of any housing accommodation, land or commercial space which expresses, directly or indirectly, any limitation, specification, or discrimination as to race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, age, disability, marital status, status as a victim of domestic violence, lawful source of income or familial status; or any intent to make any such limitation, specification or discrimination.

(3) With respect to age and familial status, the provisions of this paragraph shall not apply to the restriction of the sale, rental or lease of any housing accommodation, land or commercial space exclusively to persons fifty-five years of age or older and the spouse of any such person, or to the restriction of the sale, rental or lease of any housing accommodation or land to be used for the construction or location of housing accommodations for persons sixty-two years of age or older, or intended and operated for occupancy by at least one person fifty-five years of age or older per

unit. In determining whether housing is intended and operated for occupancy by persons fifty-five years of age or older, Sec. 807 (b) (2) (c) (42 U.S.C. 3607 (b) (2) (c)) of the federal Fair Housing Act of 1988, as amended, shall apply.

(d) It shall be an unlawful discriminatory practice for any real estate board, because of the race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, age, sex, disability, marital status, status as a victim of domestic violence, lawful source of income or familial status of any individual who is otherwise qualified for membership, to exclude or expel such individual from membership, or to discriminate against such individual in the terms, conditions and privileges of membership in such board.

(e) It shall be an unlawful discriminatory practice for the owner, proprietor or managing agent of, or other person having the right to provide care and services in, a private proprietary nursing home, convalescent home, or home for adults, or an intermediate care facility, as defined in section two of the social services law, heretofore constructed, or to be constructed, or any agent or employee thereof, to refuse to provide services and care in such home or facility to any individual or to discriminate against any individual in the terms, conditions, and privileges of such services and care solely because such individual is a blind person. For purposes of this paragraph, a "blind person" shall mean a person who is registered as a blind person with the commission for the visually handicapped and who meets the definition of a "blind person" pursuant to section three of chapter four hundred fifteen of the laws of nineteen hundred thirteen entitled "An act to establish a state commission for improving the condition of the blind of the state of New York, and making an appropriation therefor".

(f) The provisions of this subdivision, as they relate to age, shall not apply to persons under the age of eighteen years.

(g) It shall be an unlawful discriminatory practice for any person offering or providing housing accommodations, land or commercial space as described in paragraphs (a), (b), and (c) of this subdivision to make or cause to be made any written or oral inquiry or record concerning membership of any person in the state organized militia in relation to the purchase, rental or lease of such housing accommodation, land, or commercial space, provided, however, that nothing in this subdivision shall prohibit a member of the state organized militia from voluntarily disclosing such membership.

(h) It shall be an unlawful discriminatory practice for any person to discriminate against any individual in making real estate appraisal services available or to base a real estate appraisal, estimate, or opinion of value on the race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, age, disability, marital status, status as a victim of domestic violence, lawful source of income, or familial status of either the prospective owners or occupants of the real property, the present owners or occupants of the real property, or the present owners or occupants of the real properties in the vicinity of the property. Nothing in this section shall prohibit a real estate appraiser from taking into consideration factors other than race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, age, disability, marital status, status as a victim of domestic violence, lawful source of income, or familial status.

5-a. (a) For any case alleging housing discrimination under this article, an unlawful discriminatory practice may be established by a practice's discriminatory effect, even if such practice was not motivated by a discriminatory intent. The practice may still be lawful if supported by a legally sufficient justification, as defined in paragraph (c) of this subdivision.

(b) For the purposes of this subdivision, a practice has a discriminatory effect where it actually or predictably results in a disparate impact on a group of persons or creates, increases, reinforces, or perpetuates segregated housing patterns because of race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, age, disability, marital status, status as a victim of domestic violence, lawful source of income or familial.

(c) (1) A legally sufficient justification exists where the challenged practice:

(i) is necessary to achieve one or more substantial, legitimate, nondiscriminatory interests of the respondent; and

(ii) those interests could not be served by another practice that has a less discriminatory effect.

(2) A legally sufficient justification shall be supported by evidence and may not be hypothetical or speculative. The burdens of proof for establishing each of the two elements of a legally sufficient justification are set forth in paragraph (d) of this subdivision.

(d) (1) The complainant shall have the burden of proving that a challenged practice caused or predictably will cause a discriminatory effect.

(2) Once the complainant satisfies the burden of proof set forth in subparagraph one of this paragraph, the respondent shall have the burden of proving that the challenged practice is necessary to achieve one or more substantial, legitimate, nondiscriminatory interests of the respondent.

(3) If the respondent satisfies the burden of proof set forth in subparagraph two of this paragraph, the complainant may still prevail upon proving that the substantial, legitimate, nondiscriminatory interests supporting the challenged practice could be served by another practice that has a less discriminatory effect.

(e) A demonstration that a practice is supported by a legally sufficient justification, as defined in paragraph (c) of this

subdivision, may not be used as a defense against a claim of intentional discrimination.

(f) Nothing in this subdivision shall be construed or interpreted as limiting, restricting, overriding, or supplanting any broader interpretation of the discriminatory practices described in this article or the availability of liability under this article.

5-b. (a) For any case alleging employment discrimination under this article, an unlawful discriminatory practice may be established by a practice's discriminatory effect, even if such practice was not motivated by a discriminatory intent. The practice may still be lawful if supported by a legally sufficient justification, as defined in paragraph (c) of this subdivision.

(b) For the purposes of this subdivision, a practice has a discriminatory effect where it actually or predictably results in a disparate impact on a group of persons, because of their membership in a class protected under this section.

(c) (i) A legally sufficient justification exists where the challenged practice:

(A) is job related for the position in question and consistent with business necessity; and

(B) that the business necessity could not be served by another practice that has a less discriminatory effect.

(ii) A legally sufficient justification shall be supported by evidence and may not be hypothetical or speculative. The burdens of proof for establishing each of the two elements of a legally sufficient justification are set forth in paragraph (d) of this subdivision.

(d) (i) The complainant shall have the burden of proving that a challenged practice caused or predictably will cause a discriminatory effect.

(ii) Once the complainant satisfies the burden of proof set forth in subparagraph one of this paragraph, the respondent shall have the burden of proving that the challenged practice is job related for the position in question and consistent with business necessity.

(iii) If the respondent satisfies the burden of proof set forth in subparagraph two of this paragraph, the complainant may still prevail upon proving that the business necessity could be served by another practice that has a less discriminatory effect.

(e) A demonstration that a practice is supported by a legally sufficient justification, as defined in paragraph (c) of this subdivision, may not be used as a defense against a claim of intentional discrimination.

(f) Nothing in this subdivision shall be construed or interpreted as limiting, restricting, overriding, or supplanting any broader interpretation of the discriminatory practices described in this article or the availability of liability under this article.

6. It shall be an unlawful discriminatory practice for any person to aid, abet, incite, compel or coerce the doing of any of the acts forbidden under this article, or to attempt to do so.

7. It shall be an unlawful discriminatory practice for any person engaged in any activity to which this section applies to retaliate or discriminate against any person because such person has (i) opposed any practices forbidden under this article, (ii) filed a complaint, testified, or assisted in any proceeding under this article, or (iii) requested a reasonable accommodation under this article. Retaliation may include, but is not limited to, disclosing an employee's personnel files because such employee has (i) opposed any practices forbidden under this article, (ii) filed a complaint, testified, or assisted in any proceeding under this article, or (iii) requested a reasonable accommodation under this article, except where such disclosure is made in the course of commencing or responding to a complaint in any proceeding under this article or any other civil or criminal action or other judicial or administrative proceeding as permitted by applicable law.

8. It shall be an unlawful discriminatory practice for any party to a conciliation agreement made pursuant to section two hundred ninety-seven of this article to violate the terms of such agreement.

9. (a) It shall be an unlawful discriminatory practice for any fire department or fire company therein, through any member or members thereof, officers, board of fire commissioners or other body or office having power of appointment of volunteer firefighters, directly or indirectly, by ritualistic practice, constitutional or by-law prescription, by tacit agreement among its members, or otherwise, to deny to any individual membership in any volunteer fire department or fire company therein, or to expel or discriminate against any volunteer member of a fire department or fire company therein, because of the race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, marital status, status as a victim of domestic violence, or familial status, of such individual.

(b) Upon a complaint to the division, as provided for under subdivision one of section two hundred ninety-seven of this article, and in the event the commissioner finds that an unlawful discriminatory practice has been engaged in, the board of fire commissioners or other body or office having power of appointment of volunteer firefighters shall be served with any order required, under subdivision four of section two hundred ninety-seven of this article, to be served on any or all respondents requiring such respondent or respondents to cease and desist from such unlawful discriminatory practice and to take affirmative action. Such board shall have the duty and power to appoint as a volunteer firefighter, notwithstanding any other statute or provision of law or by-law of any volunteer fire company, any individual whom the commissioner has determined to be the subject of an unlawful discriminatory practice under this subdivision. Unless such board has been found to have engaged in an unlawful discriminatory practice, service

upon such board of such order shall not constitute such board or its members as a respondent nor constitute a finding of an unlawful discriminatory practice against such board or its members.

10. (a) It shall be an unlawful discriminatory practice for any employer, or an employee or agent thereof, to impose upon a person as a condition of obtaining or retaining employment, including opportunities for promotion, advancement or transfers, any terms or conditions that would require such person to violate or forego a sincerely held practice of his or her religion, including but not limited to the observance of any particular day or days or any portion thereof as a sabbath or other holy day in accordance with the requirements of his or her religion or the wearing of any attire, clothing, or facial hair in accordance with the requirements of his or her religion, unless, after engaging in a bona fide effort, the employer demonstrates that it is unable to reasonably accommodate the employee's or prospective employee's sincerely held religious observance or practice without undue hardship on the conduct of the employer's business. Notwithstanding any other provision of law to the contrary, an employee shall not be entitled to premium wages or premium benefits for work performed during hours to which such premium wages or premium benefits would ordinarily be applicable, if the employee is working during such hours only as an accommodation to his or her sincerely held religious requirements. Nothing in this paragraph or paragraph (b) of this subdivision shall alter or abridge the rights granted to an employee concerning the payment of wages or privileges of seniority accruing to that employee.

(b) Except where it would cause an employer to incur an undue hardship, no person shall be required to remain at his or her place of employment during any day or days or portion thereof that, as a requirement of his or her religion, he or she observes as his or her sabbath or other holy day, including a reasonable time prior and subsequent thereto for travel between his or her place of employment and his or her home, provided however, that any such absence from work shall, wherever practicable in the reasonable judgment of the employer, be made up by an equivalent amount of time and work at some other mutually convenient time, or shall be charged against any leave with pay ordinarily granted, other than sick leave, provided further, however, that any such absence not so made up or charged, may be treated by the employer of such person as leave taken without pay.

(c) It shall be an unlawful discriminatory practice for an employer to refuse to permit an employee to utilize leave, as provided in paragraph (b) of this subdivision, solely because the leave will be used for absence from work to accommodate the employee's sincerely held religious observance or practice.

(d) As used in this subdivision: (1) "undue hardship" shall mean an accommodation requiring significant expense or difficulty (including a significant interference with the safe or efficient operation of the workplace or a violation of a bona fide seniority system). Factors to be considered in determining whether the accommodation constitutes an undue economic hardship shall include, but not be limited to:

(i) the identifiable cost of the accommodation, including the costs of loss of productivity and of retaining or hiring employees or transferring employees from one facility to another, in relation to the size and operating cost of the employer;

(ii) the number of individuals who will need the particular accommodation to a sincerely held religious observance or practice; and

(iii) for an employer with multiple facilities, the degree to which the geographic separateness or administrative or fiscal relationship of the facilities will make the accommodation more difficult or expensive.

Provided, however, an accommodation shall be considered to constitute an undue hardship if it will result in the inability of an employee to perform the essential functions of the position in which he or she is employed.

(2) "premium wages" shall include overtime pay and compensatory time off, and additional remuneration for night, weekend or holiday work, or for standby or irregular duty.

(3) "premium benefit" shall mean an employment benefit, such as seniority, group life insurance, health insurance, disability insurance, sick leave, annual leave, or an educational or pension benefit that is greater than the employment benefit due the employee for an equivalent period of work performed during the regular work schedule of the employee.

In the case of any employer other than the state, any of its political subdivisions or any school district, this subdivision shall not apply where the uniform application of terms and conditions of attendance to employees is essential to prevent undue economic hardship to the employer. In any proceeding in which the applicability of this subdivision is in issue, the burden of proof shall be upon the employer. If any question shall arise whether a particular position or class of positions is excepted from this subdivision by this paragraph, such question may be referred in writing by any party claimed to be aggrieved, in the case of any position of employment by the state or any of its political subdivisions, except by any school district, to the civil service commission, in the case of any position of employment by any school district, to the commissioner of education, who shall determine such question and in the case of any other employer, a party claiming to be aggrieved may file a complaint with the division pursuant to this article. Any such determination by the civil service commission shall be reviewable in the manner provided by article seventy-eight of the civil practice law and rules and any such determination by the commissioner of education shall be reviewable in the manner and to the same extent as other determinations of

the commissioner under section three hundred ten of the education law.

11. Nothing contained in this section shall be construed to bar any religious or denominational institution or organization, or any organization operated for charitable or educational purposes, which is operated, supervised or controlled by or in connection with a religious organization, from limiting employment or sales or rental of housing accommodations or admission to or giving preference to persons of the same religion or denomination or from taking such action as is calculated by such organization to promote the religious principles for which it is established or maintained.

12. Notwithstanding the provisions of subdivisions one, one-a and three-a of this section, it shall not be an unlawful discriminatory practice for an employer, employment agency, labor organization or joint labor-management committee to carry out a plan, approved by the division, to increase the employment of members of a minority group (as may be defined pursuant to the regulations of the division) which has a state-wide unemployment rate that is disproportionately high in comparison with the state-wide unemployment rate of the general population. Any plan approved under this subdivision shall be in writing and the division's approval thereof shall be for a limited period and may be rescinded at any time by the division.

13. It shall be an unlawful discriminatory practice (i) for any person to boycott or blacklist, or to refuse to buy from, sell to or trade with, or otherwise discriminate against any person, because of the race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, status as a victim of domestic violence, disability, or familial status, or of such person, or of such person's partners, members, stockholders, directors, officers, managers, superintendents, agents, employees, business associates, suppliers or customers, or (ii) for any person wilfully to do any act or refrain from doing any act which enables any such person to take such action. This subdivision shall not apply to:

(a) Boycotts connected with labor disputes; or

(b) Boycotts to protest unlawful discriminatory practices.

14. In addition to reasonable modifications in policies, practices, or procedures, including those defined in subparagraph (iv) of paragraph (d) of subdivision two of this section or reasonable accommodations for persons with disabilities as otherwise provided in this section, including the use of an animal as a reasonable accommodation, it shall be an unlawful discriminatory practice for any person engaged in any activity covered by this section to deny access or otherwise to discriminate against a blind person, a person who is deaf or hard of hearing or a person with another disability because he or she is accompanied by a dog that has been trained to work or perform specific tasks for the benefit of such person by a professional guide dog, hearing dog or service dog training center or professional guide dog, hearing dog or service dog trainer, or to discriminate against such professional guide dog, hearing dog or service dog trainer engaged in such training of a dog for use by a person with a disability, whether or not accompanied by the person for whom the dog is being trained.

15. It shall be an unlawful discriminatory practice for any person, agency, bureau, corporation or association, including the state and any political subdivision thereof, to deny any license or employment to any individual by reason of his or her having been convicted of one or more criminal offenses, or by reason of a finding of a lack of "good moral character" which is based upon his or her having been convicted of one or more criminal offenses, when such denial is in violation of the provisions of article twenty-three-A of the correction law. Further, there shall be a rebuttable presumption in favor of excluding from evidence the prior incarceration or conviction of any person, in a case alleging that the employer has been negligent in hiring or retaining an applicant or employee, or supervising a hiring manager, if after learning about an applicant or employee's past criminal conviction history, such employer has evaluated the factors set forth in section seven hundred fifty-two of the correction law, and made a reasonable, good faith determination that such factors militate in favor of hire or retention of that applicant or employee. No person, agency, bureau, corporation, association, the state or any political subdivision thereof, shall require an individual to provide a copy of his or her criminal history record that he or she obtained pursuant to the rules and regulations of the division of criminal justice services.

16. It shall be an unlawful discriminatory practice, unless specifically required or permitted by statute, for any person, agency, bureau, corporation or association, including the state and any political subdivision thereof, to make any inquiry about, whether in any form of application or otherwise, or to act upon adversely to the individual involved, any arrest or criminal accusation of such individual not then pending against that individual which was followed by a termination of that criminal action or proceeding in favor of such individual, as defined in subdivision two of section 160.50 of the criminal procedure law, or by an order adjourning the criminal action in contemplation of dismissal, pursuant to section 170.55, 170.56, 210.46, 210.47, or 215.10 of the criminal procedure law, or by a youthful offender adjudication, as defined in subdivision one of section 720.35 of the criminal procedure law, or by a conviction for a violation sealed pursuant to section 160.55 of the criminal procedure law or by a conviction which is sealed pursuant to section 160.59 or 160.58 of the criminal procedure law, or by a conviction which is sealed pursuant to section 160.57 of the criminal procedure law, except where such conviction record is accessed pursuant to subparagraph (vii), (viii), or (xvi) of paragraph (d) of subdivision one of section 160.57 of the criminal procedure law, in connection with the licensing, housing, employment, including volunteer positions, or providing of credit or insurance to such individual; provided,

further, that no person shall be required to divulge information pertaining to any arrest or criminal accusation of such individual not then pending against that individual which was followed by a termination of that criminal action or proceeding in favor of such individual, as defined in subdivision two of section 160.50 of the criminal procedure law, or by an order adjourning the criminal action in contemplation of dismissal, pursuant to section 170.55 or 170.56, 210.46, 210.47 or 215.10 of the criminal procedure law, or by a youthful offender adjudication, as defined in subdivision one of section 720.35 of the criminal procedure law, or by a conviction for a violation sealed pursuant to section 160.55 of the criminal procedure law, or by a conviction which is sealed pursuant to section 160.58 or 160.59 of the criminal procedure law, or by a conviction which is sealed pursuant to section 160.57 of the criminal procedure law, except where such conviction record is accessed pursuant to subparagraph (vii), (viii), or (xvi) of paragraph (d) of subdivision one of section 160.57 of the criminal procedure law. An individual required or requested to provide information in violation of this subdivision may respond as if the arrest, criminal accusation, or disposition of such arrest or criminal accusation did not occur. The provisions of this subdivision shall not apply to the licensing activities of governmental bodies in relation to the regulation of guns, firearms and other deadly weapons or in relation to an application for employment as a police officer or peace officer as those terms are defined in subdivisions thirty-three and thirty-four of section 1.20 of the criminal procedure law; provided further that the provisions of this subdivision shall not apply to an application for employment or membership in any law enforcement agency with respect to any arrest or criminal accusation which was followed by a youthful offender adjudication, as defined in subdivision one of section 720.35 of the criminal procedure law, or by a conviction for a violation sealed pursuant to section 160.55 of the criminal procedure law, or by a conviction which is sealed pursuant to section 160.58 or 160.59 of the criminal procedure law, or by a conviction which is sealed pursuant to section 160.57 of the criminal procedure law. For purposes of this subdivision, an action which has been adjourned in contemplation of dismissal, pursuant to section 170.55 or 170.56, 210.46, 210.47 or 215.10 of the criminal procedure law, shall not be considered a pending action, unless the order to adjourn in contemplation of dismissal is revoked and the case is restored to the calendar for further prosecution.

17. Nothing in this section shall prohibit the offer and acceptance of a discount to a person sixty-five years of age or older for housing accommodations.

18. It shall be an unlawful discriminatory practice for the owner, lessee, sub-lessee, assignee, or managing agent of, or other person having the right of ownership of or possession of or the right to rent or lease housing accommodations:

(1) To refuse to permit, at the expense of a person with a disability, reasonable modifications of existing premises occupied or to be occupied by the said person, if the modifications may be necessary to afford the said person full enjoyment of the premises, in conformity with the provisions of the New York state uniform fire prevention and building code except that, in the case of a rental, the landlord may, where it is reasonable to do so, condition permission for a modification on the renter's agreeing to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted.

(2) To refuse to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford said person with a disability equal opportunity to use and enjoy a dwelling, including the use of an animal as a reasonable accommodation to alleviate symptoms or effects of a disability, and including reasonable modification to common use portions of the dwelling, or

(3) In connection with the design and construction of covered multi-family dwellings for first occupancy after March thirteenth, nineteen hundred ninety-one, a failure to design and construct dwellings in accordance with the accessibility requirements for multi-family dwellings found in the New York state uniform fire prevention and building code to provide that:

(i) The public use and common use portions of the dwellings are readily accessible to and usable by persons with disabilities;

(ii) All the doors are designed in accordance with the New York state uniform fire prevention and building code to allow passage into and within all premises and are sufficiently wide to allow passage by persons in wheelchairs; and

(iii) All premises within covered multi-family dwelling units contain an accessible route into and through the dwelling; light switches, electrical outlets, thermostats, and other environmental controls are in accessible locations; there are reinforcements in the bathroom walls to allow later installation of grab bars; and there are usable kitchens and bathrooms such that an individual in a wheelchair can maneuver about the space, in conformity with the New York state uniform fire prevention and building code.

19. (a) Except as provided in paragraph (b) of this subdivision, it shall be an unlawful discriminatory practice of any employer, labor organization, employment agency, licensing agency, or its employees, agents, or members:

(1) to directly or indirectly solicit, require, or administer a genetic test to a person, or solicit or require information from which a predisposing genetic characteristic can be inferred as a condition of employment, preemployment application, labor organization membership, or licensure; or

(2) to buy or otherwise acquire the results or interpretation of an individual's genetic test results or information from

which a predisposing genetic characteristic can be inferred or to make an agreement with an individual to take a genetic test or provide genetic test results or such information.

(b) An employer may require a specified genetic test as a condition of employment where such a test is shown to be directly related to the occupational environment, such that the employee or applicant with a particular genetic anomaly might be at an increased risk of disease as a result of working in said environment.

(c) Nothing in this section shall prohibit the genetic testing of an employee who requests a genetic test and who provides written and informed consent to taking a genetic test for any of the following purposes:

(1) pursuant to a workers' compensation claim;

(2) pursuant to civil litigation; or

(3) to determine the employee's susceptibility to potentially carcinogenic, toxic, or otherwise hazardous chemicals or substances found in the workplace environment only if the employer does not terminate the employee or take any other action that adversely affects any term, condition or privilege of employment pursuant to the genetic test results.

(d) If an employee consents to genetic testing for any of the aforementioned allowable reasons, he or she must be given and sign an authorization of consent form which explicitly states the specific purpose, uses and limitations of the genetic tests and the specific traits or characteristics to be tested.

21. Nothing in this section shall prohibit the offer and acceptance of a discount for housing accommodations to a person with a disability, as defined in subdivision twenty-one of section two hundred ninety-two of this article.

22. (a) It shall be an unlawful discriminatory practice for an employer or licensing agency, because of any individual's status as a victim of domestic violence, to refuse to hire or employ or license or to bar or to discharge from employment such individual or to discriminate against such individual in compensation or in terms, conditions or privileges of employment.

(b) It shall be an unlawful discriminatory practice for an employer or employment agency to print or circulate or cause to be printed or circulated any statement, advertisement or publication, or to use any form of application for employment or to make any inquiry in connection with prospective employment which expresses, directly or indirectly, any limitation, specification or discrimination as to status as a victim of domestic violence, or any intent to make any such limitation, specification or discrimination; provided, however, that no provision of this subdivision shall be construed to prohibit the employer from making any inquiry or obtaining information for the purpose of providing assistance to, or a reasonable accommodation in accordance with the provisions of this subdivision to, a victim of domestic violence.

(c) (1) It shall be an unlawful discriminatory practice for an employer to refuse to provide a reasonable accommodation to an employee who is known by the employer to be a victim of domestic violence, limited to those accommodations set forth in subparagraph two of this paragraph, when such employee must be absent from work for a reasonable time, unless such absence would cause an undue hardship to the employer as set forth in subparagraph three of this paragraph, provided, however that the employer may require an employee to charge any time off pursuant to this section against any leave with pay ordinarily granted, where available, unless otherwise provided for in a collective bargaining agreement or existing employee handbook or policy, and any such absence that cannot be charged may be treated as leave without pay. An employee who must be absent from work in accordance with subparagraph two of this paragraph shall be entitled to the continuation of any health insurance coverage provided by the employer, to which the employee is otherwise entitled during any such absence.

(2) An employer is required to provide a reasonable accommodation to an employee who is a victim of domestic violence who must be absent from work for a reasonable time, in accordance with the provisions of subparagraph one of this paragraph, limited to the following:

(i) Seeking medical attention for injuries caused by domestic violence including for a child who is a victim of domestic violence, provided that the employee is not the perpetrator of the domestic violence against the child; or

(ii) Obtaining services from a domestic violence shelter, program, or rape crisis center as a result of domestic violence; or

(iii) Obtaining psychological counseling related to an incident or incidents of domestic violence, including for a child who is a victim of domestic violence, provided that the employee is not the perpetrator of the domestic violence against the child; or

(iv) Participating in safety planning and taking other actions to increase safety from future incidents of domestic violence, including temporary or permanent relocation; or

(v) Obtaining legal services, assisting in the prosecution of the offense, or appearing in court in relation to the incident or incidents of domestic violence.

(3) An employer is required to provide a reasonable accommodation for an employee's absence in accordance with the provisions of subparagraphs one and two of this paragraph unless the employer can demonstrate that the employee's absence would constitute an undue hardship to the employer. A determination of whether such an absence will constitute an undue hardship shall include consideration of factors such as:

(i) The overall size of the business, program or enterprise with respect to the number of employees, number and type of facilities, and size of budget; and
(ii) The type of operation in which the business, program or enterprise is engaged, including the composition and structure of the workforce.
(4) An employee who must be absent from work in accordance with the provisions of subparagraph one of this paragraph shall provide the employer with reasonable advance notice of the employee's absence, unless such advance notice is not feasible.
(5) An employee who must be absent from work in accordance with the provisions of subparagraph one of this paragraph and who cannot feasibly give reasonable advance notice of the absence in accordance with subparagraph four of this paragraph must, within a reasonable time after the absence, provide a certification to the employer when requested by the employer.
Such certification shall be in the form of:
(i) A police report indicating that the employee or his or her child was a victim of domestic violence;
(ii) A court order protecting or separating the employee or his or her child from the perpetrator of an act of domestic violence;
(iii) Other evidence from the court or prosecuting attorney that the employee appeared in court; or
(iv) Documentation from a medical professional, domestic violence advocate, health care provider, or counselor that the employee or his or her child was undergoing counseling or treatment for physical or mental injuries or abuse resulting in victimization from an act of domestic violence.
(6) Where an employee has a physical or mental disability resulting from an incident or series of incidents of domestic violence, such employee shall be treated in the same manner as an employee with any other disability, pursuant to the provisions of this section which provide that discrimination and refusal to provide reasonable accommodation of disability are unlawful discriminatory practices.

(d) To the extent allowed by law, employers shall maintain the confidentiality of any information regarding an employee's status as a victim of domestic violence.

N.Y. Penal Law § 35.05

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Cited as the McKinney 2026 edition; the text below is the current one.

Text not stored locally (not in PEN.xml (renumbered or repealed since, or a cite we misread)).

N.Y. Penal Law § 130.25

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Text not stored locally (not in PEN.xml (renumbered or repealed since, or a cite we misread)).

N.Y. Penal Law § 130.30

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Text not stored locally (not in PEN.xml (renumbered or repealed since, or a cite we misread)).

N.Y. Penal Law § 130.35

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Cited as the McKinney 2026 edition; the text below is the current one.

Text not stored locally (not in PEN.xml (renumbered or repealed since, or a cite we misread)).

N.Y. Penal Law § 140.05

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Trespass (current text, retrieved 2026-10-29)
A person is guilty of trespass when he knowingly enters or remains unlawfully in or upon premises.
Trespass is a violation.
§ 140.10 Criminal trespass in the third degree.
A person is guilty of criminal trespass in the third degree when he knowingly enters or remains unlawfully in a building or upon real property
(a) which is fenced or otherwise enclosed in a manner designed to exclude intruders; or
(b) where the building is utilized as an elementary or secondary school or a children's overnight camp as defined in section one thousand three hundred ninety-two of the public health law or a summer day camp as defined in section one thousand three hundred ninety-two of the public health law in violation of conspicuously posted rules or regulations governing entry and use thereof; or

(c) located within a city with a population in excess of one million and where the building or real property is utilized as an elementary or secondary school in violation of a personally communicated request to leave the premises from a principal, custodian or other person in charge thereof; or
(d) located outside of a city with a population in excess of one million and where the building or real property is utilized as an elementary or secondary school in violation of a personally communicated request to leave the premises from a principal, custodian, school board member or trustee, or other person in charge thereof; or
(e) where the building is used as a public housing project in violation of conspicuously posted rules or regulations governing entry and use thereof; or
(f) where a building is used as a public housing project in violation of a personally communicated request to leave the premises from a housing police officer or other person in charge thereof; or
(g) where the property consists of a right-of-way or yard of a railroad or rapid transit railroad which has been designated and conspicuously posted as a no-trespass railroad zone.
Criminal trespass in the third degree is a class B misdemeanor.
§ 140.15 Criminal trespass in the second degree.
A person is guilty of criminal trespass in the second degree when:
1. he or she knowingly enters or remains unlawfully in a dwelling; or
2. being a person required to maintain registration under article six-C of the correction law and designated a level two or level three offender pursuant to subdivision six of section one hundred sixty-eight-l of the correction law, he or she enters or remains in a public or private elementary, parochial, intermediate, junior high, vocational or high school knowing that the victim of the offense for which such registration is required attends or formerly attended such school. It shall not be an offense subject to prosecution under this subdivision if: the person is a lawfully registered student at such school; the person is a lawful student participant in a school sponsored event; the person is a parent or a legal guardian of a lawfully registered student at such school and enters the school for the purpose of attending their child's or dependent's event or activity; such school is the person's designated polling place and he or she enters such school building for the limited purpose of voting; or if the person enters such school building for the limited purposes authorized by the superintendent or chief administrator of such school.
Criminal trespass in the second degree is a class A misdemeanor.

N.Y. Real Prop. Acts. Law § 501

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Cited as the McKinney 2026 edition; the text below is the current one.

Adverse possession; defined (current text, retrieved 2026-10-29)
For the purposes of this article:
1. Adverse possessor. A person or entity is an "adverse possessor" of real property when the person or entity occupies real property of another person or entity with or without knowledge of the other's superior ownership rights, in a manner that would give the owner a cause of action for ejectment.
2. Acquisition of title. An adverse possessor gains title to the occupied real property upon the expiration of the statute of limitations for an action to recover real property pursuant to subdivision (a) of section two hundred twelve of the civil practice law and rules, provided that the occupancy, as described in sections five hundred twelve and five hundred twenty-two of this article, has been adverse, under claim of right, open and notorious, continuous, exclusive, and actual.
3. Claim of right. A claim of right means a reasonable basis for the belief that the property belongs to the adverse possessor or property owner, as the case may be. Notwithstanding any other provision of this article, claim of right shall not be required if the owner or owners of the real property throughout the statutory period cannot be ascertained in the records of the county clerk, or the register of the county, of the county where such real property is situated, and located by reasonable means.

N.Y.C. Admin. Code § 10-172

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Source error: local law (New York City), not a state code: American Legal Publishing hosts it; no formula

Ohio Rev. Code Ann. § 3301.16

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Classifying and chartering school districts and individual schools (current text, retrieved 2026-10-29)
Effective: October 3, 2023
Latest Legislation: House Bill 33 - 135th General Assembly
Pursuant to standards prescribed by the director of education and workforce as provided in division (D) of section 3301.07 of the Revised Code, the director shall classify and charter school districts and individual schools within each

district except that no charter shall be granted to a nonpublic school unless the school complies with divisions (K)(1) and (L) of section 3301.0711, as applicable, and sections 3301.164 and 3313.612 of the Revised Code.

In the course of considering the charter of a new school district created under section 3311.26 or 3311.38 of the Revised Code, the director shall require the party proposing creation of the district to submit to the board a map, certified by the county auditor of the county in which the proposed new district is located, showing the boundaries of the proposed new district. In the case of a proposed new district located in more than one county, the map shall be certified by the county auditor of each county in which the proposed district is located.

The director shall revoke the charter of any school district or school which fails to meet the standards for elementary and high schools as prescribed by the director. The director shall also revoke the charter of any nonpublic school that does not comply with divisions (K)(1) and (L) of section 3301.0711, if applicable, and sections 3301.164 and 3313.612 of the Revised Code.

In the issuance and revocation of school district or school charters, the director shall be governed by the provisions of Chapter 119. of the Revised Code.

No school district, or individual school operated by a school district, shall operate without a charter issued under this section.

In case a school district charter is revoked pursuant to this section, the state board of education may dissolve the school district and transfer its territory to one or more adjacent districts. An equitable division of the funds, property, and indebtedness of the school district shall be made by the state board among the receiving districts. The board of education of a receiving district shall accept such territory pursuant to the order of the state board. Prior to dissolving the school district, the state board shall notify the appropriate educational service center governing board and all adjacent school district boards of education of its intention to do so. Boards so notified may make recommendations to the state board regarding the proposed dissolution and subsequent transfer of territory. Except as provided in section 3301.161 of the Revised Code, the transfer ordered by the state board shall become effective on the date specified by the state board, but the date shall be at least thirty days following the date of issuance of the order.

A high school is one of higher grade than an elementary school, in which instruction and training are given in accordance with sections 3301.07 and 3313.60 of the Revised Code and which also offers other subjects of study more advanced than those taught in the elementary schools and such other subjects as may be approved by the director.

An elementary school is one in which instruction and training are given in accordance with sections 3301.07 and 3313.60 of the Revised Code and which offers such other subjects as may be approved by the director. In districts wherein a junior high school is maintained, the elementary schools in that district may be considered to include only the work of the first six school years inclusive, plus the kindergarten year.

Ohio Rev. Code Ann. § 3313.976

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Registering school (current text, retrieved 2026-10-29)

Effective: October 3, 2023

Latest Legislation: House Bill 33 - 135th General Assembly

(A) No private school may receive scholarship payments from parents pursuant to section 3317.022 of the Revised Code until the chief administrator of the private school registers the school with the director of education and workforce. The director shall register any school that meets the following requirements:

(1) The school indicates in writing its commitment to follow all requirements for a state-sponsored scholarship program specified under sections 3313.974 to 3313.979 of the Revised Code, including, but not limited to, the requirements for admitting students pursuant to section 3313.977 of the Revised Code;

(2) The school meets all state minimum standards for chartered nonpublic schools in effect on July 1, 1992, except that the director at the director's discretion may register nonchartered nonpublic schools meeting the other requirements of this division;

(3) The school does not discriminate on the basis of race, religion, or ethnic background;

(4) The school enrolls a minimum of ten students per class or a sum of at least twenty-five students in all the classes offered;

(5) The school does not advocate or foster unlawful behavior or teach hatred of any person or group on the basis of race, ethnicity, national origin, or religion;

(6) The school does not provide false or misleading information about the school to parents, students, or the general public;

(7) For students in grades kindergarten through eight with family incomes at or below two hundred per cent of the federal poverty guidelines, as defined in section 5101.46 of the Revised Code, the school agrees not to charge any tuition in excess of the scholarship amount established pursuant to division (A)(11)(a) of section 3317.022 of the Revised Code, excluding any increase described in that division.

(8) For students in grades kindergarten through eight with family incomes above two hundred per cent of the federal poverty guidelines, whose scholarship amounts are less than the actual tuition charge of the school, the school agrees not to charge any tuition in excess of the difference between the actual tuition charge of the school and the scholarship amount established pursuant to division (A)(11)(a) of section 3317.022 of the Revised Code, excluding any increase described in that division. The school shall permit such tuition, at the discretion of the parent, to be satisfied by the family's provision of in-kind contributions or services.

(9) The school agrees not to charge any tuition to families of students in grades nine through twelve receiving a scholarship in excess of the actual tuition charge of the school less the scholarship amount established pursuant to division (A)(11)(a) of section 3317.022 of the Revised Code, excluding any increase described in that division.

(10) It annually administers the applicable assessments prescribed by section 3301.0710, 3301.0712, or 3313.619 of the Revised Code to each scholarship student enrolled in the school in accordance with section 3301.0711 or 3301.0712 of the Revised Code and reports to the department of education the results of each such assessment administered to each scholarship student, unless one of the following applies to the student:

(a) The student is excused from taking that assessment under federal law, the student's individualized education program, or division (C)(1)(c)(i) of section 3301.0711 of the Revised Code.

(b) The student is enrolled in a chartered nonpublic school that meets the conditions specified in division (K)(2) or (L)(4) of section 3301.0711 of the Revised Code.

(c) The student is enrolled in any of grades three to eight and takes an alternative standardized assessment under division (K)(1) of section 3301.0711 of the Revised Code.

(d) The student is excused from taking the assessment prescribed under division (B)(1) of section 3301.0712 of the Revised Code pursuant to division (C)(1)(c)(ii) of section 3301.0711 of the Revised Code.

(B) The director shall revoke the registration of any school if, after a hearing, the director determines that the school is in violation of any of the provisions of division (A) of this section.

(C) Any public school located in a school district adjacent to the pilot project school district may receive scholarship payments on behalf of parents pursuant to section 3317.022 of the Revised Code if the superintendent of the district in which such public school is located notifies the director prior to the first day of March that the district intends to admit students from the pilot project school district for the ensuing school year pursuant to section 3327.06 of the Revised Code.

(D) Any parent wishing to purchase tutorial assistance from any person or governmental entity pursuant to the pilot project program under sections 3313.974 to 3313.979 of the Revised Code shall apply to the director. The director shall approve providers who appear to possess the capability of furnishing the instructional services they are offering to provide.

(E) On and after July 1, 2024, the director shall not require the parent of a student to submit a complete copy of the parent's federal income tax return, or a return filed under section 5747.08 of the Revised Code, to determine a student's family income for the purposes of the pilot project scholarship program. Rather, the director may require a parent to submit a partial federal income tax return, or a return filed under section 5747.08 of the Revised Code, that only contains the minimum amount of information necessary to determine a student's family income.

(F) Not later than the thirtieth day of June of each year, each private school registered under this section shall submit to the director of education and workforce, in a form and manner prescribed by the director, the tuition rates charged by the school for the following school year.

Ohio Rev. Code Ann. § 3313.977

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Priorities for admission of students (current text, retrieved 2026-10-29)

Effective: September 29, 2007

Latest Legislation: House Bill 119 - 127th General Assembly

(A) (1) Each registered private school shall admit students to kindergarten and first, second, and third grades in accordance with the following priorities:

(a) Students who were enrolled in the school during the preceding year;

(b) Siblings of students enrolled in the school during the preceding year, at the discretion of the school;

(c) Children from low-income families attending school or residing in the school district in which the school is located until the number of such students in each grade equals the number that constituted twenty per cent of the total number of students enrolled in the school during the preceding year in such grade. Admission of such twenty per cent shall be by lot from among all low-income family applicants who apply prior to the fifteenth day of February prior to admission.

(d) All other applicants residing anywhere, provided that all remaining available spaces shall be filled from among such applicants by lot.

Children from low-income families not selected by lot under division (A)(1)(c) of this section shall be included in the lottery of all remaining applicants pursuant to division (A)(1)(d) of this section.

(2) Each registered private school shall first admit to grades four through twelve students who were enrolled in the school during the preceding year. Any remaining spaces for students in these grades may be filled as determined by the school.

(B) Notwithstanding division (A) of this section, except where otherwise prohibited by federal law, a registered private school may elect to admit students of only one gender and may deny admission to any separately educated student with a disability.

(C) If a scholarship student who has been accepted in accordance with this section fails to enroll in the school for any reason or withdraws from the school during the school year for any reason, the school may elect to replace such student with another scholarship student only by first offering the admission to any low-income scholarship students who filed applications by the preceding fifteenth day of February and who were not accepted at that time due to space limitations.

Ohio Rev. Code Ann. § 4112.02

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (1).

Unlawful discriminatory practices (current text, retrieved 2026-10-29)

Effective: April 6, 2023

Latest Legislation: House Bill 281 - 134th General Assembly

It shall be an unlawful discriminatory practice:

(A) For any employer, because of the race, color, religion, sex, military status, national origin, disability, age, or ancestry of any person, to discharge without just cause, to refuse to hire, or otherwise to discriminate against that person with respect to hire, tenure, terms, conditions, or privileges of employment, or any matter directly or indirectly related to employment.

(B) For an employment agency or personnel placement service, because of race, color, religion, sex, military status, national origin, disability, age, or ancestry, to do any of the following:

(1) Refuse or fail to accept, register, classify properly, or refer for employment, or otherwise discriminate against any person;

(2) Comply with a request from an employer for referral of applicants for employment if the request directly or indirectly indicates that the employer fails to comply with the provisions of sections 4112.01 to 4112.07 of the Revised Code.

(C) For any labor organization to do any of the following:

(1) Limit or classify its membership on the basis of race, color, religion, sex, military status, national origin, disability, age, or ancestry;

(2) Discriminate against, limit the employment opportunities of, or otherwise adversely affect the employment status, wages, hours, or employment conditions of any person as an employee because of race, color, religion, sex, military status, national origin, disability, age, or ancestry.

(D) For any employer, labor organization, or joint labor-management committee controlling apprentice training programs to discriminate against any person because of race, color, religion, sex, military status, national origin, disability, or ancestry in admission to, or employment in, any program established to provide apprentice training.

(E) Except where based on a bona fide occupational qualification certified in advance by the commission, for any employer, employment agency, personnel placement service, or labor organization, prior to employment or admission to membership, to do any of the following:

(1) Elicit or attempt to elicit any information concerning the race, color, religion, sex, military status, national origin, disability, age, or ancestry of an applicant for employment or membership;

(2) Make or keep a record of the race, color, religion, sex, military status, national origin, disability, age, or ancestry of any applicant for employment or membership;

(3) Use any form of application for employment, or personnel or membership blank, seeking to elicit information regarding race, color, religion, sex, military status, national origin, disability, age, or ancestry; but an employer holding a contract containing a nondiscrimination clause with the government of the United States, or any department or agency of that government, may require an employee or applicant for employment to furnish documentary proof of United States citizenship and may retain that proof in the employer's personnel records and may use photographic or fingerprint identification for security purposes;

(4) Print or publish or cause to be printed or published any notice or advertisement relating to employment or membership indicating any preference, limitation, specification, or discrimination, based upon race, color, religion, sex, military status, national origin, disability, age, or ancestry;

(5) Announce or follow a policy of denying or limiting, through a quota system or otherwise, employment or membership opportunities of any group because of the race, color, religion, sex, military status, national origin,

disability, age, or ancestry of that group;

(6) Utilize in the recruitment or hiring of persons any employment agency, personnel placement service, training school or center, labor organization, or any other employee-referring source known to discriminate against persons because of their race, color, religion, sex, military status, national origin, disability, age, or ancestry.

(F) For any person seeking employment to publish or cause to be published any advertisement that specifies or in any manner indicates that person's race, color, religion, sex, military status, national origin, disability, age, or ancestry, or expresses a limitation or preference as to the race, color, religion, sex, military status, national origin, disability, age, or ancestry of any prospective employer.

(G) For any proprietor or any employee, keeper, or manager of a place of public accommodation to deny to any person, except for reasons applicable alike to all persons regardless of race, color, religion, sex, military status, national origin, disability, age, or ancestry, the full enjoyment of the accommodations, advantages, facilities, or privileges of the place of public accommodation.

(H) Subject to section 4112.024 of the Revised Code, for any person to do any of the following:

(1) Refuse to sell, transfer, assign, rent, lease, sublease, or finance housing accommodations, refuse to negotiate for the sale or rental of housing accommodations, or otherwise deny or make unavailable housing accommodations because of race, color, religion, sex, military status, familial status, ancestry, disability, or national origin;

(2) Represent to any person that housing accommodations are not available for inspection, sale, or rental, when in fact they are available, because of race, color, religion, sex, military status, familial status, ancestry, disability, or national origin;

(3) Discriminate against any person in the making or purchasing of loans or the provision of other financial assistance for the acquisition, construction, rehabilitation, repair, or maintenance of housing accommodations, or any person in the making or purchasing of loans or the provision of other financial assistance that is secured by residential real estate, because of race, color, religion, sex, military status, familial status, ancestry, disability, or national origin or because of the racial composition of the neighborhood in which the housing accommodations are located, provided that the person, whether an individual, corporation, or association of any type, lends money as one of the principal aspects or incident to the person's principal business and not only as a part of the purchase price of an owner-occupied residence the person is selling nor merely casually or occasionally to a relative or friend;

(4) Discriminate against any person in the terms or conditions of selling, transferring, assigning, renting, leasing, or subleasing any housing accommodations or in furnishing facilities, services, or privileges in connection with the ownership, occupancy, or use of any housing accommodations, including the sale of fire, extended coverage, or homeowners insurance, because of race, color, religion, sex, military status, familial status, ancestry, disability, or national origin or because of the racial composition of the neighborhood in which the housing accommodations are located;

(5) Discriminate against any person in the terms or conditions of any loan of money, whether or not secured by mortgage or otherwise, for the acquisition, construction, rehabilitation, repair, or maintenance of housing accommodations because of race, color, religion, sex, military status, familial status, ancestry, disability, or national origin or because of the racial composition of the neighborhood in which the housing accommodations are located;

(6) Refuse to consider without prejudice the combined income of both husband and wife for the purpose of extending mortgage credit to a married couple or either member of a married couple;

(7) Print, publish, or circulate any statement or advertisement, or make or cause to be made any statement or advertisement, relating to the sale, transfer, assignment, rental, lease, sublease, or acquisition of any housing accommodations, or relating to the loan of money, whether or not secured by mortgage or otherwise, for the acquisition, construction, rehabilitation, repair, or maintenance of housing accommodations, that indicates any preference, limitation, specification, or discrimination based upon race, color, religion, sex, military status, familial status, ancestry, disability, or national origin, or an intention to make any such preference, limitation, specification, or discrimination;

(8) Except as otherwise provided in division (H)(8) or (17) of this section, make any inquiry, elicit any information, make or keep any record, or use any form of application containing questions or entries concerning race, color, religion, sex, military status, familial status, ancestry, disability, or national origin in connection with the sale or lease of any housing accommodations or the loan of any money, whether or not secured by mortgage or otherwise, for the acquisition, construction, rehabilitation, repair, or maintenance of housing accommodations. Any person may make inquiries, and make and keep records, concerning race, color, religion, sex, military status, familial status, ancestry, disability, or national origin for the purpose of monitoring compliance with this chapter.

(9) Include in any transfer, rental, or lease of housing accommodations any restrictive covenant, or honor or exercise, or attempt to honor or exercise, any restrictive covenant;

(10) Induce or solicit, or attempt to induce or solicit, a housing accommodations listing, sale, or transaction by representing that a change has occurred or may occur with respect to the racial, religious, sexual, military status,

familial status, or ethnic composition of the block, neighborhood, or other area in which the housing accommodations are located, or induce or solicit, or attempt to induce or solicit, a housing accommodations listing, sale, or transaction by representing that the presence or anticipated presence of persons of any race, color, religion, sex, military status, familial status, ancestry, disability, or national origin, in the block, neighborhood, or other area will or may have results including, but not limited to, the following:

(a) The lowering of property values;

(b) A change in the racial, religious, sexual, military status, familial status, or ethnic composition of the block, neighborhood, or other area;

(c) An increase in criminal or antisocial behavior in the block, neighborhood, or other area;

(d) A decline in the quality of the schools serving the block, neighborhood, or other area.

(11) Deny any person access to or membership or participation in any multiple-listing service, real estate brokers' organization, or other service, organization, or facility relating to the business of selling or renting housing accommodations, or discriminate against any person in the terms or conditions of that access, membership, or participation, on account of race, color, religion, sex, military status, familial status, national origin, disability, or ancestry;

(12) Coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of, or on account of that person's having exercised or enjoyed or having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by division (H) of this section;

(13) Discourage or attempt to discourage the purchase by a prospective purchaser of housing accommodations, by representing that any block, neighborhood, or other area has undergone or might undergo a change with respect to its religious, racial, sexual, military status, familial status, or ethnic composition;

(14) Refuse to sell, transfer, assign, rent, lease, sublease, or finance, or otherwise deny or withhold, a burial lot from any person because of the race, color, sex, military status, familial status, age, ancestry, disability, or national origin of any prospective owner or user of the lot;

(15) Discriminate in the sale or rental of, or otherwise make unavailable or deny, housing accommodations to any buyer or renter because of a disability of any of the following:

(a) The buyer or renter;

(b) A person residing in or intending to reside in the housing accommodations after they are sold, rented, or made available;

(c) Any individual associated with the person described in division (H)(15)(b) of this section.

(16) Discriminate in the terms, conditions, or privileges of the sale or rental of housing accommodations to any person or in the provision of services or facilities to any person in connection with the housing accommodations because of a disability of any of the following:

(a) That person;

(b) A person residing in or intending to reside in the housing accommodations after they are sold, rented, or made available;

(c) Any individual associated with the person described in division (H)(16)(b) of this section.

(17) Except as otherwise provided in division (H)(17) of this section, make an inquiry to determine whether an applicant for the sale or rental of housing accommodations, a person residing in or intending to reside in the housing accommodations after they are sold, rented, or made available, or any individual associated with that person has a disability, or make an inquiry to determine the nature or severity of a disability of the applicant or such a person or individual. The following inquiries may be made of all applicants for the sale or rental of housing accommodations, regardless of whether they have disabilities:

(a) An inquiry into an applicant's ability to meet the requirements of ownership or tenancy;

(b) An inquiry to determine whether an applicant is qualified for housing accommodations available only to persons with disabilities or persons with a particular type of disability;

(c) An inquiry to determine whether an applicant is qualified for a priority available to persons with disabilities or persons with a particular type of disability;

(d) An inquiry to determine whether an applicant currently uses a controlled substance in violation of section 2925.11 of the Revised Code or a substantively comparable municipal ordinance;

(e) An inquiry to determine whether an applicant at any time has been convicted of or pleaded guilty to any offense, an element of which is the illegal sale, offer to sell, cultivation, manufacture, other production, shipment, transportation, delivery, or other distribution of a controlled substance.

(18) (a) Refuse to permit, at the expense of a person with a disability, reasonable modifications of existing housing accommodations that are occupied or to be occupied by the person with a disability, if the modifications may be necessary to afford the person with a disability full enjoyment of the housing accommodations. This division does not preclude a landlord of housing accommodations that are rented or to be rented to a tenant with a disability from conditioning permission for a proposed modification upon the tenant with a disability doing one or more of the

following:

(i) Providing a reasonable description of the proposed modification and reasonable assurances that the proposed modification will be made in a workerlike manner and that any required building permits will be obtained prior to the commencement of the proposed modification;

(ii) Agreeing to restore at the end of the tenancy the interior of the housing accommodations to the condition they were in prior to the proposed modification, but subject to reasonable wear and tear during the period of occupancy, if it is reasonable for the landlord to condition permission for the proposed modification upon the agreement;

(iii) Paying into an interest-bearing escrow account that is in the landlord's name, over a reasonable period of time, a reasonable amount of money not to exceed the projected costs at the end of the tenancy of the restoration of the interior of the housing accommodations to the condition they were in prior to the proposed modification, but subject to reasonable wear and tear during the period of occupancy, if the landlord finds the account reasonably necessary to ensure the availability of funds for the restoration work. The interest earned in connection with an escrow account described in this division shall accrue to the benefit of the tenant with a disability who makes payments into the account.

(b) A landlord shall not condition permission for a proposed modification upon a tenant with a disability's payment of a security deposit that exceeds the customarily required security deposit of all tenants of the particular housing accommodations.

(19) Refuse to make reasonable accommodations in rules, policies, practices, or services when necessary to afford a person with a disability equal opportunity to use and enjoy a dwelling unit, including associated public and common use areas;

(20) Fail to comply with the standards and rules adopted under division (A) of section 3781.111 of the Revised Code;

(21) Discriminate against any person in the selling, brokering, or appraising of real property because of race, color, religion, sex, military status, familial status, ancestry, disability, or national origin;

(22) Fail to design and construct covered multifamily dwellings for first occupancy on or after June 30, 1992, in accordance with the following conditions:

(a) The dwellings shall have at least one building entrance on an accessible route, unless it is impractical to do so because of the terrain or unusual characteristics of the site.

(b) With respect to dwellings that have a building entrance on an accessible route, all of the following apply:

(i) The public use areas and common use areas of the dwellings shall be readily accessible to and usable by persons with a disability.

(ii) All the doors designed to allow passage into and within all premises shall be sufficiently wide to allow passage by persons with a disability who are in wheelchairs.

(iii) All premises within covered multifamily dwelling units shall contain an accessible route into and through the dwelling; all light switches, electrical outlets, thermostats, and other environmental controls within such units shall be in accessible locations; the bathroom walls within such units shall contain reinforcements to allow later installation of grab bars; and the kitchens and bathrooms within such units shall be designed and constructed in a manner that enables an individual in a wheelchair to maneuver about such rooms.

For purposes of division (H)(22) of this section, "covered multifamily dwellings" means buildings consisting of four or more units if such buildings have one or more elevators and ground floor units in other buildings consisting of four or more units.

(I) For any person to discriminate in any manner against any other person because that person has opposed any unlawful discriminatory practice defined in this section or because that person has made a charge, testified, assisted, or participated in any manner in any investigation, proceeding, or hearing under sections 4112.01 to 4112.07 of the Revised Code.

(J) For any person to aid, abet, incite, compel, or coerce the doing of any act declared by this section to be an unlawful discriminatory practice, to obstruct or prevent any person from complying with this chapter or any order issued under it, or to attempt directly or indirectly to commit any act declared by this section to be an unlawful discriminatory practice.

(K) Nothing in divisions (A) to (E) of this section shall be construed to require a person with a disability to be employed or trained under circumstances that would significantly increase the occupational hazards affecting either the person with a disability, other employees, the general public, or the facilities in which the work is to be performed, or to require the employment or training of a person with a disability in a job that requires the person with a disability routinely to undertake any task, the performance of which is substantially and inherently impaired by the person's disability.

(L) With regard to age, it shall not be an unlawful discriminatory practice and it shall not constitute a violation of division (A) of section 4112.14 of the Revised Code for any employer, employment agency, joint labor-management committee controlling apprenticeship training programs, or labor organization to do any of the following:

(1) Establish bona fide employment qualifications reasonably related to the particular business or occupation that may include standards for skill, aptitude, physical capability, intelligence, education, maturation, and experience;

(2) Observe the terms of a bona fide seniority system or any bona fide employee benefit plan, including, but not limited to, a retirement, pension, or insurance plan, that is not a subterfuge to evade the purposes of this section. However, no such employee benefit plan shall excuse the failure to hire any individual, and no such seniority system or employee benefit plan shall require or permit the involuntary retirement of any individual, because of the individual's age except as provided for in the "Age Discrimination in Employment Act Amendment of 1978," 92 Stat. 189, 29 U.S.C.A. 623, as amended by the "Age Discrimination in Employment Act Amendments of 1986," 100 Stat. 3342, 29 U.S.C.A. 623, as amended.

(3) Retire an employee who has attained sixty-five years of age who, for the two-year period immediately before retirement, is employed in a bona fide executive or a high policymaking position, if the employee is entitled to an immediate nonforfeitable annual retirement benefit from a pension, profit-sharing, savings, or deferred compensation plan, or any combination of those plans, of the employer of the employee, which equals, in the aggregate, at least forty-four thousand dollars, in accordance with the conditions of the "Age Discrimination in Employment Act Amendment of 1978," 92 Stat. 189, 29 U.S.C.A. 631, as amended by the "Age Discrimination in Employment Act Amendments of 1986," 100 Stat. 3342, 29 U.S.C.A. 631, as amended;

(4) Observe the terms of any bona fide apprenticeship program if the program is registered with the Ohio apprenticeship council pursuant to sections 4139.01 to 4139.06 of the Revised Code and is approved by the federal committee on apprenticeship of the United States department of labor.

(M) Nothing in this chapter prohibiting age discrimination and nothing in division (A) of section 4112.14 of the Revised Code shall be construed to prohibit the following:

(1) The designation of uniform age the attainment of which is necessary for public employees to receive pension or other retirement benefits pursuant to Chapter 145., 742., 3307., 3309., or 5505. of the Revised Code;

(2) The mandatory retirement of uniformed patrol officers of the state highway patrol as provided in section 5505.16 of the Revised Code;

(3) The maximum age requirements for appointment as a patrol officer in the state highway patrol established by section 5503.01 of the Revised Code;

(4) The maximum age requirements established for original appointment to a police department or fire department in sections 124.41 and 124.42 of the Revised Code;

(5) Any maximum age not in conflict with federal law that may be established by a municipal charter, municipal ordinance, or resolution of a board of township trustees for original appointment as a police officer or firefighter;

(6) Any mandatory retirement provision not in conflict with federal law of a municipal charter, municipal ordinance, or resolution of a board of township trustees pertaining to police officers and firefighters;

(7) Until January 1, 1994, the mandatory retirement of any employee who has attained seventy years of age and who is serving under a contract of unlimited tenure, or similar arrangement providing for unlimited tenure, at an institution of higher education as defined in the "Education Amendments of 1980," 94 Stat. 1503, 20 U.S.C.A. 1141(a).

(N) (1) (a) Except as provided in division (N)(1)(b) of this section, for purposes of divisions (A) to (E) of this section, a disability does not include any physiological disorder or condition, mental or psychological disorder, or disease or condition caused by an illegal use of any controlled substance by an employee, applicant, or other person, if an employer, employment agency, personnel placement service, labor organization, or joint labor-management committee acts on the basis of that illegal use.

(b) Division (N)(1)(a) of this section does not apply to an employee, applicant, or other person who satisfies any of the following:

(i) The employee, applicant, or other person has successfully completed a supervised drug rehabilitation program and no longer is engaging in the illegal use of any controlled substance, or the employee, applicant, or other person otherwise successfully has been rehabilitated and no longer is engaging in that illegal use.

(ii) The employee, applicant, or other person is participating in a supervised drug rehabilitation program and no longer is engaging in the illegal use of any controlled substance.

(iii) The employee, applicant, or other person is erroneously regarded as engaging in the illegal use of any controlled substance, but the employee, applicant, or other person is not engaging in that illegal use.

(2) Divisions (A) to (E) of this section do not prohibit an employer, employment agency, personnel placement service, labor organization, or joint labor-management committee from doing any of the following:

(a) Adopting or administering reasonable policies or procedures, including, but not limited to, testing for the illegal use of any controlled substance, that are designed to ensure that an individual described in division (N)(1)(b)(i) or (ii) of this section no longer is engaging in the illegal use of any controlled substance;

(b) Prohibiting the illegal use of controlled substances and the use of alcohol at the workplace by all employees;

(c) Requiring that employees not be under the influence of alcohol or not be engaged in the illegal use of any controlled substance at the workplace;

(d) Requiring that employees behave in conformance with the requirements established under "The Drug-Free

Workplace Act of 1988," 102 Stat. 4304, 41 U.S.C.A. 701, as amended;

(e) Holding an employee who engages in the illegal use of any controlled substance or who has alcoholism to the same qualification standards for employment or job performance, and the same behavior, to which the employer, employment agency, personnel placement service, labor organization, or joint labor-management committee holds other employees, even if any unsatisfactory performance or behavior is related to an employee's illegal use of a controlled substance or alcoholism;

(f) Exercising other authority recognized in the "Americans with Disabilities Act of 1990," 104 Stat. 327, 42 U.S.C.A. 12101, as amended, including, but not limited to, requiring employees to comply with any applicable federal standards.

(3) For purposes of this chapter, a test to determine the illegal use of any controlled substance does not include a medical examination.

(4) Division (N) of this section does not encourage, prohibit, or authorize, and shall not be construed as encouraging, prohibiting, or authorizing, the conduct of testing for the illegal use of any controlled substance by employees, applicants, or other persons, or the making of employment decisions based on the results of that type of testing.

(O) This section does not apply to a religious corporation, association, educational institution, or society with respect to the employment of an individual of a particular religion to perform work connected with the carrying on by that religious corporation, association, educational institution, or society of its activities.

The unlawful discriminatory practices defined in this section do not make it unlawful for a person or an appointing authority administering an examination under section 124.23 of the Revised Code to obtain information about an applicant's military status for the purpose of determining if the applicant is eligible for the additional credit that is available under that section.

Okla. Stat. tit. 25, § 1402

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discriminatory practice (current text, 2025-12-30 edition; retrieved 2026-10-29)

It is a discriminatory practice for a person to deny an individual the full and equal enjoyment of the goods, services, facilities, privileges, advantages, and accommodations of a "place of public accommodation" because of race, color, religion, sex, national origin, age, or disability.

Added by Laws 1968, c. 388, § 402. Amended by Laws 1985, c. 165, § 11, eff. Nov. 1, 1985; Laws 2011, c. 270, § 12, eff. Nov. 1, 2011.

Okla. Stat. tit. 25, § 1452

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discriminatory housing practices - Categories or classes of persons protected - Jurisdiction of Attorney General's Office of Civil Rights Enforcement (current text, 2025-12-30 edition; retrieved 2026-10-29)

A. It shall be an unlawful discriminatory housing practice for any person, or any agent or employee of such person:

1. To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of any housing, or otherwise make unavailable or deny any housing because of race, color, religion, gender, national origin, age, familial status, or disability;

2. To discriminate against any person in the terms, conditions, or privileges of sale or rental of housing, or in the provision of services or facilities in connection with any housing because of race, color, religion, gender, national origin, age, familial status, or disability;

3. To make, print, publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of housing that indicates any preference, limitation, discrimination, or intention to make any such preference, limitation, or discrimination because of race, color, religion, gender, national origin, age, familial status, or disability;

4. To represent to any person, for reasons of discrimination, that any housing is not available for inspection, sale, or rental when such housing is in fact so available because of race, color, religion, gender, national origin, age, familial status, or disability;

5. To deny any person access to, or membership or participation in, a multiple-listing service, real estate brokers' organization or other service, organization, or facility relating to the business of selling or renting dwellings, or discriminate against a person in the terms or conditions of access, membership, or participation in such an organization, service, or facility because of race, color, religion, gender, national origin, age, familial status, or disability;

6. To include in any transfer, sale, rental, or lease of housing any restrictive covenant that discriminates, or for any person to honor or exercise, or attempt to honor or exercise, any discriminatory covenant pertaining to housing because of race, color, religion, gender, national origin, age, familial status, or disability;

7. To refuse to consider the income of both applicants when both applicants seek to buy or lease housing because of race, color, religion, gender, national origin, age, familial status, or disability;

8. To refuse to consider as a valid source of income any public assistance, alimony, or child support, awarded by a court, when that source can be verified as to its amount, length of time received, regularity, or receipt because of race, color, religion, gender, national origin, age, familial status, or disability;
9. To discriminate against a person in the terms, conditions, or privileges relating to the obtaining or use of financial assistance for the acquisition, construction, rehabilitation, repair, or maintenance of any housing because of race, color, religion, gender, national origin, age, familial status, or disability;
10. To discharge, demote, or discriminate in matters of compensation or working conditions against any employee or agent because of the obedience of the employee or agent to the provisions of this section;
11. To solicit or attempt to solicit the listing of housing for sale or lease, by door to door solicitation, in person, or by telephone, or by distribution of circulars, if one of the purposes is to change the racial composition of the neighborhood;
12. To knowingly induce or attempt to induce another person to transfer an interest in real property, or to discourage another person from purchasing real property, by representations regarding the existing or potential proximity of real property owned, used, or occupied by persons of any particular race, color, religion, gender, national origin, age, familial status or disability, or to represent that such existing or potential proximity shall or may result in:
a. the lowering of property values,
b. a change in the racial, religious, or ethnic character of the block, neighborhood, or area in which the property is located,
c. an increase in criminal or antisocial behavior in the area, or
d. a decline in quality of the schools serving the area;
13. To refuse to rent or lease housing to a blind, deaf, or disabled person on the basis of the person's use or possession of a bona fide, properly trained guide, signal, or service dog;
14. To demand the payment of an additional nonrefundable fee or an unreasonable deposit for rent from a blind, deaf, or disabled person for such dog. Such blind, deaf, or disabled person may be liable for any damage done to the dwelling by such dog;
15. a. to discriminate in the sale or rental or otherwise make available or deny a dwelling to any buyer or renter because of a disability of:
(1) that buyer or renter, (2) a person residing in or intending to reside in that dwelling after it is sold, rented, or made available, or
(3) any person associated with that buyer or renter, or
b. to discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling or in the provision of services or facilities in connection with the dwelling because of a disability of:
(1) that person,
(2) a person residing in or intending to reside in that dwelling after it is so sold, rented, or made available, or
(3) any person associated with that person;
16. For purposes of disability discrimination in housing pursuant to Sections 1451 through 1453 of this title, discrimination includes:
a. a refusal to permit, at the expense of the disabled person, reasonable modifications of existing premises occupied or to be occupied by the person if the modifications may be necessary to afford the person full enjoyment of the premises, provided that such person also provides a surety bond guaranteeing restoration of the premises to their prior condition, if necessary to make the premises suitable for nondisabled tenants,
b. a refusal to make reasonable accommodations in rules, policies, practices, or services, when the accommodations may be necessary to afford the person equal opportunity to use and enjoy a dwelling, or
c. in connection with the design and construction of covered multifamily dwellings for first occupancy thirty (30) months after the date of enactment of the federal Fair Housing Amendments Act of 1988 (Public Law 100-430), a failure to design and construct those dwellings in a manner that:
(1) the public use and common use portions of the dwellings are readily accessible to and usable by disabled persons,
(2) all the doors designed to allow passage into and within all premises within the dwellings are sufficiently wide to allow passage by disabled persons in wheelchairs, and
(3) all premises within the dwellings contain the following features of adaptive design:
(a) an accessible route into and through the
dwelling,
(b) light switches, electrical outlets, thermostats, and other environmental controls in accessible locations,
(c) reinforcements in bathroom walls to allow later installation of grab bars, and
(d) usable kitchen and bathrooms so that an individual in a wheelchair can maneuver about the space,
(4) compliance with the appropriate requirements of the American National Standard for buildings and facilities

providing accessibility and usability for physically disabled people, commonly cited as "ANSI A 117.1", suffices to satisfy the requirements of division (3) of this subparagraph,

(5) as used in this subsection, the term "covered multifamily dwellings" means:

(a) buildings consisting of four or more units if the buildings have one or more elevators, and

(b) ground floor units in other buildings consisting of four or more units,

(6) nothing in this subsection requires that a dwelling be made available to an individual whose tenancy would constitute a direct threat to the health or safety of other individuals or whose tenancy would result in substantial physical damage to the property of others; or 17. a. A person whose business includes engaging in residential real estate related transactions may not discriminate against a person in making a real estate related transaction available or in the terms or conditions of a real estate related transaction because of race, color, religion, gender, disability, familial status, national origin or age.

b. In this section, "residential real estate related transaction" means:

(1) making or purchasing loans or providing other financial assistance:

(a) to purchase, construct, improve, repair, or maintain a dwelling, or

(b) to secure residential real estate, or

(2) selling, brokering, or appraising residential real property.

B. This section does not prohibit discrimination against a person because the person has been convicted under federal law or the law of any state of the illegal manufacture or distribution of a controlled substance.

C. No other categories or classes of persons are protected pursuant to Sections 1451 through 1453 of this title. The Attorney General's Office of Civil Rights Enforcement shall have no authority or jurisdiction to act on complaints based on any kind of discrimination other than those kinds of discrimination prohibited pursuant to Section 1101 et seq. of this title or any other specifically authorized by law.

Added by Laws 1985, c. 289, § 2. Amended by Laws 1991, c. 177, § 3; Laws 2011, c. 270, § 14, eff. Nov. 1, 2011; Laws 2013, c. 214, § 7, emerg. eff. May 7, 2013.

Okla. Stat. tit. 68, § 2357.206

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (1).

Oklahoma Equal Opportunity Education Scholarship Act - Tax credit - Definitions (current text, 2025-12-30 edition; retrieved 2026-10-29)

A. This act shall be known and may be cited as the "Oklahoma Equal Opportunity Education Scholarship Act".

B. 1. Except as provided in subsection G of this section, after August 26, 2011, there shall be allowed a credit for any taxpayer who makes a contribution to an eligible scholarship-granting organization.

The credit shall be equal to fifty percent (50%) of the total amount of contributions made during a taxable year, not to exceed One Thousand Dollars ($1,000.00) for single individuals, Two Thousand Dollars ($2,000.00) for married individuals filing jointly, or One Hundred Thousand Dollars ($100,000.00) for any taxpayer which is a legal business entity including limited and general partnerships, corporations, subchapter S corporations and limited liability companies, plus any suspended credits pursuant to subparagraph d of paragraph 2 of subsection I of this section; provided, if total credits claimed pursuant to this paragraph exceed the cap amount established pursuant to paragraphs 1 and 2 of subsection E of this section, the credit shall be equal to the taxpayer's proportionate share of the cap for the taxable year, as determined pursuant to subsection I of this section.

2. For any taxpayer who makes a contribution to an eligible scholarship-granting organization and makes a written commitment to contribute the same amount for an additional year, the credit for the first year and the additional year shall be equal to seventy-five percent (75%) of the total amount of the contribution made during a taxable year, not to exceed the amounts established in paragraph 1 of this subsection for the taxable year in which the credit provided in this subsection is claimed. The taxpayer shall provide evidence of the written commitment to the Oklahoma Tax Commission at the time of filing the refund claim.

3. The credits authorized pursuant to the provisions of this subsection shall be allocable to the partners, shareholders, members, or other equity owners of a taxpayer that is authorized to be treated as a partnership for purposes of federal income tax reporting for the taxable year for which the tax credits authorized by this subsection are claimed on the applicable return, together with required schedules, forms or reports of the partners, shareholders, members, or other equity owners of the taxpayer. Tax credits which are allocated to such equity owners shall only be limited in amount for the income tax return of a natural person or persons based upon the limitation of the total credit amount to the entity from which the tax credits have been allocated and shall not be limited to One Thousand Dollars ($1,000.00) for single individuals or limited to Two Thousand Dollars ($2,000.00) for married persons filing a joint return.

4. On or before April 30, 2024, and once every two (2) years thereafter, such scholarship-granting organization and educational improvement grant organization shall electronically submit to the Oklahoma Tax Commission, the Governor, President Pro Tempore of the Senate, the Speaker of the House of Representatives, and the chairs and vice chairs of the education committees of the Senate and House of Representatives an audited financial statement for the organization along with information detailing the benefits, successes, or failures of the program, and make publicly available on its website the financial statement and information submitted pursuant to this paragraph.

C. 1. Except as provided in subsection G of this section, after August 26, 2011, there shall be allowed a credit for any taxpayer who makes a contribution to an eligible educational improvement grant organization. Except as otherwise provided by paragraph 2 of this subsection, the credit shall be equal to fifty percent (50%) of the total amount of contributions made during a taxable year, not to exceed One Thousand Dollars ($1,000.00) for single individuals, Two Thousand Dollars ($2,000.00) for married individuals filing jointly, or One Hundred Thousand Dollars ($100,000.00) for any taxpayer which is a legal business entity including limited and general partnerships, corporations, subchapter S corporations and limited liability companies, plus any suspended credits pursuant to subparagraph d of paragraph 2 of subsection I of this section; provided, if total credits claimed pursuant to this paragraph exceed the cap amount established pursuant to paragraphs 3 and 4 of subsection E of this section, the credit shall be equal to the taxpayer's proportionate share of the cap for the taxable year, as determined pursuant to subsection I of this section.

2. For any taxpayer who makes a contribution to an eligible educational improvement grant organization and makes a written commitment to contribute the same amount for an additional year, the credit for the first year and the additional year shall be equal to seventy-five percent (75%) of the total amount of the contribution made during a taxable year, not to exceed the cap amount established in paragraphs 3 and 4 of subsection E of this section for the taxable year in which the credit provided in this paragraph is claimed; provided, if total credits claimed pursuant to this paragraph exceed the cap established pursuant to paragraphs 3 and 4 of subsection E of this section, the credit shall be equal to the taxpayer's proportionate share of the cap for the taxable year, as determined pursuant to subsection I of this section. The taxpayer shall provide evidence of the written commitment to the Oklahoma Tax Commission at the time of filing the refund claim.

3. The credits authorized pursuant to the provisions of this subsection shall be allocable to the partners, shareholders, members, or other equity owners of a taxpayer that is authorized to be treated as a partnership for purposes of federal income tax reporting for the taxable year for which the tax credits authorized by this subsection are claimed on the applicable return, together with required schedules, forms, or reports of the partners, shareholders, members, or other equity owners of the taxpayer. Tax credits which are allocated to such equity owners shall only be limited in amount for the income tax return of a natural person or persons based upon the limitation of the total credit amount to the entity from which the tax credits have been allocated and shall not be limited to One Thousand Dollars ($1,000.00) for single individuals or limited to Two Thousand Dollars ($2,000.00) for married persons filing a joint return.

D. 1. For contributions made on or after January 1, 2022, there shall be allowed a credit for any taxpayer who makes a contribution to an eligible public school foundation or public school district. Except as otherwise provided by paragraph 2 of this subsection, the credit shall be equal to fifty percent (50%) of the total amount of contributions made during a taxable year, not to exceed One Thousand Dollars ($1,000.00) for single individuals, Two Thousand Dollars ($2,000.00) for married individuals filing jointly, or One Hundred Thousand Dollars ($100,000.00) for any taxpayer which is a legal business entity including limited and general partnerships, corporations, subchapter S corporations and limited liability companies; provided, if total credits claimed pursuant to this paragraph exceed the cap amount established pursuant to paragraph 4 of subsection E of this section, the credit shall be equal to the taxpayer's proportionate share of the cap for the taxable year, as determined pursuant to subsection I of this section.

2. Except as otherwise provided by paragraph 1 of this subsection, for any taxpayer who makes a contribution to an eligible public school foundation or public school district and makes a written commitment to contribute the same amount for an additional year, the credit for the first year and the additional year shall be equal to seventy-five percent (75%) of the total amount of the contribution made during a taxable year, not to exceed the cap amount established in paragraph 4 of subsection E of this section for the taxable year in which the credit provided in this paragraph is claimed. The taxpayer shall provide evidence of the written commitment to the Oklahoma Tax Commission at the time of filing the refund claim; provided, if total credits claimed pursuant to this paragraph exceed the cap amount established pursuant to paragraph 4 of subsection E of this section, the credit shall be equal to the taxpayer's proportionate share of the cap for the taxable year, as determined pursuant to subsection I of this section.

3. The credits authorized pursuant to the provisions of this subsection shall be allocable to the partners, shareholders, members, or other equity owners of a taxpayer that is authorized to be treated as a partnership for purposes of federal income tax reporting for the taxable year for which the tax credits authorized by this subsection are claimed on the applicable return, together with required schedules, forms, or reports of the partners, shareholders, members, or other equity owners of the taxpayer. Tax credits which are allocated to such equity owners shall only be limited in amount for the income tax return of a natural person or persons based upon the limitation of the total credit amount to the

entity from which the tax credits have been allocated and shall not be limited to One Thousand Dollars ($1,000.00) for single individuals or limited to Two Thousand Dollars ($2,000.00) for married persons filing a joint return.

4. On or before April 30, 2024, and once every four (4) years thereafter, such eligible public school foundation and public school district shall submit to the Oklahoma Tax Commission, the Governor, President Pro Tempore of the Senate, and the Speaker of the House of Representatives an audited financial statement for the organization along with information detailing the benefits, successes, or failures of the programs.

E. Except as otherwise provided pursuant to subsection I of this section:

1. The total credits authorized pursuant to subsection B of this section for all taxpayers for tax years 2017 through 2021 shall not exceed Three Million Five Hundred Thousand Dollars ($3,500,000.00) annually;

2. The total credits authorized pursuant to subsection B of this section for all taxpayers for tax years 2022 and subsequent tax years shall not exceed Twenty-five Million Dollars ($25,000,000.00) annually;

3. The total credits authorized pursuant to subsection C of this section for all taxpayers for tax years 2017 through 2021 shall not exceed One Million Five Hundred Thousand Dollars ($1,500,000.00) annually;

4. The total credits authorized pursuant to subsections C and D of this section for all taxpayers for tax year 2022 and subsequent tax years shall not exceed Twenty-five Million Dollars ($25,000,000.00) annually. In addition to the cap amount prescribed by this paragraph, the credit amount shall also be limited to Two Hundred Thousand Dollars ($200,000.00) of credits per public school district annually; and

5. The cap on total credits provided for in this subsection shall be allocated by the Tax Commission as provided in subsection I of this section.

F. For credits claimed for eligible contributions made during tax year 2014 and thereafter, a credit shall not be allowed by the Oklahoma Tax Commission for contributions made to a scholarship-granting organization or an educational improvement grant organization if that organization's percentage of funds actually awarded is less than ninety percent (90%). For purposes of this section, the "percentage of funds actually awarded" shall be determined by dividing the total amount of funds actually awarded as educational scholarships or educational improvement grants over the most recent twenty-four (24) months by the total amount available to award as educational scholarships or educational improvement grants over the most recent twenty-four (24) months.

G. Any tax credits which are earned by a taxpayer pursuant to this section during the time period beginning August 26, 2011, through December 31, 2012, may not be claimed for any period prior to the taxable year beginning January 1, 2013. No credits which accrue during the time period beginning August 26, 2011, through December 31, 2012, may be used to file an amended tax return for any taxable year prior to the taxable year beginning January 1, 2013.

H. As used in this section:

1. "Eligible student" means a child of school age who is lawfully present in the United States and who is a member of a household in which the total annual income during the preceding tax year does not exceed an amount equal to three hundred percent (300%) of the income standard used to qualify for a free or reduced-price school lunch or who, during the immediately preceding school year, attended or, by virtue of the location of such student's place of residence, was eligible to attend a public school in this state which has been identified for school improvement as determined by the State Board of Education pursuant to the requirements of the No Child Left Behind Act of 2001, P.L. No. 107-110. Once a student has received an educational scholarship, as defined in paragraph 3 of this subsection, the student and any siblings who are members of the same household shall remain eligible until they graduate from high school or reach twenty-one (21) years of age, whichever occurs first;

2. "Eligible special needs student" means a child who has been provided services under an Individualized Family Service Plan through the SoonerStart program and during transition was evaluated and determined to be eligible for school district services, a child of school age who has attended public school in our state with an individualized education program pursuant to the Individuals With Disabilities Education Act, 20 U.S.C.A., Section 1400 et seq., or a child who has been diagnosed by a clinical professional as having a significant disability that will affect learning and who has been approved by the board of a scholarship-granting organization;

3. "Educational scholarships" means:

a. scholarships to an eligible student of up to Five Thousand Dollars ($5,000.00) or eighty percent (80%) of the statewide annual average per-pupil expenditure as determined by the National Center for Education Statistics, U.S. Department of Education, whichever is greater, to cover all or part of the tuition, fees, and transportation costs of a qualified school which is accredited by the State Board of Education or an accrediting association approved by the Board pursuant to Section 3-104 of Title 70 of the Oklahoma Statutes,

b. scholarships to an eligible student of up to Five Thousand Dollars ($5,000.00) or eighty percent (80%) of the statewide annual average per-pupil expenditure as determined by the National Center for Education Statistics, U.S. Department of Education, whichever is greater, to cover the educational costs of a qualified school which does not charge tuition, which enrolls special populations of students, and which is accredited by the State Board of Education or an accrediting association approved by the Board pursuant to Section 3-104 of Title 70 of the

Oklahoma Statutes, or

c. scholarships to an eligible special needs student of up to Twenty-five Thousand Dollars ($25,000.00) to cover all or part of the tuition, fees, and transportation costs of a qualified school for eligible special needs students which is accredited by the State Board of Education or an accrediting association approved by the Board pursuant to Section 3-104 of Title 70 of the Oklahoma Statutes;

4. "Low-income eligible student" means an eligible student or eligible special needs student who qualifies for a free or reduced-price lunch;

5. "Qualified school" means an early childhood, elementary, or secondary private school in this state including schools which provide special educational programs for three-year-olds or prekindergarten educational programs for four-year-olds, which:

a. is accredited by the State Board of Education or an accrediting association approved by the Board pursuant to Section 3-104 of Title 70 of the Oklahoma Statutes,

b. is in compliance with all applicable health and safety laws and codes,

c. has a stated policy against discrimination in admissions on the basis of race, color, national origin, or disability, and

d. ensures academic accountability to parents and guardians of students through regular progress reports;

6. "Qualified school for eligible special needs students" means an early childhood, elementary, or secondary private school in a county in this state including schools which provide special educational programs for three-year-olds or prekindergarten educational programs for four-year-olds;

7. "Scholarship-granting organization" means an organization which:

a. is a nonprofit entity exempt from taxation pursuant to the provisions of the Internal Revenue Code, 26 U.S.C., Section 501(c)(3),

b. distributes periodic scholarship payments as checks made out to an eligible student's or eligible special needs student's parent or guardian and mailed to the qualified school where the student is enrolled,

c. spends no more than ten percent (10%) of its annual revenue on expenditures other than educational scholarships as defined in paragraph 3 of this subsection,

d. spends each year a portion of its expenditures on educational scholarships for low-income eligible students, as defined in paragraph 4 of this subsection, in an amount equal to or greater than the percentage of low-income eligible students in the state, e. ensures that scholarships are portable during the school year and can be used at any qualified school that accepts the eligible student or at any qualified school for special needs students that accepts the eligible special needs student,

f. registers with the Oklahoma Tax Commission as a scholarship-granting organization, and

g. has policies in place to:

(1) carry out criminal background checks on all employees and board members to ensure that no individual is involved with the organization who might reasonably pose a risk to the appropriate use of contributed funds, and

(2) maintain full and accurate records with respect to the receipt of contributions and expenditures of those contributions and supply such records and any other documentation required by the Tax Commission to demonstrate financial accountability;

8. "Annual revenue" means the total amount or value of contributions received by an organization from taxpayers awarded credits during the organization's fiscal year and all amounts earned from interest or investments;

9. "Public school" means public schools as defined in Section 1-106 of Title 70 of the Oklahoma Statutes;

10. "Eligible public school district" means any public school;

11. "Early childhood education program" means a special educational program for eligible special needs students who are three (3) years of age or a prekindergarten educational program provided to children who are at least four (4) years of age but not more than five (5) years of age on or before September 1;

12. "Innovative educational program" means an advanced academic or academic improvement program that is not part of the regular coursework of a public school but that enhances the curriculum or academic program of the school or provides early childhood education programs to students;

13. "Educational improvement grant" means a grant to an eligible public school to implement an innovative educational program for students including the ability for multiple public schools to make an application and be awarded a grant to jointly provide an innovative educational program;

14. "Educational improvement grant organization" means an organization which:

a. is a nonprofit entity exempt from taxation pursuant to the provisions of the Internal Revenue Code, 26 U.S.C., Section 501(c)(3), and b. contributes at least ninety percent (90%) of its annual receipts as grants to eligible schools for innovative educational programs. For purposes of this subparagraph, an educational improvement grant organization contributes its annual cash receipts when it expends or otherwise irrevocably encumbers those funds

for expenditure during the then current fiscal year of the organization or during the next succeeding fiscal year of the organization; and

15. "Eligible public school foundation" means a nonprofit entity formed pursuant to the laws of this state and is exempt from federal income taxation pursuant to either Section 501(c)(3) or Section 509(a) of the Internal Revenue Code of 1986, as amended. Each public school foundation must be approved by the local board of education prior to accepting qualifying donations.

I. Total credits authorized by this section shall be allocated as follows:

1. By January 10 of the year immediately following each calendar year, a scholarship-granting organization, an educational improvement grant organization, an eligible public school foundation, or public school district which accepts contributions pursuant to this section shall provide electronically to the Tax Commission information on each contribution accepted during such taxable year. At least once each taxable year, the entity making the report shall notify each contributor that Oklahoma law provides for a total, statewide cap on the amount of income tax credits allowed annually;

2. a. If the Tax Commission determines the total combined credits claimed for contributions made to scholarship-granting organizations during the most recently completed calendar year by all taxpayers are in excess of the statewide cap amount provided in paragraphs 1 and 2 of subsection E of this section, the Tax Commission shall first allocate any amount of credits not claimed for contributions made to organizations authorized pursuant to subsections C and D of this section, then shall determine the percentage of the contribution which establishes the proportionate share of the credit which may be claimed by any taxpayer so that the total maximum credits authorized by this section are not exceeded.

b. If the Tax Commission determines the total combined credits claimed for contributions made to organizations authorized pursuant to subsections C and D of this section during the most recently completed calendar year by all taxpayers are in excess of the statewide cap amount provided in paragraphs 3 and 4 of subsection E of this section, the Tax Commission shall first allocate any amount of credits not claimed for contributions made to scholarship-granting organizations, then shall determine the percentage of the contribution which establishes the proportionate share of the credit which may be claimed by any taxpayer so that the maximum credits authorized by this section are not exceeded.

c. If the Tax Commission determines the total combined credits claimed for contributions made to organizations authorized pursuant to subsections C and D of this section during the most recently completed calendar year by all taxpayers are in excess of the per public school district cap pursuant to paragraph 4 of subsection E of this section, the Tax Commission shall first allocate any amount of credits not claimed for contributions made to other organizations authorized pursuant to subsections C and D of this section, then shall determine the percentage of the contribution which establishes the proportionate share of the credit which may be claimed by any taxpayer so that the maximum credits authorized by this section are not exceeded.

d. Beginning for tax year 2016, credits earned, but not allowed due to the application of statewide caps provided in subsection E of this section will be considered suspended and authorized to be used in the next immediate tax year and applied to the next year's statewide cap; and

3. The Tax Commission shall publish the percentage of the contribution which may be claimed as a credit by contributors for the most recently completed calendar year on the Tax Commission website no later than February 15 of each calendar year for contributions made the previous year. Each organization authorized pursuant to subsections B, C, and D of this section shall notify contributors of that amount annually.

J. No tax credits authorized by this section shall be used to reduce the tax liability of the taxpayer to less than zero (0).

K. Any credits authorized by this section allowed but not used in any tax year may be carried over, in order, to each of the three (3) years following the year of qualification.

L. 1. In order to qualify under this section, each organization authorized pursuant to subsections C and D of this section shall submit an application with information to the Oklahoma Tax Commission on a form prescribed by the Tax Commission that:

a. enables the Tax Commission to confirm that the organization is a nonprofit entity exempt from taxation pursuant to the provisions of the Internal Revenue Code, 26 U.S.C., Section 501(c)(3) or Section 509(a), and

b. describes the proposed innovative educational program or programs supported by the organization.

2. The Tax Commission shall review and approve or disapprove the application, in consultation with the State Department of Education.

3. In order to maintain eligibility under this section, an organization authorized pursuant to subsections C and D of this section shall annually report the following information to the Tax Commission and publish on its website by September 1 of each year:

a. the name of the innovative educational program or programs and the total amount of the grant or grants made to those programs during the immediately preceding school year,

b. a description of how each grant was utilized during the immediately preceding school year and a description of any demonstrated or expected innovative educational improvements,

c. the names of the public school and school districts where innovative educational programs that received grants during the immediately preceding school year were implemented,

d. where the organization collects information on a county-by-county basis, and

e. the total number and total amount of grants made during the immediately preceding school year for innovative educational programs at public school by each county in which the organization made grants.

4. The information required under paragraph 3 of this subsection shall be submitted on a form provided by the Tax Commission. No later than May 1 of each year, the Tax Commission shall annually distribute sample forms together with the forms on which the reports are required to be made to each approved organization.

5. The Tax Commission shall not require any other information be provided by an organization, except as expressly authorized in this section.

M. 1. Beginning in 2023 for the 2022-2023 academic year, in order to maintain registration, a scholarship-granting organization shall annually report to the Tax Commission by September 1 of each year the following information regarding the educational scholarships funded by the organization in the previous academic year:

a. the name and address of the scholarship-granting organization,

b. the names of the qualifying schools that received funding for educational scholarships, the total amount of funds paid to each qualifying school, and the total number of scholarship recipients enrolled in each qualifying school,

c. the total number and total dollar amount of contributions received during the previous academic year,

d. the total number and total dollar amount of educational scholarships awarded and funded during the previous academic year,

e. the total number, total dollar amount, and percentage of educational scholarships awarded and funded during the previous academic year disaggregated into the following categories:

(1) low-income eligible students,

(2) students who during the immediately preceding school year attended or who were eligible by virtue of the residence of the student to attend a public school in the state which was identified for school improvement by the State Board of Education,

(3) eligible special needs students, and

(4) students who were first-time recipients of a scholarship including information about the type of public or private school the student was enrolled in during the entire previous academic year,

f. the percentage of annual revenue received by the organization from donations which qualify for tax credits pursuant to this section which was not expended on scholarships,

g. disaggregated data reported under this subsection shall be redacted if reporting would allow for identification of specific children, and shall be reported in accordance with the Student Data Accessibility, Transparency and Accountability Act of 2013, division b of subparagraph 2 of subsection C of Section 3-168 of Title 70 of the Oklahoma Statutes, and the Family Educational Rights and Privacy Act of 1974 (FERPA), 20 U.S.C., Section 1232g, and

h. the percentage of the total amount of education scholarship expenditures spent on low-income eligible students.

2. The Tax Commission shall make available on its website:

a. the information submitted by the scholarship-granting organization pursuant to paragraph 1 of this subsection,

b. a list of participating schools, and

c. all other application information submitted to the Tax Commission by a scholarship-granting organization, except that information which would violate the privacy of an individual.

3. A scholarship-granting organization shall annually submit verification to the Tax Commission that the organization still meets the criteria set forth in paragraph 7 of subsection H of this section.

N. Contributions made pursuant to subsections B, C, and D of this section shall not be used by the Legislature to reduce the amount appropriated for the financial support of public schools.

O. In consultation with the State Department of Education, the Tax Commission shall promulgate rules necessary to implement the Oklahoma Equal Opportunity Education Scholarship Act. The rules shall include procedures for the registration of a scholarship-granting organization, an educational improvement grant organization, a public school foundation, or public school district for purposes of determining if the organization meets the requirements of the Oklahoma Equal Opportunity Education Scholarship Act or for the revocation of the registration of an organization, if applicable, and for notice as required in subsection I of this section.

Added by Laws 2011, c. 243, § 1. Amended by Laws 2014, c. 349, § 1, eff. Jan. 1, 2015; Laws 2015, c. 361, § 1, eff. Jan. 1, 2016; Laws 2017, c. 288, § 1, eff. Nov. 1, 2017; Laws 2021, c. 499, § 1, eff. Nov. 1, 2021; Laws 2022, c. 49, § 1, eff. Nov. 1, 2022.

Or. Rev. Stat. § 659A.030

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discrimination because of race, color, religion, sex, sexual orientation, gender identity, national origin, marital status, age or expunged juvenile record prohibited (current text, 2025 edition; retrieved 2026-10-29)

(1) It is an unlawful employment practice:

(a) For an employer, because of an individual's race, color, religion, sex, sexual orientation, gender identity, national origin, marital status or age if the individual is 18 years of age or older, or because of the race, color, religion, sex, sexual orientation, gender identity, national origin, marital status or age of any other person with whom the individual associates, or because of an individual's juvenile record that has been expunged pursuant to ORS 419A.260 to 419A.271, to refuse to hire or employ the individual or to bar or discharge the individual from employment. However, discrimination is not an unlawful employment practice if the discrimination results from a bona fide occupational qualification reasonably necessary to the normal operation of the employer's business.

(b) For an employer, because of an individual's race, color, religion, sex, sexual orientation, gender identity, national origin, marital status or age if the individual is 18 years of age or older, or because of the race, color, religion, sex, sexual orientation, gender identity, national origin, marital status or age of any other person with whom the individual associates, or because of an individual's juvenile record that has been expunged pursuant to ORS 419A.260 to 419A.271, to discriminate against the individual in compensation or in terms, conditions or privileges of employment.

(c) For a labor organization, because of an individual's race, color, religion, sex, sexual orientation, gender identity, national origin, marital status or age if the individual is 18 years of age or older, or because of an individual's juvenile record that has been expunged pursuant to ORS 419A.260 to 419A.271, to exclude or to expel from its membership the individual or to discriminate in any way against the individual or any other person.

(d) For any employer or employment agency to print or circulate or cause to be printed or circulated any statement, advertisement or publication, or to use any form of application for employment or to make any inquiry in connection with prospective employment that expresses directly or indirectly any limitation, specification or discrimination as to an individual's race, color, religion, sex, sexual orientation, gender identity, national origin, marital status or age if the individual is 18 years of age or older, or on the basis of an expunged juvenile record, or any intent to make any such limitation, specification or discrimination, unless based upon a bona fide occupational qualification. Identification of prospective employees according to race, color, religion, sex, sexual orientation, gender identity, national origin, marital status or age does not violate this section unless the Commissioner of the Bureau of Labor and Industries, after a hearing conducted pursuant to ORS 659A.805, determines that the designation expresses an intent to limit, specify or discriminate on the basis of race, color, religion, sex, sexual orientation, gender identity, national origin, marital status or age.

(e) For an employment agency, because of an individual's race, color, religion, sex, sexual orientation, gender identity, national origin, marital status or age if the individual is 18 years of age or older, or because of the race, color, religion, sex, sexual orientation, gender identity, national origin, marital status or age of any other person with whom the individual associates, or because of an individual's juvenile record that has been expunged pursuant to ORS 419A.260 to 419A.271, to classify or refer for employment, or to fail or refuse to refer for employment, or otherwise to discriminate against the individual. However, it is not an unlawful employment practice for an employment agency to classify or refer for employment an individual when the classification or referral results from a bona fide occupational qualification reasonably necessary to the normal operation of the employer's business.

(f) For an employer, prospective employer or employment agency, prior to completing an initial interview, or if there is no initial interview, prior to making a conditional offer of employment, to request or require disclosure of the applicant's age or date of birth or when the applicant attended or graduated from any educational institution, except when such information is required to:

(A) Affirm that the applicant meets bona fide occupational qualifications; or

(B) Comply with any provision of federal, state or local law, rule or regulation.

(g) For any person to discharge, expel or otherwise discriminate against any other person because that other person has opposed any unlawful practice, or because that other person has filed a complaint, testified or assisted in any proceeding under this chapter or has attempted to do so.

(h) For any person, whether an employer or an employee, to aid, abet, incite, compel or coerce the doing of any of the acts forbidden under this chapter or to attempt to do so.

(2) The provisions of this section apply to an apprentice under ORS 660.002 to 660.210. The commissioner shall administer this section with respect to apprentices under ORS 660.002 to 660.210 equally with regard to all employees and labor organizations.

(3) The compulsory retirement of employees required by law at any age is not an unlawful employment practice if lawful under federal law.

(4) (a) It is not an unlawful employment practice for an employer or labor organization to provide or make financial

provision for child care services of a custodial or other nature to its employees or members who are responsible for a minor child.

(b) As used in this subsection, "responsible for a minor child" means having custody or legal guardianship of a minor child or acting in loco parentis to the child.

(5) This section does not prohibit an employer from enforcing an otherwise valid dress code or policy, as long as the employer provides, on a case-by-case basis, for reasonable accommodation of an individual based on the health and safety needs of the individual and the dress code or policy does not have a disproportionate adverse impact on members of a protected class to a greater extent than the policy impacts persons generally. [Formerly 659.030; 2007 c.100 §4; 2021 c.239 §4; 2021 c.367 §35; 2021 c.585 §10; 2025 c.125 §1]

Pa. Const. art. II

Cited by the petitioners 0 times (0 filings) and their amici 8 (2); by the respondent 0 (0) and its amici 0 (0).

Pa. Const. art. II (current text, retrieved 2026-10-26)

§ 1 *Legislative power.*
§ 2 *Election of members; vacancies.*
§ 3 *Terms of members.*
§ 4 *Sessions.*
§ 5 *Qualifications of members.*
§ 6 *Disqualification to hold other office.*
§ 7 *Ineligibility by criminal convictions.*
§ 8 *Compensation.*
§ 9 *Election of officers; judge of election and qualifications.*
§ 10 *Quorum.*
§ 11 *Powers of each house; expulsion.*
§ 12 *Journals; yeas and nays.*
§ 13 *Open sessions.*
§ 14 *Adjournments.*
§ 15 *Privileges of members.*
§ 16 *Legislative districts.*
§ 17 *Legislative Reapportionment Commission.*
§ 1 *Adjustments of terms of public officers.*

24 Pa. Cons. Stat. § 20

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Applicability of provisions relating to termination of annuities (Repealed) (current text, retrieved 2026-10-29)

35 Pa. Cons. Stat. § 5601

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Definitions (current text, retrieved 2026-10-29)

The following words and phrases when used in this chapter shall have the meanings given to them in this section unless the context clearly indicates otherwise:

"Commission." The Pennsylvania Commission on Crime and Delinquency.

"Eligible applicant." A nonprofit organization.

"Eligible project." Security enhancements designed to protect the safety and security of the users of a facility located in this Commonwealth that is owned or operated by a nonprofit organization.

"Facility." A building or portion of a building owned or operated by a nonprofit organization and used to carry out the organization's mission, including community space, community centers, day-care or adult care facilities.

"Fund." The Nonprofit Security Grant Fund established under section 5602 (relating to Nonprofit Security Grant Fund).

"Nonprofit organization." A corporation or other entity based in this Commonwealth which:

(1) is an exempt organization as defined under section 501(c)(3) of the Internal Revenue Code of 1986 (Public Law 99-514, 26 U.S.C. § 501(c)(3)); and

(2) principally serves individuals, groups or institutions that are included within a bias motivation category for single bias hate crime incidents identified by the Federal Bureau of Investigation in its 2017 Hate Crime Statistics publication under the Uniform Crime Reporting Program.

"Security enhancements." The term includes:

(1) Safety and security planning.

(2) Purchase of safety and security equipment.

(3) Purchase of security-related technology, which may include, but is not limited to:
- **(i)** Metal detectors.
- **(ii)** Protective lighting.
- **(iii)** Surveillance equipment.
- **(iv)** Special emergency communications equipment.
- **(v)** Electronic locksets.
- **(vi)** Deadbolts.
- **(vii)** Trauma kits.
- **(viii)** Theft control devices.

(4) Safety and security training.
(5) Threat awareness and response training.
(6) Upgrades to existing structures that enhance safety and security.
(7) Vulnerability and threat assessments.
(8) Specialty trained canines.
(9) Any other safety- or security-related project that enhances safety or security of the nonprofit organization.

43 Pa. Cons. Stat. § 955

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 3 (1).

Text not stored locally (not in title-43.xml (renumbered or repealed since, or a cite we misread)).

R.I. Gen. Laws § 11-24-2

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discriminatory practices prohibited (current text, retrieved 2026-10-29)

No person, being the owner, lessee, proprietor, manager, superintendent, agent, or employee of any place of public accommodation, resort, or amusement shall directly or indirectly refuse, withhold from, or deny to any person on account of race or color, religion, country of ancestral origin, disability, age, sex, sexual orientation, gender identity or expression, any of the accommodations, advantages, facilities, or privileges of that public place. No person shall directly or indirectly publish, circulate, issue, display, post, or mail any written, printed or painted communication, notice, or advertisement, to the effect that any of the accommodations, advantages, facilities, and privileges of any public accommodation place shall be refused, withheld from, or denied to any person on account of race or color, religion, country of ancestral origin, disability, sex or sexual orientation, gender identity or expression, or age or that the patronage or custom at that place of any person belonging to or purporting to be of any particular race or color, religion, country of ancestral origin, disability, age, sex, sexual orientation, or gender identity or expression is unwelcome, objectionable, or not acceptable, desired, or solicited. The production of any written, printed, or painted communication, notice, or advertisement, purporting to relate to any public place and to be made by any person being its owner, lessee, proprietor, superintendent, or manager, shall be presumptive evidence in any action that its production was authorized by that person.

History of Section. G.L. 1896, ch. 277, § 27; G.L. 1909, ch. 343, § 28; G.L. 1923, ch. 395, § 28; P.L. 1925, ch. 658, § 1; G.L. 1938, ch. 606, § 28; P.L. 1952, ch. 2958, § 2; G.L. 1956, § 11-24-2; P.L. 1979, ch. 144, § 5; P.L. 1988, ch. 227, § 1; P.L. 1993, ch. 126, § 1; P.L. 1995, ch. 32, § 6; P.L. 1997, ch. 150, § 1; P.L. 2001, ch. 340, § 5.

R.I. Gen. Laws § 34-37-3

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Definitions (current text, retrieved 2026-10-29)

When used in this chapter:

(1) "Age" means anyone over the age of eighteen (18).

(2) "Armed forces" means the Army, Navy, Marine Corps, Coast Guard, Merchant Marines, Space Force, or Air Force of the United States and the Rhode Island National Guard.

(3) "Commission" means the Rhode Island commission for human rights created by § 28-5-8.

(4) "Disability" means a disability as defined in § 42-87-1.

Provided, further, that the term "disability" does not include current, illegal use of, or addiction to, a controlled substance, as defined in 21 U.S.C. § 802.

(5) "Discriminate" includes segregate, separate, or otherwise differentiate between or among individuals because of race, color, religion, sex, sexual orientation, gender identity or expression, marital status, lawful source of income, military status as a veteran with an honorable discharge or an honorable or general administrative discharge, servicemember in the armed forces, country of ancestral origin, disability, age, housing status, or familial status or because of the race, color, religion, sex, sexual orientation, gender identity or expression, marital status, lawful source of income, military status as a veteran with an honorable discharge or an honorable or general administrative discharge, servicemember in

the armed forces, country of ancestral origin, disability, age, housing status, or familial status of any person with whom they are, or may wish to be, associated.

(6) The term "domestic abuse" for the purposes of this chapter shall have the same meaning as that set forth in § 15-15-1 and include all forms of domestic violence as set forth in § 12-29-2, except that the domestic abuse need not involve a minor or parties with minor children.

(7) (i) "Familial status" means one or more individuals who have not attained the age of eighteen (18) years being domiciled with:

(A) A parent or another person having legal custody of the individual or individuals; or

(B) The designee of the parent or other person having the custody, with the written permission of the parent or other person, provided that, if the individual is not a relative or legal dependent of the designee, that the individual shall have been domiciled with the designee for at least six (6) months.

(ii) The protections afforded against discrimination on the basis of familial status shall apply to any person who is pregnant or is in the process of securing legal custody of any individual who has not attained the age of eighteen (18) years.

(8) The terms, as used regarding persons with disabilities, "auxiliary aids and services," "reasonable accommodation," and "reasonable modifications" have the same meaning as those terms are defined in § 42-87-1.1.

(9) The term "gender identity or expression" includes a person's actual or perceived gender, as well as a person's gender identity, gender-related self image, gender-related appearance, or gender-related expression; whether or not that gender identity, gender-related self image, gender-related appearance, or gender-related expression is different from that traditionally associated with the person's sex at birth.

(10) "Housing accommodation" includes any building or structure, or portion of any building or structure, or any parcel of land, developed or undeveloped, that is occupied or is intended, designed, or arranged to be occupied, or to be developed for occupancy, as the home or residence of one or more persons.

(11) "Otherwise qualified" includes any person with a disability who, with respect to the rental of property, personally or with assistance arranged by the person with a disability, is capable of performing all the responsibilities of a tenant as contained in § 34-18-24.

(12) "Owner" includes any person having the right to sell, rent, lease, or manage a housing accommodation.

(13) "Person" includes one or more individuals, partnerships, associations, organizations, corporations, labor organizations, mutual companies, joint stock companies, trusts, receivers, legal representatives, trustees, other fiduciaries, or real estate brokers or real estate salespersons as defined in chapter 20.5 of title 5.

(14) "Senior citizen" means a person sixty-two (62) years of age or older.

(15) The term "sexual orientation" means having, or being perceived as having, an orientation for heterosexuality, bisexuality, or homosexuality.

(16) The term "victim" means a family or household member and all other persons contained within the definition of those terms as defined in § 12-29-2.

(17) The term "housing status" means the status of having or not having a fixed or regular residence, including the status of living on the streets or in a homeless shelter or similar temporary residence.

(18) The term "lawful source of income" means and includes any income, benefit, or subsidy derived from child support; alimony; Social Security; Supplemental Security Income; any other federal, state, or local public assistance program, including, but not limited to, medical or veterans assistance; any federal, state, or local rental assistance or housing subsidy program, including Section 8 Housing Choice Vouchers as authorized by 42 U.S.C. § 1437; and any requirement associated with such public assistance, rental assistance, or housing subsidy program.

History of Section. P.L. 1965, ch. 27, § 1; P.L. 1968, ch. 58, § 1; P.L. 1968, ch. 160, § 2; P.L. 1970, ch. 25, § 1; P.L. 1977, ch. 214, § 1; P.L. 1979, ch. 144, §§ 3, 4; P.L. 1985, ch. 415, § 1; P.L. 1988, ch. 455, § 1; P.L. 1990, ch. 398, § 1; P.L. 1995, ch. 32, § 2; P.L. 1997, ch. 150, § 8; P.L. 2000, ch. 499, § 3; P.L. 2000, ch. 507, § 3; P.L. 2001, ch. 340, § 2; P.L. 2002, ch. 118, § 2; P.L. 2002, ch. 224, § 2; P.L. 2009, ch. 96, § 4; P.L. 2009, ch. 97, § 4; P.L. 2011, ch. 363, § 18; P.L. 2012, ch. 316, § 2; P.L. 2012, ch. 356, § 2; P.L. 2015, ch. 161, § 1; P.L. 2015, ch. 180, § 1; P.L. 2021, ch. 3, § 1, effective April 15, 2021; P.L. 2021, ch. 4, § 1, effective April 15, 2021; P.L. 2021, ch. 124, § 1, effective July 2, 2021; P.L. 2021, ch. 125, § 1, effective July 2, 2021; P.L. 2025, ch. 165, § 18, effective June 24, 2025; P.L. 2025, ch. 166, § 18, effective June 24, 2025.

R.I. Gen. Laws § 34-37-4

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Unlawful housing practices (current text, retrieved 2026-10-29)

(a) No owner having the right to sell, rent, lease, or manage a housing accommodation as defined in § 34-37-3, or an agent of any of these, shall, directly or indirectly, make, or cause to be made, any written or oral inquiry concerning the race, color, religion, sex, sexual orientation, gender identity or expression, marital status, lawful source of income, military status as a veteran with an honorable discharge or an honorable or general administrative discharge, servicemember

in the armed forces, country of ancestral origin, or disability, age, familial status nor make any written or oral inquiry concerning whether a tenant or applicant or a member of the household is, or has been, or is threatened with being the victim of domestic abuse, or whether a tenant or applicant has obtained, or sought, or is seeking relief from any court in the form of a restraining order for protection from domestic abuse, of any prospective purchaser, occupant, or tenant of the housing accommodation; directly or indirectly, refuse to sell, rent, lease, let, or otherwise deny to or withhold from any individual the housing accommodation because of the race, color, religion, sex, sexual orientation, gender identity or expression, marital status, lawful source of income, military status as a veteran with an honorable discharge or an honorable or general administrative discharge, servicemember in the armed forces, country of ancestral origin, disability, age, or familial status of the individual or the race, color, religion, sex, sexual orientation, gender identity or expression, marital status, lawful source of income, military status as a veteran with an honorable discharge or an honorable or general administrative discharge, servicemember in the armed forces, country of ancestral origin or disability, age, or familial status of any person with whom the individual is or may wish to be associated; or shall, or on the basis that a tenant or applicant, or a member of the household, is or has been, or is threatened with being, the victim of domestic abuse, or that the tenant or applicant has obtained, or sought, or is seeking, relief from any court in the form of a restraining order for protection from domestic abuse. Nor shall an owner having the right to sell, rent, lease, or manage a housing accommodation as defined in § 34-37-3, or an agent of any of these, directly or indirectly, issue any advertisement relating to the sale, rental, or lease of the housing accommodation that indicates any preference, limitation, specification, or discrimination based upon race, color, religion, sex, sexual orientation, gender identity or expression, marital status, lawful source of income, military status as a veteran with an honorable discharge or an honorable or general administrative discharge, servicemember in the armed forces, country of ancestral origin, disability, age, familial status, or on the basis that a tenant or applicant or a member of the household is, or has been, or is threatened with being the victim of domestic abuse, or that the tenant or applicant has obtained, or sought, or is seeking relief from any court in the form of a restraining order for protection from domestic abuse, or shall, directly or indirectly, discriminate against any individual because of his or her race, color, religion, sex, sexual orientation, gender identity or expression, marital status, lawful source of income, military status as a veteran with an honorable discharge or an honorable or general administrative discharge, servicemember in the armed forces, country of ancestral origin, disability, age, familial status, or on the basis that a tenant or applicant or a member of the household is, or has been, or is threatened with being the victim of domestic abuse, or that the tenant or applicant has obtained, or sought, or is seeking relief from any court in the form of a restraining order for protection from domestic abuse, in the terms, conditions, or privileges of the sale, rental, or lease of any housing accommodation or in the furnishing of facilities or services in connection with it. Nor shall an owner having the right to sell, rent, lease, or manage a housing accommodation as defined in § 34-37-3, or an agent of any of these, directly or indirectly, misrepresent the availability of a housing accommodation or delay the processing of applications relating to the sale, rental, or lease of the housing accommodation based upon an individual's race, color, religion, sex, sexual orientation, gender identity or expression, marital status, lawful source of income, military status as a veteran with an honorable discharge or an honorable or general administrative discharge, servicemember in the armed forces, country of ancestral origin, disability, age, familial status, or on the basis that a tenant or applicant or a member of the household is, or has been, or is threatened with being the victim of domestic abuse, or that the tenant or applicant has obtained, or sought, or is seeking relief from any court in the form of a restraining order for protection from domestic abuse.

Nothing in this section shall be construed to prohibit any oral or written inquiry as to whether the prospective purchaser or tenant is eighteen (18) years of age or older, or to confirm the source, amount, and expected duration of the lawful source of income of the prospective purchaser or tenant to determine whether the prospective purchaser or tenant meets the nondiscriminatory standards and preferences or terms, conditions, limitations, or specifications permitted under subsection (c) of this section.

(b) No person to whom application is made for a loan or other form of financial assistance for the acquisition, construction, rehabilitation, repair, or maintenance of any housing accommodation, whether secured or unsecured, shall directly or indirectly make or cause to be made any written or oral inquiry concerning the race, color, religion, sex, sexual orientation, gender identity or expression, marital status, military status as a veteran with an honorable discharge or an honorable or general administrative discharge, servicemember in the armed forces, country of ancestral origin, disability, age, familial status, or any express written or oral inquiry into whether a tenant or applicant or a member of the household is, or has been, or is threatened with being the victim of domestic abuse, or whether a tenant or applicant has obtained, or sought, or is seeking relief from any court in the form of a restraining order for protection from domestic abuse, of any individual seeking the financial assistance, or of existing or prospective occupants or tenants of the housing accommodation; nor shall any person to whom the application is made in the manner provided, directly or indirectly, discriminate in the terms, conditions, or privileges relating to the obtaining or use of any financial assistance against any applicant because of the race, color, religion, sex, sexual orientation, gender identity or expression, marital status, military status as a veteran with an honorable discharge or an honorable or general administrative discharge,

servicemember in the armed forces, country of ancestral origin, disability, age, familial status, or on the basis that a tenant or applicant or a member of the household is, or has been, or is threatened with being the victim of domestic abuse, or that the tenant or applicant has obtained, or sought, or is seeking relief from any court in the form of a restraining order for protection from domestic abuse, of the applicant or of the existing or prospective occupants or tenants. Nothing in this subsection shall be construed to prohibit any written or oral inquiry as to whether the applicant is over the age of eighteen (18).

(c) Nothing contained in this section shall be construed in any manner to prohibit or limit the exercise of the privilege of every person and the agent of any person having the right to sell, rent, lease, or manage a housing accommodation to establish standards and preferences and set terms, conditions, limitations, or specifications in the selling, renting, leasing, or letting thereof or in the furnishing of facilities or services in connection therewith that do not discriminate on the basis of the race, color, religion, sex, sexual orientation, gender identity or expression, marital status, lawful source of income, military status as a veteran with an honorable discharge or an honorable or general administrative discharge, servicemember in the armed forces, country of ancestral origin, disability, age, familial status, or on the basis that a tenant or applicant or a member of the household is, or has been, or is threatened with being the victim of domestic abuse, or that the tenant or applicant has obtained, or sought, or is seeking relief from any court in the form of a restraining order for protection from domestic abuse, of any prospective purchaser, lessee, tenant, or occupant thereof or on the race, color, religion, sex, sexual orientation, gender identity or expression, marital status, lawful source of income, military status as a veteran with an honorable discharge or an honorable or general administrative discharge, servicemember in the armed forces, country of ancestral origin, disability, age, or familial status of any person with whom the prospective purchaser, lessee, tenant, or occupant is or may wish to be associated. Nothing contained in this section shall be construed in any manner to prohibit or limit the exercise of the privilege of every person and the agent of any person making loans for, or offering financial assistance in, the acquisition, construction, rehabilitation, repair, or maintenance of housing accommodations to set standards and preferences, terms, conditions, limitations, or specifications for the granting of loans or financial assistance that do not discriminate on the basis of the race, color, religion, sex, sexual orientation, gender identity or expression, marital status, military status as a veteran with an honorable discharge or an honorable or general administrative discharge, servicemember in the armed forces, country of ancestral origin, disability, age, familial status, or on the basis that a tenant or applicant or a member of the household is, or has been, or is threatened with being the victim of domestic abuse, or that the tenant or applicant has obtained, or sought, or is seeking relief from any court in the form of a restraining order for protection from domestic abuse, of the applicant for the loan or financial assistance or of any existing or prospective owner, lessee, tenant, or occupant of the housing accommodation. If a landlord requires that a prospective or current tenant have a certain minimum level of income, the standard for assessing eligibility shall be based only on the portion of the rent to be paid by the tenant, taking into account the value of any federal, state, or local rental assistance or housing subsidy.

(d) An owner may not refuse to allow a person with a disability to make, at his or her expense, reasonable modifications of existing premises occupied or to be occupied by the person if the modifications may be necessary to afford the person full enjoyment of the premises, except that, in the case of a rental, the owner may, where it is reasonable to do so, condition permission for a modification on the renter agreeing to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted. Where it is necessary in order to ensure with reasonable certainty that funds will be available to pay for the restorations at the end of the tenancy, the landlord may negotiate as part of the restoration agreement a provision requiring that the tenant pay into an interest bearing escrow account, over a reasonable period, a reasonable amount of money not to exceed the cost of the restorations. The interest in the account shall accrue to the benefit of the tenant. The restoration deposition shall be exempt from § 34-18-19(a) but will be subject to § 34-18-19(b) through (f) inclusive.

(e) (1) An owner may not refuse to make reasonable accommodations in rules, policies, practices, or services when those accommodations may be necessary to afford an occupant with a disability equal opportunity to use and enjoy a dwelling.

(2) Every person with a disability who has a guide dog or other personal assistive animal, or who obtains a guide dog or other personal assistive animal, shall be entitled to full and equal access to all housing accommodations provided for in this section and shall not be required to pay extra compensation for the guide dog or other personal assistive animal but shall be liable for any damage done to the premises by a guide dog or other personal assistive animal. For the purposes of this subsection, a "personal assistive animal" is an animal specifically trained by a certified animal training program to assist a person with a disability to perform independent living tasks.

(f) Any housing accommodation of four (4) units or more constructed for first occupancy after March 13, 1991, shall be designed and constructed in such a manner that:

(1) The public use and common use portions of the dwellings are readily accessible to and usable by persons with disabilities;

(2) All the doors designed to allow passage into and within all premises within the dwellings are sufficiently wide to allow passage by persons with disabilities in wheelchairs;

(3) All premises within the dwellings contain the following features of adaptive design:

(i) Accessible route into and through the dwelling;

(ii) Light switches, electrical outlets, thermostats, and other environmental controls in accessible locations;

(iii) Reinforcements in bathroom walls to allow later installation of grab bars; and

(iv) Usable kitchens and bathrooms such that an individual in a wheelchair can maneuver about the space. To the extent that any state or local building codes, statutes, or ordinances are inconsistent with this section, they are hereby repealed. The state building code standards committee is hereby directed to adopt rules and regulations consistent with this section as soon as possible, but no later than September 30, 1990.

(g) Compliance with the appropriate requirements of the state building code 14 "accessibility for individuals with disabilities for residential use groups" suffices to satisfy the requirements of subsection (f).

(h) As used in subsection (f), the term "housing accommodation of four (4) units or more" means:

(1) Buildings consisting of four (4) or more units if those buildings have one or more elevators; and

(2) Ground floor units in other buildings consisting of four (4) or more units.

(i) Nothing in subsection (f) shall be construed to limit any law, statute, or regulation that requires a greater degree of accessibility to persons with disabilities.

(j) Nothing in this section requires that a dwelling be made available to an individual whose tenancy would constitute a direct threat to the health or safety of other individuals or whose tenancy would result in substantial physical damage to the property of others.

(k) Nothing contained in this chapter shall be construed to prohibit an owner, lessee, sublessee, or assignee from advertising or selecting a person of the same or opposite gender to rent, lease, or share the housing unit that the owner, lessee, sublessee, or assignee will occupy with the person selected.

(l) No person shall aid, abet, incite, compel, or coerce the doing of any act declared by this section to be an unlawful housing practice; or obstruct or prevent any person from complying with the provisions of this chapter or any order issued thereunder; or attempt directly or indirectly to commit any act declared by this section to be an unlawful housing practice.

(m) No owner; person defined in § 34-37-3(13); person to whom application is made for a loan or other form of financial assistance for the acquisition, construction, rehabilitation, repair, or maintenance of any housing accommodation, whether secured or unsecured; no financial organization governed by the provisions of title 19 or any other credit-granting commercial institution; or respondent under this chapter; or any agent of these shall discriminate in any manner against any individual because he or she has opposed any practice forbidden by this chapter, or because he or she has made a charge, testified, or assisted in any manner in any investigation, proceeding, or hearing under this chapter.

(n) Nothing in this section shall prevent a landlord from proceeding with eviction action against a tenant who fails to comply with § 34-18-24(7).

History of Section. P.L. 1965, ch. 27, § 1; P.L. 1970, ch. 25, § 2; P.L. 1974, ch. 141, § 1; P.L. 1977, ch. 214, § 1; P.L. 1979, ch. 144, § 3; P.L. 1985, ch. 415, § 1; P.L. 1987, ch. 452, § 1; P.L. 1988, ch. 455, § 1; P.L. 1988, ch. 664, § 1; P.L. 1990, ch. 398, § 1; P.L. 1995, ch. 32, § 2; P.L. 1997, ch. 150, § 8; P.L. 1999, ch. 83, § 81; P.L. 1999, ch. 130, § 81; P.L. 2001, ch. 340, § 2; P.L. 2002, ch. 118, § 2; P.L. 2002, ch. 224, § 2; P.L. 2015, ch. 161, § 1; P.L. 2015, ch. 180, § 1; P.L. 2021, ch. 3, § 1, effective April 15, 2021; P.L. 2021, ch. 4, § 1, effective April 15, 2021; P.L. 2021, ch. 211, § 2, effective January 1, 2022; P.L. 2021, ch. 322, § 2, effective January 1, 2022.

S.C. Const. art. VIII

Cited by the petitioners 0 times (0 filings) and their amici 4 (2); by the respondent 0 (0) and its amici 0 (0).

S.C. Const. art. VIII (current text, retrieved 2026-10-29)

§ 1 *Powers of political subdivisions continued.*

§ 2 *Boundaries of counties.*

§ 3 *Number of counties.*

§ 4 *Merger of counties.*

§ 5 *Merger of parts of counties with adjoining counties.*

§ 6 *Removal of county seat.*

§ 7 *Organization, powers, and duties of counties; special laws prohibited.*

§ 8 *Incorporation of new municipalities; readjustment of municipal boundaries; merger of municipalities; special laws prohibited.*

§ 9 *Organization, powers, and duties of municipalities.*

§ 10 *Law or exemption for a specific municipality prohibited.*

§ 11 *Adoption and amendment of municipal charters.*

§ 12 *Consolidation of counties with municipalities and other political subdivisions.*
§ 13 *Joint administration of functions and exercise of powers.*
§ 14 *General law provisions not to be set aside.*
§ 15 *Consent of local governing body to certain laws required.*
§ 16 *Acquisition and operation of public utility systems.*
§ 17 *Construction of Constitution and laws.*
§ 18 *Assignment and regulation of territories for electrical and gas utilities.*

S.C. Code Ann. § 12-6-3790

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Educational Credit for Exceptional Needs Children's Fund (current text, retrieved 2026-10-26)

(A) As used in this section:

(1) "Eligible school" means an independent school including those religious in nature, other than a public school, at which the compulsory attendance requirements of Section 59-65-10 may be met, that:

(a) offers a general education to primary or secondary school students;

(b) does not discriminate on the basis of race, color, or national origin;

(c) is located in this State;

(d) has an educational curriculum that includes courses set forth in the state's diploma requirements, graduation certificate requirements for special needs children, and where the students attending are administered national achievement or state standardized tests, or both, at progressive grade levels to determine student progress;

(e) has school facilities that are subject to applicable federal, state, and local laws;

(f) is a member in good standing of the Southern Association of Colleges and Schools, the South Carolina Association of Christian Schools, the South Carolina Independent Schools Association, or Palmetto Association of Independent Schools; and

(g) provides a specially designed program or learning resource center to provide needed accommodations based on the needs of exceptional needs students or provides onsite educational services or supports to meet the needs of exceptional needs students, or is a school specifically existing to meet the needs of only exceptional needs students with documented disabilities.

(2) "Exceptional needs child" means a child:

(a) who has been evaluated in accordance with this state's evaluation criteria, as set forth in S.C. Code Ann. Regs. 43-243.1, and determined eligible as a child with a disability who needs special education and related services, in accordance with the requirements of Section 300.8 of the federal Individuals with Disabilities Education Act; or

(b) who has been diagnosed within the last three years by a licensed speech-language pathologist, psychiatrist, or medical, mental health, psychoeducational, or other comparable licensed health care provider as having a neurodevelopmental disorder, a substantial sensory or physical impairment such as deaf, blind, or orthopedic disability, or some other disability or acute or chronic condition that significantly impedes the student's ability to learn and succeed in school without specialized instructional and associated supports and services tailored to the child's unique needs.

(3) "Independent school" means a school, other than a public school, at which the compulsory attendance requirements of Section 59-65-10 may be met and that does not discriminate based on the grounds of race, color, religion, or national origin.

(4) "Parent" means the natural or adoptive parent or legal guardian of a child.

(5) "Qualifying student" means a student who is an exceptional needs child, a South Carolina resident, and who is eligible to be enrolled in a South Carolina secondary or elementary public school at the kindergarten or later year level for the applicable school year.

(6) "Resident public school district" means the public school district in which a student resides, or in the case of dependents of active military personnel, the public school district which the student may attend.

(7) "Transportation" means transportation to and from school only.

(8) "Tuition" means the total amount of money charged for the cost of a qualifying student to attend an independent school including, but not limited to, fees for attending the school, textbook fees, and school-related transportation.

(B) (1) There is created the "Educational Credit for Exceptional Needs Children's Fund" that is separate and distinct from the state general fund. The fund must be organized as a public charity as defined by the Internal Revenue Code under Section 509(a)(1) through (4) and consist only of contributions made to the fund. The fund may not receive an appropriation of public funds. The fund must receive and hold all contributions intended for it as well as all earnings until disbursed as provided in this section. Monies received in the fund must be used to provide scholarships to exceptional needs children attending eligible schools.

(2) The amounts on deposit in the fund do not constitute public funds and are not the property of the State. Amounts

on deposit in the fund may not be commingled with public funds, and the State does not have a claim to or interest in the amounts on deposit. Agreements or contracts entered into by or on behalf of the fund do not constitute a debt or obligation of the State.

(3) The public charity disbursing contributions made to the fund is governed by five directors, two appointed by the Chairman of the House Ways and Means Committee, two appointed by the Chairman of the Senate Finance Committee, and one appointed by the Governor. The directors of the public charity shall designate an executive director of the public charity.

(4) The public charity directors shall administer the public charity including, but not limited to, the keeping of records, the management of accounts, and disbursement of the grants awarded pursuant to this section. The public charity may expend up to five percent of the fund for administration and related costs. The public charity may not expend public funds to administer the program. Information contained in or produced from a tax return, document, or magnetically or electronically stored data utilized by the Department of Revenue or the public charity in the exercise of its duties as provided in this section must remain confidential and is exempt from disclosure pursuant to the Freedom of Information Act. Personally identifiable information, as described in the Family Educational Rights and Privacy Act and individual health records, or the medical or wellness needs of children applying for or receiving grants must remain confidential and is not subject to disclosure pursuant to the Freedom of Information Act.

(5) By January fifteenth of each year, the public charity shall report to the Chairman of the Senate Finance Committee, the Chairman of the House Ways and Means Committee, and the Governor:

(a) the number and total amount of grants issued to eligible schools in each year;

(b) the identity of the school and the amount of the grant for each grant issued to an eligible school in each year;

(c) an itemized and detailed explanation of fees or other revenues obtained from or on behalf of an eligible school;

(d) a copy of a compilation, review, or audit of the fund's financial statements, conducted by a certified public accounting firm; and

(e) the criteria and eligibility requirements for scholarship awards.

(C) (1) Grants may be awarded in an amount not exceeding eleven thousand dollars or the total annual cost of tuition, whichever is less, to a qualifying student at an eligible school. A qualifying student receiving a grant may not be charged tuition by an eligible school in an amount greater than the student would be charged if the student was not a qualifying student.

(2) Before awarding a grant, the public charity shall receive written documentation from the qualifying student's parent or guardian documenting that the qualifying student is an exceptional needs child. Upon approving the application, the public charity shall issue a check to the eligible school in the name of the qualifying student within either thirty days upon approval of the application or thirty days of the start of the school's semester.

(3) If a qualifying student leaves or withdraws from the school for any reason before the end of the semester or school year and does not reenroll within thirty days, then the eligible school shall return a prorated amount of the grant to the public charity based on the number of days the qualifying student was enrolled in the school during the semester or school year within sixty days of the qualifying student's departure.

(4) The public charity may not award grants only for the benefit of one school.

(5) The department or the public charity may not release personally identifiable information pertaining to students or donors or use information collected about donors, students, or schools for financial gain.

(6) The public charity shall develop a process to prioritize the awarding of grants to eligible incumbent grant recipients at eligible schools.

(D) (1) (a) Tax credits authorized by subsection (H)(1) and subsection (I) annually may not exceed cumulatively a total of twelve million dollars for contributions to the Educational Credit for Exceptional Needs Children's Fund, unless an increased limit is authorized in the annual general appropriations act. However, the fund may carry forward up to five million dollars of donations into the next year to provide credits in the next year. This carryforward amount does not in any way increase the cumulative tax credit amount set forth in this item for any one year.

(b) Tax credits authorized pursuant to subsection (H)(2) annually may not exceed cumulatively a total of two million dollars for tuition payments made on behalf of qualifying students, unless an increased limit is authorized in the annual general appropriations act. However, if less than the maximum cumulative total of tax credits allowed pursuant to subitem (a) are authorized, then, the maximum cumulative total of tax credits allowed pursuant to this subitem may be increased by up to three million dollars, but the cumulative total of all tax credits authorized pursuant to this section may not be increased as a result.

(c) If the department determines that the total of the credits claimed by all taxpayers exceeds either limit amount as contained in subitems (a) or (b), it shall allow credits only up to those amounts on a first come, first-served basis.

(2) (a) The department shall establish an application process to determine the amount of credit available to be claimed. The receipt of the application by the department determines priority for the credit. The credit must be claimed on the return for the tax year that the contribution is made.

(b) A taxpayer may not claim more than seventy-five percent of his total tax liability for the year in contribution toward the tax credit authorized by subsection (H)(1) or subsection (I). This credit is nonrefundable. Any unused credit may be carried forward three tax years after the tax year in which the qualified contribution is first eligible to be claimed.

(c) If a taxpayer deducts the amount of the contribution on his federal return and claims the credit allowed by subsection (H)(1) or subsection (I), then he must add back the amount of the deduction for purposes of South Carolina income taxes.

(d) The department shall prescribe the form and manner of proof required to obtain the credit authorized by subsection (H)(1) or subsection (I). The department also shall develop a method of informing taxpayers if the credit limit is met any time during the tax year.

(e) A taxpayer only may claim a credit pursuant to subsection (H)(1) and subsection (I) for contributions made during the tax year.

(3) A corporation or entity entitled to a credit under subsection (H)(1) and subsection (I) may not convey, assign, or transfer the credit authorized by this section to another entity unless all of the assets of the entity are conveyed, assigned, or transferred in the same transaction.

(E) (1) By March first of each year, an independent school who participated in the program in the previous year and who desires to participate in the program in the current year shall reapply to the Education Oversight Committee. The independent school shall certify to the Education Oversight Committee that it continues to meet all program requirements and shall provide to the committee student test score data from the previous school year by June thirtieth. If student test score data is not submitted by June thirtieth, then the Education Oversight Committee shall remove the school from the program. An independent school desiring to participate in the program for the first time also shall apply by March first of each year. The Education Oversight Committee shall consult with the Southern Association of Colleges and Schools, the South Carolina Association of Christian Schools, the South Carolina Independent Schools Association, the Palmetto Association of Independent Schools, or the Diocese of Charleston to verify that the school is still a member in good standing and that the school continues to serve exceptional needs children. An independent school who did not participate in the program in the previous year but desires to participate in the program in the current year shall apply to the Education Oversight Committee. The Education Oversight Committee shall develop an application to be completed by the independent schools which must contain at least:

(a) the number and total amount of grants received in the preceding school year;

(b) student test scores, by category, on national achievement or state standardized tests, or both, for all grades tested and administered by the school receiving or entitled to receive scholarship grants pursuant to this section in the previous school year;

(c) a copy of a compilation, review, or compliance audit of the organization's financial statements as relating to the grants received, conducted by a certified public accounting firm; and

(d) a certification by the independent school that it meets the definition of an eligible school as that term is defined in subsection (A)(1) and that the report is true, accurate, and complete under penalty of perjury in accordance with Section 16-9-10.

(2) (a) The Education Oversight Committee may waive the March first deadline contained in subsection (E) upon good cause shown by an independent school.

(b) The Education Oversight Committee may waive some or all of the curriculum requirements contained in subsection (A)(1)(d) following consultation with the advisory committee.

(3) (a) By March first of each year the Education Oversight Committee shall publish on its website a comprehensive list of independent schools certified as eligible institutions. The list must include for each eligible institution:

(i) the institution's name, addresses, telephone numbers, and, if available, website addresses; and

(ii) the score reports and compliance audits received by the committee pursuant to subsection (E)(1)(b) and (c).

(b) The Education Oversight Committee shall summarize or redact the score reports identified in subitem (a)(ii) if necessary to prevent the disclosure of personally identifiable information.

(4) An independent school that does not apply for certification pursuant to this subsection may not be included on the list of eligible schools and contributions to that school may not be allowed for purposes of the tax credits permitted by this section.

(5) An independent school that is denied certification pursuant to this section may seek review by filing a request for a contested case hearing with the Administrative Law Court in accordance with the court's rules of procedure.

(6) Annually, the Education Oversight Committee shall issue a report to the General Assembly documenting the impact of the Educational Credit for Exceptional Needs Children Program on student achievement. In addition, the report must include information on individual schools if at least fifty-one percent of the total enrolled students in the private school participated in the Educational Credit for Exceptional Needs Children Program in the prior school year. The report must be according to each participating private school, and for participating students, in which there are

at least thirty participating students who have scores for tests administered. If the Education Oversight Committee determines that the thirty participating-student cell size may be reduced without disclosing personally identifiable information of a participating student, the Education Oversight Committee may reduce the participating-student cell size, but the cell size may not be reduced to less than ten participating students.

(F) (1) The Education Oversight Committee shall establish an advisory committee made up of not more than nine members, including parents, and representatives of independent schools and independent school associations.

(2) The advisory committee shall:

(a) consult with the Education Oversight Committee concerning requests for exemptions from curriculum requirements; and

(b) provide recommendations on other matters requested by the Education Oversight Committee.

(G) Except as otherwise provided, the Department of Education, the Education Oversight Committee, and the Department of Revenue, or any other state agency may not regulate the educational program of an independent school that accepts students receiving scholarship grants pursuant to this section.

(H) (1) A taxpayer is entitled to a tax credit against income taxes imposed pursuant to this chapter for the amount of cash and the monetary value of any publicly traded securities the taxpayer contributes to the Educational Credit for Exceptional Needs Children's Fund up to the limits contained in subsection (D)(1)(a) if:

(a) the contribution is used to provide grants for tuition to exceptional needs children enrolled in eligible schools who qualify for these grants under the provisions of this section; and

(b) the taxpayer does not designate a specific child or school as the beneficiary of the contribution.

(2) (a) A taxpayer is entitled to a refundable tax credit against income taxes imposed pursuant to this chapter for the amount of cash and the monetary value of any publicly traded securities, not exceeding eleven thousand dollars for each child, for tuition payments to an eligible school for an exceptional needs child within his custody or care who would be eligible for a grant pursuant to this section up to the limits contained in subsection (D)(1)(b).

(b) If a child within the care and custody of a taxpayer claiming a tax credit pursuant to this item also receives a grant from the Educational Credit for Exceptional Needs Children's Fund, then the taxpayer only may claim a credit equal to the difference of eleven thousand dollars or the cost of tuition, whichever is lower, and the amount of the grant.

(c) A child within the care and custody of a taxpayer claiming a tax credit pursuant to this item may not be charged tuition by an eligible school in an amount greater than the student would be charged if the student was not a qualifying student.

(I) A taxpayer is entitled to a tax credit against income taxes imposed pursuant to Chapter 11, Title 12 for the amount of cash and the monetary value of any publicly traded securities the taxpayer contributes to the Educational Credit for Exceptional Needs Children's Fund up to the limits contained in subsection (D)(1)(a) if:

(1) the contribution is used to provide grants for tuition to exceptional needs children enrolled in eligible schools who qualify for these grants under the provisions of this section; and

(2) the taxpayer does not designate a specific child or school as the beneficiary of the contribution.

(J) (1) The department shall conduct a comprehensive study of the Exceptional Needs Tax Credit program. The study must examine the following:

(a) the allocation of scholarship funds and tax credits among students, including the effect of funding limitations on the addition of new participants; the demographic and socio-economic data of the participants and their families, including the distribution of scholarship funds by income ranges, to be determined by the department, of scholarship recipients, and their legal guardians, as applicable; and the geographical distribution of the participants. In reporting the information required by this subitem, the department shall protect and may not display any personally identifiable information of scholarship recipients, their families or legal guardians, or taxpayers;

(b) the distribution of scholarship funds among all eligible schools; and

(c) any other aspect of the program that the department determines would be relevant and useful in making future policy decisions in regard to the program and its continued existence or expansion.

(2) The department shall submit a report of its study to the General Assembly no later than January fifteenth of each year.

HISTORY: 2018 Act No. 247 (H.4077), SECTION 1, eff May 18, 2018; 2021 Act No. 79 (H.3899), SECTIONS 1 to 4, eff May 17, 2021.

S.C. Code Ann. § 31-21-40

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discrimination in relation to sale or rental of property (current text, retrieved 2026-10-29)

It is unlawful:

(1) to refuse to sell or rent after the making of a bona fide offer, to refuse to negotiate for the sale or rental of, or otherwise to make unavailable or deny a dwelling to any person because of race, color, religion, sex, familial status, or

national origin;
(2) to discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection with it, because of race, color, religion, sex, familial status, or national origin;
(3) to make, print, or publish, or cause to be made, printed, or published, any notice, statement, or advertisement with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination based on race, color, religion, sex, handicap, familial status, or national origin or an intention to make the preference, limitation, or discrimination;
(4) to represent to any person because of race, color, religion, sex, handicap, familial status, or national origin that any dwelling is not available for inspection, sale, or rental when the dwelling is available;
(5) for profit, to induce or attempt to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, color, religion, sex, handicap, familial status, or national origin;
(6) to discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of:
(a) that buyer or renter;
(b) a person residing in or intending to reside in that dwelling after it is sold, rented, or made available; or
(c) any person associated with that buyer or renter;
(7) to discriminate against a person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection with the dwelling, because of a handicap of:
(a) that person;
(b) a person residing in or intending to reside in that dwelling after it is sold, rented, or made available; or
(c) any person associated with that person.
HISTORY: 1989 Act No. 72, SECTION 1.

S.C. Code Ann. § 59-8-150

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Requirements for education service providers, department, and Education Oversight Committee (current text, retrieved 2026-10-29)
(A) To ensure equitable treatment and personal safety of all scholarship students, all education service providers shall:
(1) comply with all applicable health and safety laws or codes;
(2) hold a valid occupancy permit if required by the municipality in which the education service provider is located;
(3) not unlawfully discriminate on the basis of race, color, or national origin. This item shall not be interpreted to preclude any independent or religious educational provider from exercising an exemption allowed under federal law;
(4) conduct and maintain records of completed criminal background checks on employees. An education service provider that is not an accredited or licensed school must submit documentation of completed background checks to the department as part of their initial application. All education service providers must exclude from employment anyone who:
(a) is not permitted by state law to work in a school;
(b) reasonably might pose a threat to the safety of students; or
(c) is listed on federal, state, or other central child abuse registries.
(B) To ensure that funds are spent appropriately, all education service providers shall:
(1) provide parents with an invoice, for services purchased, or a receipt for goods purchased for all qualifying expenses; and
(2) demonstrate their financial viability by filing a surety bond with the department prior to the start of the school year if they are to receive fifty thousand dollars or more during the school year. After their first school year of participation the surety bond is required of education service providers who exceed fifty thousand dollars in qualifying expenses received in the previous school year.
(C) In order to allow parents and the public to measure the achievements of the program, academic progress must be documented annually for each scholarship student. Students with an Individualized Education Plan that cannot be accommodated with standardized testing are excluded from the requirements of item (1). Education service providers that provide academic instruction must monitor the progress of students with significant cognitive disabilities through alternative assessments including portfolios.
(1) Education service providers that provide full-time academic instruction shall:
(a) ensure that each scholarship student in grades three through eight takes the annual state summative assessment or alternative summative assessment required of students in public schools in this State;
(b) in lieu of the assessments required by subitem (a) ensure that each scholarship recipient in grades three

through eight takes a nationally norm-referenced summative assessment annually or a formative assessment at the beginning of the school year, at the end of the first semester, and at the end of the school year. The assessment must be approved by the department, aligned with state standards, and include a linking study;

(c) ensure that each scholarship student in grades nine through twelve takes a department-approved, nationally norm-referenced assessment, formative assessment, or assessment that demonstrates the student's college or career readiness. Students with disabilities for whom standardized testing is not appropriate are exempt from this requirement;

(d) collect high school graduation information of scholarship students for reporting to the department as required in this section; and

(e) ensure that the parent or guardian of a scholarship student taking the assessments above receives a written report of the student's performance on each assessment. The report must include the student's score on the assessment and an indication of how the student's assessment performance compares to other South Carolina students.

(2) The department shall ensure that the education service provider has access to and is trained in administering the state assessments required in item (1)(a) and (b). The department shall assume any costs associated with training, administering, or taking assessments with no charges to the provider or students.

(3) For the purpose of evaluating program effectiveness, education service providers that provide full-time academic instruction shall ensure that results in item (1) are:

(a) provided to the parent of a scholarship student and must be provided to the department on an annual basis, beginning with the first year of program implementation; and

(b) disaggregated by grade level, gender, family income level, race, and English-learner status.

(4) The department, or the appropriate organization chosen by the department, if any, must be informed of the scholarship student's graduation from high school.

(D) The department shall:

(1) comply with all student privacy laws;

(2) collect all test results; and

(3) annually provide individual student assessment results and information to the Education Oversight Committee. The transmission of the information must be made in a manner that safeguards the data to ensure student privacy.

(E) The Education Oversight Committee shall:

(1) comply with all student privacy laws;

(2) report on and publish associated learning gains and graduation rates to the public by means of a state website with data aggregated by grade level, gender, family income level, number of years participating in the program, and race and a report for any participating school if at least fifty-one percent of the total enrolled students in the private school participated in the program in the prior school year or if there are at least thirty participating students who have scores for tests administered. If the Education Oversight Committee determines that the thirty participating-student cell size may be reduced without disclosing the personally identifiable information of a participating student, the Education Oversight Committee may reduce the participating-student cell size, but the cell size may not be reduced to fewer than ten participating students;

(3) evaluate and report the academic performance of scholarship students compared to similar public school populations; and

(4) collaborate with the department to develop and administer an annual parental satisfaction survey for all parents of scholarship students on issues relevant to the program, to include effectiveness and length of the program participation. Results of this survey must be provided to the General Assembly by December thirty-first of each year.

(F) An education service provider, not a public school, is not an agent of the state or federal government, therefore:

(1) the department or any other state agency may not regulate the educational program beyond what is set forth in this chapter of an approved education provider that accepts funds from an account;

(2) the creation of the program does not expand the regulatory authority of the State, its officers, or a school district to impose regulation of education service providers beyond those necessary to enforce the requirements of the program;

(3) the freedom of education service providers to provide for the educational needs of scholarship students without governmental control must not be abridged;

(4) an education service provider that accepts payment from an ESTF account pursuant to this chapter is not an agent of the state or federal government; and

(5) education service providers shall not be required to alter their creeds, practices, admissions policy, or curriculum in order to accept payments from an ESTF account.

(G) A person paid by, contracted with, employed by, or having a financial interest in an education service provider shall not be allowed to serve on the board of an organization contracting for services with the department as defined in Section 59-8-115(J), serve on the board of a vendor or private management firm contracted to manage accounts as defined in

Section 59-8-125(C), on the board of any other provider of contracted-for services under Section 59-8-110(12) or under Section 59-8-120(H), or on the ESTF Review Panel. Any education service provider violating this subsection shall be barred from participating in the program for two years and shall return any funds received under the program to the ESTF.

(H) A person serving as a board member or director of an education service provider shall have a fiduciary duty to the provider and shall avoid any conflicts of interest with the provider.

(I) No member of the General Assembly or their immediate family, as defined by Section 8-13-100(18), may have a financial interest in an education service provider. This does not prevent a member or their immediate family from qualifying under the provisions of this chapter to participate in the ESTF program.

(J) A person shall not serve in a position of leadership with an education service provider who has been convicted of a financial crime.

HISTORY: 2023 Act No. 8 (S.39), SECTION 1, eff June 3, 2023; 2025 Act No. 11 (S.62), SECTION 10, eff May 7, 2025.

S.D. Codified Laws § 1-1A-4

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Cited as the 2021 edition; the text below is the current one.

Government authority–Limitations related to the exercise of religion (current text, 2026 edition; retrieved 2026-10-26)

Notwithstanding any other provision of law, no state agency, political subdivision, or any elected or appointed official or employee of this state or its political subdivisions may:

(1) Substantially burden a person's exercise of religion unless applying the burden to that person's exercise of religion in a particular situation is essential to further a compelling governmental interest and is the least restrictive means of furthering that compelling government interest;

(2) Treat religious conduct more restrictively than any secular conduct of reasonably comparable risk; or

(3) Treat religious conduct more restrictively than comparable secular conduct because of alleged economic need or benefit.

This section constitutes a general law of the state within the meaning of S.D. Const., Article IX, § 2 and supersedes any contrary provision in a home rule charter. Any person aggrieved by a violation of this section may file an action for damages, injunctive relief, or other appropriate redress in circuit court, or may assert such violation as a defense in a judicial or administrative proceeding. The plaintiff, if the prevailing party, may also recover reasonable attorney's fees and costs.

Source: SL 2021, ch 3, § 1.

S.D. Codified Laws § 20-13-20

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Unfair or discriminatory housing practices by owner or agent (current text, 2026 edition; retrieved 2026-10-29)

It is an unfair or discriminatory practice for any owner of rights to housing or real property, or any person acting for an owner, with or without compensation, including any person licensed as a real estate broker or salesman, attorney, auctioneer, agent, or representative by power of attorney or appointment, or to any person acting under court order, deed of trust, or will:

(1) To refuse to sell, rent, lease, assign, sublease, or otherwise transfer any real property or housing accommodation or part, portion, or interest therein, to any person because of the race, color, creed, religion, sex, ancestry, disability, familial status, or national origin of the person or persons intending to reside there;

(2) To discriminate against any person because of that person's race, color, creed, religion, sex, ancestry, disability, familial status, or national origin, in the terms, conditions, or privileges of the sale, rental, lease, assignment, sublease, or other transfer of any real property or housing accommodation or any part, portion, or interest therein;

(3) To directly or indirectly advertise, or to indicate or publicize in any other manner that the purchase, rental, lease, assignment, sublease, or other transfer of any real property or housing accommodation or any part, portion or interest therein, by persons of any particular race, color, creed, religion, sex, ancestry, disability, familial status, or national origin, is unwelcome, objectionable, not acceptable, or not solicited;

(4) To refuse to permit, at the expense of the disabled person, reasonable modifications of existing property that may be necessary to afford full enjoyment of property. The landlord may, where it is reasonable to do so, condition permission for a modification on the renter's agreeing to restore the premises to the condition that existed prior to the modification, reasonable wear and tear excepted.

The provisions of subdivisions (1), (2), and (4) do not apply to rooms or units in dwellings that contain living quarters for no more than two families living independently of each other, if the owner maintains and occupies one of the living quarters as the owner's residence.

This section does not apply to dormitory residences maintained by public or private schools, colleges, and universities

for the educational benefit and convenience of unmarried students or to dwellings occupied by fraternities or sororities officially recognized by such institutions. Nothing in this statute may be construed to displace federal, state, or local guidelines setting reasonable standards governing maximum numbers of occupants.
Source: SL 1972, ch 11, § 7; SL 1983, ch 167; SL 1986, ch 170, § 13; SL 1991, ch 179, § 13.

S.D. Codified Laws § 20-13-23

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Public accommodations–Unfair or discriminatory practices (current text, 2026 edition; retrieved 2026-10-29)
It shall be an unfair or discriminatory practice for any person engaged in the provision of public accommodations because of race, color, creed, religion, sex, ancestry, disability, or national origin, to fail or refuse to provide to any person access to the use of and benefit from the services and facilities of such public accommodations; or to accord adverse, unlawful, or unequal treatment to any person with respect to the availability of such services and facilities, the price or other consideration therefor, the scope and equality thereof, or the terms and conditions under which the same are made available, including terms and conditions relating to credit, payment, warranties, delivery, installation, and repair.
Source: SL 1972, ch 11, § 9(1); SL 1986, ch 170, § 17.

Tenn. Code Ann. § 4-5-104

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Source error: LexisNexis-only publication; its terms forbid automated access (see DATASOURCES.md)

Tenn. Code Ann. § 4-21-601

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Source error: LexisNexis-only publication; its terms forbid automated access (see DATASOURCES.md)

Tenn. Code Ann. § 49-6-2607

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Source error: LexisNexis-only publication; its terms forbid automated access (see DATASOURCES.md)

Tenn. Code Ann. § 49-6-2609

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Source error: LexisNexis-only publication; its terms forbid automated access (see DATASOURCES.md)

Tenn. Code Ann. § 49-6-3508

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Source error: LexisNexis-only publication; its terms forbid automated access (see DATASOURCES.md)

Tex. Educ. Code Ann. § 29.368

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

PROGRAM PARTICIPANT, PROVIDER, AND VENDOR AUTONOMY (current text, retrieved 2026-10-29)
(a) An education service provider or vendor of educational products that receives money distributed under the program is not a recipient of federal financial assistance and may not be considered to be a state actor on the basis of receiving that money.
(b) A state agency or state official may not adopt a rule or take other governmental action related to the program and a certified educational assistance organization may not take action that:

(1) limits or imposes requirements that are contrary to the religious or institutional values or practices of an education service provider, vendor of educational products, or program participant; or

(2) limits an education service provider, vendor of educational products, or program participant from freely:

(A) determining the methods or curriculum to educate students;

(B) determining admissions and enrollment practices, policies, and standards;

(C) modifying or refusing to modify the provider's, vendor's, or participant's religious or institutional values or practices, operations, conduct, policies, standards, assessments, or employment practices based on the provider's, vendor's, or participant's religious values or practices; or

(D) exercising the provider's, vendor's, or participant's religious or institutional practices as the provider, vendor, or participant determines.

Added by Acts 2025, 89th Leg., R.S., Ch. 2 (S.B. 2), Sec. 2, eff. September 1, 2025.

Utah Code Ann. § 57-21-2

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Definitions (current text, retrieved 2026-10-27)

As used in this chapter:

(1) "Affiliate" means the same as that term is defined in Section 16-6a-102.

(2) "Aggrieved individual" means an individual who:

(a) claims to have been injured by a discriminatory housing practice; or

(b) believes that the individual will be injured by a discriminatory housing practice that is about to occur.

(3) "Biological sex at birth" means the same as that term is defined in Section 26B-8-101.

(4) "Commission" means the Labor Commission.

(5) "Complainant" means an aggrieved individual, including the director, who commences a complaint with the division.

(6) "Conciliation" means the attempted resolution of an issue raised in a complaint of discriminatory housing practices by the investigation of the complaint through informal negotiations involving the complainant, the respondent, and the division.

(7) "Conciliation agreement" means a written agreement setting forth the resolution of the issues in conciliation.

(8) "Conciliation conference" means the attempted resolution of an issue raised in a complaint or by the investigation of a complaint through informal negotiations involving the complainant, the respondent, and the division which is not subject to Title 63G, Chapter 4, Administrative Procedures Act.

(9) "Covered multifamily dwelling" means:

(a) a building consisting of four or more dwelling units if the building has one or more elevators; and

(b) the ground floor units in other buildings consisting of four or more dwelling units.

(10) "Director" means the director of the division or the director's designee.

(11) (a) "Disability" means a physical or mental impairment that substantially limits an individual's major life activities, including an individual having a record of such an impairment or being regarded as having such an impairment.

(b) "Disability" does not include current illegal use of, or addiction to, any federally controlled substance, as defined in Section 102 of the Controlled Substances Act, 21 U.S.C. Sec. 802.

(12) "Discriminate" includes segregate or separate.

(13) "Discriminatory housing practice" means an act that is unlawful under this chapter.

(14) "Division" means the Division of Antidiscrimination and Labor established under the commission.

(15) "Dwelling" means:

(a) a building or structure, or a portion of a building or structure, occupied as, designed as, or intended for occupancy as a residence of one or more families; or

(b) vacant land that is offered for sale or lease for the construction or location of a dwelling as described in Subsection (15)(a).

(16) (a) "Familial status" means one or more individuals who have not attained the age of 18 years old being domiciled with:

(i) a parent or another person having legal custody of the one or more individuals; or

(ii) the designee of the parent or other person having custody, with the written permission of the parent or other person.

(b) "Familial status" includes protections afforded against discrimination of an individual who:

(i) is pregnant;

(ii) is in the process of securing legal custody of any individual who has not attained the age of 18 years; or

(iii) is a single individual.

(17) "Gender identity" has the same meaning as provided in the Diagnostic and Statistical Manual (DSM-5) which an individual may show by providing evidence, including:

(a) medical history;

(b) care or treatment of the gender identity;

(c) consistent and uniform assertion of the gender identity; or

(d) other evidence that the gender identity is sincerely held, part of the individual's core identity, and asserted for a proper purpose.

(18) "National origin" means the place of birth of an individual or of any lineal ancestors.

(19) "Presiding officer" has the same meaning as provided in Section 63G-4-103.

(20) "Real estate broker or salesperson" means a principal broker, an associate broker, or a sales agent as those terms are defined in Section 61-2f-102.

(21) "Respondent" means a person against which a complaint of housing discrimination is initiated.

(22) "Sex" means gender and includes pregnancy, childbirth, and disabilities related to pregnancy or childbirth.

(23) "Sexual orientation" means an individual's actual or perceived orientation as heterosexual, homosexual, or bisexual.

(24) "Single-sex housing" means housing accommodations designated for occupancy exclusively by individuals of the same biological sex at birth, where residents share a bedroom or a bathroom.
(25) "Source of income" means the verifiable condition of being a recipient of federal, state, or local assistance, including medical assistance, or of being a tenant receiving federal, state, or local subsidies, including rental assistance or rent supplements.
Amended by Chapter 315, 2026 General Session

Utah Code Ann. § 57-21-5

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discriminatory practices enumerated – Protected individuals, classes enumerated (current text, retrieved 2026-10-27)
(1) It is a discriminatory housing practice to do any of the following because of an individual's race, color, religion, sex, national origin, familial status, source of income, disability, sexual orientation, or gender identity:
(a) (i) refuse to sell or rent after the making of a bona fide offer;
(ii) refuse to negotiate for the sale or rental; or
(iii) otherwise deny or make unavailable a dwelling from any person;
(b) discriminate against an individual in the terms, conditions, or privileges:
(i) of the sale or rental of a dwelling; or
(ii) in providing facilities or services in connection with the dwelling; or
(c) represent to an individual that a dwelling is not available for inspection, sale, or rental when the dwelling is available.
(2) It is a discriminatory housing practice to make a representation orally or in writing or make, print, circulate, publish, post, or cause to be made, printed, circulated, published, or posted any notice, statement, or advertisement, or to use any application form for the sale or rental of a dwelling, that directly or indirectly expresses any preference, limitation, or discrimination based on race, color, religion, sex, national origin, familial status, source of income, disability, sexual orientation, or gender identity, or expresses an intent to make such a preference, limitation, or discrimination.
(3) It is a discriminatory housing practice to induce or attempt to induce, for profit, a person to buy, sell, or rent a dwelling by making a representation about the entry or prospective entry into the neighborhood of individuals of a particular race, color, religion, sex, national origin, familial status, source of income, disability, sexual orientation, or gender identity.
(4) A discriminatory housing practice includes:
(a) a refusal to permit, at the expense of the individual with a disability, reasonable modifications of existing premises occupied or to be occupied by the individual if the modifications are necessary to afford that individual full enjoyment of the premises, except that in the case of a rental, the landlord, where it is reasonable to do so, may condition permission for a modification on the renter agreeing to restore the interior of the premises, when reasonable, to the condition that existed before the modification, reasonable wear and tear excepted; and
(b) a refusal to make a reasonable accommodation in a rule, policy, practice, or service when the accommodation may be necessary to afford the individual equal opportunity to use and enjoy a dwelling.
(5) For the design and construction of a covered multifamily dwelling for first occupancy after March 13, 1991, a discriminatory housing practice includes the failure to design and construct the covered multifamily dwelling in a manner that has at least one building entrance on an accessible route, unless it is impracticable to have one because of the terrain or unusual characteristics of the site, and for a covered multifamily dwelling with a building entrance on an accessible route:
(a) the public use and common use portions of the covered multifamily dwelling are readily accessible to and usable by an individual with a disability;
(b) all the doors designed to allow passage into and within the covered multifamily dwellings are sufficiently wide to allow passage by an individual with a disability who is in a wheelchair; and
(c) all premises within the covered multifamily dwellings contain the following features of adaptive design:
(i) an accessible route into and through the covered multifamily dwelling;
(ii) light switches, electrical outlets, thermostats, and other environmental controls in accessible locations;
(iii) reinforcements in the bathroom walls to allow later installation of grab bars; and
(iv) kitchens and bathrooms such that an individual in a wheelchair can maneuver about and use the space.
(6) (a) This section also applies to discriminatory housing practices because of race, color, religion, sex, national origin, familial status, source of income, disability, sexual orientation, or gender identity based upon an individual's association with another individual.
(b) (i) It is not unlawful discrimination under this chapter for a landlord, lessor, or property manager to:
(A) designate housing as single-sex housing; and
(B) limit occupancy of single-sex housing to individuals whose biological sex at birth matches the designated

sex for the single-sex housing.

(ii) Subsection (6)(b)(i) applies to:

(A) a dormitory, a boarding house, a shared rental property, or other group-living accommodation; and

(B) a private landlord and a property owner.

(iii) This exemption does not apply to:

(A) housing that the state or a political subdivision owns or operates unless otherwise expressly provided by law; or

(B) housing where the designation as single-sex housing would violate federal law or a condition of federal funding.

Amended by Chapter 315, 2026 General Session

Utah Code Ann. § 53E-3-401

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Cited as the West 2026 edition; the text below is the current one.

Powers of the state board – Adoption of rules – Enforcement – Attorney (current text, retrieved 2026-10-27)

(1) As used in this section:

(a) "Education entity" means:

(i) an entity that receives a distribution of state funds through a grant program managed by the state board under this public education code;

(ii) an entity that enters into a contract with the state board to provide an educational good or service;

(iii) a school district;

(iv) a charter school; or

(v) a regional education service agency, as that term is defined in Section 53G-4-410.

(b) "Educational good or service" means a good or service that is required or regulated under:

(i) this public education code; or

(ii) a rule, made in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, and authorized under this public education code.

(2) The state board has general control and supervision of the state's public education system.

(3) The state board may not govern, manage, or operate school districts, institutions, and programs, unless granted that authority by statute.

(4) (a) In accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, including the requirement relating to consideration of impacts on family health, stability, and formation, the state board may make rules to execute the state board's duties and responsibilities under the Utah Constitution and state law:

(i) as required by statute; or

(ii) absent express statutory rulemaking direction, as necessary to implement:

(A) the requirements of a statute; or

(B) programs that the Legislature may designate, including agency action described in Subsection 63G-3-201(2).

(b) The state board may delegate the state board's statutory duties and responsibilities to state board employees.

(5) (a) The state board may sell any interest it holds in real property upon a finding by the state board that the property interest is surplus.

(b) The state board may use the money it receives from a sale under Subsection (5)(a) for capital improvements, equipment, or materials, but not for personnel or ongoing costs.

(c) If the property interest under Subsection (5)(a) was held for the benefit of an agency or institution administered by the state board, the money may only be used for purposes related to the agency or institution.

(d) The state board shall advise the Legislature of any sale under Subsection (5)(a) and related matters during the next following session of the Legislature.

(6) The state board shall develop policies and procedures related to federal educational programs in accordance with Part 8, Implementing Federal or National Education Programs.

(7) On or before December 31, 2010, the state board shall review mandates or requirements provided for in state board rule to determine whether certain mandates or requirements could be waived to remove funding pressures on public schools on a temporary basis.

(8) (a) The state board shall provide procedures for addressing and resolving compliance and monitoring issues related to this public education code, federal law, or rules, including:

(i) creating methods to review and investigate alleged compliance issues;

(ii) creating clear procedures for corrective action plans;

(iii) allowing for an appeals process; and

(iv) addressing contractual and non-contractual issues.

(b) If an education entity violates this public education code or rules authorized under this public education code, the state board may, in accordance with the rules described in Subsection (8)(d):

(i) require the education entity to enter into a corrective action agreement with the state board;

(ii) temporarily or permanently withhold state funds from the education entity;

(iii) require the education entity to pay a penalty;

(iv) require the education entity to reimburse specified state funds to the state board;

(v) require additional reporting or monitoring;

(vi) refer the complaint, evidence, and findings to the attorney general's office or the relevant district attorney's office;

(vii) require the education entity to hire a third-party provider to provide services the state board determines necessary;

(viii) require reimbursement from the education entity instead of future allocations from the state board;

(ix) require a follow-up investigation;

(x) refer the violation and corresponding evidence to the state auditor or the legislative auditor general, if the violation relates to finances;

(xi) request additional evidence of compliance; or

(xii) take other action the state board deems appropriate.

(c) Except for temporarily withheld funds, if the state board collects state funds under Subsection (8)(b), the state board shall pay the funds into the Uniform School Fund.

(d) In accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, the state board shall make rules:

(i) that require notice and an opportunity to be heard for an education entity affected by a state board action described in Subsection (8)(b); and

(ii) to administer this Subsection (8).

(e) (i) An individual may bring a violation of statute or state board rule to the attention of the state board in accordance with a process described in rule made by the state board.

(ii) If the state board identifies a violation of statute or state board rule as a result of the process described in Subsection (8)(e)(i), the state board may take action in accordance with this section.

(9) The state board may audit the use of state funds by an education entity that receives those state funds as a distribution from the state board.

(10) The state board may require, by rule made in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, that if an LEA contracts with a third party contractor for an educational good or service, the LEA shall require in the contract that the third party contractor shall provide, upon request of the LEA, information necessary for the LEA to verify that the educational good or service complies with:

(a) this public education code; and

(b) state board rule authorized under this public education code.

(11) (a) The state board may appoint an attorney to provide legal advice to the state board and coordinate legal affairs for the state board and the state board's employees.

(b) An attorney described in Subsection (11)(a) shall cooperate with the Office of the Attorney General.

(c) An attorney described in Subsection (11)(a) may not:

(i) conduct litigation;

(ii) settle claims covered by the Risk Management Fund created in Section 63A-4-201; or

(iii) issue formal legal opinions.

(12) The state board shall ensure that any training or certification that an employee of the public education system is required to complete under this title or by rule complies with Title 63G, Chapter 22, State Training and Certification Requirements.

Amended by Chapter 172, 2026 General Session

Utah Code Ann. § 53E-7-403

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Qualifying school and qualifying provider requirements (current text, retrieved 2026-10-27)

(1) A qualifying school or qualifying provider shall:

(a) notify a scholarship granting organization of the qualifying school's or qualifying provider's intention to participate in the program;

(b) submit evidence to the scholarship granting organization that the qualifying school has been approved by the state board under Section 53E-7-408; and

(c) submit a signed affidavit to the scholarship granting organization that the qualifying school or qualifying provider will comply with the requirements of this part.

(2) A qualifying school or qualifying provider shall comply with 42 U.S.C. Sec. 1981, and meet state and local health and safety laws and codes.

(3) Before the beginning of the school year immediately following a school year in which a qualifying school or qualifying provider receives scholarship money equal to or more than $500,000, the qualifying school or qualifying provider shall file with a scholarship granting organization that allocates scholarship money to the qualifying school:

(a) a surety bond payable to the scholarship granting organization in an amount equal to the aggregate amount of scholarship money expected to be received during the school year; or

(b) financial information that demonstrates the financial viability of the qualifying school or qualifying provider, as required by the scholarship granting organization.

(4) If a scholarship granting organization determines that a qualifying school or qualifying provider has violated a provision of this part, the scholarship granting organization may interrupt disbursement of or withhold scholarship money from the qualifying school or qualifying provider.

(5) (a) If the state board determines that a qualifying school no longer meets the eligibility requirements described in Section 53E-7-408, the state board may withdraw the state board's approval of the school.

(b) A private school that does not have the state board's approval under Section 53E-7-408 may not accept scholarship money under this part.

(6) A qualifying school shall, when administering an annual assessment required under Section 53E-7-408, ensure that the qualifying school uses a norm-referenced assessment.

(7) If a scholarship granting organization determines that a qualifying provider no longer meets the requirements described in Section 53E-7-208.5, the scholarship granting organization may interrupt disbursement of or withhold scholarship money for the qualifying provider.

Amended by Chapter 466, 2024 General Session

Utah Code Ann. § 53H-1-504

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Prohibited discriminatory practices – Restrictions – Campus climate survey – Exceptions (current text, retrieved 2026-10-27)

(1) As used in this section:

(a) "Important government interest" includes a governmental purpose relating to:

(i) athletic competition or athletic safety in public education; or

(ii) privacy, including compliance with Title 63G, Chapter 31, Distinctions on the Basis of Sex.

(b) "Personal identity characteristic" means an individual's race, color, ethnicity, sex, sexual orientation, national origin, religion, or gender identity.

(c) (i) "Prohibited discriminatory practice" means engaging in or maintaining a policy, procedure, practice, program, office, initiative, or required training that, based on an individual's personal identity characteristic:

(A) promotes the differential treatment of an individual without an important government interest;

(B) influences the employment decisions of an individual other than through the use of neutral hiring processes with regard to a personal identity characteristic and in accordance with federal law;

(C) influences an individual's admission to, advancement in, or graduation from an institution, the public education system, or an academic program; or

(D) influences an individual's participation in an institution-sponsored or public education system-sponsored program.

(ii) "Prohibited discriminatory practice" includes engaging in or maintaining a policy, procedure, practice, program, office, initiative, or required training that:

(A) asserts that one personal identity characteristic is inherently superior or inferior to another personal identity characteristic;

(B) asserts that an individual, by virtue of the individual's personal identity characteristic, is inherently privileged, oppressed, racist, sexist, oppressive, or a victim, whether consciously or unconsciously;

(C) asserts that an individual should be discriminated against in violation of Title VI, Title VII, and Title IX, receive adverse treatment, be advanced, or receive beneficial treatment because of the individual's personal identity characteristic;

(D) asserts that an individual's moral character is determined by the individual's personal identity characteristic;

(E) asserts that an individual, by virtue of the individual's personal identity characteristic, bears responsibility for actions committed in the past by other individuals with the same personal identity characteristic;

(F) asserts that an individual should feel discomfort, guilt, anguish, or other psychological distress solely because of the individual's personal identity characteristic;

(G) asserts that meritocracy is inherently racist or sexist;

(H) asserts that socio-political structures are inherently a series of power relationships and struggles among racial groups;

(I) promotes resentment between, or resentment of, individuals by virtue of the individuals' personal identity characteristics;

(J) ascribes values, morals, or ethical codes, privileges, or beliefs to an individual because of the individual's personal identity characteristic;

(K) considers an individual's personal identity characteristic in determining receipt of state financial aid or other state financial assistance, including a scholarship award or tuition waiver; or

(L) is referred to or named "diversity, equity, and inclusion."

(iii) "Prohibited discriminatory practice" does not include:

(A) policies or procedures required by state or federal law, including laws relating to prohibited discrimination or harassment; or

(B) policies or procedures that promote intellectual diversity that do not otherwise constitute a prohibited discriminatory practice.

(d) "Student success and support" means a description of an office, division, employment position, or other unit of an institution that provides support, guidance, and resources that equip all students, including all students at higher risk of not completing a certificate or degree, with experiences and opportunities for success in each student's academic and career goals, and without excluding individuals on the basis of an individual's personal identity characteristic.

(e) "Title VI" means Title VI of the Civil Rights Act of 1964, 42 U.S.C. Sec. 2000d et seq.

(f) "Title VII" means Title VII of the Civil Rights Act of 1964, 42 U.S.C. Sec. 2000e et seq.

(g) "Title IX" means Title IX of the Education Amendments of 1972, 20 U.S.C. Sec. 1681 et seq.

(2) An institution may not:

(a) engage in a prohibited discriminatory practice;

(b) take, express, or assert a position or opinion on subjects described in Subsection 53H-1-502(1)(b);

(c) establish or maintain an office, division, employment position, or other unit of an institution established to implement, develop, plan, or promote campus policies, procedures, practices, programs, or initiatives, regarding a prohibited discriminatory practice; or

(d) employ or assign an employee or a third-party whose duties include coordinating, creating, developing, designing, implementing, organizing, planning, or promoting policies, programming, training, practices, activities, and procedures relating to a prohibited discriminatory practice.

(3) (a) An institution shall:

(i) ensure that all students have access to programs providing student success and support;

(ii) publish the titles and syllabi of all mandatory courses, seminars, classes, workshops, and training sessions on the institution's website in an online database that is readily searchable by the public;

(iii) annually train employees on the separation of personal political advocacy from an institution's business and employment activities;

(iv) develop strategies, including inviting speakers, to promote viewpoint diversity; and

(v) establish policies and procedures to include opportunities for education and research on free speech and civic education.

(b) The board shall report to the Higher Education Appropriations Subcommittee on the status and allocation of appropriated funds for student success and support.

(c) The Legislature shall, in a line item appropriation, appropriate ongoing funding to support an institution's student success and support program in accordance with this section.

(4) (a) On or before January 1, 2025, the board shall contract with a third-party contractor, in accordance with Title 63G, Chapter 6a, Utah Procurement Code, to conduct a campus expression climate survey of each institution:

(i) to assess student, faculty, and staff perceptions of and experiences with an institution's campus environment that measures the student's, faculty member's, and staff member's perception of and experience with an institution's campus environment; and

(ii) that measures the student's, faculty member's, and staff member's perception of and experience with campus policy and practice regarding freedom of speech and academic freedom at the institution.

(b) The board shall collect the results of each campus expression climate survey under Subsection (4)(a) and submit the results to the Office of Legislative Research and General Counsel beginning on or before July 1.

(c) (i) The Office of Legislative Research and General Counsel shall provide a summary report on the data collected from the campus expression climate surveys to the Education Interim Committee on or before:

(A) November 1, 2027, for reports received in years 2025, 2026, and 2027;

(B) November 1, 2030, for reports received in years 2028, 2029, and 2030; and

(C) November 1, 2033, for reports received in years 2031, 2032, and 2033.

(ii) On or before November 1, 2035, the Office of Legislative Research and General Counsel shall provide a comprehensive report of the campus expression climate surveys to the Education Interim Committee.

(5) (a) Nothing in this section requires an individual to respond to a campus expression climate survey.

(b) Nothing in this section limits or prohibits an institution's authority to establish policies that:

(i) are necessary to comply with state or federal law, including laws relating to prohibited discrimination or harassment;

(ii) require disclosure of an employee's academic research, classroom teaching, or coursework; or

(iii) require for employment, tenure, or promotion to disclose or discuss the applicant's:

(A) research;

(B) teaching agenda;

(C) artistic creations; or

(D) pedagogical approaches or experiences with students of all learning abilities.

(6) (a) This section does not apply to:

(i) requirements necessary for athletic and accreditation compliance;

(ii) academic research;

(iii) academic course teaching in the classroom;

(iv) in accordance with Subsection (3)(a)(iv):

(A) a presentation or instruction by a guest lecturer in an academic course; or

(B) a speaker an administrative unit of the institution, faculty member or faculty organization, staff member or staff organization, or student club or organization invites to speak, virtually or in person, at the institution, including a public policy event described in Section 53H-6-302;

(v) a grant that would otherwise require:

(A) a department, office, division, or other unit of an institution to engage in a prohibited discriminatory practice if the grant has been reviewed and approved by the institution's board of trustees; or

(B) an institution to engage in a prohibited discriminatory practice if the grant has been reviewed and approved by the board;

(vi) requirements necessary for an institution to establish or maintain eligibility for any federal program; or

(vii) private scholarships administered by an institution.

(b) Notwithstanding any other provision of this chapter or of Chapter 3, Institutions of Higher Education Generally, the University of Utah may take any action required for the University of Utah to comply with the terms of an agreement entered into between the University of Utah and the Ute Indian Tribe before July 1, 2024.

(7) (a) The board shall conduct a biennial review of an institution of higher education's compliance with this section as follows:

(i) for 2025, on each institution of higher education; and

(ii) for 2026, and every year after, on one-half of the degree granting institutions of higher education and one-half of the technical colleges.

(b) If the board identifies a violation of this section, the board shall:

(i) on or before 30 days after the day on which the board identifies the violation, work with the institution to create a remediation plan; and

(ii) provide the institution 180 days after the day of the creation of the remediation plan to cure the violation.

(8) On or before November 1 of each year, the board shall include in the board's report described in Section 53H-1-502 information on:

(a) the review process and each institution's compliance determination; or

(b) if a violation is identified, the remediation plan and progress under Subsection (7)(b).

(9) (a) On or before December 1 of each year, the Higher Education Appropriations Subcommittee shall:

(i) report the findings under Subsections (3)(b) and (8) to the Legislature; and

(ii) make appropriation recommendations about an institution's compliance with this section.

(b) The Legislature may withhold future state appropriations to an institution that fails to cure a violation of this section within the time provided under Subsection (7)(b).

(10) The board shall make rules in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, to establish a procedure for accepting and processing an individual's complaint against an institution for an alleged violation of this section.

Amended by Chapter 438, 2026 General Session

Utah Code Ann. § 63G-33-201

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Text not stored locally (`tribonian state fetch UT code 63G` gets it).

Va. Const. art. I

Cited by the petitioners 0 times (0 filings) and their amici 2 (2); by the respondent 0 (0) and its amici 0 (0).

Text not stored locally (not in constitution-full.xml (renumbered or repealed since, or a cite we misread)).

Va. Code Ann. § 2.2-3904

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Nondiscrimination in places of public accommodation; definitions (current text, retrieved 2026-10-29)

A. As used in this section:

"Age" means being an individual who is at least 18 years of age.

"Place of public accommodation" means all places or businesses offering or holding out to the general public goods, services, privileges, facilities, advantages, or accommodations, including educational institutions.

B. It is an unlawful discriminatory practice for any person, including the owner, lessee, proprietor, manager, superintendent, agent, or employee of any place of public accommodation, to refuse, withhold from, or deny any individual, or to attempt to refuse, withhold from, or deny any individual, directly or indirectly, any of the accommodations, advantages, facilities, services, or privileges made available in any place of public accommodation, or to segregate or discriminate against any such person in the use thereof, or to publish, circulate, issue, display, post, or mail, either directly or indirectly, any communication, notice, or advertisement to the effect that any of the accommodations, advantages, facilities, privileges, or services of any such place shall be refused, withheld from, or denied to any individual on the basis of race, color, religion, ethnic or national origin, sex, pregnancy, childbirth or related medical conditions, age, sexual orientation, gender identity, marital status, disability, or military status.

C. The provisions of this section shall not apply to a private club, a place of accommodation owned by or operated on behalf of a religious corporation, association, or society that is not in fact open to the public, or any other establishment that is not in fact open to the public.

D. The provisions of this section shall not prohibit (i) discrimination against individuals who are younger than 18 years of age solely on the basis of such individual's age or (ii) the provision of special benefits, incentives, discounts, or promotions by public or private programs to assist persons who are 50 years of age or older.

E. The provisions of this section shall not supersede or interfere with any state law or local ordinance that prohibits a person under the age of 21 from entering a place of public accommodation.

2020, c. 1140; 2021, Sp. Sess. I, cc. 477, 478; 2024, cc. 266, 334; 2026, c. 950.

Va. Code Ann. § 57-1

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Act for religious freedom recited (current text, retrieved 2026-10-29)

The General Assembly, on January 16, 1786, passed an act in the following words:

"Whereas, Almighty God hath created the mind free; that all attempts to influence it by temporal punishment, or burthens, or by civil incapacitations, tend only to beget habits of hypocrisy and meanness, and are a departure from the plan of the Holy Author of our religion, who, being Lord both of body and mind, yet chose not to propagate it by coercions on either, as was in his Almighty power to do; that the impious presumption of legislators and rulers, civil as well as ecclesiastical, who, being themselves but fallible and uninspired men, have assumed dominion over the faith of others, setting up their own opinions and modes of thinking as the only true and infallible, and as such endeavoring to impose them on others, have established and maintained false religions over the greatest part of the world, and through all time; that to compel a man to furnish contributions of money for the propagation of opinions which he disbelieves, is sinful and tyrannical, and even the forcing him to support this or that teacher of his own religious persuasion, is depriving him of the comfortable liberty of giving his contributions to the particular pastor whose morals he would make his pattern, and whose powers he feels most persuasive to righteousness, and is withdrawing from the ministry those temporary rewards which, proceeding from an approbation of their personal conduct, are an additional incitement to earnest and unremitting labors, for the instruction of mankind; that our civil rights have no dependence on our religious opinions any more than our opinions in physics or geometry; that therefore the proscribing any citizen as unworthy the public confidence by laying upon him an incapacity of being called to offices of trust and emolument, unless he profess or renounce this or that religious opinion, is depriving him injuriously of those privileges and advantages to which, in common with his fellow citizens, he has a natural right; that it tends only to corrupt the principles of that religion it is meant to encourage, by bribing, with a monopoly of worldly honors and emoluments, those who will externally profess and conform to it; that though, indeed, those are criminal who do not withstand such temptation, yet, neither are those

innocent who lay the bait in their way; that to suffer the civil magistrate to intrude his powers into the field of opinion, and to restrain the profession or propagation of principles on supposition of their ill tendency, is a dangerous fallacy, which at once destroys all religious liberty, because he, being of course judge of that tendency, will make his opinions the rules of judgment, and approve or condemn the sentiments of others only as they shall square with or differ from his own; that it is time enough for the rightful purposes of civil government, for its officers to interfere, when principles break out into overt acts against peace and good order; and finally, that truth is great and will prevail, if left to herself; that she is the proper and sufficient antagonist to error, and has nothing to fear from the conflict, unless by human interposition disarmed of her natural weapons, free argument and debate; errors ceasing to be dangerous when it is permitted freely to contradict them:

"Be it enacted by the General Assembly, That no man shall be compelled to frequent or support any religious worship, place or ministry whatsoever, nor shall be enforced, restrained, molested or burthened, in his body or goods, nor shall otherwise suffer on account of his religious opinions or belief; but that all men shall be free to profess, and by argument to maintain, their opinions in matters of religion, and that the same shall in no wise diminish, enlarge or affect their civil capacities.

"And though we well know that this Assembly, elected by the people for the ordinary purposes of legislation only, have no power to restrain the acts of succeeding assemblies constituted with powers equal to our own, and that, therefore, to declare this act to be irrevocable would be of no effect in law; yet we are free to declare, and do declare, that the rights hereby asserted are of the natural rights of mankind; and that if any act shall be hereafter passed to repeal the present, or to narrow its operation, such act will be an infringement of natural right."

Code 1919, § 34; 1985, c. 73.

Vt. Stat. Ann. tit. 9, § 4501

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Definitions (current text, 2026 edition; retrieved 2026-10-29)

As used in this chapter:

(1) "Place of public accommodation" means any school, restaurant, store, establishment, or other facility at which services, facilities, goods, privileges, advantages, benefits, or accommodations are offered to the general public.

(2) "Disability," with respect to an individual, means:

(A) a physical or mental impairment that limits one or more major life activities;

(B) a history or record of such an impairment; or

(C) being regarded as having such an impairment.

(3) "Physical or mental impairment" means:

(A) Any physiological disorder or condition, cosmetic disfigurement, or anatomical loss affecting one or more of the following body systems: neurological; musculoskeletal; special sense organs; respiratory, including speech organs; cardiovascular; reproductive; digestive; genito-urinary; hemic and lymphatic; skin; or endocrine.

(B) Any mental or psychological disorder, such as intellectual disability, organic brain syndrome, emotional or mental condition, and specific learning disabilities.

(C) The term "physical or mental impairment" includes diseases and conditions such as orthopedic, visual, speech, and deafness or being hard of hearing, cerebral palsy, epilepsy, muscular dystrophy, multiple sclerosis, cancer, heart disease, diabetes, developmental disability, emotional disturbance, and substance use disorders, including drug addiction and alcoholism. An individual with a disability does not include any individual with a substance use disorder who, by reason of current alcohol or drug use, constitutes a direct threat to property or safety of others.

(4) "Owner" includes any person having a legal or beneficial interest in real estate that gives him or her the right to possession thereof.

(5) "Dwelling" means any building, structure, or portion thereof that is occupied as, or designed or intended for occupancy as, a residence by one or more families and any vacant land that is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof.

(6) "Public assistance" includes any assistance provided by federal, state, or local government, including medical and housing assistance.

(7) "Auxiliary aids and services" mean the following:

(A) qualified interpreters, notetakers, computer-aided transcription services, written materials, telephone handset amplifiers, assistive listening devices and systems, hearing aid compatible telephones, closed caption decoders, open and closed captioning telecommunications devices for persons who are deaf, videotext displays, or other effective methods of making aurally delivered materials available to individuals with hearing impairments;

(B) qualified readers, taped texts, audio recordings, Braille materials, large print materials, or other effective methods of making visually delivered materials available to individuals with visual impairments;

(C) modification of equipment or devices; and

(D) other similar services and actions.

(8) "Public accommodation" means an individual, organization, or governmental or other entity that owns, leases, leases to, or operates a place of public accommodation.

(9) "Readily achievable" means easily accomplishable and able to be carried out without much difficulty or expense. In determining whether an action is readily achievable, the factors considered in determining whether an action is an undue burden pursuant to subdivision (10) of this section apply.

(10) "Undue burden" means significant difficulty or expense. In determining whether an action would result in an undue burden, the following factors shall be considered:

(A) the nature and cost of the action needed;

(B) the overall financial resources of the site or sites involved in the action; the number of persons employed at the site; the effect on expenses and resources; legitimate safety requirements necessary for safe operation, including crime prevention measures; and any other impact of the action on the operation of the site;

(C) the geographic separateness and the administrative or fiscal relationship of the site or sites in question to any parent corporation or entity;

(D) if applicable, the overall financial resources of any parent corporation or entity; the overall size of the parent corporation or entity with respect to the number of its employees; and the number, type, and location of its facilities; and

(E) if applicable, the type of operation or operations of any parent corporation or entity, including the composition, structure, and functions of the workforce of the parent corporation or entity.

(11) "Abuse," "sexual assault," and "stalking" have the same meanings as in section 4471 of this title.

(12) (A) "Harass" means to engage in unwelcome conduct that detracts from, undermines, or interferes with a person's:

(i) use of a place of public accommodation or any of the accommodations, advantages, facilities, or privileges of a place of public accommodation because of the person's race, creed, color, national origin, citizenship, immigration status, marital status, sex, sexual orientation, gender identity, or disability; or

(ii) terms, conditions, privileges, or protections in the sale or rental of a dwelling or other real estate, or in the provision of services or facilities in connection with a dwelling or other real estate, because of the person's race, sex, sexual orientation, gender identity, age, marital status, religious creed, color, national origin, citizenship, immigration status, or disability, or because the person intends to occupy a dwelling with one or more minor children, or because the person is a recipient of public assistance, or because the person is a victim of abuse, sexual assault, or stalking.

(B) Notwithstanding any judicial precedent to the contrary, harassing conduct need not be severe or pervasive to be unlawful pursuant to the provisions of this chapter. In determining whether conduct constitutes unlawful harassment:

(i) The determination shall be made on the basis of the record as a whole, according to the totality of the circumstances, and a single incident may constitute unlawful harassment.

(ii) Incidents that may be harassment shall be considered in the aggregate with varying types of conduct and conduct based on multiple characteristics viewed in totality rather than in isolation.

(iii) Conduct may constitute unlawful harassment, regardless of whether:

(I) the complaining person is the person being harassed;

(II) the complaining person acquiesced or otherwise submitted to or participated in the conduct;

(III) the conduct is also experienced by others outside the protected class involved in the conduct;

(IV) despite the conduct, the complaining person was able to:

(aa) use the place of public accommodation or any of the accommodations, advantages, facilities, or privileges of the place of public accommodation; or

(bb) enjoy the benefit of applicable terms, conditions, privileges, or protections in the sale or rental of the dwelling or other real estate, or to obtain services or facilities in connection with the dwelling or other real estate;

(V) the conduct resulted in a physical or psychological injury; or

(VI) the conduct occurred outside the place of public accommodation or the dwelling or other real estate.

(C) Behavior that a reasonable person with the same protected characteristic would consider to be a petty slight or trivial inconvenience shall not constitute unlawful harassment or discrimination pursuant to this chapter.

(D) The provisions of this subdivision (12) shall not apply to any action brought under this chapter pursuant to the provisions of 16 V.S.A. § 570f.

(13) "Race" includes traits associated with or perceived to be associated with race, including hair type, hair texture, hairstyles, and protective hairstyles. As used in this subdivision, the term "protective hairstyles" includes hairstyles such as individual braids, cornrows, locs, twists, Bantu knots, afros, afro puffs, and other formations, as well as wigs, headwraps, and other head coverings. (Added 1987, No. 74, § 1; amended 1987, No. 253 (Adj. Sess.), § 1; 1989, No. 89, § 1; 1991, No. 243 (Adj. Sess.), §§ 1, 2; 2013, No. 96 (Adj. Sess.), § 31; 2019, No. 48, § 4; 2023, No. 80, § 3, eff.

July 1, 2023; 2023, No. 92 (Adj. Sess.), § 1, eff. July 1, 2024; 2025, No. 18, § 24, eff. May 13, 2025; 2025, No. 69, § 11, eff. July 1, 2025.)

Vt. Stat. Ann. tit. 9, § 4502

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Public accommodations (current text, 2026 edition; retrieved 2026-10-29)

(a) An owner or operator of a place of public accommodation or an agent or employee of such owner or operator shall not, because of the race, creed, color, national origin, citizenship, immigration status, marital status, sex, sexual orientation, or gender identity of any person, refuse, withhold from, or deny to that person any of the accommodations, advantages, facilities, and privileges of the place of public accommodation.

(b) An owner or operator of a place of public accommodation or his or her employee or agent shall not prohibit from entering a place of public accommodation:

(1) an individual with a disability accompanied by a service animal; or

(2) an individual who is training an animal to perform as a service animal for an individual with a disability.

(c) No individual with a disability shall be excluded from participation in or be denied the benefit of the services, facilities, goods, privileges, advantages, benefits, or accommodations or be subjected to discrimination by any place of public accommodation on the basis of his or her disability as follows:

(1) A public accommodation shall provide an individual with a disability the opportunity to participate in its services, facilities, privileges, advantages, benefits, and accommodations. It is discriminatory to offer an individual an unequal opportunity or separate benefit; however it is permissible to provide a separate benefit if that benefit is necessary to provide an individual or class of individuals an opportunity that is as effective as that provided to others.

(2) A public accommodation shall afford goods, services, facilities, privileges, advantages, and accommodations to an individual with a disability in the most integrated setting that is appropriate for the needs of the individual. Notwithstanding the existence of separate or different programs or activities, a public accommodation shall not deny an individual with a disability an opportunity to participate in such programs or activities that are not separate or different. Nothing in this subsection shall be construed to require an individual with a disability to accept an accommodation, aid, service, opportunity, or benefit that the individual chooses not to accept.

(3) A public accommodation shall not exclude or otherwise deny equal goods, services, facilities, privileges, advantages, accommodations, or other opportunities to an individual or entity because of the known disability of an individual with whom the individual or entity is known to have a relationship or association.

(4) [Repealed.]

(5) A public accommodation shall make reasonable modifications in policies, practices, or procedures when those modifications are necessary to offer goods, services, facilities, privileges, advantages, or accommodations to individuals with disabilities, unless the public accommodation can demonstrate that making the modifications would fundamentally alter the nature of the goods, services, facilities, privileges, advantages, or accommodations.

(6) A public accommodation shall take whatever steps may be necessary to ensure that no individual with a disability is excluded, denied services, segregated, or otherwise treated differently than other individuals because of the absence of auxiliary aids and services, unless the public accommodation can demonstrate that taking those steps would fundamentally alter the nature of the goods, services, facilities, privileges, advantages, or accommodations being offered or would result in an undue burden on the public accommodation.

(7) A public accommodation shall not be required to provide to individuals with disabilities personal devices, such as wheelchairs, eyeglasses, hearing aids, or readers for personal use or study, or personal services to assist with feeding, toileting, or dressing.

(8) Notwithstanding the provisions of this section, if a place of public accommodation has an architectural or communication barrier, in order to comply with this section, the public accommodation shall remove the barrier, if removal is readily achievable, or shall make its goods, services, facilities, privileges, advantages, or accommodations available through alternative methods, if those alternative methods are readily achievable. Nothing in this subsection shall be construed to alter architectural barrier removal requirements under the federal Americans with Disabilities Act and its regulations as they relate to governmental entities.

(9) Any public accommodation that offers examinations or courses related to applications, licensing, certification, or credentialing for secondary or post-secondary education, professional, or trade purposes shall offer such examinations or courses in a place and manner accessible to persons with disabilities or offer alternative accessible arrangements for such individuals.

(d) This section shall not prohibit an owner or operator of an inn, hotel, motel, or other establishment that provides lodging to transient guests, and that has five or fewer rooms for rent or hire, from restricting such accommodation on the basis of sex or marital status.

(e) It is a violation of this section for a gas station or other facility that sells gasoline or other motor vehicle fuel for sale

to the public to fail to comply with the provisions of section 4110a of this title.

(f) It is a violation of this section for a public accommodation to fail to comply with the provisions or rules pertaining to public buildings pursuant to 20 V.S.A. chapter 174.

(g) This chapter shall not apply to:

(1) special education claims and issues covered by federal and State special education laws, regulations, and procedures, pursuant to 20 U.S.C. § 1404 et seq. and 16 V.S.A. chapter 101; or

(2) an insurer underwriting risks, classifying risks, or administering risks that are based on or are not inconsistent with 8 V.S.A. §§ 4724 and 4014 or other applicable State laws.

(h) This section shall not be construed to require a public accommodation to permit an individual to participate in or benefit from the services, facilities, goods, privileges, advantages, and accommodations of that public accommodation when that individual poses a direct threat to the health or safety of others. For the purposes of this subsection, "direct threat" means a significant risk to the health or safety of others that cannot be eliminated by a modification of policies, practices, or procedures or by the provision of auxiliary aids or services. In determining whether an individual poses a direct threat to the health or safety of others, a public accommodation shall make an individualized assessment based on reasonable judgment that relies on current medical knowledge or on the best available objective evidence to ascertain:

(1) the nature, duration, and severity of the risk;

(2) the probability that the potential injury will actually occur; and

(3) whether reasonable modifications of policies, practices, or procedures will mitigate the risk.

(i) Nothing in this section shall be construed to prohibit a public accommodation from excluding a person engaged in disruptive behavior that the place of public accommodation has reason to believe is the result of alcohol or illegal drug use.

(j) Notwithstanding any other provision of law, a mother may breastfeed her child in any place of public accommodation in which the mother and child would otherwise have a legal right to be.

(k) A police officer, a firefighter, or a member of a rescue squad, search and rescue squad, first response team, or ambulance corps who is accompanied by a service dog shall be permitted in any place of public accommodation, and the service dog shall be permitted to stay with its master. For the purposes of this subsection, "service dog" means a dog owned, used, or in training by any police or fire department; rescue or first response squad; ambulance corps; or search and rescue organization for the purposes of locating criminals and lost persons or detecting illegal substances, explosives, cadavers, accelerants, or school or correctional facility contraband.

(l) Notwithstanding any other provision of law, a religious organization, association, or society, or any nonprofit institution or organization operated, supervised, or controlled by or in conjunction with a religious organization, association, or society, shall not be required to provide services, accommodations, advantages, facilities, goods, or privileges to an individual if the request for such services, accommodations, advantages, facilities, goods, or privileges is related to the solemnization of a marriage or celebration of a marriage. Any refusal to provide services, accommodations, advantages, facilities, goods, or privileges in accordance with this subsection shall not create any civil claim or cause of action. This subsection shall not be construed to limit a religious organization, association, or society, or any nonprofit institution or organization operated, supervised, or controlled by or in conjunction with a religious organization, from selectively providing services, accommodations, advantages, facilities, goods, or privileges to some individuals with respect to the solemnization or celebration of a marriage but not to others. (Added 1987, No. 74, § 1; amended 1991, No. 48, § 3; 1991, No. 135 (Adj. Sess.), § 11; 1991, No. 243 (Adj. Sess.), §§ 3, 4; 2001, No. 117 (Adj. Sess.), § 2, eff. May 28, 2002; 2003, No. 17, §§ 1, 2; 2007, No. 41, § 14; 2009, No. 3, § 11, eff. Sept. 1, 2009; 2013, No. 31, § 10; 2015, No. 23, § 144; 2025, No. 69, § 12, eff. July 1, 2025.)

Vt. Stat. Ann. tit. 9, § 4503

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Unfair housing practices (current text, 2026 edition; retrieved 2026-10-29)

(a) It shall be unlawful for any person:

(1) To refuse to sell or rent, or refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling or other real estate to any person because of the race, sex, sexual orientation, gender identity, age, marital status, religious creed, color, national origin, citizenship, immigration status, or disability of a person, or because a person intends to occupy a dwelling with one or more minor children, or because a person is a recipient of public assistance, or because a person is a victim of abuse, sexual assault, or stalking.

(2) To discriminate against, or to harass, any person in the terms, conditions, privileges, and protections of the sale or rental of a dwelling or other real estate, or in the provision of services or facilities in connection with a dwelling or other real estate, because of the race, sex, sexual orientation, gender identity, age, marital status, religious creed, color, national origin, citizenship, immigration status, or disability of a person, or because a person intends to occupy a dwelling with one or more minor children, or because a person is a recipient of public assistance, or because a

person is a victim of abuse, sexual assault, or stalking.

(3) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling or other real estate that indicates any preference, limitation, or discrimination based on race, sex, sexual orientation, gender identity, age, marital status, religious creed, color, national origin, citizenship, immigration status, or disability of a person, or because a person intends to occupy a dwelling with one or more minor children, or because a person is a recipient of public assistance, or because a person is a victim of abuse, sexual assault, or stalking.

(4) To represent to any person because of the race, sex, sexual orientation, gender identity, age, marital status, religious creed, color, national origin, citizenship, immigration status, or disability of a person, or because a person intends to occupy a dwelling with one or more minor children, or because a person is a recipient of public assistance, or because a person is a victim of abuse, sexual assault, or stalking, that any dwelling or other real estate is not available for inspection, sale, or rental when the dwelling or real estate is in fact so available.

(5) To disclose to another person information regarding or relating to the status of a tenant or occupant as a victim of abuse, sexual assault, or stalking for the purpose or intent of:

(A) harassing or intimidating the tenant or occupant;

(B) retaliating against a tenant or occupant for exercising his or her rights;

(C) influencing or coercing a tenant or occupant to vacate the dwelling; or

(D) recovering possession of the dwelling.

(6) To discriminate against any person in the making or purchasing of loans or providing other financial assistance for real-estate-related transactions or in the selling, brokering, or appraising of residential real property, because of the race, sex, sexual orientation, gender identity, age, marital status, religious creed, color, national origin, citizenship, immigration status, or disability of a person, or because a person intends to occupy a dwelling with one or more minor children, or because a person is a recipient of public assistance, or because a person is a victim of abuse, sexual assault, or stalking.

(7) To engage in blockbusting practices, for profit, which may include inducing or attempting to induce a person to sell or rent a dwelling by representations regarding the entry into the neighborhood of a person or persons of a particular race, sex, sexual orientation, gender identity, age, marital status, religious creed, color, national origin, citizenship, immigration status, or disability of a person, or because a person intends to occupy a dwelling with one or more minor children, or because a person is a recipient of public assistance, or because a person is a victim of abuse, sexual assault, or stalking.

(8) To deny any person access to or membership or participation in any multiple listing service, real estate brokers' organization, or other service, organization, or facility relating to the business of selling or renting dwellings, or to discriminate against any person in the terms or conditions of such access, membership, or participation, on account of race, sex, sexual orientation, gender identity, age, marital status, religious creed, color, national origin, citizenship, immigration status, or disability of a person, or because a person is a recipient of public assistance, or because a person is a victim of abuse, sexual assault, or stalking.

(9) To discriminate in the sale or rental of a dwelling because a person relies upon aids such as attendants, specially trained animals, wheelchairs, or similar appliances or devices but the owner shall not be required to modify or alter the building in any way in order to comply with this chapter. An owner shall permit, at the expense of the person with a disability, reasonable modifications of existing premises occupied or to be occupied by the person with a disability if the modifications are necessary to afford the person full enjoyment of the premises. The owner may, if reasonable, require the person to agree to restore the premises to the condition that existed before the modification, reasonable wear and tear excepted, but the owner may not require an additional security deposit for this purpose.

(10) To refuse to make reasonable accommodations in rules, policies, practices, or services when such accommodations may be necessary to afford a person with a disability equal opportunity to use and enjoy a dwelling unit, including public and common areas.

(11) To fail to comply with provisions or rules pertaining to covered multifamily dwellings, as defined in 20 V.S.A. § 2900(4) and pursuant to 20 V.S.A. chapter 174.

(12) To discriminate in land use decisions or in the permitting of housing because of race, sex, sexual orientation, gender identity, age, marital status, religious creed, color, national origin, citizenship, immigration status, disability, the presence of one or more minor children, income, or because of the receipt of public assistance, or because a person is a victim of abuse, sexual assault, or stalking, except as otherwise provided by law.

(b) The provisions of subsection (a) of this section with respect to discrimination in sales and rentals of dwellings on the basis of age or on the basis of a person's intention to occupy with one or more minor children shall not apply to the sale or rental of a dwelling in a housing complex:

(1) intended for, and solely occupied by, persons 62 years of age or older;

(2) intended and operated for occupancy by at least one person 55 years of age or older per unit. This subsection

shall only apply if the following conditions are met:

(A) the housing complex has significant facilities and services specifically designed to meet the physical or social needs of older persons, or if it is not practicable to provide those facilities and services, that the housing complex is necessary to provide important housing opportunities for older persons;

(B) at least 80 percent of the units are occupied by at least one person 55 years of age or older per unit, except that a newly constructed housing complex in which first occupancy will begin after enactment of this chapter need not comply with this subsection until 25 percent of the units are occupied; and

(C) there are written and enforced policies and procedures that demonstrate an intent by the owner or manager to provide housing for persons 55 years of age or older; or

(3) established under any federal or State program specifically designed and operated to assist elders, as defined in the federal or State program.

(c) The housing exemption in subsection (b) of this section shall not fail to apply due to persons residing in such dwellings as of July 1, 1989, who do not meet the age requirements of subsection (b) of this section, provided that new occupants of such dwellings meet the age requirements of that subsection, and that unoccupied units as of July 1, 1989, are reserved for occupancy by persons who meet the age requirements of that subsection.

(d) If required by federal law, the verification of immigration status or differential treatment on the basis of citizenship or immigration status shall not constitute a violation of subsection (a) of this section with respect to the sale and rental of dwellings.

(e) For purposes of subdivision (a)(6) of this section, it shall not constitute unlawful discrimination for a lender to consider a credit applicant's immigration status to the extent such status has bearing on the lender's rights and remedies regarding loan repayment and further provided such consideration is consistent with any applicable federal law or regulation. (Added 1987, No. 74, § 1; amended 1987, No. 253 (Adj. Sess.), § 2; 1989, No. 89, § 2; 1991, No. 135 (Adj. Sess.), § 12; 2007, No. 41, § 15; 2011, No. 137 (Adj. Sess.), § 6, eff. May 14, 2012; 2013, No. 31, § 11; 2013, No. 96 (Adj. Sess.), § 32; 2019, No. 48, § 4; 2021, No. 182 (Adj. Sess.), § 20, eff. July 1, 2022; 2023, No. 80, § 4, eff. July 1, 2023; 2025, No. 69, § 13, eff. July 1, 2025.)

Vt. Stat. Ann. tit. 16, § 828

Cited by the petitioners 0 times (0 filings) and their amici 2 (2); by the respondent 0 (0) and its amici 0 (0).

Tuition to approved schools; age; appeal (current text, 2026 edition; retrieved 2026-10-29)

(a) A school district shall not pay the tuition of a student except to:

(1) a public school located in Vermont;

(2) an approved independent school that:

(A) is located in Vermont;

(B) is approved under section 166 of this title on or before July 1, 2025;

(C) is located within either:

(i) a supervisory district that does not operate a public school for some or all grades as of July 1, 2024; or

(ii) a supervisory union with one or more member school districts that does not operate a public school for some or all grades as of July 1, 2024;

(D) had at least 25 percent of its student enrollment composed of students attending on a district-funded tuition basis pursuant to chapter 21 of this title during the 2023–2024 school year; and

(E) complies with the minimum class size requirements contained in subdivision 165(a)(9)(A) of this title and State Board rule; provided, however, that if a school is unable to comply with the class size minimum standards due to geographic isolation or a school has developed an implementation plan to meet the class size minimum requirements, the school may ask the State Board to grant it a waiver from this subdivision (E), which decision shall be final;

(3) an independent school meeting education quality standards;

(4) a tutorial program approved by the State Board;

(5) an approved education program;

(6) a public school located in another state; or

(7) a therapeutic approved independent school located in Vermont or another state or country that is approved under the laws of that state or country.

(b) Payment of tuition on behalf of a person shall not be denied on account of age.

(c) Unless otherwise provided, a person who is aggrieved by a decision of a school board relating to eligibility for tuition payments, the amount of tuition payable, or the school the person may attend, may appeal to the State Board and its decision shall be final.

(d) As used in this section, "therapeutic approved independent school" means an approved independent school that limits enrollment for publicly funded students residing in Vermont to students who are on an individualized education

program or plan under Section 504 of the Rehabilitation Act of 1973, 29 U.S.C. § 794, or who are enrolled pursuant to a written agreement between a local education agency and the school or pursuant to a court order.
[Subsection (e) effective July 1, 2029 if contingencies met; repealed on July 1, 2029 if contingencies met.]
(e) A school eligible to receive tuition pursuant to this section shall be prohibited from requiring tuition from a student attending the school, according to the provisions of this chapter, above the amount of tuition paid by a sending school district pursuant to section 823 of this chapter. (Added 1969, No. 298 (Adj. Sess.), § 59; amended 1989, No. 271 (Adj. Sess.), § 6; 1991, No. 24, § 11; 1995, No. 157 (Adj. Sess.), § 3; 2009, No. 44, § 13, eff. May 21, 2009; 2015, No. 23, § 26; 2021, No. 127 (Adj. Sess.), § 21, eff. July 1, 2024; 2025, No. 73, § 21, eff. July 1, 2025; 2025, No. 170 (Adj. Sess.), § 29b, eff. July 1, 2026; 2025, No. 170 (Adj. Sess.), § 24, contingently eff. July 1, 2029; contingently repealed on July 1, 2029 by 2025, No. 170 (Adj. Sess.), § 29e(b).)

Vt. Stat. Ann. tit. 21, § 495

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Unlawful employment practice (current text, 2026 edition; retrieved 2026-10-29)
(a) It shall be unlawful employment practice, except where a bona fide occupational qualification requires persons of a particular race, color, religion, national origin, sex, sexual orientation, gender identity, ancestry, place of birth, age, crime victim status, or physical or mental condition:

(1) For any employer, employment agency, or labor organization to harass or discriminate against any individual because of race, color, religion, ancestry, national origin, sex, sexual orientation, gender identity, place of birth, crime victim status, or age or against a qualified individual with a disability.

(2) For any person seeking employees or for any employment agency or labor organization to cause to be printed, published, or circulated any notice or advertisement relating to employment or membership indicating any preference, limitation, specification, or discrimination based upon race, color, religion, ancestry, national origin, sex, sexual orientation, gender identity, place of birth, crime victim status, age, or disability.

(3) For any employment agency to fail or refuse to classify properly or refer for employment or to otherwise harass or discriminate against any individual because of race, color, religion, ancestry, national origin, sex, sexual orientation, gender identity, place of birth, crime victim status, or age or against a qualified individual with a disability.

(4) For any labor organization to limit, segregate, or qualify its membership with respect to any individual because of race, color, religion, ancestry, national origin, sex, sexual orientation, gender identity, place of birth, crime victim status, or age or against a qualified individual with a disability.

(5) For any employer, employment agency, labor organization, or person seeking employees to discriminate against, indicate a preference or limitation, refuse properly to classify or refer, or to limit or segregate membership on the basis of a person's having a positive test result from an HIV-related blood test.

(6) For any employer, employment agency, labor organization, or person seeking employees to request or require an applicant, prospective employee, employee, prospective member, or member to have an HIV-related blood test as a condition of employment or membership, classification, placement, or referral.

(7) For any employer, employment agency, labor organization, or person seeking employees to discriminate between employees on the basis of sex, race, national origin, sexual orientation, or gender identity or against a qualified individual with a disability by paying wages to employees of one sex, race, national origin, sexual orientation, or gender identity or an employee who is a qualified individual with a disability at a rate less than the rate paid to employees of the other sex or a different race, national origin, sexual orientation, or gender identity or without the physical or mental condition of the qualified individual with a disability for equal work that requires equal skill, effort, and responsibility and is performed under similar working conditions. An employer who is paying wages in violation of this section shall not reduce the wage rate of any other employee in order to comply with this subsection.

(A) An employer may pay different wage rates under this subsection when the differential wages are made pursuant to:

(i) A seniority system.

(ii) A merit system.

(iii) A system in which earnings are based on quantity or quality of production.

(iv) A bona fide factor other than sex, race, national origin, sexual orientation, gender identity, or physical or mental condition. An employer asserting that differential wages are paid pursuant to this subdivision (7)(A)(iv) shall demonstrate that the factor does not perpetuate a differential in compensation based on sex, race, national origin, sexual orientation, gender identity, or physical or mental condition; is job-related with respect to the position in question; and is based upon a legitimate business consideration.

(B) (i) No employer may do any of the following:

(I) Require, as a condition of employment, that an employee refrain from disclosing the amount of his or her wages or from inquiring about or discussing the wages of other employees.

(II) Require an employee to sign a waiver or other document that purports to deny the employee the right to disclose the amount of his or her wages or to inquire about or discuss the wages of other employees.

(ii) Unless otherwise required by law, an employer may prohibit a human resources manager from disclosing the wages of other employees.

(C) Nothing in this subdivision (a)(7) shall be construed to:

(i) create any new rights for an employer to inquire about a characteristic of an employee that is otherwise unknown to the employer upon which pay discrimination is prohibited pursuant to the provisions of this subdivision (a)(7); or

(ii) diminish an employee's right to privacy under any other law, or pursuant to an applicable contract or collective bargaining agreement.

(8) An employer, employment agency, or labor organization shall not discharge or in any other manner discriminate against any employee because the employee:

(A) has opposed any act or practice that is prohibited under this chapter;

(B) has lodged a complaint or has testified, assisted, or participated in any manner with the Attorney General, a State's Attorney, the Department of Labor, or the Human Rights Commission in an investigation of prohibited acts or practices;

(C) is known by the employer to be about to lodge a complaint, testify, assist, or participate in any manner in an investigation of prohibited acts or practices;

(D) has disclosed his or her wages or has inquired about or discussed the wages of other employees; or

(E) is believed by the employer to have acted as described in subdivisions (A) through (D) of this subdivision.

(b) The provisions of this section shall not be construed to limit the rights of employers to discharge employees for good cause shown.

(c) The provisions of this section prohibiting discrimination on the basis of age shall apply for the benefit of persons 18 years of age or older.

(d) (1) An employee shall not have a cause of action in negligence for any injury occurring to the employee on the account of an employer complying with subdivisions (a)(5) and (6) of this section.

(2) A person shall not have a cause of action in negligence for any injury occurring to the person on account of an employer complying with subdivisions (a)(5) and (6) of this section.

(e) The provisions of this section prohibiting discrimination on the basis of sexual orientation and gender identity shall not be construed to prohibit or prevent any religious or denominational institution or organization, or any organization operated for charitable or educational purposes, that is operated, supervised, or controlled by or in connection with a religious organization, from giving preference to persons of the same religion or denomination or from taking any action with respect to matters of employment that is calculated by the organization to promote the religious principles for which it is established or maintained.

(f) [Repealed.]

(g) Notwithstanding any provision of this subchapter, an employer shall not be prohibited from establishing and enforcing reasonable workplace policies to address matters related to employees' gender identity, including permitting an employer to establish a reasonable dress code for the workplace.

(h) Nothing in this section shall require an employer to disclose the wages of an employee in response to an inquiry by another employee, unless the failure to do so would otherwise constitute unlawful employment discrimination. Unless otherwise required by law, nothing in this section shall require an employee to disclose his or her wages in response to an inquiry by another employee.

(i) An agreement to settle a claim of a violation of subsection (a) of this section shall not prohibit, prevent, or otherwise restrict the employee from working for the employer or any parent company, subsidiary, division, or affiliate of the employer. Any provision of an agreement to settle a claim of a violation of subsection (a) of this section that violates this subsection shall be void and unenforceable with respect to the individual who made the claim.

(j) Except for claims alleging a violation of subdivision (a)(7) of this section or disparate impact discrimination an employee shall not be required to demonstrate the existence of another employee or individual to whom the employee's treatment can be compared to establish a violation of this section.

(k) Notwithstanding any State or federal judicial precedent to the contrary:

(1) harassment and discrimination need not be severe or pervasive to constitute a violation of this section; and

(2) behavior that a reasonable employee with the same protected characteristic would consider to be a petty slight or trivial inconvenience shall not constitute unlawful harassment or discrimination pursuant to this section. (Added 1963, No. 196, § 1; amended 1971, No. 9, eff. Feb. 25, 1971; 1975, No. 198 (Adj. Sess.), § 1; 1981, No. 65, § 1; 1987, No. 176 (Adj. Sess.), §§ 1, 2; 1987, No. 176 (Adj. Sess.), §§ 1, 2; 1991, No. 135 (Adj. Sess.), § 15; 1999, No. 19, § 4; 1999, No. 103 (Adj. Sess.), § 1; 2001, No. 81 (Adj. Sess.), § 1, eff. April 25, 2002; 2005, No. 10, § 1; 2007, No. 41, § 18; 2013, No. 31, § 2; 2013, No. 35, § 2; 2013, No. 96 (Adj. Sess.), § 129; 2017, No. 113 (Adj. Sess.), §

145; 2017, No. 184 (Adj. Sess.), § 1; 2023, No. 6, § 249, eff. July 1, 2023; 2023, No. 80, § 1, eff. July 1, 2023.)

Wash. Rev. Code § 49.60.030

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (1).

Freedom from discrimination—Declaration of civil rights (current text, retrieved 2026-10-29)

(1) The right to be free from discrimination because of race, creed, color, national origin, citizenship or immigration status, sex, honorably discharged veteran or military status, sexual orientation, or the presence of any sensory, mental, or physical disability or the use of a trained dog guide or service animal by a person with a disability is recognized as and declared to be a civil right. This right shall include, but not be limited to:

(a) The right to obtain and hold employment without discrimination;

(b) The right to the full enjoyment of any of the accommodations, advantages, facilities, or privileges of any place of public resort, accommodation, assemblage, or amusement;

(c) The right to engage in real estate transactions without discrimination, including discrimination against families with children;

(d) The right to engage in credit transactions without discrimination;

(e) The right to engage in insurance transactions or transactions with health maintenance organizations without discrimination: PROVIDED, That a practice which is not unlawful under RCW 48.30.300, 48.44.220, or 48.46.370 does not constitute an unfair practice for the purposes of this subparagraph;

(f) The right to engage in commerce free from any discriminatory boycotts or blacklists. Discriminatory boycotts or blacklists for purposes of this section shall be defined as the formation or execution of any express or implied agreement, understanding, policy or contractual arrangement for economic benefit between any persons which is not specifically authorized by the laws of the United States and which is required or imposed, either directly or indirectly, overtly or covertly, by a foreign government or foreign person in order to restrict, condition, prohibit, or interfere with or in order to exclude any person or persons from any business relationship on the basis of race, color, creed, religion, sex, honorably discharged veteran or military status, sexual orientation, the presence of any sensory, mental, or physical disability, or the use of a trained dog guide or service animal by a person with a disability, or national origin, citizenship or immigration status, or lawful business relationship: PROVIDED HOWEVER, That nothing herein contained shall prohibit the use of boycotts as authorized by law pertaining to labor disputes and unfair labor practices; and

(g) The right of a mother to breastfeed her child in any place of public resort, accommodation, assemblage, or amusement.

(2) Any person deeming himself or herself injured by any act in violation of this chapter shall have a civil action in a court of competent jurisdiction to enjoin further violations, or to recover the actual damages sustained by the person, or both, together with the cost of suit including reasonable attorneys' fees or any other appropriate remedy authorized by this chapter or the United States Civil Rights Act of 1964 as amended, or the Federal Fair Housing Amendments Act of 1988 (42 U.S.C. Sec. 3601 et seq.).

(3) Except for any unfair practice committed by an employer against an employee or a prospective employee, or any unfair practice in a real estate transaction which is the basis for relief specified in the amendments to RCW 49.60.225 contained in chapter 69, Laws of 1993, any unfair practice prohibited by this chapter which is committed in the course of trade or commerce as defined in the Consumer Protection Act, chapter 19.86 RCW, is, for the purpose of applying that chapter, a matter affecting the public interest, is not reasonable in relation to the development and preservation of business, and is an unfair or deceptive act in trade or commerce.

[2020 c 52 s 4; 2009 c 164 s 1; 2007 c 187 s 3; 2006 c 4 s 3; 1997 c 271 s 2; 1995 c 135 s 3. Prior: 1993 c 510 s 3; 1993 c 69 s 1; 1984 c 32 s 2; 1979 c 127 s 2; 1977 ex.s. c 192 s 1; 1974 ex.s. c 32 s 1; 1973 1st ex.s. c 214 s 3; 1973 c 141 s 3; 1969 ex.s. c 167 s 2; 1957 c 37 s 3; 1949 c 183 s 2; Rem. Supp. 1949 s 7614-21.]

Wis. Stat. § 106.50

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Open housing (current text, retrieved 2026-10-29)

(1) Intent. It is the intent of this section to render unlawful discrimination in housing. It is the declared policy of this state that all persons shall have an equal opportunity for housing regardless of sex, race, color, sexual orientation, disability, religion, national origin, marital status, family status, status as a victim of domestic abuse, sexual assault, or stalking, lawful source of income, age, or ancestry and it is the duty of the political subdivisions to assist in the orderly prevention or removal of all discrimination in housing through the powers granted under ss. 66.0125 and 66.1011. The legislature hereby extends the state law governing equal housing opportunities to cover single-family residences that are owner-occupied. The legislature finds that the sale and rental of single-family residences constitute a significant portion of the housing business in this state and should be regulated. This section shall be considered an exercise of the police powers of the state for the protection of the welfare, health, peace, dignity, and human rights of the people of this state.

(1m) Definitions. In this section:

(ad) "Advertise" means to publish, circulate, issue or display, or cause to be published, circulated, issued or displayed, any communication, notice, advertisement or sign in connection with the sale, financing or rental of housing.

(am) "Age", in reference to a member of a protected class, means at least 18 years of age.

(b) "Aggrieved person" means a person who claims to have been injured by discrimination in housing or believes that he or she will be injured by discrimination in housing that is about to occur.

(c) "Complainant" means a person who files a complaint alleging discrimination in housing.

(d) "Conciliation" means the attempted resolution of issues raised by a complaint or by the investigation of the complaint, through informal negotiations involving the aggrieved person, the complainant, the respondent and the department.

(e) "Condominium" has the meaning given in s. 703.02 (4).

(f) "Condominium association" means an association, as defined in s. 703.02 (1m).

(g) "Disability" means a physical or mental impairment that substantially limits one or more major life activities, a record of having such an impairment or being regarded as having such an impairment. "Disability" does not include the current illegal use of a controlled substance, as defined in s. 961.01 (4), or a controlled substance analog, as defined in s. 961.01 (4m), unless the individual is participating in a supervised drug rehabilitation program.

(h) "Discriminate" means to segregate, separate, exclude, or treat a person or class of persons unequally in a manner described in sub. (2), (2m), or (2r) because of sex, race, color, sexual orientation, disability, religion, national origin, marital status, family status, status as a victim of domestic abuse, sexual assault, or stalking, lawful source of income, age, or ancestry.

(i) "Dwelling unit" means a structure or that part of a structure that is used or intended to be used as a home, residence or sleeping place by one person or by 2 or more persons who are maintaining a common household, to the exclusion of all others.

(im) "Emotional support animal" means an animal that provides emotional support, well-being, comfort, or companionship for an individual but that is not trained to perform tasks for the benefit of an individual with a disability.

(j) "Family" includes one natural person.

(k) "Family status" means any of the following conditions that apply to a person seeking to rent or purchase housing or to a member or prospective member of the person's household regardless of the person's marital status:

1. A person is pregnant.

2. A person is in the process of securing sole or joint legal custody, periods of physical placement or visitation rights of a minor child.

3. A person's household includes one or more minor or adult relatives.

4. A person's household includes one or more adults or minor children in his or her legal custody or physical placement or with whom he or she has visitation rights.

5. A person's household includes one or more adults or minor children placed in his or her care under a court order, under a guardianship or with the written permission of a parent or other person having legal custody of the adult or minor child.

(km) "Hardship condition" means a situation under which a tenant in housing for older persons has legal custody or physical placement of a minor child or a minor child is placed in the tenant's care under a court order, under a guardianship or with the written permission of a parent or other person having legal custody of the minor child.

(L) "Housing" means any improved property, or any portion thereof, including a mobile home as defined in s. 101.91 (10), manufactured home, as defined in s. 101.91 (2), or condominium, that is used or occupied, or is intended, arranged or designed to be used or occupied, as a home or residence. "Housing" includes any vacant land that is offered for sale or rent for the construction or location thereon of any building, structure or portion thereof that is used or occupied, or is intended, arranged or designed to be used or occupied, as a home or residence.

(m) "Housing for older persons" means any of the following:

1. Housing provided under any state or federal program that the secretary determines is specifically designed and operated to assist elderly persons, as defined in the state or federal program.

2. Housing solely intended for, and solely occupied by, persons 62 years of age or older.

3. Housing primarily intended and primarily operated for occupancy by at least one person 55 years of age or older per dwelling unit.

(mm) "Interested person" means an adult relative or friend of a member of a protected class, or an official or representative of a private agency, corporation or association concerned with the welfare of a member of a protected class.

(mx) "Licensed health professional" means a physician, psychologist, social worker, or other health professional who satisfies all of the following:

1. He or she is licensed or certified in this state.

2. He or she is acting within the scope of his or her license or certification.

(nm) "Member of a protected class" means a group of natural persons, or a natural person, who may be categorized because of sex, race, color, disability, sexual orientation, religion, national origin, marital status, family status, status as a victim of domestic abuse, sexual abuse, or stalking, lawful source of income, age, or ancestry.

(om) "Political subdivision" means a city, village, town or county.

(q) "Relative" means a parent, grandparent, greatgrandparent, stepparent, step grandparent, brother, sister, child, stepchild, grandchild, step grandchild, greatgrandchild, first cousin, 2nd cousin, nephew, niece, uncle, aunt, stepbrother, stepsister, half brother or half sister or any other person related by blood, marriage or adoption.

(r) "Rent" means to lease, to sublease, to let or to otherwise grant for a consideration the right of a tenant to occupy housing not owned by the tenant.

(s) "Respondent" means the person accused in a complaint or amended complaint of discrimination in housing and any other person identified in the course of an investigation as allegedly having discriminated in housing.

(t) "Sexual orientation" has the meaning given in s. 111.32 (13m).

(u) "Status as a victim of domestic abuse, sexual assault, or stalking" means the status of a person who is seeking to rent or purchase housing or of a member or prospective member of the person's household having been, or being believed by the lessor or seller of housing to be, a victim of domestic abuse, as defined in s. 813.12 (1) (am), sexual assault under s. 940.225, 948.02, or 948.025, or stalking under s. 940.32.

(1s) Department to administer. This section shall be administered by the department through its division of equal rights. The department may promulgate such rules as are necessary to carry out this section. No rule may prohibit the processing of any class action complaint or the ordering of any class-based remedy, or may provide that complaints may be consolidated for administrative convenience only.

(2) Discrimination prohibited. It is unlawful for any person to discriminate:

(a) By refusing to sell, rent, finance or contract to construct housing or by refusing to negotiate or discuss the terms thereof.

(b) By refusing to permit inspection or exacting different or more stringent price, terms or conditions for the sale, lease, financing or rental of housing.

(c) By refusing to finance or sell an unimproved residential lot or to construct a home or residence upon such lot.

(d) By advertising in a manner that indicates discrimination by a preference or limitation.

(e) For a person in the business of insuring against hazards, by refusing to enter into, or by exacting different terms, conditions or privileges with respect to, a contract of insurance against hazards to a dwelling.

(f) By refusing to renew a lease, causing the eviction of a tenant from rental housing or engaging in the harassment of a tenant.

(g) In providing the privileges, services or facilities that are available in connection with housing.

(h) By falsely representing that housing is unavailable for inspection, rental or sale.

(i) By denying access to, or membership or participation in, a multiple listing service or other real estate service.

(j) By coercing, intimidating, threatening or interfering with a person in the exercise or enjoyment of, or on account of his or her having exercised or enjoyed, a right granted or protected under this section, or with a person who has aided or encouraged another person in the exercise or enjoyment of a right granted or protected under this section.

(k) In making available any of the following transactions, or in the terms or conditions of such transactions for a person whose business includes engaging in residential real estate-related transactions:

1. The making or purchasing of loans or the provision of other financial assistance for purchasing, constructing, improving, repairing or maintaining housing or the making or purchasing of loans or the provision of other financial assistance secured by residential real estate.

2. Selling, brokering or appraising residential real property.

(L) By otherwise making unavailable or denying housing.

(2m) Representations designed to induce panic sales. No person may induce or attempt to induce a person to sell or rent housing by representations regarding the present or prospective entry into the neighborhood of a person of a particular economic status or a member of a protected class, or by representations to the effect that such present or prospective entry will or may result in any of the following:

(a) The lowering of real estate values in the area concerned.

(b) A deterioration in the character of the area concerned.

(c) An increase in criminal or antisocial behavior in the area concerned.

(d) A decline in the quality of the schools or other public facilities serving the area.

(2r) Discrimination against persons with disabilities prohibited.

(b) Types of discrimination prohibited. In addition to discrimination prohibited under subs. (2) and (2m), no person may do any of the following:

1. Segregate, separate, exclude or treat unequally in the sale or rental of, or otherwise make unavailable or deny, housing to a buyer or renter because of a disability of that buyer or renter, a disability of a person residing in or

intending to reside in that housing after it is sold, rented or made available or a disability of a person associated with that buyer or renter.

2. Segregate, separate, exclude or treat unequally a person in the terms, conditions or privileges of sale or rental of housing, or in the provision of services or facilities in connection with such housing, because of a disability of that person, a disability of a person residing in or intending to reside in that housing after it is sold, rented or made available or a disability of a person associated with that person.

3. Refuse to permit, at the expense of a person with a disability, reasonable modifications of existing housing that is occupied, or is to be occupied, by such a person if the modifications may be necessary to afford the person full enjoyment of the housing, except that in the case of rental housing the landlord may, where it is reasonable to do so, condition permission for a modification on the tenant's agreement to restore the interior of the housing to the condition that existed before the modification, other than reasonable wear and tear. The landlord may not increase any customarily required security deposit. Where it is necessary to ensure that funds will be available to pay for the restorations at the end of the tenancy, the landlord may negotiate as part of a restoration agreement a requirement that the tenant pay into an interest-bearing escrow account, over a reasonable period, a reasonable amount of money not to exceed the cost of the restorations. The interest in any such account shall accrue to the benefit of the tenant. If escrowed funds are not used by the landlord for restorations, they shall be returned to the tenant.

4. Refuse to make reasonable accommodations in rules, policies, practices or services that are associated with the housing, when such accommodations may be necessary to afford the person equal opportunity to use and enjoy housing, unless the accommodation would impose an undue hardship on the owner of the housing.

(bg) Animals that do work or perform tasks for individuals with disabilities.

1. If an individual has a disability and a disability-related need for an animal that is individually trained to do work or perform tasks for the individual, it is discrimination for a person to refuse to rent or sell housing to the individual, cause the eviction of the individual from housing, require extra compensation from the individual as a condition of continued residence in housing, or engage in the harassment of the individual because he or she keeps such an animal.

2. If an individual keeps or is seeking to keep an animal that is individually trained to do work or perform tasks in housing, an owner, lessor, lessor's agent, owner's agent, or representative of a condominium association may request that the individual submit to the owner, lessor, agent, or representative reliable documentation that the individual has a disability and reliable documentation of the disability-related need for the animal, unless the disability is readily apparent or known. If the disability is readily apparent or known but the disability-related need for the animal is not, the individual may be requested to submit reliable documentation of the disability-related need for the animal.

3. An individual with a disability who keeps an animal that is individually trained to do work or perform tasks in housing shall accept liability for sanitation with respect to, and damage to the premises caused by, the animal.

4. Nothing in this subsection prohibits an owner, lessor, lessor's agent, owner's agent, or representative of a condominium association from denying an individual the ability to keep an animal in housing if any of the following applies:

a. The individual is not disabled, does not have a disability-related need for the animal, or fails to provide the documentation requested under subd. 2.

b. Allowing the animal would impose an undue financial and administrative burden or would fundamentally alter the nature of services provided by the lessor, owner, or representative.

c. The specific animal in question poses a direct threat to a person's health or safety that cannot be reduced or eliminated by another reasonable accommodation.

d. The specific animal in question would cause substantial physical damage to a person's property that cannot be reduced or eliminated by another reasonable accommodation.

(br) Emotional support animals.

1. If an individual has a disability and a disability-related need for an emotional support animal, it is discrimination for a person to refuse to rent or sell housing to the individual, cause the eviction of the individual from housing, require extra compensation from the individual as a condition of continued residence in housing, or engage in the harassment of the individual because he or she keeps such an animal.

2. If an individual keeps or is seeking to keep an emotional support animal in housing, an owner, lessor, lessor's agent, owner's agent, or representative of a condominium association may request that the individual submit to the owner, lessor, agent, or representative reliable documentation that the individual has a disability and reliable documentation of the disability-related need for the emotional support animal from a licensed health professional.

3. An individual with a disability who keeps an emotional support animal in housing shall accept liability for sanitation with respect to, and damage to the premises caused by, the animal.

4. Nothing in this subsection prohibits an owner, lessor, lessor's agent, owner's agent, or representative of a

condominium association from denying an individual the ability to keep an animal in housing if any of the following applies:

a. The individual is not disabled, does not have a disability-related need for the animal, or fails to provide the documentation requested under subd. 2.

b. Allowing the animal would impose an undue financial and administrative burden or would fundamentally alter the nature of services provided by the lessor, owner, or representative.

c. The specific animal in question poses a direct threat to a person's health or safety that cannot be reduced or eliminated by another reasonable accommodation.

d. The specific animal in question would cause substantial physical damage to a person's property that cannot be reduced or eliminated by another reasonable accommodation.

5. An individual shall forfeit not less than $500 if he or she, for the purpose of obtaining housing, intentionally misrepresents that he or she has a disability or misrepresents the need for an emotional support animal to assist with his or her disability.

6. A licensed health professional shall forfeit not less than $500 if he or she, for the purpose of allowing the patient to obtain housing, misrepresents that his or her patient has a disability or misrepresents his or her patient's need for an emotional support animal to assist with his or her patient's disability.

(c) Design and construction of covered multifamily housing. In addition to discrimination prohibited under pars. (b), (bg), and (br) and subs. (2) and (2m), no person may design or construct covered multifamily housing, as defined in s. 101.132 (1) (d), unless it meets the standards specified in s. 101.132 (2) (a) 1. to 4. In addition, no person may remodel, as defined in s. 101.132 (1) (h), housing with 3 or more dwelling units unless the remodeled housing meets the standards specified in s. 101.132 (2) (a) 1. to 4. as required under s. 101.132 (2) (b) 1., 2. or 3., whichever is applicable.

(5m) Exemptions and exclusions.

(a) 1. Nothing in this section prohibits discrimination based on age or family status with respect to housing for older persons.

1e. Under this paragraph, housing under sub. (1m) (m) 3. may qualify as housing for older persons only if the owner of the housing maintains records containing written verification that all of the following factors apply to the housing:

b. At least 80 percent of the dwelling units under sub. (1m) (m) 3. are occupied by at least one person 55 years of age or older.

c. Policies are published and procedures are adhered to that demonstrate an intent by the owner or manager to provide housing under sub. (1m) (m) 3. for persons 55 years of age or older. The owner or manager may document compliance with this subd. 1e. c. by maintaining records containing written verification of the ages of the occupants of the housing.

1m. No person may discriminate by refusing to continue renting to a person living in housing for older persons under sub. (1m) (m) 3. who is subject to a hardship condition.

2. Under this paragraph, housing may qualify as housing for older persons with respect to persons first occupying the housing on or after September 1, 1992, regardless of whether a person who had not attained the age of 62 resided in the housing on that date or regardless of whether one or more dwelling units were unoccupied on that date, if the persons who first occupy the housing on or after that date have attained the age of 62.

(am) Nothing in this section prohibits an authority, as defined in s. 66.1201 (3) (b), created by a 1st class city or an instrumentality, subsidiary, or not-for-profit affiliate of an authority created by a 1st class city from discriminating based on source of income when renting housing units located in a property wholly or partially owned before October 1, 2021, by the authority, provided that the discrimination is material to an identified objective of the authority or for the purpose of transitioning the renter to economic self-sufficiency and is consistent with federal law.

(b) Nothing in this section shall prohibit a person from exacting different or more stringent terms or conditions for financing housing based on the age of the individual applicant for financing if the terms or conditions are reasonably related to the individual applicant.

(c) Nothing in this section shall prohibit the development of housing designed specifically for persons with disabilities and preference in favor of persons with disabilities in relation to such housing.

(d) Nothing in this section requires that housing be made available to an individual whose tenancy would constitute a direct threat to the safety of other tenants or persons employed on the property or whose tenancy would result in substantial physical damage to the property of others, if the risk of direct threat or damage cannot be eliminated or sufficiently reduced through reasonable accommodations. A claim that an individual's tenancy poses a direct threat or a substantial risk of harm or damage must be evidenced by behavior by the individual that caused harm or damage, that directly threatened harm or damage, or that caused a reasonable fear of harm or damage to other

tenants, persons employed on the property, or the property. No claim that an individual's tenancy would constitute a direct threat to the safety of other persons or would result in substantial damage to property may be based on the tenant's status as a victim of domestic abuse, sexual assault, or stalking.

(dm) It is not discrimination based on status as a victim of domestic abuse, sexual assault, or stalking for a landlord to bring an action for eviction of a tenant based on a violation of the rental agreement or of a statute that entitles the landlord to possession of the premises, unless subd. 1. or 2. applies. A tenant has a defense to an action for eviction brought by a landlord if the tenant proves by a preponderance of the evidence that the landlord knew or should have known any of the following:

1. That the tenant is a victim of domestic abuse, sexual assault, or stalking and that the basis for the action for eviction is conduct that related to the commission of domestic abuse, sexual assault, or stalking by a person who was not the invited guest of the tenant.

2. That the tenant is a victim of domestic abuse, sexual assault, or stalking, that the basis for the action for eviction is conduct that related to the commission of domestic abuse, sexual assault, or stalking by a person who was the invited guest of the tenant, and that the tenant has done one of the following:

a. Sought an injunction under s. 813.12, 813.122, 813.123, or 813.125 enjoining the person from appearing on the premises.

b. Upon receiving notice under s. 704.17, provided a written statement to the landlord indicating that the person will no longer be an invited guest of the tenant and has not subsequently invited the person to be a guest of the tenant.

(e) It is not discrimination based on family status to comply with any reasonable federal, state or local government restrictions relating to the maximum number of occupants permitted to occupy a dwelling unit.

(em)

1. Subject to subd. 2., nothing in this section applies to a decision by an individual as to the person with whom he or she will, or continues to, share a dwelling unit, as defined in s. 101.71 (2) except that dwelling unit does not include any residence occupied by more than 5 persons.

2. Any advertisement or written notice published, posted or mailed in connection with the rental or lease of a dwelling unit under subd. 1. may not violate sub. (2) (d), 42 USC 3604 (c), or any rules or regulations promulgated under this section or 42 USC 3601 to 3619, except that such an advertisement or written notice may be for a person of the same sex as the individual who seeks a person to share the dwelling unit for which the advertisement or written notice is placed.

(f) 1. Nothing in this section prohibits an owner or agent from requiring that a person who seeks to buy or rent housing supply information concerning family status, and marital, financial, and business status but not concerning race, color, disability, sexual orientation, ancestry, national origin, religion, creed, status as a victim of domestic abuse, sexual assault, or stalking, or, subject to subd. 2., age.

2. Notwithstanding subd. 1., an owner or agent may require that a person who seeks to buy or rent housing under sub. (1m) (m) 3. supply information concerning his or her age for the purpose of verifying compliance with par. (a) 1e. b.

(g) A person may not be held personally liable for monetary damages for a violation of sub. (2), (2m) or (2r) if the person reasonably relied, in good faith, on the application of the exemption under this subsection relating to housing for older persons. For purposes of this paragraph, a person may show reasonable reliance, in good faith, on the application of the exemption under this subsection relating to housing for older persons only if the person shows all of the following:

1. That he or she has no actual knowledge that the housing is not or will not be eligible for the exemption.

2. That the owner of the housing has stated formally, in writing, that the housing complies with the requirements for the exemption.

(6) Fair housing administrative enforcement.

(a) Complaints.

1. The department may receive and investigate a complaint charging a violation of sub. (2), (2m) or (2r) if the complaint is filed with the department not later than one year after the alleged discrimination occurred or terminated.

2. The complaint shall include a written statement of the essential facts constituting the discrimination that is charged, and shall be signed by the complainant.

3. The complaint may be filed by an aggrieved person, by an interested person, by the department of workforce development under par. (b) or, if the complaint charges a violation of sub. (2r) (c), by the department of safety and professional services. The department of workforce development shall, upon request, provide appropriate assistance in completing and filing complaints.

4. The department shall serve notice on the aggrieved person acknowledging the filing of the complaint and

advising the complainant of the time limits and choice of forums provided under this subsection and the right to bring a private civil action under sub. (6m).

5. Upon the filing of an initial, amended, final or supplemental complaint, the department shall promptly serve a copy of the complaint upon the respondent, except where testing may be conducted. The initial complaint shall be served before the commencement of the investigation by the department, except where testing may be conducted. The notice shall be sent by certified mail, return receipt requested. The notice to the respondent shall include a written statement from the department directing the respondent to respond in writing to the allegations in the complaint within 20 days after the date of the notice and further stating that, if the respondent fails to answer the complaint in writing, the department will make an initial determination as to whether discrimination has occurred based only on the department's investigation and the information supplied by the complainant.

6. The department may dismiss the complaint if the complainant fails to respond to the department within 20 days from the date of mailing of any correspondence from the department concerning the complaint, if the department's correspondence requests a response and if the correspondence is sent by certified mail, return receipt requested, to the last known-address of the complainant.

(b) Powers and duties of department. The department of workforce development and its duly authorized agents may hold hearings, subpoena witnesses, take testimony and make investigations as provided in this subsection. The department of workforce development may test and investigate for the purpose of establishing violations of sub. (2), (2m) or (2r) and may make, sign and file complaints alleging violations of sub. (2), (2m) or (2r). In addition, the department of safety and professional services may make, sign and file complaints alleging violations of sub. (2r) (c). The department of workforce development shall employ examiners to hear and decide complaints of discrimination under this section, and to assist in the administration of this section. The examiners may make findings and issue orders under this subsection. The department of workforce development shall develop and implement an investigation manual for use in conducting investigations under par. (c).

(c) Investigation and finding of probable cause.

1. The department shall investigate all complaints that allege a violation of this section and that are filed within the time specified under par. (a). The department may subpoena persons or documents for the purpose of investigation. If during an investigation it appears that the respondent has engaged in discrimination against the complainant which is not alleged in the complaint, the department may advise the complainant that the complaint should be amended. If the complaint is amended, the department shall also investigate the allegations of the amended complaint.

2. At the conclusion of the investigation of the allegations, the department shall make a determination as to whether probable cause exists to believe that discrimination has occurred or is about to occur. In making a determination of probable cause, the department shall consider whether the facts concerning the alleged discrimination are sufficient to warrant the initiation of a civil action. If the department determines that probable cause exists, the department shall immediately issue a charge on behalf of the aggrieved person and refer the charge to the attorney general. If the attorney general concurs in the department's determination of probable cause, the attorney general shall represent the aggrieved person at the hearing under par. (f) or, if an election is made under subd. 2m., shall commence a civil action in the name of the state on behalf of the aggrieved person under sub. (6m).

2m. Service of copies of the charge shall be made on the complainant, the respondent, and the aggrieved person by certified mail, return receipt requested. When a charge is filed, a complainant, a respondent, or an aggrieved person on whose behalf the complaint was filed may elect to have the claims asserted in that charge decided in a civil action under sub. (6m) in lieu of a hearing under par. (f). The election shall be made no later than 20 days after the receipt by the electing person of service of the charge, along with information about how to make the election. If an election is made, the person making the election shall give notice of doing so to the department and to all other complainants and respondents to whom the charge relates. The department shall notify the aggrieved persons that an election is made.

3. No charge may be issued regarding alleged discrimination after the beginning of the trial of a civil action commenced by the aggrieved party under sub. (6m) or 42 USC 3613, seeking relief with respect to that discriminatory act.

4. If the department initially determines that there is no probable cause to believe that discrimination occurred as alleged in the complaint, it may dismiss those allegations. The department shall, by a notice to be served with the determination, notify the parties of the complainant's right to appeal the dismissal of the claim to the secretary for a hearing on the issue by a hearing examiner. Service of the determination shall be made by certified mail, return receipt requested. If the hearing examiner determines that no probable cause exists, that determination is the final determination of the department and may be appealed under par. (j).

(d) Temporary judicial relief. At any time after a complaint is filed alleging discrimination in violation of sub. (2), (2m), or (2r), the department may request the attorney general to file a petition in the circuit court for the county

in which the act of discrimination allegedly occurred or for the county in which a respondent resides or transacts business, seeking a temporary injunction or restraining order against the respondent to prevent the respondent from performing an act that would tend to render ineffectual an order that the department may enter with respect to the complaint, pending final determination of proceedings under this section. On receipt of the department's request, the attorney general shall promptly file the petition.

(e) Conciliation.

1. Upon the filing of a complaint alleging discrimination in violation of sub. (2), (2m) or (2r), the department may endeavor to eliminate the discrimination by conference, conciliation and persuasion. The department shall notify the parties that conciliation services are available.

2. Conciliation efforts may be undertaken by the department during the period beginning with the filing of the complaint and ending with the dismissal of the complaint under par. (c) 4. or the issuance of a charge under par. (c) 2.

3. If conciliation resolves the dispute, a written conciliation agreement shall be prepared which shall state all measures to be taken by each party. The agreement may provide for dismissal of the complaint if the dismissal is without prejudice to the complainant's right to pursue the complaint against any respondent who fails to comply with the terms of the agreement. The agreement shall be signed by the respondent, the complainant and the aggrieved person and is subject to approval by the department. A conciliation agreement entered into under this subdivision is a public record and is subject to inspection under s. 19.35, unless the parties to the agreement request that the record be exempt from disclosure and the department finds that disclosure is not required to further the purposes of this section.

4. Whenever the department has reasonable cause to believe that a respondent has breached a conciliation agreement, the department shall refer the matter to the attorney general with a recommendation that a civil action be filed for enforcement of the agreement.

(f) Hearing procedures.

1. After the department issues a charge under par. (c) 2., the department shall serve the charge, along with a written notice of hearing, specifying the nature and acts of discrimination which appear to have been committed, and requiring the respondent to answer the charge at a hearing before an examiner. The notice shall specify a time of hearing, not less than 10 days after service of the charge, and a place of hearing within the county in which the violation is alleged to have occurred.

2. If an election is not made under par. (c) 2m., the hearing shall be conducted by a hearing examiner. If the attorney general has concurred in the department's determination of probable cause under par. (c) 2., the aggrieved person on whose behalf the charge was issued shall be represented by the attorney general. Any other person who is aggrieved, with respect to the issues to be determined at the hearing, may be represented by private counsel.

3. The department, the attorney general, or a party's attorney of record may issue a subpoena to compel the attendance of a witness or the production of evidence. A subpoena issued by an attorney shall be in substantially the same form as provided in s. 805.07 (4) and shall be served in the manner provided in s. 805.07 (5). The attorney shall, at the time of issuance, send a copy of the subpoena to the hearing examiner who is responsible for conducting the hearing.

4. The testimony at the hearing shall be recorded by the department. Discovery shall be conducted as expeditiously and inexpensively as possible, consistent with the need of all parties to obtain relevant evidence. The hearing under this paragraph shall be conducted as expeditiously and inexpensively as possible, consistent with the needs and rights of the parties to obtain a fair hearing and a complete record. The burden of proof is on the party alleging discrimination.

5. If after the hearing the examiner finds by a fair preponderance of the evidence that the respondent has violated sub. (2), (2m) or (2r), the examiner shall make written findings and order the respondent to take actions that will effectuate the purpose of sub. (2), (2m) or (2r), and may order other penalties, damages and costs as provided in pars. (h) and (i). The department shall serve a certified copy of the final findings and order on the aggrieved party, the complainant and the respondent. The order shall have the same force as other orders of the department and be enforced as provided in this subsection except that the enforcement of the order is automatically stayed upon the filing of a petition for review under par. (j).

6. If the examiner finds that the respondent has not engaged in discrimination as alleged in the complaint, the department shall serve a certified copy of the examiner's findings on the aggrieved party, the complainant and the respondent together with an order dismissing the complaint. If the complaint is dismissed, costs in an amount not to exceed $100 plus actual disbursements for the attendance of witnesses may be assessed against the department in the discretion of the department.

(g) Time limitations.

1. The department shall commence proceedings with respect to a complaint before the end of the 30th day after

receipt of the complaint.

2. The department shall investigate the allegations of the complaint and complete the investigation not later than 100 days after receipt of the complaint. If the department is unable to complete the investigation within 100 days, it shall notify the complainant and respondent in writing of the reasons for not doing so.

3. The department shall make final administrative disposition of a complaint within one year after the date of receipt of a complaint, unless it is impracticable to do so. If the department is unable to do so, it shall notify the complainant and respondent in writing of the reasons for not doing so.

(h) Damages and penalties.

1. If the hearing examiner finds that a respondent has engaged in or is about to engage in a discriminatory act prohibited under sub. (2), (2m) or (2r), the hearing examiner shall promptly issue an order for such relief as may be appropriate, which may include economic and noneconomic damages suffered by the aggrieved person, regardless of whether he or she intervened in the action, and injunctive or other equitable relief. The hearing examiner may not order punitive damages.

2. In addition to any damages ordered under subd. 1., the hearing examiner may assess a forfeiture against a respondent who is not a natural person in an amount not exceeding $10,000, unless the respondent who is not a natural person has been adjudged to have committed any prior discriminatory act under sub. (2), (2m) or (2r). If a respondent who is not a natural person has been adjudged to have committed one other discriminatory act under sub. (2), (2m) or (2r) during the preceding 5-year period, based on the offense date of the prior discriminatory act, the hearing examiner may assess a forfeiture in an amount not exceeding $25,000. If a respondent who is not a natural person has been adjudged to have committed 2 or more prior discriminatory acts under sub. (2), (2m) or (2r) during the preceding 7-year period, based on the offense date of the prior discriminatory act, the hearing examiner may assess a forfeiture in an amount not exceeding $50,000.

3. In addition to any damages ordered under subd. 1., the administrative law judge may assess a forfeiture against a respondent who is a natural person in an amount not exceeding $10,000, unless the respondent who is a natural person has been adjudged to have committed any prior discriminatory act under sub. (2), (2m) or (2r). If a respondent who is a natural person has been adjudged to have committed one other prior discriminatory act under sub. (2), (2m) or (2r) based on an offense date that is before September 1, 1992, the administrative law judge may assess a forfeiture in an amount not exceeding $25,000. If a respondent who is a natural person has been adjudged to have committed 2 or more prior discriminatory acts under sub. (2), (2m) or (2r) based on an offense date that is before September 1, 1992, the administrative law judge may assess a forfeiture in an amount not exceeding $50,000.

(i) Attorney fees and costs. The hearing examiner may allow a prevailing complainant, including the state, reasonable attorney fees and costs. The state shall be liable for those fees and costs if the state is a respondent and is determined to have committed a discriminatory act under sub. (2), (2m) or (2r).

(j) Judicial review. Within 30 days after service upon all parties of an order or determination of the department under this subsection, the respondent, the complainant or the aggrieved party may appeal the order or the determination to the circuit court for the county in which the alleged discrimination took place by the filing of a petition for review. The court shall review the order or determination as provided in ss. 227.52 to 227.58.

(6m) Civil actions.

(a) Any person alleging a violation of sub. (2), (2m), or (2r), including the attorney general on behalf of an aggrieved person, may bring a civil action for injunctive relief, for damages, including punitive damages, and, in the case of a prevailing plaintiff, for court costs and reasonable attorney fees.

(b) An action commenced under par. (a) may be brought in the circuit court for the county where the alleged violation occurred or for the county where the person against whom the civil complaint is filed resides or has a principal place of business, and shall be commenced within one year after the alleged violation occurred or terminated. The one-year statute of limitations under this paragraph shall be tolled while an administrative proceeding with respect to the same complaint is pending.

(c) The court may issue a permanent or temporary injunction or restraining order to assure the rights granted by this section. The court may order other relief that the court considers appropriate, including monetary damages, actual and punitive, a forfeiture as provided in sub. (6) (h) and costs and fees as provided in sub. (6) (i).

(d) If the attorney general has reasonable cause to believe that any person is engaged in a pattern or practice of discrimination in violation of sub. (2), (2m) or (2r) or that any person has been denied any of the rights granted under sub. (2), (2m) or (2r), and such denial raises an issue of general public importance, the department of justice may commence a civil action.

(8) Discrimination by licensed or chartered persons.

(a) If the department finds reasonable cause to believe that an act of discrimination has been or is being committed in violation of this section by a person taking an action prohibited under sub. (2), (2m) or (2r) and that the person is

licensed or chartered under state law, the department shall notify the licensing or chartering agency of its findings and may file a complaint with such agency together with a request that the agency initiate proceedings to suspend or revoke the license or charter of such person or take other less restrictive disciplinary action.

(b) Upon filing a complaint under par. (a), the department shall make available to the appropriate licensing or chartering agency all pertinent documents and files in its custody, and shall cooperate fully with such agency in the agency's proceedings.

History: 1971 c. 185 s. 1; 1971 c. 228 s. 42; 1971 c. 230; 1971 c. 307 s. 51; Stats. 1971 s. 101.22; 1975 c. 94, 275, 421, 422; 1977 c. 29; 1977 c. 418 s. 929 (55); 1979 c. 110; 1979 c. 177 s. 85; 1979 c. 188, 221, 355; 1981 c. 112, 180; 1981 c. 391 s. 210; 1983 a. 27, 189; 1985 a. 238, 319; 1987 a. 262; 1989 a. 47 ss. 2 to 5, 8 to 11; 1989 a. 94, 106, 139, 359; 1991 a. 295, 315; 1993 a. 27; 1995 a. 27 s. 3687; Stats. 1995 s. 106.04; 1995 a. 225; 1995 a. 448 ss. 66, 68; 1997 a. 112, 237, 312; 1999 a. 82 ss. 38 to 74; Stats. 1999 s. 106.50; 1999 a. 150 s. 672; 1999 a. 162; 2001 a. 30 s. 108; 2001 a. 109; 2005 a. 25; 2007 a. 11; 2009 a. 95; 2011 a. 32, 258; 2017 a. 317; 2021 a. 196; 2025 a. 129.

Wis. Stat. § 106.52

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Public places of accommodation or amusement (current text, retrieved 2026-10-29)

(1) Definitions. In this section:

(a) "Complainant" means a person who files a complaint alleging a violation of sub. (3).

(b) "Conciliation" has the meaning given in s. 106.50 (1m) (d).

(c) "Disability" has the meaning given in s. 106.50 (1m) (g).

(ce) "Dog handler" means an individual who is trained to work with a search and rescue dog.

(cm) "Fitness center" means an establishment, whether operated for profit or not for profit, that provides as its primary purpose services or facilities that are purported to assist patrons in physical exercise, in weight control, or in figure development. "Fitness center" does not include an organization solely offering training or facilities in an individual sport or a weight reduction center, as defined in s. 100.177 (1) (e).

(d) "Lodging establishment" means any of the following:

1. A bed and breakfast establishment, as defined in s. 97.01 (1g).

2. A hotel, as defined in s. 97.01 (7).

3. A tourist rooming house, as defined in s. 97.01 (15k).

4. A campground.

(e) 1. "Public place of accommodation or amusement" shall be interpreted broadly to include, but not be limited to, places of business or recreation; lodging establishments; restaurants; taverns; barber, cosmetologist, aesthetician, electrologist, or manicuring establishments; nursing homes; clinics; hospitals; cemeteries; and any place where accommodations, amusement, goods, or services are available either free or for a consideration, subject to subd. 2.

2. "Public place of accommodation or amusement" does not include a place where a bona fide private, nonprofit organization or institution provides accommodations, amusement, goods or services during an event in which the organization or institution provides the accommodations, amusement, goods or services to the following individuals only:

a. Members of the organization or institution.

b. Guests named by members of the organization or institution.

c. Guests named by the organization or institution.

(f) "Respondent" means the person accused in a complaint or amended complaint of committing a violation of sub. (3).

(fe) "Search and rescue dog" means a dog that is trained or is being trained by a state or nationally recognized search and rescue agency to locate lost or missing individuals and victims of disasters in search and rescue activities.

(fm) "Service animal" means a guide dog, signal dog, or other animal that is individually trained or is being trained to do work or perform tasks for the benefit of a person with a disability, including the work or task of guiding a person with impaired vision, alerting a person with impaired hearing to intruders or sound, providing minimal protection or rescue work, pulling a wheelchair, or fetching dropped items.

(g) "Sexual orientation" has the meaning given in s. 111.32 (13m).

(2) Department to administer. The department shall administer this section through its division of equal rights. The department may promulgate such rules as are necessary to carry out this section. No rule may prohibit the processing of any class action complaint or the ordering of any class-based remedy, and no rule may provide that complaints may be consolidated for administrative convenience only.

(3) Public place of accommodation or amusement.

(a) No person may do any of the following:

1. Deny to another or charge another a higher price than the regular rate for the full and equal enjoyment of

any public place of accommodation or amusement because of sex, race, color, creed, disability, sexual orientation, national origin or ancestry.

1m. Deny to an adult or charge an adult a higher price than the regular rate for the full and equal enjoyment of a lodging establishment because of age, subject to s. 125.07.

2. Give preferential treatment to some classes of persons in providing services or facilities in any public place of accommodation or amusement because of sex, race, color, creed, sexual orientation, national origin or ancestry.

3. Directly or indirectly publish, circulate, display or mail any written communication which the communicator knows is to the effect that any of the facilities of any public place of accommodation or amusement will be denied to any person by reason of sex, race, color, creed, disability, sexual orientation, national origin or ancestry or that the patronage of a person is unwelcome, objectionable or unacceptable for any of those reasons.

3m. Directly or indirectly publish, circulate, display or mail any written communication which the communicator knows is to the effect that any of the facilities of a lodging establishment will be denied to an adult because of age, subject to s. 125.07.

4. Refuse to furnish or charge another a higher rate for any automobile insurance because of race, color, creed, disability, national origin or ancestry.

5. Refuse to rent, charge a higher price than the regular rate or give preferential treatment, because of sex, race, color, creed, sexual orientation, national origin or ancestry, regarding the use of any private facilities commonly rented to the public.

(am)

1. Subject to subds. 2., 3., and 4., no person may do any of the following:

a. Refuse to permit entrance into, or use of, or otherwise deny the full and equal enjoyment of any public place of accommodation or amusement to a person with a disability or to a service animal trainer because the person with a disability or the trainer is accompanied by a service animal.

b. Charge a person with a disability or a service animal trainer a higher price than the regular rate, including a deposit or surcharge, for the full and equal enjoyment of any public place of accommodation or amusement because the person with a disability or the trainer is accompanied by a service animal.

c. Directly or indirectly publish, circulate, display, or mail any written communication that the communicator knows is to the effect that entrance into, or use of, or the full and equal enjoyment of any of the facilities of the public place of accommodation or amusement will be denied to a person with a disability or a service animal trainer because the person with a disability or the trainer is accompanied by a service animal or that the patronage of a person with a disability or a service animal trainer is unwelcome, objectionable, or unacceptable because the person with a disability or the trainer is accompanied by a service animal.

2. The prohibitions specified in subd. 1. apply to a service animal trainer only if the animal accompanying the service animal trainer is wearing a harness or a leash and special cape. Subdivision 1. does not prohibit a person who is accompanied by an animal from being asked whether the animal is a service animal that is required because of a disability or is an animal that is being trained to be a service animal and does not prohibit a service animal trainer from being required to produce a certification or other credential issued by a school for training service animals that the animal is being trained to be a service animal. Subdivision 1. prohibits a person with a disability from being required to produce documentation of his or her disability or a certification or other credential that the animal is trained as or is being trained to be a service animal.

3. A person may exclude a service animal from a public place of accommodation or amusement if accommodation of the service animal would result in a fundamental alteration in the nature of the accommodations, amusement, goods, or services provided or would jeopardize the safe operation of the public place of accommodation or amusement. If a service animal must be separated from the person whom the service animal is accompanying, it is the responsibility of that person to arrange for the care and supervision of the service animal during the period of separation.

4. A public place of accommodation or amusement shall modify its policies, practices, and procedures to permit the full and equal enjoyment of the public place of accommodation or amusement by a person with a disability or a service animal trainer who is accompanied by a service animal. Those policies, practices, and procedures shall ensure that a person with a disability or a service animal trainer who is accompanied by a service animal is not separated from the service animal, that the service animal is permitted to accompany the person with a disability or the service animal trainer to all areas of the public place of accommodation or amusement that are open to the general public, and that the person with a disability or the service animal trainer is not segregated from other patrons of the public place of accommodation or amusement.

(as)

1. In this paragraph:

a. "Hotel," "inn," and "motel" have the meaning given for "hotel" in s. 97.01 (7).

b. "Tourist rooming house" has the meaning given in s. 97.01 (15k).

2. Subject to subds. 3. to 6., no person may do any of the following:

a. Refuse to allow entrance into, or use of, or otherwise deny the full and equal enjoyment of a hotel, inn, motel, or tourist rooming house to a dog handler because the dog handler is accompanied by a search and rescue dog.

b. Charge an individual a higher price than the regular rate, including a deposit or surcharge, for the full and equal enjoyment of a hotel, inn, motel, or tourist rooming house because the individual is a dog handler and is accompanied by a search and rescue dog.

c. Directly or indirectly publish, circulate, display, or mail any written communication that the communicator knows is to the effect that entrance into, or use of, or the full and equal enjoyment of any of the facilities of the hotel, inn, motel, or tourist rooming house will be denied to an individual because the individual is a dog handler accompanied by a search and rescue dog or that the patronage of such an individual is unwelcome, objectionable, or unacceptable because the individual is accompanied by a search and rescue dog.

3. The prohibitions specified in subd. 2. apply only if the dog accompanying the dog handler is wearing a harness or cape that indicates that the dog is a search and rescue dog and the search and rescue dog is leashed. Subdivision 2. does not prohibit a dog handler who is accompanied by a dog from being asked whether the dog is a search and rescue dog and does not prohibit the dog handler from being required to produce a certification or other credential that verifies that the dog is a search and rescue dog.

4. A person may exclude a search and rescue dog from a hotel, inn, motel, or tourist rooming house if accommodation of the search and rescue dog would result in a fundamental alteration in the nature of the accommodations provided or would jeopardize the safe operation of the hotel, inn, motel, or tourist rooming house. If a search and rescue dog must be separated from the dog handler accompanying the search and rescue dog, it is the responsibility of that dog handler to arrange for the care and supervision of the search and rescue dog during the period of separation.

5. A dog handler who is accompanied by a search and rescue dog in a hotel, inn, motel, or tourist rooming house is liable for sanitation with respect to the search and rescue dog and damage to the establishment caused by the search and rescue dog.

6. A hotel, inn, motel, or tourist rooming house shall modify its policies, practices, and procedures to permit the full and equal enjoyment of the hotel, inn, motel, or tourist rooming house by a dog handler who is accompanied by a search and rescue dog. Those policies, practices, and procedures shall ensure that a dog handler who is accompanied by a search and rescue dog is not separated from the search and rescue dog, that the search and rescue dog is allowed to accompany the dog handler to all areas of the hotel, inn, motel, or tourist rooming house that are open to the general public, and that the dog handler is not segregated from other patrons of the hotel, inn, motel, or tourist rooming house.

7. A dog handler who is accompanied by a search and rescue dog in a hotel, inn, motel, or tourist rooming house may be asked by the owner or operator of the establishment to present documentation from the law enforcement agency, fire department, or emergency management service the dog handler is working with that the search and rescue dog is a legitimate search and rescue dog that meets the definition under sub. (1) (fe).

(b) Nothing in this subsection prohibits separate dormitories at higher educational institutions or separate public toilets, showers, saunas and dressing rooms for persons of different sexes.

(c) Nothing in this subsection prohibits separate treatment of persons based on sex with regard to public toilets, showers, saunas and dressing rooms for persons of different sexes.

(d) Nothing in this subsection prohibits a domestic abuse services organization, as defined in s. 995.67 (1) (b), from providing separate shelter facilities, private home shelter care, advocacy, counseling or other care, treatment or services for persons of different sexes or from providing for separate treatment of persons based on sex with regard to the provision of shelter facilities, private home shelter care, advocacy, counseling or other care, treatment or services for persons of different sexes.

(e) Nothing in this section prohibits a fitness center whose services or facilities are intended for the exclusive use of persons of the same sex from providing the use of those services or facilities exclusively to persons of that sex, from denying the use of those services or facilities to persons of the opposite sex, or from directly or indirectly publishing, circulating, displaying, or mailing any written communication to the effect that the use of those services or facilities will be provided exclusively to persons of the same sex and will be denied to persons of the opposite sex.

(4) Investigation and review of claims, public places.

(a) Claims filed with department.

1. The department may receive and investigate a complaint charging a violation of sub. (3) if the complaint is filed with the department no more than 300 days after the alleged act prohibited under sub. (3) occurred. A complaint shall be a written statement of the essential facts constituting the act prohibited under sub. (3) charged, and shall be verified.

2. In carrying out this subsection, the department and its duly authorized agents may hold hearings, subpoena

witnesses, take testimony and make investigations as provided in this chapter. The department, upon its own motion, may test and investigate for the purpose of establishing violations of sub. (3), and may make, sign and file complaints alleging violations of sub. (3), and initiate investigations and studies to carry out the purposes of this subsection and sub. (3).

3. The department shall employ such examiners as are necessary to hear and decide complaints of acts prohibited under sub. (3) and to assist in the effective administration of this subsection. The examiners may make findings and orders under this subsection.

4. If the department finds probable cause to believe that any act prohibited under sub. (3) has been or is being committed, the department may endeavor to eliminate the act by conference, conciliation and persuasion. If the department determines that such conference, conciliation and persuasion has not eliminated the alleged act prohibited under sub. (3), the department shall issue and serve a written notice of hearing, specifying the nature and acts prohibited under sub. (3) which appear to have been committed, and requiring the person named, in this subsection called the "respondent", to answer the complaint at a hearing before an examiner. The notice shall specify a time of hearing, not less than 10 days after service of the complaint, and a place of hearing within the county in which the violation of sub. (3) is alleged to have occurred. The attorney of record for any party may issue a subpoena to compel the attendance of a witness or the production of evidence. A subpoena issued by an attorney must be in substantially the same form as provided in s. 805.07 (4) and must be served in the manner provided in s. 805.07 (5). The attorney shall, at the time of issuance, send a copy of the subpoena to the appeal tribunal or other representative of the department responsible for conducting the proceeding. The testimony at the hearing shall be recorded by the department. In all hearings before an examiner, except those for determining probable cause, the burden of proof is on the party alleging an act prohibited under sub. (3). If, after the hearing, the examiner finds by a fair preponderance of the evidence that the respondent has violated sub. (3), the examiner shall make written findings and order such action by the respondent as will effectuate the purpose of this subsection and sub. (3). The department shall serve a certified copy of the examiner's findings and order on the respondent and complainant. The order shall have the same force as other orders of the department and shall be enforced as provided in this subsection, except that the enforcement of the order is automatically stayed upon the filing of a petition for review with the commission. If the examiner finds that the respondent has not engaged in an act prohibited under sub. (3) as alleged in the complaint, the department shall serve a certified copy of the examiner's findings on the complainant and the respondent together with an order dismissing the complaint. If the complaint is dismissed, costs in an amount not to exceed $100 plus actual disbursements for the attendance of witnesses may be assessed against the department in the discretion of the department.

5. At any time after a complaint is filed, the department may file a petition in the circuit court for the county in which the act prohibited under sub. (3) allegedly occurred, or for the county in which a respondent resides or transacts business, seeking appropriate temporary relief against the respondent, pending final determination of proceedings under this subsection, including an order or decree restraining the respondent from performing an act tending to render ineffectual an order the department may enter with respect to the complaint. The court may grant such temporary relief or restraining order as the court deems just and proper.

(b) Petition for review.

1. A respondent or complainant who is dissatisfied with the findings and order of the examiner under par. (a) may file a written petition with the department for review by the commission of the findings and order.

2. The commission shall either reverse, modify, set aside or affirm the findings and order in whole or in part, or direct the taking of additional evidence. Such action shall be based on a review of the evidence submitted. If the commission is satisfied that a respondent or complainant has been prejudiced because of exceptional delay in the receipt of a copy of any findings and order it may extend the time another 21 days for filing the petition with the department.

3. On motion, the commission may set aside, modify or change any decision made by the commission, at any time within 28 days from the date thereof if it discovers any mistake therein, or upon the grounds of newly discovered evidence. The commission may on its own motion, for reasons it deems sufficient, set aside any final decision of the commission within one year from the date thereof upon grounds of mistake or newly discovered evidence, and remand the case to the department for further proceedings.

4. If no petition is filed within 21 days from the date that a copy of the findings and order of the examiner are mailed to the last-known address of the respondent and complainant, the findings and order shall be considered final.

(c) Judicial review. Within 30 days after service upon all parties of an order of the commission under par. (b), the respondent or complainant may appeal the order to the circuit court for the county in which the alleged act prohibited under sub. (3) took place by the filing of a petition for review. The respondent or complainant shall receive a new trial on all issues relating to any alleged act prohibited under sub. (3) and a further right to a trial by jury, if so

desired. The department of justice shall represent the commission. In any such trial the burden shall be to prove an act prohibited under sub. (3) by a fair preponderance of the evidence. Costs in an amount not to exceed $100 plus actual disbursements for the attendance of witnesses may be taxed to the prevailing party on the appeal.

(d) Penalty.

1. A person who willfully violates sub. (3) or any lawful order issued under this subsection shall, for the first violation, forfeit not less than $100 nor more than $1,000.

2. A person adjudged to have violated sub. (3) within 5 years after having been adjudged to have violated sub. (3), for every violation committed within the 5 years, shall forfeit not less than $1,000 nor more than $10,000.

3. Payment of a forfeiture under this paragraph shall be stayed during the period in which an appeal may be taken and during the pendency of an appeal under par. (c).

(e) Civil actions.

1. A person, including the state, alleging a violation of sub. (3) may bring a civil action for appropriate injunctive relief, for damages including punitive damages and, in the case of a prevailing plaintiff, for court costs and reasonable attorney fees. The attorney general shall represent the department in an action to which the department is a party.

2. An action commenced under this paragraph may be brought in the circuit court for the county where the alleged violation occurred, or for the county where the person against whom the civil complaint is filed resides or has a principal place of business, and shall be commenced within one year after the alleged violation occurred.

3. The remedies provided for in this paragraph shall be in addition to any other remedies contained in this subsection.

History: 1971 c. 185 s. 1; 1971 c. 228 s. 42; 1971 c. 230; 1971 c. 307 s. 51; Stats. 1971 s. 101.22; 1975 c. 94, 275, 421, 422; 1977 c. 29; 1977 c. 418 s. 929 (55); 1979 c. 110; 1979 c. 177 s. 85; 1979 c. 188, 221, 355; 1981 c. 112, 180; 1981 c. 391 s. 210; 1983 a. 27, 189; 1985 a. 238, 319; 1987 a. 262; 1989 a. 47 ss. 2 to 5, 8 to 11; 1989 a. 94, 106, 139, 359; 1991 a. 295, 315; 1993 a. 27; 1995 a. 27 s. 3687; Stats. 1995 s. 106.04; 1995 a. 225; 1995 a. 448 ss. 66, 68; 1997 a. 112, 237, 312; 1999 a. 82 ss. 75 to 92, 102 to 105; Stats. 1999 s. 106.52; 1999 a. 186; 2003 a. 23; 2005 a. 155; 2005 a. 354 ss. 1 to 4, 6; 2007 a. 97; 2011 a. 190; 2015 a. 55; 2025 a. 151.

Wis. Stat. § 118.60

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Parental choice program for eligible school districts and other school districts (current text, retrieved 2026-10-29)

(1) In this section:

(ab) "Accrediting entity" means Cognia, Inc., Wisconsin Religious and Independent Schools Accreditation, Independent Schools Association of the Central States, Wisconsin Evangelical Lutheran Synod School Accreditation, National Lutheran School Accreditation, Wisconsin Association of Christian Schools, Christian Schools International, Association of Christian Schools International, the diocese or archdiocese within which a private school is located, and any other organization recognized by the National Council for Private School Accreditation.

(ad) "Administrator" means the superintendent, supervising principal, executive director, or other person who acts as the administrative head of a private school participating in the program under this section.

(af) "Disqualified organization" means an accrediting organization that is not an accrediting entity or a member of or otherwise sanctioned by an accrediting entity.

(ag) "Disqualified person" means a person who, when a private school was barred or terminated from participation in the program under this section by an order issued under sub. (10), satisfied at least one of the following:

1. Had a controlling ownership interest in, or was the administrator or an officer, director, or trustee of, the private school.

2. Was a person designated by the administrator of the private school to assist in processing pupil applications.

3. Was responsible for an action or circumstance that led to the private school being barred or terminated from participation in the program under this section.

(am) "Eligible school district" means the school district that was identified as an eligible school district under 2011 Wisconsin Act 32, section 9137 (3u).

(bn)

1. Except as provided in subd. 2., "new private school" means a school that qualifies as a private school under s. 115.001 (3r) and that satisfies either of the following:

a. The school has been in continuous operation in this state for less than 12 consecutive months.

b. The school provides education to fewer than 40 pupils divided into 2 or fewer grades.

2. "New private school" does not include a private school the governing body of which operates or manages a private school that is participating in the program under this section or under s. 119.23 if all of the following apply:

a. No payment has been withheld from any private school operated or managed by the governing body under sub. (10) (d) or s. 119.23 (10) (d) in the 3 immediately preceding school years.

b. No order barring any private school operated or managed by the governing body from participating in the program under this section or s. 119.23 has been issued under sub. (10) (a), (am), (ar), or (b) or under s. 119.23 (10) (a), (am), (ar), or (b) in the 3 immediately preceding school years.

(c) "Preaccreditation" means the review and approval of an educational plan. Review of an education plan includes consideration of whether the school submitting the plan meets the requirements under s. 118.165 (1). The fact that a private school has obtained preaccreditation does not require an accrediting entity to accredit the private school.

(cm) "Preaccrediting entity" means the Institute for the Transformation of Learning at Marquette University, Wisconsin North Central Association, Wisconsin Religious and Independent Schools Accreditation, Independent Schools Association of the Central States, Wisconsin Evangelical Lutheran Synod School Accreditation, National Lutheran School Accreditation, Wisconsin Association of Christian Schools, Christian Schools International, Association of Christian Schools International, and the diocese or archdiocese within which a private school is located.

(d) "Progress records" has the meaning given in s. 118.125 (1) (c).

(g) "Teacher" means a person who has primary responsibility for the academic instruction of pupils.

(2) (a) Subject to pars. (ag) and (ar), any pupil in grades kindergarten to 12 who resides within an eligible school district may attend any private school under this section and, subject to pars. (ag), (ar), (be), (bm), and (bs), any pupil in grades kindergarten to 12 who resides in a school district, other than an eligible school district or a 1st class city school district, may attend any private school under this section if all of the following apply:

1. a. Except as provided in par. (bm), the pupil is a member of a family that has a total family income that does not exceed an amount equal to 3.0 times the poverty level determined in accordance with criteria established by the director of the federal office of management and budget. In this subdivision and sub. (3m), family income includes income of the pupil's parents or legal guardians. Except as provided in subd. 1. c. and d., the family income of the pupil shall be verified as provided in subd. 1. b. A pupil attending a private school under this section whose family income increases may continue to attend a private school under this section.

b. The private school or the pupil's parent or guardian submits to the department of public instruction the names, addresses, social security numbers, and other state and federal tax identification numbers, if any, of the pupil's parents or legal guardians that reside in the same household as the pupil, whether and to whom the parents or legal guardians are married, the names of all of the other members of the pupil's family residing in the same household as the pupil, and the school year for which family income is being verified under this subd. 1. b. The department of revenue shall review the information submitted under this subd. 1. b. and shall verify the eligibility or ineligibility of the pupil to participate in the program under this section on the basis of family income. In this subdivision, "family income" means federal adjusted gross income of the parents or legal guardians residing in the same household as the pupil for the tax year preceding the school year for which family income is being verified under this subd. 1. b. or, if not available, for the tax year preceding the tax year preceding the school year for which family income is being verified under this subd. 1. b. Family income for a family in which the pupil's parents are married or in which the pupil's legal guardians are married shall be reduced by $7,000 before the verification is made under this subd. 1. b. The department of revenue may take no other action on the basis of the information submitted under this subd. 1. b. If the department of revenue is unable to verify family income or to verify whether the pupil is eligible or ineligible to participate in the program under this section on the basis of family income, the department of revenue shall notify the department of public instruction, the private school, and the pupil's parent or guardian of this fact and the department of public instruction shall utilize an alternative process, to be established by the department of public instruction, to determine whether the pupil is eligible to participate in the program under this section on the basis of family income. The department of public instruction may not request any additional verification of income from the family of a pupil once the department of revenue has verified that the pupil is eligible to participate in the program under this section on the basis of family income. The department of public instruction shall establish a procedure for determining family income eligibility for those pupils for whom no social security number or state or federal tax identification number has been provided.

c. The family income of a pupil does not need to be verified under subd. 1. b. for a pupil who attended a participating private school under this section or s. 119.23 in a school year and applies to attend a participating private school under this section in the following school year.

d. The family income of a pupil does not need to be verified under subd. 1. b. for a pupil who resided in a 1st class city school district in a school year, attended a participating private school in a 1st class city school district under the program under s. 119.23 in that school year, and applies to attend a participating private school in an eligible school district in the school year immediately following that school year.

2. Except as provided in par. (d), the pupil satisfies one or more of the following:

a. The pupil was enrolled in a public school in the previous school year.

b. The pupil was not enrolled in school in the previous school year.

c. The pupil attended a private school under this section or s. 119.23 in the previous school year.

d. The pupil is applying to attend kindergarten, first grade, or 9th grade in a private school participating in the program under this section.

e. The pupil attended a school in another state in the previous school year.

f. The pupil was on a waiting list to attend a private school under this section or s. 119.23 during the previous school year.

g. If the pupil resides in a school district, other than an eligible school district or a 1st class city school district, the pupil was on a waiting list under sub. (3) (ar) 4. in any previous school year.

3. a. Except as provided in subd. 3. b. and c. and par. (ag) 1., the private school notified the state superintendent of its intent to participate in the program under this section or in the program under s. 119.23, and paid the nonrefundable fee, set by the department as required under s. 119.23 (2) (a) 3., by January 10 of the previous school year. The notice shall specify the number of pupils participating in the program under this section and in the program under s. 119.23 for which the school has space.

b. For a private school that intends to participate in the program under this section in an eligible school district identified under 2011 Wisconsin Act 32, section 9137 (3u), the private school notified the state superintendent of its intent to participate, and paid the nonrefundable fee set by the department under subd. 3. a. by August 1, 2011. The notice shall specify the number of pupils participating in the program under this section for which the school has space.

c. For a private school that intends to participate in the program under this section and to accept pupils who reside in a school district, other than an eligible school district or a 1st class city school district, in the 2013-14 school year, the private school notified the state superintendent of its intent to participate and paid the nonrefundable fee set by the department as required under s. 119.23 (2) (a) 3. by July 26, 2013. The private school shall include an electronic mail address on the notice of intent to participate and shall specify the number of pupils who reside in a school district, other than an eligible school district or a 1st class city school district, for which the school has space. The department shall notify the private school that it has received the notice of intent to participate in writing and by electronic mail by July 31, 2013.

4. The private school complies with 42 USC 2000d.

5. The private school meets all health and safety laws or codes that apply to public schools.

6. a. Except as provided in subd. 6. c. and d., all of the private school's teachers have a teaching license issued by the department or a bachelor's degree or a degree or educational credential higher than a bachelor's degree, including a masters or doctorate, from a nationally or regionally accredited institution of higher education.

b. All of the private school's administrators have at least a bachelor's degree from a nationally or regionally accredited institution of higher education or a teaching license or administrator's license issued by the department.

c. Any teacher employed by the private school on July 1 of the first school year that begins after a school district is identified as an eligible school district, who has been teaching for at least the 5 consecutive years immediately preceding that July 1, and who does not satisfy the requirements under subd. 6. a. on that July 1, applies to the department on a form prepared by the department for a temporary, nonrenewable waiver from the requirements under subd. 6. a. The department shall promulgate rules to implement this subd. 6. c., including the form of the application and the process by which the waiver application will be reviewed. The application form shall require the applicant to submit a plan for satisfying the requirements under subd. 6. a., including the name of the accredited institution of higher education at which the teacher is pursuing or will pursue the bachelor's degree and the anticipated date on which the teacher expects to complete the bachelor's degree. No waiver granted under this subd. 6. c. is valid after July 31 of the 5th school year that begins after a school district was identified as an eligible school district.

d. Any teacher employed on July 1, 2013, by a private school that accepts pupils under the program who reside in a school district, other than an eligible school district or a 1st class city school district, who has been teaching for at least the 5 consecutive years immediately preceding that July 1, and who does not satisfy the requirements under subd. 6. a. on that July 1, applies to the department on a form prepared by the department for a temporary, nonrenewable waiver from the requirements under subd. 6. a. The department shall promulgate rules to implement this subd. 6. d., including the form of the application and the process by which the waiver application will be reviewed. The application form shall require the applicant to submit a plan for satisfying the requirements under subd. 6. a., including the name of the accredited institution of higher education at which the teacher is pursuing or will pursue the bachelor's degree and the anticipated date on which the teacher expects to complete the bachelor's degree. No waiver granted under this subd. 6. d. is valid after July 31 of the 5th school year that begins after July 1, 2013.

7. a. For a private school that was a first-time participant in the program under this section before April 10, 2014, and that is not accredited by an accrediting entity, the private school obtains accreditation from an accrediting

entity by December 31 of the 3rd school year following the first school year in which the private school began participating in the program under this section. If the private school is accredited under this subd. 7. a., the private school is not required to obtain preaccreditation under subd. 7. b. as a prerequisite to providing instruction under this section in additional grades or in an additional or new school.

b. Each private school that begins participation in the program under this section on or after April 10, 2014, and that is not accredited by an accrediting entity, shall obtain preaccreditation by a preaccrediting entity by August 1 before the first school term in which the private school begins participation in the program under this section, or by May 1 if the private school begins participating in the program during summer school. In any school year, a private school to which this subd. 7. b. applies may apply for and seek to obtain preaccreditation from only one preaccrediting entity. A private school to which this subd. 7. b. applies that fails to obtain preaccreditation as required under this subd. 7. b. may not participate in the program under this section or under s. 119.23 until preaccreditation has been obtained, but the private school may apply for and seek to obtain preaccreditation from a preaccrediting entity for the following school year.

c. A private school to which subd. 7. b. applies shall apply for accreditation by an accrediting entity by December 31 of the first school year that begins after April 10, 2014, in which the private school begins participation in the program under this section, and shall achieve accreditation by an accrediting entity by December 31 of the 3rd school year following the first school year in which the private school begins participation in the program under this section. If the private school is accredited under this subd. 7. c., the private school is not required to obtain preaccreditation under subd. 7. b. as a prerequisite to providing instruction under this section in additional grades or in an additional or new school.

8. Notwithstanding s. 118.165 (1) (c), the private school annually provides at least 1,050 hours of direct pupil instruction in grades 1 to 6 and at least 1,137 hours of direct pupil instruction in grades 7 to 12. Hours provided under this subdivision include recess and time for pupils to transfer between classes but do not include the lunch periods. Annually, no more than 140 hours of work under s. 118.56 may be counted as hours of direct pupil instruction.

9. If the private school operates any grade from 5 to 12, the private school includes in its curriculum the instruction required under s. 121.02 (1) (L) 8., so far as applicable.

(ag) The governing body of a new private school shall comply with all of the following before the new private school may participate in the program under this section:

1. By August 1 of the school year immediately preceding the school year in which the new private school intends to participate in the program under this section, complete and submit to the department the following on forms provided by the department:

a. A notice of intent to participate and agreement to comply with procedural requirements.

b. A complete anticipated budget for the first fiscal period of participation in the program under this section showing that the private school will have a positive cash flow in each month of the fiscal period and no operating deficit. The governing body shall include on the completed form anticipated enrollments for all pupils enrolled in the new private school and for pupils enrolled in the new private school under this section; estimated revenues and costs; a schedule of anticipated beginning and ending net choice program assets; and a schedule of monthly cash flow requirements. The governing body shall include in the budget contingent funding sources the new private school will use in the event that actual enrollments are less than expected.

c. The nonrefundable fee established by the department, as required under s. 119.23 (2) (a) 3., for the school year in which the fee is paid by the new private school. If the amount of the fee paid by the new private school under this subd. 1. c. increases for the school year in which the new private school will first participate in the program under this section, the new private school shall pay the difference between the fee paid and the fee due to the department. If the amount of the fee paid by the new private school under this subd. 1. c. decreases for the school year in which the new private school will first participate in the program under this section, the department shall refund the new private school the difference between the fee paid and the fee due to the department.

2. a. By August 1 of the school year immediately preceding the school year in which the new private school intends to participate in the program under this section, submit to the department the information under sub. (6p) (a) and (b).

b. If, at the time the new private school submits the information required under subd. 2. a., the new private school does not have a physical property within which the private school intends to operate, submit a mailing address of an administrator of the private school.

4. Notwithstanding the deadline to obtain preaccreditation under par. (a) 7. b., by December 15 of the school year immediately preceding the school year in which the new private school intends to participate in the program under this section, obtain preaccreditation from a preaccrediting entity.

5. By August 1 of the first school year in which the new private school intends to participate in the program under this section, demonstrate to the satisfaction of the department that the new private school has contracted with a 3rd-party payroll service that will remit federal and state payroll taxes for each employee of the new private school for the duration of the school year.

(ar) By December 31 of the school year immediately preceding the school year in which a new private school intends to participate in the program under this section, the department shall notify the new private school in writing whether it has satisfied those requirements under par. (ag) that must be satisfied before December 31. If the department determines that the new private school has not satisfied those requirements, the new private school may not participate in the program under this section in the following school year, but may reinitiate the process under par. (ag) for the next following school year.

(be)

1. In this paragraph:

a. "Applicable percentage" means, for the 2015-16 and 2016-17 school years, 1 percent, and for each school year beginning with the 2017-18 school year and ending with the 2025-26 school year, the applicable percentage for the previous school year plus one percentage point.

b. "Membership" has the meaning given in s. 121.004 (5).

c. "Pupil participation limit" means a school district's membership in the previous school year multiplied by the applicable percentage for the current school year.

2. Except as provided in subd. 2m., beginning with the 2015-16 school year and ending with the 2025-26 school year, the total number of pupils residing in a school district, other than an eligible school district or a 1st class city school district, who may attend a private school under this section during a school year may not exceed the school district's pupil participation limit for that school year.

2m. A pupil who resides in a school district, other than an eligible school district or a 1st class city school district, may attend a private school under this section if all of the following apply:

a. The pupil attended a private school under par. (bm) in the previous school year.

b. The department determines that the total number of applications from pupils residing in the pupil's resident school district exceeded the pupil's resident school district's pupil participation limit.

c. The pupil's application to attend a private school under this section was not accepted under the random process utilized by the department.

d. The private school to which the pupil applied to attend under this section has not exceeded its maximum general capacity or seating capacity.

3. Beginning with the 2026-27 school year, there is no limit on the number of pupils who may attend private schools under this section.

(bm) No pupil who resides in a school district, other than an eligible school district or a 1st class city school district, may attend a participating private school under this section unless the pupil is a member of a family that has a total family income that does not exceed an amount equal to 2.2 times the poverty level, determined in accordance with criteria established by the director of the federal office of management and budget. In this paragraph and sub. (3m), family income includes income of the pupil's parents or legal guardians. Except as provided in par. (a) 1. c., the family income of the pupil shall be verified as provided in par. (a) 1. b. A pupil attending a private school under this section whose family income increases may continue to attend a private school under this section.

(bs) In the 2015-16 and 2016-17 school years, a private school may accept pupils who reside in a school district, other than an eligible school district or a 1st class city school district, under this section only if the private school has been continually operating as a private school since May 1, 2013.

(c) 1. Notwithstanding par. (a) 6., a teacher employed by a private school participating in the program under this section who teaches only courses in rabbinical studies is not required to have a bachelor's degree.

2. Notwithstanding par. (a) 6., an administrator of a private school participating in the program under this section that prepares and trains pupils attending the school in rabbinical studies is not required to have a bachelor's degree.

(d) 1. In this paragraph:

a. "Agreement year" means the first school year during which a combined private school and a private school participating in the program under this section are governed by the same governing body under a governing body agreement.

b. "Combined private school" means a private school that enters into a governing body agreement and did not participate in the program under this section in the school year preceding the agreement year.

c. "Governing body agreement" means an agreement to be governed by the same governing body that is entered into by a private school participating in the program under this section and a private school that is not participating in the program under this section.

2. If a combined private school participates in the program under this section during the agreement year or the

school year following the agreement year, the requirements under par. (a) 2. do not apply to a pupil who applies to attend the combined private school under this section during the agreement year or the school year following the agreement year.

(3) (a) The pupil or the pupil's parent or guardian shall submit an application, on a form provided by the state superintendent, to the participating private school that the pupil wishes to attend. If more than one pupil from the same family applies to attend the same private school, the pupils may use a single application. No later than 60 days after the end of the application period during which an application is received and subject to par. (ar), the private school shall notify each applicant, in writing, whether his or her application has been accepted. If the private school rejects an application, the notice shall include the reason. Subject to par. (ar), a private school may reject an applicant only if it has reached its maximum general capacity or seating capacity. Except as provided in par. (ar), the state superintendent shall ensure that the private school determines which pupils to accept on a random basis, except that the private school may give preference to the following in accepting applications, in the order of preference listed:

1m. Pupils who attended the private school under this section or s. 119.23 during the previous school year.

2m. Siblings of pupils described in subd. 1m.

3. Pupils who attended a different private school under this section or s. 119.23 during the previous school year.

4. Siblings of pupils described under subd. 3.

5. Siblings of those pupils who have been randomly accepted to attend the private school under this section and who did not attend a private school under this section or s. 119.23 during the previous school year.

(ar) All of the following apply to applications to attend a private school under this section only if the limitation under sub. (2) (be) applies to the school year for which the application is made:

1. A private school that has submitted a notice of intent to participate under sub. (2) (a) 3. a. may accept applications for the following school year between the first weekday in February and the 3rd Thursday in April from pupils who reside in a school district, other than an eligible school district or a 1st class city school district.

2. By the first weekday in May immediately following the application period under subd. 1., each private school that received applications under subd. 1. shall report to the department the number of pupils who have applied under subd. 1. to attend the private school under this section and the names of those applicants who have siblings who have also applied under subd. 1. to attend the private school under this section.

3. Annually, upon receipt of the information under subd. 2., the department shall, for each school district, determine the sum of all applicants for pupils residing in that school district under this paragraph. In determining the sum, the department shall count a pupil who has applied to attend more than one private school under the program only once. After determining the sum of all applicants for pupils residing in a school district, the department shall determine which applications to accept on a random basis, except that the department shall give preference to the applications of pupils described in par. (a) 1m. to 5., in the order of preference listed in that paragraph.

4. For each school district in which private schools received applications under subd. 1. that exceeded the school district's pupil participation limit under sub. (2) (be), the department shall establish a waiting list in accordance with the preferences required under subd. 3.

5. A private school that has accepted a pupil who resides in a school district, other than an eligible school district or a 1st class city school district, under this paragraph shall notify the department whenever the private school determines that a pupil will not attend the private school under this paragraph. If, upon receiving notice under this subdivision, the department determines that the number of pupils attending private schools under this section falls below a school district's pupil participation limit under sub. (2) (be), the department shall fill any available slot in that school district with a pupil selected from the school district's waiting list established under subd. 4., if such a waiting list exists.

6. In the 2017-18 school year and any school year thereafter, between the first weekday in August and the 3rd Friday in August, the department may transfer a pupil's application to attend a private school under this section in the current school year to a private school that accepted applications from pupils under subd. 1. for the current school year, if all of the following apply:

a. A participating private school accepted an application from the pupil for the current school year under subd. 1. and verified that the pupil is eligible to attend a private school under this section.

b. The pupil's residence changed after the end of the application period under subd. 1. and on or before the 3rd Friday in August and the pupil continues to reside in a school district other than an eligible school district or a 1st class city school district.

c. The participating private school to which the pupil's application is transferred under this subdivision has space available in the pupil's grade.

d. The total number of pupils residing in the pupil's resident school district attending a private school under this section during the current school year does not exceed the school district's pupil participation limit under sub. (2) (be).

(b) If a participating private school rejects an applicant who resides within an eligible school district because the private school has too few available spaces, the applicant may transfer his or her application to a participating private school that has space available. An applicant rejected under this paragraph may be admitted to a private school participating in the program under this section for the following school year, provided that the applicant continues to reside within an eligible school district. The department may not require, in that following school year, the private school to submit financial information regarding the applicant or to verify the eligibility of the applicant to participate in the program under this section on the basis of family income.

(c) If a participating private school rejects an applicant who resides in a school district, other than an eligible school district or a 1st class city school district, because the private school has too few available spaces, the applicant may transfer his or her application to a participating private school that has space available. An applicant who is rejected under this paragraph or an applicant who is on the waiting list under par. (ar) 4. may, subject to sub. (2) (be), be admitted to a private school participating in the program under this section for the following school year, provided that the applicant continues to reside in a school district other than an eligible school district or a 1st class city school district. The department may not require, in that following school year, the private school to submit financial information regarding the applicant or to verify the eligibility of the applicant to participate in the program under this section on the basis of family income.

(d) By the 3rd Friday in September, a pupil or a pupil's parent or guardian shall notify, using a form provided by the department, the department that the pupil is currently participating in the program under this section. The form provided by the department under this paragraph shall require a pupil or a pupil's parent or guardian to indicate the school year during which the pupil first began participating in the program under this section.

(3m) (a) A private school participating in the program under this section may not charge or receive any additional tuition payment for a pupil participating in the program under this section other than the payment the school receives under sub. (4) and, if applicable, sub. (4m), if either of the following applies:

1. The pupil is enrolled in a grade from kindergarten to 8.

2. The pupil is enrolled in a grade from 9 to 12 and the family income of the pupil, as determined under sub. (2) (a) 1., does not exceed an amount equal to 2.2 times the poverty level determined in accordance with criteria established by the director of the federal office of management and budget.

(am)

1. Beginning in the 2011-12 school year, a private school participating in the program under this section may recover the cost of providing the following to a pupil participating in the program under this section through reasonable fees in an amount determined by the private school and charged to the pupil, except that no participating private school may retroactively recover any uncollected costs incurred prior to November 19, 2011:

a. Personal use items, such as uniforms, gym clothes, and towels.

b. Social and extracurricular activities if not necessary to the private school's curriculum.

c. Musical instruments.

d. Meals consumed by pupils of the private school.

e. High school classes that are not required for graduation and for which no credits toward graduation are given.

f. Transportation.

g. Before-school and after-school child care.

h. Room and board at the private school.

2. A private school may not prohibit an eligible pupil from attending the private school, expel or otherwise discipline the pupil, or withhold or reduce the pupil's grades because the pupil or the pupil's parent or guardian cannot pay or has not paid fees charged under subd. 1.

(b) Beginning in the 2011-12 school year, a private school participating in the program under this section may, in addition to the payment it receives for a pupil under sub. (4) and, if applicable, sub. (4m), charge the pupil tuition in an amount determined by the school if both of the following apply:

1. The pupil is enrolled in a grade from 9 to 12.

2. The family income of the pupil, as determined under sub. (2) (a) 1., exceeds an amount equal to 2.2 times the poverty level determined in accordance with criteria established by the director of the federal office of management and budget.

(c) A private school participating in the program under this section shall determine whether the private school may charge additional tuition to a pupil on the basis of the pupil's family income as permitted under par. (b). The private school shall establish a process for accepting an appeal to the governing body of the private school of the determination made under this paragraph.

(4) (a) Annually, on or before September 15, a private school participating in the program under this section shall file with the department a report stating its summer daily attendance for each day of summer school for the purpose of sub. (4m).

(bg)

1. In the 2013-14 school year, upon receipt from the pupil's parent or guardian of proof of the pupil's enrollment in the private school during a school term, the state superintendent shall pay to the private school in which the pupil is enrolled on behalf of the pupil's parent or guardian, from the appropriation under s. 20.255 (2) (fr), an amount equal to the private school's operating and debt service cost per pupil that is related to educational programming, as determined by the department, or $6,442, whichever is less.

2. Except as provided in subd. 4., in the 2014-15 school year, upon receipt from the pupil's parent or guardian of proof of the pupil's enrollment in the private school during a school term, the state superintendent shall pay to the private school in which the pupil is enrolled on behalf of the pupil's parent or guardian, from the appropriation under s. 20.255 (2) (fr), the lesser of an amount equal to the private school's operating and debt service cost per pupil that is related to educational programming, as determined by the department, or an amount either of $7,210, if the pupil is enrolled in a grade from kindergarten to 8, or of $7,856, if the pupil is enrolled in a grade from 9 to 12.

3. In the 2015-16 school year and in each school year thereafter, upon receipt from the pupil's parent or guardian of proof of the pupil's enrollment in the private school during a school term, except as provided in subd. 5., the state superintendent shall pay to the private school in which the pupil is enrolled on behalf of the pupil's parent or guardian, from the appropriation under s. 20.255 (2) (fr), an amount equal to the sum of the maximum amount per pupil the state superintendent paid a private school under this section in the previous school year for the grade in which the pupil is enrolled; in the 2023-24 school year, if the pupil is enrolled in a grade from kindergarten to 8, 10 percent of the revenue ceiling, as defined in s. 121.905 (1), for that school year; the amount of the per pupil revenue adjustment under s. 121.91 (2m) for the current school year, if positive; 90 percent of the change in the revenue ceiling, as defined in s. 121.905 (1), between the previous school year and current school year, if positive, if the pupil is enrolled in a grade from kindergarten to 8, or if the pupil is enrolled in a grade from 9 to 12, the change in the revenue ceiling, as defined in s. 121.905 (1), between the previous school year and current school year, if positive; the change in the amount of statewide categorical aid per pupil between the previous school year and the current school year, as determined under s. 118.40 (2r) (e) 2p., if positive; and in the 2023-24 school year, if the pupil is enrolled in a grade from 9 to 12, 26.8 percent of the revenue ceiling, as defined in s. 121.905 (1), for that school year.

4. If the pupil described in subd. 2. is enrolled in a private school that enrolls pupils under the program in any grade between kindergarten to 8 and also in any grade between 9 to 12, the state superintendent shall pay to the private school in which the pupil is enrolled on behalf of the pupil's parent or guardian, from the appropriation under s. 20.255 (2) (fr), the lesser of an amount equal to the private school's operating and debt service cost per pupil that is related to educational programming, as determined by the department, or an amount determined as follows:

a. Multiply the number of pupils participating in the program under this section who are enrolled in the private school in any grade between kindergarten to 8 by $7,210.

b. Multiply the number of pupils participating in the program under this section who are enrolled in the private school in any grade between 9 to 12 by $7,856.

c. Add the amounts determined under subd. 4. a. and b.

d. Divide the amount determined under subd. 4. c. by the total number of pupils participating in the program under this section who are enrolled at the private school.

5. If the pupil described in subd. 3. is enrolled in a private school that enrolls pupils under the program in any grade between kindergarten to 8 and also in any grade between 9 to 12, the state superintendent shall substitute for the amount described in subd. 3. the amount determined under subd. 4. a. to d., with the following modifications:

a. Multiply the number of pupils participating in the program who are enrolled in the private school in any grade between kindergarten to 8 by the sum of the maximum amount per pupil the state superintendent paid a private school under this section in the previous school year for the grade in which the pupil is enrolled; the amount of the per pupil revenue adjustment under s. 121.91 (2m) for the current school year, if positive; 90 percent of the change in the revenue ceiling, as defined in s. 121.905 (1), between the previous school year and current school year, if positive; the change in the amount of statewide categorical aid per pupil between the previous school year and the current school year, as determined under s. 118.40 (2r) (e) 2p., if positive; and in the 2023-24 school year, 10 percent of the revenue ceiling, as defined in s. 121.905 (1), for that school year.

b. Multiply the number of pupils participating in the program who are enrolled in the private school in any grade between 9 to 12 by the sum of the maximum amount per pupil the state superintendent paid a private school under this section in the previous school year for the grade in which the pupil is enrolled; the amount of the per pupil revenue adjustment under s. 121.91 (2m) for the current school year, if positive; the change in the revenue ceiling, as defined in s. 121.905 (1), between the previous school year and current school year, if

positive; the change in the amount of statewide categorical aid per pupil between the previous school year and the current school year, as determined under s. 118.40 (2r) (e) 2p., if positive; and in the 2023-24 school year, 26.8 percent of the revenue ceiling, as defined in s. 121.905 (1), for that school year.

(c) The state superintendent shall pay 25 percent of the total amount under this subsection in September, 25 percent in November, 25 percent in February, and 25 percent in May. Each installment may consist of a single check for all pupils attending the private school under this section. The state superintendent shall include the entire amount under sub. (4m) in the November installment, but the payment shall be made in a separate check from the payment under this subsection.

(4d) (a) In this subsection, "incoming choice pupil" means a pupil who resides in a school district, other than a 1st class city school district, who begins participating in the program under this section in the 2015-16 school year or any school year thereafter, and who is enrolled in a private school under this section.

(b) 1. Beginning in the 2015-16 school year, subject to s. 121.085 (1), the department shall decrease a school district's state aid payment under s. 121.08 by an amount calculated as follows:

a. Identify the incoming choice pupils residing in the school district for whom a payment is made under sub. (4) (bg) in that school year.

b. Sum the payments made under sub. (4) (bg) for all of the pupils identified under subd. 1. a. for that school year.

c. Identify the incoming choice pupils residing in the school district for whom a payment is made under sub. (4m) in that school year.

d. Sum the payments made under sub. (4m) (a) for all of the pupils identified under subd. 1. c. for that school year.

e. Sum the amounts calculated under subd. 1. b. and d.

2. If a school district's state aid payment under s. 121.08 is insufficient to cover the reduction under subd. 1., as determined under s. 121.085 (2), the department shall decrease other state aid payments made by the department to the school district by the remaining amount.

3. The department shall ensure that the aid adjustment under subd. 1. does not affect the amount determined to be received by a school district as state aid under s. 121.08 for any other purpose.

(4m) (a) In addition to the payment under sub. (4), the state superintendent shall, subject to par. (b), pay to each private school participating in the program under this section, on behalf of the parent or guardian of each pupil attending summer school in the private school under this section during a summer and in the manner described in sub. (4) (c), an amount determined as follows:

1. Determine the maximum amount that could have been paid, at the end of the immediately preceding school term, per pupil under sub. (4) (bg) for the grade in which the pupil is attending summer school under this section.

2. If the pupil attended summer school for at least 15 days of summer instruction at the private school during that summer, multiply the amount under subd. 1. by 0.05.

3. If the pupil attended summer school for less than 15 days of summer instruction at the private school during that summer, multiply the amount under subd. 1. by 0.05 by the quotient determined by dividing the number of days of summer instruction the pupil attended during that summer by 15.

(b) A participating private school may receive a per pupil payment under par. (a) if all of the following are satisfied:

1. The private school offers no fewer than 19 summer days of instruction during that summer.

2. Each summer day of instruction offered by the private school under subd. 1. is comprised of no fewer than 270 minutes of instruction.

(4r) If, after the 3rd Friday in September in any school year, a private school participating in the program under this section closes, for each installment under sub. (4) (c) that was not paid to the private school in that school year, the state superintendent shall pay to the board of the school district within which the pupil resides, from the appropriation under s. 20.255 (2) (fv), the amount determined, for each pupil who had been attending the private school under this section in that school year and who enrolls in the school district within which the pupil resides in that school year, as follows:

(a) Multiply the amount determined under sub. (4) (bg) by 0.616.

(b) Multiply the product under par. (a) by 0.25.

(4s) Notwithstanding subs. (4), (4d), (4m), and (4r), a pupil attending a private school participating in the program under this section who is receiving a scholarship under s. 115.7915 shall not be counted as a pupil attending the private school under this section under sub. (4), (4d), (4m), or (4r).

(4v) (a) The department may consider a pupil enrolled in a private school participating in the program under this section who satisfies all of the following as a resident of an eligible school district who is enrolled in the private school under this section:

1. The pupil was a resident of a school district, other than an eligible school district or a 1st class city school district, when the pupil applied to participate in the program under this section.

2. The pupil accepted a space at a private school participating in the program under this section as a resident of a school district, other than an eligible school district or a 1st class city school district.

3. The pupil resides in an eligible school district on the 3rd Friday in September.

4. The private school the pupil is attending under this section accepts applications under this section from pupils who reside in an eligible school district.

(b) If the department considers a pupil as a resident of an eligible school district under par. (a), the department shall ensure that the pupil is not counted for purposes of determining whether a school district has exceeded its pupil participation limit under sub. (2) (be).

(5) The state superintendent shall ensure that pupils and parents and guardians of pupils who reside in this state are informed annually of the private schools participating in the program under this section and in the program under s. 119.23.

(6) The school board of a school district shall provide transportation to pupils attending a private school under this section if required under s. 121.54 and may claim transportation aid under s. 121.58 for pupils so transported.

(6m) Each private school participating in the program under this section shall do all of the following:

(a) Provide to each pupil, or the parent or guardian of each minor pupil, who applies to attend the private school all of the following:

1. The name, address, and telephone number of the private school and the name of one or more contact persons at the school.

2. A list of the names of the members of the private school's governing body and of the private school's shareholders, if any.

3. A notice stating whether the private school is an organization operated for profit or not for profit. If the private school is a nonprofit organization, the private school shall also provide the applicant with a copy of the certificate issued under section 501 (c) (3) of the Internal Revenue Code verifying that the private school is a nonprofit organization that is exempt from federal income tax.

4. A copy of the appeals process used if the private school rejects the applicant.

5. A copy of the policy developed by the private school under s. 118.33 (1) (f) 2r.

6. A copy of the nonharassment policy used by the private school, together with the procedures for reporting and obtaining relief from harassment.

7. A copy of the suspension and expulsion policies and procedures, including procedures for appealing a suspension or expulsion, used by the private school.

8. A copy of the policy used by the private school for accepting or denying the transfer of credits earned by a pupil attending the private school under this section for the satisfactory completion of coursework at another school.

9. A copy of the policy governing visitors and visits to the private school, developed as required under sub. (7) (b) 2m.

(b) Annually, by August 1, provide to the department for each of the previous 5 school years in which the private school has participated in the program under this section, to the extent permitted under 20 USC 1232g and 43 CFR part 99, pupil scores on all standardized tests administered under s. 118.30 (1t).

(bm) Upon request of the department, provide a copy of any policy described in par. (a) and the academic standards adopted under sub. (7) (b) 2.

(c) Upon an individual joining the private school's governing body, provide to the department a signed statement from the individual verifying that the individual is a member of the governing body.

(d) Upon request by any pupil, or the parent or guardian of any minor pupil, who is attending or who applies to attend the private school, provide the material specified in pars. (a) and (b).

(6p) In addition to the requirements under sub. (6m), a private school that is not a new private school and that did not participate in the program under this section or s. 119.23 in the previous school year shall submit to the department all of the following:

(a) By January 10 of the school year immediately preceding the school year in which the private school intends to participate in the program under this section, all of the following:

1. The information required under sub. (6m) (a).

2. A signed statement from each individual who is a member of the private school's governing body verifying that the individual is a member of the governing body.

(b) By August 1 of the school year in which the private school intends to participate in the program under this section, a copy of the academic standards adopted under sub. (7) (b) 2.

(7) (ad)

1. If a private school participating in the program under this section or s. 119.23 and accredited under sub. (2) (a) 7. to offer instruction in any elementary grade, but not any high school grade, seeks to offer instruction in any high school grade, the private school shall apply for and achieve accreditation to offer instruction in the additional grades

in the manner established under sub. (2) (a) 7. c.

2. If a private school participating in the program under this section or s. 119.23 and accredited under sub. (2) (a) 7. to offer instruction in any high school grade, but not any elementary grade, seeks to offer instruction in any elementary grade, the private school shall apply for and achieve accreditation to offer instruction in the additional grades in the manner established under sub. (2) (a) 7. c.

3. The governing body of a private school participating in the program under this section and accredited as required under subds. 1. and 2. and sub. (2) (a) 7. shall ensure that the private school continuously maintains accreditation from an accrediting entity as long as the private school continues to participate in the program under this section.

(ag) If a participating private school learns that an accrediting organization with which the private school is maintaining accreditation, as required under par. (ad), is a disqualified organization, the private school shall immediately notify the department in writing of this fact and shall obtain accreditation from an accrediting entity no later than 3 years from the date on which the private school learned that the accrediting organization is a disqualified organization.

(am)

1m. In this paragraph, "eligible education expenses" means all direct and indirect costs associated with a private school's educational programming for pupils enrolled in grades kindergarten to 12 that are reasonable for the private school to achieve its educational purposes, as determined by the governing body of the private school in a written policy and tested by an independent auditor. "Eligible education expenses" include expenses related to management, insurance, transportation, extracurricular programming and activities, facility and equipment costs, development expenses, and programming that provides child care services before school, after school, or both before and after school. A cost is not an "eligible education expense" if an independent auditor determines, after testing, that the cost is not a cost associated with the private school's educational programming for pupils enrolled in grades kindergarten to 12 that is reasonable for the private school to achieve its educational purposes, as determined by the governing body of the private school in a written policy.

2m. Each private school participating in the program under this section is subject to uniform financial accounting standards established by the department. Annually by October 15 following a school year in which a private school participated in the program under this section, the private school shall submit to the department all of the following:

a. An independent financial audit of the private school conducted by an independent certified public accountant, accompanied by the auditor's statement that the report is free of material misstatements and fairly presents the private school's eligible education expenses, and beginning in the 2nd school year a private school participates in the program under this section, a copy of a management letter prepared by the auditor. If the private school annually received a total of at least $100,000 under this section and ss. 115.7915 and 119.23 in any school year, the audit shall be prepared in accordance with generally accepted accounting principles with allowable modifications for long-term fixed assets. If the private school has not annually received a total of at least $100,000 under this section and ss. 115.7915 and 119.23 in any school year, the audit shall be prepared as prescribed by the department by rule. The audit shall include a calculation of the private school's net eligible education expenses and a calculation of the balance of the private school's fund for future eligible education expenses. The auditor shall conduct his or her audit, including determining sample sizes and evaluating financial viability, in accordance with the auditing standards established by the American Institute of Certified Public Accountants. The department may not require an auditor to comply with standards that exceed the scope of the standards established by the American Institute of Certified Public Accountants. If a private school participating in a program under this section is part of an organization and the private school and the organization share assets, liabilities, or eligible education expenses, the private school may submit an audit of the private school or of the organization of which it is a part. If a private school that is part of an organization with which it shares assets, liabilities, or eligible education expenses submits an audit of only the private school, the independent auditor shall use his or her professional judgment to allocate any shared assets, liabilities, and eligible education expenses between the organization and the private school. If a private school participating in the program under this section also accepts pupils under s. 115.7915 or 119.23, the private school may submit one comprehensive financial audit to satisfy the requirements of this subdivision and ss. 115.7915 (6) (e) and 119.23 (7) (am) 2m., whichever are applicable. The private school shall include in the comprehensive financial audit the information specified under s. 119.23 (7) (am) 2m.

b. Evidence of sound fiscal and internal control practices, as prescribed by the department by rule. An independent auditor engaged to evaluate the private school's fiscal and internal control practices shall conduct his or her evaluation, including determining sample sizes, in accordance with attestation standards established by the American Institute of Certified Public Accountants. The independent auditor engaged to evaluate the private school's fiscal and internal control practice shall also review any concerns raised in the private school's management letter submitted under subd. 2m. a. The fact that a private school reports a negative reserve balance alone is not evidence that the private school does not have the financial ability to continue operating or that the private school does not follow sound fiscal and internal control practices.

c. If an independent auditor engaged to evaluate the private school's fiscal and internal control practice determines that the governing body of the private school has not taken reasonable actions to remedy any concerns raised in the management letter submitted under subd. 2m. a. in the previous school year, a report prepared by the independent auditor that includes the auditor's findings related to the governing body's actions to remedy any concerns raised in the management letter for the previous school year.

3. a. By no later than February 15 or 120 days after the date on which the audit under subd. 2m. a. is received by the department, whichever is later, the department shall notify a private school participating in the program under this section whether or not additional information is required for the department to complete its review of the audit. Subject to subd. 3. b., the department may request that an auditor provide additional information if the request is related to the department reviewing the audit. The department shall determine whether a private school participating in the program under this section has provided the information and met the requirements required under subd. 2m. a. by April 1.

b. Before April 1, the department may contact the auditor who prepared the audit under subd. 2m. a. only regarding matters that may impact the private school's financial statement by an amount that is greater than 1 percent of the total amount the private school received under this section for the previous school year and any items or information the department determines are missing from the audit.

c. Notwithstanding subd. 3. a. and b., the department may communicate with an auditor as necessary for the purpose of assessing the financial viability of a private school participating in the program under this section.

d. An auditor who receives a written communication under this subdivision shall respond to the department within 10 school days of receiving the written communication.

(an)

1. A private school participating in the program under this section shall maintain a cash and investment balance that is at least equal to its reserve balance. If a private school does not maintain a cash and investment balance that is at least equal to its reserve balance, the private school shall refund the reserve balance to the department. This subdivision does not apply to a school year that occurs during the public health emergency declared on March 12, 2020, by executive order 72.

2. If a private school participating in the program under this section has a reserve balance that is greater than 50 percent of the total amount the private school received under this section in the previous school year, the governing body of the private school shall approve a plan for how it will use the amount of the reserve balance that exceeds 50 percent of the total amount the private school received under this section in the previous school year.

3. If a private school ceases to participate in or is barred from the program under this section and s. 119.23 and the private school's reserve balance is positive, the private school shall refund the reserve balance to the department.

(b) Each private school participating in the program under this section shall do all of the following:

1. Administer to any pupils attending the 3rd grade in the private school under this section a standardized reading test developed by the department.

2. Adopt the pupil academic standards required under s. 118.30 (1g) (a) 4.

2m. Develop a written policy governing visitors and visits to the private school.

3. Ensure that any teacher's aide employed by the private school has graduated from high school, been granted a declaration of equivalency of high school graduation, been granted a high school diploma by the administrator of a home-based private educational program, or been issued a general educational development certificate of high school equivalency, or has obtained a degree or educational credential higher than a high school diploma, declaration of equivalency of high school graduation, or general educational development certificate of high school equivalency.

3m. Annually, schedule 2 meetings at which members of the governing body of the private school will be present and at which pupils, and the parents or guardians of pupils, applying to attend the private school or attending the private school may meet and communicate with the members of the governing body. The private school shall, within 30 days after the start of the school term, notify the department in writing of the scheduled meeting dates and shall, at least 30 days before the scheduled meeting date, notify in writing each pupil, or the parent or guardian of each minor pupil, applying to attend the private school or attending the private school of the meeting date, time, and place.

4. Maintain progress records for each pupil attending the private school under this section while the pupil attends the school and, except as provided under subd. 7., for at least 5 years after the pupil ceases to attend the school.

5. Upon request, provide a pupil or the parent or guardian of a minor pupil who is attending the private school under this section with a copy of the pupil's progress records.

6. Issue a high school diploma or certificate to each pupil who attends the private school under this section and satisfactorily completes the course of instruction and any other requirements necessary for high school graduation.

7. a. Except as provided in subd. 7. b., if the private school ceases operating as a private school, immediately

transfer all of the progress records of each pupil who attended the school under this section to the school board of the school district within which the pupil resides. The private school shall send written notice to each pupil, or to the parent or guardian of a minor pupil, of the transfer of progress records under this subd. 7. a.

b. If the private school is affiliated with an organization that will maintain the progress records of each pupil who attended the school under this section for at least 5 years after the private school ceases operation as a private school, the private school may transfer a pupil's records to the organization if the pupil, or the parent or guardian of a minor pupil, consents in writing to the release of the progress records to the affiliated organization. The private school shall send to the department a copy of the consent form for each pupil who consents to the transfer of progress records under this subd. 7. b. The written notice shall be signed by the pupil, or the parent or guardian of a minor pupil, and shall include the name, phone number, mailing address, and other relevant contact information of the organization that will maintain the progress records, and a declaration by the affiliated organization that the organization agrees to maintain the progress records for at least 5 years after the private school ceases operation as a private school.

(c) A private school may not require a pupil attending the private school under this section to participate in any religious activity if the pupil's parent or guardian submits to the pupil's teacher or the private school's principal a written request that the pupil be exempt from such activities.

(d) By August 1 before the first school term of participation in the program that begins in the 2014-15 school year or any school year thereafter, or by May 1 if the private school begins participating in the program during summer school, each private school participating in the program under this section shall submit to the department all of the following:

1. a. In this subdivision, "municipality" has the meaning given in s. 5.02 (11).

b. A copy of the school's current certificate of occupancy issued by the municipality within which the school is located. If the private school moves to a new location, the private school shall submit a copy of the new certificate of occupancy issued by the municipality within which the school is located to the department before the attendance of pupils at the new location and before the next succeeding date specified in s. 121.05 (1) (a). If the municipality within which the private school is located does not issue certificates of occupancy, the private school may submit a certificate of occupancy issued by the local or regional governmental unit with authority to issue certificates of occupancy or a letter or form from the municipality within which the private school is located that explains that the municipality does not issue certificates of occupancy. A temporary certificate of occupancy does not meet the requirement of this subdivision. This subdivision applies only to a private school located in an eligible school district.

3. Proof that the private school's administrator has participated in a fiscal management training program approved by the department.

(dr) A private school participating in the program under this section may elect to maintain an electronic copy of any application submitted on behalf of and any correspondence to or about a pupil attending the private school under this section instead of a paper copy of the application and correspondence. The private school shall maintain electronic copies of pupil applications and correspondence for a period of at least 5 years.

(e) Each private school participating in the program under this section shall administer the examinations required under s. 118.30 (1t) or examinations permitted under s. 118.301 (3) to pupils attending the school under the program. The private school may administer additional standardized tests to such pupils.

(em)

1. The governing body of each private school participating in the program under this section shall, subject to subd. 2., annually, by August 1, provide the department with evidence demonstrating that the private school remains accredited for the current school year as required under par. (ad). The governing body shall include as evidence of accreditation a notice prepared by an accrediting entity that confirms that the private school is accredited by that entity as of the date of the notice.

2. The governing body shall immediately notify the department if its accreditation status changes.

(g) 1. By the first day of the 3rd month beginning after the month in which the department establishes the model management plan and practices for maintaining indoor environmental quality in public and private schools under s. 118.075 (3), or by October 1 of a private school's first school year of participation in the program under this section, whichever is later, the private school shall provide for the development of a plan for maintaining indoor environmental quality in the private school.

2. By the first day of the 12th month beginning after the month in which the department establishes the model management plan and practices for maintaining indoor environmental quality in public and private schools under s. 118.075 (3), or by the beginning of the 2nd school year of participation in the program under this section, whichever is later, the private school shall implement a plan for maintaining indoor environmental quality in the private school.

3. Each private school participating in the program under this section shall provide a copy of the plan implemented under subd. 2. to any person upon request.

(h) Beginning in the 2018-19 school year, each private school participating in the program under this section shall conduct criminal background investigations of its employees and exclude from employment any person not permitted to hold a teaching license as the result of an offense and any person who might reasonably be believed to pose a threat to the safety of others.

(7m) (a) By May 1 before the first school term that a private school participates in the program under this section or s. 119.23, a private school shall submit to the department one of the following:

1. A surety bond payable to the state in an amount equal to 25 percent of the total amount of payments the private school expects to receive under this section and s. 119.23 during the first school year the private school participates in the program under this section.

2. A complete anticipated budget, on a form provided by the department, for the first fiscal period of participation in the program under this section and evidence of financial viability, as prescribed by the department by rule. The private school shall include in the budget the anticipated enrollments for all pupils enrolled in the private school and for pupils enrolled in the private school under this section; estimated revenues and costs; a schedule of anticipated beginning and ending net choice program assets; and a schedule of monthly cash flow requirements. The private school shall include in the budget contingent funding sources the private school will use in the event that actual enrollments are less than expected.

(b) 1. If a private school submits a surety bond under par. (a) 1., the private school shall annually provide, by May 1, a surety bond payable to the state until the private school submits all of the following to the department:

a. A financial audit prepared in accordance with generally accepted accounting principles with allowable modifications for long-term fixed assets that does not contain any indicators that the private school is not financially viable.

b. Evidence of sound fiscal and internal control practices under sub. (7) (am) 2m. b. for the school year in the financial audit submitted under subd. 1. a. and for the subsequent school year, neither of which indicates that the private school is not financially viable.

2. A private school shall provide a surety bond under this paragraph in an amount equal to 25 percent of the total amount of payments the private school expects to receive under this section and s. 119.23 during the following school year.

(c) If a private school submits a complete anticipated budget under par. (a) 2., the department shall determine whether the private school is financially viable by August 1. If the department determines that the private school is not financially viable, the private school is not eligible to participate in the program under this section or s. 119.23 in the current school year.

(9) If any accrediting or preaccrediting entity determines during the accrediting or preaccrediting process that a private school does not meet all of the requirements under s. 118.165 (1), it shall report that failure to the department.

(9m) Beginning in September 2016, and annually thereafter, the governing body of a private school participating in the program under this section that maintains an Internet site for the private school shall, if the private school is included in the most recent accountability report published under s. 115.385, within 30 days after the department publishes the accountability report, prominently link on the home page of that Internet site to the pages in that most recent accountability report concerning the private school.

(10) (a) The state superintendent may issue an order barring a private school from participating in the program under this section in the current school year if the state superintendent determines that the private school has done any of the following:

1. Intentionally or negligently misrepresented any information required under this section or any rule promulgated under this section.

2. Failed to provide the notice or pay the fee required under sub. (2) (a) 3., or provide the information required under sub. (7) (am) or (d), by the date or within the period specified.

3. Failed to refund to the state any overpayment made under sub. (4) or (4m) by the date specified by department rule.

5. Failed to provide the information required under sub. (6m) or (6p).

6. Failed to comply with the requirements under sub. (7) (b), (c), or (h) or (7m).

7. Violated sub. (7) (b) 4., 5., or 6.

8. Before the end of a 7-year period beginning on the date of an order issued by the state superintendent under this subsection, retained a disqualified person, for compensation or as a volunteer, as an owner, officer, director, trustee, administrator, person designated by the administrator to assist in processing pupil applications, or person responsible for administrative, financial, or pupil health and safety matters.

(am) If the state superintendent determines that any of the following have occurred, he or she may issue an order

barring the private school from participating in the program under this section in the following school year:

1. The private school has not complied with the requirements under sub. (7) (em).

2. The private school's application for accreditation has been denied by the accrediting entity.

3. The private school has not achieved accreditation within the period allowed under sub. (2) (a) 7.

4. The private school intentionally or negligently misrepresented any information required under this section or any rule promulgated under this section.

(ar)

1. If the state superintendent determines that a private school has failed to continuously maintain accreditation as required under sub. (7) (ad), that the governing body of the private school has withdrawn the private school from the accreditation process, or that the private school's accreditation has been revoked, denied, or terminated by an accrediting entity, the state superintendent shall issue an order barring the private school's participation in the program under this section at the end of the current school year.

2. A private school whose participation in the program under this section is barred under subd. 1. may not participate in the program under this section or under s. 119.23 until the governing body of the private school demonstrates to the satisfaction of the department that it has obtained accreditation from an accrediting entity, provided the accreditation is from an entity other than the entity with which the private school failed to continuously maintain accreditation or, if the private school's accreditation was revoked, denied, or terminated, other than the entity that revoked, denied, or terminated the private school's accreditation.

(b) The state superintendent may issue an order immediately terminating a private school's participation in the program under this section if he or she determines that conditions at the private school present an imminent threat to the health or safety of pupils.

(c) Whenever the state superintendent issues an order under par. (a), (am), (ar), or (b), he or she shall immediately notify the parent or guardian of each pupil attending the private school under this section.

(d) The state superintendent may withhold payment from a private school under subs. (4) and (4m) if the private school violates this section or s. 115.383 (3) (b).

(11) The department shall do all of the following:

(a) Promulgate rules to implement and administer this section. The department may not by rule establish standards under sub. (7) (am) that exceed the standards established by the American Institute of Certified Public Accountants.

(b) Notify each private school participating in the program under this section of any proposed changes to the program or to administrative rules governing the program, including changes to application or filing deadlines but not including changes to provisions governing health or safety, prior to the beginning of the school year in which the change takes effect.

(c) Within 10 days after receiving the information submitted as required under sub. (7) (em), notify the participating private school of receipt of accreditation status.

(d) When the department publicly releases data related to enrollment of, standardized test results for, applications submitted by, waiting lists for pupils participating in or seeking to participate in the program under this section, release the data all at the same time, uniformly, and completely.

(12) During the public health emergency declared on March 12, 2020, by executive order 72, if a private school participating in the program under this section is closed for at least 10 school days in a school year by a local health officer, as defined in s. 250.01 (5), or the department of health services, in the school year during which the school is closed and the following school year, the department may not withhold payment from the private school under sub. (10) (d) or bar the private school from participating in the program under sub. (10) (a), (am), or (ar) for failing to comply with a requirement under this section or a rule promulgated under this section if all of the following occur:

(a) The private school submits information to the department that explains how the school closure impacted the private school's ability to comply with the requirement and any action the private school took to mitigate the consequences of not complying with the requirement.

(b) The department determines that the private school's failure to comply with the requirement was caused by the closure.

History: 2011 a. 32, 47, 215; 2013 a. 20, 2013 a. 166 s. 77; 2013 a. 173 s. 33; 2013 a. 237, 256; 2015 a. 55, 72, 212, 297, 338; 2017 a. 36, 59; 2017 a. 364 ss. 48, 49; 2017 a. 366; 2019 a. 55, 185; 2021 a. 30, 238; 2021 a. 239 s. 74; 2023 a. 11.

Wis. Stat. § 119.23

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 3 (2).

Milwaukee parental choice program (current text, retrieved 2026-10-29)

(1) In this section:

(ab) "Accrediting entity" means all of the following:

1. Cognia, Inc., Wisconsin Religious and Independent Schools Accreditation, Independent Schools Association of the

Central States, Wisconsin Evangelical Lutheran Synod School Accreditation, National Lutheran School Accreditation, Wisconsin Association of Christian Schools, Christian Schools International, Association of Christian Schools International, the diocese or archdiocese within which a private school is located, and any other organization recognized by the National Council for Private School Accreditation.

2. Subject to sub. (2) (a) 7. e., for a private school to which sub. (2) (a) 7. c. applies, the Institute for the Transformation of Learning at Marquette University.

(ae) "Administrator" means the superintendent, supervising principal, executive director, or other person who acts as the administrative head of a private school participating in the program under this section.

(af) "Disqualified organization" means an accrediting organization that is not an accrediting entity or a member of or otherwise sanctioned by an accrediting entity.

(ag) "Disqualified person" means a person who, when a private school was barred or terminated from participation in the program under this section by an order issued under sub. (10), satisfied at least one of the following:

1. Had a controlling ownership interest in, or was the administrator or an officer, director, or trustee of, the private school.

2. Was a person designated by the administrator of the private school to assist in processing pupil applications.

3. Was responsible for an action or circumstance that led to the private school being barred or terminated from participation in the program under this section.

(ai)

1. Except as provided in subd. 2., "new private school" means a school that qualifies as a private school under s. 115.001 (3r) and that satisfies either of the following:

a. The school has been in continuous operation in this state for less than 12 consecutive months.

b. The school provides education to fewer than 40 pupils divided into 2 or fewer grades.

2. "New private school" does not include a private school the governing body of which operates or manages a private school that is participating in the program under this section or under s. 118.60 if all of the following apply:

a. No payment has been withheld from any private school operated or managed by the governing body under sub. (10) (d) or s. 118.60 (10) (d) in the 3 immediately preceding school years.

b. No order barring any private school operated or managed by the governing body from participating in the program under this section or s. 118.60 has been issued under sub. (10) (a), (am), (ar), or (b) or under s. 118.60 (10) (a), (am), (ar), or (b) in the 3 immediately preceding school years.

(am) "Preaccreditation" means the review and approval of an educational plan. Review of an education plan includes consideration of whether the school submitting the plan meets the requirements under s. 118.165 (1). The fact that a private school has obtained preaccreditation does not require an accrediting entity to accredit the private school.

(ap) "Preaccrediting entity" means the Institute for the Transformation of Learning at Marquette University, Wisconsin North Central Association, Wisconsin Religious and Independent Schools Accreditation, Independent Schools Association of the Central States, Wisconsin Evangelical Lutheran Synod School Accreditation, National Lutheran School Accreditation, Wisconsin Association of Christian Schools, Christian Schools International, Association of Christian Schools International, and the diocese or archdiocese within which a private school is located.

(as) "Progress records" has the meaning given in s. 118.125 (1) (c).

(d) "Teacher" means a person who has primary responsibility for the academic instruction of pupils.

(2) (a) Subject to pars. (ag) and (ar), any pupil in grades kindergarten to 12 who resides within the city may attend any private school if all of the following apply:

1. a. The pupil is a member of a family that has a total family income that does not exceed an amount equal to 3.0 times the poverty level determined in accordance with criteria established by the director of the federal office of management and budget. In this subdivision and sub. (3m), family income includes income of the pupil's parents or legal guardians. Except as provided in subd. 1. d., the family income of the pupil shall be verified as provided in subd. 1. b. A pupil attending a private school under this section whose family income increases, including a pupil who attended a private school under this section in the 2010-11 school year and whose family income has increased, may continue to attend a private school under this section.

b. The private school or the pupil's parent or guardian submits to the department of public instruction the names, addresses, social security numbers, and other state and federal tax identification numbers, if any, of the pupil's parents or legal guardians that reside in the same household as the pupil, whether and to whom the parents or legal guardians are married, the names of all of the other members of the pupil's family residing in the same household as the pupil, and the school year for which family income is being verified under this subd. 1. b. The department of revenue shall review the information submitted under this subd. 1. b. and shall verify the eligibility or ineligibility of the pupil to participate in the program under this section on the basis of family income. In this subdivision, "family income" means federal adjusted gross income of the parents or

legal guardians residing in the same household as the pupil for the tax year preceding the school year for which family income is being verified under this subd. 1. b. or, if not available, for the tax year preceding the tax year preceding the school year for which family income is being verified under this subd. 1. b. Family income for a family in which the pupil's parents are married or in which the pupil's legal guardians are married shall be reduced by $7,000 before the verification is made under this subd. 1. b. The department of revenue may take no other action on the basis of the information submitted under this subd. 1. b. If the department of revenue is unable to verify family income or to verify whether the pupil is eligible or ineligible to participate in the program under this section on the basis of family income, the department of revenue shall notify the department of public instruction, the private school, and the pupil's parent or guardian of this fact and the department of public instruction shall utilize an alternative process, to be established by the department of public instruction, to determine whether the pupil is eligible to participate in the program under this section on the basis of family income. The department of public instruction may not request any additional verification of income from the family of a pupil once the department of revenue has verified that the pupil is eligible to participate in the program under this section on the basis of family income. The department of public instruction shall establish a procedure for determining family income eligibility for those pupils for whom no social security number or state or federal tax identification number has been provided.

c. If the private school operates a work based learning program created under s. 118.56, for purposes of this subdivision, "family income" does not include any money earned by the pupil in the work based learning program.

d. The family income of a pupil does not need to be verified under subd. 1. b. for a pupil who attended a participating private school under this section or s. 118.60 in a school year and applies to attend a participating private school in the program under this section in the following school year.

3. Except as provided in par. (ag) 1., the private school notified the state superintendent of its intent to participate in the program under this section or in the program under s. 118.60, and paid the nonrefundable annual fee set by the department, by January 10 of the previous school year. The notice shall specify the number of pupils participating in the program under this section and in the program under s. 118.60 for which the school has space. The department shall by rule set the fee charged under this subdivision at an amount such that the total fee revenue covers the costs of employing one full-time auditor to evaluate the financial information submitted by private schools under subs. (7) (am) and (d) 3. and (7m) (a) 2. and under s. 118.60 (7) (am) and (d) 3. and (7m) (a) 2.

4. The private school complies with 42 USC 2000d.

5. The private school meets all health and safety laws or codes that apply to public schools.

6. a. Except as provided in subd. 6. c., all of the private school's teachers have a teaching license issued by the department or a bachelor's degree or a degree or educational credential higher than a bachelor's degree, including a masters or doctorate, from a nationally or regionally accredited institution of higher education.

b. All of the private school's administrators have at least a bachelor's degree from a nationally or regionally accredited institution of higher education or a teaching license or administrator's license issued by the department.

c. Any teacher employed by the private school on July 1, 2010, who has been teaching for at least the 5 consecutive years immediately preceding July 1, 2010, and who does not satisfy the requirements under subd. 6. a. on July 1, 2010, applies to the department on a form prepared by the department for a temporary, nonrenewable waiver from the requirements under subd. 6. a. The department shall promulgate rules to implement this subd. 6. c., including the form of the application and the process by which the waiver application will be reviewed. The application form shall require the applicant to submit a plan for satisfying the requirements under subd. 6. a., including the name of the accredited institution of higher education at which the teacher is pursuing or will pursue the bachelor's degree and the anticipated date on which the teacher expects to complete the bachelor's degree. No waiver granted under this subd. 6. c. is valid after July 31, 2015.

7. a. Subject to subd. 7. c. and d., for a private school participating in the program under this section on July 1, 2009, the private school achieves accreditation by an accrediting entity by December 31 of the 3rd school year following the first school year that begins after June 30, 2006, in which it participates in the program under this section. If the private school is accredited as provided under this subd. 7. a., the private school is not required to obtain preaccreditation under subd. 7. bg. as a prerequisite to providing instruction under this section in additional grades or in an additional or new school.

b. Subject to subd. 7. c. and d., for a private school that was a first-time participant in the program under this section before April 10, 2014, and that is not accredited by an accrediting entity, the private school obtains accreditation from an accrediting entity by December 31 of the 3rd school year following the first school year in which the private school began participating in the program under this section. If the private school is accredited under this subd. 7. b., the private school is not required to obtain preaccreditation under subd. 7. bg. as a prerequisite to providing instruction under this section in additional grades or in an additional or new school.

bg. Each private school that begins participation in the program under this section on or after April 10, 2014, and that is not accredited by an accrediting entity, shall obtain preaccreditation by a preaccrediting entity by August 1 before the first school term in which the private school begins participation in the program under this section, or by May 1 if the private school begins participating in the program during summer school. In any school year, a private school to which this subd. 7. bg. applies may apply for and seek to obtain preaccreditation from only one preaccrediting entity. A private school to which this subd. 7. bg. applies that fails to obtain preaccreditation as required under this subd. 7. bg. may not participate in the program under this section or under s. 118.60 until preaccreditation has been obtained, but the private school may apply for and seek to obtain preaccreditation from a preaccrediting entity for the following school year.

br. A private school to which subd. 7. bg. applies shall apply for accreditation by an accrediting entity by December 31 of the first school year that begins after April 10, 2014, in which the private school begins participation in the program under this section, and shall achieve accreditation by an accrediting entity by December 31 of the 3rd school year following the school year in which the private school begins participation in the program under this section. If the private school is accredited under this subd. 7. br., the private school is not required to obtain preaccreditation as a prerequisite to providing instruction under this section in additional grades or in an additional or new school.

c. On or after July 1, 2009, a private school participating or seeking to participate in the program under this section or in the program under s. 118.60 may not apply for accreditation by the Institute for the Transformation of Learning at Marquette University, except that a private school that has applied for accreditation to the Institute for the Transformation of Learning at Marquette University before July 1, 2009, and that is participating in the program under this section on April 10, 2014, may, subject to subd. 7. e., complete the accreditation process with the Institute for the Transformation of Learning at Marquette University, and may, subject to subd. 7. e., seek renewal of accreditation from the Institute for the Transformation of Learning at Marquette University.

d. For a private school that was approved for scholarship funding for the 2005-06 school year by Partners Advancing Values in Education and is participating in the program under this section on November 19, 2011, the private school achieves accreditation by an accrediting entity by December 31, 2015. If the private school is accredited as provided under this subd. 7. d., the private school is not required to obtain preaccreditation under subd. 7. bg. as a prerequisite to providing instruction under this section in additional grades or in an additional or new school.

e. For a private school that is accredited by the Institute for the Transformation of Learning at Marquette University and that is participating in the program under this section on April 10, 2014, the private school achieves accreditation by an accrediting entity under sub. (1) (ab) 1. by December 31, 2014. If the private school is accredited as provided under this subd. 7. e., the private school is not required to obtain preaccreditation under subd. 7. bg. as a prerequisite to providing instruction under this section in additional grades or in an additional or new school.

8. Notwithstanding s. 118.165 (1) (c), the private school annually provides at least 1,050 hours of direct pupil instruction in grades 1 to 6 and at least 1,137 hours of direct pupil instruction in grades 7 to 12. Hours provided under this subdivision include recess and time for pupils to transfer between classes but do not include the lunch periods. Annually, no more than 140 hours of work under s. 118.56 may be counted as hours of direct pupil instruction.

9. If the private school operates any grade from 5 to 12, the private school includes in its curriculum the instruction required under s. 121.02 (1) (L) 8., so far as applicable.

(ag) The governing body of a new private school shall comply with all of the following before the new private school may participate in the program under this section:

1. By August 1 of the school year immediately preceding the school year in which the new private school intends to participate in the program under this section, complete and submit to the department the following on forms provided by the department:

a. A notice of intent to participate and agreement to comply with procedural requirements.

b. A complete anticipated budget for the first fiscal period of participation in the program under this section showing that the private school will have a positive cash flow in each month of the fiscal period and no operating deficit. The governing body shall include on the completed form anticipated enrollments for all pupils enrolled in the new private school and for pupils enrolled in the new private school under this section; estimated revenues and costs; a schedule of anticipated beginning and ending net choice program assets; and a schedule of monthly cash flow requirements. The governing body shall include in the budget contingent funding sources the new private school will use in the event that actual enrollments are less than expected.

c. The nonrefundable fee established by the department, as required under par. (a) 3., for the school year in which the fee is paid by the new private school. If the amount of the fee paid by the new private school under

this subd. 1. c. increases for the school year in which the new private school will first participate in the program under this section, the new private school shall pay the difference between the fee paid and the fee due to the department. If the amount of the fee paid by the new private school under this subd. 1. c. decreases for the school year in which the new private school will first participate in the program under this section, the department shall refund the new private school the difference between the fee paid and the fee due to the department.

2. a. By August 1 of the school year immediately preceding the school year in which the new private school intends to participate in the program under this section, submit to the department the information under sub. (6p) (a) and (b).

b. If, at the time the new private school submits the information required under subd. 2. a., the new private school does not have a physical property within which the private school intends to operate, submit a mailing address of an administrator of the private school.

4. Notwithstanding the deadline to obtain preaccreditation under par. (a) 7. bg., by December 15 of the school year immediately preceding the school year in which the new private school intends to participate in the program under this section, obtain preaccreditation from a preaccrediting entity.

5. By August 1 of the first school year in which the new private school intends to participate in the program under this section, demonstrate to the satisfaction of the department that the new private school has contracted with a 3rd-party payroll service that will remit federal and state payroll taxes for each employee of the new private school for the duration of the school year.

(ar) By December 31 of the school year immediately preceding the school year in which a new private school intends to participate in the program under this section, the department shall notify the new private school in writing whether it has satisfied those requirements under par. (ag) that must be satisfied before December 31. If the department determines that the new private school has not satisfied those requirements, the new private school may not participate in the program under this section in the following school year, but may reinitiate the process under par. (ag) for the next following school year.

(c) 1. Notwithstanding par. (a) 6., a teacher employed by a private school participating in the program under this section who teaches only courses in rabbinical studies is not required to have a bachelor's degree.

2. Notwithstanding par. (a) 6., an administrator of a private school participating in the program under this section that prepares and trains pupils attending the school in rabbinical studies is not required to have a bachelor's degree.

(3) (a) The pupil or the pupil's parent or guardian shall submit an application, on a form provided by the state superintendent, to the participating private school that the pupil wishes to attend. If more than one pupil from the same family applies to attend the same private school, the pupils may use a single application. No later than 60 days after the end of the application period during which an application is received, the private school shall notify each applicant, in writing, whether his or her application has been accepted. If the private school rejects an application, the notice shall include the reason. A private school may reject an applicant only if it has reached its maximum general capacity or seating capacity. The state superintendent shall ensure that the private school determines which pupils to accept on a random basis, except that the private school may give preference to the following in accepting applications, in order of preference listed:

1. Pupils who attended the private school under this section or s. 118.60 during the previous school year.

2. Siblings of pupils described in subd. 1.

3. Pupils who attended a different private school under this section or s. 118.60 during the previous school year.

4. Siblings of pupils described in subd. 3.

5. Siblings of those pupils who have been randomly accepted to attend the private school under this section and who did not attend a private school under this section or s. 118.60 during the previous school year.

(b) If the private school rejects an applicant because it has too few available spaces, the applicant may transfer his or her application to a participating private school that has space available. An applicant rejected under this paragraph may be admitted to a private school participating in the program under this section for the following school year, provided that the applicant continues to reside within the city. The department may not require, in that following school year, the private school to submit financial information regarding the applicant or to verify the eligibility of the applicant to participate in the program under this section on the basis of family income.

(3m) (a) A private school participating in the program under this section may not charge or receive any additional tuition payment for a pupil participating in the program under this section other than the payment the school receives under sub. (4) and, if applicable, sub. (4m), if either of the following applies:

1. The pupil is enrolled in a grade from kindergarten to 8.

2. The pupil is enrolled in a grade from 9 to 12 and the family income of the pupil, as determined under sub. (2) (a) 1., does not exceed an amount equal to 2.2 times the poverty level determined in accordance with criteria established by the director of the federal office of management and budget.

(am)

1. Beginning in the 2011-12 school year, a private school participating in the program under this section may recover the cost of providing the following to a pupil participating in the program under this section through reasonable fees in an amount determined by the private school and charged to the pupil, except that no participating private school may retroactively recover any uncollected costs incurred prior to November 19, 2011:

a. Personal use items, such as uniforms, gym clothes, and towels.

b. Social and extracurricular activities if not necessary to the private school's curriculum.

c. Musical instruments.

d. Meals consumed by pupils of the private school.

e. High school classes that are not required for graduation and for which no credits toward graduation are given.

f. Transportation.

g. Before-school and after-school child care.

h. Room and board at the private school.

2. A private school may not prohibit an eligible pupil from attending the private school, expel or otherwise discipline the pupil, or withhold or reduce the pupil's grades because the pupil or the pupil's parent or guardian cannot pay or has not paid fees charged under subd. 1.

(b) Beginning in the 2011-12 school year, a private school participating in the program under this section may, in addition to the payment it receives for a pupil under sub. (4) and, if applicable, sub. (4m), charge the pupil tuition in an amount determined by the school if both of the following apply:

1. The pupil is enrolled in a grade from 9 to 12.

2. The family income of the pupil, as determined under sub. (2) (a) 1., exceeds an amount equal to 2.2 times the poverty level determined in accordance with criteria established by the director of the federal office of management and budget.

(c) A private school participating in the program under this section shall determine whether the private school may charge additional tuition to a pupil on the basis of the pupil's family income as permitted under par. (b). The private school shall establish a process for accepting an appeal to the governing body of the private school of the determination made under this paragraph.

(4) (a) Annually, on or before September 15, a private school participating in the program under this section shall file with the department a report stating its summer daily attendance for each day of summer school for the purpose of sub. (4m).

(bg)

1. In the 2013-14 school year, upon receipt from the pupil's parent or guardian of proof of the pupil's enrollment in the private school during a school term, the state superintendent shall pay to the private school in which the pupil is enrolled on behalf of the pupil's parent or guardian, from the appropriation under s. 20.255 (2) (fu), an amount equal to the private school's operating and debt service cost per pupil that is related to educational programming, as determined by the department, or $6,442, whichever is less.

2. Except as provided in subd. 4., in the 2014-15 school year, upon receipt from the pupil's parent or guardian of proof of the pupil's enrollment in the private school during a school term, the state superintendent shall pay to the private school in which the pupil is enrolled on behalf of the pupil's parent or guardian, from the appropriation under s. 20.255 (2) (fu), the lesser of an amount equal to the private school's operating and debt service cost per pupil that is related to educational programming, as determined by the department, or an amount either of $7,210, if the pupil is enrolled in a grade from kindergarten to 8, or of $7,856, if the pupil is enrolled in a grade from 9 to 12.

3. In the 2015-16 school year and in each school year thereafter, upon receipt from the pupil's parent or guardian of proof of the pupil's enrollment in the private school during a school term, except as provided in subd. 5., the state superintendent shall pay to the private school in which the pupil is enrolled on behalf of the pupil's parent or guardian, from the appropriation under s. 20.255 (2) (fu), an amount equal to the sum of the maximum amount per pupil the state superintendent paid a private school under this section in the previous school year for the grade in which the pupil is enrolled; in the 2023-24 school year, if the pupil is enrolled in a grade from kindergarten to 8, 10 percent of the revenue ceiling, as defined in s. 121.905 (1), for that school year; the amount of the per pupil revenue adjustment under s. 121.91 (2m) for the current school year, if positive; 90 percent of the change in the revenue ceiling, as defined in s. 121.905 (1), between the previous school year and current school year, if positive, if the pupil is enrolled in a grade from kindergarten to 8, or if the pupil is enrolled in a grade from 9 to 12, the change in the revenue ceiling, as defined in s. 121.905 (1), between the previous school year and current school year, if positive; the change in the amount of statewide categorical aid per pupil between the previous school year and the current school year, as determined under s. 118.40 (2r) (e) 2p., if positive; and in the 2023-24 school year, if the pupil is enrolled in a grade from 9 to 12, 26.8 percent of the revenue ceiling, as defined in s. 121.905 (1), for

that school year.

4. If the pupil described in subd. 2. is enrolled in a private school that enrolls pupils under the program in any grade between kindergarten to 8 and also in any grade between 9 to 12, the state superintendent shall pay to the private school in which the pupil is enrolled on behalf of the pupil's parent or guardian, from the appropriation under s. 20.255 (2) (fu), the lesser of an amount equal to the private school's operating and debt service cost per pupil that is related to educational programming, as determined by the department, or an amount determined as follows:

a. Multiply the number of pupils participating in the program under this section who are enrolled in the private school in any grade between kindergarten to 8 by $7,210.

b. Multiply the number of pupils participating in the program under this section who are enrolled in the private school in any grade between 9 to 12 by $7,856.

c. Add the amounts determined under subd. 4. a. and b.

d. Divide the amount determined under subd. 4. c. by the total number of pupils participating in the program under this section who are enrolled at the private school.

5. If the pupil described in subd. 3. is enrolled in a private school that enrolls pupils under the program in any grade between kindergarten to 8 and also in any grade between 9 to 12, the state superintendent shall substitute for the amount described in subd. 3. the amount determined under subd. 4. a. to d., with the following modifications:

a. Multiply the number of pupils participating in the program who are enrolled in the private school in any grade between kindergarten to 8 by the sum of the maximum amount per pupil the state superintendent paid a private school under this section in the previous school year for the grade in which the pupil is enrolled; the amount of the per pupil revenue adjustment under s. 121.91 (2m) for the current school year, if positive; 90 percent of the change in the revenue ceiling, as defined in s. 121.905 (1), between the previous school year and current school year, if positive; the change in the amount of statewide categorical aid per pupil between the previous school year and the current school year, as determined under s. 118.40 (2r) (e) 2p., if positive; and in the 2023-24 school year, 10 percent of the revenue ceiling, as defined in s. 121.905 (1), for that school year.

b. Multiply the number of pupils participating in the program who are enrolled in the private school in any grade between 9 to 12 by the sum of the maximum amount per pupil the state superintendent paid a private school under this section in the previous school year for the grade in which the pupil is enrolled; the amount of the per pupil revenue adjustment under s. 121.91 (2m) for the current school year, if positive; the change in the revenue ceiling, as defined in s. 121.905 (1), between the previous school year and current school year, if positive; the change in the amount of statewide categorical aid per pupil between the previous school year and the current school year, as determined under s. 118.40 (2r) (e) 2p., if positive; and in the 2023-24 school year, 26.8 percent of the revenue ceiling, as defined in s. 121.905 (1), for that school year.

(c) The state superintendent shall pay 25 percent of the total amount under this subsection in September, 25 percent in November, 25 percent in February, and 25 percent in May. Each installment may consist of a single check for all pupils attending the private school under this section. The state superintendent shall include the entire amount under sub. (4m) in the November installment, but the payment shall be made in a separate check from the payment under this subsection.

(4m) (a) In addition to the payment under sub. (4), the state superintendent shall, subject to par. (b), pay to each private school participating in the program under this section, on behalf of the parent or guardian of each pupil attending summer school in the private school under this section during a summer and in the manner described in sub. (4) (c), an amount determined as follows:

1. Determine the maximum amount that could have been paid, at the end of the immediately preceding school term, per pupil under sub. (4) (bg) for the grade in which the pupil is attending summer school under this section.

2. If the pupil attended summer school for at least 15 days of summer instruction at the private school during that summer, multiply the amount under subd. 1. by 0.05.

3. If the pupil attended summer school for less than 15 days of summer instruction at the private school during that summer, multiply the amount under subd. 1. by 0.05 by the quotient determined by dividing the number of days of summer instruction the pupil attended during that summer by 15.

(b) A participating private school may receive a per pupil payment under par. (a) if all of the following are satisfied:

1. The private school offers no fewer than 19 summer days of instruction during that summer.

2. Each summer day of instruction offered by the private school under subd. 1. is comprised of no fewer than 270 minutes of instruction.

(4r) If, after the 3rd Friday in September in any school year, a private school participating in the program under this section closes, for each installment under sub. (4) (c) that was not paid to the private school in that school year, the state superintendent shall pay to the board, from the appropriation under s. 20.255 (2) (fv), the amount determined as follows for each pupil who had been attending the private school under this section in that school year and who enrolls

in the school district operating under this chapter in that school year:

(a) Multiply the amount determined under sub. (4) (bg) by 0.616.

(b) Multiply the product under par. (a) by 0.25.

(4s) Notwithstanding subs. (4), (4m), and (4r), a pupil attending a private school participating in the program under this section who is receiving a scholarship under s. 115.7915 shall not be counted as a pupil attending the private school under this section under sub. (4), (4m), or (4r).

(4v) (a) The department may consider a pupil enrolled in a private school participating in the program under this section who satisfies all of the following as a resident of the city who is enrolled in the private school under this section:

1. The pupil was a resident of a school district, other than an eligible school district, as defined in s. 118.60 (1) (am), or a 1st class city school district, when the pupil applied to attend the private school under the program under s. 118.60.

2. The pupil accepted a space at a private school participating in the program under s. 118.60 as a resident of a school district, other than an eligible school district, as defined in s. 118.60 (1) (am), or a 1st class city school district.

3. The pupil resides in the city on the 3rd Friday in September.

4. The private school at which the pupil accepted a space under s. 118.60 is participating in the program under this section.

(b) If the department considers a pupil as a resident of the city under par. (a), the department shall ensure that the pupil is not counted for purposes of determining whether a school district has exceeded its pupil participation limit under s. 118.60 (2) (be).

(5) The state superintendent shall ensure that pupils and parents and guardians of pupils who reside in the city are informed annually of the private schools participating in the program under this section and in the program under s. 118.60.

(6) The board shall provide transportation to pupils attending a private school under this section if required under s. 121.54 and may claim transportation aid under s. 121.58 for pupils so transported.

(6m) Each private school participating in the program under this section shall do all of the following:

(a) Provide to each pupil, or the parent or guardian of each minor pupil, who applies to attend the private school all of the following:

1. The name, address, and telephone number of the private school and the name of one or more contact persons at the school.

2. A list of the names of the members of the private school's governing body and of the private school's shareholders, if any.

3. A notice stating whether the private school is an organization operated for profit or not for profit. If the private school is a nonprofit organization, the private school shall also provide the applicant with a copy of the certificate issued under section 501 (c) (3) of the Internal Revenue Code verifying that the private school is a nonprofit organization that is exempt from federal income tax.

4. A copy of the appeals process used if the private school rejects the applicant.

5. A copy of the policy developed by the private school under s. 118.33 (1) (f) 2m.

6. A copy of the non-harassment policy used by the private school, together with the procedures for reporting and obtaining relief from harassment.

7. A copy of the suspension and expulsion policies and procedures, including procedures for appealing a suspension or expulsion, used by the private school.

8. A copy of the policy used by the private school for accepting or denying the transfer of credits earned by a pupil attending the private school under this section for the satisfactory completion of coursework at another school.

9. A copy of the policy governing visitors and visits to the private school, developed as required under sub. (7) (b) 2m.

(b) Annually, by August 1, provide to the department for each of the previous 5 school years in which the private school has participated in the program under this section, to the extent permitted under 20 USC 1232g and 43 CFR part 99, pupil scores on all standardized tests administered under s. 118.30 (1s).

(bm) Upon request of the department, provide a copy of any policy described in par. (a) and the academic standards adopted under sub. (7) (b) 2.

(c) Upon an individual joining the private school's governing body, provide to the department a signed statement from the individual verifying that the individual is a member of the governing body.

(d) Upon request by any pupil, or the parent or guardian of any minor pupil, who is attending or who applies to attend the private school, provide the material specified in pars. (a) and (b).

(6p) In addition to the requirements under sub. (6m), a private school that is not a new private school and that did not participate in the program under this section or s. 118.60 in the previous school year shall submit to the department all

of the following:

(a) By January 10 of the school year immediately preceding the school year in which the private school intends to participate in the program under this section, all of the following:

1. The information required under sub. (6m) (a).

2. A signed statement from each individual who is a member of the private school's governing body verifying that the individual is a member of the governing body.

(b) By August 1 of the school year in which the private school intends to participate in the program under this section, a copy of the academic standards adopted under sub. (7) (b) 2.

(7) (ad)

1. If a private school participating in the program under this section or s. 118.60 and accredited under sub. (2) (a) 7. to offer instruction in any elementary grade, but not any high school grade, seeks to offer instruction in any high school grade, the private school shall apply for and achieve accreditation to offer instruction in the additional grades in the manner established under sub. (2) (a) 7. br.

2. If a private school participating in the program under this section or s. 118.60 and accredited under sub. (2) (a) 7. to offer instruction in any high school grade, but not any elementary grade, seeks to offer instruction in any elementary grade, the private school shall apply for and achieve accreditation to offer instruction in the additional grades in the manner established under sub. (2) (a) 7. br.

3. The governing body of a private school participating in the program under this section and accredited as required under subds. 1. and 2. and sub. (2) (a) 7. shall ensure that the private school continuously maintains accreditation from an accrediting entity as long as the private school continues to participate in the program under this section.

(ag) If a participating private school learns that an accrediting organization with which the private school is maintaining accreditation, as required under par. (ad), is a disqualified organization, the private school shall immediately notify the department in writing of this fact and shall obtain accreditation from an accrediting entity no later than 3 years from the date on which the private school learned that the accrediting organization is a disqualified organization.

(am)

1m. In this paragraph, "eligible education expenses" means all direct and indirect costs associated with a private school's educational programming for pupils enrolled in grades kindergarten to 12 that are reasonable for the private school to achieve its educational purposes, as determined by the governing body of the private school in a written policy and tested by an independent auditor. "Eligible education expenses" include expenses related to management, insurance, transportation, extracurricular programming and activities, facility and equipment costs, development expenses, and programming that provides child care services before school, after school, or both before and after school. A cost is not an "eligible education expense" if an independent auditor determines, after testing, that the cost is not a cost associated with the private school's educational programming for pupils enrolled in grades kindergarten to 12 that is reasonable for the private school to achieve its educational purposes, as determined by the governing body of the private school in a written policy.

2m. Each private school participating in the program under this section is subject to uniform financial accounting standards established by the department. Annually by October 15 following a school year in which a private school participated in the program under this section, the private school shall submit to the department all of the following:

a. An independent financial audit of the private school conducted by an independent certified public accountant, accompanied by the auditor's statement that the report is free of material misstatements and fairly presents the private school's eligible education expenses, and beginning in the 2nd school year a private school participates in the program under this section, a copy of the management letter prepared by the auditor. If the private school annually received a total of at least $100,000 under this section and ss. 115.7915 and 118.60 in any school year, the audit shall be prepared in accordance with generally accepted accounting principles with allowable modifications for long-term fixed assets. If the private school has not annually received a total of at least $100,000 under this section and ss. 115.7915 and 118.60 in any school year, the audit shall be prepared as prescribed by the department by rule. The audit shall include a calculation of the private school net eligible education expenses and a calculation of the balance of the private school's fund for future eligible education expenses. The auditor shall conduct his or her audit, including determining sample sizes and evaluating financial viability, in accordance with the auditing standards established by the American Institute of Certified Public Accountants. The department may not require an auditor to comply with standards that exceed the scope of the standards established by the American Institute of Certified Public Accountants. If a private school participating in a program under this section is part of an organization and the private school and the organization share assets, liabilities, or eligible education expenses, the private school may submit an audit of the private school or of the organization of which it is a part. If a private school that is part of an organization with which it shares assets, liabilities, or eligible education expenses submits an audit of only the private school, the independent auditor shall use his or her professional judgment to allocate any shared assets, liabilities, and eligible education expenses between the organization and the private

school. If a private school participating in the program under this section also accepts pupils under s. 115.7915 or 118.60, the private school may submit one comprehensive financial audit to satisfy the requirements of this subdivision and ss. 115.7915 (6) (e) and 118.60 (7) (am) 2m., whichever are applicable. The private school shall include in the comprehensive financial audit the information specified under s. 118.60 (7) (am) 2m.

b. Evidence of sound fiscal and internal control practices, as prescribed by the department by rule. An independent auditor engaged to evaluate the private school's fiscal and internal control practices shall conduct his or her evaluation, including determining sample sizes, in accordance with attestation standards established by the American Institute of Certified Public Accountants. The independent auditor engaged to evaluate the private school's fiscal and internal control practice shall also review any concerns raised in the private school's management letter submitted under subd. 2m. a. The fact that a private school reports a negative reserve balance alone is not evidence that the private school does not have the financial ability to continue operating or that the private school does not follow sound fiscal and internal control practices.

c. If an independent auditor engaged to evaluate the private school's fiscal and internal control practice determines that the governing body of the private school has not taken reasonable actions to remedy any concerns raised in the management letter submitted under subd. 2m. a. in the previous school year, a report prepared by the independent auditor that includes the auditor's findings related to the governing body's actions to remedy any concerns raised in the management letter for the previous school year.

3. a. By no later than February 15 or 120 days after the date on which the audit under subd. 2m. a. is received by the department, whichever is later, the department shall notify a private school participating in the program under this section whether or not additional information is required for the department to complete its review of the audit. Subject to subd. 3. b., the department may request that an auditor provide additional information if the request is related to the department reviewing the audit. The department shall determine whether a private school participating in the program under this section has provided the information and met the requirements required under subd. 2m. a. by April 1.

b. Before April 1, the department may contact the auditor who prepared the audit under subd. 2m. a. only regarding matters that may impact the private school's financial statement by an amount that is greater than 1 percent of the total amount the private school received under this section for the previous school year and any items or information the department determines are missing from the audit.

c. Notwithstanding subd. 3. a. and b., the department may communicate with an auditor as necessary for the purpose of assessing the financial viability of a private school participating in the program under this section.

d. An auditor who receives a written communication under this subdivision shall respond to the department within 10 school days of receiving the written communication.

(an)

1. A private school participating in the program under this section shall maintain a cash and investment balance that is at least equal to its reserve balance. If a private school does not maintain a cash and investment balance that is at least equal to its reserve balance, the private school shall refund the reserve balance to the department. This subdivision does not apply to a school year that occurs during the public health emergency declared on March 12, 2020, by executive order 72.

2. If a private school participating in the program under this section has a reserve balance that is greater than 50 percent of the total amount the private school received under this section in the previous school year, the governing body of the private school shall approve a plan for how it will use the amount of the reserve balance that exceeds 50 percent of the total amount the private school received under this section in the previous school year.

3. If a private school ceases to participate in or is barred from the program under this section and s. 118.60 and the private school's reserve balance is positive, the private school shall refund the reserve balance to the department.

(b) Each private school participating in the program under this section shall do all of the following:

1. Administer to any pupils attending the 3rd grade in the private school under this section a standardized reading test developed by the department.

2. Adopt the pupil academic standards required under s. 118.30 (1g) (a) 3.

2m. Develop a written policy governing visitors and visits to the private school.

3. Ensure that any teacher's aide employed by the private school has graduated from high school, been granted a declaration of equivalency of high school graduation, been granted a high school diploma by the administrator of a home-based private educational program, or been issued a general educational development certificate of high school equivalency, or has obtained a degree or educational credential higher than a high school diploma, declaration of equivalency of high school graduation, or general educational development certificate of high school equivalency.

3m. Annually, schedule two meetings at which members of the governing body of the private school will be present and at which pupils, and the parents or guardians of pupils, applying to attend the private school or attending

the private school may meet and communicate with the members of the governing body. The private school shall, within 30 days after the start of the school term, notify the department in writing of the scheduled meeting dates and shall, at least 30 days before the scheduled meeting date, notify in writing each pupil, or the parent or guardian of each minor pupil, applying to attend the private school or attending the private school of the meeting date, time, and place.

4. Maintain progress records for each pupil attending the private school under this section while the pupil attends the school and, except as provided under subd. 7., for at least 5 years after the pupil ceases to attend the school.

5. Upon request, provide a pupil or the parent or guardian of a minor pupil who is attending the private school under this section with a copy of the pupil's progress records.

6. Issue a high school diploma or certificate to each pupil who attends the private school under this section and satisfactorily completes the course of instruction and any other requirements necessary for high school graduation.

7. a. Except as provided in subd. 7. b., if the private school ceases operating as a private school, immediately transfer all of the progress records of the pupils who attended the school under this section to the board. The private school shall send written notice to each pupil, or to the parent or guardian of a minor pupil, of the transfer of progress records under this subd. 7. a.

b. If the private school is affiliated with an organization that will maintain the progress records of each pupil who attended the school under this section for at least 5 years after the private school ceases operation as a private school, the private school may transfer a pupil's records to the organization if the pupil, or the parent or guardian of a minor pupil, consents in writing to the release of the progress records to the affiliated organization. The private school shall send to the department a copy of the consent form for each pupil who consents to the transfer of progress records under this subd. 7. b. The written notice shall be signed by the pupil, or the parent or guardian of a minor pupil, and shall include the name, phone number, mailing address, and other relevant contact information of the organization that will maintain the progress records, and a declaration by the affiliated organization that the organization agrees to maintain the progress records for at least 5 years after the private school ceases operation as a private school.

(c) A private school may not require a pupil attending the private school under this section to participate in any religious activity if the pupil's parent or guardian submits to the pupil's teacher or the private school's principal a written request that the pupil be exempt from such activities.

(d) By August 1 before the first school term of participation in the program, or by May 1 if the private school begins participating in the program during summer school, each private school participating in the program under this section shall submit to the department all of the following:

1. a. In this subdivision, "municipality" has the meaning given in s. 5.02 (11).

b. A copy of the school's current certificate of occupancy issued by the municipality within which the school is located. If the private school moves to a new location, the private school shall submit a copy of the new certificate of occupancy issued by the municipality within which the school is located to the department before the attendance of pupils at the new location and before the next succeeding date specified in s. 121.05 (1) (a). If the municipality within which the private school is located does not issue certificates of occupancy, the private school may submit a certificate of occupancy issued by the local or regional governmental unit with authority to issue certificates of occupancy or a letter or form from the municipality within which the private school is located that explains that the municipality does not issue certificates of occupancy. A temporary certificate of occupancy does not meet the requirement of this subdivision.

3. Proof that the private school's administrator has participated in a fiscal management training program approved by the department.

(dr) A private school participating in the program under this section may elect to maintain an electronic copy of any application submitted on behalf of and any correspondence to or about a pupil attending the private school under this section instead of a paper copy of the application or correspondence. The private school shall maintain electronic copies of pupil applications and correspondence for a period of at least 5 years.

(e) Each private school participating in the program under this section shall administer the examinations required under s. 118.30 (1s) or examinations permitted under s. 118.301 (3) to pupils attending the school under the program. The private school may administer additional standardized tests to such pupils.

(em)

1. The governing body of each private school participating in the program under this section shall, subject to subd. 2., annually, by August 1, provide the department with evidence demonstrating that the private school remains accredited for the current school year as required under par. (ad). The governing body shall include as evidence of accreditation a notice prepared by an accrediting entity that confirms that the private school is accredited by that entity as of the date of the notice.

2. The governing body shall immediately notify the department if its accreditation status changes.

(g) 1. By the first day of the 3rd month beginning after the month in which the department establishes the model management plan and practices for maintaining indoor environmental quality in public and private schools under s. 118.075 (3), or by October 1 of a private school's first school year of participation in the program under this section, whichever is later, the private school shall provide for the development of a plan for maintaining indoor environmental quality in the private school.

2. By the first day of the 12th month beginning after the month in which the department establishes the model management plan and practices for maintaining indoor environmental quality in public and private schools under s. 118.075 (3), or by the beginning of the 2nd school year of participation in the program under this section, whichever is later, the private school shall implement a plan for maintaining indoor environmental quality in the private school.

3. Each private school participating in the program under this section shall provide a copy of the plan implemented under subd. 2. to any person upon request.

(h) Beginning in the 2018-19 school year, each private school participating in the program under this section shall conduct criminal background investigations of its employees and exclude from employment any person not permitted to hold a teaching license as the result of an offense and any person who might reasonably be believed to pose a threat to the safety of others.

(7m) (a) By May 1 before the first school term that a private school participates in the program under this section or s. 118.60, a private school shall submit to the department one of the following:

1. A surety bond payable to the state in an amount equal to 25 percent of the total amount of payments the private school expects to receive under this section and s. 118.60 during the first school year the private school participates in the program under this section.

2. A complete anticipated budget, on a form provided by the department, for the first fiscal period of participation in the program under this section and evidence of financial viability, as prescribed by the department by rule. The private school shall include in the budget the anticipated enrollments for all pupils enrolled in the private school and for pupils enrolled in the private school under this section; estimated revenues and costs; a schedule of anticipated beginning and ending net choice program assets; and a schedule of monthly cash flow requirements. The private school shall include in the budget contingent funding sources the private school will use in the event that actual enrollments are less than expected.

(b) 1. If a private school submits a surety bond under par. (a) 1., the private school shall annually provide, by May 1, a surety bond payable to the state until the private school submits all of the following to the department:

a. A financial audit prepared in accordance with generally accepted accounting principles with allowable modifications for long-term fixed assets that does not contain any indicators that the private school is not financially viable.

b. Evidence of sound fiscal and internal control practices under sub. (7) (am) 2m. b. for the school year in the financial audit submitted under subd. 1. a. and for the subsequent school year, neither of which indicates that the private school is not financially viable.

2. A private school shall provide a surety bond under this paragraph in an amount equal to 25 percent of the total amount of payments the private school expects to receive under this section and s. 118.60 during the following school year.

(c) If a private school submits a complete anticipated budget under par. (a) 2., the department shall determine whether the private school is financially viable by August 1. If the department determines that the private school is not financially viable, the private school is not eligible to participate in the program under this section or s. 118.60 in the current school year.

(9) If any accrediting or preaccrediting entity determines during the accrediting or preaccrediting process that a private school does not meet all of the requirements under s. 118.165 (1), it shall report that failure to the department.

(9m) Beginning in September 2016, and annually thereafter, the governing body of a private school participating in the program under this section that maintains an Internet site for the private school shall, if the private school is included in the most recent accountability report published under s. 115.385, within 30 days after the department publishes the accountability report, prominently link on the home page of that Internet site to the pages in that most recent accountability report concerning the private school.

(10) (a) The state superintendent may issue an order barring a private school from participating in the program under this section in the current school year if the state superintendent determines that the private school has done any of the following:

1. Intentionally or negligently misrepresented any information required under this section or any rule promulgated under this section.

2. Failed to provide the notice or pay the fee required under sub. (2) (a) 3., or provide the information required under sub. (7) (am) or (d), by the date or within the period specified.

3. Failed to refund to the state any overpayment made under s. 119.23 (4) (b), 2011 stats., or s. 119.23 (4) (bg), 2011 stats., or under sub. (4) (bg) or (4m) by the date specified by department rule.

5. Failed to provide the information required under sub. (6m) or (6p).

6. Failed to comply with the requirements under sub. (7) (b), (c), or (h) or (7m).

7. Violated sub. (7) (b) 4., 5., or 6.

8. Before the end of a 7-year period beginning on the date of an order issued by the state superintendent under this subsection, retained a disqualified person, for compensation or as a volunteer, as an owner, officer, director, trustee, administrator, person designated by the administrator to assist in processing pupil applications, or person responsible for administrative, financial, or pupil health and safety matters.

(am) If the state superintendent determines that any of the following have occurred, he or she may issue an order barring the private school from participating in the program under this section in the following school year:

1. The private school has not complied with the requirements under sub. (7) (em).

2. The private school's application for accreditation has been denied by the accrediting entity.

3. The private school has not achieved accreditation within the period allowed under sub. (2) (a) 7.

4. The private school intentionally or negligently misrepresented any information required under this section or any rule promulgated under this section.

(ar)

1. If the state superintendent determines that a private school has failed to continuously maintain accreditation as required under sub. (7) (ad), that the governing body of the private school has withdrawn the private school from the accreditation process, or that the private school's accreditation has been revoked, denied, or terminated by an accrediting agency, the state superintendent shall issue an order barring the private school's participation in the program under this section at the end of the current school year.

2. A private school whose participation in the program under this section is barred under subd. 1. may not participate in the program under this section or under s. 118.60 until the governing body of the private school demonstrates to the satisfaction of the department that it has obtained accreditation from an accrediting entity, provided the accreditation is from an entity other than the entity with which the private school failed to continuously maintain accreditation or, if the private school's accreditation was revoked, denied, or terminated, other than the entity that revoked, denied, or terminated the private school's accreditation.

(b) The state superintendent may issue an order immediately terminating a private school's participation in the program under this section if he or she determines that conditions at the private school present an imminent threat to the health or safety of pupils.

(c) Whenever the state superintendent issues an order under par. (a), (am), (ar), or (b), he or she shall immediately notify the parent or guardian of each pupil attending the private school under this section.

(d) The state superintendent may withhold payment from a private school under subs. (4) and (4m) if the private school violates this section or s. 115.383 (3) (b).

(11) The department shall do all of the following:

(a) Promulgate rules to implement and administer this section. The department may not by rule establish standards under sub. (7) (am) that exceed the standards established by the American Institute of Certified Public Accountants.

(b) Notify each private school participating in the program under this section of any proposed changes to the program or to administrative rules governing the program, including changes to application or filing deadlines but not including changes to provisions governing health or safety, prior to the beginning of the school year in which the change takes effect.

(c) Within 10 days after receiving the information submitted as required under sub. (7) (em), notify the participating private school of receipt of accreditation status.

(d) When the department publicly releases data related to enrollment of, standardized test results for, applications submitted by, waiting lists for pupils participating in or seeking to participate in the program under this section, release the data all at the same time, uniformly, and completely.

(12) During the public health emergency declared on March 12, 2020, by executive order 72, if a private school participating in the program under this section is closed for at least 10 school days in a school year by a local health officer, as defined in s. 250.01 (5), or the department of health services, in the school year during which the school is closed and the following school year, the department may not withhold payment from the private school under sub. (10) (d) or bar the private school from participating in the program under sub. (10) (a), (am), or (ar) for failing to comply with a requirement under this section or a rule promulgated under this section if all of the following occur:

(a) The private school submits information to the department that explains how the school closure impacted the private school's ability to comply with the requirement and any action the private school took to mitigate the consequences of not complying with the requirement.

(b) The department determines that the private school's failure to comply with the requirement was caused by the

closure.

History: 1989 a. 336; 1993 a. 16; 1995 a. 27 ss. 4002 to 4009, 9145 (1); 1995 a. 216; 1997 a. 27, 113; 1999 a. 9; 2001 a. 16, 105; 2003 a. 33, 155; 2005 a. 25, 125; 2009 a. 28, 96; 2011 a. 32, 47; 2013 a. 8, 20, 165; 2013 a. 166 s. 77; 2013 a. 237, 256; 2015 a. 55, 195, 212, 297, 338; 2017 a. 36, 59; 2017 a. 364 ss. 48, 49; 2019 a. 55, 185; 2021 a. 30; 2021 a. 238 s. 45; 2021 a. 239 s. 74; 2023 a. 11.

W. Va. Code § 18-31-11

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 1 (1).

Requirements for and rights of education service providers (current text, retrieved 2026-10-29)

(a) To be eligible to accept payments from a Hope Scholarship account, an education service provider shall:

(1) Submit notice to the board that they wish to participate in the Hope Scholarship Program;

(2) Provide participating parents with a receipt for all qualifying educational expenses for the Hope Scholarship student;

(3) Agree not to refund, rebate, or share Hope Scholarship funds with parents or students in any manner, except that funds may be remitted or refunded to a Hope Scholarship account in accordance with §18-31-7(c) of this code;

(4) Certify that it will not discriminate on any basis prohibited by 42 U.S.C. 1981;

(5) Submit any employee or other person who will have contact with Hope Scholarship students receiving services from the provider to a criminal background check and certify that said background check does not indicate conviction of a felony involving violence to the person and that the employee or other person is not on a federal or state sex offender registry; and

(6) In the case of a participating school, provide notice of each Hope Scholarship student's enrollment annually to the county superintendent of any student for which a student's tuition is being paid through the Hope Scholarship Program.

(b) This article does not limit the independence or autonomy of an education service provider or make the actions of an education service provider the actions of the state government.

(c) Education service providers shall be given maximum freedom to provide for the educational needs of Hope Scholarship students without governmental control.

(d) A participating school or education service provider is not required to alter its creed, practices, admission policy, hiring policy or curriculum in order to accept eligible recipients whose parents pay tuition or fees from a Hope Scholarship account pursuant to this article: Provided, That an education service provider is prohibited from requiring a student or family to pay tuition, costs, or fees above or in addition to the provider's regular tuition or fee schedule based in whole or in part upon a student or family member's participation in the Hope Scholarship Program.

(e) This article does not expand the regulatory authority of the state, its officers, or any school district to impose any additional regulation of education service providers beyond those necessary to enforce the requirements of the program.

W. Va. Code § 35-1A-1

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Cited as the 2023 edition; the text below is the current one.

Government limitations related to the exercise of religion (current text, retrieved 2026-10-29)

(a) Notwithstanding any other provision of law, no state action may:

(1) Substantially burden a person's exercise of religion unless applying the burden to that person's exercise of religion in a particular situation is essential to further a compelling governmental interest; and is the least restrictive means of furthering that compelling governmental interest; nor

(2) Treat religious conduct more restrictively than any conduct of reasonably comparable risk; nor

(3) Treat religious conduct more restrictively than comparable conduct because of alleged economic need or benefit.

(b) (1) A person whose exercise of religion has been substantially burdened, or is likely to be substantially burdened, in violation of this article may assert such violation or impending violation, including against the state or its political subdivisions, as a claim or as a defense in any judicial or administrative proceeding: Provided, That relief is limited to injunctive or declaratory relief and reimbursement of costs and reasonable attorney fees.

(2) Nothing in this article may be construed to create a cause of action by an employee against a nongovernmental employer; nor may anything in this article be construed to constitute a defense to any claim based upon a refusal to provide emergency medical services as required by the Emergency Medical Treatment and Active Labor Act, 42 U.S.C. § 1395dd; nor may anything in this article be construed to protect actions or decisions to end the life of any human being, born or unborn, including, but limited to, any claim or defense arising out of a violation of §16-2F-1 et seq., §16-2I-1 et seq., §16-2M-1 et seq., §16-2O-1, §16-2P-1, §16-2Q-1, §16-2R-1 et seq., §16-5-22, §30-1-26, §33-42-8, or §61-2-8 of this code.

W. Va. Code § 16B-17-2

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Declaration of policy (current text, retrieved 2026-10-29)

It is the public policy of the State of West Virginia to provide all of its citizens equal opportunity for employment, equal access to places of public accommodations, and equal opportunity in the sale, purchase, lease, rental and financing of housing accommodations or real property. Equal opportunity in the areas of employment and public accommodations is hereby declared to be a human right or civil right of all persons without regard to race, religion, color, national origin, ancestry, sex, age, blindness, or disability. Equal opportunity in housing accommodations or real property is hereby declared to be a human right or civil right of all persons without regard to race, religion, color, national origin, ancestry, sex, blindness, disability, or familial status.

The denial of these rights to properly qualified persons by reason of race, religion, color, national origin, ancestry, sex, age, blindness, disability, or familial status is contrary to the principles of freedom and equality of opportunity and is destructive to a free and democratic society.

W. Va. Code § 16B-18-5

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Discrimination in sale or rental of housing and other prohibited practices (current text, retrieved 2026-10-29)

As made applicable by section four of this article and except as exempted by §16B-18-4 and §16B-18-8 of this code, it is unlawful:

(a) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, ancestry, sex, familial status, blindness, disability or national origin;

(b) To discriminate against any person in the terms, conditions or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, ancestry, sex, familial status, blindness, disability or national origin;

(c) To make, print or publish, or cause to be made, printed or published any notice, statement or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation or discrimination based on race, color, religion, sex, blindness, disability, familial status, ancestry or national origin, or an intention to make any such preference, limitation or discrimination;

(d) To represent to any person because of race, color, religion, sex, blindness, disability, familial status, ancestry or national origin that any dwelling is not available for inspection, sale or rental when the dwelling is in fact available;

(e) For profit, to induce or attempt to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, color, religion, sex, blindness, disability, familial status, ancestry or national origin; or

(f) (1) To discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a disability of: (A) That buyer or renter; (B) a person residing in or intending to reside in that dwelling after it is so sold, rented or made available; or (C) any person associated with that buyer or renter.

(2) To discriminate against any person in the terms, conditions or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection with the dwelling, because of a disability of: (A) That person; (B) a person residing in or intending to reside in that dwelling after it is so sold, rented or made available; or (C) any person associated with that person.

(3) For purposes of this subdivision, discrimination includes:

(A) A refusal to permit, at the expense of the disabled person, reasonable modifications of existing premises occupied or to be occupied by the person if the modifications may be necessary to afford the person full enjoyment of the premises, except that, in the case of a rental, the landlord may where it is reasonable to do so condition permission for a modification on the renter agreeing to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted;

(B) A refusal to make reasonable accommodations in rules, policies, practices or services when the accommodations may be necessary to afford the person equal opportunity to use and enjoy a dwelling; or

(C) In connection with the design and construction of covered multifamily dwellings for first occupancy after the date that is thirty months after the date of enactment of the West Virginia Fair Housing Act, a failure to design and construct those dwellings in a manner that:

(i) The public use and common use portions of the dwellings are readily accessible to and usable by disabled persons;

(ii) All the doors designed to allow passage into and within all premises within the dwellings are sufficiently wide to allow passage by disabled persons in wheelchairs; and

(iii) All premises within the dwellings contain the following features of adaptive design: (I) An accessible

route into and through the dwelling; (II) light switches, electrical outlets, thermostats and other environmental controls in accessible locations; (III) reinforcements in bathroom walls to allow later installation of grab bars; and (IV) usable kitchens and bathrooms that an individual in a wheelchair can maneuver about the space.

(4) Compliance with the appropriate requirements of the American National Standard for Buildings and Facilities Providing Accessibility and Usability for Physically Handicapped People, commonly cited as ANSI A117.1, suffices to satisfy the requirements of subparagraph (3)(C)(iii) of this subdivision.

(5) (A) If a unit of general local government has incorporated into its laws the requirements set forth in subparagraph (3)(C) of this subdivision, compliance with those laws satisfy the requirements of that subparagraph.

(B) The commission or unit of general local government may review and approve newly constructed covered multifamily dwellings for the purpose of making determinations as to whether the design and construction requirements of subparagraph (3)(C) of this subdivision are met.

(C) The commission shall encourage, but may not require, units of local government to include in their existing procedures for the review and approval of newly constructed covered multifamily dwellings, determinations as to whether the design and construction of such dwellings are consistent with subparagraph (3)(C) of this subdivision, and may provide technical assistance to units of local government and other persons to implement the requirements of that subparagraph.

(D) Nothing in this article requires the commission to review or approve the plans, designs or construction of all covered multifamily dwellings to determine whether the design and construction of the dwellings are consistent with the requirements of subparagraph (3)(C) of this subdivision.

(6) (A) Nothing in paragraph (5) of this subdivision affects the authority and responsibility of the commission or a local public agency to receive and process complaints or otherwise engage in enforcement activities under this article.

(B) Determinations by a unit of general local government under subparagraphs (5)(A) and (B) of this subdivision are not conclusive in enforcement proceedings under this article.

(7) As used in this section, the term "covered multifamily dwellings" means: (A) Buildings consisting of four or more units if the buildings have one or more elevators; and (B) ground floor units in other buildings consisting of four or more units.

(8) Nothing in this article invalidates or limits any law of this state or any political subdivision of this state that requires dwellings to be designed and constructed in a manner that affords disabled persons greater access than is required by this article.

(9) This section does not require that a dwelling be made available to an individual whose tenancy would constitute a direct threat to the health or safety of other individuals or whose tenancy would result in substantial physical damage to the property of others. The burden of proving such threat to health or safety or the likelihood of such damage is upon the respondent.

(10) For the purposes of this subdivision, rules, policies, practices, or services regarding animals are subject to the reasonable accommodation requirements of subparagagph (B), paragraph (3) of this subdivision and the following provisions:

(A) In connection with a request for reasonable accommodation to the rules, policies or services, a person with a disability may be required to submit documentation, from a professional treatment provider, of the disability related need for the assistance animal.

(i) Such documentation is sufficient if it establishes that the assistance animal will provide some type of disability-related assistance or emotional support.

(ii) A person with a disability may not be required to submit or provide access to medical records or medical providers, or to provide detailed or extensive information or documentation of a person's physical or mental impairments.

(B) A person with a disability may be denied the accommodation of an assistance animal if there is credible evidence that:

(i) The assistance animal poses a direct threat to the health or safety of others that cannot be eliminated by another reasonable accommodation; or

(ii) The assistance animal would cause substantial physical damage to the property of other that cannot be reduced or eliminated by another reasonable accommodation.

(C) A determination that an assistance animal poses a direct threat of harm to others or would cause substantial physical damage to the property of others must be based on an individualized assessment that relies on objective evidence about the specific animal's actual conduct.

(D) A request for a reasonable accommodation may not be unreasonably denied, conditioned on payment of a fee or deposit or other terms and conditions applied to applicants or residents with pets, and a response may not be unreasonably delayed.

Wyo. Stat. Ann. § 9-29-103

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Cited as the 2025 edition; the text below is the current one.

Limitation on state action; exception (current text, retrieved 2026-10-29)

(a) State action shall not substantially burden a person's right to the exercise of religion, even if the burden results from a rule of general applicability, unless it is demonstrated that applying the burden to that person's exercise of religion in that particular instance is:

(i) Essential to further a compelling governmental interest; and

(ii) The least restrictive means of furthering that compelling governmental interest.

(b) This act shall apply to all state and local laws, ordinances, rules, regulations and policies, and their implementation, whether statutory or otherwise and whether adopted before, on or after the effective date of this act.

Wyo. Stat. Ann. § 40-26-103

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Sale or rental (current text, retrieved 2026-10-29)

(a) A person may not refuse to sell or rent, after the making of a bona fide offer, refuse to negotiate for the sale or rental of, or in any other manner make unavailable or deny a dwelling to an individual because of race, color, religion, sex, disability, familial status, or national origin.

(b) A person may not discriminate against an individual in the terms, conditions, or privileges of sale or rental of a dwelling or in providing services or facilities in connection with a sale or rental of a dwelling because of race, color, religion, sex, disability, familial status or national origin.

(c) This section does not prohibit discrimination against an individual because the individual has been convicted under federal law or the law of any state of the illegal manufacture or distribution of a controlled substance.

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